

WARREN COMMISSION

INVESTIGATION OF
THE ASSASSINATION OF
PRESIDENT JOHN F. KENNEDY

HEARINGS

Before the President's Commission
on the Assassination
of President Kennedy

Volume XIV

1964

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COMMISSION (14 OF 26): HEARINGS VOL. XIV (OF 15) ***

**INVESTIGATION OF
THE ASSASSINATION OF PRESIDENT JOHN
F. KENNEDY**

HEARINGS

Before the President's Commission

on the Assassination

of President Kennedy

PURSUANT TO EXECUTIVE ORDER 11130, an Executive order creating a Commission to ascertain, evaluate, and report upon the facts relating to the assassination of the late President John F. Kennedy and the subsequent violent death of the man charged with the assassination and S.J. RES. 137, 88TH CONGRESS, a concurrent resolution conferring upon the Commission the power to administer oaths and affirmations, examine witnesses, receive evidence, and issue subpoenas

Volume
XIV

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**PRESIDENT'S COMMISSION
ON THE
ASSASSINATION OF PRESIDENT KENNEDY**

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Biographical information on the Commissioners and the staff can be found in the Commission's *Report*.

Preface

The testimony of the following witnesses is contained in volume XIV: Curtis LaVerne Crafard, Wilbyrn Waldon (Robert) Litchfield II, Robert Carl Patterson, Alice Reaves Nichols, Ralph Paul, George Senator, Nancy Perrin Rich, Breck Wall (Billy Ray Wilson), Joseph Alexander Peterson, Harry N. Olsen, and Kay Helen Olsen, all of whom were friends, acquaintances, employees, or business associates of Jack L. Ruby; Earl Ruby and Sam Ruby, two of Ruby's brothers, and Mrs. Eva Grant, one of his sisters; Jack L. Ruby; Dr. William Robert Beavers, a psychiatrist who examined Ruby; and Bell P. Herndon, an FBI polygraph expert who administered a polygraph test to Ruby.

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**Hearings Before the President's
Commission
on the
Assassination of President Kennedy**

TESTIMONY OF CURTIS LaVERNE CRAFARD RESUMED

The testimony of Curtis LaVerne Crafard was taken at 9:15 a.m., on April 9, 1964, at 200 Maryland Avenue NE., Washington, D.C., by Messrs. Burt W. Griffin, Leon D. Hubert, Jr., and Albert E. Jenner, Jr., assistant counsel of the President's Commission.

Mr. GRIFFIN. I want to start out by stating for the record, for your purposes, also, Larry, that we are continuing this deposition under the same authority which it was commenced yesterday morning, and I know that there is no mistake on your part that the oath which you took before is still in effect.

Mr. CRAFARD. That is right.

Mr. GRIFFIN. What we propose to do today is to go through in some detail some of the papers which have come into our possession. The first thing I want to ask you to look at is a notebook, which is a blue cover spiral notebook entitled, "Penway Memo Notebook" and it has Commission Document No. 717, but for the record I will clarify this that this is not the same number as the numbers that we are using in the deposition. I will give it a deposition number in just a minute. I am going to mark this for identification on the front cover—I am going to mark this on the inside of the front cover at the bottom in pen, "Washington, D.C., April 9, 1964, Exhibit 5202, Deposition of C. L. Crafard," and I am going to sign it with my signature, Burt W. Griffin.

Mr. HUBERT. For the purpose of the record, count the number of pages and half pages. Perhaps it is a good idea to initial the bottom of each page with your initials.

Mr. GRIFFIN. All right. In addition to the front cover, what I am going to do is number the pages at the bottom, and I will put my initials on each. I will make it clear that I am numbering only the separate sheets of paper. I

am not numbering each side of the paper. We can refer to these pages as the numbered side and the reverse side for purposes of discussion.

Mr. HUBERT. Why don't you have the record show that pages——

Mr. GRIFFIN. Page 10 is a blank. Page 11 is a half sheet of paper which has been torn off and there is nothing written on that page. Page 14 is approximately a third of a sheet of paper, the bottom two thirds having been torn off, and it does contain penciled writing on it. Page 15 is a full sheet. Page 16 is approximately a half sheet with penciled writing on it. Page 17 is a full sheet. There is a total of 18 pages including half sheets and third sheets of paper in the notebook, and there is a blue hard cardboard front cover and a buff or dirty brown back cover which is also hard cardboard. Do we have photostatic copies of it?

Do you want to put that in the record?

Mr. HUBERT. I just wanted to get them numbered the same way. We can do that later.

(The document was marked Craford Exhibit No. 5202 for identification.)

Mr. GRIFFIN. I am going to hand you what I have marked as Commission Exhibit 5202, and ask you, Larry, if you recognize that.

Mr. CRAFT. Yes; this is a notebook I used to keep phone numbers when I was working for Mr. Jack Ruby.

Mr. GRIFFIN. Did you buy that notebook yourself?

Mr. CRAFT. Yes; I bought this myself.

Mr. GRIFFIN. And how soon after you went to work for Jack Ruby did you buy that?

Mr. CRAFT. About a week after I went to work for him. You look real close on the front you will see my name on the front of it.

Mr. GRIFFIN. And did you write that in there?

Mr. CRAFT. Yes.

Mr. GRIFFIN. Can you read what you see on there?

Mr. CRAFARD. C. L.—Larry Crafard, Carousel Club. Its got 1312½ Commerce Street, Dallas, Tex. It's real vague on there.

Mr. GRIFFIN. That is an impression that simply comes through as actually scratches on there and doesn't come through in any color?

Mr. CRAFARD. No; it doesn't come through in any color.

Mr. GRIFFIN. Now, when you bought this book, did Jack Ruby give you any instructions with respect to maintaining the book?

Mr. CRAFARD. Just use it to put phone numbers down in, addresses of people that called in wanting to talk, called in, put the phone number down so I'd know how he could get in touch with them.

Mr. GRIFFIN. Did the notations that appear in there follow any sequence either chronological or by topic or anything of that sort?

Mr. CRAFARD. I don't believe they do, no.

Mr. GRIFFIN. Would you want to take the time to look at it and see if you recognize any sequence in the entries?

Mr. CRAFARD. The first portion of the book on the first page is more or less numbers which was used quite frequently.

Mr. GRIFFIN. You are referring to page 1?

Mr. CRAFARD. Yes; page 1.

Mr. GRIFFIN. Now, do you want to look over on the back of page 1; the reverse side?

Mr. CRAFARD. It is also numbers that were used quite frequently.

Mr. GRIFFIN. Now, look at page 2.

Mr. CRAFARD. Page 2, I believe, was an address on the top of page 2. It was an address that I wrote down for Mr. Ruby.

Mr. GRIFFIN. What about the remaining entries on there. Were they numbers that were used frequently?

Mr. CRAFARD. No; I don't believe so.

Mr. GRIFFIN. Do you want to look at the reverse side of page 2?

Mr. CRAFT. There is only one number on there, on the reverse side of page 2 that we used very frequently. That was Little Lynn's phone number.

Mr. GRIFFIN. The front part of page 3?

Mr. CRAFT. From the numbers on there, as far as I know, there was only one of them that was used very frequently. It was Mickey Ryan. On the reverse side is just more or less notations that were taken down from phone calls. Then on page 4 is just numbers that were taken down from phone calls. The first number on page 4, Norma Bennett, that was that one girl I was trying to tell you about yesterday.

Mr. GRIFFIN. She was the waitress?

Mr. CRAFT. No; she was the one I started saying about that Jack had tried to get to work as a stripper to get her to work for this friend of his, Ralph Paul.

Mr. HUBERT. What you mean is that during your testimony yesterday you remembered her name as Norma but you did not remember her last name?

Mr. CRAFT. I did not even remember her first name, sir.

Mr. HUBERT. I thought you mentioned that her name was Norma.

Mr. CRAFT. Not that I recall, sir.

Mr. HUBERT. In any case, you now say that the person you were testifying about yesterday who tried to get work and who was ultimately placed at work by Ruby with Ralph Paul was Norma Bennett?

Mr. CRAFT. Yes, sir.

Mr. HUBERT. And the entry on page—what is it?

Mr. CRAFT. Page 4.

Mr. HUBERT. Refreshes your memory to that extent, right?

Mr. CRAFT. Yes, sir. On the reverse side of page 4 is just notations. No. 5 is just notations, with some things that Jack had to do on that day. Then the reverse side of 5 is just notations, phone calls. No. 6 is some draws that I took on different days. The reverse side of No. 6 is just notations, mostly for phone calls that was taken. No. 7 is just notations with

the exception of the top number, the top name, Joe Roskydall, who was a friend of mine while I was previously living in Dallas.

Mr. GRIFFIN. Larry, in the pages that you have gone through so far, have you noticed any handwriting in that book that is not your handwriting?

Mr. CRAFARD. No, sir.

Mr. GRIFFIN. As you go through this, if you do recognize any handwriting that is not yours, would you point that out to us?

Mr. CRAFARD. Yes, sir. On the reverse side of page 7 there is just notations from phone calls. The bottom half of that page written in ink isn't my handwriting.

Mr. GRIFFIN. Do you recognize whose handwriting that is?

Mr. CRAFARD. No, sir; I don't.

Mr. GRIFFIN. Are you able to recognize Jack Ruby's handwriting?

Mr. CRAFARD. No, sir; I am not.

Mr. GRIFFIN. Are you able to recognize Andy Armstrong's handwriting?

Mr. CRAFARD. I believe I would recognize Andy's writing.

Mr. GRIFFIN. Does that appear to be Andy Armstrong's handwriting?

Mr. CRAFARD. No, sir.

Mr. GRIFFIN. Do you want to look at page 8?

Mr. CRAFARD. That is my writing on page 8. That is just phone numbers, addresses that was taken down that Jack Ruby give me to write down, addresses that he wanted to keep. On the reverse side of that is a couple of phone numbers. I don't recall what they were for. Page 9 I don't have any idea what that was for. I don't recall it all.

Mr. GRIFFIN. Is that your handwriting on page 9?

Mr. CRAFARD. It looks like my handwriting, yes. The reverse side of page 9 is blank. Page 10 is blank. A portion of a page, page 11, is blank.

Mr. GRIFFIN. Page 11, incidentally, is a half sheet of paper. Do you recall in using this notebook whether you had occasion to rip out portions of the notebook?

Mr. CRAFARD. A couple of times I took a piece of paper and put a phone number on it for Jack. Page 12 is just a few notations for some things that I had to buy for myself. The reverse side of page 11 is——

Mr. GRIFFIN. That is the reverse side of page 12?

Mr. CRAFARD. Page 12, yes; is just notations. Page 13 is a couple of notations.

Mr. GRIFFIN. Page 13 is in your handwriting?

Mr. CRAFARD. Yes. This number in East Waco may not be mine. I don't know.

Mr. GRIFFIN. You are referring to what appears to be 3902——

Mr. CRAFARD. East Waco.

Mr. GRIFFIN. East Waco, and that is written in pen?

Mr. CRAFARD. Yes; I don't recall I ever wrote it down, and it doesn't look like my handwriting.

Mr. HUBERT. Page 10?

Mr. GRIFFIN. No; page 13.

Mr. CRAFARD. Page 13. The reverse side of that page is my handwriting. It is just notations. Page 14 is some notations I took while I was trying to make arrangement to ship a dog to California. It is about a third of a page.

Mr. GRIFFIN. Can you read page 14 for us? It is a little difficult to read.

Mr. CRAFARD. I'm not even sure what it is, myself. I can make out the name Frank Fisher underneath, but that is all. I believe the rest of it is something, Boeing Insurance it looks like.

Mr. HUBERT. How is it spelled?

Mr. CRAFARD. B-o-e-i-n-g. The reverse side of page 14 is just notations. 15 is just notations. I don't remember the bottom portion of that number wrote in dark blue ink.

Mr. GRIFFIN. It begins with "WE-7-3037"?

Mr. CRAFARD. Yes.

Mr. HUBERT. What page?

Mr. CRAFARD. Page 15.

Mr. GRIFFIN. Then there are three more lines which appear to read on one line, "063" on the next line "Herman" printed, and the letters "Flore" and then those are crossed out and written above it in longhand is the word "flowers". And then directly under "Herman Flowers" is in longhand "from Wax-a-hatchy." Do I understand that you do not recognize that writing, for example, "from Wax-a-hatchy", as being in your handwriting?

Mr. CRAFARD. "Wax-a-hatchy", I believe, is my handwriting. The rest of it I don't recognize. On the reverse side of that is figuring. That is definitely not mine. Page 16 is just notations. That is about 2/3 of a page. The reverse side of that page is just notations, people calling in wanting reservations. Page 17 is just notations in my handwriting. The reverse side of page 17 is just notations. Page 18 is just notations in my handwriting. The reverse side of that is just notations.

Mr. GRIFFIN. With the exception of the pages in that book which you have indicated are blank, every page in the book is filled, which means that there are only a total of 18 pages in the book altogether. Do you recall from looking at this notebook whether when you bought the notebook it had more pages in it than appear to be there now?

Mr. CRAFARD. I believe it did have. I'm not positive.

Mr. GRIFFIN. Do you recall ripping out any of the pages?

Mr. CRAFARD. I don't recall ripping out any full pages; no, sir.

Mr. GRIFFIN. Do you recall whether in making the entries in that book you used pages in a consecutive fashion or whether you made entries on pages at random so that there would be many blank pages interspersed among pages that had writing on them?

Mr. CRAFARD. Most of it, I believe, was—from the first portion of the book, from the front to the back was pretty well in rotation. If I turn it over to the back and maybe flip over four or five pages and make a notation in it, as I recall.

Mr. GRIFFIN. Do you mean by that that you would leave some blank pages at the back?

Mr. CRAFT. As I recall, there was blank pages left spaced in the back.

Mr. GRIFFIN. So your testimony would be that the book as you see it now is not in the same condition as it was in when you left Dallas on the 23d of November?

Mr. CRAFT. That is right.

Mr. GRIFFIN. Is there anything else about that book which appears to be different from the way that you remember it when you left Dallas on the 23d?

Mr. CRAFT. No; not that I can notice.

Mr. GRIFFIN. Do you have any general questions, Mr. Hubert, that you want to ask about the book?

Mr. HUBERT. Yes; I would like to. What was the purpose of keeping that book?

Mr. CRAFT. I used it, Jack would get calls he wanted to keep the number of and I'd write the number down in this book and later transfer to another book, and then I would use it if a phone call come in somebody wanting to talk to Jack I'd put the number down where he could get in touch with them at so I could give him the number to call.

Mr. HUBERT. I think you testified that the first three or four pages were made when you first bought the book?

Mr. CRAFT. Yes.

Mr. HUBERT. And were in fact numbers that you knew or he told you would be frequently called, is that right?

Mr. CRAFT. Yes; the first two pages on both sides.

Mr. HUBERT. He gave you those numbers?

Mr. CRAFT. Yes.

Mr. HUBERT. Now, you were to keep the book in order to advise him currently, that is to say, daily, of the calls and messages and so forth that came in?

Mr. CRAFT. That is right.

Mr. HUBERT. I suggest to you, therefore, that that book, in order to serve the purpose that you stated, it was being kept for, would have been used by making the entries in sequence as they came up and not skipping around?

Mr. CRAFT. I used the front of the book for numbers that Jack give me that he wanted to keep. Then I'd use the back of the book for people that called in for reservations at the club or he'd give me some numbers he wanted to use right then, but he wouldn't want to keep them, or something of this sort.

Mr. HUBERT. My point is that when you first started to use the book did you just put the first series of entries other than those numbers that were frequently called just at random on any page, or would you put it in the next available page?

Mr. CRAFT. It would usually be on the next page. Sometimes I would skip maybe two or three pages.

Mr. HUBERT. Did you have any reason for doing that?

Mr. CRAFT. I'd want to have the pages there, a couple of blank pages there, like this one here which should have been torn out. I don't know why I didn't.

Mr. HUBERT. What page are you referring to?

Mr. CRAFT. The reverse side of page 12. It is a list of some sandwiches I went out and got for a couple of the girls that worked at the club.

Mr. HUBERT. Are you suggesting to us that the book served several functions and that there were different portions of it for each function?

Mr. CRAFT. That is right.

Mr. HUBERT. I think you said that the back of each page was used for the function of putting down reservations.

Mr. CRAFT. I might use two or three pages right in a row for that, or I might take a page right out of the middle of the book.

Mr. HUBERT. And leave it in the book?

Mr. CRAFARD. Usually I tore the page out. The pages I transferred over and when I got the book full I'd just throw the book away and get another book.

Mr. HUBERT. Which book are you talking of?

Mr. CRAFARD. These notebooks like this.

Mr. HUBERT. You had more than one?

Mr. CRAFARD. I believe I had one other notebook similar to this, the same type of a notebook as this.

Mr. GRIFFIN. Do you recall what you did with that notebook?

Mr. CRAFARD. No, I don't.

Mr. HUBERT. I thought you testified that this was the one that you started off with.

Mr. CRAFARD. Yes.

Mr. HUBERT. There was another one that you bought later?

Mr. CRAFARD. Yes. I used it quite frequently. I'd tear the pages out and write down the reservations a lot, most of the time. I had this book and when I started putting reservations down I thought I'd get another book and use it for that and then I'd have this one just for the phone numbers and I wouldn't mess up the reservations.

Mr. HUBERT. Then the other book, when it was used up, as it were, was thrown away?

Mr. CRAFARD. That is right.

Mr. HUBERT. Now, you have been through it. What we want to find out is if there is any way that one can tell by looking at the book about the date when any particular entry was made.

Mr. CRAFARD. No, sir.

Mr. HUBERT. Are you saying that you skipped around arbitrarily?

Mr. CRAFARD. It might be 2 or 3 days before I'd put anything down in this book in a row, maybe. Personally, I couldn't say anything about the dates when I made the entries.

Mr. HUBERT. Suppose that you hadn't used the book for a couple of days and then you found occasion to make an entry. Would you make that entry right following the last one you had made or would you make it at some other page?

Mr. CRAFARD. Several times I would flip over in the book to the next empty page, put down an entry, and later I'd take the first few pages that I had left out, left where I could and there would be a number Jack would want to keep and I'd write the number down. These numbers on the first couple of pages here, I think the first page is all numbers that I got the first day and then the others is numbers I added to it later.

Mr. HUBERT. Then are we to understand that there is no possibility of determining the sequence of events recorded in that book by referring to the order in which they appear in the book?

Mr. CRAFARD. That is right.

Mr. HUBERT. In other words, an entry on one of the later pages might have been made prior to the one on the earlier page?

Mr. CRAFARD. That is right.

Mr. GRIFFIN. When you testified, Larry, that you would sometimes flip the book over and make entries on the back of the pages, and as you have just done in front of us, you have turned the book over on its face to the back of the book. Do I understand your testimony to mean, then, that you worked, for some of your notations you worked backward?

Mr. CRAFARD. That is right.

Mr. GRIFFIN. From the back of the book?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. But am I correct in understanding that the pages in the front of the book which have writing on the back side of the numbered page were not entries that were made in this fashion that we have just been describing but followed in the ordinary sequence that you would have made in working from the front of the book?

Mr. CRAFARD. That is right. The first two pages in the book, as I stated before, are numbers that he wanted to keep. I would fill the front of the

page and then turn the page over and fill the reverse side of that same page.

Mr. GRIFFIN. Now, as you go through there, would you leaf through those pages from one on, and tell us what the first page is that you recognize that wasn't made by working from the front of the book and filling in sequence the back of the page after you had filled the front?

Mr. CRAFARD. I believe it would be page No. 4.

Mr. GRIFFIN. And the back of page 4 has entries on it which might have been made because you were working from the back of the book forward?

Mr. CRAFARD. Yes, I believe so. I believe that is where I made those.

Mr. GRIFFIN. You also explained to Mr. Hubert that you would transfer some of the entries from that book into another notebook.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Would you describe the other notebook for us?

Mr. CRAFARD. It was a Penway notebook, but it was a larger notebook. It was a memo pad, I believe is what it was. Was wide enough that it had a dividing line down the middle of the page, a red dividing line down the middle of the page.

Mr. GRIFFIN. Who purchased that notebook?

Mr. CRAFARD. I did.

Mr. GRIFFIN. And how long after you purchased this small Exhibit 5202 did you purchase the notebook that you have just been describing?

Mr. CRAFARD. I believe it was about 3 or 4 days later.

Mr. GRIFFIN. Where was that book kept physically?

Mr. CRAFARD. Mostly on Jack's desk.

Mr. GRIFFIN. Did you leave that notebook at the Carousel when you left?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Were there any entries that were made in that notebook which were entered directly into that notebook without being placed in some other notebook first?

Mr. CRAFT. I believe there were a few in the last couple or few pages in the notebook.

Mr. GRIFFIN. The entries that were in this larger Penway notebook which you have been describing, did they include all of the telephone numbers that are in this small Penway notebook which we have before us?

Mr. CRAFT. No, not all of the numbers. There were numbers—the numbers that Jack wanted to keep and used quite frequently.

I believe all of the numbers on both sides of the first two pages were in that book along with some other numbers that he had given me that he wanted to keep that I wrote down there in the front.

Mr. GRIFFIN. Were all the numbers that were placed in the large Penway notebook placed there at Jack's instructions or did you place some of them in there on your own initiative?

Mr. CRAFT. It was numbers that Jack wanted to keep and he asked me to write down, he had asked me to get another book and write them down in it so he could have them.

Mr. GRIFFIN. Up to the time that you bought this larger Penway notebook, had Jack been maintaining a notebook?

Mr. CRAFT. Very seldom that he used a notebook. He had a book full of numbers he very seldom used it.

Mr. GRIFFIN. Where did he keep that book of phone numbers?

Mr. CRAFT. I believe he had one on his desk.

Mr. GRIFFIN. Do you recall what kind of a book that was?

Mr. CRAFT. I believe it was a regular phone number and address book.

Mr. GRIFFIN. Do you think you would recognize that book if it were shown to you again?

Mr. CRAFT. I believe so; yes.

Mr. GRIFFIN. Larry, do you recall at this point if there were other entries in this small Penway notebook which you have identified as 5202 which you do not see in there now?

Mr. CRAFARD. I couldn't say definitely that there was; no, sir.

Mr. GRIFFIN. I want to refer now to the inside of the front cover. At the top of the inside of the front cover there is a number which appears to be "261-TA3-8101."

Is that the way you would read that number?

Mr. CRAFARD. I would read it 261-7A3-8101.

Mr. GRIFFIN. Do you recognize that number?

Mr. CRAFARD. No; I don't sir.

Mr. GRIFFIN. Now, can you tell us what the number is underneath that? Read it for the record.

Mr. CRAFARD. FE 5-3366.

Mr. GRIFFIN. Do you recognize that number?

Mr. CRAFARD. No.

Mr. GRIFFIN. There is a number under that, 612. Do you have any idea what connection that has?

Mr. CRAFARD. No, I don't.

Mr. GRIFFIN. Do you see the name "Jeff," which is written under 612?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Do you know who that might refer to?

Mr. CRAFARD. No; I can't recall who it was.

Mr. GRIFFIN. What is the next number under Jeff?

Mr. CRAFARD. TA 1-1782.

Mr. GRIFFIN. That "T" is written the same as what you thought was a No. 7?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. In 261——

Mr. CRAFARD. Just a second. Half the time I've got to figure it out, myself.

Yes, that would be TA there, too.

Mr. GRIFFIN. And that is your handwriting?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. I take it what you are indicating is that you have a tendency to make your "T's" look like "7's."

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Do you recognize this number TA 1-1782?

Mr. CRAFARD. No, I don't sir.

Mr. GRIFFIN. Now, on the top of page 1 there is some sort of a word written.

Mr. CRAFARD. The word "save."

Mr. GRIFFIN. What is the significance of that?

Mr. CRAFARD. That I want to save that piece of paper, that particular sheet of paper, that I don't want to destroy it.

Mr. GRIFFIN. I take it that the notation "Vegas Club" with its number under it is the telephone number of the Vegas Club.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And the next number is written "Jack's home" and under that "Whitehall 15601."

That is Jack Ruby's telephone number at home?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Now, tell us what this next notation "Buddy" Fort Worth——

Mr. CRAFARD. Buddy, Fort Worth, phone No. AX 3-0118 with the words "twist board" underneath it is the fact that this Buddy was a gentleman Jack called in reference to the twist board. I believe that is one of the gentlemen had something to do with making the twist boards in Fort Worth.

Mr. HUBERT. Do you remember what Buddy's last name was?

Mr. CRAFARD. I'm not positive. I believe it was Buddy Heard.

Mr. HUBERT. What was your understanding as to Buddy Heard's connections to the twist boards?

Mr. CRAFARD. I believe that he had something to do with the production of the twist board in Fort Worth.

Mr. HUBERT. What leads you to believe that?

Mr. CRAFARD. Because of the way it is set up here, he give me the number, he give me the twist boards. It was something to do with either the production or the selling of the twist boards.

Mr. HUBERT. Now, there is a line, rather a vacant space under "twist boards."

I would just as soon that you not make entries in the book.

After that blank line there is some writing "Fort Worth" and some other things that follow.

Would you read that into the record, and then tell us what the significance of that is?

Mr. CRAFARD. It would be the word "Fort Worth" phone No. "ED-51266" with a dash, and the words "give to Mike Shore only." That would be a number where Jack Ruby could be reached and he didn't want me to give the number to anyone but Mike Shore.

Mr. HUBERT. Do you know why he didn't want to give it to anyone but Mike Shore?

Mr. CRAFARD. No, sir; I do not.

Mr. HUBERT. Was Mike Shore a person that Ruby dealt with regularly?

Mr. CRAFARD. I believe he talked to Mike Shore two or three times a week on the telephone.

Mr. HUBERT. Did you ever have occasion to meet Mike Shore?

Mr. CRAFARD. I'm not sure, sir. I believe he was in the club. I'm not positive.

Mr. HUBERT. Did you ever have occasion to meet Buddy Heard?

Mr. CRAFARD. I don't recall, sir.

Mr. HUBERT. Do you recall where Mike Shore lived?

Mr. CRAFARD. No, sir; I don't.

Mr. HUBERT. Let me ask you to state again what this entry in connection with Mike Shore pertained to?

Mr. CRAFARD. The number would be a number where Jack Ruby could be reached but he didn't want me to give the number to anyone but Mike Shore.

Mr. HUBERT. Did you ever call that number, ED-51266?

Mr. CRAFARD. I don't believe so, sir.

Mr. HUBERT. Was the number ED-51266 entered into this book the first day that you got the book?

Mr. CRAFARD. It was within the first 2 or 3 days, I'm positive of that.

Mr. HUBERT. Did you ever have occasion to call Jack Ruby at that number?

Mr. CRAFARD. Not that I recall. I don't remember making a call at that number.

Mr. GRIFFIN. Did Jack say anything to you which would indicate how often he visited the premises that that telephone number was located at?

Mr. CRAFARD. No, sir.

Mr. GRIFFIN. Do you have a specific recollection of the conversation that you had with Jack which resulted in making this entry in the book?

Mr. CRAFARD. I believe it was over the telephone, and he called in, and I believe I said something about Mike Shore had called wanting to talk to him, and he give me that number and told me to give it to Mike Shore only.

Mr. GRIFFIN. Did he indicate whether he would be at that number only that day or for a short period of time, or whether he could be reached there every day, or what?

Mr. CRAFARD. I believe it was just a couple hours that day.

Mr. GRIFFIN. Now, under the name "Mike Shore only" there is another line which has no writing on it, and then there is an entry "St. Charles FL 7-

0520.” What is the significance of that?

Mr. CRAFARD. I believe the name St. Charles is the last name of a gentleman that Jack Ruby knew, but I don’t recall ever meeting the gentleman or ever calling him to talk to.

Mr. GRIFFIN. Do you recall how that entry came to be put in the book?

Mr. CRAFARD. No, other than the fact that Jack give me the number. I believe there is reference to that same number further on in the book.

Mr. GRIFFIN. Perhaps when we get to it we can discuss it at that point.

Mr. CRAFARD. All right.

Mr. GRIFFIN. I am going to turn over page one then.

There are no further entries on page one, are there?

Mr. CRAFARD. No, sir.

Mr. GRIFFIN. And we will look at the reverse side of page one.

Now, there is a name written here “Abe”——

Mr. CRAFARD. Klinman.

Mr. GRIFFIN. How is that spelled?

Mr. CRAFARD. K-l-i-n-m-a-n.

Mr. GRIFFIN. Who is Abe Klinman?

Mr. CRAFARD. I don’t know what his position was or what he done for a living, but I believe I met him at the club.

Mr. GRIFFIN. Was he a local Dallas citizen?

Mr. CRAFARD. I believe so, yes.

Mr. GRIFFIN. Was this somebody that Jack dealt with regularly?

Mr. CRAFARD. Yes. Four or five different times that I know of Abe called the club, and several times that Jack called Abe.

Mr. GRIFFIN. There is a telephone number under there, “RI 8——”

Mr. CRAFARD. “4272.”

Mr. GRIFFIN. Is that Abe Klinman's?

Mr. CRAFT. Yes.

Mr. GRIFFIN. On the next line there is something written in there.

Mr. CRAFT. The word "personal," the letters "UN," that is a telephone No. "UN-3-0400."

Mr. GRIFFIN. Whose number is that?

Mr. CRAFT. Mr. Earl Ruby's in Detroit, that is his home phone number.

Mr. GRIFFIN. While you were at the Carousel, do you recall Jack's ever telephoning Earl Ruby or Earl Ruby ever telephoning Jack?

Mr. CRAFT. Jack phoned Earl two or three different times. I don't recall Earl phoning Jack.

Mr. GRIFFIN. Do you recall why it was Jack called Earl?

Mr. CRAFT. In connection—the one time that I can really recall was in connection with the twist boards.

Mr. GRIFFIN. How soon was that after you went to work for Jack?

Mr. CRAFT. I believe that would have been about 2 or 3 weeks after I went to work for Jack.

Mr. GRIFFIN. And what do you recall about that telephone call?

Mr. CRAFT. Just the fact that he told Earl about the twist boards, and he told him he'd send him a couple of them and some of the advertisement he had on them, so he could promote them a little bit up Detroit.

Mr. GRIFFIN. Did you overhear this telephone conversation?

Mr. CRAFT. Yes, sir; there was something said about how they was doing there, how they was selling there in Dallas, and the fact that Jack thought that they would really go over pretty good up in Detroit, Chicago, and in that area.

Mr. GRIFFIN. Now, there is a number under "Earl Ruby, Detroit" is written under "personal UN-3400" and under "Earl Ruby, Detroit" there are some other notations. Would you indicate what those are?

Mr. CRAFARD. It would be the No. 313 would be a code number, I believe, for Detroit. The phone No. "UN 3-5590" which would be the business number for Earl Ruby, and the words "Cobo Laundry" with the address "18135 Livernoise Avenue," Livernoise Street.

Mr. GRIFFIN. May I point out for the record that Livernoise is written on two lines along the right-hand side of the page under the line which says "Cobo Laundry 18135" on it, and it is bracketed off from a notation, which is "Ed Pullman" and on the next line "TA-34484."

Do you recognize the name Ed Pullman?

Mr. CRAFARD. He was a gentleman there in Dallas, I believe, that Jack called several times.

Mr. GRIFFIN. Do you know what his dealings were with Ed Pullman?

Mr. CRAFARD. No, I do not.

Mr. GRIFFIN. There is a line under that telephone number, "UN-3" and then "UN-3" is scratched out and then on the following line there is a name written. What is that name?

Mr. CRAFARD. Leona Miller.

Mr. GRIFFIN. Who was she?

Mr. CRAFARD. I believe she was a girl that called in connection with or in answer to an ad that Jack Ruby had in the paper for waitresses.

Mr. GRIFFIN. So this entry, "Leona Miller" would not represent somebody whom Jack called regularly?

Mr. CRAFARD. Not to my knowledge; no, sir.

Mr. GRIFFIN. It doesn't really go with the group of numbers then that we have been talking about which were sort of permanent numbers?

Mr. CRAFARD. That is right.

Mr. GRIFFIN. How about Ed Pullman though. Would he fall in this category of people that Jack called regularly?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Now there is a telephone number under the name Leona Miller, and then there is a blank line, and there is something written on the next three lines. What is that on the next three lines?

Mr. CRAFARD. Clark Dotty, I believe it is, D-o-t-t-y.

Mr. GRIFFIN. And the telephone number.

Mr. CRAFARD. WH 1-1227.

Mr. GRIFFIN. Do you recognize the name Clark Dotty?

Mr. CRAFARD. No, I don't; sir.

Mr. GRIFFIN. That concludes the reverse side of page one does it not?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Just before you finish that, let me ask you this. I notice that there is apparently the name Clark Dotty written out at the bottom of page one or the reverse of page one, and when it is written the first time the word "Clark" seems to be written and scratched through and then Clark Dotty is written again under its number.

Mr. CRAFARD. Yes.

Mr. HUBERT. Are both of those entries in your handwriting?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Can you tell us why you wrote it twice?

Mr. CRAFARD. About the only reason I can see here would be the fact that when I wrote it the first time instead of the name Clark I put some other name down. Then I wrote over it and I couldn't make it out so I wrote the name Clark Dotty underneath it.

Mr. GRIFFIN. Larry, do you recognize the name Mary Ray?

Mr. CRAFARD. No, sir; I don't.

Mr. GRIFFIN. Did you ever meet Ed Pullman's wife?

Mr. CRAFARD. Not to my knowledge, no, sir. Not that I can recall I should say.

Mr. GRIFFIN. On the top of page 2 there is an entry. Mar-Din Co. underneath that the name Henry Denture. The address 404 South Well, Chicago 7, Ill. Phone number HA 7-3172. Do you remember how that entry came to be made in the book?

Mr. CRAFT. It was the number, if I can recall right, Clark called in connection with the Earl Products Co. There is a company that I believe Jack said this Mr. Denture and himself had been partners in one time in Chicago. The company had went broke but they still had the papers and everything on the company. It had never been dissolved. He was using this as a name to sell the twist boards under, the Earl Products Co.

Mr. GRIFFIN. Other than contacting Henry Denture at the Mar-Din Co., do you know of any other dealings that Jack had with Mar-Din?

Mr. CRAFT. No, sir; that I remember.

Mr. GRIFFIN. Is it your understanding that Henry Denture was involved with Jack in the sale of twist boards?

Mr. CRAFT. Yes, sir.

Mr. GRIFFIN. What makes you have that understanding?

Mr. CRAFT. Jack give me that understanding when he give me this Earl Products Co. number, this number so I could call the Earl Products Co.

Mr. GRIFFIN. You mean the Earl Products Co. was at the same address and number as this Mar-Din Co.?

Mr. CRAFT. Yes, sir; from what I remember.

Mr. GRIFFIN. Mr. Hubert, do you have any questions you want to ask on this?

Mr. HUBERT. I understood you to say that Jack wanted to communicate to the Earl Products Co. the fact that Mar-Din and Henry Denture would be associated with the twist boards?

Mr. CRAFT. Yes, sir.

Mr. HUBERT. Referring to page 2 of Exhibit 5202, I take it that the first six entries starting with Mar-Din Co. and ending with Earl Products all relate to the same thing, is that right?

Mr. CRAFT. Yes, sir.

Mr. HUBERT. And were all entered about the same time?

Mr. CRAFT. Yes, sir.

Mr. HUBERT. I am not clear just what the significance is and I wish you'd state it again.

Mr. CRAFT. This Henry Denture, he called, he said it had been checked with him in this Earl Products before in Chicago and he was using the Earl Products Co. as a name to sell the twist boards under.

Mr. HUBERT. Henry Denture was?

Mr. CRAFT. Jack Ruby was, and he called Henry Denture in Chicago about the twist boards.

Mr. HUBERT. Did you overhear the call?

Mr. CRAFT. I was there when he made the call. I don't recall just exactly what was said but it was something about the twist boards.

Mr. HUBERT. And he called a man called Henry Denture?

Mr. CRAFT. Yes, sir.

Mr. HUBERT. Did he tell you why he wanted you to make this entry?

Mr. CRAFT. It was just a number he wanted to keep.

Mr. HUBERT. All right.

Mr. GRIFFIN. Larry, could the name Henry Denture be a mistake? Could the last name really have been Kenter?

Mr. CRAFT. It could have been; yes, sir.

Mr. GRIFFIN. Why do you say that?

Mr. CRAFT. It is quite similar and I could have made a mistake and put a "D" down in place of a "K."

Mr. GRIFFIN. Now after the entry Earl Products Co., there is a line with nothing written on it, and then there are two names. What are those two names?

Mr. CRAFT. Doris Land and Peggy Taylor.

Mr. GRIFFIN. Do you recall either of those two girls?

Mr. CRAFARD. I believe they were girls who called in answer to the ad that Jack was running in the paper.

Mr. GRIFFIN. And the telephone number TA 4-6895?

Mr. CRAFARD. Would be the number where they could be reached at.

Mr. GRIFFIN. Now under that there is the name Teddy Walters, and Teddy is written in longhand and Walters is printed. Are both of those your handwriting?

Mr. CRAFARD. Yes, sir.

Mr. GRIFFIN. Now do you recall who Teddy Walters was?

Mr. CRAFARD. No, sir; I do not.

Mr. GRIFFIN. And there is a telephone number under that. What is that telephone number?

Mr. CRAFARD. FE 7-4644.

Mr. GRIFFIN. There is an entry under that which looks like A. F. McKnight, with a telephone number LA 6-2251. Do you remember anything about A. F. McKnight?

Mr. CRAFARD. I believe Jack called, had a conversation with him a couple of times on the telephone. Other than that I can't recall anything.

Mr. GRIFFIN. Do you recall what those conversations were about?

Mr. CRAFARD. No, sir.

Mr. GRIFFIN. That concludes page 2 on the front side.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. I am going to turn the page over and ask you to look at the back of page 2. Now there is a number WH 2-2371. Do you recognize that number?

Mr. CRAFARD. No, sir; it doesn't mean anything to me.

Mr. GRIFFIN. And that is written in pen and then there is a line with nothing written on it, and then there is the entry Riverside 7-2362 Earl

Products Co. How did that entry come to be put down?

Mr. CRAFT. I believe that was a local number Jack had me put down for the Earl Products Co. If I recall right that was the pay telephone of the Carousel Club, and anybody, he said if anybody called the Carousel Club asking about this Earl Products Co. or anything about that, to give them this number to call.

Mr. GRIFFIN. So Jack didn't want the Earl Products number to be associated with his personal phone at the club?

Mr. CRAFT. That is right.

Mr. GRIFFIN. Now was there a personal phone at the club?

Mr. CRAFT. Just a business phone, sir.

Mr. GRIFFIN. A business phone. What was the number on that business phone?

Mr. CRAFT. I don't remember it, sir.

Mr. GRIFFIN. Was it the same number as on his home phone?

Mr. CRAFT. No, sir; can I go back a little bit on this?

Mr. GRIFFIN. Yes.

Mr. CRAFT. Going back to page 2 starting with the Mar-Din Co., the number below that I believe, the HA 7-3172 if I remember right it seems to me that this number and the address were different. It seems to me this number was either a Fort Worth or a Dallas number, and this address up here was just an address where I sent something, or something of that sort.

Mr. GRIFFIN. I see.

Mr. CRAFT. I was thinking about that and it kind of didn't——

Mr. GRIFFIN. You don't think the HA number is a Chicago number?

Mr. CRAFT. No, sir; I believe that is either a Dallas or a Fort Worth number after I think about it a little bit.

Mr. GRIFFIN. You are clear that there were two different telephones at the Carousel Club. One was a pay phone and the other was a business phone?

Mr. CRAFT. Yes, sir.

Mr. GRIFFIN. Is it possible that the Riverside number was the business phone number?

Mr. CRAFT. It could have been; yes, sir.

Mr. GRIFFIN. There is an entry, there is rather a line with nothing written on it after the entry Earl Products Co., and then there is a name and address and some numbers written; what is that?

Mr. CRAFT. Bill DeMar, Wichita, Kans. The telephone number JA 4-4241. The telephone number JA 8-6116. Bill DeMar was a comedian that Ruby had hired to come down to the club, and these are the numbers where he could be reached. I believe one was a motel number and one was a business number or something of that sort. I am not sure.

Mr. GRIFFIN. The entries in connection with Earl Products Co. and Bill DeMar are all written in pencil.

Mr. CRAFT. That is right, sir.

Mr. GRIFFIN. And I want to ask you if these would have followed in sequence or whether you were making these entries in there because they were entries which were to be kept or sort of on a permanent basis?

Mr. CRAFT. I don't believe they follow sequence, I don't believe the number of Bill DeMar, numbers would be anything we would keep on a permanent basis as far as I can recall.

Mr. GRIFFIN. But you also don't think that Bill DeMar called shortly after or that number was given to you shortly after the Earl Products number was given to you so that the two of them were made at roughly the same time?

Mr. CRAFT. I am not positive of that, sir. They could have been.

Mr. GRIFFIN. Let me ask you about Bill DeMar. Did Jack have any business with Bill DeMar other than to hire him as an entertainer?

Mr. CRAFT. As far as I know, no.

Mr. GRIFFIN. After the entries in connection with Bill DeMar, there is a line on which nothing is written, and then there is an entry Little Lynn OP

34, and then 817—JE 4-8525. Do you remember making that entry?

Mr. CRAFT. Yes, sir.

Mr. GRIFFIN. Do you remember approximately when that entry was made?

Mr. CRAFT. No, sir; I couldn't say for dates. It was made about I believe 2 or 3 days before Jack hired Little Lynn.

Mr. GRIFFIN. And how did that call happen to come in?

Mr. CRAFT. I don't remember how it come about, but he give me the number so he could have it to call Little Lynn.

Mr. GRIFFIN. Jack gave you that number or did you answer the telephone and get that number from a long distance operator?

Mr. CRAFT. I believe Jack gave me the number. I am not positive.

Mr. GRIFFIN. Now, after that there are some entries. Some figures written on the next two lines. Can you tell us what those numbers are?

Mr. CRAFT. No, sir; I don't know what they mean. There is the number 875, and number 1750. It seems like a hyphen behind the numbers with a dash, and a three behind that.

Mr. GRIFFIN. You haven't any recollection what that might relate to?

Mr. CRAFT. No, sir.

Mr. GRIFFIN. That concludes the reverse side of page 2.

Mr. CRAFT. That is right, sir.

Mr. GRIFFIN. I am going to turn over to page 3. What is the name written at the top?

Mr. CRAFT. The top line is "See Paul Lubeachick."

Mr. GRIFFIN. How does he spell that?

Mr. CRAFT. I believe that is L-u-b-e-a-c-h-i-c-k, I believe. On the next line is "Here at 9:30." That would be that Paul Lubeachick was going to be at the club at 9:30 and wouldn't be able to be there too long and he wanted to see Jack and I was to tell Jack when he called on the phone.

Mr. GRIFFIN. The next entry is also an entry for Bill DeMar.

Mr. CRAFT. It is Bill DeMar, Evansville, 824 West Idewild Drive, HA 3-7245, and I believe that was Bill DeMar's home address; I am not sure.

Mr. GRIFFIN. Now there is an entry in pen which follows that. What is that entry?

Mr. CRAFT. Ruth Shay, Inwood Road, FL 2-5494.

Mr. GRIFFIN. Who is Ruth Shay?

Mr. CRAFT. I believe she was a girl called in connection with the ad that Jack ran in the paper.

Mr. GRIFFIN. Was she ever hired?

Mr. CRAFT. I don't believe so.

Mr. GRIFFIN. Now there is a line and the name Mickey Ryan with a telephone number.

Mr. CRAFT. Mickey Ryan, DA 4-4378.

Mr. GRIFFIN. Was that a number that was put in there for permanent reference.

Mr. CRAFT. I believe that was his home number.

Mr. GRIFFIN. How often did you see Mickey Ryan?

Mr. CRAFT. I have saw Mickey Ryan probably about eight or nine times while I was working for Jack. Excuse me please.

Mr. GRIFFIN. Sure.

Mr. CRAFT. It seems to me that number should have been on the first couple of pages that wrote down, but it seems like I transferred the number to the front of the book after I wrote the number down.

Mr. GRIFFIN. The Mickey Ryan number?

Mr. CRAFT. Yes.

Mr. GRIFFIN. Mickey Ryan's name and number are something that Jack would keep on a permanent basis?

Mr. CRAFT. Yes.

Mr. GRIFFIN. Did Mickey come at any particular time of the day or night?

Mr. CRAFT. No, sir; he'd come in sometimes in the afternoon for a little while and then maybe he would be in in the evening.

Mr. GRIFFIN. And would he visit with other people in the club besides Jack?

Mr. CRAFT. Sometimes Jack wouldn't even be at the club. He'd come in and talk to Andrew and I, and just visit.

Mr. GRIFFIN. These eight or nine times that you saw him, were they spread out over the entire period that you worked there or was it just in one particular brief period that he came in?

Mr. CRAFT. Over the entire period of time I was working for Jack.

Mr. GRIFFIN. Do you recall the first time that you met Mickey Ryan?

Mr. CRAFT. I'm not clear. No, sir; I don't recall exactly when I met him.

Mr. GRIFFIN. Tell us about the first time that you do recall meeting Mickey Ryan and what happened.

Mr. CRAFT. The first time I really remember talking to Mickey at the club I believe he came in one afternoon and I was in the club. There was a letter that had come for Mickey Ryan to the club and I gave that to him.

Mr. GRIFFIN. Did anybody else receive mail at the club besides Mickey Ryan?

Mr. CRAFT. There was two or three people that had worked at the club previously that had mail sent to the club after they left.

Mr. GRIFFIN. Did Mickey have anything to do with the sale of twist boards?

Mr. CRAFT. Not that I know of.

Mr. GRIFFIN. What was Mickey's relationship with Jack?

Mr. CRAFT. As far as I know they were just friends.

Mr. GRIFFIN. Did you have any view about Mickey as to whether he was a homosexual?

Mr. CRAFARD. Mickey seemed to be pretty decent guy. As far as I could figure there was nothing of that sort there.

Mr. GRIFFIN. Did you ever learn how Mickey met Jack?

Mr. CRAFARD. No; I didn't.

Mr. GRIFFIN. Did Mickey have any kind of business dealings with Jack?

Mr. CRAFARD. Not that I know of, sir.

Mr. GRIFFIN. You mentioned that Jack had a bookkeeper.

Mr. CRAFARD. Yes, sir.

Mr. GRIFFIN. Do you recall what his name was?

Mr. CRAFARD. No, sir; I don't.

Mr. GRIFFIN. But that wasn't Mickey Ryan?

Mr. CRAFARD. No.

Mr. GRIFFIN. Was that a friend of Mickey Ryan's?

Mr. CRAFARD. I don't know, sir. It might have been.

Mr. GRIFFIN. Mr. Hubert, do you have any questions.

Mr. HUBERT. Do you know what Mickey Ryan's occupation was?

Mr. CRAFARD. As far as I knew, sir, he was a bartender.

Mr. HUBERT. Where?

Mr. CRAFARD. It was a club called there a couple of days, a couple of different times asking for Mickey. I believe it was at the Gun Club where he went to work. When I first met him he was unemployed and then he went to work afterwards.

Mr. HUBERT. It was your impression that he went to work as a bartender at the Gun Club.

Mr. CRAFARD. Yes.

Mr. HUBERT. You formed that impression from what he told you?

Mr. CRAFT. When they called they called asking for him and they said they wanted him in reference to a job, and he said he was trying to get a job as a bartender.

Mr. HUBERT. Do you remember his having told you that he had gotten the job?

Mr. CRAFT. Yes, sir; that is the reason I formed the impression that he had been a bartender.

Mr. HUBERT. He told you so.

Mr. CRAFT. Yes.

Mr. HUBERT. I want to go back to that top entry on page 3 "see Paul"——

Mr. GRIFFIN. Let me finish up on Mickey Ryan a second. Do you know what kind of a club this Gun Club was?

Mr. CRAFT. No, sir; I had never been there.

Mr. GRIFFIN. Was it just a bar or was it a place where people went to shoot skeet or trap or something like that?

Mr. CRAFT. I don't know, sir. I believe the call came in as the Hunt Club or something like that or Hunter's Club or something of that sort, the call came in.

Mr. GRIFFIN. So you are not sure that the name of the club is the Gun Club?

Mr. CRAFT. No, sir.

Mr. GRIFFIN. And do you have any idea where that club is located?

Mr. CRAFT. It is near Dallas somewhere but that is all I know.

Mr. GRIFFIN. Do you know if it is in downtown Dallas or in the outskirts or what?

Mr. CRAFT. I believe that was on the outskirts of Dallas.

Mr. GRIFFIN. Would this have been a country club, a golf club of some sort?

Mr. CRAFT. It might have been; yes.

Mr. GRIFFIN. All right, I am finished with that.

Mr. HUBERT. Going to the top of page 3 that entry “See Paul Lubeachick here at 9:30.” I think you added something to that entry to the effect that that entry meant that that man was going to be there at 9:30?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. The part you added was that he couldn’t stay very long.

Mr. CRAFARD. That is the impression that I had when I talked to him, sir. He said something about——

Mr. HUBERT. You have a distinct recollection therefore of that particular episode and that man?

Mr. CRAFARD. Of the call coming in; yes.

Mr. HUBERT. Was it a call?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. The man gave you that name and said that he would be there at 9:30?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. But that he could not wait very long?

Mr. CRAFARD. I believe it was something like the fact that he would be there at 9:30 and he wanted to see Jack, that he couldn’t stay there for any length of time.

Mr. HUBERT. Do you recall whether he came in at 9:30?

Mr. CRAFARD. I don’t recall, sir. After the club opened I was too busy to notice who came in.

Mr. HUBERT. With an entry of that nature isn’t it fair to say that you would have conveyed that information in its totality to Jack?

Mr. CRAFARD. That is right, sir.

Mr. HUBERT. In other words, you would have told him not merely that the man was coming in at 9:30 but that he had said he couldn’t wait very long.

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Do you recall having done so?

Mr. CRAFARD. I'm not positive, sir. I don't recall it clearly.

Mr. HUBERT. Did you ever at any time after that see a man named Paul Lubeachick?

Mr. CRAFARD. I don't remember, sir. I don't believe so.

Mr. HUBERT. But you do remember that you told Jack he couldn't wait very long?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Do you remember Jack's reaction to that?

Mr. CRAFARD. No, sir.

Mr. GRIFFIN. I believe Mickey Ryan and a telephone number under there is the last entry on page 3.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. I am going to turn over page 3 to the back. There is the name Stanley Kaufman and a telephone number after that. Did you ever meet Stanley Kaufman?

Mr. CRAFARD. I don't recall ever meeting him, sir.

Mr. GRIFFIN. Do you know who he is?

Mr. CRAFARD. No, sir.

Mr. GRIFFIN. Now was Stanley Kaufman a name that Jack would have wanted kept on a permanent basis?

Mr. CRAFARD. I don't know, sir.

Mr. GRIFFIN. There is a line with nothing written on it following the entry in connection with Stanley Kaufman, and there is a notation "Wednesday pay bill at phone company."

Mr. CRAFARD. Yes, sir.

Mr. GRIFFIN. Was that something you were to do?

Mr. CRAFT. Something I was to remind Jack to do.

Mr. GRIFFIN. Would we be able to date anything in this book from that entry of Wednesday pay phone bill, for example, if we knew when Jack paid his telephone bill in October or November? Would we be able to draw any conclusions as to all of the entries in the book which appear before that entry "Wed pay bill at phone company?"

Mr. CRAFT. No, sir; I don't think so.

Mr. GRIFFIN. There is a line after the entry in connection with the phone company, and then there is something written. What is written?

Mr. CRAFT. Ricky Kasada.

Mr. GRIFFIN. And is that somebody's name?

Mr. CRAFT. Yes, sir.

Mr. GRIFFIN. Is that your spelling of a name that was spoken to you or did somebody actually dictate that spelling to you?

Mr. CRAFT. I believe it is my own spelling.

Mr. GRIFFIN. So it is simply what we would call your interpretation of the phonetics?

Mr. CRAFT. Yes, sir.

Mr. GRIFFIN. Who is Ricky Kasada?

Mr. CRAFT. I don't know, sir.

Mr. GRIFFIN. After that there is another name.

Mr. CRAFT. Scotty Milles, M-i-l-l-e-s.

Mr. GRIFFIN. Scotty Milles, M-i-l-l-e-s?

Mr. CRAFT. Yes, sir, M-i-l-l-e-s.

Mr. GRIFFIN. Who was he?

Mr. CRAFT. It was a she. She was the woman who called me in reference to Mickey on this job.

Mr. GRIFFIN. In other words, she called to inquire about Mickey Ryan?

Mr. CRAFARD. Yes, sir.

Mr. GRIFFIN. And do you remember the conversation you had with her?

Mr. CRAFARD. No, sir; I don't.

Mr. GRIFFIN. Did she indicate where she was calling from?

Mr. CRAFARD. She said something about a club or something.

Mr. GRIFFIN. Was it this Hunt Club or Gun Club?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Is there any connection between Riky Kasada and Scotty Milles?

Mr. CRAFARD. I don't believe so, sir.

Mr. GRIFFIN. Under the entry reference on Mickey, there is a line and then there are some figures written there. Do you make anything out of those numbers?

Mr. CRAFARD. No, sir; I don't.

Mr. GRIFFIN. Are those in your handwriting?

Mr. CRAFARD. Yes, sir.

Mr. GRIFFIN. Would those be expenses that you had or money that you took out of the cash register?

Mr. CRAFARD. No, sir.

Mr. GRIFFIN. No?

Mr. CRAFARD. That is right.

Mr. GRIFFIN. Do you think if you sat here awhile and thought about it you might be able to make something out of this?

Mr. CRAFARD. No; I don't believe so. It might be some bills that I had paid or something. Maybe some champagne I had bought or something like that that I had put down, the money I had been given and what I had spent.

Mr. HUBERT. You are clear though that those figures refer to money?

Mr. CRAFARD. I would say so by the way they are wrote down.

Mr. HUBERT. Is the significant point about the way they are written down that indicates that they refer to money.

Mr. CRAFARD. The number 1420 is wrote down like you write down \$14.20.

Mr. HUBERT. By doing what to the 1420?

Mr. CRAFARD. Putting the dot behind your 14.

Mr. HUBERT. You put the decimal?

Mr. CRAFARD. Yes.

Mr. HUBERT. Is that the way you write money?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. So that you would say that those figures being in your handwriting would be the way you would write figures concerning money?

Mr. CRAFARD. Yes, sir.

Mr. GRIFFIN. That concludes the back side of page 3. I want to turn to page 4 then. What is written at the top of page 4?

Mr. CRAFARD. The name Norma Bennett with the number CA 4-2234.

Mr. GRIFFIN. Is that Bennett or Barnett?

Mr. CRAFARD. I believe it is Bennett. As I have wrote it it appears to be Barnett.

Mr. GRIFFIN. But you think the name is Bennett.

Mr. CRAFARD. I believe so; yes.

Mr. GRIFFIN. Now who is Norma Bennett?

Mr. CRAFARD. She is a young lady that called in connection with the ad that Jack had ran, subsequently came in and met Jack. Jack tried to talk her to go to work as a stripper.

Mr. GRIFFIN. Did she ever work for him in any capacity?

Mr. CRAFARD. Not that I know of, sir; not around the Carousel.

Mr. GRIFFIN. When did you first see her?

Mr. CRAFARD. When she came into the club the day after she phoned. I believe that was about 4 weeks before President Kennedy was assassinated.

Mr. GRIFFIN. And did you talk to her at all?

Mr. CRAFARD. Yes, sir.

Mr. GRIFFIN. What was your conversation with her?

Mr. CRAFARD. Just getting acquainted with her more than anything. She seemed like a pretty nice girl. We got along pretty well.

Mr. GRIFFIN. How long did she remain in the club that day?

Mr. CRAFARD. I believe she was around the club most of the afternoon.

Mr. GRIFFIN. And was Jack there during that period?

Mr. CRAFARD. Jack came in after she arrived.

Mr. GRIFFIN. How long did Jack stay while she was there?

Mr. CRAFARD. I believe he spent a couple of hours around the club.

Mr. GRIFFIN. Do you remember any conversation Jack had?

Mr. CRAFARD. Not particularly, sir.

Mr. HUBERT. With reference to the entry on page 4 concerning Norma Barnett, is there any doubt in your mind that, as it is written, it is Barnett and not Bennett?

Mr. CRAFARD. No doubt in my mind it is spelled Barnett, B-a-r-n-e-t-t.

Mr. HUBERT. You got that over the phone when she called; is that right?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. What makes you think that her name was not really Barnett but Bennett?

Mr. CRAFARD. I believe that I already spoke of her as Norma Bennett I believe when I spoke with her. I recall that.

Mr. HUBERT. Your testimony was that you subsequently met her.

Mr. CRAFARD. Yes.

Mr. HUBERT. Did you then learn that her name was Bennett instead of Barnett?

Mr. CRAFARD. I very seldom used her last name after I met her. I believe when she introduced herself it sounded to me like she said Norma Bennett when she introduced herself to Jack.

Mr. HUBERT. Obviously when you heard it over the phone you thought it was Barnett because that is the way you put it down.

Mr. CRAFARD. That is right, sir.

Mr. HUBERT. But thereafter you think you learned from her that it was Bennett?

Mr. CRAFARD. I might have misspelled it to myself or something. I referred to her as Bennett all the time.

Mr. HUBERT. To whom did you refer as Bennett?

Mr. CRAFARD. Whenever I used her name to Jack a couple of times when we was talking about her.

Mr. HUBERT. Did you ever use the name Bennett to her?

Mr. CRAFARD. I don't recall ever using her last name to her, sir.

Mr. HUBERT. Is it fair to say that you really don't know what her last name is?

Mr. CRAFARD. That is right, sir.

Mr. HUBERT. What is the next word after CA 4-2234?

Mr. CRAFARD. Waitress.

Mr. HUBERT. And then under that?

Mr. CRAFARD. Judy Armstrong.

Mr. HUBERT. What is under that?

Mr. CRAFARD. Congress, the phone number Congress 9-2576, Carlton, Tex.

Mr. HUBERT. Do you think those four lines beginning with waitress and ending up with Carlton, Tex., all deal with the same transaction?

Mr. CRAFARD. I believe so; yes, sir.

Mr. HUBERT. In other words, the word “waitress” doesn’t deal with the direction above it but the transaction below it?

Mr. CRAFARD. That is right, sir.

Mr. HUBERT. What was that, a call from somebody who wanted to be a waitress?

Mr. CRAFARD. Yes, sir; I believe so.

Mr. HUBERT. Did you ever meet that person?

Mr. CRAFARD. I don’t recall meeting her.

Mr. HUBERT. Do you know if Jack called her?

Mr. CRAFARD. I don’t know if he called her or not, sir.

Mr. HUBERT. All right; let’s pass to the next entry under that.

Mr. CRAFARD. Excuse me 1 minute, please. It seems to me this Judy Armstrong was a number that one night one of the girls was sick and one of the other girls that had the night off and we needed another girl and this is a girl that had worked for Jack, I believe, and we tried to call her. I am not positive of that. Or we tried to call her to go to work or something.

Mr. HUBERT. What you are saying is that insofar as the entry concerning Judy Armstrong which begins with the word waitress and ends with Carlton, Tex.

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. You first testified that you thought that this was a person answering an ad?

Mr. CRAFARD. Yes.

Mr. HUBERT. Now you think that actually you all sought to call her to work in place of someone who was ill?

Mr. CRAFARD. I believe the way it worked out she had called in connection with the ad and we had her number down on the list of girls to call and one night we needed a girl and we tried to call her and couldn’t get

in touch with her. Tried to call her to come to work and couldn't get in touch with her.

Mr. HUBERT. So that the entry on page 4 was actually made as you said it was?

Mr. CRAFARD. Yes.

Mr. HUBERT. When she called applying for a job but you have an independent recollection other than the entry that on some occasion you called her to just see if she could substitute?

Mr. CRAFARD. Yes.

Mr. HUBERT. Do you remember whether you reached her.

Mr. CRAFARD. I don't recall reaching her, sir.

Mr. HUBERT. And you have never met her?

Mr. CRAFARD. No, sir.

Mr. HUBERT. All right; what about Burt Nelson?

Mr. CRAFARD. Burt Nelson, Chez Femme, the phone number EM 3-6324, and I don't know who Mr. Nelson is.

Mr. HUBERT. What is that Chez Femme?

Mr. CRAFARD. I believe that is a place he worked, I am not sure.

Mr. HUBERT. What sort of a place is it?

Mr. CRAFARD. I don't recall, sir. I believe it was a clothing store of some sort.

Mr. HUBERT. A what?

Mr. CRAFARD. A clothing store of some sort, sir, I believe, I am not positive.

Mr. HUBERT. What about the entry under that?

Mr. CRAFARD. Buddy, hyphenized, Floyd Turner, phone number LY 2-5903, Tyler, Tex. I don't remember ever meeting him. I believe Jack referred to him as Budd Turner though.

Mr. HUBERT. Would that be a call that had come in or a call given to you by Jack?

Mr. CRAFARD. I am not sure, sir. I believe it was one given to me by Jack.

Mr. HUBERT. Do you know anything about that man?

Mr. CRAFARD. No, sir.

Mr. HUBERT. Never met him.

Mr. CRAFARD. Not that I know of.

Mr. HUBERT. Did you ever hear his name spoken other than in this connection?

Mr. CRAFARD. No, sir.

Mr. HUBERT. Let's turn over to the next page then which is page 5. Would you read it because I can't read your handwriting.

Mr. CRAFARD. Page 5 or do you want to read the reverse of page 4, sir.

Mr. HUBERT. I want to read the reverse of page 4 I beg your pardon.

Mr. CRAFARD. It starts with line Linda phone number RI 2-0720, and the initials R. W. Bowsher.

Mr. HUBERT. Do you think that those three entries relate to the same thing.

Mr. CRAFARD. I don't believe they do, sir.

Mr. HUBERT. Then tell us what they do mean independently.

Mr. CRAFARD. I believe the line DA and the line number is a number where we could get ahold of this girl Linda, but the R. W. Bowsher I have no recollection of what it would be.

Mr. HUBERT. Does it seem to be written with a different pen or pencil?

Mr. CRAFARD. The pencil that was used for the word Linda and the phone number seems to have been sharper than the one used for R. W. Bowsher.

Mr. HUBERT. Was it your custom to separate independent episodes by leaving a blank line between them?

Mr. CRAFARD. I have done so most of the time; yes, sir.

Mr. HUBERT. In this case you don't seem to have done so.

Mr. CRAFARD. Sometimes I would put them right under something else.

Mr. HUBERT. Anyway your recollection now is that you think the word Linda and the telephone number under it is independent from the line that immediately follows which reads "R. W. Bowsher?"

Mr. CRAFARD. I believe so; yes sir.

Mr. HUBERT. Who is Linda?

Mr. CRAFARD. I don't know, sir; I don't recall.

Mr. HUBERT. You said she was a——

Mr. CRAFARD. I believe she was more like a girl that called in answer to the ad we ran in the paper.

Mr. HUBERT. What about R. W. Bowsher, then?

Mr. CRAFARD. I don't recall anything about him.

Mr. HUBERT. Let's pass to the next entry which is separated from R. W. Bowsher by a blank line.

Mr. CRAFARD. Buddy Heard, Loflin Hotel, phone number KE 2-4672.

Mr. HUBERT. Isn't that 71?

Mr. CRAFARD. 71, yes sir. And underneath that the numbers 5336827, and 100 North Florence—and the word "office." I believe that would be the fact that Buddy Heard was staying at the Loflin Hotel. The KE number would be a number where we could reach Buddy Heard. The next number down would be probably a number for the office. I am not sure.

Mr. HUBERT. And the telephone for that office.

Mr. CRAFARD. I believe would be the 533-6827. I am not positive.

Mr. HUBERT. You think that those five lines beginning Buddy Heard and ending 100 North Florence—office are all related to the same transaction?

Mr. CRAFARD. I would believe so; yes.

Mr. HUBERT. Do you think they are not related to the line which immediately follows starting “Burt called?”

Mr. CRAFARD. No, sir; I believe that is something entirely different.

Mr. HUBERT. Do you know Buddy Heard?

Mr. CRAFARD. I am not positive. I believe I have met him. I am not sure. But “Burt called” underneath that——

Mr. HUBERT. Let’s not leave Buddy Heard yet. Does the name mean anything to you at all? You might have some recollection in your mind?

Mr. CRAFARD. I have heard the name mentioned several times but I don’t know what Heard done for a living. I believe he had something in connection with the actor’s union. I am not sure.

Mr. HUBERT. You don’t think you have ever met him?

Mr. CRAFARD. I am not sure, sir.

Mr. HUBERT. Go to the next entry, then.

Mr. CRAFARD. Burt will call later. You have his home number. I believe that would be all related.

Mr. HUBERT. Those four lines would be related to one another?

Mr. CRAFARD. Yes.

Mr. HUBERT. What would be the significance of that?

Mr. CRAFARD. The fact that this Burt called and wouldn’t leave the number but said that Jack had his home number.

Mr. HUBERT. “You” there refers to Jack, right?

Mr. CRAFARD. Yes.

Mr. HUBERT. In other words, this was a note that was being written so that when Jack read it if he weren’t there he would know it was written to him?

Mr. CRAFARD. That is right, sir.

Mr. HUBERT. Who is Burt?

Mr. CRAFARD. I don't recall who he was.

Mr. HUBERT. All right. That finishes the back of page 4. Mr. Griffin, do you want to start with page 5?

Mr. GRIFFIN. In other words, you got through the entries "Burt called." For my own clarification, did we identify where the Loflin Hotel is, which city that is in?

Mr. CRAFARD. No, sir; we didn't.

Mr. GRIFFIN. Do you know where that is?

Mr. CRAFARD. I am not sure. I believe that it is Dallas. I am not positive.

Mr. GRIFFIN. Are all of the entries from Buddy Heard to 100 North Florence—office——

Mr. HUBERT. That has been covered.

Mr. GRIFFIN. Then on the top of page 5 there is a series of notations. Would you read those off.

Mr. CRAFARD. "Get ad off to Hyman." In other words things to tell Jack, to remind Jack he had to do was to get an ad off to Hyman, pay a phone bill and go to the bank and then appointment call to Earl.

Mr. GRIFFIN. Do you recall what ad there was to get off to Hyman?

Mr. CRAFARD. I believe it was the ad in connection with the twistboards. I am not positive. We were sending an ad to this Hyman.

Mr. GRIFFIN. Do you recall where the ad was to be placed?

Mr. CRAFARD. No, sir. He was to mail it, I believe, I am not positive.

Mr. GRIFFIN. What is the meaning of "appointment call to Earl"? What is an appointment call?

Mr. CRAFARD. He had called and asked the operator to place the call at a certain time and to call him back when the connection had been made.

Mr. GRIFFIN. The mailing of the ad to Hyman and the paying of the phone bill and the going to the bank and the appointment call to Earl, did these all occur on the same day?

Mr. CRAFARD. I believe so.

Mr. GRIFFIN. There is a line drawn under appointment call to Earl. It separates the page in half roughly.

Mr. CRAFARD. Yes, sir.

Mr. GRIFFIN. What is the significance of that line.

Mr. CRAFARD. It would be that this top portion of the page would have been 1 day, things I had wrote down for 1 day. The bottom of it would have been another day or on 2 or 3 days later.

Mr. GRIFFIN. Now, there is an entry there "get post office box."

Mr. CRAFARD. Yes.

Mr. GRIFFIN. What was that in connection with?

Mr. CRAFARD. I believe he was going to get another post office box to use for this twistboard setup.

Mr. GRIFFIN. Did he already have one post office box before that?

Mr. CRAFARD. I believe he was receiving the mail through the Carousel Club and his home address.

Mr. GRIFFIN. There is a number under there RI 1-0345. Do you know whose phone number that is?

Mr. CRAFARD. No, sir; I don't.

Mr. GRIFFIN. And there is a line with nothing written on it after that, and there is another entry. What is that?

Mr. CRAFARD. "Pauline called" at I believe 4 and will be in about 7 or something like that.

Mr. GRIFFIN. Who was Pauline?

Mr. CRAFARD. She was more or less I'd say the assistant manager over at the Vegas Club.

Mr. GRIFFIN. That was Pauline Hall.

Mr. CRAFARD. I would say so.

Mr. GRIFFIN. That concludes the front part of page 5; is that correct?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Mr. Hubert, do you have any questions you want to ask on those entries on page 5?

Mr. HUBERT. Do you remember the appointment call with Earl?

Mr. CRAFARD. No, sir; I don't.

Mr. HUBERT. Those entries at the top of page 5, the four of them, the things that you were to do or remind him of, were they simply told to you by Jack over the phone or in person and then you were to remind him the next day or later?

Mr. CRAFARD. Things that Jack said and I was to remind him the next day. I believe on this phone call he had tried to place it one day and he couldn't get the phone call through so he arranged for an appointment call the next afternoon I believe it was.

Mr. HUBERT. Did you do it yourself?

Mr. CRAFARD. If Jack did?

Mr. HUBERT. Do you remember him doing it?

Mr. CRAFARD. I can remember him placing, trying to place a call to Earl one day and he couldn't make it and he arranged a call for the next day. But I don't know if this was the incident or not.

Mr. HUBERT. What this simply means is that you were to remind him of it?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. That was then your function with respect to it?

Mr. CRAFARD. Yes, sir.

Mr. GRIFFIN. Do you recall Jack ever mentioning or did you ever hear anything about the Triangle Manufacturing Co.

Mr. CRAFARD. I don't recall it, sir.

Mr. GRIFFIN. Do you recall if Jack had any dealings with any people in Wisconsin?

Mr. CRAFARD. Not that I know of, sir.

Mr. GRIFFIN. I am going to turn over to the back of page 5. There is a name written at the top of the back of page 5. What name is that?

Mr. CRAFT. Jerry Lindsay.

Mr. GRIFFIN. Who is Jerry Lindsay?

Mr. CRAFT. He called in wanting a job. He had been a floorman in another club and he called in asking about a job at the Carousel Club.

Mr. GRIFFIN. What is a floorman?

Mr. CRAFT. A polite way of saying bouncer.

Mr. GRIFFIN. Did Jack employ a bouncer while you were there?

Mr. CRAFT. No, sir.

Mr. GRIFFIN. Did you ever talk to Jack about why he did or did not, why he didn't have a bouncer?

Mr. CRAFT. No, sir.

Mr. GRIFFIN. Was there any need for a bouncer?

Mr. CRAFT. No, sir; not the Carousel Club. This would have been in connection with the Vegas Club, I believe.

Mr. GRIFFIN. Was there a tougher crowd at the Vegas Club?

Mr. CRAFT. They had sometimes some pretty tough crowds out there on weekend nights. People would get drunk and start giving them trouble. The floorman would talk to the man trying to get him to quiet and if he wouldn't be quiet he would escort him to the door.

Mr. GRIFFIN. The Vegas Club didn't have stripteasers did it?

Mr. CRAFT. No.

Mr. GRIFFIN. Yet there was a tougher crowd there at the Vegas.

Mr. CRAFT. Yes.

Mr. GRIFFIN. Why was that?

Mr. CRAFT. The type of crowd that frequented the clubs, the Carousel Club and the other burlesque shows in town was the businessmen more than anything, whereas the Vegas Club's clientele was more or less common

laborers, working people. It was a dance club where you could go in and buy beer, soft drinks and you could dance, and the clientele there was of the rougher nature.

Mr. GRIFFIN. I was a little bit confused in your testimony yesterday.

Was it your impression that Jack was doing better financially off the Vegas than off the Carousel?

Mr. CRAFARD. Definitely; yes.

Mr. GRIFFIN. And you say that with positiveness? What makes you so positive about that?

Mr. CRAFARD. Two or three different times Jack said if it wasn't for the Vegas Club he would have had to close the Carousel down a long time before. The Vegas Club was making enough money to keep the Carousel and the Vegas both running.

Mr. GRIFFIN. Why do you think he kept the Carousel open?

Mr. CRAFARD. I don't know, sir. There had been a stretch where I guess he had had pretty bad luck with the Carousel, hadn't been making much money and he used the money he made from the Vegas Club to keep the Carousel going at that time from what I understood.

Mr. GRIFFIN. But the time you were working there was the Carousel carrying its own?

Mr. CRAFARD. I believe so; yes, sir; to my knowledge.

Mr. GRIFFIN. So you felt that in the month or 2 months that you worked for Jack, both the Vegas and the Carousel were self-sustaining operations?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. After this entry about Jerry Lindsay, there is a telephone number TA 7-2553 floorman, and I understand from your testimony those all should be read together. Then there is a line with nothing written on it and there is a notation which I wonder if you can decipher.

Mr. CRAFARD. "Talked to Leo—Mrs. Grant."

Mr. GRIFFIN. Would you recall the significance of that, who Leo was?

Mr. CRAFT. He worked at, I believe he was handling the floor at the Carousel most of the time. I don't recall what his last name was. I believe this was the night that I stayed at the Vegas Club for Jack the first night. I believe Leo called and I talked to him and then I talked to Mrs. Grant right away. Mrs. Grant called right away after that and I talked to her. I am not positive.

Mr. GRIFFIN. Is it your impression that the call from Jerry Lindsay was also taken at the Vegas Club?

Mr. CRAFT. No; the call from Jerry Lindsay was taken at the Carousel Club.

Mr. GRIFFIN. How about the telephone number under that, EM——

Mr. CRAFT. That is FL 1-9303.

Mr. GRIFFIN. Yes; do you know what——

Mr. CRAFT. I don't recall what it would be in connection with, sir.

Mr. GRIFFIN. Or the next telephone number.

Mr. CRAFT. No, sir.

Mr. GRIFFIN. That concludes page 5. Now let me turn over to page 6. There are some entries on there, Sunday, Monday, Tuesday, Wednesday, Thursday, Friday, and Saturday, and then from Sunday through Monday you have entries of amounts of money after that. Did you make those entries on there?

Mr. CRAFT. Yes.

Mr. GRIFFIN. And what do those refer to?

Mr. CRAFT. It refers to draws that I made from the till.

Mr. GRIFFIN. Do you recall what week that would have been that you made that entry?

Mr. CRAFT. No sir; I don't.

Mr. GRIFFIN. The entries for Thursday, Friday, and Saturday are not complete. Do you have any recollection on the basis of that that it was the last week that you worked there?

Mr. CRAFARD. No; I don't believe so, sir. I don't believe it was. I might have been but I don't believe it was.

Mr. HUBERT. Larry, I notice that nowhere else in this little book are there entries of that nature. Can we assume that you only kept such records for 1 week or rather 4 days of 1 week?

Mr. CRAFARD. I believe this was because of the fact that Jack had agreed to start paying me a salary and he wanted me to keep track of my draw slips, draws on that, and then it appears about Wednesday or Thursday he told me to quit keeping it, didn't have to keep track of it any more or something.

Mr. HUBERT. When you first went there it was just on a draw basis.

Mr. CRAFARD. Yes.

Mr. HUBERT. Then you talked to him about a salary?

Mr. CRAFARD. Yes.

Mr. HUBERT. He told you that he would think it over.

Mr. CRAFARD. Yes.

Mr. HUBERT. And your testimony now is that after you all had talked about a salary he wanted to know what your draw was so that he could adjust the salary accordingly, is that right?

Mr. CRAFARD. Yes.

Mr. HUBERT. So that these entries would have been made about the time that you talked about a salary?

Mr. CRAFARD. Yes, sir. It would have been about 3 weeks before the assassination of President Kennedy I believe, sir.

Mr. GRIFFIN. That you talked about——

Mr. CRAFARD. About the salary; yes.

Mr. HUBERT. It is fair to say then that these entries relate to that week, to wit, about 3 weeks before the assassination.

Mr. CRAFARD. It would be 2 or 3 weeks before the assassination.

Mr. HUBERT. You said that the significance of the fact that there are no entries for Thursday, Friday and Saturday is that Jack told you that it was no longer necessary to keep a record of your draws?

Mr. CRAFARD. I would believe so; yes, sir.

Mr. HUBERT. What did that mean with respect to whether you were going on salary or not?

Mr. CRAFARD. I don't remember what it had to do with that, sir.

Mr. HUBERT. Did you go on a salary?

Mr. CRAFARD. I never was paid any salary.

Mr. HUBERT. But you do remember he told you to stop keeping a record.

Mr. CRAFARD. I believe that would be the reason that I quit. I don't actually recall him saying so but I believe that would be the reason.

Mr. HUBERT. Doesn't that refresh your memory?

Mr. CRAFARD. No sir; it doesn't.

Mr. HUBERT. You didn't let me finish but I will repeat it. Doesn't that refresh your memory with respect to the fact that you all had agreed upon a salary then? Could it have any other significance?

Mr. CRAFARD. He had said something; he said I would draw a salary but I don't believe there was ever any exact figure agreed upon. I don't remember of any.

Mr. HUBERT. In other words, on Wednesday, although you had not agreed on what the amount of the salary would be, your recollection is that he told you it was no longer necessary to keep this because there would be a salary?

Mr. CRAFARD. Yes; I believe so.

Mr. HUBERT. But there never was any salary paid at all.

Mr. CRAFARD. That is right.

Mr. HUBERT. When did you normally make these entries?

Mr. CRAFARD. Whenever I'd make a draw. Usually in the evening I made most of my draws.

Mr. HUBERT. And you would put it in the book immediately.

Mr. CRAFARD. Yes; usually.

Mr. HUBERT. Isn't it a fact that sometimes you would put it in there the next day.

Mr. CRAFARD. I might sometimes the next day; yes.

Mr. HUBERT. Isn't it a fact also that at the beginning of that week you wrote down all of these days and then the entries were made as you drew for each day?

Mr. CRAFARD. Yes.

Mr. HUBERT. Now an entry for Thursday would have been made on Friday, wouldn't it?

Mr. CRAFARD. I believe it would have been made on Thursday.

Mr. HUBERT. I think you just told me that there was at least the possibility.

Mr. CRAFARD. There was a possibility I would have waited until Friday but I believe I would have made the entries on the day I made the draw.

Mr. HUBERT. I am suggesting to you that these sets of entries have to do with the week in which President Kennedy was killed, and that is that you had agreed upon a salary on the Wednesday.

Mr. CRAFARD. I don't recall exactly what week they had to do with, sir; really. It could have been that week.

Mr. HUBERT. But you had agreed on salary?

Mr. CRAFARD. Yes.

Mr. HUBERT. But not the amount of it?

Mr. CRAFARD. That is right.

Mr. HUBERT. And you never were paid any?

Mr. CRAFARD. That is right.

Mr. HUBERT. For instance, the Saturday before you left Dallas you were not paid a salary.

Mr. CRAFARD. No.

Mr. HUBERT. Had a salary been agreed upon prior to that time?

Mr. CRAFARD. I don't recall that, sir.

Mr. HUBERT. If it had it would have been paid wouldn't it?

Mr. CRAFARD. Yes; it would have been.

Mr. HUBERT. Doesn't that pinpoint then this series of days as being the week during which President Kennedy was killed on a Friday.

Mr. CRAFARD. It seems to; yes.

Mr. GRIFFIN. After the entry "Saturday" there is a blank line and then there is an entry "call home as soon as possible."

How did that come to be written?

Mr. CRAFARD. I don't remember, sir. It could have been somebody called in to have one of the girls call home or something like this. A couple of the girls had been married and had children.

Mr. GRIFFIN. Was that a note left for Jack Ruby or for yourself?

Mr. CRAFARD. I don't believe it was for Jack Ruby. I don't remember.

Mr. GRIFFIN. Did you carry this notebook on your person at all times?

Mr. CRAFARD. When I was in the club it was in my pocket all the time.

Mr. GRIFFIN. And when you were not in the club?

Mr. CRAFARD. Most of the time it would be in my pocket, anyway.

Mr. GRIFFIN. Now there is a telephone number written after the previous entry, and it is RI 1-4643. Do you remember that entry?

Mr. CRAFARD. No, sir; I don't remember it.

Mr. GRIFFIN. That concludes page 6.

Now let me turn over page 6 to the back, and there is something written on there, Schroll. Is that in your handwriting?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And then there is the name Dick Gifford, KTVT, Fort Worth, TA 3-7110. Is that in your handwriting?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Now do you remember how this Schroll name happened to be written down?

Mr. CRAFARD. No, sir; I don't.

Mr. GRIFFIN. Or who that refers to?

Mr. CRAFARD. No, sir.

Mr. GRIFFIN. How about Dick Gifford?

Mr. CRAFARD. He was I believe an MC over at the KTVT.

Mr. GRIFFIN. Now do you remember how that entry happened to be put in there?

Mr. CRAFARD. It was something in connection with the twist board setup. I called him in connection with—Jack give me the number to call and ask for this Dick Gifford.

Mr. GRIFFIN. Then what did you say to Dick Gifford?

Mr. CRAFARD. I believe it was something on the price of advertisement on TV, for a TV advertisement or something of that sort.

Mr. GRIFFIN. And what makes you think that it was the price of a TV ad?

Mr. CRAFARD. Mostly this next line hasn't got anything on it. It has been erased. I believe I erased it, 150 for 1 minute, and I recall this 150 for 1 minute was in connection with a TV advertisement.

I don't remember whether I made the call or whether Jack made the call or what.

Mr. GRIFFIN. After the line 150 for 1 minute, which is partially erased, there is an entry "Names of record shops where it can be bought."

Mr. CRAFARD. Yes.

Mr. GRIFFIN. What does that refer to?

Mr. CRAFT. I am not sure of what it does refer to, sir. Probably a record of some kind that Jack was wanting to get ahold of.

Mr. GRIFFIN. Is that in your handwriting?

Mr. CRAFT. Yes.

Mr. GRIFFIN. Do you recall any records that Jack was interested in buying?

Mr. CRAFT. He was buying records and bought a lot of records he gave away as prizes in the club.

Mr. GRIFFIN. What kind of records were they?

Mr. CRAFT. Such records as, Belly Dancer and Striptease for Your Husband. Rusty Warren records and such as that.

Mr. GRIFFIN. So they were what you might call party records?

Mr. CRAFT. Yes; party records.

Mr. GRIFFIN. Did Jack show an interest in any other kind of records besides party records.

Mr. CRAFT. Not for the club that I ever saw.

Mr. GRIFFIN. How about for other purposes?

Mr. CRAFT. I don't remember him ever saying anything about records for anything else.

Mr. GRIFFIN. That concludes the back part of page 6.

We will turn over to the front part of page 7. There are some entries there. Are those entries all in your handwriting?

Mr. CRAFT. Yes.

Mr. GRIFFIN. The first entry is Joe Roskydall.

Mr. CRAFT. Yes.

Mr. GRIFFIN. Would you tell us again who Joe Roskydall is?

Mr. CRAFT. The name Roskydall is the last name of a friend of mine. This Joe was a number in the phone number I called when I was trying to locate this friend of mine.

Mr. GRIFFIN. What is your friend's first name.

Mr. CRAFT. Robert Roskydall.

Mr. GRIFFIN. And was Robert living with Joe Roskydall?

Mr. CRAFT. No; I figured they might be related. He had been around Dallas for quite a while and I thought they might be related in some way.

Mr. GRIFFIN. There is something written on the next line after Joe Roskydall. What is that?

Mr. CRAFT. It looks like Benning, EV 1-6260.

Mr. GRIFFIN. Does that have any connection with Joe Roskydall?

Mr. CRAFT. I don't believe so.

Mr. GRIFFIN. Do you recall what Benning was?

Mr. CRAFT. No, sir.

Mr. GRIFFIN. What is written on the next line?

Mr. CRAFT. W. J. Groveland, DA 1-5178.

Mr. GRIFFIN. Is that a person?

Mr. CRAFT. I believe so; yes.

Mr. GRIFFIN. Who was that?

Mr. CRAFT. I don't recall.

Mr. GRIFFIN. Do you recall how that entry came to be?

Mr. CRAFT. No, sir.

Mr. GRIFFIN. There is another entry there.

Mr. CRAFT. Dick Lenard.

Mr. GRIFFIN. Yes; who is Dick Lenard?

Mr. CRAFT. I don't recall that, sir.

Mr. GRIFFIN. There is another one.

Mr. CRAFT. KTVT TA 3-7110.

Mr. GRIFFIN. That is the same number that you had for Dick Gifford.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Does that indicate that there was a second call made?

Mr. CRAFARD. I believe that this KTVT here was wrote down before the other one was. It was later he give me the name Dick Gifford for the same number.

Mr. GRIFFIN. After the entry about KTVT there is a line with nothing written on it and there is some more writing.

Mr. CRAFARD. E. J. Evans.

Mr. GRIFFIN. Do you know who he was?

Mr. CRAFARD. No.

Mr. GRIFFIN. What is the next?

Mr. CRAFARD. Stevens Park Beauty Salon, 2140 Forth Worth.

Mr. GRIFFIN. What is the significance of that entry?

Mr. CRAFARD. Jack had me calling the beauty salons trying to get them to promote this twist board for him.

Mr. GRIFFIN. And did you call more than one beauty salon?

Mr. CRAFARD. I called several of them around Dallas. I don't remember calling any in Fort Worth.

Mr. GRIFFIN. What would you do when you would call these beauty salons.

Mr. CRAFARD. Talk to them about the twist boards.

Mr. GRIFFIN. How would a typical conversation go.

Mr. CRAFARD. I'd call them and tell them——

Mr. GRIFFIN. Introduce yourself?

Mr. CRAFARD. Introduce myself and tell them that I was promoting a twist board exerciser and tell them a little bit about the exerciser and that we would like to arrange a deal where we could put this exerciser in their salon, put it for sale in their salons.

Mr. GRIFFIN. And did you make any placements?

Mr. CRAFARD. No sir. Excuse me, but this one here was 2140 Fort Worth Avenue in Dallas, Tex.

Mr. GRIFFIN. That would be in Dallas.

Mr. CRAFARD. Yes. The phone number would be WH 6-9755. Underneath that is mail brochure. I believe we were supposed to mail a brochure to them.

Mr. GRIFFIN. Are you sure that is mail brochure and not Maisel Brothers.

Mr. CRAFARD. No, I am positive that is mail brochure, almost positive of that.

Mr. GRIFFIN. And what were you supposed to do?

Mr. CRAFARD. Mail a brochure to this Stevens Park Beauty Salon.

Mr. GRIFFIN. Did Jack have brochures printed up?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. How long after you started to work for him did he have these brochures? When did he first have them?

Mr. CRAFARD. I believe it was about 2 weeks before President Kennedy was assassinated he got them. He hadn't got them very long.

Mr. GRIFFIN. Can you describe the brochures? How many pages were they?

Mr. CRAFARD. One page. It was a sheet, I believe it was 7½ inches long and I believe it was about 5½ inches wide.

It said "Twist a waist exerciser," and then it showed an exerciser board. Then I believe it showed a couple of the different positions of a person on an exerciser board. I am not positive of that.

Mr. GRIFFIN. How big were these twist boards?

Mr. CRAFARD. They were about an 8-inch square.

Mr. GRIFFIN. What were they made out of?

Mr. CRAFARD. I believe it was a 1½-inch pressed board.

Mr. GRIFFIN. That would be wood of some sort.

Mr. CRAFARD. Pressed wood.

Mr. GRIFFIN. Is that a fiberboard?

Mr. CRAFARD. Yes, sir.

Mr. GRIFFIN. It is not a plastic though?

Mr. CRAFARD. I believe these boards were made out of sort of a plastic glue in the press board. Then underneath that would be a ball-bearing disk, sort of a twist setup with a small piece of masonite attached to the bottom of that. The board would twist on the ball bearings.

Mr. GRIFFIN. And would you lie on the floor on this thing?

Mr. CRAFARD. No; you would stand on it and twist.

Mr. GRIFFIN. Who designed this item?

Mr. CRAFARD. I don't know who originally designed the item.

Mr. GRIFFIN. Did you get the impression that Jack had designed it himself?

Mr. CRAFARD. I don't really know, sir. I never got any idea of who had designed it.

Mr. GRIFFIN. Now the brochure, did it have a picture of the twist board on it?

Mr. CRAFARD. Yes; I believe so. I am not positive of that.

Mr. GRIFFIN. That concludes page 7, doesn't it.

Mr. CRAFARD. Yes, sir.

Mr. GRIFFIN. The front part of page 7.

Now turning to the back of page 7, there are some entries in pencil, are those all in your handwriting?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Now what is the first entry?

Mr. CRAFT. Ed McMullmore it looks like. It is probably spelled wrong.

Mr. GRIFFIN. Do you remember that name?

Mr. CRAFT. No, sir. I don't.

Mr. GRIFFIN. And then there is two telephone numbers written after that.

Mr. CRAFT. There is the word "Johnnie call Detroit."

Mr. GRIFFIN. But there are two telephone numbers.

Mr. CRAFT. Yes.

Mr. GRIFFIN. And then the note "Johnnie call Detroit Helene." What does that have to do with—?

Mr. CRAFT. Johnnie was the first name of one of the MC's Jack had working for him. I don't recall the last name. He got a call to call Detroit, to call Helene in Detroit. Apparently he had the number because that is all I got. I was told to have him call Helene in Detroit.

Mr. GRIFFIN. Do you know who Helene was?

Mr. CRAFT. No, sir. I thought it was possibly his wife.

Mr. GRIFFIN. Then there are three blank lines.

Mr. CRAFT. Yes.

Mr. GRIFFIN. And a number written upside down. What number is that?

Mr. CRAFT. That is RI 6-6807.

Mr. GRIFFIN. Do you recognize that number?

Mr. CRAFT. No; I don't. I don't believe that is my handwriting. It doesn't appear to be. For one thing for the fact that it is wrote with the page turned upside down, for one thing, and the numbers aren't shaped like any numbers are shaped.

Mr. GRIFFIN. Is it possible, referring to the top of the page, that this entry which looks like Ed McMullmore is really Ed Mc, and then Mulmore?

Mr. CRAFT. It could be; yes.

Mr. GRIFFIN. Would that mean anything to you reading it that way?

Mr. CRAFT. No.

Mr. GRIFFIN. Now written on the right side up on the back of page 7 after the entry RI 6-6807, there is another entry. What is that?

Mr. CRAFT. CEN, which would be I believe the abbreviation for Central, and EX, which I believe would be the abbreviation for Expressway, dash 5400.

Mr. GRIFFIN. What does that have to do with?

Mr. CRAFT. I don't think anything. I believe that is my writing. Let me see.

Mr. GRIFFIN. It is or is not?

Mr. CRAFT. I believe it is. Wait a minute, Jack was going somewhere or somebody else was going for him and he was having trouble, didn't know how to get there. Somebody was going somewhere and they didn't know how to get there and I was talking to the people they was going to see and they told me to have him turn at Central Expressway 5400 on McKinney to 2500.

Mr. GRIFFIN. Those are directions to get to some place?

Mr. CRAFT. Yes; McKinney, but I don't remember where.

Mr. GRIFFIN. And were they directions for you or for Jack?

Mr. CRAFT. For somebody else. I don't recall who it was for.

Mr. GRIFFIN. For a friend of Jack's?

Mr. CRAFT. I don't recall. I give the directions to somebody else but I don't recall who it was.

Mr. GRIFFIN. Now is it your understanding then that you would drive out Central Expressway to the 5400 block?

Mr. CRAFT. Yes.

Mr. GRIFFIN. And then at the 5400 block you would find McKinney?

Mr. CRAFT. Make a right-hand turn I believe on McKinney, the 2500 block.

Mr. GRIFFIN. What makes you think you make a right-hand turn?

Mr. CRAFT. I remember something about the conversation. I am trying to remember. I can't remember too much of it.

Mr. GRIFFIN. Was that a conversation you had with somebody on the telephone?

Mr. CRAFT. I believe it was. I am not positive. I would not swear to it but I believe it was over the telephone that I was given these directions.

Mr. GRIFFIN. And you were to pass the directions on to somebody else?

Mr. CRAFT. Yes.

Mr. GRIFFIN. What part of Dallas would that be in, following those directions?

Mr. CRAFT. I believe it would be the southern portion of Dallas, I am not sure. It seems to me 5400 on Central would be the other end of Dallas, the southern end.

Mr. GRIFFIN. That concludes the back part of page 7. Now on page 8 there are some entries. Whose entries are those?

Mr. CRAFT. These are my entries.

Mr. GRIFFIN. All right, the first one has to do with somebody named Lenard Woods.

Mr. CRAFT. Lenard Woods, his social security number, his address, 3420 Meadow, Apt. No. 235. These gentlemen on this page are all members of the band that played at the Vegas Club, and it would be Milton Thomas, his social security number, with the address 2220 Anderson, the phone number HA 1-1026; Clarence McInnis, social security number, the address 2607 Oakland, no phone number; James Dotson, the social security number, the address 1136 Fletcher, his phone number RI 7-7436; the name James T. Aycox, his social security number, 2715 Hebornia; I believe it is with a notation under that that he also was known as Bear; they called him the Bear. His phone number was HA 1-1026.

Mr. GRIFFIN. How did you happen to come to put all of those notations in there?

Mr. CRAFT. Jack's sister took sick. He had me get the names and the addresses of the boys. I had understood him to say he wanted it for tax

purposes and I got the social security numbers too, so he could get in touch with them for one thing when he did want to get in touch with them and also for he said tax purposes.

Mr. GRIFFIN. Did you see these men at the Vegas Club and get the information there or did you call them?

Mr. CRAFT. I believe I got these from, it was either Jack's sister or Pauline. I am not sure.

Mr. GRIFFIN. That concludes the front side of page 8.

Mr. CRAFT. Yes.

Mr. GRIFFIN. On the back of page 8 there are some entries. What are those entries?

Mr. CRAFT. The numbers, the phone number WH 3-9783. That doesn't mean anything to me whatsoever. The phone number TA 7-9088. I can't make out what is underneath it.

Mr. GRIFFIN. Is that your handwriting?

Mr. CRAFT. I don't know for sure. It could be.

Mr. GRIFFIN. And this telephone number doesn't mean anything to you?

Mr. CRAFT. No.

Mr. GRIFFIN. That concludes page 8. Let's look at page 9.

There are some entries there. Are those in your handwriting?

Mr. CRAFT. No; I don't remember ever making an entry of that sort. For one thing this phone number has been gone over two or three times. These numbers \$3, \$3.50, that has no meaning whatsoever to me. None of this has any meaning to me whatsoever. I don't recall ever making an entry of that sort.

Mr. GRIFFIN. Can you ever even decipher this 18 and then a 12 and then something is written. What is that?

Mr. CRAFT. It looks like M-M-L-E-S or it could be M-E-B-L-S. That is as close as I can come to it.

Mr. GRIFFIN. There is a telephone number RI 7-5610 also on that page.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And is that in your handwriting?

Mr. CRAFARD. I don't believe so. It could be. It could be, I am not positive.

Mr. GRIFFIN. That concludes page 9, doesn't it?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. The front part. And there is nothing written on the back of page 9.

Mr. CRAFARD. No.

Mr. GRIFFIN. And there is nothing written on the front or back of page 10.

Mr. CRAFARD. That is right.

Mr. GRIFFIN. Page 11 is a half sheet of paper and there is nothing written on the front or back of what is left of that. Now on page 12 there are some items "supporter, shaving cream, after shave lotion, tooth brush, code 10 hair cream."

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Are those in your handwriting?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And they are personal items?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. That you purchased for yourself?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. How long after you began to work for Jack was that entry made?

Mr. CRAFARD. I believe about 2 or 3 weeks after I went to work for Jack.

Mr. GRIFFIN. How long before you left?

Mr. CRAFARD. That would be at least 4 or 5 weeks before I left.

Mr. GRIFFIN. That is on the front part of page 12 and there is nothing else on the front part of page 12. On the back part of page 12 there are a number of entries. Can you read those off to us.

Mr. CRAFARD. The name Bonnie?

Mr. GRIFFIN. Who is Bonnie?

Mr. CRAFARD. She is one of the waitresses at the Carousel Club.

Mr. GRIFFIN. What is after that?

Mr. CRAFARD. Salami, swiss cheese on rye with mayonnaise.

Mr. GRIFFIN. And then what is the entry.

Mr. CRAFARD. Ham and cheese with mayonnaise.

Mr. GRIFFIN. There is an M or something up ahead.

Mr. CRAFARD. That signifies the mayonnaise.

Mr. GRIFFIN. I see.

Mr. CRAFARD. PS, I don't know exactly what that PS meant there. There is ham and cheese with mayonnaise. I am not sure what the first part of this was.

Mr. GRIFFIN. Would that be Betty or Becky.

Mr. CRAFARD. It might have been Becky, probably Becky; yes.

Mr. GRIFFIN. Was there a girl there named Becky, a waitress?

Mr. CRAFARD. Yes; a waitress. Then the next entry on the page is Bill Remike.

Mr. GRIFFIN. Who is he?

Mr. CRAFARD. He called in for reservations at the Carousel Club. To continue with that, Bill Remike, two couples at 9:30 they asked for good locations. The next entry on that is the name Proctor, one couple at 9 o'clock.

Mr. GRIFFIN. That is also a reservation.

Mr. CRAFARD. Also a reservation.

Mr. GRIFFIN. That concludes the back of page 12.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Now page 13, there is an entry.

Mr. CRAFARD. The phone number WH 2-5326, Bobby Patterson.

Mr. GRIFFIN. Who is Bobby Patterson.

Mr. CRAFARD. I believe he was at the Vegas Club, one of the players at the Vegas Club. I don't have his name down. He had something to do with the band at the Vegas Club.

Mr. GRIFFIN. Was he somebody that you saw? Had you met him?

Mr. CRAFARD. I met Bobby Patterson; yes.

Mr. GRIFFIN. How many times would you say you met him?

Mr. CRAFARD. I believe I saw him once or twice.

Mr. GRIFFIN. Where did you see him?

Mr. CRAFARD. I believe once at the Carousel Club and I believe I saw him at the Vegas Club one time.

Mr. GRIFFIN. Do you recall now the time you saw him at the Carousel, when was that?

Mr. CRAFARD. He come in in the afternoon and talked to Jack.

Mr. GRIFFIN. And do you recall how long he stayed?

Mr. CRAFARD. He wasn't there very long, maybe 15 or 20 minutes at the most.

Mr. GRIFFIN. And do you recall what he talked about with him?

Mr. CRAFARD. I believe it was something about, had something to do with who was in charge of the band at the Carousel or the Vegas Club or something of that sort. I am not positive.

Mr. GRIFFIN. How about the time that you think you saw him at the Vegas Club.

Mr. CRAFARD. I believe one night when I went over with Jack he was there. He played at the Vegas Club. I am trying to get it straight. I think he

was a guitar player. No; wait a minute, a horn player, saxophone player I believe it was. And this buddy of his, they had an act where the buddy lay down across two chairs and he stepped up on his buddy's chest and he stood on his buddy's chest playing his horn.

I believe that was Bobby Patterson. I am not positive.

Mr. GRIFFIN. Could this guy have been a police officer?

Mr. CRAFARD. No; I am very doubtful of that.

Mr. GRIFFIN. You didn't know any Bobby Patterson who was a police officer?

Mr. CRAFARD. No.

Mr. GRIFFIN. And there is no question that you had met a guy named Bobby Patterson.

Mr. CRAFARD. No question there; no.

Mr. GRIFFIN. Would Andy Armstrong know Bobby Patterson?

Mr. CRAFARD. Yes; I believe he would.

Mr. GRIFFIN. That entry is in pencil and there is a line with nothing written on it and then there is another entry under that. What is that?

Mr. CRAFARD. It appears to be 3902 East Waco.

Mr. GRIFFIN. Who made that entry?

Mr. CRAFARD. I have no idea.

Mr. GRIFFIN. I believe you testified before you didn't think that was your handwriting.

Mr. CRAFARD. No. I would change that. I would say that was 0902 if you take a close look at it. You can see that, 0902 East Waco.

Mr. GRIFFIN. Or could it be E Street Waco?

Mr. CRAFARD. It might be that, but I never made the entry, I would remember it if I saw it.

Mr. GRIFFIN. That concludes the front part of page 13. On the back of page 13 there are some entries. What do those seem to be?

Mr. CRAFARD. I'd say the first one would be call Jack at the Carousel. The next one would be call Mr. Ruby at the Carousel. The next one would be Tex Lacy. It is prevedo I would say or something like that. That is all I can make out. Pre, and v-e-d-o.

Mr. GRIFFIN. Does that mean anything to you?

Mr. CRAFARD. No. Were these entries "call Jack Carousel" and "Call Mr. Ruby at the Carousel," were these your entries?

Mr. CRAFARD. Yes. I believe this would be my entry here, too. I am not positive.

Mr. GRIFFIN. And were those notes for yourself or——

Mr. CRAFARD. I believe it was something I told somebody else or something. I don't even—I can't even figure why I would write it down. I don't know. That doesn't really look like my handwriting. I wouldn't have put "Call Mr. Ruby." I'd put "Call Jack." And this looks like "Mr." up at the top of the page. It is something I can't ever remember putting something like that on the top of a page without finishing it.

Mr. GRIFFIN. That concludes the back portion of page 13. Page 14 is about a third of a sheet written in pencil.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. What does that say?

Mr. CRAFARD. I am not sure what it is.

Mr. GRIFFIN. You indicated this is Boeing and something or other afterward.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And then "Frank Fisher."

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Who is Frank Fisher?

Mr. CRAFARD. I have no idea.

Mr. GRIFFIN. But you indicated before that you thought that was in connection with twist boards.

Mr. CRAFT. Yes; I did.

Mr. GRIFFIN. Do you still think that?

Mr. CRAFT. It could be twist boards or something to do with these dogs.

Mr. GRIFFIN. Why do you think something to do with the dogs?

Mr. CRAFT. Boeing would be possibly Boeing Aircraft and I was making arrangements to ship one of the dogs to California, so it could be something to do with one of the dogs.

Mr. GRIFFIN. Do you recall a Frank Fisher who was a musician and who was a friend of Jack Ruby's?

Mr. CRAFT. I don't believe I ever met him. I am not positive.

Mr. GRIFFIN. That information doesn't refresh your recollection about Frank Fisher at all?

Mr. CRAFT. No.

Mr. GRIFFIN. That concludes the front part of page 14. On the back of page 14 there is a telephone number.

Mr. CRAFT. TA 7-2553. I don't recall what the number would be.

Mr. GRIFFIN. And then a notation about?

Mr. CRAFT. "Tuna fish with lettuce wholewheat toast dry."

Mr. GRIFFIN. That concludes the back of page 14. Now on page 15 at the top there is an entry. What is that entry?

Mr. CRAFT. I believe it is Charley Boland, KTVT with a number LA 6-8303.

Mr. GRIFFIN. Do you remember making a call to that number?

Mr. CRAFT. No; I don't.

Mr. GRIFFIN. Do you remember anything about that notation?

Mr. CRAFT. No; sir. It doesn't mean anything to me.

Mr. GRIFFIN. How about the next telephone number on there, WE 7-3837?

Mr. CRAFT. That doesn't mean anything to me. I believe I stated before I didn't believe I put that down.

Mr. GRIFFIN. How about "Herman Flowers," that doesn't mean anything to you?

Mr. CRAFT. No.

Mr. GRIFFIN. So the entry here "Herman Flowers from Wax a Hatchy" is the last entry on the front part of page 15.

We will turn that over and on the back of page 15 there are a lot of numbers written down.

Mr. CRAFT. Yes.

Mr. GRIFFIN. What do those numbers have to do with?

Mr. CRAFT. I have no idea. It is definitely not my figuring.

(Short recess taken.)

Mr. GRIFFIN. We are on page 16 and we are looking at the first entry on the page. What does that entry appear to be?

Mr. CRAFT. "K. Hamilton."

Mr. GRIFFIN. Does that mean anything to you?

Mr. CRAFT. No; the rest of the page, I would say that it was somebody had called in for reservations.

Mr. GRIFFIN. It says, "9—3 couples between runway."

Mr. CRAFT. Yes.

Mr. GRIFFIN. And that page 16 is a half sheet of paper and there is nothing more on the page, and turning it over on the back part of that half sheet of paper there is an entry. What is that?

Mr. CRAFT. "Mr. Miller Friday 15 people Collins Radio Co." It would be somebody called in for reservations for 15 people.

Mr. GRIFFIN. Now, there is another entry under that.

Mr. CRAFT. "Cody-City Hall."

Mr. GRIFFIN. Did you know who Cody was?

Mr. CRAFARD. Jack had said something about it. I think he was an officer of the law. I'm not sure if he was an officer of the law or a lawyer, or what he was.

Mr. GRIFFIN. What do you recall? Do you recall the name Joe Cody?

Mr. CRAFARD. No; I don't recall the first name of the gentleman.

Mr. GRIFFIN. What do you recall that Jack said about Cody?

Mr. CRAFARD. I don't recall what Jack really did say. It had something to do with when he give it to me it was something to do with city hall, he had to see him, or he wanted me to remind him to call him, or something like that.

Mr. GRIFFIN. When would this have been?

Mr. CRAFARD. I can't recall.

Mr. GRIFFIN. Shortly before you left?

Mr. CRAFARD. It might have been 2 or 3 weeks. I don't remember.

Mr. GRIFFIN. There is nothing further on that half sheet of paper, is there?

Mr. CRAFARD. No.

Mr. GRIFFIN. Now, looking at the top of page 17 there is a number written. What is that number?

Mr. CRAFARD. "TA 3-8101."

Mr. GRIFFIN. Do you know whose number that is?

Mr. CRAFARD. I believe that would be the doctor's number. I'm not sure.

Mr. GRIFFIN. Under there is written the name "Dr. Aranoff."

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Is that your writing?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Do you remember who Dr. Aranoff was?

Mr. CRAFARD. He was Mrs. Grant's doctor, as I recall it.

Mr. GRIFFIN. Did you have any conversation with him?

Mr. CRAFARD. No; not that I can recall. I never had any conversation with the doctor.

Mr. GRIFFIN. There is a line with nothing written on it. And the next line has what looks like a telephone number on it. What is that?

Mr. CRAFARD. The number "FR 4-2764."

Mr. GRIFFIN. Is that a Dallas telephone number?

Mr. CRAFARD. I am not positive of that. It might be.

Mr. GRIFFIN. Is the number familiar to you at all?

Mr. CRAFARD. No; I don't recall the number at all.

Mr. GRIFFIN. And on the next line, what is written?

Mr. CRAFARD. "LA 8-4716," the name "Debby."

Mr. GRIFFIN. Is the name Debby familiar to you?

Mr. CRAFARD. It doesn't mean anything.

Mr. GRIFFIN. Now, there is a line with nothing written on it, and then there is another line.

Mr. CRAFARD. "Overton Rd.," and "Hawthorne" underneath, it would be Hawthorne Road Drive, I believe, "Porta Build, Inc." company. This is all something of my own here.

Mr. GRIFFIN. What did that have to do with?

Mr. CRAFARD. This is all on my own. At that time, I was going to try to get in touch with my brother-in-law who lives in Dallas, Tex., and this Overton Road, I believe, is where one of the people that I went to church with lived, out on Hawthorne Drive.

Mr. GRIFFIN. How about Porta——

Mr. CRAFARD. I had at one time worked for Porter Building Corp.

Mr. GRIFFIN. Is that in Dallas?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. When had you worked for them?

Mr. CRAFARD. I had worked for them the year before, the previous year.

Mr. GRIFFIN. Were you going to contact them?

Mr. CRAFARD. I was thinking about, maybe seeing if they needed any men down there, or something.

Mr. GRIFFIN. When did you make that entry?

Mr. CRAFARD. This was about a month before President Kennedy was assassinated.

Mr. GRIFFIN. Did you ever contact them about a job?

Mr. CRAFARD. I called them one time, I believe, and the gentleman wasn't there that I had talked to, and I never called back. The Litot Trailer Park, that is where we was staying, where my wife and I lived when we was living in Dallas.

Mr. GRIFFIN. That is the next entry on there?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. How about the telephone number?

Mr. CRAFARD. That is the number of the Litot Trailer Park.

Mr. GRIFFIN. That concludes page 17, the front half. On the back half of page 17 there is a notation. What is that?

Mr. CRAFARD. Call Buddy Heard, El Paso, dial direct, tell them that you are in town, that you are a friend and would like to get in touch with him. This is something for Andy. He was to call Buddy Heard in El Paso.

Mr. GRIFFIN. Did Andy go to El Paso?

Mr. CRAFARD. No; he was to make a call; dial direct to El Paso as if he was in El Paso. I don't remember exactly what it had something to do with. It seemed like this Buddy here was a comedian or something that Jack was trying to hire or something of that sort.

Mr. GRIFFIN. Was Andy going to try to hire him?

Mr. CRAFARD. I think it was just he was doing that for Jack, trying to find out how to get in touch with him. I am not sure.

Mr. GRIFFIN. Now, there are two lines with no writing on them, and then there is another entry. What is that?

Mr. CRAFT. The name Mary.

Mr. GRIFFIN. Do you know anybody named Mary, in Dallas?

Mr. CRAFT. It has no meaning to me except the fact that my sister-in-law's name is Mary.

Mr. GRIFFIN. How about the telephone number under that?

Mr. CRAFT. It has no meaning to me whatsoever.

Mr. GRIFFIN. And then the next telephone number?

Mr. CRAFT. It has no meaning, either.

Mr. GRIFFIN. That last telephone number on the page is RI 1-1456, and the other telephone number on that page is DA 4-4378. That concludes the back of page 17. Turning over to page 18, there are some entries on there. What is the first entry on the page?

Mr. CRAFT. It is D 2 with a dash and then the figure 175, \$1.75.

Mr. GRIFFIN. What is that?

Mr. CRAFT. I am not sure unless it is maybe some draws I took that day or something.

Mr. GRIFFIN. Are you sure that is \$2 and not \$200?

Mr. CRAFT. It might possibly be \$200.

Mr. GRIFFIN. Did you have any dealings with anybody about spending \$200?

Mr. CRAFT. Not that I can recall.

Mr. GRIFFIN. What is the notation after that?

Mr. CRAFT. Jack took \$20 from the bar till.

Mr. GRIFFIN. Is that your handwriting?

Mr. CRAFT. Yes.

Mr. GRIFFIN. Do you recall when that was?

Mr. CRAFARD. No, sir; I don't recall.

Mr. GRIFFIN. Now, there is another entry after that, "Pete White Atty."

Mr. CRAFARD. Pete White, attorney, Fidelity Union Life Building, with a number, RI 1-1295.

Mr. GRIFFIN. Did you make that entry?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Do you recall anything about Pete White?

Mr. CRAFARD. No.

Mr. GRIFFIN. Now, what is the next entry on there?

Mr. CRAFARD. The next entry has to do with the twist boards. It is, "Call beauty salon; tell them that I have a twist-a-waist exerciser," and let them have it for \$2; in quantities for \$1.75 each.

Mr. GRIFFIN. Is it fair to suggest that the \$2-175 that is written at the top of the page and this same entry about \$2 and \$1.75 both relate to twist boards?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. That concludes the front part of page 18. Turning over to page 18——

Mr. CRAFARD. The first thing on the page is "Jimmy Rhodes can tell where to get blowups at." Some blowups of some pictures that Jack wanted and this fellow Jimmy Rhodes could tell him where to get them at.

Mr. GRIFFIN. Did you know Jimmy Rhodes?

Mr. CRAFARD. No.

Mr. GRIFFIN. Did you ever hear of him?

Mr. CRAFARD. I heard Jack mention the name.

Mr. GRIFFIN. Now, there is a line with nothing written on it, and the name?

Mr. CRAFARD. Mr. Wooldridge.

Mr. GRIFFIN. Who is he?

Mr. CRAFT. I am not positive.

Mr. GRIFFIN. Do you have some idea?

Mr. CRAFT. No.

Mr. GRIFFIN. There is another line with nothing written on it. Then there is a telephone number.

Mr. CRAFT. The number WH 6-6220.

Mr. GRIFFIN. Does that number mean anything to you?

Mr. CRAFT. No.

Mr. GRIFFIN. And there is another line with nothing written on it; and the notation "8-5 tomorrow." What did that have to do with?

Mr. CRAFT. I can't remember.

Mr. GRIFFIN. There is another line with nothing written on it. And the name Bob Litchfield.

Mr. CRAFT. Yes.

Mr. GRIFFIN. Do you remember him?

Mr. CRAFT. No, I don't.

Mr. GRIFFIN. And a telephone number after that.

Mr. CRAFT. It is TA 7-9301.

Mr. GRIFFIN. And then a name after that.

Mr. CRAFT. Mrs. Moddy.

Mr. GRIFFIN. Who is she?

Mr. CRAFT. I believe that was his bookkeeper. I'm not sure.

Mr. GRIFFIN. Now, there are some numbers. That concludes page 18, does it not?

Mr. CRAFT. Yes.

Mr. GRIFFIN. With the exception of a telephone number, RI 7-5311, which is right under the name Mrs. Moddy.

Mr. CRAFARD. I imagine it is her number.

Mr. GRIFFIN. Now, there is some writing on the inside of the back cover. There are three telephone numbers, RI 7-7436, CH 2-3442, CH 2-4114. What do those numbers relate to, if you know?

Mr. CRAFARD. I don't know.

Mr. GRIFFIN. Now, there is another number Newton. There is a name Newton. Does that mean anything to you?

Mr. CRAFARD. No.

Mr. GRIFFIN. Is that in your handwriting?

Mr. CRAFARD. I'm not positive of that. It doesn't appear to be my writing.

Mr. GRIFFIN. What is the number written under the name Newton?

Mr. CRAFARD. 2550.

Mr. GRIFFIN. Is that your handwriting?

Mr. CRAFARD. No.

Mr. GRIFFIN. That is not your handwriting?

Mr. CRAFARD. No. I don't ever recall of having wrote any of those written in ink.

Mr. GRIFFIN. That would be everything on that page except the RI 7-7436?

Mr. CRAFARD. That is right.

Mr. GRIFFIN. Now, on the outside portion of the back cover there are some other things written on there. See if you can tell us what those are.

Mr. CRAFARD. The name J. L. Coxsey.

Mr. GRIFFIN. Do you know this person?

Mr. CRAFARD. No. The name Coxsey is the name of one of the gentlemen I went to church with when my wife and I were living in Dallas.

Mr. GRIFFIN. How would that be spelled?

Mr. CRAFT. His name was Lee Coxsey.

Mr. GRIFFIN. Is that the same gentleman?

Mr. CRAFT. No; I don't believe so. And there is the number under that that I can't make out. Then there is a number EV 1-6979, and there is, it looks like LV or something. I can't understand that a bit. There is the number FL 2-8995.

Mr. GRIFFIN. Are those things in your handwriting?

Mr. CRAFT. Yes.

Mr. GRIFFIN. Do you recall where you left that book when you departed from Dallas?

Mr. CRAFT. It was either in Jack's office or in the room right in front of his office where I slept days. I'm not positive whether I left it on his desk or on a stand in my room.

Mr. GRIFFIN. But in any event did you leave it in the open, or did you leave it in a drawer?

Mr. CRAFT. I believe it was lying right out on top of a table or a desk, whichever it was. I'm not positive.

Mr. GRIFFIN. Mr. Hubert do you have any questions you want to ask?

Mr. HUBERT. Did I understand you to say earlier this morning that normally you kept that book on your person?

Mr. CRAFT. Yes.

Mr. HUBERT. You didn't leave it hanging around?

Mr. CRAFT. That is right. On occasion, Jack would be there and I would be giving him a number and he would want me to go down maybe get a paper or something like that and I'd leave the book lay on one of the tables near the phone and go down and come back up.

Mr. HUBERT. Then you would get your book back?

Mr. CRAFT. Yes.

Mr. HUBERT. I guess it is fair to say, then, that except for those occasions, and then when you left the book, when you departed from

Dallas, the book was always in your possession?

Mr. CRAFARD. Yes.

Mr. HUBERT. Did you ever notice that some of the entries were made by someone else in that book prior to the time you left for Dallas?

Mr. CRAFARD. No.

Mr. HUBERT. Are you willing to say that they were not made prior to the time you left for Dallas?

Mr. CRAFARD. That is right.

Mr. HUBERT. Now, specifically, some of the entries that you have said are not in your handwriting——

Mr. CRAFARD. Yes.

Mr. HUBERT. Were not in that book when you left for Dallas?

Mr. CRAFARD. That is right.

Mr. HUBERT. What makes you sure of that?

Mr. CRAFARD. Nobody else had wrote in the book.

Mr. HUBERT. No one had a chance to?

Mr. CRAFARD. That is right.

Mr. HUBERT. Jack would have had a chance to on a few occasions?

Mr. CRAFARD. On a couple of occasions he had a notebook just like it that he carried himself.

Mr. HUBERT. But you never saw these entries even after Jack had occasion to write them in?

Mr. CRAFARD. That is right. I never noticed them.

Mr. HUBERT. And no one else had a chance to write them in?

Mr. CRAFARD. That is right.

Mr. HUBERT. Would it have been possible that those entries were written prior to the time you left Dallas?

Mr. CRAFARD. I doubt it very much. It was possible, but I doubt very much if they were.

Mr. HUBERT. Now, you testified this morning earlier, too, that the book seemed to be somewhat different from when you last saw it in Dallas.

Mr. CRAFARD. Yes.

Mr. HUBERT. In what ways did it seem different?

Mr. CRAFARD. I believe there were more pages in it than was there.

Mr. HUBERT. Pages with writing, or blank pages?

Mr. CRAFARD. I can't recall whether they was all blank pages or whether they had writing on them, or what.

Mr. HUBERT. Let's put it this way: Do you recall any particular pages that are not in that book at the present time?

Mr. CRAFARD. No.

Mr. HUBERT. You are not in a position to say, then, really, that any pages with information on them have been taken out?

Mr. CRAFARD. That is right.

Mr. HUBERT. Your impression that the book is different than it was before you left Dallas is based then upon the size of the book?

Mr. CRAFARD. Yes.

Mr. HUBERT. Does it seem to have fewer blank pages now than it did before?

Mr. CRAFARD. Yes. I thought there was half a dozen or so blank pages in the middle of the book last time I used it.

Mr. HUBERT. What was your purpose in leaving the book in Dallas when you determined to go away?

Mr. CRAFARD. There was numbers that, to me, that had to do with this business and they didn't mean anything to me, so I just left it there.

Mr. HUBERT. Did you do that deliberately?

Mr. CRAFARD. Yes. I figured they was numbers that he wanted. It didn't mean anything to me. I had no use for it.

Mr. HUBERT. You wanted to see that he got them?

Mr. CRAFARD. Yes.

Mr. HUBERT. But you don't know where you left the book?

Mr. CRAFARD. I either left it—I am not positive exactly where I left it. It was either in his office on the desk or in my room on a stand where he would have saw it.

Mr. HUBERT. Can you tell us why you didn't write a note saying why you were leaving, where you would be?

Mr. CRAFARD. I can't say why other than what I have said the other day.

Mr. HUBERT. Were you aware that Jack would argue you into staying?

Mr. CRAFARD. I thought he probably would; if I called him or anything he would probably do his best to get me to stay, and I had made up my mind to leave and I didn't want to have to argue with him.

Mr. HUBERT. Of course, that wouldn't have prevented your writing a note.

Mr. CRAFARD. No.

Mr. HUBERT. Or of calling Armstrong.

Mr. CRAFARD. I didn't even think about it a bit.

Mr. GRIFFIN. Did you think at all about calling anybody?

Mr. CRAFARD. No.

Mr. GRIFFIN. This wasn't even a matter that you pondered as to whether you should or should not call?

Mr. CRAFARD. No; nothing I had thought of. I never had any idea. I didn't feel that there was any real reason for me to call anyone.

Mr. HUBERT. I think you told me that you felt grateful to Jack for what he had done for you.

Mr. CRAFARD. Yes.

Mr. HUBERT. And that the motivation for your leaving was not any anger.

Mr. CRAFARD. That is right.

Mr. HUBERT. On your part against him, but, rather, that you wanted to see your sister?

Mr. CRAFARD. That is right.

Mr. HUBERT. You don't think you owed it to him just to leave him a note?

Mr. CRAFARD. It just never entered my mind.

Mr. HUBERT. Did it occur to you that there might be a question of how much cash you had in fact taken?

Mr. CRAFARD. No.

Mr. HUBERT. What about the salary that was owed to you? Weren't you interested in that?

Mr. CRAFARD. I didn't even think about it.

Mr. HUBERT. You didn't say goodbye to anybody when you left Dallas?

Mr. CRAFARD. No.

Mr. HUBERT. You didn't advise anyone that you were leaving Dallas?

Mr. CRAFARD. No; other than the fact that I give the key to the boy at the parking lot and told him to tell Jack goodbye for me.

Mr. HUBERT. You did send a message of goodbye to Jack through this man?

Mr. CRAFARD. Yes.

Mr. HUBERT. Did you leave word where you would be?

Mr. CRAFARD. No.

Mr. GRIFFIN. Did you leave any message to the effect that you had taken \$5 out of the till?

Mr. CRAFARD. I left a draw slip in the till just like I always have.

Mr. HUBERT. Were you in any kind of trouble there with a girl or something of that sort?

Mr. CRAFARD. No.

Mr. HUBERT. That required you to leave as hastily as you did?

Mr. CRAFARD. No.

Mr. HUBERT. Is it your custom to move around like that without leaving any contact points?

Mr. CRAFARD. Quite frequently; yes.

Mr. HUBERT. Who knew you were working at the Carousel among your family or friends?

Mr. CRAFARD. I believe I had wrote my cousin and informed her. I believe I wrote my mother and informed her.

Mr. HUBERT. This girl Gail knew it?

Mr. CRAFARD. That is my cousin.

Mr. HUBERT. That is your cousin?

Mr. CRAFARD. Yes; the cousin I was referring to at this time.

Mr. HUBERT. What did you expect to have happen to the mail that you got at the Carousel?

Mr. CRAFARD. I didn't even realize I had left any mail. I had wrote to the people. I hadn't been getting any answers. My mother doesn't write an awful lot, and I hadn't got any letters from my cousin for a little while. My sister hadn't answered the letter I wrote to her, so I just——

Mr. HUBERT. Weren't you going out with a girl that you had gotten fairly close to by that time?

Mr. CRAFARD. She had left Texas at this time. She had left Texas and, as far as I know, went out to California.

Mr. HUBERT. Was there anybody else that you were interested in there?

Mr. CRAFARD. No.

Mr. HUBERT. Do you say to us now that in your opinion, and by this I mean your departure from Dallas under the circumstances you did depart was normal in your life?

Mr. CRAFT. Somewhat, yes; most of the time I go to leave, I just take off and go.

Mr. HUBERT. You have done that before?

Mr. CRAFT. Yes.

Mr. HUBERT. Many times?

Mr. CRAFT. I've done it two or three times I can recall. I usually leave from around my people, if I'm around my sister I'll say something to her that I'm going to take off and where I plan on going. If I leave home I usually say something to the folks on where I plan on going.

Mr. HUBERT. After you found out that Jack had killed Oswald, did it ever occur to you that the way in which you had left Dallas might seem odd?

Mr. CRAFT. Yes; it did occur to me that it might seem very odd.

Mr. HUBERT. Did you communicate that view to anyone?

Mr. CRAFT. I think I said something to my sister to the effect that I thought it might be kind of suspicious the way I had left Dallas, so suddenly, without saying anything to anybody.

Mr. HUBERT. Did you say that to your cousin, too?

Mr. CRAFT. I don't know for sure if I said anything to Gail about that or not.

Mr. HUBERT. I think you told us that you spoke to your cousin, I am talking about Roberts now, about the fact that you had left Dallas on Saturday evening and the manner in which you left.

Mr. CRAFT. I don't recall saying anything to him about the fact that I thought it might be suspicious.

Mr. HUBERT. No; I am not suggesting that. But what I want to ask you is whether he thought that the way in which you left might throw some suspicion.

Mr. CRAFARD. I don't recall him saying anything about it, sir.

Mr. HUBERT. Did it occur to you that perhaps one easy way to clarify your position would be to contact the FBI or some police agency and tell them where you were?

Mr. CRAFARD. I didn't think about that. I figured that if they were looking for me, if I had heard anything about the fact that they were looking for me I figured I'd go to the nearest police station and tell them who I was and that they was looking for me. But that is the only thing I thought about on that.

Mr. HUBERT. Didn't you rather know that they were looking for you?

Mr. CRAFARD. I wasn't positive that they were. I thought they might be; yes.

Mr. HUBERT. You had a pretty good idea that they might be?

Mr. CRAFARD. Like I say, I thought they might be looking for me but I wasn't positive.

Mr. HUBERT. Wouldn't you want to find out positive evidence they were looking for you?

Mr. CRAFARD. If there had been any definite evidence they were looking for me, I would have went into the nearest police station and told them who I was.

Mr. HUBERT. What do you mean by definite evidence?

Mr. CRAFARD. The fact I knew for sure they were. I said I just thought that they might be.

Mr. HUBERT. You just told us that you thought that they might be?

Mr. CRAFARD. That is right; I said that I thought they might be.

Mr. HUBERT. That wasn't enough to cause you to——

Mr. CRAFARD. No, sir; it isn't.

Mr. HUBERT. Were you contemplating, as a matter of fact, going to some police agency prior to the time the FBI came to you?

Mr. CRAFARD. No; I don't believe that I was.

Mr. HUBERT. How did you expect to get this positive evidence that they were looking for you?

Mr. CRAFARD. I just figured if it was possible they might put something in the paper or maybe something over the radio or something and if I heard that they was looking for a young fellow that had worked for Ruby by the name of Larry or anything like that, they was looking for this young fellow that had worked for Ruby or anything, that I would have went in and told them who I was.

Mr. HUBERT. I understood you said there was no radio or newspaper at your sister's house.

Mr. CRAFARD. No; but I was at other people's places that had radios.

Mr. HUBERT. You expected to get the information that way?

Mr. CRAFARD. I didn't stay with my sister all the time.

Mr. HUBERT. So that you were making an effort to find out if they were looking for you?

Mr. CRAFARD. I was where I would have found out if it was so, yes, on several occasions.

Mr. HUBERT. In other words, you went to listen to radio programs or TV programs with an effort to find out, among other things, whether they were looking for you?

Mr. CRAFARD. That is right.

Mr. HUBERT. So that you might communicate with them and tell them where you were?

Mr. CRAFARD. That is right. I figured one thing. I hadn't done anything wrong. I had no reason to hide from anything because I hadn't done anything wrong, so if there had been any indication whatsoever that they was looking for me I would have walked into the nearest police station and turned myself in.

Mr. GRIFFIN. Did you feel that anybody else had done anything wrong?

Mr. CRAFARD. No. I knew from what I had heard that Ruby had killed, shot Oswald, I knew it was wrong. Like I say, I mean I had no idea that

anybody else connected with him had done anything.

Mr. HUBERT. What made you think in the first place that there might be some suspicion cast upon you?

Mr. CRAFARD. Well, the way I left, after I found out that Ruby shot Oswald, the way I left, I thought just suddenly like that, didn't leave any word to anybody where I was going or anything.

Mr. HUBERT. How would that connect you with the killing of Oswald?

Mr. CRAFARD. I had been working for Ruby. He had shot Oswald. It could be kind of insinuating circumstances why I left and everything like that.

Mr. HUBERT. But you had left before Oswald was shot?

Mr. CRAFARD. Yes; I had left before Oswald was shot.

Mr. HUBERT. So that really your concern was not that they would connect you with the killing of Oswald?

Mr. CRAFARD. No.

Mr. HUBERT. But that——

Mr. CRAFARD. They might think that I had done something wrong, myself.

Mr. HUBERT. With reference to what?

Mr. CRAFARD. To anything. I mean breaking the law in any way.

Mr. HUBERT. With reference to the shooting of the President, too?

Mr. CRAFARD. How is that?

Mr. HUBERT. With reference to shooting of the President?

Mr. CRAFARD. Well, it could be that they might have thought I was involved in that in some way or something like that, and I just figured if they thought, you know, the way I had left if they had any idea at all that would further their idea, I mean if they had any idea that any of Ruby's employees were involved in it, that would further the idea that I had been involved in this, in it.

Mr. HUBERT. You actually thought about that?

Mr. CRAFT. Yes; I felt——

Mr. HUBERT. That was the thing that gave you concern and that is what you talked to your sister about?

Mr. CRAFT. Yes; it kind of bothered me a little bit.

Mr. HUBERT. Couldn't you have ended the bother by going to the nearest police force?

Mr. CRAFT. I probably could have. I never even thought about going in like that, just walking in and talking to them, asking them about it or anything.

Mr. GRIFFIN. Did you fear when you left Dallas that things might be happening which would get you in trouble?

Mr. CRAFT. No; it never entered my mind. I figured that that would be the end of things when they had caught Oswald, I kind of figured that would be the end of it and he would come to trial.

Mr. GRIFFIN. Did you fear that things might be happening which would get Jack or other people you knew in trouble?

Mr. CRAFT. No; I didn't.

Mr. HUBERT. Let's put it point blank to you, Larry. Did you think that possibly Ruby or someone among his friends might have had something to do with this and the best thing for you to do as an innocent person was to get out of there?

Mr. CRAFT. No, sir; I didn't, because if I had had the slightest idea that him or anybody he knew had anything to do with it, the first thing I would have done would have been to walk right straight down to the police station.

Mr. HUBERT. Then when you found out that he had killed Oswald, didn't it occur to you that he might be killing Oswald to remove the President's murderer?

Mr. CRAFT. I don't believe it really did occur to me at that time; no.

Mr. HUBERT. You see the point now, don't you?

Mr. CRAFARD. Yes; I understand what you are trying to say. But later we discussed the fact that Oswald and Ruby might have been connected, as I believe everybody else has.

Mr. GRIFFIN. Do you think there is anything, can you think of anything as a result of what you saw down there in Dallas that would indicate that Jack shot Oswald out of some kind of fear?

Mr. CRAFT. No; I can't really think of anything.

Mr. GRIFFIN. Out of some motive of self-preservation other than, or not necessarily connected with the shooting of the President, but that he would have feared Oswald in any kind of a way?

Mr. CRAFT. No; I can't think of anything that would prove that, that would give me any reason to believe that.

Mr. GRIFFIN. Do you have some idea on the basis of your experience with Jack and so forth as to why he shot Oswald?

Mr. CRAFT. No; I haven't, other than the fact that I believed ever since it happened that Jack was out of his mind. I believe right today that the man should be in a mental institution.

Mr. GRIFFIN. Is that simply because you can't conceive of anybody doing what he did, or from some other facts?

Mr. CRAFT. I can't conceive of a man that is in his right mind walking up to a man, just walking up to a man, putting a gun in his belly and pulling the trigger.

Mr. GRIFFIN. In a police station?

Mr. CRAFT. That is right, I can't conceive of it, of any man that is in his right mind doing so.

Mr. GRIFFIN. But, other than that, is there any indication that you had that Jack wasn't in his right mind?

Mr. CRAFT. No.

Mr. GRIFFIN. Now, you saw him for a period of about maybe 18 hours after the President was shot. In that period that you saw him after the President was shot, is there anything that indicated to you that he wasn't in his right mind in the way that, you know, his behavior was markedly different?

Mr. CRAFT. No.

Mr. GRIFFIN. From the way Jack Ruby usually acted?

Mr. CRAFARD. One thing he was kind of, when he would speak it was kind of a choppy way of speaking. He would say two or three words, wait and then say two or three more, which wasn't usual for Jack. He might bust off in the middle of a sentence and then pause for a couple of seconds before he completed the sentence.

Mr. GRIFFIN. Is this what you were referring to when you talked about Jack being nervous?

Mr. CRAFARD. Yes; very much that way.

Mr. GRIFFIN. Was it the kind of nervousness that a man might have if he were afraid himself?

Mr. CRAFARD. Yes, sir; that is possible, a man that was afraid for himself would be nervous like this; yes.

Mr. HUBERT. You observed those conditions prior to the time you left?

Mr. CRAFARD. Yes.

Mr. HUBERT. This nervous condition?

Mr. CRAFARD. Yes; on the night when we went out and took those pictures he was pretty well that way, he would talk in a burst and he would stop and then talk in a burst again.

Mr. HUBERT. Now, Larry, isn't it a fact that the reason why you left was because you didn't want to have any part of what you saw going on then?

Mr. CRAFARD. I don't understand what you mean by that.

Mr. HUBERT. You saw Jack being nervous. You saw him taking all these pictures. You saw his great concern about the death of the President. Didn't it occur to you, and isn't it a fact that the reason you had left was because you figured that you didn't want to have any part of anything that was going on, although you didn't know what was going on? Isn't that a fact?

Mr. CRAFARD. No. I cannot say that it is, because I had no idea there was anything going on, period.

Mr. GRIFFIN. Was there anything about Jack that indicated to you a peculiar concern about the death of the President, that the death of the

President itself was some sort of a concern, a great concern to him more than it seemed to be to you or to Andy or anybody else?

Mr. CRAFARD. It seemed to me more like it was more of a personal effect on him than it did on anybody else that I talked to very much.

Mr. GRIFFIN. What do you mean by that?

Mr. CRAFARD. I can't really explain it. To me, I was shocked and everything, but it wasn't like it had been a member, more or less, say, a member of my own family. With him, it hit him more like it had been a member of his own family, it seemed to.

Mr. GRIFFIN. There was something he said in that connection?

Mr. CRAFARD. I think he said something, but I don't recall what he said.

Mr. GRIFFIN. Let me ask you this: Were you present when Jack learned that Officer Tippit had been shot?

Mr. CRAFARD. I believe so. I'm not sure. I think Jack was at the club or come to the club just shortly afterward.

Mr. GRIFFIN. Do you remember Jack's talking about Officer Tippit?

Mr. CRAFARD. Yes; I think he said he knew him.

Mr. GRIFFIN. Did Jack talk a lot about the death of the President?

Mr. CRAFARD. I don't believe any more than anybody else did.

Mr. GRIFFIN. How about Officer Tippit? Did he talk about that?

Mr. CRAFARD. No; I don't recall as he said much about it other than the fact that he said he knew him.

Mr. GRIFFIN. You indicated yesterday that you felt Jack's concern over the death of the President was related to his concern for the convention business in Dallas. You remarked about his saying this is going to ruin the convention business.

Mr. CRAFARD. Something to that effect. That was one of the first things he said, but that was the only time he referred to it that I can recall.

Mr. GRIFFIN. As you look at his activities, do you think that his concern or what had happened down in Dallas, meaning the death of the President

and perhaps even the death of Officer Tippit, that Jack's concern might have been more related to his fear about what would be happening to his business rather than any sympathy and grief over the man himself?

Mr. CRAFT. No; I can't say that he did. I mean it seems to me like if a man was really concerned about his business he wouldn't have closed Friday night like he did. It seems to me like something like that—you know what I mean?

Mr. GRIFFIN. But, again, that is an impression you are drawing from some sort of outside event?

Mr. CRAFT. Yes.

Mr. GRIFFIN. I am asking you to look at just what Jack was talking about and the things that he seemed to be concerned with and occupied with after the death of the President.

Were they things, was his conversation mostly about the President, or was it mostly about the things that he had to do in Dallas?

Mr. CRAFT. I believe it was mostly about the President, as near as I can recall.

Mr. GRIFFIN. How long did you talk with him at the Carousel about the President?

Mr. CRAFT. Oh, while he was there the first time we was talking about it. I'm trying to recall there was something said there when he said something about he was going to be closed, that we was going to be closed that night. He seemed to think if we closed and the other clubs stayed open it might help a little bit, help the club a little bit, or something.

Mr. GRIFFIN. So that in Jack's mind closing was an aid to his business?

Mr. CRAFT. I believe so; yes.

Mr. HUBERT. Larry, when you decided to go, to leave Dallas, I take it that you packed up all your belongings because you didn't expect to come back.

Mr. CRAFT. Yes.

Mr. HUBERT. I think you told us you had two little cases?

Mr. CRAFARD. Yes.

Mr. HUBERT. Did you search around to see that you had done all that needed to be done?

Mr. CRAFARD. I knew I had everything that I wanted to take with me. I left a couple old shirts and a pair of old pants, I believe, that I left there.

Mr. HUBERT. And you left the book?

Mr. CRAFARD. Yes.

Mr. HUBERT. What about that letter that you had written to Gale?

Mr. CRAFARD. I don't even recall a letter that I had wrote to her that I had left there.

Mr. HUBERT. Did you know that there was a letter there with your aunt's address on it?

Mr. CRAFARD. I had received a letter, but I believe I had threw the envelope into the waste basket or something like that.

Mr. HUBERT. How long before you left had you received that letter?

Mr. CRAFARD. I think it had been probably about a week, I'm not sure.

Mr. HUBERT. Did it stay in the wastebasket all that time?

Mr. CRAFARD. I think I had it lay on my desk, on the table there, for a couple days, 3 or 4 days, or something like that.

Mr. HUBERT. And then threw it in the wastepaper basket?

Mr. CRAFARD. Yes; the wastebasket wouldn't have gotten empty until I emptied it, and I wouldn't have emptied it until it was full.

Mr. HUBERT. Did anyone else know about your aunt, her address in Harrison?

Mr. CRAFARD. I believe Jack and Andy both knew that I had received a letter from my cousin.

Mr. HUBERT. Your aunt and cousin? Well, it is Gail?

Mr. CRAFARD. Gail, Miss Eaton.

Mr. HUBERT. How did they know that? How do you remember that they knew that?

Mr. CRAFARD. Well, the fact, the reason I remember it, there was some mail in on Jack's desk for one of the guys and he told me to bring it out by the cash register on the front desk and give it to them when I went in, and when I went and got it there was this letter addressed to me. I said something to Jack because he hadn't give it to me and he said he didn't know that was my name, and Andy was there when I said something.

Mr. HUBERT. Have you any reason to believe that he or Andy made a record of your aunt's address?

Mr. CRAFARD. No.

Mr. HUBERT. When you left, then, so far as you knew, no one was aware of your aunt's address or of Gail Eaton's address?

Mr. CRAFARD. That is right.

Mr. HUBERT. You had forgotten that the envelope was in the wastepaper basket?

Mr. CRAFARD. Yes; I had said something to one of the waitresses about my cousin in Michigan, about where she had lived in Michigan, that she lived in Harrison.

Mr. HUBERT. Which one of the waitresses did you say that to?

Mr. CRAFARD. I believe there was two of them there at the time. I think it was Bonnie and Little Marg, Marjory.

Mr. HUBERT. You had told them that you had a cousin called Gail?

Mr. CRAFARD. Yes.

Mr. HUBERT. And that she lived in Harrison?

Mr. CRAFARD. Yes.

Mr. HUBERT. How close a cousin was that to you, a first cousin?

Mr. CRAFARD. A first cousin.

Mr. HUBERT. Was there any sort of affection between you?

Mr. CRAFARD. Yes; there was.

Mr. HUBERT. Had you told that to the girls?

Mr. CRAFARD. I believe I said something to them about the fact.

Mr. HUBERT. Did you see Gail when you stopped with your aunt?

Mr. CRAFARD. Yes.

Mr. HUBERT. Now, she knew you worked for Ruby at a Carousel Club?

Mr. CRAFARD. Yes.

Mr. HUBERT. When you got to see her, the news was out that Ruby had killed Oswald?

Mr. CRAFARD. Yes.

Mr. HUBERT. Did you speak to her about your connection with Ruby?

Mr. CRAFARD. I believe we discussed it; yes. I know we talked about it. I told her about what I had done for Jack, what kind of work I had done with him.

Mr. HUBERT. Did you tell her when you left?

Mr. CRAFARD. Yes.

Mr. HUBERT. Did you tell her or them—by them I mean your aunt and uncle—the circumstances under which you had left?

Mr. CRAFARD. I don't know for sure if I did or not, sir.

Mr. HUBERT. You must have told them that you left prior to Oswald's being shot.

Mr. CRAFARD. Yes; I told them that I had left Saturday, about noon Saturday.

Mr. HUBERT. Did they seem to express any concern about the matter?

Mr. CRAFARD. Not that I can recall.

Mr. HUBERT. Had you come to form in your own mind some concern about the matter?

Mr. CRAFARD. Not other than the fact that I figured that I did say if I heard anything in the news about looking for an employee of Ruby's that

had left, I would go to the law officers and let them know who I was and that I had been working for Ruby.

Mr. HUBERT. But, as I understand it, then, the only one that really discussed with you the position or the suspicion that you might be under was your sister, and that neither your aunt nor your uncle nor your cousin, Gail, nor your other cousin, Cliff Roberts, and his wife, expressed any concern or discussed the matter with you at all?

Mr. CRAFARD. Not that I can recall where there was anything said about that I might be suspected of anything.

Mr. HUBERT. The only one you really talked to about that was your sister?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. You got to see her, I think, the night before the FBI came, didn't you?

Mr. CRAFARD. Yes.

Mr. HUBERT. So that you really hadn't had an opportunity to listen to any radios or newspapers or to see whether anyone was looking for one of Jack's employees who had left suddenly?

Mr. CRAFARD. Not too much; no.

Mr. HUBERT. Had you had any?

Mr. CRAFARD. Just in the cars, when I was riding in the cars if they had the radio on and the news was on I could hear whatever come over the news that way.

Mr. HUBERT. That concern, then, that resolution of yours that if you heard about that you would turn yourself in to the police was formed much earlier than when you got to see your sister?

Mr. CRAFARD. Yes.

Mr. HUBERT. It was formed when?

Mr. CRAFARD. Shortly after I heard, found out that Ruby had shot Oswald. I decided the fact if I heard anything in the news about that—that

they was hunting for one of Ruby's employees—I would have gone to the nearest law officers and told them that I had been an employee of Ruby's.

Mr. HUBERT. I guess we had better break for lunch.

Mr. GRIFFIN. Yes.

(Whereupon, at 12:50 p.m., the proceeding was recessed.)

TESTIMONY OF CURTIS LAVERNE CRAFARD RESUMED

(The proceeding reconvened at 2:30 p.m.)

Mr. GRIFFIN. Let me repeat the statement we have been making at the beginning of every one of these sessions, that this is a continuation of the deposition which was begun on Wednesday morning with Mr. Crafard and, of course, you understand, Larry, that the oath which you took at the beginning is still in effect for this deposition.

Mr. CRAFARD. Yes, sir.

Mr. GRIFFIN. Now, before we proceed with the examination of further documents, I might mention for the record that Mr. Crafard and I had lunch this afternoon at Hogates Restaurant and we discussed informally some of his experiences in Dallas and his impressions of the events that have transpired since he first came to Dallas and since he left Dallas, and I might—I am going to raise a few of the topics, and I hope I cover them all. If I have left any of them out, I wish, Larry, that you would clarify the record on it.

I ask you, first of all, if we had a conversation about the homosexual relationship that you had mentioned before of Jack Ruby and George Senator?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And did I ask you whether you felt that Jack and George were involved in a homosexual relationship between themselves?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. What is your view of their relationship?

Mr. CRAFT. My personal opinion is the fact that there was no relationship between the two due to the fact, mostly because of the fact that they did not show the general affection towards each other that two men in this type of relationship would tend to show.

Mr. GRIFFIN. Do you have any questions you would like to ask on that topic, Mr. Hubert?

Mr. HUBERT. Yesterday, you gave us the opinion that you thought both Ruby and Senator were possibly homosexuals.

Mr. CRAFT. Yes; I did.

Mr. HUBERT. But your point now is that they might be, but that you didn't perceive anything that would indicate that they practiced homosexuality between themselves?

Mr. CRAFT. That is right. There was, to my opinion, they were both—appeared to me to have a homosexual tendency of sorts, but showed no—but it showed no signs that there was a relationship between the two of them in this way.

Mr. HUBERT. All right.

Mr. GRIFFIN. I think we also discussed whether or not you believed that Jack Ruby was capable of engaging in activities which he would keep secret from other people.

Mr. CRAFT. Yes.

Mr. GRIFFIN. Would you tell us now what your view is about his ability, whether he is the kind of person that could have engaged in that activity?

Mr. CRAFT. From what I knew of his background and what I know of him, I would say definitely that he is the type of person that could engage in an activity of any type without anyone else having any knowledge of it.

Mr. GRIFFIN. Mr. Hubert, do you want to ask any questions on that?

Mr. HUBERT. No.

Mr. GRIFFIN. We also discussed at lunch whether or not there—you have any recollection of any connection between Ruby and Oswald, and you mentioned to me a statement that you heard made at one time.

Would you tell us what that was?

Mr. CRAFARD. I believe that was the one I made just as we got out of the car.

Mr. GRIFFIN. That is right.

Mr. CRAFARD. If I recall the words, I said, I told you that I believe that before I left Dallas I had heard someone state that Oswald had been in the Carousel Club on at least one previous occasion, that I wasn't positive who had made the statement, that I believed that it was made before I left Dallas.

Mr. GRIFFIN. Did you indicate to me you had some idea?

Mr. CRAFARD. I thought it had been Andrew.

Mr. GRIFFIN. By that, you mean Andy Armstrong?

Mr. CRAFARD. Yes.

Mr. HUBERT. You say before you left Dallas?

Mr. CRAFARD. Yes.

Mr. HUBERT. What do you mean, before you left Dallas the last time?

Mr. CRAFARD. Before I left Dallas after the assassination.

Mr. HUBERT. You mean before you left Dallas on November 23?

Mr. CRAFARD. Yes. It seems to me that something had been said about Oswald being in the club, and I figured that probably it had been Andrew who said this because I had talked to him—been with him—more than I had been with anybody else on that day.

Mr. HUBERT. Have you seen Andrew since?

Mr. CRAFARD. Only at the Ruby trial in Dallas.

Mr. HUBERT. Did you mention it to him, then?

Mr. CRAFARD. No; I hadn't even thought about it.

Mr. HUBERT. Did he talk to you about it then?

Mr. CRAFARD. No.

Mr. HUBERT. Well, now, this statement must have been made to you between 12:30 on the 22d and about really 5 or 6 o'clock in the afternoon of the 23d.

Mr. CRAFARD. That is right, sir.

Mr. HUBERT. You didn't see Andy after that, did you?

Mr. CRAFARD. I only saw Andy—I never saw Andy after the 22d, when President Kennedy was assassinated.

Mr. HUBERT. That is right. Andy woke you up, you all looked at TV, and then Jack came in and they all went off and you went to bed.

Mr. CRAFARD. That is right.

Mr. HUBERT. Of course, you got up the next morning and talked to Ruby.

Mr. CRAFARD. Yes.

Mr. HUBERT. It wasn't Ruby who said that, was it?

Mr. CRAFARD. I don't believe so.

Mr. HUBERT. It wasn't George Senator who said it?

Mr. CRAFARD. No.

Mr. HUBERT. Did you see anybody else?

Mr. CRAFARD. No.

Mr. HUBERT. Did you talk to anybody else other than that girl on the phone?

Mr. CRAFARD. No.

Mr. HUBERT. She didn't mention it to you?

Mr. CRAFARD. No.

Mr. HUBERT. Who else could it be but Andy Armstrong?

Mr. CRAFARD. I said I believe I heard this statement had been made before I left Dallas, I am not positive that it was made before I left Dallas, I might have heard the statement afterwards, after I left Dallas or after I went back, but I believe I heard the statement before I left Dallas on the 23d.

Mr. HUBERT. If you did hear it before you left Dallas, it had to be Armstrong; isn't that right?

Mr. CRAFARD. Yes.

Mr. HUBERT. There is no question about that?

Mr. CRAFARD. No.

Mr. HUBERT. Because you didn't speak to anybody else that you could have gotten it from?

Mr. CRAFARD. No.

Mr. HUBERT. Now, you think it is possible that you read it in the paper?

Mr. CRAFARD. No; I don't believe so. I didn't read the papers on it too much. I had a couple of the papers——

Mr. HUBERT. Do you think you got it over the radio or TV or any other news media?

Mr. CRAFARD. No.

Mr. HUBERT. Your thought is that you got the statement that Ruby—that Oswald had been in the Carousel Club from a person?

Mr. CRAFARD. Yes.

Mr. HUBERT. Now, if it was after you left Dallas, can you help us as to what person that might have been?

Mr. CRAFARD. No; I cannot.

Mr. HUBERT. Would it have been any of your relatives?

Mr. CRAFARD. No.

Mr. HUBERT. Would it have been anybody you worked with?

Mr. CRAFARD. No; I don't believe so. If it had been after I left Dallas it would have been somebody who picked me up when I was hitchhiking.

Mr. GRIFFIN. You indicated to me, Larry, I think in the car, that Sunday you watched television someplace, that you may have seen this on television Sunday.

Mr. CRAFT. No; I didn't see television Sunday, I was on the road all the time.

Mr. GRIFFIN. You didn't stop in any restaurants or bars and watch television along the way?

Mr. CRAFT. No; I watched television the day of the assassination and saw him on the morning after.

Mr. HUBERT. On Monday?

Mr. CRAFT. No; the morning after the assassination, Saturday.

Mr. HUBERT. Yes.

Mr. GRIFFIN. On Saturday between the time that you talked with Ruby, when you called him at his home——

Mr. CRAFT. Yes.

Mr. GRIFFIN. And the time that you left Dallas, did you see anybody other than the man at the garage with whom you left the key?

Mr. CRAFT. Not to talk to anybody; no.

Mr. GRIFFIN. Now, when you rode out of Dallas with that man whom you had met at the State Fair, did you talk with him about the assassination?

Mr. CRAFT. I don't believe we discussed it very much. He was telling me about his place out on the lake more than anything else, so far as I recall.

Mr. GRIFFIN. Did he know you had worked for Jack Ruby?

Mr. CRAFT. I believe there was something said about the fact that I worked for Ruby.

Mr. GRIFFIN. Did this man know Jack Ruby?

Mr. CRAFT. No.

Mr. GRIFFIN. Is it possible that he would have mentioned having seen Oswald at the Carousel?

Mr. CRAFT. No; I don't believe so.

Mr. GRIFFIN. Had he ever been in the Carousel?

Mr. CRAFT. To my knowledge, no.

Mr. GRIFFIN. Now, on Saturday—or on Friday, rather, the day of the assassination, did you and Andy and Jack Ruby watch television at the Carousel?

Mr. CRAFT. Some, yes.

Mr. GRIFFIN. Do you remember seeing Oswald's picture on television on Friday?

Mr. CRAFT. I don't remember it, no.

Mr. GRIFFIN. Do you remember watching television or listening to the radio when it was announced that Oswald had been apprehended and was the suspect?

Mr. CRAFT. Let's see. I believe we heard that over the television.

Mr. GRIFFIN. Do you have any recollection of who was present when you heard that?

Mr. CRAFT. I am not sure.

Mr. GRIFFIN. Larry, do you have a recollection on Friday of your activities from the time Andy woke you up until Jack left to go to Eva Grant's house? Can you reconstruct for us your activities in some detail?

Mr. CRAFT. Just a vague outline is all I can do.

Mr. GRIFFIN. Try to reconstruct this as best you can, what you did first, how long you watched television, and so forth.

Mr. CRAFT. I had the television on the rest of the day up until about—it must have been about 7 or 7:30 when I turned the television off.

Mr. GRIFFIN. Where was the television set located?

Mr. CRAFT. In Jack's office.

Mr. GRIFFIN. How big an office did he have?

Mr. CRAFT. Oh, about 10 by 10 or 10 by 12.

Mr. GRIFFIN. Did he have chairs in there?

Mr. CRAFT. He had a couch, a desk, and a chair in front of his desk.

Mr. GRIFFIN. Did you spend a good bit of the day in that office watching television?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. All right. After you got up, when did you first go into that office and start to watch television?

Mr. CRAFARD. Almost immediately.

Mr. GRIFFIN. And how long did you stay in there?

Mr. CRAFARD. We turned the television on and there was nothing on the television just right at that time, on the channel we had it on. We switched channels, while the set was warming up we went out front and listened to Andy's radio until the television warmed up, and then we watched television.

Mr. GRIFFIN. Jack Ruby wasn't there at that time?

Mr. CRAFARD. No.

Mr. GRIFFIN. You say you stood in front of the television?

Mr. CRAFARD. Yes, we stood and watched the television.

Mr. GRIFFIN. Was it possible to sit in Jack's office and watch television?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. How long did you stand there?

Mr. CRAFARD. Just a couple of minutes.

Mr. GRIFFIN. Where did you sit, and where was the television set?

Mr. CRAFARD. We sat on the couch and the set was in the corner behind the door. There was a filing cabinet between it and the wall.

Mr. GRIFFIN. And sitting on the couch you could watch the television set?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Did you have to close the door in order to watch the television set?

Mr. CRAFARD. No.

Mr. GRIFFIN. Was there a telephone in that office?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. How far away, how many extensions were there to the telephone?

Mr. CRAFARD. There was three of them altogether.

Mr. GRIFFIN. There were three extensions or was there a telephone——

Mr. CRAFARD. The telephone and two extensions.

Mr. GRIFFIN. All right. Where were the two extensions in relation to the telephone in Jack's office?

Mr. CRAFARD. There was one by the bar and one by the door.

Mr. GRIFFIN. How far away would that be from Jack's office, each of those?

Mr. CRAFARD. The first one, the one by the door would probably be 20, maybe 20, 25 feet from the office. The other one would be maybe about 10 feet further, between 30 and 35 feet, I would say.

Mr. GRIFFIN. You and Andy placed yourselves in front of that television set?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. What do you recall happening, what was the first thing, do you have any recollection of what you saw on television, how things transpired on television?

Mr. CRAFARD. No; I don't. I believe they were at the hospital.

Mr. GRIFFIN. Pardon?

Mr. CRAFARD. I believe they were at the hospital when we turned the television on.

Mr. GRIFFIN. You recall seeing some scenes at Parkland Hospital?

Mr. CRAFARD. Yes; I can recall seeing some scenes but I am not sure whether it was as soon as we turned the television on or afterwards during that day.

Mr. GRIFFIN. What do you recall seeing on television before Jack Ruby came into the club?

Mr. CRAFARD. I don't really recall what we saw on television.

Mr. GRIFFIN. While you were, between the time you turned that television set on and sat down and watched it and Jack came in, did you leave the office, did you do other duties in the club, or just watch TV?

Mr. CRAFARD. We just watched television.

Mr. GRIFFIN. All right. When Jack came in, were you people seated in his office?

Mr. CRAFARD. I believe so; yes.

Mr. GRIFFIN. When Jack arrived, did you go out into the outer part of the club to talk with Jack, or did you remain in the office?

Mr. CRAFARD. We went out by the front door.

Mr. GRIFFIN. Why was that?

Mr. CRAFARD. More room for all of us to sit down who was in the office.

Mr. GRIFFIN. Could you watch television from the front door?

Mr. CRAFARD. No.

Mr. GRIFFIN. Did you keep abreast of the news while you were out there by the front door?

Mr. CRAFARD. Andy had his transistor radio on.

Mr. GRIFFIN. How long would you say it was between the time that you and Andy sat there and watched television before Jack came in?

Mr. CRAFARD. I couldn't really say.

Mr. GRIFFIN. Was there a clock in Jack's office?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Do you recall ever looking at that clock while you were watching television?

Mr. CRAFARD. No; the clock wasn't—It was one you had to wind, and it wasn't wound half the time. We didn't pay any attention to it.

Mr. GRIFFIN. Do you ordinarily wear a watch?

Mr. CRAFARD. No; I didn't, there.

Mr. GRIFFIN. In the period before Jack Ruby came in, did you get a meal of any sort, any food?

Mr. CRAFARD. No.

Mr. GRIFFIN. Did you and Andy discuss the events on television as you sat and watched it?

Mr. CRAFARD. I imagine we did. I don't recall saying anything.

Mr. GRIFFIN. Now, did anybody come into the club before Jack arrived?

Mr. CRAFARD. Not that I can recall.

Mr. GRIFFIN. Do you recall any of the female employees of the club arriving at the club on the day, on the 22d?

Mr. CRAFARD. No; I don't.

Mr. GRIFFIN. Would you think specifically about Tammi True, do you recall if she came?

Mr. CRAFARD. No; I don't

Mr. GRIFFIN. Now, when you say you don't recall, that is not the same as saying that she didn't come in?

Mr. CRAFARD. That is right.

Mr. GRIFFIN. I take it that you would not make the statement, or would you, that she didn't come in?

Mr. CRAFARD. I would not make that statement.

Mr. GRIFFIN. How about as to any of the other girls—Joy Dale, for example?

Mr. CRAFARD. I wouldn't make the statement of the fact that none of them came into the club. I would say it was possible that any of them came into the club, but I don't remember.

Mr. GRIFFIN. Well, if any of them had stayed for any length of time, 5, 10 minutes, or more, do you think you would have remembered it?

Mr. CRAFARD. I believe so; yes.

Mr. GRIFFIN. And you don't recall anybody coming in and staying as long as 10 minutes?

Mr. CRAFARD. No; I don't.

Mr. GRIFFIN. All right. When Jack came in and you people sat out at the front of the club, how far were you seated from the telephones?

Mr. CRAFARD. We was right beside the telephone.

Mr. GRIFFIN. Was that the one near the door?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. You would have been, then, about 10 feet away from the one at the bar?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Now, as you sat there with Jack, did you all sort of keep your ears glued to the radio, or was there a general conversation?

Mr. CRAFARD. We was talking. We had the radio up loud enough so we could hear, but we was talking.

Mr. GRIFFIN. There was a continuous conversation, or were there long pauses in the conversation?

Mr. CRAFARD. I don't recall. I don't remember. We might have stopped, we might just sat there 10 or 15 minutes at a time; I don't remember.

Mr. GRIFFIN. All right. How long did Jack stay there with you?

Mr. CRAFARD. I don't remember. It seems to me he was there probably a couple of hours.

Mr. GRIFFIN. You think Jack was there a couple of hours with you in the club?

Mr. CRAFARD. He might have been; yes, sir.

Mr. GRIFFIN. Now, while Jack was there, did you ever go back into his office and watch television?

Mr. CRAFARD. I believe we did; yes.

Mr. GRIFFIN. Do you have any recollection of how long you remained with Jack in his office watching television?

Mr. CRAFARD. No.

Mr. GRIFFIN. Or how long it was after he came in that you went into his office to watch television?

Mr. CRAFARD. No. It seems to me like it wasn't very long after he came before we went back into the office.

Mr. GRIFFIN. Do you have any recollection of talking with Jack about the dog that you were going to send to California?

Mr. CRAFARD. Not on that day, no.

Mr. GRIFFIN. If you had talked about that, would you remember it?

Mr. CRAFARD. I believe I would have, I am not sure.

Mr. HUBERT. Certainly the knowledge that the suspected killer of the President of the United States had been in the Carousel where you worked would have come to you as a pretty heavy shock; isn't that a fair statement?

Mr. CRAFARD. Yes.

Mr. HUBERT. I suggest to you, then, that you can remember just when that shock hit you.

Mr. CRAFARD. No; I can't.

Mr. HUBERT. Isn't it a fact, Larry, that you can tell us whether it came from Armstrong definitely or that you just picked it up on one of these rides later on because, as I say, it had to hit you and you admitted it was a shock.

Mr. CRAFARD. I don't remember, sir.

Mr. HUBERT. Do you recall whether you were alone with the person who told it to you, or was anybody else present?

Mr. CRAFARD. I don't remember that, either, sir. Most of that day is very vague in my mind.

Mr. HUBERT. What is your best guess—that Andy Armstrong told you?

Mr. CRAFARD. I believe so; yes.

Mr. HUBERT. Well, now, if it had come from Andy Armstrong, it would have made more of an impression on you than if it had come from some person who had heard it as a rumor or over the radio, wouldn't it?

Mr. CRAFARD. Yes.

Mr. HUBERT. Now, putting your mind to it in that way, can't you help us a bit more as to who actually told you?

Mr. CRAFARD. No, sir; I can't. I have thought about it. I can't recall exactly who it was or exactly where it was I heard it. I believe it was before I left Dallas.

Mr. HUBERT. And if it was before you left Dallas, you already told us it had to be Armstrong?

Mr. CRAFARD. That is right.

Mr. HUBERT. Now, I come to, in effect, the question I asked you this morning, Larry. I don't want you to feel bound by what you said at another time unless it was the truth.

Mr. CRAFARD. I realize that.

Mr. HUBERT. I suggest to you that the real motivation for leaving Dallas was that you had found out that Oswald had been in the club, and that the matter was getting a little too thick for you and you wanted out of it.

Mr. CRAFARD. No.

Mr. HUBERT. That is not true?

Mr. CRAFARD. No, sir; that is not true.

Mr. HUBERT. You say that is not true even if it is possible that Armstrong told you that Oswald had been in the club?

Mr. CRAFARD. That is right. If that is the case it was a subconscious thought. It wasn't conscious to where I would remember it. It would have been a subconscious thought that it was the case.

Mr. HUBERT. I don't understand you when you say it was a subconscious thought.

Mr. CRAFT. Just that. It wouldn't have been something that I thought about for any period of time. It would have been something that I had heard it and it just, I didn't even think about it, and then subconsciously that could have something to do with my leaving, but on a conscious level I will say no.

Mr. HUBERT. Well, do you recall discussing it with this person who told you, in any way, so that you ascertained from the person how they knew?

Mr. CRAFT. No.

Mr. HUBERT. Had it been Armstrong wouldn't you have asked him, "Well, how do you know that, Andy? When did you see him? Where did you see him? Who was he with?" You would have asked those questions, wouldn't you?

Mr. CRAFT. I would have asked him how he knew for sure.

Mr. HUBERT. You don't recall asking the person who told you that?

Mr. CRAFT. I don't recall; no.

Mr. HUBERT. Well, now, if you had heard that from some of the people that you had been riding with it would have had to be after Ruby had shot Oswald, wouldn't it?

Mr. CRAFT. Yes; it seems so. Otherwise, I wouldn't have known about Ruby being involved with him.

Mr. HUBERT. That is correct. But you didn't find out about Ruby being involved until Monday morning.

Mr. CRAFT. That is right.

Mr. HUBERT. Therefore, it had to be after that so far as you are concerned?

Mr. CRAFT. That is right, if I wasn't in Dallas. I believe that I heard the statement before I left Dallas on the 23d.

Mr. HUBERT. That being the case, unless you want to tell us some other things, it had to be Armstrong.

Mr. CRAFT. That is right. That is all I can—I can't say for sure who it was, and I can't even say for sure that I heard the statement before I left Dallas. But I believe that it was.

Mr. GRIFFIN. Do you recall when it was that you first began to think about this statement?

Mr. CRAFT. No; I can't.

Mr. GRIFFIN. Did you talk with the people in Michigan, your relatives in Michigan about it?

Mr. CRAFT. I don't remember, sir. I might have, with my sister, but I don't remember.

Mr. GRIFFIN. You told me, I believe, in the automobile that you had not been aware until I mentioned it to you in the car that Bill DeMar had made the statement that he saw Oswald in the club.

Mr. CRAFT. That is right.

Mr. GRIFFIN. Do you think, if someone had told you, one of your relatives or somebody like that had told you, one of Ruby's performers or somebody who worked for Ruby had said that he saw Oswald there, do you think you would have remembered that kind of information being conveyed to you?

Mr. CRAFT. I might have remembered something about the fact that one of them had said, that one of his employees had said, that Oswald had been there; but I wouldn't necessarily remember who it was who had said it.

Mr. GRIFFIN. Now, if somebody said to you one of Ruby's entertainers claims he saw Oswald in the club, what would your reaction have been?

Mr. CRAFT. It would have been that——

Mr. GRIFFIN. You didn't know which entertainer it was or employee who said that?

Mr. CRAFT. I wouldn't really know whether it was true or not. I probably would state the fact that I had never saw him there personally that I knew of.

Mr. HUBERT. Let me get through with this and see if this won't help you out.

If you had heard this statement that Oswald had been in the Carousel, before you knew that Ruby had shot him, that would have had one reaction on you?

Mr. CRAFARD. Yes.

Mr. HUBERT. That is to say, that the man happened to be in the club.

Mr. CRAFARD. Yes.

Mr. HUBERT. If you had heard it after you knew Ruby had shot Oswald, I suggest to you that that would have been an entirely different reaction, because then it ties in Ruby and the club. Now doesn't that assist you by determining what your reaction was when you heard it, whether it was the first type of reaction or the second type of reaction, or do you agree with me that your reaction would have been different depending upon when you heard it?

Mr. CRAFARD. I believe it would have been; yes.

Mr. HUBERT. Do you accept my version that there would be two different types along the lines I have said?

Mr. CRAFARD. Yes; I believe there would have been.

Mr. HUBERT. What was your reaction, the first or the second?

Mr. CRAFARD. I can't really remember.

Mr. GRIFFIN. Larry, when you talked with the FBI on Thanksgiving Day——

Mr. CRAFARD. Yes.

Mr. GRIFFIN. I believe the FBI asked you did you know any connection between Ruby and Oswald.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And I believe your answer at that time was that you did not.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. When you talked with the FBI were you being as frank and straight-forward with them as you are with us right now?

Mr. CRAFARD. Yes; as much as I—to the best of my knowledge I told them nothing but the truth the same as I am doing with you gentlemen.

Mr. HUBERT. Did you mention to them that you then knew that someone had told you that Oswald had been in the club?

Mr. CRAFARD. I don't believe I did because I—I don't believe I did. I didn't recall it.

Mr. HUBERT. Are you stating to us that you would not have recalled a statement made to you about Oswald being in the club, which statement had, by any hypothesis, already been made to you, when they asked you if you knew of any connection between them?

Mr. CRAFARD. The thing is that if I remembered it, I would have said so, told, said something to them. If I didn't say anything to them, I didn't remember the fact.

Mr. HUBERT. They asked you if you knew of any connection between them, didn't they?

Mr. CRAFARD. Yes; I believe they did.

Mr. HUBERT. And you then knew that someone had told you he had been in the club?

Mr. CRAFARD. Yes; I believe they did.

Mr. HUBERT. Why didn't you tell them that you knew that?

Mr. CRAFARD. I evidently didn't remember it.

Mr. HUBERT. But you have already stated that this thing made a great impression upon you.

Mr. CRAFARD. I know that, sir.

Mr. GRIFFIN. Larry—— Mr. HUBERT. Let me follow this through a bit. Didn't they, in fact, ask you if you had heard the rumor that Oswald had been in the club?

Mr. CRAFARD. I don't know exactly how he asked me about it, sir.

Mr. HUBERT. Didn't he ask you, in fact, if you had ever seen him in the club?

Mr. CRAFT. I believe he asked me that question; yes. I believe he might have. My answer would have been——

Mr. HUBERT. Is your statement to us if he asked you that question it would not have recalled to your memory that someone had told you that he had been in the club?

Mr. CRAFT. My statement is that it did not at that time.

Mr. GRIFFIN. Were you a little bit frightened when the FBI talked with you?

Mr. CRAFT. No; I don't believe so.

Mr. GRIFFIN. Were you at all concerned that your flight from Dallas might make you a suspect of some sort?

Mr. CRAFT. I don't believe—I don't remember having any such belief; no.

Mr. GRIFFIN. What was your feeling towards the FBI when they talked to you?

Mr. CRAFT. That they were talking to me because of the fact that I had worked for Ruby, and they wanted to know what I knew about Ruby's movements in hopes that there might be something there that would help them in their investigation.

Mr. GRIFFIN. At the time when you talked to the FBI you formed a tentative opinion about the connection between Ruby and Oswald or the motivation for Jack's doing what he did?

Mr. CRAFT. I figured, formed the opinion, myself, as far as I could figure Jack must have been out of his mind to shoot Oswald.

Mr. GRIFFIN. Was this, would you say this was a strong opinion that you had?

Mr. CRAFT. No. I will say that it is the sort of opinion I have now, it has been right along ever since I found out that Ruby had shot Oswald.

Mr. GRIFFIN. But in spite of having that opinion that there was somewhere along the line you began to think if there could be any connection between Ruby and Oswald?

Mr. CRAFT. I have considered the fact that there was a connection; yes.

Mr. GRIFFIN. When did you start to think about this?

Mr. CRAFT. I imagine I more likely thought about it as soon as I found out or just shortly after I found out that Ruby had shot Oswald.

Mr. GRIFFIN. In trying to think about that connection, have you been thinking about this rather regularly since then?

Mr. CRAFT. No. I have pretty well forgot just about, even, almost forgot about it entirely.

Mr. GRIFFIN. How long would you say it has been that you have been—have forgotten about any thoughts you might have had that there could be a connection between Ruby and Oswald?

Mr. CRAFT. Well, I have just almost completely—I haven't had a thought about any of this since I appeared at the trial. I was of the opinion that I was through with it and that I would just as soon forget about it.

Mr. GRIFFIN. How about when you started to work in the oil field up there in Michigan for the drilling company? At that time, did you ponder from time to time whether there was any connection between Ruby and Oswald?

Mr. CRAFT. I don't remember doing so; no.

Mr. GRIFFIN. Keeping these sort of questions in mind, can you tell us when it was before today that you first remembered that somebody might have told you that Oswald had been at the club?

Mr. CRAFT. I know definitely that I was told by somebody that Oswald had been in the club, but I haven't given that fact too much thought until we was talking this afternoon during the lunch break there, and it seemed to me the statement had been made to me before I left Dallas.

Mr. GRIFFIN. I am asking you when you remembered that statement. Keep in mind I am distinguishing between the time you actually heard the

statement made and when you first remembered it again.

Mr. CRAFARD. I remembered hearing the statement that Oswald had been in the club, but I believe there was something in the news about the fact that he had been in the club two or three times.

Mr. GRIFFIN. I see. Now, when you saw this in the news, did that bring to you a recollection that someone had also told you this independently?

Mr. CRAFARD. I don't recall it doing so; no.

Mr. GRIFFIN. Well, is it possible that the recollection that you are giving us here is simply something that you really didn't hear anybody tell you but that you just read in the newspapers?

Mr. CRAFARD. It could be that it is mixed up in my own mind about the fact that it come out that way, but I wouldn't know for sure.

Mr. GRIFFIN. You are not sure now whether you independently remember somebody telling you this or whether you just read about it in the newspaper, and now are confused as to whether your source is from somebody telling you or from the newspaper?

Mr. CRAFARD. I am almost positive that the statement was made to me by a person, but it could have been that, like I say it could have been, after I left Dallas, after it came out that Ruby had shot Oswald, somebody had heard the statement over the television or read it in the newspapers themselves, and made the statement to me that they had heard that he had been in the club.

Mr. HUBERT. I come back to the point I made a little while ago, and I would like you to consider it again because apparently, as you say, you have not given this matter a great deal of thought up until now. I suggest to you again that your reaction when you heard it would have been quite different if you had heard that rumor about Oswald being in the club before Ruby shot Oswald than it would have been if you had heard it after he shot him.

Mr. CRAFARD. I believe so; yes.

Mr. HUBERT. Now that reaction of yours is, I think, the key to your recollection of it, and I suggest that you put your mind to it, Larry, to see what—to have a recollection, if you can, which is true, of course, but which

will reflect what your reaction was. It has got to be a different reaction between the two, and I think you have agreed with me on that.

Mr. CRAFARD. Yes; I do. I believe that—I am not sure whether it was hearing a statement there when it was made to me or hearing it over the television or something like that. It was something about the statement where I said that if he had been I didn't know about it, and I didn't believe Jack did either or something of that effect.

Mr. HUBERT. Well, now, you are telling us then that at the time you heard this you made a comment?

Mr. CRAFARD. Yes; I believe so.

Mr. HUBERT. You made a comment to the person who told you that Oswald had been in the club?

Mr. CRAFARD. I believe so; yes.

Mr. HUBERT. And at the same time you made that comment that you hadn't seen Oswald in the club, you said you didn't believe that Ruby did it?

Mr. CRAFARD. I didn't believe that Ruby had saw him in the club.

Mr. HUBERT. That must have been then after Ruby was involved?

Mr. CRAFARD. It must have been; yes.

Mr. HUBERT. That would put it after Monday morning, November 25?

Mr. CRAFARD. Yes.

Mr. HUBERT. So, according to that it couldn't have been before you left Dallas?

Mr. CRAFARD. According to that; yes.

Mr. GRIFFIN. But do you still, in light of that do you still, have the recollection that you did hear it before you left Dallas?

Mr. CRAFARD. I am not sure.

Mr. GRIFFIN. Let me ask you this, Larry: If you had heard this before you left Dallas, was your feeling nevertheless about Ruby's insanity or state of mind so strong at the point when you learned that Ruby shot Oswald that

you would have regarded such a statement as being of minimal importance or was your initial reaction to Ruby's having shot Oswald a sort of quizzical one in which you really hadn't made up your mind about the man?

Mr. CRAFT. My original reaction when I first heard about it was the fact I couldn't really believe that he had done it. I just couldn't believe, I couldn't make myself believe, that Jack had done it.

Mr. GRIFFIN. Why was that? Was there something about Jack——

Mr. CRAFT. From what I knew of him he didn't strike me as the type of person that would do so. I later made up my mind that, I come to the opinion, if he had done it, if he had done it, he must have been insane when he had done it, before I saw anything on television about it.

Mr. GRIFFIN. I take it then that your initial reaction that Jack couldn't have done this also reflected what you had seen of him on Friday and Saturday, that he wasn't in such—didn't appear to you to be in such—a state of mind at that time as being one who wanted to go out and kill.

Mr. CRAFT. That is right.

Mr. GRIFFIN. And who wasn't so upset about the killing of the President that he would be motivated by grief or something like that to do such a thing.

Mr. CRAFT. That is right.

Mr. GRIFFIN. So you didn't see him crying or weeping or emotionally, terribly emotionally, upset about the President?

Mr. CRAFT. No; I didn't actually see him crying. His eyes were very red as if he had been crying the last time I saw him on Friday.

Mr. GRIFFIN. Or is that Saturday morning?

Mr. CRAFT. Friday. But then again it struck me so hard that when I finally realized that it really had happened, it struck me so hard, that I almost cried myself. I believe there was a lot of people throughout the country, men and women alike, that cried when they heard about it.

Mr. GRIFFIN. But still other than that reaction which you saw on Jack, there seemed to be nothing about Jack that made him appear any more grief stricken than any of the rest of you?

Mr. CRAFT. No.

Mr. GRIFFIN. Was Jack the kind of a person who was given to concealing his emotions?

Mr. CRAFT. Not so far as I know; no.

Mr. GRIFFIN. How about concealing his hostility toward other people, did you ever have any indication that he concealed his hostility toward other people?

Mr. CRAFT. No. In fact, I would say it would be the other way.

Mr. GRIFFIN. Did he have any people that he regarded as enemies in Dallas?

Mr. CRAFT. One person that he absolutely didn't have any liking for was this one MC from one of the other clubs that come up there once in a while.

Mr. GRIFFIN. Did Jack display his feelings toward that guy?

Mr. CRAFT. On several occasions, on two or three occasions, he told the guy he didn't care to have him around the club, and he just as soon he didn't come to the club, and on one occasion he told the man to leave the club and not to come back again.

Mr. GRIFFIN. But after the man was out of his sight was Jack the kind of person that he continued to talk about him and complain to the employees or other people that he was with about somebody who was—about whom he was annoyed or upset with?

Mr. CRAFT. I believe he went on for a few minutes about it.

Mr. GRIFFIN. Did Jack ever talk to you about his feelings toward his sister Eva?

Mr. CRAFT. Not that I can remember; no.

Mr. GRIFFIN. So you weren't aware of any hard feelings between Eva and Jack?

Mr. CRAFT. No.

Mr. GRIFFIN. How about his feelings toward Abe Weinstein, the man who ran the Colony Club, did Jack discuss those feelings?

Mr. CRAFARD. No. From what I can remember any time Jack talked to Mr. Weinstein they got along fairly good.

Mr. GRIFFIN. So am I correct in understanding the way you describe Jack when he had somebody that he didn't like or had some hostility toward, that he would only display this in the presence of that person in solving some problem with the individual face to face?

Mr. CRAFARD. Yes; I believe so.

Mr. HUBERT. Let me get back to the afternoon of the 22d again. What time did Andrew Armstrong leave, do you remember?

Mr. CRAFARD. I don't remember the exact time; no.

Mr. HUBERT. Well, about?

Mr. CRAFARD. Maybe 3:30, 4 o'clock, maybe a little later.

Mr. HUBERT. Did he leave before Jack left?

Mr. CRAFARD. I believe it was after Jack left.

Mr. HUBERT. And you never saw him again really until you saw him in the courthouse in Dallas?

Mr. CRAFARD. That is right.

Mr. HUBERT. Later that night you were with Jack; weren't you?

Mr. CRAFARD. Yes.

Mr. HUBERT. As a matter of fact, everybody was reading, talking about Oswald.

Mr. CRAFARD. I am not sure; sir.

Mr. HUBERT. Isn't it a fact that Ruby had a paper, was reading a newspaper?

Mr. CRAFARD. He more than likely did, but I don't remember it, sir.

Mr. HUBERT. Well, you are aware that Oswald had shot the President or that it was believed that he had?

Mr. CRAFARD. Yes.

Mr. HUBERT. And you were talking with Ruby about the whole thing, weren't you?

Mr. CRAFARD. Yes; I imagine.

Mr. HUBERT. Well, now, if at that time you knew from Armstrong that Oswald had been in the club, don't you think you would have mentioned to Jack, "Say, you know somebody says Oswald was in the club?"

Mr. CRAFARD. Yes; I believe I would have mentioned the fact that I had been told that Oswald had been in the club.

Mr. HUBERT. Does that help your memory as to when you got this remark?

Mr. CRAFARD. No; it doesn't. The fact it even makes me more positive that it was after I left Dallas before I heard about it, because if I had said something like that to Jack I believe I would have remembered it.

Mr. HUBERT. Well, I'll tell you what I suggest you do, since the matter has only been really brought to your attention in the last hour or so, you know, I suggest that you give it some more thought and try to reconcile the different possibilities that exist as to when this information came to you in light of the questions we have asked you and the possibilities that have been expressed. Would you do that?

Mr. CRAFARD. I have been doing so right along.

Mr. HUBERT. Let's go to something else, and we can come back to that.

Mr. GRIFFIN. I think it might be well to let it rest for a while. I am going to hand you, Larry, a Xerox copy of pages out of the notebook, and I have marked this "Washington, D.C., deposition C. L. Crafard Exhibit 5203, April 9, 1964," and I am going to sign my name to it. Now, I want you to take this Exhibit 5203 and look at those pages and leaf through it and tell me if you have ever seen that before.

Mr. CRAFARD. There are nine pages in this one. I believe this is a notebook that Jack carried in his pocket.

(The document referred to was marked Crafard Exhibit No. 5203 for identification.)

Mr. GRIFFIN. What makes you believe that?

Mr. CRAFARD. I recall seeing a notebook with these tear-out tabs on it that he carried. I am not sure whether this is the one or not.

Mr. GRIFFIN. Now, this Xerox copy which I have handed you is marked on the cover page "This is a Robinson Reminder."

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And then there are what you call tear sheets.

Mr. CRAFARD. That is right.

Mr. GRIFFIN. What does the first one say?

Mr. CRAFARD. "Jot it down...."

Mr. GRIFFIN. The second tear sheet, tear-out sheet?

Mr. CRAFARD. "Do it...."

Mr. GRIFFIN. The third?

Mr. CRAFARD. "Tear it out...."

Mr. GRIFFIN. And the fourth?

Mr. CRAFARD. "Live notes only."

Mr. GRIFFIN. Those are all the tear-out tabs on what appear to be on the front cover?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Do you recognize the handwriting on that?

Mr. CRAFARD. It is printing, and it is pretty hard to recognize it. I believe this was Jack's notebook. It is his handwriting.

Mr. GRIFFIN. You believe it is his handwriting?

Mr. CRAFARD. Yes; I believe so.

Mr. GRIFFIN. That is not the notebook, is it, that you transferred entries into from your small Penway spiral notebook?

Mr. CRAFARD. No; it is not.

Mr. GRIFFIN. And you believe Jack carried this notebook in his pocket?

Mr. CRAFARD. Yes; I do.

Mr. GRIFFIN. Let us go through these entries and see if you recognize any of them.

Mr. CRAFARD. There are a few in there I know the names of.

Mr. GRIFFIN. How about Sandy?

Mr. CRAFARD. That has no meaning to me.

Mr. GRIFFIN. The second entry is A. F. McKnight.

Mr. CRAFARD. No.

Mr. GRIFFIN. Sue Pepper?

Mr. CRAFARD. I believe she had been a stripper.

Mr. GRIFFIN. Was she employed as a stripper while you were there?

Mr. CRAFARD. No.

Mr. GRIFFIN. Have you heard some talk about her?

Mr. CRAFARD. The name sounds like one of the girls I mentioned as a stripper.

Mr. GRIFFIN. Caroline Walker?

Mr. CRAFARD. No.

Mr. GRIFFIN. Strike that. Jack Yanover?

Mr. CRAFARD. No.

Mr. GRIFFIN. Caroline Walker?

Mr. CRAFARD. No.

Mr. GRIFFIN. Harold Tannebaum?

Mr. CRAFARD. No.

Mr. GRIFFIN. Margaret Caldwell?

Mr. CRAFARD. No.

Mr. GRIFFIN. Is this Kirk Dial or Kirk Diaz?

Mr. CRAFARD. I would say Dial.

Mr. GRIFFIN. Did you ever hear of him?

Mr. CRAFARD. No.

Mr. GRIFFIN. James Herbert?

Mr. CRAFARD. No.

Mr. GRIFFIN. Jules Herbert?

Mr. CRAFARD. No; not that I can remember.

Mr. GRIFFIN. Can you read what is written under Jules Herbert?

Mr. CRAFARD. It looks to me like "Sherry care of Lincoln-Houston."
The name "Sherry," I believe she was a stripper.

Mr. GRIFFIN. How about Gigi?

Mr. CRAFARD. She was a stripper.

Mr. GRIFFIN. But not employed there while you were there?

Mr. CRAFARD. But not employed there while I was there. I have heard
mention of the name.

Mr. GRIFFIN. How about Wally Rack?

Mr. CRAFARD. No; I don't remember the name.

Mr. GRIFFIN. How about the Doctor's Club, do you know what that
was?

Mr. CRAFARD. No; I don't, sir.

Mr. GRIFFIN. What does that appear to be, Linda Kubox?

Mr. CRAFARD. I would say it looks like K-u-b-o-x to me.

Mr. GRIFFIN. Did you ever hear of that person?

Mr. CRAFARD. No.

Mr. GRIFFIN. Betty Robbins?

Mr. CRAFARD. Not that I can remember.

Mr. GRIFFIN. How about Iwana Birdwell?

Mr. CRAFARD. I don't remember that.

Mr. GRIFFIN. How about Ferris?

Mr. CRAFARD. No.

Mr. GRIFFIN. How about Skip Hutcheson?

Mr. CRAFARD. I believe there was some, one young fellow that Jack had staying there before I went there they referred to as Skip. I don't know.

Mr. GRIFFIN. I see. Skip Hutcheson you believe is the fellow who sort of performed the job you did before you came?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. How long before you came was Hutcheson there?

Mr. CRAFARD. I believe it had been 2 or 3 months, I am not sure.

Mr. GRIFFIN. It had been 2 or 3 months that had passed between the time——

Mr. CRAFARD. Yes.

Mr. GRIFFIN. How about Lynd Chenalt?

Mr. CRAFARD. No.

Mr. GRIFFIN. How about W. O. Chenalt?

Mr. CRAFARD. It doesn't mean anything to me.

Mr. GRIFFIN. Is this Brenda?

Mr. CRAFARD. It appears to be, yes.

Mr. GRIFFIN. Did you know a girl named Brenda there?

Mr. CRAFARD. No; I don't remember of any.

Mr. GRIFFIN. And is that Augie?

Mr. CRAFARD. It looks like it.

Mr. GRIFFIN. Did you know a fellow or a girl named Augie?

Mr. CRAFARD. No; the name means nothing to me.

Mr. GRIFFIN. How about John, is that Rogers?

Mr. CRAFARD. I would say so. It don't mean anything to me.

Mr. GRIFFIN. Shirley Bruce?

Mr. CRAFARD. The name Shirley means nothing to me, but the last name would have been Little Lynn's correct name.

Mr. GRIFFIN. Well, her correct name was Bruce?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. I thought her last name was Carlin?

Mr. CRAFARD. Her husband's name.

Mr. GRIFFIN. Bruce Carlin? Bill Willis?

Mr. CRAFARD. The name sounds familiar, but I can't put any meaning to it.

Mr. GRIFFIN. Did he play in the band?

Mr. CRAFARD. Yes; he was one of the band players.

Mr. GRIFFIN. At the Carousel?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Gino Skaggs?

Mr. CRAFARD. Means nothing to me.

Mr. GRIFFIN. Dottie Walters?

Mr. CRAFARD. That means nothing to me.

Mr. GRIFFIN. Barbara Brown?

Mr. CRAFARD. That means nothing to me.

Mr. GRIFFIN. Tom Palmer?

Mr. CRAFARD. He had been employed at the club. We received some letters at the club for him. That is all I know.

Mr. GRIFFIN. What had been his employment?

Mr. CRAFARD. I don't know.

Mr. GRIFFIN. Was he connected with AGVA?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. How about Sandra Moran?

Mr. CRAFARD. No.

Mr. GRIFFIN. This is Kathy Kay.

Mr. CRAFARD. She was one of the strippers while I was there.

Mr. GRIFFIN. And Andy?

Mr. CRAFARD. That would be Andrew Armstrong, I believe.

Mr. GRIFFIN. How about Andrea Dalk?

Mr. CRAFARD. The name means nothing.

Mr. GRIFFIN. How about this Kathy?

Mr. CRAFARD. I don't remember the name at all.

Mr. GRIFFIN. How about Lorri Womack?

Mr. CRAFARD. The name doesn't mean anything.

Mr. GRIFFIN. How about Margaret?

Mr. CRAFARD. It doesn't mean anything to me.

Mr. GRIFFIN. Here is Judy Oberlin?

Mr. CRAFARD. I don't recall the name.

Mr. GRIFFIN. George, Sherman, Tex.?

Mr. CRAFARD. I don't recall the name.

Mr. GRIFFIN. Betty Kelley?

Mr. CRAFARD. That doesn't mean anything.

Mr. GRIFFIN. Mike Eberhardt?

Mr. CRAFARD. It doesn't mean anything.

Mr. GRIFFIN. Russ Knight?

Mr. CRAFARD. Russ Knight—that doesn't mean anything.

Mr. GRIFFIN. Charles Senator?

Mr. CRAFARD. That doesn't mean anything.

Mr. GRIFFIN. The House of Loan?

Mr. CRAFARD. It doesn't mean anything to me.

Mr. GRIFFIN. How about Joe, Whitehall 2-5424?

Mr. CRAFARD. It doesn't mean anything to me.

Mr. GRIFFIN. How about Jeannie?

Mr. CRAFARD. Jeanine.

Mr. GRIFFIN. Jeanine.

Mr. CRAFARD. She worked when I first went to work for Jack, she worked as a cocktail waitress and then she also was an amateur stripper. She went to work for Jack as a stripper while I was there.

Mr. GRIFFIN. What name did she strip under?

Mr. CRAFARD. I believe it was under the first name of Jeanine. She used a French last name. She was of French descent.

Mr. GRIFFIN. Ralph Paul?

Mr. CRAFARD. Ralph Paul.

Mr. GRIFFIN. How about American Airlines, and Tuesday, October 9, No. 985?

Mr. CRAFARD. That would mean nothing to me. George Senator is the next one.

Mr. GRIFFIN. Of course, we have talked about George. Johnny Hayden?

Mr. CRAFARD. No; I don't remember.

Mr. GRIFFIN. Joy Herrod?

Mr. CRAFARD. No.

Mr. GRIFFIN. Joe Slayton?

Mr. CRAFARD. No.

Mr. GRIFFIN. Wally Weston?

Mr. CRAFARD. He was the comedian, I believe. Jack employed him for a short while.

Mr. GRIFFIN. Campbell-Corrigan, building repair. Did somebody do some building repairs for him?

Mr. CRAFARD. I don't remember that. Corrigan, doesn't mean anything to me.

Mr. GRIFFIN. Chuck Isaacs?

Mr. CRAFARD. It doesn't mean anything to me.

Mr. GRIFFIN. I can't read this.

Mr. CRAFARD. Davis Kitter—something.

Mr. GRIFFIN. Kitter something or other.

Mr. CRAFARD. It looks like.

Mr. GRIFFIN. But you don't recognize that?

Mr. CRAFARD. No.

Mr. GRIFFIN. Earl Wilson?

Mr. CRAFARD. It doesn't mean anything to me.

Mr. GRIFFIN. Tony Turner?

Mr. CRAFARD. It doesn't mean anything to me either.

Mr. GRIFFIN. Tom Busch?

Mr. CRAFARD. No; it doesn't mean anything to me either.

Mr. GRIFFIN. Joe Cook?

Mr. CRAFARD. It doesn't mean anything to me.

Mr. GRIFFIN. Barbara Hickman?

Mr. CRAFARD. It doesn't mean anything to me.

Mr. GRIFFIN. Tammi True?

Mr. CRAFT. Of course, she was one of the strippers who worked for Jack.

Mr. GRIFFIN. Here is Kay again, but you wouldn't know what Kay that would be?

Mr. CRAFT. No.

Mr. GRIFFIN. How about Nicki?

Mr. CRAFT. No.

Mr. GRIFFIN. Dolores Meridith?

Mr. CRAFT. No.

Mr. GRIFFIN. Wilford Jackson?

Mr. CRAFT. No.

Mr. GRIFFIN. Phil Olian?

Mr. CRAFT. It doesn't mean a thing to me.

Mr. GRIFFIN. Wendy Knight?

Mr. CRAFT. No.

Mr. GRIFFIN. Wanda?

Mr. CRAFT. It doesn't mean anything to me.

Mr. GRIFFIN. Janice Anderson?

Mr. CRAFT. It doesn't mean anything to me.

Mr. GRIFFIN. Ann Petta?

Mr. CRAFT. No.

Mr. GRIFFIN. L. H. McIntyre?

Mr. CRAFT. Nothing.

Mr. GRIFFIN. Jim Brown?

Mr. CRAFT. No.

Mr. GRIFFIN. Carlos Camargo, Mexico City?

Mr. CRAFT. It doesn't mean anything. The only thing I believe he had a stripper, pictures of a stripper, from Mexico or South America, that he had some papers from her indicating she had been there sometime in the past.

Mr. GRIFFIN. You believe he employed a stripper from Mexico?

Mr. CRAFT. She was either from Mexico or South America.

Mr. GRIFFIN. How long ago had he employed this stripper?

Mr. CRAFT. I don't know how long ago. I saw some pictures with her name on it, Spanish name.

Mr. GRIFFIN. Billie?

Mr. CRAFT. That doesn't mean anything.

Mr. GRIFFIN. Toni Rebel?

Mr. CRAFT. I believe there was something said about a Toni Rebel who was a stripper or a girl who went by the name of Toni Rebel on the stage.

Mr. GRIFFIN. Bill Towner?

Mr. CRAFT. It doesn't mean anything.

Mr. GRIFFIN. How about Affiliated Polygraph? That is a lie detector. Did you ever hear anything from Jack on that?

Mr. CRAFT. The only thing I can think of there he had a sign there on the bar that if anything come up of questionable or anything was stolen in the club or anything all of the employees would be required to take a polygraph test. I don't know whether that was Affiliated or what.

Mr. GRIFFIN. Did he hang this out where the patrons could see it?

Mr. CRAFT. It was hung on the front of the cash register.

Mr. GRIFFIN. Did you ever hear of anybody being asked to take a polygraph test?

Mr. CRAFT. Not that I know of.

Mr. GRIFFIN. Shirley Nole?

Mr. CRAFT. It doesn't mean anything to me.

Mr. GRIFFIN. Margo Larve?

Mr. CRAFARD. It doesn't mean anything.

Mr. GRIFFIN. Kitty Keel?

Mr. CRAFARD. No.

Mr. GRIFFIN. Mary Martin?

Mr. CRAFARD. No.

Mr. GRIFFIN. Gail or Carol?

Mr. CRAFARD. No.

Mr. GRIFFIN. Ethel A. Piersol?

Mr. CRAFARD. No.

Mr. GRIFFIN. Gail Thompson?

Mr. CRAFARD. Nothing.

Mr. GRIFFIN. Margie?

Mr. CRAFARD. That would have evidently been Little Marge, the one waitress.

Mr. GRIFFIN. Peggy Steele?

Mr. CRAFARD. She had been a stripper, she was a stripper who had worked there at the Carousel Club.

Mr. GRIFFIN. John M. Crawford?

Mr. CRAFARD. It means nothing to me.

Mr. GRIFFIN. Huntsville State Penitentiary, Huntsville. Did you ever hear him talk about anybody?

Mr. CRAFARD. No.

Mr. GRIFFIN. Linda?

Mr. CRAFARD. No.

Mr. GRIFFIN. Avrum?

Mr. CRAFARD. No.

Mr. GRIFFIN. Sherry?

Mr. CRAFARD. She had been a stripper or was a stripper that had worked for Jack.

Mr. GRIFFIN. Henry Segel?

Mr. CRAFARD. He would—Segel as it is used there wouldn't mean anything to me. But the address he has got it, Chicago, Ill.

Mr. GRIFFIN. Do you know of a Segel that Jack——

Mr. CRAFARD. Spelled differently than that, Segal Liquor Store is where he bought champagne and other wines.

Mr. GRIFFIN. Roy Pike?

Mr. CRAFARD. No.

Mr. GRIFFIN. You never knew Mickey Ryan by the name of Roy Pike?

Mr. CRAFARD. No.

Mr. GRIFFIN. Lisa Starling?

Mr. CRAFARD. No.

Mr. GRIFFIN. Stewart's Photo?

Mr. CRAFARD. No.

Mr. GRIFFIN. Gail Hall, Monroe, La.

Mr. CRAFARD. No.

Mr. GRIFFIN. Luke of the Times Herald?

Mr. CRAFARD. No.

Mr. GRIFFIN. H. G. Tiger?

Mr. CRAFARD. No.

Mr. GRIFFIN. E. Fletcher?

Mr. CRAFARD. No.

Mr. GRIFFIN. Darrell Williams?

Mr. CRAFARD. No.

Mr. GRIFFIN. Vivian?

Mr. CRAFARD. No.

Mr. GRIFFIN. Statler Barbershop.

Mr. CRAFARD. Just it was a barbershop in the Statler Hilton.

Mr. GRIFFIN. Is that where Jack got his hair cut?

Mr. CRAFARD. I don't know.

Mr. GRIFFIN. Dovie?

Mr. CRAFARD. No.

Mr. GRIFFIN. What we have done is gone through all of the pages 1 through 9 of Exhibit 5203, and we have read off every name that is in there. Now, I am going to hand you what has been marked for identification as Exhibit 5204, and I have written on this, "Washington, D.C., deposition C. L. Crafard, Exhibit 5204, April 9, 1964," and I will sign this in pencil. Will you look at that? It purports to be a notebook, and on the cover is simply the word "Addresses." It consists of 20 pages and, as I say, this is a Xerox copy of the cover and those pages. Would you look at that and tell me whether you have ever seen that?

Mr. CRAFARD. I believe this to be a copy of a notebook that Jack had, kept, in his drawer in his desk.

(The document referred to was marked Crafard Exhibit No. 5204 for identification.)

Mr. GRIFFIN. Is that the notebook that you transferred items from your Penway Spiral into?

Mr. CRAFARD. No.

Mr. GRIFFIN. So that the notebook which is represented by Exhibit 5203 you believe Jack kept in his pocket?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And this notebook, which is represented by Exhibit 5204, you believe he kept in his desk?

Mr. CRAFT. Yes, or he might have kept in his pocket. He kept two or three different books in his pocket at one time, but I believe that one was in his desk.

Mr. GRIFFIN. And he also kept on his desk a much larger Penway notebook?

Mr. CRAFT. Yes.

Mr. GRIFFIN. But he didn't have the larger Penway notebook until——

Mr. CRAFT. Until after I went to work for him.

Mr. GRIFFIN. Yes.

Mr. CRAFT. There was another one. The Penway notebook was about 6 inches long, and about 4½ inches wide.

Mr. GRIFFIN. Now, let us look at these names in here.

Mr. CRAFT. I don't recognize any.

Mr. GRIFFIN. You don't recognize a single name? Did you know Cecil Hamlin?

Mr. CRAFT. No; not that I know of.

Mr. GRIFFIN. Do you know what the Century Distributors, Inc., are?

Mr. CRAFT. Century Distributors, Inc.?

Mr. GRIFFIN. Yes; what are they?

Mr. CRAFT. I don't know.

Mr. GRIFFIN. Did you ever know Jack to be interested in any prizefighters?

Mr. CRAFT. No; not that I knew of.

Mr. GRIFFIN. Did you ever hear of a Willie Love?

Mr. CRAFT. I don't remember that name.

Mr. GRIFFIN. Did you ever hear Jack talk of Lewis McWillie?

Mr. CRAFT. I don't remember.

Mr. GRIFFIN. L. J. McWillie?

Mr. CRAFARD. I don't remember.

Mr. GRIFFIN. Did you ever meet a fellow named Lawrence Meyers?

Mr. CRAFARD. I don't remember him.

Mr. GRIFFIN. Did you ever meet any of Jack's friends from Chicago?

Mr. CRAFARD. I don't remember.

Mr. GRIFFIN. Do you remember when you were at the State fair ever meeting any other people with Jack?

Mr. CRAFARD. No.

Mr. GRIFFIN. Do you remember when the first time was that you met Joyce McDonald?

Mr. CRAFARD. It was at the fairgrounds. She came out with Jack.

Mr. GRIFFIN. Did you meet her out there; did you meet any men out there with her?

Mr. CRAFARD. I don't—it seems like there was a couple of men with them, but I was never introduced to them.

Mr. GRIFFIN. I will state for the record that this notebook which we have consists of 20 pages and those 20 pages include the cover which is marked "Addresses," and that is page No. 1, and the remainder of the pages are numbered consecutively through 20. I might also indicate that on each page of this exhibit, with the exception of page 1 and page 20, two pages are photographed open, so that would make a total of almost 40 pages of actual written addresses. I hand you, Larry, what has been marked as "Exhibit 5205, Washington, D.C., C. L. Crafard, April 9, 1964," and I have put my signature on there. This is a photograph of a group of people, and there is an arrow pointing toward one of the people. First of all, can you tell us if you recognize the place in which that photograph was taken?

Mr. CRAFARD. It appears to be the Carousel Club.

(The document referred to was marked Crafard Exhibit No. 5205 for identification.)

Mr. GRIFFIN. Is there anything about it that looks like the Carousel?

Mr. CRAFT. You can just see the portion of the runway across here.

Mr. GRIFFIN. This is in the lower left-hand corner?

Mr. CRAFT. Lower left-hand corner of the picture, and the Carousel was the only club in Dallas to have runways, to seat the customers on runways. These gentlemen are sitting right on the runway.

Mr. GRIFFIN. Do you see anybody in that picture that you recognize?

Mr. CRAFT. No; I don't. I see one of the waitresses back in the background. I can't make out which one it is on the upper right-hand portion, standing holding a tray, but I can't make out who it is though.

Mr. GRIFFIN. There is an arrow directed toward one of the individuals in that picture. Do you ever recall seeing that individual in the club before?

Mr. CRAFT. No; I don't. I don't recall seeing him at all.

Mr. GRIFFIN. Is that picture of yourself?

Mr. CRAFT. No; definitely not.

Mr. GRIFFIN. Why do you say definitely not?

Mr. CRAFT. One thing, the clothing. He is wearing a checkered shirt.

Mr. GRIFFIN. Yes.

Mr. CRAFT. Any time I was in the club I wore a suit.

Mr. GRIFFIN. You always wore a suit?

Mr. CRAFT. Yes. I sometimes took my dress jacket off and put on a gold livery jacket on.

Mr. GRIFFIN. Were you ever dressed in a sweater of any sort there?

Mr. CRAFT. No.

Mr. GRIFFIN. Did you wear a tie while you were in the club?

Mr. CRAFT. Yes. This gentleman is wearing what would appear to be a sport shirt, and I would say he is an older gentleman than I am.

Mr. GRIFFIN. I want to hand you what I have marked for purposes of identification as "Washington, D.C., C. L. Craft. April 9, 1964, Exhibit

5206,” and I have signed my name to it. Do you recognize the place where that photograph was taken?

Mr. CRAFT. Mostly on the stage of the Carousel Club looking down the center runway.

(The document referred to was marked Craft Exhibit No. 5206 for identification.)

Mr. GRIFFIN. Do you see anybody in that picture that you know?

Mr. CRAFT. Excuse me; that is looking down the side runway on the left side.

Mr. GRIFFIN. Do you recognize anybody in that picture?

Mr. CRAFT. The young lady on the stage with her back to us, I believe, is the stripper known as Tammi True.

Mr. GRIFFIN. Blond hair?

Mr. CRAFT. Yes.

Mr. GRIFFIN. What is—how about the man who appears to be dressed in a tuxedo and standing on the stage; do you recognize him?

Mr. CRAFT. He looks like the comedian known, that I can only remember the name as, Johnny. He worked with a couple of puppets.

Mr. GRIFFIN. Do you recognize the man in the checked shirt?

Mr. CRAFT. Only from the fact that it was his picture in the—his photo in the previous picture that was designated with an arrow.

Mr. GRIFFIN. Is that an accurate, true and accurate, picture of what the inside of the Carousel looked like at the time that you worked there?

Mr. CRAFT. From that angle; yes. If you like, I can explain what they was doing when this picture was taken.

Mr. GRIFFIN. Would you tell us what that depicts?

Mr. CRAFT. It depicts the, what they call, raffling, you might say; they give tickets out at the door, and then they spin a roulette wheel, and the man with the numbers on the ticket that correspond with the ticket on the

roulette wheel wins the prizes. That is what they were doing at that time; giving away prizes.

Mr. GRIFFIN. Do they give away prizes every night?

Mr. CRAFARD. Yes; weekends mostly.

Mr. GRIFFIN. How about during the week?

Mr. CRAFARD. Not too often. Sometimes they did. It depends on the size of the crowd.

Mr. GRIFFIN. Where did Jack get his prizes?

Mr. CRAFARD. I don't know.

Mr. GRIFFIN. Did he give away twist boards?

Mr. CRAFARD. He gave away twist boards, Rusty Warren records, two bottles of champagne, Wilkinson sword-edged blades, and stuffed animals.

Mr. GRIFFIN. Did he give away all of those items every night they had a raffle or different nights?

Mr. CRAFARD. He would give whoever won their choice. They would have, give away, three prizes each night, and everyone would have their choices out of the prizes.

Mr. GRIFFIN. I am going to hand you what I have marked as "C. L. Craford, April 1964, 5207," and I have signed my name to it. That is a photograph. Can you tell me where that picture was taken?

Mr. CRAFARD. It was taken in Mr. Ruby's office.

Mr. GRIFFIN. Is the arrangement of chair and desk and what appears to be a couch in the foreground the arrangement that existed at the time that you worked there?

Mr. CRAFARD. Yes. This couch here is part of a sectional that was turned crosswise of the office, the other portion being against the wall on the left-hand side of the picture, which is where you cannot see it.

Mr. GRIFFIN. Are the people in this photograph looking in the direction of the TV camera, I mean of the TV set?

Mr. CRAFT. I would say the woman as I am looking at the left of the picture, Joy Dale, is looking more in the direction than the rest of them, the TV set in the corner over this way.

Mr. GRIFFIN. There is a TV set as you look from Jack Ruby's position in the photograph. It would be off at the far wall in the left-hand corner?

Mr. CRAFT. To the left of him; yes, it would be to his left.

Mr. GRIFFIN. Is there a door shown behind Jack Ruby there?

Mr. CRAFT. Yes; that is the door connecting his office to what was my room.

Mr. GRIFFIN. So, in order to get into your room, you had to walk through Jack's office?

Mr. CRAFT. No. I had a door off in the hall to my room, but this was a connecting door from his office to my room.

Mr. GRIFFIN. Where is the door that enters Jack's office?

Mr. CRAFT. It would be almost immediately behind the girl on the right-hand side, who is Little Lynn.

Mr. GRIFFIN. Is that door sort of opened up through the middle of the wall or at one end of the wall?

Mr. CRAFT. More or less to the end of the wall.

Mr. GRIFFIN. Let's mark on there, then, Little Lynn on the side that she is on, and Jack Ruby in the middle; I am marking this on the back. And Joy Dale. Now, the background of this picture, there appear to be tacked up on the door a number of papers. Was that customary?

Mr. CRAFT. He had a lot of different papers tacked, fastened to the door there, hanging on it. He had a couple of pegs in the door he put them on.

Mr. GRIFFIN. What kind of papers did he keep up there?

Mr. CRAFT. Mostly old bills and stuff like that that he just stuck up on kind of a wire peg that he put them on.

Mr. GRIFFIN. Let me show you what I have marked as Washington, D.C., C. L. Craford, April 9, 1964, Exhibit 5208, and I have signed it. Was that photograph taken at the Carousel Club?

Mr. CRAFARD. Yes. Do you want me to describe it?

Mr. GRIFFIN. Yes; would you?

Mr. CRAFARD. It shows Jack Ruby standing on the stage holding the mike talking to the audience, and they are clapping him; applauding him, I should say.

Mr. GRIFFIN. Do you remember when that photograph was taken?

Mr. CRAFARD. I don't remember the date, but this photograph would have been taken at the same time we had a photographer from a magazine taking pictures. It would have been taken by him.

Mr. GRIFFIN. How often did Jack M.C.; appear on stage?

Mr. CRAFARD. One or two nights. I believe one evening, one or two evenings we was without an M.C. and Jack done the M.C.-ing. It was a couple of evenings.

Mr. GRIFFIN. When there was ordinarily an M.C. there, do you ever recall Jack going up on stage?

Mr. CRAFARD. No. It wasn't his custom.

Mr. GRIFFIN. Looking at that picture, do you recognize anybody else in the photograph?

Mr. CRAFARD. No.

Mr. GRIFFIN. Do you want to look at what I have marked in the same fashion Exhibit 5209, and tell me if you recognize anybody in there?

First of all, let me rephrase the question. Do you recognize where that was taken?

Mr. CRAFARD. No; I don't. It wasn't taken in the Carousel Club.

Mr. GRIFFIN. And do you recognize anybody in the picture?

Mr. CRAFARD. No. I would say this picture was taken in a place where the theme was more or less western theme than anything else. I remember I

commented to the other gentleman when he showed me a picture, we were looking at the costume she had on, wasn't anything I remembered.

Mr. GRIFFIN. I want to hand you what I have marked in the same fashion Exhibit 5210. Do you recognize where that photograph was taken?

Mr. CRAFARD. This photograph was taken in the Carousel Club.

Mr. GRIFFIN. Do you recognize who any people in those photographs are?

Mr. CRAFARD. A stripper. I don't remember her name right now.

Mr. GRIFFIN. On the left-hand side, is that the same girl?

Mr. CRAFARD. The same girl in another one of the photographs. It looks like Tammi True.

Mr. GRIFFIN. There are dogs in that—dachshund dogs in that photograph?

Mr. CRAFARD. These dogs belong to Jack Ruby. We placed them on the stage as more or less the photographer was here, as more or less a photography stunt more than anything.

Mr. GRIFFIN. Were they regularly used in acts?

Mr. CRAFARD. No; only on this one occasion they were used more or less like, say, for a photographic stunt.

Mr. GRIFFIN. Had you ever been up on the stage while the lights were on, while an act was in progress?

Mr. CRAFARD. Not while an act was in progress. Usually, during the roulette wheel, I would put the prizes out and I'd take them off when it was over.

Mr. GRIFFIN. Would the stage be lighted in the same way for the drawing of prizes as it would be when an M.C. was on stage?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Would only the stage be lit or would the patrons, the customer area, also be?

Mr. CRAFARD. Just the stage.

Mr. GRIFFIN. Did you ever have occasion to look out into the audience from the stage when the roulette wheel, when the drawing, was in progress?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Could you see faces in the audience?

Mr. CRAFARD. It was pretty hard to make out any faces unless they were sitting right next, and then you wouldn't recognize them.

Mr. GRIFFIN. Unless they were sitting right next to the runway of the stage?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And there were——

Mr. CRAFARD. Excuse me a minute, please.

Mr. GRIFFIN. Yes.

Mr. CRAFARD. You can just see a gentleman standing on the right-hand corner of some of these photographs. This gentleman was the M.C. at that time.

Mr. GRIFFIN. Do you recall who he was?

Mr. CRAFARD. I believe it was Johnny. Yes; there is the box, one of his boxes. It was Johnny, but I am not sure what his last name was. There is a woman in one of these pictures; I believe I can just see myself, but it is not clear enough to make out. I believe it is me standing there.

Mr. GRIFFIN. This picture that you are looking at, this large photograph, is actually a series of small photographs?

Mr. CRAFARD. It is actually a series of small photographs. It would be the first and second photograph in the middle series of photographs where you can just vaguely see me.

Mr. GRIFFIN. Now, I want to show you what I have marked in the same fashion Exhibit 5211. Do you recognize any of the people in that photograph, that set of photographs?

Mr. CRAFARD. There is Johnny on the stage, the first one in the first series. I can see Johnny on the stage again.

The next one shows Johnny.

The next one shows Johnny and, I believe it is Tammi True.

Mr. GRIFFIN. Who is the heavy man in the short-sleeved shirt that is shown?

Mr. CRAFT. I don't remember his name. He was to the club on several different occasions. He always sat in the same place because he was such a heavy man nobody could get around him, such a big one.

In the middle series of photographs shows Tammi True in each of them.

And on the outside series of photographs is Little Lynn in Jack's office holding some stuffed animals.

The bottom picture on the right-hand series shows Johnny with one of his puppets.

Mr. GRIFFIN. Let me ask you this about the fat man in the short sleeves. Was he a friend of Jack's?

Mr. CRAFT. They knew each other. They seemed to be friendly, always talked, Jack would always speak to him when he came in.

Mr. GRIFFIN. Did you associate any name with this man?

Mr. CRAFT. I can't remember his name, sir.

Mr. GRIFFIN. Was his name in any of the names that we went through in the notebooks today?

Mr. CRAFT. I don't remember. I wouldn't remember his name if I saw it.

Mr. GRIFFIN. Was there anybody else who would know him? Would Andy Armstrong know him?

Mr. CRAFT. Andy Armstrong would know him; yes. I believe that Andy is the one that first told me his name and told me to always seat him in the same place.

There was only one chair in the club that he could sit on and we had to go get it all the time when he come in and put it in the place for him.

Mr. GRIFFIN. I am going to show you what I have marked in the same fashion Exhibit 5212, which is also a series of photographs.

Do you recognize any of the people in those pictures?

Mr. CRAFARD. The stripper is Little Lynn.

Mr. GRIFFIN. In all of the pictures?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. How about the patrons? Do you recognize any of the patrons?

Mr. CRAFARD. Only myself.

Mr. GRIFFIN. Where are you?

Mr. CRAFARD. This doesn't look like me.

Mr. GRIFFIN. Is that you?

Mr. CRAFARD. No; it is not me at all.

Mr. GRIFFIN. Is that you right there? You have indicated to me that your photograph appears in a number of these pictures.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And let me indicate that you are in the photograph in the upper right-hand corner, and you are the man in a black suit who is seated second from the left along the runway.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And in the picture immediately below that you occupy the same position?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. The picture immediately below that which is the third from the top, on the right-hand side you occupy the same position?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And the stripper is Little Lynn?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Then moving into the center set of pictures you appear in the same position third from the bottom?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And the same position at the bottom?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Now, is this suit and dress that you show here, is that the way you were normally dressed at the Carousel Club?

Mr. CRAFARD. Yes. These pictures were taken as a photographic stunt, also.

Mr. GRIFFIN. During the day, Larry, if you had occasion to go out of the Carousel Club, were you also dressed in a suit?

Mr. CRAFARD. During the day, up until about 5 o'clock, I was normally dressed in a pair of white jeans, a long-sleeved shirt or a pair of corduroys as I was usually working around the club and I didn't care to wear a suit.

Mr. GRIFFIN. I am going to hand you what has been marked in the same fashion Exhibit 5213.

Now, this picture was taken inside the Carousel Club.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Will you look at these pictures and tell me looking at the picture in the upper left-hand corner, who that is?

Mr. CRAFARD. Johnny, the M.C. on stage with his three puppets.

Mr. GRIFFIN. And in the photograph right below that there are two girls. Who is the blond?

Mr. CRAFARD. Kathy Kay and I believe Tammi True in the dressing room. The next photograph is the same.

The next photograph is Tammi True on stage. Going to the middle of the first photograph is Tammi True. The middle series is all Tammi True on stage.

Mr. GRIFFIN. Do you recognize any of the patrons in here?

Mr. CRAFARD. No, I don't; except on the top picture on the right-hand corner shows the heavy set man we have mentioned before in the same position as before.

On the right-hand column it shows Kathy Kay on the top photo.

The next three photos are all pictures of Johnny with his puppets.

Mr. GRIFFIN. Would that Johnny, would his name be Johnny Turner?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Was he the only M.C., the only man who was employed at the time?

Mr. CRAFARD. He was the only M.C. employed at that time; yes.

Mr. GRIFFIN. And the only other employees he had at that particular time were strippers or entertainers?

Mr. CRAFARD. Yes; strippers and the waitresses.

Mr. GRIFFIN. So let me understand this. That while you were there, Billy DeMar was employed there?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Wally Weston?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Johnny Turner?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And anyone else?

Mr. CRAFARD. I believe that was all. I can't remember who the M.C. was when I first went to work for Jack.

Mr. GRIFFIN. Was it a different one other than the three we have mentioned?

Mr. CRAFARD. I am not sure. That is what I was trying to remember.

Mr. GRIFFIN. Did these M.C.'s have a regular run of a prescribed number of weeks that they would play?

Mr. CRAFARD. No; maybe they might come in for 2 or 3 weeks, or they might be there for 1 week and then they might stay for 3 or 4 months. It would depend on the contract that they signed with Mr. Ruby.

Mr. GRIFFIN. Did Buddy Heard ever come and appear?

Mr. CRAFARD. I don't believe he was ever there while I was there.

Mr. GRIFFIN. I am going to show you what has been marked as Exhibit 5214 and I want to ask you if you recognize any of the patrons in those photographs.

Mr. CRAFARD. The heavy set gentleman that has been mentioned before is in the second photograph in the left-hand series. He is in the first photograph in the middle series. That is all. But other than that, I don't recognize any of the other patrons.

Mr. GRIFFIN. I am going to hand you now what has been marked as 5214-A and all the markings are in the same fashion as the previous ones. Do you recognize any of the patrons in there?

Mr. CRAFARD. The patron in the second and third photographs on the right-hand side looks familiar but I can't place him.

Mr. GRIFFIN. What I am handing you is Exhibit 5215 which is also marked in the same fashion as the others. Do you recognize any of the patrons there?

Mr. CRAFARD. No.

Mr. GRIFFIN. I show you Exhibit 5216. You will notice that this appears to be the interior of a dressing room and there is some sort of a plaque on the wall in the top two photographs in the center and the photograph in the lower right-hand corner. Do you recall what that plaque is?

Mr. CRAFARD. No, I don't.

Mr. GRIFFIN. Can you state whether that picture was taken at the Carousel?

Mr. CRAFARD. No.

Mr. GRIFFIN. Now, do you recognize those as Carousel Club dressing rooms?

Mr. CRAFT. Oh, yes. The dressing rooms have been redecorated since I worked there, I know that.

Mr. GRIFFIN. Did the dressing rooms look as they appear in that photograph at any time while you were employed at the Carousel?

Mr. CRAFT. I don't believe that is the dressing room of the Carousel. I don't remember this stuff along the bottom picture, the left-hand side of the bottom picture in the left-hand column. The plywood door that is shown in several pictures, I don't recognize that as being of the dressing room at the Carousel.

Mr. GRIFFIN. I am going to hand you what has been marked in the same fashion as Exhibit 5217. Do you recognize the patron that is shown in that photograph?

Mr. CRAFT. No, I don't, but I believe from this picture I can pretty well state that that other last picture was photographs of the girls' dressing room, from the location of the table. Instead of a door that was a window that had been boarded up.

Mr. GRIFFIN. I show you Exhibit 5218 which has been marked in the same fashion. Do you recognize any of the patrons in that photograph?

Mr. CRAFT. No.

Mr. GRIFFIN. How about Exhibit 5219 which has been marked in the same fashion? Do you recognize any of those patrons?

Mr. CRAFT. Only that I believe this one has been showed in previous pictures.

Mr. GRIFFIN. Is this a duplicate of something we already have?

Mr. CRAFT. I don't believe it is a duplicate, but I believe this gentleman in the white shirt has been shown in previous pictures.

Mr. GRIFFIN. How about 5220? Do you recognize any of the patrons there?

Mr. CRAFT. Only this one gentleman here. I can make him out especially in the bottom picture in the middle column.

Mr. GRIFFIN. With the white shirt on?

Mr. CRAFT. The gentleman with the short-sleeved white shirt on I can recognize him from the previous pictures.

Mr. GRIFFIN. But you don't have a recollection of who he is?

Mr. CRAFT. I don't have a recollection of who he is. I don't think I ever knew the gentleman.

Mr. GRIFFIN. Now, Exhibit 5221, do you recognize any of the patrons in there?

Mr. CRAFT. Only the gentleman on the right-hand would be the back down in the picture towards the right-hand side would be the far side of the stage the heavy set gentlemen that has been mentioned before.

Mr. GRIFFIN. Did you know Officer Tippit?

Mr. CRAFT. No.

Mr. GRIFFIN. Did you ever know a man named Bernard Weissman?

Mr. CRAFT. I don't believe so.

Mr. GRIFFIN. Did you ever hear Ruby or anybody indicate that Officer Tippit was ever in the Carousel Club?

Mr. CRAFT. I don't remember of hearing any indication.

Mr. GRIFFIN. How about that Bernard Weissman? Was he in the Carousel Club?

Mr. CRAFT. I don't remember any indication of that, either.

Mr. GRIFFIN. Have you ever owned a gun?

Mr. CRAFT. I had a pistol, but it was in Oregon when I was in Texas.

Mr. GRIFFIN. What kind of a pistol was that?

Mr. CRAFT. A .22.

Mr. GRIFFIN. Have you ever owned any other sort of a gun?

Mr. CRAFT. No.

Mr. GRIFFIN. When you were in military service, did you have any training with a rifle?

Mr. CRAFT. Yes; I had training with the M-1 rifle and with the M-1 carbine.

Mr. GRIFFIN. When you were in Dallas, Tex., did you ever have any occasion to go out to any rifle ranges?

Mr. CRAFT. No.

Mr. GRIFFIN. Did you know whether Jack Ruby ever went to any rifle ranges?

Mr. CRAFT. No.

Mr. GRIFFIN. Your answer is you don't know?

Mr. CRAFT. I did not know.

Mr. GRIFFIN. While you were in Dallas, Tex., did you attempt to purchase an automobile?

Mr. CRAFT. No.

Mr. GRIFFIN. Did you visit any used car lots?

Mr. CRAFT. No.

Mr. GRIFFIN. Did you ever drive Jack Ruby's car?

Mr. CRAFT. No.

Mr. GRIFFIN. Did you drive an automobile at any time while you were in Dallas?

Mr. CRAFT. No.

Mr. GRIFFIN. Did you ever accompany anybody in an automobile to have it repaired?

Mr. CRAFT. No.

Mr. GRIFFIN. Now, I believe when you talked with the FBI, you indicated that you visited a store with Jack where he was going to get some electrical or electronic equipment.

Mr. CRAFT. Yes.

Mr. GRIFFIN. How soon was that after you began to work for Jack?

Mr. CRAFT. I think it was about 3 or 4 weeks after I went to work for Jack.

Mr. GRIFFIN. When you talk about working for Jack, do you mean that to include the time that you were working at the Dallas, Tex., State Fair?

Mr. CRAFT. No.

Mr. GRIFFIN. As working for Jack?

Mr. CRAFT. Only the time, from the time the State fair closed.

Mr. GRIFFIN. Do you recall what kind of electrical equipment Jack was purchasing, looking for when you went with him?

Mr. CRAFT. Some speakers and—that is the boxes that are used to work a speaker out of, the amplifier box.

Mr. GRIFFIN. Where was he going to use these items?

Mr. CRAFT. In the Carousel Club.

Mr. GRIFFIN. Had he had those items there before?

Mr. CRAFT. He had the items in the Carousel Club, but he was going to replace them with some better models.

Mr. GRIFFIN. Were his existing models defective in any way?

Mr. CRAFT. There was always something going wrong with one speaker or the other.

Mr. GRIFFIN. Did he actually replace these?

Mr. CRAFT. Not while I was there; no.

Mr. GRIFFIN. What happened at the electronics store that you visited?

Mr. CRAFT. He talked with the gentleman for a few minutes and I believe he give them a free pass to the Carousel Club.

Mr. GRIFFIN. What did he do in connection with buying equipment?

Mr. CRAFT. He had checked out some equipment they had there, their prices, the types of equipment.

Mr. GRIFFIN. What price range of equipment was he talking about?

Mr. CRAFT. He was wanting to get a better model amplifier as cheaply as he could.

Mr. GRIFFIN. Would this have been an expenditure of over \$100?

Mr. CRAFT. I really don't know, but I don't believe so. Could I go back a little bit to the day. I believe that was about a week after I went to work for Jack.

Mr. GRIFFIN. Now you testified yesterday I think that the girl whom you identified in some pictures taken on the street outside the Carousel with Jack Ruby, you identified this girl as Gloria McDonald.

Mr. CRAFT. Yes.

Mr. GRIFFIN. Could her name have been Gloria Fillmore?

Mr. CRAFT. Her name could have been, yes.

Mr. GRIFFIN. Are you sure about the name McDonald?

Mr. CRAFT. No. In fact if I may be allowed to say so, I am not positive that this girl is the girl I knew as Gloria. Her name could have been something entirely different. I believe it was Gloria.

Mr. GRIFFIN. You believe it was Gloria in this picture?

Mr. CRAFT. Yes, sir.

Mr. GRIFFIN. But you are not completely positive.

Mr. CRAFT. No. I never knew her last name.

Mr. GRIFFIN. Let me try to refresh your recollection a little bit. Going back to Wednesday, November 20, 2 days before the President was killed, and Thursday, November 21, do you remember on either of those 2 days receiving any telephone calls from Bruce Carlin?

Mr. CRAFT. I believe Bruce called the evening of Wednesday, the 20th wanting to speak to Little Lynn. I am not positive but I believe so.

Mr. GRIFFIN. Now how about on the 21st. Do you remember anything on the 21st?

Mr. CRAFT. I don't recall anything, no. He might have but I don't recall.

Mr. GRIFFIN. Do you ever remember on the 21st a telephone call being placed to Jack Ruby in the early portion of the evening, and your answering the phone and talking to the person on the phone?

Mr. CRAFT. I don't remember it, no.

Mr. GRIFFIN. Did Bruce Carlin ever have occasion to call Jack Ruby in your recollection?

Mr. CRAFT. I don't remember him ever doing so.

Mr. GRIFFIN. Did you ever meet any of Bruce Carlin's friends?

Mr. CRAFT. I don't believe so.

Mr. GRIFFIN. Did you ever meet a boy named Jerry Bunker?

Mr. CRAFT. I don't remember it, no.

Mr. GRIFFIN. Did Bruce used to call the Carousel regularly?

Mr. CRAFT. No. There was only one or two occasions when I am sure that Bruce called the club.

Mr. GRIFFIN. When are the other occasions?

Mr. CRAFT. I believe it was the evening of Wednesday the 20th Little Lynn hadn't went straight home from the club and he called asking, wanting to know where she was at.

Mr. GRIFFIN. Did you have any idea of the financial condition of Little Lynn or Bruce Carlin the week before the President died?

Mr. CRAFT. No.

Mr. GRIFFIN. Did Little Lynn ever complain in your presence about not having enough money?

Mr. CRAFT. I believe that when she first went to work for Jack, Jack either gave her an advance or loaned her some money, one or the other.

Mr. GRIFFIN. I recall yesterday in your talking with Mr. Hubert there was some problem you felt that you had lost 8 hours in describing what happened on your trip from Dallas to your destination in Michigan.

Mr. CRAFT. Yes.

Mr. GRIFFIN. In the time that has passed since then, have you been able to find those 8 hours that were lost?

Mr. CRAFARD. Pretty well, yes.

Mr. GRIFFIN. What do you think happened?

Mr. CRAFARD. I got mixed up on my routes in Oklahoma City and spent quite a bit of time getting back. There is where I lost the time.

Mr. GRIFFIN. About what time did you arrive in Oklahoma City?

Mr. CRAFARD. I believe it was about 7 o'clock in the evening of the 23d.

Mr. GRIFFIN. And how did you happen to get mixed up on your routes?

Mr. CRAFARD. I got a ride with this gentleman and I believe he said something about getting me out on my route or something like that, and I got mixed up on my route.

Mr. GRIFFIN. Did you ride with him in the wrong direction for a while?

Mr. CRAFARD. He took me out, he took me quite a ways more than where I had to go.

Mr. GRIFFIN. On that basis what time would you say that you arrived in Chicago?

Mr. CRAFARD. It probably would put me in Chicago sometime Monday, about 10:30 or 11 o'clock in the morning.

Mr. GRIFFIN. When you arrived in Chicago, then you knew that Ruby had killed Oswald?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And what time did you arrive in Lansing, Mich.?

Mr. CRAFARD. I believe it was about 6:30 or 7 o'clock Monday evening.

Mr. GRIFFIN. When you arrived in Chicago did you make any effort to call any of the Rubensteins?

Mr. CRAFARD. No.

Mr. GRIFFIN. Did that occur to you?

Mr. CRAFT. No; that arrival in Lansing would have been about 3:30 or 4 o'clock. It would have been a couple hours earlier.

Mr. GRIFFIN. You mentioned that the ride that you had got out of Dallas on the 23d with a man whom you had met at the Dallas State Fair.

Mr. CRAFT. Yes.

Mr. GRIFFIN. What did he do at the Dallas State Fair?

Mr. CRAFT. There was a photography place on the fairgrounds. He worked there.

Mr. GRIFFIN. Was he a full-time employee at the fairgrounds or was this a temporary thing?

Mr. CRAFT. I believe this was just temporary for the fair.

Mr. GRIFFIN. What was the name of the photography place?

Mr. CRAFT. I don't remember that, sir.

Mr. GRIFFIN. Were there a number of different photographers at the fair?

Mr. CRAFT. I believe there was two or three different ones at the fairgrounds. This one was right close to the place I worked was located.

Mr. GRIFFIN. How far would it have been from a tent? Were you in a tent?

Mr. CRAFT. Yes.

Mr. GRIFFIN. How far would it have been from your tent?

Mr. CRAFT. About 150 or 200 feet.

Mr. GRIFFIN. In which direction?

Mr. CRAFT. It would have been down on the main midway. It would have been right on a corner of the main midway and the portion of the midway I was on. We were located on a branch off the main midway.

Mr. GRIFFIN. How old would you say this man was?

Mr. CRAFT. I would say he was probably in at least his middle forties, more likely in his late forties.

Mr. GRIFFIN. Was he bald or did he have hair?

Mr. CRAFT. I don't really remember.

Mr. GRIFFIN. Was he a graying man or what color was his hair?

Mr. CRAFT. I don't remember that either.

Mr. GRIFFIN. Do you remember if he wore glasses?

Mr. CRAFT. No.

Mr. GRIFFIN. Do you remember what kind of a car he owned?

Mr. CRAFT. I believe he had a Chevy. I am not sure.

Mr. GRIFFIN. How would you describe his physical build, anything remarkable about it?

Mr. CRAFT. No; not that I could think of.

Mr. GRIFFIN. Was he a thin man?

Mr. CRAFT. He was about medium build for a man his age and height.

Mr. GRIFFIN. And you say he had a young boy with him?

Mr. CRAFT. Yes; he had a son about I believe 9 or 10 years old.

Mr. GRIFFIN. Did you catch the son's name?

Mr. CRAFT. No.

Mr. GRIFFIN. How about his name? Did you learn his first name?

Mr. CRAFT. I more than likely knew his name but I don't remember it.

Mr. GRIFFIN. What did he do at the photography studio?

Mr. CRAFT. I don't know for sure just what he did do.

Mr. GRIFFIN. Was this a Dallas studio that had a place there?

Mr. CRAFT. I don't believe so.

Mr. GRIFFIN. Is there some central office of the Dallas State Fair that would keep records of the people who had charge of tents or booths there?

Mr. CRAFT. That would be the fair commission would know anyone that had any kind of a stand or concession on the midway.

Mr. GRIFFIN. And where would this commission have its office when the season was not in session?

Mr. CRAFARD. It would be on the fairgrounds. I am not sure where though.

Mr. GRIFFIN. There is some sort of permanent office there on the fairgrounds?

Mr. CRAFARD. Yes; the Dallas Fairgrounds is one of the largest fairgrounds in Texas. It is open the year around.

Mr. GRIFFIN. It is your belief that this man knew you worked for Jack Ruby as he was taking you out of Dallas?

Mr. CRAFARD. Not until after we had got to talking and I told him I had been working at the Carousel Club.

Mr. GRIFFIN. How long would you estimate that you were with that man?

Mr. CRAFARD. Oh, maybe a half hour or maybe 45 minutes at the most.

Mr. GRIFFIN. And it is your belief that he had a cottage at some sort of a lake?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. What place?

Mr. CRAFARD. I don't remember the name of the lake he lived on, that he had his cottage on.

Mr. GRIFFIN. But you remember somewhat where he left you off and in what direction he had to turn?

Mr. CRAFARD. I believe he went to the left of 77 when he let me off.

Mr. GRIFFIN. You left Dallas on route 77?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And how far would you say you went on route 77?

Mr. CRAFARD. We were about 20 miles outside the city limits of Dallas at Carrollton, Tex.

Mr. GRIFFIN. He let you off in Carrollton?

Mr. CRAFT. Just the other side of Carrollton a little ways.

Mr. GRIFFIN. North of Carrollton?

Mr. CRAFT. Just north. Not very far. It couldn't have been more than maybe a mile.

Mr. GRIFFIN. Was this some sort of main intersection he let you off at?

Mr. CRAFT. I believe so, yes; the main entry for the Carrollton traffic on the north side of town.

Mr. GRIFFIN. You were at route 77 and the corner of some other road?

Mr. CRAFT. I believe it was just one of the so-called farm roads of Texas. They have got a lot of the roads numbered farm road such and such.

Mr. GRIFFIN. Was there a sign up there that pointed to a lake that this man had to turn to?

Mr. CRAFT. I don't recall, sir.

Mr. GRIFFIN. Did you get any idea how large a lake it was? Was it a resort area?

Mr. CRAFT. I don't recall that either, sir. I don't remember.

Mr. GRIFFIN. But you do recall that the man had a cottage or something of that sort on the lake?

Mr. CRAFT. Yes; he was going up to work on his cottage when he picked me up.

Mr. GRIFFIN. We talked at lunchtime about a man who called the Carousel during the week before the President was assassinated.

Mr. CRAFT. Yes.

Mr. GRIFFIN. And would you tell us about these calls?

Mr. CRAFT. Is that the one where I said he wouldn't give his name or anything?

Mr. GRIFFIN. That is the one I had in mind.

Mr. CRAFARD. This gentleman would call maybe two or three times a day asking for Jack. He would ask where he could reach Jack. It sounded like it was pretty important that he reach Jack, and that he would never leave a number where Jack could call him back at.

Mr. GRIFFIN. Did you ever give this man a number?

Mr. CRAFARD. Not that I can recall, no.

Mr. GRIFFIN. Do you recall what time of the day or night this man would call?

Mr. CRAFARD. It would usually be during the day. I can't recall any specific time.

Mr. GRIFFIN. Did this man ever wake you up?

Mr. CRAFARD. No; it was always well after 9 o'clock, I know that.

Mr. GRIFFIN. Did it ever appear to be around lunch hour?

Mr. CRAFARD. It could have been anywhere from 9 o'clock to 6 o'clock.

Mr. GRIFFIN. Did he seem to call at regular times when he called?

Mr. CRAFARD. No.

Mr. GRIFFIN. Can you describe his voice in terms of age?

Mr. CRAFARD. No; I couldn't.

Mr. GRIFFIN. Did this man call on Friday, November 22?

Mr. CRAFARD. I don't really remember whether he did or not. I don't believe so.

Mr. GRIFFIN. How about on the morning of the 23d, Saturday the 23d?

Mr. CRAFARD. No.

Mr. GRIFFIN. Did he call the day before the President was assassinated?

Mr. CRAFARD. I believe he called sometime in the afternoon of the 21st.

Mr. GRIFFIN. Did you ever talk to Andy Armstrong about this man?

Mr. CRAFARD. I believe I said something to Jack about him and I believe Andy was there when I did.

Mr. GRIFFIN. And what did you say to Jack?

Mr. CRAFT. That this guy called several times wanting to get a hold of him, would never leave his name or address or number or anything.

Mr. GRIFFIN. What did Jack say to you?

Mr. CRAFT. Jack had told me previously not to give his number to anyone unless I knew who it was.

Mr. GRIFFIN. That is his home number?

Mr. CRAFT. Yes, or some other number he left where he could be reached at. He said not to worry about anybody that didn't leave a phone number, they didn't want to get in touch with him very bad.

Mr. GRIFFIN. Did he indicate that he knew who this man was who was calling?

Mr. CRAFT. I took it for granted he knew who the man was. He never said definitely that he did know who the man was. I think when I told him about it he just said forget it.

Mr. GRIFFIN. You never met this man, did you?

Mr. CRAFT. No; if I had met the man I would have known his voice.

Mr. GRIFFIN. How many home telephone numbers did Jack have?

Mr. CRAFT. He only had one home number that I knew of.

Mr. GRIFFIN. Did Jack have an assistant manager by the name of Alexander?

Mr. CRAFT. That would have been Andrew.

Mr. GRIFFIN. I think we can finish a good part of this today if we could take a break. I want to hand you a copy of your interview with the FBI and ask you to take time to read that over. It is rather lengthy. It covers eight pages. Make some notes. Let me put this on the record. Let me ask you to take your time and read this, and we will take a recess for as long a period as you feel necessary. Make notes as you go along of any changes that you think ought to be made, either because you didn't tell that to the FBI or because you now upon reflection think that it is inaccurate, or because after reading this and reflecting on your other testimony you would adopt this

rather than what you have said before. Let's figure this will take at least 15 minutes and maybe longer.

TESTIMONY OF CURTIS LaVERNE CRAFARD RESUMED

The testimony of Curtis LaVerne Crafard was taken at 9:50 a.m., on April 10, 1964, at 200 Maryland Avenue NE., Washington, D.C., by Messrs. Burt W. Griffin and Leon D. Hubert, Jr., assistant counsel of the President's Commission. Dr. Alfred Goldberg, historian, and Max Phillips, Secret Service, were present.

Mr. GRIFFIN. Let me state first for the record that this is a continuation of the deposition that was begun on Wednesday morning, April 8, with Mr. Crafard, and that the oath and all the formalities that we went through on that date are still in effect. Yesterday afternoon as Mr. Crafard and I were returning from lunch, he indicated to me that he had received some telephone calls at the Carousel Club in the week before President Kennedy was killed, from a man who would call two or three, perhaps more times a day but would not leave his name but simply ask for Jack Ruby, and in connection with that conversation Mr. Crafard asked me if we had any recordings of Lee Oswald's voice. Mr. Crafard indicated that he would like to listen to the recordings with the possibility that he might recognize the voice of somebody he had talked to or overheard when he was in Ruby's employ. We have located a tape recording of an interview which was conducted with Mr. Oswald in New Orleans shortly after he was arrested for disturbing the peace in connection with the Fair Play for Cuba activities. The tape recording was made by radio station WDSU, New Orleans on August 21, 1963. The recording involves Lee Harvey Oswald, Carlos Bringuier, Ed Butler, and Bill Stuckey. The recording is provided to us by the United States Secret Service. It bears Secret Service No. 236.

I would also like to explain for Mr. Crafard's benefit as well as the rest of us that it will be very clear as you listen to this tape recording which person on the recording is Lee Oswald. In some cases his name may be used. In other cases the question and answer repartee is such that it will be difficult not to realize who Oswald is if you know anything about Oswald's background. There also may be a certain amount of distortion in the

recording and we are not able to state for the record at this time exactly how much distortion there is and how this would compare favorably with what might heard over a telephone. I would like you to keep all of this in mind in listening to this and try to give us as accurate a recollection as you can of whether you have ever heard this voice which will appear to be Oswald's.

Mr. Hubert, do you have anything you want to add?

Mr. HUBERT. Well, it is just another way of putting what Mr. Griffin has said, we don't want you to identify a voice simply because it is suggested to you by the content of the material. If that would be the basis of your recollection—of your recognition it would be of no value to us, you see. On the other hand, if you do recognize the voice we expect you to tell us.

Mr. CRAFT. Yes.

Mr. HUBERT. All right.

Mr. GRIFFIN. Dr. Goldberg, do you have anything you would like to ask?

Dr. GOLDBERG. No; I have no questions.

Mr. GRIFFIN. Mr. Phillips, if you would go ahead and commence the recording we will all listen to it.

Mr. HUBERT. Mr. Phillips, you are going to be able to tell us after we finish playing that at what point you began and at what point you ended?

Mr. PHILLIPS. Right.

Mr. GRIFFIN. Might I ask the reporter if it is possible for him to take down the first couple of sentences so we will have for the record——

Mr. HUBERT. I don't think it will be necessary if we can get into the record its being at such a point in feet.

Mr. GRIFFIN. Can you indicate to use what the footage is?

Mr. PHILLIPS. I have the index at zero right now with the paper index in the reel. When it is through I will be able to know how much, what the index reads and I will have a paper index in the other roll and that space in between is what we have played. I will identify that section.

Mr. GRIFFIN. May I suggest, though, Mr. Hubert that if there is any possibility that portions of this tape might be deleted or retranscribed onto another tape that it would probably be best if we did have an indication of the opening words that are on here so that it can be located?

Mr. HUBERT. That is an extra precaution.

(The tape recording commenced with the following):

“What price in dollars of Cuba selling sugar to Russia, Russia sending to Cuba 80 percent in machinery in Russia and 20 percent in dollars,” et cetera, et cetera, et cetera——

(This is a Cuban or Spanish speaking voice.)

“Could you straighten out that point, are you or have you been a Communist?”

“Yes; I am a Marxist.

“What is the difference.

“Well, the difference is primarily the difference between a country like Ghana, Guiana, Yugoslavia, China, or Russia.”

(End of transcription.)

Mr. GRIFFIN. Can you tell us now, Mr. Crafard, whether after listening to this recording you recognize any of the voices on the recording?

Mr. CRAFARD. No.

Mr. HUBERT. Mr. Phillips, I want the record to show where you began and where you left off and we have the double check with the opening sentences of the excerpt and the closing sentences so that we may have a mechanical check as well, would you state for the record precisely how this can be identified at a later point in time.

Mr. PHILLIPS. This section of the tape can be identified by paper index tabs which have been inserted. Secondly, the index numerical index reads 163 on this stereophonic concord tape recorder. The numerical index reads 163 which means from the time the tape was played which was on zero index, the tape distance went 163 inches.

Mr. HUBERT. Those paper tabs are temporary, aren't they?

Mr. PHILLIPS. That is correct.

Mr. HUBERT. Is there a possibility of marking the tape in some way without injuring it?

Mr. PHILLIPS. There would be.

Mr. HUBERT. So that there would be a permanent mark as to where the paper tabs were?

Mr. PHILLIPS. Right.

Mr. HUBERT. Could you do that by making some sort of significant mark with your initials?

Mr. PHILLIPS. Right.

Mr. HUBERT. All right. We will ask you to do that also.

Mr. PHILLIPS. All right.

Mr. HUBERT. Now, Larry, did you recognize anyone of the voices in that excerpt that we played?

Mr. CRAFARD. No.

Mr. HUBERT. You have never heard them at all?

Mr. CRAFARD. No.

Mr. HUBERT. And you are certain that it is not the voice of the man who called Ruby that you referred to yesterday?

Mr. CRAFARD. How is that now?

Mr. HUBERT. Yesterday I understand that you referred to the fact that a man had called Ruby by telephone on a sufficient number of occasions so that you believe that you could recognize his voice if you heard it again.

Mr. CRAFARD. Yes.

Mr. HUBERT. Now, I will ask you if any of the voices that you heard in this excerpt just run off on the machine is the voice of the man you were talking about?

Mr. CRAFARD. No.

Mr. GRIFFIN. Larry, having had a chance to listen to a number of voices on the tape recording is there anything you can tell us about the voice of the man who called you without leaving his name that Mr. Hubert has been referring to. Did he have an accent?

Mr. CRAFARD. No; he didn't have an accent.

Mr. GRIFFIN. Did he speak with any characteristic Texan or southern speech patterns?

Mr. CRAFARD. No; his voice sounded more like a person from the East would talk. His words were very pronounced and very definite.

Mr. GRIFFIN. There is one photograph that I neglected to show you yesterday which I want to show you now and ask you to identify.

I am going to mark this Washington, D.C., April 10, 1964, C. L. Crafard, Exhibit 5222.

(Photograph marked Crafard Exhibit No. 5222 for identification.)

Mr. GRIFFIN. Would you look at that photograph and tell me if that is a photograph of anyone you have ever seen before?

Mr. CRAFARD. I believe I have saw the gentleman before at the club but I don't believe I was ever introduced to him.

Mr. GRIFFIN. Do you recall in what connection you saw him in the Carousel Club?

Mr. CRAFARD. I believe he was a guest of Mr. Ruby's.

Mr. GRIFFIN. Do you recall when you may have seen him there?

Mr. CRAFARD. No; I don't.

Mr. GRIFFIN. I am going to hand you what I have marked as Exhibit 5223 which is a photograph of a piece of paper and it bears the name T. E. Smith, and there is some other writing under it. Do you recognize that name on that sheet of paper?

Mr. CRAFARD. No; I don't.

Mr. GRIFFIN. This exhibit is marked Washington, D.C., April 10, 1964, C. L. Crafard Exhibit 5223 and it bears on the back the numeral one.

(Photographs marked Crafard Exhibits Nos. 5223 and 5224-A for identification.)

Mr. GRIFFIN. I am going to hand you what I have marked as Washington, D.C., April 10, 1964, C. L. Crafard Exhibit No. 5224-A and I will ask you if you will tell us what those are a picture of.

Mr. CRAFARD. They are pictures of a message, I would say that—there is space for who the message is to, the date, who it is by, and when they were there and the phone numbers.

Mr. GRIFFIN. Are there three message slips photographed in that picture?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Now, do you ever recall seeing those around, such message slips around, the Carousel Club?

Mr. CRAFARD. No; I don't.

Mr. GRIFFIN. Do you ever recall seeing those in any connection with Mr. Ruby?

Mr. CRAFARD. No; I don't.

Mr. GRIFFIN. Do you recognize the handwriting?

Mr. CRAFARD. No.

Mr. GRIFFIN. That is on there. Do you recognize any of the names on those sheets of paper?

Mr. CRAFARD. None other than the name Ruby here.

Mr. GRIFFIN. Do you recall whether Mr. Ruby received telephone calls regularly at any phone other than the phone at the Carousel Club?

Mr. CRAFARD. He might at his home address. I wouldn't know.

Mr. GRIFFIN. Would you look at what I have marked in the same fashion as Exhibit 5224-B and tell me if you recognize any of the names that are shown in that photograph?

(Photograph marked Crafard Exhibit No. 5224-B for identification.)

Mr. CRAFARD. The middle one in the picture bears the name Pauline which is the name of the assistant manager of the Vegas Club.

Mr. GRIFFIN. Do you know whether there was somebody who stayed throughout the day at the Vegas Club in the same manner that you stayed throughout the day at the Carousel Club?

Mr. CRAFARD. I don't believe there was.

Mr. GRIFFIN. I am going to show you a series of photographs all of which are marked Washington, D.C., April 10, 1964 and which I am going to mark Exhibit 5225. Each of these 19 photographs has in the upper right-hand corner on the reverse side of the photograph a letter in sequence from A to S. I would like you to look at all 19 of these photographs and tell me if you recognize the notebook which they purport to depict.

Mr. CRAFARD. I believe these to be a notebook that Jack Ruby used.

Mr. GRIFFIN. Where would you recall seeing that notebook?

Mr. CRAFARD. I believe he carried it on his person.

Mr. GRIFFIN. Yesterday you identified two other notebooks one which you thought he kept on his person, the other which you thought he kept in his desk.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Having seen this is there—would you change your testimony any way about the other two notebooks that you identified yesterday?

Mr. CRAFARD. No; I don't believe so.

Mr. GRIFFIN. So it is your testimony that Jack maintained at least three small-sized notebooks that you recall?

Mr. CRAFARD. He had several of them, two or three of which he carried on him.

Mr. GRIFFIN. I want to state for the record that these photographs do not have the normal commission number that is put on documents when they come into the office. These photographs at this time have come to us by a letter from the Federal Bureau of Investigation dated April 7, and the letter indicates that this notebook was found in Jack Ruby's automobile.

I will identify this notebook further as having on the front cover the word "Alladin". The notebook appears to be a pocket-size notebook which might be 2 by 3 inches or 1½ by 3 inches.

Under the word "Alladin" there is a triangle with some writing which I am unable to read. Under the triangle, on the cover is written notebook No. 3164.

Mr. HUBERT. You had better identify that picture you hold in your hand.

Mr. GRIFFIN. The picture I am referring to here is Exhibit 5225-A. The one refers to the number that the Bureau has put on in the upper right-hand corner on the reverse side. I am going to ask you to look at these photographs in sequence if you will look at Exhibit 5225-B, will you tell me whether you recognize any of the names written on there?

(Photographs marked Craford Exhibits Nos. 5225-A through 5225-S for identification.)

Mr. CRAFT. The name Pauline is on this page.

Mr. GRIFFIN. Do you recognize the name Milt Jaffe?

Mr. CRAFT. I believe the name Bonnie also appears on this, that would be the last name on this page.

Mr. GRIFFIN. State what you understand—you are looking through a magnifying glass now at photograph number one, in the series of Exhibits 5225 and there is a name on there that you believe to be Bonnie?

Mr. CRAFT. Yes.

Mr. GRIFFIN. Let me state for the record that as I look at it it appears to be Barney, but assuming that it is Bonnie, that is—is that name familiar with you?

Mr. CRAFT. Bonnie, a girl was—a girl by the name of Bonnie worked as a waitress at the Carousel.

Mr. GRIFFIN. How about any of the other names on that page?

Mr. CRAFT. The name Pauline mentioned before.

Mr. GRIFFIN. Correction for the record, we are looking at photograph B in the 5225 series.

Would you look at photograph C in that series and tell me if you recognize any of the names on there?

Mr. CRAFARD. This photograph doesn't contain any names. It has something to do with taxes, admission tax.

Mr. GRIFFIN. Do you recall what Jack Ruby's practice was while you worked with him as to keeping track of taxes and so forth?

Mr. CRAFARD. On this admission tax we had some numbered tickets. When each customer came in we tore one in half, tore half of the tickets and gave them half of the ticket and once a month they would go at it and count the tickets.

Mr. GRIFFIN. Do you recall where he kept his records for those things?

Mr. CRAFARD. I don't know where he kept his records at.

Mr. GRIFFIN. Do you recall his making entries in a small notebook for such records?

Mr. CRAFARD. No; not on the admission tickets.

Mr. GRIFFIN. Did he have some sort of other book that he kept his tax records in?

Mr. CRAFARD. I believe his accountant kept most of the tax records but there was something about the admission tax where him, Ruby and Andy would work on that together and count the stubs.

But I don't know where he kept record of them.

Mr. GRIFFIN. What was the admission charge to the club?

Mr. CRAFARD. Two dollars.

Mr. GRIFFIN. Was it——

Mr. CRAFARD. This was including the taxes.

Mr. GRIFFIN. Was that \$2 every night or was there a different charge on weekends?

Mr. CRAFARD. Two dollars every night at the Carousel.

Mr. GRIFFIN. What was his charge for admission at the Vegas, if there was any?

Mr. CRAFT. I believe that was 75 cents or 85 cents, something like that.

Mr. GRIFFIN. Would you look at photograph D?

Mr. CRAFT. That is another State admission tax note. July, August, and September.

Mr. GRIFFIN. That is Exhibit D of Series 5225.

I want to show you E of Exhibit 5225. There are some names written down there.

Do you recognize those names?

Mr. CRAFT. Billy Brook, I have heard his name mentioned, I believe he was a comedian; I am not sure.

There is Bobby Patterson. I have mentioned him as a band member for the Vegas Club.

Mr. GRIFFIN. There is a notation under the name Bobby Patterson. Would you read that?

Mr. CRAFT. Right under the name?

Mr. GRIFFIN. Yes.

Mr. CRAFT. I can't make it out.

Mr. GRIFFIN. To the right of the name there is a 6 with two zeros, and right under the name Bobby Patterson it says, "and friends" and on the same line to the right of the words "and friends" and under the 600 it says "10" with two zeros.

Do you recognize—does that mean anything to you?

Mr. CRAFT. No.

Mr. GRIFFIN. Do you recognize that handwriting that is shown there?

Mr. CRAFT. I'm not positive, but I believe it is in Mr. Ruby's handwriting.

Mr. GRIFFIN. Do you recall the way Mr. Ruby made notations about money?

Mr. CRAFT. This is his method of making notations with the 10 large and two zeros small on the upper portion of the line.

Mr. GRIFFIN. Is there anything else about that writing which makes you think that is Jack Ruby's writing?

Mr. CRAFT. The fact that it is fairly small. And there is the name Armstrong, the next name that I recognize, Andrew Armstrong. That is all there is on that page.

Mr. GRIFFIN. Would you look at photograph F and tell us if you recognize anything on that photograph. This is of Exhibit 5225.

Mr. CRAFT. What I recognize is really small writing down almost to the bottom of the page, there are three lines right close together. The names and phone numbers, the name Ruth Shay, I have heard the name, I can't recall exactly what her relation was, and the name Pauline again and then Tex De Lacy, I believe I had his name and phone number wrote down in my notebook.

Mr. GRIFFIN. Would you look at photograph G and tell us if you recognize any of the names there or any of the notations that are on there.

Mr. CRAFT. Other than the fact that it is apparently for excise tax purposes for the Carousel Club, that is all I can say about it.

Mr. GRIFFIN. Would you look at photograph H. Do you recognize any of the names or notations on that photograph?

Mr. CRAFT. This shows two pages and one page is excise tax for Carousel Club. The other page has very little writing on it.

The name Joseph Rossi. I have heard Jack use the name Rossi quite a few times, but I don't know what it was about.

Mr. GRIFFIN. That is Joseph R-o-s-s-i?

Mr. CRAFT. Yes, sir.

Mr. GRIFFIN. Would you look at photograph I in this series that we have been looking at and tell me if you recognize any of the names and notations there.

Mr. CRAFT. The name Tom Palmer.

Mr. GRIFFIN. You already testified about him.

Mr. CRAFARD. I already testified about Palmer and the other page has the words revenue from the Vegas Club.

Mr. GRIFFIN. Would you look at photograph J and tell us if you recognize any of the names and notations there.

Mr. CRAFARD. There is one name on here, I believe I heard Jack mention, but I am not sure. This Rocky Robinson, I am not positive.

Mr. GRIFFIN. Do you have any recollection as to the context or connection that you may have heard that name used?

Mr. CRAFARD. I believe he introduced me to a man named Rocky, but I can't recall the last name of the gentleman.

Mr. GRIFFIN. Would you look at photograph K and would you tell us if you recognize any of the names and notations there?

Mr. CRAFARD. None except for the insignia of KLIF Station.

Mr. GRIFFIN. Do you recognize the Serv-U Pharmacy as being a business in Dallas?

Mr. CRAFARD. No; I don't.

Mr. GRIFFIN. Would you look at photograph L and tell us if you recognize any of the names and notations there?

Mr. CRAFARD. This is a repetition.

Mr. GRIFFIN. This is a duplicate photograph of the same picture that we showed?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. As 5225-K.

Would you look at M in this series of photographs and tell us if you recognize any of the names and notations?

Mr. CRAFARD. There is the name Jeanine, Tammi, Lynn that I recognize, Brother Bear.

The name Norma, I believe is the same phone number as I give for Miss Norma Bennett, or Barnett.

I believe there is a Bob Litchfield, I believe that is the last name on there.

Mr. GRIFFIN. Those are all names that you testified about previously?

Mr. CRAFT. I believe so. I am not sure about that Litchfield.

Mr. GRIFFIN. Do you recognize the name Bertha Cheek that appears on there?

Mr. CRAFT. No; I don't.

Mr. GRIFFIN. Would you look at N in this series of photographs and tell us if you recognize any of the names and notations there?

Mr. CRAFT. No.

Mr. GRIFFIN. Would you look at photograph O in the series and address yourself to the same questions?

Mr. CRAFT. I don't recognize any that is on here. There appears to be the word "taxes".

Mr. GRIFFIN. Will you look at P and tell us if you recognize any of the names and notations there?

Mr. CRAFT. There is the words Morning News, Carousel rent and something about the laminating company.

Mr. GRIFFIN. Do those—can you tell whose handwriting those notations are in?

Mr. CRAFT. I believe they are in Jack's handwriting.

Mr. GRIFFIN. Was it Jack Ruby's practice to make notes for himself of things he had to do any particular day?

Mr. CRAFT. I don't know for sure whether he did or not. On one or two occasions I have saw him make notes of things he wanted to do.

Mr. GRIFFIN. Would you look at Exhibit Q and tell us if you recognize any of the names or notations there?

Mr. CRAFT. Mike Shore.

Mr. GRIFFIN. You testified about him previously.

Mr. CRAFT. I believe so; yes.

There is Ed Pullman's name on there. I have testified about him previously.

And Joe Williams, I believe from the band at the Carousel Club.

Mr. GRIFFIN. I want to direct your attention back again to photograph P in this series, Exhibit 5225. There is a notation on here "baby bottle." Do you have any idea what Jack Ruby would have had to do with any baby bottles?

Mr. CRAFT. No; I don't, whatsoever.

Mr. GRIFFIN. On Exhibit Q in this series, 5225, there is a notation "Goodwill Industries". Did Jack—do you remember having anything to do with Goodwill Industries?

Mr. CRAFT. Except the fact that most of my clothes were bought there.

Mr. GRIFFIN. The name Dalton appears in connection with that.

Mr. CRAFT. I believe he spoke with Mr. Dalton in connection with trying to get the Goodwill Industries interested in the twist boards, their manufacture, I am not sure.

Mr. GRIFFIN. There is also a notation after the word "Mike Shore" appears to be the word "blades". Did Mike Shore have anything to do with the Wilkinson blades that Jack gave away?

Mr. CRAFT. Not that I know of; not to my knowledge.

Mr. GRIFFIN. There is also a notation on here that appears to read "Stubbe Machine", some sort of machine that looks like Stubby.

Mr. CRAFT. The only thing I could say with that it might be in connection with the laminating machine that he was thinking about getting.

Mr. GRIFFIN. Well, now, tell us about the laminating machine that he was thinking about getting.

Mr. CRAFT. These free passes he was giving out he was having them laminated in plastic and he was thinking about getting a machine to do it himself.

Mr. GRIFFIN. Where was he intending to purchase this machine?

Mr. CRAFARD. I am not sure.

Mr. GRIFFIN. These were free passes to the Carousel?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Did the practice of giving passes away to the Carousel exist all the time you worked for Jack?

Mr. CRAFARD. He started that practice just after I went to work for him, giving them to people that he had business with, personal acquaintances, and different important businessmen from different areas of the country.

Mr. GRIFFIN. Did you ever talk to Andy Armstrong or Jack so that you would be able to state whether he had given away passes prior to that time?

Mr. CRAFARD. To my—as far as I know, he had never given them away before this.

Mr. GRIFFIN. Do you recognize the name Monte that appears on this photograph Q in the 5225 series?

Mr. CRAFARD. No; I don't.

Mr. GRIFFIN. Do you remember the name of a fellow by the name of Monte Timmons?

Mr. CRAFARD. I don't believe I ever met the man. I don't remember the name.

Excuse me 1 minute.

I believe that is a woman's name. There was a woman by the name of Monte, had a phone call, had Ryan call her back.

Mr. GRIFFIN. Mike Ryan?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. I want to show you photograph R and ask you if you recognize any of the names or notations there.

Mr. CRAFARD. Bill Petty's name is on there.

Mr. GRIFFIN. Who is he?

Mr. CRAFT. I believe he was a friend of Jack's. I met him at the Carousel Club. Jack introduced me to him.

Mr. GRIFFIN. Did he live in Dallas?

Mr. CRAFT. I believe so; yes.

Mr. GRIFFIN. Do you know what he did? How often did you meet him at the Carousel Club?

Mr. CRAFT. I believe he was there two or three times while I was working for Jack.

Mr. GRIFFIN. Would he come during business hours or would he come in the afternoon, or morning, when there weren't patrons there?

Mr. CRAFT. I believe when I first met him was in the afternoon, but other than that it was during business hours.

Mr. GRIFFIN. Do you know what the nature of Jack's connection with Petty was?

Mr. CRAFT. No.

There is the name Gladys. I spoke of her before.

And this Dr. Uhlevitch was Mrs. Grant's doctor.

The name Oscar Newman seems familiar, but I don't recollect what there was about it.

Mr. GRIFFIN. There appears to be an abbreviation for Mrs. written above Oscar Newman, does that mean anything to you?

Mr. CRAFARD. No.

Mr. GRIFFIN. I will hand you photograph S in this series we have been looking at. Do you recognize any of the names there?

Mr. CRAFARD. Little Lynn's name is on there.

There is the name Gloria with the last name of R-e-t-t-i-g, the last name doesn't mean anything to me. The first name was the same as we have mentioned before.

Mr. GRIFFIN. Is Vicky Williams a name that you recognize?

Mr. CRAFARD. No.

Mr. GRIFFIN. Yesterday I gave you a copy of the FBI report of its interview with you. Did you have a chance to look that over?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. As a result of having read that interview, are there any changes or corrections that you desire to make in that interview?

Mr. CRAFARD. Mostly were minor changes. One was the spelling of my wife's maiden name.

Mr. GRIFFIN. How should that be spelled?

Mr. CRAFARD. It should be spelled with a "P" instead of an "O" there.

Mr. GRIFFIN. Would you take my pen and correct that and then initial it and date it where it appears in the interview?

I am going to mark this exhibit, "Washington, D. C., April 10, 1964. C. L. Crafard, Exhibit 5226," and I am going to sign my name to the bottom of the first page.

(The document was marked Crafard Exhibit No. 5226, for identification.)

Mr. GRIFFIN. I have made this notation on the first page of what purports to be an FBI report of an interview with Mr. Crafard, the interview having been conducted on November 28, 1963, at Bellaire, Mich., by Special Agent Theodore S. Kramer, K-r-a-m-e-r, dictated November 29, 1963.

There are eight pages to this report and at the bottom of each page there is a number beginning in sequence with the number 147 and continuing through the number 154 on the last page.

I am going to put my own initials on pages 148 through 154.

You have made your first correction of the name of your wife?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. On the first page of this Exhibit 5226?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. All right. Now, are there any other changes?

Mr. CRAFARD. Yes, the date of our wedding instead of the 16th of June was the 22d of June.

Mr. GRIFFIN. You are correcting that in the same fashion that you made of the other correction?

Mr. CRAFARD. Yes. The fact he stated here almost every hour Ruby was asking about calls. Called between one and three times a day.

Mr. GRIFFIN. Let's make a correction on there, then, if this is agreeable to you the sentence reads, "other than that Ruby would telephone I call, I contact him almost every hour for any calls."

After the word "contact him" why don't you cross out the remainder of the sentence and then make a correction in your handwriting.

Mr. CRAFARD. "almost every hour."

Mr. GRIFFIN. You are crossing out "almost every hour" and you are going to write something in there.

He has written on here "one or two times" but he spelled day "b-a-y" and he has put his initials CLC with the date 4-10-64. He has crossed out

the words “almost every hour.”

Are there any other additions or corrections?

Mr. CRAFARD. I believe there were a couple of small minor changes in there. This about Ruby kept the revolver when he had money. There was only one occasion when he would take the revolver from the car.

Mr. GRIFFIN. All right. Well, we will have to change that, then.

Mr. CRAFARD. With this, I can go back and name the one MC I have mentioned and I couldn't think of his name, Bill Norman.

Mr. GRIFFIN. All right. Now, you have referred to this sentence: “He said that when transporting money Ruby kept his money in the trunk with the revolver and always kept the revolver with him when moving money.”

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Would you want to cross out everything after the phrase “with the revolver”?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And if you want to add anything, state something to the effect that, as you have just told me that on one occasion you recall him having the revolver with him.

Mr. CRAFARD. On one occasion I know of him having the revolver with him.

Mr. GRIFFIN. That is the correction you have made on the paper.

Let me ask you a few questions here, Larry.

Is the one occasion that you are referring to the time when he asked you to go down and get the revolver for him, or are you talking about another occasion?

Mr. CRAFARD. There was one other occasion when he brought the revolver into the club and it stayed there all evening, when he stayed in the club, and when he left he took the revolver with him.

Mr. GRIFFIN. Do you remember when that was?

Mr. CRAFT. I believe that was about a week and a half before the assassination of President Kennedy.

Mr. GRIFFIN. What makes you remember that episode?

Mr. CRAFT. I was trying to remember as much as I can about it, and I remember taking the revolver to him helped me remember the fact that he had it on one occasion with him in the club before.

Mr. GRIFFIN. Was there anything that he did or said which gave you any indication of why he had the revolver with him in the club?

Mr. CRAFT. No; I believe he had money in the same sack with the revolver, and he just brought it in all together.

Mr. GRIFFIN. Did he have a safe in the club at that time?

Mr. CRAFT. Yes; but he didn't use it very often. I believe he had it. I believe he had it at that time; yes.

Mr. GRIFFIN. You testified before that it was Jack's practice either at the end of every business day or the next day to pick the money up and take it away from the club.

Mr. CRAFT. Yes.

Mr. GRIFFIN. On how many occasions would you say you were present when Jack, when you saw Jack take money away from the club?

Mr. CRAFT. I would say almost every time that he took money from the club I was present.

Mr. GRIFFIN. And on any of these occasions other than the one you have just described, do you recall his having a gun on his person?

Mr. CRAFT. Not that I can recall.

Mr. GRIFFIN. Did you ever see him take the money and actually put it in his car?

Mr. CRAFT. On several occasions, yes.

Mr. GRIFFIN. Where would he put the money in his car?

Mr. CRAFT. In the trunk.

Mr. GRIFFIN. Were you in a position where you could observe him put the money into the trunk?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Did you observe him take anything out of the trunk on those occasions?

Mr. CRAFARD. No.

Mr. GRIFFIN. Were you in a position so you could have seen him if he took a gun out of the trunk and carried it with him?

Mr. CRAFARD. Yes; I was usually right beside him placing something in the car, myself.

Mr. GRIFFIN. Did you then on these occasions accompany Jack any place?

Mr. CRAFARD. Once or twice, but usually just put stuff in the car for him and went back upstairs.

Mr. GRIFFIN. And when you would leave Jack on any of these occasions, did he have other people with him, who drove off with him?

Mr. CRAFARD. One or two times; yes. A couple of times he had Mr. Ralph Paul with him.

Mr. GRIFFIN. Now, how many occasions would you say you went down with him to the car when he carried money down, put the money in the trunk, and Jack drove off then alone?

Mr. CRAFARD. I would say most of the time when I went down with him he drove off alone.

Mr. GRIFFIN. Can you give us what your best estimate is of the number of times this would have been when he drove off alone?

Mr. CRAFARD. I would say about eight or nine times that I am definite.

Mr. GRIFFIN. How many times a day did you have occasion to go into the trunk of Jack's automobile?

Mr. CRAFARD. Maybe it would be 2 or 3 days I wouldn't go near his automobile, and there might be a day when I would go get something out of

the trunk of his car two or three different times during the day.

Mr. GRIFFIN. On occasions when you went down to the trunk of his car was Jack carrying money around in the trunk of his car?

Mr. CRAFT. Yes. He most always had money in the trunk of his car.

Mr. GRIFFIN. How did you know this?

Mr. CRAFT. He had told me so on several occasions, and on several occasions I was with him when he placed money in his car when I went upstairs and then he would send me down after something out of the trunk of his car.

Mr. GRIFFIN. Were you able to tell whether, after Jack would carry the daily receipts down to the car if he would continue to carry money in his car, in the trunk of his car, or whether he would take the money out so that the next day when he would come back and pick up the next day's receipts the trunk was empty so far as money was concerned?

Mr. CRAFT. He carried the money for the receipts for a week at a time.

Mr. GRIFFIN. On these occasions when he carried the money for a week at a time, do you ever recall him going into the trunk and putting the gun in his pocket as he was driving off?

Mr. CRAFT. No. Only one time that I can recall a gun being in the car, I was in the car with Jack, I believe it was the second night I was at the Vegas Club, he brought the money sack in and the money sack that the gun was in, was in the main money sack, and we put it in the front seat of the car between us, right by my side.

Mr. GRIFFIN. Was it Jack's practice to keep a key to the trunk of the car any place in the automobile?

Mr. CRAFT. Other than on his key ring, I wouldn't know of any keys.

Mr. GRIFFIN. How many occasions did you have to go down to Jack's automobile by yourself and open the trunk of the car?

Mr. CRAFT. Oh, I would say between 15 or 20 or 25 times while I was with him.

Mr. GRIFFIN. And on each of these occasions did you have to get a key to open the trunk?

Mr. CRAFARD. Jack would give me the key, he would give me his key ring with the key on it.

Mr. GRIFFIN. Were there ever any occasions when Jack left the trunk unlocked that you recall?

Mr. CRAFARD. No. The trunk on his car was the type that you have got to unlock it to open it, and when you close it it automatically locks, and you remove the key and it automatically locks.

Mr. GRIFFIN. Did Jack have a regular parking space for his car near the Carousel Club?

Mr. CRAFARD. Yes; in the parking garage right downstairs.

Mr. GRIFFIN. Have you seen where he parked his car at his home?

Mr. CRAFARD. I saw the parking lot. I don't know whether he used the same space all the time.

Mr. GRIFFIN. Was it an open parking lot?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Do you know if Jack had any sort of a safe in this apartment?

Mr. CRAFARD. No.

Mr. GRIFFIN. That is, you don't know.

Mr. CRAFARD. I don't know.

Mr. GRIFFIN. Mr. Hubert, do you have any questions you want to ask along this line?

Mr. HUBERT. You were talking about the trunk and the money and all that. Did you get into the record about where the gun was?

Mr. GRIFFIN. I believe we did, but why don't you ask the questions?

Mr. HUBERT. It wasn't clear to me, perhaps I didn't catch it, as to whether or not Jack kept the gun in the trunk of the car or on his person.

Mr. CRAFARD. In the trunk of the car, he kept it in a money sack in the trunk of the car.

Mr. GRIFFIN. I believe your testimony was that, so that Mr. Hubert can be brought up to date, that you only ever saw him carry the gun on his person on two occasions, one of those occasions being when you brought the gun up to him at the club in connection with some sort of an argument that he had, and the other one was when he brought it in a money bag on one occasion.

Mr. CRAFARD. Yes.

Mr. HUBERT. So that your testimony a few moments ago concerning the money and how you saw him put money in there, sometimes you carried it down, or at least saw it there, is that when there was money there there was a gun with the money, usually in a sack with the money?

Mr. CRAFARD. The money was usually in a different, separate sack from the gun, but at times he would take the sacks, on these two occasions that I know of, he took the sack the money was in, the sack the gun was in and put them all in a larger sack.

Mr. HUBERT. Did you know him to own a holster?

Mr. CRAFARD. No.

Mr. HUBERT. To hold a gun?

Mr. CRAFARD. No.

Mr. HUBERT. On the two occasions that he did have the gun on his person, how did he have it?

Mr. CRAFARD. It was inside of a money sack, and he carried it in his hands, the money sack wrapped around the gun and laying in his hand.

Mr. HUBERT. That is the two occasions that you say he had it on his person?

Mr. CRAFARD. Yes.

Mr. HUBERT. You never saw him put it in his pocket or his waistbelt?

Mr. CRAFARD. No.

Mr. HUBERT. That is all.

Mr. GRIFFIN. Had you ever heard from Jack or Andy Armstrong or anybody else that Jack had ever been robbed or burglarized?

Mr. CRAFARD. No.

Mr. GRIFFIN. Continuing on with your copy of the FBI interview report, are there any other corrections or additions or changes that you would make?

Mr. CRAFARD. One addition I would like to make to my testimony of the fact that when Ruby first came to the club on the day that President Kennedy was killed, and before he left he called the paper and placed an ad to the effect that we would be closed, from the club.

Mr. GRIFFIN. You are reading this out of what is page 150?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Of your interview report?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. You have had a chance to read this interview report, and does this refresh your recollection?

Mr. CRAFARD. Yes. After reading it yesterday evening, and thinking about the whole thing yesterday, last night at the hotel, I have refreshed my memory to some extent.

Mr. GRIFFIN. After having refreshed your recollection with this report, are you able to state how soon after Ruby came into the club he told Andy Armstrong to notify the personnel?

Mr. CRAFARD. It wasn't more than about a half hour or 45 minutes after he came into the club.

Mr. GRIFFIN. But he didn't do it right away?

Mr. CRAFARD. No.

Mr. GRIFFIN. You people sat around for awhile?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Did you discuss as you were sitting there the question of closing the club?

Mr. CRAFARD. I don't believe we did.

Mr. GRIFFIN. Do you remember how Jack came to give these instructions to Andy?

Mr. CRAFARD. No; I don't.

Mr. GRIFFIN. How soon after Andy began to call the personnel do you remember Jack calling the newspapers and changing the ad?

Mr. CRAFARD. I believe it was just shortly after Andy started calling personnel and Jack went in and used the pay phone and said something about calling the paper.

Mr. GRIFFIN. You recall if up to that time Jack had received a telephone call from any newspaper person asking him if his clubs were going to be open?

Mr. CRAFARD. No; I don't.

Mr. GRIFFIN. Are there any other additions or changes or corrections that you would make in this interview report in your testimony as a result of having read the interview report?

Mr. CRAFARD. I believe yesterday I was talking about the financial setup of the club. I believe I said it was fairly good. I would say that this portion of my statement here referring to the financial setup was gained from the fact that Jack was always complaining about going broke, and a portion in my testimony the other day about the financial position of the club was my own opinion.

Mr. GRIFFIN. Now, you are referring to page 150 of the interview report?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And as I understand what you are saying in here was that when you told the FBI that the club couldn't financially stand to be closed, you were making that statement on the basis of what Jack had said?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. But your own personal opinion was?

Mr. CRAFT. That the club was making enough money to hold its own, even on a closure of 2 or 3 or maybe 4 days.

Mr. GRIFFIN. Would you want to make a change on page 150 so that—well, maybe we shouldn't make this change. There is no question in your mind but that the FBI interview states, is an accurate reporting of what you said at that time?

Mr. CRAFT. Yes; there is no question.

Mr. GRIFFIN. Now, passing on to page 151, is there anything there that you would change?

Mr. CRAFT. The fact here that Ruby said he was going to his sister at that time. I don't believe he at that time mentioned where he was going. When he returned later in the evening he mentioned where he was going.

Mr. GRIFFIN. You are referring to the language at the top of page 151 which says, "Ruby said that he was going to his sister's home and asked Craft if he desired to accompany him, which offer was refused"?

Mr. CRAFT. Yes; I believe there was a time element setup there where they haven't included in this testimony here of the fact that the early portion of this was about the financial setup, about calling the paper was at one time, and when he said something about going to his sister was later in the afternoon.

(Discussion off the record.)

Mr. GRIFFIN. Continuing on page 151, are there any other additions or corrections or changes you would make?

Mr. CRAFT. The second paragraph on page 151, the second complete paragraph where it starts, "Ruby then came back to the club or called Craft about 7:30 p.m., that evening." I would like to strike out or called about 7:30 p.m., in the evening. The fact he had come back to the club is something I have established yesterday.

Mr. GRIFFIN. All right. But you did at that time you talked to the FBI, you weren't sure whether he came back or called?

Mr. CRAFT. That is right.

Mr. GRIFFIN. Now, how about the time—7:30 p.m., as you think back about that now?

Mr. CRAFT. At the time——

Mr. GRIFFIN. Is that an accurate time?

Mr. CRAFT. I don't believe so. I believe it was a supposed time, approximate time.

Mr. GRIFFIN. But is that your best recollection of the time, or would you now alter your estimate of what time it was?

Mr. CRAFT. I believe that I said yesterday it was about 6 or 6:30 when he came back to the club, I am not sure. I would say between 6:30 and 7:30 would be about the best estimate I might give on it.

Mr. GRIFFIN. What makes you make that estimate?

Mr. CRAFT. If I remember right, 8 o'clock I was sitting in the drugstore eating lunch, approximately 8 o'clock.

Mr. GRIFFIN. How do you recall being at the drugstore at 8 o'clock?

Mr. CRAFT. The one girl that works over there goes off at 8 o'clock and she left while I was there.

Mr. GRIFFIN. So, actually, you got to the drugstore some time before 8 o'clock?

Mr. CRAFT. Yes.

Mr. GRIFFIN. And by that time Jack Ruby had already returned to the club and asked you to accompany him to Eva Grant's?

Mr. CRAFT. Yes.

Mr. GRIFFIN. Did Jack mention to you at that time anything about going to the synagogue?

Mr. CRAFT. No; not that I can remember. On the third paragraph on page 151, I believe yesterday I gave an earlier time for this same event of Jack calling me at the club on the morning of November 23.

Mr. GRIFFIN. Now, the language you are referring to is on Saturday morning, November 23, at about 5:30 a.m., Ruby called him and told him to

meet him downstairs with the Polaroid camera and some film.

Mr. CRAFT. Yes; I believe yesterday that the time I gave was about 2 hours earlier than this.

Mr. GRIFFIN. What is your best recollection now as to the time? Was your memory more accurate at the time you told the FBI about this episode or is it more accurate now after having spent 2 days discussing the matter?

Mr. CRAFT. I believe in the trial in Texas it came out pretty well to where it just about had to be between 4:30 and 5 when he called.

Mr. GRIFFIN. How did you arrive at that conclusion?

Mr. CRAFT. At the trial, there was quite a bit of questioning on this effect.

Mr. GRIFFIN. Of you?

Mr. CRAFT. Yes. And I believe the different times that some of the previous witnesses had given the lawyer, and I come to the agreement it must have been about between 4:30 and 5 o'clock that he called me.

Mr. HUBERT. What is your best recollection now? That is what we want to get.

Mr. GRIFFIN. Let's disregard what other people have told you to suggest what the time is, and try to think about your own activities. As I recall, you testified that you talked for 2 or 3 hours with a girl on the telephone.

Mr. CRAFT. Yes.

Mr. GRIFFIN. And then you read for a while, and then you apparently started to doze off, to go to sleep.

Mr. CRAFT. I believe the other time, the time element I used yesterday would be more of a correct time than this.

Mr. HUBERT. Tell us just your recollection right now today.

Mr. CRAFT. I would say between about 3:30 and 4:30.

In the same paragraph further down, closer towards the bottom. "When he got to the car, George, Ruby's roommate, was also there and they drove out on the Stemmons Freeway." I believe in this testimony here the

Stemmons Freeway was more of a suggested name to me than anything else. I would like to clearly state I am definitely not positive of that sign.

Mr. GRIFFIN. I believe you testified also yesterday that it was the Central Expressway.

Mr. CRAFARD. Yes. I believe it was on the Central Expressway.

Referring to page 152 of this testimony, and back to previous testimony, I have made here concerning the mention of the name of Lee Harvey Oswald, I believe that this would be about the first time that we used the name of Oswald, was used very much among us. Previous to this, I don't believe there was any reference made to this person by name.

Mr. GRIFFIN. Starting on page 151?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. With the sentence, "He also recalled that while being at the waffle shop on Commerce Street, Ruby was reading about Lee Harvey Oswald in a newspaper."

Mr. CRAFARD. That is right.

Mr. GRIFFIN. How long a time would you say you spent at the waffle shop?

Mr. CRAFARD. Twenty or twenty-five minutes, maybe a half hour.

Mr. GRIFFIN. Do you recall what time it was when you were at the waffle shop?

Mr. CRAFARD. Right around six in the morning.

Mr. GRIFFIN. How long did you spend at the Earl Warren sign photographing that sign?

Mr. CRAFARD. Not more than 20 minutes at the most.

Mr. GRIFFIN. You think it might have been as long as 20 minutes?

Mr. CRAFARD. It might have been; yes.

Mr. GRIFFIN. Did you spend some time in the car talking about the sign before you got out to photograph it?

Mr. CRAFARD. No. I believe we got out of the car immediately when we pulled over.

Mr. GRIFFIN. Did it take you 15 or 20 minutes to photograph the sign?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Why did it take so long?

Mr. CRAFARD. Trying to get the right angle on the sign where I could get the clearest picture of the words of the sign.

Mr. GRIFFIN. Did you have to walk across the street to photograph the sign?

Mr. CRAFARD. No.

Mr. GRIFFIN. Did Jack Ruby get out of the car with you at the time?

Mr. CRAFARD. Yes; all three of us, Ruby, Senator and myself got out of the car.

Mr. GRIFFIN. Going over onto page 152, are there any additions or corrections which you would make?

Mr. CRAFARD. No; that is about it.

Mr. GRIFFIN. I want to ask you some specific questions about that. I have made some notes myself.

On the bottom of page 148 of the FBI interview, which is Exhibit 5226, the FBI reports this language, "However, Andy Armstrong or Alexander, the assistant manager and bartender would handle the money until midnight."

Did you ever know Andy Armstrong by the name of Alexander?

Mr. CRAFARD. No; I couldn't recall exactly what his last name was. At that time I believe my recollection was that it was either Armstrong or Alexander but I wasn't positive just exactly what his last name was.

Mr. GRIFFIN. In this interview as reported on page 147 of Exhibit 5226, you state that "After completing this job Ruby asked him to stay at the club and work for room and board."

Mr. CRAFARD. Yes.

Mr. GRIFFIN. He had the room in front of Ruby's office? This would be approximately November 1, 1963?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. I believe you have testified previously here that you thought you worked for Ruby for 6 weeks to 2 months.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. But, of course, if you went to work for him on November 1 you would have only worked for him about 3 weeks. Now, which is the more accurate recollection?

Mr. CRAFARD. My dates are mixed up on that. I am not positive of the date of the Dallas, Texas State Fair.

Mr. GRIFFIN. Did you work at the State Fair until the State Fair closed?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. I thought I understood your testimony on Wednesday to be that the second show that you worked for there, the one with the band——

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Closed a few days before the State Fair actually closed.

Mr. CRAFARD. It closed the day before the State Fair actually closed.

Mr. GRIFFIN. Did you continue to work at the State Fair?

Mr. CRAFARD. I stayed at the State Fair.

Mr. GRIFFIN. So that the way to accurately date when you began to work for Ruby would be in terms of when the State Fair closed?

Mr. CRAFARD. It would be starting the day after the Dallas, Tex., State Fair closed.

Mr. GRIFFIN. How long did the State Fair last?

Mr. CRAFARD. Two weeks.

Mr. GRIFFIN. So that the show, How Hollywood Makes Movies lasted about 1 week?

Mr. CRAFARD. Right at that; yes.

Mr. GRIFFIN. And the band show lasted about another week?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. On page 149, the FBI reports you as indicating, and I am quoting, "He said that one night approximately November 14 or 15, 1963, Ruby was having trouble with an MC Earl Norman at the Carousel and about 1:30 a.m., he, Ruby, sent Crafard out to the car to get the gun."

Mr. CRAFARD. I believe in testimony yesterday I stated that I couldn't remember exactly who he had the trouble with, and I am right now not clear after thinking all night, I am not clear in my mind as to the fact that it was Earl Norman.

Mr. GRIFFIN. Was your memory accurate at the time you talked with the FBI?

Mr. CRAFARD. I am not positive of that.

Mr. GRIFFIN. Are you sure, though, that the reason Ruby went to get the gun was because he was having trouble with the M.C.?

Mr. CRAFARD. No; that is what I say. I am not positive of the fact who it was he was having trouble with.

Mr. GRIFFIN. Are you sure that Ruby went to get the gun because he was having trouble with somebody?

Mr. CRAFARD. Yes; he had had some trouble with somebody and he had sent me to get the gun.

Mr. GRIFFIN. You stated that the gun was believed to be the property of Howard?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. The Negro employee, and I am reading that from page 149. Is it still your understanding that that gun was Howard's gun?

Mr. CRAFARD. Yes.

Shortly after I went to work for Jack he told me or Howard told me that when he first went to work for Jack he had three or four different guns and he had permits for his pistols, and on a couple of occasions the law forces confiscated his pistols and later returned them, and he was afraid this might

happen again and he wouldn't get this particular pistol back so Jack asked him if he could borrow the gun and he told Jack yes; he could use the gun as long as he wanted.

Mr. GRIFFIN. Did Jack ever say anything to you which indicated that the gun was not Jack Ruby's gun?

Mr. CRAFT. No.

Mr. GRIFFIN. Did you talk to Howard about the gun that Jack Ruby had at any time after you went down to the car on the 14th or 15th of November to bring the gun up to Jack?

Mr. CRAFT. No; I don't believe so.

Mr. GRIFFIN. Did you ever talk specifically with Howard about the gun that Jack was carrying around in the trunk of his car?

Mr. CRAFT. Yes; this was the gun our conversation was about. He said that gun had belonged, it was his gun, that he had loaned it to Mr. Ruby.

Mr. GRIFFIN. Do you remember what kind of a .38 caliber revolver this was?

Mr. CRAFT. I believe it was a Colt. Other than that I couldn't say. It was a snubnosed revolver, Colt snubnosed is all I know.

Mr. GRIFFIN. Was there anything distinguishing about the handle?

Mr. CRAFT. I couldn't describe anything distinguishable about the handle, but I believe I could recognize the revolver if I was to see it. Excuse me, that handle was an, I believe an imitation bone handle on that pistol. I believe it was kind of a grayish-white imitation bone handle with dark brown spots on it.

Mr. GRIFFIN. You testified that you believe Little Lynn called sometime on Friday evening, November 22?

Mr. CRAFT. Yes.

Mr. GRIFFIN. What time would be your recollection that telephone call was received, was it before or after you had dinner at 8 o'clock over at the drug store?

Mr. CRAFARD. I believe that was before I had dinner. I believe I said something to Jack about it when he came back and he said if she called again to give, tell her to call Miss Grant.

Mr. GRIFFIN. Did she call back?

Mr. CRAFARD. I believe so. And I told her to call Miss Grant.

Mr. GRIFFIN. On page 151 of Exhibit 5226 you are reported as saying in connection with the photograph of the Earl Warren sign and the post office box and I am quoting from the FBI report, "Crafard said he was completely puzzled as Earl Warren was unknown to him."

I believe you testified earlier here in Washington that you recall Ruby making some connection between an advertisement that he had seen in the newspaper and the Earl Warren sign.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Did you remember that connection at the time you talked with the FBI?

Mr. CRAFARD. I believe I said something to them about the numbers on the address having something to do with something else that Ruby had talked about. I don't believe I would have anything to do with this advertisement. I don't believe anything on that.

Mr. GRIFFIN. Is it possible that—are you clear that Ruby, now, that Ruby did make some connection between the advertisement and the sign?

Mr. CRAFARD. Yes; very clear. It was in connection with the addresses on the sign and this post office box number on this ad that he had saw in the paper.

Mr. GRIFFIN. Are you making this statement as a result of something that you personally recall or is this something that is now in your mind because of conversations you may have had with other people?

Mr. CRAFARD. This is something that I personally, clearly recall him making the statement.

Mr. GRIFFIN. Is it—Mr. Hubert, do you have any questions you want to ask along that line?

On page 153 of Exhibit 5226 the FBI reports and I quote, "He knows of no police contacts on Ruby's behalf but said Ruby did keep a police card in the cash register at the Carousel with a name unknown to him on it."

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Would you describe this police card?

Mr. CRAFARD. It was a white card with the emblem of a badge on it with some numbers on top of it, numbers on the badge. I can't recall what they were, if they were even clear. I believe it to have been in connection with some sort of a police club or something of that sort, either that or it was a detective's card that he might have one of the business cards, something.

Mr. GRIFFIN. It was a card about the size of a business card?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And could you tell what police department this person was from?

Mr. CRAFARD. Dallas, Tex., Police Department.

Mr. GRIFFIN. Could it have been the Dallas County Sheriff's office?

Mr. CRAFARD. It could have been; yes, sir. It was from the Dallas, one of the Dallas police departments.

Mr. GRIFFIN. Well, did it have the name that was written on this card or printed on the card, did it have a rank in connection with it?

Mr. CRAFARD. I don't believe so.

Mr. GRIFFIN. Could it have been a card from a justice of the peace?

Mr. CRAFARD. No, I don't believe so. I never saw a justice of a peace card with an emblem of a shield on it. They usually have the emblem of the Justice Department.

Mr. GRIFFIN. You mentioned Bill Willis as being a close friend of Jack.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Was Bill Willis the leader of the band that played at the Carousel?

Mr. CRAFARD. I believe so; yes.

Mr. GRIFFIN. Are you sure of that?

Mr. CRAFARD. I am not positive but I believe he was.

Mr. GRIFFIN. Was Bill Willis, Ruby's closest friend, in the band?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. What led you to that conclusion?

Mr. CRAFARD. Well, the fact that they would talk together quite often, if something come up in connection with the band it was always Bill he talked to. Bill seemed to talk to Ruby more than any of the other member of the band, and Ruby when he talked to anybody in the band it would be to Bill Willis more than anyone else.

Mr. GRIFFIN. I am going to depart from this exhibit for a bit. You worked for the Tear Plating Company?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. I am not clear whether that was in Texas or Oregon.

Mr. CRAFARD. In Dallas, Tex.

Mr. GRIFFIN. How about the Ablon Poultry?

Mr. CRAFARD. Dallas, Tex.

Mr. GRIFFIN. Did you know a detective by the name of Joe Cody?

Mr. CRAFARD. I believe that Jack had me call him on one occasion where he wanted to talk to him.

Mr. GRIFFIN. You mentioned that you worked at the Dallas State Fair for Bob Craven and Deke Miles.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Was there anything about those men that would have led you to believe that they were homosexuals?

Mr. CRAFARD. No.

Mr. GRIFFIN. While you were working for Jack did you know that he was getting any skin or scalp treatments of any sort?

Mr. CRAFARD. No.

Mr. GRIFFIN. Did you know anything about any trichology treatments he was getting?

Mr. CRAFARD. No.

Mr. GRIFFIN. Did Jack express, ever express any concern about his baldness?

Mr. CRAFARD. Not that I remember.

Mr. GRIFFIN. This wasn't a subject that he joked about or that other people kidded him about?

Mr. CRAFARD. Not that I remember; no.

Mr. GRIFFIN. Do you recall while you were working for Jack, Jack's making any inquiry concerning a business partner?

Mr. CRAFARD. Yes. He was trying to get somebody to go in with him to open another club in Dallas.

Mr. GRIFFIN. What did you hear him say about that?

Mr. CRAFARD. He called two or three different people and talked to them trying to get them to go in with him on this club. He made something, a statement to the effect that he had a building already, that it wouldn't take much to get it into shape, something about they could make the best club in Dallas, make it into the best club in Dallas, I believe specialized clientele, you might say a closed club.

Mr. GRIFFIN. Was this going to be a striptease club?

Mr. CRAFARD. I believe so.

Mr. GRIFFIN. Do you recall any of the people that Jack talked with about that?

Mr. CRAFARD. No, sir; I don't.

Mr. GRIFFIN. What was Jack trying to interest these people in doing?

Mr. CRAFARD. Backing him.

Mr. GRIFFIN. He was looking for money?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Do you know anything about any friends that Jack had at a bar called Ed's Bar?

Mr. CRAFT. No.

Mr. GRIFFIN. Are you familiar with Ed's Bar?

Mr. CRAFT. No.

Mr. GRIFFIN. How about the Dallas Cabana, do you know anything about any friends or acquaintances down there?

Mr. CRAFT. I believe he knew the gentleman who runs the Cabana Club.

Mr. GRIFFIN. Was that man ever at the Carousel?

Mr. CRAFT. I am not positive. He may have been but I don't remember.

Mr. GRIFFIN. Do you have any idea how often Jack visited the Cabana?

Mr. CRAFT. No, I don't.

Mr. GRIFFIN. Do you have any idea how often he visited the Baker Hotel or the Adolphus Hotel?

Mr. CRAFT. No.

Mr. GRIFFIN. Did you ever meet or hear Jack talk about or hear anybody else talk about a girl named Connie Trammel or Trammell?

Mr. CRAFT. No.

Mr. GRIFFIN. I believe you testified before that you don't recall Jack saying anything about, saying anything after the President was killed about the dogs he was going to send to California?

Mr. CRAFT. No.

Mr. GRIFFIN. Do you know whether Jack visited the Ritz Delicatessen?

Mr. CRAFT. The what?

Mr. GRIFFIN. Did you ever hear of the Ritz, R-i-t-z, Delicatessen?

Mr. CRAFT. I believe he ate meals there occasionally, although I am not positive.

Mr. GRIFFIN. Did you ever hear Jack discuss any travels he had taken?

Mr. CRAFARD. No.

Mr. GRIFFIN. Did you ever hear him discuss having been to Cuba?

Mr. CRAFARD. No.

Mr. GRIFFIN. Did you ever hear him discuss anything about taking a Caribbean cruise?

Mr. CRAFARD. No.

Mr. GRIFFIN. Plans for taking a Caribbean cruise?

Mr. CRAFARD. No.

Mr. GRIFFIN. Did you ever hear him discuss Barney Ross?

Mr. CRAFARD. Not that I remember.

Mr. GRIFFIN. Barney Ross' name familiar to you?

Mr. CRAFARD. No.

Mr. GRIFFIN. I want to hand you what I have marked as "Exhibit 5227" and I would like you to look at that and tell me if you recognize that.

(Letter marked Crafard Exhibit No. 5227 for identification.)

Mr. CRAFARD. Yes; it is a letter I wrote.

Mr. GRIFFIN. Are you able to tell without having read that letter when it was you wrote it?

Mr. CRAFARD. Not the exact date. It was while I was working for Jack.

Mr. GRIFFIN. Can you recall how long it was before you left Dallas before you wrote that letter?

Mr. CRAFARD. I believe about a week before I left Dallas.

Mr. GRIFFIN. Do you recall why you didn't mail that letter?

Mr. CRAFARD. No, I don't.

Mr. GRIFFIN. Would you read that letter through and tell us if that is the actual letter that you wrote?

Mr. CRAFARD. Yes; this is the letter I wrote.

Mr. GRIFFIN. Would you like that letter back?

Mr. CRAFARD. Yes; I would.

Mr. GRIFFIN. All right. Would you mind if we made a photocopy?

Mr. CRAFARD. I wouldn't mind it if you want it but that—but just give me a moment. I believe the reason I didn't mail this letter because I had remembered—because I had rewrote the letter just about exactly as it is here, but in a neater hand.

Mr. GRIFFIN. And you actually did mail that letter?

Mr. CRAFARD. I believe so.

Mr. GRIFFIN. How long before you left Dallas did you mail that letter?

Mr. CRAFARD. It would have been about a week. About the same time I wrote it. I am not sure of it, I am not definite of that. But I believe that is the reason, I have done so on several occasions, wrote a letter and then rewrote it so it would be neater.

Mr. GRIFFIN. I realize the letter is a personal letter. However, I think it reflects some things about your state of mind while you were in Dallas and your relationship to Jack Ruby that we would like to have for the record and maybe we can handle this by my giving you a copy of that letter.

Mr. CRAFARD. Have you got a copy?

Mr. GRIFFIN. I don't have a photocopy of it but I have—it has been written up in an FBI report and simply ask you if that is an accurate—the FBI report is an accurate rendition of the letter and then we can refer to it.

Mr. HUBERT. Mr. Crafard, I understand you have asked us to return to you the original of the letter written by you to “Dear Gale” covering the front and back of a page, which has a letterhead on it “Jack Ruby Associates, Dallas, Texas” and which has been identified in this deposition as Exhibit 5227. Normally when a witness produces a document before the Commission we make a photostatic copy, keep the copy and then give the witness his document back. However, this document did not come into our possession in that way, you see.

Mr. CRAFARD. Yes.

Mr. HUBERT. We got this document from the FBI. Therefore, we do not have authority to give it back to you. I will be glad to have a copy made for you if you would like to do that.

Mr. CRAFARD. That is all right.

Mr. HUBERT. Would you like a copy?

Mr. CRAFARD. No; there is no need to go to that trouble. It is just I had no idea I had left that particular letter. I know I didn't do it on purpose. It was accidental, but I left it.

Mr. GRIFFIN. Larry, I want to hand you what has been marked for identification as "Exhibits 5228-A" and "5228-B". Now, do you recognize those as photographs of anything?

Mr. CRAFARD. Yes; these are photographs of my DD-214, my Army discharge, the front and back sides.

Mr. GRIFFIN. Are those, that DD-214, is the paper that you turned over to us on Wednesday?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Are those true and accurate copies of the DD-214 that you gave to us?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. All right. I am going to return to you your copy of the DD-214, and thank you for producing that. I am also going to hand you two photographs which I will mark in the following manner—hand you one photograph—I am going to hand you two photographs which I may have marked "Washington D.C., April 10, 1964, C. L. Crafard, Exhibits 5229-A and B," and I will ask you to look at those and tell us if you recognize those as photographs of anything which you have seen before.

Mr. CRAFARD. Yes; they are exhibits of the front side and reverse side of the subpoena that I was handed for the Jack Ruby murder trial in Dallas, Tex.

Mr. GRIFFIN. All right. You brought this subpoena to us and turned it over to us on Wednesday, is that right?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. I am going to return you, then, the subpoena which you gave us on Wednesday, and thank you for bringing that in. Did you also produce on Wednesday a diary?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. I am going to hand you a series of 10 photographs which are marked, "Washington, D.C., April 10, 1964, C. L. Crafard, Exhibits 5230," and they are numbered on the face of the photograph in a sequence starting with "A" which contains a picture of the front cover of a notebook which says, "USS" with a circle around the USS, and then in quotation marks "oil well" and then down on the bottom right-hand corner of this front cover which is photographed the number 1964. That photograph has the letter "A" on the front of it. After that, there are a series of photographs numbered in sequence 1 through 10 making a total of 11 photographs altogether. Now, I would like you to look at these photographs and tell us if that is a, if those photographs are photographs of anything that you have ever seen before.

Mr. CRAFARD. Yes; these are photographs of a pocket diary that is put out by United States Steel for the oil well corporation.

Mr. GRIFFIN. Who maintained that diary?

Mr. CRAFARD. I did.

Mr. GRIFFIN. Is that, are those photographs of the diary which you turned over to us on Wednesday?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Would you go through those photographs and tell us if everything that you have written in that diary up to date has been photographed in those pictures?

Mr. CRAFARD. Yes; everything I have wrote in that book is here.

Mr. GRIFFIN. Do the Nos. 1 through 10 follow in sequence with the pages, the sequence of the pages that contain writing in your notebook?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. I want to direct your attention to photograph No. 1. There is a notation at the top of that photograph. Would you read that notation?

Mr. CRAFT. "No. 844," the letters HEB 12, 13 and underneath, 844 is the Nos. 12 with a dash 23.

Mr. GRIFFIN. Did you put that notation in the notebook?

Mr. CRAFT. Yes; I did.

Mr. GRIFFIN. When did you put that on there?

Mr. CRAFT. Just shortly after I got the notebook in Michigan.

Mr. GRIFFIN. What is that notation, what does that refer to?

Mr. CRAFT. It refers to the Bible. It is referring to the Book of Hebrews, page 844 the 12th Chapter, and 23d verse.

Mr. GRIFFIN. Why did you write that in there?

Mr. CRAFT. There is something in the Bible that refers to the church to which I belong.

Mr. GRIFFIN. What church is that?

Mr. CRAFT. General Assembly Church of the First Born. That is the only place in the Bible where the name can be found.

Mr. GRIFFIN. Mr. Hubert, do you have any questions that you want to ask about the notebook?

Mr. HUBERT. No.

Mr. GRIFFIN. I am going to return the notebook to you at this time, and I want to thank you for bringing those documents to us. I want to ask you one final question. Is there anything which has come to your attention in connection with the murder of Lee Oswald or the assassination of President Kennedy that you haven't told us about that you think would be of value to the Commission?

Mr. CRAFT. No; I can't think of anything.

Mr. GRIFFIN. I will ask you after we conclude this deposition if anything does come to your attention which might be of value to the Commission if you would contact us and bring it to our attention.

Mr. CRAFARD. Yes; I will do so.

Mr. GRIFFIN. Mr. Hubert, do you have any questions that you want to ask?

Mr. HUBERT. Yes. There have been several conversations between us which might be called interviews in the sense we were talking about the matter at hand during lunch and so forth, is that correct?

Mr. CRAFARD. Yes.

Mr. HUBERT. Do you remember that anything we conversed about at lunch or any interviews, has not been subsequently made a part of this deposition?

Mr. CRAFARD. No; I don't.

Mr. HUBERT. Have you ever talked to any other member of the Commission staff than Mr. Griffin and myself?

Mr. CRAFARD. No.

Mr. HUBERT. Do you feel that considering your testimony and various exhibits that you have identified that we have all you know about the matter that the Commission is investigating?

Mr. CRAFARD. Yes.

Mr. HUBERT. And that is, the death of President Kennedy, and the subsequent violent death of Lee Harvey Oswald, and Ruby's connection therewith.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. I want to thank you for coming here and spending these 3 days with us, and I believe that concludes the deposition.

TESTIMONY OF WILBYRN WALDON (ROBERT) LITCHFIELD II

The testimony of Wilbyrn Waldon (Robert) Litchfield II was taken at 1:35 p.m., on April 16, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This will be the deposition of Mr. Wilbyrn Litchfield, II——

Mr. LITCHFIELD. When I sign, I sign "W. W. (Bob) II",—does that need to be in there?

Mr. HUBERT. You can bring that out later when I ask you more about your name.

Mr. Litchfield, my name is Leon Hubert. I am a member of the advisory staff of the General Counsel of the President's Commission on the Assassination of President Kennedy, under the provisions of Executive Order 11130, dated November 29, 1963, and Joint Resolution of Congress No. 137, and the rules of procedure adopted by the Commission in conformance with the Executive order and the joint resolution, and I have been authorized to take a sworn deposition of you.

I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate, and report on the facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald.

In particular as to you, Mr. Litchfield, the nature of the inquiry today is to determine what facts you know or may know about the death of Oswald, or any other facts you may know about the general inquiry, or, about the possible connection, if any, of Jack Ruby with the death of Oswald or the death of President Kennedy.

I think you have appeared here by virtue of a letter—written request made to you?

Mr. LITCHFIELD. No.

Mr. HUBERT. You didn't receive a letter to come?

Mr. LITCHFIELD. Sorrels called me long distance.

Mr. HUBERT. Well, I must advise you then that under the rules established by the Warren Commission, to govern the procedure of handling witnesses and so forth, every witness is entitled to a 3-day written notice that we wish to take his deposition, but those rules also provide that if a witness wishes to, he may waive that 3-day notice and just go ahead and testify now. So, I ask you now whether you are willing to waive the 3-day notice and proceed to testify now?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. Will you stand and I will administer the oath.

Do you solemnly swear the testimony you are about to give will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. LITCHFIELD. I do.

Mr. HUBERT. You are commonly known among your friends as Bobby?

Mr. LITCHFIELD. Bob.

Mr. HUBERT. Do I understand also that there are some of your legal documents that you always sign that way too?

Mr. LITCHFIELD. I sign it "W. W. (Robert) Litchfield, II."

Mr. HUBERT. How old are you, sir?

Mr. LITCHFIELD. Thirty.

Mr. HUBERT. Now where do you reside?

Mr. LITCHFIELD. 654 West Cross Timbers, Houston, Tex.

Mr. HUBERT. What is your occupation?

Mr. LITCHFIELD. Professional bowler and bowling instructor and I sell trophies for a bowling supply and bowling equipment office—balls, bags,

shoes—etc.

Mr. HUBERT. How long have you been so occupied?

Mr. LITCHFIELD. Since January of this year—approximately the middle of January.

Mr. HUBERT. What was your occupation prior to that time?

Mr. LITCHFIELD. From July 1963, until January of 1964, I did not work. In July 1963, from March 1, 1962, until July 1963, I sold books and worked myself up to a regional manager's position.

Mr. HUBERT. Of what company?

Mr. LITCHFIELD. I was with the Spencer International Press from March of 1962 until May of 1963 working in Dallas-Fort Worth—made district manager in San Jose, Calif., made regional manager February 1963, in Atlanta, Ga., and stayed until May of 1963, and my father's death brought me back to Dallas. I left Spencer and went to work for Great Books of the Western World in June, made district manager in 2 weeks, and was terminated in July due to my past record.

Mr. HUBERT. What do you mean by "past record"?

Mr. LITCHFIELD. I have a criminal record when I was 19 years old, that's 11 years ago.

Mr. HUBERT. What is the nature of it?

Mr. LITCHFIELD. I forged some hot checks and paid them off, but because I still had a bunch of them out—I had three charges in Fort Worth, eight in Dallas, the sum total was roughly \$3,000. Restitution was made prior to the time I went to court. I went to court and received 3 years concurrently on each charge, 3 years on each charge in Fort Worth, 3 years on each charge in Dallas, and concurrently backdated at Fort Worth to August of 1952.

Mr. HUBERT. Was that in the Federal Court?

Mr. LITCHFIELD. No, sir; State and county. I was in prison from February—well, I was arrested August 1952, pleaded guilty in Fort Worth in November 1952, pleaded guilty in Dallas in January 1953, went to

Huntsville Prison in February 1953, made conditional pardon in December 1953—do you want all this?

Mr. HUBERT. Yes; and you were released then, I take it?

Mr. LITCHFIELD. Right. Pardon was reversed because I was married and I was voluntarily returned from Denver, Colo.; I just came back myself and turned myself in at Huntsville and I was released in April of 1956.

Mr. HUBERT. You were actually released from Huntsville in December 1953, under a conditional pardon?

Mr. LITCHFIELD. Yes, sir; to Denver, Colo.

Mr. HUBERT. That is to say, that it was with the permission of the State of Texas—Texas authorities?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. Were you on any terms of good conduct?

Mr. LITCHFIELD. I had to report each month.

Mr. HUBERT. In Denver?

Mr. LITCHFIELD. Right, and obtain a job, and I obtained one and my parole officer—I asked him should I tell them I'm on parole, and he said "No," and three places I worked after I was there he called and asked how I was doing and identified himself, which caused my termination, and the last place I worked was a laundry. I was driving a truck and the man told him—do you want the words he used?

Mr. HUBERT. Yes.

Mr. LITCHFIELD. "I don't give a damn what he is doing, he is doing a good job." And I have a better recommendation from him that he sent me when I came back to Texas.

Mr. HUBERT. You said something about turning yourself in?

Mr. LITCHFIELD. Yes, sir; my parole was revoked in July 1955.

Mr. HUBERT. What was the reason for that?

Mr. LITCHFIELD. The reason on my revokement is "unadjustment, unable to adjust."

Mr. HUBERT. That was done in Texas or Colorado?

Mr. LITCHFIELD. It was done in Colorado—in Denver, and in August 1955, I left Denver, Colo., and drove home and said goodbye to Mother and Dad and drove down to Huntsville—in fact, my Dad drove down to Huntsville with me.

Mr. HUBERT. In other words, when you found out that the Colorado people had in effect recommended the revocation or revoked your parole, you knew that you would be eventually sought?

Mr. LITCHFIELD. Or just sent back.

Mr. HUBERT. So, you just bypassed that and drove yourself into Huntsville?

Mr. LITCHFIELD. I went to Austin first to the parole board and they said, “We have already reviewed your case and formulated an opinion. You are going back.” And I said, “Well, I’m not going back today. I’ll go back tomorrow,” and I went back the following day and turned myself in.

Mr. HUBERT. How long did you stay in?

Mr. LITCHFIELD. From August 1955 until April 1956, and I was discharged in April 1956.

Mr. HUBERT. Were you discharged completely?

Mr. LITCHFIELD. Completely.

Mr. HUBERT. Or on conditions?

Mr. LITCHFIELD. Completely.

Mr. HUBERT. Completely?

Mr. LITCHFIELD. No conditions whatsoever.

Mr. HUBERT. No conditions at all. Have you had any difficulty since then?

Mr. LITCHFIELD. Do you want the FBI fingerprint record for the time I have been picked up? I have been picked up six or seven times for investigation. I was picked up in Arizona for investigation, I was picked up

in Florida for investigation. I got low on money—I wrote some hot checks in 1957 in Arlington, Va., and I paid them off and that was my latest.

Mr. HUBERT. You were not charged?

Mr. LITCHFIELD. Yes: in Arlington, Va., in 1957, I got 6 months.

Mr. HUBERT. And did you serve any part of that time?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. And how much?

Mr. LITCHFIELD. Five months—four months.

Mr. HUBERT. And then you were discharged from that without condition?

Mr. LITCHFIELD. Yes—without condition. That was in a county jail. I was a trustee—I was head cook.

Mr. HUBERT. Well, have you had any other convictions since then?

Mr. LITCHFIELD. Since then—no, sir; one felony and one misdemeanor.

Mr. HUBERT. And that's the two you have already told us about?

Mr. LITCHFIELD. Right.

Mr. HUBERT. When you were 19 and the other one in 1957?

Mr. LITCHFIELD. I was charged—excuse me—I was picked up in January or February 1958 and returned to Arlington, Va., and I was released at Arlington, Va., in August 1958.

Mr. HUBERT. Since August 1958, you have had no trouble with the law?

Mr. LITCHFIELD. Other than the fact that I—of being picked up for investigation.

Mr. HUBERT. But you had no convictions?

Mr. LITCHFIELD. None.

Mr. HUBERT. Were you ever charged at all—formally, I mean, by actual indictment?

Mr. LITCHFIELD. No—no indictments.

Mr. HUBERT. You are not under any charge right now?

Mr. LITCHFIELD. No, sir.

Mr. HUBERT. You say you are married; when were you married?

Mr. LITCHFIELD. I got married in 1961.

Mr. HUBERT. How did you support yourself between July 1963, and January 1964, when you were unemployed?

Mr. LITCHFIELD. My wife was working—my wife was working and I lived with her and my mother.

Mr. HUBERT. Did you attempt to get work?

Mr. LITCHFIELD. Yes—that's one reason I left Dallas. The person who is division manager of Great Books that terminated me, falsified—the reason I was terminated, he accused me of something I did not do, and I couldn't prove it. It was my word against his. I couldn't prove it, and in January I had a chance to go to Houston to work for Great Books and I went there and I tried to use the name of Robert Field—I had made man-of-the-month for the Great Books organization of the whole United States, and my picture was in their magazine called the Phenix. And the division manager in Houston recognized me and checked it out and then 2 weeks later I had requested from this gentleman here about three orders for me to be paid off. He had said they did not clear, that there was no money involved and 3 weeks later through my bank here in Dallas, Bank of Services and Trust, it just so happens that the man's name is Charles Counter. He has his personal account there also, and I've got him on two counts of forgery right now. He took my paycheck, signed my name, and endorsed it over to him. I have the photostats from the bank and the photostats of the canceled checks that cleared the company.

Mr. HUBERT. But in any case, the point I think you are making—that your opportunity to get with Great Books of the Western World in Houston was frustrated because of the fact that you had changed your name and they found out. That is, changed your name to the extent of leaving off the first syllable of your last name?

Mr. LITCHFIELD. Yes, and the division manager there even talked to the president of the company and he said "No." So, I went to work for this

bowling supply which is owned by F. M. Curtis and Mel Livingston and I told them my past record, and Mr. Curtis is a highway patrolman, he has an interest in the supply business and he said, "I'll give you a break," and I've been doing real good since. He just gave me a break.

Mr. HUBERT. You say you are a professional bowler?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. Have you competed?

Mr. LITCHFIELD. Yes; in 1960 and 1961 I did, sir.

Mr. HUBERT. Tell us about that.

Mr. LITCHFIELD. Well, I bowled in the All-American here in Dallas, the PBA tour in 1961, I bowled in the Santa Fe Open in 1961 and I bowled in the small—when I say "small" I mean \$3,000 to \$5,000 total first place, singles and doubles tournaments.

Mr. HUBERT. Have you ever won any prizes?

Mr. LITCHFIELD. Yes, I have won prizes but I have never won the first place—no.

Mr. HUBERT. What is the most that you have won?

Mr. LITCHFIELD. \$750.

Mr. HUBERT. Where was that?

Mr. LITCHFIELD. Ardmore, Okla.

Mr. HUBERT. Ardmore, Okla.?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. When?

Mr. LITCHFIELD. 1961.

Mr. HUBERT. About what part of the year—what tournament was it?

Mr. LITCHFIELD. It's called the Ardmore Classic. I think they run it from about May to about August. It's 8 games across 16 lanes, handicapped from 2 to 10.

Mr. HUBERT. You won \$750—which was not first place, but what?

Mr. LITCHFIELD. About eighth place.

Mr. HUBERT. And you won it under your name W. W. Litchfield or Bob Litchfield?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. Now, you were living in Dallas, I take it, in the last 6 months of 1963?

Mr. LITCHFIELD. Yes; I was.

Mr. HUBERT. Where were you living then?

Mr. LITCHFIELD. 302 West Clarendon. I also lived at the Drexel House Apartments.

Mr. HUBERT. Where are they located?

Mr. LITCHFIELD. Oh, me, I have forgotten the address—Henderson and Knox.

Mr. HUBERT. Who runs that?

Mr. LITCHFIELD. I've forgotten the lady's name that runs that.

Mr. HUBERT. Bertha Cheek.

Mr. LITCHFIELD. No—she does not run it.

Mr. HUBERT. Do you know Bertha Cheek?

Mr. LITCHFIELD. Yes; I do.

Mr. HUBERT. Do you know what street she lives on?

Mr. LITCHFIELD. Yes; I do—Bertha Cheek lives on Swiss Avenue. She owns an apartment house on Swiss, but the Drexel House is on—right off the corner of Knox.

Mr. HUBERT. Did you ever live at Bertha Cheek's boarding house or apartment?

Mr. LITCHFIELD. No, sir; I did not.

Mr. HUBERT. Never?

Mr. LITCHFIELD. Never.

Mr. HUBERT. How did you get to know her?

Mr. LITCHFIELD. I met her through a fellow at the bowling alley—I don't remember his last name. He owns an electric company here in town, the one that has the lighting for all the fairgrounds, Bob Sands Electric Co.

Mr. HUBERT. And he operates the bowling alley?

Mr. LITCHFIELD. No, sir; he was a bowler.

Mr. HUBERT. He was a bowler himself?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. Did you ever visit at her place?

Mr. LITCHFIELD. Yes, sir.

Mr. HUBERT. That is to say, her apartment?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. When?

Mr. LITCHFIELD. Oh, let's see, spasmodically from September to October and November of 1963.

Mr. HUBERT. In other words you met her——

Mr. LITCHFIELD. In September—I'm pretty sure it was, about the latter part of August or the first of September.

Mr. HUBERT. And you met her by simply being introduced to her by Sands at a bowling alley?

Mr. LITCHFIELD. No; he told me she had planned on putting in a lounge and Bob had given her my phone number and she called me on the pretext that I might build it and run it for her.

Mr. HUBERT. So you went to see her then?

Mr. LITCHFIELD. Yes, sir.

Mr. HUBERT. And you went to her house?

Mr. LITCHFIELD. Yes; on Swiss.

Mr. HUBERT. You had never seen her before?

Mr. LITCHFIELD. Never before that—she said she had seen me, but there was no recollection or no introduction prior to that time.

Mr. HUBERT. Well, what happened to the negotiations that you engaged in with her?

Mr. LITCHFIELD. It would be that I would have had to divorce my wife and had to have married her for any other further business to have been transacted.

Mr. HUBERT. If I'm not mistaken, isn't she an older woman than you are a man?

Mr. LITCHFIELD. I believe she is—she's 30-something or 40-something.

Mr. HUBERT. And you are saying to us that she made it a condition?

Mr. LITCHFIELD. It wasn't a verbal condition—it was a obvious condition. It was a situation that was arising, let's say that.

Mr. HUBERT. And you perceived that you would have to marry her if this thing was to go forward?

Mr. LITCHFIELD. That, or divorce my wife.

Mr. HUBERT. But she did not say so?

Mr. LITCHFIELD. No.

Mr. HUBERT. You think she intimated it?

Mr. LITCHFIELD. Let's say, from my past experience and knowledge of—worldly knowledge—I would assume this, that's being kind of tactful.

Mr. HUBERT. I was wondering if you could point to any events, since you can't point to any words that gave you that impression?

Mr. LITCHFIELD. Without being too personal or intimate on my own actions or any actions other than hers, no; and I don't care to be.

Mr. HUBERT. All right. Did you know Jack Ruby?

Mr. LITCHFIELD. Yes; I knew Jack.

Mr. HUBERT. How did you meet him?

Mr. LITCHFIELD. Jack used to own the Vegas Club and I used to go there quite a bit.

Mr. HUBERT. How do—how long do you suppose it is that you have known Jack?

Mr. LITCHFIELD. Oh, I would say from 1959—October, roughly.

Mr. HUBERT. Continuously?

Mr. LITCHFIELD. Well, I will go in and say “hello” to him, see him whenever I would go in. It wasn’t a friendship relation that I would go out of my way to call him or see him or that he would call me. He had no way of knowing how to call me. He knew me when he saw me and said, “Hello, how are you?”

Mr. HUBERT. What about the Carousel Club, did you visit it?

Mr. LITCHFIELD. I have been in that place twice.

Mr. HUBERT. Can you tell us when that was?

Mr. LITCHFIELD. When I was associated with Bertha and she was thinking of putting in a business, we looked at a whole bunch of clubs she thought were for sale, and I knew the Vegas Club was not making any money and I would have liked to have tried to buy it from Jack, so one night I went down to see him—I had called and he said he would be there about 10:30 or 11 and he got there about 11:15 or 11:30, something like that, and I discussed the purchase of the Vegas Club and that’s when he told me it had, I think, \$40,000 worth of Federal liens or something against it which still had it, and he tried to sell me the Carousel and I wouldn’t attempt to put in a private club in downtown Dallas; I was thinking of making the Vegas a private club by remodeling it.

Mr. HUBERT. But what you wanted to put in was a private club, not an open or public club like the Carousel?

Mr. LITCHFIELD. That’s right—a private club.

Mr. HUBERT. And it was your opinion that the Carousel was not the proper place for a private club?

Mr. LITCHFIELD. Right—any downtown location. You see, I cannot obtain an open—let’s say a beer license because of my record with the city

of Dallas, but I can obtain a private club license from the State of Texas, even though I have a record. I talked to Buddy Mills on the liquor board and he said, "If you haven't done anything in 3 to 5 years—no conviction or anything," you can.

Mr. HUBERT. That was the first time you were in the Carousel and you were there with Cheek?

Mr. LITCHFIELD. No; I was not. I was alone. That was the second time I had been in there. I had been in there one other time—I just went in to see what it was—I didn't speak to anybody at all that time.

Mr. HUBERT. Can you give us the date of the second time that you did speak to him?

Mr. LITCHFIELD. I think right around the middle of October—the second week or the third week, somewhere along in there—the exact date—no; I cannot.

Mr. HUBERT. I think you said that at the time—or you said once before in your statement—at the time you were there there were some people taking pictures of the club?

Mr. LITCHFIELD. There were some fellows—you see, when I walked in Jack wasn't there and I told the doorman, whom I found out later was his roommate—I don't remember the man's name, that I was to see Jack on business and he said he wasn't there, and so I sat down and had some coffee and watched the bumps and what have you, and after Jack came in, then he had to see two or three people before me.

Mr. HUBERT. Did you happen to mention to the doorman or anybody else around there that you were from California?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. You did so?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. Whom did you tell that to, do you remember?

Mr. LITCHFIELD. The doorman and some other fellow that was sitting there. He asked me where I was from and I said, "California and Phoenix"—is all I said. I didn't think it was any of his business who I was.

Mr. HUBERT. Do you remember the name of the other man, other than the doorman to whom you said that?

Mr. LITCHFIELD. No—he was a little short fellow, I would say late forties or maybe even middle fifties. If I remember right he had kind of a silver hairline—I don't remember—whether he was kind of bald in the center or not, I know it was receding, and he had an appearance of being of Jewish descent.

Mr. HUBERT. Do you think you might recognize his name?

Mr. LITCHFIELD. I doubt it, because when he was introduced to me I didn't pay that much attention to it—no, sir.

Mr. HUBERT. Who introduced you?

Mr. LITCHFIELD. The doorman. They were sitting there together drinking a Seven-Up or a Sprite.

Mr. HUBERT. Well, so, you just stayed and waited for Jack?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. How long did you have to wait?

Mr. LITCHFIELD. I think—30 or 45 minutes.

Mr. HUBERT. And Jack came in?

Mr. LITCHFIELD. The dog first, then him.

Mr. HUBERT. Then, did he see you right away?

Mr. LITCHFIELD. No, he walked by me because I was sitting right by the door and he turned and said something to the doorman first and then I think he went on back and put his hat up and came back to the doorman, and that's when the doorman pointed me out—he walked over and said—just a moment—he had two or three other fellows to see him—I was sitting by the door—have you ever been in the Carousel?

Mr. HUBERT. No, sir.

Mr. LITCHFIELD. Well, I was sitting by the door like this, as you are walking in you have to turn left. There is an aisle and there was a fellow sitting back here by the pole with the light switches on it and there was a

fellow sitting in front of me, and then there was the photographer who was there. I didn't meet the photographer until after I had been introduced to Jack and Jack introduced me to him—some magazine for strippers like Male or Stag type magazine and he was taking pictures and he had to get releases from the strippers—some kind of a release they would have to sign so that he could take their pictures.

Mr. HUBERT. You saw him getting the releases from the people?

Mr. LITCHFIELD. Well, I saw how he came in and he had the releases in his hand. He said he had to get all of the girls to sign them and he said all of them would sign them except one.

Mr. HUBERT. And that was when you were talking to Jack in his office?

Mr. LITCHFIELD. In his office.

Mr. HUBERT. The photographer came in and said that he had some papers in his hand which you understood to be releases?

Mr. LITCHFIELD. No, he said he had the releases and had to go out and get them signed, and then he came back again and said all except one was signed.

Mr. HUBERT. And it was on that occasion that you talked to Jack about buying the Vegas?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. And he counteroffered by suggesting that you buy the Carousel?

Mr. LITCHFIELD. Correct.

Mr. HUBERT. Do I understand that that was the last time you saw Jack that night?

Mr. LITCHFIELD. It was until I saw him on television—I happened to be playing poker then.

Mr. HUBERT. Can you fix the time of that occasion with reference to particularly the death of the President, about how long before?

Mr. LITCHFIELD. Well, like I said, it was probably the middle of October.

Mr. HUBERT. Do you think it was about a month and a little bit before the death of the President?

Mr. LITCHFIELD. He was killed the last half of November—maybe 5 weeks or 6 weeks—it was about the middle of October.

Mr. HUBERT. I think you have previously stated that you saw a man in there on this occasion who you thought was Oswald?

Mr. LITCHFIELD. I did—in fact, I made the statement, as I was saying a while ago, when I was playing poker—a bunch of fellows from the bowling alley—we usually play on Saturday night. We started about 9:30 and the game continued all through the night—one of those \$2 limit games and we were still playing Sunday, and the fellow's wife had carried the children to church and come back and said something about Ruby had shot Oswald on television. No, excuse me, "Had shot him." She had heard it on the radio, and so we turned on the television and they were rerunning all of this and a big hullabaloo over it and that was the next time I saw Jack.

Mr. HUBERT. And did you make any comment at that time that you had seen Oswald in the Carousel?

Mr. LITCHFIELD. I had seen Oswald on television before. I said, "That guy looks familiar," and a few of the fellows were around, and I don't remember where I said it there at the poker game, but somebody said, "I think I've seen that Oswald around somewhere," and I made the statement, "Yes, I think I have seen him too," and that was the extent of it. Nothing more was said.

Mr. HUBERT. Was that statement you made that you had seen Oswald around somewhere, was it made before Oswald was shot?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. Did you repeat it thereafter?

Mr. LITCHFIELD. I did to a friend of mine who is on the vice squad here in Dallas.

Mr. HUBERT. And what is his name?

Mr. LITCHFIELD. Donald Green.

Mr. HUBERT. When did you tell him?

Mr. LITCHFIELD. Well, it was the day preceding the day that I went down—I think I went down on a Monday to the police station to talk to the FBI agents and everybody, so I must have talked to Don on the Sunday night preceding that or on Saturday. I called him on the phone and I told him, “I think I have seen that man with Jack up at the Carousel.” I said, “I don’t know, but I’m pretty darn sure I have.” And he made some calls and called me back and said the police department right now wants to talk to me, and he met me—I believe it was Monday, I’m pretty sure it was a Monday, he met me Monday morning about 9:15 or 9:30 at the coffee shop of the Statler and we walked on up to the police station.

Mr. HUBERT. And you made a statement of that?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. And subsequently that same day you made a statement to the FBI?

Mr. LITCHFIELD. Two FBI agents.

Mr. HUBERT. I think they asked you to take a polygraph test too?

Mr. LITCHFIELD. Right.

Mr. HUBERT. And you did?

Mr. LITCHFIELD. And the tests showed that I hadn’t seen him because when the man giving it asked me, “Have you definitely seen him,” and I said, “Yes,” and it showed that I hadn’t.

Mr. HUBERT. You mean he told you the results of the test?

Mr. LITCHFIELD. No, he didn’t tell me the results of the test, but Donald did—he didn’t tell me—he didn’t come right out and say, “No,” but it was obvious. They had me pick Oswald’s picture out of a bunch of police photographs, and anybody on the street could pick that man’s picture out. That doesn’t mean I have seen him—I told them that—I said, “Heck, anybody walking can pick his picture out.”

Mr. HUBERT. And you had observed to someone prior to the shooting of Oswald that you thought you had seen Oswald somewhere?

Mr. LITCHFIELD. Right.

Mr. HUBERT. Who were the people that you were—that you observed that to?

Mr. LITCHFIELD. Let me understand your question—whom did I say this to?

Mr. HUBERT. Yes.

Mr. LITCHFIELD. I mentioned it like I said, there at the poker game.

Mr. HUBERT. This was the same poker game that went on into Sunday the 24th?

Mr. LITCHFIELD. Was that the day that Oswald was killed?

Mr. HUBERT. Yes.

Mr. LITCHFIELD. Yes—that would be it. From Saturday the 23d to Sunday the 24th—I made it then, and—

Mr. HUBERT. Did you make it after Oswald was shot at that same poker game?

Mr. LITCHFIELD. That's when I made it. We was watching it on television—the rerun of it.

Mr. HUBERT. I had understood you to say that you had said you thought you had seen Oswald somewhere, and that you made that statement prior to the time that Oswald was shot?

Mr. LITCHFIELD. I made it once but like I said, I don't remember who I made it to.

Mr. HUBERT. It was not at the poker game?

Mr. LITCHFIELD. No—the statement at the poker game—we were watching it on television and it showed everything there and someone says, "I think I've seen that fellow," and I said, "Yes; I think I've seen him too." That was the second time I had said it—before when his picture came out and everything, I said, "I think I have seen him," but I don't remember where I was when I said it.

Mr. HUBERT. What time did your poker game begin?

Mr. LITCHFIELD. Oh, Saturday night about 9 or 9:30.

Mr. HUBERT. And went on until——

Mr. LITCHFIELD. Into Sunday and until about 6:30.

Mr. HUBERT. In the afternoon?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. So that the first time you made the observation that you thought you had seen Oswald somewhere must have been before the poker game began?

Mr. LITCHFIELD. Yes—it was.

Mr. HUBERT. So that would be before 9 o'clock on Saturday?

Mr. LITCHFIELD. Yes—it was. It was right after the assassination—they were showing all the films and the capture of Oswald, etc., and when I was watching television, I don't remember where I was, I said, "I think I've seen him." And people sitting around me said, "He looks familiar," and I made the statement, "I think I have seen him."

Mr. HUBERT. Now, when Oswald was shot and you made the statement again that you had thought you had seen Oswald, did you say anything that would indicate that you had seen him, Oswald, at Ruby's place?

Mr. LITCHFIELD. No; I just said, "I think I've seen him too," I forgot who it was I said that to, but the guy said. "I think I have seen him or I think I know that guy," and I just said, "Yes; I think I have seen him, too."

Mr. HUBERT. Did it occur to you that—then that it might have been that you had seen him at Ruby's place?

Mr. LITCHFIELD. I started trying to remember—everybody was sitting around and saying, "Where have you seen him?" Trying to think, and I thought about it and I remembered seeing a man similar to him, very similar to him at the Carousel that night I was there.

Mr. HUBERT. Did you say that to anybody?

Mr. LITCHFIELD. Just Don Green when I called him on the phone and then when I went down to the police department.

Mr. HUBERT. Did you say that to any of the people you were playing poker with?

Mr. LITCHFIELD. No; I did not.

Mr. HUBERT. Would you give us the names of the people you were playing poker with, whose house was it at, first?

Mr. LITCHFIELD. J. W. Grubbs [spelling] G-r-u-b-b-s.

Mr. HUBERT. Where does he live?

Mr. LITCHFIELD. Boy, I can't tell you that—I can tell you how to go there, but I don't remember what street it is. You go out Beckley past the A. Harris shopping center—I don't remember the name of the street, you turn left and then you went down a couple of blocks and you turn left again—there were three cars of us and I followed. I don't remember the name of the street.

Mr. HUBERT. Would you tell us the names of some of the other people at the poker game?

Mr. LITCHFIELD. J. W. Grubbs and there was Ernie Stoy [spelling] E-r-n-i-e and S-t-o-y, and one fellow I just met, he just came in—I didn't know, and another fellow, gee, I sure wish I could remember his name. I know him when I see him—they are always at the bowling alley, he usually bets on the pot games, and he is a big heavy set black headed fellow and Max Lewis was there.

Mr. HUBERT. [Spelling.] L-e-w-i-s?

Mr. LITCHFIELD. Yes [spelling], L-e-w-i-s, and I think there was one more—I don't remember who that was.

Mr. HUBERT. They were all there throughout the game—were they all there throughout the game?

Mr. LITCHFIELD. Max left Sunday morning and then returned.

Mr. HUBERT. Now, at the time it became known that Ruby had shot Oswald, did you observe to anyone that you knew Ruby?

Mr. LITCHFIELD. I believe I did. I think everybody was saying whether they knew him or not and I believe I did.

Mr. HUBERT. Did anyone else there know him?

Mr. LITCHFIELD. I think one or two others might have said that they knew him.

Mr. HUBERT. Do you know whether Grubbs knew him?

Mr. LITCHFIELD. No, sir; I don't remember.

Mr. HUBERT. Who said they knew him?

Mr. LITCHFIELD. I could assume, but I don't remember who said that they knew him.

Mr. HUBERT. In any case, you did not at that time say that you thought you had seen Oswald in the Carousel?

Mr. LITCHFIELD. No, sir; I just said that—you are getting mixed up. I said—when it became obvious that Ruby had shot him, we were watching it on television, and we were, you know, how you are talking, “I think I know him,” and I said, “I'm pretty sure I know Jack Ruby,” and I said, “What is that idiot doing now?” Or something like that, and I forgot that someone said, “That Oswald, I think I've seen him somewhere before,” and that's when I said it.

Mr. HUBERT. You said the same thing, “I think I've seen him?”

Mr. LITCHFIELD. Yes.

Mr. HUBERT. When was it you began to associate Oswald as a man that you had seen somewhere before—and as also the man you had seen in Jack Ruby's club the last time you were there?

Mr. LITCHFIELD. I believe it was that day—not that I was associating necessarily it with Ruby—it was that everybody all of a sudden had seen him and they were trying to think where they had seen him and I was trying to remember where I had seen him.

Mr. HUBERT. Well, my point is that you ultimately came to tell Jack Green——

Mr. LITCHFIELD. Don Green.

Mr. HUBERT. Don Green, that you thought you had seen him at the Carousel?

Mr. LITCHFIELD. Right.

Mr. HUBERT. When did that firm up in your mind, because from what I gather it was not firmed in your mind where you had seen him, on the Sunday when you were playing poker, isn't that right?

Mr. LITCHFIELD. Correct. I wasn't positive then, no, where I had seen him.

Mr. HUBERT. When did you become positive that you had seen him at the Carousel?

Mr. LITCHFIELD. Well, I was thinking about it during the week, on Thursday or Friday, and it dawned on me that that looked like the fellow that I had seen in the Carousel.

There was another fellow up there that I had never seen before and made a heck of an impression on me—he was about twice my size, a real flashy dresser, white on white shirt and his suit was a very flashy type, and he had just gotten married, but he, himself, made a heck of an impression on me, the way he was dressed and his size, and this fellow that I had seen in the Carousel made a heck of an impression on me the way he was dressed—he was dressed sloppy—in a sloppy shirt and kind of a gray khaki-type pants. I thought, “What is this idiot doing up here?” You know, because it is known that the Carousel is a clip joint and you've got to be an idiot to go in there in the first place, or a tourist, one of the two, and I just ran—I guess you would just say that it came into my mind that that looked like the fellow I had seen. I was associating the sloppy dress with him because he was dressed sloppy on television and when you see it repeatedly and repeatedly—you remember it.

Mr. HUBERT. Tell us how you think the man might have been Oswald that you saw in the Carousel was dressed on the occasion you saw him, which was the last time you saw Ruby?

Mr. LITCHFIELD. He had on a white sweater and kind of a T-shirt-type sweater, and a pair of, I guess they were gray khakis or they might have been gabardine, there was no crease in them and they were real sloppy and his hair wasn't combed, you know.

Mr. HUBERT. You didn't talk to him?

Mr. LITCHFIELD. No, I didn't talk to anybody while I was there other than Jack and I did meet that photographer—I don't remember his name.

Jack introduced me, and I did meet that great big guy. He came back into the office—he did once while I was in there with Jack and he had just gotten married to some girl from Galveston and they were celebrating their honeymoon and I was thinking, “You’ve got to be a nut to come to a place like this to celebrate a honeymoon.”

Mr. HUBERT. When you came out of Jack’s office, did you see this man that you think might be Oswald in there still?

Mr. LITCHFIELD. When you come out of his office, you can’t see nothing—you walk down the hall and turn left and then you are back in the club part of it—the Carousel.

Now, when I came back in the club part, the man that I thought was Oswald had already seen Jack—I was the last one to see him—I don’t think there were more than two or three people left in the club—this big heavy-set fellow and his wife were still there.

Mr. HUBERT. In other words, this man you thought was Oswald was waiting to see Jack?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. And he was ahead of you?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. And you had an opportunity to observe him then as the man who got to see Jack before you did?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. Was he there before you got there?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. And was sitting down at the table?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. Was he drinking something?

Mr. LITCHFIELD. I don’t remember if he had something or not. He was in front of me and all I could see was his back at that time.

Mr. HUBERT. Did you ever get a look at his face?

Mr. LITCHFIELD. When he left he had to walk right by me. The door is not more than—it's one of these partition-type doors and it is not more than 5 feet or 4 feet wide, and the table I was sitting at—I was sitting at the edge of the door. I couldn't help but see him when he walked along there.

Mr. HUBERT. How long was he in with Jack?

Mr. LITCHFIELD. No more than 10 or 15 or 20 minutes, maybe, at the most.

Mr. HUBERT. And when he came out you went in Jack's office?

Mr. LITCHFIELD. No; you see, Jack's office is back, in the back and you got to walk down two halls and Jack came out and got me. This fellow came out and then Jack came out and got me and I went back there with him.

Mr. HUBERT. Did you observe what this fellow you thought might be Oswald did at that time?

Mr. LITCHFIELD. He went on out the door.

Mr. HUBERT. Did you ever see him again?

Mr. LITCHFIELD. No; not until I saw him on television—and I thought it was the same one.

Mr. HUBERT. Now, that impression got firmer and firmer in your mind, as I gather it, as the week went on?

Mr. LITCHFIELD. After that Sunday television seeing Jack shoot him there; yes, sir.

Mr. HUBERT. But when you told Don Green your impression, it was not the same day, was it?

Mr. LITCHFIELD. No, sir; it was a week later.

Mr. HUBERT. It was actually the Sunday later?

Mr. LITCHFIELD. I believe it was Saturday or Sunday.

Mr. HUBERT. And the impression began to grow on you more and more that it might well be the same man?

Mr. LITCHFIELD. Yes, sir.

Mr. HUBERT. And as a matter of fact, as I understand you, it grew so much that you thought you should tell someone about it?

Mr. LITCHFIELD. I called Don and asked him what he thought I should do.

Mr. HUBERT. And he suggested coming to the office and I think you have told us about that.

Was there another man around there you heard had come from California?

Mr. LITCHFIELD. There was somebody waiting to see Jack, like I said, that was sitting—there was a aisle going straight and you got to turn left—back by the pole where the light switches are, and he was waiting to see him and I believe he said he was from California and he was in his middle thirties, a black-headed fellow. I never met the man and he saw Jack and he was still there when I left.

Mr. HUBERT. Who was?

Mr. LITCHFIELD. This fellow we are speaking of now.

Mr. HUBERT. From California, you mean?

Mr. LITCHFIELD. I think he said he was from California. I think when I came in the doorman said, “Well, there are two other people here and the photographer to see him ahead of you,” when I first came in, and he said, “He’s late now, but you can have a seat and wait if you want to.” And the two other people were the fellow whom I assumed that looked like this Oswald, and this fellow, I believe that said he was from California and the photographer—were the three people in front of me.

Mr. HUBERT. Did you see the man who said he was from California talk to the man you think was Oswald?

Mr. LITCHFIELD. No, sir.

Mr. HUBERT. You had never seen Oswald before?

Mr. LITCHFIELD. No; never had.

Mr. HUBERT. You were shown pictures of Oswald, is that right?

Mr. LITCHFIELD. I was shown a police photograph of him, front and side view, with three others.

Mr. HUBERT. What was your impression at that time as to whether Oswald was the man you had seen in the Carousel?

Mr. LITCHFIELD. I wasn't asked my impression at that time—all I was asked is, "Pick out Oswald," and I said, "There he is, anybody walking in Dallas could do it."

Mr. HUBERT. What was the purpose in having you pick out Oswald?

Mr. LITCHFIELD. I would imagine the police department wanted to know if I really knew him or really had seen someone like him.

Mr. HUBERT. Well, when you picked out Oswald, were you simply picking out Oswald because you had seen his picture on television, or were you picking him out because he was the man you thought you had seen in the Carousel?

Mr. LITCHFIELD. When I picked out his picture, I was picking it out because I had seen it on television so many times.

Mr. HUBERT. Now, the police wouldn't ask you to pick out Oswald's picture unless there was some reason for your specific identification of Oswald.

Mr. LITCHFIELD. Well——

Mr. HUBERT. You had called Green, from what you tell me, to tell him that you thought that you had seen a man who looked like Oswald at the Carousel?

Mr. LITCHFIELD. Yes, sir.

Mr. HUBERT. Wasn't that the reason why they were asking you to pick out the man that you had seen at the Carousel?

Mr. LITCHFIELD. I would assume—I don't know. I wouldn't know their reasoning behind it. I would assume this would be it, but when I picked him out, I told them at the time, I made the statement, "Anybody in Dallas could pick him out—he was on the TV so much."

Mr. HUBERT. Did you ever tell them that the man I now know is Oswald from the films and that I am now picking him out is also the man that I saw at the Carousel?

Mr. LITCHFIELD. I did.

Mr. HUBERT. You told them that?

Mr. LITCHFIELD. Yes, sir.

Mr. HUBERT. And you believe that to be true?

Mr. LITCHFIELD. I thought it was until they convinced me I was wrong.

Mr. HUBERT. What do you think about it now?

Mr. LITCHFIELD. I said, "It sure as heck looked like him," that's all I can say now. Of course, I don't want to say I'm definitely positive it is—I said, "It's a heck of a close resemblance."

Mr. HUBERT. That's your testimony right now, that as far as the man you saw and have described—sloppy clothes, white jacket—T-shirt type—go in and see Ruby before you on an occasion approximately 5 weeks before the assassination of the President, that that man and the Oswald photographs later shown you, you think that they bore a close resemblance?

Mr. LITCHFIELD. Yes; they do—they bear a resemblance.

Mr. HUBERT. I gather that you were more positive of the identity of Oswald as being the man in the Carousel on the occasion we have been speaking about at one time than you are now?

Mr. LITCHFIELD. I was; yes.

Mr. HUBERT. What has caused your opinion in the matter to weaken?

Mr. LITCHFIELD. The fact that they gave me the polygraphic test, that showed when they asked me—was it definitely him, it didn't show up right, and the fact that I had told Don when I called him, I said, "It sure as heck looks like him," and when the police were questioning me, they said, "Are you positive, are you positive, are you positive?"

I said, "It looks like him, it looks like him, it looks like him." And they come back, "Are you positive, are you positive?" And then the fact that when the Federal agents talked to me, they said, "You know, if you say you

are positive and it wasn't him," it's a Federal charge, and I said, "Well, I'm not that positive."

Mr. HUBERT. The Federal agent told you if you gave an opinion——

Mr. LITCHFIELD. No; they said, "If you give false information as to an exact statement——" not an opinion, but if I say I'm positive, that's a statement.

Mr. HUBERT. Well, are you conveying to me that you really were positive, but that——

Mr. LITCHFIELD. In my mind.

Mr. HUBERT. You were scared off of it?

Mr. LITCHFIELD. No, sir; no, sir. I said in my mind I was positive that it looked like him, but I'm just as fallible as anybody else. I could be 100 percent wrong. I said, "In my mind, the man that I saw looked just like him," but then again, I can't say 100 percent.

Mr. HUBERT. And that is still your opinion?

Mr. LITCHFIELD. I said it bears a close resemblance, but not having come in contact with Oswald at all or having never met him or anything, and just seeing him for a fleeting glance, the back of his head and when he walked by me; no, I can't be 100 percent pure positive.

Mr. HUBERT. But you knew all of that the first time you told it to Green?

Mr. LITCHFIELD. Well, like I said, "It sure does look like him—the man I saw there sure does look like Oswald," those are my words.

Mr. HUBERT. But, what has caused you to weaken in your opinion it was Oswald, as you tell it to me, is the fact that you got the impression that if you gave a positive identification and it proved to be false, that it would be a Federal offense, is that correct?

Mr. LITCHFIELD. Yes; they said, giving false information to the FBI, and I'm not 100 percent pure positive. I say, "It bears a close resemblance," and this is all I can say.

Mr. HUBERT. And that's all you did tell them?

Mr. LITCHFIELD. Yes, sir; that's the statement I signed.

Now, the big heavy-set fellow that I met, I shook hands with, made an impression on me. I was as close to him as I am to you now, or closer. I shook hands with him, and I saw him more than for a fleeting moment.

Mr. HUBERT. I want to show you a picture and ask you if you can see any resemblance between the picture I am going to show you and the man you thought might be Oswald—this picture I am going to show you, the man is dressed up, but if you can use your imagination to see if there is any resemblance?

Mr. LITCHFIELD. To see if there is any resemblance?

Mr. HUBERT. To see if there is any resemblance in the face, at least, and the hair, and so forth?

Mr. LITCHFIELD. No; Oswald's hair isn't that thick in the center.

Mr. HUBERT. I'm not talking about Oswald, I'm talking about the man you saw at the club you thought might be Oswald.

Mr. LITCHFIELD. No, sir; there is no resemblance.

Mr. HUBERT. There is no resemblance?

Mr. LITCHFIELD. No, sir.

Mr. HUBERT. Let the record show that the picture that I have shown to the witness has been identified as Exhibit 5302 in the deposition of Andrew Armstrong. Do you know Captain Fritz of the Dallas Police Department?

Mr. LITCHFIELD. Yes, sir.

Mr. HUBERT. Have you had difficulties with him?

Mr. LITCHFIELD. Once.

Mr. HUBERT. In what regard?

Mr. LITCHFIELD. He sent two men to the place that I was working and had them pick me up for investigation without a warrant, bodily remove me out of my office, and held me on robbery by firearms, which I couldn't have a writ of habeas corpus that night, or something, I had to go before a judge or something, and I didn't get out until the next morning, and he didn't even appear at the hearing.

Mr. HUBERT. How long ago was that?

Mr. LITCHFIELD. That was in—I think it was March or April of 1961, I believe.

Mr. HUBERT. You haven't seen him since?

Mr. LITCHFIELD. Well, when I had to go down to the police station, I did.

Mr. HUBERT. You mean the next morning?

Mr. LITCHFIELD. No; when I had to go down for questioning. No, he didn't even show up at the hearing there.

Mr. HUBERT. Did you know a man by the name of Jess Willard Lynch [spelling] J-e-s-s W-i-l-l-a-r-d L-y-n-c-h?

Mr. LITCHFIELD. I don't think so—the name doesn't sound familiar. I know a Lynch, but Jess Willard Lynch?

Mr. HUBERT. What Lynch do you know?

Mr. LITCHFIELD. I know a Donald Lynch from school.

Mr. HUBERT. Is he in Dallas?

Mr. LITCHFIELD. I believe so.

Mr. HUBERT. How long has it been since you have seen him?

Mr. LITCHFIELD. High school.

Mr. HUBERT. I see—that is to say about 10 or 12 years ago?

Mr. LITCHFIELD. Roughly—that name doesn't sound familiar.

Mr. HUBERT. Do you know a person by the name of Earlene Roberts?

Mr. LITCHFIELD. Earlene Roberts—I don't remember whether I know her or not. Closely, I don't—I could have dated her or seen her, but closely, I don't remember.

Mr. HUBERT. I'll put it this way, when I mention the name of Earlene Roberts, do you associate it with anybody you know?

Mr. LITCHFIELD. Well, I used to go out quite a bit in my life, and I went with a number of people, and I was thinking that I dated one time a girl

named Earlene, but I don't remember her last name—that's why I stopped and hesitated.

Mr. HUBERT. And that's the person whose image came to your mind when I mentioned Earlene Roberts?

Mr. LITCHFIELD. Yes.

Mr. HUBERT. Do you know that Earlene Roberts, that I am talking about, is the sister of Bertha Cheek?

Mr. LITCHFIELD. If she's her sister, I was trying to think if I ever met Bertha's sister. I talked to her on the phone once. Bertha told me she had two sisters, I believe, wait a minute—Earlene Roberts is the one that lives in California, I believe, I believe it is, and Bertha went out to see her, maybe, when Bertha went out to California 4 or 5 days on some business, and then I was helping her remodel the home over there and painting then, and I think I had to call her and I think Earlene Roberts was the person I called in California, I think.

Mr. HUBERT. You called the person in California for Cheek?

Mr. LITCHFIELD. To talk to Bertha when she was out there.

Mr. HUBERT. That was when?

Mr. LITCHFIELD. Maybe October—maybe November.

Mr. HUBERT. It was after you were negotiating with her?

Mr. LITCHFIELD. Yes, but I don't remember the exact date. I knew that name sounded real familiar.

Mr. HUBERT. Bill DeMar, or have you heard of him?

Mr. LITCHFIELD. You will have to associate it with something for me.

Mr. HUBERT. Well, he was an MC at Jack's Carousel Club.

Mr. LITCHFIELD. Well, I don't know that man. I saw him—he did a song or something while I was there, but I don't know him, if that's who it is—I don't know him.

Mr. HUBERT. Do you remember the story in the Press after Ruby shot Oswald that he said that he had seen him at the Carousel?

Mr. LITCHFIELD. I never knew of that—I never knew that.

Mr. HUBERT. Have you been interviewed by anybody of the Commission's staff other than myself?

Mr. LITCHFIELD. No, sir; the only people I have talked to is the Dallas Police Force and to two FBI agents, and I didn't have any knowledge that you would talk to me until yesterday. They called long distance for me and he called me this morning—I bowl in a scratch league on Thursday night and he told me I had to be here at room 301 at 3 p.m.

Mr. HUBERT. Well, we pushed it up a little bit for you.

Mr. LITCHFIELD. Yes, Mr. Sorrels called me this morning and asked me if I could make it earlier, and I said "I will leave on the flight 11:45 and I am booked definite at 5:15 going back and on a standby on this one here."

Mr. HUBERT. Well, you can make the 5:15 now, because you are through right now.

Mr. LITCHFIELD. Thank you very much. I enjoyed it. I will get to see my wife for a while.

Mr. HUBERT. Thank you very much.

TESTIMONY OF ALICE REAVES NICHOLS

The testimony of Mrs. Alice Reaves Nichols was taken at 2:15 p.m., on April 14, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Burt W. Griffin, assistant counsel of the President's Commission.

Mr. GRIFFIN. Let me state for the record that Mrs. Alice Reaves Nichols is present, and before we began anything, she walked into the room and she asked me if it would be possible to withhold her name from the press. I told her I would check. I have talked with Mr. Hubert of our office, to find out what the policy has been in the past, and he assured me that in the past we have, on the request of witnesses, not released the name to the press. I stated previously that all we have ever released is the name. We have never discussed and will not discuss with the press any testimony. However, we can't give you any assurance that they won't find out you were here. For example, there are newspaper reporters all over this building, and I don't recognize them and perhaps you will, and perhaps they might recognize you or try to find out, if they don't recognize you, who you are. Unfortunately, anything they can learn about what goes on is something that they want to print, so we can't assure you that the name won't go out, but we can assure you it won't get out from anything we do. I am sorry we can't give you any more protection than that.

Mrs. NICHOLS. I appreciate that.

Mr. GRIFFIN. Let me introduce myself. I am Burt Griffin, and I am a special consultant to the General Counsel's staff of the President's Commission investigating the assassination of President Kennedy.

This Commission has been set up under a couple of governmental acts, one of which is an Executive order issued by President Johnson on November 30, 1963, and another one from the joint resolution of Congress. The effect of both of these acts has been to establish a Commission with a

staff which has power to subpoena witnesses and take testimony and conduct an investigation and prescribe various rules and procedures, and we are operating under these rules of procedure.

I might explain that under the rules of the Commission I have been specifically designated to come here and talk to you and take your deposition. Now the purpose of this deposition is to inquire into all of the facts and evaluate the facts and report back to President Johnson on the facts that have to do with the death of President Kennedy and the murder of Lee Harvey Oswald. In your particular case, Mrs. Nichols, you have known Jack Ruby for many years, and you have been good enough to tell the FBI at some length what you knew about him. We want now to see if there is any more that can be added by this type of questioning. But we are also interested, I might add, in anything you might know that might have any significance to the whole investigation we are conducting.

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. I believe you got a letter from the Commission asking you to appear?

Mrs. NICHOLS. I did. I had a telephone call first.

Mr. GRIFFIN. From Mr. Sorrels of the Secret Service?

Mrs. NICHOLS. No; it wasn't Mr. Sorrels. I believe the man said his name was Howell.

Mr. GRIFFIN. Mr. Howlett?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. When did you receive your letter?

Mrs. NICHOLS. I received a letter last Friday.

Mr. GRIFFIN. Now, I might also say, I don't want to scare you by saying this, because we say it to everybody, that you are entitled under the rules of the Commission to appear here with an attorney if you so desire, and it is not unusual that people do that. But I see that you don't have an attorney here, and I take it that you don't desire one.

Mrs. NICHOLS. I didn't think it was necessary.

Mr. GRIFFIN. Most people do feel that way. It is an expense, for one thing.

Mrs. NICHOLS. I know several attorneys here, but I didn't think it was necessary.

Mr. GRIFFIN. Well, I don't think anything will come up in the course of your deposition that should make you feel you want an attorney. But I always want to make clear that at any time throughout your deposition you are free to stop the thing.

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. We try to be pretty nice, and I don't think we will have too many difficulties. Let me ask you then if you have any questions about the deposition that is to be taken, before I ask you to raise your hand and be sworn? Anything that you think you would want to know?

Mrs. NICHOLS. No; I don't know of anything.

Mrs. GRIFFIN. All right, would you raise your right hand.

Do you solemnly swear that the testimony you are about to give is the truth, the whole truth, and nothing but the truth, so help you God?

Mrs. NICHOLS. I do.

Mr. GRIFFIN. Would you give the court reporter your full name.

Mrs. NICHOLS. Alice Reaves Nichols.

Mr. GRIFFIN. Is that Mrs. Nichols?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. What was your maiden name?

Mrs. NICHOLS. My maiden name was Small: Alice Reaves Small.

Mr. GRIFFIN. Where do you live right now?

Mrs. NICHOLS. 8707 Redondo.

Mr. GRIFFIN. Is that in Dallas?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. I hate to ask embarrassing questions of women, but could you tell us when you were born?

Mrs. NICHOLS. Yes. February the 1st, 1915.

Mr. GRIFFIN. Have you lived in Dallas all your life?

Mrs. NICHOLS. I lived away from Dallas. I was born and raised here, but I lived away about 7 years.

Mr. GRIFFIN. When was that?

Mrs. NICHOLS. From 1937 to about 1944.

Mr. GRIFFIN. Are you employed?

Mrs. NICHOLS. I am.

Mr. GRIFFIN. Where are you employed?

Mrs. NICHOLS. Southland Life Insurance Co.

Mr. GRIFFIN. What do you do there?

Mrs. NICHOLS. I am a secretary.

Mr. GRIFFIN. Do you work for anyone in particular?

Mrs. NICHOLS. I am secretary to the vice president and treasurer.

Mr. GRIFFIN. What is his name?

Mrs. NICHOLS. John E. Mangrum.

Mr. GRIFFIN. Now I want to ask you if you will hand me those two documents that you have there?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. I want to mark them and ask you some questions in connections with them. I want to hand you what I have marked as "Dallas, Tex., April 14, 1964, Alice R. Nichols' Exhibit 5355." This document consists of a number of pages starting with the No. 283, at the bottom, going through page 291.

It purports to be a copy of a report of an interview that you had with two FBI Agents, Mr. Albert Sayres and Mr. Paul Scott on November 25,

1963. I am going to hand it to you and ask you if you had a chance to read that over before the deposition started?

Mrs. NICHOLS. I have.

Mr. GRIFFIN. Now is there anything in there that you feel is not accurate, an accurate report of what you told the FBI on that day? I am not referring to whether or not you, after thinking about it, that you make some changes, but whether you noticed anything in there that does not accurately reflect what you said at that time, and if so, whether you want to make some changes in it?

Mrs. NICHOLS. There are a few things in here that I notice that are not exactly right.

Mr. GRIFFIN. All right, let me ask you if you would refer to the page on which the mistaken material appears, and if you would read the material that is mistaken and then we will talk about it.

Mrs. NICHOLS. I may have said it as it is here, but I know that I said that I didn't think that Joe Bonds had an interest in the Vegas Club. But after thinking it over, I believe that he had for a short time an interest with Jack Ruby. But I believe that at this time that I talked with the FBI men, I had forgotten about that. But since thinking it over——

Mr. GRIFFIN. Can you pick out of there what page that appears on?

Mrs. NICHOLS. Let me put on my glasses. [Looks through document.]

Mr. GRIFFIN. Maybe I can find it for you.

Mrs. NICHOLS. I read it in there. It is in there some place.

Mr. GRIFFIN. This would be on page 284. Let me read the language to you, and you can tell me if that is what you had reference to.

The paragraph at the top of the page which reads: "During the time she was associated with Jack Ruby, Ruby was friendly with one Joe Bond when he operated the club on West Commerce Street in Dallas, Texas. She did not believe that Ruby and Bond were ever associated in any business."

Mrs. NICHOLS. That is it. Yes; that's right, I believe for a short time that Joe Bond had an interest in the Vegas Club with Jack Ruby.

Mr. GRIFFIN. Now has something happened since this interview, the original interview that you had with the FBI that made you remember that or think that Joe did have some business interest in the Vegas?

Mrs. NICHOLS. I have just thought over the questions that they asked me, and I recall that I believe that he did. I have been thinking it over.

Mr. GRIFFIN. What makes you think that he did have?

Mrs. NICHOLS. Well, I think that Jack Ruby told me himself that Joe Bond had an interest.

Mr. GRIFFIN. What I am trying to get at here is, is there anything in particular that made you remember this?

Mrs. NICHOLS. No; nothing in particular.

Mr. GRIFFIN. Is there anything else in this interview of November 25, that you think ought to be changed or corrected?

Mrs. NICHOLS. No; I don't believe so.

Mr. GRIFFIN. Now let me hand you what is marked for the purpose of identification as Dallas, Tex., April 14, 1964, Alice R. Nichols' Exhibit 5356. This document consists of two pages, and it purports to be a copy of an interview that you had with another FBI Agent, Mr. Albert Sayres. I guess you talked with Sayres on the 25th, also, but this interview was on January 18, 1964. Have you had a chance to read that over?

Mrs. NICHOLS. Yes. I have.

Mr. GRIFFIN. Are there any additions or corrections you would make in that?

Mrs. NICHOLS. No; that is correct.

Mr. GRIFFIN. Now I want to go back, and I am going to ask you some questions that are, some of which are biographical and some have to do with Jack Ruby, and some helter-skelter. When did your husband die?

Mrs. NICHOLS. Well, I was divorced in 1947, but he didn't die until 1961.

Mr. GRIFFIN. What did he do for a living?

Mrs. NICHOLS. While we were married, he was with Commercial Standard Insurance Co.

Mr. GRIFFIN. Is that here in Dallas?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. What did he do after your divorce?

Mrs. NICHOLS. Well, I didn't talk to him very often. He went into the insurance adjusting business, his own business for a while. Then I understand at the time of his death he was in the jewelry business.

Mr. GRIFFIN. There is a Nichols' Garage here in town. Is that any relationship to your husband?

Mrs. NICHOLS. No; it is not.

Mr. GRIFFIN. I believe also that the building that Jack had the Carousel Club in is owned by the Nichols' family or by the Nichols' estate.

Mrs. NICHOLS. Yes; I have heard that.

Mr. GRIFFIN. Is that any relationship to your husband?

Mrs. NICHOLS. No; there is no relationship.

Mr. GRIFFIN. How did you happen to meet Jack Ruby?

Mrs. NICHOLS. I first saw him in a grocery store.

Mr. GRIFFIN. Where was that?

Mrs. NICHOLS. It was close to his Silver Spur nightclub, there.

Mr. GRIFFIN. South Ervay Street?

Mrs. NICHOLS. Yes. I was in a grocery store.

Mr. GRIFFIN. Were you living in that general area?

Mrs. NICHOLS. No. My mother lived close by.

Mr. GRIFFIN. And you never met him before?

Mrs. NICHOLS. No.

Mr. GRIFFIN. Did Jack come up and talk to you?

Mrs. NICHOLS. No; he didn't. I had my daughter with me, and later on when I was waiting for the bus to go home, he saw me standing on the corner and he came over and introduced himself.

Mr. GRIFFIN. About when was that?

Mrs. NICHOLS. That was the early part of 1949. I don't know the exact date.

Mr. GRIFFIN. I think in your earlier interview with Agent Sayres on the 25th, you indicated that you thought you had met him in about 1948. Have you had a chance to think since then so that your feeling now is that it was 1949?

Mrs. NICHOLS. I don't remember. I started going with him the latter part of 1949, and I don't remember the exact date. It was several months after I first saw him before I ever went with him. I would say it was 1948, winter of 1948 and 1949, somewhere in there.

Mr. GRIFFIN. Well, is there anything by which you place it? You mean that would have been late 1948, or early 1949?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. I see.

Mrs. NICHOLS. I don't remember the month.

Mr. GRIFFIN. Any particular way that you place it at that period? Anything in your life that is significant that would place it in late 1948?

Mrs. NICHOLS. No; I can't remember whether the weather was cold or what I had on; whether I was wearing a coat.

Mr. GRIFFIN. I mean the particular year. Anything happen during the year 1948 that sticks out in your mind so that you could date your meeting Ruby in relationship to that event?

Mrs. NICHOLS. No; I can't remember exactly when I first met him, first saw him.

Mr. GRIFFIN. How old is your daughter?

Mrs. NICHOLS. My daughter is 25.

Mr. GRIFFIN. So if it were 1948, she would have been about 9 years old?

Mrs. NICHOLS. Yes; that's right.

Mr. GRIFFIN. When you started to date Jack, how often did you see Jack?

Mrs. NICHOLS. It's been so long ago. I think at first I probably saw him about once a week, and then later on in the year or so, I would say about twice a week, was about the most I ever saw him.

Mr. GRIFFIN. Was Jack the kind of man that had any family interests or seemed to show any interest in settling down?

Mrs. NICHOLS. Well, in settling down?

Mr. GRIFFIN. Yes; in getting married and raising a family and leading a conventional kind of married life?

Mrs. NICHOLS. He talked about it some for a period of time. Not all the time I was going with him.

Mr. GRIFFIN. How would you describe Jack in terms of his impressions and what he would look forward to and the kind of things he liked?

Mrs. NICHOLS. Well, I think that Jack had a lot of drive. He was ambitious. He was always looking for some way to make money, some extra way to make money.

Mr. GRIFFIN. Was there anything in particular that attracted you to Jack? Made Jack attractive to you? Any particular quality about him?

Mrs. NICHOLS. He was very nice to me. He always treated me with respect.

Mr. GRIFFIN. Did Jack, was he the kind of person that would unburden himself to you with his personal problems and background?

Mrs. NICHOLS. Well, he talked to me about some of his problems. I don't know that he talked to me about all of them, but he did discuss some of his problems with me.

Mr. GRIFFIN. What kind of problems did he seem to have?

Mrs. NICHOLS. Well, his business problems. When he lost the Bob Wills Ranch House, he discussed that with me. He was very upset about that. He lost a lot of money in that deal. He had to go back to Chicago at that time, and he discussed his business deals with me—when he bought the Vegas Club.

Mr. GRIFFIN. He didn't seem to have any particular anxieties that he would discuss with you? No personal problems; family problems?

Mrs. NICHOLS. Well, when his two brothers split up their partnership in Chicago, he talked about that some to me.

Mr. GRIFFIN. What did he tell you about that particular problem?

Mrs. NICHOLS. He went back to Chicago that time to try to help settle their differences.

Mr. GRIFFIN. Do you know if this was Earl and Sam?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. What seemed to be the differences between the two?

Mrs. NICHOLS. Well, I don't know whether it was—well, I guess it was just a financial, trying to work out. Sam sold out to Earl, and I think it was just trying to work out a financial settlement.

Mr. GRIFFIN. Did Jack ever indicate to you why Sam sold out to Earl? Why Sam left the business?

Mrs. NICHOLS. I thought it was just because they weren't getting along together, the two brothers.

Mr. GRIFFIN. Did Jack ever tell you why they weren't getting along?

Mrs. NICHOLS. No.

Mr. GRIFFIN. You saw Jack then on a once-a-week or twice-a-week basis until about what, 1956 or 1957?

Mrs. NICHOLS. Yes; and then after that I only saw him about once a week. I saw him about once a week until the latter part of 1959, about the latter part of November 1959.

Mr. GRIFFIN. How do you date that in 1959? What makes your memory remember it as the latter part of 1959 as opposed to 1958 or 1960?

Mrs. NICHOLS. Well, the reason why I remember that is, I think it was Christmastime, and we weren't going together at Christmastime. I remember thinking that I wouldn't buy him a Christmas present.

Mr. GRIFFIN. Did he own the Carousel Club at that time?

Mrs. NICHOLS. No; he hadn't taken over the Carousel Club at that time.

Mr. GRIFFIN. Did Jack ever talk to you about any trips he took?

Mrs. NICHOLS. The only trips that I knew he took were a few trips to Chicago, and I knew that he went to Havana one time.

Mr. GRIFFIN. How many times did he go to Havana?

Mrs. NICHOLS. Only once.

Mr. GRIFFIN. Do you remember when that was?

Mrs. NICHOLS. That was in 1959. It was September of 1959.

Mr. GRIFFIN. What makes you——

Mrs. NICHOLS. The first part of September.

Mr. GRIFFIN. What makes you remember it as that?

Mrs. NICHOLS. Well, it seemed to me like it was around Labor Day, as I recall.

Mr. GRIFFIN. Do you recall how long Jack stayed in Havana?

Mrs. NICHOLS. Not exactly; but I would say he was there from a week to 10 days.

Mr. GRIFFIN. Did he tell you why he went to Havana?

Mrs. NICHOLS. I thought it was a pleasure trip.

Mr. GRIFFIN. Did you see him off at the airport?

Mrs. NICHOLS. No.

Mr. GRIFFIN. Did he tell you who he was going to visit in Havana?

Mrs. NICHOLS. The only person he told me he was going to see in Havana was a man by the name of McWillie. I don't know if Mr. Mac was his first name or whether McWillie was his last name.

Mr. GRIFFIN. Had you ever met McWillie?

Mrs. NICHOLS. I had.

Mr. GRIFFIN. When had you met him?

Mrs. NICHOLS. I had seen him a few times. Jack had introduced me to him. I had seen him in the Vegas Club a few times.

Mr. GRIFFIN. Did Jack indicate to you what McWillie was doing in Havana?

Mrs. NICHOLS. He was managing the Tropicana Night Club, so I understood.

Mr. GRIFFIN. Now is this something that you actually remember yourself, or something you know from having read about these things in the newspaper?

Mrs. NICHOLS. No; I remember him telling me that he was at the Tropicana.

Mr. GRIFFIN. Did Jack indicate whether he had any business interests with McWillie?

Mrs. NICHOLS. He didn't indicate that he had any business interests.

Mr. GRIFFIN. Did Jack ever talk to you at any other time about Cuba or any interests he might have in Cuba?

Mrs. NICHOLS. No.

Mr. GRIFFIN. Did you feel that Jack talked to you about all of his enterprises; business activities?

Mrs. NICHOLS. Well, I knew of nothing that he didn't discuss with me. I don't know of any activities that he didn't discuss.

Mr. GRIFFIN. Well, did you feel Jack was the kind of person who might do things that he wouldn't discuss with people?

Mrs. NICHOLS. Discuss with people?

Mr. GRIFFIN. Yes; with other people who weren't involved in that particular activity?

Mrs. NICHOLS. I don't know. He always talked freely to me, I thought. I never did feel that he—Jack was a big talker. He talks a lot; quite an extrovert.

Mr. GRIFFIN. How did you happen to break up with Jack?

Mrs. NICHOLS. It was a gradual thing. We had no quarrel. We just quit. He quit calling me. We just quit going together.

Mr. GRIFFIN. Now you indicated that Jack returned to Chicago from time to time?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. When was that?

Mrs. NICHOLS. That was about August 1952.

Mr. GRIFFIN. How do you place it in August?

Mrs. NICHOLS. As I recall, he lost Bob Wills Ranch House about April or May 1952, and he stayed here several months, and it was around August, I believe, when he returned to Chicago. And he stayed about 6 weeks.

Mr. GRIFFIN. When you say he lost it, did he go into bankruptcy? Go through some court proceedings or just sell it to somebody at a loss?

Mrs. NICHOLS. I don't know whether he took bankruptcy or not. I don't remember. I don't think he got anything. I don't believe he sold it.

Mr. GRIFFIN. Was he forced out of it by anybody?

Mrs. NICHOLS. I was under the impression that he just didn't have the money to continue operating. He just had to leave it.

Mr. GRIFFIN. What kind of place was this Ranch House?

Mrs. NICHOLS. It was a western type.

Mr. GRIFFIN. Restaurant?

Mrs. NICHOLS. No; nightclub.

Mr. GRIFFIN. Striptease shows?

Mrs. NICHOLS. No.

Mr. GRIFFIN. When did Jack first go into the striptease business?

Mrs. NICHOLS. Well, I was not going with Jack when he got into the striptease business.

Mr. GRIFFIN. Was the Silver Spur a strip joint?

Mrs. NICHOLS. No.

Mr. GRIFFIN. How about the Vegas Club?

Mrs. NICHOLS. I believe he did for a time have a strip, a few girls doing the strip at the Silver Spur, but that was a very short time.

Mr. GRIFFIN. Was this while you were dating him?

Mrs. NICHOLS. Yes; but not—that was just for a few months. Maybe not even that long.

Mr. GRIFFIN. How did he happen to start to employ them there?

Mrs. NICHOLS. How did he what?

Mr. GRIFFIN. Why did he start to employ them there?

Mrs. NICHOLS. Well, his business was bad and he was just trying to find some way to build his business up.

Mr. GRIFFIN. Did he have entertainment at the Ranch House, Bob Wills Ranch House?

Mrs. NICHOLS. Have floor shows?

Mr. GRIFFIN. Yes.

Mrs. NICHOLS. I don't believe he ever had a floor show. I never did see a floor show there.

Mr. GRIFFIN. Did he have a band?

Mrs. NICHOLS. He had a band.

Mr. GRIFFIN. And he sold liquor?

Mrs. NICHOLS. Yes; well, they sold beer and set-ups.

Mr. GRIFFIN. Where was that located?

Mrs. NICHOLS. That was on Corinth and Industrial.

Mr. GRIFFIN. How long did he operate that?

Mrs. NICHOLS. I can't remember just when he started that. It wasn't but a few months. Probably, I would say about 6 months.

Mr. GRIFFIN. Was the Silver Spur in operation when the Ranch House was going?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. Well, when he sold the Ranch House, what did he do with the Silver Spur?

Mrs. NICHOLS. He continued to operate both of them. Wait, I beg your pardon. When he sold which one?

Mr. GRIFFIN. The Ranch House?

Mrs. NICHOLS. When he sold the Ranch House?

Mr. GRIFFIN. Then what happened to the Silver Spur?

Mrs. NICHOLS. He still had the Silver Spur when he sold the Ranch House, but he sold the Silver Spur.

Mr. GRIFFIN. After he sold the Ranch House?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. To whom did he sell the Silver Spur?

Mrs. NICHOLS. A man by the name of Martin Gimbel or Gimpel.

Mr. GRIFFIN. How long after he sold the Ranch House did he sell the Silver Spur?

Mrs. NICHOLS. It was very soon. I would say within—doesn't seem to me like it—seems like it was about a month after he sold the Ranch House.

Mr. GRIFFIN. Did you know—had you met Martin Gimpel?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. How long had you known Martin Gimpel before he bought the Silver Spur?

Mrs. NICHOLS. Well, I met Martin Gimpel soon after I met Jack.

Mr. GRIFFIN. Was Martin living in Dallas at that time?

Mrs. NICHOLS. Yes; he was.

Mr. GRIFFIN. How long did Martin continue to live in Dallas?

Mrs. NICHOLS. I don't recall how long. I don't recall how long he lived in Dallas. Several years.

Mr. GRIFFIN. Was Martin married?

Mrs. NICHOLS. Not that I know of. I really don't know whether he was married.

Mr. GRIFFIN. What kind of man was Mr. Gimpel?

Mrs. NICHOLS. Well, I didn't know him too well. I talked to him a few times, but he seemed very nice to me.

Mr. GRIFFIN. Do you know how he earned his living before he bought the Silver Spur?

Mrs. NICHOLS. No; I know that before, he had punchboards for a while, before it became illegal in Texas, and that is the only business that I know of that he had. I was under the impression that he had a little money, that he had saved a little money.

Mr. GRIFFIN. Did Jack ever sell punchboards in Texas?

Mrs. NICHOLS. Not that I know of.

Mr. GRIFFIN. Now I think you indicated to the FBI that Gimpel is dead?

Mrs. NICHOLS. That is what I heard.

Mr. GRIFFIN. When did you hear that he died?

Mrs. NICHOLS. I don't remember. Jack Ruby called me and told me that he had died, but I don't know how long ago that was.

Mr. GRIFFIN. Did he die here in Dallas?

Mrs. NICHOLS. No. I believe he said he died in Oklahoma.

Mr. GRIFFIN. As you have had a chance to sit here, Mrs. Nichols, do you recall any better as to when it was that Gimpel died?

Mrs. NICHOLS. It is since I started going with Jack Ruby, and it was several years ago.

Mr. GRIFFIN. Were you still going with Jack Ruby at the time he died?

Mrs. NICHOLS. No; I was not.

Mr. GRIFFIN. While you were dating Jack Ruby, how often did Jack see Mr. Gimpel?

Mrs. NICHOLS. Well, he was usually, he helped Jack around the nightclub, the Silver Spur and the Vegas Club, and I used to see him when we would go in there.

Mr. GRIFFIN. What sort of help would he give?

Mrs. NICHOLS. Well, he just would sort of manage it, see that everything was going all right. I think I had seen him use the cash register. Just anything that was needed to be done around there.

Mr. GRIFFIN. Well, did Jack pay him for what he did?

Mrs. NICHOLS. I don't know.

Mr. GRIFFIN. I believe you mentioned in your interview with the FBI that Jack was friendly with a man named Rocky Robinson. Do you remember that name?

Mrs. NICHOLS. I never did see Rocky Robinson but about twice, and then it was when we would be some place and he would be; we would run into him. I never did see him with Jack.

Mr. GRIFFIN. I think you indicated to the Bureau that you thought that Jack sold the Silver Spur to Rocky Robinson?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. Now you have also testified that you thought he sold the Silver Spur to Martin Gimpel?

Mrs. NICHOLS. Well, now, he sold the Silver Spur to Martin Gimpel first, right after he sold or right after he lost the Bob Wills Ranch House. He sold the Silver Spur to Martin Gimpel, and he went back to Chicago and stayed 6 weeks, and then he came back and took over the Silver Spur again

from Martin Gimpel, and then it was later on he sold the club to Rocky Robinson.

Mr. GRIFFIN. I see. Why did Jack come back from Chicago?

Mrs. NICHOLS. Well, he told me that he liked Dallas. He wanted to stay here.

Mr. GRIFFIN. Well, I presume when he left, did he intend to stay in Chicago permanently?

Mrs. NICHOLS. I think that he did plan to stay in Chicago permanently when he left.

Mr. GRIFFIN. What happened in Chicago that made him change his mind after he had been there for 6 weeks?

Mrs. NICHOLS. I thought it was because Martin Gimpel didn't want to run the Silver Spur and Jack had a chance to buy it back, and he came back.

Mr. GRIFFIN. What makes you think that Jack actually sold the Silver Spur to Martin Gimpel?

Mrs. NICHOLS. Well, he told me that he did. I don't know what the consideration was. He didn't tell me how much.

Mr. GRIFFIN. Is Rocky Robinson still in town?

Mrs. NICHOLS. I don't know.

Mr. GRIFFIN. Had Rocky been a friend of Jack's before he sold the Silver Spur to Mr. Robinson?

Mrs. NICHOLS. Not that I know of.

Mr. GRIFFIN. Did he become a friend of Jack's after Jack sold the Silver Spur to Rocky Robinson?

Mrs. NICHOLS. Not that I know of. I never did see Rocky Robinson but on about two occasions.

Mr. GRIFFIN. Now I believe you told the FBI that you had met Jack's father?

Mrs. NICHOLS. I did.

Mr. GRIFFIN. Where did you meet Mr. Rubinstein?

Mrs. NICHOLS. Where?

Mr. GRIFFIN. Yes.

Mrs. NICHOLS. Jack picked me up after I left the office and took me by to meet his father one evening. That was the only time I ever saw his father.

Mr. GRIFFIN. How did the father happen to be in Dallas?

Mrs. NICHOLS. Well, he and one of Jack's sisters were visiting Jack.

Mr. GRIFFIN. When Jack sold the Silver Spur, did he also at the time he sold the Silver Spur to Rocky Robinson, own the Vegas Club?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. In late 1958 and on up to the time you stopped seeing him in 1959 or 1960, did Jack own the Vegas Club?

Did Jack own any club in addition to the Vegas Club during this 1-year period prior to the time you stopped seeing Jack? Did he operate any clubs besides the Vegas Club in that year?

Mrs. NICHOLS. No.

Mr. GRIFFIN. In that year before you stopped seeing him, did Jack ever discuss selling the Vegas Club?

Mrs. NICHOLS. I don't remember him ever discussing selling the Vegas Club.

Mr. GRIFFIN. Was it your understanding that Jack was making a profit off the Vegas Club?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. I suppose during the time that you were dating Jack, you met most of his friends?

Mrs. NICHOLS. Jack introduced me to a lot of people while I was going with him.

Mr. GRIFFIN. Did you meet a man by the name of Dewey Groom?

Mrs. NICHOLS. Yes; I knew him slightly. I met him. He was a bandleader at Jack's Silver Spur for a while.

Mr. GRIFFIN. After Jack closed the Silver Spur, did Jack continue to see him?

Mrs. NICHOLS. I never did see him after that. I don't know whether Jack did or not. Jack did see most of the nightclubs; he went around to most of the clubs and he probably did see Dewey Groom.

Mr. GRIFFIN. Now, did you know Ralph Paul?

Mrs. NICHOLS. I did.

Mr. GRIFFIN. To your knowledge, when did Jack first become friendly with Ralph Paul?

Mrs. NICHOLS. Well, I don't remember. Let's see; I don't remember whether—I just can't remember exactly when I first knew Ralph Paul.

Mr. GRIFFIN. Was he friendly with Ralph Paul when you first started dating Jack?

Mrs. NICHOLS. No; I believe I went with him for several years before I ever heard of Ralph Paul or met him. I just don't remember when I met Ralph Paul. I was trying to think whether I remembered him before Jack went back to Chicago. I believe I met him before he went back to Chicago in 1952.

Mr. GRIFFIN. Did he have any business connections with Jack at that time?

Mrs. NICHOLS. Jack had mentioned that Ralph Paul had loaned him money.

Mr. GRIFFIN. When was it, as you understand it, that Ralph first loaned Jack money?

Mrs. NICHOLS. I don't remember exactly.

Mr. GRIFFIN. Did Mr. Paul ever have an interest in the Vegas Club?

Mrs. NICHOLS. Yes; he had mentioned Gordon McLendon to me.

Mr. GRIFFIN. While you were dating Jack, how often did Jack contact Mr. Paul?

Mrs. NICHOLS. Well, I don't know how often he contacted him. I would see him around the club quite frequently.

Mr. GRIFFIN. Would you say that Mr. Paul, during the period you were dating Jack, was one of the more frequent visitors to the Vegas Club?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. Other than the lending of money by Paul to Jack, do you know of any other business relationship that Ralph Paul and Jack Ruby had with each other?

Mrs. NICHOLS. No.

Mr. GRIFFIN. While you were dating Jack, did you know George Senator?

Mrs. NICHOLS. No; I never did know him.

Mr. GRIFFIN. Do you know if Jack Ruby was a friend of Gordon McLendon?

Mrs. NICHOLS. Yes; he mentioned Gordon McLendon to me.

Mr. GRIFFIN. When did you first hear Jack mention Gordon McLendon?

Mrs. NICHOLS. I don't remember. I would say several years before we quit going together, before 1959, maybe 3 or 4 years. I can't remember when he first mentioned him to me.

Mr. GRIFFIN. What did Jack indicate to you about his acquaintanceship with Mr. McLendon?

Mrs. NICHOLS. Well, I think that he mentioned that Gordon McLendon had given him some advertising time on his radio station.

Mr. GRIFFIN. Did you understand it was free advertising time?

Mrs. NICHOLS. He didn't say whether it was. I don't recall him saying whether he paid for it or not.

Mr. GRIFFIN. Did he know McLendon any way other than a business way?

Mrs. NICHOLS. I don't know whether he went out with him socially or not.

Mr. GRIFFIN. Did Mr. McLendon ever visit the Vegas Club?

Mrs. NICHOLS. I never did see him in there.

Mr. GRIFFIN. Now did Jack ever mention the name of a man Stanley Kaufman?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. Did Jack know Mr. Kaufman when you began dating him?

Mrs. NICHOLS. I don't believe he did. I never did hear him mention him.

Mr. GRIFFIN. What was the nature of Jack's acquaintanceship with Mr. Kaufman?

Mrs. NICHOLS. Well, he was Jack's lawyer.

Mr. GRIFFIN. Was Jack a social friend of his?

Mrs. NICHOLS. I don't know. Well, I don't know whether he ever went to his home or not.

Mr. GRIFFIN. Did Mr. Kaufman visit the Vegas Club from time to time?

Mrs. NICHOLS. I don't remember ever seeing him in the Vegas Club.

Mr. GRIFFIN. How about Tom Howard? Did Jack ever mention Tom Howard as an acquaintance?

Mrs. NICHOLS. He had mentioned Tom Howard, but I had never seen—as far as I know, they were not friends. I never did see them together.

I never did see Tom Howard in the club. But I have worked for Tom Howard when I first started working for attorneys, and I knew that I had known Tom Howard because I worked for him.

Mr. GRIFFIN. When did you work for Mr. Howard?

Mrs. NICHOLS. Right after I got my divorce in 1947, for a short time.

Mr. GRIFFIN. Then before you went to work for your present employer?

Mrs. NICHOLS. That's right.

Mr. GRIFFIN. You have been employed continuously with your present employer?

Mrs. NICHOLS. Since; yes, sir.

Mr. GRIFFIN. How long did you work for Mr. Howard?

Mrs. NICHOLS. About 6 months.

Mr. GRIFFIN. Did Jack ever mention Ed Pullman?

Mrs. NICHOLS. Who?

Mr. GRIFFIN. Ed Pullman?

Mrs. NICHOLS. I don't remember that name.

Mr. GRIFFIN. Did he ever mention the name of Frank Fisher?

Mrs. NICHOLS. No.

Mr. GRIFFIN. Did he ever mention the name of Alex Gruber?

Mrs. NICHOLS. No.

Mr. GRIFFIN. How about Lawrence Meyers?

Mrs. NICHOLS. I don't know.

Mr. GRIFFIN. How about Mike Shore?

Mrs. NICHOLS. No.

Mr. GRIFFIN. How about Buddy Heard?

Mrs. NICHOLS. No.

Mr. GRIFFIN. Well, during the time that you were dating Jack, other than the band that he would hire for his club, did Jack have business contacts with the entertainment world?

Mrs. NICHOLS. Business contacts?

Mr. GRIFFIN. With the entertainment world?

Mrs. NICHOLS. I don't know whether I understand. You mean personal, individual, or bands?

Mr. GRIFFIN. Yes; was it a regular practice of his to hire entertainers other than the band to play at the Vegas Club? Singers and comedians or dancers?

Mrs. NICHOLS. No; he didn't hire any. He had a little colored boy one time who used to put on a floor show out at the Vegas Club.

Mr. GRIFFIN. Was that Little Daddy Nelson?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. Is that the only entertainer that you knew of that Jack was connected with while you knew him?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. Now I believe you indicated to the FBI that Mr. Ruby was very attached to his mother.

Mrs. NICHOLS. Well, he was devoted to his mother. He told me how—he had remarked how much her death had hurt him.

Mr. GRIFFIN. Were you able to tell whether he was more or less devoted to his mother than to his father?

Mrs. NICHOLS. No. He seemed to be devoted to his father, too. He seemed to be quite interested in his father's welfare.

Mr. GRIFFIN. Did he ever mention to you in connection with his mother that his mother had been a source of many problems to the family?

Mrs. NICHOLS. Well, he had mentioned that she had been in an institution; that she had a mental breakdown.

Mr. GRIFFIN. What was Jack's attitude about that?

Mrs. NICHOLS. He didn't say much about it.

Mr. GRIFFIN. Did he have any hostility toward her on account of it?

Mrs. NICHOLS. No; he didn't.

Mr. GRIFFIN. Did Jack ever tell you how he happened to change his name from Rubenstein to Ruby?

Mrs. NICHOLS. No. He had already changed his name when I first knew him, and he never did tell me how he happened to do it.

Mr. GRIFFIN. Do you know that Jack had been associated with his brother Earl and his brother Sam in a business in Chicago?

Mrs. NICHOLS. He told me that he had.

Mr. GRIFFIN. Did he ever tell you how he happened to leave that business and come to Dallas?

Mrs. NICHOLS. He told me that he came down here because his sister had a nightclub here and she was having difficulty because business was not going. He came down here to see if he couldn't help her with the nightclub business.

Mr. GRIFFIN. Did he ever indicate anything about his relationship with Sam and Earl in Earl Products?

Mrs. NICHOLS. He was a partner, I understood, in that.

Mr. GRIFFIN. Did he ever indicate that he was dissatisfied in any way with that?

Mrs. NICHOLS. No; he didn't.

Mr. GRIFFIN. Did he talk to you about how close he was or friendly he was with his brothers?

Mrs. NICHOLS. Well, I got the impression that he was close to his brothers, his whole family. He seemed to be close to the whole family.

Mr. GRIFFIN. What gave you that impression?

Mrs. NICHOLS. Well, he was very upset when his brothers Earl and Sam broke up their partnership, and he went up there to try to help settle their differences, and he just—I always got the impression that he was close to his family.

Mr. GRIFFIN. Now you mentioned a man by the name of Ned Weisbrod.

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. As a person whom you thought was friendly with Jack, close to him in one way or another. When did you first meet Mr. Weisbrod?

Mrs. NICHOLS. I believe that I met him soon after I met Jack. I would say probably in 1950.

Mr. GRIFFIN. How long did they continue, Weisbrod, to be friendly with Jack?

Mrs. NICHOLS. I had not seen him in—when I first knew Jack, he had the Silver Spur, and I used to see Ned in there.

And after he took over the Vegas, I used to see him out there until about—I think it was about the last 2 or 3 years I had not seen Ned in there. And the same thing with this Sam; that they used to be together a lot.

Mr. GRIFFIN. Sam Lassen?

Mrs. NICHOLS. Yes. I had not seen either one of them in the Vegas Club for, I would say, 2 years anyway before 1959, when we stopped going together.

Mr. GRIFFIN. Did Jack ever indicate why they stopped coming around?

Mrs. NICHOLS. No.

Mr. GRIFFIN. Was there any sort of quarrel that Jack had with them?

Mrs. NICHOLS. Not that I know of.

Mr. GRIFFIN. Did Jack seem to have any business relationship with Weisbrod and Lassen?

Mrs. NICHOLS. No.

Mr. GRIFFIN. Were Weisbrod and Lassen more friendly with Jack than Ralph Paul? Did you see them around more often than you saw Ralph Paul?

Mrs. NICHOLS. I don't believe so.

Mr. GRIFFIN. Now you also mention Adrian High as a person who was friendly with Jack. And I believe, if my understanding is correct, that High, Weisbrod, Lassen, and Ruby were sort of mutual friends?

Mrs. NICHOLS. I don't know whether Adrian was a friend of Ned and Sam or not. I have not seen Adrian High in, oh, since about, I would say about 1956. I had not seen him.

Mr. GRIFFIN. Do you know if Weisbrod and Lassen are still in Dallas?

Mrs. NICHOLS. I don't know.

Mr. GRIFFIN. When was the last that you knew they were in Dallas?

Mrs. NICHOLS. I haven't seen them since—the only place I ever saw them was at the Vegas Club, and it's been several years before I quit going

with Jack that I had seen them in there. At least 2 years.

Mr. GRIFFIN. Was Jack the kind of person that, if he had problems with somebody or a dispute with somebody, that he would continue to talk about it for some time after it occurred?

Mrs. NICHOLS. He didn't talk to me about it.

Mr. GRIFFIN. You know some people, when they have a problem, they just have to talk and talk about it until it seems to get out of their system. Did Jack seem to be that kind of a person?

Mrs. NICHOLS. No; he didn't talk to me about it.

Mr. GRIFFIN. Now, did you ever see Jack getting into any fights with anybody?

Mrs. NICHOLS. No.

Mr. GRIFFIN. Did you ever see him hit anybody?

Mrs. NICHOLS. I never did see him hit anyone. I know that he had had trouble in the club. I would hear about it. But I never did see him. I have seen him put people out of the club.

Mr. GRIFFIN. Did you hear of his fighting with somebody socially, in a social quarrel?

Mrs. NICHOLS. No.

Mr. GRIFFIN. The only time you know of his fighting or hitting somebody was in connection with his acting as a bouncer for the club?

Mrs. NICHOLS. I never did see him, but I heard of it. I know that he had a finger—he was putting a man out of his club and a man bit his finger and he had to have it amputated, but I was not there.

Mr. GRIFFIN. When you dated Jack, how much money was he accustomed to carrying with him?

Mrs. NICHOLS. I don't know. I never did ask him and he never did tell me.

Mr. GRIFFIN. Did you ever see Jack carry a gun with him?

Mrs. NICHOLS. I have seen him with a gun when he would have his moneybag for deposit.

Mr. GRIFFIN. What is his practice? You have seen him take money out of the club?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. Now what was his practice? Would he have the gun at the club, or where would he keep the gun?

Mrs. NICHOLS. I don't know whether he had it at the club or whether he carried it in his pocket.

Mr. GRIFFIN. Did you ever see him carry it in his pocket?

Mrs. NICHOLS. I never did ask him if he had a gun in his pocket, and he never did tell me. I never did see him take it out of his pocket. When we would go by the club, he would pick up the money and I would be sitting at a table, and I don't know when he got the gun, whether he got it out of his pocket or whether he kept it at the club.

Mr. GRIFFIN. Where would you see the gun; on the table or where?

Mrs. NICHOLS. Well, I just saw it with the moneybag, and we would walk out to the car.

Mr. GRIFFIN. He would carry it in his moneybag?

Mrs. NICHOLS. Well, I don't remember ever seeing it in the moneybag, but he used to put it on the seat with the moneybag.

Mr. GRIFFIN. Would he ever lock the money up in the trunk of his car?

Mrs. NICHOLS. I never did see him do that.

Mr. GRIFFIN. Now what did he use to do with his money after he took it out of the club?

Mrs. NICHOLS. Well, I thought he put it in a night depository. He would take me home first, and I don't know.

Mr. GRIFFIN. You also indicated to the FBI that Jack was a gambler, liked to gamble?

Mrs. NICHOLS. I never did see him gamble, but he told me that he—several times that he had gone back to the Artists Club and played cards after he took me home. I never did see Jack gamble. He never talked to me about that.

Mr. GRIFFIN. Do you know who the owner was of the Artists Club?

Mrs. NICHOLS. I don't know who owned it. A man by the name of Harris was managing it. I think it was a musicians' union.

Mr. GRIFFIN. What kind of gambling would they have at the Artists Club?

Mrs. NICHOLS. I never did see them gambling there, but I imagine it was cards, I don't know.

Mr. GRIFFIN. Was this a——

Mrs. NICHOLS. They served food there, and we have gone up there late to get something to eat.

Mr. GRIFFIN. Did they have a back room of some sort where they gambled?

Mrs. NICHOLS. I don't know. I never did see them gambling there.

Mr. GRIFFIN. Do you know who Jack gambled with there?

Mrs. NICHOLS. No.

Mr. GRIFFIN. About how often would you say he would go there?

Mrs. NICHOLS. Well, he only mentioned that to me for a short period of time. I would say 3 or 4 months that he mentioned to me that he would go up there.

Mr. GRIFFIN. Did you know a man by the name of Johnny Ross?

Mrs. NICHOLS. Yes; I have seen him in the Vegas Club a few times.

Mr. GRIFFIN. I believe you described him as a gambler?

Mrs. NICHOLS. Jack told me that he was a gambler.

Mr. GRIFFIN. Do you know if Jack ever gambled with him?

Mrs. NICHOLS. Jack never did mention.

Mr. GRIFFIN. What kind of gambling did Johnny Ross do?

Mrs. NICHOLS. I don't know.

Mr. GRIFFIN. Did Jack have any business association with Johnny Ross?

Mrs. NICHOLS. Not that I know of.

Mr. GRIFFIN. Now Jack called you on the day the President was killed?

Mrs. NICHOLS. That's right.

Mr. GRIFFIN. How long had it been before then that you had last seen Jack?

Mrs. NICHOLS. I had seen him on the street one time in the spring of 1963 I didn't talk to him. He was driving the car and I was walking.

Mr. GRIFFIN. Before the time that you saw him?

Mrs. NICHOLS. And before that, it had been over a year.

Mr. GRIFFIN. Had you talked to him on the telephone?

Mrs. NICHOLS. No; he had not called me in over a year.

Mr. GRIFFIN. Now you told Mr. Sayres on the 18th of January that you remembered that Jack had called you at about 2 o'clock on the 22d. How did you happen to remember that at that time?

Mrs. NICHOLS. He called me sometime between 1 and 2, while I was out for lunch and left his number for me to call him. And I called him back as soon after 2, about 10 minutes after 2.

Mr. GRIFFIN. How did you happen to know that Jack had called?

Mrs. NICHOLS. Well, I go to lunch from 1 to 2 all the time.

Mr. GRIFFIN. But the first time that you talked with Mr. Sayres, you didn't remember apparently that Jack had called you?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. Or did you remember at that time?

Mrs. NICHOLS. Well, he didn't ask me about it and I didn't think about the importance of it until this investigation or for the defense attorney asked me about that, if Jack had called me on that day, and I remembered.

Mr. GRIFFIN. Did this investigator or one of Jack's lawyers suggest that you ought to call the FBI and let them know about this?

Mrs. NICHOLS. No. I got to thinking about it myself and I thought I wanted to keep the record straight. I wanted to let the FBI know it, too.

Mr. GRIFFIN. Did the investigator indicate to you that you might testify for Jack at the trial?

Mrs. NICHOLS. Well, no; he didn't say. He didn't tell me whether he thought they would use me.

Mr. GRIFFIN. Did you have some idea that you might?

Mrs. NICHOLS. Well, after I talked, after the investigator, contacted me, I was afraid that I might be called.

Mr. GRIFFIN. Were you ever called?

Mrs. NICHOLS. I didn't attach the importance to the telephone call at the time.

Mr. GRIFFIN. Did you testify at the trial?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. Were you willing to testify?

Mrs. NICHOLS. I didn't want to.

Mr. GRIFFIN. What was your reaction when you got this telephone call from Jack shortly after the President had been shot?

Mrs. NICHOLS. Well, I was just, I was surprised when he—after the President had been shot?

Mr. GRIFFIN. Yes; that Jack had called you?

Mrs. NICHOLS. Yes; I was surprised. We hadn't been seeing each other and I didn't expect to ever hear from him again, and I was—he seemed to be upset about the President's assassination. I think everyone else was.

Mr. GRIFFIN. Why do you think Jack called you?

Mrs. NICHOLS. I don't know why he called me.

Mr. GRIFFIN. Did you ever question his attorney about that?

Mrs. NICHOLS. I haven't talked to—never did talk to his attorney.

Mr. GRIFFIN. Have you talked with Jack since then?

Mrs. NICHOLS. No; I have not.

Mr. GRIFFIN. Or any members of his family?

Mrs. NICHOLS. His sister-in-law has called me twice since that time.

Mr. GRIFFIN. Would that be his sister-in-law?

Mrs. NICHOLS. His sister-in-law, Sam's wife.

Mr. GRIFFIN. Did you ever ask her why Jack called you that day?

Mrs. NICHOLS. No; I didn't ask her why.

Mr. GRIFFIN. Did she ever indicate to you why he called you?

Mrs. NICHOLS. No.

Mr. GRIFFIN. When you talked with Jack, when you called him back at around about 2:15 or whenever it was, did you indicate to Jack that you were surprised to hear from him?

Mrs. NICHOLS. No; I didn't say anything to him about that, being surprised.

Mr. GRIFFIN. The FBI reports here, Mr. Sayres' report in his interview of January 18, that Ruby was apparently calling to tell you what a terrible thing he thought it was that President Kennedy had been assassinated. Was there some question as to what Ruby really, why he really was calling?

Mrs. NICHOLS. Well, I was just surprised to hear from him. I don't know why he called me.

Mr. GRIFFIN. Do you remember what he said to you?

Mrs. NICHOLS. I don't remember the exact words, but the only thing, he just talked about what a terrible thing the assassination was. It was a very short, conversation.

Mr. GRIFFIN. Do you remember any particular thing he said?

Mrs. NICHOLS. No.

Mr. GRIFFIN. Or words that he used?

Mrs. NICHOLS. No; I don't remember the words, the exact words that he used.

Mr. GRIFFIN. Would you be able to tell me if he used the word, "terrible," there?

Mrs. NICHOLS. I don't know whether he used the word, "terrible," or not. But generally it was just, he was just upset about the assassination.

Mr. GRIFFIN. Did he talk to you at all about the effect that the assassination would have on his business?

Mrs. NICHOLS. No.

Mr. GRIFFIN. Did he say anything particularly about President Kennedy?

Mrs. NICHOLS. Well, he was talking about the assassination of President Kennedy.

Mr. GRIFFIN. Did he have any, did he say anything about what effect it would have on the city of Dallas, the assassination?

Mrs. NICHOLS. I don't recall him saying that.

Mr. GRIFFIN. Now do you have a regular lunch hour?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. What is your regular lunch hour?

Mrs. NICHOLS. From 1 to 2.

Mr. GRIFFIN. How do you place the time of the second telephone call that Jack made to you?

Mrs. NICHOLS. In the evening?

Mr. GRIFFIN. Yes.

Mrs. NICHOLS. Well, it wasn't late in the evening, and I had finished dinner and had my dishes washed and I was reading the paper.

Mr. GRIFFIN. What time do you usually eat dinner?

Mrs. NICHOLS. Well, I eat about 6.

Mr. GRIFFIN. Was anybody living with you at home?

Mrs. NICHOLS. No; I live alone.

Mr. GRIFFIN. About how long does it usually take you to eat dinner?

Mrs. NICHOLS. Well, I eat very slow in the evening. I usually listen to music and I usually spend about 30 minutes, I would say. I take my time and drink coffee and I sit at the table.

Mr. GRIFFIN. What did he say to you when he called you?

Mrs. NICHOLS. Well, he just was talking again about the assassination, and he told me at that time that he was going to the synagogue.

Mr. GRIFFIN. What did he say about the assassination on the second occasion?

Mrs. NICHOLS. Well, what a terrible thing it was.

Mr. GRIFFIN. Well, weren't you again surprised that he should call you?

Mrs. NICHOLS. Well, yes; I was.

Mr. GRIFFIN. Did you ask him?

Mrs. NICHOLS. No; I didn't ask him why he called me.

Mr. GRIFFIN. Did you indicate your surprise to him in any way?

Mrs. NICHOLS. I didn't indicate it, no.

Mr. GRIFFIN. Did he indicate that he would like to see you sometime?

Mrs. NICHOLS. No, he never; I can't recall him asking how I had been or anything personal. He didn't say anything.

Mr. GRIFFIN. Did he ask you how you felt about the assassination?

Mrs. NICHOLS. Well, I told him I thought it was terrible, too, and I was quite upset about it.

Mr. GRIFFIN. Did he ask you for any advice of any sort?

Mrs. NICHOLS. No; he didn't.

Mr. GRIFFIN. You can't think of any reason why Jack should have called you?

Mrs. NICHOLS. No.

Mr. GRIFFIN. The second time that he called you, did you have any indication of where he was calling from?

Mrs. NICHOLS. No; I have no idea where he was calling from.

Mr. GRIFFIN. Did you hear any voices in the background?

Mrs. NICHOLS. No.

Mr. GRIFFIN. Television set on?

Mrs. NICHOLS. No; I don't remember hearing any noise.

Mr. GRIFFIN. Did he tell you how soon he was going to the synagogue?

Mrs. NICHOLS. No; he didn't tell me.

Mr. GRIFFIN. Did he tell you which synagogue he was going to?

Mrs. NICHOLS. I don't believe he did. I assumed it was Shearith Israel because that is where he went.

Mr. GRIFFIN. When you dated Jack, did Jack have any dogs?

Mrs. NICHOLS. He got his dog shortly before we stopped going together.

Mr. GRIFFIN. But up until then, he had never owned a dog?

Mrs. NICHOLS. No.

Mr. GRIFFIN. How did he happen to buy the dog?

Mrs. NICHOLS. I think the first dog was given to him by someone.

Mr. GRIFFIN. Do you recall who gave it to him?

Mrs. NICHOLS. No, I don't know whether he told me or not. Or whether it was anyone that I know. I just remembered where he got the dog, and it was killed. It was run over a short while after he got it, so he got another one right after that.

Mr. GRIFFIN. What kind of dog was given to him?

Mrs. NICHOLS. It was a dachshund.

Mr. GRIFFIN. Was the next dog that he got also a dachshund?

Mrs. NICHOLS. Yes.

Mr. GRIFFIN. Up until the time that his dog was given to him, had he expressed any interests in dogs?

Mrs. NICHOLS. His sister had a little dog that he—I don't know whether he—I believe it seemed like he had taken care of it some for her.

Mr. GRIFFIN. Is that Eva Grant?

Mrs. NICHOLS. Yes; she had a dog.

Mr. GRIFFIN. Did you know a man by the name of Abe Kleinman?

Mrs. NICHOLS. Yes; I believe he was a CPA or a bookkeeper. I believe he kept Jack's books, for a period of time.

Mr. GRIFFIN. How about Floyd Turman, do you know him?

Mrs. NICHOLS. No.

Mr. GRIFFIN. Did you know any police officers with whom Jack was friendly?

Mrs. NICHOLS. No; I have seen police officers out there in the club, but I never knew one in particular.

Mr. GRIFFIN. Did you know any of the women that he was friendly with besides yourself?

Mrs. NICHOLS. I don't know who else he dated.

Mr. GRIFFIN. How about women that he saw in a business connection? Did you see any women in the business? Did he see any women in a business connection?

Mrs. NICHOLS. Not that I know of. I don't know of any.

Mr. GRIFFIN. Can you think of anything else that we haven't talked about here today that you haven't already told the FBI, that you think would be of importance to the Commission?

Mrs. NICHOLS. No; I can't think of anything that would be of importance.

Mr. GRIFFIN. Let me ask you if, as time passes here, and if anything does come to your attention which you think might be helpful to us, if you

would contact somebody in the Commission or contact the FBI or the Secret Service and let them know?

Mrs. NICHOLS. I will be glad to.

Mr. GRIFFIN. We also ask you, other than the interviews that Mr. Sayres had with you, have you been interviewed by any member of this staff?

Mrs. NICHOLS. Of this staff?

Mr. GRIFFIN. Yes.

Mrs. NICHOLS. No.

Mr. GRIFFIN. Prior to having your deposition taken here, did you and I have any interview?

Mrs. NICHOLS. No.

Mr. GRIFFIN. I don't think I have any more questions to ask you.

I want to thank you for coming here and taking all this time to do it, and I realize that you are a working woman and it is an inconvenience to you.

Mrs. NICHOLS. That is quite all right.

Mr. GRIFFIN. But it was quite nice of you to spend all of this time.

Mrs. NICHOLS. I am glad to help in any way I can.

Mr. GRIFFIN. Thank you very much.

TESTIMONY OF ROBERT CARL PATTERSON

The testimony of Robert Carl Patterson was taken at 4:15 p.m., on April 14, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Burt W. Griffin, assistant counsel of the President's Commission.

Mr. GRIFFIN. Let me introduce myself. My name is Burt Griffin, and I am on the Advisory Staff of the General Counsel's office of the President's Commission investigating the assassination of President Kennedy.

This Commission has been set up by virtue of an Executive Order from President Johnson which was issued on November 30, 1963, and also by virtue of a Joint Resolution from Congress, No. 137.

As a result of these two official Acts, the Commission has been given authority to put forth its own rules and regulations to accomplish the purpose of the investigation which we have been asked to conduct, and under these regulations I have been given authority to come here and take your deposition, Mr. Patterson.

I want to explain to you a little bit about what the purpose of the investigation is. The Commission has been asked to investigate, evaluate and report back to President Johnson upon all the facts surrounding the assassination of President Kennedy and the subsequent murder of Lee Harvey Oswald.

We have asked you to come here this particular day, Mr. Patterson, because we understand that you have had some acquaintanceship with Jack Ruby. However, we are interested in anything that you might be able to tell about the assassination of the President or anything that you might think might be relevant to that.

We have a certain set of procedures that we follow in conducting these depositions and in asking people to come here. I presume you got a letter,

did you not, from the Commission?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. Signed by Mr. Rankin?

Mr. PATTERSON. Yes; I think it was. I have it in my pocket. That's right. (Referring to letter.)

Mr. GRIFFIN. When did you get the letter?

Mr. PATTERSON. Saturday, it was I got it.

Mr. GRIFFIN. Now also under the rules of the Commission I might explain to you that anybody who desires to appear here with an attorney has the right to do so, and we encourage people to do it. I notice that you are not here with an attorney, and I take it it is because you don't have any desire to have one. However, if for any reason you think that you would want an attorney, or as this interview progresses you think you should want to be represented by an attorney, please feel free to tell me about it and we will postpone matters and continue the deposition at a later date. I presume by the fact that you are here without an attorney, that you don't desire to have anybody represent you?

Mr. PATTERSON. Well, I don't think I would need an attorney, because I don't think—I don't know it was that important, so far as I was concerned.

Mr. GRIFFIN. Well, I don't see any reason why you should have one either, but I want to tell you this so that you understand that you do have a right to have an attorney, and I hope that if for any reason that you think you want to be represented, feel free to state that.

Do you have any particular questions that you want to ask me about the deposition that is about to begin before I ask you to be sworn? Feel free to ask anything that comes to your mind, because I realize this is an unusual experience for everybody who appears here.

Mr. PATTERSON. I don't believe so other than how long?

Mr. GRIFFIN. How long will it take? I don't think it will take very long. I want to ask you to raise your right hand and I will administer the oath.

Do you solemnly swear that the testimony you are about to give, will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. PATTERSON. I do.

Mr. GRIFFIN. Would you give the court reporter your full name?

Mr. PATTERSON. Robert Carl Patterson.

Mr. GRIFFIN. Where do you live, Mr. Patterson?

Mr. PATTERSON. 902 East Waco Street.

Mr. GRIFFIN. That is in Dallas?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. Can you tell us when you were born?

Mr. PATTERSON. March 13, 1944.

Mr. GRIFFIN. Are you presently employed?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. Where are you employed?

Mr. PATTERSON. The Beachcomber.

Mr. GRIFFIN. What kind of place is that?

Mr. PATTERSON. It is a night club.

Mr. GRIFFIN. What do you do at the Beachcomber?

Mr. PATTERSON. Entertain.

Mr. GRIFFIN. What kind?

Mr. PATTERSON. Musician and singer.

Mr. GRIFFIN. What instruments do you play?

Mr. PATTERSON. My major instrument is the guitar.

Mr. GRIFFIN. Do you sing any particular kind of songs?

Mr. PATTERSON. Well, I do mostly rhythm and blues and a few classicals.

Mr. GRIFFIN. How long have you been an entertainer?

Mr. PATTERSON. Approximately 5 years.

Mr. GRIFFIN. Are you a high school graduate?

Mr. PATTERSON. Yes. I'm in college.

Mr. GRIFFIN. You are going to college?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. You are attending college right now?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. Where are you attending college?

Mr. PATTERSON. Arlington State.

Mr. GRIFFIN. Is that in the Dallas area?

Mr. PATTERSON. It is in Arlington, Tex.

Mr. GRIFFIN. What are you majoring in?

Mr. PATTERSON. Music.

Mr. GRIFFIN. You were interviewed sometime in December by an agent of the Federal Bureau of Investigation. Do you recall that interview?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. At that time you indicated that you had worked on some occasions for Eva Grant, Ruby's sister?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. When did you first work for Eva Grant?

Mr. PATTERSON. I don't know the exact date. In fact, I can't even recall the month, but it was, I guess you could say, the last of the summer.

Mr. GRIFFIN. This summer, 1963, was the first time?

Mr. PATTERSON. 1963; yes.

Mr. GRIFFIN. So the first time you worked for Eva Grant would have been in the summer of 1963?

Mr. PATTERSON. Approximately. As far as I can recall.

Mr. GRIFFIN. How much would you receive for a one night engagement with Mrs. Grant?

Mr. PATTERSON. Well, the pay varied from—I just played a one hour show, say, about 10 or 15 minutes with a saxophone player. That is myself and my band, and I would say the average pay I received was \$8 for these 10 or 15 minutes.

Mr. GRIFFIN. Would you sometimes receive more and sometimes receive less?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. What was the least you received?

Mr. PATTERSON. \$4.00.

Mr. GRIFFIN. What was the most that you received?

Mr. PATTERSON. \$10.00.

Mr. GRIFFIN. How many times did you play there?

Mr. PATTERSON. I don't know for sure.

Mr. GRIFFIN. Did you always appear with your saxophone player?

Mr. PATTERSON. Eighty percent of the time I did.

Mr. GRIFFIN. Did they pay the saxophone player separately?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. Did they sometimes pay you?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. Then you would pay the saxophone player?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. You are nodding yes?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. Did you ever consult with Jack Ruby or with Eva Grant about playing at Jack's Carousel Club?

Mr. PATTERSON. No. It was my understanding that he had different type music there than what I played.

Mr. GRIFFIN. How were you known to the Rubys; by what name?

Mr. PATTERSON. Mrs. Grant called me Bobby Patterson.

Mr. GRIFFIN. Have you ever had occasion to talk with Jack Ruby?

Mr. PATTERSON. Yes, I talked with him several times about playing. He wanted me to start playing in the Vegas, and we talked about salary and hours and so forth.

Mr. GRIFFIN. Mr. Patterson, I am going to hand you what I have marked Exhibit 5357, which is a photograph of a page out of that notebook, and I have marked this photograph, Dallas, Tex., April 14, 1964, Exhibit 5357, Robert C. Patterson, and I signed my name to it. Previously this same photograph has been marked as Crafard Exhibit No. 5225, and as Armstrong Exhibit No. 5305-E.

I want to hand you this and ask you to look at the notations on that notebook. If you can't read them, indicate to me that you can't and I will try to read them for you.

Mr. PATTERSON. I see Billy Brook. I can't make out the second line. Bobby Patterson, six something, special friend, and then a ten and two. No, and quotation marks.

Mr. GRIFFIN. You have to keep your voice up so she can hear you.

Mr. PATTERSON. Three ... I can't make out that word—I can't make out the next word, and 2409 Maple. LA 6-7568 for Robert Patterson—no, Robert is all.

Three—now I can't make out the next—six eight three seven four nine thousand eight, oh six, fifty by a hundred and ninety-two.

Mr. GRIFFIN. Do you recognize any of those notations shown in that photograph as having anything to do with you?

Mr. PATTERSON. It would be my guess that these were some notations of where he paid somebody, somebody paid us for playing one night, because I think this Billy Brook is a singer. I remember Billy Brook that used to sing over at the Vegas.

Mr. GRIFFIN. Did he sing there while you also entertained there?

Mr. PATTERSON. Yes, a few times he was there. None of this other, I don't know what that could be.

Mr. GRIFFIN. If that notation Bobby Patterson and friends had to do with you, who would the friend be?

Mr. PATTERSON. Robert Simpson.

Mr. GRIFFIN. Is that the saxophone player?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. Was that a rate that was paid, six dollars to you and the additional four dollars to Simpson?

Mr. PATTERSON. It could have been. We usually received the same pay. If I got \$5, he usually received \$5. I don't ever recall making any more than he did.

Mr. GRIFFIN. That is as much as you can remember about that?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. Has anything come to your attention in connection with Jack Ruby or in connection with any of the work you have done for Jack or his sister, Mrs. Grant, that you think would be of value to the Commission?

Mr. PATTERSON. No, I can't recall anything.

Mr. GRIFFIN. How many times did you actually talk with Jack Ruby?

Mr. PATTERSON. I couldn't pinpoint it to a certain number of times, but I can approximate.

Mr. GRIFFIN. Can you give us your best estimate?

Mr. PATTERSON. You mean on the phone and in person?

Mr. GRIFFIN. Yes.

Mr. PATTERSON. About 15 times.

Mr. GRIFFIN. How many of these times would have been in person?

Mr. PATTERSON. Not 10 times.

Mr. GRIFFIN. Were all the times that you met him in person at the Vegas Club?

Mr. PATTERSON. No.

Mr. GRIFFIN. Where have you seen him besides at the Vegas Club?

Mr. PATTERSON. He came to my house one night to talk to my mother about me playing for him, and him taking over as my manager and promoting a record for me.

Mr. GRIFFIN. When was that?

Mr. PATTERSON. Some time in the first of November, something like that.

Mr. GRIFFIN. What kind of record was he interested in promoting?

Mr. PATTERSON. Just a rock 'n roll record that he wanted to promote for me.

Mr. GRIFFIN. Had you already cut the record?

Mr. PATTERSON. I already record for another company and he said he had some connections with a better record company that he could, you know, he wanted me to record some new records.

Mr. GRIFFIN. Who do you record for?

Mr. PATTERSON. Future.

Mr. GRIFFIN. Where is that office located?

Mr. PATTERSON. Arkansas.

Mr. GRIFFIN. Arkansas?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. Do you have to go up to Arkansas to cut the record?

Mr. PATTERSON. No, we cut here.

Mr. GRIFFIN. How many records have you cut for Future?

Mr. PATTERSON. Two.

Mr. GRIFFIN. Now, did you talk with Jack about promoting a particular song?

Mr. PATTERSON. Not a particular song.

Mr. GRIFFIN. But about promoting you?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. What did Jack say to you and what did you say to him?

Mr. PATTERSON. He said he had connections with Reprise.

Mr. GRIFFIN. R-e-p-r-i-s-e?

Mr. PATTERSON. Yes. It is pronounced Reprise, with which Frank Sinatra has something to do with, and never did say what Frank Sinatra had to do with it, but he said he knew some people in this line that he would have no trouble getting a record promoted and distributed nationally.

Mr. GRIFFIN. What was your response?

Mr. PATTERSON. Well, I told him if he could get this done, fine, I would consider recording for him.

Mr. GRIFFIN. Did he make an effort to have that recording done?

Mr. PATTERSON. No. He was trying to get me to play in the Vegas.

Mr. GRIFFIN. In the Vegas or the Carousel?

Mr. PATTERSON. In the Vegas. And I never did think too much about the recording, you know.

Mr. GRIFFIN. At the time he talked to you about the recording, had you ever played at the Vegas?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. Well, what do you mean he was trying to get you to play there?

Mr. PATTERSON. The band he had was leaving, quitting, had quit already, I would say, and they had been there a long time, for a number of years, and they quit. And he wanted my band to start playing there.

Mr. GRIFFIN. How did you feel about playing at the Vegas?

Mr. PATTERSON. Well, I didn't really want to because the pay was too low and the hours were too long. But he propositioned me to cut the number of hours because I was going to college, and the other saxophone player was too going to college, and the other two guys worked.

Mr. GRIFFIN. So did you finally agree to play at the Vegas with your band?

Mr. PATTERSON. No.

Mr. GRIFFIN. When was the last that you talked to him about playing at the Vegas?

Mr. PATTERSON. About—I don't know the exact—it was one Sunday evening, I would say, approximately two weeks before the incident.

Mr. GRIFFIN. Before the assassination of the President?

Mr. PATTERSON. Could have been a week and a half or a week anyway in there.

Mr. GRIFFIN. At that time Jack didn't have a band playing at the Vegas?

Mr. PATTERSON. Yes; he did.

Mr. GRIFFIN. He did have a band?

Mr. PATTERSON. Yes. He had hired one band and one band had quit.

Mr. GRIFFIN. He hired another one?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. But the plan was that he would have had your band replace the one that was already playing there?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. Did you ever talk with Jack Ruby any place except at your house and the Vegas Club?

Mr. PATTERSON. Well, he came out to hear us. We were playing at SMU college and he came out to hear the band.

Mr. GRIFFIN. When was that?

Mr. PATTERSON. This was the same Sunday that I talked to him.

Mr. GRIFFIN. Any other places that you talked to him?

Mr. PATTERSON. Well, I had an interview on the radio one night at the Circle Bowl.

Mr. GRIFFIN. Where?

Mr. PATTERSON. Circle Bowl; bowling alley.

Mr. GRIFFIN. What radio station?

Mr. PATTERSON. KBOX.

Mr. GRIFFIN. How did you happen to be interviewed there?

Mr. PATTERSON. It was the first night I met Jack Ruby. I was playing at the Vegas. I did the show, and Mrs. Grant called me over and introduced me to him, and he said, "I like the way you play. Do you want to talk on the radio?" So I said, "Sure." So he said, "Follow me," and me and Robert Simpson followed him over to the Circle Bowl, and Jack West was doing his night program and he interviewed me.

Mr. GRIFFIN. When was that?

Mr. PATTERSON. It was the first night that I met him.

Mr. GRIFFIN. Back in the summer sometime, 1963?

Mr. PATTERSON. No, I didn't know him, but I would say a month or month and a half at the most prior to.

Mr. GRIFFIN. But he called or spoke to you either in person or on the telephone about 15 times in that month or month and a half?

Mr. PATTERSON. Yes. I mean in the same day and stuff like that, you know, on different occasions.

Mr. GRIFFIN. Now on any of these occasions that you saw him in person, did he have anybody else with him?

Mr. PATTERSON. Yes. The night I met him, he had somebody else with him.

Mr. GRIFFIN. At SMU?

Mr. PATTERSON. No. I met him at the Vegas Club.

Mr. GRIFFIN. Who did he have with him?

Mr. PATTERSON. He introduced me to a guy that was entertaining at the Carousel, Billy DeMar. I think that is the last name.

Mr. GRIFFIN. Was anybody else with him that night?

Mr. PATTERSON. A little short guy. I don't know his name.

Mr. GRIFFIN. Was he a Negro boy or a white one?

Mr. PATTERSON. I think he was just—he was an old man.

Mr. GRIFFIN. About how old a man would you say he was?

Mr. PATTERSON. I would say he was in his late forties.

Mr. GRIFFIN. How tall was he?

Mr. PATTERSON. About my size, about 5'2".

Mr. GRIFFIN. What was his build, heavy, medium or thin man?

Mr. PATTERSON. For his size, he was kind of fat. Stomach went like that [indicating].

Mr. GRIFFIN. Was he balding, or did he have all of his hair?

Mr. PATTERSON. I think he was balding.

Mr. GRIFFIN. Do you remember if he wore glasses?

Mr. PATTERSON. I don't remember.

Mr. GRIFFIN. Did he appear to be a business associate of Jack Ruby's?

Mr. PATTERSON. I couldn't tell. I didn't ride in the same car with him or nothing. I just saw him with him.

Mr. GRIFFIN. This other fellow didn't do any of the talking?

Mr. PATTERSON. Well, we were talking about promoting the record and he said, "Jack will put you over, don't worry."

He says, "If he likes you, he likes you, and if he don't like you, he don't like you." I remember him saying that.

Mr. GRIFFIN. Did you ever see this man again?

Mr. PATTERSON. No, I never did.

Mr. GRIFFIN. Did you ever meet any other people with Jack?

Mr. PATTERSON. His roommate, George. I don't remember his last name.

Mr. GRIFFIN. Where did you meet George?

Mr. PATTERSON. At their apartment.

Mr. GRIFFIN. How did you happen to go up to Jack's apartment?

Mr. PATTERSON. Well, it was the same night that he came over to SMU to listen at us, and he said, "What are you fixing to do?"

I said, "I am going home." It was on a Sunday after we got through playing and he said, "Why don't you come by and let's discuss, you know, the pay that I would pay you and the hours and so forth." So he didn't live too far from my house, and we stopped by there.

Mr. GRIFFIN. You and your trumpet player?

Mr. PATTERSON. No, just me.

Mr. GRIFFIN. And Jack—was Senator with Jack at SMU?

Mr. PATTERSON. Who?

Mr. GRIFFIN. Was George, was he with Jack?

Mr. PATTERSON. No.

Mr. GRIFFIN. At SMU?

Mr. PATTERSON. No.

Mr. GRIFFIN. So when you got to Jack's apartment, the roommate was there, George?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. Was anybody else there?

Mr. PATTERSON. The dog, and another woman and a man came in. I had seen her over to the club working. I guess she was related to him in some way.

Mr. GRIFFIN. You had seen her at the Vegas Club?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. Would it have been Mrs. Grant?

Mr. PATTERSON. I don't know.

Mr. GRIFFIN. What time of the night did this man and woman come in?

Mr. PATTERSON. I guess it was around 8 o'clock.

Mr. GRIFFIN. How long did you remain at the apartment that night?

Mr. PATTERSON. About 20 minutes.

Mr. GRIFFIN. Did you notice anything unusual about the apartment?

Mr. PATTERSON. No. Just an apartment.

Mr. GRIFFIN. Was that the only time you ever saw George?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. How long before the assassination of the President was it that you went to Jack's apartment?

Mr. PATTERSON. Approximately 2 weeks or 2½, something like that.

Mr. GRIFFIN. And it is your recollection that this was a Sunday?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. Would you have any record at home from which you could determine when that was? Any record of being paid at SMU which would indicate when it was?

Mr. PATTERSON. No.

Mr. GRIFFIN. The man who came into the apartment that Sunday night with the woman, how old a man did he appear to be?

Mr. PATTERSON. I don't recall, but I would say he was in his middle thirties or maybe 40. I didn't pay that much attention, because I don't think I ever seen him before.

Mr. GRIFFIN. Did he appear to be a Jewish man?

Mr. PATTERSON. I don't know. I don't think I ever heard him talk.

Mr. GRIFFIN. How tall do you recall him being?

Mr. PATTERSON. Maybe 5' 11", something like that.

Mr. GRIFFIN. How about his build, fat, medium, thin?

Mr. PATTERSON. He was fairly thin, I think.

Mr. GRIFFIN. That was the only occasion that you were ever in Jack's apartment?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. Did you meet him any other places?

Mr. PATTERSON. No.

Mr. GRIFFIN. Did you ever meet any of the people who worked at the Carousel Club outside of Billy DeMar?

Mr. PATTERSON. No.

Mr. GRIFFIN. Can you think of anything else that you could tell us about Jack Ruby, about your meetings with him or acquaintanceship with him?

Mr. PATTERSON. Well, like I say, I hadn't known him but about a month and a half. Maybe a month. It might have been 3 weeks prior to this incident, and I didn't know him that well, but he was trying to get us to play over there, because a band he had had for so long had left, and the one he had wasn't doing as good a job as he felt they should, and having a lot of trouble. Actually, my business dealings with Jack were with Mrs. Grant, and he came in one night while I was performing and she called me over and introduced me to him.

Mr. GRIFFIN. Mr. Patterson, I want to hand you a copy of a report that the FBI made after the interview with you on December 16, 1963. It is a copy of an interview report made by Special Agent James E. Garris, FBI, and pertains to an interview with you on the 16th of December 1963.

I don't know if you had a chance to read it, but, if you would, read it over and tell me if there are any additions or corrections that you would make to that other than what you have already told me here today, and also, if you would, indicate to me if that is a true and accurate report of the interview that you had with Mr. Garris? [Document marked Patterson Exhibit No. 5358.]

Mr. PATTERSON. This part where it says intermittently for several years, I wouldn't say it was several years. More like a year, maybe.

Mr. GRIFFIN. Now you indicated to me that the first time you ever worked for Eva Grant was back in the summer of 1963?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. That wouldn't even be a year. Is there something that makes you think that you worked for or knew her even before then?

Mr. PATTERSON. Sure. All the bands, more or less. I mean, knew of the place, you know, because I had a friend, Joe Johnson was playing there, and occasionally we would stop by and sit in, play a few numbers, so therefore——

Mr. GRIFFIN. I see.

Mr. PATTERSON. I guess that is what I meant.

Mr. GRIFFIN. Then you would qualify the statement which reads as follows:

“He has worked for Eva Grant, Jack Ruby's sister, at the Vegas Club in Dallas intermittently for several years as a guitar player and singer.”

You would state instead that for maybe a year before this interview on December 16, you had visited the Vegas Club occasionally to see your friend Joe Johnson, and that on those occasions you had sat in with Joe Johnson's band?

Mr. PATTERSON. Yes.

Mr. GRIFFIN. But that you never actually began to work there for money until the summer of 1963?

Mr. PATTERSON. Yes; I couldn't pinpoint it whether it was the summer, beginning or end of the summer, really. I don't actually recall. I would have to go back and get—she put a few advertisements in the paper with my name, and I can go back and look at them. I don't remember, I played so many places.

Mr. GRIFFIN. Did you belong to any musicians' union?

Mr. PATTERSON. Yes; I did once.

Mr. GRIFFIN. Were you a member of any union when you were playing for Eva Grant at the Vegas Club?

Mr. PATTERSON. No.

Mr. GRIFFIN. Did you have any agent at the time you were playing for Eva Grant at the Vegas Club?

Mr. PATTERSON. No.

Mr. GRIFFIN. Well, you said already that you don't have anything more that you could add, and I take it that there is nothing more that you would change in this interview report, is that correct? Or would you make some more changes in the interview report other than what we have already discussed today?

Mr. PATTERSON. About Jack Ruby?

Mr. GRIFFIN. Yes, or about anything that appears in this interview report. You hesitate like you think there are some other things you could tell us. Let me encourage you to come forward and tell us everything that you do know.

Mr. PATTERSON. Yes, this is all I remember.

Mr. GRIFFIN. Okay. I would like to ask if you in the future, or if you should remember anything or anything should come to your attention which could be of any assistance to the Commission, please get in touch with the Commission or, if it would probably be easier to get in touch with the FBI or Secret Service, let me know what it is.

I appreciate your coming out here this afternoon and speaking with us. You have had to wait around a long time to get here, and I certainly want to apologize for inconveniencing you and tell you again that we appreciate very much the time you have given us, and the help you have provided here, and it's been very nice meeting you.

Mr. PATTERSON. Thank you.

TESTIMONY OF RALPH PAUL

The testimony of Ralph Paul was taken at 8:03 p.m., on April 15, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is the deposition of Mr. Ralph Paul.

Mr. Paul, my name is Leon Hubert, I am a member of the advisory staff of the General Counsel of President Johnson's Commission to investigate the death of President Kennedy and the subsequent violent death of Lee Harvey Oswald. Under the provisions of Executive Order 11130, dated November 29, 1963, issued by the President's Commission, the Joint Resolution of Congress No. 137, and the rules of procedure adopted by Congress in conformance with that Executive order and joint resolution, I have been authorized to take a sworn deposition of you, Mr. Paul. I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate, and report upon the facts related to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald.

In particular as to you, Mr. Paul, the nature of the inquiry tonight is to determine what facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry, and about Jack Ruby and his associates, and his business and social friends and so forth. Now, I believe you have appeared here as a result of a letter written to you by Mr. J. Lee Rankin, the General Counsel of the Commission, advising that we would be here and requesting that you appear. Was that letter received by you more than 3 days ago?

Mr. PAUL. Yes.

Mr. HUBERT. Will you stand up and take the oath, please? Do you solemnly swear that the testimony you are about to give will be the truth, the whole truth and nothing but the truth, so help you God?

Mr. PAUL. Yes; I do.

Mr. HUBERT. Mr. Paul, will you state your name for the record, please?

Mr. PAUL. Ralph Paul.

Mr. HUBERT. And how old are you, Mr. Paul?

Mr. PAUL. I will be 65 this December.

Mr. HUBERT. Where do you reside?

Mr. PAUL. Right now I live with some friends—I'm building a house in Arlington, 1602 Browning Drive.

Mr. HUBERT. The letter of request to appear was addressed to the correct place?

Mr. PAUL. Yes; both places.

Mr. HUBERT. I understand that you are the owner or manager, and that is one of the things we want to clarify, of the Bull Pen?

Mr. PAUL. I am the owner.

Mr. HUBERT. You are the owner?

Mr. PAUL. Yes.

Mr. HUBERT. Is that a corporation?

Mr. PAUL. Yes.

Mr. HUBERT. What is the name of the corporation?

Mr. PAUL. That is Bappo [spelling] B-a-p-p-o.

Mr. HUBERT. That is Bappo, Inc., isn't it?

Mr. PAUL. That's right.

Mr. HUBERT. And that is a closely held corporation, I take it?

Mr. PAUL. Well——

Mr. HUBERT. I mean, do you own all the stock?

Mr. PAUL. That's right.

Mr. HUBERT. And, of course, the corporation owns the business and you manage the business?

Mr. PAUL. Yes.

Mr. HUBERT. Do you have any other occupation at the present time?

Mr. PAUL. No, sir.

Mr. HUBERT. How long have you lived in Dallas?

Mr. PAUL. In Dallas—itself?

Mr. HUBERT. Well, let's put it in the Dallas area, first. I mean—Dallas-Fort Worth area.

Mr. PAUL. Okay—I came in December 1947.

Mr. HUBERT. Where did you live prior to that time?

Mr. PAUL. New York, New York City.

Mr. HUBERT. In New York City?

Mr. PAUL. Yes.

Mr. HUBERT. And I think that you originally are an immigrant, is that correct?

Mr. PAUL. Yes, sir.

Mr. HUBERT. That information, I believe is information in the statement you have given.

Mr. PAUL. That's correct.

Mr. HUBERT. Do you recall what it was that caused you to come to Texas from New York?

Mr. PAUL. I was connected with some show people and they came down here and told me how great Texas was, and I came down, and in fact I came down and leased the club, leased the Sky Club at first, and we stayed there a month and then we bought it.

Mr. HUBERT. Leased which one?

Mr. PAUL. The Sky Club.

Mr. HUBERT. That was in 1947?

Mr. PAUL. That's actually in 1948, I mean, I came to Dallas 2 days before New Years or something like that.

Mr. HUBERT. Two days before New Years in 1947, so it's practically 1948?

Mr. PAUL. Yes.

Mr. HUBERT. Did you have any connections here when you came?

Mr. PAUL. No—I didn't know anybody here.

Mr. HUBERT. When you say "we", you mean you and your wife?

Mr. PAUL. No—that entertainer and her husband brought me down here.

Mr. HUBERT. What were their names?

Mr. PAUL. Joe Bonds and Dale Belmont—it's also in there.

Mr. HUBERT. They were husband and wife?

Mr. PAUL. Yes.

Mr. HUBERT. And they had been here before?

Mr. PAUL. They had been here before.

Mr. HUBERT. And they interested you in coming into this area?

Mr. PAUL. Yes.

Mr. HUBERT. Did you leave all your business and social connections in New York?

Mr. PAUL. Yes.

Mr. HUBERT. Were you married?

Mr. PAUL. No; not at that time I came down from New York.

Mr. HUBERT. You have been married since?

Mr. PAUL. No.

Mr. HUBERT. You are not married at all?

Mr. PAUL. No.

Mr. HUBERT. You never have been married?

Mr. PAUL. Yes.

Mr. HUBERT. And is your wife dead or are you divorced from her?

Mr. PAUL. We got divorced in 1931.

Mr. HUBERT. And you have never remarried?

Mr. PAUL. No, sir.

Mr. HUBERT. Were you supposed to supply capital to the venture?

Mr. PAUL. What venture?

Mr. HUBERT. With Joe Bonds?

Mr. PAUL. Oh, yes.

Mr. HUBERT. And you say it was in a very short period after arriving here you got interested in a place called the Sky Club?

Mr. PAUL. No; they interested me to come down here—they interested me to come down here and rent the Sky Club from a man called Satterwhite, and after we stayed there a month, he decided to sell it to us and then is when we bought it.

Mr. HUBERT. Who put up the capital?

Mr. PAUL. We put up some capital—the rest of it was by notes.

Mr. HUBERT. Was the corporation formed then?

Mr. PAUL. No, sir.

Mr. HUBERT. So, it was owned by you and Bonds?

Mr. PAUL. Ralph Paul and Joe Bonds.

Mr. HUBERT. Half and half?

Mr. PAUL. Yes.

Mr. HUBERT. How long did that venture last?

Mr. PAUL. I sold out my interest in May of 1948.

Mr. HUBERT. So, it lasted a very short period of time?

Mr. PAUL. Yes.

Mr. HUBERT. Whom did you sell it to?

Mr. PAUL. I sold it to a man from Miami that came up here looking for business—I can't think of his name—Rosenheim.

Mr. HUBERT. Do you remember his first name?

Mr. PAUL. I think it's some place in this—that is, his first name is.

Mr. HUBERT. That's all right, we will get to that. What sort of place was the Sky Club—what was it?

Mr. PAUL. A nightclub.

Mr. HUBERT. Where was it located?

Mr. PAUL. On the Fort Worth Cutoff. I think the address was six something Fort Worth Avenue.

Mr. HUBERT. What venture did you go into after that?

Mr. PAUL. I opened up a bar in downtown Dallas called the Blue Bonnet, underneath the Blue Bonnet Hotel.

Mr. HUBERT. Did you rent the premises there and operate the bar yourself?

Mr. PAUL. Yes, sir.

Mr. HUBERT. Did you have any partners in that?

Mr. PAUL. No, sir.

Mr. HUBERT. How long did you maintain that occupation?

Mr. PAUL. I maintained it close to 5 years. I opened it in November and sold it 5 years later in September.

Mr. HUBERT. So, you would have opened it in November 1948?

Mr. PAUL. Correct.

Mr. HUBERT. And you would have sold it?

Mr. PAUL. In September 1963.

Mr. HUBERT. 1953?

Mr. PAUL. No; 1953—that's correct.

Mr. HUBERT. And what did you do after 1953?

Mr. PAUL. Well, I didn't do nothing for several months and then I and Chris Semos opened up the Miramar Restaurant on Fort Worth Avenue.

Mr. HUBERT. And that was a partnership too?

Mr. PAUL. Yes; that was a partnership.

Mr. HUBERT. It was not a corporation?

Mr. PAUL. No.

Mr. HUBERT. Now, this Chris Semos, did he put up the money?

Mr. PAUL. We both put up some money and the rest was notes.

Mr. HUBERT. And what was the name of that?

Mr. PAUL. Miramar Restaurant.

Mr. HUBERT. That was a restaurant?

Mr. PAUL. Yes.

Mr. HUBERT. And nightclub, was it?

Mr. PAUL. No, just a restaurant and drive-in.

Mr. HUBERT. How long did you operate that?

Mr. PAUL. Close to 3 years—about 3 years less 2 months.

Mr. HUBERT. So that you operated that until, say, July of——

Mr. PAUL. No; I operated that until February.

Mr. HUBERT. Of what year?

Mr. PAUL. Of 1957.

Mr. HUBERT. Did you sell that, then?

Mr. PAUL. I sold it to Chris Semos.

Mr. HUBERT. You sold the whole thing to him?

Mr. PAUL. Yes.

Mr. HUBERT. Did you take a note from him?

Mr. PAUL. Yes.

Mr. HUBERT. I notice that in your income tax returns for some later years you show interest received from Chris Semos of about \$250 a month; is that interest on that note?

Mr. PAUL. No; it's \$125 a month for seven years, that includes \$100 a month payments and \$25 interest.

Mr. HUBERT. I beg your pardon—that's what I meant to say.

Mr. PAUL. That's \$250 a year—and one time it was \$250 because he wouldn't pay 2 months.

Mr. HUBERT. The interest you show as received, I said \$250 a month, I meant to say it was \$250 a year.

Mr. PAUL. That's right, \$250 altogether, and one year he didn't pay full so it was only \$250.

Mr. HUBERT. Is that loan paid out now?

Mr. PAUL. Yes, sir.

Mr. HUBERT. So, in February of 1957 you didn't have any business connections?

Mr. PAUL. No, sir.

Mr. HUBERT. Sir?

Mr. PAUL. No, sir. I went into partners with Jack Ruby's brother, Sam, and in a little ice cream place. We opened up April 25, 1957, and closed it—we didn't close, we gave the lease away so they wouldn't hold us responsible for the lease, and we lost some money because the fixtures that we bought was more.

Mr. HUBERT. How long did you operate that?

Mr. PAUL. May, June, and July.

Mr. HUBERT. Just a few months?

Mr. PAUL. We saw it didn't make, so there was no use in wasting time.

Mr. HUBERT. What was your next business venture then?

Mr. PAUL. Next, I didn't go in business, I was helping Jack Ruby in the Vegas Club from August until the following year—May.

Mr. HUBERT. August of what year?

Mr. PAUL. August 1957, to May 1958.

Mr. HUBERT. You were with Ruby, you say, at the Vegas Club?

Mr. PAUL. Yes; I just was helping him.

Mr. HUBERT. You mean on a salary?

Mr. PAUL. Well, no—it wasn't really a salary. I helped him out on Friday and Saturday.

Mr. HUBERT. Did you receive any compensation at all?

Mr. PAUL. Well, the only compensation I received he owed me some money, he paid me back.

Mr. HUBERT. Well, perhaps at that point then we should go back to—so that you may tell us when you first met Jack Ruby.

Mr. PAUL. Like I said over here, it was one of these improvised meetings that you meet somebody that comes over to you and introduces himself.

Mr. HUBERT. When was it, about; do you know?

Mr. PAUL. 1958.

Mr. HUBERT. In 1958?

Mr. PAUL. I mean, in 1948.

Mr. HUBERT. In 1948?

Mr. PAUL. Those years fly back so fast, 1948. That's the year I was up to the Sky Club yet.

Mr. HUBERT. And he simply came over and introduced himself to you?

Mr. PAUL. Yes; he says, "I'm Jack Ruby. I own the Silver Spur." I don't think it was known as the Silver Spur, but I can't recall the name it was

known then. It keeps on running in my mind that it wasn't the Silver Spur—it was another name, but I can't remember it.

Mr. HUBERT. Was it the Singapore?

Mr. PAUL. That's it.

Mr. HUBERT. It was the Singapore?

Mr. PAUL. Yes.

Mr. HUBERT. And he told you he was the owner of the Singapore?

Mr. PAUL. Yes.

Mr. HUBERT. And subsequently that became the Silver Spur.

Mr. PAUL. Yes.

Mr. HUBERT. Did you have any business connections with Ruby at all until he got to owe you some money?

Mr. PAUL. Well, I'll tell you the whole thing—the whole story.

Mr. HUBERT. Yes; that's best—that's the best way to do it.

Mr. PAUL. Well, one day he came in with a friend of his—he's now deceased.

Mr. HUBERT. If you could fix the time and place—as you go—it would be helpful, and I know it's a long time ago but perhaps we will have to take an approximation.

Mr. PAUL. Maybe it was 1949 or 1950 or 1951, I can't remember those years, and he asked me for a loan.

Mr. HUBERT. Do you remember what the friend's name was? The one that he came in with?

Mr. PAUL. He's now deceased, but it was Marty Gimpel.

Mr. HUBERT. And the two of them came to you?

Mr. PAUL. Yes.

Mr. HUBERT. And wanted to borrow some money?

Mr. PAUL. Yes.

Mr. HUBERT. How much was it they wanted to borrow?

Mr. PAUL. \$2,000.

Mr. HUBERT. Did you lend it to them?

Mr. PAUL. He said to me, "I've got a show, I want to buy the Bob Wills Ranch House"—did you get this one in there any place—he said, "I've got to show it," and he says, "All I want to do is show them that I've got the money and I'll give it back to you the following day." Well, not that I knew the guy so much, but you know, you can't turn people down like that if he wants to pay me the next day, so I loaned him \$2,000.

Mr. HUBERT. Did you get a note?

Mr. PAUL. No; he was going to pay me back the next day. Well, the next day didn't come. Subsequently he roped me in for \$3,700.

Mr. HUBERT. You mean—more?

Mr. PAUL. With the \$2,000—\$3,700 altogether.

Mr. HUBERT. Making \$1,700 more?

Mr. PAUL. Yes.

Mr. HUBERT. Now, why don't you just tell us in your own words just how this relationship developed and so forth?

Mr. PAUL. It's silly but true, and when I tell it, it's really funny. The next time he comes he says, "They didn't think it enough money to show for the place, I've got to show them \$3,000," so I gave him another \$1,000.

Mr. HUBERT. That would have been just a few days after?

Mr. PAUL. Yes—that's 2 days afterwards. Instead of the next day coming—he came 2 days and he says, "This is it positively—I've just got to show them the money." Well, he didn't come around that Saturday, and subsequently he came around and he said he had to use the money to get into the business there. What do you do with a person—you're just stuck. You can't do nothing until then—you can't do nothing with them. That went on for a couple of months, and now, listen to this: One day, on a Friday—that's how the other \$700 is going to come in—on a Friday he comes in and he says, "If I don't get the money to buy beer, I've got to

close it down.” Well, you’ve got to think—you’re already stuck with \$3,000—that’s how the payments came when I was with him at the Vegas Club—you understand me?

Mr. HUBERT. Yes; so, you gave him another \$700 on that occasion?

Mr. PAUL. Yes; but when he sold the Silver Spur at that time, he gave me money back, because I have the note on the Silver Spur. He gave me the note on the Silver Spur for the money, so in order to release the note, he gave me \$1,000.

Mr. HUBERT. Now, that’s a different transaction from the \$3,700; is it?

Mr. PAUL. That’s from the \$3,700. You see, I took a note afterwards, when he went bankrupt—when he went with the Bob Wills Ranch House, he gave me a note on the Silver Spur.

Mr. HUBERT. For what amount?

Mr. PAUL. For the \$3,700.

Mr. HUBERT. Up to that time you didn’t have a note, but when the Ranch House folded——

Mr. PAUL. Folded—it didn’t fold, his partner bought him out—the two of them—he couldn’t—he didn’t get any money out of it anyway.

Mr. HUBERT. Then, he went into the Silver Spur?

Mr. PAUL. No; he was in the Silver Spur before.

Mr. HUBERT. He was in the Silver Spur already?

Mr. PAUL. Yes.

Mr. HUBERT. He was in both?

Mr. PAUL. Yes; he was in both.

Mr. HUBERT. So, you got him to give you a note to show the \$3,700?

Mr. PAUL. But when he sold it, I think he sold it for \$2,200, or \$2,700, but he had to pay so many people that he gave me a thousand.

Mr. HUBERT. In other words, when he sold the Silver Spur——

Mr. PAUL. I had to give him the note—he couldn't sell it without the note.

Mr. HUBERT. Was the note secured in any way?

Mr. PAUL. No; it was registered.

Mr. HUBERT. A registered note, which made it a lien against the Silver Spur?

Mr. PAUL. That's right.

Mr. HUBERT. So that if he was going to sell it to anybody he had to clear the note, he had to get some sort of cancellation as to registration and that required the note?

Mr. PAUL. I gave him the note.

Mr. HUBERT. And you gave him the note for \$1,000.

Mr. PAUL. Yes.

Mr. HUBERT. That left \$2,700 still owing?

Mr. PAUL. Not exactly \$2,700—he paid me in little sums like 50 or 100—I think it left about \$2,200.

Mr. HUBERT. At that time?

Mr. PAUL. At that time.

Mr. HUBERT. And, of course, you had no more note?

Mr. PAUL. Yes; but when I helped him at the club, he gave me \$50 or \$25 or anything he could get ahold of to give me, so that eventually the note went down to \$1,200, and that's what it remained on that deal.

Mr. HUBERT. In other words, from August 1957 to May 1958, you helped out at the Vegas, which he was then operating?

Mr. PAUL. Yes.

Mr. HUBERT. The Silver Spur had gone?

Mr. PAUL. Yes.

Mr. HUBERT. And then the indebtedness got reduced to about \$1,200 you think as of May 1958?

Mr. PAUL. Yes.

Mr. HUBERT. Is there any further story to that note, or is that money still owing?

Mr. PAUL. That money is still owing.

Mr. HUBERT. That has never been paid?

Mr. PAUL. No.

Mr. HUBERT. And you have no note for it?

Mr. PAUL. No.

Mr. HUBERT. Now, after May 1958, what did you do?

Mr. PAUL. I bought into the Bull Pen.

Mr. HUBERT. And that was with Semos?

Mr. PAUL. No, no; that was with Bowman.

Mr. HUBERT. With Bowman?

Mr. PAUL. Bowman had a partner, and he got a notice from the building department—what is it, VA or something like that—they wanted him—as an examiner, so he sold out to me.

Mr. HUBERT. In other words, originally you and Bowman were in as a partnership alone, or was it a corporation when it started?

Mr. PAUL. No, no; when I bought this man out it was a stepfather then—when I bought him out—Bowman and I were partners—50-50 partners. Then we made it a corporation.

Mr. HUBERT. Do you remember the year of the incorporation?

Mr. PAUL. I think it was 1960.

Mr. HUBERT. 1960, but you had operated prior to that as a 50-50 partnership with Bowman?

Mr. PAUL. Yes.

Mr. HUBERT. Then, you became a corporation and when did you buy out Bowman completely so that you are now full owner?

Mr. PAUL. January 1, 1963.

Mr. HUBERT. Now, after you left this association with Ruby in May of 1958, did you have any further business or social relationship with him?

Mr. PAUL. Yes; we were friends.

Mr. HUBERT. You had been friends actually for that time almost 10 years, hadn't you?

Mr. PAUL. Yes; we were friends from the time he loaned the money from me, let's put it that way. We had to be friends.

Mr. HUBERT. Did you see him quite often?

Mr. PAUL. Yes, sir.

Mr. HUBERT. How did that come about?

Mr. PAUL. Well, the nights I had off, you see, we used to work 1 day and 1 night with my partners. If I worked nights, the next day he worked nights, so we swung it around, so the nights I had off, either I would go to the Vegas Club—at that time he had the Vegas Club alone, and after that we would go out to eat.

Mr. HUBERT. Was his sister, Eva Grant, with the Vegas at that time? At the very beginning?

Mr. PAUL. No, sir.

Mr. HUBERT. When did she come in, do you know?

Mr. PAUL. When he opened up—not the Carousel, but the first one—which one was that?

Mr. HUBERT. The Sovereign Club?

Mr. PAUL. The Sovereign Club.

Mr. HUBERT. What year was that—about?

Mr. PAUL. 1959 or 1960—I think it was 1959.

Mr. HUBERT. Had you known her before?

Mr. PAUL. Just a casual acquaintance, you know, I mean—I must have seen her once or twice.

Mr. HUBERT. She didn't live in Dallas?

Mr. PAUL. No; I think she was out on the road some place selling merchandise.

Mr. HUBERT. Did you have any further business relations with Sam Ruby?

Mr. PAUL. No; just that ice cream place.

Mr. HUBERT. That's all you ever had with him?

Mr. PAUL. Yes.

Mr. HUBERT. Then, did you ever have any financial interest in the Vegas?

Mr. PAUL. No, sir.

Mr. HUBERT. You don't now and never have had any?

Mr. PAUL. No.

Mr. HUBERT. Do you have any, or have you ever had any financial interest in the Sovereign Club?

Mr. PAUL. Actually—no—not interest at that time, but when I loaned him money on the Sovereign Club, that was after he went out with his partner. He and his partner couldn't get along—Slayton.

Mr. HUBERT. That was Joe Slayton?

Mr. PAUL. Yes.

Mr. HUBERT. They had started the Sovereign Club and they couldn't get along and Jack needed some money?

Mr. PAUL. Yes.

Mr. HUBERT. You loaned him some money, then, did you?

Mr. PAUL. Yes.

Mr. HUBERT. How much?

Mr. PAUL. Well, I think I loaned him for 3 months' rent or 4 months' rent—\$550 a month, because that was the time he couldn't pay the rent.

Mr. HUBERT. You loaned that in cash?

Mr. PAUL. No; I give him a check—not in cash.

Mr. HUBERT. You gave him a check?

Mr. PAUL. A check—I gave him a check.

Mr. HUBERT. Did he give you any evidence of indebtedness?

Mr. PAUL. No; the following year he gave me 50 percent of the club, telling me that if the thing don't go, the fixtures and everything should represent my money.

Mr. HUBERT. You had no note about it?

Mr. PAUL. No; he gave it to me—I knew about it.

Mr. HUBERT. No; but did he give you a note?

Mr. PAUL. No.

Mr. HUBERT. Was there any kind of written agreement?

Mr. PAUL. It was a stock receipt.

Mr. HUBERT. That was a corporation?

Mr. PAUL. Yes.

Mr. HUBERT. And he gave you a stock certificate?

Mr. PAUL. That's right.

Mr. HUBERT. Do you remember how many shares it was for?

Mr. PAUL. Five hundred.

Mr. HUBERT. Was that half of the corporation?

Mr. PAUL. Half of the place.

Mr. HUBERT. And he endorsed that over to you?

Mr. PAUL. Yes, yes; I think he did—he and Slayton—I think did.

Mr. HUBERT. And what was the consideration, that is to say, what money did you pay for that?

Mr. PAUL. To open up the Carousel——

Mr. HUBERT. No; I'm talking about the Sovereign.

Mr. PAUL. The Sovereign was no consideration—just the stock deal, that if anything happens to the club I should get some money out of it for the fixtures.

Mr. HUBERT. Well, as a matter of fact you had actually loaned him 4 months' rent at \$550, whatever that is?

Mr. PAUL. About \$2,200.

Mr. HUBERT. Yes; \$2,200, so, was it considered that that loan or that indebtedness was the consideration for the stock?

Mr. PAUL. That's right.

Mr. HUBERT. Or, was the stock merely to secure it?

Mr. PAUL. That's the security of that money—the stock was the security of the money.

Mr. HUBERT. In other words, if he had paid the money back to you, he was entitled to the stock?

Mr. PAUL. That's right. In fact, he took the stock certificate one time; he thought he would be able to sell the club.

Mr. HUBERT. I see.

Mr. PAUL. He thought he would be able to sell the club, so I give him the stock certificates; you know—you deal with people in money, that's true, and you are very careful, but sometimes friendship overshadows a lot of things.

Mr. HUBERT. I gather from what you say there that therefore there was a close friendship between you and Jack. Did you continue during that time on a friendly basis; that is to say, visiting at the Vegas or Sovereign Club?

Mr. PAUL. Yes; we were always friends.

Mr. HUBERT. You think you saw him two or three times a week during that time?

Mr. PAUL. Yes.

Mr. HUBERT. That would be from 1958 on?

Mr. PAUL. No; prior to that I saw him a lot of times before.

Mr. HUBERT. Jack was never married, was he?

Mr. PAUL. No, sir.

Mr. HUBERT. Where was the Sovereign located? Was it the same place as the Carousel?

Mr. PAUL. That's right.

Mr. HUBERT. Do you know anything about the changeover from the Sovereign to the Carousel?

Mr. PAUL. Oh, yes; I forced him to change that over.

Mr. HUBERT. All right; tell us about that, if you can tell us the dates and times, as close as you can.

Mr. PAUL. And, he needed money; the Sovereign Club was dead, as far as he was concerned. Either he closed it or—either he closes it or he does something else with it. So, I told him to change it to a burlesque house and I will give him \$1,650 to pay more rent on the place so he could go on, so I loaned him \$1,650 more to turn it over to a burlesque. That's when he changed it from the Sovereign Club, a private club, to a burlesque house, which was an open place.

Mr. HUBERT. In other words, with the Sovereign Club you had to belong to the club?

Mr. PAUL. That's right.

Mr. HUBERT. Sort of a bottle club, as required by the laws of Texas?

Mr. PAUL. That's right; he had a bottle club.

Mr. HUBERT. If you belonged to the club, you could buy liquor in the club, and if you didn't you couldn't, and it was your thought that the thing could be a success if its nature were changed?

Mr. PAUL. Yes; well, it's an open place.

Mr. HUBERT. It's an open place, a burlesque house, but, of course, you couldn't sell hard liquor?

Mr. PAUL. No.

Mr. HUBERT. But it would sell beer?

Mr. PAUL. That's right.

Mr. HUBERT. But your proposition to him was that you would advance \$1,650 in the new venture to at least pay the rent for some time?

Mr. PAUL. Yes.

Mr. HUBERT. Do you know anything about the incorporation of the S. & R., Inc.?

Mr. PAUL. Yes; the S. & R. started the thing. That was the first deal; S. & R. is Slayton and Ruby.

Mr. HUBERT. When you say "the first deal," are you speaking of the corporation that existed with reference to the Sovereign Club?

Mr. PAUL. Yes, sir.

Mr. HUBERT. Are you aware that there was a corporation called Sovereign, Inc., that owned the Sovereign Club?

Mr. PAUL. Yes.

Mr. HUBERT. I think you told me that he endorsed over as security 500 of the shares?

Mr. PAUL. Yes.

Mr. HUBERT. That was not the S. & R. shares with the stock certificates, was it?

Mr. PAUL. The S. & R. was the Sovereign Club. The original Sovereign Club was the S. & R., because Slayton didn't belong to anything else but the Sovereign Club.

Mr. HUBERT. Let me see if I can get this straight; you mentioned that in order to start the Sovereign Club you advanced \$1,650?

Mr. PAUL. No; that's after Slayton went out.

Mr. HUBERT. After Slayton went out?

Mr. PAUL. Jack Ruby owned the whole thing then.

Mr. HUBERT. He did?

Mr. PAUL. Yes.

Mr. HUBERT. And you loaned him 3 or 4 months' rent?

Mr. PAUL. Yes.

Mr. HUBERT. In return for which he pledged to you or gave you as security 500 shares of the stock of the corporation?

Mr. PAUL. Yes.

Mr. HUBERT. But I want to know what corporation was that; was that the Sovereign?

Mr. PAUL. S. & R.

Mr. HUBERT. And what year would that have been in?

Mr. PAUL. In 1959 or 1960.

Mr. HUBERT. Well, apparently you were not aware that there was a Sovereign, Inc.; a corporation called Sovereign, Inc.?

Mr. PAUL. No; all I knew was that it was the S. & R.

Mr. HUBERT. Then, when the place was changed to the Carousel, what happened to your 500 shares?

Mr. PAUL. It's still the same thing; Carousel is only a name. It's still S. & R.

Mr. HUBERT. Do you still have those shares?

Mr. PAUL. No; I gave them over to his sister.

Mr. HUBERT. When was that?

Mr. PAUL. February 14.

Mr. HUBERT. Of this year?

Mr. PAUL. Yes.

Mr. HUBERT. But you had held those shares, half of the ownership, as it were, of the Sovereign Club originally, and subsequently the Carousel, until recently?

Mr. PAUL. Yes.

Mr. HUBERT. Now, did you get any income from the corporation?

Mr. PAUL. No, sir.

Mr. HUBERT. Did you get any kind of pay?

Mr. PAUL. No, sir.

Mr. HUBERT. Of any sort; Jack never paid you any money through the years at all?

Mr. PAUL. He never paid me a dime.

Mr. HUBERT. And I gather from that that he stands owing you now \$1,200, which was left from the original debt, about \$2,200 that you loaned him for which you got a security—500 shares of a corporation—and then another \$1,650 that you loaned him in order to open up the Carousel?

Mr. PAUL. Right.

Mr. HUBERT. A total of about \$5,050, and is it your thought that he still owes you that much money?

Mr. PAUL. Well, what am I going to do?

Mr. HUBERT. I just wanted to find out just what the picture was, as to that. He never paid you any dividends?

Mr. PAUL. He never had any money to pay me dividends; he always used to work from his pocket.

Mr. HUBERT. Did you go to the Carousel very much?

Mr. PAUL. Yes, sir; once or twice a week.

Mr. HUBERT. Did you usually go on Saturday nights?

Mr. PAUL. Not every Saturday night; mostly Friday nights.

Mr. HUBERT. There is some evidence that on those occasions that you went, there were some sort of payments made to you, Mr. Paul, and that's what I want to find out, if there were any. I don't know what the nature of them was; that's why I'm asking you about it. If there were payments on a loan or payments because of your ownership of the Carousel.

Mr. PAUL. Not that I know of; not that I know of.

Mr. HUBERT. In other words, your statement to me is that Jack Ruby never paid you any money at all?

Mr. PAUL. Yes; that's right.

Mr. HUBERT. Either in the way of repaying the loan or in the way of dividends? Or in the way of profits?

Mr. PAUL. In the first place, until the last year that he was there, he was losing money.

Mr. HUBERT. At the Carousel?

Mr. PAUL. At the Carousel.

Mr. HUBERT. Did it make some money in the last year?

Mr. PAUL. In the last year I think it made some money, but he was so much in the hole that he had to pay everybody else. When he was arrested—now, mind you, when he was arrested—you wouldn't think that an electric company—you could owe them that much money, but there was \$175 or \$180 a month, and he owed them over \$600.

Mr. HUBERT. The electric company?

Mr. PAUL. Yes; the electric company—Dallas Electric Lights, and the telephone company—\$153. He kept on owing everybody money.

Mr. HUBERT. Well, in any case, you didn't get any payments of money from him?

Mr. PAUL. No, sir.

Mr. HUBERT. For your share of what any profits might have been or dividends or interest or repayment of loan or in any way at all; is that correct?

Mr. PAUL. That's correct.

Mr. HUBERT. Now, you say that you gave the 500 shares that you held up until February 14 of this year to Eva Grant?

Mr. PAUL. Yes.

Mr. HUBERT. Would you tell us why you did that?

Mr. PAUL. Well, for one reason, I couldn't run the club; I tried to run it, but I couldn't run it. I lost about \$3,000 in the time I run it from the 25th of November until the 14th of February.

Mr. HUBERT. Did you ever find out who owned the other 500 shares?

Mr. PAUL. No, sir.

Mr. HUBERT. Was it Jack?

Mr. PAUL. I don't know; I was never interested to know all the other facts, because I never figured to get any money out of the place anyway.

Mr. HUBERT. Did you know Earl Ruby?

Mr. PAUL. Yes, sir.

Mr. HUBERT. That's Jack's brother?

Mr. PAUL. Yes.

Mr. HUBERT. Had you ever met him prior to November 24 or November 25?

Mr. PAUL. Yes.

Mr. HUBERT. Where?

Mr. PAUL. In Dallas.

Mr. HUBERT. Did he come here often?

Mr. PAUL. No, sir; I think I met him twice or three times.

Mr. HUBERT. In your whole life, until the 25th?

Mr. PAUL. Until the 25th, yes.

Mr. HUBERT. Did he have any interest in the Carousel?

Mr. PAUL. I couldn't tell you.

Mr. HUBERT. Does he claim any?

Mr. PAUL. I still don't know.

Mr. HUBERT. Do you know his brother Hyman?

Mr. PAUL. Yes; I met him one time.

Mr. HUBERT. Just one time?

Mr. PAUL. The Friday before the assassination.

Mr. HUBERT. Before the murder?

Mr. PAUL. Yes.

Mr. HUBERT. You never met him before?

Mr. PAUL. No.

Mr. HUBERT. What about his sister, Eileen?

Mr. PAUL. No, sir.

Mr. HUBERT. You don't know her at all?

Mr. PAUL. I never heard of her.

Mr. HUBERT. And I think he has another sister called Mrs. Anna Volpert.

Mr. PAUL. No; I don't know her, either.

Mr. HUBERT. You never met any of the other brothers and sisters?

Mr. PAUL. Yes; Sam and his wife, and Eva and Earl, and that's all.

Mr. HUBERT. And then Hyman?

Mr. PAUL. Yes.

Mr. HUBERT. Sam, of course, you have seen more often than any of them?

Mr. PAUL. Oh, yes; Sam—well, we were partners for about 3 or 4 months.

Mr. HUBERT. Yes; but you had no other business relations after that.

Mr. PAUL. No.

Mr. HUBERT. Well, can you tell me why it was that this man owed you this kind of money and you had the stock at least for security for something; you gave it to Eva; what caused that to come about; did she ask you, or did you volunteer to do that?

Mr. PAUL. No; I voluntarily gave it to her so she could sell the club.

Mr. HUBERT. In other words, your thought was that it wasn't anything to you?

Mr. PAUL. I told her, "I don't want nothing out of it; I don't want nothing, I take my loss." And I let her have it. If she could sell it—to take the money and use it for herself, because she's a poor widow and she will verify everything I said—just the words.

Mr. HUBERT. Did she tell you that she had the other 500 shares?

Mr. PAUL. No; she just told me last week—she was over at my place, and she told me she didn't know who had the other 500 shares.

Mr. HUBERT. Has anyone asked Earl about it?

Mr. PAUL. I didn't ask Earl about it.

Mr. HUBERT. What about Jack himself?

Mr. PAUL. I don't know.

Mr. HUBERT. Have you seen Jack since he has been in jail?

Mr. PAUL. I have seen him three times since he has been in there—one time I seen him—about 4 weeks ago—the time before I went to New York, the week before I went to New York I was down there, the 27th, I think it was, and I came back the 2d.

Mr. HUBERT. That was of April?

Mr. PAUL. Yes.

Mr. HUBERT. And you saw him once just before that?

Mr. PAUL. Yes.

Mr. HUBERT. That was the first time you had seen him since he had been in jail?

Mr. PAUL. No; I saw him twice when he first got into jail—twice I saw him then.

Mr. HUBERT. In other words, there was the last time you saw him in jail and then you saw him two other times before that?

Mr. PAUL. Yes.

Mr. HUBERT. When were those times—about?

Mr. PAUL. I think about the second week and the fourth week—I think.

Mr. HUBERT. Did you discuss with him his business?

Mr. PAUL. No, sir—no, sir; I didn't discuss it—I didn't discuss nothing—how could you discuss a man's business when he is held for murder?

Mr. HUBERT. Of course, I didn't mean that you would bring up the subject, but I was wondering if perhaps he had asked about it?

Mr. PAUL. No.

Mr. HUBERT. In other words, you have been unable to get from any source Jack or Earl or Eva or Sam or anybody else where the other 500 shares are?

Mr. PAUL. That's right.

Mr. HUBERT. And you gave your 500 you held to her—you received nothing in return for it?

Mr. PAUL. No: what I told her to do was to pay the Government.

Mr. HUBERT. And from all you know, she doesn't even know where the other 500 shares are?

Mr. PAUL. No; that's what she told me.

Mr. HUBERT. I noticed on your income tax return, too, that you had a capital loss that you have spread over some years of \$7,000; I think, last year was about the last of it—I think you used about \$1,000 a year; is that in connection with any of this, or is that another transaction?

Mr. PAUL. No; that's from the Miramar and the ice cream place—that was in 1957. The place wasn't in existence in 1957.

Mr. HUBERT. Did you know a man by the name of George Senator?

Mr. PAUL. Yes, sir.

Mr. HUBERT. Tell us what you know about him, please, Mr. Paul?

Mr. PAUL. Well, he used to be a salesman, a dry goods salesman of men's apparel, let's call it, shirts and so forth.

Mr. HUBERT. Wholesale?

Mr. PAUL. No; retail—maybe wholesale, I don't know—he was working for some firm on the road. Well, it's Jack that made a friend of him you know what I mean, coming up to the club. They got friendly and in the last year I think he went into a novelty business with somebody—am I right?

Mr. HUBERT. That's the year 1963?

Mr. PAUL. I think so—some cars and little—different things, a lot of a little truck, and then finally about—oh, maybe in July or August——

Mr. HUBERT. Of 1963?

Mr. PAUL. Yes; they pushed him out, I think.

Mr. HUBERT. You mean his company did?

Mr. PAUL. It isn't a company, they pushed him out because he wasn't selling anything, or he was using up the money or something to that effect, and they pushed him out and he wasn't doing nothing and he was living with another man and they had an apartment and the other man got married and he didn't have no money, so Jack told him he could live with him until he could get another job, but that's George Senator.

Mr. HUBERT. How long have you known George?

Mr. PAUL. About 2 years.

Mr. HUBERT. And you think Ruby knew him about the same length of time?

Mr. PAUL. I think so—maybe a little longer.

Mr. HUBERT. Did he do any work around the Carousel?

Mr. PAUL. Who?

Mr. HUBERT. George Senator?

Mr. PAUL. I think he used to help him out on Saturday night. I don't know whether he paid him or not. Now, I would like to know who told you I get money out of the Carousel? I wish I did.

Mr. HUBERT. Of course, I can't answer that.

Mr. PAUL. I know, but somebody must have told you I get money out of that. You know what I used to do—I used to count the money for him at the end of the night because he was such a flip, you know what I mean, he used to argue with everybody that would count the money for him, and hold it until he went downstairs, so I gave it to him.

Mr. HUBERT. Tell us about that—that’s interesting.

Mr. PAUL. Well, if I be there on Saturday night or Friday night, at the end of the night, he would say to me, “Clear the register.” So, I would count the money. He says, “Let the boy from the bar give you the money and hold it until we come downstairs and I go to the car.” And that’s how I got the money.

Mr. HUBERT. So, you would be seen counting the money?

Mr. PAUL. Yes: that’s right—that’s why I wanted to know who told you.

Mr. HUBERT. But that’s all it amounted to, just that you had counted the money for him?

Mr. PAUL. That’s all—I would bring it downstairs—he never carried it with him actually—I don’t know why he carried so much money the last time. Actually, he used to throw it in the back of the car in the trunk and he said, “That’s the place that nobody looks.”

Mr. HUBERT. You mean you have known him to go home with money in the sack and he never put it on his person at all?

Mr. PAUL. No—in the back of the car.

Mr. HUBERT. Even when he parked his car at night he wouldn’t take it upstairs?

Mr. PAUL. What do you mean—no; he never took it up to the house—he left it in the car.

Mr. HUBERT. Did you ever have occasion to know how much money he had around like that?

Mr. PAUL. No, sir.

Mr. HUBERT. Well, of course, you know, I suppose, from the newspapers and what you have heard that when he was arrested he had altogether on his

person and in the car and so forth, something in excess——

Mr. PAUL. It was in the car too, wasn't it?

Mr. HUBERT. Some of it, yes; but to your knowledge, most of the time he didn't keep it on his person at all?

Mr. PAUL. No.

Mr. HUBERT. What about the gun, did he keep that on his person?

Mr. PAUL. It's a funny thing about the gun—he would always carry it in a bag, in a deposit bag, a money bag.

Mr. HUBERT. A canvas bag, and——

Mr. PAUL. Unless he went some place special, because he always said somebody might want to beat him up.

Mr. HUBERT. What do you mean by “some place special”—like what?

Mr. PAUL. Well, like if he was going out on a date or something, you know, I mean he wouldn't carry the bag. I mean, if he went to a show or something, he wouldn't carry the bag.

Mr. HUBERT. But he took his gun?

Mr. PAUL. No; he left it in the bag. The only time he would carry the gun—the bag was if he wasn't going to no place or he went home—if he went to eat, he would take it with him.

Mr. HUBERT. The gun or the bag?

Mr. PAUL. The bag with the gun.

Mr. HUBERT. From his car?

Mr. PAUL. Yes.

Mr. HUBERT. But yet he would leave it outside all night?

Mr. PAUL. Yes.

Mr. HUBERT. In the car?

Mr. PAUL. In the car.

Mr. HUBERT. But let me see if I get this straight—if he was going to eat, he would go to his car, take the money out of the trunk——

Mr. PAUL. No; the bag.

Mr. HUBERT. The bag—with the gun only?

Mr. PAUL. The gun.

Mr. HUBERT. He would leave the money there and take the bag with the gun, and then carried the gun in that fashion?

Mr. PAUL. Yes, many times he would be driving my car, he would leave the bag and the money on the bottom and lock the car.

Mr. HUBERT. And the gun would be in there with the bag and the money?

Mr. PAUL. Yes.

Mr. HUBERT. But you say that there were occasions when he would take the gun alone, leaving the money behind, but the gun not in a holster, but in a bag?

Mr. PAUL. But in a bag—so everybody thought he was carrying money.

Mr. HUBERT. Do you know if he ever owned a holster?

Mr. PAUL. No, sir.

Mr. HUBERT. Did you ever see him carry the gun in a pocket or tucked in his waist?

Mr. PAUL. No, sir; I never did.

Mr. HUBERT. The only time you have ever seen him carry his gun was when he carried it in a bag?

Mr. PAUL. In the bag.

Mr. HUBERT. Do you know a man by the name of Gruber that lives out in California?

Mr. PAUL. Gruber?

Mr. HUBERT. Gruber [spelling] G-r-u-b-e-r.

Mr. PAUL. That name doesn't sound familiar to me. I'll tell you, Jack had a million friends that I would never remember their names anyway. He used to introduce me and the name just flew by.

Mr. HUBERT. What about this boy Larry Crafard or Curtis Laverne Crafard, as he was called—do you know anything about him, that young man that was around the club for the last month or so?

Mr. PAUL. I think he was cleaning up the place every day and used to sleep there.

Mr. HUBERT. Did you ever talk to him?

Mr. PAUL. Jack brought up so many—no; I never did talk to him, but I never talked to those people myself that Jack used to pick up in the street and bring them up to work and do something, and in a couple of weeks they disappeared.

Mr. HUBERT. In other words, it was not a peculiar thing at all for Jack to bring in someone?

Mr. PAUL. Take them home to sleep—a man that hasn't got a place to live. I used to say to Jack, "Suppose he robs you?" He says, "So, he robs me."

Mr. HUBERT. Do you know a man by the name of Louis McWillie?

Mr. PAUL. McWillie? I knew him a long time ago. I think he is in—not Vegas—what is the other place?

Mr. HUBERT. Vegas is right.

Mr. PAUL. Vegas—is he?

Mr. HUBERT. Tell me what you know about him, was he ever in Dallas?

Mr. PAUL. Yes; sure, he was in Dallas a long time.

Mr. HUBERT. What was his business when he was here?

Mr. PAUL. When he come—he used to go to golf places and bet on golf.

Mr. HUBERT. You are talking about golf tournaments and golf games?

Mr. PAUL. Yes.

Mr. HUBERT. As a matter of fact, wasn't he a gambler in general—all sorts of gambling?

Mr. PAUL. I think so—I never had any dealings with him either.

Mr. HUBERT. Do you know of Ruby's dealings with him?

Mr. PAUL. No.

Mr. HUBERT. Well, now, do you know that sometime in 1959, probably around September or Labor Day, Jack went down to Havana, Cuba?

Mr. PAUL. Yes.

Mr. HUBERT. And stayed with McWillie?

Mr. PAUL. Well, McWillie sent him the carfare—McWillie was running the gambling house down there for the—I don't know what it was—Batista or some of their people—somebody else down there.

Mr. HUBERT. Tell us what you know and how you found out about it?

Mr. PAUL. Well, Jack told me.

Mr. HUBERT. What did he tell you?

Mr. PAUL. He told me he sent him money to come down there for a vacation.

Mr. HUBERT. Was Jack supposed to work or was it just a vacation?

Mr. PAUL. Just a vacation.

Mr. HUBERT. Do you know of any reason why, or did Jack tell you any reason why, McWillie would be interested in financing a vacation for Jack?

Mr. PAUL. I don't know, but I think Jack was a close friend of his. Actually, he thought the whole world was built around McWillie. Actually—and I never could see it, and I never used to go out with him when McWillie was around.

Mr. HUBERT. You disliked McWillie?

Mr. PAUL. No: but I didn't care too much for his personality.

Mr. HUBERT. Did you ever express yourself in that way to Ruby?

Mr. PAUL. Yes; I did.

Mr. HUBERT. What was his answer?

Mr. PAUL. Well, he told me—that he thinks he is a great guy—Jack says. Well, actually, I for one never meet too many friends with Jack, and Jack made everybody a friend and I haven't got too many friends. I just work to make a living. I'm not interested in a whole lot of other things.

Mr. HUBERT. In other words, what you are saying is that Jack was a man who made a lot of friends?

Mr. PAUL. That's right.

Mr. HUBERT. And you were one of his friends?

Mr. PAUL. Yes.

Mr. HUBERT. And you had fewer friends than he did?

Mr. PAUL. Yes.

Mr. HUBERT. But you considered yourself one of his best friends?

Mr. PAUL. Yes—Jack's best friend.

Mr. HUBERT. Both ways?

Mr. PAUL. That's right.

Mr. HUBERT. Do you remember how long he stayed in Havana?

Mr. PAUL. A week or 10 days.

Mr. HUBERT. Do you recall whether he went to Miami at that time or New Orleans?

Mr. PAUL. I think he stopped in Miami and went from Miami to Cuba and he came back to Miami. I think he had to do that anyway—it wasn't a straight flight.

Mr. HUBERT. But I take it that you are assuming that it was not—what I wanted to get at was whether Jack had ever told you—that's the way you would know.

Mr. PAUL. I'm telling you that he did.

Mr. HUBERT. That he told you that he went from here to Miami?

Mr. PAUL. Yes.

Mr. HUBERT. And from Miami down to Havana?

Mr. PAUL. Yes.

Mr. HUBERT. And on the route back, he came back through Miami?

Mr. PAUL. Yes; I think that's what he told me.

Mr. HUBERT. Do you know of any other trips that he has taken?

Mr. PAUL. The only time when I was at the Vegas Club, he went to—what are those Springs over there—Hot Springs—I think 2 weekends in a row.

Mr. HUBERT. Do you know of any other travels that he might have made?

Mr. PAUL. He went to New York.

Mr. HUBERT. When?

Mr. PAUL. Last year to see the AGVA president.

Mr. HUBERT. That was in regard to the trouble he was having with the Weinsteins?

Mr. PAUL. That is correct.

Mr. HUBERT. I think that was in August, was it not?

Mr. PAUL. No; it was earlier than August, I think.

Mr. HUBERT. Did you know of his trip to New Orleans last year?

Mr. PAUL. Yes—he went to—somebody told him about this strip down there.

Mr. HUBERT. Bourbon Street?

Mr. PAUL. Bourbon Street and he went down to catch her act.

Mr. HUBERT. He went for what purpose?

Mr. PAUL. To catch her act—to catch the girl's act, so he could book her.

Mr. HUBERT. He wanted to look at the girl's act to see if he could get any talent to come up here?

Mr. PAUL. The reason why—she asked for a lot of money.

Mr. HUBERT. Who is that?

Mr. PAUL. Oh, what is her name——

Mr. HUBERT. Jada?

Mr. PAUL. Jada.

Mr. HUBERT. He went down to Bourbon Street to see if he could get any striptease acts?

Mr. PAUL. That was the one he was sent to look at.

Mr. HUBERT. He was especially sent for Jada?

Mr. PAUL. This Earl Norman—the M.C.—was down there.

Mr. HUBERT. Earl Norman?

Mr. PAUL. Yes; and he saw her and he asked Jack to go down and see and get her, that she was going to bring him a lot of business.

Mr. HUBERT. And you knew this because Jack kept you in touch with the things he was doing and he made a contract with Jada, did he?

Mr. PAUL. Yes; she worked at the club quite a while.

Mr. HUBERT. She brought in some money, as I understand?

Mr. PAUL. Yes; and no. At first she was doing all right, and then she fell off to nothing.

Mr. HUBERT. She quit, I think, before her contract was over?

Mr. PAUL. Actually, it was a verbal contract—the last. You see, they had a contract to start with and then it became a verbal contract—she works as long as she wants to—as long as he wants to keep her.

Mr. HUBERT. In other words, the first contract was a written contract but of limited time, and when it ran out it was on a weekly basis?

Mr. PAUL. On a weekly basis.

Mr. HUBERT. During last fall, say from the time Jack came back from New York until November, do you think you saw him two or three times a week then? Or spoke to him?

Mr. PAUL. Yes, sir.

Mr. HUBERT. Do you think you are in a position to say whether or not he left town during any of those times during the period after he came back from New York—say, September, October, and November?

Mr. PAUL. No, sir.

Mr. HUBERT. Now, I don't quite understand your answer—are you in a position to say?

Mr. PAUL. He didn't leave town.

Mr. HUBERT. In your opinion?

Mr. PAUL. The only place I know he went is New Orleans and New York, last year.

Mr. HUBERT. And in your opinion if he had gone anyplace else, you would have known it?

Mr. PAUL. I would have known it. In fact, I was the only one that knew he went to New York, but when he went to New Orleans everybody knew because that was another thing—that was no secret.

Mr. HUBERT. And you are basing your opinion on the knowledge of his movements by the fact that you were in contact with him both in person and by telephone several times a week all through this period?

Mr. PAUL. Almost every day.

Mr. HUBERT. You would telephone one another?

Mr. PAUL. What?

Mr. HUBERT. You would telephone one another or see one another?

Mr. PAUL. Yes—telephone mostly. In the last year, I think I used to go to the club twice a week, Tuesday and Friday, because all the other nights I was working.

Mr. HUBERT. In other words, those were your nights off?

Mr. PAUL. Yes.

Mr. HUBERT. And you went almost 100 percent of the time that you had nights off, Tuesday and Friday, you went to the Carousel and you would

stay there all evening?

Mr. PAUL. Well, I wouldn't come until late anyway.

Mr. HUBERT. You would come late and stay until it closed?

Mr. PAUL. And then go for coffee or something to eat.

Mr. HUBERT. And in other than those days you would get in touch by telephone?

Mr. PAUL. Yes.

Mr. HUBERT. What was the purpose—just friendship?

Mr. PAUL. That's all—and, he had trouble with the Weinstains and he always asked for advice. That's why he used to call me all the time.

Mr. HUBERT. The telephone records, as you know, show quite a number of calls between you.

Mr. PAUL. They don't?

Mr. HUBERT. They do, and I was wondering just what those calls were about.

Mr. PAUL. Well, every day he would find something else he would like to do—he would think of doing, or the union didn't do right by him, the AGVA, or the girls didn't do right—that's why he called me almost every day.

Mr. HUBERT. You mean he would call you if he had trouble with the girls?

Mr. PAUL. If he had trouble with any of the girls, he would call me.

Mr. HUBERT. If he had trouble with the one—with the Weinstains, he would call you?

Mr. PAUL. Yes; and the AGVA people—you see, they've got a board of directors and each one takes a part, and if this one doesn't do right—that was almost consistently—he called on that.

Mr. HUBERT. When did you first hear that the President had been shot?

Mr. PAUL. On Friday—I was working. It was the lunch hour, you know, and lunch hour is our busiest hour. I'm always there on the lunch hour, and

my landlord's son called me on the telephone and told me the President was shot—they got it on the radio, and so I turned on the radio and then we all listened, everybody in the place naturally, because there was some excitement—people hollered and cried all over the place, and then everybody was listening to the radio to see what the result would be, and at 2 o'clock I went home, or a little after 2—generally I stayed until 2 o'clock on Friday. A little after 2—and when I got home Jack called me and he said, "Did you hear what happened?" I said, "Yes; I heard it on the air." He says, "Isn't that a terrible thing?" I said, "Yes; Jack." He said, "I made up my mind. I'm going to close it down." I said, "Well, I can't close down, I've got an eating place."

Mr. HUBERT. And did he suggest to you that you should close down your place?

Mr. PAUL. That's what he said, "Ain't you going to close?" I said, "No; I've got an eating place." I says, "You can do whatever you want."

Mr. HUBERT. Did he discuss with you whether he should close down?

Mr. PAUL. No; he didn't discuss it. He told me he was going to close down.

Mr. HUBERT. Did he tell you for how long?

Mr. PAUL. Three days.

Mr. HUBERT. That was at 2 o'clock?

Mr. PAUL. Friday at 2—Friday night and Saturday night and Sunday night.

Mr. HUBERT. He was going to close up?

Mr. PAUL. Friday night and Saturday and Sunday nights.

Mr. HUBERT. Did he tell you why he had chosen those 3 nights?

Mr. PAUL. Yes; in honor of the President being shot—he was heartbroken.

Mr. HUBERT. I mean, why 3 nights instead of 2 or 4?

Mr. PAUL. That's what I told him. I said to him, "Are the other clubs going to close?" He said, "I don't care about the other clubs."

Mr. HUBERT. Where was he calling you from, do you know?

Mr. PAUL. I don't know—he didn't say where he was calling me from. He generally called me from a telephone booth or the club—not so much from his home.

Mr. HUBERT. What would seem to be his condition when you were talking to him, emotionally and otherwise?

Mr. PAUL. Very bad emotionally—he said, “I can't believe it.”

Mr. HUBERT. What was it based upon, do you know?

Mr. PAUL. I don't know—if you don't see the person, you can't tell the person on a telephone how he reacts or——

Mr. HUBERT. I mean, you have known him for a good many years.

Mr. PAUL. Oh, yes; I've known Jack for so many years and he has always been that way, you know, reaction—fast—punch line—got to do this right away [indicating]. With him it wasn't—he thought and did. It wasn't a second thought.

Mr. HUBERT. But you are quite clear that when he called you about 2 o'clock——

Mr. PAUL. That's about a little after the time I got home—was a quarter to 3.

Mr. HUBERT. And that's the first time you had heard from him?

Mr. PAUL. Yes.

Mr. HUBERT. The President was already dead?

Mr. PAUL. Yes.

Mr. HUBERT. And it was known he was dead?

Mr. PAUL. Yes.

Mr. HUBERT. Did he say anything about Tippit?

Mr. PAUL. No, sir; I didn't know nothing about Tippit. I didn't know nothing about Tippit.

Mr. HUBERT. He didn't tell you?

Mr. PAUL. No; he didn't tell me anything about Tippit.

Mr. HUBERT. In any case, he said he had made up his mind he was going to close up the club for 3 days already?

Mr. PAUL. Yes

Mr. HUBERT. He didn't ask you—he told you?

Mr. PAUL. No; he told me.

Mr. HUBERT. Did he mention he thought that the death of the President would hurt business in the Dallas area and therefore hurt his business?

Mr. PAUL. No, sir.

Mr. HUBERT. He did not?

Mr. PAUL. No, sir.

Mr. HUBERT. How long did that conversation last—about?

Mr. PAUL. Three or 4 minutes—he says, “It's a terrible, terrible thing.” Then, when I got back to the place in the evening he called me.

Mr. HUBERT. That was about what time?

Mr. PAUL. Well, I came back at 5 and I think he called me at 6.

Mr. HUBERT. Do you know where he was then?

Mr. PAUL. No, sir; he says, “It's such a terrible thing that I'm going to go to synagogue.” He says, “Do you want to come along?” I says, “No; I don't go to the synagogue, I'm not going to make a fool out of myself.”

Mr. HUBERT. Did he go to the synagogue?

Mr. PAUL. Yes.

Mr. HUBERT. Did he go often?

Mr. PAUL. For a year he went every—should I say—every day.

Mr. HUBERT. That was after his father's death?

Mr. PAUL. That was after his father died—yes.

Mr. HUBERT. That's part of the Jewish religion that you should do that?

Mr. PAUL. Yes; that's true.

Mr. HUBERT. And he followed that?

Mr. PAUL. He followed that very closely.

Mr. HUBERT. After that, did he go very much?

Mr. PAUL. No; once in a while on holidays—he made it a habit of going on holidays to the synagogue.

Mr. HUBERT. That's the Jewish holidays?

Mr. PAUL. Yes.

Mr. HUBERT. But he didn't go every week?

Mr. PAUL. No—no.

Mr. HUBERT. Was it a surprise to you that he would be going to the synagogue?

Mr. PAUL. To tell you the truth, I didn't—anything Jack does is no surprise to me.

Mr. HUBERT. I'm sorry (addressing the reporter) I didn't get that, did you get that?

The REPORTER. "To tell you the truth, anything Jack does is no surprise to me."

Mr. HUBERT. But it was not his normal custom?

Mr. PAUL. No; but he says he's going to pray because a thing like that happened.

Mr. HUBERT. All right, that, you think, was about what time?

Mr. PAUL. About 6 o'clock in the evening.

Mr. HUBERT. And that conversation was just a matter of a few minutes, too?

Mr. PAUL. Yes.

Mr. HUBERT. When did you hear from him next?

Mr. PAUL. I don't know whether it was that night again, after he got out of synagogue—I can't recall. But, he didn't call me again—I know—until Saturday night, or until Saturday afternoon, and he said, "Did you see my ad in the paper?" I says, "What paper?" Well, Saturday is a pretty bad paper, and I said, "What paper?" He says, "In the Times Herald and the News." I said, "What did you put?" He said, "That I'm closing down for 3 days." I said, "That's what you said to me yesterday." He said, "But, it's in the paper." I said, "All right, I believe you."

Mr. HUBERT. You think that was Saturday afternoon?

Mr. PAUL. Yes.

Mr. HUBERT. You had not spoken to him or seen him since the night before?

Mr. PAUL. No—I didn't see him—no; when I saw him was Thursday night.

Mr. HUBERT. You were at the club then?

Mr. PAUL. Yes; then he called me Saturday when I got home.

Mr. HUBERT. About what time was that?

Mr. PAUL. Well, I didn't feel too good that night, and I left home—I generally work until 1 o'clock in the morning. I left at 11 o'clock and he said he called the place and they told him I went home and they told him I didn't feel well, and he says, "What's wrong with you?" And I says, "I've got a cold," and then he told me that he was downtown and that nobody was doing any business, so I says to him, "Well, if nobody is doing any business, I guess you had better close."

Mr. HUBERT. And what did he say to that?

Mr. PAUL. Then he called me back one more time—I didn't give you this before because I didn't—then he called me back one more time and told me that he was over at his sister's house, Eva's house, and Eva was crying and they are both crying.

Mr. HUBERT. This was Saturday night?

Mr. PAUL. This was Saturday night—that was late. I said, "Jack, I don't feel good. Let me go to sleep."

Mr. HUBERT. How long after the first call on Saturday night did the second call come?

Mr. PAUL. The first call come, I think, was 9:30 or 10 o'clock, and the second call I think was about 11:30.

Mr. HUBERT. You had left at what time?

Mr. PAUL. I left the place about 9 o'clock.

Mr. HUBERT. Because of your feeling ill?

Mr. PAUL. Yes.

Mr. HUBERT. And he reached you shortly after you got there?

Mr. PAUL. No, it was about an hour or so later.

Mr. HUBERT. You were in bed already?

Mr. PAUL. I was in bed already—that was the last time I spoke to him, I says, “Jack, let me go to sleep because I don’t feel well.”

Mr. HUBERT. That was on the second call?

Mr. PAUL. Yes.

Mr. HUBERT. So, the second call was at what time?

Mr. PAUL. About 11 or 11:30.

Mr. HUBERT. The first call was about 9:30?

Mr. PAUL. No; about 10:30.

Mr. HUBERT. About 10:30, and the second call about an hour after?

Mr. PAUL. No; I left the place, but it just takes me about 15 or 20 minutes to get home, and I doctored myself up with some hot tea and so forth—it must have taken about another half hour, so it must have been about 10:30.

Mr. HUBERT. In other words, on the first call—he had called your place and found out you were not feeling well?

Mr. PAUL. Yes; he called me and I told him I wasn’t feeling well and he told me that nobody downtown was doing any business.

Mr. HUBERT. And then you told him he ought to be glad he stopped, because if nobody was doing any business he might as well be closed, and that was about the subject of that conversation?

Mr. PAUL. That's—that was that conversation. That's the subject, and then he called me back and he told me he was over at his sister's house and his sister was crying and he was crying with her on account of the President, and that's the last I spoke to him.

Mr. HUBERT. You could hear her crying or he told you?

Mr. PAUL. He just told me.

Mr. HUBERT. What about his own crying, could you tell that he was crying, did he seem to be crying?

Mr. PAUL. No; he wasn't crying then when he spoke to me.

Mr. HUBERT. He wasn't crying then—in other words, what he was telling you was that he and his sister had been crying?

Mr. PAUL. Had been crying.

Mr. HUBERT. Was that all he wanted to tell you?

Mr. PAUL. That's all.

Mr. HUBERT. And you in effect told him you were sick and not to bother you any more, would that be about it?

Mr. PAUL. And I went to sleep and that's the last I talked to him.

Mr. HUBERT. Well, when was your next contact with Jack?

Mr. PAUL. When he was in jail.

Mr. HUBERT. When did you hear about the Oswald matter?

Mr. PAUL. Sunday morning—I was—I had just finished making out the payroll.

Mr. HUBERT. At the Bull Pen?

Mr. PAUL. Yes; when John Jackson, my manager, called and the girl answered the phone and she says—he says, "Oswald is shot."

Mr. HUBERT. He said that to you?

Mr. PAUL. To the girl, and the girl relayed it to me. Just, “Oswald was shot,” so I looked up and I says, “So what?” I mean—just the regular coincidence. “So what?” 5 minutes later a fellow that lived around the corner that knew me—he used to work at the Sky Club years ago, named Howard something, came in and says, “Jack Ruby shot Oswald.”

Mr. HUBERT. That was in the Bull Pen at Arlington?

Mr. PAUL. Yes, sir.

Mr. HUBERT. What was that man’s name?

Mr. PAUL. Howard something.

Mr. HUBERT. That’s his first name?

Mr. PAUL. Howard is his first name—I can’t think of the second name—he’s just a customer there—he used to work a long time ago at the Sky Club—I think he was—he used to be their cabinet man there, so I says, “Go away.” I says, “Wait, I’ll call the house.” So, I called the house and nobody answered.

Mr. HUBERT. You called Jack’s house?

Mr. PAUL. Yes; I called Jack’s house and nobody answered, so Jackson and his wife came in and said, “Yes, we just saw it on TV that Jack Ruby shot Oswald.” So, I says, “All right”—that’s when I called Tom Howard.

Mr. HUBERT. About what time was it you called Howard, do you know?

Mr. PAUL. I would say it was about in between 11:30 and 12 o’clock.

Mr. HUBERT. In other words, between 10 minutes or 15 minutes after the shooting, to 30 to 40 minutes after the shooting?

Mr. PAUL. Well, you know—shooting—we didn’t think he killed him.

Mr. HUBERT. Yes; I understand.

Mr. PAUL. So, I says, “Tom,” well Tom has been my lawyer for the longest time.

Mr. HUBERT. He has been your lawyer?

Mr. PAUL. Yes; and Jack’s too.

Mr. HUBERT. Jack’s too?

Mr. PAUL. Yes; and I says, "Tom, see what you could do for Jack. I heard he shot Oswald." He says, "Okay," and that's it.

Mr. HUBERT. Did he indicate to you that he was not aware that Oswald had been shot?

Mr. PAUL. I don't know whether he did or not.

Mr. HUBERT. Did he indicate to you when you talked to him that he was not aware that Ruby had shot him?

Mr. PAUL. No; I just told him.

Mr. HUBERT. Did he seem to be surprised?

Mr. PAUL. No.

Mr. HUBERT. Did he say anything to indicate he knew about it?

Mr. PAUL. No; he didn't. He says, "Okay, I'll take care of it." Those are the words he said.

Mr. HUBERT. In other words, you asked him to see what he could do and without indicating whether he knew about it or not, as far as you could tell, he says, "I'll see what I can do." And that was the end of the conversation?

Mr. PAUL. Yes.

Mr. HUBERT. Did you make any appointment to meet him yourself?

Mr. PAUL. Who—Tom?

Mr. HUBERT. Yes.

Mr. PAUL. No; I went down to his office anyway.

Mr. HUBERT. So, you were at the Bull Pen at that conversation and you went where?

Mr. PAUL. Downtown.

Mr. HUBERT. Where did you go?

Mr. PAUL. I went to the—John and I and the girl went down to the police station and I saw Tom Howard there.

Mr. HUBERT. Inside the station?

Mr. PAUL. Yes.

Mr. HUBERT. Whereabouts was it, do you know?

Mr. PAUL. It was right off the entrance to the—as you walk in—do you know where the entrance is when you walk in?

Mr. HUBERT. From Harwood Street?

Mr. PAUL. What?

Mr. HUBERT. On Harwood Street?

Mr. PAUL. No; it's on Commerce.

Mr. HUBERT. Not the basement ramp?

Mr. PAUL. The basement ramp.

Mr. HUBERT. You went through the basement ramp?

Mr. PAUL. Yes.

Mr. HUBERT. What time was that, about?

Mr. PAUL. Maybe 1 o'clock, and so we meet him, and he says, "They won't let you see him anyway, you had better go over and stay at the office. I think it's on television." So we walked over to his office and we watched television until about 3 o'clock.

Mr. HUBERT. That was Jackson and you and Howard?

Mr. PAUL. No; not Howard—a girl Tammi True.

Mr. HUBERT. Tammi True and you went to Howard's office?

Mr. PAUL. Yes.

Mr. HUBERT. And Howard was there?

Mr. PAUL. No; I was in the courthouse—he sent us over there.

Mr. HUBERT. Howard sent you to his office to watch television?

Mr. PAUL. Yes; to watch television.

Mr. HUBERT. And he went where, do you know?

Mr. PAUL. I don't know.

Mr. HUBERT. Do you know what he did?

Mr. PAUL. No; he—some more lawyers they all got together and then they left again and they came back again and riding into town, that's when we heard that Oswald was dead—died.

Mr. HUBERT. When you got to Howard's office, you knew he had died?

Mr. PAUL. Yes.

Mr. HUBERT. Did Howard tell you he had tried to get a writ of habeas corpus for Ruby?

Mr. PAUL. Yes.

Mr. HUBERT. And what happened to that proceeding, do you know?

Mr. PAUL. I don't know.

Mr. HUBERT. So you stayed there, you said, until about when?

Mr. PAUL. 3 o'clock.

Mr. HUBERT. Who is Tammi True?

Mr. PAUL. That's one of the girls that worked at the club before—she was an entertainer.

Mr. HUBERT. Was she at the Bull Pen?

Mr. PAUL. No; she lives in Fort Worth.

Mr. HUBERT. How did she come to be riding with you and Jackson?

Mr. PAUL. She came up to the Bull Pen when she heard about Jack Ruby.

Mr. HUBERT. Did you drive in her car?

Mr. PAUL. No; in Jackson's car.

Mr. HUBERT. In other words, when she heard it at her home in Fort Worth, she came to your place and the three of you came downtown and stayed until 3 o'clock?

Mr. PAUL. Yes.

Mr. HUBERT. Then what happened?

Mr. PAUL. I went back—went back home.

Mr. HUBERT. The three of you?

Mr. PAUL. No; I went as far as—we took Tammi back and then I let Jackson off and I went back to Dallas and went to the movies.

Mr. HUBERT. You took Tammi back to Fort Worth?

Mr. PAUL. Yes.

Mr. HUBERT. And then came back to Arlington?

Mr. PAUL. Yes.

Mr. HUBERT. And left off Jackson?

Mr. PAUL. Yes; and I went back to the movies, because when I came in, I says, “Anybody looking for me,” to the cashier, and she says, “A reporter and a photographer was calling you.”

Mr. HUBERT. That was at the Bull Pen?

Mr. PAUL. Yes.

Mr. HUBERT. So, you drove in your car alone and you went to the movies and I think you said you went to the Majestic?

Mr. PAUL. Yes.

Mr. HUBERT. What time did you get there?

Mr. PAUL. I got there about 4:30.

Mr. HUBERT. Did you park your car some place?

Mr. PAUL. I parked it on the lot. You see, Sunday, you don’t have to have no parking.

Mr. HUBERT. And you stayed in the Majestic and watched the show?

Mr. PAUL. I stayed there about an hour—I wasn’t interested too much in the show, I just wanted to get away from everything.

Mr. HUBERT. What time did you come out of the show?

Mr. PAUL. It must have been about, oh, 6 something—I went back and I went to Jackson’s house.

Mr. HUBERT. You went into the show about what time—4:30, you think?

Mr. PAUL. Yes.

Mr. HUBERT. And you stayed there until about 6, when you came out, about an hour and a half?

Mr. PAUL. Yes.

Mr. HUBERT. Then, what did you do?

Mr. PAUL. I went back and went over to Jackson's house.

Mr. HUBERT. That's on what street and where?

Mr. PAUL. That's where I'm living now—Browning Street.

Mr. HUBERT. And you went to his house—go ahead?

Mr. PAUL. Yes; and stayed there about an hour or so.

Mr. HUBERT. Who was there with you?

Mr. PAUL. The girls.

Mr. HUBERT. What girls?

Mr. PAUL. Jackson's girls.

Mr. HUBERT. You mean his daughters?

Mr. PAUL. Yes; two girls; yes.

Mr. HUBERT. And it was just the three of you?

Mr. PAUL. Yes; they made me something to eat.

Mr. HUBERT. And you got there about what time?

Mr. PAUL. Then, I called the place and Jackson told me that the FBI was looking for me and I kept on wondering what they wanted with me, and so we stayed over there, and then his sister had had a little gathering over at her house.

Mr. HUBERT. You mean Eva?

Mr. PAUL. No; Jackson's sister, so we went over there.

Mr. HUBERT. Her name is Mrs. Gable?

Mr. PAUL. Yes; we had some ice cream and John walked in with the two FBI men; that was 9 o'clock.

Mr. HUBERT. Do you know Mrs. Bowman?

Mr. PAUL. Mrs. Bowman?

Mr. HUBERT. Yes.

Mr. PAUL. Sure.

Mr. HUBERT. Who is she?

Mr. PAUL. She's my ex-partner's wife.

Mr. HUBERT. Were you living with her at that time?

Mr. PAUL. We were living together in a big house.

Mr. HUBERT. On that date?

Mr. PAUL. Yes; that's way out in the country.

Mr. HUBERT. Did you see her that day?

Mr. PAUL. No, sir.

Mr. HUBERT. Not at all?

Mr. PAUL. I don't think I did—I might have seen her when I left the house.

Mr. HUBERT. And what time would that have been?

Mr. PAUL. Oh, in the morning.

Mr. HUBERT. But you didn't see her after Oswald was shot?

Mr. PAUL. I don't think so—I don't remember.

Mr. HUBERT. Did you go back to the house after Oswald was shot?

Mr. PAUL. I think I went from the movies to the house and changed clothes—that's what I think I did, and then went over to Jackson's house.

Mr. HUBERT. When was it that you decided to take over the operation of the club?

Mr. PAUL. That Monday after the shooting.

Mr. HUBERT. Did Jack ask you to do so?

Mr. PAUL. No, sir; I didn't see Jack.

Mr. HUBERT. Did Eva ask you to do so?

Mr. PAUL. No.

Mr. HUBERT. Well, why did you do it?

Mr. PAUL. Personally, I don't know—I just did it on the spur of the moment, and I have been sorry every day after that.

Mr. HUBERT. Did you ask Jack, or send word to him that you were going to do this?

Mr. PAUL. No, sir.

Mr. HUBERT. Did you ask—well, weren't you interested in salvaging some of the debt that was owed to you if you could?

Mr. PAUL. If I could.

Mr. HUBERT. That's what I meant—that was why you did it?

Mr. PAUL. Yes; but I saw what I was getting into—it turned out to be a lemon.

Mr. HUBERT. Well, it turned out, as you say, to be a lemon, but your motive was to see if you could operate it to see if anything could be made out of it, to see if you could recover some of the debt that was owed to you?

Mr. PAUL. That's right.

Mr. HUBERT. And at the same time, I suppose, if you could make the thing a success—whatever Jack's interest was, it would be helpful to him, too?

Is that a fair statement of what was running in your mind?

Mr. PAUL. Well, naturally—I mean——

Mr. HUBERT. I don't want to put words in your mouth—if it's not so, tell me.

Mr. PAUL. Actually, it was on the spur of the moment that I did it, and I learned right away it cost me money.

Mr. HUBERT. Did Eva object?

Mr. PAUL. No.

Mr. HUBERT. Did any of his brothers or sisters object?

Mr. PAUL. No.

Mr. HUBERT. And you actually operated it for approximately 2½ months?

Mr. PAUL. Yes.

Mr. HUBERT. And then why did you close it?

Mr. PAUL. Well, maybe I would still be operating it—no, I wasn't going to operate it any more. I told Eva, "I'm going to give you the stock," and let her do whatever she wanted to with it, because I couldn't do it any more. The second thing is, I had a broken foot—I couldn't make it any more over there. I was only coming up once a week, and the thing was shot, and then on the same day I decided to that, the liquor control board closed it up. They didn't close it up, they sent me a notice that I can't sell beer, so I might as well close it up.

Mr. HUBERT. And it hasn't been opened since then?

Mr. PAUL. No.

Mr. HUBERT. You paid the rent and all the bills during that time?

Mr. PAUL. When I was operating it?

Mr. HUBERT. Yes.

Mr. PAUL. Yes.

Mr. HUBERT. And you came out a deficit of about \$3,000?

Mr. PAUL. At least—maybe more—I paid the Government \$1,770.

Mr. HUBERT. What was that for?

Mr. PAUL. Back taxes.

Mr. HUBERT. Excise taxes?

Mr. PAUL. Yes; it was for September, November, October, December.

Mr. HUBERT. Is that excise tax?

Mr. PAUL. Excise tax—that's the cabaret tax, they call it.

Mr. HUBERT. It doesn't have anything to do with the social security or withholding taxes?

Mr. PAUL. I paid them some of that too—there was only one person that was getting paid—all the entertainers got their own—they don't go under social security.

Mr. HUBERT. They are self-employed?

Mr. PAUL. Yes.

Mr. HUBERT. Do you know a woman by the name of Bertha Cheek?

Mr. PAUL. What is her name?

Mr. HUBERT. Bertha Cheek.

Mr. PAUL. It doesn't even ring a bell.

Mr. HUBERT. Did Ruby ever tell you that just towards the end, in a week or two prior to the death of Oswald, that he was trying to borrow some money from her, and get her interested in opening a new cabaret?

Mr. PAUL. No, sir.

Mr. HUBERT. Or doing something to the Carousel?

Mr. PAUL. No, sir; that name don't even ring a bell to me.

Mr. HUBERT. You don't know her at all and he never mentioned her?

Mr. PAUL. Never.

Mr. HUBERT. Nor did he mention that he was trying to raise any money?

Mr. PAUL. No.

Mr. HUBERT. I think perhaps you would be in as good a position as anybody else to tell us some things about Jack's personal life. As you may know, there have been some rumors at least, that maybe Jack was a homosexual?

Mr. PAUL. Oh, no—there was rumors?

Mr. HUBERT. Yes, you have heard the rumors?

Mr. PAUL. Yes.

Mr. HUBERT. We would like your opinion on that subject.

Mr. PAUL. Oh, no—no, sir.

Mr. HUBERT. You knew the man a long time?

Mr. PAUL. A long time.

Mr. HUBERT. It is your opinion he was not a homosexual?

Mr. PAUL. Positively.

Mr. HUBERT. What was his relationship with women generally; do you know?

Mr. PAUL. Well, he liked women.

Mr. HUBERT. Did he have affairs with them?

Mr. PAUL. Yes—just different times, different women all the time.

Mr. HUBERT. Was he ever particularly attached to one?

Mr. PAUL. Yes.

Mr. HUBERT. Who was that?

Mr. PAUL. Let me remember that name again—mention some names, I can't think of the name.

Mr. HUBERT. Alice Nichols?

Mr. PAUL. Alice Nichols—yes, I think they were going around together for about 10 or 11 years. I used to go out with them too.

Mr. HUBERT. What was his relationship to the girls who used to work in his place, was it strictly a business relationship?

Mr. PAUL. With the girls—strictly business. He would like to make a girl that would come up there, but not the girls that was working for him.

Mr. HUBERT. You mean he wouldn't try to date the strippers or waitresses?

Mr. PAUL. No—we used to take them out for coffee after they got through, but that’s all.

Mr. HUBERT. I would like to show you a picture, or rather several pictures which have already been identified, and I’m not going to give them a new identification number. I’m going to show you a group of five pictures, exact copies of which have already been identified in connection with the deposition of Andrew Armstrong, as Exhibits 5300 A through F and ask you if it is not so that Jack Ruby appears in each one of those pictures?

Mr. PAUL. Right.

Mr. HUBERT. Now, there are two girls in there?

Mr. PAUL. Yes.

Mr. HUBERT. One has blonde hair and is wearing dark clothes and the other is—has darker hair and is wearing a striped dress.

Mr. PAUL. Yes.

Mr. HUBERT. Could you tell us who they are, referring first to the one with the blonde hair with the black dress?

Mr. PAUL. Yes, that’s Kathy Kay.

Mr. HUBERT. Who is the other one?

Mr. PAUL. This is Alice—somebody—I don’t know the second name anyway.

Mr. HUBERT. Alice Anderson?

Mr. PAUL. Yes—I never knew her second name. She worked there.

Mr. HUBERT. When did she work there?

Mr. PAUL. Alice was a waitress or a champagne girl, what you call them, and she was the strip.

Mr. HUBERT. Yes, Kathy Kay was a strip?

Mr. PAUL. Kathy Kay was a strip.

Mr. HUBERT. How long had the girl that you identify as Alice, to wit, the girl in those pictures with the striped dress, how long had she been working

at the club?

Mr. PAUL. Well, from the time he made a burlesque out of it, she used to work a couple of weeks, a couple of months, then quit and come back and work another couple of months or couple of weeks and then quit. She was never a steady girl.

Mr. HUBERT. Is she married?

Mr. PAUL. I don't think so.

Mr. HUBERT. Did he date her?

Mr. PAUL. No, sir.

Mr. HUBERT. Well, are you positive or is it that you just don't know?

Mr. PAUL. That I know of.

Mr. HUBERT. But I take it from the way you answered the question that you knew him so well that you probably would have known it if he had?

Mr. PAUL. Yes—if he did I would have known.

Mr. HUBERT. He would tell you that?

Mr. PAUL. Yes.

Mr. HUBERT. He told you about his affairs with women, is that right?

Mr. PAUL. No; not always—he told me about affairs he wanted to tell me about, let's put it that way.

Mr. HUBERT. Were there lots of them?

Mr. PAUL. Well, there were quite a few.

Mr. HUBERT. Do you know of a girl by the name of Joyce McDonald?

Mr. PAUL. Joyce?

Mr. HUBERT. I think her stage name was Joy Dale?

Mr. PAUL. Yes.

Mr. HUBERT. Do you recognize her in the photo I am now showing you?

Mr. PAUL. Oh, I recognize her.

Mr. HUBERT. This photograph has been identified in connection with the deposition of Andrew Armstrong, as Exhibit 5301 A through E, and there are five pictures here showing a man and two girls—Jack Ruby is the man, of course; is that right?

Mr. PAUL. I guess.

Mr. HUBERT. And the girl on your right, as you look at the picture?

Mr. PAUL. I'm not seeing it.

Mr. HUBERT. I would like for you to identify both girls, but do so in such a way that the record can show it—in other words, when you say, “this” it won't show up on the record, but when you say “this” you must say the girl on the left-hand side of the picture as you are looking at it—is that who you mean?

Mr. PAUL. Yes; that's Dale.

Mr. HUBERT. That's the girl called Joyce Day?

Mr. PAUL. Joy Dale.

Mr. HUBERT. That's the one on the right-hand side of the picture?

Mr. PAUL. Yes; the one on the right-hand side is—what do you call her again—that little girl up that went to court?

Mr. HUBERT. Little Lynn?

Mr. PAUL. Little Lynn.

Mr. HUBERT. That's Karen Bennett, did you know her as that?

Mr. PAUL. No; I never knew her as that, all I knew her was Little Lynn.

Mr. HUBERT. Do you know what the relationship between this Dale girl and Jack Ruby was that you have identified in Exhibit 5301 A through E, the deposition of Andrew Armstrong?

Mr. PAUL. I don't know what Andrew knew, but I know nothing about her. I know she worked there—she was a stripper.

Mr. HUBERT. So far as you know, was there any romantic relationship or sex relationship?

Mr. PAUL. I don't know. I wouldn't say “yes” and I wouldn't say “no.”

Mr. HUBERT. You just don't know?

Mr. PAUL. Anything I don't know—I can't say I know.

Mr. HUBERT. That's absolutely correct. I am simply asking you because you have been a friend a long time and as you said a moment ago, he told you some of the things that he wanted you to know?

Mr. PAUL. Well; I don't think he wanted me to know about any of the girls that worked in the club, even if he did have affairs with them—that would be—I probably would say something to him, but on the outside, I know a lot of girls that he had affairs with.

Mr. HUBERT. I'm now going to show you a picture which has been identified as one of the pictures in Exhibit 5303 A through M deposition on Andrew Armstrong, a picture which shows a girl in a bikini suit, a blond girl. There seems to be two sailors in the picture and on the right-hand side of the picture as you look at it, there is a rather large man in a white shirt with his left elbow leaning on the stage, and I ask you if you know who the girl is, do you recognize her?

Mr. PAUL. That's the same Kathy Kay.

Mr. HUBERT. That's Kathy Kay?

Mr. PAUL. Yes.

Mr. HUBERT. Who is the man, the fat man, that I have referred to with the white shirt, the very heavy man?

Mr. PAUL. This one over here?

Mr. HUBERT. Yes.

Mr. PAUL. I don't know.

Mr. HUBERT. Did you ever see him there?

Mr. PAUL. No.

Mr. HUBERT. You never did?

Mr. PAUL. No—there isn't a familiar face in there. What is he supposed to be? No answers [laughing].

Mr. HUBERT. I will show you now two pictures that have been previously identified as Exhibit 5304 A and B in connection with the deposition of Andrew Armstrong, the first one showing a girl serving a man who is seated, and there is apparently a boy in the background, and I ask you if you can identify that place, first of all, is that the Carousel?

Mr. PAUL. No.

Mr. HUBERT. Do you recognize the place at all?

Mr. PAUL. No, sir.

Mr. HUBERT. Do you know who the girl is who is in the stripper suit?

Mr. PAUL. No.

Mr. HUBERT. Do you know who the man is, sitting down at the table?

Mr. PAUL. No, sir.

Mr. HUBERT. Do you know who that bartender is standing at the back?

Mr. PAUL. No.

Mr. HUBERT. Do you know a man by the name of Mickey Ryan?

Mr. PAUL. No—I might have heard the name but I never knew a guy with a name like that.

Mr. HUBERT. You don't recognize the man at the bar?

Mr. PAUL. No—it's not in the Carousel, that's for sure. The Carousel had no cloths on the tables.

Mr. HUBERT. Nor did it have a bar?

Mr. PAUL. It had a bar.

Mr. HUBERT. I mean, not for liquor.

Mr. PAUL. No; that's right—that looks like a private club.

Mr. HUBERT. Were you familiar with the notebooks and memo books that Ruby kept?

Mr. PAUL. No, sir.

Mr. HUBERT. Did you ever see them at all?

Mr. PAUL. No, sir.

Mr. HUBERT. I think that one of the girls in the club had a boy friend named Tommy, do you know who that was—Tommy?

Mr. PAUL. The only real boy friends that I can give you the name of and she got married to the boy recently.

Mr. HUBERT. Who was that?

Mr. PAUL. He was in the police department, but I can't think of his name. He made her give up the business and they got married and went to California, but you know, talking about boy friends, those girls have boy friends all the time—they are different boy friends—you never know which one is which. I can't remember one name from another.

Mr. HUBERT. Well, here's what I wanted to get at—after you took over the club, you apparently hired someone to collect the cover charge at the front?

Mr. PAUL. Yes.

Mr. HUBERT. He was a gray-haired man, I'm told?

Mr. PAUL. No, it was Leo Torti.

Mr. HUBERT. [Spelling] T-o-r-t-i?

Mr. PAUL. Yes, sir.

Mr. HUBERT. You didn't have a gray-haired man there?

Mr. PAUL. No, sir.

Mr. HUBERT. Where did you get him, had he been there before?

Mr. PAUL. Yes.

Mr. HUBERT. He had worked there before?

Mr. PAUL. Well, he didn't actually work, he used to help Eva, and when Eva closed that place down he came to help there, but he never got paid for anything—just, I took him home and I took him out for a bite to eat.

Mr. HUBERT. How old a man would he have been?

Mr. PAUL. Forty or forty something—he isn't gray. I'm the only gray man that was there.

Mr. HUBERT. There was no gray man who was on the door collecting?

Mr. PAUL. No.

Mr. HUBERT. Did Eva close up the Vegas?

Mr. PAUL. Yes, she closed it up and then she sold it.

Mr. HUBERT. When—before the Carousel was closed up?

Mr. PAUL. Oh, yes, she closed it up right after New Year's.

Mr. HUBERT. Right after Ruby was put in jail?

Mr. PAUL. No, right after New Year's.

Mr. HUBERT. You mean she sold it?

Mr. PAUL. She sold it.

Mr. HUBERT. Whom did she sell it to?

Mr. PAUL. She sold it to two men and a woman that formed a corporation and bought it. It's still called the Vegas Club—they've got it in the paper "under new management—Vegas Club." I don't even know who they are.

Mr. HUBERT. Now, I handed you at the beginning of the deposition, or even before the deposition began, a number of sheets of paper, the first group numbering nine pages, purporting to be a report of an interview of you by the FBI agents Lish [spelling] L-i-s-h and Barratt [spelling] B-a-r-r-a-t-t, relating to an interview with you on November 24, 1963, running, as I said, for nine pages.

For the purpose of identification, I am marking the first page as follows: "Dallas, Texas, April 15, 1964, Exhibit 5319, Deposition of Ralph Paul," and I am putting my name on the first page, and also writing my initials on the lower right-hand corner of every one of the other pages.

Now, I ask you if you have had an opportunity to read that document, now identified as Exhibit 5319?

Mr. PAUL. What do you mean?

Mr. HUBERT. Have you had a chance to read it?

Mr. PAUL. Yes.

Mr. HUBERT. Does it represent the truth as far as you know?

Mr. PAUL. As far as I know.

Mr. HUBERT. Are there any corrections you want to make or errors you want to correct in it?

Mr. PAUL. Well, you asked me the same thing——

Mr. HUBERT. By referring specifically to Exhibit 5319, you see, is there anything in Exhibit 5319 that is not the truth as far as you know, in this document here?

Mr. PAUL. I don't know.

Mr. HUBERT. Well, that's why I asked you to read it, so you could tell me whether there is anything you want to change in there and you may take your time with it—I don't want to rush you at all.

Mr. PAUL. This page alone, or the whole thing?

Mr. HUBERT. The whole thing.

Mr. PAUL. I don't know what I could change.

Mr. HUBERT. Have you read it?

Mr. PAUL. I think I did—in what respect are you asking me that?

Mr. HUBERT. I just want to know if everything in there is correct, and to give you the opportunity of changing anything in there that is not correct.

Mr. PAUL. Well, I told you the same thing that you asked me—that's all here—I can't change it in any way.

Mr. HUBERT. Well, you can if it is not the truth, because all we want is the truth.

Mr. PAUL. That's what I told you—the truth.

Mr. HUBERT. Well, are you willing to state, then, that the facts related, the statements made in the documents, consisting of nine pages which I have now identified as Exhibit 5319, are correct?

Mr. PAUL. As far as I can recall they are correct.

Mr. HUBERT. Do you have anything to add that document that you think of right now?

Mr. PAUL. As far as I could tell, when they asked me those questions, I told them that was that.

Mr. HUBERT. And this seems to be a true and fair report of the interview with you?

Mr. PAUL. Yes, sir.

Mr. HUBERT. Is there anything you want to delete from that because it is wrong?

Mr. PAUL. How is it wrong?

Mr. HUBERT. Well, if it is not wrong, I would take it you would not want to delete it. That's what I'm trying to do—is to ask you if there is anything in there that's incorrect, because what we are seeking to get is the truth.

Mr. PAUL. You think this is wrong?

Mr. HUBERT. No, sir; I didn't suggest it was wrong. I want to ask you—since you have had an opportunity to read it—— Mr. PAUL. Everything I told them at the time was the right thing—I told them.

Mr. HUBERT. And that seems to be a fair and honest report of the interview you had with them?

Mr. PAUL. Yes, sir.

Mr. HUBERT. All right, that's all I wanted to know about that.

Now, there is another document which purports to be an interview with you by FBI Agent Clements.

Mr. PAUL. On the telephone.

Mr. HUBERT. On November 28, 1963?

Mr. PAUL. Yes, over the telephone.

Mr. HUBERT. Which I am marking for purposes of identification as follows: "Dallas, Texas, April 15, 1964, Exhibit 5320, Deposition of Ralph

Paul,” and I am signing my name on that document. That document contains only one page and it refers——

Mr. PAUL. To the stock deal.

Mr. HUBERT. To some stock deal.

Mr. PAUL. Let me see it just a minute.

Mr. HUBERT. This document relates to some conversation with Special Agent Clements, which was had with you, and it is a report of it. Now, will you tell me—I think that that conversation was over the phone?

Mr. PAUL. Yes.

Mr. HUBERT. I don’t believe the document so indicates, but if that is one thing we have learned from this is that that was over the phone—does it fairly state the content of the conversation you had with the agent?

Mr. PAUL. Yes; he asked me what was my interest in the club and I told him I got a certificate of 50 shares, which I received from Jack Ruby because he wanted to protect the money I loaned him, that if anything goes wrong—well, he didn’t put it in so many words—he put it in a different—collateral—you know what that means—and he said, “Is that what you mean?” And I said, “I guess that’s what it is supposed to be.”

I told him that Jack Ruby and Slayton formed the Sovereign Club and it was called the S. and R., Incorporated. I never knew anything about the Sovereign Club, Incorporated, that it was then terminated and became the Carousel Club, which he gave it a name.

Now, I don’t know whether the Carousel Club was incorporated, and I said, “I think it is Earl, Ruby’s brother, that had the 500 other shares,” but I didn’t know for sure, that’s what I told him. He said he believes Earl, Ruby’s brother. I was confused with the question of whether I owned stock or not, which I was. I thought it was merely—he gives me the stock because, like I told you, when he wanted to sell the place he asked me for the stock so he could sell the place.

Mr. HUBERT. Well, at the time you spoke to him, in fact you were confused as to what the situation was?

Mr. PAUL. I sure was.

Mr. HUBERT. What I'm asking you, is—is this a fair statement of what you told him?

Mr. PAUL. I think I gave him a fair statement right up to the minute—not that statement—that statement isn't up to the minute, but up to the time.

Mr. HUBERT. But at the time—it was accurate?

Mr. PAUL. At the time.

Mr. HUBERT. Have you ever been interviewed by any member of the President's Commission before?

Mr. PAUL. No, sir.

Mr. HUBERT. Now, Mr. Paul, one final thing—we have the two statements that you have given to the FBI, and you have what you have told us tonight—do you think that putting those two things together we have just about all you know about Jack Ruby and about what he had to do with the slaying of Oswald and so forth?

Mr. PAUL. I don't know nothing about the slaying of Oswald—that's for sure.

Mr. HUBERT. I understand that, but we know all you know about it when we have what you told us tonight and this statement—there's nothing else?

Mr. PAUL. I just told you all I know about Jack Ruby for 15 years.

Mr. HUBERT. There's nothing we don't know that you know?

Mr. PAUL. That's right.

Mr. HUBERT. Is that a fair statement?

Mr. PAUL. If I knew any more I would be willing to tell you, because you didn't pull the words out of my mouth either.

Mr. HUBERT. No; that's correct.

Mr. PAUL. I spoke to you as I knew it.

Mr. HUBERT. Have you anything else to add?

Mr. PAUL. No—really, no.

Mr. HUBERT. Well, thank you, sir. I appreciate your coming in and I am sorry it took so long.

Mr. PAUL. Well, that's perfectly all right.

Mr. HUBERT. Thank you very much for coming in.

Mr. PAUL. All right, thank you.

TESTIMONY OF GEORGE SENATOR

The testimony of George Senator was taken at 9:45 a.m., on April 21, 1964, at 200 Maryland Avenue NE., Washington, D.C., by Messrs. Burt W. Griffin and Leon D. Hubert, Jr., assistant counsel of the President's Commission. Dr. Alfred Goldberg, historian, was present.

Mr. HUBERT. This is the deposition of George Senator beginning at 9:45 a.m.

Mr. Senator, my name is Leon Hubert and this is Mr. Burt Griffin. We are both members of the advisory staff of the President's Commission.

Under the provisions of Executive Order 11130, dated November 29, 1963, the Joint Resolution of Congress, No. 137, and the rules of procedure adopted by the Commission in conformance with the Executive order and the joint resolution, we have both been authorized to take a sworn deposition from you, Mr. Senator.

I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate and report upon the facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald.

In particular as to you, Mr. Senator, the nature of the inquiry today is to determine what facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry, and about Jack Ruby.

Now, Mr. Senator, I think you have appeared today by virtue of written request made to you by Mr. J. Lee Rankin, general counsel of the staff of the President's Commission. Is that a fact, sir?

Mr. SENATOR. Yes.

Mr. HUBERT. Did you receive that letter?

Mr. SENATOR. Yes.

Mr. HUBERT. What is the date of it?

Mr. SENATOR. April 16, 1964.

Mr. HUBERT. When did you receive it?

Mr. SENATOR. I received it Saturday. I don't know what date it was. What was the date Saturday?

Mr. HUBERT. Saturday would have been the 18th.

Now, under the rules adopted by the Commission, you are entitled to a 3-day written notice prior to the taking of the deposition, but the rules adopted by the Commission also provide that a witness may waive this notice, and I ask you now whether you do waive the notice in the event that you did not get the full 3 days.

Mr. SENATOR. We will continue.

Mr. HUBERT. I understand by your answer that you say that you do waive it.

Mr. SENATOR. I waive it.

Mr. HUBERT. All right, Mr. Senator. Will you rise now and take the oath?

Do you solemnly swear that the testimony you are about to give in this matter will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. SENATOR. I do.

Mr. HUBERT. Now will you state your full name?

Mr. SENATOR. George Senator.

Mr. HUBERT. How old are you, Mr. Senator?

Mr. SENATOR. Fifty years old. I was born in Gloversville, N.Y.

Mr. HUBERT. And when?

Mr. SENATOR. September 4, 1913.

Mr. HUBERT. What is your present address, that is residence?

Mr. SENATOR. Right now?

Mr. HUBERT. Yes.

Mr. SENATOR. 2255 Grand Concourse, Bronx, N.Y.

Mr. HUBERT. Is that your permanent residence?

Mr. SENATOR. No; I mean I just come up, you know, I just came to New York about 2½ weeks ago and am staying with my sister temporarily.

Mr. HUBERT. Do you propose to go to another place, to move to another place?

Mr. SENATOR. Eventually I will, yes; in New York, but momentarily I do not know where.

Mr. HUBERT. In other words, you are staying at your sister's home temporarily?

Mr. SENATOR. Temporarily.

Mr. HUBERT. But your purpose is to live in New York?

Mr. SENATOR. Yes.

Mr. HUBERT. And you will, when you find an apartment, some other place to live, move out from your sister's house?

Mr. SENATOR. Yes.

Mr. HUBERT. I wonder if you would go over briefly in your own words the facts of your life, particularly where you lived, and your occupation, beginning actually with your education.

Mr. SENATOR. My education was up to the eighth grade.

Mr. HUBERT. And where was that?

Mr. SENATOR. Gloversville, N.Y.

Mr. HUBERT. Then after you finished the eighth grade, what did you do?

Mr. SENATOR. I moved to New York and went to work.

Mr. HUBERT. You mean New York City?

Mr. SENATOR. Yes; New York City. I lived with my sister, too. I mean I moved in with my sister at that time.

Mr. HUBERT. That is the same sister you are now living with?

Mr. SENATOR. Yes.

Mr. HUBERT. What is her name, by the way?

Mr. SENATOR. Freda Weisberg, Mrs. A. J. Weisberg.

Mr. HUBERT. How long did you live with her?

Mr. SENATOR. Originally, let me say approximately about 3 years. I went back and forth actually from New York back to home. Of course, I was only in my teens then.

Mr. HUBERT. What sort of work did you do?

Mr. SENATOR. In New York I was working in a silk house, I was working for a wholesaler where we delivered silk to the dress manufacturer.

Mr. HUBERT. And you continued in that occupation——

Mr. SENATOR. Just in my young teens.

Mr. HUBERT. Until you were how old?

Mr. SENATOR. Possibly about 18, to the best of my knowledge.

Mr. HUBERT. You were living with your sister as you said?

Mr. SENATOR. Yes.

Mr. HUBERT. Now, at age 18, did your life take a change by way of occupation and residence?

Mr. SENATOR. Well, I got sick a couple of times so every time I got sick I went home to mother. I went back home. Of course, the distance, was about 190 miles from my home town to New York City. At one time I had pleurisy, went back home and stayed a year. Another time I had peritonitis. I went back home again.

Mr. HUBERT. This was after age 18 or before?

Mr. SENATOR. No; this is now after 18.

Mr. HUBERT. Then I take it that after age 18 and for a period of 1 or 2 years you were not working because of illness and you were staying mostly with your mother at home?

Mr. SENATOR. Yes; well, my brother had a restaurant, or rather, still does. He has a restaurant. I used to help him up there.

Mr. HUBERT. Where? What place was that?

Mr. SENATOR. Gloversville, N.Y. He had a restaurant by his name, by his last name.

Mr. HUBERT. How long did you work with him?

Mr. SENATOR. On and off, this is a rough guess, it has been so many years. I would probably say maybe a couple of years, something like that.

Mr. HUBERT. At which time you lived with your mother?

Mr. SENATOR. Yes, I lived home.

Mr. HUBERT. Would that take us then in your life to about age 22?

Mr. SENATOR. I would say around there, yes.

Mr. HUBERT. Then what happened after those days of your life?

Mr. SENATOR. Then I went back. I can't quote you the exact years, but I went back to New York.

Mr. HUBERT. City, you mean?

Mr. SENATOR. New York City, and I went to work for a—I was jerking sodas in the early thirties. That is when I was in my twenties yet then.

Mr. HUBERT. Where did you live during that period?

Mr. SENATOR. I was still home with my sister. I went back. I shuttled either from my sister to my mother.

Mr. HUBERT. You did not have any residence of your own?

Mr. SENATOR. No.

Mr. HUBERT. Where did she live during that period?

Mr. SENATOR. My sister? She lived in the Bronx, still does.

Mr. HUBERT. I mean the same address?

Mr. SENATOR. No.

Mr. HUBERT. Do you remember the address, or were there several? I am talking now about this other period, you see, that is to say when you——

Mr. SENATOR. I can think of the streets but I probably could not think of the numbers.

Mr. HUBERT. Well, that is all right. Give us the streets.

Mr. SENATOR. All right. When I originally came to New York it was on Davidson Avenue in the Bronx.

Mr. HUBERT. That would have been when you were about 12 years old?

Mr. SENATOR. No, no. I first came to New York when I was 15.

Mr. HUBERT. Where did she live then?

Mr. SENATOR. On Davidson Avenue in the Bronx. Then from Davidson I think I moved to Walton Avenue. These are all close by, these streets, you know. I would probably say a distance of maybe 4, 5, or 6 blocks, something of that nature. Then I lived there—I am trying to think now. I have to jump back a lot of years and can't think of these outright.

Mr. HUBERT. We understand that and we understand therefore that your answers must be approximations.

Mr. SENATOR. Yes, they are approximations. When I got this job jerking sodas there, now I'm in my twenties already. Of course, this is in the 1930 years. I was approximately around 25 when I was working in the Bronx jerking sodas and still living with my sister.

Mr. HUBERT. That was around 1938, I take it?

Mr. SENATOR. Yes, and 1939; 1938 and 1939.

Mr. HUBERT. Do you remember the place at which you worked?

Mr. SENATOR. Yes, sure, J. S. Krums, chocolatiers. That is on the Grand Concourse.

Mr. HUBERT. How long did you stay there?

Mr. SENATOR. I would probably say I may have been there around 2 years. Now this is roughly guessing. Then the place went out on strike and I went out of a job. Then from there, two other fellows who were employed with us, we all went down to Florida. We went down to Florida for the winter and got a job there for \$14 a week and stayed all winter, then we come back again.

Mr. HUBERT. What kind of work were you doing and who was your employer?

Mr. SENATOR. I couldn't remember.

Mr. HUBERT. Or employers?

Mr. SENATOR. I couldn't remember. It was a cafeteria with a soda fountain and I worked at the soda fountain. It has been so many, many years.

Mr. HUBERT. Who were the other two people that you went with?

Mr. SENATOR. One fellow, his name was Ike Heilberun, and the other is—I can't remember his name.

Mr. HUBERT. Have you seen either of those two people in the last 10 or 20 years?

Mr. SENATOR. I would say—no, one I haven't seen in many, many years. As a matter of fact, I think even before the war.

Mr. HUBERT. Which one, the one whose name you don't remember?

Mr. SENATOR. Yes.

Mr. HUBERT. And the other one?

Mr. SENATOR. The other I think the last time I saw him must have been maybe around 6 years or 7 years ago. He is down in Florida.

Mr. HUBERT. What kind of work is he doing?

Mr. SENATOR. He is in the stationery business, if he still is, I mean. He was.

Mr. HUBERT. And you met him in connection with work or socially or how, that is 6 years ago?

Mr. SENATOR. Oh, no; it happened to be I went down there. I went down there for a vacation there.

Mr. HUBERT. And you looked him up?

Mr. SENATOR. And I looked him up and I found him and when I found him he was in the stationery end.

Mr. HUBERT. How extended was your visit with him then?

Mr. SENATOR. Oh, just casual. I would probably say maybe I saw him two or three times.

Mr. HUBERT. No business relations?

Mr. SENATOR. No, no; no business relations whatsoever.

Mr. HUBERT. Let's go back now and pick up the time when you came back from Florida. I say "came back." I assume you went back to New York.

Mr. SENATOR. Yes; I went back to New York.

Mr. HUBERT. And tell us again——

Mr. SENATOR. I do not remember if I stayed in New York or went back home now, because I would say on and off I had worked for my brother at various times.

Mr. HUBERT. Your brother?

Mr. SENATOR. Yes.

Mr. HUBERT. What is his name?

Mr. SENATOR. Jake Senator. Senator's Restaurant in Gloversville, N.Y. I worked on and off at his place many times.

Mr. HUBERT. How far have you progressed in your own mind as to this chronicle of your life? We are up to what year now that you were working for your brother?

Mr. SENATOR. At the time I enlisted. In other words, when the war broke out I enlisted down at Albany, N.Y., at the Federal Building in Albany, N.Y. That was in August of 1941, I believe. I think it was August 20 or August 21, 1941, and I was with my brother at the time when I enlisted.

Mr. HUBERT. Do you remember working for the Admiral Hotel in Miami Beach and the Times Square Cafeteria?

Mr. SENATOR. Yes; that is it. That is the place, the Times Square Cafeteria.

Mr. HUBERT. And David and Elizabeth Rosner at the Astor Hotel?

Mr. SENATOR. It could be possible. I just don't remember. It could be possible.

Mr. HUBERT. In other words, you were in Miami and worked for several people whose names I have mentioned during the winter of 1939-40 and until about the end of the season in Miami Beach, I take it?

Mr. SENATOR. That is right.

Mr. HUBERT. When did you enlist?

Mr. SENATOR. I enlisted August 20 or 21 of 1941.

Mr. HUBERT. That was before Pearl Harbor then?

Mr. SENATOR. Yes.

Mr. HUBERT. Do you recall what you did or where you lived from the summer of 1940?

Mr. SENATOR. What is that?

Mr. HUBERT. Do you recall what occupation you had or where you lived from the summer of 1940 when you returned from Miami to New York until you entered into the service in August of 1941?

Mr. SENATOR. I believe I was back home with my brother.

Mr. HUBERT. That is working for him?

Mr. SENATOR. The restaurant, yes.

Mr. HUBERT. How long did you stay in the service?

Mr. SENATOR. I'll have to read it, or I'll let you read it.

Mr. HUBERT. No: that is all right. You served for the duration of the war, I suppose? You hand me now a little document which is a laminated copy.

Mr. SENATOR. The reason I handed you that is because I lost my original and I am happy that I have got that.

Mr. HUBERT. You were honorably discharged from the Army of the United States on September 9, 1945, given to you at the Separation Center, Fort Dix, N.J? This reflects also that you were a staff sergeant.

Mr. SENATOR. Yes.

Mr. HUBERT. That your serial number was 12006042, and that at the time of your discharge you were with the 101st Bomber Fortress Squadron?

Mr. SENATOR. Yes; when I came out.

Mr. HUBERT. All right. Then after you left the service in September of 1945, where did you go and what did you do?

Mr. SENATOR. When I came back out of the service, this fellow Ike Heilberun, who I mentioned living down there, we went into the luncheonette business and lasted approximately about a year and lost our shirts.

Mr. HUBERT. What was the name of that? Is that the outfit called the Denise Foods, Inc.?

Mr. SENATOR. Where is that located? Do you have the location on that?

Mr. HUBERT. 254 West 35th Street.

Mr. SENATOR. I couldn't remember the name. I remember the street. That is why I asked you.

Mr. HUBERT. In other words, that was a corporation formed by you and this man you talked about?

Mr. SENATOR. Yes. We bought somebody out, that is right.

Mr. HUBERT. And you were occupied with that endeavor through most of 1946?

Mr. SENATOR. I would say approximately about that to the best of my knowledge.

Mr. HUBERT. And where did you live then?

Mr. SENATOR. I was living—of course, I can't remember if I got married before that or after that.

Mr. HUBERT. But sometime along in there after you left the service, you got married?

Mr. SENATOR. Yes. I believe I got married in January 1946, if I am not mistaken.

Mr. HUBERT. What was the name of the lady you married?

Mr. SENATOR. Sherley Baren.

Mr. HUBERT. How do you spell that?

Mr. SENATOR. B-a-r-e-n.

Mr. HUBERT. Are you still married to her?

Mr. SENATOR. No.

Mr. HUBERT. Are you divorced?

Mr. SENATOR. Yes.

Mr. HUBERT. When? Approximately.

Mr. SENATOR. Approximately about 7 years.

Mr. HUBERT. Ago?

Mr. SENATOR. Approximately, I'm not sure of the date. I'd say approximately about that.

Mr. HUBERT. In other words, you lived together as man and wife approximately for 10 years?

Mr. SENATOR. No, no.

Mr. HUBERT. Seven years ago would be 1957. You said that you married her in January of 1946. Maybe you did not live together that long. Maybe the divorce came after you had physically separated.

Mr. SENATOR. Yes. Actually, we had been separated I would probably say around 3 years, I think. I think it must have been around 3 years.

Mr. HUBERT. Before the divorce?

Mr. SENATOR. Yes. I think that is it.

Mr. HUBERT. Did you have any children of that marriage?

Mr. SENATOR. Yes. I have one son 16 years old.

Mr. HUBERT. He is now 16 years old?

Mr. SENATOR. Yes.

Mr. HUBERT. What is his name?

Mr. SENATOR. Bobby.

Mr. HUBERT. Where were you divorced?

Mr. SENATOR. Through the mail. She was in Miami and I was in Texas.

Mr. HUBERT. But where were the divorce proceedings actually instituted?

Mr. SENATOR. In Miami.

Mr. HUBERT. She brought the divorce suit?

Mr. SENATOR. Yes.

Mr. HUBERT. Has she remarried?

Mr. SENATOR. Yes.

Mr. HUBERT. Do you know to whom?

Mr. SENATOR. His name is Milton Wechsler. I am not sure of the spelling of it. I think it is W-e-c-h-s-l-e-r. I think that is how you spell it.

Mr. HUBERT. Do you know where they live?

Mr. SENATOR. Coral Gables.

Mr. HUBERT. Now would you tell us of your occupation and residences after your marriage, say from January 1946 forward?

Mr. SENATOR. After I went out of business, after my partner and I went out of business, I moved down to Miami and I had two or three odd jobs there.

Mr. HUBERT. How long did you stay there?

Mr. SENATOR. At these jobs, do you mean?

Mr. HUBERT. No.

Mr. SENATOR. Or Miami?

Mr. HUBERT. Yes.

Mr. SENATOR. I stayed in Miami, I would say, around 7 or 8 years. As a rough guess, something like that, offhand.

Mr. HUBERT. You had a number of jobs during the first year that you got there; is that right?

Mr. SENATOR. Yes.

Mr. HUBERT. What kind of work did you do?

Mr. SENATOR. Restaurant-type work.

Mr. HUBERT. I notice that your social security records indicate that you either had no earnings or at least that none were reported for the second half of 1947 and the first half of 1948, approximately a year. Can you explain that?

Mr. SENATOR. 1947 and 1948?

Mr. HUBERT. In other words, for the third and fourth quarters from a social security point of view of 1947 and the first and second quarters——

Mr. SENATOR. Of 1948?

Mr. HUBERT. Of 1948, so it would be roughly from July 1947 to June of 1948 there were no earnings reported.

Mr. SENATOR. 1947 and 1948?

Mr. HUBERT. After which—this may assist your memory—for the third quarter of 1948, that is say from July on, you report having worked at the Lake Carrolton Club Grill in Pike. N.H.

Mr. SENATOR. Oh, yes.

Mr. HUBERT. So, perhaps if you remember working in New Hampshire, you can back off and tell us what happened in that year when there were no earnings reported. This may assist you too. The social security records show

that in the first quarter of 1947, that would have been January, February, and March, you apparently worked for the T-A Hensroost.

Mr. SENATOR. I believe that was the first job I had when I got down in Miami, if I am not mistaken. I think that was the first job I got. That was an open stand on the oceanfront.

Mr. HUBERT. Do you remember that you worked there actually for the first 6 months?

Mr. SENATOR. At the Hensroost?

Mr. HUBERT. Of 1947.

Mr. SENATOR. At Hensroost? I can't quote how long I worked there, but I know that I worked there.

Mr. HUBERT. Now then, perhaps we can reconstruct the thing, because you apparently left there at the Hensroost in midsummer of 1947, and then you pick up in midsummer of 1948 in New Hampshire, and it is the intervening year that I would like to have you cover.

Mr. SENATOR. Wait a minute. Oh, then I think after that, yes, I was out of a job for a while and I don't recall how long. Then I got a job in another little luncheonette for a while and I don't know how long that was.

Mr. HUBERT. It may be that you did not have enough earnings to require reporting them, you see. What I am trying to do is assist your memory. Do you recall leaving Miami Beach to go to New Hampshire?

Mr. SENATOR. Oh, sure; I remember going. I don't remember what year, but I remember going, yes.

Mr. HUBERT. Do you remember what time of the year, whatever year it was?

Mr. SENATOR. Yes; I went there for one summer.

Mr. HUBERT. For the season?

Mr. SENATOR. The season; yes.

Mr. HUBERT. Your wife went with you?

Mr. SENATOR. No.

Mr. HUBERT. She stayed in Miami?

Mr. SENATOR. Yes.

Mr. HUBERT. When you finished the season there, what happened?

Mr. SENATOR. Well, I come back and I was—I'm trying to think. What year was that, 1940-what?

Mr. HUBERT. It was the last half of 1948. Perhaps I can assist your memory too by pointing out that your social security records indicate that you worked for T-A Troops.

Mr. SENATOR. Yes, that is the place I was trying to mention to you but I couldn't think of it. Now I don't remember if I worked for that place after I come back or before. That is the thing I don't remember.

Mr. HUBERT. You worked for that place quite a length of time, I believe.

Mr. SENATOR. Yes.

Mr. HUBERT. How long? Do you remember?

Mr. SENATOR. Gee, I don't remember how long I worked there.

Mr. HUBERT. Where did you live when you were working for Troops?

Mr. SENATOR. Northwest Fourth Terrace.

Mr. HUBERT. Miami Beach?

Mr. SENATOR. No; Miami.

Mr. HUBERT. In other words, the restaurant was in Miami Beach?

Mr. SENATOR. Yes.

Mr. HUBERT. On Collins Avenue?

Mr. SENATOR. That is right; yes.

Mr. HUBERT. You lived in Miami City itself?

Mr. SENATOR. Yes.

Mr. HUBERT. Were you living with your wife then?

Mr. SENATOR. Yes.

Mr. HUBERT. Do you recall what your next move was?

Mr. SENATOR. I believe my next move is I got a job selling. I was broken in selling women's apparel, if I recall right.

Mr. HUBERT. Women's apparel?

Mr. SENATOR. Yes.

Mr. HUBERT. Before we leave the Miami Beach situation, what was the cause of your leaving Miami Beach and the Miami area, because apparently you did?

Mr. SENATOR. You mean when I went to Texas?

Mr. HUBERT. No, when you left Miami you did not go directly to Texas, did you?

Mr. SENATOR. Oh, sure.

Mr. HUBERT. You did?

Mr. SENATOR. Sure. Come this May 15, and I think I am pretty well on the date, I have been in Texas 10 years.

Mr. HUBERT. So you moved to Texas in 1954?

Mr. SENATOR. May of 1954.

Mr. HUBERT. Do you remember working for the Rhea Manufacturing Co.?

Mr. SENATOR. Yes; out of Milwaukee, Wis. That was my start. Is that in the year of 1950, something like that? I don't remember, 1949, 1948?

Mr. HUBERT. The social security records indicate 1951.

Mr. SENATOR. Is that what it is? I just don't remember. It could be 1951.

Mr. HUBERT. You were working for Rhea Manufacturing Co., and the records also show that you worked for Smoler Bros., Inc., in Chicago.

Mr. SENATOR. That is right.

Mr. HUBERT. The Rhea Manufacturing Co. was in Milwaukee, Wis. Did you live in Milwaukee?

Mr. SENATOR. No.

Mr. HUBERT. And in Chicago?

Mr. SENATOR. No.

Mr. HUBERT. In other words——

Mr. SENATOR. I only worked for them out of there. In other words, the only time that I ever went there is when they had sales meetings, when they called the people in for sales meetings.

Mr. HUBERT. Where were you living then?

Mr. SENATOR. In Miami.

Mr. HUBERT. That same residence?

Mr. SENATOR. Northwest Fourth Terrace?

Mr. HUBERT. Yes.

Mr. SENATOR. Yes.

Mr. HUBERT. What was your area, sales area?

Mr. SENATOR. Florida.

Mr. HUBERT. Just Florida?

Mr. SENATOR. Yes.

Mr. HUBERT. You sold women's apparel?

Mr. SENATOR. Yes.

Mr. HUBERT. Wholesale?

Mr. SENATOR. Wholesalers. They were manufacturers.

Mr. HUBERT. I notice from these records, too, that apparently during the years 1951, 1952, and 1953, your employer seems to alternate between Smoler Bros., Inc., and Hartley's, whose address is given as 144 East Flagler in Miami.

Mr. SENATOR. Hartley's is a large—it almost looks like a department store but it is not. It is a large specialty shop.

Mr. HUBERT. Were you working for both?

Mr. SENATOR. The only time I worked for Hartley's was, I think it was either one or two seasons. I don't remember which. Just for the Christmas holidays only.

Mr. HUBERT. When you did work for Hartley's, did you leave Smoler's?

Mr. SENATOR. Oh, no.

Mr. HUBERT. In other words, Smoler's continued right on?

Mr. SENATOR. Yes. In other words, I would probably say maybe a week or something like that before the Christmas holidays I worked in there. I would say approximately like that. Approximately a week or something like that.

Mr. HUBERT. These records also indicate that actually you worked for Smoler's out of Chicago, wherever you actually lived or whatever your territory might have been, until 1958; is that correct?

Mr. SENATOR. Yes. Smoler's is the one who forced me to Texas.

Mr. HUBERT. Tell us about that.

Mr. SENATOR. There were two men they were releasing in Dallas, Tex., and it happened to be I was in Atlanta, Ga., and it happened to be on a Friday, I recall this very distinctly. My boss called me and I couldn't imagine what he was calling me for. He said, "George, we are releasing a couple of men and we want you to go to Dallas." And I didn't want to go. But he said, "You are going." So I wound up in Dallas.

Mr. HUBERT. When was that? I know you said it was a Friday, but do you remember the year, the month?

Mr. SENATOR. No. Oh, wait; yes. It was 10 years ago.

Mr. HUBERT. 1954?

Mr. SENATOR. Because I have been there—come next month, it will be 10 years I have been there.

Mr. HUBERT. So the telephone conversation on Friday would have been in May of 1954, on a Friday?

Mr. SENATOR. Yes.

Mr. HUBERT. Actually, May 15, I think you said.

Mr. SENATOR. No; I think I arrived in Dallas, I think it was May 15.

Mr. HUBERT. Did your wife go with you?

Mr. SENATOR. No; she wouldn't go.

Mr. HUBERT. Had you been living together up to that time?

Mr. SENATOR. Yes.

Mr. HUBERT. Was that the cause of your separation?

Mr. SENATOR. I believe that is.

Mr. HUBERT. She never did go to Dallas?

Mr. SENATOR. No; she wouldn't go, and I had a job to hold down.

Mr. HUBERT. She kept the child?

Mr. SENATOR. She kept the child.

Mr. HUBERT. And still has it?

Mr. SENATOR. And still has it, and, of course, there could have been a possibility if I didn't go—I only say possibility—that I could have been released from my job. This, I only say, there could have been a possibility.

Mr. HUBERT. Now tell us what you did then in Dallas. You continued to work, I take it, for Smoler's?

Mr. SENATOR. Oh, yes; sure.

Mr. HUBERT. Where did you live? Can you give us a list of the various places where you lived?

Mr. SENATOR. The first year I was just living, you know, in motels, from one place, you know, wherever I was, because I was traveling the State of Texas.

Mr. HUBERT. What was your territory there?

Mr. SENATOR. Texas.

Mr. HUBERT. The whole of Texas?

Mr. SENATOR. I started off the whole thing and then I wound down until I probably wound up with just a corner of it. And when I wound up with that there I said this is not for me, because I can't make it on only part of Texas.

Mr. HUBERT. Of course, that comes a little later.

Mr. SENATOR. Yes.

Mr. HUBERT. Where did you live in Dallas? Give us a list of your various addresses just roughly.

Mr. SENATOR. The first place that I actually centrally located in, I don't remember the name of the place but I do remember the name of the street.

Mr. HUBERT. All right.

Mr. SENATOR. I could go to the place and know where it is but I can't think of the name of the place, which was on McKinney Avenue.

Mr. HUBERT. How long did you stay there?

Mr. SENATOR. I don't know. I would probably say, I'd have to guess, I would probably say maybe 6 months to a year. I'm not sure now.

Mr. HUBERT. Was it an apartment?

Mr. SENATOR. Yes; it was an apartment.

Mr. HUBERT. Were you alone?

Mr. SENATOR. No; I was with a couple other boys.

Mr. HUBERT. Who were they?

Mr. SENATOR. One fellow by the name of George Guest. George Guest, he was a, what do you call them, xylophones. He was a musician.

Mr. HUBERT. He played the instrument called the xylophone?

Mr. SENATOR. What is the one with the woods? It is not xylophone. What is the one that is made out of wood?

Mr. HUBERT. Marimba?

Mr. SENATOR. Yes, it is the marimba. Is the marimba made out of wood?

Mr. HUBERT. As a musical instrument?

Mr. SENATOR. Yes.

Mr. HUBERT. A percussion instrument?

Mr. SENATOR. Yes.

Mr. HUBERT. Where did he work?

Mr. SENATOR. He played wherever he got engagements. He got booked locally, out of town.

Mr. HUBERT. Who was the other one?

Mr. SENATOR. The other one who stayed with us a short while, his name was Mort Seder.

Mr. HUBERT. What did he do?

Mr. SENATOR. He sells men's apparel, traveling salesman.

Mr. HUBERT. Have you maintained contact with either of those?

Mr. SENATOR. George Guest got married many, many, years ago. The last I heard that at that time he had moved to, I think it was Fort Lauderdale by the sea.

Mr. HUBERT. What about the other one?

Mr. SENATOR. Seder I have seen, the last time I ran across Seder, of course, he is always traveling, the last time I saw him was, I would probably say in the last 2 months.

Mr. HUBERT. Did you see him often prior to that?

Mr. SENATOR. Oh, sure. We lived together for a while. We lived together.

Mr. HUBERT. You mean you lived together initially?

Mr. SENATOR. Yes.

Mr. HUBERT. And then lived together after that?

Mr. SENATOR. Oh, yes. Wait a minute, I'm trying to figure how we broke up. Oh, yes, we lived together for a while but he wanted his own place. He wanted to live alone. At that time he was not doing too well and he couldn't stand the pressure of having an apartment by himself, at that time. So we lived together.

Mr. HUBERT. That was the first 6 months or so when you settled in that place?

Mr. SENATOR. Yes. It happened to be that we both almost got divorced around the same time. He was living in Houston at that time.

Mr. HUBERT. All right, so that accounts, I take it, for your residence at the McKinney Street address.

Mr. SENATOR. Yes.

Mr. HUBERT. And that broke up?

Mr. SENATOR. No; from there it broke up and Seder and I moved to another place.

Mr. HUBERT. Where was that?

Mr. SENATOR. That was on Shadyside Lane.

Mr. HUBERT. And how long did you live there?

Mr. SENATOR. This is another guess. I would probably say 6 months to a year, with a guess again, something like that.

Mr. HUBERT. That is you and Seder?

Mr. SENATOR. Yes; Seder.

Mr. HUBERT. Where did you go from there?

Mr. SENATOR. Columbia Avenue.

Mr. HUBERT. How long did you live there?

Mr. SENATOR. I would probably say we may have lived there maybe a couple of years. I'm not sure now.

Mr. HUBERT. You were still with Seder then?

Mr. SENATOR. Yes; and that is where he wanted to have his own place.

Mr. HUBERT. So he left you, as it were?

Mr. SENATOR. Yes.

Mr. HUBERT. Did you remain at the Columbia Avenue address?

Mr. SENATOR. I remained there for a while.

Mr. HUBERT. And then what happened?

Mr. SENATOR. I remained there for a while and then he stayed there. I'm trying to figure where I went from there.

Mr. HUBERT. After you left Seder, if you left the apartment in which you were living with Seder at Columbia Avenue, do you recall whether you then——

Mr. SENATOR. I stayed there for a while.

Mr. HUBERT. You stayed there for a while alone?

Mr. SENATOR. Yes; I had my own place.

Mr. HUBERT. When you moved next, did you move in with somebody else or were you alone?

Mr. SENATOR. No; I moved in with somebody else. I'm trying to think where, though.

Mr. HUBERT. It might help if you remember who it was that you lived with?

Mr. SENATOR. I think I moved to the Oasis.

Mr. HUBERT. Is that an apartment house?

Mr. SENATOR. Yes; these are all apartment houses—the various places. They have all been apartment houses. That was on Live Oak. I believe that is where I moved next.

Mr. HUBERT. Whom did you share that apartment with?

Mr. SENATOR. I stayed there with two other boys, Ronnie Unger and Kenny—I can't think of his last name.

Mr. HUBERT. How long did you live there?

Mr. SENATOR. Pardon me?

Mr. HUBERT. How long did you live there?

Mr. SENATOR. Let me get to this first, please. After I moved, when I moved in with them, the thing I was trying to figure out before I got there, now I got through with Smoler Brothers and I can't think of what year. Do you have a listing of it?

Mr. HUBERT. Our records indicate you last worked for Smoler's, or rather, that there is no more income reported from Smoler's after July of 1958.

Mr. SENATOR. That is probably when I got through, in 1958. That is when I got through with Smoler's, in 1958. I don't remember when I was with Smoler's that I was still living at Columbia Avenue or not. I may have been living there yet. I don't remember.

Mr. HUBERT. Now, we have the sequence of your addresses and the last place was at the Oasis.

Mr. SENATOR. Yes.

Mr. HUBERT. Now, from Oasis where did you go to live?

Mr. SENATOR. Where I moved to?

Mr. HUBERT. Yes.

Mr. SENATOR. From the Oasis I think, I'm not sure now but I think from the Oasis, I think I went on the road for 9 months and just lived all over, if I recall right.

Mr. HUBERT. Were you working with Smoler's then?

Mr. SENATOR. No; I'm not sure I went from the Oasis. I don't remember if I——

Mr. HUBERT. Let's see if this will assist your memory. The social security reports indicate that after the second quarter of 1958, which would mean after July of 1958, you reported no income or no earnings were reported, put it that way, for the last half of 1958, for all of 1959, for all of 1960, and for all of 1961. Now, can you tell us what you were doing and where you were living for those 3½ years, starting from July of 1958 until apparently——

Mr. SENATOR. July of 1958?

Mr. HUBERT. July of 1958 until apparently the beginning of 1962, when you were employed by the Volume Sales Co. and Merchandise Mart, Dallas. That is 3½ years there and I would like to know just what you were doing and where you were living?

Mr. SENATOR. Yes; I don't know if I can put them all together right.

Mr. HUBERT. Do the best you can.

Mr. SENATOR. Now, when I was still living on Columbia Avenue, I don't remember if I was still with Smoler's then.

Mr. HUBERT. In any case you moved to the Oasis?

Mr. SENATOR. Yes; I moved to the Oasis.

Mr. HUBERT. From the Oasis and after you left Smoler's whenever it was, you got on the road.

Mr. SENATOR. Wait; after I left Smoler's, I had a couple of odd jobs traveling which did not mean too much because they were not top lines and moneywise there was no money to really be made. These were odds, and then I finally got back with Rhea again.

Mr. HUBERT. R-h-e-a?

Mr. SENATOR. R-h-e-a. Rhea Manufacturing.

Mr. HUBERT. Milwaukee?

Mr. SENATOR. Milwaukee. I got back with Rhea again, I don't remember what year. But anyhow, in between that I would almost say there could be a span with a rough guess approximately about a year and a half I was unemployed.

Mr. HUBERT. How did you manage to sustain yourself by way of paying normal expenses?

Mr. SENATOR. I was cooking for the boys and doing odd things for them.

Mr. HUBERT. Were you living in Dallas?

Mr. SENATOR. Oh, sure.

Mr. HUBERT. All that period?

Mr. SENATOR. Yes.

Mr. HUBERT. In other words, during the period we are talking about, the 3½ years from July of 1958 until January of 1962, you never did change your residence from Dallas, even though you might be traveling?

Mr. SENATOR. January of 1962.

Mr. HUBERT. Let's get this part settled. From the time you left Smoler's, you were definitely living in Dallas?

Mr. SENATOR. Yes.

Mr. HUBERT. Did you ever actually establish a residence of a permanent nature other than in Dallas any place else?

Mr. SENATOR. No.

Mr. HUBERT. So that even though you were traveling during those years, doing odd jobs or for Rhea's, you always lived in Dallas?

Mr. SENATOR. Yes; wait, there was one time, excuse me, I was staying with a friend of mine in Houston. There was one time, I remember that.

Mr. HUBERT. How long ago?

Mr. SENATOR. But actually, that still wasn't a permanent residence because I was traveling with this guy because I was unemployed and I used to help him.

Mr. HUBERT. Who is he?

Mr. SENATOR. His name is George Hamrah.

Mr. HUBERT. How do you spell it?

Mr. SENATOR. H-a-m-r-a-h.

Mr. HUBERT. He still lives in Houston?

Mr. SENATOR. Yes; he still lives in Houston.

Mr. HUBERT. So aside from that period that you are talking about, you always lived in Dallas?

Mr. SENATOR. Yes.

Mr. HUBERT. Can you bring us forward then as to your residence from the Oasis on?

Mr. SENATOR. From the Oasis I believe now, I believe from the Oasis I went to Jack Ruby's, if I am not mistaken. I think I moved in with Jack.

Wait, I'll tell you when I moved in with Jack. It was in February or March, I'm not sure now, of 1962.

Mr. HUBERT. And you think that you were in the Oasis in the interval.

Mr. SENATOR. No, no; wait, wait. Before I moved in, excuse me, yes, I moved in with Jack from the Oasis. Now I lived in three different places in the Oasis with different boys because I was unemployed.

Mr. HUBERT. We are not particularly interested in the apartment numbers in the Oasis.

Mr. SENATOR. Yes.

Mr. HUBERT. But we are in the names of the people that you lived with at the Oasis.

Mr. SENATOR. I gave you the names——

Mr. HUBERT. Of two of them, as I recall.

Mr. SENATOR. Of one apartment.

Mr. HUBERT. Yes.

Mr. SENATOR. Right. Then another apartment I lived in, the fellow, his name was Frank Irwin.

Mr. HUBERT. Go ahead.

Mr. SENATOR. The other one was James Young, and the other one was—this is all in one apartment. I can't think of the other one's name.

Mr. HUBERT. Have you seen them in the last few years?

Mr. SENATOR. Oh, the last time I saw any of them was around the latter part of last year.

Mr. HUBERT. Even the man whose name you don't know?

Mr. SENATOR. Even the man whose name I don't know. I'm trying to think of his name. I shouldn't forget it. I think it is John.

Mr. HUBERT. Perhaps it will come to you in a minute. We will come back to it.

Mr. SENATOR. I shouldn't forget his name as long as I've known him. I just can't put my finger——

Mr. HUBERT. But you lived with those people at the Oasis?

Mr. SENATOR. Yes.

Mr. HUBERT. At various apartments?

Mr. SENATOR. Yes.

Mr. HUBERT. Until January or February of 1962 when you moved in with Jack Ruby; is that correct?

Mr. SENATOR. Yes.

Mr. HUBERT. Where was Ruby living then?

Mr. SENATOR. Ruby was living at the Marsalla——

Mr. HUBERT. Palace?

Mr. SENATOR. There is a bunch of apartments there.

Mr. HUBERT. Marsalla South?

Mr. SENATOR. It may have been Marsalla South.

Mr. HUBERT. There is actually a Marsalis Street; is there not?

Mr. SENATOR. Yes; but there is an apartment, a few begin with Marsalla, Marsalla Apartments or Marsalla South. This one here was on Marsalla on the street.

Mr. HUBERT. It was on Marsalis Street?

Mr. SENATOR. Yes.

Mr. HUBERT. How long did you live with Jack then?

Mr. SENATOR. At that time I stayed, I lived with him approximately 5 to 6 months; something like that.

Mr. HUBERT. Anybody else live there with you?

Mr. SENATOR. No; just Jack and myself.

Mr. HUBERT. What was the occasion for your leaving him?

Mr. SENATOR. I left him because I had a chance to go into the postcard business.

Mr. HUBERT. How does that relate to leaving Jack? You still lived in Dallas; did you not?

Mr. SENATOR. Oh, sure. I never left Dallas.

Mr. HUBERT. Where did you live after you left Ruby?

Mr. SENATOR. After I left who?

Mr. HUBERT. Ruby. Now, incidentally, I judge from the dates that that would have been around in September.

Mr. SENATOR. August.

Mr. HUBERT. August of 1962?

Mr. SENATOR. Yes; August.

Mr. HUBERT. Where did you go then?

Mr. SENATOR. I moved in with a fellow whose name was Stan Corbat.

Mr. HUBERT. And where was that apartment?

Mr. SENATOR. That was on Maple Avenue.

Mr. HUBERT. You say that the reason why you moved from Jack's was because you got a chance to be a salesman in the postcard business?

Mr. SENATOR. Yes.

Mr. HUBERT. How does that relate, how does your getting this employment relate to your moving from Jack's apartment?

Mr. SENATOR. Jack likes to live alone in the overall picture. First of all, it is an interference of the time that I wake up and the time that he goes to bed which don't coincide. That is part. And then Jack don't live too clean. I mean he is a type—in other words, he comes home, he is reading a newspaper, on the floor, if he is in the bathroom the newspaper goes on the floor and things of that nature. Though he was very clean about himself, he wasn't clean around the apartment.

Mr. HUBERT. I judge from what you tell me then that your real reasons for moving were those that you just mentioned rather than the fact that you

got employment selling postcards? Is that correct?

Mr. SENATOR. Why I moved?

Mr. HUBERT. Yes.

Mr. SENATOR. Please run that back again.

Mr. HUBERT. I say I judge from what you have said that the real reason for your moving from the apartment with Jack in 1962 was your dissatisfaction with the living conditions rather than that you got a job selling postcards?

Mr. SENATOR. No; not necessarily. I mean that is part of it. That is not necessarily it; no.

Mr. HUBERT. How does the postcard job, selling postcards, contribute or how did it contribute to the fact that you had to move from Jack?

Mr. SENATOR. Oh, I didn't have to. I didn't have to; but this way here I started to get self-sustaining a little bit.

Mr. HUBERT. Oh, I see. So you had a steady job?

Mr. SENATOR. Yes; see, the other way, when I was living with Jack, of course, I was helping him at the club. I was helping him at the club, and, of course, I abided by everything he said and did.

Mr. HUBERT. So the reasons for moving then, were a combination of factors. One, that you were dissatisfied generally with the living conditions as you have indicated?

Mr. SENATOR. That is only partially it. I had a chance to go out.

Mr. HUBERT. And you were financially better off and you had a chance to go with Corbat, and you did?

Mr. SENATOR. Yes.

Mr. HUBERT. And how long did you stay with Corbat?

Mr. SENATOR. When I went in with Corbat, of course, he only had a one-bedroom apartment and I had to sleep on the couch again. I slept on so many couches lately. So I told Stan, I told this friend of mine, Corbat, when we were staying on Maple Avenue, that just as soon as I get a little extra

money I want to get a two-bedroom apartment and that is where I moved into this last apartment, 225 South Ewing.

Mr. HUBERT. That was about when?

Mr. SENATOR. I moved in there, I believe it was the latter part of November of 1962, we found a nice two-bedroom apartment that was very reasonable. I told Jack about it and Jack moved next door.

Mr. HUBERT. But he moved later than you, didn't he?

Mr. SENATOR. Well, see, I moved in first.

Mr. HUBERT. With Corbat?

Mr. SENATOR. No. Yes; first I went in alone, no furniture or nothing. I moved in alone and I was there approximately about a week or something like that, and Corbat stayed over at the other place because he wanted to finish the balance of the month out. He wanted his last days in there, you know, for we paid for the rent, and then he moved in right after that.

Mr. HUBERT. He moved in with you?

Mr. SENATOR. Yes.

Mr. HUBERT. And that was in November of 1962?

Mr. SENATOR. I believe it was the latter part of November of 1962.

Mr. HUBERT. When did Ruby move in?

Mr. SENATOR. He moved in around that same time.

Mr. HUBERT. But after you?

Mr. SENATOR. Yes; I would probably say within the week I would probably say, something like that, within that week.

Mr. HUBERT. And then you stayed there until when?

Mr. SENATOR. The unfateful day.

Mr. HUBERT. You didn't live with Corbat all that while?

Mr. SENATOR. No; I lived with Corbat from the time we moved in there until August.

Mr. HUBERT. Of 1963?

Mr. SENATOR. Yes; now, the reason Corbat moved out——

Mr. HUBERT. Ruby had another apartment in the same building?

Mr. SENATOR. Yes, yes; we lived, you know, one apartment next to the other. Now, the reason Corbat moved was because he got married August 8, and there I was in the apartment alone and I couldn't handle it alone. But I did stay there 2 months with a struggle.

Mr. HUBERT. So then when did you move from that apartment to Ruby's apartment?

Mr. SENATOR. It was the first week in November of 1963.

Mr. HUBERT. By the way, would you state for the record what was the number of the apartment you and Corbat had?

Mr. SENATOR. I don't know the number. I said Maple Avenue. The apartment was Granberry. You mean on Maple Avenue?

Mr. HUBERT. No.

Mr. SENATOR. Room number?

Mr. HUBERT. Yes; on South Ewing.

Mr. SENATOR. 223 South Ewing.

Mr. HUBERT. What was the apartment number that you lived in with Corbat which was next door, you say, to Jack's and what was Ruby's number. I want to get that in the record.

Mr. SENATOR. I think Ruby's was 206 and mine was 207, if I recall.

Mr. HUBERT. They were next to one another, or opposite?

Mr. SENATOR. No; in other words, you go along this corridor. There is one apartment here. Right next door there is another apartment.

Mr. HUBERT. And they are numbered in sequence?

Mr. SENATOR. Yes; 206, I believe his was 206 and mine was 207, something like that. I think it was 206 and 207.

Mr. HUBERT. Now, for a moment, let's go back to Frank Irwin, who was one of your roommates. Have you seen him lately?

Mr. SENATOR. No, I have not seen Frank in, oh, I imagine it must be a couple years.

Mr. HUBERT. What was he doing when you last saw him?

Mr. SENATOR. What does he do?

Mr. HUBERT. What was he doing then?

Mr. SENATOR. I believe he is a guard for the Bell Helicopter.

Mr. HUBERT. What about James Young?

Mr. SENATOR. James Young works for a finance—I think it is a finance corporation called Warner.

Mr. HUBERT. When did you last see him?

Mr. SENATOR. I saw him, he was coming through, he was working out of El Paso and he was being transferred, I think he said to Oklahoma City, and I saw him that one day, rather, that one night in Dallas.

Mr. HUBERT. What time?

Mr. SENATOR. At night.

Mr. HUBERT. No; what day?

Mr. SENATOR. Oh, I don't remember.

Mr. HUBERT. What time of the year, what month?

Mr. SENATOR. Oh, I think it was in December.

Mr. HUBERT. Of 1963?

Mr. SENATOR. I think so, in December 1963.

Mr. HUBERT. When had you seen him prior to that time?

Mr. SENATOR. Prior to that time? I don't remember. It could have been a couple years, I guess.

Mr. HUBERT. I think you mentioned that there was another man, a third man——

Mr. SENATOR. Yes.

Mr. HUBERT. Whose name you couldn't remember at the time. Can you remember his name now?

Mr. SENATOR. Jack Loftus.

Mr. HUBERT. L-o-f-t-u-s?

Mr. SENATOR. Yes, that is correct, Jack Loftus, and he lives in Hillsboro, if he is still there.

Mr. HUBERT. What is his occupation?

Mr. SENATOR. I think he works for a newspaper down there now in Hillsboro.

Mr. HUBERT. Texas?

Mr. SENATOR. Yes, Hillsboro, Tex.

Mr. HUBERT. When was the last time you saw him?

Mr. SENATOR. I saw him the same night I saw Young. I may have seen him after that. I know I have seen him a couple of times, but I don't remember if it was after that or before that. I don't remember that, but I do definitely remember seeing him the last time in December. This part I do remember.

Mr. HUBERT. That was the same day you saw Young?

Mr. SENATOR. Yes.

Mr. HUBERT. Was that just a coincidence or was it a plan?

Mr. SENATOR. No, no; no coincidence. They were looking for me and I'll tell you where I saw him. I saw him up at Jack Ruby's club.

Mr. HUBERT. That was after Oswald was shot?

Mr. SENATOR. Yes.

Mr. HUBERT. They were looking for you for what reason?

Mr. SENATOR. Sir?

Mr. HUBERT. For what reason were they looking? Why were they looking for you?

Mr. SENATOR. Just friends, that is all, because I had lived with them, you know, for a while. Nothing particular.

Mr. HUBERT. I suppose, too, they had known that you were in the apartment with Ruby.

Mr. SENATOR. Yes.

Mr. HUBERT. Of course, it was national news.

Mr. SENATOR. They had read of the incident or heard of the incident somehow.

Mr. GRIFFIN. How long was that after Ruby killed Oswald that you saw them?

Mr. SENATOR. These two boys?

Mr. GRIFFIN. Yes.

Mr. SENATOR. I think it was in December now. I don't remember if it was a week, two or three. I'm not sure. I just don't remember.

Mr. HUBERT. Can you relate it to say Christmastime, Christmas day?

Mr. SENATOR. It could be. I just can't think of when it was. Possibly.

Mr. HUBERT. How long prior to then had you seen Loftus?

Mr. SENATOR. Before?

Mr. HUBERT. Yes, say before Oswald was shot. How long had it been since you had seen Loftus?

Mr. SENATOR. Let me put it this way: I can't quote it. I really can't quote it, but I would say that he lived in Hillsboro and he used to come up on weekends and I believe he stayed with his friend in Irving, Frank Irwin.

Mr. HUBERT. What was the friend's name?

Mr. SENATOR. Frank Irwin.

Mr. HUBERT. I-r-w-i-n?

Mr. SENATOR. I-r-w-i-n, yes.

Mr. HUBERT. And that person lived in Irving, Tex.?

Mr. SENATOR. Irving, yes; he lived in Irving. Now I used to run across him once in a while. He used to come up you know for the weekend.

Mr. HUBERT. Did he know Ruby?

Mr. SENATOR. Yes, he knew him casually.

Mr. HUBERT. What about these others, Frank Irwin and James Young?

Mr. SENATOR. I don't know if they knew Ruby.

Mr. HUBERT. Did Stanley Corbat know him?

Mr. SENATOR. Casually, because Stanley and I lived next door to him. But, of course, Stan never went to his club unless I took him there.

Mr. HUBERT. Stan got married, of course, and that is why he moved out of the apartment?

Mr. SENATOR. Yes.

Mr. HUBERT. Where is he living now, in Dallas?

Mr. SENATOR. I don't know the number, but I think he is living on Munger Street.

Mr. HUBERT. Have you seen him since Oswald was shot?

Mr. SENATOR. Oh, sure.

Mr. HUBERT. How did you come in contact with him, socially?

Mr. SENATOR. I just happened to run across him one day. I ran across him once in a delicatessen.

Mr. HUBERT. Just once?

Mr. SENATOR. In the delicatessen. I ran across him once in a delicatessen. Then I ran across him another time. As a matter of fact, I ran across him I think it was twice since the happenings.

Mr. HUBERT. What does he do?

Mr. SENATOR. He is a buyer for a department store. He buys women's budget dresses.

Mr. GRIFFIN. Which department store?

Mr. SENATOR. Titcher.

Mr. GRIFFIN. That is in Dallas?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Where is that located?

Mr. SENATOR. That is I think on Main Street. I think it is on Main Street.

Mr. HUBERT. Let me ask you a few other questions about yourself.

Have you ever been in any difficulties with the law, that is to say, by way of charges?

Mr. SENATOR. No; the only incident I ever had with the law, and I have been asked many times before on this already, that one night—this goes back maybe 3 or 4 years ago—there was another chap and I, we went to a cocktail lounge and we both had two scotches and water. We crossed the street and I think we crossed the street against the light because in Dallas they are very meticulous of crossing against the lights, and we went into the coffee shop to get something to eat. We no sooner got in the coffee shop than two cops nabbed me, us rather. They said we were drunk. Now I wasn't any more drunk than he was.

Mr. HUBERT. Did they charge you?

Mr. SENATOR. Yes; they took us down to jail, 4 hours to sober up, but I had nothing to sober up with.

Mr. HUBERT. Did they follow up with any charges?

Mr. SENATOR. No; we were fined \$15.

Mr. HUBERT. You were fined?

Mr. SENATOR. I believe it was \$15.

Mr. HUBERT. Is that the only time?

Mr. SENATOR. The only time in my life.

Mr. HUBERT. The only time you have ever been arrested?

Mr. SENATOR. Yes.

Mr. HUBERT. There have been no other charges?

Mr. SENATOR. No.

Mr. HUBERT. Also I gather from the fact that you got an honorable discharge, that you had no difficulties with military justice?

Mr. SENATOR. Never.

Mr. HUBERT. During the war?

Mr. SENATOR. Never, none whatsoever.

Mr. HUBERT. Now, while you were living in Miami, did you have occasion to get to know or meet or make friends with, either one, any person who would be classified as gamblers, professional gamblers?

Mr. SENATOR. Professional?

Mr. HUBERT. Yes.

Mr. SENATOR. No.

Mr. HUBERT. Did you go to any gambling houses?

Mr. SENATOR. Me? No; of course I'm certain there must be sneak gambling you know, like anyone else. They call it sneak gambling, you know, you do it under cover. But at that time when I got down there, I think it was either shut down or close to being shut down. I don't remember just what year it was. They just clamped down, you know.

Of course, I remember when I first went there as a kid, everything was open. Slot machines used to be on the streets and all that.

Mr. HUBERT. Have you yourself ever done any gambling?

Mr. SENATOR. No; I'm no gambler. When you put it this way, I will put it this way: You mean have I played poker at home, 5 and 10 or something like that?

Mr. HUBERT. No.

Mr. SENATOR. No; the only time that I ever did any gambling was when I was overseas. I was in the jungles for approximately 3 years. What other recreation did we have? So we gambled.

Mr. HUBERT. I want to explore a bit more the means by which you obtained money to live during the 2½ years that you were apparently

unemployed, at least no earnings were reported, that is to say, from July of 1958 until the first of 1962.

Mr. SENATOR. What years?

Mr. HUBERT. According to the records, there were no earnings reported for you by anybody nor did you apparently report any yourself from July roughly of 1958 until January 1 of 1962, or the first part of 1962.

Mr. SENATOR. Approximately about 4 weeks ago the Internal Revenue had me and they called me right after I got off the witness stand at the Jack Ruby trial that they wanted to see me.

Mr. HUBERT. Go ahead.

Mr. SENATOR. They gave me a notice to come up and see them. They allowed me 10 days to come up and see them, which I did.

When I was unemployed, when I lost my job I think it was in 1958, when I was with Rhea, which is a very depressing feeling, I don't know how to explain this, I really don't know how to explain it to you, I didn't file. Why I didn't file I can't even answer, I don't know why I didn't file.

Mr. HUBERT. Before you get to that, maybe we ought to get to this part.

You say you lost your job. You are talking about being with Smoler's?

Mr. SENATOR. No; that was with Rhea.

Mr. HUBERT. You were with Smoler's a long time. What caused you to lose your job there?

Mr. SENATOR. With Smoler Brothers?

Mr. HUBERT. Yes.

Mr. SENATOR. As I say, they weren't happy with me and I wasn't happy with them.

First of all, I'll tell you they had cut down the territory and they were unhappy with the type business I was doing. So, this was a volume house, and the type operation was, I don't know if I classify, if I tell you \$3.75 a dress, I don't know if it means anything to you or not, but at this price range, at the wholesale price range, you have got to do a volume business to make any money. And through this they weren't happy. And I wasn't happy

because they had cut my territory down so, so we parted good friends. I wasn't making any money anyhow over that.

Mr. HUBERT. Had you had times with Smoler's when you had done considerably better?

Mr. SENATOR. There were times that I did better. I don't say that I did a fantastic job with them, but I have done a little better than that.

Mr. HUBERT. Had you been able to make any savings to carry you forward?

You see, that is what I want to get at. We find when you left Smoler's, you go to Rhea's——

Mr. SENATOR. Excuse me, before I went to Rhea I had other odd jobs you know that were nothing to speak of.

Mr. HUBERT. Here is what I want to get at.

Here is a period of 2½ years, you had to have some money to live on or people gave you money or something of that sort. Now tell us about that.

Mr. SENATOR. I lived on handouts.

Mr. HUBERT. Tell us about it.

Mr. SENATOR. I lived on handouts. When I mentioned these boys here and I was living on handouts with them. In other words, I used to cook for them and wash dishes and things of that nature. I was really depressed, extremely depressed and down and out, and they slipped me five, three, two, whatever it was, and I helped them along in the house there and they kept me for a while.

Mr. HUBERT. You did not pay any part of the rent?

Mr. SENATOR. No.

Mr. HUBERT. And that is true for that whole 2½-year period?

Mr. SENATOR. It wasn't two and a half. I would say it was approximately a year and a half, to my knowledge. I don't think it was 2½ years.

Mr. GRIFFIN. You went from Smoler Brothers to Rhea directly?

Mr. SENATOR. No, no; I say I had the odd jobs directly.

Mr. GRIFFIN. Now, how much time was there between Smoler Brothers and Rhea?

Mr. SENATOR. I don't think there was much time between them.

Mr. GRIFFIN. What would you say, 3 months?

Mr. SENATOR. It's hard for me to really guess. I'd have to make such a fantastic guess I wouldn't know if I was right or wrong.

Mr. GRIFFIN. This was not too long ago. This was back in 1957.

Mr. SENATOR. Yes, if I told you 3 months I don't know how close I'd be and if I told you 6 months I don't know how far I'd be.

Mr. GRIFFIN. You say you had odd jobs. Can you be more specific?

Mr. SENATOR. Yes, I was with another dress house for a short while, which didn't last too long.

Mr. GRIFFIN. Doing the same kind of work?

Mr. SENATOR. Yes, doing the same kind of work.

Mr. GRIFFIN. Covering territory?

Mr. SENATOR. Yes, they were with a top house. I didn't stay with them long and I wasn't making any money with them.

Mr. GRIFFIN. What company was that?

Mr. SENATOR. Junior Age. I don't believe they are in business any more.

Mr. GRIFFIN. How long would you say you were with them?

Mr. SENATOR. It may have been 3 months. I don't know, 2 months, 4 months. I'm not sure. It wasn't too long.

Mr. GRIFFIN. Were you on a straight commission with them?

Mr. SENATOR. Yes. No, a draw against commission.

Mr. GRIFFIN. A draw against commission?

Mr. SENATOR. Yes.

Mr. GRIFFIN. But if you didn't make your draw, you were in the hole with them and had to pay it back supposedly, somehow?

Mr. SENATOR. I didn't pay it back, but I was in the hole, yes.

Mr. GRIFFIN. But after you left this dress house, who did you work for next?

Mr. SENATOR. I'm trying to think from the time there until Rhea. I know I did some odd things. I was with Rhea——

Mr. HUBERT. Were these odd things always in the same line, or did you get into other lines?

Mr. SENATOR. No. I worked in a little bare place, I think I lasted, I worked there for about 6 weeks once at hardly nothing, just to keep me going.

Mr. GRIFFIN. Was that in Dallas?

Mr. SENATOR. Yes.

Mr. GRIFFIN. And that was before you worked for Rhea, or was it?

Mr. SENATOR. No. I think that was after. I think that was after I worked for Rhea.

Mr. HUBERT. How long did the Rhea employment last?

Mr. SENATOR. I may have been with them maybe a year, year and a half, I'm not sure now.

Mr. HUBERT. Did you make any money off of that?

Mr. SENATOR. Just a draw part.

Mr. HUBERT. Were you on the handout basis when you were working for Rhea, that is to say, handout with your roommates, or did you have enough money then to pay your fair share?

Mr. SENATOR. Oh, no; I paid my fair share as long as I was——

Mr. HUBERT. So when you are talking about the handouts——

Mr. SENATOR. The handouts is when I was completely out.

Mr. HUBERT. You didn't have any employment at all?

Mr. SENATOR. No, I was completely out.

Mr. HUBERT. That was for about a year, year and a half?

Mr. SENATOR. I would say about a year and a half at a rough guess.

Mr. HUBERT. When did that begin and when did that end, that year and a half? Let's look at it this way: You were not working at the time you were living with Ruby, were you, that is to say you were not making any money?

Mr. SENATOR. No.

Mr. HUBERT. You were not contributing?

Mr. SENATOR. No. Ruby gave me handouts.

Mr. HUBERT. That is right?

Mr. SENATOR. Certainly.

Mr. HUBERT. So that is a year and a half back from November of 1963, is it not, roughly?

Mr. SENATOR. No, I was with this Volume Sales like you mentioned before.

Mr. HUBERT. Yes.

Mr. SENATOR. I was with them. Now, I was with Volume for maybe about 9 months, I think.

Mr. HUBERT. Let's take the time that you were with Corbat. Was that on a handout basis too, or did you pay your fair share then?

Mr. SENATOR. No; with Corbat I paid him very little. I'll tell you when I paid him very little, though. I paid him very little when I first moved in with him, because I had no money.

Mr. HUBERT. And then you got——

Mr. SENATOR. Then when I moved, when I was able to a little, we went on a 50-50 basis.

Mr. HUBERT. That is when you moved to South Ewing?

Mr. SENATOR. Yes.

Mr. HUBERT. Which was in August of 1962?

Mr. SENATOR. Yes.

Mr. HUBERT. Where were you making money at that time?

Mr. SENATOR. The cards. My half of the rent was \$62.50 a month and his half. In other words, it ran about \$15 a week, approximately.

Mr. HUBERT. And you earned enough to pay your half by selling postcards?

Mr. SENATOR. Yes; I was in the postcards.

Mr. HUBERT. That is what business? What company is that?

Mr. SENATOR. Texas Postcard & Novelty Co.

Mr. HUBERT. How long were you with them?

Mr. SENATOR. I was sales manager, whatever that means.

Mr. HUBERT. How long were you with them?

Mr. SENATOR. August of 1962 until November of 1963.

Mr. HUBERT. What part of November?

Mr. SENATOR. The latter part of November.

Mr. HUBERT. You mean you ceased your employment with them after Oswald was shot?

Mr. SENATOR. Yes; this is when I fell apart with the incident.

Mr. HUBERT. What were you making then?

Mr. SENATOR. \$75 a week, but \$61.45, that is my actual draw.

Mr. HUBERT. That was your actual draw?

Mr. SENATOR. Yes.

Mr. HUBERT. In cash?

Mr. SENATOR. Yes.

Mr. HUBERT. Roughly \$250 a month?

Mr. SENATOR. Yes.

Mr. HUBERT. I think you said you paid your half of the rent with Corbat?

Mr. SENATOR. Yes; \$15 a week, \$16 a week, or whatever it was.

Mr. HUBERT. And then when you lost that employment—just a minute; you had not lost that employment at the time you moved in with Ruby, because you say that that employment——

Mr. SENATOR. No, no, no; you mean prior to——

Mr. HUBERT. To the shooting.

Mr. SENATOR. Yes.

Mr. HUBERT. You were still working with them?

Mr. SENATOR. Yes.

Mr. HUBERT. And you were still drawing that pay?

Mr. SENATOR. Yes.

Mr. HUBERT. What did you mean when you said a little while ago that you were on a handout basis with Ruby since you were making \$250?

Mr. SENATOR. No; I am referring to the first time.

Mr. HUBERT. Oh, I see.

Mr. SENATOR. That was in 1962.

Mr. HUBERT. You were living in another place?

Mr. SENATOR. Yes; in 1962.

Mr. HUBERT. But with reference to the last time you lived with Ruby; that is to say, commencing the beginning of November of 1963?

Mr. SENATOR. Yes.

Mr. HUBERT. You were——

Mr. SENATOR. I was under pressure those 2 months because the rent—you know, when you switch from \$62.50 to \$125 you are going broke.

Mr. HUBERT. From the time you left Corbat until you moved with Ruby——

Mr. SENATOR. I struggled for the 2 months, and Jack Ruby said to move in, so I moved in.

Mr. HUBERT. And were you supposed to pay any part?

Mr. SENATOR. With Jack, no.

Mr. HUBERT. The arrangement was that you were not to pay anything?

Mr. SENATOR. I wasn't to pay, but you know I would help him. I would help him Fridays and Saturdays, or once in a while I would pop up during a week night.

Mr. GRIFFIN. Let me ask you something to get it straight about this Rhea Manufacturing Co.

Mr. SENATOR. Yes.

Mr. GRIFFIN. What did they do? What did they make?

Mr. SENATOR. They manufacture dresses and sportswear.

Mr. GRIFFIN. I notice your social security earnings record with Smoler Bros., that there seemed to be times regularly where you did not report any earnings from them, or they did not report any payments to you I should say, to be more accurate. Was there something seasonal about that business with Smoler Bros.?

Mr. SENATOR. The type business?

Mr. GRIFFIN. Yes.

Mr. SENATOR. Yes; every season wasn't good. In other words, let me put it this way: When you get down to the latter part of the year, you know, see, we are more so of a cotton housecoat, not a housecoat but a cotton dress. You have seen these women wear these inexpensive cotton dresses. They look like plaid variations. Well, this wasn't a big factor at that time of the year. In other words, our spring and our summer was the best for us as far as selling goes.

Mr. GRIFFIN. And the spring and the summer were you selling for the spring and summer seasons, or were you selling in the spring and summer for the following season?

Mr. SENATOR. Let me explain it this way: I'm certain we are both on the right track, but let me explain it this way. In other words, we will start in May. In May your fall lines come out, see, come out, and you start selling them in May. Some of them sell them in April, even. It all depends who the manufacturer is and how fast they put them out. Then your spring line—

let's see, from the fall line your spring line will come out in, I think it's August, August of the year.

Mr. HUBERT. Let's see if we cannot get it this way. You never actually ceased your employment with Smoler's at any time until the final time?

Mr. SENATOR. Yes; that is right.

Mr. HUBERT. Now, there are periods from these reports that we have in which Smoler's apparently did not report any earnings for you. What we want to know, is: Is it a fact that you did not earn anything during that period or did not even draw during that period, or have you any explanation for the reason that Smoler's apparently did not report any earnings for you during several years in a row for certain quarters, seemingly for the third and fourth quarter of each year, and why would that be?

Mr. GRIFFIN. That is right.

Mr. SENATOR. I don't know.

Mr. HUBERT. Were you always on a draw right along?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Were there some periods during each year when you did not earn your draw?

Mr. SENATOR. Oh, yes: there were many times I didn't earn my draw.

Mr. GRIFFIN. Was there anything seasonal about that? Were there certain times of the year when you were working when it regularly happened that you did not earn your draw?

Mr. SENATOR. Oh, sure.

Mr. GRIFFIN. What times of the year did that tend to be when you did not earn your draw?

Mr. SENATOR. I cannot base it on any particular time or periods, but there were many times, especially when you get chopped down a bit on your loans. I have never made what you call any big money with them. I was always, I would imagine, hitting probably around my draw part, or there may have been times when I fell even behind.

Mr. HUBERT. I want to get to the time when you first met Jack Ruby.

Mr. GRIFFIN. Mr. Hubert, I have a couple of questions. I would like to clear up on some much earlier stuff before you get to that.

Mr. HUBERT. All right.

Mr. GRIFFIN. First of all, where is Gloversville, N.Y.? What part of New York State is that?

Mr. SENATOR. Are you familiar with Albany?

Mr. GRIFFIN. Yes.

Mr. SENATOR. You are familiar with Schenectady?

Mr. GRIFFIN. Yes.

Mr. SENATOR. How about Amsterdam?

Mr. GRIFFIN. Well, if I am not, if you tell us where it is.

Mr. SENATOR. I haven't been there in so many years I may not have the right direction now. All I know is I am trying to figure what the locality is. It is 30 miles from Schenectady. In other words, it is off the beaten path a bit from your main lines.

Mr. GRIFFIN. It is upstate New York?

Mr. SENATOR. Yes; I would probably say in the locale of the foothills of the Adirondacks.

Mr. GRIFFIN. Now I perhaps did not catch this, but there was a period in 1947 when you went to work in New Hampshire?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Why did you go to New Hampshire?

Mr. SENATOR. I needed a job.

Mr. GRIFFIN. How did you happen to go there?

Mr. SENATOR. The man who was running the Red Rooster—what was the name of it again?

Mr. HUBERT. The Hensroost.

Mr. SENATOR. Yes; the Hensroost; he was up there for the summer. So he got me a job up there for the summer. That was another time when I was

very much in need of a job. The type of work that I did up there, they had a little place where the help used to come in, you know, to eat or drink or buy cigars, separation from the guest part. This is the part I worked, made them hamburgers or whatever it may be of that nature.

Mr. GRIFFIN. I do not have anything else, Mr. Hubert, if you want to go on.

Mr. HUBERT. Now, as I understand it, it was in May of 1954, almost 10 years ago, that you moved to Dallas?

Mr. SENATOR. Yes.

Mr. HUBERT. How soon after moving to Dallas did you meet Jack Ruby?

Mr. SENATOR. I would say it may have been—I would say approximately about within a year or approximately about a year; I'm not sure.

Mr. HUBERT. You did not know him prior to moving to Dallas?

Mr. SENATOR. Oh, no; I had never heard of Jack Ruby before in my life.

Mr. HUBERT. You think it would be somewhere in 1955 that you first met him?

Mr. SENATOR. I would even say in 1955 or early 1956. I mean give or take a few.

Mr. HUBERT. Tell us the circumstances under which you met him.

Mr. SENATOR. How I met him?

Mr. HUBERT. Yes.

Mr. SENATOR. I was with a friend of mine one day. We went over to—I am certain you heard of the Vegas Club in Dallas?

Mr. HUBERT. Yes.

Mr. SENATOR. That is where, you know—at that time this is all Jack Ruby had was the Vegas Club and this is where I met him casually. Never seen him before, and I was introduced to Jack Ruby like I guess anybody else walked in, Jack Ruby.

Mr. HUBERT. All right; now, starting from then, would you tell us how your friendship or acquaintance developed?

Mr. SENATOR. I have seen Jack; I have met Jack here or there, you know; it can be in a restaurant or whatever it might be or a luncheonette or something like that. I have met him many times. I have seen him, "Hi, George"; "Hi, Jack, how are you?"

Mr. HUBERT. Did you go to the Vegas Club frequently after that first meeting?

Mr. SENATOR. Oh, no; very, very seldom, very seldom, and the only time that I really got close to Jack was about 2 years ago. Always previous to that it has always been, "Jack, how are you?" wherever I met him; having coffee, he always offered to buy me something to eat.

Mr. HUBERT. You describe your relationship with Jack up to 2 years ago as casual?

Mr. SENATOR. Strictly casual, like I'd meet any other friend anywhere else.

Mr. HUBERT. It could hardly be called friendship as it ultimately developed, in any case.

Mr. SENATOR. Yes; I respected him; he respected me. We talked nice.

Mr. HUBERT. You did not go to the Vegas very much?

Mr. SENATOR. No; I didn't go to the Vegas very much.

Mr. HUBERT. At the time you indicated that there was a change in that casual relationship to something else 2 years ago.

Mr. SENATOR. Yes.

Mr. HUBERT. Can you tell us what brought that about?

Mr. SENATOR. Yes. (Brief recess.)

Mr. HUBERT. Mr. Senator, we have had about a 10-minute recess. You understand, of course, that we are continuing this deposition by the same authority and under the same conditions which I stated to you at the very beginning of it, and further that you are under the same oath that you were prior to the recess. Is that agreeable with you? You understand that?

Mr. SENATOR. I can't lie because I didn't bring a lawyer with me.

Mr. HUBERT. What?

Mr. SENATOR. I said I am not lying because I didn't bring a lawyer with me.

Mr. HUBERT. So that the record may be clear on the point, I want to see if I understand your last remark. Does it indicate that you wish to have a lawyer?

Mr. SENATOR. No.

Mr. HUBERT. I just wanted to get it straight.

Mr. SENATOR. I say that I didn't come here to lie; so I don't need a lawyer.

Mr. HUBERT. All right, now we are at the point about 2 years ago when a casual relationship which you have described with Ruby changed into something else. Why don't you just tell us about that in your own words?

Mr. SENATOR. All right. I mentioned before Volume Sales. When I got through with Volume Sales I was unemployed again, and I used to jump up to Jack's place, his other place, which is the Carousel. Previous to that there was the Sovereign Club, a private club. On rare occasions I used to go up there and we started getting a little more friendly.

Mr. HUBERT. That was about 2 years ago or prior to that?

Mr. SENATOR. No; that was while I was still with Volume Sales. In other words, that was, I would say, approximately about 2½ years ago. I used to go up to the Sovereign Club; you know it is a private club; they don't let you in normally, but he used to let me in to watch the show.

Mr. HUBERT. Do you remember actually when that opened?

Mr. SENATOR. Which?

Mr. HUBERT. The Sovereign.

Mr. SENATOR. No.

Mr. HUBERT. Do you remember when it changed from the Sovereign to the Carousel?

Mr. SENATOR. I wasn't around for the change, but I would say that it was over 2 years ago. Now just how much over, I don't know.

Mr. HUBERT. Would you concur in the suggestion that it would be approximately Christmas of 1961, which would be about 2 years and 5 or 6 months?

Mr. SENATOR. That it changed to the Carousel?

Mr. HUBERT. Yes.

Mr. SENATOR. I couldn't quote that. I couldn't even quote it.

Mr. GRIFFIN. Can I interrupt you here Mr. Hubert? How did you happen to come to terminate your employment with Volume Sales?

Mr. SENATOR. You have got to know the man. He is a hard guy to work for. He was really a tough guy to work for. You see, No. 1, he is a salesman himself, and he is a pretty shrewd salesman, and he had Volume Sales, which were novelty, sort of novelty and gift item type things.

Mr. GRIFFIN. What kind of things?

Mr. SENATOR. Novelties? Well that would be variations. In other words, you probably have seen these little things with different sayings on them. Remember the little miniature loving cups with the different sayings on them? Things of this nature, and other gag items and key chains and little bar sets and little weather sets and things of that nature, and funny matches. Just a variation of those things of that nature. And when I traveled for him and I'd get back to town, he would knock me off \$50. In others words, my draw wasn't stable with him.

Mr. GRIFFIN. When you first started to visit the Sovereign Club, as you say Jack would let you in, I take it you didn't have membership in the Sovereign Club?

Mr. SENATOR. No; because I think at the Sovereign Club I probably attended that place maybe three or four times or something like that.

Mr. GRIFFIN. Was Mr. Ruby running the same kind of shows at the Sovereign Club that he later had at the Carousel?

Mr. SENATOR. Oh, no; he was running acts, you know, he had acts, singers or dancers or comedians, something of that nature you know.

Mr. GRIFFIN. Did he have striptease performance?

Mr. SENATOR. No; the Sovereign; no; there were no strippers when he had the Sovereign Club.

Mr. GRIFFIN. Were you familiar with the other nightclubs in town when Mr. Ruby had the Sovereign Club?

Mr. SENATOR. Oh, I knew some of them; yes.

Mr. GRIFFIN. Did you visit any of those?

Mr. SENATOR. On rare occasions; yes. I couldn't afford them, number one. I was never a member because I couldn't afford membership. I wasn't making that kind of money. But I'd either go up with a friend who was a member or something of that nature.

Mr. GRIFFIN. Was there something about the Sovereign Club that was more attractive to you than some of the other clubs?

Mr. SENATOR. No; not particularly; no. It is just that I knew Jack and Jack said like he said a thousand times to many people. First of all the Carousel of course is a \$2 admission. But many people would say "Come on up, be my guest," free admission.

Mr. GRIFFIN. Did you know any other nightclub operators in town at the time Jack was running the Sovereign Club and letting you in?

Mr. SENATOR. Well, normally on getting into clubs I would probably go in with a friend who was a member. You probably know the Kings Club and the Adolphus don't you or you heard of it?

Mr. GRIFFIN. Yes; for example did you know the manager of the Theatre Lounge?

Mr. SENATOR. As of recent?

Mr. GRIFFIN. Back there when you were going to the Sovereign Club and Jack would let you in.

Mr. SENATOR. No; I knew who the owner was but I didn't know the manager, who the manager was at that time.

Mr. GRIFFIN. You know Abe Weinstein?

Mr. SENATOR. Oh, yes; I don't know him that well. I know who he is, I know him casually.

Mr. GRIFFIN. Had you visited his clubs?

Mr. SENATOR. On very rare occasions. Abe's place I have probably been up maybe as long as I have been in Dallas, if I have been up there four times I have been up there a lot, if I have been up there that many times.

Mr. HUBERT. All right; now we had progressed to the point where your casual relationship with Jack Ruby had developed into a little more than that commencing roughly about 2½ years ago when you began to go to the Sovereign Club. I think you went there about four or five times before it changed to the Carousel. But you have previously mentioned that about 2 years ago something happened that changed this improving relationship let's say in the sense that you got to know each other better, so that you could be called friends then. Something happened you said about 2 years ago, and that is what I want you to take it from there.

Mr. SENATOR. When I got through with Volume Sales I was unemployed again. In other words, I was down again. So Jack Ruby is of a nature, he will help somebody. Rather he has to feed them or give them a place to sleep or something of this nature, this is when he took me in when he knew I was broke. He said "George you can stay with me."

Mr. HUBERT. Did you tell him you were broke or did he find out from another source?

Mr. SENATOR. No; I told him I was down.

Mr. HUBERT. Did you ask to go in with him?

Mr. SENATOR. No; I'll tell you why. I don't think I did. At that time Jack was changing over and he had some pretty rough times. He had changed over from this Sovereign Club. Now how rough he had it there I don't know because I wasn't intimate with him at that time, that intimate. And he went into this burlesque business.

Mr. HUBERT. That is the Carousel you mean?

Mr. SENATOR. The Carousel and he was bucking somebody who had never been bucked before. That is the Weinstein brothers who owned the Theatre Lounge and the Colony Club and who have had the monopoly of

that type nature of business for many, many years. Now, for him to buck them he has really got something to buck.

Mr. HUBERT. So he was having difficulties and you were too?

Mr. SENATOR. Yes; originally I was sleeping at the club and so was he.

Mr. HUBERT. You mean he didn't have an apartment at all?

Mr. SENATOR. He didn't have an apartment at that time.

Mr. HUBERT. How long did that situation go on?

Mr. SENATOR. It didn't last too long, because as business started to pick up some he was sleeping, he had his own room in the club and he had a fold-out bed that I could sleep on and I slept there for awhile.

Mr. HUBERT. So that originally when Jack took you in, as it were, to assist you, he took you in at the club, and not into any apartment which he then had?

Mr. SENATOR. He didn't have an apartment.

Mr. HUBERT. That is what I say.

Mr. SENATOR. He didn't have an apartment at that time. But he was always good in feeding somebody if they were down and out.

Mr. HUBERT. You mean he gave you cash?

Mr. SENATOR. Either that or he gave me a little cash for spending money or he would just take me.

Mr. HUBERT. Just do what?

Mr. SENATOR. Take me to eat, you know, when he went to eat. He'd pay for my laundry or have my suit pressed, things of that nature.

Mr. HUBERT. But then he did get an apartment?

Mr. SENATOR. He got an apartment but I don't remember just how long after that.

Mr. HUBERT. In any case when he got an apartment you moved into that apartment with him?

Mr. SENATOR. See I am a little blank on one point there. I just don't remember how the outcome was when he moved out of there into the apartment. I can't remember just how long I stayed up at the club with him. It wasn't too long, though. I don't remember how long. But anyhow he got this apartment on South Ewing.

Mr. HUBERT. On South Ewing?

Mr. SENATOR. No; Marsalis.

Mr. HUBERT. And then you moved in with him right away?

Mr. SENATOR. Then I went in with him. Now I don't remember if I went in with him—I don't remember how I went in with him. I can't place it together but I know I was there.

Mr. HUBERT. You didn't have to pay any rent?

Mr. SENATOR. No; but I helped him in the club.

Mr. HUBERT. Now when you helped him in the club, what did you do? What kind of work did you do at the club?

Mr. SENATOR. Well, I sort of ran the lights for him for awhile and I'd take cash for him.

Mr. HUBERT. You mean that is on the front door?

Mr. SENATOR. Yes; on the front door.

Mr. HUBERT. That is the \$2 admission charge?

Mr. SENATOR. Yes; that is right.

Mr. HUBERT. And what other jobs did you do?

Mr. SENATOR. Whatever errands he wanted me to do during the course of the daytime, if he wanted me to pick up something here or pick up something there or buy something that he needed for the club, go shopping and things of that nature, whatever it might be.

Mr. HUBERT. You didn't do the clean-up jobs?

Mr. SENATOR. No. He had a clean-up boy.

Mr. HUBERT. Who was he?

Mr. SENATOR. His name was Andrew Armstrong I believe it was.

Mr. HUBERT. Was he there when you first went there?

Mr. SENATOR. Yes. He was with Jack quite awhile. He was with Jack, I think he was with Jack before I was there, yes, and he was there until the time the club closed down.

Mr. HUBERT. Did you travel around with Jack during this period when you were unemployed and he was helping you out and you were helping him out by doing errands and so forth? I mean when you got up in the morning did you both go together? Did you move together or how was it?

Mr. SENATOR. It all depends. First of all he slept pretty good. He slept pretty late. He liked to sleep. And he used to get up in the afternoon and mess around, sit around the apartment. If the weather was right, I mean if it happened to be summertime, he is a great fan for swimming. Or he'd just mope around the place or hang around the apartment house.

Mr. HUBERT. What I am trying to get at is whether your helping him out at the club was a regular thing or just done once in a while.

Mr. SENATOR. No; I was doing it regularly. As long as he was keeping me up, I had to do something, see.

Mr. HUBERT. That is what I had in mind.

Mr. SENATOR. Yes.

Mr. HUBERT. Did you go to the club at the same time that he did?

Mr. SENATOR. No.

Mr. HUBERT. Did you leave at the same time that he did?

Mr. SENATOR. I would leave when he left.

Mr. HUBERT. Because you were both going back to the same house?

Mr. SENATOR. Yes.

Mr. HUBERT. What about going there? You went earlier?

Mr. SENATOR. Oh, yes; I left earlier. In other words he could sit in the apartment longer than I could.

Mr. HUBERT. What time did you normally go to work then?

Mr. SENATOR. He would always make me go in in early, somewhere around between 7 and 8. He wanted me to see that things were set up.

Mr. HUBERT. You never had to go in midafternoon though?

Mr. SENATOR. Oh, no; unless if we did go in midafternoon, which was rare, probably maybe to feed the dogs or something like that.

Mr. HUBERT. Who took care of the reservations and all other matters of that sort?

Mr. SENATOR. Andrew.

Mr. HUBERT. What time did Andrew get there?

Mr. SENATOR. Andrew was there; Andrew would come there somewhere around 1 o'clock in the afternoon. See Andrew lived there for a short while too after we had left. He was staying there. And then I think he got married or something like that. But Andrew was with him about 2 years I guess, maybe a little longer.

Mr. HUBERT. I think you have already covered the next stage, and that was when you got a job and also you were disgusted with the conditions and so you moved in with Corbat?

Mr. SENATOR. Yes.

Mr. HUBERT. Now during the period that you lived with Corbat, which would have been, as I remember it, from August of 1962 until August of 1963—is that right?

Mr. SENATOR. Yes.

Mr. HUBERT. What was your relationship with Jack then?

Mr. SENATOR. August of 1962.

Mr. HUBERT. That is when you moved out of Jack's apartment and took up with Corbat.

Mr. SENATOR. I always went to see him. I always used to come up there. At rare times I would help him at the door.

Mr. HUBERT. But you had a job then?

Mr. SENATOR. Yes. But I would go up there and I would help him at the door, things of that kind.

Mr. HUBERT. As a matter of fact, he for a good part of that period he actually lived in the South Ewing Apartments where you lived with Corbat, is that right?

Mr. SENATOR. Yes. We moved there practically the same time; yes.

Mr. HUBERT. So that in spite of the fact that you broke up the domestic establishment that you had, there was no ill feeling between you.

Mr. SENATOR. Never, no, no. We have never had any ill feeling. We got along excepting when he hollered at me.

Mr. HUBERT. Well we will get to that. In this new job which you had when you were living with Corbat did you have to use an automobile?

Mr. SENATOR. Yes; a wagon.

Mr. HUBERT. A station wagon?

Mr. SENATOR. Volkswagen, one of those box things, what do you call them?

Mr. GRIFFIN. One of those Volkswagen minibuses?

Mr. SENATOR. I don't know.

Mr. GRIFFIN. Is it a passenger car?

Mr. SENATOR. No; it is one of these solid enclosures. It looks like a box, you know. I don't know what you call them.

Mr. HUBERT. Was it to hold goods you were displaying?

Mr. SENATOR. That is right; but there was no windows to it except in the back, the back part.

Mr. HUBERT. Was it your car or did it belong to the company?

Mr. SENATOR. It was the company.

Mr. HUBERT. And you say you continued to go to the Carousel from time to time. How often about, just roughly?

Mr. SENATOR. Two or three times a week. It all depends.

Mr. HUBERT. And you would help there?

Mr. SENATOR. Not always. Sometimes I would, sometimes I wouldn't.

Mr. HUBERT. If you helped did he pay you?

Mr. SENATOR. No; I did it because I still remember what he has done for me when I was down and out, and it wasn't that many hours or it wasn't difficult labor or anything of that nature. But I still remembered the things he did for me, when I was down and out.

Mr. HUBERT. All right, then I think we have covered the time when Corbat left and you lost your job and found that you were down and out and again you moved into his apartment then, giving up the apartment next door.

Mr. SENATOR. Yes.

Mr. HUBERT. Did he invite you in then or did you ask him?

Mr. SENATOR. No; he invited me. He knew I was pressed.

Mr. HUBERT. And you had to give up the automobile at that time?

Mr. SENATOR. No; I had the automobile until January.

Mr. HUBERT. The fact is I think you told us that you were working with these people until after Oswald was shot?

Mr. SENATOR. Yes.

Mr. HUBERT. But at the stress of the——

Mr. SENATOR. But the stresses.

Mr. HUBERT. The stress of having to carry the whole apartment when Corbat left was one of the factors that put pressure upon you, is that right?

Mr. SENATOR. Yes; it is the pressure of the extra amount of money.

Mr. HUBERT. You did not own an automobile of your own I take it?

Mr. SENATOR. No.

Mr. HUBERT. Have you ever?

Mr. SENATOR. Oh, when I was traveling the road; yes.

Mr. HUBERT. When was the last time you owned an automobile?

Mr. SENATOR. I don't know, it must have been about 4 or 5 years ago.

Mr. HUBERT. What kind was it?

Mr. SENATOR. I think the last one I had was, I think it was a Buick.

Mr. HUBERT. Did you sell it?

Mr. SENATOR. Yes; I don't remember if I sold it or traded it in.

Mr. HUBERT. You traded it in for what?

Mr. SENATOR. I had a Buick once. I mean I had a few Buicks. When I say a few I mean there might have been about 3, and I had a Ford once I believe.

Mr. HUBERT. In any case you haven't owned a car of your own for about 4 or 5 years?

Mr. SENATOR. Yes.

Mr. HUBERT. And the last car you owned you must have sold it I suppose. You couldn't have traded it in because then you would have gotten a new car.

Mr. SENATOR. I am trying to think what was I doing with the last car. I think the last car, I think I lost it on payments. I couldn't keep up the payments if I am not mistaken, if that is the one. I think that is it. I am not sure.

Mr. GRIFFIN. Let me interrupt a second to clarify one thing in my mind. You mentioned this Volkswagen. The last time you had it was in January?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Now what year?

Mr. SENATOR. 1964.

Mr. GRIFFIN. Just a couple of months ago?

Mr. SENATOR. Yes.

Mr. HUBERT. Coming to the first part of November 1963, was that when you moved in with Jack?

Mr. SENATOR. Yes; I believe it was somewhere around the 1st or 2d of November, something like that.

Mr. HUBERT. Then I suppose you went back to the routine of the general mode of living and working with him that had existed before?

Mr. SENATOR. No; then I was helping him, I mean I was staying with him, so I was helping him on weekends. Once in a while I would pop in maybe on a weekday.

Mr. HUBERT. In other words, your operation——

Mr. SENATOR. Just at the door.

Mr. HUBERT. Your operation insofar as the Carousel is concerned was not like it was before?

Mr. SENATOR. No.

Mr. HUBERT. Not on a daily basis?

Mr. SENATOR. No.

Mr. HUBERT. Just at night, not every night?

Mr. SENATOR. Normally I would come in on Friday and Saturday.

Mr. HUBERT. But you were still at your job?

Mr. SENATOR. Yes; after all I was staying there and felt he was entitled to something, you know, so I'd come in there and help him.

Mr. HUBERT. Did you assist in the cooking or anything of that sort?

Mr. SENATOR. There was no food. The only food there was, they make pizzas once in a while.

Mr. HUBERT. I don't mean at the Carousel, I mean at the house, the apartment.

Mr. SENATOR. Oh, yes; but I couldn't cook right for him. He is a funny guy in cooking.

Mr. HUBERT. Did you do any cooking there at all?

Mr. SENATOR. Yes. If I don't broil right for him, if I make him eggs, it has got to be so much of this in the butter because he was watching his diet,

and I got so tired of it I says, "Make your own eggs." You just couldn't make anything right for him. And all meats had to be broiled. He don't believe in fried stuff. And he was just hard to cook for.

Mr. HUBERT. The routine then I suppose is that you were working and you would come back to the apartment after normal working hours, which would be around when, 5 or 6 in the evening?

Mr. SENATOR. To cook for him? That would be rare. I got away from that.

Mr. HUBERT. I am getting to the normal routine as to your relationship. You had a regular working day I take it?

Mr. SENATOR. Yes.

Mr. HUBERT. Which started off at 8 or so in the morning?

Mr. SENATOR. Yes.

Mr. HUBERT. And ended up at 5 or 6 in the evening? He, on the other hand, would be sleeping in the morning?

Mr. SENATOR. Yes.

Mr. HUBERT. And I understand would leave the apartment after you got back at night or before, as a normal thing?

Mr. SENATOR. It wasn't always necessarily that I came home between 5 and 6 because many times I stayed out.

Mr. HUBERT. Was there any kind of a pattern at all to your living in point of time?

Mr. SENATOR. Oh, no; there is no particular pattern.

Mr. HUBERT. What about weekends? Was that different?

Mr. SENATOR. No; not particularly. First of all I always get up before he does, whether I am working or otherwise.

Mr. HUBERT. You would help him at the club?

Mr. SENATOR. Yes.

Mr. HUBERT. On weekends and if you did I suppose you came back about the same time he did?

Mr. SENATOR. At night? Yes. But as far as I getting up in the morning, I always got up much earlier than he did. It was just natural. It was natural for me to get up, and it doesn't make any difference what particular time I went to bed at 2, 3, 4 or 5, I am of that nature that I get up.

Mr. GRIFFIN. What is your regular rising time?

Mr. SENATOR. I would say 7, 7:30, sometimes 6 in the morning. A lot of times it would probably depend what time I go to bed. If I go to bed at 10 o'clock at night I probably wake up at 5 or 5:30 in the morning.

Mr. HUBERT. What about on weekends?

Mr. SENATOR. On weekends? Say like a Sunday. I would probably wake up at 7:30 or 8 o'clock in the morning on Sunday.

Mr. GRIFFIN. Has it been your habit when you get up in the morning you make yourself a breakfast or what do you do?

Mr. SENATOR. No. I will tell you, when I wake up in the morning I want coffee, but I don't have that appetite in the morning when I get up. It is very rare that I will eat the moment I wake up in the morning. But I get hungry maybe an hour or two later or something like that.

Mr. GRIFFIN. So on a working day would you go to work, grab a cup of coffee and go to work?

Mr. SENATOR. No, no; on working days I go downtown and have my coffee. I don't even make it there. Never. I don't sit there and make coffee in the morning.

Mr. GRIFFIN. Any particular place that you eat at regularly?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Where?

Mr. SENATOR. I had a hangout. The Eat Well. There is three places that I normally went to. Eat Well, I always went there every morning, even on Sunday, and then the Chefette. Down where the Chefette is in the Hotel Adolphus and then the Walgren also in the Hotel Adolphus. Those are the three places I normally was always in.

Mr. GRIFFIN. Did you have any regular place where you ate lunch?

Mr. SENATOR. No; there is no particular—I mean I don't pick my spot where I eat lunch.

Mr. GRIFFIN. What would you do about dinners?

Mr. SENATOR. Dinners I normally would like to go home, for meal, but I ate more when I was living with Stan or by myself than I did with Jack, because I just can't cook of his nature.

Mr. GRIFFIN. Was Jack in the habit of coming home for dinner?

Mr. SENATOR. A lot of times, yes; and then I would probably say maybe; on rare occasions, no. It wasn't necessarily that he had to be home for dinner because there were many times he also ate out. But he was hard on food, even at a restaurant he was not easy. It had to be so-so.

Mr. GRIFFIN. Who did the shopping?

Mr. SENATOR. Jack did the shopping. I couldn't do no shopping. I can't shop for him.

Mr. GRIFFIN. So Jack in effect would buy the meat for the meals and he would plan the meals? Is that the idea? Then you would cook them?

Mr. SENATOR. He would buy what would suit himself, and if I didn't like it that is too bad.

Mr. GRIFFIN. Did he have a regular routine of going to a grocery store once a week and going shopping for a week or how did it work?

Mr. SENATOR. I would probably say something like that. Of course, it all depends, you know, how much he is buying, how much he is going to buy. But he always had a lot of meat. He always kept his refrigerator pretty well filled. He'd buy grapefruits, half a grapefruit and grapefruit juice like crazy. Holy God, you know he'd wake up in the morning, the number one thing was that grapefruit. If he bought grapefruit which he'd normally buy 6, 8, 10 of them at a clip, he would cut up about 2 of them, 2 at once mind you, and put them through the wringer and wring them down, you know, the machine he had home and drink solid grapefruit juice, but from 2 of them, 2 whole grapefruits, unless he had the frozen grapefruits which he diluted with water. This is number one before he did anything, the grapefruit bit.

Mr. GRIFFIN. Did this pattern prevail both when you were living with him the first time and when you were living with him the second time?

Mr. SENATOR. Oh, sure.

Mr. GRIFFIN. Or was there some difference in your relationship?

Mr. SENATOR. No; there was no difference. His way of living was set before I ever heard of Jack Ruby, his way of eating.

Mr. GRIFFIN. He would do all the shopping? Who would decide on any particular evening what the meal was going to be?

Mr. SENATOR. I had no say. I had no say.

Mr. GRIFFIN. Would he call you in advance to let you know when he was coming back for dinner?

Mr. SENATOR. No; no call; no.

Mr. GRIFFIN. What would you do? Did you have a time when you liked to eat, if Jack wasn't there that you would?

Mr. SENATOR. If he wasn't there then I'd help myself or even if I made a couple of eggs or whatever it might be. Sure, I mean there was no particular time that I had to sit down and eat with him, because if I wasn't there he ain't waiting for me.

Mr. GRIFFIN. If you felt like eating dinner, would you go into the icebox and pull out a steak and make some potatoes and do what you wanted to do?

Mr. SENATOR. Yes; sure, sure. If he wasn't there, look, I am not going to sit there and wait for him, you know. And he certainly isn't sitting there waiting for me, because I probably don't know what time he is going to be home and he probably doesn't know what time I am going to be home or sometimes we may be there together. But there was no set pattern. There was no particular time.

Mr. HUBERT. I gather from all this, from the fact that your acquaintanceship with Ruby ripened into friendship, and ripened further in the fact that you were sharing an apartment together, that you got to know the man pretty well as a man, and knew his habits?

Mr. SENATOR. I knew something about them.

Mr. GRIFFIN. His likes and dislikes. You expressed an opinion about that already and that is what I would like to get to now with reference to particular areas. You have mentioned the question of dogs, and I would like you to tell us about what you know of him with reference to dogs and his attitude towards them and so forth.

Mr. SENATOR. He had enough of them.

Mr. HUBERT. I gather from that you mean he had plenty of them?

Mr. SENATOR. He had a few dogs.

Mr. HUBERT. All the time that you have known him was that so or when did that begin?

Mr. SENATOR. Well, I don't know when it began because he had dogs the first time that I got close to him or acquainted with him.

Mr. HUBERT. That is about 2½ years ago?

Mr. SENATOR. Yes.

Mr. HUBERT. But you don't know anything about the dogs?

Mr. SENATOR. Previous to that I didn't know anything about dogs before.

Mr. HUBERT. I guess the number of dogs varied, didn't it?

Mr. SENATOR. It happened to be why he had so many dogs, his dog Sheba, who was attacked by one of Sheba's sons at a later date, gave birth to six at one time. What are you going to do? He had dogs.

Mr. HUBERT. So he kept them.

Mr. SENATOR. Yes. He didn't want to give them away.

Mr. HUBERT. Where did he keep them?

Mr. SENATOR. They were born in the apartment. He had them in the kitchen until they were old enough, you know, whatever age that they might be, a month or two, and then he brought them down to the club and he puts them way in the back room of the club. He used to bring everybody in "See

my dogs.” Of course, his pet was Sheba, which everybody in this country knows.

Mr. HUBERT. She was the mother?

Mr. SENATOR. Yes; that was the mother of the whole crew. So he wound up with——

Mr. HUBERT. Did Sheba stay at the club or at his house?

Mr. SENATOR. Both. Jack goes to the club, Sheba goes with him.

Mr. HUBERT. Sheba was always with him?

Mr. SENATOR. Yes; this was the only one. I would say on rare occasions he would probably bring the other dog home or two, just overnight.

Mr. HUBERT. He gave some of the dogs away didn't he?

Mr. SENATOR. Yes; Jack had close to 10 dogs. He had about 9 or 10 dogs. Don't forget Sheba had six at one clip.

Mr. HUBERT. What was his attitude towards these animals? Was it a normal attitude that people have to dogs?

Mr. SENATOR. I know people have mentioned it to me before in the past and the quotations that I have heard though I have never heard them from him though I have heard them otherwise like “My family” or “My wife.” I have read these. I am certain everybody else has too or heard it. But he liked dogs. To me this has no meaning. To me it has no meaning when he says this.

Mr. HUBERT. Did you hear these comments made by other people concerning Ruby and his dogs prior to the shooting or afterwards?

Mr. SENATOR. What?

Mr. HUBERT. Prior to the shooting or afterwards?

Mr. SENATOR. Prior I don't recollect. I don't say—it had to be prior to. No; it had to be prior.

Mr. HUBERT. You have read perhaps a lot about the dogs——

Mr. SENATOR. Yes.

Mr. HUBERT. Since the shooting?

Mr. SENATOR. I heard somebody mention once that he went up to see his Rabbi Silverman who I am certain you probably heard of I guess, and I don't know if he had two or three dogs with him or what it was. I'm not sure of the words he used but I think he said to the Rabbi "I want you to meet my family" or something like that. There was a quotation he used. Now this may have been it, I'm not sure.

Mr. HUBERT. Were there other people that you remember who commented to you about Ruby and his dogs? You have mentioned one. That is that he was——

Mr. SENATOR. I heard two things already. One was "my family" and one was "my wife," which absolutely has——

Mr. HUBERT. Both of those you heard prior to the time Jack went to jail?

Mr. SENATOR. Yes; these were prior to it, but when I heard it it was after, see.

Mr. HUBERT. I see. You mean that the remarks were made prior?

Mr. SENATOR. The remarks were made after, that is right.

Mr. HUBERT. Wait a while, let me get that straight, the remarks were made after?

Mr. SENATOR. After.

Mr. HUBERT. But the occurrences were supposed to have, the facts were supposed to have occurred prior?

Mr. SENATOR. Prior. Right. Prior I never heard.

Mr. HUBERT. You do not remember having heard anything prior to the shooting?

Mr. SENATOR. No.

Mr. HUBERT. What was your own opinion as to his attitude toward these animals?

Mr. SENATOR. Like any other human being who had a dog for a number of years.

Mr. HUBERT. There was nothing abnormal about it?

Mr. SENATOR. Nothing. To me, there was nothing absolutely abnormal about it. Just like anybody else having a dog, and I am certain anybody who has a dog he has had about 5, 6 or 7 or 8 years who is very much attached to him. I would probably say the overall picture of the majority owners are attached to a particular dog of whatever the dog may be.

Mr. HUBERT. There is some rumor if you want to call it that that at some time or another Jack had a strange sort of relationship with one of the dogs. Have you any comment to make on that?

Mr. SENATOR. No; I don't listen to that stuff because it is not true.

Mr. HUBERT. Of course, you never saw anything of that sort yourself?

Mr. SENATOR. Never, never, and I tell you this from my heart.

Mr. HUBERT. From your knowledge of Ruby and his relationship with the dog, do you think that that is likely or unlikely?

Mr. SENATOR. What?

Mr. HUBERT. From your knowledge of Ruby and of his relationship with those animals do you think that such a story is likely or unlikely?

Mr. SENATOR. That he would have?

Mr. HUBERT. Yes.

Mr. SENATOR. No; that is so far-fetched I don't believe in that stuff.

Mr. GRIFFIN. Can you be a little bit more explicit about why you feel that way?

Mr. SENATOR. Well, I feel that I have been around him enough to see him pet the dog, and I pet the dog many times. I picked up the dog many times like anybody else has picked up a dog and just scratched him on the head but I have never seen an incident like this, at no time.

Mr. HUBERT. What about his interest in physical culture and keeping himself in good shape? There have been some reports about that but you are in a position perhaps to give us further details about it.

Mr. SENATOR. Well, he loves to swim, and when he gets into a pool he can really go from one end to the other and go, because I heard it mentioned one time he said "George you know I used to be able to swim 2 or 3 miles"

which I would probably say is a pretty good distance. I know I can't do anything like that, or nowheres near it.

Mr. HUBERT. Did he do any ice skating?

Mr. SENATOR. Yes, we were ice skating once.

Mr. HUBERT. Was he good at it?

Mr. SENATOR. He was good because—I'll tell you why he was good, because he had never been on ice skates before.

Mr. HUBERT. You just know of one occasion he had been on ice skates?

Mr. SENATOR. Sir?

Mr. HUBERT. You just know of one occasion that he was on ice skates?

Mr. SENATOR. I was with him and a group of people one time. They asked me to go, too, and did I suffer.

Mr. HUBERT. That was the first time he had been, too, to your knowledge?

Mr. SENATOR. I don't know if that was the first time we had been. I mean I was only there one time. That was over at the fair ground in Dallas, but he had been I think twice. And the people who he was with, you know, we had some of the show folks there of the help, the people who worked there, thought he did very well for a man who had never been on ice skates, including his age.

Mr. HUBERT. Did he take any regular exercise so far as you knew?

Mr. SENATOR. Yes; his dumbbells. He didn't do them every day but he did them quite often. Not the dumbbells; what do you call the things, weightlifters.

Mr. HUBERT. Weightlifting equipment?

Mr. SENATOR. Yes.

Mr. HUBERT. He had them in the house?

Mr. SENATOR. Yes, he exercised and very frequently he used to go to the YMCA which he went for quite a long while. He has gone to the Y before I ever knew him or even became acquainted with him.

Mr. HUBERT. What was his general physical condition?

Mr. SENATOR. Excellent.

Mr. HUBERT. Was he a powerful man?

Mr. SENATOR. A powerful man?

Mr. HUBERT. Yes.

Mr. SENATOR. I'll tell you, I won't want to get rapped by him.

Mr. HUBERT. Have you ever heard of any of his episodes in which he tangled with people?

Mr. SENATOR. I have never had the pleasure—I can't say pleasure. I have never really witnessed a battle with him. Now I have seen him poke a couple of people.

Mr. HUBERT. You mean between him and other people.

Mr. SENATOR. Yes; I have seen him poke a couple people.

Mr. HUBERT. Tell us about those, would you?

Mr. SENATOR. Take for instance in the club. All right, here is a man who is of a temperament you know, he is a temperament man. He has a temper. And I would probably say that he flies off, if you want to compare us, I am an angel when it comes to flying off compared to him, because he can go this fast, you know. I mean he can fly off pretty well. If somebody was hollering or out-of-line or pinch a girl which happens now and then while the girls are dancing he doesn't like this.

Mr. HUBERT. You said you remember two specific instances. Could you just tell us about those.

Mr. SENATOR. I'll tell you one.

Mr. HUBERT. About where they happened and the time.

Mr. SENATOR. I saw one happen, this was outside of the club, this one. Do you want it in the club or out of the club?

Mr. HUBERT. Any one.

Mr. SENATOR. This was outside of the club.

Mr. HUBERT. When was it?

Mr. SENATOR. Last year.

Mr. HUBERT. About what time last year?

Mr. SENATOR. I would probably say it was sometime last summer.

Mr. HUBERT. The summer of 1963?

Mr. SENATOR. Yes.

Mr. HUBERT. Tell us what happened.

Mr. SENATOR. I was sitting in the Burgundy Room. You know where the Burgundy Room is?

Mr. HUBERT. The Adolphus Hotel.

Mr. SENATOR. Yes; I was in there having a drink and I was sitting with this fellow here.

Mr. HUBERT. Who, what fellow?

Mr. SENATOR. His name?

Mr. HUBERT. Yes.

Mr. SENATOR. Don Taber or Tabin.

Mr. HUBERT. T-a-b-e-r or T-a-b-i-n?

Mr. SENATOR. Yes.

Mr. HUBERT. You were with that man?

Mr. SENATOR. I was with him for a while but he shifted. He saw some girl and went over to talk to her.

Mr. HUBERT. So you were alone at the table?

Mr. SENATOR. I was sitting there. I was sitting at another table and I assumed he come in looking for me to see what I was doing.

Mr. HUBERT. Who came in?

Mr. SENATOR. Jack Ruby. Jack don't like to have me drink. He doesn't like to see me getting drunk. He thinks I'm always drunk all the while which I am not. And as he walked in through the door, this Don Taber was

getting pretty well loaded. He had a few drinks in him, you know, and he has always had a grudge against Jack for some reason or other, I don't know what it was, and Jack was always telling him "Don, I want you to stay away from me" and I have heard him warn him once before by the club, downstairs from the club. Well, he used a pretty obscene word with him. I don't know if you want to take this down or not?

Mr. HUBERT. On the occasion in the Burgundy Room?

Mr. SENATOR. Yes.

Mr. HUBERT. Yes; you tell us what happened exactly.

Mr. SENATOR. I think he told him to go "F" yourself.

Mr. HUBERT. Go what?

Mr. SENATOR. Do you want me to use the word?

Mr. HUBERT. Yes.

Mr. SENATOR. He told him to go —— himself.

Mr. HUBERT. Who told who?

Mr. SENATOR. Don to Jack.

Mr. HUBERT. Told that to Jack?

Mr. SENATOR. Yes; he is a type, he is a great guy when he is sober but when he isn't he is not easy to get along with you know.

Mr. HUBERT. You mean when Jack came in?

Mr. SENATOR. Yes.

Mr. HUBERT. Taber or Tabin told him that?

Mr. SENATOR. Yes.

Mr. HUBERT. And there had been no previous conversation between them?

Mr. SENATOR. No; because he has always picked on Jack for some reason or other.

Mr. HUBERT. Let me get the picture. Jack walks into the room and this man Taber says "Go —— yourself?"

Mr. SENATOR. Yes.

Mr. HUBERT. To Jack?

Mr. SENATOR. Yes.

Mr. HUBERT. Then what happened?

Mr. SENATOR. I forgot what Jack says. Jack says something to him. Then I think there was an answer back or something, I just don't remember but all I know is Jack let him have it, hauled off.

Mr. HUBERT. You mean he hit him?

Mr. SENATOR. He hit him.

Mr. HUBERT. With his fist or what?

Mr. SENATOR. Yes.

Mr. HUBERT. Did he have any knucks?

Mr. SENATOR. No.

Mr. HUBERT. Or pistol?

Mr. SENATOR. It was his fist, yes.

Mr. HUBERT. What happened?

Mr. SENATOR. So they got into a little battle.

Mr. HUBERT. Did Jack knock him down with that first blow?

Mr. SENATOR. No.

Mr. HUBERT. So they actually squared off?

Mr. SENATOR. They squared off. It didn't last long though.

Mr. HUBERT. What happened?

Mr. SENATOR. They stopped it but the other fellow got the worst of it.

Mr. HUBERT. Was he knocked off his feet?

Mr. SENATOR. No.

Mr. HUBERT. Was he a big man, this Taber?

Mr. SENATOR. He was a little taller than I. I believe he was a little taller than I. But I would probably say he is a chap about maybe around I would say between 165 and 170 or 175. I am not sure.

Mr. HUBERT. And how tall?

Mr. SENATOR. I would say he is probably, and I am only guessing, I would say maybe 5 feet 9 inches or 5 feet 10 inches.

Mr. HUBERT. How big a man is Jack by the way in point of height and weight?

Mr. SENATOR. Jack I think, is about 5 feet 9 inches.

Mr. HUBERT. And weighed what?

Mr. SENATOR. Jack weighed around 185, somewhere around that, 185.

Mr. HUBERT. Would you consider most of that was bone or muscle or did he have much fat?

Mr. SENATOR. Well, he is 52. I don't care how you drill yourself, I am certain there is a certain amount of flab that hangs around the side which I didn't dare comment on. If I told him that he didn't like it. But still there is a certain amount of flab, but he had a powerful back. I mean to look at the man's back at his age, he had a tremendous back.

Mr. HUBERT. Was he fast with his fists?

Mr. SENATOR. I would say for his age he was.

Mr. HUBERT. When you saw this battle with Taber?

Mr. SENATOR. Yes, he was pretty fast.

Mr. HUBERT. And he definitely got the best of him?

Mr. SENATOR. Yes.

Mr. HUBERT. What about the other occasion?

Mr. SENATOR. Well, there was one occasion where he hit somebody I didn't catch it with my eye but I happened to be there. I was there and he hit a guy bigger than him. I don't remember what it was.

Mr. HUBERT. Can you tell us where that was, in the club?

Mr. SENATOR. Yes, it was in the club. It was in the hallway near the stairs. But it happened to be I didn't see it because I happened to be around the side and all I caught is the tail end.

Mr. HUBERT. Do you know when?

Mr. SENATOR. That was in 1962.

Mr. HUBERT. Did he knock the man off his feet?

Mr. SENATOR. I don't know. But I know he got the first lick in.

Mr. HUBERT. How do you know that? He told you?

Mr. SENATOR. No, I heard he always gets the first lick in. He ain't going to get hit first if he can help it, if it comes to an argument.

Mr. HUBERT. Is this the opinion that is generally held?

Mr. SENATOR. I don't know if that is the opinion that is generally held or not.

Mr. HUBERT. What I am trying to get at is how you got it. Is that your opinion then that he always gets the first lick in?

Mr. SENATOR. I would say so because he is pretty fast for his age.

Mr. GRIFFIN. What was the provocation for his hitting the fellow at the club?

Mr. SENATOR. I think this chap here was getting a little loud. I don't remember what the incident was. I think he was making a scene there of some nature.

Mr. HUBERT. Those are the only two occasions that you yourself knew about from having observed them yourself?

Mr. SENATOR. Oh, I have seen him push somebody out without hitting him.

Mr. HUBERT. Have you seen that often?

Mr. SENATOR. No, I don't say often. I have seen it happen. And when it has happened, he happened to hold down certain people.

Mr. HUBERT. Did you ever hear him threaten anybody?

Mr. SENATOR. No.

Mr. HUBERT. Like throwing them down the stairs?

Mr. SENATOR. I have heard somebody talk about that. Who did I hear? Oh yes, I'll tell you where that was quoted. When I was on the witness stand and Mr. Alexander asked me that.

The question he asked me, if I can quote him, was that he picked on nothing but small men who were drunk and women who were drunk and beat them up.

Mr. HUBERT. What was your answer?

Mr. SENATOR. If I recall right, he sort of hollered at me a bit if I remember right.

Mr. HUBERT. Who did?

Mr. SENATOR. Mr. Alexander.

Mr. HUBERT. But in any case what is the truth?

Mr. SENATOR. What did I answer him?

Mr. HUBERT. What you answered I suppose is the truth. What is the truth as to that question.

Mr. SENATOR. I'll tell you how I answered him.

Mr. HUBERT. Yes, all right; tell us that first.

Mr. SENATOR. I answered him, I said to Jack Ruby, height has nothing to do with it, or something to that effect if I remember right. It doesn't make any difference if the man is bigger than Jack Ruby because that isn't going to stop him. Jack Ruby isn't afraid of height or size, something like that I answered him.

Mr. HUBERT. That is your opinion now, too?

Mr. SENATOR. Yes.

Mr. HUBERT. And you base that opinion on what?

Mr. SENATOR. In other words, I base this opinion to say, when I was asked this question on the witness stand, that all he would do would beat up people who were smaller than he and who were drunk.

Mr. HUBERT. And you think that is not so?

Mr. SENATOR. No; I say that he doesn't go according to size. I mean I know that he doesn't fear anybody who is taller than he is.

Mr. HUBERT. Now how do you know that? How do you form that opinion right now?

Mr. SENATOR. How do I form that opinion?

Mr. HUBERT. Yes.

Mr. SENATOR. Because I think Jack is of that temperament where size don't mean anything to him.

Mr. HUBERT. You just base that upon your general knowledge of the man?

Mr. SENATOR. Yes; I don't think he is of the nature who would back off.

Mr. HUBERT. Did you ever see him act in what might be considered brutal in the sense that he went further than he had to go with reference to anything?

Mr. SENATOR. No; I have never witnessed any.

Mr. HUBERT. Do you know or have you ever heard of an occasion where he had a fight with a man who bit part of his finger off?

Mr. SENATOR. I haven't seen it. I mean I see the finger. I have heard that, yes. How it happened I don't know. There was some sort of a fight and the guy bit it. Now what happened I don't know but I've heard that.

Mr. HUBERT. Did Jack ever talk to you about it?

Mr. SENATOR. No; as a matter of fact I have noticed his finger, you know, I have seen his finger but I never asked him why, because it happens to be we both got the same type finger. Mine is a paper cut. His cut much more off than mine.

Mr. HUBERT. He never told you how he lost that part of the finger?

Mr. SENATOR. He told me that he lost it, somebody bit his finger in a fight. Now I don't know if it was the Silver Spur or wherever it happened. I just don't remember where or how it happened.

Mr. HUBERT. Did you ever hear about him beating up a taxicab man who came in to fetch a fare, or to collect a fare?

Mr. SENATOR. I have never seen it.

Mr. HUBERT. You have heard about it?

Mr. SENATOR. I have heard about it. I never heard no names or anything of that. I heard about it but I have never seen it.

Mr. HUBERT. Now you have expressed to us your opinion that Jack is a man who was not fearful of anyone irrespective of size. Would you give us your opinion as to whether or not he was the type of man, from all you know of him, who would be brutal in a fight? By brutal I mean when he got his man down he would kick him and be sure he was down, kick him in the groin, in the head or something of that sort?

Mr. SENATOR. I don't know. I couldn't answer that. I have never witnessed anything of this nature.

Mr. HUBERT. Have you an opinion?

Mr. SENATOR. You would ask me guess then and if I guessed I wouldn't know what I was guessing at.

Mr. HUBERT. I would ask you to guess on the same basis that you expressed an opinion that he was afraid of nobody.

Mr. SENATOR. He certainly wasn't afraid of size. In other words, if the man happened to be 6 inches taller than him he wouldn't back off.

Mr. HUBERT. And that was formed I think you told us from your general knowledge.

Mr. SENATOR. That is right. He wouldn't back off.

Mr. HUBERT. What is your opinion from your general knowledge?

Mr. SENATOR. Now when you ask me about kicking and all that, I mean I don't know.

Mr. HUBERT. You know the man and that is all I'm asking. Is he the type of man who would do that in your opinion?

Mr. SENATOR. I don't think so. First of all I don't think so. Personally, I don't think so, but after all I can't answer for what another individual would think in his mind. I don't know, see.

Mr. HUBERT. We understand this is merely your opinion, you see.

Mr. SENATOR. Yes; I don't personally think so. I don't think he would be that brutal.

Mr. GRIFFIN. You saw him in this fight with Taber or Tabin?

Mr. SENATOR. Yes, but there was no kicking.

Mr. GRIFFIN. I want to ask you about this. I take it this was not a prolonged thing. Jack hit him once and that was it?

Mr. SENATOR. No, no; there were probably six or eight blows swapped. But I would say Jack got most of the blows in.

Mr. GRIFFIN. And this guy swung. What caused Jack to stop? Did somebody pull him off?

Mr. SENATOR. Yes; they stopped it. They stopped it and pulled off.

Mr. GRIFFIN. This episode at the Carousel that you saw, you say you didn't actually see any blows thrown at the Carousel. You came in at the tail end of it.

Mr. SENATOR. No; I would say, see, there is an archway; in other words, it is going up a flight of steps.

Mr. GRIFFIN. Yes.

Mr. SENATOR. And at the flight of steps the doors open and then there is a walk in, you know, an archway. It is almost like in a closed archway which is maybe about 20 or 25 steps. Well, around the L shape of it I didn't see.

Mr. GRIFFIN. Could you tell from where you were how many blows were thrown?

Mr. SENATOR. No.

Mr. GRIFFIN. How long did this last?

Mr. SENATOR. It didn't last long because there must have been one or two blows and that was it.

Mr. GRIFFIN. Did anybody come in and break that up?

Mr. SENATOR. I don't know what happened. I just don't remember what happened there. I think he knocked him down. I'm not sure. I think he knocked him down with that blow.

Mr. GRIFFIN. Did Jack accomplish his purpose?

Mr. SENATOR. There was a few people gathered around and the next thing I think they took him down or something like that. I don't know. I just don't recall what happened on that particular incident but I do know that something did happen at the time where this fellow I think he was drunk. I really don't know if he was. I think he was.

Mr. GRIFFIN. Have you ever talked with Jack about what his attitude is about using his fists?

Mr. SENATOR. No; this, which I don't know too much about his youth, it probably comes from the bringing up of his youth, the poverty that the family went through. His father was a habitual drunkard, of which I have heard, and the separations of the family and they lived in a cold water flat and the only way I'm familiar of something of this nature is what I have seen in motion pictures of past years of this.

Mr. GRIFFIN. I want you to tell me now if you think I am wrong. I am going to suggest this to you and I want to know if this is a fair evaluation.

Would you say from what you know of Jack that the background that he came from was such that he had the value that one of the ways you solved problems is in certain kinds of situations you haul off and smack the guy, and that this is a tool that people use? Now there are some people who in their daily life wouldn't hit anybody because they don't think that is a proper thing. Would you say that Jack looked at this as a tool that was perfectly acceptable to use?

Mr. SENATOR. To tell you the truth if I answered it I don't even know if I would be answering it correctly. I would probably say maybe in certain aspects yes and maybe others no. I really couldn't answer correctly. I couldn't give you a truthful answer on it.

Mr. GRIFFIN. Why is that that you couldn't give an answer?

Mr. SENATOR. Because I couldn't, because I can't think for what the man thinks.

Mr. GRIFFIN. You don't know that much about him?

Mr. SENATOR. No.

Mr. GRIFFIN. To be able to say that?

Mr. SENATOR. I don't know. I would probably say maybe in certain instances it may happen. Maybe in others it wouldn't.

Mr. GRIFFIN. Let me ask it this way. Knowing Jack Ruby, would you say that there are situations where Jack would haul off and hit a guy, not because he was emotionally concerned but because he felt this was the way to solve the problem at that particular point.

Mr. SENATOR. No; I don't think so. I don't think so. I would probably say that he would have to be beefed up pretty good about something before he hit somebody. I would probably say that.

Mr. GRIFFIN. Was that the case with the man at the Carousel?

Mr. SENATOR. Apparently the man, which I never saw, apparently he must have done something wrong. I don't know what it was.

Mr. GRIFFIN. But this wasn't something where he built up a head of steam on this guy.

Mr. SENATOR. Maybe this is something that just went off instantaneously. Maybe the guy said something to him which I didn't know. Maybe he called him a curse word, you know. I don't know what it could have been.

Mr. HUBERT. You have indicated along here in your testimony, particularly in answer to a question of a little while ago, that he had a fast temper. I think you said he was a man of temper. I think that was your phrase?

Mr. SENATOR. Agree.

Mr. HUBERT. And you snapped your fingers and said he would just go like that.

Mr. SENATOR. He could have a pretty fast temper.

Mr. HUBERT. Now that must be based, that is to say your impression must be based upon episodes when you witnessed him losing——

Mr. SENATOR. I witnessed him on me, but not hitting me.

Mr. HUBERT. Tell us about——

Mr. SENATOR. Hollered at me, you know.

Mr. HUBERT. Tell us about some of the episodes that you saw concerning yourself or others which indicated to you that he had a fast temper?

Mr. SENATOR. Well, if there should have been discussion about something, whatever it might be, with me he would make wrong and holler at me and flare up at me.

Mr. HUBERT. What do you mean by “make wrong”?

Mr. SENATOR. I could never be right with the man, see what I mean? I couldn't be right. In other words, if I said black was black he would say no it is white and that is it.

Mr. HUBERT. And he would do that in a gruff fashion do you think?

Mr. SENATOR. With me? Oh my, you have no idea how many times he has hollered at me but he'd never lay a hand on me. And the funny thing is that is how fast he got over it, and he'd forget about it.

Mr. HUBERT. You snapped your fingers again? You mean that he would——

Mr. SENATOR. In other words, when I snapped my fingers I meant he would get over it that fast from me.

Mr. HUBERT. So, from your own experience there have been innumerable occasions where he would react toward you in such a way that you would describe it as anger, manifested——

Mr. SENATOR. Yes.

Mr. HUBERT. Wait a while.

Mr. SENATOR. You would think he was going to hit me but I knew he wouldn't.

Mr. HUBERT. This anger being manifested by a loud tone and certain gestures which would indicate he was going to hit you, but didn't, and that you have seen many times, and you also tell us that——

Mr. SENATOR. I have seen it on myself at certain times. Many times with others, but whatever the thing might be, I mean I don't know. Like I told you before, if somebody come up there and pinched a stripper or something like that, which has happened, man, this would throw him off. He didn't like that.

Mr. HUBERT. But you say he would calm down right away?

Mr. SENATOR. He would calm down right away. And he would warn them "Again, out" and he would put them out. There wouldn't be any hesitation. He protected his girls up there, this I'll tell you, at all times.

Mr. HUBERT. I want to explore another aspect of this that you have mentioned, and that is that as quickly as he flared up he seemed to flare down, if you want me to put it that way, calm down. Can you give us examples of that?

Mr. SENATOR. I can give you examples of myself on that.

Mr. HUBERT. You mean that following one of these flareups that you have described?

Mr. SENATOR. Yes, he would holler at me.

Mr. HUBERT. Then it would be all over.

Mr. SENATOR. He would holler at me and raise the roof at me and then he would tone down.

Mr. HUBERT. How long would it take?

Mr. SENATOR. A matter of a minute or two.

Mr. HUBERT. In other words, he wouldn't brood over it. Having gotten mad at you he wouldn't be a brooder. He would change to another subject and be quite his normal self again?

Mr. SENATOR. Yes. See I couldn't make this man wrong. I can't make him wrong, you know. I'm the wrong one. I refer to myself, mind you. Whatever it might be I can't be right.

Mr. HUBERT. That was the way he treated you?

Mr. SENATOR. Yes.

Mr. GRIFFIN. To stay in this same general area here, did you know that Jack owned a pair of knuckles?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Do you remember when he bought them?

Mr. SENATOR. No; I would probably say that he probably had them before I was ever close to him. I am only guessing. I don't know.

Mr. GRIFFIN. How did you learn that he had them?

Mr. SENATOR. I saw them in a cloth sack once. He carried them in a cloth sack.

Mr. GRIFFIN. Where did he keep that sack?

Mr. SENATOR. No particular place. The one time I saw it, it was home.

Mr. GRIFFIN. Did he keep anything else in the sack?

Mr. SENATOR. Of course, he had a gun which everybody knows. You see, Jack's bank account was his pockets, not the bank but his pockets. That is where his bank was. And he always carried various sums of money, which could be \$1,500, \$2,000, \$3,000, \$4,000, whatever it might be, in all different pockets.

Mr. HUBERT. Now before we explore that area further, I want to get a few generalities concerning Jack. What were his drinking habits? You shake your head. What does that mean?

Mr. SENATOR. He is not a drinker.

Mr. HUBERT. He didn't drink at all?

Mr. SENATOR. No.

Mr. HUBERT. He didn't drink at all, or very little?

Mr. SENATOR. I wouldn't say at all but I would probably say if he took a half dozen drinks a year he took a lot.

Mr. HUBERT. How about smoking?

Mr. SENATOR. No smoking whatsoever.

Mr. HUBERT. What was his attitude toward women?

Mr. SENATOR. Like any other man.

Mr. HUBERT. That is to say any other normal man?

Mr. SENATOR. Any other normal man.

Mr. HUBERT. Have you ever observed any traits which suggested to you the possibility of homosexuality?

Mr. SENATOR. Never.

Mr. HUBERT. On his part?

Mr. SENATOR. Never.

Mr. HUBERT. Did he have any peculiar mannerisms which might have suggested such a thing to other people, even though it was not so?

Mr. SENATOR. I never noticed it.

Mr. HUBERT. Did he lisp?

Mr. SENATOR. Yes. So do I.

Mr. HUBERT. Jack has a lisp?

Mr. SENATOR. He has a lisp. He has always had it to my knowledge.

Mr. HUBERT. In your opinion he was not homosexual at all?

Mr. SENATOR. No. Just as normal as any human being.

Mr. HUBERT. He was single.

Mr. SENATOR. He has got a brother older than he is and single, never been married, Hyman.

Mr. HUBERT. Did he have any girl friends?

Mr. SENATOR. Yes; he went out with various girls.

Mr. HUBERT. What I am getting at is what you know about his sex relationships.

Mr. SENATOR. His sex relationship, you know I'm not there to watch wherever he may be.

Mr. HUBERT. Still you may have some knowledge of facts which would throw light upon that.

Mr. SENATOR. He likes women.

Mr. HUBERT. How do you know that?

Mr. SENATOR. How do I know he likes women?

Mr. HUBERT. Yes.

Mr. SENATOR. I like women.

Mr. HUBERT. Did he ever tell you that he liked them?

Mr. SENATOR. Did he ever tell me? In any normal conversation I'm certain anybody here, who doesn't say they don't like women. I think this is a normal thing to say.

Mr. HUBERT. What I am trying to get at is simply this. Very naturally as you pointed out a moment ago, it is very rare that there are any eyewitnesses to acts of sexual intercourse. On the other hand, there are other facts and circumstances from which one may judge if a man is having sexual intercourse with a particular woman, and that is what I am trying to get at. Do you know of any such things?

Mr. SENATOR. This here I'm never around.

Mr. HUBERT. What?

Mr. SENATOR. You mean when he is having sexual intercourse with a woman?

Mr. HUBERT. Yes; of course you wouldn't be around, but do you have any opinion as to whether or not he was having any affairs of a sexual nature with anybody? If you are reticent about naming names, perhaps we can leave that off.

Mr. SENATOR. I have no names to name, but I am certain that he likes women. I know he talks to them like I talk to them or anybody else talks to them.

Mr. HUBERT. Did he ever bring any to the apartment that you know of?

Mr. SENATOR. I am certain he has had them up for coffee when I have been there, such as that or a drink or talk, conversation. He has had even the help up there, you know. Once in a while we have a party. This is when I turn out to be the cook.

Mr. HUBERT. But you can't tell us then of any particular person that you would think Jack had intimate relationships with?

Mr. SENATOR. No.

Mr. HUBERT. You don't know of any at all that you could even suggest in your own mind?

Mr. SENATOR. I have seen him talking to many girls but if anything of that nature I am not around where he don't want me around.

Mr. HUBERT. Did he ever ask you to leave, for example, because he was having some feminine company, or indicate that he was?

Mr. SENATOR. On rare occasions he has said he was going to have some company or somebody over.

Mr. HUBERT. And he indicated that he wanted you to leave?

Mr. SENATOR. On rare occasions.

Mr. HUBERT. That is the sort of thing I am talking about that would indicate some factual situations upon which you can base your opinion. That is what I was speaking of a moment ago when I asked you for facts and circumstances that would throw light on your opinion, recognizing fully that normally one never actually is an eyewitness to such a thing. Do you have any other types of episodes or evidence of that nature?

Mr. SENATOR. No.

Mr. HUBERT. What was his relationship do you think with the girls at his club, I mean the waitresses?

Mr. SENATOR. The girls in his club? Strictly business, strictly business.

Mr. HUBERT. Would you say that if a person said that Jack was on the make for every one of the girls that worked for him it would be a wrong statement?

Mr. SENATOR. I have heard that expressed many a time.

Mr. HUBERT. What do you think about that statement?

Mr. SENATOR. It definitely is a wrong statement.

Mr. HUBERT. You never saw it.

Mr. SENATOR. Now what their conversations may be, you know, after all, he has talked to all the girls in the club at one time or another. What the conversations are I don't know.

Mr. HUBERT. But you never saw anything that would indicate to you in any way, or heard anything by him that would lead you to the conclusion that his relationship with any of the girls was of an intimate character?

Mr. SENATOR. No; if it was, I didn't know about it.

Mr. HUBERT. What about Jack's attitude about what his girls did in the nature of sexual intimacies with other people than himself?

Mr. SENATOR. The girls working in the club?

Mr. HUBERT. Yes.

Mr. SENATOR. You refer to the strippers or the cocktail waitresses?

Mr. HUBERT. I refer to both, and if there is a difference between them then I would ask you to explain the difference.

Mr. SENATOR. Well, if there was any and he heard about it, I am certain he would probably yank him out. He didn't go for that bit.

Mr. HUBERT. Something must have happened that leads you to that opinion. What is it that leads you to that opinion that he would certainly

have done something about it?

Mr. SENATOR. I have heard him mention that he doesn't want anybody outside using any of his girls.

Mr. HUBERT. You yourself have heard him say that?

Mr. SENATOR. Yes; he don't want any of his girls going out with customers. He didn't want the place to have a reputation such as that.

Mr. HUBERT. Did he carry that policy to the point of supervising the personal lives of his strippers and waitresses beyond the area of relations with people who were in the club?

Mr. SENATOR. Beyond the area?

Mr. HUBERT. In other words, you mentioned a moment ago that he didn't want any girls to have any dates or anything with any patrons of the club or customers.

Mr. SENATOR. That is right.

Mr. HUBERT. Now my next question is did he extend that policy of supervision of what his girls did to their personal relations with people who were not patrons of the club?

Mr. SENATOR. That I don't know. I don't know about that. I don't know. First of all there can never be controllability of that. After all, where they are, that is their business, wherever they are, whether it is day or night. This I can't even answer you.

Mr. HUBERT. Was Jack sensitive about his religion?

Mr. SENATOR. Yes.

Mr. HUBERT. Tell us how you know that?

Mr. SENATOR. Well, he didn't like the M.C.'s having any jokes about the Jewish race, things of that nature. Now I have heard him say so to a couple of M.C.'s already.

Mr. HUBERT. Did he ever talk to you personally about it, say anything to you?

Mr. SENATOR. No; not particularly. I mean it has always been in the open. I have even heard him say it right in the club. He don't want any Jewish jokes. He was sensitive this way.

Mr. HUBERT. Do you think he was overly sensitive on the subject?

Mr. SENATOR. Well, I don't know, overly sensitive, but he was sensitive.

Mr. HUBERT. Is he more sensitive than other Jews that you have known?

Mr. SENATOR. I would say he is; yes.

Mr. HUBERT. With reference to his religion, did he practice it actively?

Mr. SENATOR. As far as going to church, synagogue?

Mr. HUBERT. Yes.

Mr. SENATOR. He went to church; he went to synagogue on holidays.

Mr. HUBERT. That is, Jewish holidays?

Mr. SENATOR. Oh, yes; always.

Mr. HUBERT. He wasn't one who went regularly then to synagogue?

Mr. SENATOR. This I don't know. I would have to leave this question because I don't know.

Mr. HUBERT. Well, you lived with him.

Mr. SENATOR. Yes.

Mr. HUBERT. During the time that you lived with him did he ever indicate or did you gather that he was a regular churchgoer?

Mr. SENATOR. They go on Friday nights.

Mr. HUBERT. Did you ever see any pattern of his going on Friday nights regularly?

Mr. SENATOR. No, I have never seen a pattern of it. Now I don't say that he has or hasn't been. Maybe he has at certain times and probably not on other times. I don't say this is every Friday night that he goes, no. I wouldn't say that. But he does make, you know, the important holidays.

Mr. HUBERT. Do you consider him to be a religious man?

Mr. SENATOR. I don't know how, to tell you the truth, I don't know how to break it down for you, how religious he is. Now we never went into an aspect to talk about just how religious he is. All I can say is that he observes as to holidays.

Mr. HUBERT. He never told you anything which would indicate that he was either religious or not religious.

Mr. SENATOR. No. Well, I think he fasts on a certain type holiday. He fasts, for this kind of fast it is really something, but he does observe those things.

Mr. HUBERT. You mean not the regular Saturday fast?

Mr. SENATOR. No. This is the one time of the year you fast. You don't eat anything for 24 hours. I know he does that.

Mr. HUBERT. I think it is a good time for recess.

Mr. GRIFFIN. Let me ask one question here. Does he belong to any lay organizations connected with any of the synagogues in town?

Mr. SENATOR. I don't know if he belonged to them or not. This I can't know. But I think he went—it was Temple Emanuel. I don't know which one he went to. I think it was Temple Emanuel.

Mr. GRIFFIN. To your knowledge, do you have any knowledge of his ever participating in any activities, Jewish activities?

Mr. SENATOR. No.

Mr. GRIFFIN. B'nai B'rith?

Mr. SENATOR. I would probably say maybe in donations or something like that.

Mr. GRIFFIN. Other than giving money he didn't belong to the synagogue's men's clubs?

Mr. SENATOR. No, not to my knowledge.

Mr. HUBERT. Supposing we take a recess now until 2 o'clock.

(Whereupon, at 12:35 p.m., the proceeding recessed.)

TESTIMONY OF GEORGE SENATOR RESUMED

(The proceeding reconvened at 2 p.m.)

Mr. HUBERT. Mr. Senator, we are now continuing the deposition which we began this morning. I am sure you understand and I want the record to show that this deposition is being continued under the same authority and under the same conditions as it began this morning, and also that you are under the same oath. Now there are a few more general areas that I would like to talk to you about concerning the character of Jack Ruby and the type of man he was. Let me direct your attention to the political beliefs and thinking of Jack Ruby, and ask you what comment you have to make about that.

Mr. SENATOR. None whatsoever on his beliefs on political issues.

Mr. HUBERT. Do you mean by that that you don't know?

Mr. SENATOR. Break down when you say political issues.

Mr. HUBERT. I mean do you know anything about what his thinking was from what he told you concerning his beliefs about politics in general?

Mr. SENATOR. No; he was not of the nature, he never went into anything of that nature.

Mr. HUBERT. Did you ever hear him discuss international politics?

Mr. SENATOR. No.

Mr. HUBERT. Did he seem to show any interest in international affairs as they were developing?

Mr. SENATOR. No.

Mr. HUBERT. I mean would he be the type of person that would read the newspapers at all? Did he read newspapers at all?

Mr. SENATOR. Oh, sure; he read newspapers religiously every day.

Mr. HUBERT. Did he read all of them, I mean every part of it?

Mr. SENATOR. I will tell you, when you ask me that, I tell you where his reading is. On the toilet bowl. That is where all his reading is—is on the toilet bowl. It may sound funny, but it is true.

Mr. HUBERT. Can you give us any idea from what you know, of what his reaction to international events was, such as, for instance, the Cuban crisis in 1962?

Mr. SENATOR. He never discussed these.

Mr. HUBERT. You are familiar with what I am talking about? I think it was in the fall of 1962 when we discovered that Cuba had some possible atomic weapons over there, a subject of national interest.

Mr. SENATOR. Yes; I have read that.

Mr. HUBERT. And the Berlin crisis of the year before?

Mr. SENATOR. Yes.

Mr. HUBERT. That is the sort of thing I mean. Did he comment about that?

Mr. SENATOR. No; he didn't.

Mr. HUBERT. Is it your thought that he just had no interest in that sort of thing at all?

Mr. SENATOR. Well, if he did or not, he never discussed it too much. He would read a paper. He would read his ad. He reads these—of course, I am certain he reads all parts of the paper, but especially the entertainment part, he was very anxious in reading.

Mr. HUBERT. Normally when two people share space such as you do, and are in each other's company and have any conversation at all, the conversation normally relates to the topics of the day, as it were, as reflected by newspapers and other news media.

I wonder if you can throw any light on what his attitude was or his interest was towards topics of the day of international import.

Mr. SENATOR. I just don't recall. All I know is that he reads the—of course, I am certain he reads all of the paper, you know, or various parts, but he would talk about show business a lot with me, see.

Mr. HUBERT. Did you ever hear him discuss at all any international incident?

Mr. SENATOR. I just can't think offhand. I don't say he did or didn't. I just can't think offhand if he did or didn't.

Mr. HUBERT. Did you ever seek to engage him in small talk, shall we say, about subjects of that nature?

Mr. SENATOR. Well, he talked about the President. I remember once we were watching a picture of President Kennedy's kid going between the desk. He thought that was so wonderful, you know, enjoyed over that. I remember that distinctly.

Mr. HUBERT. You mean he saw that on TV?

Mr. SENATOR. Yes; this he marveled over. But the discussion, we never went into papers too much. He was mainly, I know when he grabbed the paper the first thing he would go to is the show part of it, his competitors, the show part of it, the night life, Tony Zoppi, with a nightclub. He is like, I don't know how to compare him, to somebody who writes a column in New York.

Mr. HUBERT. You don't recall in all of the years you have known Jack of his being interested in international affairs to the point that you can remember any discussion with him?

Mr. SENATOR. No.

Mr. HUBERT. At all?

Mr. SENATOR. I really can't think offhand. I don't say that he probably hadn't, but I just don't think offhand.

Mr. HUBERT. You don't remember any such discussions?

Mr. SENATOR. I don't; no.

Mr. HUBERT. Now what would be your impression, knowing Jack as a whole, of his interest in international affairs?

Mr. SENATOR. I don't know.

Mr. HUBERT. The reason I asked you that, although I realize it is an opinion question, is because you have been able to give us your opinion on other aspects of his life and character, for instance, that he was a man who was not a homosexual, and so forth, and you based your opinions upon your

experience with him, and this is just another aspect of his character, that is all.

Now I am simply asking you what is your opinion about his interest in communism or rightism or leftism or middle-of-the-roadism or any kind of ism.

Mr. SENATOR. The only way I can refer to anything of that nature is the time we saw the billboards.

Mr. HUBERT. You mean that was——

Mr. SENATOR. The impeachment of——

Mr. HUBERT. After the President was——

Mr. SENATOR. Right; this was the time that I saw——

Mr. HUBERT. We will get to that, but are you willing to say now, as far as you can remember, that that is the only time you ever saw him interested in a matter of that nature?

Mr. SENATOR. You see, when he gets home at night, the first thing he heads for is the bathroom, and the paper goes with him, and from there on he sits there, I don't know, 45 minutes reading the paper.

Mr. HUBERT. I appreciate your comment because it throws some light on it, but I would like to have an answer if you can give it to me to that question. I don't know if I can rephrase it.

(The previous question was read by the reporter.)

Mr. HUBERT. Can you answer that question?

Mr. SENATOR. I didn't get that.

Mr. HUBERT. Let's see if I can rephrase it. You mentioned that you saw him interested in a matter that concerned an ism. I had previously asked you whether or not he had, to your knowledge, any interest in rightism, communism, leftism, middle-of-the-roadism, and you mentioned that one incident.

Mr. SENATOR. Those, none whatsoever, because he is a lover of the country he lives in. He was never——

Mr. HUBERT. I suppose that would be called Americanism.

Mr. SENATOR. Americanism. He loves the nation he is in.

Mr. HUBERT. You formed that opinion, of course, on certain events or things that he told you. Can you refer to what those things would have been?

Mr. SENATOR. No; I can't, but I know that he has never belonged to any organizations. He has never attended any meetings to my knowledge, and this is the only way that I can in all reality base it.

Mr. HUBERT. You say that he is a lover of his country. Now, did he say so or did he act in certain ways regarding certain instances that caused you to form that opinion?

You see what I mean, any impression that you have about anybody is based upon your reactions to things said or done, and that is all I am asking you to say.

Now you say he is a man who loves his country. I ask you, did you hear him say so or did you get that impression from things he did, or attitudes?

Mr. SENATOR. I just take this for granted that he does, the same way as I take it that I know that I do.

Mr. HUBERT. Of course, you know you do from your own experience, but on the other hand you don't know about somebody else.

Mr. SENATOR. I don't know how to base it with him. I know he is very fond of the city he lived in.

Mr. HUBERT. And how do you know that?

Mr. SENATOR. Because he has told me he likes Dallas. He likes Dallas, he likes everything about it. He liked living there. He liked it because there wasn't any hustle and bustle like any large, big city like New York or Chicago or California.

Mr. HUBERT. Have you similar facts or experiences upon which to base your opinion that he is a lover of the United States as such?

Mr. SENATOR. I can't base it on anything. It is only what I think. And, of course, to my way of thinking I think everybody does.

Mr. HUBERT. I think I am beginning to see what you mean. You assume that everybody loves their country.

Mr. SENATOR. Yes.

Mr. HUBERT. Unless there is something to the contrary.

Mr. SENATOR. Sure.

(Discussion off the record.)

Mr. GRIFFIN. I want to ask some questions along that line.

Mr. HUBERT. Go ahead and do it now unless you prefer to wait.

Mr. GRIFFIN. No; I would just as soon, when you finish with an area, pick up from notes I have been making.

Did Jack Ruby, George, to your knowledge show any interest in any political candidates for local office in Texas?

Mr. SENATOR. I don't know on that. I will tell you, as far as I know of him, he has never spoken of or never messed around with anything like that, political-wise or anything of that nature.

Mr. GRIFFIN. Did you ever see him with any campaign literature for anybody?

Mr. SENATOR. No; I haven't.

Mr. GRIFFIN. Did you ever see him with any literature of any political sort that would be other than newspaper literature?

Mr. SENATOR. No.

Mr. GRIFFIN. You know in Texas and elsewhere there are all sorts of organizations that are putting out literature, the John Birch Society and Civil Liberties Union.

Mr. SENATOR. He never messed around with that. The only first showing I ever seen of any nature was that night he woke me up.

Mr. GRIFFIN. You mentioned that Jack read newspapers, and you thought every day. Did you have a newspaper delivered to your apartment?

Mr. SENATOR. No; he bought it on the way home.

Mr. GRIFFIN. Did he read newspapers from outside of Dallas?

Mr. SENATOR. No; he bought the morning paper and the evening paper.

Mr. GRIFFIN. Did he buy the Fort Worth papers?

Mr. SENATOR. Yes; and Fort Worth, come to think of it.

Mr. GRIFFIN. Any particular reason why he should buy a Fort Worth paper rather than a Dallas paper?

Mr. SENATOR. No; because he bought them both. No particular reason, but he would buy them both for news or see what is going on in Fort Worth, I assume.

Mr. GRIFFIN. He would buy a Fort Worth paper at a Dallas newsstand or would he only buy the Fort Worth newspaper when he went to Fort Worth?

Mr. SENATOR. No; he would buy a Fort Worth paper, I will tell you where he bought it, he bought it at the Adolphus Hotel. He always picked his paper up at the stand in front of the Adolphus. He would buy the morning news. As a matter of fact, he would buy any paper that was laying around there that the man had in front of the stand there.

Mr. GRIFFIN. Did he read the Wall Street Journal?

Mr. SENATOR. No; I don't even think he could understand it.

Mr. GRIFFIN. How about magazines? Did he subscribe to any magazines?

Mr. SENATOR. No.

Mr. GRIFFIN. Time magazine, Newsweek?

Mr. SENATOR. I never seen any magazines come in.

Mr. GRIFFIN. Did you have any magazines around the house?

Mr. SENATOR. No; the only magazines I ever bought was Reader's Digest.

Mr. GRIFFIN. Did you people have a television set at your apartment?

Mr. SENATOR. Yes.

Mr. GRIFFIN. And did you have a radio?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Was Jack accustomed to being at home and watching the TV or listening to the radio?

Mr. SENATOR. On the TV part; yes, he would put that on. He would have that on, and, of course, there is two things I know interested him on TV.

Mr. GRIFFIN. What were those?

Mr. SENATOR. Those were Westerns and the stories, you know, whatever stories there might be.

Mr. GRIFFIN. You mean the movies?

Mr. SENATOR. Yes; the movies, and he liked the Westerns, you know, the half-hour or hour programs, whatever they were.

Mr. GRIFFIN. Did he have a radio in his car?

Mr. SENATOR. He had, what do you call those little things?

Mr. GRIFFIN. Transistor?

Mr. SENATOR. Yes; transistor.

Mr. GRIFFIN. Did he have one that was installed in the car itself?

Mr. SENATOR. You mean put in?

Mr. GRIFFIN. You know.

Mr. SENATOR. He had it put in?

Mr. GRIFFIN. A car radio.

Mr. SENATOR. Oh yes; installed with the car?

Mr. GRIFFIN. Yes.

Mr. SENATOR. Yes.

Mr. GRIFFIN. Was this any sort of special kind of radio?

Mr. SENATOR. No; just a radio that came with the car.

Mr. GRIFFIN. It wasn't equipped to receive any kind of frequencies?

Mr. SENATOR. No.

Mr. GRIFFIN. FM or anything like that?

Mr. SENATOR. No. As a matter of fact, the last car he bought he bought second-hand, which he thought he had a good buy on, and he bought it, and, of course, the thing had a radio in it, you know, whatever make it was. Nothing special about, just the ordinary car radio.

Mr. GRIFFIN. How about your radio at home? Could that pick up FM?

Mr. SENATOR. I don't know.

Mr. GRIFFIN. Or shortwave?

Mr. SENATOR. I don't know if it could or not.

Mr. GRIFFIN. What kind of a radio was it?

Mr. SENATOR. I don't even know the make or the brand. One side there was a clock and the other side was a radio.

Mr. GRIFFIN. I take it then your conclusion about Jack Ruby would be that he didn't have any particular political feelings one way or another, and he wasn't a great patriot and he wasn't disloyal. As far as you knew he was just an ordinary American citizen.

Mr. SENATOR. He was a good, sound American citizen, and politics, he never messed around with that. He never messed around politically at all. The majority was connected with the music industry, the night life, you know, his club, his competitors, what they were doing.

Mr. HUBERT. Coming back to the automobile and the radio——

Mr. SENATOR. Pardon me.

Mr. HUBERT. Concerning the radio in the automobile, what was his custom about putting it on when he was riding? Was it his custom to put it on or not?

Mr. SENATOR. No, not. He normally didn't put it on.

Mr. HUBERT. Normally he would not put it on?

Mr. SENATOR. Normally he wouldn't have it on. He also had one of the little transistors, one of these transistors that he had. The reason he had this

transistor, of course he had it before I was around, the car he had before then, the radio didn't work, so he had the transistor.

Mr. HUBERT. Where did he keep it, in the automobile?

Mr. SENATOR. Yes; he laid it on the seat.

Mr. HUBERT. Did he play it?

Mr. SENATOR. Yes; he put on the music.

Mr. HUBERT. So that was his custom when he was driving around, instead of turning on the radio in the automobile?

Mr. SENATOR. I wouldn't say at all times. Certain times he would put it on and play the music.

Mr. HUBERT. He would play the transistor?

Mr. SENATOR. Yes. That was on the car he had when the radio, the car radio was not working.

Mr. HUBERT. What was Ruby's habit so far as you know concerning his finances, and his banking and so forth?

Mr. SENATOR. As far as I know about it, his bank was his pockets. Now, if he had any banking, I don't know what he had in it.

Mr. HUBERT. Did you observe then that he carried large sums of money?

Mr. SENATOR. Oh yes; always. Everybody knew that.

Mr. HUBERT. Now, how did he carry it?

Mr. SENATOR. In ready cash.

Mr. HUBERT. But I mean did he roll it up and put it in his pocket?

Mr. SENATOR. Rolled it up or have a string around it, not a string, you know, one of these rubber bands around it. He would carry some here and he would carry some here, and some here, and some in his back pocket. I don't think he knew where he had it half the time.

Mr. HUBERT. Let the record show that when the witness was saying "here, here and here," he was pointing to various pockets.

Mr. SENATOR. This is the way. As a matter of fact, he used to say to me “George, where is my money,” because he can’t remember where he put his money.

Mr. HUBERT. Now you were with him frequently when he closed up the Carousel at night and you would go home?

Mr. SENATOR. Yes.

Mr. HUBERT. How was the money handled then, that is the receipts of that night?

Mr. SENATOR. In his pocket.

Mr. HUBERT. We have heard something about a canvas bag, a money bag. Did you ever see that?

Mr. SENATOR. Yes; I don’t know what he would have in the bag. You know when it comes to money, that is his business. It doesn’t get that close to me.

Mr. HUBERT. No; we are just asking you what you observed, that is all, about his handling of it.

Mr. SENATOR. He has had money in the bag, and he has had it in his pockets. Now I don’t know what the separation could be unless he has got a certain amount of money for bills or what it is I don’t know.

Mr. HUBERT. When he had money in the bag where did he leave the bag?

Mr. SENATOR. The bag? In the trunk.

Mr. HUBERT. In the trunk of the car?

Mr. SENATOR. While going home.

Mr. HUBERT. In other words, when you would come out of the Carousel he would take his bag up, and it had money in it, and bring it and throw it in the trunk of the car?

Mr. SENATOR. Right. He would get home, open the trunk, take the bag up.

Mr. HUBERT. Now, do you know anything about a gun that he had, a pistol?

Mr. SENATOR. Yes.

Mr. HUBERT. Tell us what you know about it.

Mr. SENATOR. I know he had a pistol, one of the small ones. In the nature of his type business, carrying all this money, this cash with him, this is why he always had the gun with him.

Mr. HUBERT. Did he keep the gun on his body?

Mr. SENATOR. At times he had it on his body and at times he had it in his pocket.

Mr. HUBERT. Did he own a holster for the gun?

Mr. SENATOR. No; not that I know of.

Mr. HUBERT. Either a shoulder holster or a hip holster?

Mr. SENATOR. No; I have never seen it.

Mr. HUBERT. So when he carried a gun on his person where would he keep it?

Mr. SENATOR. It would be in his pants pocket or sometimes it may be in the bag.

Mr. HUBERT. Did you know anything, from talking to him or otherwise, about the ownership of the Vegas Club? Who owned the Vegas, in other words, as far as you know?

Mr. SENATOR. As far as I know Jack Ruby owned it.

Mr. HUBERT. Am I correct in assuming that your opinion on that point is from what he told you, or did he say anything else?

Mr. SENATOR. I always understood that he owned it, I mean as far as I know. Of course, there is a lot of things that I don't know that he never told me, you know. He doesn't expose everything.

Mr. HUBERT. Eva Grant was actually the operator of it, wasn't she?

Mr. SENATOR. Yes; but Eva always felt like she was the owner. This is a sister. Of course, she had it and managed it for quite a while. I don't know

how long she managed it, has been at the Vegas Club, because it was before me even, you know.

Mr. HUBERT. On what do you base that opinion that she thought that she really was the owner?

Mr. SENATOR. Because I assumed that Jack was a brother and she felt it was like hers.

Mr. HUBERT. You see what I am trying to get at is whether or not there are any statements or incidents that occurred which led you to the opinion that she thought she owned the Vegas. Do you see what I mean?

Mr. SENATOR. The only way I could express that is Jack used to say to me that "Eva thinks she owns the club," because she has been staying there so long.

Mr. HUBERT. How do they get along?

Mr. SENATOR. They are both of the same nature, like cats and dogs.

Mr. HUBERT. I take it from that you mean they used to fight a lot.

Mr. SENATOR. Yes; because as well as Jack would holler, let me assure you she can holler too.

Mr. HUBERT. And you have been a witness to some of those instances?

Mr. SENATOR. As a matter of fact, the further away the better.

Mr. HUBERT. I don't quite understand.

Mr. SENATOR. For me the further away the better. In other words, I shied away from all that. I didn't want to listen to that kind of stuff.

Mr. HUBERT. What you are saying is——

Mr. SENATOR. I am not happy over the fights.

Mr. HUBERT. My question is how frequently it happened.

Mr. SENATOR. How frequent I don't know.

Mr. HUBERT. But you were a witness to some, I take it, and when it began you would want to get away, is that the idea?

Mr. SENATOR. Yes; I tell you where I heard most of it, I mean what I can recollect is when around the telephone. Of course, I can't hear her, but I can hear him shouting, so apparently I know there is something that is flickering.

He is hollering at her about something, or she is hollering at him about something. See, she is hard to get along with, with the employees of the Vegas Club. She is just hard to work for. All I know is I never want to work for her.

Mr. HUBERT. What about the ownership of the Sovereign and the Carousel? Do you know anything about that, who owned that?

Mr. SENATOR. The Sovereign, he has some partner. I don't remember who his partner was. Of course, this is all before I got that close, but he had a partner in the Sovereign Club.

Mr. HUBERT. Joe Slayton was it?

Mr. SENATOR. That is it, Joe Slayton.

Mr. HUBERT. Of course, Slayton ultimately got out of it, didn't he?

Mr. SENATOR. Yes.

Mr. HUBERT. Is it your impression that Jack owned the Sovereign entirely?

Mr. SENATOR. No; Joe Slayton was a part owner.

Mr. HUBERT. I mean after Slayton left.

Mr. SENATOR. I don't know about that. That is a little before me.

Mr. HUBERT. What about Ralph Paul? Did he have any part in it?

Mr. SENATOR. Ralph Paul had a part in it. I don't know what the breakdown was, but I know Ralph Paul was connected with it.

Mr. HUBERT. Connected by way of ownership?

Mr. SENATOR. I believe he was connected by ownership. I mean if he owned half or what it was I don't know.

Mr. HUBERT. On what facts do you base that?

Mr. SENATOR. On guesswork. I know he had something to do with it. What part he owned I don't know.

Mr. HUBERT. What facts make you state that you know he had something to do with it? There must be something that occurred again.

Mr. SENATOR. Nothing occurred because I mean I have seen Ralph, I know Ralph, and I know there is the association of him having a part of that club somehow.

Mr. HUBERT. Let me put it to you this way. Did Jack ever tell you that Ralph Paul owned part of it?

Mr. SENATOR. Not directly, but I knew. You know as well as I know Jack, there was an awful lot of things he didn't tell me circularwise. You can say moneywise where he kept his money, if he had a bank account, I know he had a connection with Ralph Paul. How much Ralph owned I don't know.

Mr. HUBERT. Did Paul ever tell you anything about his interest or ownership?

Mr. SENATOR. Yes; the first time he mentioned it to me, and, of course, this is after this whole deal happened.

Mr. HUBERT. The shooting?

Mr. SENATOR. Yes.

Mr. HUBERT. What did he tell you?

Mr. SENATOR. He said once that he had a part of that place there. He was part owner of that place.

Mr. HUBERT. Do you remember when he told you that, and where?

Mr. SENATOR. He told me at the Carousel, but I don't remember when. I mean I can't specifically remember.

Mr. HUBERT. Isn't it a fact that he took over the management right away, as soon as Jack was in jail?

Mr. SENATOR. Yes, he did. Now, I don't know how much he owned or how much Jack owned.

Mr. HUBERT. Did he indicate to you that it was an ownership interest?

Mr. SENATOR. Yes, there was, but how much I don't know. In other words, I don't know who owned the bigger piece or if it was equal.

Mr. HUBERT. Do you think that only the two of them had an interest in it?

Mr. SENATOR. To my knowledge. I don't know of anybody else.

Mr. HUBERT. Did you ever hear of his brother Earl having a possible interest in it?

Mr. SENATOR. Not that I know of.

Mr. HUBERT. Do you know Earl?

Mr. SENATOR. Sure. The first time I met Earl is, of course, when all this happened.

Mr. HUBERT. You didn't know him before that?

Mr. SENATOR. Never seen him before in my life.

Mr. HUBERT. What about Sam?

Mr. SENATOR. Sam? I knew Sam. I have never seen him that often. Of course, I met Sam at the Vegas Club. Sam at one time worked there with Eva, and they couldn't get along, so Sam was out, fighting like cats and dogs. Eva is just a hard girl to work for.

Mr. HUBERT. What was Jack Ruby's attitude toward the police as a group?

Mr. SENATOR. Well, all I know is apparently he must like them. They always used to come to see him.

Mr. HUBERT. Tell us about those who came to see him. Do you know who they were?

Mr. SENATOR. I knew a lot of them by face. I didn't know them all by name.

Mr. HUBERT. Did they come frequently?

Mr. SENATOR. Various ones, yes, every day. I don't say it is the same ones, whoever was coming in, but they would either be plain clothes or

police in uniforms.

Mr. HUBERT. Did they come to inspect or to enjoy the club as a place of entertainment?

Mr. SENATOR. Well, they came to inspect, to my knowledge I would say they came to inspect, but Jack always offered them a coffee, asked them if they wanted coffee, a Seven-Up or a Coke.

Mr. HUBERT. Wasn't it a rule in fact that they could get such little items as coffee and Cokes and Seven-Ups and soft drinks without cost? He gave them that?

Mr. SENATOR. Yes; that was the nature of it.

Mr. HUBERT. What was the arrangement about the entrance fee? They didn't pay that, if they came socially?

Mr. SENATOR. No.

Mr. HUBERT. You have been on the door yourself?

Mr. SENATOR. Yes.

Mr. HUBERT. Did you have any instructions on that?

Mr. SENATOR. No, they didn't pay entry.

Mr. HUBERT. Did they pay for drinks?

Mr. SENATOR. They had a special rate.

Mr. HUBERT. What was it?

Mr. SENATOR. I think 40 cents, or anybody that was a friend of his—in other words, for an example, your taxi drivers, the taxi drivers used to bring customers. In other words, an out-of-towner would say “where can you go,” they would say the Carousel or the Colony or wherever they may bring them.

So they brought them up there, in other words, if they were off duty and wanted to come up, they were guests of Jack's, and they paid a special price for drinks.

Mr. HUBERT. And they didn't pay the admission charge?

Mr. SENATOR. No. Now the fellows who worked downstairs in the garage, they were allowed in, but at a special price. The special price was no different for anybody. It was all one price, the special.

In other words, they gave them a discount on beer or the setups, whichever they were having, and your hotel bellcaps and things in that area, he always let them in free.

I mean he was good to these type people, you know, and, of course, these weren't people of tremendous means or of that nature, and everyone had a cut price, he always gave them a discount on the drinks.

Mr. GRIFFIN. I want to go back a bit. Talking about the ownership of the Vegas Club and the Carousel Club, did Jack rent the premises of the Vegas Club or did he own part of that building?

Mr. SENATOR. No, I think he rented it.

Mr. GRIFFIN. He rented it, so when you talk about ownership of that operation out there——

Mr. SENATOR. Not owning the building.

Mr. GRIFFIN. You are not talking about any real estate.

Mr. SENATOR. No, no.

Mr. GRIFFIN. He did have some physical assets out there I suppose? He had tables and chairs?

Mr. SENATOR. Yes.

Mr. GRIFFIN. And a piano maybe?

Mr. SENATOR. Yes.

Mr. GRIFFIN. So, that is what you are talking about when you talk about ownership?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Right?

Mr. SENATOR. Yes. In other words, ownership, I refer to the merchandise or the things in the place, not only the building.

Mr. GRIFFIN. How about the right to get the profits if there were any? Did he get the profits off the Vegas Club or did Eva Grant get the profits, or did they share it in some way?

Mr. SENATOR. This part I don't know. All I know is the money was handled by Eva, and which way the money ever swung was left out of my—wasn't any of my business.

Mr. GRIFFIN. Jack had a practice at the Carousel, and correct me if I am wrong about this, that at the end of every night, he would take that night's receipts and he would take them down to his car, right?

Mr. SENATOR. Either that or put them in his pocket.

Mr. GRIFFIN. Or put them in his pocket?

Mr. SENATOR. Yes, whichever he saw fit.

Mr. GRIFFIN. Now what would he do once he got that money in his pocket or in the car? What would he do with it, take it back to the apartment?

Mr. SENATOR. Yes.

Mr. GRIFFIN. What would he do with it in the apartment?

Mr. SENATOR. Just leave it in his pants or whatever it was.

Mr. GRIFFIN. Did he have a safe back in the apartment?

Mr. SENATOR. No.

Mr. GRIFFIN. Did he have a safe at the Carousel Club?

Mr. SENATOR. No.

Mr. GRIFFIN. Did he visit the Vegas Club every night?

Mr. SENATOR. No. He would probably say he would visit the Vegas Club—you know, for a while they were running this amateur hour every Friday, and Jack would go after he closed the Carousel, he would go over to the Vegas because the Vegas would stay open one hour later.

I don't know how to describe it. They were able to stay open until 3 o'clock in the morning, and they would have a little bit of entertainment from 2 to 3, and Jack would sort of MC it.

Mr. GRIFFIN. But you say Jack wouldn't go there every night?

Mr. SENATOR. No.

Mr. GRIFFIN. About how many nights a week would he go to the Vegas Club?

Mr. SENATOR. I would probably say, of course, I can't always say, I don't always see him all the time, you know, and I am not with him all the time, but I would probably say it was more so weekends. Now, during the week I don't say that he probably hasn't jumped over there, because if he has I don't even know, because when he does go out he doesn't tell me his moves where he is going.

Mr. GRIFFIN. When you were living with Jack at the Carousel Club in that period of time, how long was that that you lived at the Carousel Club?

Mr. SENATOR. I don't know how long he lived there before me. I don't know how long he lived there previous to when I came, but I wasn't there too long.

Mr. GRIFFIN. Were you there a week or 2 weeks?

Mr. SENATOR. It might be. I just don't remember how long it could be. It might have been 2 weeks. It might have been 3 weeks, I don't know. It might be that long. Mind you, I want you to know this is guesswork. I am only guessing.

Mr. GRIFFIN. Is it your impression that during the week on 5-day weeks that maybe 3 or 4 nights out of a week he would not go to the Vegas Club?

Mr. SENATOR. I don't think so.

Mr. GRIFFIN. I am saying that he wouldn't go to the Vegas Club. There would be 3 or 4 nights out of the week that he would not go to the Vegas Club?

Mr. SENATOR. Oh, yes; I would probably say that, yes.

Mr. GRIFFIN. Now, what was done with the money over at the Vegas Club every night?

Mr. SENATOR. I don't know, that part I don't know. I am not familiar with that part.

Mr. GRIFFIN. Did you ever see Jack take any money from the Vegas Club and bring it back to the apartment or put it in his car or in his pockets?

Mr. SENATOR. No; not out of the Vegas. I don't know if it has been done, but I haven't witnessed it. The money is handled, at the Vegas the money is handled by Eva. Now, how she disburses it or banks it I don't know.

Mr. GRIFFIN. Do you know of any bank accounts that Jack maintained?

Mr. SENATOR. He had one bank. What he had in it I don't know. I am trying to think of the name of the bank. Do you have a listing of the banks he has? Can you refresh my memory on it?

Mr. GRIFFIN. I can give you a list of banks and read off some names. Tell me if any of these are familiar to you. How about the Park Cities Bank and Trust Company?

Mr. SENATOR. No.

Mr. GRIFFIN. How about the National Bank of Commerce?

Mr. SENATOR. No.

Mr. GRIFFIN. The American Bank and Trust Company?

Mr. SENATOR. No.

Mr. GRIFFIN. The Mercantile National Bank?

Mr. SENATOR. No; see, if you can find one on—continue.

Mr. GRIFFIN. All right, the Industrial National Bank.

Mr. SENATOR. Merchants. Have you got Merchants? That is the one I am thinking of. I think he had a bank account at the Merchants.

Mr. GRIFFIN. But not the Mercantile National Bank?

Mr. SENATOR. If he did I didn't know.

Mr. GRIFFIN. Are there two different banks, one the Merchants and the other the Mercantile?

Mr. SENATOR. Oh, yes.

Mr. GRIFFIN. How about the South Oak Cliff State Bank?

Mr. SENATOR. If he did I didn't know.

Mr. GRIFFIN. But you only heard of one?

Mr. SENATOR. I heard of the Merchants.

Mr. GRIFFIN. Did you ever hear him discuss what was done with the receipts from the Vegas Club?

Mr. SENATOR. No.

Mr. GRIFFIN. Did you ever hear Eva Grant mention that?

Mr. SENATOR. No; but I will tell you what I assumed. I assumed the money was paid, what money was taken in, I assumed that the employees were paid off, the band was paid off, the gas and electric and the rent would come out of that. This is what I assumed, or whatever incidentals there might be. Now, the disposal otherwise I don't know.

Mr. HUBERT. Then the fact is that you don't really know how the funds at the Vegas were handled?

Mr. SENATOR. No.

Mr. HUBERT. Or what part Jack got of it?

Mr. SENATOR. No.

Mr. HUBERT. Now let's move to the period of the week of the assassination of the President Can you tell us first of all where you were when you heard of the assassination?

Mr. SENATOR. I was in a bar having a liquid lunch. I was uptown. I was in a bar and had a couple of beers for lunch instead of eating lunch, and some chap walked in, who I don't know, and he drove up with his car and he had the radio on, and as he walked in he said, "The President was shot." And I hollered "You're kidding." He says, "No; I am not kidding." So we got outside, and this is all going on on this car radio we listened to.

Mr. HUBERT. That was in downtown Dallas?

Mr. SENATOR. No; I was uptown.

Mr. HUBERT. Had you seen the Presidential parade?

Mr. SENATOR. No; I didn't see it at all.

Mr. HUBERT. Do you know whether Jack planned to see the parade?

Mr. SENATOR. No; I didn't.

Mr. HUBERT. Did he comment about the President's visit?

Mr. SENATOR. You see, let me jump a little ahead of that. That morning, you see, of course, which is a working day for me, I am up much earlier than he is, and he was sleeping when I left that morning.

Mr. HUBERT. Did you see him the night before?

Mr. SENATOR. Yes; the night before.

Mr. HUBERT. Had you discussed the visit of the President, his coming the next day?

Mr. SENATOR. We talked about that. We talked about the President was coming in, you know.

Mr. HUBERT. What was the nature of his comment concerning this?

Mr. SENATOR. I don't remember what he said.

Mr. HUBERT. I don't mean the words, but the ideas.

Mr. SENATOR. Well, we were happy that he was coming.

Mr. HUBERT. Jack was too?

Mr. SENATOR. Yes; coming into Dallas.

Mr. HUBERT. Did Jack tell you why he felt happy about it?

Mr. SENATOR. No: I just don't remember if he did relate that or not, but we thought it was a great honor for him to come to Dallas.

Mr. HUBERT. Did he think his coming would help business in Dallas generally, and his business in particular?

Mr. SENATOR. No; there was no comment on that.

Mr. HUBERT. Did he state whether or not he was going to try to see the parade?

Mr. SENATOR. No; he didn't mention that.

Mr. HUBERT. I think you have previously said in a statement that you saw him sometime that night, and he went out or something, and then, you went to bed?

Mr. SENATOR. No. The next time that I saw him was the following morning when he woke me up.

Mr. HUBERT. I am talking about the night now of the 21st, before the President was shot, Thursday night, you all talked about the President's coming. Did he go out or stay at home, do you recall?

Mr. SENATOR. No; he is at the club. He goes to the club.

Mr. HUBERT. He is at the club?

Mr. SENATOR. Yes.

Mr. HUBERT. You went to bed, and when he came in I assume you were sleeping.

Mr. SENATOR. You are talking about Thursday?

Mr. HUBERT. Yes, I am talking about Thursday night and Friday morning.

Mr. SENATOR. Thursday night—the President came in Friday.

Mr. HUBERT. Yes; but Thursday night did Jack follow his usual routine?

Mr. SENATOR. Yes; his usual routine.

Mr. HUBERT. You were asleep I guess when he got back?

Mr. SENATOR. Thursday night I don't remember if I was or not.

Mr. HUBERT. Anyhow, Friday morning when you got up he was asleep.

Mr. SENATOR. Yes.

Mr. HUBERT. And you didn't talk to him until you heard of the death of the President?

Mr. SENATOR. No; the next time that I talked to him was Saturday morning.

Mr. HUBERT. You didn't speak to him at all on Friday afternoon after the death?

Mr. SENATOR. No; I never saw him at all. I was out. I was out all day.

Mr. HUBERT. Did you go home on Friday night at all?

Mr. SENATOR. Sure.

Mr. HUBERT. What time?

Mr. SENATOR. Friday night I must have went home around somewhere between 10 and 11. Of course, I bought the paper at the Adolphus before I went home. I always buy a paper, too.

Mr. HUBERT. Was Jack home then?

Mr. SENATOR. No.

Mr. HUBERT. He had not attempted to contact you from the time of the President's death at all?

Mr. SENATOR. No. He couldn't contact me because I was around.

Mr. HUBERT. Did you try to contact him?

Mr. SENATOR. No.

Mr. GRIFFIN. Did you bring out where it was that he was around?

Mr. SENATOR. When I said "around"?

Mr. GRIFFIN. Yes.

Mr. HUBERT. Where?

Mr. SENATOR. Around town, no particular place.

Mr. GRIFFIN. Were you going from bar to bar?

Mr. SENATOR. No, not bar to bar. I had been at a couple of bars. I was with a friend of mine that night, and we went out, we had a couple of beers and we were so disgusted, if you can picture the overall picture of Friday night in the city of Dallas after the occurrence, what happened that afternoon or late that morning, the city was, I don't know how to describe it, morguelike. They were brooding. Everybody was brooding, a sad affair.

Mr. HUBERT. Of course you don't know whether Jack went to the apartment on Friday night before you got there?

Mr. SENATOR. No; I don't.

Mr. HUBERT. So you went home and went to bed.

Mr. SENATOR. I read the paper in bed, and that is when I saw the why's about the President. They had a list, "Why, Mr. President?"

Mr. HUBERT. A full-page ad?

Mr. SENATOR. Yes; "Why, Mr. President," so and so, "Why are you here?"

Mr. HUBERT. The one signed by Bernard Weissman? W-e-i-s-s-m-a-n.

Mr. SENATOR. Yes.

Mr. HUBERT. You saw that before you saw Jack?

Mr. SENATOR. Yes. As a matter of fact, I read the paper in bed.

Mr. HUBERT. You went to sleep, I take it?

Mr. SENATOR. Yes.

Mr. HUBERT. What happened next?

Mr. SENATOR. The next thing I know somebody was hollering at me, and shaking me up. This was around 3 o'clock in the morning.

Mr. HUBERT. That was who?

Mr. SENATOR. Jack Ruby.

Mr. HUBERT. Now describe him to us at that time. What was his condition?

Mr. SENATOR. He was excited. He was moody; and the first thing come out of his mouth is the incident. Of course, the incident what happened to President Kennedy, and he said, "Gee, his poor children and Mrs. Kennedy, what a terrible thing to happen."

Mr. HUBERT. Had he been drinking?

Mr. SENATOR. Jack don't drink.

Mr. HUBERT. He wasn't drinking on this occasion?

Mr. SENATOR. No; he don't drink, no.

Mr. HUBERT. And his remarks were concerning the children?

Mr. SENATOR. The children and Mrs. Kennedy and how sorry he felt for them.

Mr. HUBERT. What other comments did he make?

Mr. SENATOR. Then he brought up the situation where he saw this poster of Justice of the Peace Earl Warren, impeach him. Earl Warren.

Mr. HUBERT. He said he had seen that poster?

Mr. SENATOR. Yes; he had saw that poster.

Mr. HUBERT. Did he say when he had noticed it?

Mr. SENATOR. No; I think he noticed it that day or sometime that day, I assume. I am not sure, but I think it was that day, and I assume that when something goes into his brain he wants to follow it up and find out why, why that poster was up there.

Mr. GRIFFIN. Had you had some experiences like that before?

Mr. SENATOR. No.

Mr. GRIFFIN. But I mean you said some experiences where he got something in his mind and he wanted to find out why, and he followed it up.

Mr. SENATOR. I don't know. I can't relate any, but I assume these things could happen.

Mr. GRIFFIN. But you had never had any experience of that sort?

Mr. SENATOR. No; I haven't had any experience.

Mr. GRIFFIN. So, this was a new experience for you.

Mr. SENATOR. Yes; and he made me get dressed.

Mr. HUBERT. What did he tell you when he made you get dressed?

Mr. SENATOR. He was telling me about this sign here.

Mr. HUBERT. Why did he want you to get dressed?

Mr. SENATOR. He wanted me to go down to see the sign, and meanwhile he had called. He had a kid sleeping in the club who helps around, and he has got a Polaroid camera. So he calls the kid up, wakes him up.

Mr. HUBERT. Did you hear that call?

Mr. SENATOR. What?

Mr. HUBERT. Did you hear that call?

Mr. SENATOR. Yeah, he calls him up and says, "Larry, get up, get dressed," something of that nature, "and get that Polaroid with the flashbulbs and meet me downstairs. I'll be right downtown."

Mr. HUBERT. That was after he told you to get dressed?

Mr. SENATOR. Yes; after he told me first.

Mr. HUBERT. Did he at that time comment upon or notice the Weissman ad that you had been reading the night before, the big ad that you commented upon, "Why, Mr. President," I think it was called?

Mr. SENATOR. I don't remember he noticed it there or he noticed it after the incident. Now, if he seen it before I just don't remember, but I know after we got through this incident, which I will relate to you, we were looking at this ad.

Mr. HUBERT. And that was at the house?

Mr. SENATOR. Oh, no; this was—I saw it myself originally.

Mr. HUBERT. In the newspapers?

Mr. SENATOR. Yes.

Mr. HUBERT. You had the newspaper on your bed. You had gone to sleep reading?

Mr. SENATOR. Yes. I probably threw it on the floor. I think I threw it on the floor before I went to bed.

Mr. HUBERT. In any case you have no recollection that you discussed the ad prior to leaving the house?

Mr. SENATOR. I just don't remember if I did or not, but I do know that we did look at that ad that night at another place.

Mr. HUBERT. We will get to that. What happened next then?

Mr. SENATOR. Well, I got dressed, went downstairs, got in the car. I got dressed. We went downtown. We picked up Larry. He drove over to where this billboard was.

Mr. HUBERT. Had he told you where it was beforehand?

Mr. SENATOR. Yes; he told me it was on the corner of Hall and the expressway.

Mr. HUBERT. Which expressway?

Mr. SENATOR. North Central Expressway. I had an indication because I sort of knew the location of the area. I know where Hall Street is and I know where the expressway is.

Mr. HUBERT. Go ahead. Just pick up as to what happened.

Mr. SENATOR. So we went downtown and picked up Larry. From there we drove over to where this billboard was, and he had the kid take three Polaroid shots of this billboard. Now, what his intentions were with these I don't know.

Mr. HUBERT. He didn't express any?

Mr. SENATOR. No; he didn't say what he was going to do with them but he wanted three shots.

Mr. HUBERT. Did you ask him or did anyone else ask him why he wanted to take pictures of this?

Mr. SENATOR. No; all he said to me, "I can't understand why they want to impeach Earl Warren." He said, "This must be the work of the John Birch Society or the Communist Party." And he wanted to know why.

Mr. HUBERT. Did he say how taking a picture would help him to find out?

Mr. SENATOR. No; he didn't. He didn't say how that would help him to find out. So from there we went down to the post office.

Mr. HUBERT. Did Larry go with you?

Mr. SENATOR. Yes.

Mr. HUBERT. To the post office, I mean.

Mr. SENATOR. Yes.

Mr. HUBERT. What did you do at the post office?

Mr. SENATOR. Wait now, we went down to the post area. This sort of slips away from me when the time gets by on the ad. We must have discussed it or seen it at the house. I just remember now, but I think we probably did. We must have seen it. So anyhow we went up to the post office.

Mr. HUBERT. When you say "the ad"——

Mr. SENATOR. The paper ad.

Mr. HUBERT. The Bernard Weissman ad?

Mr. SENATOR. Yes; the Bernard Weissman ad.

Mr. HUBERT. So you now think, and let me get it straight, you previously stated that you weren't sure?

Mr. SENATOR. I wasn't sure.

Mr. HUBERT. That Ruby had noticed the Bernard Weissman ad after he had wakened you at the house, and you were dressing, and before you left, but you think now you must have?

Mr. SENATOR. We must have because we went to the post office.

Mr. HUBERT. When he did see the ad, was there a comment about that?

Mr. SENATOR. Yes; he wanted to know why on this.

Mr. HUBERT. In other words, there were two things he wanted to know why on.

Mr. SENATOR. Right.

Mr. HUBERT. Why the Earl Warren poster and why the Bernard Weissman ad?

Mr. SENATOR. Right; yes.

Mr. HUBERT. So then he had you take Polaroid pictures of the poster concerning Chief Justice Warren, and then you went to the post office.

Mr. SENATOR. We went to the post office.

Mr. HUBERT. What was the purpose of going there, and in connection with what?

Mr. SENATOR. Well, that was in connection—going to the post office was in connection with the paper ad now.

Mr. HUBERT. How was it connected to the paper ad?

Mr. SENATOR. Well, there was a post office box on this ad. I just don't recall the number of the post office box. But he wanted to see if there was such a box.

Mr. HUBERT. So did you go into the post office with him?

Mr. SENATOR. We went into the post office. We saw a box with that number on it. There was a lot of mail in there.

Now, of course, who it belonged to—we don't know if it belonged to him or not, but he did press the night buzzer. There was a little hole there where you get the night clerk, and he asked the night clerk who—I think it was 1762 or something like that. I just don't remember the number.

He asked him who it is. The night man says, "I can't give you any information. Any information you want there is only one man can give it to you and that is the postmaster of Dallas."

Mr. HUBERT. Did Ruby make a reply to that?

Mr. SENATOR. Not to my knowledge. You mean to him?

Mr. HUBERT. Yes; to the clerk. Did he say anything more?

Mr. SENATOR. No; if I am not mistaken, I think he said "How do you get to the postmaster" or something of that nature. I am not sure now.

Mr. HUBERT. Was he annoyed with the clerk?

Mr. SENATOR. No; he wasn't annoyed with the clerk, but he was deeply annoyed with the ad, with both ads.

Mr. HUBERT. Did he indicate to you how checking the box at the post office would assist him in whatever he had in mind?

Mr. SENATOR. He wanted to know; he had also said that he had checked the telephone directory and couldn't find this Bernard Weissman, who supposedly put an ad like this here, and couldn't have been local because he looked to see if there was a Bernard Weissman in the Dallas telephone book.

Mr. HUBERT. You didn't see him look it up. He merely told you that?

Mr. SENATOR. He merely told me that. I didn't see him look it up.

Mr. HUBERT. Did Larry Crafard go with you to the post office?

Mr. SENATOR. Yes.

Mr. HUBERT. Did he stay in the automobile, or come to the post office with you?

Mr. SENATOR. I believe he came into the post office. I have to guess on this. I am not sure, but I think he came into the post office.

Mr. HUBERT. All right.

Mr. SENATOR. Then from there we went to the Southland Hotel coffeeshop.

Mr. HUBERT. Where is that located?

Mr. SENATOR. That is on the corner, on Commerce, and I don't know what the little side street is, but it is just below the Adolphus Hotel on Commerce Street. I don't know what the side street is.

Mr. HUBERT. Who went?

Mr. SENATOR. Jack, Larry, and myself.

Mr. HUBERT. How long did you stay there?

Mr. SENATOR. I would assume we stayed there—maybe about 15 minutes would be a rough guess.

Mr. HUBERT. Do you recall the nature of the discussion between you at that time?

Mr. SENATOR. Yes. He reread this paper ad of the why's of the President.

Mr. HUBERT. Where did he get the paper from?

Mr. SENATOR. It happened to be it was lying on the counter. The news was lying on the counter, and, of course, he ruffled through it.

Mr. HUBERT. And you say he reread it; so now you are quite certain that he had read it before?

Mr. SENATOR. Yes; he must have read it before. See, now, I can't tell you if he read it before that or I showed it to him or what. I just don't remember.

Mr. HUBERT. In any case when he saw it at the coffeeshop, it was obviously the second time.

Mr. SENATOR. He was very disturbed.

Mr. HUBERT. Or the third time.

Mr. SENATOR. He was very, very disturbed over both of these.

Mr. HUBERT. Explain what actions of his lead you now to the conclusion that you describe as a disturbed condition.

Mr. SENATOR. His voice of speech; the way he looked at you.

Mr. HUBERT. His voice was loud or low or different or what?

Mr. SENATOR. Yes; it was different. It was different; the way he looked at you. It just don't look like the normal procedure.

Mr. HUBERT. Had you ever seen him in that condition before?

Mr. SENATOR. I would probably say—I don't know how to put these conditions together, but I have seen him hollering, things like I told you in the past, but this here, he had sort of a stare look in his eye. I don't know how to describe it. I don't know how to put it together.

Mr. GRIFFIN. I didn't catch that. What kind of a look?

Mr. SENATOR. A stare look; I don't know. I can't express it. I don't know how to put it in words.

Mr. HUBERT. But it was different from anything you had ever seen on Jack Ruby before?

Mr. SENATOR. Yes.

Mr. HUBERT. And it was noticeably so?

Mr. SENATOR. Oh yes.

Mr. HUBERT. Did you notice it?

Mr. SENATOR. Yes; I could notice it.

Mr. HUBERT. Did it disturb you any?

Mr. SENATOR. I wouldn't say exactly I was disturbed, but I could notice it.

Mr. HUBERT. Did he seem to be concerned about the President's death or the ad or what?

Mr. SENATOR. To me, I would probably say it must have been a combination of the entire thing. I know he was deeply hurt about the President, terribly.

Mr. HUBERT. You say you know that. How do you know that?

Mr. SENATOR. What? By his feelings; by the way he talked about the family and the children; by tears in his eyes, which I have seen, and I am not the only one who has seen it.

Mr. HUBERT. Do you think that he was more disturbed than the average person that you know was disturbed about the President's death?

Mr. SENATOR. All I know, while I can't say about the average because all I know, he was really deeply disturbed, but I can't describe an average because there might be another individual of his nature, too, who knows. Who knows the affections of each and every individual?

Mr. HUBERT. In any case his reaction was such——

Mr. SENATOR. It was pretty well—you know, disturbed as I was and as disturbed as I have seen many friends of mine, it was worse with him than it was with the others who I have seen.

Mr. HUBERT. That is exactly what I was getting at. So he got hold of this newspaper ad and read it again—is that it—that is, in the coffeeshop?

Mr. SENATOR. Yes; he looked it over again.

Mr. HUBERT. What comment did he make, while reading it or after?

Mr. SENATOR. While reading it?

Mr. HUBERT. I don't mean his words, you understand, his exact words, but the meaning, the thoughts expressed.

Mr. SENATOR. Yes; the thoughts. He can't understand it. It is so penetrated in his mind he can't understand why somebody would want to do something like this.

Mr. HUBERT. The ad had nothing to do with killing the President?

Mr. SENATOR. No; but he couldn't understand why an ad like this should break out, about this ad. Another thing he couldn't understand why in the world would they want to impeach Justice Earl Warren. Incidentally, that sign come out of Massachusetts, that billboard.

Mr. HUBERT. Was it your impression that Ruby was putting the three instances together as being connected in some way; to wit: the death of the President, the impeach Earl Warren sign, and the Weissman ad? Was he seeming to do that?

Mr. SENATOR. He was seeming to do at that time—he was seeming to do with the impeachment of Earl Warren, and the Weissman sign; he couldn't understand why these things were of a nature—I don't know how long this billboard has been out. I don't know if it has been a day, two, or what it was, and then the ad break out the same day that President Kennedy was coming in. He wanted to know the whys.

Mr. HUBERT. In other words, as I understand you, you gathered that was running through his mind, was why the ad, and the poster, appeared at the same time as the visit of the President; is that correct?

Mr. SENATOR. I would probably say it is something of that nature, I guess.

Mr. HUBERT. I want to distinguish that, if possible, from another situation, and that is whether or not you gathered that he was disposed to place the killing of the President together with the poster and the ad.

Mr. SENATOR. Run that again.

Mr. HUBERT. From what you could gather from his attitude, from what he said and how he acted, do you think it was running through his mind that there was a connection between the Earl Warren poster, the Weissman ad, and the killing of the President rather than the President's visit?

Mr. SENATOR. No; I would say the subject at that time, when he was looking at the sign and taking pictures of it, and the newspaper ad, that this is where he really wanted to know the whys or why these things had to be out. He is trying to combine these two together, which I did hear him say,

“This is the work of the John Birch Society or the Communist Party or maybe a combination of both.”

Mr. HUBERT. What is the work of those two; the death of the President?

Mr. SENATOR. Oh, no, no, no.

Mr. HUBERT. The publication of these signs?

Mr. SENATOR. Yes.

Mr. HUBERT. He did not indicate what his impressions were as to who was behind the death of the President?

Mr. SENATOR. No; he didn't indicate that.

Mr. HUBERT. Nor did he seem to associate the ads and the poster with the President's death?

Mr. SENATOR. I don't know about that part.

Mr. HUBERT. But you do know that he was wondering why these two things, the poster and ad, should come out at the same time?

Mr. SENATOR. Now, mind you, I don't know if they come out at the same time, because the billboard, I don't know if that thing was there a day or a week.

Mr. HUBERT. But he was associating the two of those together?

Mr. SENATOR. Yes.

Mr. HUBERT. Or trying to find out if there was any connection between those two?

Mr. SENATOR. Yes; he wanted to know why.

Mr. HUBERT. And it was the fact that the ad was published and the sign was posted that he attributed to the Communists or the Birch Society.

Mr. SENATOR. Yes; and he couldn't understand why the Dallas Morning News would ever print such a thing like that, say that in their paper.

Mr. HUBERT. You see what I am trying to get at is whether he manifested in any way that his thinking associated the assassination of the President with the posting of the Warren poster and publication of the ad, or

rather whether he was simply associating the fact of the publication of the ad and the posting of the poster with communism, and so forth.

Mr. SENATOR. To my belief I think he was trying to associate the ad and the poster with the Communist Party or the John Birch Society.

Mr. HUBERT. You did not gather from what he said that he associated the death of the President to the Birch Society or the Communists or any other group?

Mr. SENATOR. Not at the time that we were talking; rather, he was talking about the signs.

Mr. HUBERT. That is, the poster and the ad?

Mr. SENATOR. The poster and the ad.

Mr. HUBERT. Had you all talked to anybody else in the coffeehouse, in the coffeeshop?

Mr. SENATOR. No. I don't think there was anybody in there at that time outside of, I think, a cashier and probably a waitress.

Mr. HUBERT. Do you recall whether he made any comment to the cashier or the waitress?

Mr. SENATOR. No; I don't.

Mr. HUBERT. Did Larry have any comment to make that you recall?

Mr. SENATOR. I just don't remember if he had any or not.

Mr. HUBERT. Well, now, when Ruby stated what you said he stated concerning the poster, and so forth, did you have any comment to make about it?

Mr. SENATOR. Well, nothing compared to him. Of course, after I heard him mention it, then I sort of wondered also why an ad like that would be put in the paper, or why anybody would want to impeach Justice Earl Warren. What did it mean?

Mr. HUBERT. Jack had taken the pictures and he had gone to the post office to check on the box. Did he state what he intended to do further?

Mr. SENATOR. No.

Mr. HUBERT. Then you tried to calm him down?

Mr. SENATOR. No.

Mr. HUBERT. Was it your impression that his state was that he should be spoken to by a friend and calmed down?

Mr. SENATOR. Well, I don't know. It is hard for me to say these things. Who would really know?

Mr. HUBERT. But in any case you didn't argue with him about his view?

Mr. SENATOR. No. I don't argue with him at any time.

Mr. HUBERT. You did not state a concurring view, I take it?

Mr. SENATOR. No.

Mr. HUBERT. Or an opposing view?

Mr. SENATOR. No.

Mr. HUBERT. Nor did Larry?

Mr. SENATOR. Larry I can't speak for because I just don't remember.

Mr. HUBERT. And you don't remember whether Ruby spoke to anybody else or anyone else spoke to him?

Mr. SENATOR. Not to my knowledge.

Mr. HUBERT. Then what did you all do next?

Mr. GRIFFIN. Before you go on, did Jack indicate what he was going to do with the photographs that he took?

Mr. SENATOR. No. He just took them and he never said what he was going to do with them. Of course, I know what the windup was with them later on.

Mr. GRIFFIN. What was that?

Mr. SENATOR. Well, I believe the local policemen got them after the shooting when they searched him, took his money and his papers, and all of that, and I believe those pictures were with it.

Mr. GRIFFIN. When you——

Mr. SENATOR. At least I assumed the pictures were with him.

Mr. GRIFFIN. Do you recall where this sign was located? When you rode out there in the car, do you recall any conversation you had with him, out to the sign?

Mr. SENATOR. No.

Mr. HUBERT. That was covered.

Mr. SENATOR. You see, when I have to jump 5 months back, it is hard to remember little things. It is not holding back. It is hard to remember.

Mr. HUBERT. Where did you all go then?

Mr. SENATOR. From there he dropped Larry off, and Larry went back up and went to bed, up at the club. Then we went home.

Mr. HUBERT. Was there any further discussion at all between you and Ruby?

Mr. SENATOR. Let's see; I think we put on the TV for awhile that morning.

Mr. HUBERT. It was about what time of the morning when you got back?

Mr. SENATOR. I would say somewhere between 5 and 6. Of course, I am guessing the time.

Mr. HUBERT. It was still dark, wasn't it?

Mr. SENATOR. Yes, but I think it was sort of a break already; you know, sort of lighting up a little bit.

Mr. HUBERT. Go on.

Mr. SENATOR. And if I remember right, I think it was a rerun of the episodes of the day, if I remember.

Mr. HUBERT. Did you go to bed before Jack?

Mr. SENATOR. You mean when we came back to the apartment?

Mr. HUBERT. Yes.

Mr. SENATOR. The same time. We went at the same time.

Mr. HUBERT. In other words, you all looked at TV for a period. How long a period?

Mr. SENATOR. I don't know; maybe 10 or 15 minutes.

Mr. HUBERT. And you all went to bed?

Mr. SENATOR. Yes.

Mr. HUBERT. You went to sleep?

Mr. SENATOR. Yes.

Mr. HUBERT. Do you know whether he did or not?

Mr. SENATOR. Well, he went to bed. I assumed——

Mr. HUBERT. You were in a different room from him?

Mr. SENATOR. Yes. I assumed he did, because when I woke up he was still asleep; you know, later on.

Mr. HUBERT. What time was that?

Mr. SENATOR. I would say I must have woke up around, I don't know, 10 o'clock, something like that.

Mr. HUBERT. That is Saturday morning?

Mr. SENATOR. Saturday morning. I would say something like that.

Mr. HUBERT. He was still asleep?

Mr. SENATOR. Yes; he was still asleep, but through the normal shuffling, you know, going to the bathroom and such and such, it woke him up.

Mr. HUBERT. Where was the telephone in that apartment?

Mr. SENATOR. In the living room, but it had a long wire.

Mr. HUBERT. But the ringing sound came from the actual machine itself? The ring would be where the phone was located?

Mr. SENATOR. Yes.

Mr. HUBERT. Where was the phone located that night, do you know, in the living room?

Mr. SENATOR. I think it was in the living room.

Mr. HUBERT. How far from your bedroom was it?

Mr. SENATOR. I couldn't——

Mr. HUBERT. As close as his?

Mr. SENATOR. Let me tell you. In the living room, of course, he had one of these extension wires that would probably run, what, 13 feet or something like that, 12 feet, I don't know what the extension is, but where it was at that moment I don't know. I assumed that it was on the table. I just don't remember.

Mr. HUBERT. Would he normally take it in his room?

Mr. SENATOR. I don't think he could get it all the way in his room. You see, he had the far bedroom and my bedroom was closer. I could take it in mine, but I don't think I could take it in his, or he might be able to take it just partially a little bit, but I don't think it would extend that far.

Mr. HUBERT. If the phone machine was in the living room where it normally was, you would be closer to it, right, than he would?

Mr. SENATOR. Yes.

Mr. HUBERT. I take it you did not hear a phone call for him that morning?

Mr. SENATOR. No.

Mr. HUBERT. Have you ever had occasion where the ringing of the phone awakened you?

Mr. SENATOR. I would have to say "No" on that because I am always up before he is.

Mr. HUBERT. Tell us whether or not if Jack had received a phone call about 8:30 Saturday morning you would have heard it and it would have awakened you?

Mr. SENATOR. If he did I just don't recollect. I wouldn't say he did or didn't have one because I just don't remember if he did have one.

Mr. HUBERT. You don't remember if he had one?

Mr. SENATOR. No.

Mr. HUBERT. That I understand. But what I am asking you is whether or not the ringing of that phone in the position it was as you have explained it that is closer to you than to him, would have awakened you.

Mr. SENATOR. Oh sure, sure. I could have heard it.

Mr. HUBERT. Are you willing to go so far as to state that since it did not awaken you, that there was no phone call?

Mr. SENATOR. I couldn't quote because I don't know if there was a phone call.

Mr. HUBERT. That is not what I asked you. I am asking you whether you are willing to state that if there had been a phone call, it would have awakened you?

Mr. SENATOR. I would assume so.

Mr. GRIFFIN. Let me go back a bit here. Up until the time you went to bed early Saturday morning, had Jack told you what he had done since the President was shot?

Mr. SENATOR. Yes; I know of some of them. I know that he went to the synagogue.

Mr. GRIFFIN. Let me ask you did he tell you that night? I am not asking you what you know now, but before you went to bed Saturday morning had Jack told you what he had done that night, rather what he had done since the President had been shot?

Mr. SENATOR. I think he went to the—wait, I don't remember if he told me that night or it was the next day. This is the thing I don't remember.

Mr. GRIFFIN. That is what I am trying to get at is whether you have any recollection.

Mr. SENATOR. I don't remember, but I do know that he had told me that he went to a synagogue and that he brought sandwiches around to the police station, these are things I knew that he did. But I don't remember if he told me that night or the next morning. I don't remember which time it was.

Mr. GRIFFIN. When you got up the next morning?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Was Jack up?

Mr. SENATOR. No; he was sleeping.

Mr. GRIFFIN. And did you see Jack before you left the house Saturday morning?

Mr. SENATOR. Oh yes. He was still home when I left.

Mr. GRIFFIN. Was he awake?

Mr. SENATOR. Oh sure.

Mr. GRIFFIN. So you talked with him?

Mr. SENATOR. Yes.

Mr. HUBERT. That is where I had left off.

Mr. GRIFFIN. That is right. That is why I stopped.

Mr. HUBERT. I think you said as a matter of fact here that the process of your waking up and moving around the house and so forth wakened him. How long did you stay around the house?

Mr. SENATOR. Saturday morning you are referring to?

Mr. HUBERT. Yes; after awakening.

Mr. SENATOR. Saturday morning I must have left, as a guess, mind you, somewhere around, maybe somewhere between 11:30 and 12:30. Of course, I am only guessing. I could be a half hour off or I might be an hour off.

Mr. HUBERT. That is to say that you stayed around the house anywhere from 1 hour to 2 hours after you awakened?

Mr. SENATOR. Yes; I would probably say that.

Mr. HUBERT. And during most of that time Jack was awake and up, too?

Mr. SENATOR. Yes. He awoke after.

Mr. HUBERT. Can you recall the substance of the conversations between you during that period of either 1 hour or 2 hours or something in between?

Mr. SENATOR. Well, we watched TV a bit, and he had mentioned—of course, he wasn't feeling good when he woke up—he had mentioned the

fact, he sort of rehashed the President and the kids all the time, how sorry he felt for them and how a great man like President Kennedy could have been shot. He thought this was a terrible thing to happen. Many a time he went through this how sorry he felt for the kids and Mrs. Kennedy, a poor tragic thing like this to happen to them.

Mr. HUBERT. Did he tell you that he had decided to close the clubs?

Mr. SENATOR. No. I wasn't with him. That was Friday night.

Mr. HUBERT. I understand that, but I mean by Saturday morning, we are speaking of the conversations of Saturday morning.

Mr. SENATOR. No; this I already knew.

Mr. HUBERT. You already knew?

Mr. SENATOR. Yes.

Mr. HUBERT. When did you find that out?

Mr. SENATOR. Friday night.

Mr. HUBERT. Who told you?

Mr. SENATOR. The ad in the paper.

Mr. HUBERT. That is how you first saw it?

Mr. SENATOR. That is how I knew. That was an ad at the same time——

Mr. HUBERT. Did you discuss with him at any time, either on Friday night or Saturday morning, the fact that he had closed the clubs, and the reason therefor?

Mr. SENATOR. He told me why he closed the club. He put this in heavy black, in heavy black block, that the Carousel will be closed Friday, Saturday, and Sunday, because he thought it was a terrible thing for anybody to be dancing and entertaining or drinking of that nature there at a time such as this.

Mr. HUBERT. You say that he put an ad In the paper Friday night that the club would be closed for 3 days?

Mr. SENATOR. I don't know what time because I assume he put it in sometime Friday afternoon.

Mr. HUBERT. But the first time you saw the notice about the closing of the clubs, there was an announcement that the club would be closed for 3 days?

Mr. SENATOR. Thursday, Friday, and Saturday, I mean Friday, Saturday, and Sunday. That is the way the ad ran.

Mr. HUBERT. And you saw that on Friday night before going to sleep?

Mr. SENATOR. Yes.

Mr. HUBERT. Did you ever talk to him about it?

Mr. SENATOR. About the ad?

Mr. HUBERT. Yes.

Mr. SENATOR. Being closed?

Mr. HUBERT. Yes.

Mr. SENATOR. I told him that I read it.

Mr. HUBERT. And what was his comment, or query?

Mr. SENATOR. He was hoping that everybody else would close. He was hoping that the two other strip joints would close when they read his ad, because he didn't feel they should be open on account of the simple reason of the tragedy that happened, where they should be having entertainment, dancing, and drinking. He didn't think it was the right thing to do at this time.

Mr. HUBERT. Did he indicate to you that he thought it would hurt them if they did not close also?

Mr. SENATOR. That it would hurt their business?

Mr. HUBERT. The other business, his competitors?

Mr. SENATOR. Well, I don't know about that, but I assumed, of course, I am assuming only what I think, that I believe a lot of stores also closed that day. I think Neiman Marcus closed. I believe in that downtown area there was quite a few stores that did close.

Mr. HUBERT. Did it come to your attention that he was attempting to keep his competitors from knowing that he proposed to close?

Mr. SENATOR. How could he when he ran an ad?

Mr. HUBERT. I mean for the Friday night.

Mr. SENATOR. To keep them from knowing?

Mr. HUBERT. Yes.

Mr. SENATOR. Not that I know of.

Mr. HUBERT. Did he ever indicate to you——

Mr. SENATOR. As a matter of fact, I would think he would want them to close.

Mr. HUBERT. Why?

Mr. SENATOR. And I assumed that the way he put that ad in there. He thought everybody should observe something, such as what happened.

Mr. HUBERT. Were you aware that he had told Larry Crafard not to put a little sign that was posted in front of the Carousel, not to tack it up announcing the closing of the Carousel until after the time for the opening of the other competitors?

Mr. SENATOR. No; because I never saw him that day.

Mr. HUBERT. But he didn't indicate to you as a matter of fact that he would like to see them open while he was closed?

Mr. SENATOR. No.

Mr. HUBERT. In grief over the President?

Mr. SENATOR. I was sort of inclined with my own thoughts in mind that he would probably want to see them closed. This was my own thought of mind.

Mr. HUBERT. Did Jack give you any of his reflections on how this tragedy of the death of the President would affect the community of Dallas?

Mr. SENATOR. No; not that I can recall.

Mr. HUBERT. I am talking about either Friday night or Saturday or at any other time.

Mr. SENATOR. You are referring to the individuals in the city of Dallas, right, the people of the city of Dallas?

Mr. HUBERT. The business principally.

Mr. SENATOR. No; I don't think so.

Mr. HUBERT. Do you recall his making any comment to the effect that this tragedy would hurt the convention business of Dallas?

Mr. SENATOR. If he said it I just don't remember.

Mr. HUBERT. Did he make any comment to you that you recall or heard to the effect that the tragedy and the hurting of the convention business would hurt his own Carousel and Vegas business?

Mr. SENATOR. I don't remember.

Mr. HUBERT. He did not comment upon that at all?

Mr. SENATOR. If he did, I just don't remember. I really don't.

Mr. HUBERT. What was his general condition on Saturday morning during the hour or 2 hours that you had occasion to observe him as opposed to the condition that you have already described on Friday night?

Mr. SENATOR. He still had that hurt feeling within him of what happened, and apparently this had never left his mind.

Mr. HUBERT. Did he talk about the poster and the pictures he had obtained of it, or the Bernard Weissman ad?

Mr. SENATOR. He was now referring to the tragedy of the President, and of the family, what would happen to the family.

Mr. HUBERT. In other words, on Saturday morning the events of earlier that morning, that is his agitation over the poster and his agitation over the advertisement seemed to have passed away?

Mr. SENATOR. I don't know if it did or not.

Mr. HUBERT. But he didn't comment on it?

Mr. SENATOR. I don't remember him commenting on it.

Mr. HUBERT. And his attitude at least was different in that regard than what it was the night before?

Mr. SENATOR. What he thought I still don't know about that.

Mr. HUBERT. You have given us a description of what his reaction was to the poster and to the ad.

Mr. SENATOR. Yes; now what happened——

Mr. HUBERT. That Friday night. All I am trying to do is get a comparison of his attitude in those areas between the two times. Do you see what I mean? I gather from what you tell me, let me see if I can rephrase it, that on Saturday morning the stress, if it could be called that, or the most important aspect of his reaction that you observed was his feeling of sorrow as to the President's family.

Mr. SENATOR. Saturday morning?

Mr. HUBERT. Saturday morning.

Mr. SENATOR. Yes; which was working on him pretty good.

Mr. HUBERT. Now you say that it was working on him pretty good, and that is a mental impression that must have been created by the happening of events or by statements being made. How was it working on him pretty good? What did he say or do to convey to you that it was working on him pretty good?

Mr. SENATOR. He kept on repeating these things, numerous times he repeated that.

Mr. HUBERT. Was that extraordinary for him?

Mr. SENATOR. I would think it would be. To me it would be.

Mr. HUBERT. And what else was he doing that indicated to you——

Mr. SENATOR. And I had seen him cry, because I guess who hasn't you know.

Mr. HUBERT. And what else?

Mr. SENATOR. And I had seen him cry, and he just got that funny look in his eyes. I don't know how to describe it. You call it a far-away look or a look of something. I don't now how to tear it down. But it wasn't a natural look.

Mr. HUBERT. Did you have that impression that morning or have you reconstructed all this in your mind after all the events had happened?

Mr. SENATOR. About his looks?

Mr. HUBERT. Yes.

Mr. SENATOR. No; you could see it. After all, I have been around him enough to know the difference.

Mr. HUBERT. You noticed the difference. And, of course, he shot Oswald.

Mr. SENATOR. What?

Mr. HUBERT. You noticed this difference, and you now have a recollection of noticing that difference about the events of the next day; is that right?

Let me show you what I mean. I want you to try to remember whether you had a distinct impression, which you now recollect, on Saturday about his worsening condition. Do you have that recollection now, Mr. Senator?

Mr. SENATOR. Yes; I could tell by facial expressions, facial look.

Mr. HUBERT. What I am getting at is whether or not in thinking over this thing as you must have done, of course, that you reconstructed all of this, and that your recollection is of the reconstruction rather than of the fact itself. Do you understand what I mean?

Mr. SENATOR. No; I don't know what you mean when you ask me if I am reconstructing it.

Mr. HUBERT. What I mean is this. When after all this whole thing came to a climax with the shooting of Oswald by Ruby, you must have put all of your thoughts together concerning those last days, and as a matter of fact you have been questioned a number of times by a number of people.

Mr. SENATOR. Yes.

Mr. HUBERT. Including Government agents?

Mr. SENATOR. Yes.

Mr. HUBERT. And including his lawyer. What I want to know is whether what you are telling us now is a recollection of the reconstruction of this whole period, or is it now a distinct recollection independent of any reconstruction that you made in telling the story to anybody else. Do you remember now, today, that on that Saturday morning you had the feeling that man is getting worse on this subject?

Mr. SENATOR. That is the way he appeared to me.

Mr. HUBERT. And you remember that now, that that thought turned over in your mind on Saturday morning.

Mr. SENATOR. Yes; I do.

Mr. HUBERT. Did it alarm you in any way?

Mr. SENATOR. I don't know how to describe myself with it, but I know it didn't look good.

Mr. HUBERT. What was your fear?

Mr. SENATOR. I wasn't fearing anything. I just didn't like the way he looked.

Mr. HUBERT. When you say it didn't look good, in what way do you mean?

Mr. SENATOR. It didn't look like the normal look as I have known him.

Mr. HUBERT. Was your concern, if not your fear, that he might go off his normal method of thinking or that he would do himself harm? I mean were you concerned or was it just simply an observation which you passed on?

Mr. SENATOR. I am observing all this. You know I can tell. But I didn't know what to think. I didn't know how to think.

Mr. HUBERT. I think you have already said that you didn't have any fears of anything.

Mr. SENATOR. No; I wasn't afraid of him.

Mr. HUBERT. No; but I mean were you concerned that something might happen to him, that he might do something?

Mr. SENATOR. No; not particularly; no.

Mr. HUBERT. Did you think that——

Mr. SENATOR. The thing is I never asked him the thoughts within him or what he was thinking about.

Mr. HUBERT. Did it occur to you that maybe somebody ought to talk to him about it, that his grief was going to the point, or his condition of being upset was going to the point that somebody ought to talk to him about it?

Mr. SENATOR. I know he visited his sister, and, of course, both were in grief together, and I don't know if he contacted his rabbi or not.

Mr. HUBERT. I think you mentioned a little while ago that he told you he had been to the——

Mr. SENATOR. To the synagogue.

Mr. HUBERT. To the synagogue?

Mr. SENATOR. If he talked to the rabbi, I don't know. Now, I know that he went to the synagogue that Friday night to pray for the President. Now, if he had personal contact with the rabbi I don't know.

Mr. HUBERT. Do you know whether he went to the synagogue on Saturday?

Mr. SENATOR. I don't know. I really don't know.

Mr. HUBERT. You left him at the house when you left?

Mr. SENATOR. Yes.

Mr. HUBERT. And you left at approximately 12:30?

Mr. SENATOR. I would say something around that nature.

Mr. HUBERT. He would certainly not have gone to the rabbi then, to the synagogue, on Saturday morning.

Mr. SENATOR. I don't know. I mean I couldn't answer that. I wouldn't know.

Mr. HUBERT. Maybe you can, or at least you can give us some facts. He was asleep when you awoke at 10:30, isn't that right?

Mr. SENATOR. Yes; but he was up. He Was up when I left.

Mr. HUBERT. And you left at 12:30?

Mr. SENATOR. I am only assuming within an hour.

Mr. HUBERT. So it could have been 11:30?

Mr. SENATOR. 11:30, 12, 12:30. I can't say because actually, you know, when this period is going on, I am not watching clocks. I don't own one. I can't go by a timetable because I didn't have the time.

Mr. HUBERT. Certainly, he didn't leave the house from the time he got up until you left.

Mr. SENATOR. No; I left first.

Mr. HUBERT. That is correct.

Mr. SENATOR. Now, what time he left I don't know.

Mr. HUBERT. But he didn't leave the house from the time you got up until the time you left?

Mr. SENATOR. That is right.

Mr. HUBERT. Now, perhaps we can fix the time when you left a little better by going on and seeing where you went. I ask you where you went?

Mr. SENATOR. Saturday where did I go? Saturday I think I stopped down, I think my first stop was down at the coffee shop. I think I went down for coffee, and my whereabouts, I don't even know where I went that day because I don't work on Saturdays. I guess I probably just as well stood around. Just where I went, I remember where I went Saturday evening, but I don't remember where I went Saturday afternoon. Just no particular place or anything unusual.

Mr. HUBERT. You do recall that your first stop in any case was the coffeeshop?

Mr. SENATOR. Yes.

Mr. HUBERT. Which one was that?

Mr. SENATOR. I think it was Eatwell Coffee Shop that I went to.

Mr. HUBERT. You had sort of breakfast and coffee?

Mr. SENATOR. Coffee and. Maybe coffee and a doughnut or coffee and a bun or something like that.

Mr. HUBERT. You were driving the Volkswagen?

Mr. SENATOR. Yes.

Mr. HUBERT. You were not on business?

Mr. SENATOR. No.

Mr. HUBERT. And you say you have a distinct recollection of some event that night?

Mr. SENATOR. Of where I was?

Mr. HUBERT. Yes.

Mr. SENATOR. Oh yes; because when I came home that night, I think it was around somewhere between 7 and 7:30, I think I come home that night, and I come home with some groceries that I wanted to make. So I made some groceries and——

Mr. HUBERT. Was Jack home at that time?

Mr. SENATOR. Yes; he was gone.

Mr. HUBERT. He was not there?

Mr. SENATOR. No; he wasn't there.

Mr. HUBERT. That was about 7:30?

Mr. SENATOR. I would say I think it was around 7:30. So I made the groceries and then I left some for him, and I ate and I was assuming that maybe he would be home by the time I was making the groceries. But he wasn't home, so after I ate I went out again.

Mr. HUBERT. Had you been drinking that afternoon?

Mr. SENATOR. I don't remember. Possibly I may have had a beer or two. I just don't remember. I am not a heavy drinker. I am not a drunkard, mind you.

Mr. HUBERT. No; I didn't mean to infer that at all, but I was wondering why it was that you couldn't give us any indication of where you went,

whether it was one or several places between noon or 12:30 until 7:30 that night. I think you can remember some of the things, some of the places.

Mr. SENATOR. Well, let me see.

Mr. HUBERT. You didn't come home until 7:30?

Mr. SENATOR. No. I was out.

Mr. HUBERT. Did you follow any usual Saturday afternoon routine?

Mr. SENATOR. No. There is nothing. There is no routine. Saturday, there is no routine.

Mr. HUBERT. You didn't call on any customers?

Mr. SENATOR. No; nothing. Just out, that is all.

Mr. HUBERT. Were you riding around for 7½ hours?

Mr. SENATOR. No.

Mr. HUBERT. Where did you go?

Mr. SENATOR. This is what I am trying to think, where did I go. I don't remember if I called my lawyer friend or met my lawyer friend or not that day.

Mr. HUBERT. Who is your lawyer friend?

Mr. SENATOR. I have got—Jim Martin. I don't remember if I called him. Once in a while I'd have a beer with him.

Mr. HUBERT. But you don't know whether you had a beer with him, I suppose?

Mr. SENATOR. I don't remember. I just don't remember the routine of the day. There was nothing that I did in general.

Mr. HUBERT. You did go to some grocery store to pick up the groceries?

Mr. SENATOR. Yes.

Mr. HUBERT. Do you remember which one that was?

Mr. SENATOR. Sir?

Mr. HUBERT. Do you remember which grocery store it was?

Mr. SENATOR. Yes; I think I went to Safeway.

Mr. HUBERT. Safeway?

Mr. SENATOR. Safeway.

Mr. HUBERT. On what street?

Mr. SENATOR. That is on Jefferson.

Mr. HUBERT. Well now, does the recollection of that fact, which must have been what you did almost immediately before going home—let me put it this way. Was your trip to Safeway to pick up the groceries the thing that you did immediately before you went home?

Mr. SENATOR. Yes.

Mr. HUBERT. So it would be safe to say, wouldn't it, that you went to Safeway around a half hour to an hour before you went home?

Mr. SENATOR. I probably had gone maybe around 6:30 or 7, something like that.

Mr. HUBERT. Does that help to refresh your memory as to where you had been just before you went to the grocery?

Mr. SENATOR. Is it possible to forget?

Mr. HUBERT. Why yes, of course, it is.

Mr. SENATOR. Mind you this is 5 months.

Mr. HUBERT. But it is my duty to explore the possibilities.

Mr. SENATOR. I know that. If I could think and help you out I would be happy to, if I knew. I just can't place, place to place, where I have been. I may have been out having a beer or I may have been out chewing the fat with some friend of mine. I just don't remember what I was doing that day.

Mr. HUBERT. It may be that if you think about it a bit more you can help us a little later on.

Mr. SENATOR. I could if I wanted to, I could have made up a fictitious story to you and say that I sat in the bar for 3 hours or I was out with some girl or something like that. He is writing all this down. But I am telling you the truth.

Mr. HUBERT. I don't want you to tell us something that is fictitious. If it is a fact that you do not remember, then that is the fact and that is all we want to know. I think that sometimes one's memory is refreshed, as it were, by events. If you can't remember it now, we will come back to it a little later and see if you can recollect what happened in this period of about 6 hours on that Saturday afternoon.

Mr. GRIFFIN. Mr. Hubert, unless you want to pursue this further, let me ask him a question.

Mr. HUBERT. All right, go ahead.

Mr. GRIFFIN. You indicated that you might have visited with Jim Martin. Is this someone that you see regularly?

Mr. SENATOR. Yes. Jim is an attorney down in Dallas, a very good friend of mine, who on occasions I will have a beer with. Now, possibly I may have had it and I just don't remember. I go to see him often, or I meet him.

Mr. GRIFFIN. Is Jim single?

Mr. SENATOR. Pardon me?

Mr. GRIFFIN. Is he a married man?

Mr. SENATOR. Yes, he is a married man. He is the one who also was on the Ruby case for a while.

Mr. GRIFFIN. Where are his offices located?

Mr. SENATOR. On Main Street. As a matter of fact he just moved recently. He was on Main Street, and he is still on Main Street, but the lower part of town in what they call the Lawyers' Building.

Mr. GRIFFIN. Are you accustomed to visiting at his home?

Mr. SENATOR. I go to his home once in a while, yes. I have eaten dinner at his home or I have went up there and cooked for him once in a while.

Mr. GRIFFIN. How long have you known Mr. Martin?

Mr. SENATOR. I would say roughly around 2 or 3 years I guess, something like that.

Mr. GRIFFIN. How did you happen to meet him?

Mr. SENATOR. I think I met him through a friend of mine one day, if I remember right. I think we were having a cocktail one day in the Burgundy Room. I think this is how I met him. I am not sure.

Mr. GRIFFIN. Has he represented you in any legal matters?

Mr. SENATOR. No.

Mr. GRIFFIN. Is he a friend of Jack Ruby?

Mr. SENATOR. He knows Jack. I believe all the lawyers in Dallas know Jack.

Mr. GRIFFIN. Do you recall if you visited in the area where the President was shot, on Saturday?

Mr. SENATOR. What?

Mr. GRIFFIN. Do you recall if you visited in the area where the President was shot?

Mr. SENATOR. Was I down there?

Mr. GRIFFIN. Yes.

Mr. SENATOR. No. I drove by. I mean I didn't stop. I drove by there.

Mr. GRIFFIN. Are there any errands or chores or anything that you customarily do on Saturday?

Mr. SENATOR. No, nothing in particular, no. I will tell you Saturday I just don't like to work. I just don't like to do anything particular, you know. Of course, I would say that, of course, Saturday is a wash day. It is not that I wash every Saturday, you know, or launderette day. I do my own.

Mr. GRIFFIN. Do you do Jack's also?

Mr. SENATOR. No. Jack doesn't even do his own. He sends them out, but I do my own.

Mr. GRIFFIN. Where do you do your laundry?

Mr. SENATOR. Downstairs in the apartment. There is a couple of washers, two or three washers, and a couple dryers right in the apartment. It is like these machines similar to the store like.

Mr. GRIFFIN. Does Jack use those? Did Jack use those?

Mr. SENATOR. No.

Mr. GRIFFIN. Did he have some particular place he sent his laundry?

Mr. SENATOR. He takes it out and has somebody do it for him.

Mr. GRIFFIN. Do you know where that was?

Mr. SENATOR. I was there one time with him when he was picking up his laundry. If I am not mistaken, I think it was on the McKinney or Fitzhugh, Fitzhugh or McKinney. I think it was somewhere up in that neighborhood. But Jack, he takes his laundry and sends it to this place. He takes it over. But instead of him doing it, he has a girl do it for him, and they straighten it out for him when it dries up and all that there. Then he will come back and pick it up. If he don't pick it up one day he will pick it up the next.

Mr. GRIFFIN. He takes it over to this laundry?

Mr. SENATOR. Yes.

Mr. GRIFFIN. The girl does it for him at the laundry?

Mr. SENATOR. She does it with the soap and powder and all that. They have girls over there, a couple colored girls.

Mr. GRIFFIN. This would ordinarily be a self-service laundromat?

Mr. SENATOR. Yes.

Mr. GRIFFIN. But there are people there so that if you don't want to serve yourself they will do it for you?

Mr. SENATOR. Yes; that is the nature of this place.

Mr. GRIFFIN. His brother Sam, wasn't he in the laundry business?

Mr. SENATOR. Sam fixes those machines. I think Sam was employed by somebody. I don't know who he was employed by, but he fixes these washers.

Mr. GRIFFIN. But he doesn't have washaterias?

Mr. SENATOR. Not to my knowledge; no. I think he is an employee.

Mr. GRIFFIN. This area that you are describing, is that in the general Oak Cliff area that you people lived in?

Mr. SENATOR. No, no. This is in town.

Mr. GRIFFIN. Downtown?

Mr. SENATOR. Not downtown but you have to go through downtown to go uptown.

Mr. GRIFFIN. What section would you call this section?

Mr. SENATOR. That area would be I would say sort of north—northwest part of town I think.

Mr. HUBERT. While you are on the laundry subject, wasn't there some equipment in the basement of the building you were in?

Mr. SENATOR. Yes; I said I did mine but he don't do his.

Mr. HUBERT. When you came home, as I understand it, it was about 7:30, and you fixed a meal for yourself. Before I pass for the moment from this period on Saturday afternoon, let me ask you this. You were interviewed I think by the FBI and by Elmer Moore of the Secret Service very shortly after these events, by the FBI, I believe, on Sunday the 24th?

Mr. SENATOR. Yes. No; first the police had me, the local had me.

Mr. HUBERT. The local police?

Mr. SENATOR. Then from the local they put me into the FBI.

Mr. HUBERT. Did they question you at that time as to your activities during this period of 6 hours on Saturday afternoon between roughly 12 and 6 or 12:30 and 6:30?

Mr. SENATOR. No; they questioned me, I believe they questioned me from Friday.

Mr. HUBERT. Did you tell them at that time that you had no recollection of what you had done during this 6-hour period?

Mr. SENATOR. I don't remember what I told them. I don't know if I was asked that, if I can remember right. I believe the questions they asked me, if I remember right, is when was the next time I saw Jack that day, if I remember right, that when I left, what time did I leave that Saturday, and I believe when was the next time I saw him, if I am not mistaken, if that is the way it ran.

Mr. GRIFFIN. Did you give the police a written statement?

Mr. SENATOR. Yes.

Mr. GRIFFIN. You signed a written statement for the police?

Mr. SENATOR. Yes; they made me sign a written statement.

Mr. GRIFFIN. Do you remember what time it was that the police questioned you on Sunday?

Mr. SENATOR. No; I'll tell you why I don't remember. When they grabbed me, they took me and shoved me into some little room all by myself, and I don't wear a watch because I am allergic to watchbands. I can't wear a watch. And I don't know how long I was in this little room.

Mr. GRIFFIN. Was that in the evening or the afternoon on Sunday?

Mr. SENATOR. That was the afternoon.

Mr. GRIFFIN. And had you talked with Jack Ruby up to that time, between the time of the shooting and the time that you were questioned by the police?

Mr. SENATOR. The last time that I saw Jack Ruby is when he left Sunday morning. That is the last time.

Mr. GRIFFIN. And you didn't see him again on Sunday?

Mr. SENATOR. Oh, I saw him when they waltzed me by. When the police got through with me they waltzed me by to the FBI, that is when I saw him through a glass.

Mr. GRIFFIN. But never talked to him?

Mr. SENATOR. No; couldn't get near him.

Mr. GRIFFIN. Did you talk with his sister or with——

Mr. SENATOR. That day?

Mr. GRIFFIN. Or with anybody else who had seen Jack?

Mr. SENATOR. No.

Mr. GRIFFIN. Before you were questioned?

Mr. SENATOR. No. I'll tell you why. When I got out, when I got through with this whole thing that night, it was already dark outside, and I for one had never seen the shooting on TV, and I still have never seen it to this day, the shooting on TV, and I never saw the runs because they had me there that late. I don't remember what time I got out that night, but I assume it was dark. It may have been around 7 o'clock.

Mr. GRIFFIN. So between the time you left Jack Ruby back at the apartment on Sunday, and the time that the police first started to question you later on Sunday afternoon, you didn't see Jack Ruby in that interval?

Mr. SENATOR. No.

Mr. GRIFFIN. At least to talk to?

Mr. SENATOR. No.

Mr. GRIFFIN. Did you see Eva Grant?

Mr. SENATOR. No.

Mr. GRIFFIN. Did you see Tom Howard?

Mr. SENATOR. Tom Howard?

Mr. HUBERT. Let's take a little recess at this point.

(Short recess.)

Mr. HUBERT. We will convene again after recess, with the same conditions and same understanding about the oath and so on.

Now I think you said you came back home at 7:30 on Saturday night and you had bought some groceries and Ruby was not there.

Mr. SENATOR. Right.

Mr. HUBERT. You fixed yourself something to eat, and I believe you said that you left.

Mr. SENATOR. No; first of all I was thinking that he might show up while I was——

Mr. HUBERT. You fixed enough I think you said for two people.

Mr. SENATOR. Yes.

Mr. HUBERT. Did he come home before you left?

Mr. SENATOR. No.

Mr. HUBERT. What time did you leave?

Mr. SENATOR. I left about maybe around 8, 8:30. As I say, I got to——

Mr. HUBERT. Did he have any phone calls prior to your leaving?

Mr. SENATOR. No.

Mr. HUBERT. Did you have any?

Mr. SENATOR. No.

Mr. HUBERT. Where did you go?

Mr. SENATOR. From there I went downtown. I think I went to the Burgundy Room, if I am not mistaken, that night.

Mr. HUBERT. That is in the Adolphus Hotel?

Mr. SENATOR. Yes; and I met a friend of mine there, and we were feeling low. I was feeling low.

Mr. HUBERT. What is the name of the friend?

Mr. SENATOR. Bill Downey.

Mr. HUBERT. What is his occupation?

Mr. SENATOR. He is a traveling salesman who sells musical equipment and all the other stuff that goes with it.

Mr. HUBERT. All right.

Mr. SENATOR. Let's see now, and Mike Barclay. He is an attorney.

Mr. HUBERT. The three of you were together?

Mr. SENATOR. Went out.

Mr. HUBERT. The three of you were together you say?

Mr. SENATOR. Yes. We went out to a bar and we had a beer or two, and everybody was low down and got disgusted, and they all wanted to go home including myself.

Mr. HUBERT. So you all did so?

Mr. SENATOR. So we all went home, and I think I got home about 10:30.

Mr. HUBERT. Was Jack there then?

Mr. SENATOR. Yes. Jack was there. He had eaten, and he said he was going out. Now, where he went I don't know, but he said he was going out.

Mr. HUBERT. Would you describe his condition then?

Mr. SENATOR. His condition was in the same thing it was in the past.

Mr. HUBERT. Was it like it was in the morning?

Mr. SENATOR. Yes. He was in that same kind of condition.

Mr. HUBERT. He was no worse?

Mr. SENATOR. Well, it is hard to say how much worse it was. He didn't look good.

Mr. HUBERT. The reason I asked that question is because——

Mr. SENATOR. You know when you say "worse," I don't know how to put words together, you know, in expressions, the expression of an individual's face.

Mr. HUBERT. Let me show you what I mean. Perhaps you can help me when I tell you what I have in mind. You have told us earlier that you thought that his condition on Saturday morning was worse than it was on Friday night and early Saturday morning.

Mr. SENATOR. Yes.

Mr. HUBERT. I think the expression you used, "the thing was getting at him," so that you formed the impression that the condition was worsening, isn't that correct? Is that a fair statement?

Mr. SENATOR. That is the way it looked; yes.

Mr. HUBERT. Now I ask you if you will give us a comparison.

Mr. SENATOR. I know what you are talking about, but I don't know how to compare these things, you know.

Mr. HUBERT. Was it worsening? Was it getting to him more? Did it seem to be getting to him more Saturday night as opposed to 12 hours earlier roughly Saturday morning?

Mr. SENATOR. I would probably say it was of the same nature or something like that. It wasn't good, because for me to try to express, and I don't know how to express a facial nature. It is just hard for me to put in words. If you take the complete facial expression and the eyes and all that, I am not a connoisseur at just being able to express these things, you know.

Mr. HUBERT. No; I am just asking you for another comparison because you had given us a previous one, and I thought that another comparison between another period, two others periods, would be useful if you could give it to us, and that is all. I gather from you that your general impression was that there had not been much change in his condition over what it was on Saturday morning.

Mr. SENATOR. I will say something in the same nature.

Mr. HUBERT. That it was of the same nature?

Mr. SENATOR. Yes.

Mr. HUBERT. Do you recall what the nature of the conversation was between you two that night?

Mr. SENATOR. No; because when I walked in, he was just about on his way out. I asked him if he ate. I told him I bought groceries. He said, "Well, I ate already." He ate.

Mr. HUBERT. How long after you arrived did he leave?

Mr. SENATOR. Oh, God, within 5 minutes. It was just that short, that fast, and out he went. Now, I don't know where his visitation was. I don't know if he went to see his sister.

Mr. HUBERT. He didn't tell you where he was going?

Mr. SENATOR. No.

Mr. HUBERT. Then or ever?

Mr. SENATOR. No; he didn't tell me at all where he was going.

Mr. HUBERT. He never did tell you later?

Mr. SENATOR. No; and I didn't ask him.

Mr. HUBERT. Then you don't know where?

Mr. SENATOR. No; because when I went home, you know, when I got home I went to bed. I was going to bed.

Mr. HUBERT. And you went to bed about 10:30?

Mr. SENATOR. I would say about half an hour later, maybe around 11.

Mr. HUBERT. Do you know what time he came in?

Mr. SENATOR. No; because I wasn't awake.

Mr. HUBERT. The next time you saw him?

Mr. SENATOR. Was Sunday morning.

Mr. HUBERT. What time did you awaken on Sunday morning?

Mr. SENATOR. Sunday morning I assume it was somewhere around between 8 or 9, somewhere in that time. Just something in that time.

Mr. HUBERT. Have you any way to fix it at all?

Mr. SENATOR. No; you see, when I was on the witness stand with Mr. Bill Alexander, now he tried to make me pinpoint it right down to the minute. It is highly impossible. If you are not watching a clock and don't have one, how can you pinpoint these things? How can you really do it? How is it possible? How can you pinpoint time when you are not watching it?

Mr. HUBERT. In any case what you are saying, your best estimate is that it was——

Mr. SENATOR. I have to estimate it. Now, as I say when I estimate it, I can be 15 minutes, a half hour or maybe an hour off on time.

Mr. HUBERT. I think you told us earlier that when you went to bed as early as 11 o'clock you usually woke up quite early.

Mr. SENATOR. Yes; this is why I say I probably woke up maybe around 8 or 9 that morning.

Mr. HUBERT. Was Ruby——

Mr. SENATOR. Of course, I read in bed, you know. I read in bed.

Mr. HUBERT. Was Ruby there when you woke up, or not?

Mr. SENATOR. Yes; he was sleeping.

Mr. HUBERT. When did he waken?

Mr. SENATOR. Ruby must have woke up I assume it probably would have been maybe—of course, I have to guess again—I would assume somewhere around between 9 and 9:30.

Mr. HUBERT. Why don't we put it in terms of how much after you did Ruby wake up. In other words, no matter what time you awoke, can you tell us how long after he awakened?

Mr. SENATOR. It could be maybe three-quarters of an hour or an hour. I am not sure.

Mr. HUBERT. What is your first distinct recollection of him that morning?

Mr. SENATOR. Well, the moment he got up he went to the bathroom, which is normal for him.

Mr. HUBERT. Did you speak to him then?

Mr. SENATOR. Yes; I did. Of course, we turned on the TV. He had the TV going. He turned it on to see what the latest news was. Then he went to the bathroom. Of course, then he washed, and he went in and made his own breakfast. I only had coffee. He made himself a couple of scrambled eggs and coffee for himself, and he still had this look which didn't look good.

Mr. HUBERT. Again I want to ask you, can you give us a comparison between the look that he had that morning, which you just described, as opposed to what it was on other occasions in the sense of whether it was growing worse or not?

Mr. SENATOR. He looked a little worse this day here. But if you ask me how to break it down, how he looks worse, how can I express it? The look in his eyes?

Mr. HUBERT. Well, is that one of the things?

Mr. SENATOR. Yes; that is the way it seems.

Mr. HUBERT. The way he talked or what he said?

Mr. SENATOR. The way he talked. He was even mumbling, which I didn't understand. And right after breakfast he got dressed. Then after he got dressed he was pacing the floor from the living room to the bedroom, from the bedroom to the living room, and his lips were going. What he was jabbering I don't know. But he was really pacing. What he was thinking about——

Mr. HUBERT. That was after he was dressed?

Mr. SENATOR. Yes; now, what he was thinking about, I don't know what he was thinking about. But he did, which I forgot to tell you, he did get that call from this Little Lynn from Western Union.

Mr. HUBERT. You remember the call?

Mr. SENATOR. Yes.

Mr. HUBERT. Did you answer the phone?

Mr. SENATOR. No; he had already been up.

Mr. HUBERT. How did you know it was Little Lynn?

Mr. SENATOR. I could hear him say. I heard him say Lynn, Western Union. I heard him mention Western Union. I heard about the money and that he was sending it to Fort Worth. She needed \$25 for rent.

Mr. HUBERT. Did he tell you that?

Mr. SENATOR. I heard him mention \$25 over the phone.

Mr. HUBERT. How did he mention it, that he would send \$25?

Mr. SENATOR. He would send \$25 to her by Western Union.

Mr. HUBERT. Did he mention that it was for rent?

Mr. SENATOR. Yes; he told me after it was for rent.

Mr. HUBERT. He told you?

Mr. SENATOR. Yes.

Mr. HUBERT. You didn't hear Little Lynn ask for it?

Mr. SENATOR. I couldn't hear it.

Mr. HUBERT. Of course not.

Mr. SENATOR. No.

Mr. HUBERT. Therefore he must have told you.

Mr. SENATOR. He said she called, and, of course, I knew it was Lynn because I knew——

Mr. HUBERT. You knew who she was?

Mr. SENATOR. Sure.

Mr. HUBERT. But after he hung up, he told you that she needed \$25 for rent?

Mr. SENATOR. Yes.

Mr. HUBERT. Did he mention that she had called the night before?

Mr. SENATOR. No.

Mr. HUBERT. You did not know that at the time?

Mr. SENATOR. If she did I don't know. This I don't know.

Mr. HUBERT. Do you know what time that call was?

Mr. SENATOR. I don't know. It could have been anywhere between 9:30, I am not sure, maybe 10. I am not sure what time it was. See now——

Mr. HUBERT. Let's get at it this way.

Mr. SENATOR. Now you are placing me from the time I woke up to the time Jack woke up, but I say with all these things I still have to guess the times.

Mr. HUBERT. That is why I am going to put it to you this way. The time of the call is known, and that is why I would like you to relate events backwards from that time, you see.

Mr. SENATOR. I know that I was off on the time because——

Mr. HUBERT. No; I am not trying to get you off. I am trying to get the facts, so let's approach it this way. How long before the Little Lynn call would you estimate it was that Jack woke up?

Mr. SENATOR. I couldn't estimate the time, but I don't think he was up too long.

Mr. HUBERT. You say he had gone to the bathroom and that he had cooked his breakfast and that he had gotten dressed?

Mr. SENATOR. No; he wasn't dressed at the time Little Lynn called.

Mr. HUBERT. He was not dressed at the time?

Mr. SENATOR. No; he was still in his shorts. I think he was still in his shorts.

Mr. HUBERT. If you could help us on this it would be valuable for us to know about how long prior to the Little Lynn call did Jack actually get up. If you want to break that into segments as to how long it was before he started breakfast, and so forth, well, do that too. It may be helpful to you and it would be to us. I can help you if you want along these lines. Did the Little Lynn call come after he had finished his breakfast?

Mr. SENATOR. No; I think that call came in before he had breakfast. I think it did. I think it was before breakfast. I am not sure.

Mr. HUBERT. He answered the phone as I understand it?

Mr. SENATOR. Yes.

Mr. HUBERT. When he got up he went to the bathroom?

Mr. SENATOR. Yes.

Mr. HUBERT. Did the call come while he was in the bathroom?

Mr. SENATOR. I don't think so.

Mr. HUBERT. After he left the bathroom he went to fix breakfast as I understand it.

Mr. SENATOR. I don't know if the call came in before or after he went to the bathroom. It was one of the two. I don't know which. As I say, I would have to twist it.

Mr. HUBERT. I don't want you to twist it or to guess.

Mr. SENATOR. I have to guess. I have got to guess.

Mr. HUBERT. You have got to give your best estimation.

Mr. SENATOR. I don't know. If I don't know I can't answer it because I have got to guess on this. You put me to guesswork.

Mr. HUBERT. No; we don't want to have you guess. We want your best estimation of the passage of time. If you don't know, we certainly don't want you to guess. But you were there and we weren't. Therefore, we would like to know if you know. We don't want you to guess.

Mr. SENATOR. I don't know. I don't know the times.

Mr. HUBERT. Let me give you another approach to assist you on this. You said that you might have awakened anywhere from 8 to 9 yourself, is that correct?

Mr. SENATOR. Yes.

Mr. HUBERT. Do you think that it was as long as 1 hour after you awoke that the call came from Little Lynn?

Mr. SENATOR. I don't think so. You know this is very complicated when you try to make a timepiece out of this. It really is. I mean especially if you are not watching the time and don't know the time. It is just a complicated thing trying to place a time together.

Mr. HUBERT. That is true, but on the other hand when we have a fixed time, sometimes we can relate events to that time in terms of hours and half hours and so forth. That is what I am asking you to do now.

Mr. SENATOR. You see when you are relating all three there, in the relation of all three here from the time I got up to the time Jack got up to the time he had his breakfast, from the time that Little Lynn called I would be jamming all these things into maybe a half hour to an hour in differences, and they would all almost clog together because I would have to guess at all these, because, mind you, this wasn't a great expanse of hours. This is why I say I will be guessing and have to be wrong. Mind you from the time that I wake up at 8 o'clock in the morning, supposedly around 8 or maybe it was 8:30 or 9, I have to have the answers, supposed to have the answers for what time I woke up, what time Jack got up, Little Lynn in the short span of hours, and it is hard to break these things down and be accurate.

Mr. HUBERT. We understand that, and the purpose is to find out if it is possible to know, and if your answer to us is that you can't tell us, we don't

want you to guess.

Mr. SENATOR. I can't tell you. The reason it is hard to tell you, because I would have to guess at all these and I have no hours. It was such a short span of hours, I would probably assume this whole thing would consummate maybe in what, approximately 2 hours, whatever it may be, maybe 2½ hours, I don't know. Now, you know you have got to jam hours in for these three things to fit, and I can't jam them together to make them fit.

Mr. HUBERT. Let's see if we can't fix sequence of events instead of trying to fix hours. You got up first.

Mr. SENATOR. Yes.

Mr. HUBERT. And Jack got up next.

Mr. SENATOR. Yes.

Mr. HUBERT. Then another fixed event is the time that he went to the toilet. That came next, didn't it? He went to the bathroom?

Mr. SENATOR. Yes.

Mr. HUBERT. Then he fixed himself some breakfast.

Mr. SENATOR. Now you have asked me if he fixed breakfast first or the telephone call, I mean her call.

Mr. HUBERT. Yes.

Mr. SENATOR. I don't remember which came first. Now I am guessing that the call came first. I am not sure. I can't relate to be sure right now.

Mr. HUBERT. As to the sequence of those two events, we now know what your recollection is, and that is that it could have been before or it could have been after.

Mr. SENATOR. I just don't remember.

Mr. HUBERT. But in any event, he certainly dressed after he got the call, is that correct?

Mr. SENATOR. And after breakfast.

Mr. HUBERT. And after breakfast?

Mr. SENATOR. Yes.

Mr. HUBERT. Then after he dressed he paced about some?

Mr. SENATOR. Yes.

Mr. HUBERT. Now, at least we have the sequence of events so far as we are able to put them together.

Mr. SENATOR. Yes.

Mr. HUBERT. We also know, you see, Mr. Senator, that as to one sequence, you don't know. I am not critical of you because you don't know, but we weren't aware that you didn't know until right now.

Mr. SENATOR. As I say, I mean when you take these four incidents and try to, you know, try to jam them all into this short span of hours, I just can't break it down and be right.

Mr. HUBERT. Now let's get to this. Was Jack normally a fast dresser or would you care to estimate whether it took him——

Mr. SENATOR. No; Jack was never a fast dresser or never a fast washer. He took his time. In other words, if I wanted to compare us, I could dress five times as fast as he could or shave or anything else that much quicker than he could.

Mr. HUBERT. Would you say that normally it took him a half hour to get dressed and shaved?

Mr. SENATOR. A half hour to get dressed and shaved? I would probably assume it would take something like that.

Mr. HUBERT. And do you think it took him that long on this morning?

Mr. SENATOR. I don't know if it took him that long.

Mr. HUBERT. But in any case he did dress and you would think that that took him a half an hour?

Mr. SENATOR. I would only have to guess. I can't say.

Mr. HUBERT. Normally it would have?

Mr. SENATOR. I couldn't assume the time.

Mr. HUBERT. Normally it would take him a half hour?

Mr. SENATOR. I would so surmise that it would.

Mr. HUBERT. How long did this pacing go on after he got dressed? It may have been a matter of only a couple of minutes, but if it was more than that, I think you would know it. I think if it was a half hour you would know it.

Mr. SENATOR. I would say that he paced back and forth 5 or 10 minutes. I don't know.

Mr. HUBERT. All right. Was it at that point that he left?

Mr. SENATOR. Yes.

Mr. HUBERT. Did he say anything upon leaving?

Mr. SENATOR. Yes.

Mr. HUBERT. What did he say?

Mr. SENATOR. He said, "George, I am taking the dog down to the club."

Mr. HUBERT. Anything else?

Mr. SENATOR. That was it, and out he went.

Mr. HUBERT. He was fully dressed?

Mr. SENATOR. He was fully dressed.

Mr. HUBERT. Could you describe how he was dressed?

Mr. SENATOR. Well, he wore a hat, wore a suit and a shirt and tie.

Mr. HUBERT. Did he say when he was coming back?

Mr. SENATOR. No; that is the only words he said when he walked out.

Mr. HUBERT. Did you hear him speak to Elnora Pitts on Sunday morning over the telephone?

Mr. SENATOR. No; I didn't.

Mr. HUBERT. Do you know who Elnora Pitts is?

Mr. SENATOR. It is a colored maid. No; I have heard that incident before, but I don't remember this at all. I just don't remember if he did or not. I can't, in other words, I can't refresh my mind whatsoever that Elnora

called. Now, I could be wrong on this, but my mind is not fresh for that long.

Mr. HUBERT. Would it have been possible that you were in a part of the house or outside the house maybe?

Mr. SENATOR. No; I wasn't out.

Mr. HUBERT. You never left the house?

Mr. SENATOR. I was in my shorts all the while, unless I—no, I don't even know. Maybe I could have been in the bathroom. I am not even sure.

Mr. HUBERT. But in any case you have no recollection of Elnora calling?

Mr. SENATOR. I do not remember at all.

Mr. HUBERT. Was it her custom to call when she was coming out there?

Mr. SENATOR. I think he—I don't know, but I know that he has driven by to tell her to come up and clean the apartment sometimes or something of that nature. Now, I know he did that one time, but I don't know if it is his custom to have her call or not. Maybe it had been, maybe it hadn't been. I don't know on that.

Mr. HUBERT. I know I am asking you for another estimate, but I would like to know what your view of it is. That is how long after Karen Bennett called did Jack leave the house?

Mr. SENATOR. Who? Oh, Little Lynn?

Mr. HUBERT. Yes.

Mr. SENATOR. Well, Jack was still in his shorts then when she called.

Mr. HUBERT. Yes?

Mr. SENATOR. This I do remember.

Mr. HUBERT. He had to dress?

Mr. SENATOR. Yes.

Mr. HUBERT. But you are not sure whether he had fixed breakfast or not?

Mr. SENATOR. I don't know which came first, if she called or he fixed breakfast first.

Mr. HUBERT. Leaving those aside, all I was asking was whether or not you could give us an estimate of the time from when Little Lynn called until he told you "I am leaving and I am going out and take this dog to the club." Have you any idea at all? If you don't, tell us.

Mr. SENATOR. Wait, wait, what time she called?

Mr. HUBERT. No; the time interval between when she called and when he left.

Mr. SENATOR. I will make a wild guess. I would say it was at least three quarters, it must have been about three quarters of an hour.

Mr. HUBERT. On what do you base it?

Mr. SENATOR. I am just guessing. I can't base it on anything. I am only guessing.

Mr. HUBERT. Is it quite guessing? You knew he had to dress.

Mr. SENATOR. Sure you have got to dress.

Mr. HUBERT. So that took up some time.

Mr. SENATOR. Yes; had to wash.

Mr. HUBERT. And you also say that he paced up and down for some little interval of time.

Mr. SENATOR. Yes.

Mr. HUBERT. So when you characterize it as a wild guess——

Mr. SENATOR. I have got to guess.

Mr. HUBERT. I wonder if it is a guess so much as it is a putting together of these little segments of time and estimating what each would take.

Mr. SENATOR. I am saying I would have to guess. I would have to guess all this.

Mr. HUBERT. When you said three quarters of an hour, wasn't it really the result of your thinking of how much time would be occupied to do these little segments of activity such as dressing and pacing up and down and so

forth, and you added them up and came to about three quarters of an hour; wasn't that your mental processes rather than a wild guess?

Mr. SENATOR. No, no, no. You asked me a question and I said I would have to guess it. You know it is really amazing to put hours together. Mind you, 5 months have elapsed already, and to try to put these hours together you have got to fluctuate. How can you be sure?

Mr. HUBERT. That is true, but——

Mr. SENATOR. You have got to fluctuate. It is strictly all guess work.

Mr. HUBERT. That is true, but your attention was directed specifically to these time lapses, not 5 months ago, but on that very day.

Mr. SENATOR. They were all guess work, they were all supposedly. I had to give guess works.

Mr. HUBERT. What you are saying now is that the times that you estimated then were guess works even on that very day as to the times on that very day? You were examined, weren't you?

Mr. SENATOR. Yes.

Mr. HUBERT. About 3, 4, or 5 o'clock in the evening?

Mr. SENATOR. And I have always said I would have to guess the time.

Mr. HUBERT. Even as to that day you would have to guess the time?

Mr. SENATOR. That Sunday?

Mr. HUBERT. Yes.

Mr. SENATOR. Yes; I always have to guess.

Mr. HUBERT. On Sunday you said you had to guess the time as to the earlier part of the day?

Mr. SENATOR. I had to guess the time Saturday, I had to guess the time Sunday when he woke me up. I was only guessing it was around 3 o'clock in the morning.

Mr. HUBERT. You see the reason why I am bringing that to your attention is that you stated a moment ago that it is difficult for you to recall these things after 5 months. But I was inviting your attention to the fact that

your memory had been directed to these intervals of time for the first time not today, but on that very day, and your answer to me is that even on that day you were guessing as to the intervals of the earlier part of the day; is that correct?

Mr. SENATOR. Of times?

Mr. HUBERT. Yes.

Mr. SENATOR. Of times.

Mr. HUBERT. Is that a fair statement?

Mr. SENATOR. If a man doesn't see a clock, or doesn't see a watch, what else can he do? What else can you go by?

Mr. HUBERT. All I am saying is that even on the 24th when the police and the FBI asked you about these segments of time on that same day, your statement to us is that even then you were largely guessing?

Mr. SENATOR. I would have to guess the approximate times. If you can tell me if you don't see a clock or a watch, how do you tell?

Mr. HUBERT. You might be able to tell by remembering what TV program was going on at the time. Do you, at any particular time?

Mr. SENATOR. At that time I believe it was something about the late President, but I don't just recall what it was, but I believe it was——

Mr. HUBERT. Practically everything that day was. You don't remember any specific part?

Mr. SENATOR. I don't; no. I don't remember any specific part.

Mr. HUBERT. Did Jack look at it, too? I think you said he did. Did he make a particular comment as to a particular part then being shown?

Mr. SENATOR. No.

Mr. HUBERT. And that was the last time you saw Jack?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Let me get this straight. Were you awake, did you wake up on Sunday morning before Jack?

Mr. SENATOR. Sunday morning? Yes.

Mr. GRIFFIN. Do you have an actual recollection of that, or are you stating this because it was almost always your practice that you did wake up before Jack?

Mr. SENATOR. I always—I would say 95 percent of the time I was up before him.

Mr. GRIFFIN. But on this day do you have any recollection?

Mr. SENATOR. Yes; I know. He was asleep because when I got up he was still in bed.

Mr. GRIFFIN. When you got up, as I understand; you made some breakfast for yourself?

Mr. SENATOR. No; I didn't.

Mr. GRIFFIN. You did not?

Mr. SENATOR. No. I had coffee. I made coffee.

Mr. GRIFFIN. Coffee?

Mr. SENATOR. Yes.

Mr. GRIFFIN. In this period between the time you got up and the time that Jack left the apartment, did you remain in the apartment the entire period?

Mr. SENATOR. Yes. I was still in my shorts when he left the apartment.

Mr. GRIFFIN. And were you visited by anybody?

Mr. SENATOR. No.

Mr. GRIFFIN. That day?

Mr. SENATOR. No.

Mr. GRIFFIN. Or that morning?

Mr. SENATOR. No.

Mr. GRIFFIN. Do you know which are the neighbors in that apartment? Let me start over again? You lived at that South Ewing address on that very same floor right next to Jack for 11 months, approximately?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Before this Sunday we are talking about. Now, did you know any of the other people who lived in the apartment?

Mr. SENATOR. Just to say hello, but that is about as far as it went.

Mr. GRIFFIN. Did you know Sidney Evans?

Mr. SENATOR. Sidney Evans?

Mr. GRIFFIN. Yes.

Mr. SENATOR. I don't know. If I did, I don't know them by name.

Mr. GRIFFIN. How about a man named Malcolm Slaughter?

Mr. SENATOR. No.

Mr. GRIFFIN. They work for the Red Ball Freight Company or Motor Express, truck drivers apparently.

Mr. SENATOR. Did they live there?

Mr. GRIFFIN. They were supposed to; yes.

Mr. SENATOR. I don't know. If I did, I don't know them by name.

Mr. GRIFFIN. Did you know the people who lived across the hall from you?

Mr. SENATOR. When you say across the hall, it was a **U**. That was just by the U shape.

Mr. GRIFFIN. A balcony sort of a situation?

Mr. SENATOR. A balcony, but it was a **U**. In other words, when I walked out of my door, if I kept walking and went over the bannister I would hit the ground. There was nobody facing me.

Mr. GRIFFIN. How about on either side?

Mr. SENATOR. Jack was on one side. Then there were some girls on the other side. The next apartment over there were three girls, something like that.

Mr. GRIFFIN. That **U** that you are talking about, is it sort of a stairwell, is that it? The **U** is on one floor of the stairwell?

Mr. SENATOR. Yes.

Mr. GRIFFIN. And there were three suites on the landing that you people were on? There was the old suite that you occupied, Jack's suite which you were living in on the 24th, and the suite occupied by some girls?

Mr. SENATOR. Oh, no; then it went down further. That wasn't the end of the strip.

Mr. GRIFFIN. There was a hallway, wasn't there?

Mr. SENATOR. No; there was a balcony.

Mr. GRIFFIN. A balcony?

Mr. SENATOR. A railing—I mean you are outdoors. There is nothing concealed. It was just a railing and you are looking outdoors.

Mr. GRIFFIN. And you opened out onto this balcony?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Along this balcony, how many other suites were there along that balcony?

Mr. SENATOR. Running our way, you have got to transplant in your mind—in other words, say that I am facing my door right now.

Mr. GRIFFIN. Yes.

Mr. SENATOR. And the balcony goes u-shaped like this. Do you follow me? In other words, this is all space out here.

Mr. GRIFFIN. Everything in front of you is space?

Mr. SENATOR. Space. Now right past mine, if you turn to the right of mine, then you walk down another balcony. See, there are balconies on this side plus balconies this way.

Mr. GRIFFIN. Well, now along this same level that you were on, and following the whole set of balconies around on the same level, how many different——

Mr. SENATOR. The entire level.

Mr. GRIFFIN. Yes. How many different?

Mr. SENATOR. This is another guesswork. I would say, I would sort of estimate around a dozen places, a dozen apartments.

Mr. GRIFFIN. Now these dozen different apartments, was there a single stairway that led up to that level, or was there more than one stairway?

Mr. SENATOR. No; there was two stairways. There was one from the front, there was one level that come up South Ewing. In other words, you drive around through the back where you park your cars and come up this way.

Mr. GRIFFIN. Another stairway?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Now on this level how many of those dozen suites there perhaps—how many of those people did you know?

Mr. SENATOR. I didn't know any. I never had a conversation with any of them. Now I said hello to the girls next door, but I never talked to them, never had a conversation with them. Of course, they were young girls, not of my category. And the people on the sides, I didn't know any of them. In other words, anybody who walked in, you know, you would say hello whether you knew them or not. But there wasn't a conversation.

Mr. GRIFFIN. Mr. Hubert, I want to carry this on a little bit from what happened after Jack left the apartment.

Mr. HUBERT. I promised him that we would stop at 5 because he expressed the fact that he was somewhat fatigued. He has been up since 2:30. I think rather than get into another segment we might adjourn for the day. You were turning to another subject?

Mr. GRIFFIN. I was going to take him up to the time when he left the apartment.

Mr. HUBERT. That I think would be another subject.

Mr. GRIFFIN. In other words, the interval between when Jack left and——

Mr. HUBERT. We have it now to the point where Jack has left the apartment, and I think that is a good stopping point. It is a quarter past 5 and I had promised we would stop at 5.

Mr. SENATOR. I am not mad at you.

TESTIMONY OF GEORGE SENATOR RESUMED

The testimony of George Senator was taken at 8:35 a.m., on April 22, 1964, at 200 Maryland Avenue NE., Washington, D.C., by Messrs. Burt W. Griffin and Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. Mr. Senator, you will understand that this is a continuation of the deposition which was begun yesterday, and that Mr. Griffin and I, who are examining you, are doing so under the same authority and under the same conditions as were indicated to you at the beginning of the deposition yesterday. Likewise, I take it that you understand, unless I hear to the contrary that you are still under the same oath which you took at the commencement of the testimony on yesterday; is that correct?

Mr. SENATOR. Yes.

Mr. HUBERT. Now, at the end of the session on yesterday we reached the point where on Sunday, November 24, you had left your apartment or you were leaving your apartment, as I recall it. Your testimony was that Mr. Ruby had already left. I think you fixed, but just for the purpose of continuity at the moment, would you now try to fix the approximate time at which he left?

Mr. SENATOR. You mean when I left?

Mr. HUBERT. No; when he left.

Mr. SENATOR. To me, I thought it was somewhere between 10:15 and 10:30. Of course, I found out hereafter in the courtroom that I was wrong, but this at that time was the approximate figure that I had that he left.

Mr. HUBERT. You told us yesterday that whatever time it was, your thought was that it was approximately three-quarters of an hour after he received the call from Little Lynn?

Mr. SENATOR. No. At the time he left—in my courtroom statement there I fixed the time at approximately 10:15 or 10:30. That is where I thought he had left around that time.

Mr. HUBERT. I ask you now to fix it not in point of clock time but in point of how many hours or minutes it was, or parts of hours it was, after the long distance call from Little Lynn in which you understood that she asked for \$25.

Mr. SENATOR. I would have to say it would probably be approximately somewhere, I imagine somewhere between three-quarters to an hour. Now this is about as close as I can think of it.

Mr. HUBERT. I think you base that upon two considerations, at least that you stated to us yesterday. That he was not yet dressed.

Mr. SENATOR. No.

Mr. HUBERT. When Little Lynn called?

Mr. SENATOR. No.

Mr. HUBERT. And that he got dressed and cleaned up, washed up?

Mr. SENATOR. Yes.

Mr. HUBERT. And then spent some short, relatively short period of time pacing around, as you said?

Mr. SENATOR. Yes.

Mr. HUBERT. Before leaving. And that you estimated yesterday I think it was about three-quarters of an hour.

Mr. SENATOR. Three-quarters of an hour. I mean this is just an estimation.

Mr. HUBERT. Now, when he left he told you he was taking the dog Sheba down to the club?

Mr. SENATOR. Yes.

Mr. HUBERT. And he made no other comment?

Mr. SENATOR. No.

Mr. HUBERT. Did he say what time he was coming back?

Mr. SENATOR. No; there was no mention of anything at that time.

Mr. HUBERT. Now, what did you do next? How long did you stay in the apartment?

Mr. SENATOR. After he left I'm still sitting around in my shorts yet. I'm not dressed or not washed or anything outside of having a cup of coffee. I had coffee.

Mr. HUBERT. Did you have TV on?

Mr. SENATOR. No; I'll tell you, after he left I was reading the Sunday paper.

Mr. HUBERT. And you cut off the TV?

Mr. SENATOR. Yes; I didn't have the TV going. I was just reading. I read the paper, and from there I washed, shaved, got dressed, and took a ride downtown, and as I say, this place, the Eatwell——

Mr. HUBERT. How long after Ruby left did you leave?

Mr. SENATOR. I would say it was about three-quarters of an hour, I guess, something like that.

Mr. HUBERT. Then you went directly to the Eatwell?

Mr. SENATOR. Yes.

Mr. HUBERT. You used your Volkswagen, I think you said?

Mr. SENATOR. Yes.

Mr. HUBERT. Where did you park, do you remember?

Mr. SENATOR. Yes; I parked right by the Eatwell.

Mr. HUBERT. There is a parking lot there?

Mr. SENATOR. No; it is right on the street. You know Sunday there is no difficulty.

Mr. HUBERT. All right, then take it from there. Tell us what happened.

Mr. SENATOR. So I went in there. I sat down there. Now, this is the place that I go every morning, you know, rather Sunday or Monday because I don't like to sit indoors. So I went there and had a cup of coffee. Then the first thing—then I had another cup of coffee. Now, on my second cup of coffee I heard the girl, the waitress—now where she got her information

from I don't know. It had to be either telephone or radio, I don't know which. Maybe they had the radio on.

Mr. HUBERT. Did you notice any kind of a radio of any type in the restaurant?

Mr. SENATOR. No.

Mr. HUBERT. Did they usually have any?

Mr. SENATOR. Not to my knowledge.

Mr. HUBERT. All right, what happened?

Mr. SENATOR. Not to my knowledge. The first time she said she heard that somebody shot Oswald.

Mr. HUBERT. Was she speaking to you?

Mr. SENATOR. No, no, it was loud; but it happened to be she was near me.

Mr. HUBERT. There were other people in the place?

Mr. SENATOR. Not a lot. There were others you know, the usual morning Sunday business in the restaurant is sort of minute. So what I did when I heard that, I called up the lawyer. I was going to give him the news. I figured he would probably be sitting home, you know, Jim Martin, who happens to be a friend of mine. But when I called him. I spoke to his daughter and she told me her dad and mother were in church. Dad would be home in half an hour. I said all right, maybe I'll call him back.

A short while later, the same girl, the same waitress hollered out that the man—she wasn't pronouncing the name right, the Carousel Club, but I sort of got the drift of the name and she hollered Jack Ruby killed Oswald. This is what she come up with later.

Mr. HUBERT. How much later?

Mr. SENATOR. I would probably say about 5 minutes.

Mr. HUBERT. But it was after you had called Martin?

Mr. SENATOR. Yes; after I called Martin.

Mr. HUBERT. You called Martin right away?

Mr. SENATOR. Yes; I was going to tell him that. I didn't think he would be—of course, I didn't know he was going to church or anything.

Mr. HUBERT. He is a close friend of yours?

Mr. SENATOR. Yes. He is an attorney there; yes.

Mr. HUBERT. All right, then?

Mr. SENATOR. Then when I heard that again, then I went up to see him. Of course, I froze in that chair there. I said my God, I didn't know what in the world to think. Then I went up there and I no sooner got there, he had just got there, I don't know, I think a moment or two before me. His wife and daughter had just come out of church.

Mr. HUBERT. You went to his home, you mean?

Mr. SENATOR. Yes; I went to his house. I told Jim and he said, "I heard already. I saw it on TV."

Mr. HUBERT. He was already at his house, you said?

Mr. SENATOR. Yes; he was home already.

Mr. HUBERT. How long after your phone call to him do you suppose you got to his house?

Mr. SENATOR. Well, he lived quite a ways. I would probably say it was about a 20-minute ride.

Mr. HUBERT. You left the Eatwell just as soon as the girl announced that the man who had shot Oswald was Jack Ruby?

Mr. SENATOR. I finished my coffee. I had about a half a cup left, something like that.

Mr. HUBERT. You did not attempt to call Martin again?

Mr. SENATOR. No; I didn't call him. I just went direct. I figured if he wasn't home I'd wait for him.

Mr. HUBERT. What was your reason for wanting to see Martin?

Mr. SENATOR. Well, after all, this was my roommate. No particular reason. I happened to know he was a lawyer.

Mr. HUBERT. Did you go to him as a lawyer or as a friend?

Mr. SENATOR. As a friend, as a friend. So I went up there and said, “Jim, what in the world are we going to do?”

Mr. HUBERT. I take it from what you said a moment ago, “After all, he was my roommate”, that you felt some concern for yourself.

Mr. SENATOR. I’ll tell you how I felt. I knew after this had happened, I thought it was best that I volunteered than somebody come after me.

Mr. HUBERT. You thought that somebody would be coming after you?

Mr. SENATOR. Oh, eventually they would have to. Eventually somebody would have to be coming after me. After all, I was his roommate.

Mr. HUBERT. I assume you were going to see Martin really to seek his advice as a lawyer as well as a friend?

Mr. SENATOR. Yes; what to do. What should I do.

Mr. HUBERT. Was that true of the phone call as well?

Mr. SENATOR. Sir?

Mr. HUBERT. Was that motivation true of the phone call to Martin as well?

Mr. SENATOR. No. The first call, I was just going to tell him that I heard that Oswald was shot, which the girl told me. But on the second time—I didn’t——

Mr. HUBERT. You realized your position at that time as being his roommate and that gave you concern because you thought that the police might be picking you up?

Mr. SENATOR. Sure.

Mr. HUBERT. And you thought you had better have the advice of a lawyer?

Mr. SENATOR. To ask him what to do. Should I go down there or what?

Mr. HUBERT. What did you do in fact?

Mr. SENATOR. Well, we went down there. We went down there and, of course, we had a tough time getting in. When we got down the place was just jammed.

Mr. HUBERT. How long were you at Martin's house, speaking to him?

Mr. SENATOR. I would say maybe 5 minutes, maybe 10 minutes something like that.

Mr. HUBERT. And did you in effect ask him what you should do?

Mr. SENATOR. I asked him what I should do and I thought it would be best to go down. He thought so, too.

Mr. HUBERT. It was your suggestion that it would be best to go down, or his.

Mr. SENATOR. I think it was a combination of both.

Mr. HUBERT. But in any case, within about 5 minutes the decision had been made?

Mr. SENATOR. 5 or 10, something like that. I'm not sure of the exact time.

Mr. HUBERT. The decision had been made to go down to the police department. Now, what was the purpose of going down there?

Mr. SENATOR. I went down there, I thought it would be best if I go down there than to be picked up, because after all, I'm his roommate and I know they are going to eventually pick me up, because I was living with him.

Mr. HUBERT. In other words, the idea was that you were going to go down there and say, "Now look, I'm George Senator. I was a roommate of Jack Ruby's and do you have anything to ask of me?" That was it?

Mr. SENATOR. I would probably say it was in the nature of that; yes.

Mr. HUBERT. Incidentally, a moment ago you said that you were sleeping with Jack Ruby, and in some circles sleeping with someone is——

Mr. SENATOR. I said I was what?

Mr. HUBERT. You were sleeping with Jack Ruby.

Mr. SENATOR. I was sleeping with him?

Mr. HUBERT. I think you said that.

Mr. SENATOR. I never said that, never.

Mr. HUBERT. I misunderstood you then.

Mr. SENATOR. You sure did.

Mr. HUBERT. You did not mean——

Mr. SENATOR. You sure did.

Mr. HUBERT. Did I hear that right?

Mr. GRIFFIN. I did not catch it.

Mr. SENATOR. You sure did.

Mr. HUBERT. In any case, if I did hear that I was wrong about that?

Mr. SENATOR. You definitely were wrong. You definitely were wrong. I don't even remember this incident being said.

Mr. HUBERT. That is all right. I just wanted to get it clear, because some people might misunderstand the phrase, and I would not want that to be misunderstood if it were not true.

Mr. SENATOR. It definitely isn't.

Mr. HUBERT. All right. So when you got there, what happened?

Mr. SENATOR. The place was mobbed, and, of course, I believe there were a couple of police attendants by the elevator as we got off.

Mr. HUBERT. Where did you go, in fact?

Mr. SENATOR. Actually, I didn't know where to go. We went upstairs.

Mr. HUBERT. What entrance, do you remember?

Mr. SENATOR. I don't know. I guess the front entrance, we went up.

Mr. HUBERT. You went to the Chief of Police office, or what office?

Mr. SENATOR. I don't know what office I was at.

Mr. HUBERT. Do you know whom you reported to or whom you were with?

Mr. SENATOR. First we were mobbed. I told these people, these two policemen, whoever they were I don't know, I told them who I was.

Mr. HUBERT. Where were they stationed?

Mr. SENATOR. They were right by the elevator as you got off.

Mr. HUBERT. As you got off on one of the upper floors?

Mr. SENATOR. One of the floors. I don't remember what floor it was on.

Mr. HUBERT. In other words, you were not mobbed, as you put it, or you did not speak to anybody as you came into the building?

Mr. SENATOR. No.

Mr. HUBERT. On the ground floor?

Mr. SENATOR. No.

Mr. HUBERT. But as you got off, whatever floor it was, two policemen stopped you; is that the idea?

Mr. SENATOR. Yes. I was with Jim Martin.

Mr. HUBERT. And when they stopped you, they asked your name I suppose?

Mr. SENATOR. Yes.

Mr. HUBERT. And you told them?

Mr. SENATOR. Told them who I was. And then, you know, the place was mobbed and there was a bunch, whoever these people were, reporters or whatever, there were some of them there. They happened to overhear it, and they mobbed me. They mobbed me.

Then eventually two great big policemen came over and one grabbed me on one side of the arm, you know, they looked like giants to me, and one on the other side and they took me into this room. Remember I told you they put me into a little sort of solitary room.

Mr. HUBERT. That is on the same floor?

Mr. SENATOR. Yes. And I don't remember how long. I mean I had no way of knowing time that I was in there in this room there waiting for somebody who was going to—they said to wait there, I don't know. They kept me in this room. Then somebody finally approached me. They wanted a statement.

Mr. HUBERT. You got there, I suppose, about 20 or 30 minutes after leaving Martin's house?

Mr. SENATOR. I would say something like that, between 20 and 30 minutes.

Mr. HUBERT. And you were, almost immediately after getting off on one of the upper floors of the building, mobbed by the press group and taken by these two policemen?

Mr. SENATOR. Yes.

Mr. HUBERT. And put into a room on the same floor?

Mr. SENATOR. Yes.

Mr. HUBERT. And then was Mr. Martin with you?

Mr. SENATOR. He was with me, but he never, you know, when they took me to this room they wouldn't let him in.

Mr. HUBERT. Did he ask to go in or to remain with you?

Mr. SENATOR. He says "I'm his lawyer"; he was my lawyer. But we still were separated.

Mr. HUBERT. Did he ask that he be allowed to remain with you?

Mr. SENATOR. He wanted to get in.

Mr. HUBERT. Can you remember whether he actually asked to get in with you?

Mr. SENATOR. It seemed like he wanted to get in. I mean I don't remember the exact words that he said, because they wouldn't let him in, so apparently he was trying to get in too.

Mr. HUBERT. Do you remember whether you were placed under arrest?

Mr. SENATOR. No, never placed under arrest.

Mr. HUBERT. When you were escorted to this room and sat down, was the door locked?

Mr. SENATOR. No.

Mr. HUBERT. Were you told to remain there?

Mr. SENATOR. Yes.

Mr. HUBERT. Were there any guards on the door?

Mr. SENATOR. Not to my knowledge. I don't think so.

Mr. HUBERT. Were you handcuffed?

Mr. SENATOR. No.

Mr. HUBERT. And you say you don't know how long you remained there?

Mr. SENATOR. I couldn't tell. This was a little tiny room. It looked like where they keep some inventory books—not books, probably paper goods or something like that. It was a very small room.

Mr. HUBERT. Could you hear what was going on outside the room?

Mr. SENATOR. No, couldn't hear a thing.

Mr. HUBERT. Did the room have any windows in it?

Mr. SENATOR. No.

Mr. HUBERT. Was the light on?

Mr. SENATOR. Yes. It was very small. It was a very small room. As I say, it must be a room like they keep paper goods, things of that nature, or something like that in there.

Mr. HUBERT. Did the police search you or frisk you?

Mr. SENATOR. No.

Mr. HUBERT. They did not take anything away from you?

Mr. SENATOR. No. I wasn't under arrest at all.

Mr. HUBERT. And what was the next thing that happened?

Mr. SENATOR. Well, finally, I don't remember this man's name, you may have a note of it, I assume he was a detective. He was in plain clothes. He questioned me.

Mr. HUBERT. Did he question you in that same room, or take you outside?

Mr. SENATOR. No, he questioned me in that room.

Mr. HUBERT. Just one man?

Mr. SENATOR. Yes.

Mr. HUBERT. You don't remember his name?

Mr. SENATOR. No, I don't.

Mr. HUBERT. Was he connected with the Federal Government or the State government?

Mr. SENATOR. I assumed he was local.

Mr. HUBERT. Have you found out since who he was?

Mr. SENATOR. No, I didn't. I think he must have been a detective of some nature. I mean I don't know what his classification was, because all I know is, he was in plain clothes.

Mr. HUBERT. What was the nature of his inquiry?

Mr. SENATOR. It was, you know, what happened from the time of the shooting up until the present time. That was the inquiry.

Mr. HUBERT. The time of the President's shooting?

Mr. SENATOR. Yes, from the President to——

Mr. HUBERT. Did he more or less ask you to go over and to account for your time during that period?

Mr. SENATOR. You mean where I was?

Mr. HUBERT. Yes.

Mr. SENATOR. Yes, yes.

Mr. HUBERT. Am I right then in saying that his inquiry was to ask you what you had been doing since the President had been shot and what Ruby had been doing too, I suppose?

Mr. SENATOR. Yes.

Mr. HUBERT. Both of you?

Mr. SENATOR. Yes.

Mr. HUBERT. He asked you concerning the events in your life during the afternoon of Friday, November 22?

Mr. SENATOR. I believe that is how it started.

Mr. HUBERT. And on the night of the 22d and the early morning of the 23d?

Mr. SENATOR. There is only one thing that slipped my mind to tell him, and that was the paper issue, the newspaper issue and the billboard, "Impeach Earl Warren". That was the only thing I forgot to tell him that slipped my mind.

Mr. HUBERT. Did you tell him that you had gotten up, that Jack had wakened you early in the morning and had asked you to go out with him?

Mr. SENATOR. I don't know if he questioned me on that or not. I don't remember if he did or not on that. I don't remember if he did on that.

Mr. HUBERT. But if he did——

Mr. SENATOR. But I had been in a pretty shaky mood that day, most naturally nervous.

Mr. HUBERT. But your point is that if he did ask you about whether you had gone out with Ruby in the early hours of the morning, you did not tell him about the concern of Ruby over the Bernard Weissman ad, nor did you tell him about taking the pictures of the Earl Warren poster?

Mr. SENATOR. No, I didn't tell him that.

Mr. HUBERT. Now, what was your reason for not?

Mr. SENATOR. No particular reason.

As a matter of fact, I'm sorry that I—I should have told him. If I thought about it I should have told him that because I think this was a benefactor for Jack Ruby.

Mr. HUBERT. And you say that the reason why you did not mention these two episodes was forgetfulness?

Mr. SENATOR. Yes.

I was a pretty shaken boy. I'm not used to something like this. This is something that will shake you up.

Mr. HUBERT. Is it that you were shaken up and thought it best not to mention anything about it, or that you actually forgot?

Mr. SENATOR. Just forgot.

Mr. HUBERT. And I assume that that officer then carried you through the events of Saturday morning after you got up and Saturday afternoon and Saturday night and Sunday morning, is that not so?

Mr. SENATOR. Yes.

Mr. HUBERT. And at that time did you tell him what you had done on Saturday afternoon?

Mr. SENATOR. No, because I didn't—I don't think I did because I don't know if I was questioned on that. As a matter of fact, to the best of my knowledge I don't think I was questioned at any time what I did on Saturday afternoon, to the best of my knowledge that I can think of.

Mr. HUBERT. You mean they questioned you about what you did on Friday night and Saturday morning?

Mr. SENATOR. Yes.

Mr. HUBERT. And Sunday morning, but they omitted Saturday afternoon?

Mr. SENATOR. The best that I can recollect, it was more important of the events of when I had seen Jack, and the times that he got home and when I got home.

Mr. HUBERT. Did you tell him concerning all of those matters approximately as you have told us to date?

Mr. SENATOR. You mean from the events of Saturday?

Mr. HUBERT. Friday, Saturday and Sunday up to the point we have reached in this deposition.

Mr. SENATOR. Yes, but you are more thorough than they are.

Mr. HUBERT. How long do you suppose that interview with the police officer lasted?

Mr. SENATOR. I have no idea.

Mr. HUBERT. What happened next?

Mr. SENATOR. From there he took me to the FBI on the same floor in another room, and his story was about the same.

Of course, if I remember right, I think he goes back like you started, you know, my name——

Mr. HUBERT. That is to say, the FBI examination of you?

Mr. SENATOR. I don't remember his name. Yes, the FBI man. And if I recall right, I think he asked me, you know, my name, how old I was, you know, like you started off.

Mr. HUBERT. He went into details as it were?

Mr. SENATOR. Pardon me?

Mr. HUBERT. He went into more detail?

Mr. SENATOR. Oh, yes; because the details—in other words, he started from where I came from, my name and how old I was and things of that nature, like you did.

Mr. HUBERT. And I think you said that his examination was thorough as it were.

Mr. SENATOR. Well, there was more to it.

Mr. HUBERT. In what way? Did he ask you for more details?

Mr. SENATOR. Well, he went into my personal life, you know, like you started off.

Mr. HUBERT. Would you say that his examination of you was along the same lines as mine has been?

Mr. SENATOR. No; because—well, in certain parts I would say, but I think yours are more meticulous—is that the proper word—than his. In other words, yours are more thorough.

Mr. HUBERT. But he asked you to account for your time?

Mr. SENATOR. Oh, yes.

Mr. HUBERT. And you told him about going out in the morning with Jack, having been awakened by Jack and going out, and so forth?

Mr. SENATOR. No; I forgot that. In other words, when they shoved me from one to the other, it was the same way.

Mr. HUBERT. You mean you do not have any recollection of having told the FBI that Jack had awakened you in the morning and that you had gone out with him?

Mr. SENATOR. I don't remember if I did or not. I may have. I don't remember if I did or not, now, on that.

Mr. HUBERT. Do you have any distinct recollections as to whether or not you mentioned the Earl Warren poster or the concern of Ruby about the Bernard Weissman advertisement?

Mr. SENATOR. I don't remember if I did or not. Maybe I did, maybe I didn't. I don't remember that.

Mr. HUBERT. Did he ask you about accounting for your time on Saturday afternoon?

Mr. SENATOR. I don't remember that, either.

Mr. HUBERT. How long did this interrogation by the FBI man take?

Mr. SENATOR. Of course, it's guesswork again. I would say maybe it took a couple hours.

Mr. HUBERT. Was it one man or more?

Mr. SENATOR. One. I would say now—— Mr. HUBERT. Did you tell either the State officer who interrogated you or the FBI man who interrogated you that you had a lawyer and that his name was Martin?

Mr. SENATOR. I don't think I did.

Mr. HUBERT. You did not ask that your lawyer be present?

Mr. SENATOR. No; I didn't.

Mr. HUBERT. What occurred then after the interview with the FBI man was over? What happened?

Mr. SENATOR. Then they let me go. They released me.

Mr. HUBERT. Who did that, in fact, the FBI man or a State officer?

Mr. SENATOR. The FBI man. If I remember right, I think the FBI man said, "That is all there is." That is all there was of the interview.

Mr. HUBERT. And you were permitted to leave?

Mr. SENATOR. Yes.

Mr. HUBERT. Do you remember what time you left?

Mr. SENATOR. I would say it was between 6 and 7 at night because I know when I got outside again it was dark.

Mr. HUBERT. Was anybody waiting for you?

Mr. SENATOR. No; there was nobody waiting for me. Somebody gave me a message, or handed me a message, I don't remember who it was, that Jim Martin would meet me, the fellow who brought me down, the attorney who brought me down.

Mr. HUBERT. Was that a police officer?

Mr. SENATOR. No, no; you mean who handed me the message?

Mr. HUBERT. Yes.

Mr. SENATOR. I don't remember.

Mr. HUBERT. Was it a written message? I asked that because you said you did not remember who handed you——

Mr. SENATOR. I don't remember who it was.

Mr. HUBERT. Which would indicate it was written, you see?

Mr. SENATOR. I don't remember who it was. All he said, he would meet me there. In other words, he was going to meet me across the street from the——

Mr. HUBERT. Was it a verbal message?

Mr. SENATOR. I think it was a written message. I don't remember who gave it to me.

Mr. HUBERT. You just put it in your pocket or something?

Mr. SENATOR. No; I read it.

Mr. HUBERT. You read it and threw it away?

Mr. SENATOR. Yes; I knew I would meet him. So I met him. As a matter of fact, I was with three attorneys when we met, either two or three attorneys.

Mr. HUBERT. Mr. Griffin, do you want to ask any questions on this segment that I have covered this morning up to this point?

Mr. GRIFFIN. Yes; I want to go back a little bit. When Jack Ruby left the house Sunday morning, you were dressed, were you not?

Mr. SENATOR. I?

Mr. GRIFFIN. Yes.

Mr. SENATOR. No.

Mr. GRIFFIN. You were not dressed?

Mr. SENATOR. No; I was in my underwear.

Mr. GRIFFIN. When you got down to the Eatwell Restaurant, can you tell us which of the waitresses, management people, were on duty?

Mr. SENATOR. Which of the waitresses?

Mr. GRIFFIN. And management people were on duty.

Mr. SENATOR. I would say there were probably two or—no; not glancing around or anything of that nature, I would probably say there were 2 or 3 waitresses.

Mr. GRIFFIN. You eat there regularly?

Mr. SENATOR. Yes; I stop there every day.

Mr. GRIFFIN. You say you know these waitresses?

Mr. SENATOR. Yes.

Mr. GRIFFIN. So what I am asking you is to tell us which of the waitresses were on duty.

Mr. SENATOR. I could recollect the one who said it when I heard her say it.

Mr. GRIFFIN. Which one was that?

Mr. SENATOR. I don't know her name. I know her.

Mr. GRIFFIN. Do you not know the names of any of the people who work in there?

Mr. SENATOR. This girl here, I mean I know them all, but I don't know them by name.

Mr. GRIFFIN. Do you know any of them by name?

Mr. SENATOR. No; I don't know any of them by name.

Mr. GRIFFIN. Do you know the names of the owners?

Mr. SENATOR. I know the owner. I know his first name. I don't know his last name.

Mr. GRIFFIN. What is that?

Mr. SENATOR. His first name is Jim. There is a father and son. Jim is the father and Charles is the son.

Mr. GRIFFIN. How old would you say they are?

Mr. SENATOR. I would probably say Charles must be—of course, they weren't there that day. Charles I would probably say is in—could be in I guess his late thirties, I'm not sure, and the father I would probably say is maybe in his late sixties or early seventies.

Mr. GRIFFIN. Can you describe the waitress that was on duty?

Mr. SENATOR. She was a woman about, I would probably say in her late forties or maybe early fifties, dark haired if I remember rightly, and I believe brown eyes. I don't know how to describe her.

Mr. GRIFFIN. Do you know a waitress there by the name of Helen?

Mr. SENATOR. Helen? A little short girl.

Mr. GRIFFIN. I don't know what she looks like.

Mr. SENATOR. Yes; I know one. The other is a little short girl I think by the name of Helen. I think it is Helen. See, now once in a while they wear badges but I can't remember one from the other, outside of their faces. I

always say hello to them. On the other hand, I never take that much notice of who's who.

Mr. GRIFFIN. Of course, the waitress who was on duty knew that you were Jack Ruby's roommate, did she not?

Mr. SENATOR. I don't think so. I don't think she did.

Mr. GRIFFIN. The people at the Eatwell knew——

Mr. SENATOR. Some know me but I don't think this one knew me.

Mr. GRIFFIN. They know Jack as well as they know you, don't they?

Mr. SENATOR. No; I don't know if they know him. See, Jack and I never went in there, I mean together.

Mr. GRIFFIN. Jack eats there regularly?

Mr. SENATOR. No.

Mr. GRIFFIN. Or ate there regularly, did he not?

Mr. SENATOR. No; Jack don't eat there because he don't like their type cooking. No; Jack don't eat there. Now I go there every day. I go there every day, I go there every morning. I have coffee, I would say, probably 7 days a week.

Mr. GRIFFIN. Was there any recognition by anyone at the Eatwell while you were in there?

Mr. SENATOR. There was very few people in there that morning.

Mr. GRIFFIN. But of the people who were there, did any of them appear to recognize that you were connected with Jack Ruby when they learned over the television set that Jack Ruby had——

Mr. SENATOR. I would probably say to the best of my knowledge, no.

Mr. GRIFFIN. Now, that would indicate that nobody said anything to you about it. You did not have anything to——

Mr. SENATOR. No, they didn't say a word to me about it. Now, if they did or not, as I say, to the best of my knowledge, no. Now I can't quote myself, if I am that correct or not.

Mr. GRIFFIN. I am curious as to any other people that you thought of contacting after you heard that Jack had shot——

Mr. SENATOR. No; that was it.

Mr. GRIFFIN. Of course, you—— Mr. SENATOR. I called up Jim because I happened to know Jim and Jim was an attorney.

Mr. GRIFFIN. You thought about calling Jim before you knew who it was that had shot Lee Oswald?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Did you know at the time that you tried to call Martin that it was somebody associated with the Carousel Club that had done it?

Mr. SENATOR. You mean Jack Ruby, my roommate?

Mr. GRIFFIN. Yes. Now, you say it was after you called Martin that you learned that it was Jack Ruby who had shot Oswald, but you said as I understand it somewhere between the time you learned Oswald was shot and you learned Ruby had done it, you heard something about it being someone from the Carousel Club.

Mr. SENATOR. No; I didn't.

Mr. GRIFFIN. You did not?

Mr. SENATOR. No.

Mr. GRIFFIN. So that at the time you called Mr. Martin, you had no idea who shot——

Mr. SENATOR. I called him because it was local news. That is why I called Jim.

Mr. GRIFFIN. Did you think of calling anybody else?

Mr. SENATOR. No.

Mr. GRIFFIN. Did you think of trying to get ahold of Jack Ruby to tell him about it?

Mr. SENATOR. No; because Jack left home shortly before that.

Mr. GRIFFIN. Did you have some idea where he was?

Mr. SENATOR. No; none whatsoever.

Mr. GRIFFIN. Now, when you walked into the police station, I understand you to say that you were mobbed by members of the press? Did you say anything to those members of the press?

Mr. SENATOR. Well, they ganged me so and everybody was throwing questions at me, and I don't even remember the things that I answered because they asked me so many things and so many people were mobbing me.

Mr. GRIFFIN. But you were answering their questions?

Mr. SENATOR. I was answering some of them, whatever they were asking me.

Mr. GRIFFIN. How long would you say it was that you answered questions?

Mr. SENATOR. I don't know. Maybe about 5 minutes I guess before two policemen nabbed me.

Mr. GRIFFIN. Do you remember any of the questions they asked?

Mr. SENATOR. No; God, they was throwing them left and right. I couldn't keep up with them. I just couldn't keep up with them, what they were talking about. I was just in circles, you know. Now how can I answer these questions there.

Mr. GRIFFIN. Did you see reports in the newspaper the next day or that evening about what you had said down at the police station?

Mr. SENATOR. No; I didn't. I didn't see no papers that evening. As a matter of fact, I never even saw the run, I—still to this day—I've never seen the TV of the shooting. I have never seen that.

Mr. GRIFFIN. When you went out to Martin's house, did you have any fear for yourself?

Mr. SENATOR. No.

Mr. GRIFFIN. Did you have any fear or thought that the police or someone might try to implicate you?

Mr. SENATOR. No.

Mr. GRIFFIN. When you describe yourself as being shaken up when you were at the police station——

Mr. SENATOR. Something like this, I would say the normal person it would make him nervous. Here I have gone through a half a century already and I have never had any incidents in my life, and I would say the normal person would be shaken up.

Mr. GRIFFIN. I don't have any more. Wait a second. Let me ask this. When you came downtown with Mr. Martin, did you come down in his car or your car?

Mr. SENATOR. I think I came down in my truck. No, I think I came down in his car. I'm not sure but I think I came down in his car.

Mr. GRIFFIN. Do you recall where you parked, whose car it was where you parked downtown?

Mr. SENATOR. Either parked on Commerce or Main Street, one of the two. I'm not sure.

Mr. GRIFFIN. Near Harwood or near Pearl, or were you right in front of the police station?

Mr. SENATOR. No, no; we were down further, just to grab a parking space. I just don't remember how far down it was, but I would assume, I think we walked, I don't know, maybe two or three blocks to my knowledge, something like that.

Mr. GRIFFIN. Did you come by the Western Union station?

Mr. SENATOR. Going up with Mr. Martin?

Mr. GRIFFIN. Either way, either going downtown or walking back to the police station.

Mr. SENATOR. I think we come up Commerce. I'm not sure.

Mr. GRIFFIN. Let me then be more direct about this. Do you have any recollection that day of seeing Jack Ruby's car downtown?

Mr. SENATOR. No; that I have never seen, no.

Mr. GRIFFIN. I don't think I have anything more, Mr. Hubert.

Mr. HUBERT. Before I pass on to another aspect, I think there is one point that needs a bit of clarification. Mr. Griffin asked you whether or not you considered calling Ruby when you heard that Oswald had been shot, to convey the news to him as you conveyed it to your other friend, Mr. Martin. You said that you had not because you didn't know where he was; is that correct?

Mr. SENATOR. Well, I knew he left the house, you know, before I did.

Mr. HUBERT. You have also testified that he had told you that he was going to take the dog to the club.

Mr. SENATOR. That is right.

Mr. HUBERT. Therefore, you knew he was at the club or at least you had some indication?

Mr. SENATOR. He could have been there. Now he told me he was going to the club.

Mr. HUBERT. And the club was just about a block away?

Mr. SENATOR. That is right.

Mr. HUBERT. So when you didn't get Mr. Martin, you didn't try Ruby at the club?

Mr. SENATOR. No.

Mr. HUBERT. You knew the number of the club?

Mr. SENATOR. Yes.

Mr. HUBERT. Have you any comment to make as to why you didn't call Ruby?

Mr. SENATOR. No particular reason. I didn't think of it, because when he left the house he said he was going to take the dog to the club and most naturally I heard the conversation he was going to the Western Union, so who knew where his whereabouts would be.

Mr. HUBERT. Well, of course, you didn't know his whereabouts after you called Martin?

Mr. SENATOR. That is right, there was no particular reason. It just happened to be that I thought of Jim Martin.

Mr. HUBERT. All I want to do is to give you an opportunity to state for the record why it was that you did not next think of calling your friend and roommate whose approximate location you knew?

Mr. SENATOR. It just didn't enter my mind, that is all. I just didn't think about it. There was no particular reason why.

Mr. GRIFFIN. Let me ask you this, Mr. Senator. Was it your practice to spend time socially with Jack Ruby other than when you saw him at the apartment? Did you and he do things together?

Mr. SENATOR. No; first of all I'm out most of the time. When I get up in the morning, I mean he is still sleeping when I got up, and I don't see him in the daytime. Maybe on rare occasions something will happen, but the overall picture, no.

Mr. GRIFFIN. And you say you are out most of the time. Is this in connection with your business?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Do you have a set of calls that you make every day?

Mr. SENATOR. Yes; I make calls.

Mr. GRIFFIN. Regular customers that you call on?

Mr. SENATOR. Customers, or at times probably get new ones.

Mr. GRIFFIN. Now on Saturdays or Sundays you do not work?

Mr. SENATOR. No.

Mr. GRIFFIN. With whom do you spend your time on Saturdays and Sundays normally?

Mr. SENATOR. Nothing in general. Once in a while I would meet Jim downtown because Jim Martin comes downtown on a Saturday, like a lot of lawyers do. They come down about 10, 10:30, 11 o'clock and they check their mail or any messages come in, such as that. Incidentally Jim Martin's office is right across the street; of course, he just moved recently. It was at

the Davis Building which is across the street from the Adolphus Hotel on Main. He has been there for quite a number of years to my knowledge.

Mr. GRIFFIN. Who would you list as your friends in Dallas outside of Jim Martin and Jack Ruby?

Mr. SENATOR. Well, the people I stayed with who were friends of mine.

Mr. GRIFFIN. Can you give us their names?

Mr. SENATOR. Yes; Jean and Lindy Lauve, a fellow by the name of Bill Downey, Tom Howard, the attorney. I don't say I associated with him but he is a friend of mine. Another lawyer by the name of Mike Barclay: he is a friend of mine. Not that these are complete associations that you are with them every day or so, or things of that nature.

Mr. GRIFFIN. But are there other people whom you see more often and you are closer to than Barclay and Howard?

Mr. SENATOR. No; not particularly. Of course, every now and then an out-of-town friend of mine would come in, a traveling man; if he happened to be in Dallas I would see him, or he may call me. In other words, I'll put it this way—I had a particular hangout.

Mr. GRIFFIN. Where was that?

Mr. SENATOR. That was the Burgundy Room. I used to go there quite often.

Mr. GRIFFIN. That is in the Adolphus Hotel?

Mr. SENATOR. That is in the lobby of the Adolphus Hotel. When I used to go in, you know, the latter part of the afternoon, around 5, used to always run across friends that you know and we would always have a talk session or something of that nature there. Of course, I had many friends that came in there.

Mr. GRIFFIN. But you would say that you saw Barclay and Howard and Martin more often than you saw the other people?

Mr. SENATOR. Martin more so than the others. But the others, I'd see them every now and then. Like the trial I'd seen them down at the courthouse and things of that nature.

Mr. GRIFFIN. Now what about the Lauves?

Mr. SENATOR. The Lauves, those are people who I stayed with, who kept me up when I didn't have a place to stay.

Mr. GRIFFIN. But did you see them more often than you saw Howard and Barclay?

Mr. SENATOR. I stayed there every day. I was living there.

Mr. GRIFFIN. I mean prior to the shooting.

Mr. SENATOR. Prior to that on rare occasions, on rare occasions. One time I used to see them quite often. Of course, that is when I was traveling.

Mr. GRIFFIN. But at the time that Jack Ruby shot Lee Oswald, of all the people you have mentioned, Jim Martin was the person you felt the closest to?

Mr. SENATOR. He was a close friend of mine. I used to see him almost every day, especially more so during the trial.

Mr. GRIFFIN. But what I am trying to get at is was there anybody else to whom you felt equally as close?

Mr. SENATOR. I had—let me put it this way—I had a lot of good friends. I don't know how you want to classify what you call close. Many friends I had, good friends.

Mr. GRIFFIN. Apparently of all the people you knew in Dallas, the one that you felt most inclined to call when you heard that Oswald had been shot was Jim Martin.

Mr. SENATOR. It happened to be I thought of Jim Martin, yes, and I called him.

Mr. GRIFFIN. And if you had reached him at that time, I suppose you would have gone out to his house or you would have carried this on further. You have had some conversation with him about it?

Mr. SENATOR. Yes; I imagine so. I would imagine so.

Mr. GRIFFIN. What I am getting at is you didn't really have to convey the news to Jim Martin or anybody else.

Mr. SENATOR. No; it just happened to be it was local news, you know. It is like probably a thousand other people did, called their friends "Did you hear this, did you hear that." It could be anywhere in the country.

Mr. GRIFFIN. When the President was shot did you call anybody?

Mr. SENATOR. No; because I didn't know. I was told.

Mr. GRIFFIN. But when you were told did you call anybody?

Mr. SENATOR. No, no; because the reason I didn't call anybody, it was a weekday. Now this is only guesswork. It was a weekday, and, of course, I assumed that everybody knew it as fast as I knew it or probably faster than I knew it, with the many thousands of people who were in that locale, they knew it before I did.

Mr. HUBERT. All right, let's continue from the point that you left the jail. Did you meet anyone?

Mr. SENATOR. Yes.

Mr. HUBERT. Who?

Mr. SENATOR. I was with Jim, I met Jim Martin and another attorney who I had only met for the first time and I don't remember his name.

Mr. HUBERT. They were waiting for you or you met them outside?

Mr. SENATOR. They told me they would meet me somewhere.

Mr. HUBERT. Where was that?

Mr. SENATOR. We met at a bar across the street from the courthouse.

Mr. HUBERT. Do you know the name of the bar?

Mr. SENATOR. I think it was the TV Bar.

Mr. HUBERT. The message you had was that they would meet you there, is that right?

Mr. SENATOR. Yes.

Mr. HUBERT. And you did go there and talked to Martin and the other lawyer?

Mr. SENATOR. Yes; the other attorney.

Mr. HUBERT. How long were you with them?

Mr. SENATOR. If I recall right, I would say we sat in that bar and had two or three beers, if I remember right. I think I said to Jim “I don’t have a place to sleep or a place to go” because I was afraid to go home.

Mr. HUBERT. You told that to Jim Martin?

Mr. SENATOR. I told that to Jim, and I believe—wait a minute now—I believe, I am not sure but I think I went to his house and he said he would put me up on the couch if I was afraid to go anywhere, which I was. From there on in I was afraid to go home.

Mr. HUBERT. Why?

Mr. SENATOR. Why was I afraid to go home? Well, I was just scared, that is all.

Mr. HUBERT. Of what?

Mr. SENATOR. I don’t know of what, but I was scared.

Mr. HUBERT. Obviously you were scared that somebody might try to hurt you?

Mr. SENATOR. Very possibly, yes; on something like this. Now who or what I don’t know but that was the instinct I had. As a matter of fact I was scared for about 10 days after that.

Mr. HUBERT. You mean you were scared for 10 days after being——

Mr. SENATOR. In other words, for about 10 days I was afraid to sleep in the same place twice. Who I was to fear I don’t know, but just the normal thing, I was afraid.

Mr. HUBERT. And you say you slept at different places every night?

Mr. SENATOR. Yes; until I finally moved in with Jean.

Mr. HUBERT. What were some of the places you slept in?

Mr. SENATOR. I slept at Jim’s a few times. I checked into an inexpensive hotel one time. I slept at another fellow’s apartment one time and then I finally went to Jean’s and stayed there, Jean Lauve. She said she would put

me up because she and everybody else knew I was scared. You asked me what I feared. I don't know who I feared or what I feared but I just——

Mr. HUBERT. You honestly feared that somebody——

Mr. SENATOR. I was just in fear that is all which is a natural instinct in a situation such as this.

Mr. HUBERT. I am not saying it is not natural.

Mr. SENATOR. Yes.

Mr. HUBERT. But I am trying to see if you had any idea in your own mind what you were afraid of. Now obviously you were afraid of being hurt.

Mr. SENATOR. Certainly I was afraid.

Mr. HUBERT. Possibly being killed?

Mr. SENATOR. Yes; now of who or what I don't know. It could be a crackpot. I don't know what it could be.

Mr. HUBERT. Did you give some consideration to the thought that whoever had been involved with the killing of the President might want to kill you?

Mr. SENATOR. I don't know. I didn't know who to fear. It was just a natural instinct. I would imagine anybody in the same situation would probably fear something. It was just a natural thing for a human being to do.

Mr. HUBERT. I am not criticizing you, Mr. Senator; at all. I am just trying to find out the reason.

Mr. SENATOR. No; I had no reason or any particular thing. There was no reason for it.

Mr. HUBERT. You mentioned one, that a crank might try to hurt you.

Mr. SENATOR. A crank might. Yes; I can't measure what or who. It was just a fear.

Mr. HUBERT. Isn't it your thought that there might be some group of people who might want to hurt you?

Mr. SENATOR. I can't say it was a group or what it is or who it may be.

Mr. HUBERT. I understand that you don't know of any group?

Mr. SENATOR. Yes.

Mr. HUBERT. But didn't it cross your mind that there might be a group who would want to get rid of you for some reason or other?

Mr. SENATOR. This didn't enter my mind that it was any group or anything of this nature here. All I knew is I had a fear. I don't know who, but something. I was just afraid, that is all.

Mr. HUBERT. Did you arm yourself in anyway?

Mr. SENATOR. No; I never armed myself in my life. The only gun I ever had is when they had me overseas. That is the only time I ever had a gun. I never carried a knife or a gun in my life.

Mr. HUBERT. What did you do during these several days when you were in effect afraid? Did you move out in the open or did you stay——

Mr. SENATOR. I was afraid of the nighttime, not the daytime. In other words, I wanted—I didn't want to be in an isolated place anywhere. It is not that I wasn't out at night or daytime, which I was, but I didn't want to be in an isolated place. In other words, I wouldn't want to be walking down a lonely street or something like that because that would scare the life out of me. But around groups or something like that, I didn't fear it that much. Now what I feared I don't know, but it was just a natural thing I feel any individual would fear.

Mr. HUBERT. Did you communicate that fear to Jim Martin?

Mr. SENATOR. Not only to him but to many of my friends. I said, "I'm just afraid."

Mr. HUBERT. It was for that reason that several of them put you up?

Mr. SENATOR. That is right. I told them I was afraid. They said "What are you afraid of?" You know people say, "What are you afraid of?" I said, "I'm just scared, that is all"—and who wouldn't be?

Mr. HUBERT. So your friends also were asking you as I have been as to what would you be afraid of. That is a fact isn't it?

Mr. SENATOR. Yes; they asked me, "What are you afraid of?" I said, "I don't know, I'm just afraid, that is all." I can't say who I am afraid of. I don't know who I am afraid of.

Mr. HUBERT. I know that you wouldn't know necessarily individuals, but you must have done something——

Mr. SENATOR. Or groups, individuals or groups as you mentioned. I can't place my finger on it.

Mr. HUBERT. But what I am suggesting to you is that your fear came from the thought that any individual or group that had anything to do with either the slaying of the President or the slaying of Oswald may have you in mind next?

Mr. SENATOR. No; my thoughts didn't run that way. My thoughts were nothing but fear, and I didn't have my mind on any groups or anything like that. I just didn't know. It might be an individual crackpot walking the streets, who knows, he doesn't know.

Mr. HUBERT. Yes; I think that is a very understandable reason that you gave us as to the crackpot.

Mr. SENATOR. It could be. I don't know what it could be.

Mr. HUBERT. It went beyond that though, didn't it?

Mr. SENATOR. No.

Mr. HUBERT. Just your fear of a crackpot?

Mr. SENATOR. No.

Mr. HUBERT. That is all it was?

Mr. SENATOR. When you say "beyond that," what do you mean "beyond that"?

Mr. HUBERT. That your fear went beyond the mere fear that a crackpot would hurt you, your fear and your thought about the matter went to the point that some people other than a crackpot might——

Mr. SENATOR. No; I didn't think that way.

Mr. HUBERT. Then are you willing to say that it was only your fear of a crackpot?

Mr. SENATOR. I use "crackpot" as one but I don't know how to describe it. Who knows what it could be. It could be an individual walking the street, I don't know. When I was scared I had no particular thing in mind. It was just I was scared, that is all.

Mr. HUBERT. Did it ever occur to you during this period when you were frightened that Jack Ruby might have been set up by someone to kill Oswald?

Mr. SENATOR. Run that back again. Let me understand it.

Mr. HUBERT. Did it ever occur to you at anytime after the shooting and when your fears began to develop that Jack Ruby might have been part of a plot to kill Oswald, and that there were others involved in the matter?

Mr. SENATOR. None whatsoever.

Mr. HUBERT. That never occurred to you?

Mr. SENATOR. No.

Mr. HUBERT. And that was not any part of the basis of your fear?

Mr. SENATOR. No.

Mr. HUBERT. As I understand you then, you considered right from the start that this was an individual act on the part of Ruby, unconnected with anyone else?

Mr. SENATOR. Run your words again. I've got to follow you.

Mr. HUBERT. I say as I understand it then your thoughts from the very beginning were that Ruby's action was his own and that no one else was connected with it?

Mr. SENATOR. Did you say his actions was his own when this thing happened?

Mr. HUBERT. Yes; and that you never considered that anyone else was in it at all but Jack Ruby?

Mr. SENATOR. No; definitely not. I never thought of anything such as that.

Mr. HUBERT. I don't understand your answer. Pardon me. You wouldn't think of anything such as what?

Mr. SENATOR. To me he wasn't connected with anybody whatsoever of any nature.

Mr. HUBERT. You think that now and you have always thought that, is that correct?

Mr. SENATOR. Yes; he wasn't connected with anyone.

Mr. HUBERT. Therefore, your fears could not have been based upon the thought that anyone that he was connected with would want to hurt you, obviously, since you never thought that he had any connections?

Mr. SENATOR. No; he didn't have any. Let me put it this way. Even today I still have a certain fear. Now you ask me what I fear today, I don't know. This is something you just don't erase out of your mind, that is all. This is not a little thing; this is a big thing.

Mr. HUBERT. After that Sunday night, when you talked to the lawyers for awhile, you went home I understand to Jim Martin's?

Mr. SENATOR. If I remember right, I'm not sure but I think Jim put me up because I was afraid to go home and I didn't have a place to go to. If I remember right I think he did. I think I went to his apartment, his home rather.

Mr. HUBERT. I am moving to the next few days, Mr. Griffin.

Mr. GRIFFIN. Have you ever given any consideration to the thought or to the possibility that someone else might have been associated with Jack Ruby?

Mr. SENATOR. No.

Mr. GRIFFIN. In the killing of Oswald?

Mr. SENATOR. No.

Mr. GRIFFIN. I am not asking you whether you ever believed such a thing but whether you ever explored that possibility in your own mind?

Mr. SENATOR. No; never could think of anything such as that. Jack was a true American. He loved his country. This is for sure. He loved the land that he lived in as I have told you.

Mr. GRIFFIN. You indicated before that there were a lot of things Jack didn't talk to you about.

Mr. SENATOR. That Jack would talk to me about?

Mr. GRIFFIN. That he did not, Jack didn't talk to you about everything he did?

Mr. SENATOR. Jack lived in the show business type. This is his life. He lived in the glamour of the show business.

Mr. GRIFFIN. Do you feel that Jack talked to you about everything that he was doing?

Mr. SENATOR. Who can answer that? How could I answer that? How could I really answer that and know?

Mr. GRIFFIN. Well, sometimes you associate with a person and you know he is the kind of person who doesn't go out and talk about everything he is doing, in fact that he is the kind of person who is reticent to talk about some of the things he is doing.

Mr. SENATOR. I would say Jack was the type that would not hold back to my knowledge, that would hide anything. I don't think he would hide anything from me. I can't say positive but I don't think he would.

Mr. GRIFFIN. Well, he didn't discuss his relationships in the Vegas Club or in the Carousel Club with you.

Mr. SENATOR. That is right.

Mr. GRIFFIN. To any extent, did he?

Mr. SENATOR. Look, his money parts he isn't going to detail to me how much he is taking in and things of that nature or who he owes or what he don't owe. I mean I wasn't confided in that.

Mr. GRIFFIN. Did he talk to you about any of the problems he was having at the club?

Mr. SENATOR. He had problems, you know, he had problems with his sister because they were of the same nature. They were cat and dog fighters.

Mr. GRIFFIN. Was he having any problems with the Federal Government?

Mr. SENATOR. Well, I assume he was. What they were I don't know.

Mr. GRIFFIN. Then it is—— Mr. SENATOR. What I mean to say, the Federal Government, you mean tax problems?

Mr. GRIFFIN. Yes.

Mr. SENATOR. I am certain he did.

Mr. GRIFFIN. But I take it these were not things that he discussed with you?

Mr. SENATOR. No; you could be friendly, friendly and all that there, but you don't know. I mean they don't tell you everything.

Mr. GRIFFIN. So what I am suggesting again or asking you again is if Jack was not the kind of person who about certain matters which he considered personal or important to himself wouldn't talk about it.

Mr. SENATOR. No; I don't think he would discuss everything; as a matter of fact I don't think there is any individual who will tell you everything. I don't care who they are. I am certain, I know there are people, every little thing, I mean there are certain things they keep to themselves. I would probably say like you, you, or anybody else. They are not going to tell you everything about their whereabouts, their notes, what they owe or what they don't owe or things of that nature. Everybody has a little secret or two.

Mr. GRIFFIN. To put it another way, you wouldn't describe Jack Ruby as the kind of person who as a matter of his constitutional and emotional makeup had to tell you everything he was doing? There are some people like that.

Mr. SENATOR. You mean would he tell me everything he was doing?

Mr. GRIFFIN. No; there are some people who are the kind of people who just somehow have to unload almost everything they are doing to other people. Now Jack Ruby wasn't that kind of person, was he?

Mr. SENATOR. Of what he thought you mean or his thinking?

Mr. GRIFFIN. Or his problems and so forth.

Mr. SENATOR. I don't think he would; no. I don't think he would unload everything. I am certain there are things that he may have owed or certain discussions he may have had that I am certain he wouldn't discuss with me. I am certain he didn't want me to know everything there was to know, you know, like anybody else would. There are certain things that an individual keeps to themselves, you know.

Mr. GRIFFIN. Go ahead, Mr. Hubert.

Mr. HUBERT. I want to pass to the next day, which is to say Monday, the 25th, unless you can advise me now that there was nothing of significance that occurred on the night of the 24th after you had met with Mr. Martin and Mr. Barclay.

Mr. SENATOR. You mean Sunday night?

Mr. HUBERT. Yes.

Mr. SENATOR. Barclay wasn't with me Sunday night.

Mr. HUBERT. There was another attorney.

Mr. SENATOR. Yes; I didn't say Barclay. I don't remember his name.

Mr. HUBERT. You don't remember his name?

Mr. SENATOR. No.

Mr. HUBERT. You didn't see Tom Howard that night?

Mr. SENATOR. I don't know if I did or not. I don't remember if I saw him or not that night.

Mr. HUBERT. Did you go to bed early?

Mr. SENATOR. You see I can't quote if I did or didn't. I just don't remember if I did.

Mr. HUBERT. Do you remember what time you went to bed at Jim Martin's house?

Mr. SENATOR. No; it could have been 11, 12, I don't know.

Mr. HUBERT. As I remember it, you said you met them at about 6 or 7. It was dark in any case?

Mr. SENATOR. Yes; something like that.

Mr. HUBERT. You stayed about a half hour and you left?

Mr. SENATOR. What?

Mr. HUBERT. You stayed about a half hour in the beer place?

Mr. SENATOR. It may have been a half hour, it may have been an hour, I don't know.

Mr. HUBERT. And you left and went to Jim Martin's?

Mr. SENATOR. I believe we went to Jim Martin's house. I think that I slept there that first night.

Mr. HUBERT. Did you meet anyone else that first night or speak to anyone else that first night, that is November the 24th, 1963?

Mr. SENATOR. November 24?

Mr. HUBERT. Yes.

Mr. SENATOR. Are you talking about Friday?

Mr. HUBERT. No; November 24 was a Sunday.

Mr. SENATOR. No; because I was wrapped up. I was wrapped up in the courthouse all that day.

Mr. HUBERT. No; I mean to say after you left the beer parlor, which I think you said was the TV Bar?

Mr. SENATOR. Yes.

Mr. HUBERT. You said you think you went to Jim Martin's house?

Mr. SENATOR. I don't remember if I met Tom Howard. I just don't remember the incident but I am almost certain that I went there to sleep.

Mr. HUBERT. You went to Jim Martin's house?

Mr. SENATOR. Yes.

Mr. HUBERT. What I am asking you is that prior to the time——

Mr. SENATOR. Did we meet anybody else?

Mr. HUBERT. Yes.

Mr. SENATOR. I don't think so. I don't remember but I don't think so.

Mr. HUBERT. Let's come then to Monday morning.

What happened then?

Mr. GRIFFIN. Mr. Hubert, if you can let me interrupt you here before you get to Monday morning.

When you met with Martin at the TV Bar, did you all talk about Jack Ruby?

Mr. SENATOR. Yes; there was discussion of it, that there and the events. Of course, he asked me what happened after I got in there. I told him. This detective, I guess, I just don't remember who the man was, they interrogated me and I told them the FBI interrogated me.

Mr. GRIFFIN. Did Martin say anything to you about Jack?

Mr. SENATOR. I don't think so. I don't remember. I don't think so.

Mr. GRIFFIN. Did he indicate whether or not he had seen Jack while you were being interrogated by the police?

Mr. SENATOR. If I remember right, I think he said he seen him at a glance behind us, I think it was the same window that I saw. They had him in this room there and I think there were three or four men there, something like that, but there was this glass partition. In other words, you could see in. I think he saw him. I am not sure but I think he saw him.

Mr. GRIFFIN. Was Tom Howard at the TV Bar at that time?

Mr. SENATOR. I don't remember. I remember there was Jim, there was this other attorney, but I don't remember if Tom was or not. In other words, I don't want to quote and say he was or wasn't because I just don't remember. He may have been now. He may have been there. I just can't think if he was or not that night. He may have been.

Mr. GRIFFIN. Do you remember what your conversation was about at the TV Bar?

Mr. SENATOR. No; of course, I told him—he asked me what happened, you know. I told him I was interrogated by the local police and the FBI.

Mr. GRIFFIN. Did you talk about Jack's defense?

Mr. SENATOR. No.

Mr. GRIFFIN. Now Saturday night, the 23d, you spent some time with Bill Downey and Mike Barclay?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Where did you see them?

Mr. SENATOR. We were sitting at a bar.

Mr. GRIFFIN. Which bar was that?

Mr. SENATOR. I think we were in the Burgundy Room and then we went to another one there and had I think either one or two beers and then we went home. At least I went home anyhow.

Mr. GRIFFIN. What was the other bar that you were in?

Mr. SENATOR. It was very seldom I ever went there. I'm trying to think of the name of it. It is a short name too, and I can't even put my finger on it.

Mr. GRIFFIN. What street was it on?

Mr. SENATOR. On Fitzhugh.

Mr. GRIFFIN. Where is that located?

Mr. SENATOR. It was on Fitzhugh. It runs off of, I think—down where Travis is?

Mr. GRIFFIN. No.

Mr. SENATOR. Fitzhugh and Travis. I should know the name of it but I can't get it off my tongue. It is a short name too.

Mr. GRIFFIN. Is that anywhere near Hall Street?

Mr. SENATOR. No; this is uptown about I would probably say from the downtown area I would imagine it would probably take you 10 minutes to get up there.

Mr. GRIFFIN. Do you mean the time you spent with Downey and Barclay—what did you talk about with them that night, Saturday night?

Mr. SENATOR. We talked about the occurrence of the shooting of the President, that there. It was just a gloomy night. That is why I didn't want to stay long. I said I wanted to get home and they said they wanted to get home.

Mr. GRIFFIN. Had you had a date to meet them at the Burgundy Room?

Mr. SENATOR. No; I think I met them both by chance there. Now I am not sure if I had a date to meet Bill or not, I don't remember, but I think Mike just walked in casually. I mean just happened to walk in.

Mr. GRIFFIN. Is Bill married?

Mr. SENATOR. No.

Mr. GRIFFIN. And how about Mike?

Mr. SENATOR. Mike; yes.

Mr. GRIFFIN. Did they know Jack?

Mr. SENATOR. Who don't know Jack in Dallas? They all knew him.

Mr. GRIFFIN. Did you talk about Jack that night?

Mr. SENATOR. No.

Mr. GRIFFIN. About how much time would you say you spent with them Saturday?

Mr. SENATOR. We went to that bar, I would roughly say maybe a half hour to three quarters of an hour, I would guess around that time.

Mr. GRIFFIN. That was at the Burgundy Room?

Mr. SENATOR. No; that is when we went to this other place and had a beer.

Mr. GRIFFIN. All together, the time you spent at the Burgundy Room and the other place on Fitzhugh how much time did you spend with them?

Mr. SENATOR. Maybe an hour and a half.

Mr. GRIFFIN. And then when you went home what did you do?

Mr. SENATOR. I went home and went to bed. I think I took a newspaper with me, if I am not mistaken and went home and went to bed.

Mr. GRIFFIN. Did you get to bed at what you would consider an early hour Saturday night?

Mr. SENATOR. Yes; I would say it was somewhere around 11.

Mr. GRIFFIN. How much sleep do you normally get, when you go to bed, how much sleep do you normally put in in a night?

Mr. SENATOR. Well, of course, that would go according to what time you went to bed, you know. It could be 4, 5, 6, 7 hours. I doubt if I ever stay in bed more than 8 hours the most, if it ever happens that long, which is rare.

Mr. GRIFFIN. So would it be your estimate that on Sunday morning you arose by 7 o'clock?

Mr. SENATOR. No; I don't think I got up that early.

Mr. GRIFFIN. If you didn't get up that early, then would it have been because you got to bed late that night after 11 or after midnight?

Mr. SENATOR. No; I must have been home about 11 o'clock that night. I think I read a little bit but I know I was in bed before 12. I think I was in the apartment around 11. I got home around 11.

Mr. GRIFFIN. You don't think you got more than 8 hours sleep that night or do you?

Mr. SENATOR. I doubt if I got more than 8 hours sleep.

Mr. GRIFFIN. Then I suggest to you that in all probability you got up on Sunday morning before 8 o'clock.

Mr. SENATOR. I would say around 8. Now mind you I got home 11 o'clock; so I assume I got in bed maybe around 12. Now mind you it is not necessarily that you fall asleep right away. Look, there is many a night that I toss and turn for 4 or 5 hours and didn't fall asleep, which is rare, but it has happened.

Mr. GRIFFIN. Did you have trouble sleeping that night?

Mr. SENATOR. No; I mean when I went to sleep, when I fell asleep I slept well.

Mr. GRIFFIN. Mr. Hubert.

Mr. HUBERT. Now let's see. I think we were at the point of Monday morning, and I should like you to tell us what happened on Monday beginning with the time you got up on Monday morning. I think you said you slept at Jim Martin's house.

Mr. SENATOR. Yes.

Mr. HUBERT. What did you do the next day?

Mr. SENATOR. Well, I got up and I drove him to his office and I think from there I went——

Mr. HUBERT. In your car?

Mr. SENATOR. Yes; I drove him down, and I dropped him off, and then I went and had coffee. I don't remember if it was around 9 or something like that. He gets down about 9 in the morning.

Mr. HUBERT. Did anything happen at the coffee shop?

Mr. SENATOR. No; nothing particular, no.

Mr. HUBERT. Did the people there talk about Ruby and your connection with him?

Mr. SENATOR. Talk to me about him? No; they didn't say anything, but they knew, you know. The people who knew me knew.

Mr. HUBERT. But nobody said anything to you?

Mr. SENATOR. No.

Mr. HUBERT. But the fact that you had been his roommate.

Mr. SENATOR. No; it was pretty silent. It was pretty silent.

Mr. HUBERT. What happened the rest of the day? What did you do that day?

Mr. SENATOR. I think I just roamed around in a fog that day, nothing in particular.

Mr. HUBERT. You didn't attempt to do your normal business?

Mr. SENATOR. No; I wasn't in any condition for business. I didn't feel that good.

Mr. HUBERT. You don't remember seeing anybody that day at all.

Mr. SENATOR. I am certain—who I saw I don't remember but I am certain that I seen people; yes.

Mr. HUBERT. You mentioned that sometime you saw Howard and you don't know whether you saw Howard the night before.

Mr. SENATOR. It is very possible that I may have seen Howard the next day. I may have seen him. Now where or when I don't know, you know.

Mr. HUBERT. What did you see him about? Can you tell us what the nature of the conversation was?

Mr. SENATOR. Well, I heard that Howard was getting the case, the Jack Ruby case.

Mr. HUBERT. So you went to see him about what? Put it this way, did he call for you?

Mr. SENATOR. No.

Mr. HUBERT. Or did you just decide to go and see him?

Mr. SENATOR. No; he didn't call for me.

Mr. HUBERT. You went to see him?

Mr. SENATOR. I saw him sometime during that day.

Mr. HUBERT. Will you tell us what it was about, what you talked about?

Mr. SENATOR. I don't believe it was anything particular that we talked about except I heard that he was getting the Jack Ruby case.

I don't remember the particular conversation at all.

Mr. HUBERT. Perhaps you can tell us this then. Since he didn't call upon you, you called upon him, what was the purpose of your visiting him? To find out the status of it?

Mr. SENATOR. Of me?

Mr. HUBERT. Yes.

Mr. SENATOR. No.

Mr. HUBERT. To find out the status of Ruby's defense, to see if you could help, to see if you could throw light upon it, to find out what was going on?

Mr. SENATOR. Everything in general was going on, you know. The photographers were around and the newspapers were around, and I believe he was down at the jailhouse. It is a conglomeration of things going on.

Mr. HUBERT. But you went to see him, and I suppose that was the purpose of the visit, that was the purpose in mind.

Mr. SENATOR. No; there was no purpose in mind. It was just going to see him. When you say the purpose in mind—I was so mixed up myself I didn't know what was going on.

Mr. HUBERT. I am not trying to confuse you.

Mr. SENATOR. There was no general purpose in mind.

Mr. HUBERT. What you are saying to us is then that you just went to see him, Mr. Howard, and that there was no purpose in mind.

Mr. SENATOR. No particular purpose in mind. I saw him. I saw Jim Martin later on that day.

Mr. HUBERT. Will you excuse me a minute. Will you take over.

(Short recess taken.)

Mr. GRIFFIN. I will simply ask you to remember everything that Mr. Hubert has been in the practice of repeating before we proceed.

Mr. SENATOR. If I can remember it.

Mr. GRIFFIN. To the effect that you are still under oath and we are continuing under the same circumstances that we began.

I believe we were talking about Monday, and you had indicated that on Monday you went to see Tom Howard.

Mr. SENATOR. I saw him. I just don't remember where. Monday there was so much excitement going that when I say excitement, of the occurrence of the day before, and with your photographers around town and

your pressmen and whatnot, you know, and the incoming of the FBI and things of that nature there, you know, it was a crazy cycle, you know.

Mr. GRIFFIN. Did you talk to any members of the Ruby family that day?

Mr. SENATOR. I don't think I saw them that day. I can't quote every instance.

Mr. GRIFFIN. How about his employees?

Mr. SENATOR. I think I went up—let's see, the club was closed Friday, Saturday and Sunday, and I think they did open Monday, and I think I was up there Monday night, if I am not mistaken, and, of course, going up there you had all your photographers, especially the ones from Europe and various parts were coming around. Of course, everybody wanted to see what the Carousel Club was. You know, it was just a mixed-up thing, so many things were going on there, and you were just roaming here and there, and, of course, people were questioning. A lot of people wanted to take pictures of me and this thing here. It was just a jammed-up, mixed-up day.

I know I saw Tom Howard that day. I don't remember where I saw him, if I called on him or what it was because so many things were going on there and my mind was in a muddle even with that.

Mr. GRIFFIN. The questioning that took place on Monday, did it have to do with what you had done on Friday, Saturday and Sunday?

Mr. SENATOR. No.

Mr. GRIFFIN. What Jack had done on Friday, Saturday or Sunday?

Mr. SENATOR. No; there was nothing in general. I mean there was nothing particular. I mean all my questionings—I mean all my questionings—I had that Sunday you know, with the local detective or whoever the gentlemen was, and the FBI man.

But Monday, when they wanted to know about Jack Ruby, they wanted to see pictures of him. They wanted to see the club of his. They wanted to see whatever they could get their hands on to see. They wanted to know this about him and that about him.

Mr. GRIFFIN. Did they want to know if he was involved with anybody else, whether there could have been a plot or a conspiracy to kill Oswald?

Mr. SENATOR. I am certain that probably would run through the minds of everybody.

Mr. GRIFFIN. Were they asking questions about that?

Mr. SENATOR. They have asked me so many questions that I can't even remember to think of them, you know, because there were so many questions thrown at you. And when they are throwing them at you, the general questions, they wanted to see the club, they wanted to see pictures, who were the strippers, this, that and whatnot. There was nothing precise except the curiosity of the things they wanted to see.

Mr. GRIFFIN. Now when you talked with Howard, of course, Howard indicated to you that you probably would be a witness for Jack, did he not?

Mr. SENATOR. I don't remember the incident at that time. I don't remember if he said it or not because I would probably say it was a little too soon at that time, the happenings, and I assume that Howard was kept pretty busy at the beginning, probably going to see Jack Ruby and this. You see, people were grabbing everybody.

Mr. GRIFFIN. When is the first time that you recall talking with anyone about being a witness for Jack?

Mr. SENATOR. At that time it didn't even enter my head. I wasn't thinking about that even. But as time went by, and I can't specify just how much time went by, I believe it was when Mr. Belli came into the case. See, I don't remember just how long it was from there until they got this Belli.

Mr. GRIFFIN. Let me ask you this: After you heard that Jack had killed Oswald, did you have any idea, did you think, why did he do it?

Mr. SENATOR. I hadn't the slightest idea. I couldn't imagine why. I'll tell you why I say that. Because he never at any time ever gave me any indication of anything.

Mr. GRIFFIN. Have you since then——

Mr. SENATOR. I just couldn't picture this man doing it.

Mr. GRIFFIN. Why was that?

Mr. SENATOR. I couldn't think. I couldn't picture him being of this nature.

Mr. GRIFFIN. And there was nothing that he had done that you had seen up to that point that would indicate that he had any thought about it?

Mr. SENATOR. No, none whatsoever. As a matter of fact, he had never even mentioned this Oswald to me during this occurrence even, but he had talked about the President, and he had talked about Mrs. Kennedy and the children, I don't know how many times.

Mr. GRIFFIN. But did you think he was any more disturbed than what you——

Mr. SENATOR. He was plenty disturbed. He was plenty disturbed. The man was crying. People have seen him, not only I, people have seen him crying. As a matter of fact, one of the kids in the club one night when we sat in a corner related he was crying and very, very disturbed. I believe it was one afternoon he was in there, if I remember right, I think it was the colored boy, Andrews, if I am not mistaken, I think said he saw him in a solemn condition or whatever condition you want to call it.

Mr. GRIFFIN. Do you remember when you were interviewed by Elmer Moore?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Where were you living at that time? Who were you staying with at that time?

Mr. SENATOR. I don't want to be quoted, but I think I was staying with Jean Lauve then. I am not sure, but I think I was there at that time.

Mr. GRIFFIN. Where did the interview take place?

Mr. SENATOR. At the FBI building. I can't think of the name of the building, but the FBI people.

Mr. GRIFFIN. The office of the Secret Service? Moore is with the Secret Service.

Mr. SENATOR. Yes, the Secret Service. I meant to say the Secret Service.

Mr. GRIFFIN. Did he call you and ask you to come down?

Mr. SENATOR. Yes. He had left a message at the Carousel or he may have been up there. As a matter of fact, I can even show you his card if you

would like to see it. I've still got that.

Mr. GRIFFIN. What makes you think you were staying with the Lauves at that point?

Mr. SENATOR. I think I was there. I'm not sure. I don't remember just where, but I think I was there at that time, because when Elmer Moore called me, I just don't remember how many days have elapsed by when he called me, see. I think it was a few days that were elapsed by when he called me and I think I may have been at the Lauves at that time.

Mr. GRIFFIN. Did you return to work at any time before Moore——

Mr. SENATOR. Return to work?

Mr. GRIFFIN. Yes; before Moore called you.

Mr. SENATOR. I hadn't worked at all from this thing here up until I told you I went to work the other day. If you want to classify me, I was just existing here and there, that is all.

Mr. GRIFFIN. Your employment up until the time that the President was killed was with the Texas Postcard & Novelty Co.?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Was that your own company?

Mr. SENATOR. I was classified as sales manager and partner, but with no say. In other words, I had no money.

Mr. GRIFFIN. Who were the people, the backers?

Mr. SENATOR. The backers?

Mr. GRIFFIN. Yes.

Mr. SENATOR. The people? A fellow by the name of Mort Seder and Ernest St. Charles.

Mr. GRIFFIN. How did you happen to get involved in that?

Mr. SENATOR. In the postcard business?

Mr. GRIFFIN. Yes; with them?

Mr. SENATOR. Well, Ernest St. Charles found out—see, he had a card rack like a lot of drug stores do or gift shops or things of that nature. He had found out that this fellow wanted to sell his business because this was a minute business with him because, he had another one, you know, which was much larger or whatever, the household goods or something of that nature.

Mr. GRIFFIN. As I understand it, the Texas Postcard & Novelty Co. was a going business.

Mr. SENATOR. Yes.

Mr. GRIFFIN. Before Seder and St. Charles got involved in it?

Mr. SENATOR. Yes; it was going. It was a going business. And he wanted to get rid of this business, because I just don't remember if he couldn't handle it or he couldn't handle both of them, I think it was. And this business here, he had to get rid of because it was deteriorating a bit because it wasn't getting the service. It wasn't being handled for the service. In other words, his business had slipped a certain amount.

Mr. GRIFFIN. Did Seder and St. Charles put up some money to acquire this business?

Mr. SENATOR. Yes, they put up the money; yes.

Mr. GRIFFIN. About how much money did they put up?

Mr. SENATOR. I think they put up somewheres around \$1,500 apiece, and I think they took a note for \$1,500. I think the business went for \$3,000, if I can remember right.

Mr. GRIFFIN. What assets, what kind of assets did they acquire?

Mr. SENATOR. The cards.

Mr. GRIFFIN. No office space?

Mr. SENATOR. No, no. See, he is in business in a little sort of a garage like in the back of his house. In the back of his house he has got this sort of garage-like thing.

Mr. GRIFFIN. Who are you talking about?

Mr. SENATOR. The fellow that had it.

Mr. GRIFFIN. Do you remember what his name was?

Mr. SENATOR. I should remember his name. I can't even think of his name right now.

Mr. GRIFFIN. All right, maybe you will think of it later. Did Seder and St. Charles have another business which they operated while they——

Mr. SENATOR. Yes; this business was a small little thing.

Mr. GRIFFIN. This was a sideline with them?

Mr. SENATOR. Just a little thing. It wasn't even, you know—it was a small little business.

Mr. GRIFFIN. What was Seder's main business?

Mr. SENATOR. Seder was a traveling man who sold men's apparel.

Mr. GRIFFIN. What was St. Charles' main business?

Mr. SENATOR. St. Charles, a drugstore.

Mr. GRIFFIN. Where did you acquire the postcards and novelties from?

Mr. SENATOR. The novelties, you see, there was a few novelties that he had left over in this thing here, in this business here, which weren't that good, and I got rid of them at a loss, you know.

Mr. GRIFFIN. Did you buy any——

Mr. SENATOR. There wasn't that much.

Mr. GRIFFIN. Did you buy any more novelties to supplant those?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Where did you buy those?

Mr. SENATOR. Some I bought locally and some were bought out of town.

Mr. GRIFFIN. And I take it the postcards, you had some source supplying the postcards too?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Did you see Seder and St. Charles between the time that Jack Ruby killed Oswald and the time that Elmer Moore talked with you?

Mr. SENATOR. I don't think so. I don't think so.

Mr. GRIFFIN. Did you talk to him by telephone?

Mr. SENATOR. Who?

Mr. GRIFFIN. Seder and St. Charles.

Mr. SENATOR. Not to my knowledge.

Mr. GRIFFIN. I take it then that you did not feel any obligation to report back to them and tell them that you were not going to be——

Mr. SENATOR. I was obligated, but the condition I felt, it was just a no-care attitude any more.

Mr. GRIFFIN. Did you have any sort of a draw from this postcard and novelty company?

Mr. SENATOR. Yes.

Mr. GRIFFIN. What was your draw?

Mr. SENATOR. It was \$75 a week, but I was drawing \$61.45.

Mr. GRIFFIN. Did you continue with your draw after Jack——

Mr. SENATOR. No.

Mr. GRIFFIN. You didn't continue after Jack killed Oswald?

Mr. SENATOR. Nothing. I didn't do anything.

Mr. GRIFFIN. Now, after Elmer Moore talked with you, you were then interviewed some time later by two FBI agents, Mr. Rawlings and Glonek?

Mr. SENATOR. Yes; that is correct.

Mr. GRIFFIN. Do you remember where you were staying at that time?

Mr. SENATOR. I think I was staying with Lauve. The first approximately 10 days you know, I was just jumping around. But from there on in I was with Lauve.

Mr. GRIFFIN. How long did you stay with the Lauves?

Mr. SENATOR. I must have stayed with them, I would probably say approximately around 5 weeks, I think.

Mr. GRIFFIN. When did you leave Dallas?

Mr. SENATOR. I left Dallas, I think it was about the end of the first week, if I remember right.

Mr. GRIFFIN. Of what?

Mr. SENATOR. January.

Mr. GRIFFIN. And when did you return to Dallas?

Mr. SENATOR. It was the latter part of February. I think it was the last week in February.

Mr. GRIFFIN. While you were away from Dallas, where were you?

Mr. SENATOR. At my sister's.

Mr. GRIFFIN. That is Freda Weisberg in New York?

Mr. SENATOR. Yes.

Mr. GRIFFIN. What was your occasion for returning to Dallas?

Mr. SENATOR. I knew I had to be a witness because I was called on the first bond hearing.

Mr. GRIFFIN. That was your occasion?

Mr. SENATOR. Yes.

Mr. GRIFFIN. For returning?

Mr. SENATOR. I had to come back as a witness.

Mr. GRIFFIN. In the bond hearing?

Mr. SENATOR. No, no. I was at the bond hearing before I went away. I think I was at the first bond hearing. I don't remember the date, but it was in December sometime.

Mr. GRIFFIN. Was that before or after you talked with Agents Rawlings and Glonek that you appeared at the bond hearing?

Mr. SENATOR. That was before because I remember one day that I met one of the agents. As a matter of fact, I was in the lobby of the Adolphus Hotel and one of the agents hollered out, "Hi, George" and I turned around

to see who it was. It happened he was talking to some other agents and they were departing, they were going home.

So I walked over to him and I asked him who would I notify if I wanted to, who would I notify with the FBI that I was going to leave, that I wanted to go home but I wanted them to know where I was going, and he mentioned, call Mr. Clements.

Mr. GRIFFIN. At the time of the first bond hearing, who was representing Jack Ruby?

Mr. SENATOR. Mr. Belli, Joe Tannenbaum—not Tannenbaum, Joe Tonahill.

Mr. GRIFFIN. Anyone else?

Mr. SENATOR. Tom Howard was in it, but at that time he had no say.

Mr. GRIFFIN. What happened that Howard was not given any say?

Mr. SENATOR. Well, I am not sure how to relate it, but I think that Earl Ruby, who was in Detroit then, was still in Detroit, spoke to some lawyer I think in Chicago now. I think it was in Chicago, looking for a lawyer, a big lawyer for Jack Ruby, and this lawyer to my knowledge, if I understand it right, was quoted to get Mr. Belli.

Mr. GRIFFIN. And how about Tonahill? How did Tonahill get in?

Mr. SENATOR. I don't know. Tonahill, it seems, must have been a friend of Belli. The relationship I don't know, how they met or something of that nature.

Mr. GRIFFIN. Have you talked to Jack Ruby between the time you last saw him that Sunday morning, the 24th of November, and now?

Mr. SENATOR. In the jail.

Mr. GRIFFIN. Have you talked to him?

Mr. SENATOR. In jail, sure.

Mr. GRIFFIN. When did you talk with Jack?

Mr. SENATOR. Various times, various times that Sheriff Decker would let me up.

Mr. GRIFFIN. Did you see him before the bond hearing?

Mr. SENATOR. I think I did, yes. I think so. I think I was up there. I mean I can't quote dates. I don't even remember what the date of the bond hearing was.

Mr. GRIFFIN. Do you remember the first time you went up to see him?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Did you go up with anybody?

Mr. SENATOR. No, I went up alone. The reason for that, the reason I say I went up alone is because nobody was up there, allowed up there, besides the family and maybe very, very close friends because Sheriff Decker wouldn't allow anybody in.

Mr. GRIFFIN. How long did you spend with Jack that first time?

Mr. SENATOR. I don't remember. You know, they have got a limitation on you. I don't remember just how long I talked to him. It wasn't too long because they let you know that you have got to go.

Mr. GRIFFIN. Tell us what happened on this occasion.

Mr. SENATOR. I don't remember what it was. First of all, I never talked to him, I would never ask him what happened. I never talked about that. I talked about anything else, and he was telling me, he said he wanted me to look up certain people, the locales, tell them where he was and things like that there, like sisters and Gordon McLendon which he asked me to go, whom I never saw, never got to.

Mr. GRIFFIN. What was Jack's relationship with Gordon McLendon?

Mr. SENATOR. He just knew him. There was no relationship. He mentioned a lot of names. He mentioned a lot of names to call them for the bond hearing. I remember this. He was trying to get certain people to come to the bond hearing. And he was rattling off a lot of big names. He rattled off the manager, I don't remember the name, from the Statler Hilton, anybody who was prominent, such as I think the rabbi too if I am not mistaken.

Mr. GRIFFIN. Did Jack appear to want to make bond at that time?

Mr. SENATOR. I don't know. He didn't discuss that, but I do know—I can't answer unless you want me to surmise something, guess on it.

Mr. GRIFFIN. Unless you have some information which leads you to think how he felt.

Mr. SENATOR. I don't have information on that.

Mr. GRIFFIN. Did you ever talk to the lawyers about whether they were really serious about making bond?

Mr. SENATOR. I think the lawyers were trying to get bond for him.

Mr. GRIFFIN. Did you ever talk with them?

Mr. SENATOR. No. I will tell you something. The lawyers didn't discuss anything with me at no time. They said, "George, we are going to use you as a witness," which I knew they wanted me for that.

Mr. GRIFFIN. There came a time when Howard was no longer part of the case?

Mr. SENATOR. He was part of the case; he was still part of the case when I left, you know, but how big his say was I don't know.

Mr. GRIFFIN. When you got back for the trial, however, he was not a part of the case; is that correct?

Mr. SENATOR. Yes; I think he was out of it before I got back. I am not sure, but I think he was. I don't think he was in the case.

Mr. GRIFFIN. When you returned for the trial, did you have occasion to talk with Howard at all?

Mr. SENATOR. I saw him on certain occasions.

Mr. GRIFFIN. Did you ever learn how he happened to get out of the case?

Mr. SENATOR. Well, he got out of the case—I mean I really don't know, but I feel he got out of the case because he was—there was nothing, practically, to speak of. I guess that is about the best way to describe him. He had no say.

Mr. GRIFFIN. Was it something he had told you?

Mr. SENATOR. What?

Mr. GRIFFIN. Was it something he had told you?

Mr. SENATOR. No, no. But he had no say any more. So I don't know how to classify his sitting there, just being there with no say any more, no nothing. After all, when he originally started, he was the leadman, you know, and then all the things materialized after that.

Mr. GRIFFIN. How many times would you say you saw Jack Ruby in his jail cell between the time that he shot Oswald and the time that he was tried, actually went to trial, in Dallas?

Mr. SENATOR. How many times?

Mr. GRIFFIN. Yes.

Mr. SENATOR. A guess?

Mr. GRIFFIN. Yes. Your best estimate. Try to give some thought to it.

Mr. SENATOR. Let me see now. I would say maybe 10 or 15 times, I would guess.

Mr. GRIFFIN. Did you notice any change in him over this period of time?

Mr. SENATOR. Sure.

Mr. GRIFFIN. When did you first notice that he was changing; that there was some change?

Mr. SENATOR. I saw him very few times, you know, previous to when I went away, but his change—when I really noticed the change was after I came back.

Mr. GRIFFIN. This was in February?

Mr. SENATOR. Yes.

Mr. GRIFFIN. After the 18th of February?

Mr. SENATOR. Yes. His voice was getting lower, and his head was hanging down, and this is the way it was all the way up until the period, even after the trial. I don't know—I don't know how to describe the words; you call it deterioration or whatever runs through him; I don't know. I

would never ask him anything like that, you know. I never spoke about anything like that; anything but that.

Mr. GRIFFIN. Did you notice a change——

Mr. SENATOR. He had lost weight.

Mr. GRIFFIN. He had lost weight?

Mr. SENATOR. Yes.

Mr. GRIFFIN. You noticed a change in his voice and something about the way he carried his head?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Anything else?

Mr. SENATOR. And he lost weight. Of course, he quoted the Bible to me.

Mr. GRIFFIN. Had he ever done that before?

Mr. SENATOR. I don't know.

Mr. GRIFFIN. I mean to you; had he ever quoted from the Bible to you before?

Mr. SENATOR. No; I don't think so, that I can remember of.

Mr. GRIFFIN. What passages of the Bible was he quoting?

Mr. SENATOR. He didn't. He didn't quote the passages, but he quoted that he was reading the Bible. He didn't quote any passages to me.

Mr. GRIFFIN. How about his manner of speech other than the deepness of his voice? Was there anything about the manner of his speech?

Mr. SENATOR. What do you mean; the manner of his speech?

Mr. GRIFFIN. Coherence, his ability to carry through on a topic of conversation. Was he able to discuss topics as lucidly as he had discussed them previously to you?

Mr. SENATOR. No. I'll tell you, it got so that there was a hesitation. The words were even silent. There was no speaking at times; just, you know, like, you know. In other words, you know, there is very little of him I could see. I was looking through this little glass. I couldn't touch him or nothing.

In other words, instead of his wall being plaster, the thing was steel or iron, whatever it was; see what I mean?

Mr. GRIFFIN. So you and he would be separated?

Mr. SENATOR. Oh, yes. I couldn't even touch him. It was impossible.

Mr. GRIFFIN. How much of him could you see? We are going to have to get this on the record. This is the problem.

Mr. SENATOR. In other words, I am standing up here and I am looking through a glass about like this.

Mr. GRIFFIN. You are looking through a little glass door?

Mr. SENATOR. And like this.

Mr. GRIFFIN. A little glass window?

Mr. SENATOR. A window something like this.

Mr. GRIFFIN. Maybe 12 inches long and 8 inches high or something?

Mr. SENATOR. Approximately. This is a guess.

Mr. GRIFFIN. At about eye level?

Mr. SENATOR. Yes; it's eye level. And under it are these perforations that you have to talk to; holes. You know; perforated holes.

Mr. GRIFFIN. Perforations in a door of some sort?

Mr. SENATOR. No door; no.

Mr. GRIFFIN. Just a wall?

Mr. SENATOR. Just a wall.

Mr. GRIFFIN. And you could not see Jack other than through that window?

Mr. SENATOR. No. That is the only thing. It is just a solid——

Mr. GRIFFIN. Steel?

Mr. SENATOR. A solid steel wall. At one end was a door, but that was solid, too. In other words, when you looked at the door you might as well say it was part of the wall.

Mr. GRIFFIN. This was the cell that Jack was kept in?

Mr. SENATOR. No; this was no cell. I don't know what cell he was in.

Mr. GRIFFIN. Did Jack stay in there?

Mr. SENATOR. No.

Mr. GRIFFIN. He was brought in?

Mr. SENATOR. This is a hallway. This was a narrow hallway. Apparently they didn't let you know the cell he was in. I never saw him in a cell. I have never seen any cells. They'd bring him down in, and, of course, I can't see which way they are coming through. All I can say is they are coming this way when I walk in, and this is this little hall, this little hallway. I can't see every bit of him, you know.

Mr. GRIFFIN. And were these always the conditions under which you talked to Jack, even before you left Dallas?

Mr. SENATOR. That is the only way I have ever seen him, from beginning to end. That is the only way I could ever see him. In other words, there was no time that I could even touch him to shake his hand; nothing, because there was nothing but a solid iron or steel, or whatever it was, wall.

Mr. GRIFFIN. You indicated that, of course, you noticed the most marked change in him when you returned to Dallas, and I take it from that that, up until the time you left Dallas, you didn't notice any substantial changes in him?

Mr. SENATOR. I would probably say that there may have been a little—you know, there may have been some change, but how much there was or how much; I know this; I am certain within the man there would have to be some change, because when I left already, how long has passed, maybe 5 or 6 weeks have already passed by. Within the feelings of himself, which I don't know, there must have been some change within him, you know, which I sort of surmised. Now, how much, I don't know.

Mr. GRIFFIN. Has there ever been any time that you have talked to Jack where he wasn't coherent?

Mr. SENATOR. Take that coherent word and use another phrase.

Mr. GRIFFIN. You use a phrase that is more appropriate to you. I take it you have some idea of what I am suggesting.

Mr. SENATOR. Well, when you say "coherent," break it down to another word and make it more simplified for me.

Mr. GRIFFIN. Was there anytime that you talked to him where it appeared that he did not understand what you were saying to him?

Mr. SENATOR. I never noticed it, or even thought about it that way. I don't even know.

Mr. GRIFFIN. Was there ever anytime when you would ask him a question or say something to him and you would get back a response which did not make any sense to you?

Mr. SENATOR. I don't think so; not that I can recall. I don't think so.

Mr. GRIFFIN. Was there anytime when you would ask Jack questions and he would not be able to respond at all?

Mr. SENATOR. No; he was able to respond.

Mr. GRIFFIN. Have you at anytime talked with Jack about the events of November 22, 23, and 24?

Mr. SENATOR. Never at anytime have I ever been at that jailhouse where anything like that ever come up. I have never asked him, and I don't think anybody would to my knowledge, would ask him questions like that, because this would be a hard subject to talk about. I would assume probably in the condition that he was in and the locale, the placement of where he is in, of what he is in——

Mr. GRIFFIN. Did Jack ever indicate to you any fear; has he indicated any fear to you in the times that you have talked to him since he shot Oswald?

Mr. SENATOR. He didn't look fearful to me. Now I don't know, you know. I don't know.

Mr. GRIFFIN. What I want to do now is go through with you some documents. I have got a series of photographs and other things here, and I want to ask you some questions about them. I am going to hand you what has been marked for identification as "Exhibit 5304-A," which was used in

the deposition of Andrew Armstrong. That is a photograph, and I am going to hand it to you and ask you if you recognize where that photograph was taken?

Mr. SENATOR. I am not familiar with it.

Mr. GRIFFIN. Do you recognize anybody in that photograph?

Mr. SENATOR. No; I don't. Where is it supposed to be?

Mr. GRIFFIN. That is what I am asking you.

Mr. SENATOR. No; I don't know.

Mr. GRIFFIN. Can you look at the man who is tending bar? Do you recognize him?

Mr. SENATOR. No; it is a pretty shady picture to see his face.

Mr. GRIFFIN. I am going to hand you what has been marked as Exhibit 5304-B, which was also used in the deposition of Andrew Armstrong. That is another photograph, and it shows a girl in a western costume standing on a table. Do you recognize any of the people in that photograph, or do you recognize where that photograph was taken?

Mr. SENATOR. No; never seen a place with elkhorns or whatever they are. Is that a night club or a restaurant, that place?

Mr. GRIFFIN. I was hoping you would be able to tell us.

Mr. SENATOR. I don't know. I'll tell you with a guess; it looks like a restaurant, according to the curtains. That is what it looks like to me. I don't even know.

Mr. GRIFFIN. I am going to show you what has been marked as "Exhibit 5302," and unless I indicate to the contrary, all of these exhibits have been used in the deposition of Andrew Armstrong. That is a photograph of a man. Do you recognize that man?

Mr. SENATOR. No; is he a Dallas man? I don't know that man.

Mr. GRIFFIN. Then I hand you Exhibit 5303-A, and I would like you to look over that photograph. It is actually a series of about 12 small photos. Can you tell me if you recognize anybody in there?

Mr. SENATOR. Well, I know it is the Carousel. These prints are pretty small for my eyesight. I have seen him. I don't know who he is, but I have seen him.

Mr. GRIFFIN. You are indicating a fat, obese man?

Mr. SENATOR. Yes; I have seen him.

Mr. GRIFFIN. Where have you seen him?

Mr. SENATOR. At the Carousel. I believe these occurred, I think, when they were having—what do you call that now? I think when they were giving prizes away, if I am not mistaken, on this particular time, and then sometimes they would have on Friday or Saturday, Saturday night, amateur hour.

Mr. GRIFFIN. This would be amateur strippers?

Mr. SENATOR. Once in a while—there was one girl who would always bring up, after she got through she would always bring up one fellow to do the twist. Now this wasn't every night; only this one girl when she was on.

Mr. GRIFFIN. Of Jack's stripteasers?

Mr. SENATOR. Yes. As a matter of fact, I think I saw him do the twist once.

Mr. GRIFFIN. That big, fat man?

Mr. SENATOR. Yes. But I can't see the faces here. But I can't help but recognize him.

Mr. GRIFFIN. You can't make out the faces in looking at those photographs?

Mr. SENATOR. This is an M.C.

Mr. GRIFFIN. You are indicating the center photograph at the top?

Mr. SENATOR. Yes; this is an M.C. This looks like Tammi.

Mr. GRIFFIN. Tammi True?

Mr. SENATOR. Yes.

Mr. GRIFFIN. The left-hand side in the third photograph?

Mr. SENATOR. Yes. As a matter of fact, are they all Tammi's? Yes; that is Tammi. This girl is not clear enough for me to see. I am certain I know her, but I can't tell which one that is. That is about all I can see there. The majority are all customers.

Mr. GRIFFIN. I take it you do not recognize any of the customers.

Mr. SENATOR. No, because they ain't looking this way.

Mr. GRIFFIN. Now let me hand you Exhibit 5303-B and ask you if you recognize any of the people in those photographs.

Mr. SENATOR. That is Tammi True.

Mr. GRIFFIN. The stripper that is shown in those photographs is Tammi True?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Do you recognize any of the customers?

Mr. SENATOR. This you can't see at all. This you can't see at all. I can't tell from this. This is no way of seeing; this is no way of seeing. This you can't see hardly.

Mr. GRIFFIN. I hand you Exhibit 5303-C and ask you if you recognize any of the people in those photographs?

Mr. SENATOR. I know the stripper.

Mr. GRIFFIN. Who is that?

Mr. SENATOR. That is Kathy Kay, but I can't recognize anybody from the back.

Mr. GRIFFIN. All right; now, Exhibit 5303-D; do you recognize anybody in there?

Mr. SENATOR. Yes; that is Little Lynn.

Mr. GRIFFIN. The stripper is Little Lynn?

Mr. SENATOR. Yes; as I know her. You called her Karen. What is her last name?

Mr. GRIFFIN. Bennett.

Mr. SENATOR. Bennett; yes. I don't recognize anybody else here though.

Mr. GRIFFIN. Did you know Little Lynn before you began to live with Jack Ruby the last time?

Mr. SENATOR. I don't remember. All I know—see, I didn't always come there every night, you know, but I walked in one night and I saw her there and, of course, I didn't know who she was. She had already been there a few days, I think, or something like that, which I didn't know. This is the one that, I guess you probably know, that came in with that gun with no firing pin. I guess you heard about that.

Mr. GRIFFIN. It was at the trial, was it not?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Or one of the hearings.

Mr. SENATOR. Yes; she come in with this gun, which I believe didn't have a firing pin, and, of course, there was no ammunition, but it was a blank gun. According to what I have heard around the station there, that she had switched bags and was in a hurry or something like that, and she didn't even know the gun was in there, according to what I have heard.

Mr. GRIFFIN. You haven't talked to her about it?

Mr. SENATOR. No, no. When that happened, she was being searched just as you walk into the courtroom, and that is where they got her.

Mr. GRIFFIN. Now, would you look at Exhibit 5303-E and tell me if you recognize anybody in there?

Mr. SENATOR. Yes; I know the stripper.

Mr. GRIFFIN. Who is that?

Mr. SENATOR. Joy Dale. The people, no. They are all facing the other way. That is why I can't recognize anybody.

Mr. GRIFFIN. Now look at Exhibit 5303-F and tell me if you recognize anybody in there?

Mr. SENATOR. This is Kathy Kay.

Mr. GRIFFIN. The stripper is Kathy Kay?

Mr. SENATOR. Kathy Kay, and this is Joy on this side.

Mr. GRIFFIN. Joy Dale on the right-hand side, a stripper?

Mr. SENATOR. Yes.

Mr. GRIFFIN. And Kathy Kay on the left?

Mr. SENATOR. This is that big heavy-set fellow which I can tell. I don't know his name.

Mr. GRIFFIN. The top picture in the center?

Mr. SENATOR. Yes. And the cocktail waitress.

Mr. GRIFFIN. Who is the cocktail waitress?

Mr. SENATOR. Bonnie something. I don't know her last name.

Mr. GRIFFIN. Is she shown in the picture in the lower right-hand side?

Mr. SENATOR. Bonnie. I don't know her last name.

Mr. GRIFFIN. But you don't recognize anybody else?

Mr. SENATOR. Let me see. No.

Mr. GRIFFIN. Now I hand you Exhibit 5303-G. Do you recognize anybody in there?

Mr. SENATOR. This is Kathy Kay, the stripper. Excuse me, not Kathy Kay. This is Tammi True. That is an error. But I can't see no faces there.

Mr. GRIFFIN. Let me hand you Exhibit 5303-H. Other than the strippers, do you recognize any of the other people in those pictures?

Mr. SENATOR. You don't want the strippers, right?

Mr. GRIFFIN. That is right.

Mr. SENATOR. I am looking for the face here but I can't see it. This one I can't see the face well. Whether I know him or not, I don't think so but I just can't see their face well.

Mr. GRIFFIN. Now Exhibit 5303-I, other than the stripper and the fat man who is shown there, do you recognize any of the people?

Mr. SENATOR. No; I don't.

Mr. GRIFFIN. All right, Exhibit 5303-J, other than the entertainers, do you recognize any of the people?

Mr. SENATOR. I can tell that this is Tammi True from the back. No, no, I don't. The M.C. I don't know him.

Mr. GRIFFIN. Who is the M.C.?

Mr. SENATOR. I don't even know his name. He was only there a short while, this particular one here.

Mr. GRIFFIN. Let me give you Exhibit 5303-K.

Mr. SENATOR. Where did you get this good picture?

Mr. GRIFFIN. Do you recognize any of the people shown there?

Mr. SENATOR. That is the cocktail waitress. I can't distinguished who it is. This sort of looks like Jack, but I am not sure.

Mr. GRIFFIN. You are pointing to——

Mr. SENATOR. But I am not sure. I'll tell you, I am looking at the head because it is sort of baldish.

Mr. GRIFFIN. But the people in the foreground in that picture, you don't recognize any of them?

Mr. SENATOR. No.

Mr. GRIFFIN. All right, Exhibit 5303-L. Other than Jack Ruby, do you recognize anybody in there?

Mr. SENATOR. No.

Mr. GRIFFIN. Let me hand you Exhibit 5300-A and ask you if you recognize any of the people in that picture other than Jack Ruby?

Mr. SENATOR. Kathy Kay.

Mr. GRIFFIN. That is the blonde on Jack Ruby's right, or left as you look at the picture?

Mr. SENATOR. This is a cocktail waitress. Her name is Alice.

Mr. GRIFFIN. The girl on Jack Ruby's left, Jack's left but the right side of the picture?

Mr. SENATOR. Alice, I don't remember her last name.

Mr. GRIFFIN. How long had Alice worked for Jack?

Mr. SENATOR. I would say on and off for maybe a year and a half or two, but I am not sure.

Mr. GRIFFIN. Did Jack date Alice?

Mr. SENATOR. Not to my knowledge.

Mr. GRIFFIN. Did Alice ever solicit up at Jack's apartment?

Mr. SENATOR. I think she came there once for I think it was a job interference. I think for some reason, I don't know what it was because I didn't stay, but she was there once. She came there one afternoon. I don't know what happened.

Mr. GRIFFIN. Let me hand you Exhibit 5301-D. Do you recognize any of the girls in that picture?

Mr. SENATOR. This is Joy Dale on the left and this is Little Lynn.

Mr. GRIFFIN. On the right?

Mr. SENATOR. Right.

Mr. GRIFFIN. That is on the right of the picture as you look at the picture?

Mr. SENATOR. Yes: Little Lynn on the right.

Mr. GRIFFIN. What I am going to do, Mr. Senator, I am going to hand you a set of photographs, 5306-A and 5306-B. These photographs are pictures of memoranda that were made at one time or another. Let me ask you to look at those. First, I will ask you a general question about these memoranda.

Do you ever recall Jack Ruby having any memoranda pads similar to those that are shown in those photographs?

Mr. SENATOR. No; with him, everything went on a piece of paper, it don't matter what type it was. He would keep his papers and notes, everything else like he kept his money, all over.

Mr. GRIFFIN. Did he keep some of his papers and notes at home?

Mr. SENATOR. It could be at the office or at home because he wasn't immaculate in where he kept things, things of that nature there. It would lay here, lay there, lay in the office, wherever it laid. That is the way he was.

Mr. GRIFFIN. Did he have any memoranda pads such as this?

Mr. SENATOR. Not that I know of. I can't say yes or no, but not to my knowledge that I know of.

Mr. GRIFFIN. Did you have occasion to take messages for him at home?

Mr. SENATOR. Very seldom if the phone rang and all I would do is write it on whatever piece of paper it might be. No particular paper, sometimes even on a newspaper, whatever it was, whatever is close by. I have seen those go on pieces of paper this big even, you know. It is just no particular type piece of paper with him.

Mr. GRIFFIN. Do you know who Nancy Barker might have been?

Mr. SENATOR. No; it could have been maybe somebody calling for a job. I don't know.

Mr. GRIFFIN. Do you know who Joyce Harvey was?

Mr. SENATOR. No.

Mr. GRIFFIN. Do you know who Linda Bumwalt was?

Mr. SENATOR. No.

Mr. GRIFFIN. Emma Ship?

Mr. SENATOR. No; the only thing possibly could happen, I may know somebody by face maybe but not by name. This could be. I don't know.

Mr. GRIFFIN. Did you know Jean Bordon?

Mr. SENATOR. No.

Mr. GRIFFIN. Did you know Archie Esquavill? Did you ever hear of him?

Mr. SENATOR. No.

Mr. GRIFFIN. Did you ever hear of a person named T. E. Smith?

Mr. SENATOR. No.

Mr. GRIFFIN. Now I am going to hand you a series of photographs which are marked Exhibits 5305-A to 5305-S. These are photographs of a notebook which had a cover which said "Aladdin," and I ask you first of all if you have ever seen this Aladdin notebook?

Mr. SENATOR. I don't think I have. I mean, his things that he kept in his pocket, I assume that is it.

Mr. GRIFFIN. Would you look through those photographs and look through all of them, and I am going to ask you a general question whether you recognize that notebook?

Mr. SENATOR. So far this stuff I have never seen, though I do know he had books, you know, notebooks, but I have never seen the insides of them.

Mr. GRIFFIN. Are you able to read what is on those pages?

Mr. SENATOR. Some yes and some no.

Mr. GRIFFIN. I will ask you the question again: Do you ever recall having seen this particular notebook?

Mr. SENATOR. I know he had a book. Now, I don't know about the cover, but I know he had a book. As a matter of fact, I think he had two or three of them. But I am not sure of the cover part of it, but I do know that he had a notebook of some sort.

Mr. GRIFFIN. I am going to hand you Exhibit 5305-B, which purports to be a photograph of a page of that notebook. Can you read the names on there?

Mr. SENATOR. Leonard, isn't that right? That is Leonard.

Mr. GRIFFIN. I just want to know if you have difficulty reading them.

Mr. SENATOR. Frank Barber.

Mr. GRIFFIN. I take it you do have some difficulty reading the names.

Mr. SENATOR. Frank Bourber or Barber.

Mr. GRIFFIN. Let me read the names to you and ask you if you recognize any of them.

Mr. HUBERT. May I make this suggestion?

(Discussion off the record.)

Mr. SENATOR. I know some of the names on there.

Mr. GRIFFIN. Do you recognize the handwriting on that page?

Mr. SENATOR. No.

Mr. GRIFFIN. Do you recognize Jack Ruby's handwriting?

Mr. SENATOR. It probably could be Jack's, I guess.

Mr. GRIFFIN. But would you recognize Jack's handwriting?

Mr. SENATOR. I don't think, offhand, I would, but I assume these probably are Jack's handwritings, I guess.

Mr. GRIFFIN. Let me ask you, did you know Frank Barber?

Mr. SENATOR. No.

Mr. GRIFFIN. Did you ever hear Jack speak or did you know Milt Jaffe?

Mr. SENATOR. No.

Mr. GRIFFIN. Did you know of any friend Jack had named Barney?

Mr. SENATOR. No.

Mr. GRIFFIN. How about Pauline?

Mr. SENATOR. No.

Mr. GRIFFIN. Did you know Pauline Hall?

Mr. SENATOR. Now, you may ask me some names. I may know the face but I may not recognize the name.

Mr. GRIFFIN. Did you know any people that worked at the Vegas Club?

Mr. SENATOR. Oh, Pauline Hall; yes, I do. I am glad you mentioned that. Pauline worked at times at the Vegas Club, if that is her last name. I am not sure. Now, I know her first name was Pauline, so it might be Pauline Hall, if that is her last name, but she worked at the Vegas Club.

Mr. GRIFFIN. You say she worked there at times?

Mr. SENATOR. Yes; not steady. I wouldn't say she worked there steady. There were times I walked in there with Jack at night on a weekend I have

seen her working, and then there are other times I haven't seen her working.

Mr. GRIFFIN. Did you know Billy Brook?

Mr. SENATOR. No.

Mr. GRIFFIN. Bobbie Patterson?

Mr. SENATOR. I think I have heard of that name, but I can't think who it is. I think I have heard of that name. I think I have heard of that name Bobbie Patterson, but I can't refresh my mind. It seems I have heard that name.

Mr. GRIFFIN. Howard Foster?

Mr. SENATOR. No.

Mr. GRIFFIN. Sammy Tucker?

Mr. SENATOR. No. Would it be easier, you know, what you want to do, would it be easier if I could pick up the ones I knew?

Mr. GRIFFIN. If you could read them. Could you go through there and pick out the ones you know, and indicate to me if there are any on there you can't read.

Mr. SENATOR. What is this? Is this Goody?

Mr. GRIFFIN. It looks like Grady to me, but I am not sure.

Mr. SENATOR. Fred Fillman, I don't know who he is. You want me to sound out the names, don't you?

Mr. GRIFFIN. Just comment on the ones you recognize.

Mr. SENATOR. What does this say? It looks like Rita.

Mr. GRIFFIN. It looks like Ruth Shay.

Mr. HUBERT. You had better make reference to the document you are talking about. Let the record show the comments of the witness are with reference to Exhibit 5305-F.

Mr. SENATOR. Here is one that says Pauline. That may be Pauline Hall, I don't know. I have heard that name. I don't know who she is.

Mr. GRIFFIN. What name are you talking about?

Mr. SENATOR. Tex DeLacy.

Mr. GRIFFIN. Take a look at 5305-G and tell me if you recognize the name R. T. Brown on there.

Mr. SENATOR. No; I don't know who that is.

Mr. GRIFFIN. Let me hand you 5305-H.

Mr. SENATOR. There is no other names on there.

Mr. GRIFFIN. That is right. 5305-H, do you recognize any of the names on there?

Mr. SENATOR. What is that, Joseph Rossi?

Mr. GRIFFIN. Yes.

Mr. SENATOR. I don't know him. The rest are just figurations here, numbers or moneys.

Mr. GRIFFIN. Take a look at 5305-I. There is the name Tom Palmer.

Mr. SENATOR. Tom Palmer, I think he is the booking agent in Dallas. In other words, he books. Not the booking agent. I have got to find out how to classify him now.

Mr. GRIFFIN. Tell us what he does.

Mr. SENATOR. He is with, I think he is with AGVA.

Mr. GRIFFIN. And that is the American Guild of Variety Artists?

Mr. SENATOR. Yes. I believe he has an office in Dallas. Let me see how he is classified. How do you classify him? I guess he has something to do with the acts, you know, the working hours, and the pay.

Mr. GRIFFIN. Of the entertainers?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Have you met Tom Palmer?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Where have you met him?

Mr. SENATOR. I have seen him in the Carousel, or occasionally on the street, or something like that.

Mr. GRIFFIN. About how many different occasions would you say you have met him?

Mr. SENATOR. Oh, I have seen him maybe a dozen times or so, maybe more. I don't know.

Mr. GRIFFIN. Did you first meet him through Jack Ruby?

Mr. SENATOR. Yes; because when he came up there, he always went to Jack, you know. I mean, he had no occasion to come to me or anything of that nature, but he always came to Jack.

Mr. GRIFFIN. Do you know of any particular dealings Jack had with him in the few weeks before Oswald was shot?

Mr. SENATOR. No.

Mr. GRIFFIN. Let me hand you Exhibit 5305-J, and I will ask you if you recognize any of the names on there.

Mr. SENATOR. What is this, Grace Wilkins, the first one? Is that what that says? I don't know her, but is that what it says?

Mr. GRIFFIN. It looks like Grace Wilkins; yes. Do you recognize that name?

Mr. SENATOR. No. And Woodruff, I don't know who that is. But, mind you, I want you to bear in mind I may know these people and don't know the names. I may know them if I see their face.

Mr. GRIFFIN. Yes.

Mr. SENATOR. J. B. Gruber, I don't know who he is.

Mr. GRIFFIN. I will hand you Exhibit 5305-K and ask you if you recognize any of the names on there.

Mr. SENATOR. KLIF radio station.

Mr. GRIFFIN. KLIF?

Mr. SENATOR. Yes. I have heard of the name Harrigan. I don't know if Harrigan is KLIF, I am not sure. It says diskjockey. I knew he was

something like that.

Mr. GRIFFIN. Have you met him?

Mr. SENATOR. I don't think I have ever met him, but I have heard of that name.

Mr. GRIFFIN. Did Jack talk to you about him?

Mr. SENATOR. I don't know how I heard of it. Very possibly he may have, but I have heard the name. I know I have heard the name before. I don't know who this other is. I believe it says Chuck Dunnaway.

Mr. GRIFFIN. Do you recognize that name?

Mr. SENATOR. No; I am not familiar with these. I am not familiar with these.

Mr. GRIFFIN. Do you know Alex Gruber?

Mr. SENATOR. No. As I say, I may know him by face, but I am not familiar with the name.

Mr. GRIFFIN. I am going to hand you Exhibit 5305-M and ask you if you recognize the names on there. I might state for the record that 5305-L is a duplicate of 5305-K, and that is why I didn't hand it to the witness.

Mr. SENATOR. Here it says Nick Turman. The reason I say that, I happen to know somebody by the name of Buddy Turman.

Mr. GRIFFIN. Who is Buddy Turman?

Mr. SENATOR. Buddy Turman, I believe, is out on the West Coast. He used to be the light heavyweight or heavyweight champion of Texas, a real fine fellow. That is why I say I don't know Nick.

Mr. GRIFFIN. Now, was he a friend of Jack's?

Mr. SENATOR. Yes, he was of Jack's sure.

Mr. GRIFFIN. Did you meet Turman through Jack?

Mr. SENATOR. Oh, yes.

Mr. GRIFFIN. Through Jack?

Mr. SENATOR. I don't know if I met Turman through Jack. No, I met him some other place. I met him some other place. I can't think where I met him, but I didn't meet him through Jack, but I have seen him at Jack's place. As a matter of fact, he has helped Jack every now and then. This Nick Turman, I don't know if this is related to him or what it is. I am not familiar with the name Nick. You have got a Norma here, and I know a name Norma, and I can't place it; I wonder if this is somebody who ever worked for him, Norma.

Mr. GRIFFIN. Did Buddy Turman have any particular dealings, that you know of, with Jack Ruby in the last month or so before——

Mr. SENATOR. Oh, Buddy has been gone quite a while. He went to the West Coast. As a matter of fact, the last time I saw Buddy he said he was going to the West Coast to train, because from there—now I don't know if it ever materialized—from there he was going to England to fight. I can't think of that heavyweight fighter.

Mr. GRIFFIN. Bruce Wilcox?

Mr. SENATOR. No. Name a couple more. This one fighter didn't fight too long ago. You may have seen him on TV. He is the type that fights very awkward, and sort of a slap, like. Do you remember who that is?

Mr. GRIFFIN. No, I don't. Now, did Jack Ruby have an interest in prizefighting?

Mr. SENATOR. No. I would say that he liked the fights. He liked to watch them.

Mr. GRIFFIN. But he never expressed any particular interest to you?

Mr. SENATOR. No, but he liked to watch the fights.

Mr. GRIFFIN. Did he ever tell you about any interest he had in the fight game when he was a younger man?

Mr. SENATOR. I know that he used to carry Barney Ross' bag around. How young he was or what age, in Chicago, I don't remember. But I know it was as a youngster.

I assume this first name, Tammi, is Tammi True, and I assume the other one is Little Lynn; right? These are only first names. This says Tammi, so I

assume that must be Tammi True, and Lynn, that might be Little Lynn.

Wait; I haven't gone through the rest. There is a Dick Lenard there, and I think this man is a booking agency. I think he is.

Mr. GRIFFIN. For entertainers?

Mr. SENATOR. Yes, if it is the same Dick Lenard. I don't know the rest of them.

Mr. GRIFFIN. I will hand you what has been marked as Exhibit 5305-N, and ask you to look at the names on there and tell us if you recognize any of them.

Mr. SENATOR. Yes; this is a Murray Wynn, who owns, I assume, because it says The Smoker's Lounge, and I know the place, but I never knew his last name. I assume it is the right one. He owns a tobacco and pipe store.

Mr. GRIFFIN. What dealings did Jack have with him?

Mr. SENATOR. None that I know of.

Mr. GRIFFIN. Jack didn't smoke, did he?

Mr. SENATOR. No. He probably just met him like he meets a lot of people, I assume. I have heard of this Grant Koch. I have heard of the name, but I don't know who he is. It is a name I remember hearing at one time or another; and I don't know who this Kierney Aikens is. I don't know him.

Mr. GRIFFIN. A-i-k-e-n-s?

Mr. SENATOR. A-i-k-e-n. I don't who he is. What does this say here? This is pretty hard to read. Do you see this one right here?

Mr. GRIFFIN. It looks like Donald Wiley. Do you recognize that name?

Mr. SENATOR. No.

Mr. GRIFFIN. I will read you the other names on here. Pauline Foch.

Mr. SENATOR. No.

Mr. GRIFFIN. Etheridge?

Mr. SENATOR. I don't know.

Mr. GRIFFIN. Ray Hawkins?

Mr. SENATOR. No.

Mr. GRIFFIN. Sue Blake?

Mr. SENATOR. No; I don't know her.

Mr. GRIFFIN. I am not going to hand you the next exhibit, which is 5305-O, because there are no names written on there of any persons. And I am not going to hand you Exhibit 5305-P. I will take that back. I will hand you that. There is a name "Bishop" written there. Does that name mean anything to you?

Mr. SENATOR. I think I have heard of the name, but I don't know who it is. I don't know what that is. I believe I have somewhere heard of that name.

Mr. GRIFFIN. Now, I am going to read to you from Exhibit 5305-Q, and tell me if you recognize any of these names. Monte?

Mr. SENATOR. No.

Mr. GRIFFIN. Mike Shore?

Mr. SENATOR. Mike Shore? Is there an address or something that goes with it?

Mr. GRIFFIN. No.

Mr. SENATOR. No.

Mr. GRIFFIN. Dr. Uhlevitch?

Mr. SENATOR. Does it say what he is?

Mr. GRIFFIN. No.

Mr. SENATOR. Is he local, Dallas?

Mr. GRIFFIN. I presume so.

Mr. SENATOR. What is the exchange?

Mr. GRIFFIN. It doesn't give an exchange, just the name.

Mr. SENATOR. Uhlevitch?

Mr. GRIFFIN. Do you recognize that name?

Mr. SENATOR. No.

Mr. GRIFFIN. Stanley Kaufman?

Mr. SENATOR. Yes; he is a lawyer.

Mr. GRIFFIN. Had you met him?

Mr. SENATOR. No; I have never met him, but I know who he is.

Mr. GRIFFIN. Have you talked to Jack about him or has Jack talked to you about him?

Mr. SENATOR. No; he is, I believe, a civil attorney, and I know that Jack has always called him for conferences of some nature or another, whatever it may be, but I wasn't——

Mr. GRIFFIN. Was he a personal friend of Jack's?

Mr. SENATOR. I assume that he has known Jack for some time. Now, how personal, I don't know.

Mr. GRIFFIN. Do you have any idea whether Jack was as close to Kaufman as you were to Jim Martin, for example?

Mr. SENATOR. I don't know, but I know that—as a matter of fact, even now during the trial, trying to get the new trial now, I know that they keep in contact with Kaufman. So I don't know what you want to actually call close, you know. I can't tell you what close is.

Mr. GRIFFIN. How about John Hilt?

Mr. SENATOR. I never heard of that name.

Mr. GRIFFIN. Dick Shepard?

Mr. SENATOR. No; I don't know that, either.

Mr. GRIFFIN. Abe Klinman?

Mr. SENATOR. Abe Klinman is a CPA. I know him.

Mr. GRIFFIN. Did he do work for Jack?

Mr. SENATOR. He has done some work for Jack.

Mr. GRIFFIN. Jerry Wilson?

Mr. SENATOR. I don't know that name.

Mr. GRIFFIN. Mike Riaf?

Mr. SENATOR. No.

Mr. GRIFFIN. Tom Palmer's name is on here, but you have talked about that.

Mr. SENATOR. Yes.

Mr. GRIFFIN. Ed Pullman?

Mr. SENATOR. Ed Pullman; yes. Ed Pullman; his wife had worked for Jack for a short spell as a cocktail waitress. She is an elderly woman. Ed Pullman, he is a man who thinks up gadgets, you know. I don't know how to describe it. He is an idea man.

Mr. GRIFFIN. A promoter?

Mr. SENATOR. Things that he makes.

Mr. GRIFFIN. An inventor?

Mr. SENATOR. Yes; in that classification.

Mr. GRIFFIN. And did Jack have any business dealings with Ed Pullman?

Mr. SENATOR. The only thing is—no; no business dealings. The only thing is he had a show once, Ed Pullman, like a market show—you know what I mean, sort of an exhibit like where people come to look—exhibits.

Mr. GRIFFIN. What kind of things did he exhibit?

Mr. SENATOR. Things that he had made, to show and see what he could do with them. In other words, he wasn't manufacturing them, but he had already made these things.

Mr. GRIFFIN. Where was he exhibiting these items?

Mr. SENATOR. At a place called Market Hall.

Mr. GRIFFIN. Did Ed Pullman——

Mr. SENATOR. Ed Pullman exhibited a thing for him that Jack was trying to promote.

Mr. GRIFFIN. What was that?

Mr. SENATOR. This is what they call—what do they call the little thing? It is a little twistaboard. It is a little square twistaboard, and you get on it and it moves around like this.

Mr. GRIFFIN. It is a weight reducer, like?

Mr. SENATOR. Yes; a twister.

Mr. GRIFFIN. Now, how long had Jack Ruby been promoting this twistboard?

Mr. SENATOR. It never came to the promotion part. I would assume that he fooled around with it for about a month, I guess, something like that, as a rough guess. In other words, he was going to buy them. I think somebody was going to make them for him, and he was going to try and sell them.

Mr. GRIFFIN. And for a month, what would this month cover, from the 1st of November to the time that he shot Oswald, or before the 1st of November?

Mr. SENATOR. No; it was either September or October, somewhere in there. I will have to take it to the extension of these 2 months.

Mr. GRIFFIN. Did it fall through somewhere along the line? Did he lose interest in it, or something?

Mr. SENATOR. It never materialized. In other words, look, he had competition because there was one already out.

Mr. GRIFFIN. Who designed this twistboard?

Mr. SENATOR. I think it was manufactured by somebody in, I don't know the name of the place, in Fort Worth.

Mr. GRIFFIN. Who else was associated with Jack in the twistboard project?

Mr. SENATOR. Nobody. This is something that never really got off the ground. See, I think Jack had—what was it—maybe four or five or six dozen of the things. I just don't remember. But it never got off the ground.

Mr. GRIFFIN. He bought these, and then what was he going to do with them?

Mr. SENATOR. He was going to have them manufactured to resell.

Mr. GRIFFIN. Did he buy them from some place other than Fort Worth, or from Fort Worth?

Mr. SENATOR. I am not sure whether he bought them from Fort Worth or some place else. I don't know just where he got them from.

Mr. GRIFFIN. What kind of material were they made out of?

Mr. SENATOR. It was a compressed—I don't know what you would call it—it was a compressed thing. In other words, let me say that it was about this size here.

Mr. GRIFFIN. You are indicating about a foot long?

Mr. SENATOR. Approximately about a foot square.

Mr. GRIFFIN. A foot square?

Mr. SENATOR. Approximately about a foot square, and on the bottom of it—this is a compressed thing. I don't know if you call it a compressed board, or what you call it. There was a compression. Then on the bottom of it it had, I believe, a steel roller with ballbearings in it, on the bottom, so the thing could revolve. Under that was another piece of staple, where it was staple. In other words, it had to hold the weight of an individual.

Mr. GRIFFIN. This was something that you would lean up against?

Mr. SENATOR. No, no. It was on the floor, and you just got on it like that, and you go—I am not a good exhibit for a twister.

Mr. GRIFFIN. In other words, you would stand on this board?

Mr. SENATOR. Yes, you would stand on it.

Mr. GRIFFIN. You wouldn't put it up against your back, or anything?

Mr. SENATOR. No.

Mr. GRIFFIN. You would stand on it?

Mr. SENATOR. Strictly stand on it, and it was a novelty.

Mr. GRIFFIN. And the bottom part would remain stationary?

Mr. SENATOR. Yes.

Mr. GRIFFIN. And the other part would swivel as you moved on it?

Mr. SENATOR. That is right. In other words, instead of going in the twist, this thing did it for you. In other words, you revolved and, of course, this was classified as an exerciser, or something of that nature. As I say, it never got off the ground.

Mr. GRIFFIN. To your knowledge, nobody else was involved in the promotion of it with Jack?

Mr. SENATOR. No; definitely not; no.

Mr. GRIFFIN. How about John Newman? Do you recognize that name?

Mr. SENATOR. John Newman works for the Herald or the Times, the Herald or the News. He works for either the Dallas Morning News—I forgot now—or the Herald.

Mr. GRIFFIN. How do you happen to know him?

Mr. SENATOR. I met him on occasion when Jack used to go up there to place an ad once in a while, when I was living with him in 1962, you know, I went up there with him.

Mr. GRIFFIN. Did you ever see Newman at the Carousel Club?

Mr. SENATOR. I don't know if I have or not. I just don't remember. I couldn't say yes or couldn't say no. I just don't remember.

Mr. GRIFFIN. I am going to read to you the names that are on Exhibit 5305-R. Bill Petty. Do you recognize that name?

Mr. SENATOR. I think I have heard of that name, but don't know who it is.

Mr. GRIFFIN. Bill Cantrell?

Mr. SENATOR. No; I don't know him.

Mr. GRIFFIN. Gladys?

Mr. SENATOR. Gladys who?

Mr. GRIFFIN. That is all it says.

Mr. SENATOR. I don't know.

Mr. GRIFFIN. J. B. Herred?

Mr. SENATOR. I don't know him.

Mr. GRIFFIN. Mrs. Oscar Newman?

Mr. SENATOR. I don't know her.

Mr. GRIFFIN. I am going to read to you the names that are on Exhibit 5305-S. Gloria Rettig?

Mr. SENATOR. I don't know her.

Mr. GRIFFIN. Little Lynn you have mentioned.

Mr. SENATOR. Yes.

Mr. GRIFFIN. Vicky Williams?

Mr. SENATOR. Vicky Williams; I don't know that name.

Mr. GRIFFIN. That concludes the photographs that pertain to the Aladdin notebook. I am going to hand you what has been marked for identification as Exhibit 5309-A, and this is a Xeroxed copy of another notebook that has on the front cover, "This is a Robinson reminder. Jot it down. Do It. Tear it. Live notes only."

I am going to hand you this and ask you to tell me, first of all, go through it and tell me if you remember ever seeing that notebook.

Mr. SENATOR. I think I have seen the cover of this. These are little tear things out, aren't they, you tear them out?

Mr. GRIFFIN. You are referring to what appears to be perforated segments.

Mr. SENATOR. Isn't that what it is? That is what it looks like.

Mr. GRIFFIN. On the front page. I believe that is right.

Mr. SENATOR. I have heard of the name Sue Pepper.

Mr. GRIFFIN. Now, you are looking at the first page of that notebook?

Mr. SENATOR. Yes.

Mr. GRIFFIN. And you are going to identify the names?

Mr. SENATOR. I have heard of the name. I don't know who it is. A lot of the names I heard, but I just don't know who they are. Does this say Jack Hanover? This is a little hard to read.

Mr. GRIFFIN. Yanover, I think.

Mr. SENATOR. Carroll Walker I don't know.

Mr. GRIFFIN. Do you know a Jack Hanover?

Mr. SENATOR. No. I don't know the balance of these in here.

Mr. GRIFFIN. Do you recognize the handwriting on that page?

Mr. SENATOR. I think it is Jack's. I assume it is. I am not sure, but I assume it is. It all looks like the same. I have seen the cover of a book like this. Now, the insides of it I have never seen, but I think I have seen it on him.

Mr. GRIFFIN. Now, you are turning to the next page. Does that have a small numeral down at the bottom of that page? It has numeral 3. It is actually the second page on which there is any writing.

Mr. SENATOR. Wally what?

Mr. GRIFFIN. Is that Rack—R-a-c-k? Do you know a Wally Rack?

Mr. SENATOR. No.

Mr. GRIFFIN. Do you know anything about the Doctors Club?

Mr. SENATOR. The Doctors Club?

Mr. GRIFFIN. Yes.

Mr. SENATOR. I never knew there was a Doctors Club in Dallas. What is Linda's last name?

Mr. GRIFFIN. It looks like——

Mr. SENATOR. Kuhox?

Mr. GRIFFIN. Kuhox.

Mr. SENATOR. No.

Mr. GRIFFIN. Does anything like that ring a bell?

Mr. SENATOR. No. I don't know anybody here. He has some first names here. I don't know what they mean. Brenda and Angie.

Mr. GRIFFIN. Do you recognize any of those first names?

Mr. SENATOR. No.

Mr. GRIFFIN. Let's turn to the page that is numbered 4.

Mr. SENATOR. I know Bill Willis. Bill Willis was the drummer in the band at the Carousel Club. Tom Palmer is here again.

Mr. GRIFFIN. You talked about him.

Mr. SENATOR. Yes. Kathy Kay is a stripper. Andy is the boy. I assume that is Andy.

Mr. GRIFFIN. Andy Armstrong?

Mr. SENATOR. Yes. I assume the first name Kathy is Kathy Kay; right?

Mr. GRIFFIN. I don't know.

Mr. SENATOR. That is what I think it is anyhow. I don't know. This girl, I never knew her last name, but this could have been a former stripper of some time back, this Lauri.

Mr. GRIFFIN. Lauri?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Does Lauri have a last name?

Mr. SENATOR. There is a last name here, but I don't know who.

Mr. GRIFFIN. What is the last name?

Mr. SENATOR. Womack, W-o-m-a-c-k. I knew a Lauri, I think, that was a stripper for him for a while. I think it was last summer if I am not mistaken, or something like that. Russ Knight.

Mr. GRIFFIN. K-n-i-g-h-t?

Mr. SENATOR. He is with a radio station, but I can't think which one.

Mr. GRIFFIN. Have you met him?

Mr. SENATOR. Yes; I knew Russ.

Mr. GRIFFIN. Where have you met him?

Mr. SENATOR. I have met him—I have seen him at the bowling alley when we used to go up there at night. I have seen him on rare occasions when he would come down to the Carousel. He was, I guess you would call him, a disc jockey.

Mr. GRIFFIN. Who did you bowl with?

Mr. SENATOR. Sometimes people—very seldom, mind you, very seldom—but sometimes people from the club which was very seldom. As a matter of fact, I only bowled one time, I believe. It wears me out particularly. But very seldom.

Mr. GRIFFIN. Did Jack bowl frequently?

Mr. SENATOR. No.

Mr. GRIFFIN. Did he bowl more than you did?

Mr. SENATOR. Maybe a little more. I'll tell you, this particular alley is a tremendous place in Dallas, but we always went up there to eat, on occasions, when we did go. It was always we would go up there to eat. They had a big restaurant there.

Mr. GRIFFIN. What eating places did Jack frequent?

Mr. SENATOR. A lot of times when he went out, the majority of the times when he went out I wasn't with him when he went out to eat. But he has been to—of course, it probably pertains to the time of day or night, you know, but he ate in the waffle shops, he ate at—wait; it will come to me in a minute. There is a couple on Commerce just above the Adolphus Hotel. What in the world is the name of it?

Mr. GRIFFIN. The Egyptian Lounge?

Mr. SENATOR. He has ate at the Egyptian Lounge, but there is a couple in the downtown area.

Mr. GRIFFIN. That he ate at regularly, I take it?

Mr. SENATOR. It is not, particularly. I can't say regularly. I don't know. Let me say he just varies the place. He may want to try certain foods, I don't know.

Mr. GRIFFIN. Did Jack visit the Dallas Cabana?

Mr. SENATOR. Dallas Cabana? What in the world is the Dallas Cabana?

Mr. GRIFFIN. The Cabana Motel.

Mr. SENATOR. The Cabana?

Mr. GRIFFIN. Yes.

Mr. SENATOR. Yes; Jack has been down there.

Mr. GRIFFIN. Does he have friends there?

Mr. SENATOR. I don't know if he has friends there or not. He certainly probably does know some people there. Yes; there is one chap he knew there that I know for sure, and I think he was the assistant, if he is still there, was the assistant manager. There is Ralph Paul. Of course, I am certain you have heard of his name before, Ralph Paul.

Mr. GRIFFIN. Yes; Ralph we talked about earlier. How often would Jack see Ralph?

Mr. SENATOR. Ralph would come up, I would probably say he would probably come up maybe two or three times a week, about like that.

Mr. GRIFFIN. Would they telephone each other during the week also?

Mr. SENATOR. I would probably say they have. I mean, not that I was always around when he did, if he did telephone him, but I am certain there were telephone calls.

Mr. GRIFFIN. Did you ever have any occasion to telephone Ralph Paul?

Mr. SENATOR. Did I ever have occasion?

Mr. GRIFFIN. Yes.

Mr. SENATOR. I called him, yes; I called him a couple of times. The reason I called him, I had no car, I had to go down and see him once in a while, a free lunch. He has got this place in Arlington, if you know where Arlington is, called the Bullpen. It is one of these barbecue places.

Mr. GRIFFIN. Did you talk to Ralph Paul on the weekend of the 22d, 23d, and 24th of November?

Mr. SENATOR. By phone?

Mr. GRIFFIN. Yes.

Mr. SENATOR. Not that I know of.

Mr. GRIFFIN. How about in person?

Mr. SENATOR. It may have been possible that I may have seen him. I just don't recall if I have seen him on that weekend. I can't say yes or no, but it may have been possible that I may have seen him at the club. Oh, no; the club wasn't even open.

Mr. GRIFFIN. This was after the President was killed?

Mr. SENATOR. Yes; no, I don't think I did. I don't think I have seen him.

Mr. GRIFFIN. You seem to have some recollection, though, that you might have.

Mr. SENATOR. No; let's see. No; I saw him, I think the first time I saw him was, it may have been, I would say within the week. I can't name a date or a day. But I will say within the week after the Ruby shooting up at the Carousel. That is about the best that I can recollect on that.

Mr. GRIFFIN. Do you recall talking to Little Lynn at any time on Friday, Saturday, or Sunday, November 22, 23, or 24?

Mr. SENATOR. No; I didn't even see her.

Mr. GRIFFIN. Do you know her husband?

Mr. SENATOR. No; but I have seen him—if it is her husband—sort of a blond. I will tell you where I have seen him. I saw him the day of that trial when she was carrying that gun, he come up with her, if it is her husband or if it is her boy friend, I don't know what.

The reason I say that, because to the best of my knowledge I don't even know if she wore a marriage band. But I have seen him. I think he is sort of a blondish-haired fellow. I don't even know his name. I am through with this. Do you want the next page, page 6?

Mr. GRIFFIN. Yes; go ahead.

Mr. SENATOR. There is a Joe Slayton here. Of course, Joe Slayton—this Joe Slayton, I know him by sight but I don't know him by conversation. Wally Weston, he was an MC of his. I know this guy only by reading about him, Earl Wilson, the New York Post. I don't know him. I believe this Tony Turner here, this name is a stripper.

Mr. GRIFFIN. T-o-n-i?

Mr. SENATOR. T-o-n-y it says here.

Mr. GRIFFIN. You think that is a stripper?

Mr. SENATOR. Tony Turner is T-o-n-i. I think that is how she spells her name. This says Tony, T-o-n-y, Turner. It could be a man. I don't know. I am only guessing at this one here. Tammi True. I know her. This is a stripper. Then there is Kay here. I don't know if that is Kathy Kay, or what it is. That is all I know on this one. One here says Porter. I don't know what that is. I don't know what that means, if that is a porter, or what it is.

Mr. GRIFFIN. I don't know, either. How about page 7? Let me just read off the names and see if you recognize them. Phil Olian?

Mr. SENATOR. No.

Mr. GRIFFIN. Wendy Knight?

Mr. SENATOR. No.

Mr. GRIFFIN. Wanda?

Mr. SENATOR. Just a girl's name?

Mr. GRIFFIN. Yes.

Mr. SENATOR. I think, I am not sure now; I think he had a cocktail waitress by the name of Wanda, if I am not mistaken, at one time. I am not sure.

Mr. GRIFFIN. Janice Anderson

Mr. SENATOR. No.

Mr. GRIFFIN. Ann Petta?

Mr. SENATOR. No.

Mr. GRIFFIN. L. H. McIntyre?

Mr. SENATOR. No.

Mr. GRIFFIN. Jim Brown?

Mr. SENATOR. No.

Mr. GRIFFIN. Carlos Camorgo?

Mr. SENATOR. No.

Mr. GRIFFIN. Did you know of any acquaintances Jack had in Mexico City?

Mr. SENATOR. Where?

Mr. GRIFFIN. In Mexico City. Did you know of any acquaintances he had in Mexico City?

Mr. SENATOR. No.

Mr. GRIFFIN. Do you know of any trips that Jack took?

Mr. SENATOR. To Mexico City?

Mr. GRIFFIN. Yes.

Mr. SENATOR. Not while I knew him.

Mr. GRIFFIN. Do you know of any foreign trips that he has taken?

Mr. SENATOR. No, but I have heard at some time that he went to Cuba. Now, that is before my relation with him.

Mr. GRIFFIN. Did you hear this from Jack?

Mr. SENATOR. No. I have heard it, I don't know if I read it in the newspapers or where I read it, but I know I heard it at one time.

Mr. GRIFFIN. Did Jack ever talk to you about Cuba at all?

Mr. SENATOR. No.

Mr. GRIFFIN. How about someone named Billie?

Mr. SENATOR. B-i-l-l-i-e?

Mr. GRIFFIN. Yes.

Mr. SENATOR. Is that a man or a woman?

Mr. GRIFFIN. I don't know.

Mr. SENATOR. Is there a telephone number?

Mr. GRIFFIN. FE 9-7914? Toni Rebel?

Mr. SENATOR. I think that is a stripper.

Mr. GRIFFIN. Bill Towney? Bill Towney, WH 2-8129?

Mr. SENATOR. Bill Towney?

Mr. GRIFFIN. Yes.

Mr. SENATOR. No.

Mr. GRIFFIN. Shirley Nole?

Mr. SENATOR. No.

Mr. GRIFFIN. Margo?

Mr. SENATOR. Let me place this Margo. This is a cocktail waitress that he had, if it is here. It is a cocktail waitress that he had at one time.

Mr. GRIFFIN. Kitty Keel?

Mr. SENATOR. No.

Mr. GRIFFIN. Mary Martin?

Mr. SENATOR. It sounds like the one from Hollywood. I don't know.

Mr. GRIFFIN. Ethel A. Piersol?

Mr. SENATOR. No.

Mr. GRIFFIN. Gail Thompson?

Mr. SENATOR. No.

Mr. GRIFFIN. Sam George?

Mr. SENATOR. No.

Mr. GRIFFIN. Margie?

Mr. SENATOR. Margie was a cocktail waitress that he had, if it is the same one.

Mr. GRIFFIN. Peggy Steel?

Mr. SENATOR. Peggy Steel was a stripper that he had at one time.

Mr. GRIFFIN. John M. Crawford?

Mr. SENATOR. Don't know him.

Mr. GRIFFIN. This man has an address, Huntsville State Penitentiary.

Mr. SENATOR. I don't know.

Mr. GRIFFIN. Did you ever hear of any friends Jack had there?

Mr. SENATOR. No, and I don't want to hear of them.

Mr. GRIFFIN. Linda?

Mr. SENATOR. I think Linda could have been a cocktail waitress.

Mr. GRIFFIN. Avrum?

Mr. SENATOR. Never heard of that name.

Mr. GRIFFIN. Sherry?

Mr. SENATOR. I am trying to figure if Sherry was a stripper. I am not sure. I can't make it.

Mr. GRIFFIN. Henry Segel? This man is from Chicago.

Mr. SENATOR. I wouldn't know him.

Mr. GRIFFIN. Roy Pike?

Mr. SENATOR. No.

Mr. GRIFFIN. Mickey Ryan?

Mr. SENATOR. Mickey Ryan, I know Mickey Ryan. Of course, Mickey Ryan lives in California. He is in California. Mickey Ryan used to sell cars, and he worked, the last job I think he worked at, he worked at a club for a while.

Mr. GRIFFIN. In Dallas?

Mr. SENATOR. Yes, a private club.

Mr. GRIFFIN. You say he is in California or from California?

Mr. SENATOR. From California, and back there. He is back in California.

Mr. GRIFFIN. But he was in Dallas at the time that the President was shot?

Mr. SENATOR. I don't know if he was, before or after. No, I don't really know. He may have been, now. I think he was after.

Mr. GRIFFIN. How did he happen to return to California?

Mr. SENATOR. I don't know. He said he was going back to California. I met him one day, and he said he was going back to California. Now, why, I don't know.

Mr. GRIFFIN. Did you meet him before you went to New York to live with your sister?

Mr. SENATOR. Oh, sure; yes. I never same him after I come back. I saw him last year. It could have been, it may have been November or December. I think it may have been December.

Mr. GRIFFIN. So some time after——

Mr. SENATOR. I think the last time I saw him was after the incident, if I remember right.

Mr. GRIFFIN. And at that time, and this was before you left New York to live with your sister?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Or left Dallas to live with your sister?

Mr. SENATOR. Yes; I think it was in December the last time I saw him.

Mr. GRIFFIN. He told you at that time he was moving to California?

Mr. SENATOR. He said he was going back to California.

Mr. GRIFFIN. Did he tell you why?

Mr. SENATOR. No; no particular reason why.

Mr. GRIFFIN. Do you know what acquaintanceship or relationship he had with Jack Ruby?

Mr. SENATOR. As a friend.

Mr. GRIFFIN. Did they have any business dealings?

Mr. SENATOR. No.

Mr. GRIFFIN. Did he ever work for Jack Ruby?

Mr. SENATOR. He may have helped him a little bit. Now, I am not sure. I think he helped him for a very short while in the Carousel, if I remember, but it was a very short while. Now, how long it was, I don't know. It was just a short while, though, I think he helped him.

Mr. GRIFFIN. Lisa Starling?

Mr. SENATOR. I knew a girl by the name of Lisa, and I can't place it. I am not familiar with the last name. I am trying to figure who, a Lisa I knew. Now, I knew a Lisa Lynn. Lisa Land I think it was.

Mr. GRIFFIN. But Gail Hall, Monroe, La.?

Mr. SENATOR. I don't know her.

Mr. GRIFFIN. Did Jack ever talk about any friends he had in Louisiana?

Mr. SENATOR. Gail Hall?

Mr. GRIFFIN. Yes.

Mr. SENATOR. Is there a city?

Mr. GRIFFIN. Monroe, La.

Mr. SENATOR. I have heard him mention Monroe, La.

Mr. GRIFFIN. In what connection have you heard him mention Monroe?

Mr. SENATOR. I think he met a girl once in Dallas that came from Monroe. Now, if this is the girl or not, I am not sure. I think he met a girl. I am not sure if he met her at the club, or where it was.

Mr. GRIFFIN. What about H. G. Tiger?

Mr. SENATOR. Tiger?

Mr. GRIFFIN. Yes.

Mr. SENATOR. No.

Mr. GRIFFIN. E. Fletcher, F-l-e-t-c-h-e-r?

Mr. SENATOR. E. Fletcher?

Mr. GRIFFIN. Yes.

Mr. SENATOR. Is there an address or something?

Mr. GRIFFIN. 40 Central Park, something or other.

Mr. SENATOR. 40 Central Park?

Mr. GRIFFIN. Central Park, and I don't know what.

Mr. SENATOR. I don't know. There is a fellow I knew by the name of Ernie Fletcher. I don't know E. Fletcher.

Mr. GRIFFIN. Is that a friend of Jack Ruby? Does he know Jack Ruby?

Mr. SENATOR. I don't know. I mean, I have never seen him with Jack.

Mr. GRIFFIN. Did you know him in Dallas?

Mr. SENATOR. I knew him in Dallas, yes. I have seen him in Dallas.

Mr. GRIFFIN. What did he do?

Mr. SENATOR. I haven't seen him in a long, long time, because the last I heard, I think he was living in New York.

Mr. GRIFFIN. What did he do?

Mr. SENATOR. I never knew what he did. He was a promoter, but what, I don't know. I think he was an oil promoter or something like that.

Mr. GRIFFIN. Darrell Williams?

Mr. SENATOR. No.

Mr. GRIFFIN. Now, on page 9 of this particular notebook that we have been looking at, there is the name Vivian, Statler Barbershop.

Mr. SENATOR. Yes; there is a manicurist there by the name of Vivian.

Mr. GRIFFIN. Did Jack frequent the Statler Barbershop?

Mr. SENATOR. I don't know. The barbershop he frequented the most was a place in another section of town.

Mr. GRIFFIN. Where was that?

Mr. SENATOR. Loma Alto.

Mr. GRIFFIN. It may have been called the Loma Alto?

Mr. SENATOR. Yes; it is two words, the Loma Alto section.

Mr. GRIFFIN. What general part of Dallas is that, northeast, southwest, Love Field?

Mr. SENATOR. Let me say it was on the way up to that way, Love Field.

Mr. GRIFFIN. Towards Love Field from downtown Dallas?

Mr. SENATOR. From downtown. I tell you, the best way I can describe it to you is it ran off of—I have got a good memory, haven't I? You are writing that down, too? I can't think of the name of the street. I'll tell you why he went to this barbershop, which I never knew.

Mr. GRIFFIN. All right.

Mr. SENATOR. When the barber cuts his hair, he doesn't like clippers. He won't let them use a clipper. He wants everything by hand, and he could probably drive a barber crazy the way he wants his hair cut. To my knowledge, I don't think he lets a barber shave. You know how the barber shaves you back here?

Mr. GRIFFIN. He won't let him shave the back of his neck?

Mr. SENATOR. You know why? I'll tell you why. Because he grows hair too fast.

Mr. GRIFFIN. This is what Jack told you, that your hair grows too fast when it is shaved off?

Mr. SENATOR. Yes; you know how some of the hairs will grow in the rear of a person, like mine, I have got a few, the barber will shave them off. He wants them clipped off.

Mr. GRIFFIN. So he requires the back of his neck to be clipped rather than shaved?

Mr. SENATOR. Yes; now, he has got a barber, he has got this barber who knows just what to do with him.

Mr. GRIFFIN. Was Jack concerned about baldness?

Mr. SENATOR. Oh, you should only know.

Mr. GRIFFIN. Tell us.

Mr. SENATOR. He used to drive me crazy.

Mr. GRIFFIN. Tell us about that.

Mr. SENATOR. Well, he would have these treatments. I don't know the name of the place where he got these treatments, and he had the stuff, you know, they'd rub into his head, whatever this medication. I don't know what the stuff was, you know.

I have always seen him use it, whatever it was, and he would rub it into his head. He spent 45 minutes under a shower when he was really working with the stuff, and he would rub it into his head. He was always combing his hair all the time, what little was left, but he couldn't stand being bald.

He used to comment, "How does my hair look; how does my hair look?". And it was really funny. I used to laugh, but he would get mad when I laughed at him. But he was very, very particular about his hair.

Mr. GRIFFIN. Had he been this way all the time that you knew him, or was this something that had come on?

Mr. SENATOR. No; this is, of course, as long as, you knew, as long as I have known him. Actually, I can't say as long as I have known him, but as

long as I have been around him. Oh, man.

Mr. GRIFFIN. And he actually had some treatments for his hair, didn't he?

Mr. SENATOR. Oh, sure, sure.

Mr. GRIFFIN. Were these called trichology treatments, or something like that?

Mr. SENATOR. I don't know the nature of the word they used.

Mr. GRIFFIN. Did he go to some practitioner?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Who worked on his head?

Mr. SENATOR. Yes; he went to somebody, he actually went. And I believe he picked up all his medication from him, too. They came in plastic tubes, a little vial like. I would probably say these tubes would hold approximately maybe about half a pint. He had two different types whatever they were; one was wash and one was rinse, or what it was.

Mr. GRIFFIN. And he would use these on his head?

Mr. SENATOR. Yes.

Mr. GRIFFIN. And was this a daily thing that he did?

Mr. SENATOR. Oh, yes.

Mr. GRIFFIN. Did he have any particular ritual, any period of time of the day that he would do this?

Mr. SENATOR. No; it was just whatever time, not particularly. It could be in the morning, but I would say it was about every day, once a day some time, you know.

Mr. GRIFFIN. So when you told us yesterday, I believe it was, that Jack would spend 45 minutes in the bathroom, or something like that, he was very slow getting up in the morning, was this part of the procedure?

Mr. SENATOR. I don't know if he did it that day or not. I don't remember if he did it that way, but I tell you, when he gets in the bathroom when he is going through the entire ritual, he takes longer than a woman.

Mr. GRIFFIN. Part of this ritual would involve this scalp treatment?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Hair treatment?

Mr. SENATOR. Yes.

Mr. GRIFFIN. What else was involved in the ritual?

Mr. SENATOR. Well, of course, the door was closed, you know. I am not actually watching him. Of course, the shave and the shower.

Mr. GRIFFIN. Did he shower every day?

Mr. SENATOR. Oh, yes; sure. I will tell you when he really did his big cleaning up was at night, before going to work. That was when the big ritual was, he spent a big time in there. But it was really something.

Mr. GRIFFIN. The next one I am going to hand you is Exhibit 5204. This was used in the deposition of C. L. Crafard. I don't believe there are any other marks on here. I am going to ask you to look at this notebook, or rather, the Xerox pages of a notebook, and ask you, first of all, generally if you recognize that notebook?

Let me say that the notebook, if you will turn to the first page of all those papers that are put together, and look at that first page carefully, you will see that the notebook had written on the cover just the word "Addresses," and, of course, we can't tell from what color the notebook was or what material it was made out of, how it was bound, although it appears to be not a looseleaf kind of notebook but one that was perhaps stitched at the back or something.

Mr. SENATOR. Yes.

Mr. GRIFFIN. Do you ever recall anything like that?

Mr. SENATOR. I know he had two or three of those little things. Like I told you before, I knew he had two or three of them.

Mr. GRIFFIN. Do you recognize the handwriting in this particular notebook?

Mr. SENATOR. I assume it is Jack's.

Mr. GRIFFIN. But you don't actually recognize it as Jack's?

Mr. SENATOR. I am not sure, but I assume it is Jack's. To me they sort of all look like the same handwriting, so I assume they are his.

Mr. GRIFFIN. Now, look at the first page that has writing on it, which actually in this exhibit is numbered page 2, and tell us, do you recognize any of the names there?

Mr. SENATOR. There is one here, and the reason I recognize this name here, Patricia Stevens, because Patricia Stevens I think is a modeling school.

Mr. GRIFFIN. In Dallas?

Mr. SENATOR. In Dallas?

Mr. GRIFFIN. And did Jack deal with that modeling school?

Mr. SENATOR. Not that I know of. I don't know.

Mr. GRIFFIN. You don't recognize that name through any association you had with Jack Ruby?

Mr. SENATOR. No. That is the only way I would recognize the name.

Mr. GRIFFIN. Do you recognize any other names on that page?

Mr. SENATOR. No.

Mr. GRIFFIN. Turn to the next page, which is page 3, and tell us if you recognize any of the names there.

Mr. SENATOR. There is a name here I am not sure of, but it says Thelma Brown. This could be a singer. I am not sure. Or Bertha Brown. I know there is a girl by the name of Brown who was a colored girl, who was a singer, and she has come pretty well up the line. Now, if this is the girl or not, I don't know.

Mr. GRIFFIN. Did she sing for Jack?

Mr. SENATOR. A long, long time ago when she was smaller. Now she is big-time. Now, where she is singing I don't know. I don't know if that is her first name, but I know there was a girl by the name of Brown. I don't know if it was Thelma Brown, Bertha Brown, or whatever it is. I am not sure.

Mr. GRIFFIN. Do you recognize any other names on page 3?

Mr. SENATOR. No.

Mr. GRIFFIN. Turn to page 4 and tell us if you recognize any of the names there.

Mr. SENATOR. Ed Bernet. I have heard that name, but I don't know what it is. I can't make out what it is. It sounds like an entertainer, but I am not sure. The others I don't know.

Mr. GRIFFIN. You don't recognize any other names on that page?

Mr. SENATOR. No. There is only one other name there.

Mr. GRIFFIN. Turn to the next page. Is that page 5?

Mr. SENATOR. Yes; and I don't know who that is. It is just one name.

Mr. GRIFFIN. What name is that?

Mr. SENATOR. Bill Capehart. I don't know who that is.

Mr. GRIFFIN. Do you want to turn to page 6?

Mr. SENATOR. Bob Eisman.

Mr. GRIFFIN. Do you recognize that name?

Mr. SENATOR. No; I don't know who he is. There is nothing else but the name.

Mr. GRIFFIN. All right. Do you want to turn to the next page, page 7. Do you recognize that name, Ham Faust?

Mr. SENATOR. No.

Mr. GRIFFIN. Page 8; do you recognize the name there?

Mr. SENATOR. This boy here, he is resting in peace.

Mr. GRIFFIN. Martin Gimpel?

Mr. SENATOR. He died of a heart attack.

Mr. GRIFFIN. When did he die?

Mr. SENATOR. He died, I would say, I would probably say a year and a half ago, which tore Jack apart because they were kids together all their life.

Mr. GRIFFIN. From Chicago?

Mr. SENATOR. Yes. He has been gone now about a year and a half, maybe 2 years, I am not sure, something like that. Now, the other name I don't know.

Mr. GRIFFIN. Ann Gibson. What was Jack's relationship in Dallas with Mr. Gimpel?

Mr. SENATOR. He was a tool salesman. He traveled. He sold tools. Now, I have never seen him sell them.

Mr. GRIFFIN. Do you know what kind of tools, household tools or industrial tools?

Mr. SENATOR. No. I think they were industrial tools. To my knowledge, I think that is what it was.

Mr. GRIFFIN. Did Mr. Gimpel have a family in Dallas?

Mr. SENATOR. No.

Mr. GRIFFIN. Was he single?

Mr. SENATOR. When he came here, he didn't always stay here. I mean, I haven't known him that long, when I met him, but when he was here, I don't know how long he stayed. He stayed, and traveled. But in this area, or rather in the Dallas area, or wherever he was traveling, I don't know if it was in the State of Texas or out of it, or just where he traveled. Of course, he stayed with Jack because he didn't pay no rent.

Mr. GRIFFIN. Jack supported him?

Mr. SENATOR. Jack, you know.

Mr. GRIFFIN. Page 9.

Mr. SENATOR. There is a name here that I think is an entertainer. I am not sure, Trinidad, Colo. Wait a minute; that is Trinidad, Colo., but I knew somebody by the name of Trinidad. There was an entertainer. Cecil Hamlin.

Mr. GRIFFIN. Who is he?

Mr. SENATOR. He is with the union. Now, what capacity or what, I don't know.

Mr. GRIFFIN. Which union?

Mr. SENATOR. I don't know which union.

Mr. GRIFFIN. Was he friendly with Jack?

Mr. SENATOR. I don't know, because I have only seen the man one time in my life, and the time that I saw him I was introduced to him, not knowing who he was, down at the courthouse, at the courthouse.

Mr. GRIFFIN. Was that at the trial or the bail bond hearing, or something like that?

Mr. SENATOR. It was at this trial here, in the lobby.

Mr. GRIFFIN. The Ruby trial?

Mr. SENATOR. Yes; I saw him in the lobby once. That is the only time I ever seen the man.

Mr. GRIFFIN. But you had never seen him before?

Mr. SENATOR. No; I had never seen him.

Mr. GRIFFIN. And you had never heard Jack speak of him?

Mr. SENATOR. Yes; I have heard the name.

Mr. GRIFFIN. How had you heard Jack speak of him?

Mr. SENATOR. Jack has asked me to call him.

Mr. GRIFFIN. In what connection?

Mr. SENATOR. There was somebody, there were a couple of people owed Jack some money, and he asked me to ask Cecil to see if Cecil would call them to get the money or pick up the money. He had a couple of hundred dollars out, and he wanted to ask him if he would be kind enough to collect it for him or try to collect it for him, or call them up, or something of that nature. I don't know the rest of them. Page 10.

Mr. GRIFFIN. Do you recognize any of the names on page 10?

Mr. SENATOR. I think he had a stripper, a part-time stripper, at one time, I am not sure. Of course, I don't know if this is, but this says Grapevine.

Mr. GRIFFIN. Grapevine, Tex.?

Mr. SENATOR. Yes; but I don't know. A girl by the name of Linda, but I never knew her last name, so I don't know if this is her or not.

Mr. GRIFFIN. Page 11.

Mr. SENATOR. I don't know who this is. I have seen this name before on other pages, Jeanie. I don't know what that is.

Mr. GRIFFIN. Page 12.

Mr. SENATOR. I don't know who that is.

Mr. GRIFFIN. Page 13.

Mr. SENATOR. Latin Band, is that what that says?

Mr. GRIFFIN. It looks like that.

Mr. SENATOR. I am thinking of Larry, the kid who works at the club, but what would the Latin Band be? I don't know who that is. I don't know who this is.

Mr. GRIFFIN. Page 14.

Mr. SENATOR. No.

Mr. GRIFFIN. Page 15.

Mr. SENATOR. I don't know who that is.

Mr. GRIFFIN. This doesn't have a page number.

Mr. SENATOR. This is a repeat of the other.

Mr. GRIFFIN. A duplicate of the previous page?

Mr. SENATOR. No; I don't say it is a duplicate of the page, but the name.

Mr. GRIFFIN. Let's read the name so that the record is complete. Pat Sancipian, Patricia Stevens. Xavier Cugat?

Mr. SENATOR. I know the name. Who don't know it?

Mr. GRIFFIN. Jack never talked to you about him?

Mr. SENATOR. No; where he got it, I don't know.

Mr. GRIFFIN. Turning to another page, which doesn't have a number on it, Sam Schwartz.

Mr. SENATOR. I don't know who that is.

Mr. GRIFFIN. Robyn Hoy Smith, Tom Teel?

Mr. SENATOR. I don't know who that is.

Mr. GRIFFIN. And turning to the last page, which is numbered 20, it simply says Elizabeth. You don't recognize that name?

Mr. SENATOR. No.

Mr. GRIFFIN. I am going to hand you another book that is marked Exhibit 5202, which was used in the deposition of C. L. Crafard, and it is a blue spiral notebook with the word "Penway" written on the front. It is called a "Penway Memo Book." Look through that.

Mr. SENATOR. Is this Jack Ruby's book? I can't picture him writing like that. This is terrible handwriting.

Mr. GRIFFIN. You are looking now at the Crafard Exhibit No. 5202. Do you recognize the handwriting in that book?

Mr. SENATOR. There is only one person who I think possibly could write like this.

Mr. GRIFFIN. Who is that?

Mr. SENATOR. I would have to guess, and say probably Andrew, maybe. I am not sure.

Mr. GRIFFIN. But you don't recognize it as Jack Ruby's handwriting?

Mr. SENATOR. I don't think it is. I don't think this is Jack Ruby's handwriting. Jack don't write this bad. This is terrible writing. I don't think that is Jack's handwriting.

Mr. GRIFFIN. You have had a chance to go through this notebook. You mentioned, looking at page 1 of Exhibit 5202, in which there is written some words such as "Save, Vegas Club, Jack's home," and so forth. And there is the name Buddy, with the words "Fort Worth" written after it, and a telephone number underneath. Do you recognize that?

Mr. SENATOR. This could be probably this guy that he was going to have, I imagine, I am not sure, probably made those twistboards.

Mr. GRIFFIN. Do you recognize the name Buddy?

Mr. SENATOR. No; I have never seen him; no.

Mr. GRIFFIN. You mentioned the name St. Charles.

Mr. SENATOR. Yes.

Mr. GRIFFIN. And St. Charles is written on this first page, with a telephone number under it. Do you recognize that?

Mr. SENATOR. That probably is his home number.

Mr. GRIFFIN. Do you remember St. Charles' number?

Mr. SENATOR. I don't remember the number offhand; no.

Mr. GRIFFIN. Did Jack Ruby ever have anything to do with Mr. St. Charles?

Mr. SENATOR. No; nothing whatsoever. He knew him. He used to go through and buy some medicine, or whatever it might be, a toothbrush, and things of that nature.

Mr. GRIFFIN. Mr. St. Charles ran a drugstore?

Mr. SENATOR. Yes, he has a drugstore in the Statler Hilton Hotel.

Mr. GRIFFIN. Did Mr. St. Charles have any connection with Jack Ruby's twistboards?

Mr. SENATOR. No; nothing. Never knew he had a twistboard. I would venture to say that this book here, this is only one person I think who has a handwriting like that, that would write this here. This probably, this could be, though I have never seen this book, the handwriting looks like Andrew's, Andrew Armstrong, the colored boy. This is what I think it is. I am not sure.

Mr. GRIFFIN. Let me ask you this. You made the remark that you know that St. Charles didn't know anything about the twistboards.

Mr. SENATOR. No; not to my knowledge.

Mr. GRIFFIN. But have you talked with St. Charles since Ruby shot Oswald, and have you learned from St. Charles that he was unaware of the twistboards?

Mr. SENATOR. I have seen St. Charles exactly one time since then.

Mr. GRIFFIN. What prompted you to make the statement that St. Charles didn't know anything about the twistboard?

Mr. SENATOR. I would probably say, to the best of my knowledge, he didn't know anything about the twistboard.

Mr. GRIFFIN. You would be surprised if he did?

Mr. SENATOR. If he did, I can't say. It is possible that he did, but I would say, to the best of my knowledge. I can't say positively. I don't think he did. Now, I don't know.

Mr. GRIFFIN. Turning over page 1, look at the names there. There are two names at the bottom of the page. You testified about Abe Klinman.

Mr. SENATOR. Yes, the attorney. That is Earl Ruby, and Ed Pullman, which I mentioned before to you.

Mr. GRIFFIN. Yes.

Mr. SENATOR. I can't even read the first name. It looks like Leona or Lena.

Mr. GRIFFIN. Leona?

Mr. SENATOR. Miller; is that who it is?

Mr. GRIFFIN. It might be.

Mr. SENATOR. I don't know who that is.

Mr. GRIFFIN. Clark Dotty?

Mr. SENATOR. No.

Mr. GRIFFIN. Turning over to page 2, do you recognize any of the names on that page?

Mr. SENATOR. This says Mar-Din?

Mr. GRIFFIN. Yes.

Mr. SENATOR. This is another name, Henry Denture. I wouldn't know who that is. Earl Products.

Mr. GRIFFIN. I will skip over the back of page 2 because there is nothing on there that you haven't talked about. Look at page 3.

Mr. SENATOR. I can't even understand what that last name is.

Mr. GRIFFIN. You are referring to the first name on there.

Mr. SENATOR. I don't know what it is anyhow, but I can't even read the last name.

Mr. GRIFFIN. You don't recognize any of those names there?

Mr. SENATOR. No; that is Shay, I believe, isn't it?

Mr. GRIFFIN. Yes, Ruth Shay.

Mr. SENATOR. No. I think we talked about this one before.

Mr. GRIFFIN. All right. Now on the back of page 3 you have mentioned Stanley Kaufman.

Mr. SENATOR. Yes.

Mr. GRIFFIN. But there is a Riky Kasada.

Mr. SENATOR. I don't know him.

Mr. GRIFFIN. Scotty Milles or Mills?

Mr. SENATOR. No.

Mr. GRIFFIN. You don't recognize that?

Mr. SENATOR. No.

Mr. GRIFFIN. All right. On page 4, Norma Bennett?

Mr. SENATOR. No.

Mr. GRIFFIN. Judy Armstrong?

Mr. SENATOR. No.

Mr. GRIFFIN. Burt Nelson?

Mr. SENATOR. No.

Mr. GRIFFIN. Floyd Turman you mentioned previously.

Mr. SENATOR. Buddy Turman.

Mr. GRIFFIN. Is that the name?

Mr. SENATOR. No; his name is Buddy. Wait; he comes from Tyler, Tex. Yes, here it is. This says Buddy. I didn't know him by his first name.

Mr. GRIFFIN. Floyd Turman is——

Mr. SENATOR. Buddy Turman.

Mr. GRIFFIN. The other Turman we talked about is Nick Turman?

Mr. SENATOR. Yes; I don't know who that is. Now, see, he is known by his fighting name, is Buddy Turman and, of course, that is all I recall. I never knew it was Floyd, but he is billed, and everything else, as Buddy Turman.

Mr. GRIFFIN. On the back of page 4 there is the name Buddy Heard. Did you know Buddy Heard?

Mr. SENATOR. Buddy Heard, yes. He is an entertainer who worked for Jack once, I would probably say about two years ago was the last time he was in Dallas.

Mr. GRIFFIN. Has Jack maintained a relationship with him recently?

Mr. SENATOR. No. I would say it was approximately, it must have been approximately two years ago. He worked for him, I think, one time.

Mr. GRIFFIN. When you say "no" to my question about Jack maintaining a relationship with him recently?

Mr. SENATOR. I don't know of any.

Mr. GRIFFIN. How about any of the other names that you see there on the back of page 4? Do you recognize any of those?

Mr. SENATOR. What does this say? Is this Burt?

Mr. GRIFFIN. Burt. Did you know a Burt?

Mr. SENATOR. No.

Mr. GRIFFIN. I am not going to direct your attention to page 5 because page 5 doesn't have anything on it. I believe it has nothing on it that we haven't already talked about. The back of page 5 has the name "Jerry Lindsay". Do you recognize that name?

Mr. SENATOR. No. Floorman, that is the man that worked on the floor or did some work for him, or something, but I don't recognize the name.

Mr. GRIFFIN. Do you recognize the name of Leo? Do you know anybody named Leo?

Mr. SENATOR. Leo Tardi? He worked for Jack.

Mr. GRIFFIN. What was his name?

Mr. SENATOR. I think it is Tardi. I am not sure.

Mr. GRIFFIN. When did he work for Jack?

Mr. SENATOR. The last time he worked for Jack, he had worked both clubs, you know, the Vegas and that one there.

Mr. GRIFFIN. What kind of work did he do?

Mr. SENATOR. After the shooting he worked up at the club at nights and, of course, he was a salesman in the daytime.

Mr. GRIFFIN. But what kind of work?

Mr. SENATOR. He took the tickets in, you know, the \$2 admission fees.

Mr. GRIFFIN. What did he sell during the daytime?

Mr. SENATOR. I think clothing in a store.

Mr. GRIFFIN. Do you know what department store he worked for?

Mr. SENATOR. No.

Mr. GRIFFIN. Or what store?

Mr. SENATOR. No. It was in one of the downtown stores there. I don't know which one it was.

Mr. GRIFFIN. I am going to pass over the front half of page 6 because there is nothing written on there that appears to be a name, and I will direct your attention to the back of page 6. Do you recognize any of the names there?

Mr. SENATOR. I don't know him, at the radio station.

Mr. GRIFFIN. Dick Gifford?

Mr. SENATOR. I don't know him.

Mr. GRIFFIN. Do you recognize anything else on there?

Mr. SENATOR. What is this supposed to say?

Mr. GRIFFIN. S-c-h-r-o-l-l.

Mr. SENATOR. No.

Mr. GRIFFIN. Now look at the front of page 7. Do you recognize any of those names?

Mr. SENATOR. This particular Leonard I have mentioned to you before, the booking agent. The thing is to read these things. Who can read them?

Mr. GRIFFIN. Let me help you, if I can.

Mr. SENATOR. What does the top one say?

Mr. GRIFFIN. Joe Roskydall.

Mr. SENATOR. Never heard of him.

Mr. GRIFFIN. Dick Lenard you mentioned. E. J. Evans?

Mr. SENATOR. I don't know. What is this?

Mr. GRIFFIN. W. E. Groveland?

Mr. SENATOR. I don't know him.

Mr. GRIFFIN. Stevens Park Beauty Salon?

Mr. SENATOR. No.

Mr. GRIFFIN. Maisl Brothers?

Mr. SENATOR. Boy, I tell you, you do all right with them.

Mr. GRIFFIN. The back of page 7, I will read these off to you. Ed McMulmore. Does that mean anything to you?

Mr. SENATOR. No.

Mr. GRIFFIN. McKinney?

Mr. SENATOR. No.

Mr. GRIFFIN. All right. The front of page 8; Leonard Wood?

Mr. SENATOR. Don't know him.

Mr. GRIFFIN. Milton Thomas?

Mr. SENATOR. No.

Mr. GRIFFIN. Clarence McInnis?

Mr. SENATOR. Don't know him.

Mr. GRIFFIN. James Dotson?

Mr. SENATOR. No.

Mr. GRIFFIN. James T. Aycox?

Mr. SENATOR. No.

Mr. GRIFFIN. Nothing on the back of page 8 or the front of page 9. Page 9, the back is blank. Page 10 is blank on both sides. Page 11 is a half sheet which is blank on both sides. Page 12 I won't direct your attention to because there are no names on there. The back of page 12, the only name that appears on here is Bill Remike. Does that mean anything to you?

Mr. SENATOR. No.

Mr. GRIFFIN. Here is the name, Bobby Patterson.

Mr. SENATOR. No.

Mr. GRIFFIN. On page 13. I will turn over to the back of page 13. There is the name, Tex Lacy, which we talked about before.

Mr. SENATOR. I have heard about that name, but I don't know what capacity Tex Lacy is.

Mr. GRIFFIN. Now, I said the back of page 13. Now on page 14, which is about a third of a sheet of paper, there is the name Frank Fisher. Did you know Frank Fisher?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Who is Frank Fisher?

Mr. SENATOR. Frank Fisher was a trumpet player and the leader of his band at one time.

Mr. GRIFFIN. Of a band?

Mr. SENATOR. In the Carousel.

Mr. GRIFFIN. And what else did he do besides performance as a musician?

Mr. SENATOR. That is all.

Mr. GRIFFIN. Was he an interior decorator?

Mr. SENATOR. Not that I know of. If he was, that is news to me.

Mr. GRIFFIN. Did Jack talk to you or did you know in the week or so before the President was shot whether Jack was considering opening up any new night club?

Mr. SENATOR. He had talked about one. I have never seen it. But he was talking about a location that he had mentioned on McKinney Avenue. I think this was a house type place and, as far as I know, nothing ever materialized or whatever it was going to be. This is the only thing I knew about it. He never took me over there. I have never seen it.

Mr. GRIFFIN. How was Jack going to finance it?

Mr. SENATOR. I don't know. That I didn't know. Possibly he may have been looking for a partner. I don't know, or how or what I don't know. You've got me there.

Mr. GRIFFIN. I won't mention the back of page 14 because there is nothing there. Clark Boland, does that mean anything to you?

Mr. SENATOR. No; it seems that is a radio station there.

Mr. GRIFFIN. Herman Flowers?

Mr. SENATOR. No.

Mr. GRIFFIN. K. Hamilton. That is the front of page 16.

Mr. SENATOR. No.

Mr. GRIFFIN. Mr. Miller, Collins Radio?

Mr. SENATOR. No.

Mr. GRIFFIN. Cody City Hall; do you now anybody by that name?

Mr. SENATOR. No.

Mr. GRIFFIN. Jimmie Rhodes, do you know him?

Mr. SENATOR. The name sounds like I heard of it, but I don't know.

Mr. GRIFFIN. Mr. Wooldridge?

Mr. SENATOR. Never heard of him.

Mr. GRIFFIN. Bob Litchfield?

Mr. SENATOR. No.

Mr. GRIFFIN. Mrs. Moddy?

Mr. SENATOR. I don't know that either.

Mr. GRIFFIN. On the back cover is written the name Newton.

Mr. SENATOR. The only name I know of a Newton would be John Newton of the newspaper. If that is him or not, I don't know, because this is a telephone number, I assume, isn't it, but there is no prefix to it. Maybe this is it now. I don't even know if that is him.

Mr. GRIFFIN. When you went out to look at the Earl Warren sign, "Impeach Earl Warren" sign, on Friday, or was it Saturday morning?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Did Jack write anything down?

Mr. SENATOR. No.

Mr. GRIFFIN. You don't recall?

Mr. SENATOR. I don't remember. I didn't see him write anything down. I can't quote if he did or didn't, but I didn't see him. I will put it that way.

Mr. GRIFFIN. Did Jack have any newspapers in the car with him?

Mr. SENATOR. That day?

Mr. GRIFFIN. Yes.

Mr. SENATOR. I really don't know. I just don't refresh my mind if he did have any newspapers.

Mr. GRIFFIN. Did you drive Jack's car?

Mr. SENATOR. No; he drove it.

Mr. GRIFFIN. I suggest now we probably ought to break to two-thirty.
(Whereupon, at 12:50 p.m. the proceeding recessed.)

TESTIMONY OF GEORGE SENATOR RESUMED

The proceeding reconvened at 2:10 p.m.

Mr. GRIFFIN. I will repeat what we say at the beginning of each session. We are taking this deposition under the same conditions that we started out with, and you are under the same oath that you have been under at the outset.

Just before we took a break for lunch we had been through a number of notebooks which had many, many names in them. Let me ask you about some other names.

Did you know or hear Jack mention a Lawrence Meyers?

Mr. SENATOR. No.

Mr. GRIFFIN. This man would have been from Chicago and he would have been engaged in a sales capacity in sporting goods.

Mr. SENATOR. Oh, wait a minute. You mentioned sporting goods. That's right. I met someone up there. As a matter of fact, Jack got a pair of pushups from him.

Mr. GRIFFIN. Barbells?

Mr. SENATOR. If it is Lawrence Meyers. I think that is the name. I am not sure. Barbells, yes.

Mr. GRIFFIN. Now you met some man or you heard of some man?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Who you think might be Lawrence Meyers?

Mr. SENATOR. Yes; I know who you mean. When you mentioned sporting goods, then it——

Mr. GRIFFIN. How do you happen to know of this man?

Mr. SENATOR. I met him at the Carousel one night when he was in town.

Mr. GRIFFIN. How long before Oswald was shot would that have been?

Mr. SENATOR. I don't know. I think it was in the summer. I think it was this past summer. I think it was in the summer of 1963.

Mr. GRIFFIN. Would it have been in the month of November of 1963?

Mr. SENATOR. No; I think it was much longer, much before that. Well, it couldn't have been that. The reason I say that is because I wasn't living with Jack then.

Mr. GRIFFIN. In November of 1963 you were.

Mr. SENATOR. I was living next door to Jack. I wasn't living with him. When you mentioned—was it November?

Mr. GRIFFIN. Yes.

Mr. SENATOR. No; because——

Mr. GRIFFIN. At the time you met this man you were not living with Jack?

Mr. SENATOR. No; I was still living in my same apartment.

Mr. GRIFFIN. You met him——

Mr. SENATOR. I think this was some time in the summer, or maybe the latter part of the summer of 1963.

Mr. GRIFFIN. How much time did you spend with this man in the Carousel?

Mr. SENATOR. Well, he was up at the Carousel. From there we went out and had a bite to eat, and that was it.

Mr. GRIFFIN. And can you describe him? How old a man was he?

Mr. SENATOR. I would probably say he was 6 foot tall. I would say he is around about 6 foot. I don't remember the color of his eyes, black, brown, or blue. I don't remember. Either they are brown or blue. He had a good healthy build, now, of a normal man of that height.

Mr. GRIFFIN. How old a man was he?

Mr. SENATOR. I would have to say maybe in the late forties. I am not sure. I am certain it is in the forties, if anything, you know. It could jump up a little more. I would probably say he was in the——

Mr. GRIFFIN. How did Jack happen to know this fellow?

Mr. SENATOR. I don't know. That was the one time I saw him in Dallas.

Mr. GRIFFIN. What did you learn about him?

Mr. SENATOR. I didn't learn anything about him. I knew he was selling these things, sporting goods, I guess, of various natures. As a matter of fact, I heard him mention once that they had a plant or something like that in, I think, Bonham, Tex., or a plant or something out there too, which is maybe about 75 miles from Dallas, or an office there or a plant or something out there I know. I don't know what it is. Maybe it is a manufacturing plant they had there now. That was the only one time I saw him in Dallas.

Mr. GRIFFIN. You don't have any idea how Jack came to meet this fellow?

Mr. SENATOR. No; I don't.

Mr. GRIFFIN. I mentioned the name Alex Gruber.

Mr. SENATOR. Who?

Mr. GRIFFIN. Alex Gruber.

Mr. SENATOR. Yes.

Mr. GRIFFIN. When you were going through the notebooks?

Mr. SENATOR. Yes.

Mr. GRIFFIN. And I believe you indicated you didn't recognize that name.

Mr. SENATOR. Not the name; no.

Mr. GRIFFIN. Let me see if I can put this to you. Did you know of any friend Jack had in California who might have been at one time a truck driver?

Mr. SENATOR. No; I don't. A truck driver?

Mr. GRIFFIN. Yes.

Mr. SENATOR. No.

Mr. GRIFFIN. And do you remember anybody that Jack was going to send a dog to in California?

Mr. SENATOR. No; I don't. I have heard that mentioned before. I have heard it mentioned. I don't remember now if I read it in the newspaper or from mouth to ear or what it was, but I have heard that, that he was going to send it to somebody in California. Who it was, I don't know.

Mr. GRIFFIN. How about L. J. McWillie?

Mr. SENATOR. I have heard of the name McWillie, but I don't know him. Is it McWillie?

Mr. GRIFFIN. M-c-W-i-l-l-i-e.

Mr. SENATOR. All I know is the name McWillie.

Mr. GRIFFIN. What do you know about that name?

Mr. SENATOR. I don't even know him. Never met him.

Mr. GRIFFIN. Where have you heard the name?

Mr. SENATOR. I have heard Jack mention the name in the club. He was an old friend of Jack's at one time or another. From where, what or how, I don't know.

Mr. GRIFFIN. Do you know of any friends of Jack——

Mr. SENATOR. As a matter of fact, I thought McWillie was two names. I thought his first name was Mac and his last name was Willie. But, of course, I am not sure.

Mr. GRIFFIN. Do you know of any friends of Jack who are in jail presently, in the penitentiary?

Mr. SENATOR. No.

Mr. GRIFFIN. Do you know of a friend, a fellow who Jack had a business association with, who is now in the penitentiary on a sodomy charge?

Mr. SENATOR. I have heard that there is somebody. It might be Huntsville. It might be. I am not sure. I heard that somebody is down there. Now who the man is, I don't know.

Mr. GRIFFIN. Did Jack talk about him?

Mr. SENATOR. I have heard it mentioned quite some time ago, but who he is, I don't know. I don't know the man. As a matter of fact I don't even know the name.

Mr. GRIFFIN. Are you familiar with the name H. L. Hunt?

Mr. SENATOR. I think everybody is. He is one of the very wealthy men.

Mr. GRIFFIN. In Dallas?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Did Jack ever mention having met him?

Mr. SENATOR. Not to me.

Mr. GRIFFIN. You know H. L. Hunt is politically active, he has a radio program.

Mr. SENATOR. He is in everything. He is in many, many things, I understand; oh, well, I didn't know what all his activities are, but the name is like, when you hear the name, it is like listening to the name of the President—I mean that well known, I would say.

Mr. GRIFFIN. Have you ever seen Jack with any literature that was put out by H. L. Hunt?

Mr. SENATOR. Not that I know of offhand.

Mr. GRIFFIN. Have you ever heard Jack mention Lamar Hunt?

Mr. SENATOR. I don't think so. That is his son, I think. I don't think so.

Mr. GRIFFIN. Let me ask you, George, have you ever belonged to any political organizations?

Mr. SENATOR. Never, never.

Mr. GRIFFIN. I don't simply mean by that the Democratic Party or the Republican Party, but any kind of organization which was interested in some public issue, or something.

Mr. SENATOR. No.

Mr. GRIFFIN. What was your practice with respect to using Jack's telephone?

Mr. SENATOR. What was what?

Mr. GRIFFIN. Your practice with respect to using Jack Ruby's telephone at home. I take it you used it to make local calls.

Mr. SENATOR. Once in a while; yes. I am not sure.

Mr. GRIFFIN. Did you make long-distance calls, telephone calls, from Jack's home?

Mr. SENATOR. No; I don't think I have.

Mr. GRIFFIN. By long distance I mean any toll call, even to Fort Worth.

Mr. SENATOR. Not that I know of. I don't think I ever have.

Mr. GRIFFIN. Did you ever have occasion to call Ralph Paul from Jack's telephone?

Mr. SENATOR. I have called him, but I don't think I have ever called him from the house that I can remember, mind you. Now I don't know if I have ever or not. I can't quote and say "Yes, I did," or "Yes, I didn't."

Mr. GRIFFIN. Are you able to state whether or not on Friday, November 22, you made any long-distance phone calls from Jack's telephone?

Mr. SENATOR. On November 22?

Mr. GRIFFIN. Yes; Friday, November 22.

Mr. SENATOR. I don't think so. I don't think I did.

Mr. GRIFFIN. How about the next day, on Saturday?

Mr. SENATOR. On Saturday?

Mr. GRIFFIN. Did you make any toll calls on that day?

Mr. SENATOR. I don't think so. When I say I don't think so, I don't remember if I did or not, but I don't think so. I don't want to say "No" positively or "Yes" positive, because I am not sure. I just don't think so.

Mr. GRIFFIN. Do you remember Saturday morning, November 23, do you remember whether Jack received any telephone calls that morning?

Mr. SENATOR. I don't remember.

Mr. GRIFFIN. Would you recall, for example, whether Larry Crafard called that morning?

Mr. SENATOR. I don't remember if he did or not. As I say, I can't be quoted, because I ain't positive. I can't say yes or no because I don't remember on that.

Mr. GRIFFIN. When did you first become aware that Larry Crafard was no longer in Dallas?

Mr. SENATOR. The following Tuesday.

Mr. GRIFFIN. How did you find out about that?

Mr. SENATOR. When I went up there I asked Andrew one night, and I happened to remember that it was Tuesday, one of the things I do remember, and I said to Andrew, I said, "Andrew, where is Larry?" I said, "I didn't see him yesterday either," or something like that, to that effect, and he said he had left, and I said, "When did he leave?" He said he had left Saturday.

Mr. GRIFFIN. How did Andrew know that?

Mr. SENATOR. He said—I think now he said he took \$8 from the till, or something to that effect, and I think he left a note that he was leaving, something like that. These are not positive words, but I think this is what he said. Something to that effect. And that is the first time I ever knew.

Mr. GRIFFIN. Did Andrew have any explanation as to why Larry left?

Mr. SENATOR. No; not that I know of. Incidentally, Andrew was back at the trial, you know.

Mr. GRIFFIN. Larry?

Mr. SENATOR. I mean Larry, because Andrew lives in Dallas.

Mr. GRIFFIN. Yes; he was at the trial?

Mr. SENATOR. Yes; they said he hitchhiked in from Wisconsin or some place out there. I don't know where it is. They said he hitchhiked all the way back for the trial. That is what I heard.

Mr. GRIFFIN. Did you talk to him?

Mr. SENATOR. Yes; I talked to him when I was sitting on the witness bench one day.

Mr. GRIFFIN. Did he tell you why he came back to Dallas?

Mr. SENATOR. No; but he said, he mentioned that he hitchhiked back, but he didn't say why he came back or anything of that nature.

Mr. GRIFFIN. Did he say anything to you about why he left?

Mr. SENATOR. No: he didn't. I never asked him. As a matter of fact, I wanted to ask him, but I didn't. I couldn't imagine why he left. I believe he was on the witness stand. What happened, I don't know.

Mr. GRIFFIN. You know we were talking about what you did on Saturday.

Mr. SENATOR. Yes.

Mr. GRIFFIN. During the afternoon.

Mr. SENATOR. Yes.

Mr. GRIFFIN. I have here in front of me a copy of a statement that you provided the Dallas Police Department. I notice in here that you say that you left the house around noon on Saturday.

Mr. SENATOR. Something like that; yes.

Mr. GRIFFIN. And that you had some things to do. Now try to think back to when you talked with the police department. What things did you have to do on Saturday?

Mr. SENATOR. I can't imagine. I don't know.

Mr. GRIFFIN. Did you have anything to do in connection with your business?

Mr. SENATOR. No; I didn't work that day.

Mr. GRIFFIN. Did you have any shopping to do other than for the groceries you bought?

Mr. SENATOR. Well, I did that. I don't remember if I did that. I just wonder if I did the laundry. I normally do the laundry on Saturday or

something. But I don't even recollect if I did that that day or not. I don't remember. I think I saw Jim Martin, but to the best of my recollection anything I did was only minute, just the passing of an afternoon, or something like that.

Mr. GRIFFIN. Do you have some recollection of having seen Jim Martin on Saturday?

Mr. SENATOR. I think I had a cocktail. I am not sure, but I think I had a cocktail with him, at the Burgundy Room. I think I did.

Mr. GRIFFIN. Would that have been in the afternoon?

Mr. SENATOR. Yes; because he is around his office between somewhere between 12 and 1. I mean that is when he will leave, he won't leave before that, and if I remember right—I am not sure on that—but if I remember I think we may have had a cocktail at the Burgundy Room.

Mr. GRIFFIN. I take it you do begin to have some recollection of having spent some time at the Burgundy Room?

Mr. SENATOR. I know I was there that day, you know.

Mr. GRIFFIN. But I mean Saturday afternoon.

Mr. SENATOR. I think I may have been there for a while, because I know later on that I met who I mentioned yesterday, Bill Downey, that I was there, and that we went some other place.

Mr. GRIFFIN. Did you see Downey before——

Mr. SENATOR. I think I saw Downey the latter part of the afternoon, or something like that, or the early part of the evening. I don't know if I met him in the latter part of the afternoon or when it was.

Mr. GRIFFIN. And were you——

Mr. SENATOR. It might have been in the early part of the afternoon. I am not sure. But I also met him later. It must have been around 8 or 8:30 when we went out together. I was at the Burgundy Room. Then we went to this other place.

Mr. GRIFFIN. It is your recollection that you saw Downey then both in the afternoon and the evening?

Mr. SENATOR. I think I saw him in the afternoon, but the evening for sure. I think I saw him in the afternoon. I am not sure. I think I made an appointment to meet him later, and then we would go out for a beer or two. This is what I think. I think now I am not sure on that.

Mr. GRIFFIN. Were you troubled on Saturday over your having gone with Jack out to photograph this impeach Earl Warren sign?

Mr. SENATOR. Was I troubled when I went with him?

Mr. GRIFFIN. On Saturday did this trouble you in any way?

Mr. SENATOR. You mean Saturday afternoon?

Mr. GRIFFIN. Yes.

Mr. SENATOR. You mean did I think about it?

Mr. GRIFFIN. Yes.

Mr. SENATOR. Oh, I imagine that I would probably say that I had thought about it; yes. As a matter of fact, I thought about that thing many a time; I don't know why; I don't know why he wanted to go out that night and take these pictures. He never mentioned why he wanted to see it or why he wanted to snap the pictures.

Mr. GRIFFIN. You didn't mention this to the Dallas Police Department?

Mr. SENATOR. No.

Mr. GRIFFIN. You did mention, however, that you went out with Jack and had coffee with him that morning?

Mr. SENATOR. Yes; at the Southland Hotel.

Mr. GRIFFIN. Of course, this was all in sequence with having gone out to see that Earl Warren sign?

Mr. SENATOR. Yes.

Mr. GRIFFIN. But what was it that made you omit to tell the police that?

Mr. SENATOR. Nothing particularly. I don't know why. Just it was a shaken-up day for me.

Mr. GRIFFIN. Were you worried that this might hurt Jack to talk about that particular episode?

Mr. SENATOR. No. As a matter of fact, it would do him justice.

Mr. GRIFFIN. How do you feel that way?

Mr. SENATOR. I think if a man is exploring somebody who put out a sign, whoever it may be, who would want to impeach Earl Warren, our Supreme Court Justice, or somebody who would put out these whys about the President the day he is coming here, which weren't good, the whys, I would say that this would be in favor of him of wanting to know these things, why should they be.

Mr. GRIFFIN. How would that——

Mr. SENATOR. Why would somebody want to impeach Earl Warren? For what reason? I don't know. I mean I don't have the answer to it. But why would a sign be put up there? Why did they want to impeach Earl Warren? Impeach him about what? I have asked myself this many times, but I don't know the answer.

Mr. GRIFFIN. You see, it seems strange that you should have mentioned your going to the Southland Hotel and having coffee and that occurred immediately after you had gone out to see the Earl Warren sign and had also gone to the post office—then I say I wonder how you could have forgotten it, once you had your mind on having one to the Southland Hotel. You know you didn't go right from your apartment to the Southland Hotel to have coffee.

Mr. SENATOR. I don't know. I don't know why. I know I explained that to Elmer Moore one day, and I said, "Elmer," or "Mr. Moore," rather, when he was questioning me, I said, "Elmer, of course, the first day I had been shaken up," and I had mentioned to Mr. Moore when he took my text of the whole thing how going about the sign, the two signs, how these had bypassed my mind.

Mr. GRIFFIN. Two signs?

Mr. SENATOR. Well, when I say the signs, the billboard and the newspaper ad, when they took my statement.

Mr. GRIFFIN. When you talked to me on the telephone from New York, I guess it was on Monday——

Mr. SENATOR. Yes.

Mr. GRIFFIN. You asked me if I had a copy, or if I had seen the Bernard Weissman ad.

Mr. SENATOR. Yes.

Mr. GRIFFIN. And I take it that in your mind this is a justification, this somehow is a justification or some assistance to Jack in his defense, the fact that he was interested in finding out about that advertisement and about the sign?

Mr. SENATOR. That's right. He wanted to know the whys. He wanted to know why somebody would want to impeach him.

Mr. GRIFFIN. Now is this a thought that has come to you after knowing, or after having talked with the attorneys and knowing what the strategy of the trial was going to be?

Mr. SENATOR. No.

Mr. GRIFFIN. Talking with people?

Mr. SENATOR. No.

Mr. GRIFFIN. Or is this something that you felt almost immediately, that this would be a justification?

Mr. SENATOR. I thought definitely in my own thinking that this was a justification, because when I was put on the witness stand for the bond hearing in early, I think it was, December, I am not sure just when it was, when I was questioned about that by Mr. Alexander, I told him that if anything this would be helping Jack, in wanting to know why something of this nature would want to be put out in Dallas. Why did the Dallas Daily Morning News want to accept an ad like this when the President was coming into town that day?

Mr. GRIFFIN. When you went out with Jack, did Jack tell you at all what he was going to do with this information that he got?

Mr. SENATOR. No; none whatsoever.

Mr. GRIFFIN. Did he indicate that he might have been working for a newspaper?

Mr. SENATOR. No.

Mr. GRIFFIN. Trying to do some freelance work for a newspaper?

Mr. SENATOR. No; there wasn't a thing mentioned. I say when Jack gets his mind set on something, he wants to know why, the information, the why.

Mr. GRIFFIN. When was it that you first learned that Jack had spent sometime at the police station on Friday night? Did you ever learn it?

Mr. SENATOR. You mean the Friday when he was bringing the sandwiches and things of that nature there?

Mr. GRIFFIN. Yes. When did you first learn about that?

Mr. SENATOR. I think it was after he woke me up that morning. I think that is when he told me, and I think he mentioned it, yes, and then he mentioned that he went to the synagogue there Friday and prayed for the President, and that he saw his sister, and they were both crying, as it was related to me, over the President.

Mr. GRIFFIN. You didn't tell any of that to the——

Mr. SENATOR. To who?

Mr. GRIFFIN. To the police department when you talked to them on the 24th, did you?

Mr. SENATOR. I don't remember. See, you must understand——

Mr. GRIFFIN. Why don't you take a look—well, go ahead.

Mr. SENATOR. You must understand when a person is grabbed the way I was grabbed, or I will say not particularly me, but any human being, wouldn't it shake a human being up?

Mr. GRIFFIN. I take it the police department asked you to tell them everything you knew about what Jack had done.

Mr. SENATOR. Let me say in the condition that I was in, I was pretty well shaken up at that time.

Mr. GRIFFIN. Did you feel that his being at the police department might hurt him?

Mr. SENATOR. I don't know. I didn't think about that. That didn't even enter my mind whether it did or not. All I know is he said he took

sandwiches over there, and that is all I know on that.

Mr. GRIFFIN. Now you also——

Mr. SENATOR. Now why he took it over there, I don't know.

Mr. GRIFFIN. You also didn't mention——

Mr. SENATOR. Maybe I forgot a lot of things at that particular time, being shook up.

Mr. GRIFFIN. You also didn't mention in this statement that you gave the police department on the 24th——

Mr. SENATOR. Didn't what?

Mr. GRIFFIN. In the statement that you gave to the police department on the 24th.

Mr. SENATOR. I didn't mention what?

Mr. GRIFFIN. You did not mention anything about the telephone call from Little Lynn.

Mr. SENATOR. Maybe I forgot that, too. Look, I told you. I was in a shookup state that first day. Maybe I did forget about it.

Mr. GRIFFIN. I am just wondering if these things, if you thought in your own mind that those events which you omitted——

Mr. SENATOR. Was I trying to hide something?

Mr. GRIFFIN. Well, could hurt Jack, and you wanted to help Jack.

Mr. SENATOR. I wasn't trying to hide anything. I definitely was not trying to hide anything. But you must understand, like I repeated, any individual in an event like this, now I can't speak for anybody else, but I would probably say they would be shaken up like I was, and I want you to know that I was really shook up, that that would make a lot of people forget a lot of things, and probably can't remember things, being grabbed that fast and being talked to that fast in that instantaneous—I was pretty well shaken up that day, very good.

Mr. GRIFFIN. But you did remember Jack talking about the President and you mentioned you remembered that you thought you saw tears in his

eyes, and you remember his saying he was going to take his dog Sheba down to the club. I am just wondering why it is you remembered some of these things, but you didn't remember some other things which were just, perhaps should have been just as graphic, like going out to that impeach Earl Warren sign—that must have just stood out as a sore thumb to you.

Mr. SENATOR. There was no particular reason. Now maybe a lot of things that I mentioned there that I possibly could have forgotten, too. There was no particular reason for it. There was nothing that I was trying to cover up or hide because I got nothing to hide.

Mr. GRIFFIN. I am not suggesting that in any sort of invidious sense.

Mr. SENATOR. It is just a shakeup of a fast brain, that is all, at the moment, when all these things were happening.

Mr. GRIFFIN. Let me hand you what I have marked as “Washington, D.C., April 23, 1964, George Senator Deposition, Exhibit 5400,” and I will sign my name to it. This is a copy of an affidavit which appears to bear your signature which was sworn to before William F. Alexander on November 24, 1963.

Mr. SENATOR. Is that the man who had me? I don't remember who it was.

Mr. GRIFFIN. This is apparently the man who is a notary public who took this statement. Look it over. Read it if you would. I hand it to you now. Tell me if you remember signing that and if that is true.

Mr. SENATOR. That is, that is my signature.

Mr. GRIFFIN. Read it through to make sure as best you can remember that that is a true copy of what you signed. It that a true copy of the statement you signed?

Mr. SENATOR. To the best of my knowledge.

Mr. GRIFFIN. I wonder then if you would sign that under my name. I hand you that pen back. As I understand it, then, immediately after you signed this statement before Mr. Alexander, you were then interviewed by an agent of the FBI.

Mr. SENATOR. Yes.

Mr. GRIFFIN. Now, were you shaken up in dealing with the FBI agent?

Mr. SENATOR. Sure.

Mr. GRIFFIN. In this same, or rather in this interview with the FBI, the FBI reports you as telling them during that interview that you learned of Oswald's being shot just as you walked in the door of the Eatwell Restaurant.

Mr. SENATOR. Just as I walked in? No.

Mr. GRIFFIN. Do you recall that?

Mr. SENATOR. No; I was sitting. I was sitting. I wasn't walking in the door. I was down on the seat and already had my first cup of coffee.

Mr. GRIFFIN. Also, one gets the impression from the FBI interview it was your recollection on November 24 that you called Jim Martin after you learned that Jack Ruby had shot Oswald.

Mr. SENATOR. No; before.

Mr. GRIFFIN. It was before you learned that?

Mr. SENATOR. Right. I called him—wait, wait. No; that is right. I did. But I wasn't home. That was it. I called him and spoke to his daughter, one of his little girls.

Mr. GRIFFIN. And that was before you learned that Ruby——

Mr. SENATOR. Yes. When I heard that Oswald was shot, but nothing mentioned. There was no name or no club mentioned, Oswald was shot—that is when I called him.

Mr. GRIFFIN. Directing your attention to the FBI's report on November 24, that you said you learned that Oswald was shot just as you walked in the door.

Mr. SENATOR. No.

Mr. GRIFFIN. What makes you now remember that you were seated and had a cup of coffee whereas apparently you didn't remember that on November 24?

Mr. SENATOR. Because the waitress who waited on me was the one who said it.

Mr. GRIFFIN. Did she say it to you?

Mr. SENATOR. No. She was behind the counter. Not specifically to me. It was pretty loud.

Mr. GRIFFIN. Did they have a TV set on?

Mr. SENATOR. No; I don't think so. I don't know. She got her information through either the phone, or they may have had a little radio. I don't remember just what it was, because I wasn't looking directly where she was walking around, or what she was doing, but she was behind the counter, and I was sitting.

Mr. GRIFFIN. How much time elapsed between the time you learned that Oswald had been shot and the time you learned that Ruby had been the person who shot him?

Mr. SENATOR. I would probably say within 5 to 10 minutes, something like that. It was a short while I know. It wasn't long.

Mr. GRIFFIN. I'm going to mark a document which I have before me in the following manner: "Washington, D.C., April 23, 1964, George Senator, Deposition Exhibit 5401," and I am going to sign my name to it.

This document which I have marked as a copy of an interview report prepared by Special Agent Kenneth C. Howe of the Federal Bureau of Investigation, of an interview on November 24, 1963, with you, Mr. Senator. It consists of five pages, typewritten pages, and they are numbered 296 to 300. I have marked on page 296, and I have not marked the succeeding pages. I want to hand you this and ask you now to take the time to read it over, and then I want to know if that is an accurate report of what you told the FBI at that time.

I am not asking you whether, on further reflection, you would change what you said in there, but merely whether that accurately reflects what you told them at that time. If it doesn't, why, will you point out the parts that are not accurate, and we will see if we can't correct it.

Mr. SENATOR. Shall I make little notations here?

Mr. GRIFFIN. Are there some places you want to change?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Before you mark on it—why don't you do this——

Mr. SENATOR. It will only be a dot.

Mr. GRIFFIN. Why don't you just take this paper and make some notes on it and then we can go back.

Mr. SENATOR. There is going to be some changes in here. I will point them out to you.

Mr. GRIFFIN. Have you got some changes to make there?

Mr. SENATOR. Yes. I had better go over it with you though.

Mr. GRIFFIN. Why don't you read the sentence or sentences that you would make changes in, and then we will discuss them? What I suggest you do is read one sentence or a group of sentences that are wrong, and then we will discuss that sentence or group, and then we will move on to the next one. Go right ahead and read it.

Mr. SENATOR. It says here, "He had only casual association with him, mostly only as a patron to his club, from that time on until approximately 3 years ago."

Mr. GRIFFIN. That is on page 296 of the FBI report?

Mr. SENATOR. Yes. Now it wasn't 3 years ago at the time. This was 2 years ago.

Mr. GRIFFIN. In other words, your association with Jack was casual up until 2 years ago?

Mr. SENATOR. That is right.

Mr. GRIFFIN. All right.

Mr. SENATOR. In other words, it was 1962, February, March, or April or somewhere in there of 1962.

Mr. GRIFFIN. Why don't you change with your pen, strike out the word "three."

Mr. SENATOR. On this?

Mr. GRIFFIN. On that. And write “two.”

Mr. SENATOR. You mean cross the three off and put a two in there?

Mr. GRIFFIN. Yes. And then initial it and date it.

Mr. SENATOR. It is going to be hard to squeeze it in between these lines. Shall I put my initial after it?

Mr. GRIFFIN. Yes.

Mr. SENATOR. You won't be able to see it. These writings here don't coincide.

Mr. GRIFFIN. Let me talk a little bit more about this change in your relationship with Jack. Up until approximately March or April of 1962 when your relationship became more than casual, were there other people in Dallas to whom you felt closer than Jack?

Mr. SENATOR. No; I think maybe we are both misinterpreting this. When you say closer, this is when I first started to—you know, when I was down and out and I first started to work for him, and I was living with him. You see what I mean?

Mr. GRIFFIN. This is March or April of 1962?

Mr. SENATOR. I would probably say either February, March, or April, something like that. I don't remember that I was living with him, because previous to that I still didn't see him any more than I ever did in the past.

Mr. GRIFFIN. And up to this time were there other people in Dallas whom you saw more frequently than Jack?

Mr. SENATOR. Oh, the only time I saw Jack is when I ever met him anywheres, if I should run across him anywheres, or once in a while I would go up to his club, that was all, and it has never been anything but that up until that time.

Mr. GRIFFIN. Who did you see more frequently or on a more social basis?

Mr. SENATOR. Actually I couldn't see him frequently. Before that I was traveling. See, I was traveling. I wasn't home every weekend. There were times when I was traveling, there were times I might miss a week from

coming home. It all depends on the location you are—if you are too far from home. Then other times I might be gone two or three. It all depends, you know.

Mr. GRIFFIN. What I want to get some idea of is up until this period that you moved in with Jack in 1962, who were the people that you saw on a social basis?

Mr. SENATOR. Well, I have seen Bill Downey. What I want to impress you, these people I don't see every day, or like, you know, say I see them today, tomorrow, the next day, and things like that. On rare occasions I saw Don Taber. That time on rare occasions I saw Jim Martin. These were all rare, mind you, then. See, I did more meeting. I met a lot of people at the Burgundy Room most of the time. In other words, somebody has a favorite hangout.

Mr. GRIFFIN. And that Burgundy Room was yours?

Mr. SENATOR. This is mine.

Mr. GRIFFIN. For how long has it been your favorite hangout?

Mr. SENATOR. Ever since I came to Dallas.

Mr. GRIFFIN. This is a place you would go almost every day?

Mr. SENATOR. I would probably say more so than any other place.

Mr. GRIFFIN. Do you go there almost every day?

Mr. SENATOR. No, not every day, no.

Mr. GRIFFIN. Two or three times a week?

Mr. SENATOR. I would say yes, sure, and I always met some friends there—after they all get out from work a lot of people always gathered, transient or local, from 5 on.

Mr. GRIFFIN. The Burgundy Room to you is sort of what a private club would be to a wealthier man?

Mr. SENATOR. That is of that nature, yes.

Mr. GRIFFIN. And there were certain other people who used to hang around there?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Was Jack Ruby one of the people?

Mr. SENATOR. No. I have only seen Jack go in there that I can remember twice, but he never sat down and had a drink. In and out. Walked in. Jack is not a drinking man.

Mr. GRIFFIN. So would it be fair to say that for recreation and pastime——

Mr. SENATOR. Just as one of my hangouts.

Mr. GRIFFIN. You would go to the Burgundy Room and have a few beers, a few drinks?

Mr. SENATOR. Yes. Whoever walked in. I had many friends who walked in. Whoever walked in, there is many girls that I knew, many fellows that I knew.

Mr. GRIFFIN. But you are not a man who spends his spare time——

Mr. SENATOR. Not particularly, no.

Mr. GRIFFIN. Playing golf or tennis?

Mr. SENATOR. No. I'll tell you—the only habit I got is I like to cook, this is my golf or what somebody else would do, or whatever he may recreate in—I used to like to piddle around in the kitchen. That is why Jack Ruby didn't like me. You are not writing that?

Mr. GRIFFIN. You mean that you like to experiment with food?

Mr. SENATOR. Yes, I like to putter around. I enjoy puttering around in kitchens. I done this for a long time.

Mr. GRIFFIN. But you worked in a number of restaurants?

Mr. SENATOR. But not in that capacity. Of course, I was broken in, you know. When I say broken in, I worked for my brother you know, years ago, but I wasn't classified as any cook or any thing of that nature.

Mr. GRIFFIN. Are there any sort of specialty foods you like to cook?

Mr. SENATOR. I like to mess around with different concoctions, I mean because anybody can throw a hamburger on, you know, in the home, or

anybody can throw a steak on, whether it comes out good or bad, that is not a challenge. But to try to make some concoctions where you mix things——

Mr. GRIFFIN. Salads?

Mr. SENATOR. They can be salads or any hot dishes, something like that, or see how good you can make spareribs come out, which a lot of people can't make good, and then all the lawyers in Dallas think I am the greatest when it comes to making spareribs, because I have been invited many times, and I do put on a good rib plate.

Mr. GRIFFIN. And were you in the habit of inviting people to your place for dinner?

Mr. SENATOR. Yes, I have many a time. Nobody particular, but I have. I mean this—I relished, I have been invited over to people's homes. Jim Martin has invited me to his place to cook. There is another lawyer invited me over to his home to cook. They thought I did a good job in the kitchen. While they sat down I was sweating in the kitchen, but it was fun.

Mr. GRIFFIN. But Jack didn't appreciate your cooking?

Mr. SENATOR. He liked my cooking, but he wouldn't eat it because he classified me as one making rich, fatty foods, that would put a pouch on him. This is the thing, because this is why I mentioned to you that I love to make this avocado dish, which I mentioned to you before.

Mr. GRIFFIN. This is when we were having lunch.

Mr. SENATOR. Yes.

Mr. GRIFFIN. I didn't pull out an avocado salad today as I did yesterday.

Mr. SENATOR. I love avocados. I think they are great. I used to make a concoction and put on avocado and everybody used to love it. I must have put about nine different ingredients in it, but it tasted real good, real good. They used to clean the plate out. That was a good enough answer.

Mr. GRIFFIN. Now there are some other things in that statement or that interview report that I think you want to change.

Mr. SENATOR. I don't know. These don't look like my words. I don't say that some of these aren't factors, you know, but I don't see, I don't think

some of these are the direct words that come out of my mouth.

Mr. GRIFFIN. So that you understand, these are not supposed to be actually the direct words that come out of your mouth, but this is their report of what they recall your saying. Now if it changes the substance in some way, if they have used words that change the meaning in some way, or the approach that you had, I think it is important to bring that out.

Mr. SENATOR. Let me read this off to you. This is right after the next sentence. It says, "Thereafter he considers himself to be much closer to Ruby, but in this regard could not explain why he considered himself closer during the past 3 years." Now I don't even know what that means.

Mr. GRIFFIN. I understand it.

Mr. SENATOR. I don't understand it.

Mr. GRIFFIN. I understand it to mean that you felt that you were closer to Ruby but you couldn't explain to them why you were closer to Ruby.

Mr. SENATOR. Let me read this to myself again? This don't make sense to me. Maybe I don't understand what I am reading, what I have read to you. Do you want to go over it with me?

Mr. GRIFFIN. All right.

Mr. SENATOR. This part I read to you, start there, "Thereafter."

Mr. GRIFFIN. "Thereafter he considered himself to have been closer to Ruby, but in this regard could not explain why he considered himself closer during the past 3 years than the time before he knew Ruby."

In other words, they are saying that you couldn't explain why you felt closer to Ruby in this recent period.

Mr. SENATOR. If I had just moved in, how could I really feel that closer, just moving in? It doesn't necessarily mean being close to him. I mean, this I don't understand. What do they mean when they say—how can you just move in with somebody and say, say you are that close to him? You are there, that is true, but what do you mean by being close to him? If you had just gone in and had always known him casually——

Mr. GRIFFIN. Isn't part of the reason that you felt closer to him in recent years than you had long before is that you began to live with him in recent

years, and that automatically made you closer? You saw him more often.

Mr. SENATOR. Yes; but I mean the way this sort of states to me, unless I misinterpret it, like I just moved in and I am that close to him already, I am really like a buddy-buddy, you know.

Mr. GRIFFIN. No; there is no mention in here at this point in the FBI interview report of your having moved in with Ruby.

Mr. SENATOR. In so many words, though, doesn't it sound the same to you? "... than in the past 3 years".

Mr. GRIFFIN. Yes; but it doesn't mention that in the past 3 years you moved in and began living with him, whereas before then you hadn't lived with him. As I understand what you have been saying to us up to this point is that your closer relationship simply resulted from the fact that you began to see him every day, whereas before——

Mr. SENATOR. See the way I interpret this, the moment I moved in I was already close to him. Of course, I know that I am in the same place, but that is the way I am interpreting it.

Mr. GRIFFIN. Let's let it stand for the record, then, that you did not automatically feel closer to Jack Ruby at the time you moved in with him.

Mr. SENATOR. Yes.

Mr. GRIFFIN. Your moving in with him was not the result of having established a close relationship, but was a result of Jack's taking you in when you didn't have a place to live and didn't have any money. Is that it?

Mr. SENATOR. Yes; I mean the appreciation was there, I want you to know, of these things.

Mr. GRIFFIN. And how did Jack happen to learn that you needed a place to live and so he invited you in with him?

Mr. SENATOR. I identified myself that way.

Mr. GRIFFIN. In other words, you approached him and asked him if you could move in?

Mr. SENATOR. Yes; I don't remember just how it was, but I was not in good condition, I was hurting.

Mr. GRIFFIN. And had there been something about Jack before that that had indicated to you that Jack would be the kind of a guy who would respond like this?

Mr. SENATOR. Yes; because he has responded to other people like this, and after that, and I have seen it.

Mr. GRIFFIN. Had you heard before you moved in with Jack that Jack had taken in other people or done things for other people?

Mr. SENATOR. The example number one is the chap that I told you is deceased—I don't say this man was hurting, but he was still living in Jack's apartment for free.

Mr. GRIFFIN. Martin Gimpel?

Mr. SENATOR. Martin Gimpel. He was still living in Jack's apartment for free. I don't say he was hurting for money, which I don't know because I didn't know his business.

Mr. GRIFFIN. You knew that at the time you approached Jack? You knew Gimpel had been living with him?

Mr. SENATOR. I didn't know Gimpel that way, just from running across him.

Mr. GRIFFIN. But had anybody else suggested to you that Jack might be willing to take you in?

Mr. SENATOR. No, no; it was just one of those things that happened by chance. That is all. Of course, within me I didn't know what was going to happen, but he took me in. I have seen other instances like this chap Larry. Now he ran across him out at the fairgrounds.

I don't know what it was, but this kid here didn't have the right time. He was doing something out there. His apparel was nothing, and Jack bought him a suit. Of course, mind you, he put him in the club, let him sleep there, but he made him work, but he gave him a few bucks. He gave him a place to sleep. He put some clothes on his back.

And one time before he disappeared I even heard him mention once—Larry didn't have any front teeth, and I heard Jack mention once, "Larry, we'll have to do something about your teeth, to get you some front teeth."

This is a true fact. As tough as this guy was at times, he was soft too. He had a heart. Many a buck he shelled out to somebody to grab a bite.

Mr. GRIFFIN. You suggested you found this Ewing Street apartment.

Mr. SENATOR. The new place.

Mr. GRIFFIN. You made the decision——

Mr. SENATOR. Somebody told me to take a look at this new place going up. At the time I looked at it, this place wasn't even ready.

Mr. GRIFFIN. Did you suggest to Jack that he might also want to move in there?

Mr. SENATOR. I mentioned to Jack to take a look at it, see. This is before either one of us were living there. The thing was still in the working stages. It was coming round to completion, you know.

Mr. GRIFFIN. As we had discussed before, you moved in with Jack in the early part of 1962 and lived with him for about 5 months?

Mr. SENATOR. But not at this place.

Mr. GRIFFIN. No; at another place.

Mr. SENATOR. Yes.

Mr. GRIFFIN. And, of course, during that 5 months you began to know the man better.

Mr. SENATOR. Oh, sure.

Mr. GRIFFIN. You came closer to him, but you decided when you got a job you wanted to move out from him?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Now I am curious as to why you decided that you wanted to move out rather than decide that you would stay there and pay part of the rent.

Mr. SENATOR. Particularly one. I told you he didn't keep a very clean place, but should I classify myself to say a man who is unemployed, a beggar—beggars can't be choosers, that is an old saying, right?

Mr. GRIFFIN. Yes.

Mr. SENATOR. That is part of it. All right, I know the overall picture that Jack would rather live alone, see. I mean if somebody is out, something like me, if I needed a place, all right, he would keep me. But in the overall picture he would rather live alone.

And many a guy has slept at his place whether the Carousel or one of the apartments he may live in, and I don't know how many he has lived in previous to when I knew him where he may put up a guy for a night, 2, 3, 4, or 5, whatever it might be, and fed him, because he was tapped or something of that nature. He has done this many a time, and I would probably say even before I knew him, and I feel this probably could go back to the hardships of his youth, because he, as I understand it, he had a rough bringing up and growing up.

Mr. GRIFFIN. Did he talk about that to you?

Mr. SENATOR. He talked about some of it, but I never heard all of it come out in the courtroom. Of course, I never knew up until, you know, the recent times that his mother was in an institution or a crazy house, which I never knew. And, of course, I didn't know how drunk his father used to be, but I understand he was a habitual——

Mr. GRIFFIN. Did he talk about his father when you lived with him?

Mr. SENATOR. I think he had mentioned his father, but he had never mentioned his mother, never, which I never knew. Of course, this all come out after the shooting, you know, everything come out, was brought out either by the sisters or somebody. And I never knew about how the kids were all separated, things of that nature, when they were young. One was placed here, one was placed there, wherever they were placed. A lot of these things I never even knew.

Mr. GRIFFIN. So this conclusion that you are now drawing——

Mr. SENATOR. I would probably say this might be why he has done some of the things he did.

Mr. GRIFFIN. You are drawing this conclusion on the basis of what you have learned since he shot Oswald, and not on the basis of anything that you knew beforehand? In other words, these things you have been talking about, his father and his mother and the separation of the children, this you

first learned after he shot Oswald? You didn't know about that when you were living with him?

Mr. SENATOR. No; I didn't know about it. I heard him mention that he had tough days as a kid, but he never talked about them too much, very, very little. All these things, the majority of the things that come out, come out after the trial, I mean after the shooting. There, of course, I think his sisters come out with the majority of it and probably his brothers, when things had to be related and had to go back all these years.

Mr. GRIFFIN. Go ahead through there as you have, through that Exhibit 5401, and if there is anything else in there that you think should be changed or clarified—keep in mind what I am primarily concerned with is whether this report you are looking at is an accurate report of what was told to the FBI at that time.

Mr. SENATOR. Let me run through this one: "He added he occasionally when low on funds would be asked by Ruby to come and stay a day or two with him until he got back on his feet".

Of course, this is a comma, and then it continues, but I want to stop right there. Let me run through the whole thing. "He added he occasionally when low on funds would be asked by Ruby to come and stay a day or two with him until he got back on his feet, but he claims he actually never lived with him until about November 1, 1963, when he moved into the apartment of Ruby's, apartment 207, 223 South Ewing, Dallas, Tex."

Mr. GRIFFIN. Yes; well, that is inaccurate?

Mr. SENATOR. You know that.

Mr. GRIFFIN. Now, my only question to you is when the FBI interviewed you, and this is on November 24, did you omit to tell them that you had lived with Ruby on an earlier occasion?

Mr. SENATOR. To the best of my knowledge. I don't think I did omit that. I don't think I did.

Mr. GRIFFIN. I think the record is sufficiently clear.

Mr. SENATOR. Now, there are a lot of things I must tell you which I have told you before. I am not always sure of everything, you know. In other words, I have to use these words to let you know that I ain't lying.

Mr. GRIFFIN. I think the record will be clear from this deposition that you didn't live with him before November 1st of 1963.

Mr. SENATOR. Yes.

Mr. GRIFFIN. Now, unless that you are certain that you did tell the FBI about living with Ruby before November 1st, I would rather not change it on there, write it in there, but I would rather simply let the record show that we are making here, simply let it reflect that that is inaccurate.

Mr. SENATOR. Let me run back on this one again, part of this again:

"He added he occasionally when low on funds would be asked by Ruby to come and stay a day or two with him until he got back on his feet,".

This was never, because the first time I stayed with him was when I stayed at the club, and then moved with him, because I stayed with him 5 to 6 months, something like that. Of course, I don't know how you classify this, how important it is to you or not, because I don't know.

Mr. GRIFFIN. Were there occasions other than the time that you lived with him for 5 or 6 months that you did come and stay with him for a day or two?

Mr. SENATOR. No.

Mr. GRIFFIN. It never happened?

Mr. SENATOR. No; I was with him. I mean I wasn't in and out.

Mr. GRIFFIN. Now is it possible that you could have told them this in the anxiety and turmoil that you were under at the time this interview took place?

Mr. SENATOR. I could probably say that anything at that time, that day, could be possible. Maybe I feel it isn't, but let me say that I wasn't in the best of condition that day. I would say anybody that was in the nature that I was in, and I don't care who the individual was, would have been shaken up as well as I.

Mr. GRIFFIN. I think again here now the record will reflect, and I want to go through and point these out as you are doing, but I think the record again here will reflect what is accurate as to what has actually happened.

Let's let this thing stand, unless you are 100 percent sure that you didn't say that, let's let it stand on there as written. By "on there" I am referring to the Exhibit 5401.

Mr. SENATOR. Now here is a point:

"Shortly after Senator first met him, Ruby opened the Sovereign Club on the second floor of the building on the southeast corner of Field and Commerce in downtown Dallas."

Now this was before I got to him.

Mr. GRIFFIN. He was running the Sovereign Club before you met him?

Mr. SENATOR. He was in the Sovereign Club; yes. I don't know how long he was in there, but he was in there before I came that close to him.

Mr. GRIFFIN. But you had known Jack?

Mr. SENATOR. Oh, I have known him; yes.

Mr. GRIFFIN. Even when he ran the Silver Spur, didn't you?

Mr. SENATOR. No; I wasn't living in Dallas then. That is way before my time.

Mr. GRIFFIN. You knew him before he opened the Sovereign Club when he only had the Vegas?

Mr. SENATOR. Oh, sure. This is the Sovereign Club. Wait a minute. It says shortly after I first met him. My God, this don't go that far back, and I have known Ruby, unless he could have meant the Vegas Club, I don't know. Of course, I don't know how important this is to you either.

Mr. GRIFFIN. Again here I am glad you pointed this out. Here I think that this deposition will clear this up.

Mr. SENATOR. Now here is one that says I wasn't able to furnish the individual's name, but I know it now.

"Ruby had a partner in the operation of the Sovereign Club, but Senator was unable to furnish this individual's name."

But we have talked about that name today.

Mr. GRIFFIN. Joe Slayton.

Mr. SENATOR. Joe Slayton; yes, sir. Now I don't think I knew who it was then, who his partner was. "Senator can state only that he believes Ruby to be the sole owner and operator of the present Carousel Club."

Now there was a backer and I knew him well, but I didn't know the conditions.

Mr. GRIFFIN. Were you reluctant at the time you talked to the FBI to disclose this?

Mr. SENATOR. No. You mean to hold back on them?

Mr. GRIFFIN. Yes.

Mr. SENATOR. That is the way it sounds when you say that.

Mr. GRIFFIN. Yes.

Mr. SENATOR. No, no; I wasn't. As well as I knew him I didn't know the formality of what he had to the Carousel as many times as he came there. I didn't know what his status was in it. I knew there was a close—I mean he had a close relationship with Jack. He knew him well.

"Ruby actively managed the Carousel Club although he still as far as Senator knows owns the Vegas Club," which we know different now.

Mr. GRIFFIN. Do you want to go on to the next page?

Mr. SENATOR. I am through with that page.

Mr. GRIFFIN. Look at page 297 of this same report and tell us if there are any changes or modifications or corrections you want to make there.

Mr. SENATOR. What is I.E., the initials?

Mr. GRIFFIN. That means in explanation. The sentence you are referring to is,

"Senator was of the opinion Ruby, since he is Jewish, feels somewhat the same on things of this type as he (Senator) does, i.e., a Jew has no right to express opinions of any sort, especially when he is in business, since he has enough strikes against him just being a Jew."

In other words, this statement about a Jew having no right to express opinions of any sort is a belief that you have, and the FBI is saying you

believe that, and you think Ruby believes the same thing.

Mr. SENATOR. I don't believe I said that. I don't believe I ever said that. I know that Ruby is a sensitive man as far as when the word "Jew" comes up, you know, in something he don't like. He takes tremendous offense. No; I am not of the nature of Jack Ruby.

Mr. GRIFFIN. Then do you feel that a Jewish person has no business expressing political opinions, and so forth?

Mr. SENATOR. Oh, they certainly have a perfect right to express opinions as anybody else. I would probably say—let me say I think they are more careful. I can't speak for every individual, mind you.

Mr. GRIFFIN. Do you think that Jack felt that a Jewish person has no business expressing——

Mr. SENATOR. I don't know.

Mr. GRIFFIN. Opinions of any sort, especially when he is in business?

Mr. SENATOR. I don't know what he felt. All I know is that he gets pretty sensitive when somebody is knocking it, or jokes and things, things of that nature, he don't go for it nohow.

Mr. GRIFFIN. This language which we have been quoting arises in a paragraph that starts out:

"Ruby never expressed any special political preferences and never even discussed political matters."

Then it goes on to state this view, that "A Jew has no right to express opinions of any sort," the suggestion being that Ruby never discussed politics because he didn't think a Jew should discuss politics.

Mr. SENATOR. I don't know about that. Of course, I can't quote Ruby's words. I can't think for Ruby like I can't think for anybody else.

Mr. GRIFFIN. But you would say that now your present opinion is that you have no information about Ruby which would make you believe that he declined to be interested in political matters because of his Jewish background, that is, his Jewish background discouraged him or made him feel that he shouldn't have this kind of——

Mr. SENATOR. I couldn't even answer that because I don't even know. I don't even know. All I do know is I know that anybody comes out and calls him a God-damned Jew or something to that effect, he don't go for this nohow, he just don't go for it. He is sensitive that way.

Now somebody could say it to me and I would probably be able to laugh it off, whether I did or didn't like it, but I tell you Jack Ruby don't laugh these things off.

Mr. GRIFFIN. He is sensitive about being criticized because he is a Jew?

Mr. SENATOR. That is right.

Mr. GRIFFIN. But you don't feel, I take it, that there is necessarily any connection between his sensitivity to being a Jew and his apparent lack of interest in politics?

Mr. SENATOR. I don't believe so.

Mr. GRIFFIN. If now in discussing this situation in an atmosphere which I take it is a little bit more relaxed than it was on November 24th, if you were to offer a judgment as to why Jack Ruby didn't appear to be interested in politics, what would you suggest for the reason?

Mr. SENATOR. I have no answer for it, but all I can say is these things don't interest him. He was not interested in these things.

Mr. GRIFFIN. What is his primary interest?

Mr. SENATOR. Show business.

Mr. GRIFFIN. How about girls? How about sex? Is that an important interest to him?

Mr. SENATOR. It is as natural for him as it is for any other male human being.

Mr. GRIFFIN. Was this a matter, though—was sex something that he discussed as much as he discussed his business, for example?

Mr. SENATOR. No, no. I don't say—I don't say that he hasn't discussed it, but I will say that there isn't any male that hasn't discussed it.

Mr. GRIFFIN. Go ahead with that page 297 and point out any other paragraphs that you would change or correct.

Mr. SENATOR. In this next column here, the only thing is, "Ruby owned a revolver which Senator could describe only by saying it was black. This was kept at the Carousel Club, although occasionally Ruby would carry it back and forth between the club and his home because he usually carried a fairly large sum of money."

Now there is only one little point there I want to bring out, and this is the point I want to bring out:

"This was kept at the Carousel Club, although occasionally Ruby would carry it back and forth between the club and his home."

This was an everyday occurrence.

Mr. GRIFFIN. He carried it back and forth every day?

Mr. SENATOR. When he left the house to go to the club, bingo, that went with him. When he left the club to go home, that went with him.

Mr. GRIFFIN. Let me ask you this. Did he keep the gun in the apartment or did he keep it in his car?

Mr. SENATOR. He kept it in his apartment.

Mr. GRIFFIN. He kept it in the apartment?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Now would he keep it on his person or would he keep it in a moneybag?

Mr. SENATOR. It has been both ways. It all depends on how he is going home. I mean, no particular reason. He has kept it both ways.

Now, I can't quote how many times he has it in his pocket or in his moneybag, something like that, and I can't even quote, maybe occasionally he may have forgotten it and left it in the car. If he did leave it in the car it would be locked in the trunk.

Mr. GRIFFIN. Did he have the habit of taking the revolver out of the automobile when he got to the Carousel Club and carrying it up into the Carousel Club, or don't you remember?

Mr. SENATOR. Oh, he takes it up there, sure. He takes it upstairs. Now if he does it every day, you must understand that I am not watching every

move Jack Ruby made.

Mr. GRIFFIN. How many times did you see it?

Mr. SENATOR. I don't even know. I can't quote the times, but I would probably say the majority of times it probably went up, and then again it may have went up all the time. As I say, I am not watching, looking for a bag all the time.

Mr. GRIFFIN. Is it also possible he may have only taken it up occasionally to the club?

Mr. SENATOR. I would probably say the majority of the times it went up. If you are asking me to break it down, I can't break it down. First of all, I am not always with him when he is going to the club.

Mr. GRIFFIN. That is right. On the occasions that you saw him carry it up into the club did he carry it up in his pocket or did he carry it in a bag?

Mr. SENATOR. The times that I have seen him, I have seen him have it in the bag.

Mr. GRIFFIN. I would think that if he didn't have a holster it would be pretty cumbersome to carry that revolver around the club in his pocket.

Mr. SENATOR. I have never known him to have a holster. I have never seen one, never seen a holster on him, or what do you call these things, shoulder? I have never seen one.

Mr. GRIFFIN. Did you ever see a holster in his automobile?

Mr. SENATOR. No. I don't even know if he even had one. This is a part that I have had a lot of trouble with, with a lot of people.

Mr. GRIFFIN. What part is that?

Mr. SENATOR. This is the part—this is why I think they were probably looking at me as a fag or a queer: "Senator on some occasions would refer to Ruby as a boyfriend." And I have said that to many people.

Mr. GRIFFIN. Why did you happen to use that term?

Mr. SENATOR. It is a word I have used all my life, when I was even a kid. There was no particular reason. My boyfriends, some people may say "This is my acquaintance." It happens to be I have always used this word,

no particular reason. Maybe I would probably say it was a habit more than anything else.

Mr. GRIFFIN. Now let me ask you this: You stated to us unequivocally you are not a homosexual.

Mr. SENATOR. You can be assured, you can be assured. I will say that Georgie still loves women yet.

Mr. GRIFFIN. That is not necessarily inconsistent with being a homosexual, but I am not suggesting——

Mr. SENATOR. But you heard my words, though, my words they are direct believe me. And I don't intend changing it. I may not be that strong, but I don't intend changing them. Of course, age is a benefactor.

Mr. GRIFFIN. You are talking about your affection for women?

Mr. SENATOR. Yes; certainly. I still like the beauty of the female sex. Let me read the rest of this. Let me quote you something that Mr. Alexander had me at the first bond hearing—I can't help but think of it when I read this "boyfriend" and how many times that has been quoted. It has never been quoted me direct, but I have heard it hearsay, you know, things like that. At the bond hearing, the first bond hearing, Mr. Alexander said to me:

"You and Jack Ruby lived together?" And I said, "Yes."

He says, "How many bedrooms in the apartment you live in?"

I said, "Two."

He says, "What are the other rooms?"

I says, "There is a bathroom, kitchen, and a living room."

Then he come out with this live one, which I grasped right away. This is what I call it.

"Where do you keep the TV?"

I didn't particularly like it, but I was on the witness stand.

Mr. GRIFFIN. What did you say?

Mr. SENATOR. I said, "In the living room," where it is. But I caught the drift right away. And I wasn't happy about that because I couldn't open my

mouth because I was on the witness stand.

Page 298. You got the drift of that, didn't you?

Mr. GRIFFIN. Yes; very clear.

Mr. SENATOR. I can't quote the rest of it because he put it down there.

Mr. GRIFFIN. Go ahead, I am interested.

Mr. SENATOR. In other words, what this means is Jack Ruby and I are in bed together, probably holding hands, or whatever it might be, watching TV. Is that easy?

Mr. GRIFFIN. Yes.

Mr. SENATOR. Isn't that logical?

Mr. GRIFFIN. Yes.

Mr. SENATOR. And I was pretty disturbed over this. How does he base something like this?

Mr. GRIFFIN. I take it he didn't follow it up in any way?

Mr. SENATOR. Not the second time.

Mr. GRIFFIN. He didn't attempt to discredit your statement that it was kept in the living room?

Mr. SENATOR. No. And when he didn't bring that up at all on the witness stand——

Mr. GRIFFIN. At the trial?

Mr. SENATOR. At the trial. There is something here; I don't know what it means; the difference may be an hour or two, according to what time I came home that Friday night—he said between 9 and 10.

Mr. GRIFFIN. When do you think it was?

Mr. SENATOR. I would say between 10 and 11.

Mr. GRIFFIN. Let me ask you here: What did you do from the time you heard that the President had been shot on Friday until you came home at, say 10 o'clock? Did you work the rest of that day?

Mr. SENATOR. That was a black day; man, that was a sad day.

Mr. GRIFFIN. You were at Jack's?

Mr. SENATOR. That was a day I will tell you I don't think a living soul in Dallas had any ambition to work. You would have to see that town that day and the feeling of all the individuals in that town. It was really a sad, sad day. It was a weeping day. I'll tell you that is what it was; it was a weeping day for the city.

Mr. GRIFFIN. Did you go to the Burgundy Room? Where did you go from Jack's when you first heard this news?

Mr. SENATOR. I think I went downtown; did a little deskwork again. I am not sure.

Mr. GRIFFIN. Talk out loud and then we can correct it.

Mr. SENATOR. I am not sure what it was. I don't remember anymore. I think I went to the Burgundy Room. I think I just messed around downtown in the area. No particular place.

Mr. GRIFFIN. Would it be a place like the Burgundy Room, a tavern?

Mr. SENATOR. Probably so; probably so.

Mr. GRIFFIN. Do you remember any people you saw on Friday?

Mr. SENATOR. I can't recollect. It was a very sad day.

Mr. GRIFFIN. I think that is a day that is rather vivid to most of us. I know it is with me. I am just wondering if you can't think where you were that day, and who you talked to.

Mr. SENATOR. In all probability I probably spoke to many people downtown that day, or various places, wherever I may have been.

Mr. GRIFFIN. What other places are you accustomed to go to besides the Burgundy Room?

Mr. SENATOR. The Burgundy Room; there is another place I used to drop in, which is called the Smuggler, which is uptown. These are both places that I went to. Of course, the Burgundy Room is No. 1. The other place I do go just occasionally, I do go to the place occasionally.

Mr. GRIFFIN. When you say you were hanging around downtown, you were hanging around someplace where you could have a drink, a bite to eat,

or something of that sort?

Mr. SENATOR. I would probably say that.

Mr. GRIFFIN. And you wouldn't have been in a department store or a drugstore, someplace like that?

Mr. SENATOR. No; I don't think so. I mean I don't know. A department store; definitely I haven't been in there.

Mr. GRIFFIN. We are talking about someplace where you could get a drink, watch television, and watch the events on television. Did you spend all day watching the events on television?

Mr. SENATOR. No; I didn't. I think I was in the downtown area. I think I was in the downtown area most of that day, if I am not mistaken. I don't remember just where I was. I may have floated from downtown uptown. I don't know.

Mr. GRIFFIN. Do you think you had quite a bit to drink that day?

Mr. SENATOR. I will probably say I had maybe a fair amount. I mean, to be drunk or anything of that nature, I don't think I was drunk that day.

Mr. GRIFFIN. I take it you are pretty well able to hold your liquor, from what you said before. You feel that you are?

Mr. SENATOR. Oh, yes.

Mr. GRIFFIN. So that I wonder if——

Mr. SENATOR. In other words, I got to be careful when I'm driving because if you get nabbed by the Dallas cops, you are in trouble, but good trouble, and I don't want to get in that condition.

Mr. GRIFFIN. What I am wondering, from what you are saying here, if it isn't a fair impression to draw——

Mr. SENATOR. If it isn't what?

Mr. GRIFFIN. If I couldn't fairly infer that you had been drinking most of the time after you heard that the President was shot, although you don't feel that you had been drinking so much that you weren't in control of yourself.

Mr. SENATOR. Oh, I was in control of myself.

Mr. GRIFFIN. But you had been drinking fairly steadily from the time you heard the President was shot until you went home that night?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Would this have anything to do with your failure to recollect what you had done that day?

Mr. SENATOR. I don't think I was that tight; no. I just don't remember where I navigated that day.

Mr. GRIFFIN. Can you suggest again—and I keep throwing the same question back to you—can you think or suggest someone that you saw that day?

Mr. SENATOR. I don't know if I saw—I keep on bringing up this attorney all the while, Jim Martin. I don't know if I saw him, called him, or went to his office that day or not. I used to meet him before all this here was going on, you know, for cocktail hour before I went home, between 5 to 6, and went home, but I don't know if I met him that day or not.

Mr. GRIFFIN. Where did you have dinner that night?

Mr. SENATOR. I don't even think I had dinner that night.

Mr. GRIFFIN. Did you attempt to get in touch with Jack Ruby that night?

Mr. SENATOR. No.

Mr. GRIFFIN. Why was that?

Mr. SENATOR. No particular reason why. I just didn't; that is all. I didn't even look for him. There was no special reason. You see, I have never, if I am out, gotten on the telephone to see if he was home or what he was going to do or things of that nature. In other words, when I am out I am free.

Mr. GRIFFIN. Jack wasn't somebody that you did things with; is that fair to say?

Mr. SENATOR. No; I didn't do much with him; no.

Mr. GRIFFIN. And part of the reason was Jack didn't drink? Wasn't that probably part of it?

Mr. SENATOR. Jack don't like me drinking and Jack don't like to see me go into joints. All right. Now the Burgundy Room; I don't know if you have ever been there while you were down there.

Mr. GRIFFIN. No; I haven't.

Mr. SENATOR. It is a nice place. It gets fine transient trade and local people, and it is one of the nicest places, I feel as an open bar that you can go to.

Mr. GRIFFIN. Does Jack somehow have the idea that you drink too much?

Mr. SENATOR. Not exactly drink too much. You know I can drink one beer and he will say, "You are drunk, aren't you?" He will pull this on me. He has pulled it many a time on me.

Mr. GRIFFIN. Does he feel that way about other people?

Mr. SENATOR. I don't know. I don't know about other people. But he didn't like me drinking. He said it to me many a time.

Mr. GRIFFIN. Why did you put up with a guy who criticized your personal habits as much as Jack appears to have done?

Mr. SENATOR. In all reality, it didn't bother me. I didn't care what he said.

Mr. GRIFFIN. He sort of treated you like you were his son?

Mr. SENATOR. Oh, no; no. He just didn't like to have me drink; that is all. He felt I was wasting—believe it or not, here is a man with a club who felt I was throwing my money away, and he felt that I couldn't afford to be throwing my money away.

Mr. GRIFFIN. He took some sort of a brotherly or fatherly interest in you, or was this just Jack's desire to dominate people?

Mr. SENATOR. Dominate? I don't know if "dominate" would be the word. But as a friend he liked me; I will put it that way. He liked me as a friend.

Mr. GRIFFIN. Is that because of anything you had done for him?

Mr. SENATOR. Well, you know, I did a lot of things for him, and, of course, he has done things for me, you know. When I was down and out he helped me out.

Mr. GRIFFIN. You showed him a certain amount of loyalty and confidence.

Mr. SENATOR. Yes; you see, I don't argue back with him. I don't know if he likes this or not, you know. I don't want to argue with him. So I "Yes" him to get the argument over with, because when he hollers at me he hollers from the rooftops. But when you hear enough of it, it didn't bother me. It may have bothered a lot of people, but it didn't bother me because with me I knew there was no harm that would be done. But the shrill of his voice, you know he was around. You could hear it.

Mr. GRIFFIN. OK; let's go on there on page 298 from where we were.

Mr. SENATOR. It says, "Ruby and Senator arose on November 24, and Senator noticed Ruby had brought one of four dogs which he ordinarily keeps at the Carousel home with him." He brings this same dog home every night. And when it says, "Ruby and Senator arose," it is like we woke up at the same time. That is not so.

Mr. GRIFFIN. This refers to Sunday morning, November 24; is that right?

Mr. SENATOR. Yes.

Mr. GRIFFIN. And the correct statement of this would be that——

Mr. SENATOR. I woke up before he did.

Mr. GRIFFIN. You woke up before he did, and that Jack always keeps Sheba——

Mr. SENATOR. Always brings Sheba home every night.

Mr. GRIFFIN. Is it customary also for him to take Sheba down to the club every day?

Mr. SENATOR. Both forth and back, forth and back.

Mr. GRIFFIN. Is Sheba with him wherever he goes?

Mr. SENATOR. Yes; the dog is always with him. This was his pet. This was his favorite of a few dogs that he had.

Mr. GRIFFIN. OK; I think the record is clear enough on that; that we don't have to make any entry on the page.

Mr. SENATOR. Of course, the other is what we discussed before about the signs that you have on this page.

Mr. GRIFFIN. There is nothing in there about the signs, is there?

Mr. SENATOR. None. Elmer Moore has the one about the signs. This is page 299. I forgot to tell you. I went to this restaurant, it says, to eat. I just had that coffee. The morning when I went down to eat on Main Street, it says I went down to eat. I only had coffee. "He estimated as he arrived there at approximately 11:30 and as he walked in the door he overheard one of the waitresses saying Oswald has been shot." This is not so.

Mr. GRIFFIN. This was after you sat down?

Mr. SENATOR. I had been sitting already.

Mr. GRIFFIN. Is that on page 300 or page 299?

Mr. SENATOR. 299. Now he got this twisted.

Mr. GRIFFIN. Would you read the part that is twisted.

Mr. SENATOR. Yes. "Shortly thereafter the waitress told Senator that Oswald had been shot by a local tavern operator, and a short while after that he learned the name of this individual to be Jack Ruby. He said he was dumfounded, and did not know what to do, but after a short while he went to the telephone and called Jim Martin on Gladiola Street, Dallas, as an attorney whom he knew." We went through that. Do you want to go through that again?

Mr. GRIFFIN. Well, I want to know if you say now, of course, that that is not what happened. Now, what did you tell the agent? Could you have told the agent that?

Mr. SENATOR. No; when the waitress said that she heard Oswald had been shot, I called Jim Martin, but nobody knew who. The daughter answered the phone and said her daddy was in church, and that he would be home in a short while.

Mr. GRIFFIN. It is your recollection that when you called Jim Martin, you couldn't get ahold of him, but you talked to his daughter.

Mr. SENATOR. Yes.

Mr. GRIFFIN. How old is his daughter?

Mr. SENATOR. He had three of them, and I don't remember which one answered. Of course, one is too young. I don't know which one he went to church with. One is 15 or 16 and the other is, I think, 10 or 11.

Mr. GRIFFIN. And is there one even younger than 10 or 11?

Mr. SENATOR. Well, an infant. Maybe she is 2 or 3 years old; something like that.

Mr. GRIFFIN. Did you tell the daughter who you were; who was calling? Did you leave word?

Mr. SENATOR. I am not sure if I told her to tell her daddy that George called. I am not sure if I did or not. I don't want to say I did and I don't want to say I didn't, because I don't remember. No; I didn't leave right after that. I still had a cup of coffee yet. It says I left right after this call.

Mr. GRIFFIN. This is incorrect; is that what you are saying?

Mr. SENATOR. "He said this attorney was not at home, so he got into his car and drove to the attorney's house to wait for his return." This I did not do. What I did was I still sat there and I had two cups of coffee, when this girl hollered out again, "the Carousel, Jack Ruby," which words were sort of mispronounced the way she said it; this is when I went. Of course, I sat there for a little bit, not knowing what the hell to do. This was stunning. I sort of froze right to the seat when I heard that. Page 300. I read too slow, don't I?

Mr. GRIFFIN. That is all right. Go ahead.

Mr. SENATOR. Let me run this through. I don't catch the last part of this: "He never heard Ruby say Oswald had ever visited either one of the clubs in which Ruby was interested." Does that mean, in other words, the clubs that Jack owned?

Mr. GRIFFIN. That is right.

Mr. SENATOR. All right; OK.

Mr. GRIFFIN. Let me ask you a few questions. You have had a chance to read that all over. Now on page 298 the FBI reports you in this fashion:

“Senator has no accurate idea as to where Ruby had been all day.” That refers to Friday.

Mr. SENATOR. November 24.

Mr. GRIFFIN. November 22.

Mr. SENATOR. Twenty-second; yes.

Mr. GRIFFIN. “But does know that, because of the shooting of the President, Ruby has had many businessmen in Dallas close his business. Senator has some recollection Ruby said he had been at his sister’s home for awhile.” Is it fair then to draw the conclusion from that statement that, when you talked with the FBI on November 24, you did know what Ruby had done on Friday night, on Friday other than that he had closed his business, and that he had been at his sister’s?

Mr. SENATOR. Yes. He went to the police station with sandwiches, I heard.

Mr. GRIFFIN. But, you see, you told the FBI on November 24, when this presumably was as fresh in your mind as it is ever going to be, that you had no accurate idea where Ruby had been all day, and the only things that you could remember were that he closed his business and he had some recollection that he had been at his sister’s home for awhile. You didn’t mention, I take it, to the FBI on the 24th——

Mr. SENATOR. As a matter of fact, I probably forgot to mention it now, come to think of it, the synagogue and things like that.

Mr. GRIFFIN. You didn’t mention the synagogue. You didn’t mention that he had been to the police station. You didn’t mention——

Mr. SENATOR. You must understand, like I told you before, you know, when a man is in a shaken-up condition, it is true that you might say that this should be fresh in my mind, but when a man is in a shaken condition and nervous—and you can’t help but be nervous—so I may have slipped up

on some of the things that I probably couldn't think of momentarily when he was questioning me.

Mr. GRIFFIN. Is it possible that the fact is that on the 24th you really didn't know, that it was sometime after the 24th that you learned that Jack had been to the police station with sandwiches, and that he had been to the synagogue, that Jack didn't even tell you this on Friday or Saturday?

Mr. SENATOR. I didn't see him Friday.

Mr. GRIFFIN. Saturday morning, that he didn't tell you Saturday morning that he had been to those places? Is it possible that Jack never told you that?

Mr. SENATOR. No, no; he did tell me that. How else would I know? How else would I have known that?

Mr. GRIFFIN. You might have learned it since November 24, by talking with somebody or reading something.

Mr. SENATOR. Why would I want—let me ask you this—why would I want to leave out that he went to the police station—if I were able to think of it—or bringing sandwiches? Why would I want to leave out that he went to the synagogue?

Mr. GRIFFIN. That is why I am suggesting that you didn't know that on the 24th, that it wasn't until later.

Mr. SENATOR. I didn't know it on the 24th. I didn't know it. I didn't see him. I didn't know it.

Mr. GRIFFIN. All right, on November 24, up until the time you were interviewed by the FBI on November 24, you did not know that Jack had been to the police station, and you did not know that he had been to the synagogue.

Mr. SENATOR. Oh, yes; I did.

Mr. GRIFFIN. You learned about that sometime after the 24th.

Mr. SENATOR. No; I think I learned it before that.

Mr. GRIFFIN. See; what I am suggesting is that if you did learn it before the 24th, this would have been something you would have remembered.

Mr. SENATOR. You asked what makes something slip a man's mind.

Mr. GRIFFIN. Wouldn't you be more likely to remember he had been to the police station than he had been to visit his sister? If a man had told you on Saturday morning right after the President had been shot that he had been to the police station, and had said anything about what he had done there, wouldn't that have been something that you would have remembered as being important? You would have been curious, wouldn't you? You would have asked the man "What did you see down at the police station? Who did you talk to down there?" After all, that was right down there where Oswald was, and where the investigation was going on.

Mr. SENATOR. It is befuddling. I still think it was Saturday. There is an incident I just happened to think of.

Mr. GRIFFIN. All right.

Mr. SENATOR. After he had woken me up on Saturday morning, there was a bunch of sandwiches still wrapped that hadn't been distributed, and—I don't know—I had no idea how many he bought or how many he had made, but he still come home with maybe 6, 8, 10, or 12 of those sandwiches.

Mr. GRIFFIN. What kind of sandwiches were they?

Mr. SENATOR. I think they were corn beef and pastrami on rye, if I remember right, on rye bread. This I do remember, and they were still on the kitchen table, and as a matter of fact they were in two bags, if I remember right. They were in two bags. I think he had some cake too, that he bought in the delicatessen.

Mr. GRIFFIN. You saw that Saturday morning when you got up?

Mr. SENATOR. Yes.

Mr. GRIFFIN. Does that recall anything further to your mind?

Mr. SENATOR. No; now this here I never even told anybody. I never even told this to anybody. This is the first time that I have ever exposed this. It don't matter who is questioning me, this is the first time. Now why didn't I think of this?

Mr. GRIFFIN. This is not so extraordinary.

Mr. SENATOR. No; you may say it is trivial or it may be trivial to me.

Mr. GRIFFIN. That is the kind of a thing that you might forget and that is also the kind of thing that as you look back from this period of time——

Mr. SENATOR. I have been trying to think as much as I could. Now I gather I can remember this part, this one here.

Mr. GRIFFIN. Do you remember any discussion with Jack about those sandwiches?

Mr. SENATOR. Yes; he had been to the police station and he had passed out a lot to various policemen or plainclothesmen. I don't know who. I don't know who he passed them out to.

But it seems like I gather that he must have had an awful lot of these made, or whatever it might have been. He must have had a slew of them made. Now why I did it I don't know.

Mr. GRIFFIN. Is this possible, that all you would have learned from him, you asked him "Where did you get these sandwiches" and he said "I got them for the men at the police station but they didn't eat them"? Could that have been the conversation?

Mr. SENATOR. No; he passed out some; I know. He said he had passed out some sandwiches. As a matter of fact he even took some to his sister.

Mr. GRIFFIN. He took some sandwiches to his sister? When did he take the sandwiches to his sister?

Mr. SENATOR. That was sometime Friday.

Mr. GRIFFIN. Where did you learn that?

Mr. SENATOR. From Jack.

Mr. GRIFFIN. I suggest again——

Mr. SENATOR. I didn't see his sister.

Mr. GRIFFIN. I suggest again that if Jack had told you that he actually got into the police station and distributed those sandwiches to policemen in the police station, it would have occurred to you to ask, well, you know, what was going on in the investigation.

Mr. SENATOR. I didn't ask him what was going on. As a matter of fact, I don't even know what part of the police station he was in, or any locale of the police station he was in.

Mr. GRIFFIN. Did he tell you anything about seeing anybody?

Mr. SENATOR. He mentioned that he had gone to the police station and gave out sandwiches. That is all I knew about it.

Mr. GRIFFIN. Did he mention seeing anybody else except policemen at the police station?

Mr. SENATOR. I think he had a glance at Oswald in one of the rooms, or something like that, as he was going by or something of that nature. I am not sure of this.

Mr. GRIFFIN. But you don't know whether you knew that on the 24th or not, do you, or whether this is something you read later on?

Mr. SENATOR. I don't remember. I just don't remember. I can't say "Yes" or say "No," or what rooms he was in. I don't know just where he went at the police station.

Mr. GRIFFIN. Whatever happened to all those sandwiches? Did you eat them up?

Mr. SENATOR. Well, if I didn't eat but one or two I would be a fool, wouldn't I? I mean look, I like corn beef and pastrami. I mean the windup was when he got around to home, he didn't have that many left already.

Mr. GRIFFIN. How many did you see in those paper bags? You said you saw 8 or 10 in the paper bags.

Mr. SENATOR. Yes; but I can't eat 8 or 10 sandwiches.

Mr. GRIFFIN. Let's take a break.

(Short recess taken.)

Mr. GRIFFIN. Let me now state for the record that we had a short break here for refreshments, and Mr. Senator has had an opportunity to read a document which is known as Exhibit 5402, which I had previously marked, and in reviewing the documents which I have marked today, I find that I have dated them April 23, 1964, when a look at the calendar tells me that

the correct date is April 22, 1964, and I have inked over the date so that it now reads April 22, 1964, on Exhibits 5400, 5401, 5402, and I have marked a further "Exhibit 5403," which exhibit is a copy of an FBI report prepared by Mr. Rawlings and Mr. Glonek, of an interview that they had with Mr. Senator on December 19, 1963.

Now Mr. Senator, you have had an opportunity in this break period to read over Exhibit 5402, which is a copy of a report prepared by Secret Service Agent Elmer W. Moore which he had with you on December 3, 1963. Have you had an opportunity to read that exhibit through?

Mr. SENATOR. Yes.

Mr. GRIFFIN. I ask you as we did with the previous exhibit to indicate if there are any changes or corrections or clarifications that you would want to make in Mr. Moore's report, and I specifically point out again that what I am directing my attention to here is whether Mr. Moore's report is an accurate report of what you told him on that day. I might also reiterate as we have at the beginning of every session which has been resumed here that, of course, we are taking this under the same procedures and formalities that we have had since the beginning here, and that the oath which you took on Tuesday morning is still in effect.

Mr. SENATOR. Now on this here, of course, this goes back many, many years. This is just the location that is a location and not a name of a person.

Mr. GRIFFIN. Point out what it is.

Mr. SENATOR. "About 1934 he returned to Gloversville and left there with neighbors, the Sebring family to go to Florida." Now, Sebring, it is a city, not people.

Mr. GRIFFIN. You didn't leave with the Sebring family?

Mr. SENATOR. No.

Mr. GRIFFIN. You left to go to Sebring, Fla.?

Mr. SENATOR. Went to Sebring, Fla.

Mr. GRIFFIN. Who did you go to Sebring, Fla. with?

Mr. SENATOR. The name was Eggens.

Mr. GRIFFIN. They were neighbors from Gloversville?

Mr. SENATOR. Yes; they were neighbors from Gloversville. They lived for many, many years in Lake Placid, N.Y., and I went with them and, of course, today their whereabouts—I know the mother is deceased—and where they are I don't know. I haven't seen them in a zillion years.

“On August 21, 1941, he entered the Army Air Force and was assigned serial number 12006042.” I probably should comment is off there. It doesn't really make any difference. “He served mainly as an aerial armorer with the Fifth Bomber Command 33d Group in Australia and Pacific Theater during World War Second.”

There is a correction on that. I was with the 22d Bomber Group 33d Bomb Squadron. That is the only correction on that, if you want that.

Mr. GRIFFIN. Yes; that is fine because we are happy to have that. In fact why don't you take your pen and make that correction right on the piece of paper?

Mr. SENATOR. How can I get it on there, they are so close together.

Mr. GRIFFIN. Cross out something and write it in.

Mr. SENATOR. To go through this whole thing I would have to say I was with the Fifth Air Force, Fifth Bomber Command. Well, the Fifth Bomber Command is there. Do you want Fifth Air Force?

Mr. GRIFFIN. Is there something that is inaccurate in there?

Mr. SENATOR. The only thing is I was with the 22d Bomb Group, 33d Bomb Squadron.

Mr. GRIFFIN. So what you want to do is write out in the margin.

Mr. SENATOR. Do you want me to cross this out?

Mr. GRIFFIN. Why don't you just change the 33d Group to 33d Squadron. Change group to squadron, and then add what the bomber group was.

Mr. SENATOR. 22d Bomber Group.

Mr. GRIFFIN. Yes; with a little caret or asterisk being there to indicate where you want it to go.

Mr. SENATOR. I don't know how important it is, if you want the Fifth Air Force before or we can eliminate it.

Mr. GRIFFIN. In order to identify that group that you were in——

Mr. SENATOR. In other words, it relates this way. You start off Fifth Air Force, Fifth Bomber Command, if you want this whole thing, 22d Bomb Group when I was with the 33d Bomb Squadron if you want that.

Mr. GRIFFIN. Write Fifth Air Force in.

Mr. SENATOR. Do you want that?

Mr. GRIFFIN. Sure.

Mr. SENATOR. I don't know where to put it. Do you want me to put it on top here?

Mr. GRIFFIN. Sure.

Mr. SENATOR. Fifth Air Force comes first.

Mr. GRIFFIN. So we have edited this to read "He served mainly as an aerial armorer with the Fifth Air Force, Fifth Bomber Command, 22d Bomb Group, 33d Squadron in Australia and Pacific Theater during World War II." Why don't you initial and date the changes?

Mr. SENATOR. Is one sufficient for the whole?

Mr. GRIFFIN. Put a set of initials and date by each one and remember it is April 22.

Mr. SENATOR. I think there is one I put on the 23d come to think of it somewhere on something.

Mr. GRIFFIN. We will try to find that. I think you did make that change. You didn't date the previous change made on Exhibit 5401.

Mr. SENATOR. I am writing 4-23 here. It is 4-22. Can I put in here and say "He was honorably discharged" or just "discharged satisfactory."

Mr. GRIFFIN. Go ahead, if you want to clarify it to say honorably discharged.

Mr. SENATOR. There is a difference.

Mr. GRIFFIN. Yes; there is and I can understand why you would want that in there. Now you have made some other changes on here I notice. You have added on page 2 of Agent Moore's report in the first sentence the word "Honorably" so that that sentence reads "He was honorably."

Mr. SENATOR. I should say honorably discharged.

Mr. GRIFFIN. Honorably discharged as a staff sergeant on September 9, 1945. In the first full paragraph on this page, the last sentence you have changed the spelling of the name Wexler from W-e-x-l-e-r to W-e-c-h-s-l-e-r, and that is the name of the man to whom your former wife is now married.

Mr. SENATOR. I am the one who gave him that other spelling because I didn't spell it right.

Mr. GRIFFIN. In the second paragraph on that same page, the last sentence, you have added the words "Texas Postcards and Novelty, Dallas, Texas" before the words "Dexter Press, West Nyack, New York" so that that sentence reads: "He is presently a salesman of colored postcards for Texas Postcard and Novelty, Dallas, Texas, Dexter Press, West Nyack, New York." Now let me ask you this. Are the Texas Postcard and Novelty Company and Dexter Press——

Mr. SENATOR. Excuse me, they make the cards, they print the cards.

Mr. GRIFFIN. So what you really do is you sell these cards for Dexter Postcard?

Mr. SENATOR. No: I don't sell them for Dexter.

Mr. GRIFFIN. You sell them for Texas Postcard and Novelty?

Mr. SENATOR. Yes.

Mr. GRIFFIN. From Dexter Press?

Mr. SENATOR. Dexter are the ones who make prints.

Mr. GRIFFIN. Let me add the word "from." I have added the word "from." I will hand you back Mr. Moore's report. Why don't you continue on through it and read whatever it is that you think should be changed and then we will make the changes.

Mr. SENATOR. This “He made business calls and stopped for lunch at a place called Jacques,” now shall I put in front of lunch——

Mr. GRIFFIN. It is understood you didn’t have anything to eat but had something to drink. A cocktail or something?

Mr. SENATOR. I think I had two bottles of beer. Do you want that changed?

Mr. GRIFFIN. Why don’t you cross out “lunch” and say “two bottles of beer.”

Mr. SENATOR. Now maybe I said I had lunch. I don’t even remember. I ain’t going to question this. You know that I just changed that.

Mr. GRIFFIN. You changed lunch to what? What did you write, two bottles of beer?

Mr. SENATOR. “Two beers.” Just a misspelling of a street here. Do you want that corrected?

Mr. GRIFFIN. Yes; if you would.

Mr. SENATOR. With the same category as the beer place, the name of the street.

Mr. GRIFFIN. Yes, correct the spelling. What is the name? You have changed the word Carol Street on page 3 from C-a-r-o-l to C-a-r-r-o-l-l. That is fine.

Mr. SENATOR. Do you want that initialed?

Mr. GRIFFIN. Yes; if you would please.

Mr. SENATOR. “He returned to the apartment and went to bed approximately 10:30 p.m. He does not recall seeing Ruby again that day.” It is not recall seeing him, I didn’t see him.

Mr. GRIFFIN. Why don’t you change recall to didn’t.

Mr. SENATOR. Now I stated here for the point of information before that “Jack told him” which is me “that he had been at his sister Eva’s place,” said that he had bought food for her.” In other words, when he bought all this stuff there he bought her some too.

Mr. GRIFFIN. In other words, it was your understanding when you talked with Agent Moore that Jack had bought the sandwiches and so forth before he went to Eva Grant's house on Friday night?

Mr. SENATOR. Yes; now let me ask you this. When I am talking to them, are they taking this word by word or what? Do you know? I don't even know myself.

Mr. GRIFFIN. It depends. Of course I wasn't at this interview.

Mr. SENATOR. I know that. This is why I asked you.

Mr. GRIFFIN. They are obviously not taking it down word for word as our court stenographer is here.

Mr. SENATOR. I know they do it in longhand which is tough. It is not easy.

Mr. GRIFFIN. He is taking notes which hopefully are going to be accurate. After all, these men are highly trained people.

Mr. SENATOR. I am certain they are.

Mr. GRIFFIN. They are trained to take notes.

Mr. SENATOR. I am certain they are.

Mr. GRIFFIN. And to do it as accurately as they can. But there are mistakes that crop up.

Mr. SENATOR. Who isn't fallible somewhere or another. I think there is a misinterpretation of this word that "he had bought food for her." Brought food for her.

Mr. GRIFFIN. Would it make any difference?

Mr. SENATOR. Not in all reality, I don't know, because when he bought all this food, if you asked me how much he bought I don't know but apparently, I have been under the impression that he bought quite a bit of things, because if he took food over to the police station, he couldn't go there with six or seven sandwiches I know if he was working of that nature, to bring food over there. So I assumed there must have been many, many sandwiches and pastries of some nature that he had brought over there.

Mr. GRIFFIN. I am interested, Mr. Senator, in this. That even in this interview with Mr. Moore on the 3d of December you don't make any reference about Jack telling you that he went to the police station.

Mr. SENATOR. Maybe I forgot that.

Mr. GRIFFIN. And that is why I ask you again if it is not possible—now this interview was not under the same kind of pressure?

Mr. SENATOR. No; that is right. You are right on that. All I can say is maybe it is just a thing that slipped my mind.

Mr. GRIFFIN. Or is it possible that in fact all you remembered was that Jack had said that he bought food for Eva, and that he hadn't mentioned anything about going to the police station?

Mr. SENATOR. No; this is the same time when he bought all this stuff, when he bought these bags. Mind you, when I mentioned about these bags, this is the first time that I have even thought about this to anybody that I spoke to, see.

Mr. GRIFFIN. Now keep in mind the distinction between what Jack——

Mr. SENATOR. Even though this thing slipped my mind all the way through completely.

Mr. GRIFFIN. Yes; but try to focus on this distinction, the difference between what Jack told you on Friday night or Saturday morning, and what you later learned some time afterward. I ask you if it isn't possible that you learned about Jack's going to the police station after you talked with Agent Moore, and that that is the reason that you didn't tell this to the police and you didn't tell it to the FBI and you didn't tell it to Agent Moore, because you knew about the sandwiches when you talked with Moore, and when you talked with the FBI, and you knew about going to Eva's, but at that point you didn't know of any connection between the sandwiches and the police station.

Mr. SENATOR. The only way that I can really express this, it could be a probability and then it couldn't, in other words, I can't answer the question truthfully and be sure. I say I am not sure. What else could I say on that?

Mr. GRIFFIN. All right, this is what we are trying to get at.

Mr. SENATOR. I still ain't sure if I did or didn't mind you.

Mr. GRIFFIN. Because the thing that I want to explore here is whether——

Mr. SENATOR. But I knew about the sandwiches the next day because I saw them.

Mr. GRIFFIN. You knew about the sandwiches, right?

Mr. SENATOR. Yes.

Mr. GRIFFIN. But the thing I am trying to direct your attention at is whether you knew about Jack's visit to the police station and I am suggesting to you that if you had known on the 23d or the 24th about Jack's visit to the police station, you would have had some further conversation with Jack. If Jack had said, or if I had said to you, "George, I just was down to the police station and I took some sandwiches down there" on this particular day, why you would have said to me, "Did you see Oswald? What was going on? What kind of investigation?" That visit to the police station would have been a more important thing than the sandwiches. So that if Jack really told you this on Saturday, the 23d, I am suggesting that there might be some further conversation that you and he had, because you would ask him questions about what he saw, out of curiosity, and you don't seem to recall any such conversation.

Mr. SENATOR. It is not fresh in my mind right now. I am inclined to think that he did, but if I had to say 100 percent I really can't answer you now. I just don't remember now. I was sort of under the impression that I was told. It is hazy in my mind. I can't say yes or no. I am not going to say no and I am not going to say yes that he did or didn't.

Mr. GRIFFIN. You don't have any clear recollection?

Mr. SENATOR. No.

Mr. GRIFFIN. Of any conversation about his being down at the police station?

Mr. SENATOR. No; I don't remember, so in other words this is a thing I would have to leave in question. Here is a question that I am not even sure of. "Senator said that Ruby was very hot about this article and commented

that Weissman did not spell his name as a Jew but if he were a Jew he should be ashamed of himself.”

Mr. GRIFFIN. What is your feeling about that now.

Mr. SENATOR. I don't ever remember telling him that. Now I don't say that I did or didn't, but I don't know why I had the reason to say that he didn't spell his name as a Jew. Wait a minute “that he did not spell his name as a Jew” I just can't figure why I would say that because Bernard Weissman to me sounds Jewish no matter how I look at the name. This is the part I don't understand on this.

Mr. GRIFFIN. Is it your recollection that Jack was hot under the collar about this ad?

Mr. SENATOR. Oh, yes; oh, yes. This I remember he was.

Mr. GRIFFIN. You found that ad independently of Jack as I understand it.

Mr. SENATOR. I found that ad Thursday night when I bought the paper.

Mr. GRIFFIN. Thursday before the President arrived?

Mr. SENATOR. Or was it Friday? Thursday or Friday. I don't know.

Mr. GRIFFIN. Something makes you think it was Thursday night?

Mr. SENATOR. Maybe, I don't know.

Mr. GRIFFIN. What is that that makes you think that?

Mr. SENATOR. Wait a minute. I may have bought this paper Thursday night because it come out in the paper the day the President arrived when I read it. Or did it come out Friday? I don't remember. Was it Friday?

Mr. GRIFFIN. Of course, I don't know.

Mr. SENATOR. It was a Friday's paper.

Mr. GRIFFIN. And the Friday morning news hits the newsstands on Thursday night, does it not?

Mr. SENATOR. That is right.

Mr. GRIFFIN. Now are you in the habit of picking up a morning newspaper the night before?

Mr. SENATOR. It all depends the hour. If I am out at that hour and if the paper is out at that hour.

Mr. GRIFFIN. Do you recall what you did the night before the President came to Dallas?

Mr. SENATOR. No; I don't know what I did Thursday at all. I don't know what I did. Now there is a little twist in the thing right now. After we saw the paper and the poster, he has just got this twisted around.

Mr. GRIFFIN. Read what he has and then let's talk about it.

Mr. SENATOR. "They went to the Southland Hotel Coffee Shop and had coffee, Ruby drinking grapefruit juice. While there Ruby reread the ad and made comments about it. They left the coffee shop and went to the main Dallas post office on Ervay where Ruby rang the night bell." Then it continues, but the thing is this is reversed.

Mr. GRIFFIN. What you are saying is that you went to the post office before you had coffee?

Mr. SENATOR. Yes. This is reversed. Now does the reversal mean anything?

Mr. GRIFFIN. Yes.

Mr. SENATOR. There is a bunch that you have to reverse in this.

Mr. GRIFFIN. Let's get it straight then as to what actually happened there.

Mr. SENATOR. You want to reread it from here? It sounds all right except the reversal.

Mr. GRIFFIN. You read everything that is wrong, everything that is reversed and so forth and then we will try to put it in proper order.

Mr. SENATOR. The only thing I can do is read the reversal and leave the other as it is. In other words, when he is doing this he would have to say this was first and the other was last. I don't know how to do it.

Mr. GRIFFIN. You read the text that is improper.

Mr. SENATOR. In other words, take these down in a line, is that what you mean?

Mr. GRIFFIN. From the point that it gets out of order.

Mr. SENATOR. What I just read where it was out of order?

Mr. GRIFFIN. The only two things out of order, let me understand this, are that you went to the post office before you went to the Southland Hotel?

Mr. SENATOR. Yes.

Mr. GRIFFIN. And so the discussion you had at the Southland Hotel about the Weissman ad occurred after you saw the Earl Warren sign and after you went to the post office?

Mr. SENATOR. That is right. Now do you want some change in here?

Mr. GRIFFIN. No; I think that is clear.

Mr. SENATOR. Let me finish the balance of this. That whole complete thing is right now.

Mr. GRIFFIN. We have corrected it on the record?

Mr. SENATOR. Yes. When he is quoting about a certain time, if it is an hour off or a half hour off, is there any difference?

Mr. GRIFFIN. Well, if you have——

Mr. SENATOR. He says about which is all right. He has got a time there.

Mr. GRIFFIN. Do you think your recollection now is more accurate.

Mr. SENATOR. No, no. All I want to know when it says about. In other words, that means approximately a certain time, in that area, is that right?

Mr. GRIFFIN. That is right.

Mr. SENATOR. That is all. Let me ask you on something like this. Maybe I ain't reading this correct. "He said the fact that Ruby had the dog Sheba to which he was very attached in the car when he went to the police station alone would indicate that he intended to return soon."

Mr. GRIFFIN. Yes. What is unclear about that?

Mr. SENATOR. It sounds like I was telling him that he went to the police station. This is the way it sounds to me.

Mr. GRIFFIN. No; it sounds to me like you are saying to Agent Moore that because Jack had Sheba with him down there at the police station, you draw the conclusion that Jack just went down there on a casual basis and intended to come back.

Mr. SENATOR. All I know is that when he left the house he had Sheba with him. That I know.

Mr. GRIFFIN. Now do you draw any particular significance about his having Sheba with him? Does the fact that he had Sheba with him suggest something to you about Jack planning to kill Oswald and not planning——
Mr. SENATOR. I'll tell you how this sounds to me like unless I'm not reading it. It sounds like I told him that when Jack went to the police office he had Sheba with him. That is the way it sounds to me.

Mr. GRIFFIN. No; what Agent Moore, I think, is suggesting, at least the way I read it——

Mr. SENATOR. You read it. Start with "He said."

Mr. GRIFFIN. All right, let's read the sentence before that.

"Senator said there were several things that may not have come to the attention of the authorities which would indicate to him that Ruby had not planned to shoot Oswald. He said the fact that Ruby had the dog Sheba to which he was very attached in the car when he went to the police station alone would indicate that he intended to return soon. Also, the fact that he had the cash receipts from the club in the car. Senator said he was convinced that Ruby had emotionally worked himself up to such a pitch that when he saw Oswald in the basement of the police station he went out of his head."

Now as I read those sentences, what you are saying is that if anybody were to learn of all of the facts that took place they should pay particular attention to the fact that Ruby had his dog Sheba in the car when he went to the police station, because that indicates that Ruby intended to come back from the police station before he went down there.

Do you still feel that way?

Mr. SENATOR. That he intended to come back?

Mr. GRIFFIN. That Ruby, if Ruby had intended—are you saying that if Ruby had intended to shoot Oswald before he drove down to the police station, he wouldn't have taken Sheba along?

Mr. SENATOR. That isn't what I said.

Mr. GRIFFIN. That is not what you said?

Mr. SENATOR. No. I said I read that like it sounds to me. I must be reading it wrong but it sounds to me like I said he was going to the police station with Sheba.

Mr. GRIFFIN. No; we understand that you are not saying that at all. What I am asking you is if you mean to say that in your mind Jack Ruby would not have taken Sheba down to the police station with him if Jack Ruby ever intended to shoot Oswald.

Mr. SENATOR. I don't think he would; no.

Mr. GRIFFIN. But do you think he might have anyhow?

Mr. SENATOR. I don't know. I couldn't answer that.

Mr. GRIFFIN. Are you saying now as you think about this further, the fact that he had the dog with him is not an overriding fact in deciding whether Jack had any plan to shoot Oswald before he went down there?

Mr. SENATOR. To my knowledge I would say that he had definitely no plans. Now the money part——

Mr. GRIFFIN. But would you say this, that if Jack Ruby had planned, let's assume for the sake of argument that Jack Ruby planned to kill Oswald before he went down to the police station. Now if Jack had that plan in his mind, are you saying he never would have taken Sheba along with him?

Mr. SENATOR. No; I definitely don't think he would ever take the dog with him.

Mr. GRIFFIN. What would he have done with the dog?

Mr. SENATOR. I assume he would have probably, wherever he was going with the dog, maybe he was going to the club or what it is.

Mr. GRIFFIN. Why do you say that?

Mr. SENATOR. What?

Mr. GRIFFIN. Why do you say that?

Mr. SENATOR. Well, all I can say is I know how much he likes that dog, and the dog is always with him, no matter where he goes.

Mr. GRIFFIN. Is there any reason why Jack——

Mr. SENATOR. No particular reason.

Mr. GRIFFIN. Jack wouldn't figure that you or somebody else wouldn't have picked that dog up later and taken care of it?

Mr. SENATOR. I don't know.

Mr. GRIFFIN. Or isn't it possible that Jack just at this point forgot about the consequences to the dog?

Mr. SENATOR. I can't even answer that.

Mr. GRIFFIN. Then would you say that the mere fact that Jack had Sheba with him doesn't prove one way or another whether he planned to kill Oswald?

Mr. SENATOR. I don't think he planned nohow.

Mr. GRIFFIN. I know you don't think that, but I want to know what significance we should put on the fact that he had Sheba with him. As I understand what you have been saying now, one could draw the conclusion that simply because he had Sheba with him doesn't prove conclusively one way or another that he had a plan or didn't have a plan.

Mr. SENATOR. I can't conceive anyhow that this man had any plans, nohow.

Mr. GRIFFIN. If you knew that Jack Ruby had taken Sheba to the club and locked her in the club and left instructions for somebody to take care of Sheba, would that affect your attitude as to whether Jack planned to kill Oswald or not? Would you still say——

Mr. SENATOR. I would say it would still be of the same nature having the dog. I don't think he would do anything like that.

Mr. GRIFFIN. You just don't think he planned to kill Oswald?

Mr. SENATOR. No; definitely not. I just never could visualize it. I can't visualize anything like this.

Mr. GRIFFIN. You also say in this, Moore also reports in this statement this language: "Also the fact that he had the cash receipts from the club in

the car.” Now I take it from that language that you are saying that you also think that Jack would have taken the cash receipts back to the club if he had planned to kill Oswald?

Mr. SENATOR. The only thing I can say is that I would have to guess on my own and say I can only surmise that he wouldn’t have had any cash with him. That is what I would guess. I don’t know. First of all, he carries money both ways, see. Now Jack has always been under the impression wherever he goes, daytime or nighttime, that money, I don’t say all his money but a certain part of money, what ever he puts in, is safe in the trunk. He feels it is safe in the trunk.

Mr. GRIFFIN. Let’s suppose Jack Ruby had done this. Let’s suppose he had taken his dog Sheba to the Carousel Club, left a note for somebody as to how to take care of Sheba, and had taken all the money out of the back of his car and locked it in the safe at the Carousel Club.

Mr. SENATOR. What safe?

Mr. GRIFFIN. Didn’t he have a safe there?

Mr. SENATOR. He bought a safe but it was never fixed. He bought a safe, I’ll tell you the kind of a safe he bought. To my knowledge it has never been put to use. He bought a safe that fits into the ground. Did you ever see these little round things that fit into the——

Mr. GRIFFIN. Yes.

Mr. SENATOR. Well, this thing never materialized because the structure was never made for the safe, never made into the ground. Now if he ever used the safe I don’t even know.

Mr. GRIFFIN. And did Jack ever put his money——

Mr. SENATOR. Excuse me. The reason I say I feel he didn’t, which I really don’t know, I don’t think he did, because the safe was able to be carried. It wasn’t that big thing but when you cement it around you can’t get to it.

Mr. GRIFFIN. Let me ask you this. Was Jack in the habit of putting his money in the bank?

Mr. SENATOR. No.

Mr. GRIFFIN. In other words, Jack's safe was his car?

Mr. SENATOR. Not necessarily. He had it in his car, he had it in his pocket, and he had it around the house.

Mr. GRIFFIN. But you stated a while ago that Jack felt that if he had the money locked in the trunk of the car that was as good as being in the safe?

Mr. SENATOR. Yes; I did, but I didn't say all the monies. I said a certain part of the monies. Now what part of it I don't know, because I know he carried some in there. I know he carried some in his pocket. I know he leaves some at home.

Mr. GRIFFIN. Did he leave any at home on the 24th?

Mr. SENATOR. If he did I don't know. I'll tell you why, the reason I say that is because he has in the living room that has got one of these self-locks. Did you ever see these little locks on a door that you can lock. You know, you can sort of snip it off? It comes off, whatever kind of lock you call it?

Mr. GRIFFIN. Yes.

Mr. SENATOR. He has one of them. He had one of them in the living room. See, his apartment that night was confiscated. I don't know if it was the local police. I don't know who got in there. Somebody got in there, see.

Mr. GRIFFIN. But it certainly wasn't unusual, was it, for Jack to carry all of his money on his person and in his car?

Mr. SENATOR. No; he has done that many times. But I'll tell you, when he is putting the money in his car he very seldom ever left it there for such a lengthy time like that. But this was his safest place as far as not carrying it all in his pocket.

Mr. GRIFFIN. And he felt that keeping it in the car was safer than keeping it in the house.

Mr. SENATOR. This I don't know.

Mr. GRIFFIN. Now you say this was the longest time that you can remember Jack carrying a lot or that much money around with him?

Mr. SENATOR. Oh, no; I never said that.

Mr. GRIFFIN. What did you mean to say?

Mr. SENATOR. I never said that.

Mr. GRIFFIN. In other words, there have been times when Jack, I take it there have been periods of 3 days or more when Jack has carried \$2,000 or \$3,000?

Mr. SENATOR. Or more. No; this is an every day occurrence with him. This is a thing that materialized 7 days a week.

Mr. GRIFFIN. So there is nothing unusual about Jack Ruby having all that money in his automobile.

Mr. SENATOR. No; it is always like that. Now if he has any money in the bank, I mean I can't quote that because I don't see that. See, he carries this money around 7 days a week. Now what he has in the bank, of course, I have quoted you that once before, I think that was yesterday, I don't know what he has got. Only when you ask what bank he has, when I mentioned the Merchants State Bank, I don't know if the guy has got \$40 in there or \$500, you know what I mean? I don't know.

Or whatever he has had in there or how he has had it. See, this is an unusual man when it comes to this money bit. I don't know how many times he asked me, "George, where is my money?" making me feel like I took it but he always misplaced it and always found it.

Mr. GRIFFIN. Is this a large sum of money that he misplaced?

Mr. SENATOR. Sometimes it could be missing \$200 or \$300 or \$400, I don't know. Whatever the stake is, he has about 4, 5 or 6 different stakes in different pockets. This man don't remember where the money is. This may sound crazy but it is true.

Mr. GRIFFIN. Did Jack own any real estate?

Mr. SENATOR. No; what is he going to use for money for the real estate? A lot of people are under the impression that Jack had a lot of money. Jack didn't. Jack was, what would you classify him, as a walking bank?

Mr. GRIFFIN. He carried all his money on his person regardless of how much it was.

Mr. SENATOR. Yes; this man was making who knows, I don't know how much money he has got and I can't break it down and say he is carrying 10,

5 or whatever. Who knows what he has got or how much it is. But there has been 2, 3, 4, maybe more.

Mr. GRIFFIN. What, hundred or thousand dollars?

Mr. SENATOR. Thousands, whatever it is. Of course, as I told you, this all goes to the rent, the help, the electricity, you know, all the utilities and things. But he is a walking bank.

Mr. GRIFFIN. Is this common knowledge that he carried all this money around?

Mr. SENATOR. That was common knowledge to me. How many other people knew it I don't know but I am certain other people knew it. Look, when the help all got paid off they were all paid off in cash. When they wanted to borrow money they were all paid off in cash. Just like here I can't quote how much money he had at any time.

Mr. GRIFFIN. All right. Now let me ask you to read over what I have marked as Washington, D.C., April 22, 1964, George Senator Deposition, Exhibit 5403, and I signed that. It is the report of Agents Rawlings and Glonek. Would you read that over, and tell me, go through that in the same fashion as we have with the others.

Mr. SENATOR. Yes.

Mr. GRIFFIN. Are there any additions, corrections, or explanations that you feel ought to be made to Exhibit 5403?

Mr. SENATOR. Let me go through this fast. I think there aren't but let me make sure.

Mr. GRIFFIN. Let me ask you before we get into this, was that interview made at your request?

Mr. SENATOR. No; I was sent for. Why would I request it?

Mr. GRIFFIN. I don't know. Some people call the FBI and tell them they have something more to tell them.

Mr. SENATOR. No; I was sent for. I have had a pretty good amount of questioning you know. I, like any other individual of the nature that I am, I don't think is too happy about all this. And who would be?

Mr. GRIFFIN. Now that you raise that, we might get on the record the fact that I believe you have expressed to me at lunch during the last 2 days that you feel that this is an unfortunate circumstance in your life.

Mr. SENATOR. Certainly it is. It ain't going to do my life any good.

Mr. GRIFFIN. Would you explain? Would you want to convey some of the feelings here on the record that you gave to me?

Mr. SENATOR. I feel I will always be pointed at, if anybody knows my name of the nature of the conditions that surrounds me.

Mr. GRIFFIN. You feel a certain amount of shame or disgrace?

Mr. SENATOR. No; let me say there will probably be a disturbance. They will always point to Jack Ruby's roommate, Jack Ruby's roommate, something of that nature, you know. What does phonetic mean?

Mr. GRIFFIN. That means that they don't know whether the spelling is correct, but without knowing how to correctly spell it that is the way they would write it, from the sound. Mr. Senator, as you read through that if you come to anything that you think ought to be modified or changed, why, point it out, because I assume that the two pages that you have read so far——

Mr. SENATOR. I am reading it pretty fast. I am a little bit on the punchy side, you know.

Mr. GRIFFIN. If you want us to walk out and sort of relieve your mind.

Mr. SENATOR. No; there is one item in here where it states "He carried his money in a sack." This is only partial. It was in his pockets, in the sack.

Mr. GRIFFIN. The trunk of the car?

Mr. SENATOR. The trunk of the car. No, no; mind you if it is in the sack it goes in the trunk of the car.

Mr. GRIFFIN. Anything else in that interview report that you would want to——

Mr. SENATOR. No; I don't know if this means anything, it is in his pocket, to you I mean. I don't know. This says here where he took the

revolver and placed it on the bag on top of the money. This is not always——

Mr. GRIFFIN. What did he place on the bag on top of the money?

Mr. SENATOR. The gun on top of the moneybag. “Placed it in the bag on top of the money.” To me it is not important. The gun may be next to it or something like that, who knows where he put it.

Mr. GRIFFIN. Now let me ask you a couple of closing questions. One thing we haven’t talked about here. That was, how many sets of keys did Jack Ruby have?

Mr. SENATOR. To the clubs?

Mr. GRIFFIN. Did he have more than one key chain?

Mr. SENATOR. I think he had two small ones. I think one for the car, I’m not sure now. He had keys but I don’t know what they all fit you know. I think he had one for the car and I think one for the place.

Mr. GRIFFIN. Did he keep all of his car keys on one ring or did he have them on two different rings?

Mr. SENATOR. I don’t know.

Mr. GRIFFIN. You don’t know?

Mr. SENATOR. I don’t know.

Mr. GRIFFIN. Did he have one billfold or more than one billfold?

Mr. SENATOR. I have never seen a billfold.

Mr. GRIFFIN. You have never seen his billfold?

Mr. SENATOR. You mean to carry his paper money in billfolds? No.

Mr. GRIFFIN. Identification and things like that. Did he have a wallet?

Mr. SENATOR. I don’t think he ever had a wallet. I don’t recall seeing any.

Mr. GRIFFIN. Did you ever see his driver’s license?

Mr. SENATOR. Did I ever see his driver’s license?

Mr. GRIFFIN. Yes.

Mr. SENATOR. No.

Mr. GRIFFIN. Or social security.

Mr. SENATOR. No.

Mr. GRIFFIN. When he got undressed at night did he put his billfold—what did he do with his——

Mr. SENATOR. I never seen his billfold. I think he carries them—what he carried these things in, he had a little thing, you know a little thing that opened up and you slide it to one side or the other, sort of like what, a little money fold.

Mr. HUBERT. Sort of like an accodian?

Mr. SENATOR. No; it didn't even open up like that. In other words it opened up like a covered book or one of these little things.

Mr. GRIFFIN. Did he have identification in that?

Mr. SENATOR. I never seen into it. It could be.

Mr. GRIFFIN. Was it the type of thing you could put identification in?

Mr. SENATOR. I am certain he probably could have.

Mr. GRIFFIN. Would you recognize it if you saw it?

Mr. SENATOR. The thing?

Mr. GRIFFIN. Yes; that you describe.

Mr. SENATOR. I am not sure. I might. I couldn't say positive. As a matter of fact even the coloration, I wouldn't know if it was green or black.

Mr. GRIFFIN. Did he have any habit of leaving car keys in his automobile that you know of?

Mr. SENATOR. I think only at the garage. See, the garage is right downstairs from the club next door, which they watch his car constantly because he has rented this place on a monthly basis which he has had for I don't know how long.

Mr. GRIFFIN. And where would he leave the keys then, in the ignition?

Mr. SENATOR. I think the keys were left in the ignition.

Mr. GRIFFIN. Do you recall if you ever had occasion to look in the glove compartment of Jack's car?

Mr. SENATOR. I have looked at it but it is such a jingle-jangle there that it didn't mean anything as far as opening it up. There was so much gook in there, do you know what I mean?

Mr. GRIFFIN. Yes. Did you ever have any occasion to look in the trunk of his car?

Mr. SENATOR. I have seen the trunk open; yes, and that is another slop house, with a bunch of garbage in there. I told him a thousand times "How can you open your trunk and not clean it up? How can you keep that garbage in there."

Mr. GRIFFIN. What sort of things would he keep in there?

Mr. SENATOR. There would be papers. In other words, things weren't placed. You take a tire, you think the tire is in the right place? It could be any place in that thing there, and all the other garbage that he had in there, and papers, whatever it is. He kept his car like he kept his apartment.

Mr. GRIFFIN. You don't have any knowledge, or do you——

Mr. SENATOR. I have never gone through his trunk.

Mr. GRIFFIN. As to what he had in there?

Mr. SENATOR. In the trunk?

Mr. GRIFFIN. Yes.

Mr. SENATOR. No. To me it looked like a bunch of garbage he had in there.

Mr. GRIFFIN. Have you ever had occasion to drive his automobile?

Mr. SENATOR. Yes; but very seldom because he didn't want me to handle it and I'll tell you why. No insurance. That is why he didn't want me to drive his car. Very seldom was I ever allowed to drive that car.

Mr. GRIFFIN. On the occasions when you drove his automobile, from where did you get the automobile keys?

Mr. SENATOR. From him.

Mr. GRIFFIN. Off of his person?

Mr. SENATOR. Yes; from the house, yes, when he was home. And sometimes I would drive for him when he is tired, like he feels he is going to fall asleep, and I have done this you know from the club to the apartment where he feels he maybe fall asleep at the wheel. This is one of the things where he wouldn't let me drive because he had no insurance, and I wasn't anxious to drive the car on account of that either.

Mr. GRIFFIN. Now you and I have had lunch together.

Mr. SENATOR. Yes.

Mr. GRIFFIN. And we have had breaks here and on these occasions we have talked and you have talked with Mr. Hubert also on these occasions. Is there anything that we talked with you about in these times when we haven't had a court reporter present that we haven't covered here in our deposition?

Mr. SENATOR. It would be hard for me to think what you have left out, you know. I have never had a questioning like this in my life before. When I originally came down here I thought I would only be here—I thought the questioning would probably be similar to being questioned by the FBI or the Secret Service. First of all how was I to know? What was I to expect, see? I just couldn't believe that I would be here 2 days. I couldn't think how it was possible where you could ask me so many questions, both of you.

Mr. HUBERT. In any case you don't recall anything dealing with the case, an aspect of it that was the subject of a conversation which has not been discussed on the record?

Mr. SENATOR. Offhand, I can't. Offhand, I just can't think of any because I think you all know more than I know. If you can remember the Times Square Cafeteria you know more than I know. You are not going to put that too, are you?

Mr. GRIFFIN. Let me then ask this one final question.

Mr. SENATOR. Yes.

Mr. GRIFFIN. If anything should come to your attention in the future, which pertains to the Ruby case that could be of assistance to us, will you

contact somebody in the Government and let them know so that we can have a complete record here. He is nodding his head yes.

Mr. SENATOR. Because he can't write the nod down there?

Mr. HUBERT. Thank you very much indeed for coming.

Mr. GRIFFIN. I want to say to him that it has been a pleasure to talk with you; we think your cooperation has been most helpful.

TESTIMONY OF NANCY PERRIN RICH

The testimony of Nancy Perrin Rich was taken at 11 a.m., on June 2, 1964, at 200 Maryland Avenue NE., Washington, D.C., by Messrs. Burt W. Griffin and Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is the deposition of Nancy Perrin Rich.

Mrs. Rich, my name is Leon D. Hubert. I am a member of the advisory staff of the general counsel of the President's Commission on the Assassination of President Kennedy.

Under the provisions of the President's Executive Order No. 11130, dated November 29, 1963, the joint resolution of Congress 137, and the rules of procedure adopted by the President's Commission in conformance with that Executive order and that resolution, I have been authorized to take a sworn deposition from you.

I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate, and report upon the facts relevant to the assassination of President Kennedy, and the subsequent violent death of Lee Harvey Oswald.

In particular as to you, Mrs. Rich, the nature of the inquiry today is to determine what facts you know about the death of Oswald, any participation in that death, or the death of President Kennedy by Jack Ruby, certain particular activities of Jack Ruby which you have heretofore told the FBI, and other pertinent facts you may know about the general inquiry.

Now, Mrs. Rich, I think you appear today here by virtue of a letter written to you by Mr. J. Lee Rankin, general counsel of the staff of the President's Commission, is that right?

Mrs. RICH. Yes, sir.

Mr. HUBERT. And that—when did you receive that letter?

Mrs. RICH. I actually received in my hands the letter yesterday, Monday, the 1st. I received notification of it via a telephone call from Mr. Fahety of the FBI Bureau, Boston, notifying me of it.

It was sent—and at this time I would like to state—and opened by Mr. Rod Kennett, of Executive Limited, 100 Boylston Street, Boston, and there was no possible way that letter could have been opened erroneously. It could not have even by any stretch of the imagination been misconstrued as being office literature. It was personally addressed to me, with the President's Commission on it.

I want that in the record.

Mr. HUBERT. It is.

Mrs. RICH. I also want it in the record I came here of my own free will.

Also that I don't want it known and that I would like Kennett cautioned to be quiet about this. I want someone to caution the Kennetts to keep quiet about this. Rod opened the letter, and he has been telling everybody in Boston about it. I don't particularly want it known.

Mr. HUBERT. Well, I am not in a position to pass upon your request. But I am quite certain that the Commission will take it into account.

Mrs. RICH. I would appreciate it, because of some extracurricular work that I do—it is not feasible for anyone to know that I go before any kind of commission, for anything.

Mr. HUBERT. Well, now, let me get back to this. Under the rules adopted by the Commission, you are entitled to a 3 day written notice prior to the taking of this deposition. But the rules also provide that a witness may waive the 3-day written notice if he so desires. And I ask you now if you wish to waive the 3-day notice.

Mrs. RICH. Yes; I will waive it.

Mr. HUBERT. Now, will you stand, please, so I may administer the oath? Raise your right hand. Do you solemnly swear that the testimony you are about to give in this matter will be the truth, the whole truth, and nothing but the truth?

Mrs. RICH. I do.

Mr. HUBERT. Will you please state your full name?

Mrs. RICH. Nancy Elaine Perrin Rich.

Mr. HUBERT. I understand that you recently married.

Mrs. RICH. That is correct.

Mr. HUBERT. What is your husband's name?

Mrs. RICH. Francis L. Rich.

Mr. HUBERT. Where do you reside?

Mrs. RICH. No. 16 River Road, Hanover, Mass.

Mr. HUBERT. When were you married?

Mrs. RICH. April 11, 1964.

Mr. HUBERT. Prior to that time, I think you had been married to a man by the name of Perrin.

Mrs. RICH. Robert L. Perrin.

Mr. HUBERT. And he died?

Mrs. RICH. Yes.

Mr. HUBERT. When?

Mrs. RICH. August 29, 1962.

Mr. HUBERT. Where?

Mrs. RICH. New Orleans.

Mr. HUBERT. And you had been married prior to that time?

Mrs. RICH. Yes; I had.

Mr. HUBERT. What was the name of the husband you were married to prior to the time you married Mr. Perrin?

Mrs. RICH. Husbands, in plural. Louis——

Mr. HUBERT. You mean there are more than one?

Mrs. RICH. Yes.

Mr. HUBERT. Give us the names.

Mrs. RICH. Louis Edward Musachio.

Mr. HUBERT. Before you pass away from him to the other husband, would you tell us how your marriage was dissolved?

Mrs. RICH. By divorce.

Mr. HUBERT. Was he your first husband?

Mrs. RICH. He was my second.

Mr. HUBERT. Your second husband. And is he still alive?

Mrs. RICH. Yes; I gather.

Mr. HUBERT. Do you know where he lives?

Mrs. RICH. No; I don't. The last known address was Lackland Air Force Base. I believe he is retired out of the service since then.

Mr. HUBERT. What business was he in?

Mrs. RICH. Air Force, a sergeant.

Mr. HUBERT. How long were you married to him?

Mrs. RICH. Married, I couldn't exactly say. I guess a year. I actually lived with him about 9 months. Eight of those were spent on various—he spent in various hospitals, including Walter Reed here, for operations, and in the psychiatric locked ward.

Mr. HUBERT. When were you divorced from him?

Mrs. RICH. Oh, dear. 1961, I believe.

Mr. HUBERT. Where?

Mrs. RICH. In the county of Adams, city of Brighton, Colo.

Mr. HUBERT. Where were you married to him?

Mrs. RICH. I was married at L. G. Hanscomb Air Force Base, Bedford, Mass.

Mr. HUBERT. What about your first husband?

Mrs. RICH. My first husband was Charles G. Wilson. He was——

Mr. HUBERT. When did you marry him, and where?

Mrs. RICH. Well, I married him in Berwick, Maine, in 1953.

Mr. HUBERT. And how was that marriage dissolved?

Mrs. RICH. In divorce.

Mr. HUBERT. When and where?

Mrs. RICH. 1955, in Biddeford, Maine.

Mr. HUBERT. And how old are you, Ma'am?

Mrs. RICH. I am 27.

Mr. HUBERT. And what is your present occupation?

Mrs. RICH. Housewife.

Mr. HUBERT. You do not work for Executives Unlimited?

Mrs. RICH. Not any more.

Mr. HUBERT. You did work for them?

Mrs. RICH. I did.

Mr. HUBERT. How long did you work for them?

Mrs. RICH. Oh, about 3 months.

Mr. HUBERT. When did you cease working for them?

Mrs. RICH. Upon my marriage.

Mr. HUBERT. Which is April 11?

Mrs. RICH. April 11.

Mr. HUBERT. What sort of business was that?

Mrs. RICH. An employment agency.

Mr. HUBERT. Where is it located?

Mrs. RICH. 100 Boylston Street, Boston, Mass., Suite 309.

Mr. HUBERT. Have you any children?

Mrs. RICH. I have four.

Mr. HUBERT. Would you state their ages and tell us by which husband they were born?

Mrs. RICH. I will start with my youngest. Diedre Pilar Perrin, age 4.

Mr. HUBERT. And she is the daughter of——

Mrs. RICH. Robert L. Perrin.

Mr. HUBERT. All right.

Mrs. RICH. Felicia Helen Musachio, whereabouts unknown, by Louis Edward Musachio.

Mr. HUBERT. How old is she?

Mrs. RICH. She would be 5.

Mr. HUBERT. Now, when you say whereabouts unknown, you mean you do not know the whereabouts of the child or of her father?

Mrs. RICH. Both. She was, to quote the FBI, not kidnapped, childnapped. Although I hold legal custody of her, I cannot find her.

Mr. HUBERT. All right. Will you go on to the others?

Mrs. RICH. Brian Russell Wilson, age 7, and Valerie Dawn Wilson, age 10, both by Charles G. Wilson.

Mr. HUBERT. Where do these children live?

Mrs. RICH. The two Wilsons reside in Biddeford, Maine, with my parents.

Mr. HUBERT. Your father and mother?

Mrs. RICH. That is correct. The whereabouts of Felicia is unknown. And Deidre Perrin resides with me.

Mr. HUBERT. What is your present husband's occupation?

Mrs. RICH. He is the owner of North Quincy Taxi Co.

Mr. HUBERT. That is located——

Mrs. RICH. In Quincy, Mass.

Mr. HUBERT. How long has he been so occupied?

Mrs. RICH. Oh, 20 years.

Mr. HUBERT. What was the occupation of Robert Perrin?

Mrs. RICH. Many things, from a master mechanic, on heavy equipment, cats, et cetera, to a master foundry worker, patternmaker, moulder, to running a foundry.

Mr. HUBERT. And other things?

Mrs. RICH. A writer, contracted by the old Street and Smith Co.

Mr. HUBERT. A writer?

Mrs. RICH. He is an author, short stories. Anything beyond that, I couldn't tell you, because I don't know how much is true of what he told me of his past.

Mr. HUBERT. What did he tell you of his past?

Mrs. RICH. May I ask a question?

Mr. HUBERT. Yes; if you wish.

Mrs. RICH. All of this is confidential?

Mr. HUBERT. I cannot give you the assurance that it is.

Mrs. RICH. Meaning this would not be publicized for the entire world, so to speak. The average person outside of who it directly would be reported to.

Mr. HUBERT. I cannot give you the assurance that you ask for on that point. If you would prefer not to answer the question, in the light of your feelings about it, and the statement I have just made to you, then we can pass on to another point.

Mrs. RICH. Let me ask you this. Is it pertinent and important that you know?

Mrs. HUBERT. Well, yes.

Mrs. RICH. Very well. Well, he claimed to——

Mr. HUBERT. Now, you understand, I am not giving you any assurance that there will not be available to the public a transcript of this testimony.

Mrs. RICH. I understand this. I thoroughly understand this.

Mr. HUBERT. All right.

Mrs. RICH. Well, he claimed to have worked for Jack Dragna, presently residing at San Quentin.

Mr. HUBERT. That is to say he is in the penitentiary?

Mrs. RICH. That is correct.

Mr. HUBERT. Do you know for what offense?

Mrs. RICH. Income tax evasion. I suppose. I don't know for sure.

Mr. HUBERT. All right.

Mrs. RICH. Let me state at this time that half of what I am about to say—I am sorry—all of what I am about to say is hearsay. Half, I believe.

Mr. HUBERT. We understand that. You are telling us what he told you he had done in the past, but that you don't know for sure whether it is true.

Mrs. RICH. That is correct. But I want that in the record. That he did everything from handle Dragna's call girls to be a heavy, so to speak.

Mr. HUBERT. What do you mean by a heavy?

Mrs. RICH. Well, bodyguard.

Mr. HUBERT. Bodyguard for whom?

Mrs. RICH. Jack Dragna, and various subsequent members, shall we say, of the organization that used to come into California.

Mr. HUBERT. What organization was that?

Mrs. RICH. Call it by what you will—syndicate, Mafia.

Mr. HUBERT. Who were some of the people involved?

Mrs. RICH. I could not tell you. I do know that he mentioned that he personally knew Mickey Cohen and Virginia Hill.

Mr. HUBERT. You don't know any other names?

Mrs. RICH. Jimmy Gilreath.

Mr. HUBERT. Would G-i-l-r-e-a-t-h be about right?

Mrs. RICH. I would assume so.

Mr. HUBERT. So what you are telling us is that your former husband, now deceased, Robert Perrin, had told you that among other things he acted as bodyguard for certain members of a syndicate, as you call it, and you have named, I think, four people who belonged to the syndicate.

Mrs. RICH. Supposedly, yes.

Mr. HUBERT. And what was the syndicate about, from what you learned from your husband?

Mrs. RICH. Well, everything from prostitution to illegal gambling to narcotics.

Mr. HUBERT. Now, all of this you know by hearsay alone?

Mrs. RICH. By hearsay alone.

Mr. HUBERT. I ask you that question because a moment ago you said that half of what you said was hearsay.

Mrs. RICH. That is correct.

Mr. HUBERT. And I assume that the other half was not.

Mrs. RICH. I do know this, that he claimed that he ran guns—this was years ago, when Franco was coming into power. I do know this to be a fact, because he spent time in jail there.

Mr. HUBERT. Where did he spend time in jail?

Mrs. RICH. In Spain. I do know he fought for both sides, as a professional soldier.

Mr. HUBERT. When you say you know that, I take it that you mean that he told you so.

Mrs. RICH. No; I do not mean that, sir. I mean I have seen written proof of this statement.

Mr. HUBERT. Such as what?

Mrs. RICH. Such as a prison record. Now, let me qualify that. I have seen said statement on record, call it what you may. Now, how authentic it was, I cannot swear to it.

Mr. HUBERT. You mean he showed you a prison record?

Mrs. RICH. I found it. From stuff in Spain—both Madrid, and a place called Consuela.

Mr. HUBERT. What sort of a prison record was it?

Mrs. RICH. It wasn't as you would think of a prison record. It was merely a piece of paper in Spanish with a list of articles on it that was on his person at the time he was arrested. Another one was of a release signed by a Teniente Enriquez, which would be a lieutenant here, at the Madrid Secreto Servicio.

Mr. HUBERT. I think you better spell all that out, because you are using a foreign language, and I am not sure that the reporter can get it except by the sound.

Mrs. RICH. All right. To clarify this, it was written in Spanish. I will quote it in English. "An article list, signed by Lieutenant Enriquez."

Mr. HUBERT. That is his last name?

Mrs. RICH. Yes; a release signed by someone in the Secret Service, which is comparable to our detective system on a city police force.

Mr. HUBERT. It was a lease of what?

Mrs. RICH. A release.

Mr. HUBERT. Did you talk to him about these documents?

Mrs. RICH. He seemed quite proud of the fact.

Mr. HUBERT. I gather from that that you did talk to him about it?

Mrs. RICH. I did. Quite frankly, I asked him what in the heck it was all about. At that time, he claimed, he said, "Well, you won't believe me. I wasn't making it up." He claimed he ran guns and used to pilot a small boat.

Mr. HUBERT. Ran guns where?

Mrs. RICH. Into Spain, for Franco.

Mr. HUBERT. Do you remember the date of that document? Did it have any date on it?

Mrs. RICH. I would say it was in the late thirties, I wouldn't be sure, late thirties or early forties. It was either just prior to him going into the United States Army or after he was released. Now, I cannot be sure on that.

Mr. HUBERT. You think that it could not have been earlier than, say, 1935?

Mrs. RICH. No, it could not have.

Mr. HUBERT. Why are you sure of that?

Mrs. RICH. For the simple reason he was born in 1920. It couldn't have been much prior to 1935. It was either late thirties or early forties. Again, I would like to, for the record, state that my husband was a writer.

Mr. HUBERT. You are talking about Perrin now?

Mrs. RICH. Yes. And had a vivid imagination, as most writers do. Whether or not these were authentic documents, I don't know.

Mr. HUBERT. Did he die a natural death?

Mrs. RICH. Suicide. The coroner's report was arsenic. I also would like to state for the record at this time after my husband's death the Veterans' Administration Hospital, I believe it is the one in Denver, that finally came up with the report, came up with the report that my husband was discharged from the service for hysteria, and had a history of mental disturbance.

Mr. HUBERT. Were you living with him at the time he died?

Mrs. RICH. I was.

Mr. HUBERT. You state to us now that the coroner's report in New Orleans, I suppose——

Mrs. RICH. That is correct.

Mr. HUBERT. Showed that his death was caused by arsenic voluntarily consumed, right?

Mrs. RICH. That is correct.

Mr. HUBERT. Now, you lived part of the time that you were married to Perrin in Dallas, did you not?

Mrs. RICH. Yes. Why I am hesitant—I would like to clarify that statement. I went to Dallas seeking Mr. Perrin. He had left me.

Mr. HUBERT. Where were you living when he left you?

Mrs. RICH. We were living in Belmont, Mass.

Mr. HUBERT. What address?

Mrs. RICH. No. 11 Holden Road.

Mr. HUBERT. How long after he left you did you seek him out in Dallas?

Mrs. RICH. I was in New Hampshire with the state legislature at the time. I was doing public relations. And I had just obtained a job, a position for him, and I telephoned to Massachusetts to tell him to come on down, and there was no answer. And I had a feeling that something was wrong. So I hightailed it back to Massachusetts, and there was a note. And the note said that he was going to Dallas. I called and he wasn't there. I called halfway over the United States, thinking of places he told me he had been, and I couldn't find him.

Mr. HUBERT. What place did you call in Dallas?

Mrs. RICH. I called the police department and a foundry he had mentioned in a letter, and had read the name of a gentleman he had mentioned at this time whose name eludes me—Youngblood—I take it back.

Mr. HUBERT. Do you remember his first name?

Mrs. RICH. No; I don't. But my husband claimed—and I couldn't ask him, because if he was he couldn't have told me—claimed he was some sort of a Government agent, which was in all probability true.

Mr. HUBERT. Did you contact Mr. Youngblood?

Mrs. RICH. Yes; he hadn't seen him. Then I proceeded to call Kansas City and various other points I thought he might be.

Mr. HUBERT. Did you actually contact the Dallas Police Department?

Mrs. RICH. Yes; I did.

Mr. HUBERT. Did you get any report from them?

Mrs. RICH. Except that he wasn't there. Or that they didn't know he was there.

Mr. HUBERT. They did report that fact to you?

Mrs. RICH. Yes.

Mr. HUBERT. How did they do so?

Mrs. RICH. By phone.

Mr. HUBERT. Go ahead.

Mrs. RICH. I then informed him that I would be there, which I did. Subsequently, Mr. Perrin—and I will never understand——

Mr. HUBERT. How long after the events you have just told us about, to wit, your coming home and finding that he wasn't there—how long after those events did you go to Dallas?

Mrs. RICH. Approximately 1 week.

Mr. HUBERT. All right. When was that?

Mrs. RICH. Oh, gosh. That was in, I believe, May. I can't give you the exact month. But I believe it was in May.

Mr. HUBERT. Of what year?

Mrs. RICH. Of 1961. Or was it 1962? '62. I am sorry—1962.

Mr. HUBERT. And how long—did you find Mr. Perrin?

Mrs. RICH. Again in a way. He wasn't in Dallas.

Mr. HUBERT. Where was he?

Mrs. RICH. Well, afterwards, when he arrived in Dallas, I found out that he had been in South Bend, Ind., with my secretary.

Mr. HUBERT. In any case, when did you meet him in Dallas?

Mrs. RICH. He wrote mother, found out where I was—and came to Dallas, I believe, it would be around July.

Mr. HUBERT. Of 1962?

Mrs. RICH. That is correct.

Mr. HUBERT. So you had been there alone from May of 1962 until July of 1962?

Mrs. RICH. I am giving approximate dates, yes.

Mr. HUBERT. Now, when he did arrive, what happened?

Mrs. RICH. Just like nothing had happened. Everything was fine.

Mr. HUBERT. You mean there was a reconciliation between you?

Mrs. RICH. I loved my husband very much.

Mr. HUBERT. But, in any case, you proceeded to live together as husband and wife?

Mrs. RICH. Oh, yes.

Mr. HUBERT. How much education have you had, Mrs. Rich?

Mrs. RICH. I have had 3 years of high school.

Mr. HUBERT. What high school?

Mrs. RICH. Biddeford High, in Biddeford, Maine.

Mr. HUBERT. When did you leave there?

Mrs. RICH. I left when I was 16. That would be in 1954—1953—I am sorry. And I got married, and I go back, and I drop out because I am going to have a child. Then after I have the child I go back, and I am doubling up on my courses and could have graduated. But I was too smart, and knew everything.

Mr. HUBERT. Have you had any other type of training?

Mrs. RICH. Depending on what you mean—formal education—meaning book learning?

Mr. HUBERT. Well, yes.

Mrs. RICH. No.

Mr. HUBERT. Or other types of training, such as stenography?

Mrs. RICH. IBM, and police investigation.

Mr. HUBERT. What about the IBM aspect? Did you study that?

Mrs. RICH. I made a misquotation. It would be Remington Rand, actually.

Mr. HUBERT. Did you study?

Mrs. RICH. Not with Remington Rand as a company. For Craftsman Life and Health Insurance Co. of Boston.

Mr. HUBERT. You worked there?

Mrs. RICH. I did.

Mr. HUBERT. And studied the operation of Remington Rand machines there?

Mrs. RICH. That is correct.

Mr. HUBERT. Can you tell us the name of some of the people you worked with there?

Mrs. RICH. Oh, you are going back too far, sir.

Mr. HUBERT. Where was that place located?

Mrs. RICH. On Boylston Street.

Mr. HUBERT. Do you remember the name of the manager?

Mrs. RICH. It may sound odd—whether this name has stuck in my mind or not—but it seems to me his name is Griffin, too. I may be wrong.

Mr. HUBERT. How long were you there?

Mrs. RICH. Oh, probably 6 months.

Mr. HUBERT. That was after you married?

Mrs. RICH. Oh, no. No—in fact, I was working there when I met Musachio. That was back in 1958.

Mr. HUBERT. I see. You had divorced your first husband?

Mrs. RICH. That is correct.

Mr. HUBERT. I think you mentioned something else besides IBM.

Mrs. RICH. Police investigation.

Mr. HUBERT. Now, where did you learn that?

Mrs. RICH. From various police organizations, district attorney's offices.

Mr. HUBERT. Would you name them, please?

Mrs. RICH. Yes; some with the Boston Police Department.

Mr. HUBERT. Who did you work with?

Mrs. RICH. We called him Papa McGill. Sergeant McGill, and John Dinatelo, I believe.

Mr. HUBERT. How long did you work there?

Mrs. RICH. Well, I was a young kid, and didn't have any brains. I blew a case, and that was it.

Mr. HUBERT. Were you paid?

Mrs. RICH. At that time; no.

Mr. HUBERT. Your answer suggests that at a later time you were paid.

Mrs. RICH. That is correct.

Mr. HUBERT. With the same department?

Mrs. RICH. No.

Mr. HUBERT. Well, with what police department?

Mrs. RICH. With the district attorney's office of Sacramento.

Mr. HUBERT. California?

Mrs. RICH. That is correct.

Mr. HUBERT. How long did you work there?

Mrs. RICH. Well, this wasn't a question of working. I worked as needed, or as a case came up. I worked for Mr. Oscar Kistle, Chief Deputy District Attorney, who as of this January is now a judge.

Mr. HUBERT. Did you work with anybody else there?

Mrs. RICH. I worked with the Hayward Police Department, in California.

Mr. HUBERT. Who did you work with there?

Mrs. RICH. Lieutenant—I can't remember his name.

Mr. HUBERT. How long did you work with that police department?

Mrs. RICH. Well, I left. That is why I discontinued my association with them. Again, as needed.

Mr. HUBERT. Well, altogether, how long were you there?

Mrs. RICH. Altogether, if you want to put it running day by day, probably 3 weeks. If you want to say—actually I was associated with them probably 3 or 4 months.

Mr. HUBERT. That is what I meant.

Mrs. RICH. But not worked steadily.

Mr. HUBERT. I understand.

Mrs. RICH. And the Oakland Police Department.

Mr. HUBERT. Oakland, Calif.?

Mrs. RICH. California.

Mr. HUBERT. And who did you work with there?

Mrs. RICH. Oh, dear. I worked on grand theft. Lieutenant—I can't remember—whoever the lieutenant is in charge of grand theft detail. Lt. Parker.

Mr. HUBERT. How long did you stay in Oakland with that association?

Mrs. RICH. Again, about the same length of time as Hayward. I was working with both of them at the same time, and also Sacramento. In that type of work, you cannot get by in just one.

Mr. HUBERT. I don't think you mentioned Sacramento yet.

Mrs. RICH. The district attorney's office, yes, I have. At this time, if necessary, I can introduce a letter into evidence verifying part of this testimony.

Mr. HUBERT. Well, do you wish to do so?

Mrs. RICH. I believe I would.

Mr. HUBERT. Well, do you have the letter?

Mrs. RICH. I do. Note for the record I hand a letter to Mr. Hubert, signed by Chief Deputy Kistle.

Mr. HUBERT. You have handed me this document. Do you wish—I assume you wish to keep the original.

Mrs. RICH. That is the only one I have, sir.

Mr. HUBERT. Would you mind if we had a copy made of it?

Mrs. RICH. I would not.

Mr. HUBERT. And then we can hand you back the original.

Mrs. RICH. That will be fine.

Mr. HUBERT. Well, now, when did you first meet Jack Ruby?

Mrs. RICH. When I first reached Dallas, I, of course, went directly to the police station. Ironically enough, the first person I met was Mr. Tippit.

Mr. HUBERT. What is his first name? Are you referring to the Tippit who was shot on November 22d?

Mrs. RICH. I would say so. I believe it is the only Tippit on the police force.

Mr. HUBERT. All right. So you met Mr. Tippit. And what happened then?

Mrs. RICH. I walked in and plunked \$4 on the desk and said, “Here I am.” He said——

Mr. HUBERT. Well——

Mrs. RICH. This was a joke. When I called him from Massachusetts, I told him when I hit there I would have 4 bucks in my pocket. It was rather a kind of a joke, actually. I said, “Here I am.”

He said, “Oh, no; I told you not to do it.”

I had talked to him previously on the phone. So that was all right. So he called in one of the patrolmen. And they get the Black Maria, go down to the bus depot and get my bags. And I had called Associated Press. I have many friends around the press world. Being in public relations, I would. And this Brice someone or other said, “You can go and stay with my wife for a couple of days until you get settled.”

Three o'clock in the morning we start punching doorbells, with the suitcases in a Black Maria, trying to find Ann, and I couldn't remember the last name. So the next day they send up to pick me up and help me find a place and job.

Mr. HUBERT. When you say "they"—

Mrs. RICH. Meaning the police department of Dallas.

Mr. HUBERT. What particular individuals?

Mrs. RICH. I don't recall exactly who sent them up. I cannot remember the guy's name. Really. I don't believe he is any longer with them, I understand.

Mr. HUBERT. In any case, some person from the police department came to get you the next day?

Mrs. RICH. Yes. Subsequently, one Mr. Paul Rayburn, detective, juvenile, came to pick me up, along with his partner, Detective House. Well, we managed to find a place to live. And Paul suggested he had a friend. And did I know anything about bartending; well, I did.

Mr. HUBERT. What place did he find you to live in? Do you remember the address?

Mrs. RICH. No; I don't. It was a rooming house. Actually, it was a private home more or less cut into small apartments. I believe it was a three-room apartment.

Mr. HUBERT. And how long did you live there?

Mrs. RICH. Here is where we are going to get into difficulty. I don't remember. I cannot remember the length of time or addresses I lived at.

Mr. HUBERT. Did you live at more than one place prior to the time Mr. Perrin joined you in July?

Mrs. RICH. Yes; I did.

Mr. HUBERT. Do you remember any of the addresses of the places where you lived?

Mrs. RICH. Well, I remember I lived—when Mr. Perrin joined me I was living on Oak Street, I believe. Then we moved to another street, and I

don't remember where it was.

Mr. HUBERT. How many places do you suppose you lived in prior to the time Mr. Perrin joined you?

Mrs. RICH. Two, I think.

Mr. HUBERT. One was on Oak Street?

Mrs. RICH. That was the one—let's put it this way. Two including the one I was living at when he joined me.

Mr. HUBERT. And one was on Oak Street?

Mrs. RICH. Yes. That was the big apartment building.

Mr. HUBERT. And the other was a rooming house?

Mrs. RICH. Well, I call it a rooming house. Perhaps I have named it incorrectly. I would say a private home cut up into small apartments.

Mr. HUBERT. But you don't remember where that was?

Mrs. RICH. I cannot remember. I can remember the house. I would probably know it if I see it. It is outside the city a little ways. It wasn't right in the heart of downtown.

Mr. HUBERT. Do you remember the name of the lady who owned the house?

Mrs. RICH. No; I don't.

Mr. HUBERT. Now, the other was an apartment building, you say.

Mrs. RICH. Yes. I believe—now, put this as supposed—I believe it was 1136 Oak Street, but I am not sure.

Mr. HUBERT. So that both places were on Oak Street?

Mrs. RICH. No, no. The one on Oak, I think, that was the address. I don't recall what the first one was that Mr. Rayburn put me into.

Mr. HUBERT. Let's see if I get this straight. You lived in a boarding house which was a house cut into small units, you say, and you don't know where that was located.

Mrs. RICH. No; that is correct.

Mr. HUBERT. And how long did you stay there, do you suppose?

Mrs. RICH. Oh, maybe 3 or 4 weeks, 2 weeks, 3 weeks.

Mr. HUBERT. After which, as I understand, you then went to the larger apartment house.

Mrs. RICH. Yes; on Oak Street, apartment row, where all these big luxury apartments are.

Mr. HUBERT. And that was on Oak Street?

Mrs. RICH. Oak Street.

Mr. HUBERT. And you stayed there until Mr. Perrin joined you?

Mrs. RICH. Yes. And for a while after. Until we found a place comparable but at less money.

Mr. HUBERT. And where was that?

Mrs. RICH. That I don't remember. Junios Street. I remember it didn't have a pool—it was a big brick apartment. Again, all of these places I can close my eyes and picture. But I cannot tell you. I can't remember.

Mr. HUBERT. How long did you live there with Mr. Perrin?

Mrs. RICH. At the last address that I don't remember?

Mr. HUBERT. Yes; ma'am.

Mrs. RICH. Probably 3 or 4 months. I think we left Dallas in October and went to New Orleans—either late October or early November.

Mr. HUBERT. What year?

Mrs. RICH. Of 1962. Now, this is where I am getting confused. It had to have been 1961. This is where I get confused. When I stated before that it was May of 1962, it wasn't. It was May of 1961.

Mr. HUBERT. Why do you make that correction now?

Mrs. RICH. Well, it couldn't have possibly been in 1962.

Mr. HUBERT. Why?

Mrs. RICH. My husband died in August of 1962, in New Orleans. And we had been there over a year.

Mr. HUBERT. You had been in New Orleans over a year by the time he died?

Mrs. RICH. Almost a year. Between New Orleans and Boston, and Miami. You see——

Mr. HUBERT. When did you leave Dallas, then?

Mrs. RICH. It would be October of 1961.

Mr. HUBERT. That you left Dallas?

Mrs. RICH. Yes.

Mr. HUBERT. And all of these previous dates, May and July, you now wish to correct——

Mrs. RICH. To 1961.

Mr. HUBERT. And you lived with Mr. Perrin after leaving Dallas in October of 1962—of 1961?

Mrs. RICH. 1961.

Mr. HUBERT. You lived in New Orleans most of the time?

Mrs. RICH. Yes.

Mr. HUBERT. And he died there?

Mrs. RICH. That is correct. You see, it was New Orleans and Boston.

Mr. HUBERT. Well, now, I had asked you when you had first met Jack Ruby, and I think you were beginning to tell us when we got into the question of your residences. So now will you tell us how you met Jack Ruby, and when?

Mrs. RICH. The when I could not tell you exactly. Some time during May or June, I believe. Mr. Ruby's records could tell you, due to the fact that I believe he probably took social security out. But the how was that Mr. Rayburn took me up and got me the job up there. Detective Rayburn.

Mr. HUBERT. Now, how long after you had arrived in Dallas did you meet Mr. Ruby?

Mrs. RICH. Again, the time element eludes me. It could be anywhere from 2 or 3 weeks to a month.

Mr. HUBERT. It is your thought that it might be that long after you arrived in Dallas under the circumstances that you told us about?

Mrs. RICH. I don't know. A week, 2 weeks, 3 weeks. The last few years time has become nothing for me.

Mr. HUBERT. Well, now, what was your occupation with Ruby, and where was it?

Mrs. RICH. I was bartender at the Carousel Lounge, on Commercial—well, the main street in Dallas.

Mr. HUBERT. Commerce?

Mrs. RICH. Commerce.

Mr. HUBERT. What were some of the names of the other people who worked with you at that time?

Mrs. RICH. Buddy King—I should say his professional name is Buddy King—Robert J. Stewart. I am trying to think of the name of that MC. I have been trying to think of it, and I cannot. Ray something or other, I believe. They came and they went.

Mr. HUBERT. How long were you employed by Ruby altogether?

Mrs. RICH. Probably a couple of months.

Mr. HUBERT. Did you work with Ruby after your husband joined you?

Mrs. RICH. Yes; I did.

Mr. HUBERT. Did you work until you left Dallas?

Mrs. RICH. No; I did not.

Mr. HUBERT. How long before leaving Dallas did you quit the job at Ruby's?

Mrs. RICH. Possibly a couple of months, 3 months. I wasn't in Dallas more than maybe 5 months, 4 months at the most, 4 or 5 months at the most.

Mr. HUBERT. Now, when you say bartender, what do you mean? What were your actual duties?

Mrs. RICH. I was actually a bartender. I worked behind the bar mixing and serving drinks.

Mr. HUBERT. What sort of drinks?

Mrs. RICH. Whatever was allowed. Actually, you are not allowed to serve mixed drinks there. We do to special customers. You are not allowed to serve hard liquor. But I served beer, and wine, of course, and your setups.

Mr. HUBERT. What customers did you serve hard liquor to?

Mrs. RICH. Whomever I was told to.

Mr. HUBERT. You don't know their names?

Mrs. RICH. I couldn't quote you names, perhaps.

Mr. HUBERT. Who told you to serve them?

Mrs. RICH. Mr. Ruby. It was a standing order. For a particular group of people. Then whenever he would come in and say, "This is private stock stuff," that would mean for me to go where I knew the hard liquor was and get it out, and get it ready for the people in his private office.

Mr. HUBERT. What was the particular group—who did it consist of?

Mrs. RICH. The police department.

Mr. HUBERT. Are you saying that Jack Ruby told you that when any member of the police department came in, that there was a standing order that you could serve them hard liquor?

Mrs. RICH. That is correct.

Mr. HUBERT. And are you also saying that you did so?

Mrs. RICH. I am saying that I needed a job and did so.

Mr. HUBERT. Do you remember the names of any particular officers to whom you served hard liquor?

Mrs. RICH. House, Rayburn——

Mr. HUBERT. Let's see if we can get some first names.

Mrs. RICH. I don't remember what House's first name was, but it was Paul Rayburn, and Detective——something House——they were partners. They

worked as a team, juvenile. And the rest were just faces and uniforms.

Mr. HUBERT. How would you know them?

Mrs. RICH. At that time, I knew them.

Mr. HUBERT. You knew them to be police?

Mrs. RICH. Oh, yes.

Mr. HUBERT. Did they pay?

Mrs. RICH. Oh, no; of course not.

Mr. HUBERT. Was that an order, too, from Mr. Ruby?

Mrs. RICH. That was. Unless they came in in the evening with their wives. Then, of course, they paid. But then again, they didn't have hard liquor, either, at that time. This is when they came in, by themselves, I was to go get the private stock, as he called it, special stock. They were served whatever they wanted on the house.

Mr. HUBERT. Was that widespread?

Mrs. RICH. I am not sure I understand what you mean by widespread.

Mr. HUBERT. Well, you have mentioned two names, and then said there were others whose names you don't remember.

Mrs. RICH. Well, the only reason I remember House and Rayburn is because they were personal friends of mine.

Mr. HUBERT. Well, how many others do you suppose you served?

Mrs. RICH. I couldn't estimate. I couldn't give you a true and accurate figure. Anyone that came in from the police department. Including certain attorneys in town. One attorney I particularly remember was a fellow named Sy Victorson, who subsequently became my attorney, and a personal friend.

Mr. HUBERT. And what?

Mrs. RICH. And a personal friend.

Mr. HUBERT. What was your salary there?

Mrs. RICH. I don't remember. \$50, \$60 a week, I guess.

Mr. HUBERT. Did you have any tips?

Mrs. RICH. Sometimes.

Mr. HUBERT. Do you remember a man by the name of Andy Armstrong or Andrew Armstrong?

Mrs. RICH. The name Armstrong doesn't ring a bell. I guess, if my memory serves me correctly—wasn't the colored man that cleaned up around there, Andy?

Mr. HUBERT. Is that the way you remember him?

Mrs. RICH. I wouldn't swear to it. I do know we had a colored man cleaning up, but I would be darned if I remember his name.

Mr. HUBERT. You think it may have been Andy?

Mrs. RICH. I can't remember. I wouldn't even dare venture a guess. In all honesty, I would have to say I can't really put a face to the name.

Mr. HUBERT. But there was a colored man there?

Mrs. RICH. Yes; there was a colored man that cleaned up.

Mr. HUBERT. Did he stay on in the afternoon and at night?

Mrs. RICH. I don't remember.

Mr. HUBERT. What were your hours?

Mrs. RICH. I believe I would come in around 3, 4, 5 o'clock, I think, sometimes I would come in at 6, or 7; I would work straight through to midnight.

Mr. HUBERT. Was this cleanup man present when you came in?

Mrs. RICH. If I came in the afternoon, yes, the colored man was there. As I say, in all honesty, I could not dare venture a name on that.

Mr. HUBERT. But you don't remember any colored man who was there helping at the bar in the night hours?

Mrs. RICH. You don't notice them. I mean they are there. If you have been a bartender, you would know what I mean. You don't notice people like that. They are taken for granted they are there, you have a bar helper. Heck, I don't remember.

Mr. HUBERT. Well, what you are saying is that you do not remember that there was any colored man who assisted with the bar at night.

Mrs. RICH. I will be darned if I can even put a face to whoever did bring the bottles and stuff out to me, the cases.

Mr. HUBERT. Your answer to my question, then, is that you do not remember that there was a colored man other than the cleaner that you mentioned.

Mrs. RICH. Well, he did everything. I do remember he lugged beer cases out for me. I think if my memory is right—I think he stacked my cooler for me.

Mr. HUBERT. Would he leave before you?

Mrs. RICH. I don't really remember. As I say, these people you take for granted, you don't pay any attention to them. I never gave it a second thought. I had one thing on my mind, and it went against my grain. I was doing something I knew to be illegal, and I knew I needed the job. Every night I expected a raid. That was my prime concern.

Mr. HUBERT. Would you know a man by the name of Ralph Paul?

Mrs. RICH. Ralph Lee?

Mr. HUBERT. No; Ralph Paul.

Mrs. RICH. If he is the one I am thinking of, he was the manager at Earl's Club.

Mr. HUBERT. Earl who?

Mrs. RICH. Earl's Club. I don't know what Earl's last name was. I forgot. It is a private club in Dallas. But I knew him as Ralph Lee. Oh, I don't think it is the same one. Again, I would remember people if I saw their faces. Names I don't remember.

Mr. HUBERT. Did you know a person by the name of Eva Grant?

Mrs. RICH. Yes.

Mr. HUBERT. Who was she?

Mrs. RICH. Well, she managed Jack's other club; his sister managed the Vegas Club.

Mr. HUBERT. Did you ever meet her?

Mrs. RICH. One time.

Mr. HUBERT. Where?

Mrs. RICH. She came in at the club there one time, was introduced as his sister, and that she managed the Vegas Club, which I had never been out to.

Mr. HUBERT. Did you have any difficulty with Ruby?

Mrs. RICH. Except the fact I was about ready to throw a cash register on his head, no.

Mr. HUBERT. What was that?

Mrs. RICH. I shouldn't have said that. I said except for the fact that I was ready one night to throw a cash register on his head, no. I don't like to be pushed around.

Mr. HUBERT. Are you suggesting that he did push you around?

Mrs. RICH. I am suggesting he threw me up against the bar and put a bruise on my arm, and only because Bud King and one of the dancers there pulled me off, I was going to kill him.

Mr. HUBERT. What was the argument about?

Mrs. RICH. The bar glasses were not clean enough to suit him. And I wasn't pushing drinks to the customers fast enough.

Mr. HUBERT. And so he remonstrated with you?

Mrs. RICH. He did.

Mr. HUBERT. And that included pushing you around?

Mrs. RICH. That is correct. And I was refused the privilege of bringing an assault and battery suit against him.

Mr. HUBERT. Who refused you that?

Mrs. RICH. The police department. I went down for information and was going to Mr. Douglas—I believe he was—he is some attorney—I think he was—he is with the DA's office. I don't remember his position. I can't remember his last name. I wanted to file suit against Ruby. And I was refused. I was told if I did that I would never win it, and get myself in more trouble than I bargained for.

Mr. HUBERT. That was told to you by whom?

Mrs. RICH. By the Dallas Police Department.

Mr. HUBERT. But what individual of the Dallas Police Department?

Mrs. RICH. Again—and I wish to God I could—I can't remember his name. There was a detective, plainclothesman.

Mr. HUBERT. Did you say that you had spoken to someone in the district attorney's office?

Mrs. RICH. No; I said that is who I was going to go to. I wasn't advised. I was flatly told not to.

Mr. HUBERT. And you did not go to anyone in the district attorney's office?

Mrs. RICH. No; I did not.

Mr. HUBERT. Did that put an end to your employment with Ruby?

Mrs. RICH. No; I had already ceased with Ruby the night that that happened. I walked out, and left him cold.

Mr. HUBERT. That is what I mean.

Mrs. RICH. That is correct.

Mr. HUBERT. After this altercation, you no longer worked for him?

Mrs. RICH. I did not. I was just biding my time until I found another job, which I did find. This was on a Wednesday. I was going to give him notice and leave him—I wasn't going to leave him over the weekend, but I was going to start the other place the following Monday anyway. And this just hastened it.

Mr. HUBERT. Did you report that to your husband?

Mrs. RICH. I did.

Mr. HUBERT. He was employed in Dallas at that time, I think you said.

Mrs. RICH. Yes; he was.

Mr. HUBERT. Where?

Mrs. RICH. At this time, I don't recall whether he was working for Paul Rayburn, Detective Rayburn, at his used car lot, or whether he was with Al's Automotive. One of the two places.

Mr. HUBERT. What sort of a job did he have?

Mrs. RICH. Mechanic. Subsequently my husband went up and Jack Ruby threw him out of the club. My husband was going to talk to him. And I found out about it. Ruby had already kicked him out of the club. And then I dissuaded him from going back further. I said, "Forget it, just let it drop."

Mr. HUBERT. Did you have any other employment in Dallas after this altercation with Ruby?

Mrs. RICH. Yes, I did. At the—I think it was called just The Chalet.

Mr. HUBERT. Where was it located?

Mrs. RICH. Again I can't remember. Again it was on the other side of Dallas. It was outside—in fact, I don't think it was right in Dallas proper. It wasn't in Dallas proper, I know.

Mr. HUBERT. What sort of work did you do there?

Mrs. RICH. This was a dining place. And I was a hostess. And in the place they had this little booth, and they had a dart game, and you could throw darts and win prizes, and I also ran that place for them.

Mr. HUBERT. Who was your employer there?

Mrs. RICH. Again, I cannot recall his name.

Mr. HUBERT. How long were you there?

Mrs. RICH. Until I left Dallas—probably a month. Then we left to go back to New Orleans.

Mr. HUBERT. How long were you unemployed—that is to say, what period was there between the time you left Ruby and the time you got this

employment at The Chalet?

Mrs. RICH. Between the time I left Ruby and the time I went to The Chalet, about 5 or 6 days. And then I quit The Chalet a little before we left. And, of course, prior to going to Ruby's I wasn't employed. Then there was a period of about a week, week and a-half, while I was at Ruby's, all of a sudden he decided he didn't need a bartender. Then I am recalled back.

Mr. HUBERT. You left The Chalet about a week before you left Dallas?

Mrs. RICH. Probably a little more than that. Maybe 2, 2½ weeks.

Mr. HUBERT. Why did you leave The Chalet?

Mrs. RICH. Well, for one thing he was going to close down for renovations. And then he said, "no, I am not; I am going to sell out." And he decided to close it down anyway.

Mr. HUBERT. Did you work for a place called the Theater Lounge?

Mrs. RICH. Barney Weinstein—yes, I did.

Mr. HUBERT. When?

Mrs. RICH. That was during the time I had left Ruby and then went back to Ruby.

Mr. HUBERT. How long did you work for the Theater Lounge?

Mrs. RICH. No more than a week or two. I forgot all about working for Barney. I have to laugh. His brother owned the other stripping place in town, right next to Ruby, upstairs. And they had this amateur show, these amateur strippers. Barney was going to promote me as a stripper. No thanks.

Mr. HUBERT. All right. Now, before we get into any other matter, I want to go back to the letter that you handed me which was dated October 25, 1963. It is addressed, "To Whom it May Concern:"

It purports to be signed by Oscar Kistle, chief deputy, district attorney. It is on stationery of the office of the District Attorney of Sacramento County. I have had a Xerox copy made of it. I have returned the original to you, is that right?

Mrs. RICH. That is correct.

Mr. HUBERT. Now, I am marking the Xerox copy of that document for identification by writing on the right-hand margin the following words; to wit: "Washington, D.C., June 2, 1964, Exhibit No. 1, Deposition of Nancy Perrin Rich," under which I have signed my name, and in order that the record may show that there is no misunderstanding about it, I wonder if you would sign your name as I have mine.

Mrs. RICH. Yes; I would. Note for the record that on the left-hand margin I signed "Nancy E. Perrin Rich."

Mr. HUBERT. I think the letter that you handed me was in an envelope, which was plain, other than the fact that it had in the left-hand upper corner the words "Office of District Attorney, Room 204, Courthouse, Sacramento 14, California". I am marking a Xerox copy of the original of that envelope, which has been returned to you, for identification by writing on the Xerox copy the following, to wit: "Washington, D.C., June 2, 1964, Exhibit 2, Deposition of Nancy Perrin Rich," under which I have signed my name, and I ask you to sign yours as you did with reference to Exhibit No. 1.

Mrs. RICH. Note for the record that I signed Nancy E. Perrin Rich under Mr. Hubert's signature.

(The documents referred to were marked Nancy E. Perrin Rich Exhibits 1 and 2 for identification.)

Mr. HUBERT. Thank you, ma'am.

Mrs. RICH. At this time I would also, pertaining to my statement concerning working for various police organizations, introduce into this informal hearing, so to speak, another piece of material given to me by the Oakland Police Department while working on a case for them, under the name of Julie Anne Cody. Also under this name is a police record purposely devised by the Oakland Police Department for obvious purposes, to coincide with this card that I am about to hand to Mr. Hubert—also, how shall we say it—falsified, made up by the Oakland Police Department, for obvious purposes. This was to get me into a particular place—I had to have a police record—all done with the sanction of the Oakland Police Department. May I also note that on that card the dates and the names are fictitious, intentionally so. The card was in reality printed in, I believe, November of 1963.

Mr. HUBERT. You say you want to introduce this card into this proceeding?

Mrs. RICH. Yes. And I will tell you why. If you note the date on that, some of my statements—Let's say that this came into light, and I didn't give the explanation of why and what this meant—the dates would conflict with some of my testimony. And I want this understood that this was purely done to, shall we say, consummate a case for the Oakland Police Department. I was not actually in California the dates on that card.

Mr. HUBERT. When was this card issued to you?

Mrs. RICH. In reality, this card was issued in November of 1963. I was working on a grand larceny case.

Mr. HUBERT. You want this card back, the original?

Mrs. RICH. Yes.

Mr. HUBERT. All right. Now, as soon as we have a Xerox copy made of the card, we will identify it and sign the copies as we have done the other.

Meanwhile, let us pass on to another point. I think you have mentioned that you saw Ruby at a certain meeting at which your husband was present and there was a general discussion of guns or Cuban refugees.

Mrs. RICH. Your statement is partially correct.

Mr. HUBERT. Will you tell us what is actually correct?

Mrs. RICH. At the first meeting there were four people present. There was a colonel, or a light colonel, I forgot which. I also forget whether he was Air Force or Army. It seems to me he was Army. And it seems to me he was regular Army. There was my husband, Mr. Perrin, myself, and a fellow named Dave, and I don't remember his last name. Dave C.—I think it was Cole, but I wouldn't be sure.

Dave came to my husband with a proposition——

Mr. HUBERT. There were only four people present?

Mrs. RICH. Let me clarify the statement about Dave. He was a bartender for the University Club on Commerce Street in Dallas. I became associated with him and subsequently so did my husband. Well, at first it looked all

right to me. They wanted someone to pilot a boat—someone that knew Cuba, and my husband claimed he did. Whether he did, I don't know. I know he did know boats. So they were going to bring Cuban refugees out into Miami. All this was fine, because by that time everyone knew Castro for what he appears to be, shall we say. So I said sure, why not—\$10,000. I said that is fine.

Mr. HUBERT. Do I understand from that that you and your husband were to receive \$10,000 for your services?

Mrs. RICH. Well, I was incidental.

Mr. HUBERT. No; I would like to know.

Mrs. RICH. I say I was incidental. My husband was.

Mr. HUBERT. Your husband was to receive \$10,000?

Mrs. RICH. Yes.

Mr. HUBERT. Who told him so?

Mrs. RICH. The colonel.

Mr. HUBERT. Where did this meeting take place?

Mrs. RICH. In Dallas at an apartment building. Again, I can describe that darned building to a "T" and I couldn't tell you what street it is on.

Mr. HUBERT. Would you describe it for us, please?

Mrs. RICH. Yes; it was sitting—if I may do it in diagram.

Mr. HUBERT. Do you know what section of the city it was?

Mrs. RICH. No; this I don't. You come along—let's say this is your main street, that the apartment building set on. We have an apartment building, not setting facing the street, but with the side towards the street. A hill slopes up. There is a path that kind of winds around. There are flowers and gardens here; and in them I believe there is a little fountain—and in them was lights—illuminating the gardens; and you have to come up a little hill, and walk around—I am not sure whether there was a gravel path or not, or whether it is flagstone—and into the building here. And it was a double deck, I believe—perhaps a triple.

Mr. HUBERT. Apartment house?

Mrs. RICH. Yes.

Mr. HUBERT. How many apartments, roughly speaking?

Mrs. RICH. I could not say how many. The standard apartment building for Dallas.

Mr. HUBERT. Well, now, at this point let us do this: You have handed us the card that you referred to in your testimony previously. We have now had a Xerox copy made of it. I am handing you back the original. For the purpose of identification, I am marking the Xerox copy, front and back, as follows, to wit: "Washington, D.C., June 2, 1964, Exhibit No. 3, Deposition of Nancy Perrin Rich," and I am signing my name below that. And on the reverse side of it, which appears on another Xerox page, I am marking for the purpose of identification the following: "Washington, D.C., June 2, 1964, Exhibit No. 3-A, Deposition of Nancy Perrin Rich," under which I have signed my name. And I ask you, please, to sign both documents below my name so that the record will show that we have been speaking of the same document.

Mrs. RICH. Note for the record that I signed Nancy E. Perrin Rich under Mr. Hubert's name on Exhibit No. 3. Will you note for the record that I signed Nancy E. Perrin Rich under Mr. Hubert's name on Exhibit No. 3-A.

(The documents referred to were marked Nancy Perrin Rich Exhibits Nos. 3 and 3-A for identification.)

Mr. HUBERT. Now, a moment ago you were testifying concerning an apartment house at which you and your husband met a colonel and another man by the name of Dave C., I think you said.

Mrs. RICH. Yes; that is an initial—C. Dave took us there.

Mr. HUBERT. I am going to mark that document for the purpose of identification "Washington, D.C., June 2, 1964, Exhibit No. 4, Deposition of Nancy Perrin Rich," under which I am signing my name, and I ask you to sign your name on it, if you please.

Mrs. RICH. I didn't mean for this to be an exhibit. Will you note for the record that I signed Nancy E. Perrin Rich under Mr. Hubert's name on

Exhibit No. 4. Also note for the record the writing I am doing after signing is merely designating what the lines mean.

(The document referred to was marked Nancy Perrin Rich Exhibit No. 4 for identification.)

Mr. HUBERT. Am I correct in stating that prior to the writing you have just put on the document, Exhibit No. 4, there were merely lines which indicated a street and an apartment and a little path, showing a garden. And that since the document has been identified, you have written in all that appears in handwriting?

Mrs. RICH. That is correct.

Mr. HUBERT. Do you remember on what floor this apartment was that you visited?

Mrs. RICH. I believe the first.

Mr. HUBERT. Do you remember whether it was to the left or the right as you went in?

Mrs. RICH. There was no question of left or right as such. It was—you just walked in. There was no hallway to indicate left or right, if that is what you are referring to.

Mr. HUBERT. In other words, this apartment actually opened on the path?

Mrs. RICH. That is correct.

Mr. HUBERT. How many rooms did it have?

Mrs. RICH. I don't recall whether it was a one or two bedroom.

Mr. HUBERT. Can you give us any other description of the apartment building, first of all?

Mrs. RICH. The apartment itself wasn't too well furnished.

Mr. HUBERT. Was it a brick apartment?

Mrs. RICH. I believe it was. Either brick or stucco.

Mr. HUBERT. Do you know the color of it?

Mrs. RICH. I don't. But I believe it had colored doors. Now, I could be mistaken.

Mr. HUBERT. And the apartment itself was one or two bedrooms, and I think you say it was not well furnished. Do you recall anything about the interior of the apartment that would be significant?

Mrs. RICH. Let me clarify that. When I say not well furnished, I should have said sparsely furnished. It looked like an unfurnished apartment that he had just thrown some furniture into and not too much of it. I believe I remember he said something about he just moved in; hadn't finished it.

Mr. HUBERT. Did it have lamps in it?

Mrs. RICH. I believe it did. I think it had one lamp on the table.

Mr. HUBERT. Do you recall anything about the furniture that was there?

Mrs. RICH. Yes; it was, I believe you call it Danish modern.

Mr. HUBERT. Was it upholstered?

Mrs. RICH. I don't recall. It was typical cheap apartment furniture. I believe it had plastic upholstery.

Mr. HUBERT. I think you said you went there at night.

Mrs. RICH. Yes.

Mr. HUBERT. About what time?

Mrs. RICH. It was after dark. Probably 9 o'clock.

Mr. HUBERT. Do you recall how long it took you to drive from where you were living to this place?

Mrs. RICH. No; I do not.

Mr. HUBERT. How did you get there?

Mrs. RICH. In Dave's car. Now, again, I said four people present. I should have counted—he had a girl with him. She wasn't in it or anything, just some girl he had along for the evening. She was never part of it. In fact, I think she stayed in the car.

Mr. HUBERT. How long were you in the place?

Mrs. RICH. Oh, probably half an hour, 45 minutes, an hour at the most.

Mr. HUBERT. What was the general discussion?

Mrs. RICH. Feeling each other out. I just kind of sat there and listened. The general gist of it was we were going to obtain a boat, the colonel could obtain various things, and nothing specific was mentioned on what the various things were at that time. And we were going to go and pick up—they were deciding where to pick them up—pick up Cuban refugees, and bring them over to the main coast, meaning Miami, which, quite frankly, I adhered to because at that time, as I say, Castro is or was what we suppose him to be today, and quite frankly I had seen underprivileged countries and at that time thought it was a good idea.

Mr. HUBERT. Was the sum of \$10,000 mentioned at that meeting?

Mrs. RICH. Yes; it was.

Mr. HUBERT. Who mentioned it?

Mrs. RICH. The colonel. And it seemed awfully exorbitant for something like this. I smelled a fish, to quote a maxim.

Mr. HUBERT. You mean you thought that there was too much money involved for this sort of operation?

Mrs. RICH. Yes; I did.

Mr. HUBERT. You didn't express that view, of course?

Mrs. RICH. No; I didn't say anything. I just kept quiet.

Mr. HUBERT. How were matters left at the end of that meeting?

Mrs. RICH. That there were more people involved, and that we were to attend a meeting at some later date, of which we would be advised.

Mr. HUBERT. Were you advised?

Mrs. RICH. We were.

Mr. HUBERT. Did another meeting take place?

Mrs. RICH. Yes; it did.

Mr. HUBERT. How long after the first?

Mrs. RICH. Oh, probably 5 or 6 days, give or take a day or 2.

Mr. HUBERT. At the same place?

Mrs. RICH. Yes.

Mr. HUBERT. Was it at night?

Mrs. RICH. It was.

Mr. HUBERT. How did you get there then?

Mrs. RICH. We went in our own car, but with Dave with us. At that time, Dave and my husband and I were in our car.

Mr. HUBERT. All right. Tell us what happened.

Mrs. RICH. Well, we got there and at that time there was the colonel and another middle-aged woman, kind of a real old granite face I would describe her, steel-gray hair. Looked rather mannish. And there was a rather——

Mr. HUBERT. Did you know her name?

Mrs. RICH. No; I was introduced. Names were mentioned around. I don't recall it. And then there was another rather pugnacious-looking fellow, who looked at though he might have been an ex-prizefighter.

Mr. HUBERT. Were you introduced to him?

Mrs. RICH. I was introduced to everyone.

Mr. HUBERT. Who else was there?

Mrs. RICH. The colonel, the woman, and the prizefighter type, a couple of other men that just kind of sat off in the corner. One of them looked rather dark, like he might have been Cuban or Latin American, and Dave, my husband, and myself.

Mr. HUBERT. Tell us what happened at that meeting.

Mrs. RICH. Well, apparently from what I could discern, they had some kind of a hitch in their plans. And at that time I point blank spoke up and said, "Well, suppose we discuss the plans in full before we"—meaning my husband and myself—"get into this. I would like to know what we are getting into. And at this point you know by now I certainly have a say in

this matter.” Then it came out—boom—quite blank. We were going to bring Cuban refugees out—but we were going to run military supplies and Enfield rifles in.

Mr. HUBERT. Who made that statement?

Mrs. RICH. I believe it was the Latin-looking fellow that first made the statement. But the colonel clarified it. The colonel seemed to be the head of it and seemed to do all the talking.

Mr. HUBERT. He was in uniform?

Mrs. RICH. Yes; he was.

Mr. HUBERT. Could you describe what the colonel looked like?

Mrs. RICH. Vaguely. I would say approximately 45 to 50, perhaps a little younger. He was kind of bald, and that may have made him look older. As I recall, a rather slightly built man—and I would not swear to it.

Mr. HUBERT. Did he have any other characteristics?

Mrs. RICH. Not that I can recall, sir.

Mr. HUBERT. Was he in summer uniform?

Mrs. RICH. Yes; he was.

Mr. HUBERT. Short sleeves?

Mrs. RICH. If my memory serves me; yes.

Mr. HUBERT. Did he tell you whom he was representing in the matter?

Mrs. RICH. Not exactly. That fact never did come clear to me. A group of people.

Mr. HUBERT. Well, did he indicate in anyway that he was acting officially, in his official capacity?

Mrs. RICH. No; he was not acting officially.

Mr. HUBERT. How do you know that?

Mrs. RICH. Because of certain statements that were made—statements such as that the guns would have to come in via Mexico, meaning the Enfield rifles. Statements like “We have been taking stuff off of the base for

the last 3 months getting prepared for this”—meaning military equipment, I suppose small arms, or explosives, et cetera, as I understood it.

Mr. HUBERT. He was also in uniform on the first occasion?

Mrs. RICH. Yes.

Mr. HUBERT. The same type of uniform?

Mrs. RICH. Yes.

Mr. HUBERT. You say you never saw him out of uniform? All of the times you saw him he was in uniform?

Mrs. RICH. Yes.

Mr. HUBERT. Summer uniform?

Mrs. RICH. Yes.

Mr. HUBERT. So at that meeting it came out that the project had two purposes. One was to bring arms in, and the other was to take refugees out.

Mrs. RICH. Yes; to make money both ways. Then it became crystal clear why so much money was to be paid for the pilot of the boat.

Mr. HUBERT. And how was that meeting left?

Mrs. RICH. Well, at that time when he said that, my first thought was “Nancy, get out of here, this is no good, this stinks.” I have no qualms about making money, but not when it is against the Federal Government but let’s play along and see what happens. I said, “All right, we will go. But you can take the \$10,000 and keep it. I want \$25,000 or we don’t move.” It was left that the bigwigs would decide among themselves. During this meeting I had the shock of my life. Apparently they were having some hitch in money arriving. No one actually said that that was what it was. But this is what I presumed it to be. I am sitting there. A knock comes on the door and who walks in but my little friend Jack Ruby. And you could have knocked me over with a feather.

Mr. HUBERT. That was at the second meeting?

Mrs. RICH. Yes.

Mr. HUBERT. Now, what facts occurred to give you the impression that there was a hitch with respect to money?

Mrs. RICH. Oh, just that they were talking about, well, first of all when I say we—a group of people were supposed to go to Mexico to make the arrangement for rifles but “Well, no, you can’t leave tomorrow”—they dropped it. And just evasive statements that led me to believe that perhaps they were lacking in funds.

And then Ruby comes in, and everybody looks like this, you know, a big smile—like here comes the Saviour, or something. And he took one look at me, I took one look at him, and we glared, we never spoke a word. I don’t know if you have ever met the man. But he has this nervous air about him. And he seemed overly nervous that night. He bustled on in. The colonel rushed out into the kitchen or bedroom, I am not sure which. Ruby had—and he always did carry a gun—and I noticed a rather extensive bulge in his—about where his breast pocket would be. But at that time I thought it was a shoulder holster, which he was in the habit of carrying.

Mr. HUBERT. He was in the habit of carrying?

Mrs. RICH. Yes. Either a shoulder holster or a gun stuck in his pocket. I always had a gun behind the bar. That is normal.

Mr. HUBERT. You had seen it at his shoulder?

Mrs. RICH. Yes; which was normal—because he made the bank deposit. I made the bank deposit a couple of times for him and carried a gun when I made it.

Mr. HUBERT. Did he show any signs of recognition of you?

Mrs. RICH. Yes; he glared at me and I glared back, as much as to say to each other what the heck are you doing here.

Mr. HUBERT. Had you told the colonel and Dave what your name was prior to that?

Mrs. RICH. At that time we—I think it will be obvious to you gentlemen the reason—we were going under Jack Starr and Nancy Starr.

Mr. HUBERT. Do you mean that is the name that Ruby knew you under?

Mrs. RICH. No. Jack Ruby knew me as Nancy Perrin.

Mr. HUBERT. And he knew your husband was Robert Perrin?

Mrs. RICH. Yes. But like I say for obvious reasons we used the name Jack and Nancy Starr.

Mr. HUBERT. That is to say, you told the colonel and Dave that your name——

Mrs. RICH. No; Dave knew our real name.

Mr. HUBERT. The colonel——

Mrs. RICH. The colonel and everyone else involved, with the exception of Ruby and Dave.

Mr. HUBERT. They knew you as Nancy Starr?

Mrs. RICH. Yes. Also let me state that my husbands' nom de plume as a writer was Jack Starr. I have also published under Nancy Starr.

Mr. HUBERT. All right. What happened?

Mrs. RICH. Well, they went in and came out and the bulge was gone, and everybody was really happy, and all of a sudden they seemed to be happy. So it was my impression Ruby brought money in.

Mr. HUBERT. They walked out of the apartment?

Mrs. RICH. Ruby left. He didn't stay. He wasn't there for more than 15 minutes at the most.

Mr. HUBERT. You say all of a sudden the bulge was gone?

Mrs. RICH. The bulge was gone from Ruby when he left.

Mr. HUBERT. Did he leave the room?

Mrs. RICH. He left the apartment.

Mr. HUBERT. I mean from the time he came in until he left.

Mrs. RICH. He came in. To everyone else except my husband and I he said, "Hi." He and the colonel rushed into—I forget whether it was the kitchen or the bedroom. They were in there about 10 minutes. I heard some rather loud undistinguishable words. They closed the door. When they came out everybody looked relieved. And Ruby just walked out.

Mr. HUBERT. And said nothing to you?

Mrs. RICH. No.

Mr. HUBERT. You say the money was forthcoming?

Mrs. RICH. Yes.

Mr. HUBERT. Did you get it?

Mrs. RICH. No; we didn't. First they had to pay for this pugnacious-looking fellow and one of the Latins who were going down to Mexico to make arrangements and pay for the guns. All of a sudden just before Ruby come in they couldn't go, and right after Ruby left they were on the plane the next morning, so to speak.

Mr. HUBERT. You did not see Jack Ruby hand any money to anybody?

Mrs. RICH. No; I did not.

Mr. HUBERT. Nor did you see any money handed to anyone else.

Mrs. RICH. No; I did not.

Mr. HUBERT. So the way it was left then, these people, the others, were going to go to Mexico——

Mrs. RICH. Actually they were going to leave not the day following, but the day after that—2 days later they were going to leave for Mexico. I just assumed that that was money that Ruby brought in. Because before that they could not go, they did not have the finances, and after he left they did.

Mr. HUBERT. Did they say they did not have the finances, or was it your assumption that they did not?

Mrs. RICH. When someone is stalling around, and not setting a concrete date and saying, "Well, we have to wait" and that it will get here soon, and statements like that that I hear in conversation, then all of a sudden in comes a man with a bulge and hands it to the colonel in the back room, so to speak, and all of a sudden, boom, the reservations are made then and there, I think that is a pretty good assumption.

Mr. HUBERT. In other words, those are the facts that you observed upon which you base the assumptions that you have made.

Mrs. RICH. That is correct. And the big sigh of relief, so to speak, afterwards.

Mr. HUBERT. Well, did you then ask about your portion of the money?

Mrs. RICH. At that time it was to be decided, as I say, among the bigwigs. I had asked for \$25,000.

Mr. HUBERT. Was that before Ruby came in?

Mrs. RICH. Yes; in fact it was just a few minutes before he knocked on the door. They decided they did not know, and they were going to have a meeting—there were some other people involved higher up than they were. They would have to talk it over with them. At that time I had it in my mind I would go ahead and play ball—and I was stalling when I asked for the \$25,000—that I would notify the Federal authorities. As I say, bringing the refugees out is one thing. Running in guns is another thing, for a Communist country which at that time it was.

Mr. HUBERT. How long did that meeting last?

Mrs. RICH. They were still going when we left. And we were there about 2½ hours.

Mr. HUBERT. You mean you and your husband?

Mrs. RICH. Yes.

Mr. HUBERT. Dave remained behind?

Mrs. RICH. He remained. Well, actually at that point business was over, and it just became a party. Neither my husband nor I drink, so we left.

Mr. HUBERT. How did you leave it with them? Who was going to make the next move?

Mrs. RICH. We were to be notified as to the time and place of the next meeting and as to the decision on upping the ante, so to speak.

Mr. HUBERT. They did not reject your offer of \$25,000?

Mrs. RICH. It was to be discussed.

Mr. HUBERT. \$10,000 was all right.

Mrs. RICH. Yes; \$10,000 was offered.

Mr. HUBERT. \$25,000, which was your counter offer, had to be discussed.

Mrs. RICH. That's correct.

Mr. HUBERT. And they told you they would discuss that and let you know.

Mrs. RICH. With some other people that were higher up.

Mr. HUBERT. They told you they were higher up?

Mrs. RICH. Yes; the colonel said that they were higher up. I do not know the exact words.

Mr. HUBERT. What happened then?

Mrs. RICH. I think his exact words were something like "I will discuss it with my bosses."

Mr. HUBERT. What happened after that?

Mrs. RICH. Well, about 3 or 4 days later we were told there was going to be another meeting to attend. Dave came over and told us. And we went. And——

Mr. HUBERT. What happened at that meeting? First of all, who was there? How did you go?

Mrs. RICH. My husband and I.

Mr. HUBERT. You went in your car?

Mrs. RICH. Yes.

Mr. HUBERT. What kind of a car did you have?

Mrs. RICH. At that time I believe we had a 1956 blue and white Ford, if I am not mistaken.

Mr. HUBERT. What license plate?

Mrs. RICH. Texas.

Mr. HUBERT. Under the name of Perrin?

Mrs. RICH. Yes.

Mr. HUBERT. All right. So you went with your husband. This was the third visit. Same place?

Mrs. RICH. Same place.

Mr. HUBERT. Same apartment?

Mrs. RICH. That is correct.

Mr. HUBERT. No change in the furniture or decorations or anything of that sort?

Mrs. RICH. Not that I recall. I did not really notice.

Mr. HUBERT. And this third meeting was about 4 or 5 days after the first?

Mrs. RICH. Three or four; after the second.

Mr. HUBERT. How were you notified to come to the first meeting?

Mrs. RICH. To come to the first meeting?

Mr. HUBERT. No; the third.

Mrs. RICH. Dave.

Mr. HUBERT. In other words, Dave was the man who was in between, as it were.

Mrs. RICH. Well, Dave was in it. It was only because he was our friend.

Mr. HUBERT. Was he to get anything out of it?

Mrs. RICH. I don't know; never did.

Mr. HUBERT. Didn't you discuss that with him?

Mrs. RICH. In that sort of business, you don't discuss things, apparently.

Mr. HUBERT. Well, you did.

Mrs. RICH. Well, not to that point. It wouldn't have done me any good. I would have just gotten a "none of your business" answer.

Mr. HUBERT. You didn't know that to be a fact, did you?

Mrs. RICH. Yes; I did.

Mr. HUBERT. Why?

Mrs. RICH. Well, call it intuition. I don't know. I just wouldn't have gotten an answer.

Mr. HUBERT. Did you think that Dave expected some money?

Mrs. RICH. I suppose so. I never did get his position quite clear in my mind.

Mr. HUBERT. He was the one that had brought you into the picture in the first place.

Mrs. RICH. Yes. It seemed to me like a front man for them, or something, or a recruiter almost.

Mr. HUBERT. Well, you were concerned about the question of money involved in this thing, because as you said you let them know that you would have a say about this.

Mrs. RICH. That's right.

Mr. HUBERT. But you did not discuss with Dave whether he was to be paid by you or the other side, as it were.

Mrs. RICH. Oh, no; he wasn't to be paid by us. He brought us into the group, so to speak. The only thing I could make him out to be is a recruiter. Not to be paid by us. Nothing was ever mentioned of Dave going on any of these trips.

Mr. HUBERT. But he was not to get a fee for finding you.

Mrs. RICH. I don't know. I really don't.

Mr. HUBERT. And you did not raise the point with him.

Mrs. RICH. No.

Mr. HUBERT. Nor did your husband, to your knowledge.

Mrs. RICH. I don't know. I didn't ask him.

Mr. HUBERT. Did it concern you that Dave might want some of the money that you were going to get?

Mrs. RICH. Not particularly, because at that time I had already made up my mind to go to the authorities with it.

Mr. HUBERT. You had made up your mind when?

Mrs. RICH. After the second meeting, I found out they were going to run rifles in, and military supplies and things that apparently—again apparently were being pilfered from a base somewhere.

Mr. HUBERT. You made up your mind at the end really of the second meeting.

Mrs. RICH. Yes; and then they said to run rifles and stolen military supplies in—that was it.

Mr. HUBERT. Did you tell your husband so?

Mrs. RICH. I did.

Mr. HUBERT. Did you tell Dave so?

Mrs. RICH. I did not.

Mr. HUBERT. Did you go to the authorities?

Mrs. RICH. I never had the chance.

Mr. HUBERT. Tell us why?

Mrs. RICH. Well, we went back to that third meeting and apparently by mutual consent we got out of it.

Mr. HUBERT. Tell us what happened at the third meeting, including who was there.

Mrs. RICH. Well, who was there—there was the colonel, again this pugnacious-looking fellow who supposedly had gone to Mexico and been back; the Latin-looking fellow and the other one with him who might have been Latin wasn't there—this woman was there. And another man I had not seen before, but whose face rang a bell. And I could not put a name to it.

Mr. HUBERT. Have you ever been able to do so?

Mrs. RICH. Yes; I have.

Mr. HUBERT. Who was it?

Mrs. RICH. Again, unless I am awfully mistaken, and I have yet to be able to find a picture of this man, but I recall seeing a picture and I know why I had associated him—of his father.

Mr. HUBERT. Whose father?

Mrs. RICH. This particular man. Now, again, what I am about to say is not fact. It is something that I have never quite been able to get clear in my mind and never will, until I can find a picture. Unless I am very mistaken, the man at that third meeting was Vito Genovese's son.

Mr. HUBERT. He was not introduced as such?

Mrs. RICH. He was introduced as Tony. That was all.

Mr. HUBERT. Did you know Vito Genovese?

Mrs. RICH. No; I never did.

Mr. HUBERT. But you knew his picture.

Mrs. RICH. I had seen his picture.

Mr. HUBERT. You thought there was a resemblance between that picture and this man?

Mrs. RICH. Yes. For a week this bothered me. And all of a sudden it came crystal clear.

Mr. HUBERT. What became clear?

Mrs. RICH. That unless I was way off base, that is who it was. And I do know that a lot of people——

Mr. HUBERT. It was a week after the third meeting?

Mrs. RICH. Yes. I had been trying to put a name to that face.

Mr. HUBERT. Well, now, what else happened at the third meeting?

Mrs. RICH. Well, No. 1, the raise of ante was turned down. The colonel asked us if we would accept \$15,000. My husband started to say something. I hushed him up and said "No." I said, "I don't know. I want some time to think about it." So then the phone rang, and quite a lengthy conversation took place in the other room. I could not swear to who was on the other end of the phone, I have a pretty good idea. And the colonel came back out and said, "I don't know. We are going to call this off for a while anyway. There has just been a change of plans. We are going to have to postpone this for 3 or 4 months. There will be one more meeting." And at that time I stood up

and I said, “Look, quite frankly I don’t believe we want any part of this at all.” All I wanted to do then and there was to get the devil out of there. I quite frankly was scared. So I grabbed my old man and we cleared out.

Mr. HUBERT. But before clearing out, you told them you wanted no part of it.

Mrs. RICH. Yes; that was after the colonel had said there was going to be a 3- or 4-month delay and change of plans, and all this, that and the other. I did not quite figure that maybe things were kosher.

Mr. HUBERT. How did they accept your suggestion that you would bail out?

Mrs. RICH. I don’t know. We left. I wasn’t going to wait around to find out.

Mr. HUBERT. So you never did report it to the authorities.

Mrs. RICH. No; I never did.

Mr. HUBERT. Why?

Mrs. RICH. Well, my husband got picked up in Dallas, and I will never know if this was true—he said it wasn’t—the policeman said it was. My husband had a .45. It was not registered.

Mr. HUBERT. You mean a pistol?

Mrs. RICH. Yes; a service automatic. He had no right carrying it. He had it in the car. At that time he had a little old Nash Rambler station wagon of his own. This cop says when he picked my husband up my husband was standing in a little clearing beside the road there on the way out to Rayburn, brandishing a gun around saying he was going to kill somebody. He come to find out if it was a cop he was going to kill. I will never know to this day whether this was true or not.

Mr. HUBERT. How long after the third meeting did this happen?

Mrs. RICH. That happened between the second and third meeting, if my time elements are right.

Mr. HUBERT. Was your husband arrested?

Mrs. RICH. Yes; he was. That is when this Sy Victorson I mentioned earlier in my testimony came in. He was an attorney. Perhaps not too honest in some of the things he does, but a good attorney. And he got my husband out of it. I had to pay some money. I will never know to this day whether it was true. I can't believe it.

Mr. HUBERT. And that event took place between the second and third meeting, is that right?

Mrs. RICH. Yes.

Mr. HUBERT. How long after the third meeting did you leave Dallas?

Mrs. RICH. Oh, possibly 2 weeks.

Mr. HUBERT. And what was the reason for leaving Dallas?

Mrs. RICH. The minute I put a name to that face I said to Bob, "We are getting out of here, and we are getting out fast, right now." That was about 5 o'clock at night. At 8 o'clock we was packed in a U-Haul trailer and out.

Mr. HUBERT. But you did not put the name to the face at the third meeting.

Mrs. RICH. No; not until about a week later.

Mr. HUBERT. You then drove to New Orleans?

Mrs. RICH. Yes. But by then everything had fallen into place, because Ruby had had various characters visit him, both from New York, Chicago, even from up in Minneapolis.

Mr. HUBERT. How do you know that?

Mrs. RICH. I was introduced to some of them. I was asked to go out with some of them.

(At this point, a short recess was taken.)

Mr. HUBERT. Now, I think we left off at the place where you were saying that subsequent to the third meeting Ruby was visited by certain people whose names I do not think you mentioned.

Mrs. RICH. No; this was prior. This is while I worked for Ruby.

Mr. HUBERT. I see.

Mrs. RICH. I saw them come and go.

Mr. HUBERT. Did you see Ruby any more after the third meeting?

Mrs. RICH. I did not. I did not see him in fact at the third meeting.

Mr. HUBERT. I mean after the second.

Mrs. RICH. Oh, perhaps on the street.

Mr. HUBERT. You did not converse with him about this matter at all?

Mrs. RICH. I did not. I wanted no truck with the man.

Mr. HUBERT. And your reason for leaving Dallas, you say, was that——

Mrs. RICH. I smelled an element that I did not want to have any part of.

Mr. HUBERT. And that element was what?

Mrs. RICH. Police characters, let's say.

Mr. HUBERT. Well, specifically it was, as I understood your testimony, that you suddenly identified the man who was at the third meeting, but not at any other, as possibly being the son of Vito Genovese.

Mrs. RICH. Possibly.

Mr. HUBERT. And that you made that recognition, or you associated that man whom you saw with Vito Genovese, solely because you had seen a picture of Vito Genovese.

Mrs. RICH. That's correct.

Mr. HUBERT. And you came to the conclusion, then, that Vito Genovese and that group of people were involved in this matter.

Mrs. RICH. Within my own mind; yes. I thought—then I got thinking perhaps the higher-up that the colonel spoke of was perhaps the element I did not want to deal with that was running the guns in, and God knows what else.

Mr. HUBERT. Why didn't you report it to the authorities in the interval between the third meeting and the time you left Dallas?

Mrs. RICH. For the simple reason that I was hesitant about mentioning anything about my husband's past. I did not know how much of what my

husband had told me was true. I did not know how much of that he knew before I knew it, or how deeply he was involved in anything. And quite frankly if my husband was still alive, I would never have gone to the FBI.

Mr. HUBERT. But you already told us at the end of the second meeting you had decided to tell the authorities.

Mrs. RICH. Not when I see that element there.

Mr. HUBERT. But that element does not affect——

Mrs. RICH. That element, if what my husband had told me was true, could have involved him a lot deeper than I suspected. And quite frankly I am not stupid enough, shall we say, to believe if I ever went to the authorities and that element was involved that I would ever live to tell a second story. And if my suppositions were true as to who the man's identity really is—a combination of fear for myself and protecting my husband. And at that time I thought, I suppose many citizens do, well, let the next fellow do it, they will catch them eventually. I chose to close my eyes.

Mr. GRIFFIN. You still have the fear of that element?

Mrs. RICH. No; I do not.

Mr. GRIFFIN. Why is that?

Mrs. RICH. Well, since then I have become involved more extensively or intensively in police work—and I don't know—perhaps I have got some sense in my head. I am just not. I was told to tell you this—by the way, I had better bring it in now—I don't know if it has any direct result on this or not—but I was advised by Mr. Sweeny from the Secret Service and Mr. Fahety from the FBI to tell you of this. A week——

Mr. HUBERT. When did Mr. Sweeny and Mr. Fahety tell you what you are about to tell us?

Mrs. RICH. Fahety said it on Monday—Sweeny said it on Monday.

Mr. HUBERT. Last Monday?

Mrs. RICH. Yesterday. And Fahety told me Friday.

Mr. HUBERT. Where?

Mrs. RICH. On the phone, when I talked to the FBI and the Secret Service, respectively.

Mr. HUBERT. You did?

Mrs. RICH. Yes.

Mr. HUBERT. They called you?

Mrs. RICH. Yes.

Mr. HUBERT. What did they tell you?

Mrs. RICH. Well, the FBI had called me to advise me of my receiving this letter, because Kennett had called them. And Sweeny called me to advise me of my tickets and transportation.

Mr. GRIFFIN. Who called the FBI?

Mrs. RICH. Rod Kennett had opened the letter from you people. And at this time——

Mr. HUBERT. Tell us what they advised you.

Mrs. RICH. They advised me to tell you what I am about to tell you. A week ago last Saturday night I got home about 10:30, my brother-in-law had a stroke——

Mr. HUBERT. Let's get the date of that.

Mrs. RICH. That would be a week ago last Saturday.

Mr. HUBERT. Last Saturday was the 30th—the 23d of May.

Mrs. RICH. I believe so.

Mr. HUBERT. All right.

Mrs. RICH. About 10:30 at night I got home. And some phone calls started. Again, let me say this may not or it may have a bearing on this. My life was directly threatened. I called the Hanover police—something I very seldom will do. But I panicked. They also phoned my husband's office. He was working that night on dispatch at the cab company. They threatened my life with him. Sometimes they would call and say something, sometimes just hang up, sometimes just giggle. But they directly threatened my life. I thought perhaps it was something to do with various police organization

work I had done, somebody had a grudge or something, or a crank, or anything. The phone calls stopped and they started again. I called the police department again. But then I was in hysterics.

Last Thursday I was on my way from my home up to North Attleboro, Mass. For approximately 30 miles I was followed, and subsequently, up until last Sunday I have had a tail on me. I notified the Mansfield police. They got the registration number and the name of the fellow following me. And he could give no reason why he was almost 60 or 70 miles from where he lived.

Mr. HUBERT. And the Mansfield police have a record of that?

Mrs. RICH. That is correct. Mansfield, Mass.

Mr. HUBERT. And you also reported it to the police of——

Mrs. RICH. Hanover—the phone calls; yes. May I also add at this time that due to a personal contact of mine, I will be doing, not for pay but as a favor, a little bit of looking into a few matters for the Mansfield Police Department for Chief D'Alefie, I believe.

Mr. HUBERT. He recently contacted you?

Mrs. RICH. Well, the day I was up there we got talking and come to find out I could probably help him—in fact, me being here today stopped me from actually doing it.

Mr. HUBERT. And the day you saw him was last Thursday?

Mrs. RICH. Yes.

Mr. HUBERT. And it was at that time he said he might be able to use your services?

Mrs. RICH. Yes; most definitely. And then again, come Friday, and I get notification of this, I was just wondering whether or not it added in. It may and it may not. But I was told to tell you. And I have done so.

Mr. HUBERT. Well, what happened on Friday?

Mrs. RICH. No. I received notification, your letter.

Mr. HUBERT. I see what you mean.

Mrs. RICH. And I wondered if it did not somehow have a bearing on this.

Mr. HUBERT. But this tailing was after you got the letter, and after you had spoken to——

Mrs. RICH. No; it started the day before. It was the same week. Thursday I started to be tailed. Rod got the letter Thursday, called the FBI, and God knows how many people he told. Thursday afternoon I picked up a tail.

Mr. HUBERT. And you reported that to the Mansfield police.

Mrs. RICH. That was the first time I saw a policeman that I could pull over and say, “Get the guy, he is tailing me.” And he most definitely was.

Mr. HUBERT. But there were two occasions when you observed that you were being tailed.

Mrs. RICH. No; from last Thursday up until Sunday night I had a tail on me.

Mr. HUBERT. But you reported to the chief of police in Mansfield on Thursday that you had a tail on you.

Mrs. RICH. The Mansfield police is the one that caught the guy that was tailing me Thursday. I have not had a chance to report——

Mr. HUBERT. It was a different person, then, you think.

Mrs. RICH. The person that has been tailing me Friday, Saturday, and Sunday is not the same person that has been tailing me Thursday. They caught the guy Thursday.

Mr. HUBERT. What sort of an automobile was it that was tailing you?

Mrs. RICH. Thursday?

Mr. HUBERT. No. Well, Thursday first.

Mrs. RICH. Thursday was a black Pontiac, Massachusetts registration, a Mr. Alberto, from Hyde Park. They got him.

Mr. HUBERT. That is his name, Alberto?

Mrs. RICH. Yes.

Mr. HUBERT. What is his first name?

Mrs. RICH. I have forgotten.

Mr. HUBERT. And the other car that has been tailing you?

Mrs. RICH. Plural.

Mr. HUBERT. What?

Mrs. RICH. More than one.

Mr. HUBERT. More than one individual, or more than one car, or both?

Mrs. RICH. Both. Friday and Saturday it was a green, I would say, probably 1961, 1962 Chevrolet.

Mr. HUBERT. Green?

Mrs. RICH. Yes.

Mr. HUBERT. Was it the same man?

Mrs. RICH. No; it was not. It was an older man. The fellow following me was probably maybe 21, 23 years old.

Mr. HUBERT. That is the first fellow.

Mrs. RICH. Yes.

Mr. HUBERT. Friday and Saturday it was the same man?

Mrs. RICH. Middle aged; I didn't get a real good look at him—I would say probably in his forties. He rather looked to be a husky-looking fellow. And Sunday I picked up a tail, and it was a man and a woman. And I thought I recognized the girl, and I cannot be sure.

Mr. HUBERT. Same automobile?

Mrs. RICH. No; it was not the same vehicle.

Mr. HUBERT. Tell us about that automobile.

Mrs. RICH. The vehicle that was on me Sunday was a blue two-door hardtop. And I do not know the make of the car.

Mr. HUBERT. And you have not reported those last incidents?

Mrs. RICH. No.

Mr. HUBERT. Well, they tailed you from where to where?

Mrs. RICH. Wherever I went. I would leave the house, and believe me I think I know when I am being tailed. When I pull over to the side of the road, and a car pulls up and doesn't pass me—I will do this two or three times. And when I take a turnoff where nobody else will take, and the car is still there, I think they are tailing me.

Mr. HUBERT. You tried to shake them?

Mrs. RICH. Precisely.

Mr. HUBERT. And you were not able to do so.

Mrs. RICH. That's correct.

Mr. HUBERT. When you get to your house, did they park around it?

Mrs. RICH. The one time the man did, down on the bridge—the boundary line to our property is a river. And he sat down there and pretended to be looking in the water. And then I would see him down by Jordan's, which is an eating house. Then he would be cruising around. And finally he would give up and go away. And in a couple of hours he would be back. Every time I took the car out, they were there.

Mr. HUBERT. What about at night? Did you observe anything?

Mrs. RICH. I didn't go out at night.

Mr. HUBERT. Therefore you did not observe anything.

Mrs. RICH. No; I didn't bother. Saturday I went to Maine—took my daughter down to my mother's. I had the green car on my tail all the way to Maine and back.

Mr. HUBERT. How did you get to Washington to come to this deposition?

Mrs. RICH. By plane; American Airlines.

Mr. HUBERT. Did you notice anything about being tailed in that regard?

Mrs. RICH. I didn't notice. I don't think I was. I left my house in my own car and drove to North Quincy, where I was subsequently picked up by Mr. Milton of the Secret Service and taken directly to the airport, and he

stayed with me until I left. I was subsequently met here by Bill something-or-other of the Secret Service. Now, as I say, this may or may not—quite frankly, I don't think it does have any bearing on this. But I think it is something entirely different. I think it has to do with the names of some bookmakers and a couple of abortionists I turned in to the district attorney in Boston.

Mr. HUBERT. Now, you mentioned to me earlier that this card which has been identified as Exhibit No. 3 is a card that is usually issued—am I not right—that it is a card usually issued under the requirements of California law to a person who has got a record; is that correct?

Mrs. RICH. No; that is not correct. No. 1, the card is obsolete. That is why it was back-dated. It was merely a pawnshop identification card.

Mr. HUBERT. I think you mentioned that it would establish your status in someway for, I think you used the word, obvious purposes. What would this card do in connection with the work that you were supposed to do?

Mrs. RICH. Well, the card in itself, nothing. It would prove I was there when I said I was, because I had to attend associations with certain people, who at that time were safely tucked away, but at the time I was supposedly supposed to be there they were not—I was supposedly supposed to have worked for these people. If I recall correctly I said that I have a police record under that same name of Julie Anne Cody.

Mr. HUBERT. And that name—that police record—is a fictitious record in the sense that the offenses listed under the name of Julie Anne Cody really did not ever occur.

Mrs. RICH. That is correct.

Mr. HUBERT. Do you have any record under your right name?

Mrs. RICH. Yes, I do.

Mr. HUBERT. What is that?

Mrs. RICH. That is in Brookline, Mass., and it is a record for prostitution.

Mr. HUBERT. Is that fictitious?

Mrs. RICH. That is not.

Mr. HUBERT. Is that the only record you have?

Mrs. RICH. That's correct—that I know of.

Mr. HUBERT. Well, I assume that you would know all the records you have.

Mrs. RICH. Well, when I say that, I was picked up twice in Dallas and both times the charges were dropped—as far as I know. That is what Sy Victorson told me.

Mr. HUBERT. Were you ever charged?

Mrs. RICH. Not that I know of.

Mr. HUBERT. Were you ever booked?

Mrs. RICH. I don't believe so.

Mr. HUBERT. But you were arrested.

Mrs. RICH. Yes. One time I was in jail for a couple of hours, the other time 5 hours, because they could not get hold of Sy, who was on the golf course.

Mr. HUBERT. Were you told why you were being arrested?

Mrs. RICH. I was arrested for investigation of vag, narcotics——

Mr. HUBERT. Of what?

Mrs. RICH. Vag—vagrancy. Narcotics, prostitution, and anything else they could dream up. This is very shortly after I had threatened to go and bring suit against Mr. Ruby. I was told I might find the climate outside of Dallas a little more to my liking if I didn't take the advice of the police department.

Mr. HUBERT. Who told you that?

Mrs. RICH. The time I went down and wanted to bring charges against Ruby for assault and battery, I was told not to, and at that time I was also advised—I was not told to leave the city or anything like that, but that it was nice in Chicago, for instance, that time of year.

Mr. HUBERT. And I think you said that you did not remember the name of the man.

Mrs. RICH. I cannot remember the name of the detective that I spoke to; no.

Mr. HUBERT. But he was the detective on the police force?

Mrs. RICH. He was. Jack Ruby is very well known in Dallas. A little too well known.

Mr. HUBERT. What do you mean by that?

Mrs. RICH. Just a personal opinion. I believe—now, this is not a fact, this is just talk, this is just personal opinion—I believe at the time of the—am I naming it correctly—Oswald assassination, it was claimed that Ruby got in there pretending to be a reporter. Am I correct that that was in the printed page?

Mr. HUBERT. Well, what comment have you got to make to that?

Mrs. RICH. Anyone that made that statement would be either a damn liar or a damn fool.

Mr. HUBERT. Why?

Mrs. RICH. There is no possible way that Jack Ruby could walk in Dallas and be mistaken for a newspaper reporter, especially in the police department. Not by any stretch of the imagination.

Mr. HUBERT. Is that your opinion?

Mrs. RICH. That is not my personal opinion. That is a fact.

Mr. HUBERT. Well, on what do you base it?

Mrs. RICH. Ye gods, I don't think there is a cop in Dallas that doesn't know Jack Ruby. He practically lived at that station. They lived in his place. Even the lowest patrolman on the beat. He is a real fanatic on that, anyway.

Mr. HUBERT. When you say even the lowest patrolman on the beat, what do you mean?

Mrs. RICH. Everybody from the patrolmen on the beat in uniform to, I guess everybody with the exception of Captain Fritz, used to come in there, knew him personally. He used to practically live at the station. I am not saying that Captain Fritz didn't know him. I am saying he was never—I

have never seen him in the Carousel. He has always been, I think, a little too far above things for that.

Mr. HUBERT. Well, you have seen other high-ranking officers there?

Mrs. RICH. Yes; I have.

Mr. HUBERT. Would you name them, please?

Mrs. RICH. I would if I could. I would be only too glad to.

Mr. HUBERT. You mean you don't know?

Mrs. RICH. I cannot recall names, sir.

Mr. HUBERT. How did you know they were high-ranking officers?

Mrs. RICH. At that time I knew them. Two years from now, if somebody asked me your name, I would remember I knew you, I had seen you, but I could not tell him your name.

Mr. HUBERT. You remember Captain Fritz' name.

Mrs. RICH. Everybody remembers Captain Fritz. Will Fritz is quite a famous man. And I would say he is of the highest integrity. Probably the only one I know of on the police department that is.

Mr. HUBERT. I think you mentioned in one interview you had with the FBI that you had some information that a contact in regard to this gunrunning business was to be made at the Hotel Nueva Gallina in the city of Guadalajara, Mexico. Is that correct?

Mrs. RICH. To the best of my knowledge; yes.

Mr. HUBERT. Where did you get the information from?

Mrs. RICH. In the conversation at the second or third meeting.

Mr. HUBERT. Did you mention that to the FBI people in any of your interviews prior to January?

Mrs. RICH. Not that I recall. I never talked about it prior to the time I went there.

Mr. HUBERT. You spoke to the FBI in November and again in December.

Mrs. RICH. Let's put it this way. When you say prior to me going to the FBI—I went to the FBI the first time I believe in Oakland. And I do not recall whether or not I told them the first time or the second time about that. Whichever time I told them, I don't recall.

Mr. HUBERT. I think it is a fact, is it not, that you contacted the FBI in Brookline, Mass., sometime in January to tell them that you had been going through some things of yours and had additional information.

Mrs. RICH. I believe it was in January. It was in Boston, by the way.

Mr. HUBERT. It was in Boston?

Mrs. RICH. Yes. I believe it was Mr. Stoddard I talked to.

Mr. HUBERT. What was the additional information?

Mrs. RICH. Right now I do not even remember.

Mr. HUBERT. Do you recall that you found something among your things which indicated that the contact during the gunrunning proposition was supposed to be at this hotel in Guadalajara?

Mrs. RICH. I don't remember what it was I turned up. I think it was then—I know I turned up an address book with a telephone number in it. I forgot whether that was here or in Oakland. And some cards. I know what it was. It was on the back of a business card. That's right. It was on the back of a business card I turned that up. Yes; it was when I called them—because I had gone through my strongbox after my stuff had got here.

Mr. HUBERT. But the information that you had gotten concerning the contact point as being in this hotel in Guadalajara, that information was obtained by you at one of the meetings that you have just described.

Mrs. RICH. It was obtained there; yes. And if I remember, it had eluded me when I first talked to them. And if I am not mistaken—I should have brought it—I have it on the back of a business card at home, that I turned up among some of my old business cards from Dallas in an envelope. Now, whether or not I had recalled that and told them at the first meeting or whether it was part of the additional information I don't remember. But it seems to me I turned that business card up and did not remember that at the first talking with the FBI.

Mr. GRIFFIN. Whose name was on the front of the business card?

Mrs. RICH. Some advertising agency. It was just some card I marked it down on.

Mr. HUBERT. Were you in the advertising business in 1961?

Mrs. RICH. Yes; I was.

Mr. HUBERT. Where?

Mrs. RICH. In Boston. I handled the National Automatic Merchandising Association NAMA Week.

Mr. HUBERT. What part of 1961?

Mrs. RICH. The first week in April we had the Governor proclaim it.

Mr. HUBERT. Who said that the contact was going to be at this hotel in Guadalajara?

Mrs. RICH. I don't know which one said it, sir.

Mr. HUBERT. Do you remember at what meeting this was said?

Mrs. RICH. I believe at the third—the second. I wouldn't swear, but I think the third.

Mr. HUBERT. It was definitely not the first.

Mrs. RICH. No; definitely not the first. Either the second or the third.

Mr. HUBERT. It was at the second that you had raised your price, I think, to \$25,000.

Mrs. RICH. That is correct.

Mr. HUBERT. And it was either that meeting or the third meeting that you got the information about the contact point being in this hotel.

Mrs. RICH. I am not sure which one it was, sir.

Mr. GRIFFIN. You indicated that you did not know where this house was located in Dallas.

Mrs. RICH. I couldn't give you a street; no.

Mr. GRIFFIN. Can you give us a general area of Dallas?

Mrs. RICH. I am sorry, sir, I wish I could. I would recognize the house if I saw it. I cannot explain the human mind to you. Why is it that sometimes if you don't want to remember something, you can block things off? It was something distasteful to me. I have perhaps not been a model person but——

Mr. HUBERT. Have you heard from this man Dave since you left Dallas?

Mrs. RICH. No.

Mr. HUBERT. Does the name Dave Cherry mean anything to you?

Mrs. RICH. That's it. I have been wracking my brain for that name. A swell-looking fellow—crewcut, young, real college-looking type.

Mr. HUBERT. How long had you known him?

Mrs. RICH. A couple of months.

Mr. HUBERT. Where did you meet him?

Mrs. RICH. University Club. I believe I met him there. Just precisely where I met him I don't know. I think the University Club.

Mr. HUBERT. Is that prior to the time your husband came to Dallas?

Mrs. RICH. I don't remember if I met him before or after, to be truthful.

Mr. HUBERT. In any case, he was the man who made the contact.

Mrs. RICH. Again, as I told the FBI, I will swear about 99 percent of it that he was the one.

Mr. HUBERT. Well, you went there—he was present at three meetings.

Mrs. RICH. That is correct.

Mr. HUBERT. And you knew him for 2 months prior to that.

Mrs. RICH. That is correct—about.

Mr. HUBERT. Why should there be any doubt in your mind whatsoever?

Mrs. RICH. Because somewhere another face keeps popping up. And don't ask me to go into it, because I could not if I tried.

Mr. HUBERT. You mean you think it might not be Dave Cherry?

Mrs. RICH. No; that it is. I am about 1 percent unsure. And I told the FBI that. But that is the only face I can put with that. And I keep putting Dave in that car and over there with us.

Mr. HUBERT. Did you advise your husband about being tailed recently?

Mrs. RICH. Yes; my husband is aware of it.

Mr. GRIFFIN. Now——

Mrs. RICH. As I say, I don't believe this has anything to do with this at all. I told you merely because I was told to. Otherwise I would never point it out.

Mr. HUBERT. Perhaps we ought to get for the record what the names of these Secret Service and FBI agents are. I think you mentioned their last names. Do you know their first names?

Mrs. RICH. No; I do not, sir. I would not know them if I saw them.

Mr. HUBERT. They just spoke to you on the telephone?

Mrs. RICH. That's correct.

Mr. HUBERT. How did you know they were FBI agents?

Mrs. RICH. The first time when Mr. Fahety called me I was not sure, and I would not answer any questions. So he said, "Call me back collect" and I called the FBI back collect and it was true enough. Mr. Sweeny I know it was, because he said he bought the tickets and had information only the Secret Service would know, and that Mr. Milton would pick me up subsequently, which he did.

Mr. GRIFFIN. You mentioned, I think, Mrs. Rich, that you were going to use a boat to transport the guns to Cuba and the people back.

Mrs. RICH. That's correct.

Mr. GRIFFIN. Where was this boat located?

Mrs. RICH. From what I understood; in Miami.

Mr. GRIFFIN. What kind of a boat was it?

Mrs. RICH. I don't know. I was under the impression it might have been an old picket boat.

Mr. GRIFFIN. What gave you that impression?

Mrs. RICH. Just the talk about it. I kind of got the impression that it might have been one that had been—you know how the Coast Guard and the Navy would sell them off sometime.

Mr. GRIFFIN. Had Dave Cherry been a friend of your husband's?

Mrs. RICH. No; I don't believe so. I do not know who his friends were when he was in Dallas. Eddie Brawner and Youngblood were. Eddie Brawner could probably tell you more on this than I could; because my husband talked to him and wanted to go on the boat with him. He and Eddie used to race stock cars and stuff. And he told me—my husband claimed he used to work for Herb Noble in Dallas. There is something else. And Al Meadows. Al Meadows claimed he never saw him. He is another underworld character—back there in prohibition. And they used to run an Oklahoma gin. My husband claimed he was the only one alive who knew who gunned Herb Noble down, and that he never told. And I don't know if it is true. Eddie Brawner was supposed to be in on this with him. I think he told Eddie all about this, more than I knew.

Mr. GRIFFIN. How soon after your husband came to Dallas did Dave Cherry meet him?

Mrs. RICH. I could not really say, actually.

Mr. GRIFFIN. Well, what was the nature of his friendship for Dave Cherry?

Mrs. RICH. How did he meet him?

Mr. GRIFFIN. No. To what extent were they friendly?

Mrs. RICH. I don't know. They would go off some time and I would not even be there. Actually a lot of the stuff that transpired I could not tell you.

Mr. GRIFFIN. Was this before or after the meeting with the colonel?

Mrs. RICH. He know Dave before the meeting.

Mr. GRIFFIN. And how had he met him?

Mrs. RICH. Through me. And then again I am not clear whether I met him—this is another point I am not clear on. I am not clear whether Bob

met Dave and introduced him to me or I introduced Dave to Bob. Here again I am not clear. This may sound ridiculous, but I am not.

Mr. GRIFFIN. What was your husband's experience with boats?

Mrs. RICH. Again, factually I cannot tell you. Supposedly he had been in gun running before.

Mr. GRIFFIN. That is the only experience you know of that he had with boats?

Mrs. RICH. He claimed he owned a big boat, he and Lee Dell owned a big boat out in California. I guess he did because he had pictures of it and him working around it. I still have the pictures. Now, Lee Dell, there is another man could probably shed some light on this. But God knows where he is. I never met the man. You see, I don't know just exactly what I was involved in.

Mr. GRIFFIN. And you don't know what your role was to be in this?

Mrs. RICH. Oh, you mean in this gun-running stuff to Cuba?

Mr. GRIFFIN. Yes.

Mrs. RICH. Just by sheer force of will and apparently because they wanted my husband, I was going to go along.

Mr. GRIFFIN. You were going to go along as a passenger?

Mrs. RICH. I was going to help working the boat, because I had knowledge of boats.

Mr. GRIFFIN. What knowledge did you have of the boats?

Mrs. RICH. I was born and brought up in Biddeford, Maine. I have worked on lobster boats a good many years off and on. My uncle owns them.

Mr. HUBERT. Do you recall any occasion on which you went to the University Club and had some drinks and didn't pay for them?

Mrs. RICH. I don't think I ever paid for drinks at the University Club.

Mr. HUBERT. Why?

Mrs. RICH. Dave never took money.

Mr. HUBERT. Did you go alone?

Mrs. RICH. I don't remember. I believe so. Maybe, maybe not.

Mr. HUBERT. But they would not take your money?

Mrs. RICH. Dave never charged me. He always told me it was all right. And I don't drink anyway. All I drink is coke. Once in a great, great while I will drink either a grasshopper or like last night I was all keyed up so I had a brandy Alexander before I went to bed. But I might have done this five times in 10 years.

Mr. HUBERT. Do you remember an argument you had with your former and deceased husband, Robert Perrin, in the University Club, which argument was witnessed by Dave Cherry?

Mrs. RICH. I never had an argument with my husband in the University Club or anywhere else.

Mr. HUBERT. Do you remember the manager of the University Club telling you that neither you nor your husband could return to the club thereafter?

Mrs. RICH. I do not.

Mr. HUBERT. Did you ever telephone Cherry advising him that you were leaving for New Orleans and that you expected to work for the Playboy Club there?

Mrs. RICH. I believe I did. I might have, because that is what my plans happened to have been.

Mr. HUBERT. Did you in fact work for the Playboy Club?

Mrs. RICH. Yes, I did.

Mr. HUBERT. For how long?

Mrs. RICH. 2 or 3 nights.

Mr. HUBERT. What happened?

Mrs. RICH. I didn't like it. For one thing, you were not allowed to keep tips.

Mr. HUBERT. Where did you live in New Orleans?

Mrs. RICH. Part of the time down in one of the Sisters' places, down in the French Quarter, on St. Philip's Street. And then 1713 Calhoun. That is where my husband died. And various other places which I cannot remember, sir.

Mr. HUBERT. What did your husband do for a living while you were in New Orleans?

Mrs. RICH. The last time he had the best position I have ever seen him hold. He was working for a construction company.

Mr. HUBERT. Which one?

Mrs. RICH. Oh, dear. Dickie Bennett, Mr. McHane, those were two of his bosses—Mr. White.

Mr. HUBERT. What construction was he working on?

Mrs. RICH. Well, he was a mechanic for the heavy equipment. He was just getting a raise and everything when this happened.

Mr. HUBERT. Do you know the location where he was working?

Mrs. RICH. Yes, out in Jeff Parish.

Mr. HUBERT. Was the building going up there?

Mrs. RICH. No, they had this contract for the phone company. They would lay all their roads, and the poles and stuff, and various things. He would go out on jobs. I got him the job through Dickie Bennett.

Mr. HUBERT. You did not work at that time?

Mrs. RICH. I——

Mr. HUBERT. I mean the time you were in New Orleans.

Mrs. RICH. I would rather not answer that.

Mr. GRIFFIN. This——

Mrs. RICH. I will answer to this extent. For one thing, I dealt black jack.

Mr. GRIFFIN. Mrs. Rich, you mentioned the name of a man by the name of Brawner. Now, did Mr. Brawner ever attend any of these meetings with the colonel?

Mrs. RICH. No.

Mr. GRIFFIN. So his only knowledge of this would be what your husband might have told him.

Mrs. RICH. That is correct.

Mr. GRIFFIN. What does Mr. Brawner do for a living?

Mrs. RICH. I don't know what Eddie does—odd jobs.

Mr. GRIFFIN. How old a man is he?

Mrs. RICH. Middle age—40, maybe. Does a lot of work with kids in these go carts—soap box derbies and stuff. I guess they used to be in the carnival together. As I say, everything I say, I don't know how much truth there is in it from what my husband told me.

Mr. GRIFFIN. Where does Mr. Brawner live?

Mrs. RICH. Grand Prairie.

Mr. GRIFFIN. Do you know where in Grand Prairie?

Mrs. RICH. No.

Mr. GRIFFIN. Is he married?

Mrs. RICH. Yes.

Mr. GRIFFIN. Does he have a family?

Mrs. RICH. Yes; he does. I believe his wife's name is Mary.

Mr. GRIFFIN. How many children does he have?

Mrs. RICH. I don't remember—quite a few—three or four.

I would like one thing known. Until the time I met my husband and since he died I have done nothing that I would be ashamed of, nothing I would not do in public. Now that I am married to Mr. Rich I do not want any recriminations due to the fact of the period of time I was married to my husband. My husband—the first year and a half of our marriage was beautiful. Then my husband turned me out. Don't ask me why I didn't leave him. Everyone else asked me that. It is not easy being something that is against everything that you believe in or stand for 2 years. There were periods—I told the FBI this, and I might as well state it right here. I was a

prostitute—call it what you may—call girl, madam. It still boils down to the same damn thing. When I worked, he worked. When I quit, he quit.

Mr. HUBERT. You are talking about Robert Perrin?

Mrs. RICH. I am talking about Robert Perrin.

Mr. GRIFFIN. When did you marry Mr. Perrin?

Mrs. RICH. July of—August of 1960, I believe—1961. I have forgotten.

Mr. GRIFFIN. Prior to that time you had never been in any trouble with the police?

Mrs. RICH. No; except when I was 16, I was driving a car with no license and had been taking some medicine and I hit a pole with it, and lied to my uncle, who was the judge, and he made me pay a fine. He made me spend overnight in our own little jail in our own little town to teach me a lesson, and it did. He said if I had not lied, it would have been all right.

Mr. HUBERT. What was the significance of your remark that when you worked he worked, and when you did not work——

Mrs. RICH. As long as I was hustling he would work, and as long as I wasn't hustling he would not work.

Mr. HUBERT. Does that mean he was——

Mrs. RICH. My husband turned me out. That is what it means.

Mr. HUBERT. Turned you out of the house?

Mrs. RICH. This is an expression used in that particular trade.

Mr. HUBERT. What you mean is——

Mrs. RICH. He taught me how to be a prostitute, obtained dates for me, et cetera, et cetera, et cetera. I married into a very respectable family. I come from a respectable family. And I came here today all set on any question such as this to take the fifth amendment, or just refuse to answer.

Mr. HUBERT. Well, ma'am, let the record show that a moment ago, when you said you would rather not go into this, you were not pressed into going into it, but you said you wished to do so, is that correct?

Mrs. RICH. That is not correct.

Mr. HUBERT. What was the situation?

Mrs. RICH. Why did I do it?

Mr. HUBERT. No; why did you tell us about this?

Mrs. RICH. I am sorry. Change my statement from that is not correct to that is correct.

Mr. HUBERT. That is to say a moment ago—let me get this clear—when you said that is a matter you did not want to go into, you will agree with me, will you not, that I did not pursue the matter, but that you then said “I might as well tell you” and proceeded to do so.

Mrs. RICH. That is correct. Why did I do so?

Mr. HUBERT. No, ma’am; I am not asking you why.

Mrs. RICH. All right, that’s fine.

Mr. HUBERT. I think we do have the date of your husband’s death.

Mrs. RICH. August 29, 1962, city of New Orleans.

Mr. HUBERT. And you say there was an autopsy made?

Mrs. RICH. Yes; there was. He had been dead 2 days before I knew it. I wasn’t there. I think all I felt was a great sense of relief.

Mr. HUBERT. Now, Mrs. Rich, is it not a fact that there has been no off-the-record conversation between us at all?

Mrs. RICH. That is correct?

Mr. HUBERT. Is it not a fact that all that has occurred between you and me in this interview, with Mr. Griffin, is all on the record?

Mrs. RICH. That is correct.

Mr. HUBERT. All right. Thank you, Mrs. Rich.

TESTIMONY OF EARL RUBY

The testimony of Earl Ruby was taken at 9 a.m., on June 3, 1964, at 200 Maryland Avenue NE., Washington, D.C., by Messrs. Burt W. Griffin and Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is the deposition of Earl Ruby.

My name is Leon D. Hubert. I am a member of the Advisory Staff of the General Counsel of the President's Commission on the Assassination of President Kennedy.

Under the provisions of the Presidential Executive Order 11130, dated November 29, 1963, the joint resolution of Congress No. 137, and the rules of procedure adopted by the President's Commission, in conformance with that Executive order and that joint resolution, I have been authorized by the Commission to take a sworn deposition from you.

I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate and report upon the facts relative to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald.

In particular as to you, Mr. Ruby, the nature of the inquiry today is to determine what facts you know about the death of Oswald, and about any possible relationship of Jack Ruby with that death, and any other pertinent facts you may know about the general inquiry.

Now, Mr. Ruby, I think you appear here today by virtue of a letter addressed to you by Mr. J. Lee Rankin, General Counsel for the staff of the President's Commission. Is that a fact, sir?

Mr. RUBY. Yes; that is true.

Mr. HUBERT. When was that received?

Mr. RUBY. I received that Monday when I returned home from work about 7 p.m., it was waiting for me.

Mr. HUBERT. It was June 1?

Mr. RUBY. Yes.

Mr. HUBERT. Do you remember the date of it?

Mr. RUBY. That it was mailed?

Mr. HUBERT. Yes.

Mr. RUBY. It was mailed May 28.

Mr. HUBERT. I don't think there is any problem about it, but just to make certain, under the rules adopted by the Commission you are entitled to a 3-day written notice prior to the taking of this deposition, but the rules also provide that a witness may waive the 3-day notice if he wishes. I think that there has actually been a 3-day notice under the rules of the Commission since the 3 days commence to run from the time of the mailing of the document, but in this case, as I said, the rules provide that you can waive the 3-day written notice, and I will ask you now if you are willing to waive it and go on with your testimony today.

Mr. RUBY. Yes; I am willing to waive the 3-day notice.

Mr. HUBERT. Will you stand, then, and raise your right hand, so I may administer the oath.

Do you solemnly swear the testimony you are about to give in this matter will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. RUBY. Yes; I do.

Mr. HUBERT. Will you state your full name, please, sir?

Mr. RUBY. Earl R. Ruby.

Mr. HUBERT. How old are you, Mr. Ruby?

Mr. RUBY. Forty-nine.

Mr. HUBERT. You are married?

Mr. RUBY. Yes.

Mr. HUBERT. Who are you married to? What was the maiden name of the lady you married?

Mr. RUBY. Margie Greene.

Mr. HUBERT. And have you been married only once?

Mr. RUBY. No; I was married twice.

Mr. HUBERT. What was the name of your first wife?

Mr. RUBY. Mildred Brownstein.

Mr. HUBERT. When did you marry her, and where?

Mr. RUBY. I married her in Chicago in 1945.

Mr. HUBERT. And how was that marriage dissolved?

Mr. RUBY. Through divorce.

Mr. HUBERT. Where was the divorce obtained?

Mr. RUBY. In Chicago.

Mr. HUBERT. You have been married, then, twice only?

Mr. RUBY. Yes.

Mr. HUBERT. And do you have any children?

Mr. RUBY. Yes; three.

Mr. HUBERT. Any from the first marriage?

Mr. RUBY. No.

Mr. HUBERT. For the record, would you state the names of the children and their ages?

Mr. RUBY. Robert, 15 years of age; Denise, 13 years of age; and Joyce, 10 years of age.

Mr. HUBERT. Where do you presently reside?

Mr. RUBY. 29925 Woodland Drive, Southfield, Mich.

Mr. HUBERT. Is Southfield near Detroit?

Mr. RUBY. Yes; it is a suburb, northwest suburb of Detroit.

Mr. HUBERT. Mr. Ruby, I wish to get some general background concerning you, starting off with where you were born and where you spent the early years of your life. Will you tell us, please?

Mr. RUBY. Yes, sir. I was born in Chicago on April 16, 1915, and I lived on what is known as the east side of Chicago, and went to school in that area for a few years, and then my mother and father became separated, and I was sent to a foster home, and then I also was sent to live on a farm for a year, a little more than a year. Then I came back and lived in another foster home for awhile. Then we sort of, the family sort of, got together and I moved back with my mother and the rest of the family other than my father, and then we more or less lived together until I enlisted in the Service in 1942, and then my mother passed away in 1944, and then I became married in 1945. Is that skipping too much, do you think?

Mr. HUBERT. No; I would like to go back a bit and get some dates on some of the things you have said there. For example, when did your father and mother separate so that home was broken?

Mr. RUBY. I don't know. I don't remember, it is so far.

Mr. HUBERT. How old were you, roughly?

Mr. RUBY. I don't even know, 8, 7, 8, 9. I don't even remember.

Mr. HUBERT. In other words, you think it would have been around the early 1920's, 1922, 1923, 1924, somewhere along in there?

Mr. RUBY. Yes. I don't remember those dates at all.

Mr. HUBERT. What were the foster homes? Were they sort of orphanages?

Mr. RUBY. No.

Mr. HUBERT. Or homes.

Mr. RUBY. Private homes.

Mr. HUBERT. Private homes?

Mr. RUBY. Private homes.

Mr. HUBERT. Were you separated from your brothers and sisters when you went to the foster home, or did they go to the same foster home?

Mr. RUBY. On the farm I was with my brother Sam, and Jack was in another farm some distance away from us. In the foster home Sam and I were together again, I think, just Sam and I. Then in another foster home, I think Jack was with us. The three of us were in one foster home together.

Mr. HUBERT. Now, you said that you lived at what was called the east side in Chicago.

Mr. RUBY. Yes; it was like the ghetto of Chicago.

Mr. HUBERT. I wanted to get what sort of a neighborhood is that? What sort of a district was it?

Mr. RUBY. It was the Maxwell Street district of Chicago.

Mr. HUBERT. Could you describe that a bit?

Mr. RUBY. It is where they have the pushcarts on the street. I don't know a word that would describe that, but you know, have all their wares displayed right on the street and right on the sidewalk. It is several blocks long.

Mr. HUBERT. The foster homes were not in that neighborhood, were they?

Mr. RUBY. No, no.

Mr. HUBERT. Where were the farms?

Mr. RUBY. The farm that I was on was in Woodstock, Ill.

Mr. HUBERT. What sort of work were you doing on the farm?

Mr. RUBY. We helped the farmer, you know, with regular farm chores. We fed the cows and the horses and took the cows to the pasture and brought them back.

Mr. HUBERT. Did you go to school during all that time?

Mr. RUBY. Oh, yes; sure.

Mr. HUBERT. Even when you were on the farm?

Mr. RUBY. Oh, yes; sure.

Mr. HUBERT. So that what is your educational background?

Mr. RUBY. I finished high school.

Mr. HUBERT. Which one?

Mr. RUBY. Crane High School in Chicago.

Mr. HUBERT. Have you had any other formal education in the sense of special training in any field?

Mr. RUBY. I would say no.

Mr. HUBERT. Can you tell us something of the background and early life of your brother Jack, say, from the time 1925 forward, 1930, along in there? I think he is a couple of years older than you.

Mr. RUBY. Yes. He is about 3 years older than I am. Well, I can tell you that he always seemed to be in fights in one manner or another that I can remember. He was like the bodyguard of the family, you might say, because in those years we lived a half block from Roosevelt Road, and on the other side of the road was the Italian section, and that was called, we used to call it Dago Town, and the Jews couldn't go near that street. And my sisters, well, if they weren't escorted to the streetcars then and nobody arranged to meet them at the streetcar when they returned from work, they would be insulted and abused. So that was, more or less, Jack's job, if I recall, to meet them there.

He always had to go and meet them at the streetcar when they were returning from work. In the morning I don't think it was so bad because so many people were going to the streetcar.

Mr. HUBERT. How old was Jack at that time that you are describing? I gather it would have been after the family was brought together again.

Mr. RUBY. No, no, no. This goes back, it must have been in the twenties. Maybe he was 15 years old or so.

Mr. HUBERT. When did the family come back together again after having been separated?

Mr. RUBY. Maybe 1928 or 1929. I am not sure of these dates, you know.

Mr. HUBERT. The reason I asked is because I was under the impression that after your father left, there was a breakup of the family, and then you were not living in this section of Chicago.

Mr. RUBY. No. We moved west on Sacramento Boulevard. That is when I remember coming back to the family.

Mr. HUBERT. What I am getting at are these instances that Jack had to act as bodyguard against the Italian element, as you put it. That was not when you were living in foster homes, was it?

Mr. RUBY. No, no.

Mr. HUBERT. Nor was it when you were living on the farm?

Mr. RUBY. No, no, no. That was in Chicago.

Mr. HUBERT. So it was either prior to the breakup of the family or afterwards?

Mr. RUBY. Yes.

Mr. HUBERT. After the reconciliation, or was it both?

Mr. RUBY. I would say that I remember it was prior.

Mr. HUBERT. He was just a teenager then?

Mr. RUBY. That is right.

Mr. HUBERT. When the family was brought together again, which was around 1928, where did the family live then?

Mr. RUBY. On Sacramento Boulevard in Chicago.

Mr. HUBERT. And that is a different thing from the so-called east side?

Mr. RUBY. Yes; that is further west.

Mr. HUBERT. And you didn't have any such difficulties at that time?

Mr. RUBY. Yes; we did, because even though we were west we were still borderlining the Italian element, but we were further west. But it was an improvement as to the other section.

Mr. HUBERT. Now, the family remained more or less as a unit, I gather it is your testimony, until the war came.

Mr. RUBY. Yes, yes. Before the war Jack lived in San Francisco for awhile.

Mr. HUBERT. How long did he live there, do you know?

Mr. RUBY. It would be a few years. I don't know exactly.

Mr. HUBERT. I think he went there with your sister.

Mr. RUBY. That is right, sir; and he was working for a newspaper selling subscriptions.

Mr. HUBERT. Do you know why they went out to the west coast?

Mr. RUBY. No; I don't.

Mr. HUBERT. It was just Eva and Jack?

Mr. RUBY. Yes.

Mr. HUBERT. Had the other girls married by then?

Mr. RUBY. I think one sister was married. I think my sister Ann was married by then.

Mr. HUBERT. Have you ever, yourself, been convicted of any felony?

Mr. RUBY. No; never.

Mr. HUBERT. Did you have any business dealings at all with Jack prior to 1933, that is to say, prior to the time you moved to the west coast?

Mr. RUBY. Business dealings? No; because I was going to school then. I was in grammar school and high school.

Mr. HUBERT. In 1933 actually you were 18.

Mr. RUBY. Yes; I was in high school.

Mr. HUBERT. What about your business associations with Jack after his return from the west coast, until you went into the service? Did you have any?

Mr. RUBY. Yes. We worked together for, oh, I think maybe a year. He and another fellow, I think his name is Harry Epstein, organized the Spartan Novelty Co., which has been out of business for many years.

Mr. HUBERT. Was that a corporation?

Mr. RUBY. No; it was just a small company, very.

Mr. HUBERT. Were you a part of it then, or did you become a part of it?

Mr. RUBY. No; I was only an employee. I worked with them.

Mr. HUBERT. What was the business of that company?

Mr. RUBY. It was selling cedar chests with candy and punchcards.

Mr. HUBERT. How long did that business last?

Mr. RUBY. Only until, I worked with them only until the war broke out, because I came back. I was working with them—right after the war broke out December 7, then February—some time in February—I enlisted in the Seabees of the Navy, and then I went into the service, and when I came out of the service, my other three brothers were still in, and I started up the same type of business, cedar chests with candy.

Mr. HUBERT. This Spartan Novelty Co. was really prior to the war then?

Mr. RUBY. Yes.

Mr. HUBERT. And it lasted how many years?

Mr. RUBY. Well, I only worked for them about a year.

Mr. HUBERT. Is Epstein still living?

Mr. RUBY. Still living? Oh, yes.

Mr. HUBERT. Where?

Mr. RUBY. In Chicago.

Mr. HUBERT. What business is he in?

Mr. RUBY. He sells, manufactures and sells—what would you call that—I think onyx desk sets. I did have business dealings then. Do you want me to go on now?

Mr. HUBERT. I wanted to ask you about a trip that I think you took to Seattle in 1941. Do you remember that?

Mr. RUBY. Seattle?

Mr. HUBERT. Washington; yes.

Mr. RUBY. Seattle in 1941. In 1942 in the service, 1942.

Mr. HUBERT. In other words, you did go to Seattle?

Mr. RUBY. Yes, because I went through the Seabees. I was in the Seabees, and we shoved off from Bremerton, Wash., which, as you know, is right across the bay from Seattle. That is the only time I remember being there.

Mr. HUBERT. You don't remember the name of Daniel Sloan?

Mr. RUBY. I know the Sloan family in Chicago, but I don't know if his name is Daniel.

Mr. HUBERT. Do you know any Sloan family, and particularly a Daniel Sloan, in Seattle?

Mr. RUBY. No.

Mr. HUBERT. And your statement is that you did not visit him prior to the war at all?

Mr. RUBY. No.

Mr. HUBERT. Or had you ever been to Seattle prior to the war?

Mr. RUBY. No. Only with the Seabees when we stayed at Camp—I can't remember—I think it is Lewis, Fort Lewis there. We stayed with the Army because they had no facilities, and we then went across to Bremerton and we got on a ship there and left from there.

Mr. HUBERT. Where did you go to?

Mr. RUBY. The Aleutian Islands.

Mr. HUBERT. How long did you stay in the service?

Mr. RUBY. In the service? About 2 years.

Mr. HUBERT. And were you honorably discharged?

Mr. RUBY. Yes.

Mr. HUBERT. You left the service prior to the end of the war, then?

Mr. RUBY. Yes.

Mr. HUBERT. Would you explain how that came about?

Mr. RUBY. Well, I had some trouble with a varicocele in my testicles.

Mr. HUBERT. Are you sure it is not varicose?

Mr. RUBY. No, they call it varicocele. It is a little different.

Mr. HUBERT. Did you get a medical discharge?

Mr. RUBY. Yes, I think it is called a medical.

Mr. HUBERT. Was there any disability of such a nature that you received disability pay?

Mr. RUBY. Yes, 10 percent.

Mr. HUBERT. And you still do?

Mr. RUBY. Yes. Anyhow, how this took place, they were going to operate, and they prepared me for the operation the night before. You know, they shaved me and all that, and give me the pill, the sleeping pill or whatever it was, and then the next morning I got up and I was dopey, of course, and I felt—and there was no operation—no pain, and I couldn't understand it, and so when I was able enough to talk coherently I called the nurse and asked her what happened. She says they changed their mind, and they were going to discharge me from the service because they didn't think I would be of much use to them after the operation. I think that was the reason, or they decided that.

Mr. HUBERT. So you left the service in 1944?

Mr. RUBY. Right.

Mr. HUBERT. Where did you go then?

Mr. RUBY. Chicago.

Mr. HUBERT. Whom did you live with?

Mr. RUBY. The family.

Mr. HUBERT. And what did you do?

Mr. RUBY. And I started up this cedar chest business again.

Mr. HUBERT. Did you have a trade name then?

Mr. RUBY. I called it Earl Products Co.

Mr. HUBERT. It was not a corporation?

Mr. RUBY. No.

Mr. HUBERT. Did you have any kind of a punchboard operation?

Mr. RUBY. No; that was before. That was the Spartan Novelty. Mine was just selling—no, I sold some punchboards, that is right. I sold some punchboards with my operation for about a year.

Mr. HUBERT. These were candy punchboards, were they?

Mr. RUBY. Right.

Mr. HUBERT. Where you might win some candy, is that correct, if you punched the right number?

Mr. RUBY. Well, they could win a box of candy or win a pen set, I think it was.

Mr. HUBERT. What area did you operate in as to the Earl Products Co.?

Mr. RUBY. Well, I operated it through Earl Mail, more or less, through advertising in the Billboard Magazine, and I shipped in, it wasn't a large operation, but I shipped out of State all the way across the country. I don't remember the States, but I did ship quite a few States over the years.

Mr. HUBERT. And you were alone at the time?

Mr. RUBY. Yes, I was by myself then.

Mr. HUBERT. Did your brothers ultimately join you?

Mr. RUBY. Yes; as my brothers came out of the service, I took them in and gave them a piece of the business. First Sam came out.

Mr. HUBERT. Did they invest?

Mr. RUBY. No.

Mr. HUBERT. Or they just came in?

Mr. RUBY. No.

Mr. HUBERT. They didn't put up any money?

Mr. RUBY. When Sam came out, I gave him half interest. Then when my oldest brother came out——

Mr. HUBERT. That is Jack?

Mr. RUBY. No; Hyman. And then I took him in. Then when Jack came out, then I took him in. So we were all together for not too long because it just wasn't enough for all of us.

Mr. HUBERT. You all were sharing the profits?

Mr. RUBY. Yes.

Mr. HUBERT. Equally?

Mr. RUBY. Yes.

Mr. HUBERT. It was not on a salary or commission basis?

Mr. RUBY. I think we were sharing that equally. I am quite sure.

Mr. HUBERT. Tell us what happened to the company?

Mr. RUBY. Well, then my brother Hyman left us, and then there was Jack, Sam, and myself left.

Mr. HUBERT. What did Hyman leave for? What was the reason for his leaving?

Mr. RUBY. There just wasn't enough money, and you know when there is not enough money we have a few arguments in the family, so he decided to leave.

Mr. HUBERT. What business did he go into?

Mr. RUBY. I don't remember. I think he went himself in some company.

Mr. HUBERT. Then there were three of you. What happened then?

Mr. RUBY. Then my sister Eva had been in Dallas for, oh, a few years, and she had been writing to Jack and telling him how good it was down there.

Mr. HUBERT. What was she doing, do you recall?

Mr. RUBY. Running a nightclub. I think it was called the Silver Spur.

Mr. HUBERT. And then?

Mr. RUBY. So Jack and Sam had an argument, and so we just couldn't get along, so we decided to buy Jack out.

Mr. HUBERT. That is to say you and Sam decided to do that?

Mr. RUBY. Yes, yes, yes; and we then bought him out. I think we paid him something like \$14,000 or \$15,000, 14,000 and some hundred dollars, and he left for Dallas, and he remained there until the incident happened.

Mr. HUBERT. When he had the argument with Sam which led to his leaving the Earl Products Co., did he intend then to go to Dallas? Was that one of the causes for his leaving?

Mr. RUBY. I don't know what was in his mind. I don't remember. I just don't know.

Mr. HUBERT. How was he paid?

Mr. RUBY. We paid him a lump sum, about \$14,000 or \$15,000, so when he left he had quite a bit of money.

Mr. HUBERT. In cash?

Mr. RUBY. Yes; he had quite a bit of money.

Mr. HUBERT. And he left for Dallas shortly thereafter?

Mr. RUBY. Yes; very shortly thereafter he left.

Mr. HUBERT. That would have been what year, sir; about?

Mr. RUBY. I think 1947; 1947.

Mr. HUBERT. Did you keep in contact with him?

Mr. RUBY. Oh, yes; we corresponded, not too often. We came up every few years. Of course, he came up for my mother's funeral in 1944. Then he came up for my dad's funeral.

Mr. HUBERT. He came from the service for your mother's funeral, I suppose?

Mr. RUBY. Yes; that is right. At that time he was in the service.

Mr. HUBERT. And your father died in what year?

Mr. RUBY. 1960.

Mr. HUBERT. Now, I understand that you and your brother Sam changed your name from Rubenstein to Ruby by a court proceeding for that purpose?

Mr. RUBY. Yes.

Mr. HUBERT. Was that a coordinated decision between you and Sam?

Mr. RUBY. Yes.

Mr. HUBERT. You know, do you not, that Jack did the same thing about the same time?

Mr. RUBY. Yes.

Mr. HUBERT. Was that coordinated with him, too?

Mr. RUBY. No; I don't think so. In our conversations in telling him that we were doing it, maybe he decided to do it, but I don't know if it had any bearing at all.

Mr. HUBERT. What was the reason for the change of name?

Mr. RUBY. Well, first, everybody called me Ruby, even in the service, and wherever I went they called me Ruby, so that was one of the reasons to change it.

Mr. HUBERT. After Jack left did you and Sam continue in business?

Mr. RUBY. Oh, yes.

Mr. HUBERT. For how long?

Mr. RUBY. For possibly 8 or 9 years, anyhow.

Mr. HUBERT. You still lived in Chicago at that time?

Mr. RUBY. Oh, yes.

Mr. HUBERT. Do you know what was the cause of the breakup of the Earl Products Co. which then consisted of you and Sam only, and of Sam's removal to Dallas?

Mr. RUBY. Well, I didn't like—he was supposed to handle the shop and I was handling the office and the advertising, and by this time, when I say "shop" you must understand we were now in the manufacturing business.

Mr. HUBERT. What were you manufacturing?

Mr. RUBY. We were manufacturing aluminum salt and pepper shakers, key chains, bottle openers, screw drivers, small hammers.

Mr. HUBERT. How large an operation was that?

Mr. RUBY. Well, I think our maximum sales there reached about a quarter of a million dollars.

Mr. HUBERT. How many employees did you have at the maximum?

Mr. RUBY. Its maximum we had there was probably 40 at any given time. Anyhow, he was supposed to run the shop and I was supposed to run the office, and I didn't think he was taking care of the shop the way he should, and I told him several times, and finally he says, "Well, if you can do better, you can take care of that yourself," and he didn't report to work for almost a year.

In the meantime, I was giving him his check every week. So, finally I decided after waiting that long that the only thing to do was dissolve the partnership and buy him out.

Mr. HUBERT. How much did you pay him when you bought him out?

Mr. RUBY. I paid him a total of about \$30,000.

Mr. HUBERT. And you say you actually paid him a weekly salary check?

Mr. RUBY. Yes.

Mr. HUBERT. Although he didn't do any work at all?

Mr. RUBY. That is right.

Mr. HUBERT. What was he doing as a matter of fact during that year?

Mr. RUBY. Nothing. He was just—just nothing.

Mr. HUBERT. You didn't even see him do you mean?

Mr. RUBY. No; I didn't see him for about almost a year.

Mr. HUBERT. And you made no effort to correct that situation?

Mr. RUBY. Oh, yes; I talked and members of the family talked to him, and finally in order to dissolve it, I even called Jack and had him come up from Dallas to see if he could, you know, make peace in the family, and he just couldn't do it.

Mr. HUBERT. That would have been around 1954 or 1955?

Mr. RUBY. Yes; right in there.

Mr. HUBERT. Then when you bought out Jack, did you continue to operate the Earl Products Co. alone?

Mr. RUBY. You mean Sam?

Mr. HUBERT. Sam I mean; yes.

Mr. RUBY. Oh, yes; I operated until 1959.

Mr. HUBERT. Then what happened to the company?

Mr. RUBY. Then I sold it.

Mr. HUBERT. To whom?

Mr. RUBY. To Herschel Oliff, and the reason I sold it was I was manufacturing a line of novelties, and the Japan imports were just cutting down my business and I could see the handwriting on the wall, so I decided I had better get out while I can, which I did.

Mr. HUBERT. All right. Then what did you do?

Mr. RUBY. Then I didn't work for, oh, 6 or 8 months.

Mr. HUBERT. I assume you were living off of the profits?

Mr. RUBY. Well, he was paying me.

Mr. HUBERT. You mean the purchaser, Mr. Oliff, was paying you?

Mr. RUBY. Yes; he gave me so much down and so much a week so I was able to get along. Anyhow, at that time I became depressed and I was thinking of doing away with myself, so I went over to the veterans hospital in Chicago and talked to them over there, and they suggested I come in there, which I did, and I stayed a few weeks.

Mr. HUBERT. You mean you were hospitalized?

Mr. RUBY. Yes; they hospitalized me in the psychopathic ward there, and I stayed there a week or two, and then I couldn't see—there were so many of us and they couldn't, at least I didn't think they were helping me, so I left one day. I just up and walked out; but then I got sick again.

Mr. HUBERT. You mean you became depressed again?

Mr. RUBY. I became depressed again.

Mr. HUBERT. How long after?

Mr. RUBY. Oh, just a few days.

Mr. HUBERT. So you went back?

Mr. RUBY. So I went back again. Then I decided well, the only way I can help myself, I mean I can do myself any good, is get out of this place and get a job.

Mr. HUBERT. Were you married then?

Mr. RUBY. Oh, yes; sure.

Mr. HUBERT. That was to your first wife then?

Mr. RUBY. No, no.

Mr. HUBERT. Your second wife?

Mr. RUBY. Second wife, and I said I've got my family you know, I had better take care of them. The only thing that will help me, at least that was my thinking, is to go out and get a job and maybe that is what I need, you know, because I felt that I wouldn't be able to hold a job or something. Anyhow those were my thoughts. So, I went out and got a job for Worldwide Music in Chicago.

Mr. HUBERT. What was the nature of that work?

Mr. RUBY. They sell and place juke boxes.

The Seeberg Agency and the Rockola Distributors, a pretty big company, nice people, and I worked there about a year.

Mr. HUBERT. What was your specific job?

Mr. RUBY. I was, I would say assistant manager. I supervised the other men and the servicemen.

Mr. HUBERT. You didn't actually make the contacts with the taverns?

Mr. RUBY. Oh, I made some of those; yes, yes.

Mr. HUBERT. Now, the machines were solely music machines?

Mr. RUBY. Yes, yes.

Mr. HUBERT. No slot machines?

Mr. RUBY. No, no, no. No slot machines. This is one of the better rated companies in this field, very nice people.

Mr. HUBERT. How long did you stay?

Mr. RUBY. I stayed with them about a year. Then my best friend's brother, my best friend's name is Mike Nemzin, his brother's name is George Marcus, that is his name legally.

Mr. HUBERT. They have different names but the fact is they are brothers?

Mr. RUBY. Yes; that is right. That is why I wanted to mention that. He owned——

Mr. HUBERT. When you say “he” who do you mean?

Mr. RUBY. George Marcus; I am now speaking of.

Mr. HUBERT. The brother of your best friend?

Mr. RUBY. Yes. In fact, he was instrumental in my getting the other job for Worldwide Music because he knew one of the—he was in the dry cleaning business, George Marcus has today one plant in Marion, Ind. and one plant in Benton Harbor, Mich., and has a brother-in-law running each one. And we had been friends for about 25 or 30 years, and he approached me with the idea of going into business with him in another cleaning plant if we could locate a good one. You know, buy a going business, of course, and I was very much interested.

Mr. HUBERT. That is Marcus?

Mr. RUBY. Yes; Marcus I am speaking of.

Mr. HUBERT. In other words, your best friend was his brother?

Mr. RUBY. Right.

Mr. HUBERT. But you were friendly with him for 25 years?

Mr. RUBY. Yes, sir; yes. In fact, he originally helped me get started when I first came out of service. I had no money to speak of.

Mr. HUBERT. That is Marcus?

Mr. RUBY. Marcus, and he lent me \$500, I think, to get started.

Mr. HUBERT. All right, go on and tell us what happened?

Mr. RUBY. And Marcus and I talked over the possibility of going into the cleaning business together, and he being so successful, I was very happy that he even, you know, came to me and was interested in my running the plant, because he is more or less a silent partner.

So, sure enough, we checked out a few plants and then we happened to hear of this plant in Detroit, Cobo Cleaners, that is the plant. It was originally owned by the mayor of Detroit. And we heard about this plant and we went to Detroit, checked that out and checked out the possibilities, and we decided it was a pretty good deal. And so we bought that as equal partners. And that was in 1961, October of 1961.

Mr. HUBERT. What did you pay for it?

Mr. RUBY. We paid for it, for the real estate and the business, \$120,000.

Mr. HUBERT. And you each put up half?

Mr. RUBY. Yes. Of course, we only paid so much down, you know. We didn't pay the full price, of course.

Mr. HUBERT. And that is the business you are in now?

Mr. RUBY. Yes, sir.

Mr. HUBERT. And you run the operation?

Mr. RUBY. Yes; and he is more or less silent. He lives in Glenview, Ill., a suburb of Chicago.

Mr. HUBERT. And as I understand it, he owns these other plants that you mentioned?

Mr. RUBY. Yes.

Mr. HUBERT. And runs them through——

Mr. RUBY. The brother-in-laws. But he gave the brother-in-laws 35 percent of each one.

Mr. HUBERT. I think for the record perhaps we had better state the names of those other companies and the cities and the names of the

brothers-in-law.

Mr. RUBY. OK. The name of the plant that George Marcus and his brother-in-law owns in Marion, Ind., is called Modern Laundry and Dry Cleaners, and his brother-in-law's name there is Harry Marks.

Mr. HUBERT. Is that his sister's husband?

Mr. RUBY. Husband, yes.

Mr. HUBERT. All right.

Mr. RUBY. And the name of the plant in Benton Harbor, Mich., is called the American Laundry and Dry Cleaners, and the brother-in-law there who is married to George Marcus' sister is Elwood Jacobs.

Mr. HUBERT. Do you know those people, the two brothers-in-law?

Mr. RUBY. Oh, yes, you know, being close to my best friend for so many years, I was always close to the family as a whole.

Mr. HUBERT. But you have no interest in those plants?

Mr. RUBY. No, no.

Mr. HUBERT. And you have a 50-percent interest in the Cobo plant?

Mr. RUBY. Yes.

Mr. HUBERT. Did we have some indication that there was a company or something, sort of & business enterprise called the Earl Ruby Co? Will you tell us about that?

Mr. RUBY. When I sold the Earl Products Co., I sold the whole Earl Products Co. and he was supposed to pay me—he gave me so much money down, about \$20,000 down, I think—and he was supposed to pay me the balance out so much a year.

Well, after he paid so much, he paid me for about a year or so, he said he can't pay me any more money, he wants to make a new deal on the balance of the money that he owed me. So we made a deal that he would only give me \$10,000 more. He owed me about \$30,000 or so. We settled for \$10,000 in cash plus I would take over the camera manufacturing. We had a little camera we manufactured. He would give me the tools and dies of that business, and also the tools and dies to make a little nameplate that

kids fasten on the back of their bicycles. So when I took that over, I had to have a company name to run it, and so I decided to call that Earl Ruby Co.

Mr. HUBERT. Did you have any associates in that company?

Mr. RUBY. No, no. And I since, last year I had to close that up. It was just not doing any——

Mr. HUBERT. That operation continued after you left Chicago?

Mr. RUBY. When I sold it to Oliff, you mean? Oh, yes; for awhile.

Mr. HUBERT. No, no; I mean the Earl Ruby Co?

Mr. RUBY. No. When I left Chicago, there was no Earl Ruby Co. It only became after he decided he couldn't pay me the rest of the money, then I had to start all over again.

Mr. HUBERT. You were in Detroit at the time?

Mr. RUBY. Yes. I couldn't use Earl Products because he owned that name. I sold him the name.

Mr. HUBERT. But the operation of the Earl Ruby Co. manufacturing the cameras and the bicycle plates?

Mr. RUBY. I moved it to Detroit.

Mr. HUBERT. Oh, you moved it to Detroit?

Mr. RUBY. Oh, yes.

Mr. HUBERT. And you operated then out of Detroit?

Mr. RUBY. Yes, but——

Mr. HUBERT. So you were operating at that time two businesses?

Mr. RUBY. Yes.

Mr. HUBERT. The cleaning and the——

Mr. RUBY. Yes. Well, the other business I don't think in all the time I had it, I don't think I did \$10,000 worth of business in the 2 years that I tried to run it. It just fizzled out and now there is nothing.

Mr. HUBERT. It folded when?

Mr. RUBY. I folded it at the end of the year.

Mr. HUBERT. Which year?

Mr. RUBY. At the end of 1963.

Mr. HUBERT. And you had run it about 2 years?

Mr. RUBY. Yes, about 2 years, I would say, and there was just no more sales. I tried to dispose of it or sell it, but I couldn't even get a buyer, so I still own the tools and dies but there are no sales.

Mr. HUBERT. Those are just put in a warehouse, the tools and dies?

Mr. RUBY. Yes.

Mr. HUBERT. Do you know a man by the name of Hollebrandt?

Mr. RUBY. Yes.

Mr. HUBERT. Who is he?

Mr. RUBY. He is the supervisor of our plant. Is that the one you mean?

Mr. HUBERT. I believe so. What is his first name?

Mr. RUBY. Abram.

Mr. HUBERT. Is he the supervisor of Cobo?

Mr. RUBY. Yes.

Mr. HUBERT. When did he become so?

Mr. RUBY. About a year ago, just about a year ago, a little over a year ago.

Mr. HUBERT. How did this relationship come about? Did you know him before?

Mr. RUBY. No. I had never heard of him before. When we came to Cobo Cleaners, we had a supervisor by the name of Charlie Comp, and then after my being there awhile, I could see that one of the reasons Cobo wanted to sell out was the supervisor. He just wasn't running the plant efficiently. And so I talked to my partner about replacing him and we finally decided to replace him, and we started looking for a replacement. And I mentioned it to everyone I knew, and in the cleaning industry there is different types of

cleaning processes, mostly concerned with the type of soap you use, and we were using, ours is what you call a solvent plant, and we were using—I can't think of the name of the soap. Anyhow, a special soap. I just can't think of the trade name.

And the salesman or distributor in our area for this soap is Vernon Brooks, and I talked to him about getting—asked him if he knew a good supervisor, and he said he would let me know. And then in a week or whatever time passed, he called me and says, “Yes, I have a good man in Rochester, New York.” And, “I think he might be interested.”

So I contacted him and we had him come to Detroit so we could talk to him and interview him, and then we wanted to see what type of a plant he was running there, so Marcus, my partner, and I flew to Rochester one day and Hollebrandt showed us through the plant he was running, and we liked him. You know, he is a pretty nice fellow. And he seemed to know his stuff. So we hired him. That is how we got to know him. Other than that, I had never seen or heard of him before.

Mr. HUBERT. How long was it between the time that you first contacted Hollebrandt and the time that he actually became the supervisor? What period of time elapsed?

Mr. RUBY. I would say a couple of months anyhow. It took a couple of months. Yes, it took a few months.

Mr. HUBERT. Do you know a man by the name of Oscar Ruby?

Mr. RUBY. No.

Mr. HUBERT. Oscar Robinson?

Mr. RUBY. No.

Mr. HUBERT. Do you know any person who lives at South Haven, Mich., particularly at an address 58 Lakeshore Drive?

Mr. RUBY. Oh, yes, I know those people.

Mr. HUBERT. In South Haven, Mich.?

Mr. RUBY. I know their name is Ruby. I didn't know his last name. My in-laws own the cottage next door to them, 56 Lakeshore Drive, and so I

used to go up there on weekends, but I didn't know his last name was Oscar.

Mr. HUBERT. No, I didn't say his last name is Oscar. I think it is either Ruby or Robinson. What did you know his last name to be?

Mr. RUBY. Ruby, the same as mine.

Mr. HUBERT. But he is not related to you?

Mr. RUBY. No, no, no.

Mr. HUBERT. And he had a cottage which is next door to——

Mr. RUBY. My in-laws.

Mr. HUBERT. Your wife's—— Mr. RUBY. Family.

Mr. HUBERT. Do you know a man by the name of Harry C. Futterman?

Mr. RUBY. Yes, that is my wife's brother-in-law. He is married to my wife's sister.

Mr. HUBERT. What does he do for a living?

Mr. RUBY. He worked for the post office until he retired a few years ago, and now he works for a brother-in-law of his who is in the lumber business.

Mr. HUBERT. Where does he live?

Mr. RUBY. He lives at 7209 Northeast Prairie, in Lincolnwood, Ill.

Mr. HUBERT. Lincoln?

Mr. RUBY. Wood.

Mr. HUBERT. Lincolnwood?

Mr. RUBY. A suburb of Chicago.

Mr. HUBERT. Do you know a man by the name of Colley Sullivan?

Mr. RUBY. Colley Sullivan?

Mr. HUBERT. Yes, sir.

Mr. RUBY. No, no, it doesn't register at all.

Mr. HUBERT. Do you know a man by the name of Dominick or Dominic Scorta or Siorta?

Mr. RUBY. No.

Mr. HUBERT. Do you know a man by the name of Anesi Umberto?

Mr. RUBY. Yes, I think that is the one.

Mr. HUBERT. Tell us about him.

Mr. RUBY. I am trying to think. I did business with—no, that is another name. I know a fellow by the name of Mario Anesi.

Mr. HUBERT. And who is he?

Mr. RUBY. He is the fellow that used to make all our tools and dies in Chicago.

Mr. HUBERT. Tools and dies for the Earl Products?

Mr. RUBY. Yes, I thought that is who you were talking about. Anesi Umberto, no, I don't know him.

Mr. HUBERT. Do you know a Mario Umberto?

Mr. RUBY. Maybe that is the same fellow. I know him by Mario Anesi.

Mr. HUBERT. A-n-e-s-i?

Mr. RUBY. I don't know how you spell his name. I am not even sure.

Mr. HUBERT. Have you seen or had any contact with this gentleman in the last year or so?

Mr. RUBY. Yes. In fact, he was just here, he was just in Detroit for the tool convention or whatever they call them, and he called me just to say hello, because he has tools and dies of mine in his place yet, old things, you know.

Mr. HUBERT. And that was just in the last few weeks, I gather.

Mr. RUBY. Yes. That was about a month ago. That is all.

Mr. HUBERT. Prior to that contact with him, when was the next previous contact?

Mr. RUBY. Well, he makes the camera shutters, camera shutter parts for me, and I saw him in Chicago a little more than a year ago. I stopped in to discuss changing—it is probably a year-and-a-half ago—changing the die for one of the parts.

Mr. HUBERT. Have you had any telephone conversations with him in that interval, during that period?

Mr. RUBY. Yes; I think I did.

Mr. HUBERT. What would it have been about?

Mr. RUBY. Only about tools and dies. In fact, I tried to sell him the tools and dies for the nameplate.

Mr. HUBERT. When was that?

Mr. RUBY. Right after I took it over from Mr. Oliff.

Mr. HUBERT. It would have been about a little over 2 years ago?

Mr. RUBY. Yes; and then I would have to talk to him once in awhile about ordering the parts, if I were in Chicago I would call him and tell him what I need or something like that. But I know him as Mario Anesi.

Mr. HUBERT. And you do know as far as your memory serves you, either a person called Anesi Umberto or a person called Mario Umberto?

Mr. RUBY. No.

Mr. HUBERT. Do you know anyone whose last name is Umberto, U-m-b-e-r-t-o?

Mr. RUBY. No.

Mr. HUBERT. Do you know anyone by the name of Kirk Bibul?

Mr. RUBY. No.

Mr. HUBERT. What about a person by the name of Elliott Schwartz?

Mr. RUBY. Elliott Schwartz, he is married to another sister of my wife.

Mr. HUBERT. Where does he live?

Mr. RUBY. New York.

Mr. HUBERT. Do you have occasion to contact him?

Mr. RUBY. Oh, sure. I see him, he comes in for events, marriages, bar mitzvahs and all that stuff. In fact, I wanted to call him last night because I am so close.

Mr. HUBERT. It is a social relationship, social and family?

Mr. RUBY. Oh, yes.

Mr. HUBERT. No business relationship?

Mr. RUBY. Well, I was going to have him manufacture the nameplates for me, when I couldn't sell them to Mario Anesi, he told me business was bad up in New York, so I sent the tools and dies there, but we never used them, never got any sales, so the tools and dies for the nameplates are just there not being used at all.

Mr. HUBERT. Now, Edward A. Cobo was the owner of the Cobo Cleaners prior to the time you bought it out?

Mr. RUBY. The junior, I bought it from the junior, his mother and his sister. I think Cobo himself had passed away several years ago.

Mr. HUBERT. I think you said he was mayor.

Mr. RUBY. His brother, Al Cobo, was the mayor, but Al and Edward Cobo owned Cobo Cleaners. The mayor owns half of it.

Mr. HUBERT. But when you bought it, the mayor had died?

Mr. RUBY. Yes.

Mr. HUBERT. And his interest had passed to his family, I take it?

Mr. RUBY. Yes; to probably, I don't know but I think it probably passed to his brother and then his brother passed away and then the interest went to the brother's wife and son and daughter, and that is who we bought it from.

Mr. HUBERT. Do you know a man by the name of Buddy Heard?

Mr. RUBY. No.

Mr. HUBERT. Have you had any contact with a company called the Anran Tool and Manufacturing Co.?

Mr. RUBY. Are you sure it is Anran and not Anson?

Mr. HUBERT. Maybe it is Anson.

Mr. RUBY. That is owned by Mario Anesi and his brother.

Mr. HUBERT. So that any contacts you would have had with that company was really what you were talking about a little while ago?

Mr. RUBY. Yes; that is right. They made all the parts for us and tools and dies for, oh, 10 years or more.

Mr. HUBERT. I don't know if you stated what Mario Anesi's brother's name was.

Mr. RUBY. One's name is Burt, that is how I know him by, Burt, and he has another brother. I don't even know his name.

Mr. HUBERT. Are they all in this company?

Mr. RUBY. Yes; now, Burt could possibly be Umberto, I don't know, because Burt is an unusual name for Italian people.

Mr. HUBERT. And your statement is that your contacts in the last 2 years say with the Anesi's or the Anson Tool and Manufacturing Company have been as you have stated in regard to the dies and the manufacture of shutters and so on?

Mr. RUBY. Yes.

Mr. HUBERT. What about the Triangle Manufacturing Co.? Have you had any contact with that company?

Mr. RUBY. Triangle? What do they make?

I once had a Triangle many years ago that made—I think it is Triangle—made a set of cutting dies for me. I don't know if it is the same company.

Mr. HUBERT. Where are they located, do you know?

Mr. RUBY. In Chicago, I think. But I had very little—if I remember, it was one order. But there are so many Triangles. I even think many years ago I bought some cartons from a Triangle Carton Company, but you are saying manufacturing company. I don't know.

Mr. HUBERT. The Triangle Manufacturing Co. that I am thinking of is in Oshkosh, Wis.

Mr. RUBY. It don't sound familiar at all. Does it say what they make—because in the years we were manufacturing we used to buy parts and things from all over the country. But it doesn't seem to register with me at all, Oshkosh.

Mr. HUBERT. Do you have any recollection of having made a telephone call to that company on November 1?

Mr. RUBY. What year?

Mr. HUBERT. 1963.

Mr. RUBY. Oh, then I think I know who that is. I think, I am not sure now, I think they make, what do you call it, bearings. I think they make bearings, and the reason I called them, if it is the right company, I am not even sure of that, is that my brother Jack wanted to make, had seen this twistboard, it is a little board with a bearing underneath it, and you stand on it and you learn to twist that way, and he, knowing that I had been in manufacturing and knew all about manufacturing, asked me if I could find out where to get this type of bearing. It was a usual, simple, very inexpensive type. So I don't know how I got their name. I think I called somebody. I learned of somebody that was selling them or making them around Detroit, and I called them.

Mr. HUBERT. You mean making those bearings?

Mr. RUBY. Making the whole twistboard, and I think they referred me to Triangle, and I called them, if that is the correct company, and had them send me a sample and a quotation.

Mr. HUBERT. Did anything come of it?

Mr. RUBY. No.

Mr. HUBERT. What did Jack propose to do so far as you know?

Mr. RUBY. Well, he was going to, you know——

Mr. HUBERT. Manufacture it?

Mr. RUBY. Have somebody make it and distribute it.

Mr. HUBERT. Is it possible that he suggested the name Triangle to you?

Mr. RUBY. It is possible. I am not sure. I am not sure where I got that name, because I think it was only one call I made, and then they said they would send me the sample, and that was it. I forgot all about it.

Mr. HUBERT. Did they send the sample?

Mr. RUBY. Yes, yes; if that is the company, they sent the sample.

Mr. HUBERT. And what did you do with it?

Mr. RUBY. Nothing, because I then got the sample and saw what they wanted for it. I think they wanted 45 cents just for the bearing part, and then you had to make this board, and knowing something about manufacturing, Jack wanted to sell it for about \$2 retail, so I told him if the bearing cost 45 cents and the top cost a quarter and you have got to put it in a box and package it, you can't come out, because you have got almost 80 cents cost to manufacture it and you have got to give the jobbers 50 and 10 above, that means you get 90 cents. You can't work on a dime gross profit. And so I discouraged him about getting in it, so that was the end of that.

Mr. HUBERT. Did he attempt to interest you in getting into this business?

Mr. RUBY. No; he wanted to make it there in Dallas. He wanted to make it in Dallas. In fact, he said he was going over, he was going to have, I think, the Goodwill. I think they manufacture things at a very reasonable cost, and he said that is how he was going to cut corners. But I discouraged him anyhow. I couldn't see it, and it was a good thing I did because I checked on the sales of the item in the Detroit area and it was a flop, anyhow.

Mr. HUBERT. Apparently this item wasn't patented.

Mr. RUBY. No.

Mr. HUBERT. Now, can you comment as to what you know about an organization called the Gilt Edge Associates, Finishing Corp., in New York City?

Mr. RUBY. Yes; that is owned by Elliott Schwartz and his brother.

Mr. HUBERT. What is that corporation? What do they do?

Mr. RUBY. They do finishing on greeting cards. Some of their work is called flocking, and they put that glittery substance on greeting cards and

things of that sort, and they also do silk screen work.

Mr. HUBERT. And what was your interest in those products?

Mr. RUBY. That is my brother-in-law.

Mr. HUBERT. That is your brother-in-law?

Mr. RUBY. That is the same Elliott Schwartz that you brought up about. That is the company he owns. I mean that is my brother-in-law on the wife's side.

Mr. HUBERT. Do you know an organization or corporation, perhaps just a company, called the James Welch Co.?

Mr. RUBY. James Welch? No.

Mr. HUBERT. Would you comment on what knowledge you have of an organization called the Ipsilanti Buffing Co.

Mr. RUBY. Never heard of it.

Mr. HUBERT. What about the Public Vending Co.? Do you know of that organization?

Mr. RUBY. No. Are they in Detroit?

Mr. HUBERT. I don't know.

Mr. RUBY. I don't know. It doesn't register at all.

Mr. HUBERT. What about the Troy Plating Co.?

Mr. RUBY. When I was Earl Products, I used to have so many plating companies to do work for us. Is this a Chicago concern would you know?

Mr. HUBERT. I don't know.

Mr. RUBY. I don't recall that name.

Mr. HUBERT. Have you had any contact with an organization called the General Scientific Corp.?

Mr. RUBY. Oh, General Scientific? Yes. I think that is the company we used to buy lenses from for our camera, little glass lenses, if I am not mistaken.

Mr. HUBERT. Coming back to the Troy Plating Co. in Chicago, do you recall having occasion to have called them from Detroit on October 21?

Mr. RUBY. Let me see, Troy Plating? What did I call them for? Yes, yes, yes; I know what it is. I think I know what it is now.

In our cleaning operation we have a liner, a copper liner. It is a large basket, very large, probably 30 inches in diameter and overall length of about 4 feet, and it was corroded and the corrosion was coming off on some of our cleaning, and I couldn't seem to find anyone in Detroit to plate it. It was just an odd shape. And so I called, I think that is the reason I called Troy Plating, to see if they could do it. However, I finally located somebody in Detroit to plate it.

Mr. HUBERT. Your testimony is that that was the occasion for calling the Troy Co.

Mr. RUBY. I can't think of any other reason.

Mr. HUBERT. Now, what about the Dixie Seal and Stamp Co. in Atlanta?

Mr. RUBY. When I took over the nameplate business, that is back from Oliff, the fellow I had sold it to, Earl Products, and I received a few small orders for plates, nameplates, and it was foolish to set up my complete operation for just a few orders, and I knew that Dixie Seal and Stamp made a very similar item. So rather than my setting up the whole operation to make the few, I had them make it for me, and so I called them and talked to them on a few occasions, and they did make some for me.

Mr. HUBERT. What about the Berger Products Co.?

Mr. RUBY. Berger? Where are they located? That doesn't strike a bell.

Mr. HUBERT. You don't recall that?

Mr. RUBY. No. I make so many calls it is hard to remember all of them. But that doesn't strike a bell.

Mr. HUBERT. I think you have already mentioned your relationship with Mike Nemzin.

Mr. RUBY. Yes; one of my very close friends, and his brother is my partner.

Mr. HUBERT. Apparently you called him on November 14. Do you recall that conversation?

Mr. RUBY. November the 14th. I could have called him November 14.

Mr. HUBERT. Where does he live?

Mr. RUBY. In Chicago. I think the reason I called then is because George, his brother, told me he was very sick.

Mr. HUBERT. Where did you call him?

Mr. RUBY. I don't recall. Probably at his place of business.

Mr. HUBERT. Does he have any connection or have any home or business at a place called Walled Lake, Mich.?

Mr. RUBY. Are you speaking of Mike Nemzin?

Mr. HUBERT. Yes.

Mr. RUBY. No; not that I know of.

Mr. HUBERT. Do you know anyone in Walled Lake, Mich.?

Mr. RUBY. No. We have customers there, but I don't know them personally.

Mr. HUBERT. Do you recall any calls to this place, Walled Lake, Mich.?

Mr. RUBY. No; but since we have customers there, I might have called and we make so many calls to any of our customers at any given time.

Mr. HUBERT. Would anybody else in your plant be making such calls?

Mr. RUBY. Oh, yes. We have a girl that does practically nothing but call customers, for many different reasons, you know. Sometimes they send in a garment and there is a hole in it.

Mr. HUBERT. Is Walled Lake near Detroit?

Mr. RUBY. Oh, yes; very close.

Mr. HUBERT. But you do have customers that come from that far?

Mr. RUBY. Oh, sure.

Mr. HUBERT. What contacts have you had with the Denver-Chicago Trucking Co. in Denver?

Mr. RUBY. Well, they are the people that shipped the tools and dies and the punch press to take the plates to my brother-in-law Schwartz in New York, and on route they dropped the press and broke it in half, and so I had many conversations with them before I could get a settlement out of them. So I called them several times.

Mr. HUBERT. What about a man by the name of Barney Rothenberg?

Mr. RUBY. What is his first name?

Mr. HUBERT. Barney.

Mr. RUBY. It doesn't register with me.

Mr. HUBERT. Or Horace Settersfield or Dettersfield.

Mr. RUBY. Delderfield.

Mr. HUBERT. Delderfield?

Mr. RUBY. He is my landlord. I lease his home, or rent a home from him.

Mr. HUBERT. Where does he live?

Mr. RUBY. He lives in California.

Mr. HUBERT. What business is he in?

Mr. RUBY. He is retired, as far as I know. In fact, I have never seen him. I rent through his agent, but I send my checks to him.

Mr. HUBERT. Would you have had occasion to call him?

Mr. RUBY. Yes.

Mr. HUBERT. What was that about and when was it approximately?

Mr. RUBY. Gee, this was right after I moved in there, last fall, probably September, around in there. When we first rented the place, we wanted to know if it was all right to decorate, and I think that is why I called him.

Mr. HUBERT. Coming back to—go ahead.

Mr. RUBY. I called him for another reason, also. Well, I had to call him and talk about the lease. See, I was taking over, subleasing from the people that were in there before me, so I think I talked to him once or twice.

Mr. HUBERT. Coming back to Barney Rothenberg, does it help you any if I suggest that he lives on Genessee Street in Pontiac, Mich.?

Mr. RUBY. No; now, we go Pontiac. Our trucks go to Pontiac. I don't remember calling him.

Mr. HUBERT. Would it be a possibility, then, that that is a customer?

Mr. RUBY. Yes.

Mr. HUBERT. Now, what about a man by the name of Sidney Jaffe, who lives in Seattle, Wash.?

Mr. RUBY. Sidney Jaffe?

Mr. HUBERT. Yes.

Mr. RUBY. No.

Mr. HUBERT. You have no recollection?

Mr. RUBY. No.

Mr. HUBERT. Of any contact with a man by that name?

Mr. RUBY. No.

Mr. HUBERT. Do you know a man by the name of Henry Kenter?

Mr. RUBY. No.

Mr. HUBERT. Do you recall anybody in the past mostly by the name of Chasin?

Mr. RUBY. No.

Mr. HUBERT. The answer is no to Chasin. Do you know anybody in the Jaffe family?

Mr. RUBY. Did you say do I know anybody in the Jaffe family?

Mr. HUBERT. Yes.

Mr. RUBY. In Chicago I do. Julie Jaffe.

Mr. HUBERT. That is a lady?

Mr. RUBY. No; a man. Julius, I think is the correct name. I really don't know.

Mr. HUBERT. How long have you known him?

Mr. RUBY. Oh, about 20 years.

Mr. HUBERT. How did you come to know him?

Mr. RUBY. Well, first, he is in the advertising specialty supply business, and we used to do business together a little bit. And then I knew him before. He grew up in the same neighborhood.

Mr. HUBERT. Do you remember what his father's name was?

Mr. RUBY. No.

Mr. HUBERT. Did he have any sisters?

Mr. RUBY. I don't know.

Mr. HUBERT. You didn't know a girl by the name of Charlotte Jaffe?

Mr. RUBY. No.

Mr. HUBERT. Or Rosalyn Jaffe?

Mr. RUBY. No.

Mr. HUBERT. What about a man by the name of Berke, who married one of the Jaffe girls?

Mr. RUBY. No.

Mr. HUBERT. Do you know any person by the name of Pasol?

Mr. RUBY. No.

Mr. HUBERT. Do you know of anyone who lives in Muncie, Ind.?

Mr. RUBY. Muncie? No; I don't think I know anyone at all.

Mr. HUBERT. Have you ever been there?

Mr. RUBY. I don't think so; never.

Mr. HUBERT. Do you know if your brother Hyman Rubenstein was interested in Jack Ruby's twistboard enterprise?

Mr. RUBY. All I know is that he sent him a sample.

Mr. HUBERT. Do you know if he attempted to get Hyman financially interested?

Mr. RUBY. That I don't know.

Mr. HUBERT. I think you have already said that he did not attempt to get you financially interested.

Mr. RUBY. No, no. All he wanted me to do was get him the best source for the different parts and he would assemble it in Dallas himself. I mean by that, he would have somebody do it for him.

Mr. HUBERT. I think you do know Ralph Paul, don't you?

Mr. RUBY. Yes; I met him in Dallas.

Mr. HUBERT. And how long ago?

Mr. RUBY. Well, I first met him, I think it was, down there about 5 years ago.

Mr. HUBERT. What was the occasion of your meeting him?

Mr. RUBY. Through Jack. Jack introduced us.

Mr. HUBERT. Was it just a social meeting or did you have any business with him?

Mr. RUBY. I didn't have any business with him. No business was discussed.

Mr. HUBERT. Have you ever had any business dealings with him?

Mr. RUBY. No; I know Jack worked with him, but I really don't know. At least I think they had business dealings between themselves, but I am not sure.

Mr. HUBERT. Did you have any financial dealings with him?

Mr. RUBY. No.

Mr. HUBERT. Did you have occasion to lend him any money at any time?

Mr. RUBY. No. [I remember that my brother was going into business with Ralph Paul and Jack was supposed to put in \$6,000 which he did not have at the time so he asked me to send \$6,000 to him or Ralph Paul, which I did, and I'm sure Ralph Paul endorsed the check but I haven't located the check as yet. I don't remember whether I sent the check to Jack or Ralph, except that they were supposed to pay the money back to me but never did. When they informed me that the club had gone broke and they had no money to pay me, I wrote the \$6,000 off as a loss.]

Mr. HUBERT. Did he owe you any money at any time?

Mr. RUBY. Me?

Mr. HUBERT. Yes.

Mr. RUBY. Ralph Paul?

Mr. HUBERT. Yes.

Mr. RUBY. No.

Mr. HUBERT. I call your attention to the fact that in your 1960 income tax return you claimed a loss as a result of a worthless judgment note with reference to Ralph Paul in the sum of \$6,000.

Mr. RUBY. That went through my company, I think.

Mr. HUBERT. Tell us about that. Did Ralph Paul do any business or come to be indebted?

Mr. RUBY. That was through the club. I sent money down to the club.

Mr. HUBERT. Which club? The Sovereign or the Carousel?

Mr. RUBY. I think to organize the Sovereign Club.

Mr. HUBERT. Who did you send the money to, and how much did you send?

Mr. RUBY. I don't recall exactly. I think I sent more than one figure, than one amount, that is.

Mr. HUBERT. Tell us about that transaction in general.

Mr. RUBY. I don't recall. I would have to see—I don't recall when I sent it because it is 4 or 5 years ago.

Mr. HUBERT. Did you have occasion to get a judgment against Ralph Paul, that is to say to sue him?

Mr. RUBY. No.

Mr. HUBERT. Here is your return for 1960. It might refresh your memory.

Mr. RUBY. This was sent, I think, to organize the Sovereign Club, and within 6 months the corporation folded or whatever it was, I don't recall exactly. And a new corporation was formed. I can't think of the new name, because I was out of the picture then.

Mr. HUBERT. What I was trying to get at is, first of all, how you had a judgment, how you came to get a judgment against Ralph Paul in connection with the organization of the Sovereign Club.

Mr. RUBY. I sent the money down, but Jack, if I recall, asked me to send it.

Mr. HUBERT. Suppose we approach it in another way.

Mr. RUBY. I don't recall the complete details on it.

Mr. HUBERT. Tell us how you came to be financially interested, or at least to advance money to Jack in connection with a club, the organization of a club.

Mr. RUBY. He called me and told me he needed some money for a good deal club that was going to be organized or taken over or something. It was some other club before.

Mr. HUBERT. Did he tell you then how much he needed?

Mr. RUBY. I think I sent, I am sure I sent this down, if it so states.

Mr. HUBERT. You mean \$6,000?

Mr. RUBY. Yes.

Mr. HUBERT. And what was that to be, for the purchase of stock or a loan?

Mr. RUBY. I think I originally had stock in the corporation there, in the original Sovereign Club Corp., and I think now at that time, at that time Paul signed the note. I think this is how this——

Mr. HUBERT. You mean the note for the money that you sent down?

Mr. RUBY. Yes; I think something—I am not sure because it was handled more or less by my accountant. I am not positive how it was set up.

Mr. HUBERT. But I mean your accountant would not have handled the original sending of the money.

Mr. RUBY. I sent a check, I am quite sure I sent the check.

Mr. HUBERT. To organize the company?

Mr. RUBY. Yes.

Mr. HUBERT. And it was an investment or a loan, that is what I am trying to get at, or were there two separate transactions? You mentioned that Paul signed a note, and that would indicate that there was a loan made of some sort, you see.

Mr. RUBY. Yes.

Mr. HUBERT. And then you mentioned that you got some stock which would indicate that the money was for an investment rather than a loan, or perhaps a combination. And that is what I am trying to find out, what it really was.

Mr. RUBY. I am really not sure. I am really not sure.

Mr. HUBERT. Were you in a position at that time to advance that sort of money without investigating the possibility?

Mr. RUBY. Well, it was my brother.

Mr. HUBERT. Have you ever loaned him money before?

Mr. RUBY. Oh, yes; sure.

Mr. HUBERT. And you have got it back?

Mr. RUBY. No; once before I loaned him some money, several times I loaned him money that I didn't get back.

Mr. HUBERT. Since he was in Dallas, you mean?

Mr. RUBY. Oh, yes.

Mr. HUBERT. And you never took any notes from him?

Mr. RUBY. Yes; I think I did several years before this, but I don't recall all the details on that, either.

Mr. HUBERT. Did he ever pay you anything back on the various loans that he made from you?

Mr. RUBY. No.

Mr. HUBERT. How much would you say that he owes you now then?

Mr. RUBY. Altogether?

Mr. HUBERT. Well, I don't mean including the money you may have expended since November 24th, but I mean up to that date.

Mr. RUBY. I would say altogether maybe as much as \$15,000 that I sent him.

Mr. HUBERT. And you have never got anything in return for it?

Mr. RUBY. No.

Mr. HUBERT. Have you ever written off those loans as bad debts?

Mr. RUBY. Yes.

Mr. HUBERT. The income tax return which you hold in your hand there says it is a worthless judgment note. Do you recall that you actually filed the lawsuit against Paul and recovered a judgment which you could not collect?

Mr. RUBY. No; I don't think——

Mr. HUBERT. Do you recall ever hiring any lawyers in Dallas or in the Dallas area for that purpose?

Mr. RUBY. No.

Mr. HUBERT. Can you clarify for us in anyway at all what this entry means?

Mr. RUBY. Well, I explained it to my accountant, and he said that is how you write it off, as far as I know.

Mr. HUBERT. In other words, you simply gave him the facts?

Mr. RUBY. The facts.

Mr. HUBERT. And he is the one who drew up the return?

Mr. RUBY. Right.

Mr. HUBERT. I think his name is on the front of this. It would have been Mr. ——

Mr. RUBY. Let me see. Harold Kaminsky.

Mr. HUBERT. Isn't one of your sisters married——

Mr. RUBY. That is what I was going to say. He is my brother-in-law.

Mr. HUBERT. Which sister is this?

Mr. RUBY. Eileen.

Mr. HUBERT. She married Harold Kaminsky?

Mr. RUBY. Yes.

Mr. HUBERT. He is an accountant, is he?

Mr. RUBY. Yes.

Mr. HUBERT. And he handled this for you?

Mr. RUBY. Yes.

Mr. HUBERT. You gave him these details?

Mr. RUBY. Yes.

Mr. HUBERT. Have you invested any money or loaned any money to Jack after 1960?

Mr. RUBY. After 1960?

Mr. HUBERT. Yes.

Mr. RUBY. Yes; I think I did. I don't remember the exact figure.

Mr. HUBERT. What was it in connection with, and about when did it occur?

Mr. RUBY. It must have been just about 1960.

Mr. HUBERT. It was in addition to the \$6,000 that we have been talking about?

Mr. RUBY. I think that is the figure, but I am not sure.

Mr. HUBERT. I don't know that you would have been able to take a loss for a bad debt or loan made in 1960, that is to say on your return for 1960.

Mr. RUBY. I say I don't recall. I don't recall the exact—I would have to check my records and see when I sent it down.

Mr. HUBERT. By your records, you mean checkbooks and so forth?

Mr. RUBY. Oh, yes.

Mr. HUBERT. What sort of personal records do you have, Mr. Ruby?

Mr. RUBY. We have a regular set of books.

Mr. HUBERT. Are you talking about the Cobo Cleaners?

Mr. RUBY. No; even before that.

Mr. HUBERT. You mean you have a personal set of books?

Mr. RUBY. Oh, sure. I mean by regular bank stubs and check stubs and statements.

Mr. HUBERT. You still have retained those?

Mr. RUBY. I think so.

Mr. HUBERT. Did you have occasion to make a telephone call or send a telegram to Havana, Cuba, in 1962, in April of 1962?

Mr. RUBY. April of 1962? The only reason I would have, Jack visited Cuba, Havana. I don't know if it was in April, and I may have talked to him. But I don't know, I am not sure.

Mr. HUBERT. You are acquainted with Jack's visit to Havana?

Mr. RUBY. Yes; I know he went there.

Mr. HUBERT. Did he go there once or more than once?

Mr. RUBY. As far as I know, once.

Mr. HUBERT. Isn't it a fact that that was in 1959?

Mr. RUBY. I don't know. If it was in 1959, then I couldn't have made any call or sent any wire. As far as I know, to Cuba, in 1962. I don't remember any, anyhow.

Mr. HUBERT. Do you know anybody in Cuba?

Mr. RUBY. No.

Mr. HUBERT. Can you think of any reason at all why you might have sent a telegram or made a phone call to Cuba?

Mr. RUBY. No.

Mr. HUBERT. Is it possible that some employee of yours might have?

Mr. RUBY. I am trying to think. I can't think of anyone. I knew of the fellow that Jack went to visit there, a fellow by the name of McWillie.

Mr. HUBERT. How did you know him?

Mr. RUBY. Jack told me about him.

Mr. HUBERT. Have you ever met him?

Mr. RUBY. No.

Mr. HUBERT. Do you recall that in the early part of this year, specifically on January 6, you were interviewed by an Internal Revenue agent who asked you about some calls and so forth, and that he mentioned to you something about a call to Cuba, and that you told him that you thought it was a telegram?

Mr. RUBY. There should be some record of it if I did. I don't recall.

Mr. HUBERT. Do you recall a conversation with this Internal Revenue agent whereby he was questioning you concerning whether certain phone calls were properly deductible business expenses?

Mr. RUBY. Yes.

Mr. HUBERT. And that in the course of that conversation he asked you about the Havana call and that you identified or thought that it was a telegram?

Mr. RUBY. I don't see why. I don't recall sending a telegram. I can't think of why it would be in 1962. I can't think of any reason for it.

Mr. HUBERT. Is it possible that someone else could have called and charged it to the Cobo Cleaners account?

Mr. RUBY. I doubt it. I just can't imagine who in 1962.

Mr. HUBERT. In April of 1962 you were with Cobo Cleaners in Detroit already?

Mr. RUBY. Yes. I can't think of any reason.

Mr. HUBERT. Did you have any policy in your business about getting approval before long-distance calls were made, or how did you manage that aspect?

Mr. RUBY. No; I mean I don't watch it that close because we have so many. Wouldn't we know, or isn't there somebody where we sent it so it could refresh my memory? I don't think I did.

Mr. HUBERT. Do you know a man by the name of Pratkins, or possibly Praskins?

Mr. RUBY. No.

Mr. HUBERT. Have you ever been to Cuba yourself?

Mr. RUBY. No.

Mr. HUBERT. Coming back to that Welch Co. I mentioned a moment ago, would it help you if I stated that I think they are located in Cambridge, Mass., and it is the Welch Candy Co.? Do you recall anything about that?

Mr. RUBY. No; you know my brother Hy sells candy. How long ago does this go back? It doesn't register with me at all.

Mr. HUBERT. This would have been in May of 1963.

Mr. RUBY. The name doesn't register at all.

Mr. HUBERT. You have no recollection that you yourself made any call to the James Welch Candy Co. in Cambridge, Mass.?

Mr. RUBY. I don't think so.

Mr. HUBERT. Would there be a possibility that someone could have used your phone and done that?

Mr. RUBY. I don't think they would. The only possibility, if my brother Hy does business with them, the only possibility I can think of is that perhaps at that time he was visiting me and called them. But he would ask me first, I think.

[I do recall making a call to Welch Candy to ask them if they were to continue using my camera as a premium.]

Mr. HUBERT. Did he visit you during the year 1963?

Mr. RUBY. Yes.

Mr. HUBERT. About what time of the year?

Mr. RUBY. I don't recall.

Mr. HUBERT. Was it in the spring?

Mr. RUBY. I am not sure.

Mr. HUBERT. Was it about a year ago?

Mr. RUBY. He stopped in a couple of times. Yes; when he is in the territory he stops in.

Mr. HUBERT. Suppose we take a breather for a minute.

(Brief recess.)

Mr. HUBERT. Mr. Griffin, who is working with me in this area, has some questions to ask you, so let's get back on the record with the statement that this is a continuation of the deposition under the same authority that was used for the commencement of the deposition, and that you are still under the same oath that you were at the beginning, and may we have this understanding, that if we have any further recesses as I think we will, that the continuation thereafter will be under the same authority that we started off with, and that you will be under oath throughout? Do you agree to that?

Mr. RUBY. Yes.

Mr. HUBERT. That is to save some time. All right. Mr. Griffin.

Mr. GRIFFIN. What I would like to do at the outset, Mr. Ruby, is to go back over some of the names that Mr. Hubert had talked with you about before, and maybe I can ask some questions which might be able to refresh

your recollection. He indicated to me that you didn't recognize the name of Dominic Scorta. Now this would be somebody who lives or works in Chicago. Do you have any recollection of any association with anybody like that?

Mr. RUBY. Scorta, Scorta? Not at all.

Mr. GRIFFIN. Mr. Hubert also indicated to me that you didn't recognize the name of a man named Kirk Bibul?

Mr. RUBY. That is right; I don't.

Mr. GRIFFIN. Do you have any friends or acquaintances at Northwestern University or in Evanston?

Mr. RUBY. Gee, I lived in Chicago all my life. I have got any number of friends that went to school there but that name still doesn't sound familiar.

Mr. GRIFFIN. Are your children of college age?

Mr. RUBY. No; the oldest one is only 15.

Mr. GRIFFIN. Do you have anyone who has access to your house phone or business phone?

Mr. RUBY. The only thing I can think of, I don't know, is he a music teacher?

Mr. GRIFFIN. This is what I am asking you. Do you know a music teacher?

Mr. RUBY. My wife was trying to contact a music teacher at Northwestern to send my children to him for piano lessons.

Mr. GRIFFIN. When was that? I mean, how long ago was this?

Mr. RUBY. It has got to be 3 years ago.

Mr. GRIFFIN. This is while you lived in Chicago?

Mr. RUBY. Yes; that is the only thing I can think of. Or if he has anything to do with music teaching there, that is the only reason I can think of.

Mr. HUBERT. Suppose we get this into the record. Could you give us the names of the people who would have had access to the telephones at the

Cobo Cleaners, and who might have made long distance calls during the years 1962 and 1963?

Mr. RUBY. Any one of our employees could have. It would be very difficult. I could give you the list, but there is quite a few.

Mr. HUBERT. Would an employee make a long-distance call without your consent?

Mr. RUBY. No; I don't think so.

Mr. HUBERT. Who would be authorized to make it without clearing with you first, let's put it that way?

Mr. RUBY. Anyone; anyone probably other than my wife or my partner that I can think of. That is about all.

Mr. HUBERT. You mean by that that the only ones who would be authorized without clearing it first would be your partner and your wife?

Mr. RUBY. Yes; for very long-distance calls. Now we call the suburbs as I told you, Pontiac, Walled Lake, or Mount Clemens. Those are 25¢ or 30¢ calls. Because we cover that area and our trucks go there, our call girl will be calling them any number of times during the month.

Mr. HUBERT. How many employees did you have during this period? I know it would vary, but an average?

Mr. RUBY. Probably 50.

Mr. HUBERT. Now the phones are in the office?

Mr. RUBY. Not all of them. We have one in the back end that anybody could use.

Mr. HUBERT. Is that a pay phone?

Mr. RUBY. We have a pay phone and a company phone.

Mr. HUBERT. What are the numbers of each? What is the pay phone number?

Mr. RUBY. The pay phone I don't know. They took that out. I don't know what that is. I never use it.

Mr. HUBERT. It is still there?

Mr. RUBY. Oh, yes.

Mr. HUBERT. What is the number of the regular?

Mr. RUBY. 860-3400.

Mr. HUBERT. Where is that located?

Mr. RUBY. We have one in the marking room as we call it at the back end of the plant. We have four extensions in the front office where the girls are. We have an extension phone in my office.

Mr. HUBERT. Are those all on the same line, the same number?

Mr. RUBY. 0400, 1, 2, and 3.

Mr. HUBERT. There are really three numbers?

Mr. RUBY. Yes; then we have another phone, my private line which is 863—I have got to look it up myself. I never use it. I don't even have my own number.

Mr. HUBERT. Let me put it this way. Who would have access to those phones other than the public phone?

Mr. RUBY. I am not through yet. We have some other phones. We do dry cleaning for J. L. Hudson Co. I don't suppose you have heard of them. We have two outside phones that we use in conjunction with their business. Now you are saying 1962. When are you speaking of 1962, when? Because we didn't take over Hudson's until December of 1962, so those numbers wouldn't mean anything.

Mr. GRIFFIN. What about 1963?

Mr. RUBY. 1963, yes; we had this.

Mr. GRIFFIN. What are those numbers?

Mr. RUBY. 863-0566.

Mr. HUBERT. Who would have access to those office phones as it were?

Mr. RUBY. Well, most anybody in the office. We have about 10 office employees, and every once in a while some of the shop employees come up and use it.

Mr. HUBERT. To make long distance phone calls?

Mr. RUBY. No. As far as long distance, I don't think so.

Mr. HUBERT. Have you checked the long distance records in any way?

Mr. RUBY. I don't check them too carefully because we make so many. My partner lives out of town, and I always talk to maybe Miriam in the plant. We work together, we buy together sometimes. I talk to the Benton Harbor plant.

Mr. HUBERT. But you don't spot check it to see that——

Mr. RUBY. No; I really don't spot check it that closely.

Mr. GRIFFIN. I wonder if we could get from Mr. Ruby, maybe if you would make a note of this, to provide us with a list of all of your office employees for the year 1963?

Mr. RUBY. You don't know if this is a music teacher, do you? Probably my wife called.

Mr. HUBERT. We are speaking generally now.

Mr. GRIFFIN. We are speaking generally. First of all, I am not addressing myself to Mr. Bibul. Right now we are just addressing ourselves to the general problem who else might have used your phone. Do you think you could provide us——

Mr. RUBY. Oh, sure; that is no problem.

Mr. GRIFFIN. With a list of all of the office employees which you had?

Mr. RUBY. Sure; that is no problem.

Mr. GRIFFIN. You can limit that to the year 1963.

Mr. RUBY. When you say provide a list, what do you want?

Mr. HUBERT. You want from April of 1962, don't you?

Mr. GRIFFIN. Give us the month of April of 1962.

Mr. HUBERT. During the lunch period if you have a chance you might be able to write that down too.

Mr. RUBY. You are talking of all office employees April 1962. Well, we had some changes, several of them, you know.

Mr. GRIFFIN. And then you can skip the remaining months and give us all of 1963.

Mr. RUBY. You just want their names. You don't want any addresses or phone numbers or anything, just their names?

Mr. GRIFFIN. Well, if you can give us addresses also we would appreciate it.

Mr. RUBY. Oh, yes; I can take it off the employee payroll card. I can give you the whole thing.

Mr. GRIFFIN. Gives us names, addresses, and telephone numbers.

Mr. RUBY. Do you want me to ask my wife specifically about that call to North western University?

Mr. GRIFFIN. If you would?

Mr. RUBY. Yes; because that may answer that one. What is that name?

Mr. GRIFFIN. Kirk Bibul.

Mr. RUBY. And that was in April 1962?

Mr. GRIFFIN. No.

Mr. RUBY. That would be before that?

Mr. GRIFFIN. No; that was after.

Mr. RUBY. Before.

Mr. GRIFFIN. That was the latter part of 1962 and the first part of 1963.

Mr. RUBY. Late 1962 and 1963.

Mr. GRIFFIN. And early 1963. I believe also you indicated to Mr. Hubert that you didn't recognize the name of the Ypsilanti Buffing Co. as anybody that you had dealt with.

Mr. HUBERT. Or maybe you did identify that one.

Mr. RUBY. No; I don't think so. Now when was this about? Maybe this had to do with polishing or plating that same basket that we use in our dry cleaning operation. I don't know.

Mr. GRIFFIN. How about the Public Vending Corp?

Mr. RUBY. No; Public Vending, where are they located? Is that a long distance call, you say?

Mr. GRIFFIN. That is a long distance call. When did you have this problem with the plating that required some work?

Mr. RUBY. Last year.

Mr. GRIFFIN. What part of last year would that have been?

Mr. RUBY. No, excuse me; yes, the end of last year, that is right, the end of last year, and that is when I think I called Troy Plating in Chicago, to see if they could do that, and I may have called. I used the yellow pages. I tried to get information from anyone as to who could do it, so I may have called Ypsilanti, and they may have said no and I crossed it out of my mind immediately.

Mr. GRIFFIN. Now the General Scientific Corp. is not a corporation that you recognize?

Mr. RUBY. Oh, yes; oh, yes. We bought lenses from them for the camera.

Mr. GRIFFIN. How about Berger Products?

Mr. RUBY. That don't register with me. What city? That isn't in Cleveland, is it, by chance, because I just called Berger Products I think Monday, but that wouldn't be on there. That is this Monday. See, we buy different articles from different parts of the country, and it is hard to remember each one.

Mr. GRIFFIN. Are these purchases in connection with your drycleaning business or some other business?

Mr. RUBY. Which, Troy? That was for the drycleaning. The lens, that was for my camera.

Mr. GRIFFIN. Have you asked him, Mr. Hubert, about what percentage of his time is spent with——

Mr. HUBERT. No.

Mr. GRIFFIN. Can you give us some idea what percentage of your time is spent with the camera company and what percentage with the drycleaning

business?

Mr. RUBY. The camera company is practically nil. In fact, it is out of business now. Over a 2-year period I only did about \$10,000 gross sales, I think.

Mr. GRIFFIN. Last year how much of your time was devoted to the camera company?

Mr. RUBY. When you say time, actually I took care of it more or less out of my home.

Mr. GRIFFIN. Did you have any other businesses last year besides the camera company and the drycleaning business?

Mr. RUBY. Well, I had the nameplate business. That all comes under Earl Ruby Co., both of those.

Mr. GRIFFIN. How much of your time did the nameplate business take?

Mr. RUBY. Very little. I don't think I did a thousand dollars in the last 2 years on that, so you can imagine how much time that took up. And then that is dead now. In fact, the orders were so small that instead of manufacturing the plates myself, for which I have the tools and dies, I had somebody else do it for me that makes a similar item.

Mr. GRIFFIN. What kind of nameplates are they?

Mr. RUBY. A little plate 3 inches by 6 inches made out of metal. It is very similar to the design of your license plate, but we would put the children's name on it, like John Jones, and they would fasten it to the back of their bicycle or their wagon or what have you. This was a box top deal item that we used, Armour's Meats used it several years ago. They send in a box top from Armour's franks with 25 cents, and you get the plate, things like that.

Mr. GRIFFIN. You say you held the dies on it?

Mr. RUBY. I own them.

Mr. GRIFFIN. You own the dies, but you were going to have somebody else manufacture them?

Mr. RUBY. Yes, I did, because it didn't pay for me to set up to make 100 plates, because it just wasn't worth it, you know.

Mr. GRIFFIN. Who did the manufacturing?

Mr. RUBY. Dixie.

Mr. GRIFFIN. Is this your brother-in-law's company?

Mr. RUBY. Who?

Mr. GRIFFIN. Dixie?

Mr. RUBY. Dixie, no; that is just some people I never even met, but I knew that they made a very similar plate, exactly the same size but slightly different in design, and that I could substitute this for mine. Actually, his was a better plate. It was made out of aluminum, which I did. And so that it wasn't necessary for me to go through all the bother and expense to set up my operation to make the plate.

Mr. GRIFFIN. That is the Dixie Seal and Stamp Co.?

Mr. RUBY. Yes.

Mr. GRIFFIN. In Atlanta?

Mr. RUBY. Right.

Mr. GRIFFIN. Now the Berger Products Co. is in Philadelphia.

Mr. RUBY. Oh, Berger Products. They made a plate, and the reason I called them, I have got to go back. When I sold my company, Earl Products, the fellow I sold it to couldn't pay me all the money. So we made a new deal. He gave me some money and some of the operation back. That is how I got back the camera and the nameplate. Berger is also in the nameplate manufacturing business, and I wanted to sell him the nameplate business if I could. That is why I called him. Now I know. It is Philadelphia. That must be the Berger Co.

Mr. GRIFFIN. Now did Mr. Hubert ask you if you knew anybody at the Mar-Din Co.?

Mr. RUBY. No; he didn't ask me that. Yes; I know those people.

Mr. GRIFFIN. How do you happen to know them?

Mr. RUBY. They were one of our best accounts years ago when I first got into manufacturing.

Mr. GRIFFIN. This was in the Earl Products?

Mr. RUBY. Yes; the Earl Products Co.

Mr. GRIFFIN. What sort of things did they purchase from you?

Mr. RUBY. Well, they purchased aluminum salt and pepper shaker sets. That was the main item. And then they also purchased some hammer and screwdriver sets, because at that time I was manufacturing those, too.

Mr. GRIFFIN. Did you deal with these people while your brother Jack was connected with Earl Products?

Mr. RUBY. Yes.

Mr. GRIFFIN. And did Jack know these people?

Mr. RUBY. Yes.

Mr. GRIFFIN. What does the Mar-Din Co. do?

Mr. RUBY. They are distributors of general merchandise, I would say.

Mr. GRIFFIN. Do they do any manufacturing that you know of?

Mr. RUBY. No; I don't think so, not that I know of.

Mr. GRIFFIN. What is the nature of their distribution? Is it mail order or direct sale?

Mr. RUBY. Well, it is both. I think some mail order and they have salesmen, which would mean direct.

Mr. GRIFFIN. Do you remember talking with Jack, your brother Jack, about the Mar-Din Co. at anytime last year?

Mr. RUBY. Yes; I think when he was talking about—I am not sure now, but I think that he brought up their name when he was talking to me about going into the manufacture of the twistboard, and he thought they would be a very good outlet.

Mr. GRIFFIN. And do you recall what you suggested to him?

Mr. RUBY. No; I am not even sure of that. I can't remember a conversation that took place.

Mr. GRIFFIN. Do you remember receiving any telephone calls from Jack in the month of November before the episode down in Dallas?

Mr. RUBY. Yes; we talked about the twistboard.

Mr. GRIFFIN. How many calls do you recall receiving from him?

Mr. RUBY. Oh, at least three or four, I think.

Mr. GRIFFIN. And were they all in connection with the twistboard?

Mr. RUBY. As far as I know; yes.

Mr. GRIFFIN. I want to ask you to try to reflect on these calls and see if we can't discuss them one by one. If you can, try to think about the first time he called you and the next time, and so forth, so that we can ascertain how your dealings with him progressed?

Mr. RUBY. Well, I think the first conversation was probably to the effect that he had a good item, and he was going to send me one, and he told me something about it, it is a terrific item, and he wants to get into the manufacture of it, if he could.

Mr. GRIFFIN. Did he send you one of them?

Mr. RUBY. Yes; he did. In fact he sent me, I think he sent me a half dozen. No; the first time he only sent me two, and then when I was down in Dallas, you know, for the trial and so forth, I brought back a half dozen for my kids, and so on.

Mr. GRIFFIN. I take it that you were interested then in the project?

Mr. RUBY. No; not for myself. He wanted me to see if I could locate people to make the parts at the least possible cost. He wanted to get into the manufacture in Dallas, and he mentioned to me, because I was trying to discourage him, because first of all he don't know too much about manufacturing, and to set up for one item, which I didn't think was such a tremendous item, I thought was a little bit ridiculous. And then he said that he would have the Goodwill organization assemble it for him. I don't know if you are familiar with their complete operation, but they will assemble items for you at a very reasonable rate.

Mr. GRIFFIN. This is Goodwill Industries?

Mr. RUBY. Oh, yes.

Mr. GRIFFIN. And was that going to be done in Dallas?

Mr. RUBY. In Dallas. So then he sent me the sample, and somehow I think this Triangle manufacturing came up. He may have mentioned it. I am not sure because I don't remember every word of the conversation going back that far. I think I called Triangle, if that is their name. I am not even sure of that. He called me and he said, he might have said, "call them and see what you can do." Anyhow, I contacted a couple of people in Detroit that I thought might know something about the twistboard, because he told me it was so tremendous in Dallas I figured it's got to be known here in Detroit, although I had never even seen it. So I asked—I happened to call a fellow that is a salesman for toys and novelties and things of that sort.

Mr. GRIFFIN. Who was that?

Mr. RUBY. I can't even think. I know his first name is Henny, I can't even think of his last name, and he said it is a flop, it is a dead item here. They tried it and it didn't go over. So I think in one of the conversations I no doubt told Jack that, and anyhow I got a sample and I think it was of this part that we needed, the bearing part for this twistboard. Maybe I had better describe it. It is a little board, fiberboard about 12 inches square and it sets on a bearing like, and the bearing has another piece of press wood under it, and if you stand on it and you twist, you twist around. That is what the item was. And I couldn't see it, especially it was selling for \$3. I couldn't see it. I just didn't think anything of it.

Mr. GRIFFIN. I take it Jack was enthusiastic about it?

Mr. RUBY. Oh, yes; he was very enthused. He was going to get started.

Mr. GRIFFIN. Were you able to dissuade him at all from his enthusiasm?

Mr. RUBY. I think so, I think so. I really don't know. As far as I know, I think I did. I told him it just doesn't pay to get into it, because the one that was being marketed, if I recall he told me was selling for \$3. So he said if he could sell his for \$2. it would be tremendous. But I figured out the cost to him about 80 cents and if you sell the jobbers, you have got to give them 50 and 10 off. By the way, I have gone all through this with him but I just

want to make it clear. So that means he is going to get 90 cents. In addition they want 2 percent, so you get 88 cents, approximately, and it costs you 80 cents, so you can't be in business on 8 cents gross profit on an item that you are selling for 88 cents. It is just impossible.

Mr. GRIFFIN. And in which telephone conversation did you have this discussion?

Mr. RUBY. In one of them, not the first one, because I didn't have all the information then. But after I got all the information, I called him or he called me.

Mr. GRIFFIN. Do you remember Jack calling you after the telephone call, a few days after the telephone call that was made in connection with Triangle? Do you remember that telephone call?

Mr. RUBY. Well, I think so, and that is when I told him I think they wanted 45 cents, and that is when I broke down the price structure, that it just didn't seem feasible to consider manufacturing it if you had to sell it at \$2 and I probably told him at that time, I checked into it and it was a flop in Detroit, so it was my opinion it wasn't good.

Mr. GRIFFIN. Did Jack call you in November about anything other than the twistboard?

Mr. RUBY. I don't think so. I think the only thing we discussed other than—maybe how is the family, you know, how are your kids, which is the general conversation when two brothers talk.

Mr. GRIFFIN. Did he ever call you in connection with Eva's illness?

Mr. RUBY. Yes, yes; he did mention that, that she was going to have an operation, she was going to have an operation, she had an operation, and he said, "I think you should call her or write her" or something. I don't know, I may have even called her in the hospital, I really don't remember, but he said she was feeling very bad, and for me to either write her, send her a card or call her, and I don't know what I did. I did something but I don't remember exactly.

Mr. GRIFFIN. While Jack was living in Dallas, had you talked with him about other business ventures that he had, outside of his clubs?

Mr. RUBY. Well, a few years ago I talked to him about, he had a vitamin called Miniron, or something like that. In fact, I tried to discourage him about that, but I couldn't, and in fact I think if I remember correctly, I sent him some money to try it, but it just didn't go. It was a vitamin, a liquid vitamin of some kind that he thought was terrific. He was always taking diet pills and stuff like that. He was whatever the name for that is. Anyhow, he went for all kinds of diet remedies that came on the market. But it never seemed to help him much because he liked to eat.

Mr. GRIFFIN. Do you have any recollection of when he was selling these diet pills or these vitamin pills?

Mr. RUBY. Oh, it is a few years back. It had to be—it was a liquid. I don't think it was a pill. It was a bottle of some kind. In fact, he sent me some. It is several years back, I mean 4, 5 or 6 or 7. I don't remember exactly. It was several years ago I know.

Mr. GRIFFIN. Can you recall your activities of the weekend of November 22, 23, and 24?

Mr. RUBY. The 22d, Friday, right?

Mr. GRIFFIN. Yes.

Mr. RUBY. I was at work drycleaning when we heard the news on the radio.

Mr. GRIFFIN. That the President had been shot?

Mr. RUBY. Yes; first shot. Then we were waiting for additional news, and then finally it came through that he was dead.

Mr. GRIFFIN. How long did you remain at the drycleaning plant that day?

Mr. RUBY. Gee, I would say probably until 6 o'clock. That is my usual hour.

Mr. GRIFFIN. Then what did you do?

Mr. RUBY. Friday I always go home to dinner Friday night because it is traditional in our family. Jewish people, we have a big meal on Friday nights, so very, very seldom would I miss a Friday night dinner. I am quite sure I went home.

Mr. GRIFFIN. You don't have any specific recollection of what you did Friday night?

Mr. RUBY. No; I was deeply upset, like most everybody else, I think, and I went home I know at 6 o'clock.

Mr. GRIFFIN. Do you have a specific recollection of going home and being at home on Friday night?

Mr. RUBY. No; not specific, but I can't see what else I would have done but go home to eat.

Mr. GRIFFIN. Do you recall what you did in the evening after you ate, Friday evening?

Mr. RUBY. No.

Mr. GRIFFIN. Is it your practice to go to religious services on Friday?

Mr. RUBY. You wouldn't go on Friday night, would you? No; I don't go on Friday night.

Mr. GRIFFIN. Are you of the Jewish faith?

Mr. RUBY. Yes.

Mr. GRIFFIN. And do you have a particular temple or synagogue?

Mr. RUBY. More or less, yes, but I am not what you call Orthodox. The Orthodox, you know, just like other religions, they go every chance they get more or less. But I am not of the Orthodox.

Mr. GRIFFIN. But the temple or synagogue that you belong to, when does it regularly hold services?

Mr. RUBY. It probably holds them—I don't know. I know they have them Saturday. Saturday they always have services. I don't think they have services there Friday night. They don't have services on Friday night as far as I know.

Mr. GRIFFIN. Do you recall your own religious practices when you were living in Chicago with Jack? Did your practices and feelings at that time differ from his?

Mr. RUBY. Well, I would say—can you make that a little more clear?

Mr. GRIFFIN. Looking back to the time when you and Jack saw each other regularly when you were in Chicago, when Jack was in Chicago, were your religious practices the same as they are now? Were you any more religious then? Did you observe the holidays more closely?

Mr. RUBY. You want to compare Jack with myself?

Mr. GRIFFIN. First of all, let me ask you about your own practice.

Mr. RUBY. Well, you must understand, first, that it is very unusual for a Jewish boy not to be bar mitzvah.

Mr. GRIFFIN. I am not asking about particular ceremonies, but I am asking you about the regular habits of weekly attendance and so forth. Did they differ in the period before 1948 from the way they are now?

Mr. RUBY. Mine?

Mr. GRIFFIN. Yes.

Mr. RUBY. Well, I would say I go more often since I got married, of course, because that is the Jewish tradition. When you get married, you have children, my kids go to Hebrew school, they went to parochial school, in fact my son graduated from the Hebrew school in Chicago, and so I would say I am more religious since we have children.

Mr. GRIFFIN. Now, when you were single in Chicago, how did your religious practices differ from Jack's?

Mr. RUBY. Well, I would say he was a little more religious than I was.

Mr. GRIFFIN. Did he attend the synagogue or temple more often than you did?

Mr. RUBY. I would say more often than I did.

Mr. GRIFFIN. Did he go regularly?

Mr. RUBY. I wouldn't say regularly, but he did go more often than I did.

Mr. GRIFFIN. About how many times a year would he go other than on high holidays?

Mr. RUBY. This goes back so many years. You know he has been away more or less from me for 17 years now, so it is pretty hard to remember.

And you know he is not the only one in the family. We still have six more children. I can't even remember all their birthdays, remembering who went where on holidays.

Mr. GRIFFIN. If you don't have a specific recollection, I don't want to ask you the question, then. Let's go back to the 22d, 23d, and the 24th.

Do you recall what you did on Saturday, the 23d?

Mr. RUBY. I think I went to work, the usual time, probably 7:30, and probably worked until 6 o'clock. Saturday is a busy day for us, and probably went home so far as I know.

Mr. GRIFFIN. You used the word "probably." Are you indicating that you don't really have any specific recollection of what you did that Saturday?

Mr. RUBY. I would say I probably went home, but I am not sure. I would have to check with my wife to make sure. I don't think we went out, because we were in deep mourning.

Mr. GRIFFIN. You were, or you were not?

Mr. RUBY. I said we were.

Mr. GRIFFIN. You were in deep mourning?

Mr. RUBY. So I don't think we would have gone any place.

Mr. GRIFFIN. What do you mean when you said you were in deep mourning?

Mr. RUBY. Well, we cried a lot in our family when this happened, I mean actual tears.

Mr. GRIFFIN. Can you tell us when this happened? Can you describe to us where and when and who was present? What was happening around you?

Mr. RUBY. Well, I don't know exactly what our—but I know after this happened, probably on Friday night, my wife was definitely in tears at that time, and I was, too. We both greatly admired him. In fact, my wife on many occasions, even before the incident, she just loved him. There was nobody greater than President Kennedy. She made a statement many times.

Mr. GRIFFIN. Are you both registered Democrats?

Mr. RUBY. I was a Democrat all my life. In fact, I worked for the Democratic headquarters in Chicago many years ago. All our family has been Democrats all our lives, as far as I can remember.

Mr. GRIFFIN. Do you recall what you did Sunday morning?

Mr. RUBY. On the 26th? Yes.

Mr. GRIFFIN. The 24th.

Mr. RUBY. The 24th. We needed some electrical work done at the plant, and the only time to do it without interfering with production was to have it done on Sunday morning. So I had the electrician come in on Sunday, and I met him there, I think, about 10 o'clock probably, Sunday morning, at the plant to do this work, and I was there until—I just wanted to get them started, and I had one of my other employees there to watch things, you know, because we had an outside contractor, electrical contractor here to do the work, and there is a lot of clothing there and we wanted to be careful if they worked on the ceiling that they didn't drop dirt on the clothing and so forth.

So I left. I was there maybe 2 hours, I don't remember, anyhow I wasn't in the car but 5 minutes or so driving one of the other employees—another employee who stopped in home—I was en route to drive him home. We had the radio tuned in. That is when I heard—no, before I left this Mike Nemzin, who is my best friend, and his brother is my partner, he was in the hospital with an operation——

Mr. GRIFFIN. The brother or Mike Nemzin?

Mr. RUBY. Mike Nemzin. He had some kind of surgery on his ribs or something, a very serious one, though, and so I thought I would call him to see how he was.

So I called him Sunday morning, it must have been about 12 o'clock, from the plant, I was at the plant, mind you, and as I am talking to him, he is in his bed in the hospital, he is watching television or radio and he says to me, "I can't talk to you. Somebody just shot Oswald," he says.

"I'll talk to you some other time." You know, because we were all excited, especially he was. So I hung up. And we didn't have the radio on in the plant, but we left a few minutes thereafter. And in the car, as I said,

about 5 minutes later, as I am in the car driving, just drove probably a mile from the plant, which wouldn't take more than 5 minutes, it comes through on the radio that Oswald has been shot and the fellow that did the shooting is Jack Ruby, owner of the Carousel Night Club in Dallas, and I immediately knew it was my brother because that was the name of the club he owned.

Mr. HUBERT. Did you say you were riding with someone at the time?

Mr. RUBY. Yes.

Mr. HUBERT. What was his name?

Mr. RUBY. Jim Stewart.

Mr. HUBERT. Does he still work for you?

Mr. RUBY. No.

Mr. HUBERT. Where is he located now; do you know?

Mr. RUBY. Right now he is in the hospital, Receiving Hospital in Detroit.

Mr. GRIFFIN. What did you do when you heard that?

Mr. RUBY. Well, I was very upset, of course, and he said—I was driving—he said, “You had better pull over to the curb. You just turned white as a ghost.”

So I pulled over for a second or for a few minutes to recuperate my senses, so to speak. And then I said, “I had better take you home,” which I did. Then I went home. I drove home, and I called my sister in Chicago. I don't even know which one I called. There is two of them. And they knew about it, of course, by that time, too. This was a half hour later and they probably heard it on the air. And they were all upset, of course. And I said, “Well, I had better come to Chicago.” So I called the airport and I flew to Chicago Sunday.

Mr. GRIFFIN. How long did you remain at the cleaning plant after you finished talking with Mike Nemzin?

Mr. RUBY. Just a couple of minutes, just a few minutes.

Mr. GRIFFIN. And what other people were in the plant at that time?

Mr. RUBY. When I talked to Mike Nemzin?

Mr. GRIFFIN. Yes.

Mr. RUBY. The electrician, I think, and his helper, he had a helper, you know.

Mr. GRIFFIN. Do you remember the name of the electrician?

Mr. RUBY. Oh, yes.

Mr. GRIFFIN. Can you give us his name?

Mr. RUBY. The trade name, I think, is Marco Electrical Contractors, and his first name is Marty. That is with a “c”. It is a little bit of an odd name, but I have it available there if it is necessary.

Mr. GRIFFIN. His last name starts with a “c”?

Mr. RUBY. Yes; I think that is where he got this Marco. And then, of course, as I told you I flew to Chicago, and my brother met me at the airport, if I am not mistaken, Hyman, and this was already before I could get reservations and get the plane and pack some clothes and all. It was late in the afternoon, and I think I arrived there, if I am not mistaken, probably 6 o’clock in Chicago, and it takes about an hour to get there.

Anyhow, no sooner I got in the house, you know, of course, the reporters were calling and it was a real—we tried not to talk to everyone, to anyone, if I recall.

When I got there, then my sister said that there were some men at the door and they said they were FBI men or special agents, and she thought they were reporters so she wouldn’t let them in, and she was hysterical now, to put it straight. And so then we got a call. We did answer the phone, of course, and we got a call from an agent, I can’t remember his name, but he said that they want to get in and talk to us and we wouldn’t let anybody in. You know, we just wouldn’t let anybody in. So he says, “Here is a number and call this number and my name is”—one of them was White, and I can’t think of the other one, one of the agents in Chicago. “Call this number and they will verify this that we are special agents.” So I said OK. So I went out to a pay station and called, and sure enough they said yes, they are agents, and so I walked back into the house the back way, and I saw them standing in the front, by the way. You know, there were about three or four of them.

And I told my sister we had better let them in, they are special agents, which we did. There were four, I think. Four agents came in at one time.

Mr. GRIFFIN. And did they interview you and your brother and your sister?

Mr. RUBY. Yes; all of us.

Mr. GRIFFIN. Were you being interviewed simultaneously by the Bureau?

Mr. RUBY. Yes; in different parts of the house.

Mr. GRIFFIN. So that while you were being interviewed, one or more of your brothers and sisters were also being interviewed.

Mr. RUBY. Oh, yes; they talked to one sister, I think one agent talked to her in the kitchen or dining room or another part of the house, and one or two were with us.

Mr. GRIFFIN. Now, at the time the Secret Service agents had talked to you, had you had a chance to talk with any of your family in Dallas?

Mr. RUBY. Had I?

Mr. GRIFFIN. Excuse me, at the time that the FBI talked to you, did you have an opportunity to talk with any of your family in Dallas?

Mr. RUBY. I don't think I even had time. I don't think so.

Mr. GRIFFIN. You don't recall having talked to them?

Mr. RUBY. No; but I don't think so at all. There was just not enough time. I called Chicago, if I recall, that is all I called. I don't think I called Dallas.

Mr. GRIFFIN. Had Hyman or your sisters in Chicago had a chance to talk with Eva or Sam?

Mr. RUBY. I don't know. I don't know.

Mr. GRIFFIN. When you arrived in Chicago and talked with Sam——

Mr. RUBY. With Hy, you mean.

Mr. GRIFFIN. With Hy, yes—did you discuss any contacts that Hyman had had with Jack over the weekend?

Mr. RUBY. I don't remember.

Mr. GRIFFIN. How long did you remain in Chicago on the 24th?

Mr. RUBY. I just remained overnight and went back to Detroit, because my wife called me late at night, I don't know what time it was, very late anyhow, and she said, "You had better come home. The reporters are just driving me crazy." She was terribly upset. So the next morning I flew back.

Mr. GRIFFIN. While you were in Chicago, did you make any plans with respect to obtaining an attorney for your brother?

Mr. RUBY. While I was there for that little while?

Mr. GRIFFIN. Yes.

Mr. RUBY. No; but I think if I recall correctly Tom Howard was already in the picture. I heard his name. I didn't talk to him, but as far as I know I heard his name on the air, that he was representing Jack, or something to that effect. At least I think so. But I don't know if that was before I left for Detroit or not.

Mr. GRIFFIN. What was the nature of your meeting with your brothers and sisters in Chicago?

Mr. RUBY. Well, they were upset and they suggested I come there. So I came there.

Mr. GRIFFIN. Did you have any discussion as to what you could do for Jack?

Mr. RUBY. We probably did, but there was nothing definite made, no definite arrangements. I know that I called, I think, Tom Howard. He was the first attorney, if you remember, to represent Jack, Monday morning after I arrived back home, because when I arrived there we had police at the house already, and the chief of police and my wife came down to meet me at the plane, and en route back my wife was telling me how the newspaper reporters were bothering her, they wouldn't let her sleep. They were there until 2 o'clock in the morning and whatnot, you know. So I didn't know what to do. So I asked the chief of police—his name is Sackett—a very nice man—what would he suggest. They all wanted information, a press conference or what. He said, "If I were you, the only way you are going to get rid of them is give them a press conference." But I didn't know if that

was the correct thing to do, so I am quite sure I called Tom Howard and told him who I was and told him that all these news people wanted a press conference and what should I do. And I told him what the sheriff, the police chief, had suggested, and he says, "Well, there is no harm. You might as well do it and get it over with."

So we called a press conference, I think it was, for 2 o'clock in the afternoon, something like that, and our rabbi came over, Rabbi Adler, and then I think right after that, I think some special agents called and came in or came over, and I think there were some there in the evening. Again, I think they came. And that ended that day. That was Monday. And then we started talking about attorneys and what to do and who to use.

Mr. GRIFFIN. You say, "we started talking about it." Who was this?

Mr. RUBY. I talked to the family, and I talked to—we talked back and forth so many times. I am talking about Chicago, you know.

Mr. GRIFFIN. Yes.

Mr. RUBY. And I think they were in touch with Dallas. I think Eva and Sam, they were talking back and forth, more or less continually.

Mr. GRIFFIN. Did you have anything to do with getting Mr. Tonahill into the case?

Mr. RUBY. Indirectly; yes.

Mr. GRIFFIN. Let me ask you who you directly got into the case, if anybody?

Mr. RUBY. Belli.

Mr. GRIFFIN. Would you tell us how Mr. Belli came to get into the case?

Mr. RUBY. Jack called. They let him use the phone down there. He talked to me or someone. Anyhow, we were talking about a lawyer then. We were all excited about getting the right lawyer. And he mentioned—I am trying to get it straight in my mind here. Oh, yes; he mentioned somebody wanted some information on his life or something, a life story or something, something to that effect, and he said to contact Mike Shore in California, in Los Angeles, who is a friend of ours, and he was a pretty well known publicity man.

Mr. GRIFFIN. Did you know Mike Shore before you called?

Mr. RUBY. Oh, yes.

Mr. GRIFFIN. How did you happen to know Mike Shore?

Mr. RUBY. Well, actually, I know him since high school days in Chicago. He originally lived in Chicago.

Mr. GRIFFIN. Was he a classmate of yours in high school?

Mr. RUBY. No; but he went to the same school, if I remember, and I really didn't get acquainted with him until after we got out of school.

Mr. GRIFFIN. What was your acquaintance with Mike Shore after you got out of school?

Mr. RUBY. Just on a general hello and how are you basis, nothing real close.

Mr. GRIFFIN. But in what connection would you see him?

Mr. RUBY. Then he became——

Mr. GRIFFIN. Do you understand my question? In what connection would you see him after you got out of school?

Mr. RUBY. I used to be a lifeguard at a swimming pool close to where he lived and he used to come over there once in a great while, just a few blocks from his house. And he used to—he was a Good Humor salesman, and we would go out and see him where he parked his truck or something once in a great while. But that was because he was more friendly with other people than he was with me. In other words, I wasn't one of his buddies. I would go along just for the ride.

Mr. GRIFFIN. Did you do any business with him?

Mr. RUBY. I am coming to that. Then he became—he opened up the Mike Shore Advertising and he is the one that was behind Earl Muntz, you know, and the cars and the television. That is Michael Shore. And I did some business with him along in manufacturing. He got into the manufacturing of an item, a food seasoner. It was a large aluminum needle and you filled it with some different meat flavors and you injected it in the meat. Somebody talked him into it. He was doing very well, and he

invested in it. Anyhow, it wasn't made correctly so they couldn't sell it, so he asked me since at that time I was in manufacturing, if I could correct the defect so they could at least sell them and market them, which I did. They shipped all these to me, I don't know how many thousand, 5,000 or 10,000, and we reworked them and fixed them and sold them for him. Then not too long after that Muntz practically went bankrupt, so he closed the Chicago office and moved back to California. So, anyhow, I called Mike.

Mr. GRIFFIN. Let me ask you another question. From what you have said, I take it that Mike Shore first had contacted your brother Jack or somebody in Dallas?

Mr. RUBY. No, no, no.

Mr. GRIFFIN. Jack told you to call Mike Shore?

Mr. RUBY. Right.

Mr. GRIFFIN. Now, had Shore contacted Jack or what gave Jack the idea of suggesting that you call Shore?

Mr. RUBY. Well, Jack knew that I knew Mike Shore, and he was, you know—he had been in advertising, was the only one we knew that could give us any advice as to what to do.

Mr. GRIFFIN. Had Jack had someone approach him in connection with a life story or something like that?

Mr. RUBY. Yes; he said several people were trying to contact him through Howard and wanted a life story.

Mr. GRIFFIN. The first you heard about this, though, was when Jack called you and asked you to contact Mike Shore?

Mr. RUBY. Yes; as far as I know. Now, wait—I don't know if he talked to me or he talked to one of the members of the family, because we had so many telephone calls from those first few days I can't recall all of them. But, anyhow, the word came to me to call Mike Shore and ask his advice.

Mr. GRIFFIN. Now, do you recall how long after Oswald was shot that this call of yours took place?

Mr. RUBY. Oh, just a day or two later, I think.

Mr. GRIFFIN. And I take it you did call Mike Shore?

Mr. RUBY. Yes; I did.

Mr. GRIFFIN. Did you call him in California?

Mr. RUBY. Yes; I called him in California.

Mr. GRIFFIN. And about how long did your conversation with Shore last?

Mr. RUBY. Several minutes.

Mr. GRIFFIN. Ten or fifteen minutes?

Mr. RUBY. I don't know. I really don't know. Anyhow, I don't remember.

Mr. GRIFFIN. Now, tell us what that conversation was.

Mr. RUBY. Well, I mentioned that Jack had said that people were interested in a story on Jack and Jack had said to contact him, ask his advice. And so he says, "Gee, that is a coincidence," he says, "because I've got somebody sitting right here in my office that would be the perfect man to do a story on Jack if one is going to be done." And he says, "His name is Billy Woodfield." His real name is William Woodfield. So he says, "I think you ought to come out here," the conversation got to that, "so we can talk it over."

So I flew out there a day or two later.

Mr. GRIFFIN. Was that all there was to the conversation at that time?

Mr. RUBY. Yes; lawyers weren't mentioned yet as far as I remember. I don't think we mentioned the lawyer in the first conversation.

Mr. GRIFFIN. Had you discussed with your family or with Tom Howard before you called Mike Shore——

Mr. RUBY. Yes.

Mr. GRIFFIN. What had been your discussion about selling the life story with your family and with Tom Howard?

Mr. RUBY. Well, the question came up that we would need money for a good lawyer, and this was one of the solutions to raising money.

Mr. GRIFFIN. Before you called Mike Shore, are you saying that you had discussed getting a lawyer other than Tom Howard, or when you use the term good lawyer are you talking about paying Howard?

Mr. RUBY. No: we were talking about a lawyer other than Howard now.

Mr. GRIFFIN. Who had suggested that you should get a lawyer other than Howard or how did that idea arise?

Mr. RUBY. That was, I think, between our family, the family itself.

Mr. GRIFFIN. And did you discuss this with Howard before you called Mike Shore?

Mr. RUBY. Wait, you are ahead of me. The first conversation I didn't mention a lawyer to Mike Shore yet.

Mr. GRIFFIN. I realize that.

Mr. RUBY. Yes.

Mr. GRIFFIN. But I am still asking you, you had indicated to me that the reason that you were calling Shore and thinking about a life story was that you were going to need money for another lawyer. The life story, as I understand it, is tied in with the idea of getting the money for a lawyer, or was there another reason for selling the life story?

Mr. RUBY. No; I think I talked to Tom Howard because we never heard of him, of course. In the meantime, I think in conversations back and forth, we talked with another lawyer there, somebody talked to him from the family or maybe it was relayed through my sister Eva down there—and I have a brother Sam in Dallas—do we need another lawyer. And then we learned that they were already trying to get a lawyer.

Now, you must understand, we have to go back to Tom Howard. Tom Howard is a bondsman in addition to being a lawyer. That is what he is noted for there. So then I think I talked to this other lawyer, Stanley Kaufman. He was my brother's civil lawyer down there. And I asked him if he knows a good criminal lawyer, and he says, no, he can't recommend anyone.

Mr. GRIFFIN. Let me interrupt you, Mr. Ruby.

Mr. RUBY. Excuse me. I can't remember the exact sequence of all these conversations, because they were going back and forth all day and night.

Mr. GRIFFIN. Maybe we can reconstruct it by asking you questions. From what you have said, I take it that by the time you called or somebody talked to Stanley Kaufman, the idea had been implanted that you would need a lawyer other than Tom Howard.

Mr. RUBY. Yes.

Mr. GRIFFIN. Now, who had planted the idea? How did that idea develop that you would need a lawyer other than Tom Howard?

Mr. RUBY. I don't remember exactly, but it could have been even my own thoughts, because a day or two after the shooting and the papers started to print stories, and stories about Tom Howard, and I realized who he was, and he was suspended at one time, I immediately thought this was not a good lawyer to have for my brother.

Mr. GRIFFIN. Now, what was Jack's original attitude, if you know, about Tom Howard?

Mr. RUBY. He wasn't too crazy about Tom Howard, as far as I could see, from what he told me, because he said Tom Howard contradicted himself a few times to him.

Mr. GRIFFIN. But did Jack, to your knowledge, develop the idea on his own that he should get somebody other than Howard, or was this suggestion raised to Jack?

Mr. RUBY. That I don't know. You are asking me what his thoughts were. I don't know. I can't answer that.

Mr. GRIFFIN. I didn't know if you had contact with him or not. Now, to your knowledge, were any other Dallas lawyers contacted besides Tom Howard before the final team of Belli, Tonahill, and Burleson?

Mr. RUBY. Oh, yes; Belli was the main one, you know. He was the first one.

Mr. GRIFFIN. Yes; but before Belli was brought in, were any other Dallas lawyers, or Texas lawyers——

Mr. RUBY. Oh, yes; they talked, Howard—Howard and I discussed this, and he said he needs help, he wouldn't mind another good lawyer. So we mentioned several names. He talked to Percy Foreman, and Percy Foreman, he told me Percy Foreman wants \$25,000 as a retainer before he will even step into the case. So he says, "I know you don't have that kind of money so that eliminates him."

However, later, upon talking to Foreman, he denies that. He said he only asked for \$2,500.

Anyhow, they contacted Stanley Kaufman. Stanley Kaufman contacted Fred Brunner. He is a Dallas criminal lawyer, very good. And the story I got is he says, "Okay, I'll handle the case. I will be right down to take over."

He never showed up. We found out why. He is Henry Wade's best friend, and so it just wouldn't work out. He just couldn't take it. Although he never called, we understood that that is what happened, because they down there found out that he was Henry Wade's best friend, and so he probably for one reason or another, he couldn't take the case.

Mr. GRIFFIN. You don't have any personal knowledge, however, that the friendship with Howard was the reason that Brunner didn't take the case?

Mr. HUBERT. With Wade.

Mr. GRIFFIN. With Wade. You don't know this?

Mr. RUBY. No; I talked to Brunner myself when I was down there later on. Brunner said something to the effect—I don't remember the exact words. I ran into him in the county jail. I don't remember what he said.

Mr. GRIFFIN. Did he say anything to you about why he didn't get into the case?

Mr. RUBY. I am just trying to, if I can find the words or something close to what he said. We just met in the hallway, and he said—I can't recall that conversation at all.

Mr. GRIFFIN. Did Brunner mention——

Mr. RUBY. But I had a later conversation which I remember very clearly,——

Mr. GRIFFIN. Tell us about that.

Mr. RUBY. This was after Jack received the sentence, you know.

Mr. GRIFFIN. Yes.

Mr. RUBY. Then Brunner told me that he now wants to help Jack. He feels that this would never have happened if he had handled the case originally, the verdict, you know, the death verdict, and that I should talk to the family and think over about him taking over the defense.

Mr. GRIFFIN. Did he mention anything about Henry Wade at that conversation?

Mr. RUBY. Yes; he said, "Even though I am very close," words to the effect that "even though I am very close with Wade, don't let that worry you," or something to that effect. But I forget that first conversation, and I just don't want to give you words——

Mr. GRIFFIN. Had he mentioned Wade in the first conversation that you recall?

Mr. RUBY. I am not sure and I don't want to just—no, we contacted Percy Foreman. You want to know who else?

Mr. GRIFFIN. Yes.

Mr. RUBY. I didn't know. This is only that I learned from Howard. He said he contacted Percy Foreman. He contacted Fred Erisman, a retired judge. There is another one, another very good criminal lawyer, but I can't even think of his last name to look it up. Is it important? I've got it here, but I just can't remember the name.

Oh, yes; here is another one they talked to, I understand—Jim Martin. In fact, he was in the case more or less with Howard. Oh, that is Charlie Tessmer, the other lawyer they contacted. And he turned it down. Why, he never told us, but he turned it down. In the meantime, I had talked to Charlie Bellows from Chicago who is now acting as consultant.

Mr. GRIFFIN. How did you happen to contact Mr. Bellows?

Mr. RUBY. Well, one of my close friends in Chicago worked in his office, another lawyer, Rheingold, Milton Rheingold.

Mr. GRIFFIN. Incidentally, let me ask you here, did you know a lawyer in Chicago by the name of Weiner?

Mr. RUBY. A lawyer? I don't think so, not a lawyer. I know a doctor, not a lawyer.

Mr. GRIFFIN. Go ahead now with your contact with Bellows.

Mr. RUBY. So we talked to Bellows. I talked to him, rather. And he said he was going to be rather busy, and he wasn't sure he could take the case. As a matter of fact, that is who I wanted originally, because we knew him. His office represented me before Rheingold, was in his office with him, was my civil lawyer in Chicago, more or less, so you know at least we had a knowledge of who we were going to hire. And, in addition to that, he is a great criminal lawyer. He is head of the American Defense Lawyers, and all that.

Mr. GRIFFIN. And had you contacted Bellows before your telephone call to Mike Shore?

Mr. RUBY. Yes; I am quite sure I did, and I asked him to give me an idea of the fee because, you know, expenses. Well, he said his fee would run anywhere from \$10,000 to \$15,000, because he figured it would be a 2- or 3-month trial, plus expenses.

So I, of course, asked him what his expenses might be, and he says it shouldn't be more than, if I recall, \$100 or \$200 a week for his own expenses, he said, because he doesn't live highly and knowing me he is going to keep it down as low as possible.

Mr. HUBERT. You are talking about Bellows now?

Mr. RUBY. Bellows.

Mr. GRIFFIN. Mr. Ruby, had you discussed a fee with Tom Howard?

Mr. RUBY. I did, but I don't know when.

Mr. GRIFFIN. What was the fee that was finally arrived at with Tom Howard? What was his fee to be?

Mr. RUBY. His fee was originally, if he would stay in all the way, he told me from \$10,000 to \$15,000.

Mr. GRIFFIN. And how many lawyers did Howard suggest would be needed besides himself?

Mr. RUBY. Well, I mentioned the names, you know, like Bellows. In fact, he talked to Bellows, and we were in the process of probably working something out with Bellows, but he was too busy, and asked—then the question came up as to whether Bellows would be a risk in Dallas, since he is Jewish. And I talked to about a half dozen other lawyers, and I even talked to the best criminal lawyer in Detroit, Joe Louisell. I had a meeting with him. I asked his advice. He says, “Don’t bring a Jewish lawyer down there.”

Mr. GRIFFIN. What was Howard’s view?

Mr. RUBY. Howard agreed with that. So that more or less took Bellows out of the picture. Now, in the meantime, I am back, going to California. So I go to California. They meet me at the airport. Is everything pretty well in sequence up until now?

Mr. GRIFFIN. That is all right, we will clarify. We will ask you some questions about it.

Mr. RUBY. Oh, yes; first the conversation, to get back to Tom Howard, the first one or two conversations, as I said, I talked to him Monday morning. Then I think I talked to him Monday night. I don’t remember, I talked to him any number of times. And in our discussions we talked money, costs. He mentioned “It is going to take a couple of months. You have got to figure anywhere total expenses close to \$50,000.”

I never knew all these things existed that you have to hire a special investigator, and he wants \$10,000. And you have got to have an appeals lawyer like Burleson. That is how he came in. You have got to pay him.

Anyhow, he broke it down, roughly, over the phone he says it may run \$50,000. So that is why I started asking any lawyer I talked to, like Bellows, “How much are you going to charge? I have got to know all these things. Give me an idea what we have to raise.”

Then I had all of this information more or less in the back of my mind, how much have we got to raise to get Jack a decent defense counsel. Then I go out to California. They meet me at the airport, Mike Shore and Woodfield. The first thing they say, “Have you got a lawyer yet?” I says, “No.”

I am still talking to Bellows. He is not out yet, you see. He is not out of the picture. Howard is still supposedly trying to contact somebody else that is good. I haven't been to Dallas yet. In the meantime, as I said, he had contacted Foreman and Charlie Tessmer and Fred Erisman. They were out. Fred Brunner, he didn't want to get in at the beginning. Those were considered some of the top criminal lawyers in the State of Texas.

So, anyhow, I meet him, they meet me at the plane in Los Angeles, get in the car. The first thing they ask is "Have you got a lawyer?" And I tell them what is going on. I am not sure yet. So they start talking to me about Belli, Melvin Belli. I had never heard of him. And they couldn't understand it. But I never had. And I told them that, that I had never heard of him, and so they start telling me how great he was, you know, and all that stuff.

And they said, "By coincidence he is in town. He is in L.A."

Mr. GRIFFIN. How long before you arrived did Shore and Woodfield—how long before you arrived did they know you were coming? In other words, how many days elapsed between your conversation with Shore and your airplane trip out there?

Mr. RUBY. Gee, only a day or so, I think.

Mr. GRIFFIN. Now, had Shore mentioned Belli to you on the telephone in that first conversation?

Mr. RUBY. I think so, but I am not sure—I think so, but I am not sure, because I think in our conversation in the car that we had makes me think they mentioned it before now, because the conversation went like this: I must have mentioned before I haven't heard of Belli. He says, "I know I haven't mentioned Belli and I don't want to push him too much," but then they started to tell me how good he is, so we must have talked about him on the phone. My remark was, "But Mike, I never heard of him."

So, anyhow, they said, the conversation got around that he is in town, and, "Would you care to see him?"

I says, "Well, I've got nothing to lose."

In the meantime, they are telling me how great he is, of course.

Mr. HUBERT. Were you under the impression that they had asked Belli to come to Los Angeles?

Mr. RUBY. I don't know.

Mr. HUBERT. Do you think it was a coincidence? Is there anything factual that happened that might suggest to you that——

Mr. RUBY. Yes; I think that they probably did. I shouldn't say did, probably could have. I don't want to make the statement that they did, because Woodfield later told me that Belli promised him that he would write Belli's version of the trial or whatever you call it, for making the contact to represent my brother, words to that effect.

Mr. GRIFFIN. Woodfield said this?

Mr. RUBY. Yes.

Mr. GRIFFIN. And you heard Woodfield say it or this is something that somebody else told you Woodfield said?

Mr. RUBY. No; I heard Woodfield say that.

Mr. HUBERT. Woodfield told that to you?

Mr. RUBY. Yes; sure.

Mr. GRIFFIN. When did he tell you that?

Mr. RUBY. That was later on when he learned—this was weeks later when he learned he wasn't going to do the story. Somebody else—Belli brought in a fellow by the name of Al Moscow to do the story.

Mr. GRIFFIN. The story of your brother?

Mr. RUBY. No.

Mr. GRIFFIN. The story of Belli?

Mr. RUBY. Belli—Belli's book on the trial.

Mr. GRIFFIN. Now, was this before——

Mr. RUBY. Wait, we have got to clarify something else. We are getting ahead of ourselves.

Mr. GRIFFIN. Let me just pinpoint time here. Was your conversation with Woodfield about Woodfield not being able to write the Belli story, did that conversation occur before, during, or after the trial of your brother?

Mr. RUBY. During, I would say.

Mr. GRIFFIN. You indicate by your tone of voice and your words that you are not certain as to when this took place. Could you try to think of what the surrounding circumstances were of this conversation and other things to pinpoint the time?

Mr. RUBY. It wasn't after, I know. Whether or not it was before, it could have been just before, because I don't remember when Al Moscow came down the first time.

Oh, well, we can know exactly. It was published all over the country that Belli had signed a contract to do a story on Jack Ruby and the trial and all that stuff, and it was all over the country, with Al Moscow to do the writing. So we can pinpoint that. I don't remember the date.

Mr. GRIFFIN. Now, I took you off the track. Get back on your track.

Mr. RUBY. Where was I?

Mr. GRIFFIN. You said that we were skipping ahead, I think.

Mr. HUBERT. I think the last thing you were talking about before we diverted into these other aspects was that you said you had nothing to lose.

Mr. RUBY. Yes; that is right, so that evening we went to see Belli.

Mr. GRIFFIN. Where did you see Belli?

Mr. RUBY. In a home—a used home he had recently purchased in L.A.

Mr. HUBERT. Was an appointment made by them to see him?

Mr. RUBY. Yes; oh, yes. I think it was 7 o'clock, if I am not mistaken, that evening.

Mr. GRIFFIN. Where did they call Belli? Where was Belli when they called him to make the appointment.

Mr. RUBY. In L.A. from what they told me.

Mr. GRIFFIN. Yes; but do you know whether he was at his house or in an office or in a hotel or in a cocktail lounge or where he might have been?

Mr. RUBY. I don't recall. I don't remember.

Mr. HUBERT. Were you present when they called to make the appointment?

Mr. RUBY. I don't remember that, either.

Mr. HUBERT. So we are at the point that you do go to see Belli.

Mr. RUBY. Yes.

Mr. HUBERT. I think this is a good breaking point for lunch.

Mr. GRIFFIN. Maybe.

(Whereupon, at 1:10 p.m., the proceeding was recessed.)

TESTIMONY OF EARL RUBY RESUMED

The proceeding reconvened at 2:30 p.m.

Mr. GRIFFIN. Let me state for the record that as we resume this deposition that I presume you understand that the oath you took this morning with Mr. Hubert and all the formalities which you went through still pertain to this hearing.

You are still under oath and we will continue in the same fashion that we did before.

If there are any questions about it why you are free to say anything.

We were talking, it seems to me, that we got you to the point where you had just met Mr. Belli.

Mr. RUBY. Belli, that is right.

Mr. GRIFFIN. Now, I wanted to confine your attention from here on in to certain narrow aspects of your dealings in Los Angeles, and that is your efforts to find financing for Jack's trial and what the actual financing of the trial is.

Can you tell us, first of all, whether prior to seeing Belli, that day that you were in Los Angeles, you talked to Mr. Shore and Mr. Woodfield at all about the financing of the trial?

Mr. RUBY. Yes; I told them we had to raise money, and I told them Howard gave me a figure of anywhere from \$25,000 to \$50,000, and I asked them about how much they thought they could obtain from a story, and they said they couldn't promise 50 but 30, 35, I think that was the figure that Woodfield used.

Mr. GRIFFIN. Would that be the gross figure or would that be what your brother would have ultimately had available from the entire sum for his defense?

Mr. RUBY. That was the figure, the net figure my brother would have left over after they took their commissions and percentage, and the agent's fee and all of that.

Mr. GRIFFIN. How many people were to share in the proceeds from the sale, beside Jack?

Mr. RUBY. Woodfield, William Woodfield. Larry Shiller, the agent, and then they in turn said they would pay commissions to sales people.

I don't know who those were, of course.

Mr. GRIFFIN. Now, this first day in Los Angeles——

Mr. RUBY. Yes.

Mr. GRIFFIN. Prior to meeting Belli and your talk with them, did you discuss how long the article or biography would be and where it would be published and other details such as that?

Mr. RUBY. I don't think so; not the first day.

Mr. GRIFFIN. Now, at the meeting at Mr. Belli's house, did you discuss the biography of your brother?

Mr. RUBY. Yes.

Mr. GRIFFIN. What discussion took place there?

Mr. RUBY. Just the general discussion that Woodfield would do the writing of it. That is about all. And a figure did come up of how much could be raised through the story, through the selling of the story.

Mr. GRIFFIN. What was the speculation at that time?

Mr. RUBY. That is what I said, you know, the same figure.

Mr. GRIFFIN. How long did your meeting at Mr. Belli's home last?

Mr. RUBY. I would say at least an hour.

Mr. GRIFFIN. How much of the time at Mr. Belli's house was spent discussing the sale of the biography or the life story?

Mr. RUBY. Probably 10 minutes altogether.

Mr. GRIFFIN. Now, when you finished——

Mr. RUBY. Excuse me, would you want to know who else was present there?

Mr. GRIFFIN. Yes; I would.

Mr. RUBY. Sam Brody, one of his associates in L.A., another attorney, who was in the case for a while but if you will recall he stepped out, and Woodfield's wife, yes, Woodfield's wife, I don't remember her name——

Mr. GRIFFIN. Was Mike Shore there?

Mr. RUBY. No: I don't think so. No; I am quite sure he wasn't.

Mr. GRIFFIN. When that meeting ended there, had there been an agreement——

Mr. RUBY. Excuse me a minute.

I am trying to think if Mike Shore was there. I don't place him there. I am not sure he was there. I can't say yes or no to that question.

Mr. GRIFFIN. He might have been there but you are not sure, is that your answer, or is your original answer that he wasn't there still your best impression.

Mr. RUBY. If my recollection is correct, I think he just met Belli and then left. He had an appointment or something but I am not sure.

Mr. GRIFFIN. What was the conclusion of your talk at that point as to whether Belli would represent Jack.

Mr. RUBY. It wasn't definite yet. We talked about lawyers and he mentioned what he thinks we ought to do, and psychiatrists we might need

—and different things that—he mentioned he would bring in Tonahill. He worked with Tonahill before.

Mr. GRIFFIN. Was that the first time Tonahill's name was mentioned?

Mr. RUBY. Yes.

Mr. GRIFFIN. Now, did you remain in Los Angeles that night?

Mr. RUBY. Yes; I think I was there that night.

Mr. GRIFFIN. Were you there the next day?

Mr. RUBY. I think I left the next—about noon of the next day if I am not mistaken.

Mr. GRIFFIN. When you left Los Angeles what arrangements had been made with respect to the autobiography or the life story of Jack?

Mr. RUBY. Nothing really definite.

Mr. GRIFFIN. Did Woodfield ultimately write the story that you are talking about?

Mr. RUBY. Yes, yes.

Mr. GRIFFIN. And——

Mr. RUBY. He came down to Dallas later.

Mr. GRIFFIN. Where was that published, that story? Just tell us generally.

Mr. RUBY. Well, they offered it for sale to foreign countries, publications in foreign countries, and also here through the newspapers, through a sales organization that handles that, I think, out of New York.

Mr. GRIFFIN. Was that life story serialized in a number of newspapers throughout the country?

Mr. RUBY. When you say serialized, I don't understand what you mean.

Mr. GRIFFIN. It was published over a period of days.

Mr. RUBY. Yes, yes.

Mr. GRIFFIN. Did it appear in any national magazines?

Mr. RUBY. No; not in the United States. I don't think so.

Mr. GRIFFIN. Did you have some original discussion with Woodfield that it would appear, that he would try to sell it to a national magazine?

Mr. RUBY. Well, our agreement was that he would sell it—yes, that if he could sell it to a national magazine that he would.

Mr. GRIFFIN. Did you have any discussions with him about selling it to the Saturday Evening Post?

Mr. RUBY. Yes.

Mr. GRIFFIN. When did that discussion take place?

Mr. RUBY. Not until later; probably down in Dallas when we met in Dallas later on.

Mr. GRIFFIN. How much did the Ruby defense ultimately realize from that newspaper article?

Mr. RUBY. The net?

Mr. GRIFFIN. Yes.

Mr. RUBY. A little over \$30,000.

Mr. GRIFFIN. Did you people get—did the Ruby defense also get contributions from people?

Mr. RUBY. Yes; but very little, very little.

Mr. GRIFFIN. Can you tell us approximately what the total of the contributions were?

Mr. RUBY. Contributions—are you speaking right up to today now or until the trial?

Mr. GRIFFIN. Not until the exact day. But do you have some figure as to what it was up to today? Roughly, what it is? I don't ask you to be accurate to the penny.

Mr. RUBY. Well now, you see there are two funds, the story fund and a separate fund that a defense committee was trying to raise.

Mr. GRIFFIN. Well, the story fund comprises the \$30,000.

Mr. RUBY. Separate; yes.

Mr. GRIFFIN. Is there anything else in that fund besides the \$30,000, or did anything else go into it?

Mr. RUBY. Well, I put in whatever donations my brother received in the jail I deposited. It was only—I don't think it was \$500 from there.

Mr. GRIFFIN. Now, other monies were given for the defense, though, were they not?

Mr. RUBY. Yes.

Mr. GRIFFIN. Did they go into the defense committee fund? Did these other monies go into the defense committee fund?

Mr. RUBY. Well, they were used for paying the bills, if that is what you mean.

Mr. GRIFFIN. What I am trying to get at is, you say there are two funds, one fund is what you call the newspaper fund——

Mr. RUBY. Well, you see, that—the newspaper—was more or less Jack Ruby's own fund. He authorized to write the story, and that was more or less his own fund.

Mr. GRIFFIN. I see.

Mr. RUBY. But this is a separate committee that was set up in Chicago, and they got several hundred dollars but we spent—well, on one ad we spent \$200 for the ad and we got \$205 back—to give you an idea. We kept using the money hoping to get more money in but it didn't work out too well.

Mr. GRIFFIN. Can you tell us who the members of that defense committee are?

Mr. RUBY. Oh, yes. There is Michael Levin, a lawyer in Chicago, my brother Hyman Ruby, Rubenstein, and Barney Ross, Marty Eritt.

Then there is another one or two in there that I am not too familiar with. But they have got stationery. I don't have it with me.

Mr. GRIFFIN. What efforts did they make to obtain funds?

Mr. RUBY. Well, they wrote some letters and they did advertising, as I told you. However, quite a few of the—quite a few—most of the

newspapers wouldn't take the ad. The Chicago papers wouldn't take it. The Tribune, and the Sun-Times in Chicago wouldn't take an ad for an appeal for funds for Jack Ruby.

Mr. GRIFFIN. Were you ever given any reasons?

Mr. RUBY. No; the answers were it is not their policy, and there was another reason, I can't remember the exact words. I don't recall. But Mike Levin did most of that, you know—the lawyer—he did most of the calling and he told me, but I don't remember the exact words and I would rather not say—you know, if I am not sure of the exact words.

Mr. GRIFFIN. I don't want you to say if you didn't hear it.

Mr. RUBY. No.

Mr. GRIFFIN. Did you keep the records for that defense committee fund?

Mr. RUBY. Yes; most—yes; I would say yes.

Mr. GRIFFIN. Do you have those records here with you today?

Mr. RUBY. No; I gave them to an agent, though. I give them to an agent some time ago. I gave him a list of all the monies that came in, and I think I even gave him a list of who I paid it out to.

Mr. GRIFFIN. What is your best estimate of how much money came in altogether in the defense committee fund?

Mr. RUBY. Now you are not talking about the story—right?

Mr. GRIFFIN. That is right.

Mr. RUBY. From the defense committee fund between \$1,500 and \$2,000, altogether.

Mr. GRIFFIN. What were the expenses of the fund or is this—excuse me—is this \$1,500 or \$2,000—is that a net figure or a gross figure?

Mr. RUBY. That is a gross.

Mr. GRIFFIN. All right. After expenses, what was ultimately left for the application to the defense?

Mr. RUBY. I can't give you an exact figure because I just can't recall all of the expenses we had, because I just paid a bill last week, and I just don't

have it, but I would say we spent probably close to a thousand dollars, because one ad alone was close to \$300, and the letter was another \$300—is \$600 already that I can think of. There were other, smaller expenses.

Mr. GRIFFIN. Do you know what the total expenses were that have been for the defense of your brother so far?

Mr. RUBY. In the low thirties. Of course, you must understand we are continually spending money, so I don't have it.

Mr. GRIFFIN. Have you been given an estimate recently as to what the total expenses of the defense of your brother is going to be?

Mr. RUBY. An estimate?

Mr. GRIFFIN. Yes.

Mr. RUBY. You mean if it goes to the Supreme Court and all that?

Mr. GRIFFIN. Yes; have you been given any estimate as to what the total expenses might be.

Mr. RUBY. No; I would say no. Just said it would run into a lot of money but no figure was ever actually quoted, except by Belli.

You see, he really didn't, either. He just—I am trying to think what his statement was, now. No; he didn't either, because at that time we weren't talking about Supreme Court, we were only talking about—you know—the first trial.

Mr. GRIFFIN. What was his——

Mr. RUBY. He mentioned between \$75,000 and \$100,000.

Mr. GRIFFIN. As a total cost.

Mr. RUBY. Of the first trial. And that is now his fee and everything, when you are talking expenses. I am talking everything they wanted.

Mr. GRIFFIN. How much of a fee did he quote to you at that time?

Mr. RUBY. He was talking about \$50,000, if I recall correctly.

Mr. GRIFFIN. Did he quote it to you personally or is this a figure you have learned from somebody else?

Mr. RUBY. No; he quoted it to me.

Mr. GRIFFIN. Now how much——

Mr. RUBY. In other words, it wasn't a definite figure. He said it could be around, you know.

Mr. GRIFFIN. Have the costs of the investigation for the defense been paid to date?

Mr. RUBY. What do you mean by investigations?

Mr. GRIFFIN. Did the defense hire investigators?

Mr. RUBY. Yes.

Mr. GRIFFIN. And have these investigators been paid for their work?

Mr. RUBY. Not completely.

Mr. GRIFFIN. Do you know——

Mr. RUBY. Well, there is a difference of opinion so——

Mr. GRIFFIN. Can you tell us how much has been paid and how much is claimed as to the total bill?

Mr. RUBY. Well, the original investigator that we had, I think, we paid him about \$5,000 already, plus some expenses of a thousand dollars or so; I don't remember the exact figures, and he claims we owe him \$1,500.

Mr. GRIFFIN. More?

Mr. RUBY. Yes; and there is a little dispute about that.

Now, we have got a new investigator, I don't know his name there. My sister hired him down there and she has given him several hundred dollars, I don't know how much. I don't know how much she gave him.

Mr. GRIFFIN. Did Mr. Howard get any money?

Mr. RUBY. Oh, yes.

Mr. GRIFFIN. How much was he paid?

Mr. RUBY. I think we paid him, I am not sure of this figure though, \$3,500.

Mr. GRIFFIN. And the remaining funds that have been paid, I take it, have been paid to Mr. Belli?

Mr. RUBY. Belli got, I think, \$11,000, if I am not mistaken. Then we paid the doctors, I don't know, \$5,000 or \$6,000, you know, the psychiatrists that came down, and some of my expenses came out, just my flight expenses and telephone calls, and who else now?

We gave Burleson some money, he has got, I think, about a thousand dollars that we gave him since the trial. He was supposed to get paid from Belli before. That is the reason we didn't pay him. However, he claimed Belli never gave him anything. And we paid, like George Senator, the witness, our No. 1 witness, we had to give him money to live on because he was so, what shall I say the word for that, well, he lost his job and he was so upset he couldn't, you know, he just couldn't work.

And then we had to pay—he went home and I had to send him airplane fare to come back, you know, and there is——

Mr. GRIFFIN. How about Larry Crafard, did you pay him any money?

Mr. RUBY. Larry Crafard, I think we just gave him a few dollars, \$5 maybe because he was broke when he was living on the road, he didn't have a dime, so I think I gave him some money.

Mr. GRIFFIN. Did Larry incidentally contact you any time while you were in Detroit?

Mr. RUBY. No, no; I wish he would have, because he hitchhiked all the way down there, and I was driving at the same time, but he didn't know I lived there, and we——

Mr. GRIFFIN. How was he notified to come to the trial?

Mr. RUBY. I don't know. If I remember correctly he came on his own. He just thought that when all this came out about, you know, Jack getting him to take that picture of Earl Warren, he had the camera or something, I

forgot the full details myself, but he is the one who took the picture, right, if I am not mistaken, and he just thought he should come down to help Jack as much as he possibly could.

Could I go a little further?

Mr. GRIFFIN. I don't really want to pry into this unless this is something you care to reveal.

Mr. RUBY. The most important thing is coming up now, I mean one of the most important things.

Mr. GRIFFIN. All right. I do want to reflect this—that I don't want to push you into saying things, talking about subjects that you would rather not talk about, and I realize that this is one of them. Now, if you do want to say something about it why, of course, we would be happy to hear anything you want to say.

Mr. RUBY. Well, I returned home, I went from L.A. to Dallas, I talked to Jack, I talked to Howard. We hadn't hired Belli yet. He was going to go down and see Jack, and talk to him before he decided to come in, you know, and take over the case.

I went back to Detroit and in a couple of days I get another call, I get a call, from Woodfield. He is very upset. He just heard some news that he thinks I must know. However, it is so confidential that he can't even tell it to me over the phone. And I talk to Mike Shore and between us—they couldn't tell me on the phone, I had better go back to California.

So, I go out there again. The story he tells me is that, in the meantime he is trying to make contacts, this is about a week later. He is trying to make contact to sell the story to the different publications, to the Saturday Evening Post, you know, and other publications, and somebody from the Saturday Evening Post called him, I think—now this is what he told me—and said that Tom Howard was up to the Saturday Evening Post office in Dallas offering for sale a picture of President Kennedy with a piece of his head shot off, and so I immediately, or as soon as I could, when I left them, I called my sister Eva in Dallas and I said, "Get a hold of the agent that has been talking—that has been taking—your story there and tell them about this so they can check into it."

And then I went home, I flew back to Detroit.

By the time I got to Detroit they had tried to contact me to get some more information on the story. I mentioned this to Tom Howard and he denied it.

Mr. GRIFFIN. Was his denial a flat denial?

Mr. RUBY. Yes, yes; you know, complete, and you know. However, I think it was the fellow at the Saturday Evening Post that said—now I have given all this to the special agents or, I think, the Treasury Department.

Mr. GRIFFIN. Yes.

Mr. RUBY. The Saturday Evening Post man said, “Well, let them come in front of me in my office and deny it.”

But, of course, we never brought it to a head. But, anyhow, I don’t know what happened. They never told me, of course, as you know.

Mr. GRIFFIN. Do you recall the name of the Saturday Evening Post man in Dallas that Howard allegedly contacted.

Mr. RUBY. No; I did originally but I think I gave it to the agents.

Mr. GRIFFIN. Did you talk personally to this man from the Saturday Evening Post who claims he talked to Howard?

Mr. RUBY. No; Woodfield.

Mr. GRIFFIN. Somebody—you just reported that somebody said—“Let Howard come before me and deny it.”

Mr. RUBY. Yes.

Mr. GRIFFIN. I take it this was the Saturday Evening Post man who allegedly made that statement?

Mr. RUBY. Let me look in my book. Perhaps I have it.

Mr. GRIFFIN. What I am getting at is where did you get—who told you—that the Saturday Evening Post man said that?

Mr. RUBY. Woodfield.

Mr. GRIFFIN. Woodfield?

Mr. RUBY. Yes.

Mr. GRIFFIN. So everything you know about this transaction between Howard and the Saturday Evening Post comes either from Woodfield or from Howard's denial?

Mr. RUBY. Yes; right. I don't have it. I may have it somewhere else in another book but I don't have it here.

By the way, if you are asking about the finances, we still have bills of—together from what my sister tells me—of close to \$10,000 that are unpaid now.

Mr. GRIFFIN. Is there any money left in either of the funds at this point?

Mr. RUBY. No; I have been putting it off.

I mean, Burleson insists he wants some money so I have been sending him out of my personal account.

Mr. GRIFFIN. How soon after your brother shot Oswald did you see him?

Mr. RUBY. I think it was about at least a week.

Mr. GRIFFIN. Well—— Mr. RUBY. I am not sure. Because I made so many trips there. I was down there about seven or eight times.

Mr. GRIFFIN. Was it before you went to Los Angeles to see Mike Shore?

Mr. RUBY. No; I think I made it on the way back. I went to Los Angeles first, the first trip, and then on the way back I went to Dallas.

Mr. GRIFFIN. How much time did you spend with Jack on this first visit?

Mr. RUBY. Well, they only let you talk about 20 minutes or a half hour at the most.

Mr. GRIFFIN. When is the last time you have seen him?

Mr. RUBY. The last time I saw him was—I was there at the verdict, you know.

Mr. GRIFFIN. Have you seen him since the verdict?

Mr. RUBY. Yes, oh, yes; I stayed there for at least several days, anyhow, and I saw him every day at least once.

Mr. GRIFFIN. Have you seen him since then?

Mr. RUBY. No, no; since I came back, since that trip, I haven't been back.

Mr. GRIFFIN. All right. Did you notice any change in your brother's mental and physical condition between the first time that you saw him in Dallas and the last time that you saw him in Dallas?

Mr. RUBY. Oh, yes; definitely. Physically he lost about 30 pounds, and you know, his face was drawn and his eyes sunken, and in addition to that he was despondent, of course, and you couldn't—he would have to repeat questions or ask questions from him more than once to get a reply. It just didn't seem to register all the time.

Even Belli mentioned that he couldn't get across to Jack all the time, and Burleson mentioned to me several times that Jack is off his rocker. This was, you know——

Mr. GRIFFIN. Was this after the verdict or before?

Mr. RUBY. No; before. He says, "Your brother is off his rocker. He has got himself involved with all the Jews all over the world and he doesn't know what he is talking about," but my brother did know what he was talking about. It was Burleson who didn't understand. Because in order to understand—it is a Jewish problem—and most Jews would understand it.

Burleson, not being familiar with this, it just went over his head. I didn't even think of it then but he kept telling me, "Your brother has got himself all mixed up with all the Jews all over the world and he is off his rocker." That was the statement he made several times to me.

Mr. GRIFFIN. I would like to explore this with you at some length if you don't mind.

Mr. RUBY. That is why I brought this with me. I have all of this in here.

Mr. GRIFFIN. Let me try to ask you some questions first and then we will get into the papers that you have brought. You say there was a disagreement, that you disagreed with Burleson's appraisal of your brother's involvement with the Jewish question.

Mr. RUBY. He couldn't explain it. So, really, I didn't understand it myself. I didn't know what he was talking about at the time.

Mr. GRIFFIN. You subsequently did come to learn what he was talking about, I take it?

Mr. RUBY. Yes; it wasn't until somebody brought it to my attention, really.

Mr. GRIFFIN. What was brought to your attention—what particular facts?

Mr. RUBY. Well, the fact it seemed that Jack in digging down into his past, he had an obsession about the Jewish people, and he always went out of his way to show people that Jews are not bad people, you know, because you know they have been persecuted over the years, and that is one of the reasons he brought the policemen at the station sandwiches and went out of his way to bring them cheesecakes and he was in debt to me for thousands of dollars, yet he never sent me any money but he always had money to give more or less or lend to these other people, almost all non-Jews to show them that a Jew would help them out.

A policeman became a father and was short on money, he would lend him a couple of hundred, never got it back, never got anything back.

Another friend he ran into needed a car to get a job—lent him a few hundred.

Mr. GRIFFIN. Do you know—can you give us the names of some of these people?

Mr. RUBY. No; but my sister has them down there. I don't have it. But I know of these instances, and he read all these books on the Jewish problem, the persecution of the Jews, going all the way back.

Mr. GRIFFIN. How do you know that?

Mr. RUBY. I know from my sister. He lived with my sister and she told me, and he told me—both.

Mr. GRIFFIN. Is this Eva?

Mr. RUBY. Eva; yes.

Mr. GRIFFIN. Jack has told you that he read books on the Jewish problems?

Mr. RUBY. Yes; he even went to lectures on it, the synagogue, they had movies of the killings of the Jews in Germany. He went to all of these, things of that sort.

Mr. GRIFFIN. I don't know if Mr. Hubert has covered this or not, but do you recall an episode or a period back before World War II when Jack showed some concern about the Jewish problem, about the treatment of the Jews?

Mr. RUBY. Before World War II?

Mr. GRIFFIN. Yes.

Mr. RUBY. You mean—well, he was in Chicago in the early thirties, they had the Nazi Bund meetings and Jack was always one to go and see if he could help break them up.

Mr. GRIFFIN. Did you go on any of these groups?

Mr. RUBY. No, no.

Mr. GRIFFIN. Well——

Mr. RUBY. He was about 4 years older than I am.

Mr. GRIFFIN. Over what period of time was Jack involved in trying to break up these Bund meetings?

Mr. RUBY. In the early thirties there, I don't remember.

Mr. GRIFFIN. Do you remember any other people who participated with him in those?

Mr. RUBY. No; I don't know their names.

Mr. GRIFFIN. Was this a group of people or would Jack go alone?

Mr. RUBY. No, no; it was a group. But I don't know the other names.

Mr. GRIFFIN. Was it any sort of organized group? Was there an organization that he belonged to?

Mr. RUBY. No; I don't think it was an organization. It just was several Jewish fellows and I don't think they had an organization of any kind. Just when they learned that meetings were taking place, they would go there and try to break them up.

Mr. GRIFFIN. Was Jack ever arrested in connection with any of those?

Mr. RUBY. Not as far as I know, because he has no arrest along those lines at all.

In fact, the only violation he has, from what I could gather, was being open after hours, and carrying concealed weapons which, from what I understand, they don't need a permit in Dallas, you know, when he carried large sums of money.

Other than that—you must understand I was away from him, practically from the time he went to Dallas until the incident. I only saw him for short periods of time.

Mr. GRIFFIN. Did you ever hear of the Dave Miller gang?

Mr. RUBY. Oh, yes.

Mr. GRIFFIN. What was the Dave Miller gang?

Mr. RUBY. Well, I read about them in the paper. I was just a school kid then, but that was a gang that hung around Dave Miller's fight gymnasium, that is all I can remember. But I know something like that existed.

Mr. GRIFFIN. How did they get newspaper publicity?

Mr. RUBY. I don't know.

Mr. GRIFFIN. Did Jack have anything to do with those people?

Mr. RUBY. He used to hang around Dave Miller's gym but he was Barney Ross' follower like, and I think Barney Ross trained there and so he was very close with him.

Mr. GRIFFIN. Well now, this group that was referred to as the Dave Miller gang.

Mr. RUBY. Dave Miller was a referee.

Mr. GRIFFIN. Dave Miller was a referee?

Mr. RUBY. Yes; Davy Miller was a referee in Chicago for many years.

Mr. GRIFFIN. And he ran a gymnasium?

Mr. RUBY. Yes; to train the fighters.

Mr. GRIFFIN. And did Dave Miller have a following of some sort?

Mr. RUBY. Well, I would say it was—there was a restaurant downstairs and it was a hangout. He owned the restaurant and the gym, and he was a referee so the fighters hung around there and other people came around to see the fighters, so it was a general hangout for people of that type.

Mr. GRIFFIN. Did the Dave Miller gang have anything to do with these efforts to break up the Bund meetings?

Mr. RUBY. I think so, but I don't have any concrete evidence. I think they did.

Mr. GRIFFIN. Would you go ahead and tell us—let me ask you this, rather. You say that your awareness of your brother's, what we'll call involvement with his Jewish background or his position in society as a person of Jewish background, was brought to your attention by someone else. Who brought this to your attention?

Mr. RUBY. No; what was brought to my attention, I knew he was also interested in the Jewish problem, but I didn't think it entered into this picture because I didn't—this article here that was drawn up by Sol Dann, who through his daughter, a friend of the family, became interested in it because he could see what was in the background, and he studied all the things and he got some information from me and he talked to my brother, my sister and the psychiatrists on the case, and the more he talked to them the more he could see that this was an obsession with my brother, who probably didn't realize it was as great an obsession as it actually was, and that is probably one of the reasons why Belli mentioned to me on a few occasions, "I can't get across to your brother. I don't have a client."

He says, "I have a patient, not a client."

He mentioned that to me several times. He says, "I can't get through to your brother."

Mr. GRIFFIN. Did he give any specific indications?

Mr. RUBY. No; I didn't go any further either, because I thought Belli was such a great lawyer. I say—I don't even remember what I said, I just—then he had psychiatrists, when the psychiatrist would interview my brother he would talk to him afterward, and if ever I asked, I mean, what they say,

he says, “Well, they claim he is sick, he has got this”—I don’t know the medical terms he used, you know, and so on and so forth, and, “We have a good case, he is definitely sick,” and all that, but the real problem. I mean the obsession itself, I don’t think that even registered with Belli or the other psychiatrists, because as far as I know—because it was never mentioned at the trial, and the psychiatrists never mentioned it to us, and we didn’t think to tell it to them, because we didn’t know if it had any importance or not, but we find now in talking to the psychiatrists that it is of great importance and it was probably one of the factors in his thinking the way he did.

Mr. GRIFFIN. What about Mr. Burleson—did he tell you during this period, when you didn’t understand what he was talking about—what did he tell you about Jack?

Mr. RUBY. Well, he was aloof from us. That was the big problem with that trial.

Mr. GRIFFIN. Let me say, Mr. Ruby, I don’t want to, I am not asking you to comment on the way Mr. Burleson conducted himself, but I am trying to find out what it was he said to you about Jack which you didn’t comprehend at the time.

Mr. RUBY. He said he is getting himself involved with all the Jews all over the world on an international scale—“He is off his rocker”—that was one of his——

Mr. GRIFFIN. Did he specify any of the things Jack was talking about?

Mr. RUBY. No; he used to say, “Jews all over the world, on an international scale,” that was his expression several times and then, of course, he stated, “He is off his rocker.”

Mr. GRIFFIN. Did Mr. Burleson tell you this sort of thing before the trial, or only after the trial?

Mr. RUBY. Before and during, I would say.

Mr. GRIFFIN. Right.

Mr. RUBY. And not so much after, because after we were disgusted, I will tell you that.

Mr. GRIFFIN. How long before the trial did Mr. Burleson begin to call these problems about involvement with Jews.

Mr. RUBY. Right after he got involved. Because he lived in Dallas, and he talked to my brother more so than anyone else because he lives there and right after he got into the case, not a few days later, he says, you know, made the statement again, "That your brother has got himself involved with all the Jews on an international scale and he is off his rocker, he doesn't know what he is talking about."

And to be truthful to you I didn't understand his statement. It didn't register with me because they kept saying, Belli said, "Your brother is sick. I have got a patient on my hands, you know. I am trying to take care of your brother, and I can't get across to him."

And my brother, I know, he had many fights because of the Jewish question, of being called, you know, names, referring to his Jewish parents and all that stuff, and, of course, I have been through it myself but he more so, and he fought more about it.

He was always quick tempered and just couldn't take it.

Mr. GRIFFIN. What other fights did he get involved in because of the Jewish question?

Mr. RUBY. Many fights. I know on several occasions he came home once with his suit full of blood from downtown.

He was downtown Chicago. I said, "What happened?"

He said, "Somebody called me a dirty Jew or something like that."

Mr. GRIFFIN. Do you know who he fought with on that occasion?

Mr. RUBY. No, no; there are many instances that my older brothers and sisters know of because I was younger, 4 years younger and in his teens, early teens, I didn't go with him because 4 years makes a big difference, and I went my way and he went his way.

Mr. GRIFFIN. How old was Jack at the time that you saw him with this suit full of blood?

Mr. RUBY. This goes back now, if I recall in 1946, I think, 1946.

Mr. GRIFFIN. This was after he got out of the service?

Mr. RUBY. Yes, yes; he told me he had several fights in the service regarding this. He told me he had fights with a professional heavyweight in the service because he said something about the Jews.

My brother was so Jewish conscious that it didn't make any difference whether he said, swore at him for being a Jew or he swore at somebody else a half a block away. He would get in there and fight right away, you know, unless they apologized and what have you. And he—so this, checking into it from what the psychiatrists tell me, he went out of his way to show the gentiles that in their thinking that all the Jews are no good or money grabbers or what have you, here was a nice guy that went out of his way—and didn't have the money—to help anybody he could.

Mr. GRIFFIN. Do you have any examples of this from the period that you worked with him at Earl Products?

Mr. RUBY. Well, this——

Mr. GRIFFIN. Let's just focus on that for a while.

Mr. RUBY. He was with me only a short period.

Mr. GRIFFIN. What examples do you have from that period?

Mr. RUBY. I know from Earl Products is when he had that fight.

Mr. GRIFFIN. What else?

Mr. RUBY. That I know of. Other instances, I can't think of because as I said he went around with an older group of fellows than I did. We didn't run around together. And not only that, I was married then, and you know he has been a bachelor all his life so he went to places——

Mr. GRIFFIN. You traveled with him, didn't you in the early forties you traveled with Jack, didn't you?

Mr. RUBY. Yes; a little bit.

Mr. GRIFFIN. Now, look back on that experience, if you can, do you remember any episodes from that?

Mr. RUBY. Actually, you must understand I didn't travel with him. I only met him every weekend. He traveled by himself, and I traveled by

myself, and we got together on weekends and then we would only see each other Friday night and then he would go on.

And we traveled through the East mostly.

Mr. GRIFFIN. Mr. Ruby, you have brought certain papers with you, and Mr. Hubert is now in the room, and I want to bring him up to date a little bit on where we are, and we have been talking sometime about your brother's obsession, as I think you call it, with his position in society as a person of Jewish background, and you indicated to me that you really only fully became aware of this problem since your brother shot Oswald, but that you have thought about it considerably since then, and that you have brought with you certain papers in connection with it.

Mr. RUBY. Yes.

Mr. GRIFFIN. I wonder first if you can first identify a paper in your hand, if you will identify that paper, and I will give it an exhibit number.

Mr. RUBY. What would you call this——

Mr. GRIFFIN. You are handing me——

Mr. RUBY. This document.

Mr. GRIFFIN. A document that consists of 30 typewritten pages purporting to have been prepared by a man named Sol Dann, 1820 David Stott Building, Detroit 26, Mich. This is a Xerox copy and on the first page I am going to write your name "Earl Ruby Deposition, June 3, 1964, Exhibit No. 1" and I will ask you if you will state for the record what that is.

(Earl Ruby Exhibit No. 1 was marked for identification.)

Mr. RUBY. Well, this I would like to get into the record if I can.

Mr. GRIFFIN. What is Exhibit No. 1 and then I will mark this other thing that you gave me.

Mr. RUBY. This is only what I want to state.

Mr. GRIFFIN. Exhibit No. 1, tell us what that is. In a general fashion tell us what that consists of.

Mr. RUBY. Well, this is as was stated, prepared by Mr. Dann as to why or one of the reasons, that Ruby, that is Jack Ruby, shot Oswald.

Mr. GRIFFIN. All right. Now, you have also handed me a handwritten penciled set of papers consisting of three pages.

Mr. RUBY. I was going to read that, is that all right?

Mr. GRIFFIN. Certainly.

Mr. RUBY. That was my intention if it is all right with you.

Mr. GRIFFIN. Do you have a statement you would like to make for the record?

Mr. RUBY. Yes.

Mr. GRIFFIN. All right, go ahead then.

Mr. RUBY. I am filing this document with you because it explains why I need the help of the United States, and more especially, your help.

My brother, Jack, was deprived, and is presently being deprived, of his constitutional and civil rights. The hatred and bigotry in Dallas, Tex., resulted in the assassination of our President. It almost cost the lives of our present President, Mr. Johnson, and others.

With all the protection that this Government could give it could not guard against and prevent the assassination.

My family and myself are unable to cope with that situation and it may result in my brother's death.

As pointed out in this document, my brother, Jack, is being made the scapegoat of this horrible situation. I, therefore, need, and respectfully request, your assistance in order that those guilty of this atrocity, either because of their acts or omission, gross negligence, or commission shall not go unpunished or undisciplined.

I don't think that my brother, who had nothing to do with the assassination of the President, should be the only one punished. My family as well as myself have almost exhausted all of our resources in an effort to protect my brother's civil rights, but now I am calling upon you for the help we need.

That is it.

Mr. HUBERT. I suggest you put the document in the record as well.

Mr. GRIFFIN. Do you mind, Mr. Ruby, if we would put that in the record?

Mr. RUBY. No; this I didn't use.

Mr. GRIFFIN. I will mark the three pages from what you have just read.

Mr. RUBY. Yes.

Mr. GRIFFIN. I have marked them "Earl Ruby Deposition, June 3, 1964, Exhibit No. 2," and that is on the first page. I think on the second page I will write Exhibit No. 2, and on the third page I will write Exhibit No. 2.

I will ask you if we may keep this and include this as part of our permanent record.

Mr. RUBY. Yes.

Mr. GRIFFIN. Let me hand you Exhibit No. 2 and ask you if you will sign it on the first page and initial each of the other pages.

(Earl Ruby Exhibit No. 2 was marked for identification.)

Mr. HUBERT. Mr. Ruby, may I ask, this is addressed to whom, this Exhibit No. 2, which you actually read into the record. Who are you addressing it to?

Mr. RUBY. To the Commission.

Mr. HUBERT. To the Commission. It is your desire that we see that the members of the Commission receive that document, is that correct?

Mr. RUBY. Yes.

Mr. HUBERT. That is to say both your letter and the attachment?

Mr. RUBY. Yes; both.

Mr. HUBERT. I notice that Exhibit No. 1 which is the long one of 30 pages, has the name Sol Dann.

Mr. RUBY. Sol Dann.

Mr. HUBERT. I also notice he didn't sign it. Did he actually prepare it?

Mr. RUBY. Yes; he did.

Mr. HUBERT. Have you read it?

Mr. RUBY. Yes.

Mr. HUBERT. Do you concur in what he says then?

Mr. RUBY. Yes.

Mr. HUBERT. Is there any reason why he didn't sign it?

Mr. RUBY. No; I didn't even notice it, to be honest with you.

Mr. GRIFFIN. Let me ask Mr. Ruby, I will hand him back Exhibit No. 1, and ask you if you will simply sign that on the first page, so we may have it properly marked for the record.

Mr. HUBERT. Let me ask you about Exhibit No. 2. This is in pencil?

Mr. RUBY. Yes; I didn't think that you would want it so I, of course, didn't——

Mr. HUBERT. When did you write this Exhibit No. 2?

Mr. RUBY. Yesterday.

Mr. HUBERT. It is your own handwriting?

Mr. RUBY. Yes, yes.

Mr. HUBERT. All right.

I will have photostats made of this.

Mr. RUBY. If it doesn't take, I can rewrite it in ink in 5 or 10 minutes.

Mr. GRIFFIN. Let me ask you some questions to get the background of this document which we have marked here as Exhibit No. 1.

First of all, would you tell us how you happened to know Mr. Dann?

Mr. RUBY. His daughter teaches Hebrew in the school where my daughter attends, and his daughter impressed on him, after several conversations to contact me, and see what he could do to help us because he has been very active in helping I should say, the minority groups of any organization.

Mr. GRIFFIN. Can you tell us what Mr. Dann does for a living?

Mr. RUBY. He is an attorney.

Mr. GRIFFIN. In Detroit?

Mr. RUBY. Yes.

Mr. GRIFFIN. How old a man is Mr. Dann?

Mr. RUBY. I would say 55. That is a guess, of course.

Mr. GRIFFIN. Did you know Mr. Dann before his daughter talked with you about——

Mr. RUBY. His daughter didn't talk with me. She talked with him and finally convinced him to contact me and see what he could do to help us.

Mr. GRIFFIN. When did Mr. Dann first contact you?

Mr. RUBY. Shortly after the verdict was passed.

Mr. GRIFFIN. Now, do you know what efforts Mr. Dann made after talking with you, to talk with other people in order to prepare this document?

Mr. RUBY. Yes; he talked with many other people, the psychiatrists, he talked with Dr. West. He talked with Dr. Smith, the chief counsel, he talked, with Mr. Charles Bellows, the consultant on the case.

He talked to a psychiatrist by the name of Tanay in Detroit, and he mentioned several other people but I don't recall their names.

Mr. GRIFFIN. Can you——

Mr. RUBY. Excuse me; he also talked to my brother in Dallas, Sam.

Mr. GRIFFIN. Did you say he talked with your brother Jack?

Mr. RUBY. No; he talked to Eva. But he talked to Dr. West and Dr. Smith and Bellows who spent a lot of time with Jack, of course, altogether.

Mr. GRIFFIN. You indicated to Mr. Hubert that this Exhibit No. 1 had been read by you and that it generally reflected your views.

Mr. RUBY. Yes; yes, sir.

Mr. GRIFFIN. Can you tell us in your own words generally what is set forth in Exhibit No. 1?

Mr. RUBY. Well, it goes into, it explains Jack's thinking along the Jewish problem, and his obsession and his love of President Kennedy, his going out of the way to try to be an exceptionally good guy by helping gentiles as much as he possibly could, and in any way he could. It also explains happenings at the trial. The withholding of evidence by District Attorney Henry Wade that should have been presented to the court. That my brother had received psychiatric help when he was 10 years old and none of the family knew it except the FBI, who had turned this information over to Wade.

However, Wade never permitted this to be used at the trial, and it also goes into telling of many cases that were reversed because of incidents similar to those which took place at my brother Jack's trial, and states for these many reasons that the verdict should be reversed for all of these mistakes or negligence or whatever you may call it on the part of the court and the State's attorney.

Mr. GRIFFIN. Is it correct, do I have the correct understanding then, that in a sense we can break this down into two parts: One part of the document deals with the facts that have to do with Jack's obsession?

Mr. RUBY. Yes.

Mr. GRIFFIN. And the other part has to do with the legal errors in the trial?

Mr. RUBY. Yes; right—correct.

Mr. GRIFFIN. Let me direct myself to some of the factual issues that are raised by Exhibit No. 1. I have made some notes here as you have been talking, and I want you, after we cover this, to tell me if I have left anything out that you think is important, but I want to try to cover this in orderly fashion. I am going backward though.

One issue that you raised here was that District Attorney Wade had withheld certain psychiatric evidence at the trial that had been turned over to him by the FBI.

Mr. RUBY. By the FBI.

Mr. GRIFFIN. And that was that your brother Jack had received psychiatric help at age 10 and none of the family members knew about it?

Mr. RUBY. That is right.

Mr. GRIFFIN. Let me ask you to tell us what your present understanding is now as to how Jack happened to get this psychiatric treatment, and where it was administered, and for how long, and the other details?

Mr. RUBY. I don't know that but the FBI gave that information to Wade, and Tonahill has that information in Dallas but I don't have the exact dates.

Mr. GRIFFIN. Well, do you know where he got the psychiatric aid?

Mr. RUBY. In Chicago.

Mr. GRIFFIN. Do you know what institution?

Mr. RUBY. No.

Mr. GRIFFIN. You say Tonahill has this information?

Mr. RUBY. Yes.

Mr. GRIFFIN. Do you know how this evidence happened to be given, or let me ask you this, how do you know this evidence was given by the FBI to Mr. Wade?

Mr. RUBY. Tonahill.

Mr. GRIFFIN. Tonahill has told you?

Mr. RUBY. Yes; that it was given to Wade by the FBI.

Mr. GRIFFIN. How did Tonahill learn about this?

Mr. RUBY. That I don't know.

Mr. GRIFFIN. Did Tonahill——

Mr. RUBY. Well, he handled all the contacts with the FBI.

Mr. GRIFFIN. Tonahill did?

Mr. RUBY. Yes; more or less.

Mr. GRIFFIN. It is your understanding that the work of the trial team was divided up in such a way that only Tonahill dealt with the FBI, for the most

part?

Mr. RUBY. Yes; as far as I know.

Mr. GRIFFIN. Now, so you have no personal information, further personal information, at this time about this psychiatric help which Jack got at age 10?

Mr. RUBY. No.

Mr. GRIFFIN. When Jack was 10 was he living in the home?

Mr. RUBY. In a foster home, yes; so far as I can understand.

Mr. GRIFFIN. Well, that would have made you 6, is that right?

Mr. RUBY. Would have made me 6.

Mr. GRIFFIN. Where were you living at age 6?

Mr. RUBY. To tell you the truth, I don't know but I think I was living in Chicago, of course, and I don't remember the name. I think the name of the people were Speeves, but I don't know if I went to the farm, they sent me to a farm for a year, whether I was on a farm at the time but anyhow we weren't together those years.

Mr. GRIFFIN. For how many years were you separated from the rest of the family as a child?

Mr. RUBY. To tell you the truth, I don't know when it started. I would say 5, 6 years maybe. I was in three foster homes that I remember all together. I know I was on a farm, and then at two foster homes that I can distinctly remember.

Mr. GRIFFIN. Do you remember how old you were when you returned to the home of your family, your mother's and father's home?

Mr. RUBY. Well, I think it was in 1928, 1928, so I must have been 13 years old.

Mr. GRIFFIN. And that would have made Jack 17.

Mr. RUBY. Seventeen; I am not sure whether it was—I just don't remember. It has got to be a little before that. Because I went to that

Shepherd School for a few years, it had to be there from 1925 to 1928, but I don't know exactly.

Mr. GRIFFIN. Were you living in the home when you went to the Shepherd School?

Mr. RUBY. You mean was I living with the family?

Mr. GRIFFIN. Yes.

Mr. RUBY. Yes.

Mr. GRIFFIN. Was Jack living with the family at that time?

Mr. RUBY. Yes; that is when we were all brought back together.

Mr. GRIFFIN. Had Jack finished high school at that time?

Mr. RUBY. No, no; Jack didn't finish high school.

Mr. GRIFFIN. No; but was Jack still attending school when he returned to the home?

Mr. RUBY. Yes; he was.

Mr. GRIFFIN. Are you able to recall how long Jack continued to attend school after you returned to the family, to your family?

Mr. RUBY. No; I know he graduated from that Shepherd School but when I don't know. As far as I know he graduated from that school and then he went to Marshall High School for a while and then he dropped out.

Mr. GRIFFIN. Another thing that you mentioned that we were discussing in Exhibit 1, that Mr. Dann had assembled some facts and had discussed Jack's efforts to show that the Jews are good people by himself helping gentiles.

Now I want you to go back and comb your recollection of the period you lived with and worked with Jack for incidents when you can recall of your own knowledge of Jack helping gentiles, or helping people in general, let's not limit it to Jews or gentiles.

Mr. RUBY. Well, even when we were in business, we had that problem which came up several times, where he would take some of the merchandise, like our pens that we were using, and salt and pepper shakers,

and almost every day or two he would take a load of samples. When I asked him he would say, "Well, a nice guy here or there and I gave him one or two, what difference does it make", in the meantime he was giving them out all the time. If anybody wanted one he would just give it to them. But at that time no remark was made as far as I can remember as to why he did it.

Mr. GRIFFIN. Would you be able to give us names of any people who, you know might have been the beneficiaries of this?

Mr. RUBY. I wouldn't remember, because I wouldn't know where, but most of this took place or a great part of it anyhow in Dallas, and the names of those I think we could get.

Mr. GRIFFIN. How about as far as you are concerned, of course, you knew him in Chicago, how about people that you can think of that Jack would have extended these kindnesses to in Chicago?

Mr. RUBY. I couldn't remember any names because there was no reason to remember this, and this goes back so far. It is 20 years at the earliest.

Mr. GRIFFIN. Well, you also mentioned that your brother had a great love for President Kennedy. Can you give us some examples of that?

Mr. RUBY. Well, I didn't realize it, I mean, because I haven't been with him since the Kennedy family and Kennedy himself, to really become involved in politics because he was in Dallas and I was in Chicago and in Detroit. However, I know that when they, I think it was the Dallas Morning News printed that full page, whatever you call that, statement——

Mr. GRIFFIN. The black bordered advertising?

Mr. RUBY. Yes; the black bordered advertising which more or less definitely insulted the President, he went to the paper and asked them if they needed the money so bad that they had to print such a horrible thing even though the other paper had turned it down.

And I think you know he was so upset about seeing that sign on the roadside about "Impeach Earl Warren" that in the middle of the night he got his roommate out and got Jerry Crafard, I think his name was, to take a picture of it.

Mr. GRIFFIN. Do you know why he was upset about it?

Mr. RUBY. Well, he couldn't see why anything like that could happen. Here is another great man, and he just couldn't understand it.

Mr. GRIFFIN. Are you surmising this or did——

Mr. RUBY. Well, I talked to George Senator who was his roommate, he said he was infuriated that a sign like that should be put up. And that was brought out in the trial, of course, and proved.

Then he on the night of the assassination, or rather on the afternoon he immediately closed the club, and when he was asked if he—what about the other night club owners because there is another, I think one or two clubs on the same block as his, yes, there are two more, whether they are going to close or not, in a statement he made, he doesn't care if they close or not, he is going to be closed in respect to the President.

Then he went to the services at the synagogue in Dallas.

Mr. GRIFFIN. Do you know how long he was at that service?

Mr. RUBY. I don't know how long, but I know that he broke down terribly there.

Mr. GRIFFIN. Did you talk to anybody who——

Mr. RUBY. I heard it from the Rabbi who was there, that he was—of course, most of the people there were broken up but he was most unusual because he was in deep tears, he really was. And he was so upset and so disgusted with this situation that he called my sister Eileen in Chicago and told her this is a good time to get out of Dallas. He is ashamed of it, that this thing could happen there, and he will probably—he wants to come up to Chicago for a few days, you know, to visit with her. Well, she discouraged him from coming up. He wanted to come to Chicago, and he also called my brother Hy in Chicago after the assassination, and told him how terrible it was, and he thinks he is going to get out of Dallas, he is coming back to Chicago altogether.

He also called his good friend, this was all brought out in the trial, not all of it but most of it, although those last two incidents about him calling my brother and my sister were never entered into evidence. We couldn't understand that.

He also called a fellow in California, Al Gruber, I think is his name, and Gruber said he just couldn't talk. He just couldn't talk he was so broken up.

So we know he was really broken up, and he must have really loved him because otherwise you just don't do these things. And the fact that he went to the newspaper and complained to them for even taking the ad, and I mean nobody else did this.

Mr. GRIFFIN. Do you have any examples of his conduct in Dallas before the President was shot that would show his feeling toward President Kennedy?

Mr. RUBY. No; We don't have—nothing that I know of. We don't have anything that I know of.

Mr. GRIFFIN. I wonder if you can give us some more examples of——

Mr. RUBY. There is a bit about his patriotism that might mean something.

Mr. GRIFFIN. Tell us about that.

Mr. RUBY. This happened many years ago. They were playing the Star Spangled Banner in the stadium in Chicago before all sporting events, and a friend who was with him, a fellow by the name of Mr. Kolitz told me this himself, he was smoking.

Mr. GRIFFIN. What is Mr. Kolitz's first name?

Mr. RUBY. Ira. He was smoking when the Star Spangled Banner was playing and my brother insisted he put out his cigarette, that it wasn't in good taste to be smoking when the Star Spangled Banner was being played.

Mr. GRIFFIN. Your brother didn't approve of smoking either, did he?

Mr. RUBY. No; he didn't smoke at all. Well, neither do I, for that matter. But this I didn't find out about until a couple of months ago because I ran into this party in Chicago, and you know talking about these things, and he says, "How could they accuse your brother of being a Communist", and then he related this incident to me. He says, "I remember, you know at the stadium when this happened, and he actually insisted I put the cigarette out."

Mr. GRIFFIN. Did Jack in your dealings with him, did he strive to be important and did he strive for recognition, things like that?

Mr. RUBY. I would say, well, he tried to be a success. He always wanted to be a success in life.

Mr. GRIFFIN. What was his idea of being a success?

Mr. RUBY. Oh, having a family and being happily married and earning a steady living.

Mr. GRIFFIN. Did he talk to you about his desires to have a family?

Mr. RUBY. Oh, yes; on a few occasions. Once when he had financial failure and he was terribly depressed back in the early fifties, I think, he came to Chicago. He was just terribly depressed and he says, "Well, it looks like it is the end for me." And, you know, he had no—he was penniless, and I tried to help him out again there. I was trying to look around for a business for him, to be truthful with you because we were doing pretty well, making a living, a good living, and I thought I could help him out but he decided to go back to Dallas again.

Mr. GRIFFIN. Well now, there have been reports that Jack was the kind of a person who liked, who wanted everybody to know him and liked to be a big shot, some people might say. Did you have any experiences with him that would indicate anything about those kind of observations?

Mr. RUBY. Well, he was pretty well known in Chicago. He always was a good athlete, a good ballplayer. He was a very great swimmer, and he was very close to Barney Ross, so I would say—and he had many friends, so he was pretty well liked, and maybe some people would get the impression that he was a big shot but actually I don't think he ever went out of the way to try to show people he was a big shot.

However, maybe I didn't notice it because I am his brother. And he was my older brother, and so maybe I just didn't notice it.

Mr. GRIFFIN. I wonder if you can explain what seems to be on the one hand signs of his obsessions about being a Jew, such as you pointed out as fighting the Bundists and things like that, and on the other hand, what appears to be a lack of regular devotion to going to church services every week and keeping the religious home, and so forth?

Mr. RUBY. Well, the reason for that is I am more or less the same way as I explained before because in the breaking up of our home we were drawn away from this life, you see. I was living with—on a farm—I was living with gentile people and there wasn't any synagogue there to go to, and so we drifted away from the services. And because before that we used to go to the Hebrew school, before our home was broken up, we all went to Hebrew school.

Mr. GRIFFIN. Did you learn Hebrew?

Mr. RUBY. Oh, sure. Jack and—we went only until our home was broken up.

Mr. GRIFFIN. When you were living in your home, did your parents keep a kosher home?

Mr. RUBY. Oh, yes; definitely.

Mr. GRIFFIN. It was a kosher home?

Mr. RUBY. Oh, yes; definitely. Oh, sure.

Mr. GRIFFIN. To what extent was it a kosher home?

Mr. RUBY. We would call it orthodox, you know, change of dishes and all that.

Mr. GRIFFIN. Dietary rules?

Mr. RUBY. Sure; that is right. Sure, sure. But, of course, when we——

Mr. GRIFFIN. What language was spoken in the home?

Mr. RUBY. To our parents Yiddish, you would call it.

Mr. GRIFFIN. Did your parents speak English?

Mr. RUBY. Very little; very few words.

Mr. GRIFFIN. Are you willing to make this statement that your conversations with your parents were always in Yiddish?

Mr. RUBY. No, no; I can't say that because my father spoke a little English.

Mr. GRIFFIN. How about with your mother?

Mr. RUBY. My mother I would say in her conversations she threw in a word here or there in English; about 95 percent was Yiddish. My father picked up more English words because, in fact, he was working as a carpenter, and being out among English-speaking people more than, more so than my mother who was home all the time, he had an opportunity to learn some English words.

Mr. GRIFFIN. Now, when the children got older, the family continued to live together, as I understand it, there was a home where all of the unmarried children and the parents lived?

Mr. RUBY. Yes.

Mr. GRIFFIN. In that home up until the time that your mother died, did you observe, were the dietary practices observed all the time?

Mr. RUBY. Oh, yes; sure. Every Passover we changed the dishes, and so on.

Mr. GRIFFIN. Yes; but that is just once a year. What about on a daily basis, did you observe every day the dietary——

Mr. RUBY. Well, you don't observe it every day.

Mr. GRIFFIN. Well, some homes do.

Mr. RUBY. I don't understand.

Mr. GRIFFIN. Some homes keep separate dishes for meat and dairy products.

Mr. RUBY. Yes; we had separate dishes until my mother passed away.

Mr. GRIFFIN. How about the regularity of attending church services, temple services, did you go every week to temple services?

Mr. RUBY. No, no; not all of us. I know I didn't. My sisters did. My sister did.

Mr. GRIFFIN. Which sister?

Mr. RUBY. Marion. My father did until he became ill, you know, and then he passed away.

Mr. GRIFFIN. Was there any resentment in the home toward the practices that were maintained by your parents there, failure to converse regularly in English and perhaps their old world habits?

Mr. RUBY. I don't understand.

Mr. GRIFFIN. Which is common in all families, I think, in which the practices that are observed in the home are not the kind of practices that you see on television or in the movies. Was there resentment among any of the children toward the fact that here was a home in which a foreign language was spoken, and practices were observed which did not appear to be the same practices as the people who were on top in American society?

Mr. RUBY. Yes; I would say so. However, my mother insisted that we follow the lines of the Orthodox Jew.

Mr. GRIFFIN. Did any of you object to that insistence by your mother?

Mr. RUBY. No; nothing because there wasn't too much to object to, because it was the same food. I mean there is really nothing—however, if we would take the wrong utensil, you know, because there are two separate ones, we would be bawled out for taking the wrong one.

Mr. GRIFFIN. Well, Jack during the time that he was in Chicago lived for various periods outside the home, didn't he?

Mr. RUBY. Yes.

Mr. GRIFFIN. For example, I believe he lived with either Sam Gordon or Alex Gruber in a separate apartment in Chicago in the early thirties. Do you recall that?

Mr. RUBY. I know he lived with Gruber but I don't know how long.

Mr. GRIFFIN. Well——

Mr. RUBY. Because it was in the early thirties, I was going to high school.

Mr. GRIFFIN. Was there any particular reason why Jack did not want to live with the family?

Mr. RUBY. None that I can remember. There may have been, but I may not be, you know, I wasn't aware of it.

Mr. GRIFFIN. He also was away from Chicago from about 1933 to 1937.

Mr. RUBY. Yes; I think he went to 'Frisco to work there; yes. I think he went there. I think my sister was there or he went first, I don't remember.

Mr. GRIFFIN. Did you know his friend Leon Cooke?

Mr. RUBY. Yes; very well.

Mr. GRIFFIN. Was Leon Cooke of Jewish background?

Mr. RUBY. Yes.

Mr. GRIFFIN. Were you familiar with Jack's activities with Leon Cooke in the labor union?

Mr. RUBY. A little bit. I think I knew——

Mr. GRIFFIN. What can you tell us about that, what—how long did Jack work in the union?

Mr. RUBY. Well, I know as far as I know, I think he helped organize it. It was Leon Cooke's idea. Leon Cooke was an attorney and his father, Mr. Cooke, was a scrap iron and junk handler, and for some reason or another of his own thinking he decided that it would be a good idea to organize a union because the—although he was doing very well as an attorney without it, the workers in this industry were being paid, I think at that time, 10 cents or 15 cents an hour, and it was actually slave wages practically, as you can easily understand, and so they organized the union or how they go about it I don't even know, but they did, Leon Cooke and Jack helped organize it, but I think Leon did all the legal work.

Mr. GRIFFIN. Do you know of anybody else who helped in the organizing efforts?

Mr. RUBY. Even I went out once to hand out those flyers, you know, "join the union."

Mr. GRIFFIN. Where did you hand them out and what would you do?

Mr. RUBY. Well, they would come out from work and I would just hand it to them, as they leave the plant, just hand it to them.

Mr. GRIFFIN. Did you ever make any personal contacts with members, with employees?

Mr. RUBY. No; never. I just—— Mr. GRIFFIN. Were there any other people that you know of who worked in the union with Jack?

Mr. RUBY. I think my brother Hy worked for a little while in the union.

Mr. GRIFFIN. Did Sam work in the union?

Mr. RUBY. I don't think so. I only went there on very rare occasions, very rare. I may have been to one or two meetings in all. I didn't get paid for it either, just, you know, kicks just to hand out the flyers, that is all.

Mr. GRIFFIN. Can you think of any other people who were involved in the union?

Mr. RUBY. Well, I know John Martin, he was the president.

Mr. GRIFFIN. He is the fellow who was killed?

Mr. RUBY. No; he shot Leon Cooke.

Mr. GRIFFIN. He shot Leon Cooke. Is John Martin still living?

Mr. RUBY. I don't know. I know there was another fellow but I can't think of his name. There was a fellow by the name—I can't think of their names. They had odd names. Of course, that goes back in the thirties, I think, right in there somewhere. I don't even remember where it was.

Mr. GRIFFIN. Was Leon Cooke a fellow about your brother's age?

Mr. RUBY. Yes; I think so.

Mr. GRIFFIN. So Jack would have been in the late twenties at the time that he and Leon formed the union?

Mr. RUBY. I don't know. I don't know what year it was even. I don't even remember.

Mr. GRIFFIN. It was in the late thirties, wasn't it.

Mr. RUBY. I don't know. I really don't know.

Mr. GRIFFIN. Do you know of any girls that Jack dated?

Mr. RUBY. In Chicago?

Mr. GRIFFIN. Yes.

Mr. RUBY. Offhand not even one because he was, as I said, 4 years older than I was and we didn't run around together. I know of the one he went with in Dallas, which was, I think she was—I don't know if she testified at the trial or not.

Mr. GRIFFIN. That is Alice Nichols?

Mr. RUBY. Alice Nichols.

Mr. GRIFFIN. She is not a Jewish girl, is she?

Mr. RUBY. No.

Mr. GRIFFIN. Did it seem to be Jack's practice to get interested in women who are, what do you call them, shiksas?

Mr. RUBY. No; I really don't know because I don't know too much. You see he traveled in a different—I am trying to think. When he was going to Marshall High School that is when you usually start going with girls. I don't recall those days because I was too young.

Mr. GRIFFIN. What I am interested in exploring with you, if you can in a somewhat objective fashion, is some of the contrast between evidence you have shown us with his obsession with the fact that he was a Jew, and other indications that, for example, his dating girls who were gentiles and his living outside of the home away from the Jewish practices which might indicate that he had some desire to escape his Jewish background. Did you see any evidence of that?

Mr. RUBY. No; that I wouldn't—because believe it or not, when my mother passed away and also my father, you know, we have to go say services, we are supposed to say services for a year every day and I didn't keep it up, but he did.

Mr. GRIFFIN. Jack went to services after your——

Mr. RUBY. Mother died.

Mr. GRIFFIN. Every day?

Mr. RUBY. Every day as far as I know.

Mr. GRIFFIN. Where was this temple that he attended services at?

Mr. RUBY. Well, there was one, I know, up——

Mr. GRIFFIN. Were these temples in Chicago?

Mr. RUBY. One was in Chicago, I can't think of the name.

Mr. GRIFFIN. Your mother died while Jack was still in Chicago. When was that?

Mr. RUBY. 1944.

Mr. GRIFFIN. Jack was in the service?

Mr. RUBY. That is right.

Mr. GRIFFIN. How did you know he did that?

Mr. RUBY. He told us he went to services. You can say services there too as long as the chaplain——

Mr. GRIFFIN. Would he have to go before a rabbi or chaplain of some sort?

Mr. RUBY. Really not necessarily; it is not—because they say if it isn't available, you can still say the prayer.

Mr. GRIFFIN. This could be something he could have done on his bunk, his cot in the Army?

Mr. RUBY. I don't know. There he had access to a chaplain though because it wasn't a large camp.

Mr. GRIFFIN. Yes.

Mr. RUBY. When I say you don't have access, I am thinking of overseas where it might be a small unit, like where I was there wasn't a Jewish chaplain.

Mr. GRIFFIN. What I am trying to get at is this occurred while he was in the service. In order for him to properly observe mourning for your mother would he have had to have done something so that somebody else would have to be aware he was doing this other than Jack simply telling them. Would he have done something in his area where he lived or light a candle or would he have gone to a chaplain or gone in some place and prayed where people could have seen him. What would there have been observed by other people?

Mr. RUBY. I don't know. How can I answer that. I wasn't with him.

Mr. GRIFFIN. But you know what the requirements are of the Jewish faith to properly observe mourning for people.

Mr. RUBY. Yes.

Mr. GRIFFIN. What would some of the things have been that Jack would have had to have done?

Mr. RUBY. Just say the prayer, to read it out of the book or if you know it from memory, by that time after a while you know it from memory.

Mr. GRIFFIN. And he could have repeated that to himself?

Mr. RUBY. It is possible. But if a rabbi or services are available that is where you usually go. But if you are at a remote place where it isn't possible to have services then you can say it.

Mr. GRIFFIN. Do you actually recall Jack telling you that he was going to services for your mother?

Mr. RUBY. Yes; definitely.

Mr. GRIFFIN. Where did he tell you that he went?

Mr. RUBY. He just said he was carrying on the services but I don't remember now. This happened 20 years ago.

Mr. GRIFFIN. What I am trying to get at is your not saying that you recall him telling you he went to a chapel or to a synagogue or a temple.

Mr. RUBY. No; all he said was that he said services.

Mr. GRIFFIN. I see.

Mr. RUBY. But as to where I didn't think it was at that time necessary to question him.

Mr. GRIFFIN. Are there any other examples of this concern with his religious heritage?

Mr. RUBY. Well, I told you about he read all the books or as many books as he could on the Jewish atrocities, whatever you might call them.

Mr. GRIFFIN. He did this down in Dallas?

Mr. RUBY. He did this in Dallas that I know, my sister told me. In fact, when I went there he had several books.

Mr. GRIFFIN. What kind, do you remember the names of the books?

Mr. RUBY. He had one called "Eva" and "Exodus", and another one there that he was reading, and then he would give them away after he finished. I can't think of the other one. It was still there while I was there.

Mr. GRIFFIN. When was this that you observed "Eva" and "Exodus"?

Mr. RUBY. Right after the incident I went down there.

Mr. GRIFFIN. I see. So after the incident he was reading "Eva" and "Exodus"?

Mr. RUBY. No, no; it was before. I saw the books after but he had been reading them before because they were in my sister's apartment. She had taken everything from his apartment.

Mr. GRIFFIN. So it is your understanding that he had certain religious type books?

Mr. RUBY. Oh, yes.

Mr. GRIFFIN. Books on Jews in the apartment that he was living in?

Mr. RUBY. Right; definitely. In fact, he went out of his way as I stated before, to go and listen to lectures at the synagogue on the Jewish problem and the atrocities in Germany, and they showed films, real detailed films on what actually took place and he made it a point to be there.

Mr. GRIFFIN. When did this occur?

Mr. RUBY. This happened before the incident.

Mr. GRIFFIN. How long before?

Mr. RUBY. I don't know. I don't know. But my brother Sam told me about this just last week that when his mother-in-law, his wife's mother, was down in Dallas, Jack insisted she come along to see these films and hear the lecture.

You see, as I said, I have to get these, some of these things through a third party because I am in Detroit.

Mr. GRIFFIN. Sure, sure. I want to get them straight as to where you got them so we can follow them out.

Mr. RUBY. Yes.

Mr. GRIFFIN. Do you recall, this is on another subject, that at one time when you were questioned about why Jack and you had a falling out with respect to Earl Products, that you stated that Jack was not spending full time on the business, and that was one of the reasons?

Mr. RUBY. Well, we didn't think so. This was Sam's and my opinion.

Mr. GRIFFIN. Can you tell us what was happening?

Mr. RUBY. Well, we wanted him to sell our products that we were manufacturing, and he was, seemed to be always getting involved with selling somebody else's product. Of course, there was a commission involved or whatever it was, but I didn't—we didn't approve of it. We wanted to push our products and so, of course, he and Sam had a real runout or whatever you call it and then we finally decided to buy him out.

Mr. GRIFFIN. What other products was he selling?

Mr. RUBY. Well, I think he was selling costume jewelry. Well, we don't manufacture that. We wanted him to devote his entire interest into the company.

Mr. GRIFFIN. Would costume jewelry, could it be considered a companion line for anything you were selling. Would he go into the same stores to sell costume jewelry?

Mr. RUBY. You possibly could, you possibly could, but it was our opinion that he should devote all of his time to our products.

Mr. GRIFFIN. What was Jack's responsibility in Earl Products?

Mr. RUBY. He was actually the sales manager.

Mr. GRIFFIN. Did he have employees working in there?

Mr. RUBY. I was just going to add, he didn't have any, he was the only one.

Mr. GRIFFIN. He managed himself?

Mr. RUBY. Yes; and he was a good salesman, too.

Mr. GRIFFIN. Did this——

Mr. RUBY. Anyhow, with leading too we weren't hitting it off so good, and my sister Eva was asking him to come down to Dallas, so between everything we finally decided to buy him out and he took his money and went down there.

Mr. GRIFFIN. Did his sales activities require him to spend most of his time outside of the place of business?

Mr. RUBY. Of course; oh, yes.

Mr. GRIFFIN. How much of your sales were on a mail-order basis and how much was this direct selling that Jack may have been involved in?

Mr. RUBY. Well, at this time, the time he was handling the sales, there was very little mail order. It was mostly accounts that he had secured or we had in one way or another.

Mr. GRIFFIN. What area?

Mr. RUBY. Like Mar-Din.

Mr. GRIFFIN. That was in St. Louis, wasn't it?

Mr. RUBY. No, no; in Chicago.

Mr. GRIFFIN. In Chicago?

Mr. RUBY. Yes.

Mr. GRIFFIN. Did he travel outside the Chicago area?

Mr. RUBY. Not too much; not too much, if I recall. I don't recall. I don't think he traveled too much.

I think, now that I think of it, that was one of our problems. We wanted him to go down or go out of town, to Milwaukee or any of the other cities, even close by, and definitely St. Louis where we eventually sold Katz Drug which is a big and good account for us and they turned out to be a pretty fair account. And anyhow as I said one thing led to another. Eva was wanting him in Dallas and he wasn't getting along too well with us so it was decided to buy him out.

Mr. GRIFFIN. The only other topic I want to cover with you now is the circumstances behind you changing your name from Rubenstein to Ruby. Did Mr. Hubert cover that with you?

Mr. RUBY. Sort of. Well, first off, there are two reasons. First of all, we were, I think, very conscious of the Jewish name of Rubenstein, and we had worked for another Jewish fellow who we all looked up to, an elderly fellow who had been very successful in business and his name was Stanley Eisenberg and he said, "When you send out mail orders you shouldn't use a Jewish name because of the—some people won't order even if they can use the merchandise," and anyhow he suggested we use a different name, and so we finally decided since they were calling us Ruby anyhow, with that in mind, and business reasons, that is, and we finally decided to—Sam and I did first, you know.

Mr. GRIFFIN. You did.

Mr. RUBY. Yes; and Jack did it down in Dallas.

Mr. GRIFFIN. How much time elapsed between when you and Sam changed your name and Jack changed his?

Mr. RUBY. Gee, I don't know.

Mr. GRIFFIN. Did you ever discuss with Jack the reasons for his changing his name?

Mr. RUBY. No.

Mr. GRIFFIN. Do you have any idea why he changed his name?

Mr. RUBY. No; it never came up. We never discussed it as far as I can remember, we just never discussed that.

Mr. GRIFFIN. Is my understanding correct then that the changing of your name and Sam's name was directly tied with your activity in connection with Earl Products, and thus since Hyman didn't have any connection with Earl Products and Jack didn't have any connection with Earl Products at the time you two changed your name, why there was no reason for those two at that time to change their name?

Mr. RUBY. Well, Hyman never changed his name, as you know.

Mr. GRIFFIN. Yes; I know that.

Mr. RUBY. I really don't know the reason for Jack. He may have had the same reason but since he did it there, and we never brought it up it just never was brought into our conversations, that I can remember. We may have—at that time it was nothing important to us, and it happened along about 15–16 years ago, I think. I think we changed ours in 1947, I don't even remember.

Mr. GRIFFIN. I think we can finish this off here now. I want to hand you what has been marked as “Washington, D.C., June 3, 1964, deposition of Earl Ruby, Exhibit No. 3.” This is a copy of a report which was prepared by two FBI agents, White and Lee of an interview they had with you on November 25 in Chicago, which consists of two pages. The pages are numbered at the bottom 171 and 172. I want to hand it to you and ask you if you had a chance to read that?

Mr. RUBY. Yes; I have.

Mr. GRIFFIN. Are there any changes or corrections that you think ought to be made in that?

Mr. RUBY. Well, here in the first paragraph it says, “In 1946 his brothers Jack Ruby” I think, I am not sure of the date. I think it was 1947, and Jack didn't change his name when we did. He changed it later in Dallas.

Mr. GRIFFIN. All right. Let's read into the record the part you are talking about. In the second paragraph you are talking about the sentence which reads, “He said that in 1946 his brothers Jack Ruby and Sam Ruby along with himself legally changed their names from Rubenstein to Ruby for business purposes.”

Now the correct date of your changing your name is when?

Mr. RUBY. I think it was 1947.

Mr. GRIFFIN. And in any event Jack did not change his name at the same time that you did?

Mr. RUBY. That is correct.

Mr. GRIFFIN. Okay. Take your time and refer to them—you have notes, refer to them.

Mr. RUBY. Down here in the sixth paragraph it says, “following military service Jack returned to Chicago where he resided for several months and was not employed to his, Earl Ruby’s knowledge,” that is not correct.

When Jack came back from the service we immediately took him in as a partner in Earl Products Co., so that is wrong. And then they said about 1946. I think in 1947 he went to Dallas. However, I am not sure of that. You probably have that date.

I see on this next to the last paragraph where it says Earl Ruby stated he could give no reason why Jack Ruby shot Oswald except Jack is highly—is a highly emotional type and may have thought he was doing everyone a great service, I don’t remember that, the exact words. I don’t think I would have made that statement completely. I mean——

Mr. GRIFFIN. Did you have some feeling at the time that Jack may have thought he was doing a service to the country?

Mr. RUBY. To tell you the truth, I was so upset that I may have made the statement but I am not sure. You know I was—when was this, this was the next day, right, Monday?

Mr. GRIFFIN. Yes.

Mr. RUBY. That is it for this one. Some of them are almost exact duplicates.

Mr. GRIFFIN. I am going to hand you what has been marked as “Washington, D.C., June 3, 1964, deposition of Earl Ruby Exhibit 4.” And that purports to be an interview that Mr. Robichau and Mr. Wilson of the FBI had with you on November 25 in Southfield, Mich. It consists of six pages and they are numbered consecutively at the bottom 173 to 178.

Have you had a chance to read that over?

Mr. RUBY. Yes.

Mr. GRIFFIN. Would you indicate what changes or corrections should be made thereon?

Mr. RUBY. Well, in the fourth paragraph I am not certain as to whether my father was born in Russia and as to whether my mother was born in

Poland. I think my older sisters and brothers know more about that than I do.

Mr. GRIFFIN. Was the experience of your mother and father in Europe a topic which was discussed very often in the home?

Mr. RUBY. My father's experiences were, in telling about the hardships of it and the persecutions of the Jews.

I have one other correction here.

Mr. GRIFFIN. Yes.

Mr. RUBY. In the fifth paragraph it states here that Jack was employed by Earl Products after he first left the service. He wasn't employed. He was a part owner. It clarifies it in the next sentence, however.

Now, on page 2, the third paragraph this states here that I may have said that A. Weinberg was a fourth removed cousin, but I find that that is not so. She never was a cousin of ours.

And then on page 5 in the first paragraph it states that from 1939 to 1942 I was employed as a carpenter at building the barracks at Great Lakes. The date is incorrect. I worked there from, on in the year of 1942.

Mr. GRIFFIN. Would you want to take a pen and cross that off and correct it properly and then initial it, initial your deletion there?

Mr. RUBY. In the last sentence on page 6 it states that Earl and his three brothers had their names legally changed from Rubenstein to Ruby during 1947. That is incorrect. It should be Earl and Sam and Earl's wife, Marge. Shall I change it?

Mr. GRIFFIN. Yes; why don't you?

Why don't you sign that on the first page then. Sign Exhibit No. 4.

I will give you Exhibit No. 3 and ask you to sign that.

One other thing that occurred to me before we go on here. We have obtained various birth records and so forth, and in trying to identify which record pertains to which child, I noticed that your parents—actually your given names were Hebrew names.

Mr. RUBY. Yes.

Mr. GRIFFIN. Is my understanding correct that your given Hebrew name was Isadore?

Mr. RUBY. No; actually I was, the name listed was, Izzy, on my birth record. Is that what you are referring to?

Mr. GRIFFIN. Yes.

Mr. RUBY. Izzy, I-z-z-y, that is me.

Mr. GRIFFIN. Do you recall what the given names of your various sisters are? Could you relate those to us?

Mr. RUBY. No; I couldn't. Eileen I think was Ida, I think. The others I don't know. You have to talk to one of the older members of the family.

Mr. GRIFFIN. Incidentally, also in Exhibit No. 3, I noticed that you had, somebody has put some penciled mark numbers, were those your marks and did you wish to comment on those?

Mr. RUBY. Yes, it is just an error there—that should be scrap iron and junk handlers.

Mr. GRIFFIN. All right, it is corrected for the record, you just state it for the record.

Mr. RUBY. Here is a repetition of that other one where it says I stated he was doing every one a great service. I don't remember saying that and I am just not sure.

Mr. GRIFFIN. All right.

Let me hand you what has been marked as Exhibit No. 5 and has been further marked "Washington, D.C., June 3, 1964, deposition of Earl Ruby" which purports to be a copy of an interview with you also at South Field, Mich., on November 26, 1963, with special agents Robichau and Wilson.

The exhibit consists of six pages, numbered in sequence 11 through 16. I will hand it to you and ask you if you have any corrections that you want to make in that?

Mr. RUBY. Here again on page 5 it states I worked at the building—the barracks at Great Lakes from 1942. It was only during 1942. Shall I change it?

Mr. GRIFFIN. Yes; if you wish.

Do you want to sign Exhibit No. 5?

Mr. RUBY. Yes.

Mr. GRIFFIN. I am going to hand you what has been marked for identification as "Washington, D.C., June 3, 1964, deposition of Earl Ruby Exhibit No. 6." This is a copy of an interview which Agent Robichau purports to have had with you on November 27 in Detroit, Mich.

Would you want to look at that and tell us if there are any changes or corrections that you would make?

Mr. RUBY. No; no corrections. Shall I sign it?

Mr. GRIFFIN. All right, fine.

I will hand you what has been marked for identification as "Exhibit No. 7, Washington, D.C., June 3, 1964, deposition of Earl Ruby." This purports to be a copy of an interview report prepared by Special Agent George Parfet of the FBI. The interview took place with you on November 28 in Chicago. It consists of two pages and it is numbered at the bottom pages 15 and 16.

Would you want to look at that and tell us if there are any changes or corrections that you would care to make?

Mr. RUBY. Here on page 2 it mentioned that I had never heard of Jack being mentally ill or depressed. However, I know he was depressed several years ago.

Mr. GRIFFIN. Did you know that at the time you gave that interview report, gave that interview?

Mr. RUBY. Yes; I knew he was depressed but I didn't understand it completely. I didn't know that it was called depression at that time.

Mr. GRIFFIN. How did it appear, how would you have described it at that time?

Mr. RUBY. Well, that he wouldn't shave and he wouldn't bathe, and he wouldn't go out, but at that time I didn't know what it was called. But after thinking it over, when he came up to Chicago once, he was terribly depressed, as I stated before.

Mr. GRIFFIN. How would you have described him at the time you saw him— what would you have said was the matter with him?

Mr. RUBY. Well, I was just—let me see what words I can use to describe it—I would have said he was disgusted, not knowing that actually he was depressed until I really learned what the word “depressed” means.

Mr. GRIFFIN. Was his attitude one more of hostility or belligerence toward what had happened rather than one of submission?

Mr. RUBY. No; it was one of submission. He wouldn't go any places as I stated. He didn't want to wash or clean himself up and I had to more or less force him to get in the shower and things of that sort.

Mr. GRIFFIN. What about the things he said, though. Were these—you used the term “disgust”—did he speak in the manner of someone who was disgusted would speak?

Mr. RUBY. Well, he didn't even have much to say, if I recall. He didn't even have much to say. He tried to keep to himself.

Mr. GRIFFIN. Where did he live at that time?

Mr. RUBY. I mean in my presence. In other words, he would go in another room or sit in a chair and just sit there without making—just thinking to himself about whatever was going through his mind. He was listless.

Mr. GRIFFIN. Were you married at that time?

Mr. RUBY. Yes, I was married.

Mr. GRIFFIN. Did Jack come and live with you?

Mr. RUBY. No, no.

Mr. GRIFFIN. Where did he live at the time?

Mr. RUBY. He came to the family and that is where I came to see him. In fact, he was so depressed that I took him to try to cheer him up, I had to go to New York for a business trip, a show that was taking place there and I took him for a ride, we were driving anyhow, and I thought it would pep him up a little bit, you know, to go on a trip. But it didn't help much.

Mr. GRIFFIN. Was your attitude toward him this time one of sympathy or couldn't you figure out what was eating this guy?

Mr. RUBY. No; I would say he was. I just thought he was disgusted with things, little realizing that he was in a state of depression.

Mr. GRIFFIN. But were you sympathetic toward him at the time?

Mr. RUBY. Oh, yes; as I said, that is why I took him on the trip. I tried to encourage him. I told him "Maybe we can find something for you to get into," as I mentioned before, "Some business we can get you started in or something."

However, he decided, as I stated before, to go back to Dallas.

Mr. GRIFFIN. Did he ever tell you why he decided to go back to Dallas?

Mr. RUBY. I don't recall, he may have, but I can't recall just now.

I see another, the last paragraph on page 2. I didn't even remember that conversation with the agent.

Mr. GRIFFIN. Would you read the paragraph?

Mr. RUBY. It states here, "Earl Ruby was specifically asked regarding his residence in New Haven, Conn., in 1940. He has stated that he had never been in New Haven, Conn., in his life and in that period was engaged in the drycleaning business on Cicero Avenue in Chicago."

Mr. GRIFFIN. Is that statement a correct statement?

Mr. RUBY. When we were selling we used to travel the east coast but I would have only been there—I don't remember being there, but if I had been there, I would have been there only for a day. I think he asked me if I lived there for any length of time, if I recall, but I am not sure. I don't recall this——

Mr. GRIFFIN. Were you in the drycleaning business on Cicero Avenue at that time?

Mr. RUBY. As far as I know, yes; I had an independent cleaning route at that time. I used to call on friends and pick up their cleaning and deliver it right to their home.

Mr. GRIFFIN. You didn't operate a cleaning plant?

Mr. RUBY. No, no; but this is where I worked out of. Maybe he just cut it short. I brought my cleaning to this plant in Chicago, on Cicero Avenue, in Chicago, they cleaned it and charged me a wholesale price and I added on a profit, of course.

Mr. GRIFFIN. I am going to hand you what has been marked as "Exhibit 8, Washington, D.C., June 3, 1964, deposition of Earl Ruby." It consists of two pages numbered 210 and 211 and purports to be a copy of a report which Agent George Parfet prepared with respect to that interview he had with you on November 28 at South Field, Mich.

Mr. RUBY. I didn't sign the other one.

(Earl Ruby Exhibits Nos. 5, 6, 7, and 8 were marked for identification.)

Mr. GRIFFIN. I will state for the record then, you have just signed Exhibit No. 7, and if you will look at Exhibit No. 8, tell us if there are any changes or corrections you would make in that.

Mr. RUBY. Here again it is almost a duplicate of the previous, what do you call it again, number?

Mr. GRIFFIN. Interview report.

Mr. RUBY. What is this?

Mr. GRIFFIN. That is Exhibit No. 8, and this is Exhibit No. 7 that I have here.

Mr. RUBY. The last paragraph again as stated in the previous one. They are almost identical.

Mr. GRIFFIN. Yes; it looks like they are identical copies and they were just included in different places in our materials.

Let me hand it to you then and let me ask you to sign it.

Mr. RUBY. Sign it anyhow?

Mr. GRIFFIN. Yes; Exhibit No. 8.

Mr. RUBY. Yes.

Mr. GRIFFIN. Yes; Exhibit No. 8.

I finally hand you what has been marked for identification as “Exhibit No. 9, Washington, D.C., June 3, 1964, deposition of Earl Ruby.” This is a copy of a report which Agent Robichau made with you of an interview he had on December 2, 1963, at Detroit, Mich.

Would you tell us if you have any additions or corrections or changes to make in that?

Mr. RUBY. No; this is correct. That she is not related in any way to our family.

Mr. GRIFFIN. All right.

Now, that concludes all the questions that I have, and I presume that Mr. Hubert has or he would have come back in.

Are there any topics that we haven't covered that you feel that we ought to—is there anything further that you would like to say? You have got the floor.

Mr. RUBY. Yes; I think, and this took place at the trial, and after the first policeman had testified as to statements made by my brother Jack, that evening when I saw Jack, he told me that he is going to the electric chair.

He said because he never made any of those statements, and now he knows what Wade has in mind, because if Wade wants to send you to the chair he can, and he always does, and that is why he has the record that he has.

Mr. GRIFFIN. Do you remember who the first policeman was who testified?

Mr. RUBY. No; I don't. And he told me on several occasions that he never made the statements the police testified that he did make, and in fact, if the record will be checked, it is proved that the statement that Dean made couldn't have been true—Officer Dean.

Mr. GRIFFIN. Why do you say that?

Mr. RUBY. Because at the time when he said he had been talking—that Jack made a statement, Jack, he is the one who said Jack told him 2 days before at 4 o'clock, I think the time was, that he stated, that Jack told him that he was going to get Oswald.

At that time Jack was at home with Eva, so Jack couldn't have made that statement to him, and, of course, this has been brought out in the petition or motion for a new trial, so it is in the official record, so to say.

Mr. GRIFFIN. Now, when Jack talked to you the first night after, or after the first police officer testified, was that first police officer Sergeant Dean, or was that another police officer?

Mr. RUBY. No; that was another police officer. Dean was the last police officer, if I recall correctly.

Mr. GRIFFIN. Did Jack tell you what he did say?

Mr. RUBY. No; but he said he never made those statements.

Mr. GRIFFIN. Did Jack——

Mr. RUBY. He repeated it several times on different occasions. He said, "I never made that—any of those statements and I know how Wade operates. He is going to send me to the chair. Now I know what he has got in mind."

Mr. GRIFFIN. Let the record reflect that I am going to give you a copy which we have made of your three-page statement which you have entered into the record and which is marked as Exhibit No. 2, and also a copy of Exhibit No. 1 which we have marked.

Mr. RUBY. You are giving that back to me because I have a copy of Exhibit No. 1.

Mr. GRIFFIN. You can have that copy back.

Mr. RUBY. OK.

Mr. GRIFFIN. Are there any other matters that you think ought to be covered that we haven't covered?

Mr. RUBY. No; I can't think of any. I think we have covered them all.

Mr. GRIFFIN. Let me ask you one last question which I started to ask some hours ago.

That is this: Between the time you first saw Jack in Dallas, and the last time you saw him in Dallas, what changes did you see in him, if any?

Mr. RUBY. I think as I stated, he lost probably 25 or 30 pounds, and he couldn't seem to grasp or understand conversations or questions. I have talked to him many times on the phone since then, and he still thinks—in fact as of now, he don't even think I am alive. He thinks they killed me and my family, my children.

Mr. GRIFFIN. When you first saw him in Dallas did he have these—did you have any trouble communicating with him, did he show any lack of understanding when you first saw him?

Mr. RUBY. No, no; it wasn't—yes; I must change that. There was a slight hesitancy on his part to understand questions that I put to him. He would shake his head when I would ask him questions sometimes and as though he didn't understand, and these were just ordinary questions of routine matters, just about the trial or Belli. We discussed Belli, and he said, even at the beginning there he said, "They don't talk to me. Why don't they talk to me longer," and yet Belli was there for hours.

Mr. GRIFFIN. This wasn't the very first time you saw him. This was on an occasion later?

Mr. RUBY. That is right. It had to be later.

Mr. GRIFFIN. All right. I have nothing more. And if you have nothing more I want to thank you very much for taking this time for us.

Mr. RUBY. I hope I can help you and I hope you can help us.

Mr. GRIFFIN. We want to assemble all the facts that we possibly can and prepare a report that will be as fair and as impartial as can be.

Mr. RUBY. You want me to check on that professor at Northwestern University, correct?

Mr. GRIFFIN. And if you would give us the names of those employees.

Mr. RUBY. The list I have on that. I can possibly get the information as to where my brother received the psychiatric treatment when he was about 10 years old. Do you want me to send that to you?

Mr. GRIFFIN. If you would get us that we would appreciate it, yes.

Mr. RUBY. Shall I mail it just here the same address?

Mr. GRIFFIN. Yes.

TESTIMONY OF MRS. EVA GRANT

The testimony of Mrs. Eva Grant was taken at 3:30 p.m., on May 28, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission. Mrs. Eva Grant was accompanied by her attorney, Phil Burleson.

Mr. HUBERT. This is the deposition of Mrs. Eva Grant. Mrs. Grant is represented by Mr. Phil Burleson, her attorney.

Mrs. Grant, my name is Leon D. Hubert. I am a member of the advisory staff of the general counsel on the President's Commission on the Assassination of President Kennedy. Under the provisions of Executive Order 11130, dated November 29, 1963, issued by President Johnson, the joint resolution of Congress No. 137, and the rules of procedure adopted by the President's Commission in conformance with the Executive order and that joint resolution, I have been authorized to take a sworn deposition from you. I state to you now that the general nature of this Commission's inquiry is to ascertain, evaluate, and report upon the facts relevant to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald. In particular, as to you, Mrs. Grant, the nature of the inquiry today is to determine what facts you know about the death of Oswald, and the life and activities of your brother, Jack Ruby, and any other pertinent facts that you may know about the general inquiry.

Now, Mrs. Grant, I believe that you appear here today by a request made to you by a letter from Mr. J. Lee Rankin, general counsel of the staff for the President's Commission. I ask you now if you have received that letter?

Mrs. GRANT. Yes, sir.

Mr. HUBERT. Would you state to us, please, what the date of the letter is?

Mrs. GRANT. May 22.

Mr. HUBERT. And it was received by you on what date?

Mrs. GRANT. On the following date. I think, what is today—Thursday? I know I called here, it seems to me, Monday or Tuesday now.

Mr. HUBERT. In any case, you have no objection to the taking of this deposition at the present time?

Mrs. GRANT. No, sir.

Mr. HUBERT. Then, will you rise and raise your right hand so that I may administer the oath?

Do you solemnly swear that the testimony you are about to give will be the truth, the whole truth, and nothing but the truth, so help you God?

Mrs. GRANT. I do.

Mr. HUBERT. Will you state your full name, please, ma'am?

Mrs. GRANT. Well, I go under the name of Eva L. Grant.

Mr. HUBERT. How do you spell the first name?

Mrs. GRANT. Eva (spelling) E-v-a and "L." Let me explain something to you—I married a man who used the name Grant, but the name, which you will notice, is Granovsky, but I married him under that name and I used that name for at least 25 years. I married in 1936, so you figure it out.

Mr. HUBERT. And how old are you, Mrs. Grant?

Mrs. GRANT. Fifty-five.

Mr. HUBERT. And where do you reside?

Mrs. GRANT. 3929 Rawlins, Dallas, Tex.

Mr. HUBERT. Are you at present occupied?

Mrs. GRANT. No.

Mr. HUBERT. Now, in the course of this investigation I hope to conduct it in this way, that I will question you concerning certain segments or blocks or questions that will relate to a subject.

Under the rules of the proceedings your counsel may make any objection at anytime and under the rules also he could ask you any questions that he wants to at the end of the whole hearing, but I think, for ease of handling, it would be better if he asked you his questions after we have finished a particular area or block. I will try to indicate to your counsel when I am passing from one to the other, so that we can stop there and let him ask the questions as to that block, but I invite you, Mr. Burleson, if I should overlook and pass on to the next block, and it is obvious to you that I am, will you please interrupt and we will then have your questions relative to that block, so that the whole of the matter will be together in that way.

I think that perhaps the first thing I should like for you to do is identify the statements that were made by you to the FBI in several interviews that they had of you. Now, for the purpose of identification, first I am marking these exhibits as follows, to wit: "Dallas, Tex., May 28, 1964, Exhibit 1 to the deposition of Eva Grant." I have signed my name to that and placed my initials on each of the subsequent pages in the lower right-hand corner. That Exhibit No. 1 purports to be the report of an interview of you by FBI Agents Jack Peden and Gaston Thompson on November 25, 1963, consisting of seven pages, and I have previously handed this Exhibit 1 to you and your attorney with the request that you read it and make any notes you wish, because what we want to do now is to state whether this Exhibit 1 represents a correct version of your understanding of the facts, and I will now ask you—have you read Exhibit 1?

Mrs. GRANT. Yes; I have.

Mr. HUBERT. With the aid and assistance of your counsel, would you tell us please, ma'am, whether Exhibit 1 is correct, pointing out any incorrections—things that are incorrect—anything that is omitted?

Mrs. GRANT. I would have to see that again; may I?

Mr. HUBERT. Yes, ma'am.

Mr. BURLESON. Mr. Hubert, I might make a suggestion here since I have gone over it with her, possibly I could take her now and go into these areas?

Mr. HUBERT. That will be a good way to do it because my general question is whether or not it is a completely correct document, and,

therefore, to the extent it is not, I think it would be best if you would take her over to show that.

Mrs. GRANT. Yes, sir.

Mr. HUBERT. May I suggest that you use a system of quoting the sentence to which you address yourself so it is clearly identified?

Mr. BURLESON. Mrs. Grant, on page 1 of this—it is correct to the best of your present memory, is it not?

Off the record.

(A discussion between Counsel Hubert and Counsel Burleson off the record.)

Mrs. GRANT (reading instrument referred to). Let me go ahead and say this now—you do want me to say it—when Jack looked at that Weissman ad, it seems to me this is what he said——

Mr. BURLESON. Wait, are you making reference to a specific sentence in here, or are you adding to something?

Mrs. GRANT. Well, I didn't say here that he called. I think he was over there. I'm almost sure, but I may have said it—will you tell him about me? I was so sick—I mean—I was——

Mr. BURLESON. Well, we will get into that in just a minute. Is there anything in this—on this first page that is incorrect as you now view things?

Mrs. GRANT (reading). Well, you see, right here, “he said he contacted”—he was in the Dallas Morning News when the President was assassinated. He was placing his ads and he was in the building from 11 until, maybe, at 1:30, and that should have been put in here and I thought I told him that.

Mr. BURLESON. Well, let's refer to that—on this last sentence on page 1, it starts out with, “She stated that Jack Ruby told her that he was at the Dallas Morning News which ran his advertisements and asked them. ‘Where in the hell do you get off taking an ad like that? Are you money hungry?’”

What do you want to say about that?

Mrs. GRANT. There was a fellow there that takes his ads and his name is Newman. I think his name is John Newman, and Jack was in that area where this all takes place and the telephones were ringing, and Jack says people were canceling their ads, you know, complete commercial ads and subscriptions and the place was a madhouse. He was in the Dallas Morning News—he went there, you see——

Mr. BURLESON. To this statement, though, that I have just quoted—your answer is what?

Mrs. GRANT. Yes: but he did call me from there—he was there.

Mr. BURLESON. That morning?

Mrs. GRANT. That's right—he was in the Dallas Morning News and John knew——

Mr. BURLESON. So, when you use the word “contacted”——

Mrs. GRANT. They used that word—that isn't even my word.

Mr. BURLESON. He had some contact with them is really my question—whether by being there in person or by telephone?

Mrs. GRANT. He bawled John Newman out.

Mr. BURLESON. All right; I think that clarifies that.

Mrs. GRANT. He said, “What in the hell?” And he says, “Well, I take orders from my superiors,” that's what Jack said.

Mr. BURLESON. Is that the only change or the only thing that you want to add on the first page?

Mrs. GRANT (reads). Now, you see, let me explain this—he didn't talk to the Times Herald until later in the day, as far as I know.

Mr. BURLESON. All right: let me ask you this—you are now talking about, in the second paragraph, starting with, “She advised that he told her he had called the Times Herald Newspaper in Dallas and they had advised him that they had turned down and refused to accept the same advertisement.” What about that?

Mrs. GRANT. Well, it seemed to be later in the day when all the commotion had died down and——

Mr. BURLESON. Later on Friday?

Mrs. GRANT. The same Friday, and if I know him, he probably was using the Dallas Morning News phone because he didn't leave there until 1:30.

Mr. HUBERT. Now, is there anything else you want to revise or change on page 1?

Mrs. GRANT. Well, I would say they were at—you know, they came with that ad and they turned it down and that's about it. It's in there.

Mr. BURLESON. Is there anything else on page 1?

Mrs. GRANT. Well, that part there that he contacted——

Mr. BURLESON. Well, we have already gone over that.

Mrs. GRANT. He was in the Dallas Morning News when all this took place. It was the greatest commotion in history in that office, and he was crying, and he was standing against the wall, and he said there were people——

Mr. BURLESON. All right; is there anything else though?

Mrs. GRANT. No.

Mr. BURLESON. Off the record.

(Discussion between Counsel Burleson and the witness, Mrs. Grant.)

Mr. BURLESON. Now, on the record. On page 2, Mrs. Grant, are there some changes or revisions that you might want to make in connection with that? I direct your attention specifically to this statement, "He informed that early Thursday morning, November 21, 1963, Jack Ruby, as was his custom, placed advertisements in both Dallas papers concerning the entertainment to be offered at the Carousel and Vegas nightclubs, Dallas, Texas, which clubs he had an interest in." Now, in reference to that, what do you want to add in reference to that? Was that actually the morning of the 22d after midnight of the 21st?

Mrs. GRANT. Well, there are many weeks out of the year he would go in on—which is Friday morning after 2:30 in the morning and it seemed to me this was an unusual week. I have been away from the Vegas Club which I

usually take care of, but he went to the Vegas Club to pick up money and he was on the phone half of the night, he said, calling for a band.

Mr. BURLESON. But this date——

Mrs. GRANT. So, he never got that—that's the wrong date.

Mr. BURLESON. That date really should be early Friday morning, November 22, 1963?

Mrs. GRANT. Yes.

Mr. BURLESON. Which would have been following Thursday. All right. Now, directing your attention——

Mrs. GRANT. Can I add in over here something. When he was at my apartment Friday the phone rang and Andy, who is our bartender, said, "Jack, call Don Safran."

Mr. BURLESON. Just a minute, we are coming to that, but I want to direct your attention now to the next statement after the one I just read. "She advised that after President Kennedy was assassinated on November 22, 1963, he called the newspapers to change the advertisements to show that the club would be closed Friday, Saturday and Sunday, November 22d, 23d, and 24th, 1963." Would you care to explain that just a little bit?

Mrs. GRANT. Yes; I heard him call the Dallas Morning News, because there was a paper coming out at 10 o'clock at night and it seemed to me that they said it was too late—the Dallas news—you know how it comes out?

Mr. BURLESON. The first edition?

Mrs. GRANT. Yes; but he said, anyway, put it in Friday, Saturday, and Sunday, and I heard——

Mr. BURLESON. And it was on the afternoon of November 22d?

Mrs. GRANT. That's right.

Mr. BURLESON. That he called from your place?

Mrs. GRANT. That's right.

Mr. BURLESON. He called both of the papers?

Mrs. GRANT. That's right. Then, he called the Times Herald, but in between this, it seems that Andy called, who was in charge of the Carousel Club and he said, "Call Don Saffran."

Mr. BURLESON. All right. Now, we are going to get onto that but is that all you wanted to say about what we have just talked about?

Mrs. GRANT. Yes.

Mr. BURLESON. The next immediate following statement says, "She said that Don Saffran (PH) a newspaper reporter for the Dallas Times Herald, called him and wanted to know if he was sure," and I am continuing on page 3, "he was not going to operate those clubs on any of those three days. He pointed out that some of the other clubs apparently were not going to be closed for even one night.

"When Ruby heard that the other clubs were not going to be closed, he became quite upset and asked Don how anyone with any kind of conscience could dance and have a good time after the President had been killed. He ended up by telling Don that he did not care what anyone else did, that he was going to close for those three days."

And that is the end of those several sentences. What do you want to add in your deposition about that?

Mrs. GRANT. Well, as I said, Andy called him and he called Don and he says, "I'm going to close tonight—tonight." And this is what Don says, "Are you going to be closed Saturday and Sunday?" I don't know what Jack said, I'll be honest, at that time, but Jack—there was about a 3-minute hesitation and he says, "I'm calling him back," and this is what I heard him say—he said, "Don this is Jack Ruby." He said, "Listen, I will be closed for three days—tonight, Friday, Saturday, and Sunday," and he says, "I don't care when the other clubs close," and he says, "We're broke anyway so—". In other words, he felt he can't get any worse off than he is—it isn't that he makes a million dollars—I mean, that was his attitude.

Mr. BURLESON. The rest of page 3, the following three paragraphs on page 3 appear to be correct; is that right?

Mrs. GRANT. But I wanted to clear this—you see, this wasn't put in.

Mr. BURLESON. Well, let me ask you this: We are now referring to the first full or complete paragraph on page 3, which says, "Mrs. Grant displayed a page from the Dallas Morning News, dated Saturday, November 23d, 1963, in Section 1, Page 19, containing a one column ad approximately four inches in length, stating that the Carousel Club on Main Street, Dallas, would be closed Friday, Saturday, and Sunday." What do you want to say about that?

Mrs. GRANT. Well, I understand the early edition didn't have it yet.

Mr. BURLESON. All right. In reference to the next paragraph, it says, "Mrs. Grant recalled that on the day of the President's assassination, November 22, 1963, Jack Ruby telephoned her at least eight times and made three personal visits to her apartment,"—what correction or change do you want to make?

Mrs. GRANT. I think he came twice—one time early in the day and once later in the afternoon with the groceries.

Mr. BURLESON. So, where you said "three times"—

Mrs. GRANT. It was only two times.

Mr. BURLESON. You think now that it was only two times?

Mrs. GRANT. Yes.

Mr. BURLESON. The rest of that paragraph appears to be correct?

Mrs. GRANT. Yes.

Mr. BURLESON. The next paragraph on page 3 appears to be correct?

Mrs. GRANT. Yes.

Mr. BURLESON. A continuation of the last paragraph on page 3 and on page 4, does it appear to be correct?

Mrs. GRANT (read). Could I add something here?

Mr. BURLESON. All right, in the last sentence of the first paragraph, at the top of the page, the statement appears, "She stated that he discussed sending flowers to the place near the spot where the President was assassinated and she feels sure that he did have flowers delivered to that spot?"

Mrs. GRANT. Well, we had a regular florist, called “Your Florist,” but I was in the hospital and he sent dried up, thrown out flowers that he charged, you know, a large amount of money for. I told him to get another florist, but he didn’t. He thinks he didn’t anyway—we are almost sure he didn’t.

Mr. BURLESON. Now, directing your attention to the first complete paragraph on page 4, which says, “Mrs. Grant informed that Jack Ruby was in her apartment on November 22d, 1963, from approximately 5:30 p.m. until approximately 7:15 p.m. and then he dressed and went to the synagogue for prayers.” What correction or addition do you want to make to that?

Mrs. GRANT. It was much earlier than 5:30—more like 4:30 at that time. You see, he was there earlier in the day, but I don’t remember whether it was much earlier—I think he came before he even went to the newspaper office.

Mr. BURLESON. “Somewhere around 4:30” should be “around 5:30”?

Mrs. GRANT. Yes; and he went home to dress. You see, he didn’t live at my place.

Mr. BURLESON. All right; 7:15 is about right?

Mrs. GRANT. That’s right.

Mr. BURLESON. Then he dressed—he went home to dress from your place before he went to the synagogue?

Mrs. GRANT. Yes; but I want to tell you. He looked so bad and he was so much a broken man and more confused and I really said something to this effect to him, I said, “Do you think you are able to drive?” He says, “Yes,” but instead of him going home, he went to Dealey Plaza and he was there sometime, because he didn’t get home until much later, and he didn’t get to the synagogue until almost all of the services were over, but he didn’t have any idea about time.

Mr. BURLESON. Now, as to this next paragraph on page 4, does it appear to be correct as written?

Mrs. GRANT. Well, in the case that he told me that he took what Larry——

Mr. BURLESON. And there are some other things written, but what is written there, does that appear to be correct?

Mrs. GRANT. Yes. [Reading.]

Mr. BURLESON. Let me go off the record just a second.

(Discussion between Mr. Burleson and the witness, Mrs. Grant, off the record.)

Mr. BURLESON. Is this what is right, here?

Mrs. GRANT. Yes; that is correct—he said he was up every night.

Mr. BURLESON. Is this correct, then?

Mrs. GRANT. Yes.

Mr. BURLESON. Now, as to the last paragraph on page 4 which starts on page 4, does that appear to be correct?

Mrs. GRANT (reading). Yes; he called Stanley from my home, and that's why I know, and they were talking about these signs and he showed me — Mr. BURLESON. Just read this, though, and tell me if this is correct.

Mrs. GRANT (reading). Yes.

Mr. BURLESON. All right. Now, as to the first complete paragraph on page 5, would you read that and see if that appears to be correct?

Mrs. GRANT (reading). You know, I don't know if he was there twice Saturday or not.

Mr. BURLESON. Where?

Mrs. GRANT. At my apartment; you see, he was there from 3:30 on to 8 o'clock that evening—I know he spent about 4 hours.

Mr. BURLESON. That's on the 23d?

Mrs. GRANT. That's right. Whether he was there earlier, I don't know. I know Friday he was there twice.

Mr. BURLESON. But to the best of your recollection and remembrance at this time, this is correct?

Mrs. GRANT. Well, he was there from close to about—I would say 3½ to 4 or 4 hours and 15 minutes for a Saturday.

Mr. BURLESON. And you say that it appears to be correct, the whole paragraph?

Mrs. GRANT. Now, this is what I want to get clear.

Mr. BURLESON. All right. Let me read something into the record. With the statement “She stated that from the remarks made by Ruby during the 10:20 p.m. telephone conversation, that she gained the impression that Ruby had been at his residence, 223 South Ewing (Apartment 207), Dallas, Texas, since a short time after leaving her place around 8 p.m. the same date.” Now, what do you want to say about that?

Mrs. GRANT. Well, I don’t know if it was Friday or Saturday. He said he was going to the station, and I’ll be honest with you, I didn’t question—radio, television, or police station because it didn’t make a bit of difference to me. I was too gone.

Mr. BURLESON. But that does not have anything to do with this, does it?

Mrs. GRANT. He didn’t mention what station—he mentioned a station, but I don’t know if he went to the radio station, television, or police station, and I don’t think—it seems to me it was on a Friday instead of Saturday.

Mr. BURLESON. But the statement, though, is correct as far as you know? It may not be complete, but it is correct as far as you know?

Mrs. GRANT. Well, here it says on Saturday, but it is not Saturday. I think it was Friday after the synagogue. I think he called me, and he was in Phil’s, and he was ordering sandwiches, and I think it was Friday. I’ll tell you the truth, I was so confused that night I don’t know how I got anything out of him.

Mr. BURLESON. All right. Let me direct your attention to the next paragraph: “At 11:30 p.m. that same night, he called and told her he had been at the station where he had talked to Henry Wade, the district attorney, Dallas County, Tex., and Russ Knight of radio station KLIF, Dallas, Tex.”

Mrs. GRANT. And that should have been Friday.

Mr. BURLESON. That should be Friday night?

Mrs. GRANT. I think they both occurred Friday night.

Mr. BURLESON. You think the reference in the preceding paragraph that we quoted should have been Friday night instead of Saturday night?

Mrs. GRANT. I'm sure when he left the synagogue he went to Phil's, he ordered sandwiches and he called me from Phil's, and he said he was going to a station. He may have told me Saturday what station he had been at, but at that time he did not tell me.

Mr. BURLESON. If this were in this paragraph I have just quoted about starting at about 11:30 p.m. that same night, that should be, then, Friday night?

Mrs. GRANT. I'm sure.

Mr. BURLESON. With that substitution there, is everything else in that paragraph true?

Mrs. GRANT. Well, he just said he was going to a station.

Mr. BURLESON. Did he tell you he talked with Henry Wade?

Mrs. GRANT. Yes; he did.

Mr. BURLESON. Did he tell you——

Mrs. GRANT. Wait a minute—the phone rang—wait a minute—there were a group of men. The phone rang and Jack was nearest the phone, wherever this takes place—where they interrogate people or talk to people—I haven't a vague idea, but yet I have been up there. Someone said answer the phone and he picked up the phone and he said, "It's for you, Henry." He told me this on Saturday.

A man at a station, and this time I think—this was Friday night—that I know, and he said, "Can I talk to Henry Wade?" And I think it was Russ Knight on the other end of the phone who said, "Okay," and they were giving Russ Knight, who was—now, I know it was with KLIF because he was with KLIF, but he didn't tell me this until Saturday when he came over but I'll be honest, he told me when he was going to a station on Friday I did not know whether it was radio, television, or police station—I know he was in Phil's and he ordered a lot of sandwiches.

Mr. BURLESON. Would you read, then, with that explanation, and see if these two paragraphs are correct?

Mrs. GRANT. Yes; yes.

Mr. BURLESON. All right, let's move on to the last paragraph on page 5, which continues on page 6. Would you read it and see if it is correct?

Mrs. GRANT (reading). You see, I'll tell you—I know when he got home Saturday afternoon, he left me—I made dinner for him and he called me.

Mr. BURLESON. Was it about 12:40?

Mrs. GRANT. No; he called me before that, once again, I would say it was more like 10:30 or 10 o'clock—he was still at home—Saturday he was still home—10 o'clock.

Mr. BURLESON. All right; let me interrupt you—Eva—just a second, and let me read to you this paragraph starting on page 5 at the bottom, “Mrs. Grant stated that she next heard from her brother, Jack Ruby, about 12:40 a.m., Sunday, November 24, 1963, at which time he called her by telephone.” Now, you say that you heard from him sometime before 12:40?

Mrs. GRANT. This fits in here—this part here.

Mr. BURLESON. What I just read fits back up into the first paragraph?

Mrs. GRANT. No—on Saturday he left my home around 8 o'clock. I did not hear from him for about 2 hours, it seems that long anyway. He called and he said—I know exactly what he said—he said he was making liver that George bought and getting dressed.

Mr. BURLESON. That George Senator bought?

Mrs. GRANT. Yes.

Mr. BURLESON. And he was at home?

Mrs. GRANT. No; George was not at home.

Mr. BURLESON. I mean, Jack was at his apartment?

Mrs. GRANT. Yes; this was Saturday.

Mr. BURLESON. All right.

Mrs. GRANT. And in those 2 hours, I assume he took a shower and from the telephone messages he must have made five long-distance calls from what I heard—that is Saturday—I don't know where he went, but I do know he called me back again and it was after midnight, and it was near 1 o'clock, as much as I could remember.

Mr. BURLESON. Would you continue on page 6, that continuation of the paragraph, and see if the rest of it is correct?

Mrs. GRANT. Well, this is what I said——

Mr. BURLESON. Now, let me read that into the record—just a second.

Mrs. GRANT. At 12:40 he was at home. From the way he talked I assumed he was at home.

Mr. BURLESON. Just a second, now. “She said she gained the impression that he was at his residence.”

Mrs. GRANT. For Saturday is it?

Mr. BURLESON. From—for Saturday night when he called you at 12:40?

Mrs. GRANT. That's right.

Mr. BURLESON. Would you read the next sentence in there and see if that is correct?

Mrs. GRANT. That's right.

Mr. BURLESON. Now, directing your attention to the next paragraph, which is the first complete paragraph on page 6, would you read that and see if that is correct?

Mrs. GRANT (reading). That is correct.

Mr. BURLESON. Now, the last paragraph on page 6, which continues on page 7—would you read that?

Mrs. GRANT. Okay. [Read.] That's all right.

Mr. HUBERT. I am handing you and your attorney a document which has been identified as follows: That is to say, I have written in the margin of this document, this consisting of one page, the words, “Dallas, Tex., May 28, 1964, Exhibit No. 2 deposition of Eva Grant,” and I have signed my name

and this purports to be of a telephone interview between you and the FBI agent Jack Peden on November 29 1963, and I will ask you if it is correct, if anything has been omitted, any corrections to be made or anything wrong about it in regards to the first paragraph, which says, “Mrs. Eva L. Grant, 3929 Rawlins, was telephonically contacted at the Vegas Club, 3508 Oak Lawn, Dallas, Tex., and she stated that she first came to Dallas Tex., in August of either 1942 or August 1943.”

Did you come here?

Mrs. GRANT. Yes; I stayed a very short while. It was during the war and I lived out in Oak Cliff—it seems to me on Ohio Street somewhere.

Mr. HUBERT. Would you say that you were really just passing through?

Mrs. GRANT. No; but I was just here for a couple of weeks and then I left and you see I was always on the way from Chicago to Los Angeles.

Mr. BURLESON. Are there any other changes or corrections in this that you want to make?

Mrs. GRANT. Well, this building—wasn’t—go back to 1945.

Mr. BURLESON. Let me read into the record the second paragraph, “She advised that a building was being erected at 1717 South Ervay, in Dallas, shortly after she arrived in Dallas, and she arranged to lease it.”

Mrs. GRANT. Yes; but that was not until 1945.

Mr. HUBERT. That was in 1945?

Mrs. GRANT. I’m sure the last part of it was 1945.

Mr. HUBERT. That was in 1945?

Mrs. GRANT. I’m sure the last part of 1945.

Mr. HUBERT. Is the last sentence in the second paragraph correct?

Mrs. GRANT. Well, yes; that’s correct—let me explain this—you see, when they say I went to the west coast, yes; but I didn’t stay there too long. I mean, it took me from 6 months to 8 months to come back.

Mr. BURLESON. Let me ask you this. In the last paragraph, Mrs. Grant stated that “she left Dallas in 1948 and went to the west coast. She informed

that she returned to Dallas two or three times after 1948 and has made Dallas her home since April 1959”; is that correct?

Mrs. GRANT. I was here many more years than that.

Mr. BURLESON. All right, what is the true situation?

Mrs. GRANT. Even if I left, I wasn't gone maybe a half a year or 8 months even, and then I came back and I stayed here again, and then Jack had another club called Hernando's Hideaway, and I was here a year then, maybe 2 years. Gee, I was mostly here since 1948 than any place I have been.

Mr. BURLESON. But you did move to other places?

Mrs. GRANT. I went to Los Angeles or Chicago—no other place than that.

Mr. BURLESON. And with those additions and corrections, this is correct; is that right?

Mrs. GRANT. Yes; I mean—I wouldn't call any other place my home.

Mr. BURLESON. All right, that's all.

Mr. HUBERT. Now——

Mrs. GRANT. You know, of course, that I went on the road and came back.

Mr. BURLESON. All right.

Mr. HUBERT. I have marked for identification a document which purports to be an interview on December 2, 1963, of you by FBI Agent Jack Peden, and for purposes of identification I have marked it as follows: “Dallas, Tex., May 28, 1964, Exhibit No. 3 of the deposition of Eva Grant,” and I have signed my name and ask you the same comments with respect to that document?

Mrs. GRANT (examining instrument referred to). It's going back so far—yes; this is correct, but there are a lot of things that happened, other things.

Mr. HUBERT. Yes; we understand that.

Mr. BURLESON. But this is correct as far as it goes, and as far as it states?

Mrs. GRANT. That's right.

Mr. BURLESON. There are other matters, but we won't go into those at this particular time—this is true and correct?

Mrs. GRANT. I mean, if you look at those States, and then look at those, you would think I was in both places at one time, but it wasn't like that.

Mr. BURLESON. All right, but this is true as far as it goes?

Mrs. GRANT. Yes; of course, there are some—who remembers everything—I had a little restaurant.

Mr. HUBERT. Now, we'll get to the next document, which is a report of an interview on December 31, 1963, between FBI Agent Gaston Thompson and yourself, which I have marked for identification, "Dallas, Tex., May 28, 1964, Exhibit No. 4, deposition of Eva Grant," and I have signed my name, and I ask you if that is correct and if there are any additions or omissions, and if so please state what you think is incorrect as to that document?

Mrs. Grant (read instrument referred to).

Mr. BURLESON. I will ask you about the first paragraph—is it correct?

Mrs. GRANT. Yes.

Mr. BURLESON. Now, getting to the second paragraph, I'll ask you if it is correct?

Mrs. GRANT. Well, that's what I told them because that's what I thought—they told me he wasn't dead.

Mr. BURLESON. Have you heard anything since then to the contrary?

Mrs. GRANT. I have not spoken to anybody—to anybody who knows where he is—whether he is dead, outside of what his name, Clements here told me they found him—he's alive.

Mr. BURLESON. Directing your attention to the sentence in the second paragraph that says, "Frank had a sister named Rose Solomon in Los Angeles," is that correct?

Mrs. GRANT. No; instead of sister, it should be aunt. He only had one sister and no other living relatives I would know.

Mr. BURLESON. Other than Rose Solomon, who is an aunt and not a sister?

Mrs. GRANT. It seems it was his mother's sister, and that was the closest family.

Mr. BURLESON. Other than one change there, as far as this statement is concerned, it is true and correct?

Mrs. GRANT. That is right—that's right.

Mr. BURLESON. Off the record.

(Discussion between Counsel Burleson and Hubert.)

Mr. HUBERT. Now, let's proceed along these lines. What I would like to know is something of the family background, Mrs. Grant.

Mrs. GRANT. I'm ashamed to tell you.

Mr. HUBERT. For instance, your mother's name?

Mrs. GRANT. Let me explain the situation, even with my family, my mother's father's name was Rutkowsky.

Mr. HUBERT. Let me handle it this way—if you will just answer my questions, then at the end of each one of these blocks of questions, your attorney will be able to clarify anything he wants to.

Mrs. GRANT. But this is something—there has been a mixup in the family. A lot of times my sister would say her name was——

Mr. HUBERT (interrupting). If you will just answer my question and then we will move on this way. What was your mother's name?

Mrs. GRANT. Fanny.

Mr. HUBERT. Do you remember what her last name was prior to her marriage?

Mrs. GRANT. That's what I'm trying to remember.

Mr. HUBERT. You said it was Rutkowsky, is that correct?

Mrs. GRANT. I think my mother's mother was married twice. Sometimes they used the name as Turek [spelling] T-u-r-e-k, but her father's name was Rutkowsky—he was a doctor of medicine in Zimbrola, Poland.

Mr. HUBERT. Did your mother have any brothers or sisters?

Mrs. GRANT. Yes.

Mr. HUBERT. Would you name them, please, if you remember?

Mrs. GRANT. One was Sarah—they are dead—do you still want the names?

Mr. HUBERT. Yes, ma'am—did she marry anyone?

Mrs. GRANT. Yes, I know the name real good—wait a minute— isn't that terrible—Moskowitz [spelling] M-o-s-k-o-w-i-t-z.

Mr. HUBERT. Did any of your mother's relatives——

Mrs. GRANT. There is another one.

Mr. HUBERT. All right, go ahead.

Mrs. GRANT. Her brother lived until a couple of years ago. His name was Harry Rutland, and after he arrived in this country, which is 65 years ago, I would say, or close to that time, he changed his name from Rutkowsky to Rutland, and he lived for 45 years in Denver, Colo., and he died in, let's say, the last 3 or 4 years, I don't remember.

Mr. HUBERT. Did the sister that you mentioned come to the United States?

Mrs. GRANT. Oh, yes, sir.

Mr. HUBERT. All three of the children?

Mrs. GRANT. At different times they arrived.

Mr. HUBERT. Came to the United States and settled in the United States; is that right?

Mrs. GRANT. Yes.

Mr. HUBERT. Was there any communication between your mother and her sisters and brothers after they came here?

Mrs. GRANT. Oh, yes.

Mr. HUBERT. They were your aunts, in fact?

Mrs. GRANT. Oh, we were very close when they were alive. Let me say there was a great family, but they were killed out in Europe.

Mr. HUBERT. All of these people are dead now and have been for some time?

Mrs. GRANT. Yes.

Mr. HUBERT. Now, turning to your father's side of the family, what was your father's name?

Mrs. GRANT. His name was Joseph Rubenstein.

Mr. HUBERT. Did he have any brothers and sisters?

Mrs. GRANT. Yes; he had a brother that came over 2 years later. His name was Abraham.

Mr. HUBERT. What happened to him?

Mrs. GRANT. He died 7 years ago or 6 years ago.

Mr. HUBERT. Did he live in the United States?

Mrs. GRANT. Yes; he did, in Chicago.

Mr. BURLESON. He had settled here too, then?

Mrs. GRANT. Yes, he did.

Mr. HUBERT. What was your father's employment?

Mrs. GRANT. He was a carpenter.

Mr. HUBERT. Did he work for anyone as a regular proposition?

Mrs. GRANT. Yes; he worked for the U.S. Government during World War I. Baltimore, Md.; he built barracks, he was a union member for 55 years.

Mr. HUBERT. Did he belong to any other clubs?

Mrs. GRANT. Yes—he came from a town called Sokovosolover, Poland.

Mr. HUBERT. Do you know how to spell that?

Mrs. GRANT. Oh, we could never get it right, it's a case of "Sokovosolover"—we could never get it right, but there is a town there by that name and he was born in that town. Let me explain this—his people, country people, came to this country. From that particular stay, they formed this club. It was called Verein, and it was a social meeting or group where all the people from this little town and families would get together and there are still some in existence, believe it or not, and probably in Chicago and I have a cousin, my father's nephew is still alive. His name is Abraham Rubenstein.

Mr. HUBERT. And this was a club formed in Chicago by the people of this village who all came to the United States?

Mrs. GRANT. Yes—that's right, they did come at different times.

Mr. HUBERT. It was a social and cultural get-together?

Mrs. GRANT. It was a social meeting club, where all the people from this little town and their families could get together and there are still some in existence believe it or not. And I have a cousin—my father's nephew is still alive. His name is Abraham Rubenstein by the way.

Mr. HUBERT. And this was a club formed in Chicago by the people of this village who all wanted to enter into the United States?

Mrs. GRANT. That's right—they had come at different times.

Mr. HUBERT. It was a social and a cultural proposition?

Mrs. GRANT. It was a get-together to know they are alive and they have bought a cemetery where you can in due time——

Mr. HUBERT. Did you attend any of the meetings?

Mrs. GRANT. Oh, yes.

Mr. HUBERT. Was there anything political about them?

Mrs. GRANT. No—I'm going to tell you.

Mr. HUBERT. Well, just tell me.

Mrs. GRANT. Honest to God, there wasn't—they drank and they danced.

Mr. HUBERT. But would you answer my question as to whether or not there was any political activity discussed—the answer is what—yes or no?

Mrs. GRANT. You may write to the man—Abraham Rubenstein, he is still alive.

Mr. HUBERT. I just want to know whether your impression and your attendance at the meetings of the club indicate to you whether this group at any time had any political implication whatsoever?

Mrs. GRANT. No, no; not that I would know of.

Mr. HUBERT. You never observed any? Of any kind?

Mrs. GRANT. Never.

Mr. HUBERT. Could you tell us something of Jack's youth and education and his childhood—you were older than he was and therefore, you are able to observe it, I would think.

Mrs. GRANT. I am 2 years older and how far back do you want to go—do you want me to go?

Mr. HUBERT. What kind of education did he have?

Mrs. GRANT. I think he went about a year and a half to high school.

Mr. HUBERT. Were your parents separated?

Mrs. GRANT. My parents were separated—yes.

Mr. HUBERT. When did they separate?

Mrs. GRANT. In the spring of 1921.

Mr. HUBERT. That was when Jack was about 10 years old?

Mrs. GRANT. Let's see, if he was born in 1911—yes.

Mr. HUBERT. Who did Jack and you live with—your father or your mother?

Mrs. GRANT. Well, I went to live—my mother has—these people don't live there any more, in Maywood, Ill., my mother's niece—the daughter of this Sarah Moskowitz, Bertha Miller, I went to live with her for a while. Then my father took an apartment, such as it was and I went to live with him for a while, and—you want to know?

Mr. HUBERT. What about Jack himself?

Mrs. GRANT. Now, this is something that there is a haziness about it—two of my brothers were put on a farm with some people. It seems to me—I don't know which two—went to Woodstock, Ill., and one went to a place called West Chicago or Chicago Heights and I have forgotten whether Jack was by himself and Earl and Sammy went to a place. Then later on it seemed to me Jack went to stay with a family, maybe a year later, called the Michelles—he admired them.

Mr. HUBERT. Well, is it fair to state that apparently the family broke up; is that correct?

Mrs. GRANT. Yes—well, my mother had a nervous breakdown. That was the first time, because of the dissension in the home because of my father's activities of drinking.

Mr. HUBERT. Is your father an alcoholic?

Mrs. GRANT. Well, he lived until 89—how can we prove it—you know, we never knew if he was drunk or sober, but he drank plenty.

Mr. HUBERT. When did he die?

Mrs. GRANT. I would say in 1958 or 1959. I have just forgotten now, I'll be honest about it.

Mr. HUBERT. Do you recall whether Jack himself was involved in some sort of juvenile court proceedings?

Mrs. GRANT. We all were. In the State of Illinois, when parents separated, I think there is such a thing as you are under the jurisdiction of the juvenile court, because I went to court several times. I don't think—I think I was probably 12 or 13 years old—I don't know. I remember going to a very famous court and I can't think of the judge's name.

Mr. HUBERT. Well, what I'm trying to get at is this——

Mrs. GRANT (interrupting). Not for being bad or anything.

Mr. HUBERT. That's exactly what I want to get at. In other words, these juvenile court proceedings resulted, you say, from the mere fact that you had a broken home and not from the fact——

Mrs. GRANT (interrupting). The Jewish Aid Society——

Mr. HUBERT. Just a minute, let me finish the question—this did not reflect that the juveniles involved, whether it was you or Jack——

Mrs. GRANT. Or anyone else.

Mr. HUBERT. Or anyone else had been in any trouble such as we call today—juvenile delinquency; is that correct?

Mrs. GRANT. That's right.

Mr. HUBERT. And your statement to me is that although you yourself have been in these proceedings——

Mrs. GRANT (interrupting). I have been in front of the judge.

Mr. HUBERT. It has not been because of juvenile delinquency; is that correct?

Mrs. GRANT. Well, there was a big——

Mr. HUBERT. Just answer my question, I think you can answer my question.

Mrs. GRANT. I have been there several times in front of a judge and my mother was there and the kids were there, and truthfully, it's all so vague I can't remember.

Mr. HUBERT. Do you remember that in his youth Jack was called by the nickname "Sparky"?

Mrs. GRANT. Oh, yes.

Mr. HUBERT. Could you tell us how he acquired that name?

Mrs. GRANT. Well, there was a horse called "Sparky" that was the slowest darn horse you ever saw and it was a joke, you know, in the funny papers, and they would rib him about him. Jack was short and fat and stocky. He wobbled when he walked, from the time I remember he was 5 years old, until the time he was 8, and it seemed shortly after that he acquired that name and that burned him up, and from then on he has become very fast with his fists and he started hitting fellows—well—the fellows who probably kept calling him "Sparky", let's say, but these were all little boys—8, 9, 11 or 10.

Mr. HUBERT. And that's how he got the name "Sparky"?

Mrs. GRANT. As much as I remember.

Mr. HUBERT. From two sources—from the horse named "Spark Plug" or the comic strip that had a horse named "Spark Plug" and from the fact that he, as a child, reacted quickly to taunts of his young friends?

Mrs. GRANT. Well, he changed, but the name stuck with him still.

Mr. HUBERT. Yes; I understand that, but we are just talking about how he acquired the name.

Mrs. GRANT. Yes.

Mr. HUBERT. How would you describe the neighborhood in which you were raised, generally, and the conditions under which you were generally raised?

Mrs. GRANT. Well, when you discuss people who come from the old country, that was the best neighborhood they could afford to live in. Two doors down were some very wealthy people—the Katzen family. My father was a carpenter and he worked—he tried to work all the time. There wasn't work always available, but it was considered a poor neighborhood, but I'll tell you—went with him four blocks away to look over other neighborhoods.

Mr. HUBERT. Well, as you recall it now, would you classify it as a good neighborhood, or a bad neighborhood, or what? Because, you see, we are trying to get some background information here.

Mrs. GRANT. Okay. We lived in a block where the houses have two-story buildings. In one block between the both sides I will say there was 150 children between the ages of 4 and 15, because these families have large groups and most of the families have 6 children or 8 and some of them had 12.

Mr. HUBERT. You are familiar with the modern term "a slum neighborhood," would you characterize it like that?

Mrs. GRANT. Not really a slum because those who had more money next door lived better, but there were worse neighborhoods. I don't know how much worse. I admit to you often we talked about it. I don't say the

middle class people lived there. It was below the middle class, but yet it wasn't the poorest class.

Mr. HUBERT. When did you marry, Mrs. Grant?

Mrs. GRANT. I married March 30, 1930, to Hyman Magid in Chicago.

Mr. HUBERT. And I think there was a child born of this marriage?

Mrs. GRANT. Oh, yes; that's Ronnie Magid.

Mr. HUBERT. Now, that child is what age?

Mrs. GRANT. He will be 33 next month.

Mr. HUBERT. And you were divorced from Mr. Magid?

Mrs. GRANT. Yes; I was.

Mr. HUBERT. What year?

Mrs. GRANT. I think it was 1934 in Chicago.

Mr. HUBERT. What was Mr. Magid's, your husband's, occupation?

Mrs. GRANT. Well, you really want to know—that's a catchy question. He went into business with his father and his father owned a meat market, but that was later on. He really took up—he was a college graduate and he did electrical work, but he never worked at it. He didn't adapt himself to it for some reason or other.

Mr. HUBERT. What did he do for a living, then?

Mrs. GRANT. As far as I know he was a butcher.

Mr. HUBERT. No; I mean at that time.

Mrs. GRANT. He went to school when I married him and after that he worked with his father.

Mr. HUBERT. In a butcher shop?

Mrs. GRANT. That's right, it was during the depression.

Mr. HUBERT. Where did you live during the time of your marriage?

Mrs. GRANT. I lived with my mother-in-law on Kolin Avenue.

Mr. HUBERT. In Chicago?

Mrs. GRANT. Yes.

Mr. HUBERT. Now, after your divorce, I think you went to the west coast, is that correct?

Mrs. GRANT. Jack went there first.

Mr. HUBERT. What year was that?

Mrs. GRANT. I think it was in 1934 in January, I mean, it seems to me it was that year.

Mr. HUBERT. You had been divorced?

Mrs. GRANT. That's when he went there. I didn't go there until later.

Mr. HUBERT. Jack went first?

Mrs. GRANT. Yes, he did.

Mr. HUBERT. And he must have been a man about 21 or 22 at that time?

Mrs. GRANT. It could be.

Mr. HUBERT. This was in 1934?

Mrs. GRANT. Don't hold me to 1934 or 1935. I'm so confused. I know it was either one of the years, and he went there right after the first of the year, and I followed 6 months later.

Mr. HUBERT. Do you know why he went there?

Mrs. GRANT. Yes, he went to work. There was no work in Chicago and there was boys out there that said there was jobs—that there was a lot of jobs available in San Francisco.

Mr. HUBERT. Did you live with him when you went out?

Mrs. GRANT. Oh, yes—yes, I did; we occupied an apartment.

Mr. HUBERT. It was you and Jack and your son?

Mrs. GRANT. My son—I put him in a private school and Jack helped me pay for him.

Mr. HUBERT. What was Jack's occupation on the west coast?

Mrs. GRANT. He got a newspaper crew—sometimes he worked for the Call Bulletin, which is a famous Hearst paper, the Examiner, and sometimes he gave us the crew and he worked for the—there was a news—it was called the San Francisco News and sometimes we worked for the Chronicle. You see, there is a system——

Mr. HUBERT. Well, when you say you worked for them, in what capacity?

Mrs. GRANT. We solicited for subscriptions door to door. It was during the height of the depression.

Mr. HUBERT. This was sort of a door-to-door operation that you and he had, was it?

Mrs. GRANT. Well, he was a better salesman. He was always guiding me, you know, let me put it this way—there was good money in it considering the times, because they were paying 90 cents an order and we would go out and get 8 or 10 or 15 orders a day, which you couldn't get in any other job, and our obligations were great. My son's expenses were \$65 a month and my brother helped support half of the fellows that didn't work—who wouldn't do this.

Mr. HUBERT. When you say your "brother" you mean Jack?

Mrs. GRANT. I mean Jack—Jack was the only one out there.

Mr. HUBERT. When did you leave California?

Mrs. GRANT. Well, I married Frank Grant in San Francisco in 1936, and I think we stayed around another year or a year and a half.

Mr. HUBERT. But did you still reside with Jack then after you married?

Mrs. GRANT. For a while he did—yes, he did.

Mr. HUBERT. He lived with you?

Mrs. GRANT. We had a four-room apartment and my son was home then with us.

Mr. HUBERT. Did Jack have any other occupations during the time you were on the west coast other than that which you have described?

Mrs. GRANT. I don't remember out there anything but for the newspapers, you know, and first he came to Los Angeles and he nearly starved to death. He became a singing waiter and someone told him—well, he said he was on his way to San Francisco but I think he didn't have enough money or gas to get there—to San Francisco.

Mr. HUBERT. Were you subsequently divorced from Frank Grant?

Mrs. GRANT. Now—I'm divorced many years.

Mr. HUBERT. Yes, ma'am; that's what I wanted to get. When were you divorced?

Mrs. GRANT. I think I filed in 1941.

Mr. HUBERT. But you left the west coast about what—1937?

Mrs. GRANT. No, I didn't. I went down to Los Angeles with Frank Grant and I lived there. I may have went home on a trip to Chicago, which I did very often.

Mr. HUBERT. When did you leave the west coast permanently?

Mrs. GRANT. I think it was after the war broke out.

Mr. HUBERT. When did Jack leave the west coast?

Mrs. GRANT. He already left.

Mr. HUBERT. About what year, do you remember?

Mrs. GRANT. He may have left before 1940, but you see, he came back so many times and he and a fellow by the name of Harry Epstein started to sell premium items—a cedar chest with candy, if I remember, and they developed a company—I think it was called the Spartan Co.—the Spartan Novelty Co.

Mr. HUBERT. That was Jack and this fellow Epstein?

Mrs. GRANT. Harry Epstein—that's as well as I remember.

Mr. HUBERT. Do you remember any of these other friends?

Mrs. GRANT. Who do you want me to remember?

Mr. HUBERT. I don't know—you see—you must tell me.

Mrs. GRANT. Oh, you asked me—listen, I know all the fellows we knew in Chicago and went to school with and grew up with.

Mr. HUBERT. Well, perhaps you could name some of them that you remember.

Mrs. GRANT. Well, you see, there is a difference of friends and acquaintances. There are people, you knew, that we just knew they existed.

Mr. HUBERT. Well, I think what we want to know is the friends, of course, a lot of people you know, but those you would classify as being friends.

Mrs. GRANT. Well, he was an admirer of Barney Ross that was a good friend all through the years and Barney fought on the west coast. They were very close. Let's see—while we were on the west coast we were very friendly with Izzy Kaplan, with Frankie Goldstein—you see, these people all worked in the newspaper—they were all working fellows at that time.

Mr. HUBERT. Were they from Chicago originally?

Mrs. GRANT. No; we met them out on the west coast soliciting for newspapers. In Chicago I could name hundreds of fellows—I don't know—Al Kamin, do you know him—is he down on the list? He owned the Marlene Sales Co. at one time and I think that at one time—now, let me tell you the story about him. He and Jack were selling premiums and they went and made a plaque. They invested every dime they could get from my family, which was \$1,500—my sister Marion and Earl—and this plaque, now, I don't know if it was in that year or when it was done, but it was President Roosevelt's head and they figured for an inducement to give away, that was a giveaway item. It was worth about \$1 retail, whoever wanted it, but they were selling merchandise and Al Kamin had a place at 5 North Wabash or 5 South Wabash in Chicago. I don't know—I was not there at the time, but I do know this plaque thing existed and I know another thing that they went into. You know, there were eight children and anyone who had a buck in the family, they went into a deal where they made something about this size [indicating], and it told about Pearl Harbor. I don't know if you remember seeing that plaque. They sold quite a bit of them, but to them it was a giveaway. They sold quite a bit of merchandise—to induce these purchasers, they would give them 10 or 15 of them. It was

like a certificate that the people shouldn't forget Pearl Harbor. Now, that could have been—he wasn't in the war yet, where Earl and Sammy was already in. He went in, I think, the last one. I may be wrong. I have forgotten—I'll be honest about it, but they were merchandising and this man and he were in business.

Mr. HUBERT. Well, then did you move from the west coast back to Chicago prior to Pearl Harbor; you did, did you not?

Mrs. GRANT. I was on the west coast—he was gone. He was in Chicago and I think he was with Harry Epstein, I'm sure, in 1940 and in 1941 when the war broke out. Now, he has been back to California. Other members of the family came to visit my son and myself in 1940 and 1941, but he was already, I think, established with Harry Epstein. Harry would know something more about this than I do—I don't remember, but I know they were selling merchandise.

Mr. HUBERT. Do you know of any acquaintance or friends that Jack had who had been convicted of crimes?

Mrs. GRANT. Name them—I'll admit to it if I know—yes—let me say this, we knew undesirable characters that grew up in our neighborhood.

Mr. HUBERT. You remember some of their names?

Mrs. GRANT. Yes.

Mr. HUBERT. Would you state them, please?

Mrs. GRANT. I don't want it to be in the public library. These fellows are such nice fellows today, I heard. You know, if these things get out, they think we are degrading them. We were raised with a lot of people that become undesirables. They were people that lived in our neighborhood. Some went to school with us. I know of a fellow getting killed—he said his name was English—he was a bad character as far as we knew. He was 16 years old and I think they killed him on a swing somewhere in the area. We knew the family where they had three boys and I understand—I'm going to tell you about this family, because I told the Secret Service, Elmer Moore. His name was Lenny Patrick. Let me explain—we knew he existed. We never associated with him in our home or in our business or anything.

Mr. HUBERT. That's what I wanted to ask you. You see, I have asked you if these people were your friends or not.

Mrs. GRANT. No; but they are people we know. We know their family—we see them, “How's your mother, how's your sister?”

Mr. HUBERT. But there was no close relationship between Jack and people with criminal records, is that right? Is that a fair statement?

Mrs. GRANT. If he knew any—maybe—I don't know whoever went to jail—all of them.

Mr. HUBERT. No; I'm asking you what you know about it. Let me put it this way: Do you know of any people who were friendly with Jack, not merely knew him, but who were friendly with Jack, who you knew and he knew had a criminal record?

Mrs. GRANT. Well, I wouldn't say he was unfriendly with them.

Mr. HUBERT. I didn't ask you that—I'm asking you—was he friendly with any of them?

Mrs. GRANT. Well, he wasn't associated socially or in business, yet you saw them—they were around. If you went to a nightclub or if you went to a bazaar.

Mr. HUBERT. No; I mean did they come to the home?

Mrs. GRANT. No.

Mr. HUBERT. Did they come and visit you and such as that?

Mrs. GRANT. No.

Mr. BURLESON. May I inject something in there—Jack didn't visit in their home and they didn't visit in yours and you didn't have anything to do with them; is that correct?

Mrs. GRANT. Even their sisters or brothers who were nice, we didn't have anything to do with them, yet we knew they turned out to be some pretty rough characters and I'm not going to deny that—Sam Yeres and Dave Yeres—let me say this, I knew of more than he knew.

Mr. HUBERT. Do you know of any contacts that he may have retained with any of these people after he left the Chicago area?

Mrs. GRANT. We saw them—and we encountered them—we talked.

Mr. HUBERT. Did they come to Dallas?

Mrs. GRANT. Oh, no—nobody I know. I know one did—wait a minute—Sam Yeres did.

Mr. HUBERT. When did he come to Dallas?

Mrs. GRANT. I don't know—many years ago, but he is since dead and his brother is in Chicago.

Mr. HUBERT. Let's take the last 8 or 9 or 10 years.

Mrs. GRANT. He may have died 10 years ago, for all I know.

Mr. HUBERT. Do you know of any people of the nature or character which you have described whom Jack may have known in the Chicago district whom he contacted or who contacted him in the past 10 years—to your knowledge—if you don't know, you don't know.

Mrs. GRANT. If they have, I didn't know they were here, but I doubt if he would be friendly with them.

Mr. HUBERT. The answer is that you really don't know?

Mrs. GRANT. I really don't.

Mr. HUBERT. Do you want to ask anything about this segment?

Mr. BURLESON. Yes, please.

Mrs. Grant, your father only had one brother, is that correct?

Mrs. GRANT. He had a lot of brothers—they died in the old country. The only brother that came here as far as I knew was that one.

Mr. BURLESON. Was the one you told us about?

Mrs. GRANT. Yes.

Mr. BURLESON. Now, the juvenile court contacts that you and your brothers and sisters had were all a result of a broken home and not as a result of any type of misbehavior?

Mrs. GRANT. There has never been any criminal action in my family as much as I know.

Mr. BURLESON. Now, as to Jack's recent last 10 years, you know of no contacts he has had either in person or by telephone——

Mrs. GRANT. I want to correct that.

Mr. BURLESON. With any person of an undesirable or criminal element?

Mrs. GRANT. Well, the way you look at it—now, the AGVA is a highly recognized organization in the world—it is the Actor's Guild and Jack had a lot of trouble here with certain other nightclub owners. We had known that a certain individual has upped himself up from racketeering to this particular organization.

Mr. BURLESON. Who is that individual, do you know that individual's name?

Mrs. GRANT. Now, as I know him, he used to be a cocktail lounge owner and he is in that slip. His name is Jack Yanover. We know his parents—I've known the man 40 years. He's a man 65 years old.

Mr. BURLESON. He had some type of criminal element?

Mrs. GRANT. Let me tell you—to get into these union deals and everything, Jack—by the way you know Jack was a union organizer and became an officer, but the man he was connected with was a highly reputable lawyer. That's why they killed him—Leon Cook. Jack himself never had any connections with gangsters for money, for business, for sociability. On the other hand, when we saw them we acknowledged them. When my father died——

Mr. BURLESON. Now, let me bring you up to the last 10 years—do you know of any telephone contacts Jack has had?

Mrs. GRANT. Yes.

Mr. BURLESON. With whom?

Mrs. GRANT. Here—I'm going to tell you—in the last year he has had so much aggravation in the club, that he called this Lenny Patrick. That was the last resort. He figured he might know somebody—this guy is not a holy man by far.

Mr. BURLESON. Lenny Patrick is not a holy man?

Mrs. GRANT. No: he's not by far. He's a gambler.

Mr. BURLESON. Jack called him for what purpose?

Mrs. GRANT. He called him for the purpose to see if he could fix him up with the union, so he could have amateur night the same as the other two fellows here.

Mr. BURLESON. It's something to do with unions?

Mrs. GRANT. That's right.

Mr. BURLESON. Now, let me ask you this—what about this friend of Jack's—this Willie, do you know this man; what do you know about him?

Mrs. GRANT. Willie—he is considered——

Mr. HUBERT. How is it spelled?

Mrs. GRANT. [Spelling] M-c-W-i-l-l-i-e.

Mr. HUBERT. Oh, that's Louis McWillie, is that who you mean?

Mrs. GRANT. I met him 8 or 9 years ago in the restaurant with Jack, and Jack told me that night or the next night that, "He's a gambler," in fact, I think he was the main guy at the high class club here, Cipango's, he ran games over there at that club and it is highly recognized, and the town sort of overlooks him and they admire him—truthfully, if you met this man, you would think he is a doctor or a lawyer.

Mr. BURLESON. Jack has had some contact with him?

Mrs. GRANT. Yes; not in business. He was a nice fellow. I don't know how well Jack knew him—I do know this man was getting a divorce. He was married to a much older lady and he went to Jack—he wanted Jack to talk to this lady to be sure she files a divorce, something to that effect, because I went with him to her home. He wasn't there.

Mr. BURLESON. Jack also had contact by going on vacations with him, for instance?

Mrs. GRANT. Well; wait a minute. Jack was broke, as you know. That's another thing, and he was so disgusted and so blue and it seemed it was the year my father was very ill, I think it was 1958, and that McWillie sent him a ticket to come to Havana, Cuba, and my sister was there—not the same

time, but the same year, but there was no commotion with Havana, Cuba, then, and McWillie—the airlines has proved that this ticket was bought by this McWillie—that's as much as I know.

Mr. BURLESON. He went down there and was it for some type of business that they had talked about?

Mrs. GRANT. I'll tell you—I understand—now, this was told to me recently and I don't even know if it's so.

Mr. BURLESON. It wasn't told to you by Jack?

Mrs. GRANT. I don't even know who told me—it's something about jeeps and I don't know if I'm dreaming it or thinking it. McWillie was a gambler and they are running a game in the big casinos where all the bigwigs out of Miami come over for a couple of nights, and that was as much as I knew about it because I have never been to Florida or to that part of Florida.

Mr. BURLESON. Now, as far as you know, Jack and McWillie never had any business relationship, McWillie was just helping Jack out on a vacation?

Mrs. GRANT. Well, Jack was depressed and sick mentally then and we didn't realize it.

Mr. BURLESON. Is that about the time he locked himself up?

Mrs. GRANT. No; he locked himself up before that.

Mr. BURLESON. Do you think of any other person or any other incident or anything else that you know concerning Jack and having any connection in the last 10 years with any one of the so-called criminal element?

Mrs. GRANT. Now, I know he went to New York to talk to a guy by the name of Glazer, but he is considered the wealthiest booking agent, and from what I heard years ago, this guy probably could have been in rackets—I don't know, but he is with the AGVA. I can't explain this—some of these boys have worked themselves up to——

Mr. BURLESON. So that the only contacts that you do know about were through AGVA, or what you have already told us?

Mrs. GRANT. There was nothing—I know when Lenny—he said something about “Maybe he knows somebody in the AGVA.”

Mr. BURLESON. Who could help them in the trouble he was having?

Mrs. GRANT. That’s right. He also called—there was a fellow in Chicago by the name of—I have noticed all their names.

Mr. BURLESON. But this is all you can think about?

Mrs. GRANT. But if they have got names, I will answer it.

Mr. BURLESON. All right, we will get to that.

Mrs. GRANT. I am not trying to get out of it.

Mr. BURLESON. This is all you can think of now?

Mrs. GRANT. Let me explain something before you even—and since this is going in this record—I knew more racketeers than he did. My girl friends lived in classy buildings and there were fellows that worked, they were gambling men. They ran districts in Chicago and when I was 16 or 18, this was the prohibition. We hear all of this stuff and we were intrigued by it, but we didn’t know who these people were, but I knew they existed, and truthfully, all in 1 year—in the early forties they were, as you say, bumped off, but he didn’t know them, and please believe me I am very truthful and very honest.

Mr. HUBERT. Let’s go off the record now and recess until this evening.

(Discussion between counsel off the record.)

Mr. HUBERT. We will recess until 7:30 this evening.

(Whereupon, the proceeding was recessed.)

TESTIMONY OF MRS. EVA GRANT RESUMED

The proceeding was reconvened at 7:30 p.m.

Mr. HUBERT. Now, I understand that you returned to Chicago to live some time prior to the war, is that correct?

Mrs. GRANT. Let's see—every year I went home—I may have stayed a month, 3 months or 4 months.

Mr. HUBERT. No; I mean on a permanent basis.

Mrs. GRANT. I was never there permanent after I married Frank Grant. I mean, if I was there—the longest time I was there is the year my father was sick before he died.

Mr. HUBERT. All right; let me put it this way—I am going to ask you if you know some names of people and if you don't know them, all right, but if you do know them, tell us what you know about them. For instance, Frank Howard and Jack Howard—do you know those people?

Mrs. GRANT. No; I don't, sir.

Mr. HUBERT. And a man by the name of Erwin Berke [spelling] B-e-r-k-e. Do you know him?

Mrs. GRANT. Never—just doesn't ring a bell, I never have heard the name.

Mr. HUBERT. Do you know a man by the name of Sam Jaffe [spelling] J-a-f-f-e?

Mrs. GRANT. No, sir.

Mr. HUBERT. Do you know a man by the name of Sam Chavin [spelling] C-h-a-v-i-n?

Mrs. GRANT. No, sir.

Mr. HUBERT. Perhaps you knew his wife, Charlotte Chavin, who is the daughter of Sam Jaffe, did you ever see her?

Mrs. GRANT. Where are they from; do you have an idea?

Mr. HUBERT. They were from Chicago, ma'am, and they subsequently moved to Muncie, Ind.

Mrs. GRANT. I never heard of them—I never heard of them.

Mr. HUBERT. You never heard of them?

Mrs. GRANT. No, sir.

Mr. HUBERT. Did you ever know of any connection that Jack might have had with those people?

Mrs. GRANT. It wasn't a close connection. We knew some Jaffes—I mean, as kids—they were in the undertaking business, but I haven't heard of them in years.

Mr. HUBERT. Did you know a daughter of Sam Jaffe whose name was Charlotte and she married Sam Chavin?

Mrs. GRANT. No, sir; I can't recall.

Mr. HUBERT. Then there was another daughter who married Erwin Berke.

Mrs. GRANT. What was her first name? Can I ask you a question—how far back does the names go?

Mr. HUBERT. This would have been around the period of the war—1942 to 1946.

Mrs. GRANT. I wasn't around Chicago that much in those years—you see—I was here and on the west coast.

Mr. HUBERT. In any case, these names don't ring a bell?

Mrs. GRANT. No, sir; I can't place them at all unless they are mispronounced or misspelled, but Jaffes—I did know.

Mr. HUBERT. Did you know any Jaffes who moved from Chicago to Muncie, Ind.?

Mrs. GRANT. No; no.

Mr. HUBERT. The Jaffes you did know were in an earlier period; is that right?

Mrs. GRANT. That's right.

Mr. HUBERT. And as far as you know, they didn't move to Muncie, Ind.?

Mrs. GRANT. In the last 25 years—I can't place the name close to Jack or me.

Mr. HUBERT. What about Paul Labriola [spelling] L-a-b-r-i-o-l-a?

Mrs. GRANT. No.

Mr. HUBERT. What about Hershey Colvin?

Mrs. GRANT. I never heard those names.

Mr. HUBERT. Jimmy Weinberg?

Mrs. GRANT. We are—my mother had a niece that was married to a Weinberg, but there is not one name like that in the family—no Jimmies.

Mr. HUBERT. Now, you did, of course, move ultimately to Dallas, which has been your home, I take it, for some period?

Mrs. GRANT. On and off for over 20 years—22 years.

Mr. HUBERT. When did you first come to Dallas?

Mrs. GRANT. I think it was in 1942 or 1943, I was here for a little while.

Mr. HUBERT. For how long?

Mrs. GRANT. For a few months at least it seems.

Mr. HUBERT. What was the purpose of coming here to Dallas; do you remember?

Mrs. GRANT. Oh, I came to look—Al Kamin owned the Marlene Sales and he had costume jewelry and he wanted me to sell it, you know, in little stores and I took a sample and I didn't sell it. I had several samples and I went to work selling magazines for a company, it seems, out of Los Angeles—I don't know what year it was.

Mr. HUBERT. This was in Dallas?

Mr. GRANT. Oh, yes; but I mean this particular agency handles all magazines.

Mr. HUBERT. How long did you stay in Dallas during that period?

Mrs. GRANT. It seems a couple of months—I don't know—then, I went home. You see, I think it was during the summer—I left my son there in the summer—I just can't remember—honest to God.

Mr. HUBERT. Weren't you in some sort of an export-import business?

Mrs. GRANT. Oh, yes; but that was later—I think it was in 1944, 1945, 1946, and 1947.

Mr. HUBERT. Now, you were living in Dallas on a rather permanent basis during those years?

Mrs. GRANT. After that—yes.

Mr. HUBERT. So, I gather from your testimony you would fix a time of your permanent domicile or residence in Dallas as about 1944?

Mrs. GRANT. It seems to me I stayed more here—then. I was here—I would think 3 or 4 years. Even if I went to Chicago I didn't stay long.

Mr. HUBERT. I understand, but your home in the normal sense of the word would have been Dallas after 1944?

Mrs. GRANT. I would say from that time on I was just here until 1948, constantly, well, I mean outside of every year—leaving for a few weeks.

Mr. HUBERT. Well, now—what was the export-import business?

Mrs. GRANT. We really didn't do any exporting. That was the name of the Berger-Grant Sales Co. Milton Berger was with me—he has since died. We bought and sold caustic soda, soda ash, and my brother Jack made a connection for me to sell irons—regular household irons and lamps and merchandise, but he knew a factory in Chicago and they sent me merchandise and Milton went on the road and through seven or eight States in the South and I handled the business end of it—that was caustic soda, soda ash, and we had a few accounts—the best account I remember is the Rivera people—the Rivera family. They bought soda ash and caustic soda from us.

Mr. HUBERT. Who were they?

Mrs. GRANT. Well, Jerry Rivera, his home is in Piedras Negras—they are still there.

Mr. HUBERT. In what State—in what country?

Mrs. GRANT. Isn't that right over the border in Mexico?

Mr. HUBERT. I don't know—Piedras Negras—is that it?

Mrs. GRANT. Yes.

Mr. HUBERT. It's in Mexico?

Mrs. GRANT. Yes; but he lived in San Antonio a great deal and in Houston he had an office.

Mr. HUBERT. Is he alive?

Mrs. GRANT. Oh, yes.

Mr. HUBERT. When was the last contact with him?

Mrs. GRANT. I think I saw him about 4 years ago—maybe 5.

Mr. HUBERT. And what connection, do you recall?

Mrs. GRANT. Oh, he came through—he was at one of the motels and he called my brother and I went out and had dinner with him.

Mr. HUBERT. He called Jack, you mean?

Mrs. GRANT. Yes—now, there are several brothers in the family, and I even met his parents the previous year.

Mr. HUBERT. Do you recall any connection with that Rivera family or any member of it in the last 4 or 5 years?

Mrs. GRANT. No; but I do know I met his mother and father. They came to Chicago in one of the summers—like in the middle fifties when I was up there. They had called our home in Chicago and his parents were staying at the Palmer House.

Mr. HUBERT. Do you know of any connection whatsoever between your brother, Jack Ruby, and any member of the Rivera family in the last 4 or 5 years?

Mrs. GRANT. I don't think he had any business with them.

Mr. HUBERT. Or any connection otherwise?

Mrs. GRANT. He only knew them through me.

Mr. HUBERT. Do you know of any connection in any way—business, social, or otherwise, in the last 5 years?

Mrs. GRANT. Nothing—nothing. I am here now exactly a little over 4 years and I have not left this city for 4 years, outside of going to Hot Springs once for 3 days.

Mr. HUBERT. Do you know a man by the name of Paul Roland Jones?

Mrs. GRANT. Oh, yes.

Mr. HUBERT. Would you tell us what you know about him?

Mrs. GRANT. I was going with a fellow by the name of Dr. Weldon Duncan. This fellow was here in town, at least he was 2 weeks ago—now—he is a chiropractor and he knew this Roland Jones and Roland told me—that's it. He told me he was in the export business, not in the export business exactly, wait a minute—brokerage business—of eggs.

Mr. HUBERT. When did you meet Paul Roland Jones first?

Mrs. GRANT. When I knew him well was before you see, we didn't have enough money to open the club. Jack was still in the service and Jack says he will sell his interest in the Earl Products—he was in business with the other brothers, do you have it there?

Mr. HUBERT. Yes.

Mrs. GRANT. OK—well, Jack says when he gets out of this he will send me some money and that could have been the fall or summer of 1947. That seems to be it.

Mr. HUBERT. Tell me how you got to meet him?

Mrs. GRANT. Well, Dr. Duncan brought him over.

Mr. HUBERT. As a friend or in what way?

Mrs. GRANT. They came to the club—I mean—just came to that club.

Mr. HUBERT. Which club was that?

Mrs. GRANT. It was called the Singapore Supper Club at 1717 South Ervay.

Mr. HUBERT. You were running that club?

Mrs. GRANT. No; the club was not open—we didn't have chairs or tables.

Mr. HUBERT. All right, they came to this place then that was called the Singapore Club that was not yet open?

Mrs. GRANT. And I used the office of the club for my other merchandise business. In fact, the club was full with lamps and all other kinds of things.

Mr. HUBERT. And this doctor introduced you to Roland Paul Jones?

Mrs. GRANT. Yes.

Mr. HUBERT. Did you ever have any further connections with Roland Paul Jones?

Mrs. GRANT. Yes.

Mr. HUBERT. Tell us about that, please?

Mrs. GRANT. We were buying metals, at least we were trying to buy metals and materials to sell to—in fact, gas companies—one is—I have the files, believe me, and I think it's at Jonesboro—is it in Arkansas or Oklahoma? Well, we got the specifications and Paul Roland Jones brought me a piece of metal, maybe 6 inches long—it's a certain type of pipe, rather, he brought me, and this man didn't want it, so I sent it on to Chicago to my brother.

Mr. HUBERT. Which brother?

Mrs. GRANT. It seems to me I sent it to my older brother, Hyman, and he says he knew somebody that might be able to use the amount of footage we had at this place, and we were going to make what you call a finder's fee or broker's fee, but little did we know of Paul Roland Jones' connection, because I'm going to tell you. This man told me several things—"I'm not fit to be in the night club business, I'm not the caliber of a person."

Mr. HUBERT. Who was that—Jones told you that?

Mrs. GRANT. Yes; and he seemed to be a very nice fellow and he used my phone for a long distance call to Ardmore, Okla., and I know he paid me \$2 or \$3 in change when he did it, and I didn't know a thing about this.

Mr. HUBERT. About what, ma'am?

Mrs. GRANT. Well, wait a minute, I pick up the headlines and they got Paul Roland Jones in jail somewhere—in Fort Worth. I no sooner picked this up—this paper, the paper of this city, my brother is calling me from Chicago that the FBI or some organization, one of your organizations went to the Congress Hotel where Jack was staying and they are questioning him about whether—about what he knew about Paul Roland Jones. I don't think Jack ever heard me mention the name.

Mr. HUBERT. How long had you known Paul Roland Jones when this occurred?

Mrs. GRANT. Not too many months—if it was 6 months or 8 months—it was the longest.

Mr. HUBERT. Had you done any business with him?

Mrs. GRANT. No—never.

Mr. HUBERT. It was simply through meeting at the club?

Mrs. GRANT. Well, this doctor brought him in one afternoon. He knew him because he went to him for treatment.

Mr. HUBERT. Well, that's the first meeting, but thereafter, what was the basis of the meeting?

Mrs. GRANT. Nothing. I mean, he came in, and I went to dinner with him and the doctor once, and we went for a ride, but I'll tell you, the doctor and I didn't know anything about his background.

Mr. HUBERT. He was ultimately charged, was he not, with the possession of narcotics?

Mrs. GRANT. Oh, yes; in fact, we read the story that night. We were shocked. We knew he took trips, we knew he was married to a dancer in New York, but this all came out—wait a minute, his wife came from New York that summer.

Mr. HUBERT. Now, we'll get into that later. Did Jack know Paul Roland Jones at that time?

Mrs. GRANT. If he did—no; I doubt if he ever even heard of him.

Mr. HUBERT. Jack had not come down here yet?

Mrs. GRANT. If he was, he didn't stay long.

Mr. HUBERT. But to your recollection he didn't know Jones at all?

Mrs. GRANT. I don't think he has ever seen him—well, wait a minute, he may have seen the man or heard about him.

Mr. HUBERT. I understand that, but at the time of this episode that you are telling us about?

Mrs. GRANT. I don't think he ever saw him as far as I know, but I want to tell you that Roland Jones went to Chicago during the period of those 6 months and he did meet my brother Hyman. I don't know what conversation my brother had—my brother thought he was a nice guy—we didn't know anything about his background.

Mr. HUBERT. Do you know what happened to him?

Mrs. GRANT. Oh, yes; he went to jail for something about narcotics from Turkey or something like that.

Mr. HUBERT. Did he have any other charges later against him? Do you know?

Mrs. GRANT. Do you want to know something—I went into a hotel here, and let me think, either the Whitmore or the Southland since he has been out, or when he got out, and this friend of mine said, “Guess who got out of jail?” He said “Paul Roland Jones,” and I said, “That's nice.”

Mr. HUBERT. How long ago was that?

Mrs. GRANT. This must be 7 years or 8 years—it seems like a long time ago.

Mr. HUBERT. Have you seen him since?

Mrs. GRANT. Yes; he was here 2 years ago, I think. He came through and he stopped by the Vegas Club one night. Oh, he says, he got in a cab and he was coming through—he probably was here other times but he didn't want anybody to know—he said he was coming through changing planes and he says he's sure going to be picked up and he says to say hello to Jack.

Mr. HUBERT. When was that?

Mrs. GRANT. Maybe a year and a half or 2 years ago.

Mr. HUBERT. Did you see him in November 1963?

Mrs. GRANT. Oh, no.

Mr. HUBERT. Did you talk to him on the phone?

Mrs. GRANT. No.

Mr. HUBERT. Did you know he was in Dallas?

Mrs Grant. No.

Mr. HUBERT. Is there anything you know that would indicate that your brother, Jack, knew he was in Dallas?

Mrs. GRANT. I don't know.

Mr. HUBERT. In November 1963?

Mrs. GRANT. I don't know. I'll tell you how I figure this out, if I can go see my contract—you see, my band leader was making a record, you know, a record of music.

Mr. HUBERT. But so far as your recollection is concerned, it would be over a year from today?

Mrs. GRANT. Easy—easy.

Mr. HUBERT. And by “contact with him,” of course, I mean—you know—telephone, letters, messages?

Mrs. GRANT. No; he came in—he told me that he knows people at Mercury Records and that if I send in the song he was going to make it, and truthfully, I was glad when he came in, when he left, for more reasons than one. We don't discuss his background or anything.

Mr. HUBERT. Now, that's over a year ago—certainly.

Mrs. GRANT. It has been so long—I say a year and a half—the airlines would know quicker than I know because he said he just flew in and he was just there for the evening and going back out, at least that's what he told me. I don't discuss his background or anything like that—at least, that's what he told me.

Mr. HUBERT. Do you know a man by the name of Taylor Crossley?

Mrs. GRANT. What is the first name?

Mr. HUBERT. Taylor [spelling] T-a-y-l-o-r.

Mrs. GRANT. I know a lot of Taylors here but that is the last name.

Mr. HUBERT. No; Crossley. John Melton, and Morris Melton [spelling] M-e-l-t-o-n?

Mrs. GRANT. No, sir.

Mr. HUBERT. Now, do you know a person by the name of Elsie Johnson?

Mrs. GRANT. Oh, yes.

Mr. HUBERT. How do you know her?

Mrs. GRANT. Well, 8 or 9 years ago she was in the building business with my brother, Sam. Before that—she was a commercial artist.

Mr. HUBERT. How did you meet her—when did you meet her?

Mrs. GRANT. When I first came here, and honest to God, this is one person I can't tell you even how I met her.

Mr. HUBERT. When you first came here—when do you mean?

Mrs. GRANT. I would say 20 years ago.

Mr. HUBERT. 1944—probably?

Mrs. GRANT. Yes; and let me tell you, she knew a girl, Bobby, whether I met Bobby first—she's a little girl that worked as a cashier at one of the theatres and was it that she introduced me to Bobby—I knew her very well and her sister and her mother and her brothers, and she became a preacher. She ordained herself.

Mr. HUBERT. Is she a friend of yours?

Mrs. GRANT. Well, I don't know if she is an enemy—I just don't know—it has been years since I have seen her. I spoke to her on the phone. It seemed to me she called me November 24, that afternoon, or her sister did.

Mr. HUBERT. Who is her sister?

Mrs. GRANT. Mary Sue Brown, and I think she worked at Green's Department Store.

Mr. HUBERT. And you knew Mary Sue Brown also?

Mrs. GRANT. Oh, yes; I knew the family. I used to go out there like maybe once a year—Elsie had a car and she would drive me to her mother's home, which is Mrs. Barnes.

Mr. HUBERT. Do they still live in the Dallas area?

Mrs. GRANT. I'm sure they do—I probably have their phone number.

Mr. HUBERT. And your thought is that the last time you heard from them was that there was a call from Elsie?

Mrs. GRANT. How sorry she was about my brother—it was on November the 24th.

Mr. HUBERT. That was the last contact you had with her?

Mrs. GRANT. No; I saw Mary, let's see, I saw Mary Sue—I went to one of the stores—I think it was H. L. Green's and she was waiting on the people, I mean, she was a saleswoman in the store.

Mr. HUBERT. And that's since?

Mrs. GRANT. I haven't seen Mary Sue for maybe a year and a half previously or Elsie, maybe, I don't think I have seen Elsie since I am back this time—3 or 4 years—I can't remember.

Mr. HUBERT. Was there any difficulty between you and Elsie concerning some ring?

Mrs. GRANT. No; the other sister.

Mr. HUBERT. Mary Sue Brown?

Mrs. GRANT. Mary Sue Brown.

Mr. HUBERT. What about that?

Mrs. GRANT. Well, she used to come over and stay overnight and I have this diamond ring yet, and it had a little stone in there my mother had given me. There were many stones—from two marriage rings, and a fellow gave me a little stone and my mother's little—you know, a little diamond—little diamonds. I went to take a bath and I had my money in this purse and it's a terrible thing—very terrible—it kills me to this day even thinking about it—she was going to stay another day, and I knew how much money I had on me the day before and I bought a little dress and some things I bought. I took her to dinner and stuff like that. She managed to wiggle out of not staying any more. She was very nervous, and that night I get to the club and I put my ring out and you could see the prongs were bent back—the stone was missing, the center stone, which was about, a third of a carat. I called some friends of mine——

Mr. HUBERT. How long ago was that?

Mrs. GRANT. I think it's a year and a half—maybe 2 years.

Mr. HUBERT. All right, go on.

Mrs. GRANT. I just don't remember. Anyway, I called—the vice squad came in very often to the club and I was really very friendly with a fellow by the name of Mike, and I don't remember who he had with him, and they took the ring to the laboratory—they proved that someone had—I can't explain it—they said——

Mr. HUBERT. They said that they had taken the stone out by force?

Mrs. GRANT. Yes; something like that. Anyway, the thing is, any other thing I wouldn't have cared about, but that stone, my mother gave me and she swore she didn't do anything about it, but I'll tell you, there was some money missing out of my purse and I never felt right about it, and her nervousness in getting out of the apartment and all.

Mr. HUBERT. You made no charges?

Mrs. GRANT. No; I just wished the whole thing hadn't happened, but I told her I wanted the stone back. I didn't care about the money—I just was sick.

Mr. HUBERT. Had you during the war done any kind of trading in sugar stamps?

Mrs. GRANT. No; no.

Mr. HUBERT. That's not true?

Mrs. GRANT. No; I never had any extra stamps outside of what my family had.

Mr. HUBERT. Did you ever boast to anyone or say to anyone in any way that you had connections with the Capone gang?

Mrs. GRANT. Aw—let me tell you, when I came to Dallas——

Mr. HUBERT. Just answer the question.

Mrs. GRANT. No, sir. And it just kills me—connections—I had no connections.

Mr. HUBERT. Do you know of a Lois, or perhaps it's Louis Green?

Mrs. GRANT. Now, I didn't know him. He was in this town. The conversation was great about him. He did not know me—he wouldn't know me if he saw me and I understand he's dead. There was absolutely—the man never even talked to me. I wouldn't know him—short, tall, or anything.

Mr. HUBERT. You never met him?

Mrs. GRANT. No; not to my knowledge—no, sir.

Mr. HUBERT. Do you know the circumstances of his death?

Mrs. GRANT. I don't think I was here.

Mr. HUBERT. Did he die—how long ago, do you know?

Mrs. GRANT. I really don't know, but I was hurt—you know what I mean—there were certain individuals I read about in the papers. I know he was considered a character.

Mr. HUBERT. What do you mean by that?

Mrs. GRANT. Well, he was with the rough element—he never worked.

Mr. HUBERT. In Dallas, you mean?

Mrs. GRANT. In Dallas—he was a Dallas man, as much as—you know, when you are in the night club business, you see a lot of undesirable people, but you are not sure.

Mr. HUBERT. Tell us how you got into the night club business yourself.

Mrs. GRANT. Well, when I was on the west coast I ran a restaurant in back of a bar and it seemed to be quite a lucrative business. That was Frankie Nolan's place on Sunset Boulevard. Now, whether that was the second place or the first place—I don't know, but then I once went with a fellow, Harvey Brooker, and his mother had a restaurant and I learned to manage that.

Mr. HUBERT. That was in San Francisco?

Mrs. GRANT. No; it was in Los Angeles—both these places were in Los Angeles.

Mr. HUBERT. I was thinking particularly about the Dallas area.

Mrs. GRANT. Then, when I came here and I worked for Harvey Phillips, the Southwest Tool & Die Co., some real estate man who he was acquainted with, Fred Shinskey, said, “You know, I know a good spot where the landlord wants to build a restaurant and night club,” and Jack got money from the Earl Products—and sent me \$1,100 and I think that was the amount, to put the money down on the lease—the first and the last months of a 10-year lease. Mr. Waddlington, who owned the ground, had built the inside of the building—no; the outside of the building, and part of the inside to my specifications and the idea was that Jack—Jack was in the service but he was very unhappy in being in business with my two brothers, and they sent me some money. I think they sent me—one brother sent me \$1,500 and my older brother—with the things he bought and paid for ran about \$2,500—like dishes and intercom system and a grand piano—ran to about \$2,500—and this is Hyman——

Mr. HUBERT. And so——

Mrs. GRANT. Wait a minute, and I went into business then.

Mr. HUBERT. That became known as what?

Mrs. GRANT. That became known as the Singapore Supper Club for a little over a year, and it was a very sad—it was too nice a club for that part of town there.

Mr. HUBERT. Now, did Jack join you in that venture?

Mrs. GRANT. Oh, yes; he was a partner in it.

Mr. HUBERT. And he actually helped operate it?

Mrs. GRANT. Yes; listen, I want to tell you, he did all the operating, and the truth of the matter is, had he not known how bad that neighborhood was—you see, I didn’t know, because I didn’t mingle with anybody and I didn’t understand about certain—what they call the tenderloin district, I never heard the word. He was mad that I got involved in that with so much money and then all this work—this struggle for 2 years—It took 2 and 2½ years or 3 years until they built the building.

Mr. HUBERT. He came in what year—Jack did?

Mrs. GRANT. He came right after he got out of service and it seems to me it was in 1948.

Mr. HUBERT. And he stayed with you running this club for some time?

Mrs. GRANT. I left shortly. I went on the road—I went on the west coast and I was selling fishing tackle for Harvey Phillips, and then I got another line—of radios.

Mr. HUBERT. Well, is it fair to say then that when Jack came, you left—just about?

Mrs. GRANT. Well, shortly after that.

Mr. HUBERT. You sold out to him?

Mrs. GRANT. No; I just gave him power of attorney. It's my brother.

Mr. HUBERT. And he invested \$1,100?

Mrs. GRANT. Oh, he invested a lot more—he got more money out of what he sold out of his business in Chicago and I don't know how much his end of the Earl Products came to.

Mr. HUBERT. He sold or closed the Singapore Supper Club?

Mrs. GRANT. He changed the name to the Silver Spur because that name would fit better in that area.

Mr. HUBERT. And did you have an interest in the Silver Spur?

Mrs. GRANT. He sent me some money when I was broke or sick or I didn't work or the weather was too hot.

Mr. HUBERT. But you didn't have any financial interest in the Singapore Club?

Mrs. GRANT. Oh, I put in money because I made money in the brokerage business. Every time I made money, I would throw it back in—I put it back in.

Mr. HUBERT. Well, what was the arrangement between you and Jack as to the ownership of the Silver Spur?

Mrs. GRANT. We were partners.

Mr. HUBERT. Half and half?

Mrs. GRANT. Yes; but there was never any half and half. I can't explain it. He was there and things were so bad, we were lucky we were eating. That's one of the reasons I left and went out to the west coast on the road with the fishing tackle.

Mr. HUBERT. And you stayed away from Dallas as I understand it, until approximately 1959, wasn't it?

Mrs. GRANT. Oh, no; I was here lots of times.

Mr. HUBERT. Well, I understand that, but I mean—you didn't come back here to live on a permanent basis?

Mrs. GRANT. I was here—I was here the next year—the year after that, and I stayed 2 years and he got involved with another club that a fellow was wanting to sell it and it was called Hernando's Hideaway and I think that was in 1952 or 1953, and by then—Jack always had his hands in two or three places—whether they are making money or not, and I ran this other club, if I remember, and then I ran the Vegas Club for a while.

Mr. HUBERT. But you came back to Dallas, so that it was on a permanent basis, in what year?

Mrs. GRANT. I don't know how long I was here then.

Mr. HUBERT. But I think you mentioned a little while ago that you haven't been out of town—out of this town for 4 or 5 years?

Mrs. GRANT. Now, I am here 4 years constantly.

Mr. HUBERT. That's what I am talking about.

Mrs. GRANT. But this time I was gone about a year and a half or 2, but I have been back here, but I didn't come to stay.

Mr. HUBERT. That's what I understand, so that during the period from 1948 to roughly 1958, a period of 10 years, you were in and out of Dallas, of course?

Mrs. GRANT. Oh, yes.

Mr. HUBERT. But, you didn't have any connection with any of Jack's operations here?

Mrs. GRANT. Well, in the early fifties when I came, I worked at the Vegas Club and as I said, I ran this Hernando's Hideaway.

Mr. HUBERT. Do you know the circumstances of Jack's acquisition of the Vegas Club?

Mrs. GRANT. Yes.

Mr. HUBERT. Could you tell us briefly how that came about?

Mrs. GRANT. I know this, that he sold the other club—I may be wrong—for \$4,500. I don't know the exact amount—but I have an idea it was around \$4,500 and he bought this club with a couple other fellows.

Mr. HUBERT. Did you know them?

Mrs. GRANT. I never met them—I know I heard the name Joe Bonds—I never saw him in my life. Maybe if I saw him I didn't know it was him. When I came he was in jail.

Mr. HUBERT. What about Martin Gimpel or Marty Gimpel?

Mrs. GRANT. Oh, Marty, may he rest in peace, is a real nice guy.

Mr. HUBERT. He's dead now, isn't he?

Mrs. GRANT. Yes—he worked for the Post Office.

Mr. HUBERT. He has been dead some time?

Mrs. GRANT. Not over 2½ years.

Mr. HUBERT. Was he in the Vegas Club?

Mrs. GRANT. It seems to me he may have been in with Jack and maybe even—you see, there was a time he may have even taken over—Jack let him take over the Silver Spur and Jack went into a business called—the club—does it say Bob Wills' Ranch House there, something like that, anything about Bob Wills' Ranch House?

Mr. HUBERT. No, ma'am. Did he have some interest in that?

Mrs. GRANT. Yes, and it's here in town—it's not that name any more. Jack, I think, leased or sold the Silver Spur to Marty and it was Marty that was running the club and Jack was running the Bob Wills' Ranch House

with somebody else—oh, yes, I know the guy—Hyman Fader, or something like that.

Mr. HUBERT. Isn't it a fact that for the last 2 or 3 years you have operated the Vegas Club for Jack?

Mrs. GRANT. Yes, three and a half years.

Mr. HUBERT. And you have been I take it, on a salaried basis?

Mrs. GRANT. That's right.

Mr. HUBERT. You have no ownership in the club, though, I take it?

Mrs. GRANT. No.

Mr. HUBERT. But did you have complete management and control?

Mrs. GRANT. Well, let me put it this way—every week I would give him—like if I would have \$800 and he said he needed \$600 to pay bills or \$400, he would take it. I make the payroll, I pay the bills and I didn't go to the Federal to pay the taxes.

Mr. HUBERT. Well, let me put it this way—you used your gross receipts, I suppose, to pay the running expenses?

Mrs. GRANT. That's right, and when he would take any money, he would take a lump; you know what I mean, 400 or 500, not if he made 2¼, did he take 2¼.

Mr. HUBERT. Did you keep any books on the transactions?

Mrs. GRANT. Oh, yes—what is his name—Abe Kleinman—of course, I don't have them—I have some of the things, but Abe Kleinman was the accountant.

Mr. HUBERT. You didn't own the land or the building of the Vegas Club?

Mrs. GRANT. Oh, no—no.

Mr. HUBERT. How much rent was paid; do you know?

Mrs. GRANT. 500—since I'm there.

Mr. HUBERT. \$500 a month?

Mrs. GRANT. \$500 a month, but I think the first year that I was there, I think it was only 400 and something.

Mr. HUBERT. All of the help, I take it, was paid in cash?

Mrs. GRANT. Yes, but everyone who signed checks. You know—I would make out a check—I would take out their withholding and social security and put it right on it.

Mr. HUBERT. You used a bank then for the operation of the Vegas Club?

Mrs. GRANT. We had a bank account.

Mr. HUBERT. But did you pay salaries and other expenses?

Mrs. GRANT. I paid the band and I paid the bartender and I paid a floorman.

Mr. HUBERT. What bank was that with?

Mrs. GRANT. The Merchants' State Bank.

Mr. HUBERT. You had a checking account there?

Mrs. GRANT. No, I didn't. He did. But what I mean is, the checks didn't go through the bank. We just let them sign a check like a receipt, but everything was on it—their names, their withholding and their social security.

Mr. HUBERT. That's what I was trying to get at—the Vegas Club or Jack Ruby or you, yourself, for the operation of the Vegas Club, did not have an active checking account in which money received was deposited and expenses paid out?

Mrs. GRANT. He deposited the money every week, but it was like a round figure, like 200. I paid for the gas, I paid the telephone and lights and water bill on checks. I bought all the merchandise on cash and we have receipts. He paid the rent.

Mr. HUBERT. And you paid the employees by cash, too?

Mrs. GRANT. The bartender, and the band and the floorman. The waitresses worked on tips.

Mr. HUBERT. All the employees were paid by cash?

Mrs. GRANT. Yes, but they signed receipts for it.

Mr. HUBERT. I understand. Who was Pauline Hall in that operation, what did she have to do?

Mrs. GRANT. Well, sometimes she helped on the floor as a hostess and, of course, while I was ill, she took over the management for 2 weeks in 1963 in November. She has been a waitress in our club on and off. She has known us about 8 years. She has been a bartender when we needed one—she is a very nice person.

Mr. HUBERT. I understand you had some trouble with your band at the Vegas in the fall—did they quit or something of that sort?

Mrs. GRANT. Well, we had the same band leader—yes—almost 8 years.

Mr. HUBERT. Who was he?

Mrs. GRANT. Joe Johnson.

Mr. HUBERT. And what happened?

Mrs. GRANT. Well, he was unhappy because someone offered him more money. We weren't getting along, he and I, and there was always a dissension. First of all, he wouldn't stay on the bandstand—I had to humor him.

Mr. HUBERT. Well, did he quit or did you fire him?

Mrs. GRANT. No, we didn't fire him. He made arrangements with another night club.

Mr. HUBERT. And that was when?

Mrs. GRANT. He made arrangements unbeknownst to us, but he gave us notice and he left, I think, the first week of November, 1963.

Mr. HUBERT. What about Raymond Jones, do you know him?

Mrs. GRANT. Oh, yes.

Mr. HUBERT. He worked at the Vegas, didn't he?

Mrs. GRANT. He worked on and off—he was a porter.

Mr. HUBERT. He was a handyman?

Mrs. GRANT. I beg your pardon?

Mr. HUBERT. He was a handyman or a porter?

Mrs. GRANT. He was a porter.

Mr. HUBERT. He quit the Vegas, didn't he?

Mrs. GRANT. No; he has always had another job and he worked for me and he came back—he wasn't a very good porter. Truthfully, where he worked the last job for 19 years, he didn't do actually any porter work—he was like the foreman over porters.

Mr. HUBERT. Well, did he stop working for the Vegas at any particular date so that you didn't see him thereafter?

Mrs. GRANT. Well, he came back a couple of times—Jack knew him from the Dallas Athletic Club. That's how I got him in the first place.

Mr. HUBERT. Well, did he quit working for you back last fall sometime?

Mrs. GRANT. Well, call it quits—he quit a few times, I called him and he came; he is not the most intellectual man; he can't read or write; he can't sign his own name.

Mr. HUBERT. But, in any case, he stopped working for you?

Mrs. GRANT. Well, I fired him a couple of times and he came back. I don't know how you would—it isn't any quitting—he never showed up. In fact, he worked for me right around New Year's again.

Mr. HUBERT. You had nothing to do, as I understand, with the operation of the Sovereign Club or the Carousel, but perhaps you can tell us something about how those two clubs came into existence and what you know about them?

Mrs. GRANT. Well, first, I wasn't in town to begin with, and when I did arrive here, that club was in existence.

Mr. HUBERT. Which one was that?

Mrs. GRANT. That was the Sovereign Club.

Mr. HUBERT. That's on Commerce Street, isn't it?

Mrs. GRANT. 1312½ Commerce.

Mr. HUBERT. It's an upstairs location?

Mrs. GRANT. And I understand Jack has taken money from Earl and probably from my sister Mary and God knows who else in the family—there was none of his money in there—if he had a thousand dollars of his money, it was a lot of money.

Mr. HUBERT. Was that a corporation, to your knowledge?

Mrs. GRANT. Yes.

Mr. HUBERT. Who are the owners of the stock?

Mrs. GRANT. Well, from what I knew—Ralph Paul put in some money and that was another thing. He is quite a well-to-do man and I think he wanted Jack to be a success, whether he loaned or gave him money—I don't know, but I know he was connected with the club, and Leo Torti, I think Jack owed him a little. Jack promised or owed him some money, made him part of the corporation and the first that started out it was with Earl being in it, but the State doesn't allow an outsider to be in a corporation of that type when you carry a liquor license and I think they rehashed it later on and it went over a few times—it started out with the people I didn't know, but ones I got to know later on was Joe Slayton and another fellow who I still don't know who he is. There was three partners—Jack represented Earl, Earl gave him the money. Jack encouraged Earl to give him the money to go into this thing and to this day, and this is truthfully, I think he owes Earl \$8,500 on that deal alone, and I'm making it low. I don't know all the money Earl had given him from time to time.

Mr. HUBERT. Did you know of the existence of a corporation called Sovereign, Incorporated?

Mrs. GRANT. No; it's called S & R Corp. or R & S. Yes; I know it now and I knew it when I came to town. He told me about it.

Mr. HUBERT. But did you ever hear of a corporation called Sovereign Club, Incorporated, or Inc.?

Mrs. GRANT. It could be the same club if it is. Now, since then Ralph was so disgusted when Jack got in all this trouble, he gave me the stock—his stock.

Mr. HUBERT. Did he own that stock that you've got—do you know?

Mrs. GRANT. I guess so.

Mr. HUBERT. He gave you the certificates, you mean?

Mrs. GRANT. Yes; there's no name on them—I have it at home—I think it says 500 shares.

Mr. HUBERT. The name was just in blank?

Mrs. GRANT. Yes.

Mr. HUBERT. So, he didn't have to endorse it over to you?

Mrs. GRANT. I told him we were going to sell it and he said, "You endorse it over to the other person."

Mr. HUBERT. But he did not endorse it over, he just gave you the certificates?

Mrs. GRANT. Well, he had a letter with the attorney—they went up to an attorney called Graham Koch [spelling] K-o-c-h. Anyway, he would know more about it than I do.

Mr. HUBERT. Do you know whether Ralph Paul was holding that stock as owner or as security for money owed?

Mrs. GRANT. Who knows?

Mr. HUBERT. But do you know that?

Mrs. GRANT. I know Ralph must have given Jack a lot of money that he never got back; believe me, let me tell you.

Mr. HUBERT. Had Jack talked to you at all about any nightclubs that he proposed to open?

Mrs. GRANT. Yes.

Mr. HUBERT. When did he first talk to you about that?

Mrs. GRANT. Listen, now, he didn't say he was going to open it, he says, "This would be a good private club," and I think he took me then on a street here to Maple or Cedar Springs, and I guess he was going to ask Ralph Paul for money, to be honest, they were very close.

Mr. HUBERT. Were you to be a part of it?

Mrs. GRANT. Well, he didn't tell me.

Mr. HUBERT. How far had those plans gone, do you know?

Mrs. GRANT. I looked at the outside of the building with him late at night—3 o'clock in the morning. Now, wait a minute, he had seen it—he had been in it—whatever this building is, and to this day I'd like to find it because someone else told me that.

Mr. HUBERT. Do you know when that was that he showed that building to you?

Mrs. GRANT. It seemed to me that it was in the summer and once early in the fall, or it could have been in October.

Mr. HUBERT. Did he say what he was going to do with the Vegas and the Carousel?

Mrs. GRANT. He didn't say anything about the Vegas or the Carousel, but I'll tell you, the Carousel in my estimation wasn't making any money and it made him sick, and one of the reasons was he said that all the other clubs that sell liquor over the bar—you see, this State has very peculiar liquor laws and he said with a downtown club he could get a lot of members to go into this private club, but he did look at this building a few times because he talked about it and he is the biggest planner you've ever seen about something that don't develop in his mind.

Mr. HUBERT. Now, does the name Gene Schriver [spelling] S-c-h-r-i-v-e-r, mean anything to you?

Mrs. GRANT. Is that a girl or a fellow; do you know?

Mr. HUBERT. I don't know.

Mrs. GRANT. Well, we knew a Jean that worked for him as a waitress.

Mr. HUBERT. Is the last name Schriver?

Mrs. GRANT. Not that I know of. I knew a lot of girls that worked for them but I didn't know their last names.

Mr. HUBERT. What kind of work did she do?

Mrs. GRANT. She was a waitress up there—a couple of years ago.

Mr. HUBERT. How long did she stay?

Mrs. GRANT. Well, she was there two or three times. She got mad at Jack and went over and worked for the Colony Club, if it's the same little girl.

Mr. HUBERT. Was she working with Jack at the time of the death of the President?

Mrs. GRANT. Gee, I don't know; I don't remember who was working there. I know one cute little girl and I couldn't think of her name unless it came up.

Mr. HUBERT. What about Frank Goldstein?

Mrs. GRANT. Well, he used to work with him selling subscriptions in San Francisco and when Jack was having trouble with the union—he hasn't spoken to that fellow in 26 years and I believe it, because I've been on the west coast off and on, and Frank often asks, "Why don't you write to me or call?" Last fall, in fact, in November—as late as November, I think Jack made the first call to Frank Goldstein because things were getting very bad.

Mr. HUBERT. In your opinion, that phone call made to Goldstein was the first connection between Jack and Goldstein——

Mrs. GRANT. That's right.

Mr. HUBERT. Wait a minute, let me finish my question—in some considerable number of years?

Mrs. GRANT. I know that for a fact because I used to go to the west coast and see Frank every 5 years—5 or 7 years and we talked about him and I don't remember Jack or him ever saying they talked or wrote and Frank, I don't think, could write.

Mr. HUBERT. But as far as you know, he had no connection with him; is that right?

Mrs. GRANT. No; but I do know he is a gambler and it is very well emphasized in San Francisco that he is a gambler.

Mr. HUBERT. What about Benny Barrish?

Mrs. GRANT. Benny—I heard he is a liquor salesman. I knew him when we were on the west coast. He's a Chicagoan. He came out there in 1935 and as far as I know he's a liquor salesman.

Mr. HUBERT. When was the last connection you had with him?

Mrs. GRANT. I saw him about 8 or 9 or 10 years ago when I went to San Francisco.

Mr. HUBERT. You haven't seen him or corresponded with him in any way by telephone?

Mrs. GRANT. No, no.

Mr. HUBERT. Do you know if Jack ever knew him?

Mrs. GRANT. Oh, sure. We knew him from Chicago as kids, but I'm sure Jack hasn't—now, I won't say positive I know Jack hasn't for any reason, unless during this month—this particular month where he was having trouble early in the fall of 1963 with regard to amateur auditions at his club. He had contacted people all over the country trying to find out who knew the bigwigs in the union where the AGVA, you know, the big shots—who they were that run the union.

Mr. HUBERT. Would Benny Barrish be the sort of person who might know something or be able to do something about that?

Mrs. GRANT. Well, he gets around—he knew and knows people in the liquor business that have entertainments in San Francisco—it might be.

Mr. HUBERT. As far as you know, Jack has made no connections out there in anyway for some time?

Mrs. GRANT. In over 12 years—I would swear to this that he has had no connection out there since before the war and he has never been west of 100 miles of this area in that time. I have many, many times heard where people said he went to Las Vegas. He hasn't been there only once with me and I think that was when we went to—from Los Angeles back and, of course, that must have been in 1937 or 1938, and he has not been back.

Mr. HUBERT. Did you see Jack Ruby, your brother, or communicate with him every day, would you say, for a period of 60 to 90 days prior to November 24?

Mrs. GRANT. Every day? I don't say I saw him every day, but I would say I heard him on the phone three to five times.

Mr. HUBERT. Would you be willing to say then that to the best of your knowledge he was not out of the city of Dallas during that period, that is to say——

Mrs. GRANT. Well, wait a minute, didn't he go to New York in August?

Mr. HUBERT. Well, I was going to except August at that point—that's why I put it at 90 days.

Mrs. GRANT. Didn't he go to see a fellow, Joe Glazer, who was the head of a certain union?

Mr. HUBERT. We have evidence that he did go to New York in August, but after that trip—let's put it this way, from September 25 until November 25 just a period of 2 months, can you state to us now that to the best of your knowledge, Jack was not out of the Dallas area?

Mrs. GRANT. I don't remember him going out.

Mr. HUBERT. Specifically, do you have any indication whatsoever of any kind that he might have gone to Las Vegas during this period?

Mrs. GRANT. That—I swear.

Mr. HUBERT. Well, you certainly would have known it if he had been gone, say 3 or 4 days, wouldn't you?

Mrs. GRANT. Well, for one more reason, he would advise me to keep it quiet and to collect the money to see that Andy does this or that.

Mr. HUBERT. And there is nothing to indicate to you whatsoever that he was in Las Vegas during September or October or November of 1963?

Mrs. GRANT. But I know he has made many calls to the same fellow, McWillie. I would say he made at least 10 calls in those 3 months.

Mr. HUBERT. And what would be the reason for those calls?

Mrs. GRANT. The same thing—Willie might know somebody in Las Vegas, since there is that type of entertainment, with these amateurs.

Mr. HUBERT. Did Jack tell you he was calling these various people because of this trouble with the union?

Mrs. GRANT. It seemed to me—well, he was so bitter against Barney—I shouldn't say this because—it's just sickening—because they didn't mean to hurt him—Barney and Abe Weinstein and he felt—the union sent him a telegram to quit these amateur auditions and they sent it to Abe and Barney, but they wouldn't quit, but Jack figured they had an “in” with the big guys, you know, and Jack couldn't get to this fellow, and he told me that he called McWillie. In fact, he may have called him even 3 days before that—he was just sick about this.

Mr. HUBERT. Now, was McWillie, and I think you mentioned another person earlier, Lenny Patrick he called?

Mrs. GRANT. Well, Lenny Patrick he called in Chicago—one time, and he was not there, and until he got his number—he called 15 different people from what I understand.

Mr. HUBERT. What I was getting at is this—your explanation that if he called Goldstein and Barrish and McWillie and so forth, your explanation that those calls were made in connection with this difficulty about the amateur night thing—was that information obtained by you from Ruby, or are you just giving us your opinion of what those calls were about?

Mrs. GRANT. Well, he has discussed this with me many times and I didn't go to the downtown club too often, but when I did go there, it so happened either September or October on a particular Sunday night, whichever Sunday night it was—there are five Sundays and whichever Sunday it would be, and the Vegas Club would be closed on Sunday, he told me he had just gotten through talking to somebody and I'll be honest about it, it just went in one ear and out the other, because I figured that——

Mr. HUBERT. Well, you see what I am trying to get at and that is whether or not your statements that those calls were made in connection with this AGVA business derives from him directly or whether it is merely your opinion that those calls were about that?

Mrs. GRANT. It is not only my opinion, we talked about it. We had discussed it and he had told me.

Mr. HUBERT. So that that does come—that information, then does come directly from Jack?

Mrs. GRANT. Well, and one other thing, when I called home, I spoke to my older brother and he knows Jack Yanover. My brother Jack did not know Jack Yanover like my older brother.

Mr. HUBERT. That's who?

Mrs. GRANT. Hyman; he's a friend of his and my older brother in this conversation said to me, "I told him to call Jack Yanover. Maybe he knows somebody because Yanover has some kind of saloon in Chicago," that's in my estimation because of the way it looks, and this all went on and Jack used to rehash it with me until it—well, I know that's what that call was for.

Mr. HUBERT. And that was all during the period then of September and October?

Mrs. GRANT. In the summer—last summer and he also told me, you know, he told me during one of those months he said, "I tried to call Lenny Patrick," and he said, "I got his number," he got it from somebody and I don't know who, what and I didn't give a darn.

Mr. HUBERT. Did Jack tell you all of this prior to November 24?

Mrs. GRANT. Oh, sure. To tell you the truth, the way I see Jack through this little glass, he has very little to say.

Mr. HUBERT. Do you know a man by the name of Robert McKeown [spelling] M-c-K-e-o-w-n, or have you ever heard of him?

Mrs. GRANT. Is it a Dallas man?

Mr. HUBERT. I believe not.

Mrs. GRANT. Would it be my friend or Jack's friend?

Mr. HUBERT. Well, it would probably be Jack's friend. Did Jack ever tell you of contacting him by telephone and going to see him in the Galveston area concerning the selling of jeeps to Castro?

Mrs. GRANT. Now, I know Jack was in Cuba 6 or 7 years ago or one of those years.

Mr. HUBERT. Oh, yes; you told us about that—that was when he went to join McWillie for a little while?

Mrs. GRANT. Yes; and I also know that I did hear the story about jeeps.

Mr. HUBERT. When did you hear that?

Mrs. GRANT. Well, let me say this—I don't know whether I heard it last year or the year before, but I do remember something in a conversation—some guy told him he knew where there were 400 or 800 jeeps or 80 jeeps and whether Jack went down—Jack went to Houston first of all—he did go to Houston last year to see a man from a night club. They were going to exchange acts or work in a deal, but I don't remember who the man was, and this all came about, but Jack, I'll tell you, he isn't that kind of a promoter.

Mr. HUBERT. What did Jack tell you about the jeeps?

Mrs. GRANT. This was the deal with McWillie at the time and we were on friendly terms, as much as I remember about it, and I think he shoved it off.

Mr. HUBERT. Was it the jeep proposition that had something to do with Jack's visit to McWillie in Havana in 1959?

Mrs. GRANT. Jack was very depressed, he was having a lot of trouble, that McWillie sent him as much as I know, a ticket to come to Havana to have a week or 10 days vacation. That's as much as I know of the whole darn thing and deal outside of the talking about jeeps at that time.

Mr. HUBERT. Did that visit have anything to do with the jeeps in addition to the rest and vacation that you know of? Now, don't guess about it.

Mrs. GRANT. Yes; but I heard "Jeeps" but I didn't pay too much attention to it.

Mr. HUBERT. Well, then, the real fact is you don't know much about it?

Mrs. GRANT. I really don't.

Mr. HUBERT. You heard something about jeeps about that time, but you are not in a position really to say that you know yea or nay—yes or no—

whether Jack's visit to Havana with McWillie had to do with jeeps or not; isn't that right?

Mrs. GRANT. Do you know that I didn't know at the time he was in Havana. I knew this a few years later.

Mr. HUBERT. What I mean is—the real fact is you don't have any knowledge of it—of the real facts?

Mrs. GRANT. I have no specific knowledge of it, but I do know that my sister told me he was down in Havana. He called Chicago from there and he said he's in Havana and I think he spoke to Marion Carroll—that sister.

Mr. HUBERT. Did you know a man by the name of Lawrence Meyers?

Mrs. GRANT. I knew a Meyers but I can't think of his first name.

Mr. HUBERT. Did you see him or meet him during the first 3 weeks of November 1963?

Mrs. GRANT. Not that I know—I can't think of it—no; this fellow I knew years ago, but I can't think of his first name—gee, that isn't his first name. He used to live here in town on Lemmon Avenue.

Mr. HUBERT. Did you know a man by the name of Alex Gruber?

Mrs. GRANT. You mean Al Gruber on the West Coast?

Mr. HUBERT. Yes.

Mrs. GRANT. Yes.

Mr. HUBERT. How long have you known him?

Mrs. GRANT. I heard his name around the house 30 years—Jack knew him when they were young.

Mr. HUBERT. Did you know that Jack had called him on the night of the President's death?

Mrs. GRANT. Yes; I do.

Mr. HUBERT. Can you tell us how you knew it?

Mrs. GRANT. Either late that evening or the next day he talked to Al and there was something in the conversation—Al was here early in the fall and in fact coming through—I was in the hospital and he promised Al a dog and

it seems to me I called him—I must have called him later on; anyway, when I did call him a week or so later or whenever I did, I don't know, but it was after this incident, Al said, "You know, Jack was crying when he called me on the day of the assassination?"

Mr. HUBERT. Did Jack himself tell you he had called?

Mrs. GRANT. No; Al told me. I had called Al myself. I had called Al within 10 days of the President's assassination, something regarding to the dog.

Mr. HUBERT. Yes, ma'am; I understand that—you mean before the President's assassination?

Mrs. GRANT. No.

Mr. HUBERT. After?

Mrs. GRANT. But Jack has talked to him before too—some weeks.

Mr. HUBERT. But did Jack tell you that or did Gruber tell you that?

Mrs. GRANT. No; Al told me this.

Mr. HUBERT. You did not know that Jack had called Gruber on the night of the President's assassination until Gruber himself told you?

Mrs. GRANT. No; it seems to me that Jack even may have mentioned it, but still I made a call myself to Al in regards to the dog. Jack said he promised him a certain dog.

Mr. HUBERT. And you say Gruber had been through Dallas?

Mrs. GRANT. While I was in the hospital in November—in Dallas.

Mr. HUBERT. Did you see him then?

Mrs. GRANT. Yes; I did. He visited me at the Gaston Hospital.

Mr. HUBERT. You were hospitalized for how long?

Mrs. GRANT. For about a week.

Mr. HUBERT. What was the nature of your illness; do you recall?

Mrs. GRANT. Tumor and hysterectomy.

Mr. HUBERT. And you were in there about a week?

Mrs. GRANT. Yes.

Mr. HUBERT. What was your relationship with Jack from the standpoint of, say, personal relationship as brother and sister and, of course, as comanager—were you on a friendly basis?

Mrs. GRANT. Most of the time.

Mr. HUBERT. Any difficulties between you sometimes?

Mrs. GRANT. Yes; lots of times. We got along a lot of times like a disagreeable man and wife. If my band leader complained it was no good. If I complained it was no good.

Mr. HUBERT. What was Jack's attitude generally toward politics; do you know?

Mrs. GRANT. He didn't have any.

Mr. HUBERT. To your knowledge did he belong to any kind of organizations whatsoever?

Mrs. GRANT. Not one that I could put my—outside of the YW—YMCA or something to that effect or the union connected with the musicians' union or AGVA, and maybe three or four private clubs around—entertainment clubs.

Mr. HUBERT. Did he have any sort of attitudes toward conservatism or liberalism or any kind of "ism"?

Mrs. GRANT. All I know—he's a good American and he is far better than a lot of people are.

Mr. HUBERT. But, did you ever notice any interest that he had in pro-Cuban affairs or anti-Cuban affairs or pro-Castro or anti-Castro or anything of that sort?

Mrs. GRANT. This is the exact words when they spit on Stevenson last fall—Jack and I were going to dinner or coming to dinner and somehow we were sitting in the car—his car—and he looked at me and he says, "Isn't that awful?" He says, "They ought to knock their heads together." Now, we were told two young fellows out of college or in college did that and he says, "To think—a man devotes his time" and he went on for a couple of minutes, and that was it, and I remember the incident of—I'll

tell you—he respects high people and he admires highly educated, cultured people—good family men.

Mr. HUBERT. Well the answer to my question, I gather, from what you have said, then, is that Jack did not have any ideas that were pro-Cuba or anti-Cuba or pro-Castro or anti-Castro?

Mrs. GRANT. He was against communism from the beginning of when it even entered his mind. I don't know what year—maybe 35 years ago.

Mr. HUBERT. How did he express himself on that?

Mrs. GRANT. He didn't have to—from the things he done—was too American—too much American.

Mr. HUBERT. But my point is—I gather from that that he never discussed with you his feelings about communism or anything—it's just that you observed that?

Mrs. GRANT. Well, I'm not an intellectual on those subjects, to be honest about it.

Mr. HUBERT. Was he the type of man that would be interested in these subjects himself?

Mrs. GRANT. No; not to express it openly or fight with it—in this manner, if you said anything against anybody or anything big of our country that is Americanism—you might as well—he would knock the hell out of you.

Mr. HUBERT. In other words, what you are saying to me is that if he has any kind of “ism” at all, it would be Americanism?

Mrs. GRANT. That's right—he has that—he does have that—that's his greatest.

Mr. HUBERT. Jack never married, did he?

Mrs. GRANT. No; he was engaged to a young lady here.

Mr. HUBERT. What generally was his attitude toward women; do you know?

Mrs. GRANT. Well, in his late life I think he was sort of a playboy myself, but in his early life he wanted to get married. There were several

individuals he had a great love for and the trouble is, he picked on women who were of means and he couldn't give them what they wanted. He could tell from the way they were reared or their attitude, and how they expressed themselves when they get married—what they wanted, and I think it sort of cooled him toward making it. He liked women. He was a real man.

Mr. HUBERT. I understood he took good care of himself physically?

Mrs. GRANT. Yes.

Mr. HUBERT. In the sense that he took physical exercise regularly?

Mrs. GRANT. And the truth is, he has a great sympathy for women who are left with hardships and maybe it started with me or my mother—if they have to work and do a lot of things—it was in the back of his mind.

Mr. HUBERT. Jack didn't drink very much, did he?

Mrs. GRANT. He didn't drink a fifth of liquor a year. When we went out, we ordered two drinks, I would drink mine and have to drink two-thirds of his. Then, we were ashamed to sit there and he would order it again—not that I'm such a big drinker, but that's what he did.

Mr. HUBERT. What about smoking—he didn't smoke either, did he?

Mrs. GRANT. I don't remember but once he had a cigar in his mouth, a couple of years ago at a party and maybe he had three or four cigarettes in his life, that I know of.

Mr. HUBERT. Did you and he have any difficulties about the girl that he was going out with one time and I think Rabbi Silverman had to kind of intervene?

Mrs. GRANT. That he was going with? That wasn't it—it wasn't about a girl.

Mr. HUBERT. Well, you did have a disagreement?

Mrs. GRANT. A very big disagreement—early this summer of 1963—it was in the early part of the summer. It was over money. He had \$800 or \$900 and he wanted to pay bills and somebody encountered him who needed their car fixed or something and I think he paid for the car and he didn't pay the electric bills, and when he went to jail in November—3

months of the Carousel's bill on the electric company wasn't paid and it ran almost \$800 or \$900 for 3 months.

Mr. HUBERT. What was the particular argument about then—that he had loaned some money to someone?

Mrs. GRANT. No; it was not the first occasion only—this one—that's the time that I blew my top and I had been sick—I have been in very bad physical condition and he wanted me to get out of the club, and Leo Torti who worked for us on weekends told him that I was having a difficult time and I should be in the hospital and he said, "I gave you money to go to the hospital," and he gave me a push and I had just got some new high heeled shoes and I went back about 8 feet and I hurt my arm and my shoulder and he wanted me out of the Vegas Club.

Mr. HUBERT. Whose car did he have repaired with the money you thought he should have used for the lights?

Mrs. GRANT. Some family man—he does that—I haven't the least idea and I don't think he did either.

Mr. HUBERT. How did you find out it was used to repair someone's car?

Mrs. GRANT. Some man come in my club weeks later and says, "Your brother was in," and I didn't even know this man's business, and he said he works there as a car mechanic and he says, "He got someone's car out of hock," so I figured maybe it was his car—I didn't think of it.

Mr. HUBERT. Who was that man, do you know?

Mrs. GRANT. Some customer at the Vegas Club—if I saw him, I would know him.

Mr. HUBERT. You don't remember his name?

Mrs. GRANT. No; but I knew his appearances. He was one like the regulars who come about every month one time.

Mr. HUBERT. Do you know what kind of car he drove?

Mrs. GRANT. No; I was in the club—I wouldn't know what the patrons were driving, but he did repair someone's car and it was a family man that was supposed to go on the road or some darn thing and if I'm not mistaken,

as far as I know, my brother never got the money back. It wasn't \$800 worth of repairs, but these are the things that he did.

Mr. HUBERT. What was the twistboard deal, can you tell us about that?

Mrs. GRANT. Yes; he met a man—I think this man lives in Fort Worth and I think his name is out there somewhere and it says a plastic company on that thing—I'm almost sure it is the same man, and this man was manufacturing them and Jack had a deal with him to cover Texas, and if it went good, Jack would get the whole United States. In fact, I think somewhere in my apartment there might be a twistboard. I don't know if I ever saw the man or not, but I believe he is in either Arlington or Fort Worth, lived there, and there is a twistboard that Jack—he sold quite a number—he sent some out to different people.

Mr. HUBERT. Was Earl interested in that?

Mrs. GRANT. I don't know. Earl's partner, I think, is a friend that he knows—we call him George—in a laundry in Detroit. Whether he was or has been—I don't think Earl wanted—in Earl's business with this man, I think the contract reads he cannot go into another business. I may be wrong, but I'm almost sure that's what I remember Earl saying at one time.

Mr. HUBERT. Do you know whether Earl had any interest in the twistboard operations at all?

Mrs. GRANT. I doubt it, unless he advanced Jack some money, but I don't think there was that much money put into it. The man let Jack have, say, a hundred twistboards and he paid for them and I don't know too much about it, but I did have them in the club and we gave them away as prizes and I know Jack contacted weight salons where women go to reduce about them.

Mr. HUBERT. Do you remember having any contact whatsoever with Ralph Paul?

Mrs. GRANT. Oh, yes.

Mr. HUBERT. During the period from November 22 through November 24, up until the time Oswald was shot?

Mrs. GRANT. Me?

Mr. HUBERT. Yes.

Mrs. GRANT. I don't think I even talked to him during those days.

Mr. HUBERT. That's what I mean.

Mrs. GRANT. You know, I assume him and Jack were very good friends.

Mr. HUBERT. I'm not suggesting to the contrary.

Mrs. GRANT. He never did call me and I never called him—I don't remember calling him. I have called him many times since then.

Mr. HUBERT. Yes; I know, but I'm talking about during this particular period of 3 days.

Mrs. GRANT. I don't think he has ever called me—I have called him.

Mr. HUBERT. No; I mean—let's restrict ourselves for the moment to the three days of November 22, 23, and 24.

Mrs. GRANT. He may have called me on the 24th of November.

Mr. HUBERT. After Oswald was shot?

Mrs. GRANT. Well, there was at least 20 calls when I did not pick up the phone—people in my home did.

Mr. HUBERT. No, ma'am; that's not what I'm talking about but let me get at it this way—was there any contact between you and Ralph Paul from the time the President was shot until the time Oswald was shot?

Mrs. GRANT. No; definitely not. Can I go back with something?

Mr. HUBERT. Yes, ma'am.

Mrs. GRANT. Let me explain about this Raymond Jones. He worked for 19 years at the Dallas Athletic Club and when Jack got in trouble, the very next week he had made a remark to his boss, whoever he is, "I'm going to see my friend," they said, "Where are you going?" And he said, "I'm going to see my friend," and they said, "Who is your friend?" And he said, "Jack Ruby." They told him that if he went to see Jack that he didn't have a job. He says, "Well,"—he came back and he went to see Jack and he couldn't get in and he came to see me at the Club and he says he just quit. I said, "After 19 years?"

Mr. HUBERT. The Vegas was closed too, was it not?

Mrs. GRANT. It was closed on and off a few times after that.

Mr. HUBERT. No; I mean, the Vegas was closed on November 22, November 23, and November 24?

Mrs. GRANT. Well, 2 days after that—it was closed for 5 days.

Mr. HUBERT. And then ultimately it was sold?

Mrs. GRANT. Then, I opened it again and I closed it and I opened it for New Year's and I closed it permanently January 4.

Mr. HUBERT. Until when?

Mrs. GRANT. Until someone else bought it—it wasn't in operation until this woman got her license, which was about the 1st of March.

Mr. HUBERT. And of course the Carousel closed too because of the license lapsing—the liquor license?

Mrs. GRANT. Yes; they closed February the 12th, from what I understand—their liquor license was revoked.

Mr. HUBERT. Well, let's take a break for a few minutes.

Mrs. GRANT. You mentioned a man's name McKeown or something like that; may I ask you what he does?

Mr. BURLESON. Let's take a break now, Eva.

(The deposition proceedings were recessed as heretofore stated and continued as hereinafter shown.)

Mr. HUBERT. Let the record show that the deposition is continuing after the recess at 9:10 p.m. and that Mr. Burleson will ask some questions with respect to the block of questions and the areas covered by those questions before I go on.

Mr. BURLESON. Mrs. Grant, you were saying out at the Vegas Club that the employees were paid in cash, and you mentioned something about giving them some type of check with their name on it. Would the transaction be such that you would give them a check and then cash the check for them in effect?

Mrs. GRANT. That's exactly it, but the check never went through the bank procedure. It was like a voucher that they had received that money on.

Mr. BURLESON. Was it on a regular bank draft that it was made out on?

Mrs. GRANT. Most of the time.

Mr. BURLESON. And the net effect would be that you would give them a check and then cash it for them and take the check back and give them cash?

Mrs. GRANT. Well, I put the check in an envelope and I would have—like your salary is \$65, withholding and social security, and write on the back of the envelope that, and a lot of them kept their envelopes and a lot of them threw it out and they had signed the check and returned it and the balance of what money they should receive was in there.

Mr. BURLESON. Now, you were in the hospital the first part of November 1963?

Mrs. GRANT. I was sick for a solid week.

Mr. BURLESON. Now, you had been having some trouble for quite some time?

Mrs. GRANT. That's right.

Mr. BURLESON. And as a matter of fact, Jack had been trying to get you to go into the hospital because the doctors had advised him and you that you needed this operation immediately? And you had been prepared on at least one, or maybe more than one occasion, to go to the hospital and everything had been arranged for the operation and you backed out at the last moment?

Mrs. GRANT. That's right.

Mr. BURLESON. And Jack knew that you were having this trouble and knew that the doctors recommended that, and you talked with your doctors about this?

Mrs. GRANT. All through the whole week.

Mr. BURLESON. And finally he was able to get you in the hospital there the first part of November 1963; is that correct?

Mrs. GRANT. Yes.

Mr. BURLESON. And you then had what—a partial or complete hysterectomy, or do you know?

Mrs. GRANT. I know they took out a tremendous tumor and a lot of things—I didn't ask because I don't know what parts it was.

Mr. BURLESON. Who was the doctor?

Mrs. GRANT. Bill Aranov.

Mr. BURLESON. Then you got out of the hospital 7 days after the 6th, which would have been about the 13th?

Mrs. GRANT. That's right.

Mr. BURLESON. And that was in the middle of a week—about a Wednesday, wasn't it?

Mrs. GRANT. Yes; Wednesday—that's right.

Mr. HUBERT. Now, were you given some medication after you left the hospital?

Mrs. GRANT. Well, not for a few days, I would say, but about the third or fourth day I got pretty bad.

Mr. BURLESON. You started what—hurting and being in pain?

Mrs. GRANT. Tremendous pain.

Mr. BURLESON. And did this doctor that had operated on you prescribe some pills?

Mrs. GRANT. His coworker or assistant—I think his name is Dr. Bookatz.

Mr. BURLESON. But, at any rate, a doctor did prescribe some pills. What type of pills were they, do you know?

Mrs. GRANT. I believe that they have codeine in it.

Mr. BURLESON. What would be the effect on you that these pills would have?

Mrs. GRANT. Well, they put me into a trance and made my body stiff and I didn't have any more pain but I wasn't as alert as I usually was.

Mr. BURLESON. Did it affect your thinking?

Mrs. GRANT. Yes.

Mr. BURLESON. Did Jack visit you in the hospital?

Mrs. GRANT. Oh, yes; two or three times a day—mostly two times anyway.

Mr. BURLESON. And called on the phone sometimes?

Mrs. GRANT. Oh, yes; and sent me three bouquets of flowers and everything.

Mr. BURLESON. And how long did you take this medicine after you started taking it—2 or 3 days after you got out of the hospital?

Mrs. GRANT. Well, I really didn't start to take it until the weekend after I was home.

Mr. BURLESON. That would have been the weekend about the 16th?

Mrs. GRANT. That's right.

Mr. BURLESON. And how long did you take it?

Mrs. GRANT. Well, there was 1 or 2 days I cut down and then I—about the 21st, which was a Thursday, I had an unusual severe pain and I started all over again.

Mr. BURLESON. Taking heavy doses of it?

Mrs. GRANT. Well, they are tablets and I called his nurse and she suggested to take them but not as often as I did when I complained it threw me into a trance but it still did, because I am not a pill taker and I guess pills work a little better on me.

Mr. BURLESON. Were you taking pills on the day of the 22d of November?

Mrs. GRANT. I already had two pills by the time the President was assassinated—these pills are prescribed one every 4 hours.

Mr. BURLESON. Do you subscribe to the Dallas Morning News or did you back on November 22?

Mrs. GRANT. No, no; but my manager was very sympathetic.

Mr. BURLESON. Your manager?

Mrs. GRANT. My manager brought it up every day she came to the apartment.

Mr. BURLESON. That's your manager at the apartment house?

Mrs. GRANT. Yes.

Mr. BURLESON. And she brought it up—the paper?

Mrs. GRANT. Every day.

Mr. BURLESON. About what time of the morning on November 22 did she bring it up?

Mrs. GRANT. It may have been around 11 o'clock.

Mr. BURLESON. Had you heard from Jack before that concerning the ad?

Mrs. GRANT. No; shortly—it seemed within the next 20 minutes I would think that he may have called.

Mr. BURLESON. Had you seen the ads by Bernard Weissman by the time Jack called?

Mrs. GRANT. Well, I had seen it, but I'll be honest—I didn't——

Mr. BURLESON. Did you see it after you got the paper on the morning of the 22d before Jack called on the 22d?

Mrs. GRANT. Yes, I did.

Mr. BURLESON. And Jack was talking about it at that time?

Mrs. GRANT. He was.

Mr. BURLESON. And would you relate at this time some of the things you recall he said at that time about the Bernard Weissman ad.

Mrs. GRANT. Well, the first thing he asked was if Pauline is going to take over—she was the manager, and do this and do that and get the napkins

and all of this stuff connected with the club and then he said, “Did you see the ad?”

Mr. BURLESON. This was before the President was shot?

Mrs. GRANT. Yes. It so happened that that whole page was like on the back of a section—it seemed to me anyway that it was that way and it was open right on my bed—that section, anyway, was opened at that time for some reason or other.

Mr. BURLESON. What did Jack say when he called you about the ad?

Mrs. GRANT. At that time he said, “Did you see the ad?” And I said, “What ad?” He said, “About the President?” And I said, “Yes.” It said, “Welcome, Mr. Kennedy,” and he didn’t say too much then. He said some words in regard—like what do you think of it, so I said, “Oh”—He said, “Did you read it?” And I says, “Yes, yes.” You know, I wanted to get away.

Mr. BURLESON. Had you really read it?

Mrs. GRANT. Even if I did, I’ll be honest about it, it didn’t appear to me to be bad or good because I didn’t read all the way down and think about it and I didn’t study it like maybe I did later.

Mr. BURLESON. Anyway, go back to what he said then.

Mrs. GRANT. Well, he said, “Read it.” He says, “I’ll call you later.” And he was in the Dallas Morning News, I think, at that time.

Mr. BURLESON. He said something to lead you to believe that?

Mrs. GRANT. Yes; well, he said—it seems to me, “I’m in the News, and I’m going to Toni Zoppi’s office,” which was somewhere in the building, and “I’ve got to pick up a pamphlet.”

Mr. BURLESON. Toni Zoppi being the entertainment editor or amusement editor of the Dallas Morning News?

Mrs. GRANT. That’s right; and Jack had given him an ad a week before on a certain entertainer and that’s the fellow that made the remark, but that was Del Mar—Bill DelMar or DeMar or something like that, and Jack wanted it because, I guess, the entertainer wanted all this stuff back—that’s what we call writeups.

Mr. BURLESON. When was the next time, then, that you heard from Jack; was that after the assassination?

Mrs. GRANT. Yes.

Mr. BURLESON. And at that time what was Jack's state as you recall it?

Mrs. GRANT. Well, I was hysterical myself. He must have been crying, from his voice.

Mr. BURLESON. At the time that he called, did you know that President Kennedy had been assassinated?

Mrs. GRANT. Oh, yes; because Pauline had called me and on my clock it was about 25 to 1.

Mr. BURLESON. What was Jack doing—saying—or was he crying?

Mrs. GRANT. Well, when Jack called it was after 1 again.

Mr. BURLESON. How was he—was he upset or normal?

Mrs. GRANT. Oh, he was upset.

Mr. BURLESON. What did he say?

Mrs. GRANT. He says, "I'm in the Dallas Morning News," and I could hear—it wasn't distinct, but he says, "The people are all around here, the phones are ringing like hell and everyone is canceling their subscriptions and their ads—big ads from all over the State," and he said, "Did you read it?" And so I read it again.

Mr. BURLESON. While he was waiting?

Mrs. GRANT. No; but I mean since then—I looked at it—I'll be honest about it, I didn't comprehend it.

Mr. BURLESON. Okay.

Mrs. GRANT. You see, I didn't comprehend it.

Mr. BURLESON. Tell us what else he said.

Mrs. GRANT. Well, Jack said something about John Newman, the fellow that takes the ads there and he says, "You know, Jack, I have to take orders from my superiors," and Jack, whether he told me that night or later on in the afternoon—he said, "What are you—so money hungry? That you have

to take \$1,500 for an ad?” Jack knew a full page cost approximately that—I mean, he is well aware of that.

Mr. BURLESON. Let me bring you forward a little bit on these occasions that you told the FBI about in these statements where Jack spent this time with you at your house—would you watch television during this period of time or some of the time?

Mrs. GRANT. Well, he didn’t. I had watched it a great deal that afternoon on a Friday, and he came over—it seems to me when he left the News he came over and came back later on with a lot of groceries and by that time either I saw Curry or somebody else on the television and he was saying, “We got the right man.”

Mr. BURLESON. Did Jack see that?

Mrs. GRANT. I don’t know—I really don’t know. I tell you—usually under those pills, I thought I heard it plenty that day, and we got sick when we were talking about that.

Mr. BURLESON. Did you and Jack talk about Lee Harvey Oswald?

Mrs. GRANT. He had made very few remarks—he says, “He’s a creep.” You see, “a creep” is a real low life to Jack and “what a creep he is,” he says, and he was sick—he went in the bathroom.

Mr. BURLESON. Did he actually vomit?

Mrs. GRANT. He did not—he was sick to his stomach and he cried, he looked terrible—he just wasn’t himself, and truthfully, so help me, I remember even my mother’s funeral—it just killed him. He said this, “Someone tore my heart out,” and he says, “I didn’t even feel so bad when pops died because pappa was an old man. He was close to 90.”

Mr. BURLESON. What did Jack have to say about President Kennedy?

Mrs. GRANT. Oh, all I know is that it just killed him. I’ll tell you the truth—he sat there like it wasn’t worth life—like he thought they were out to get the world, the whole world, and this was part of it.

Mr. BURLESON. All right. He was very respectful of President Kennedy as a man and as a President?

Mrs. GRANT. Oh, he admired him—he thought this man was a great man of courage. If I said anything like I said there—something about his brother and integration, he said, “This man is greater, than Lincoln”—the same night.

Mr. BURLESON. Did Jack ever have an occasion to say anything to you about a letter that was in the newspaper that was written by some man, purportedly to President Kennedy’s daughter, Caroline?

Mrs. GRANT. I don’t know about that, but the week—the same week of the assassination—I think it was Monday or Tuesday—it was that week, there was a picture of the President sitting behind the desk just like you are and John-John was sitting at the front and you could see him playing around, I think it was his father’s feet, and he called it his house—I think, let me put it this way: My brother says, “This kid don’t know his father is the President and the father don’t act like a President.” He meant that he was just like a good guy—like acting ordinarily, like he wasn’t of wealth or power—he was just like the average young man and Jack looked at him as even being much younger than he was.

Mr. BURLESON. But you don’t know anything about such a letter being in the paper that Jack saw?

Mrs. GRANT. I don’t know—if he did, I don’t know it. I’ll tell you, I don’t know about that picture—it was the first week that I was home.

Mr. BURLESON. On Saturday, the times that Jack was in your house, do you recall if he watched any television?

Mrs. GRANT. No—very little. Saturday he came in with three pictures, and at the left hand corner, they were postal card pictures and he told me what he did. He went home and he couldn’t sleep—he got Larry out of bed and George Senator, and I thought he was nuts, I’ll be honest with you about it, so help me.

Mr. HUBERT. Who?

Mrs. GRANT. I thought my brother Jack was plain nuts.

Mr. BURLESON. Is that when he went out in the middle of the morning and took the pictures?

Mrs. GRANT. That's right; and he didn't know exactly where he saw it—that was the worst part of it and Larry told me that later on when they found him, he came back to it and they drove around and waited for daylight and he showed Larry how to take the pictures.

Mr. BURLESON. You are talking about the "Impeach Earl Warren" sign?

Mrs. GRANT. That's right—all of this got in Jack's mind that some Communist—no, no—he didn't use the word "Communist". I think he said "Some outfit or some lousy guy," or something was putting up signs like that.

Mr. BURLESON. Did Jack tell you what he was going to do with this picture?

Mrs. GRANT. Yes.

Mr. BURLESON. What?

Mrs. GRANT. First, he showed it to me—three little pictures.

Mr. BURLESON. You actually saw the pictures?

Mrs. GRANT. Yes—I saw them—they are postal cards—laying out on my white table. They were this big (indicating).

Mr. BURLESON. These are pictures of "Impeach Earl Warren" signs?

Mrs. GRANT. Yes; and they looked like the American flag.

Mr. BURLESON. And it was on this Polaroid film?

Mrs. GRANT. The camera is still at my house, so that's the same camera, I'm sure.

Mr. BURLESON. All right.

Mrs. GRANT. It was like a postal card picture. It seems to me in the left hand corner was that, and at the bottom it said, "Belmont—Impeach Earl Warren," and a box number and it said, "Belmont, Massachusetts."

Mr. BURLESON. What did Jack tell you as he showed you those pictures?

Mrs. GRANT. He called Stanley because he had a lot of faith in him.

Mr. BURLESON. Stanley who?

Mrs. GRANT. Stanley Kaufman; an attorney. This is another wonderful American, and he said, "Stanley," and he told him about the pictures and then he talked to me, he says, "You know what, I went down to the post office and the newspaper box—the post office box——"

Mr. BURLESON. The newspaper box of Bernard Weissman's ad?

Mrs. GRANT. Yes—"It's so stuffed with mail," he said to the clerk, and you can find out now which clerk this is, and on the 23d he was there at 6 or 7 o'clock in the morning and Larry and Senator should know the time—I really don't know that—but it seems to me that's what he said.

First of all, he figured that a gentile is using that name to blame all this on a Jew—about that ad, and then he analyzed the ad on Saturday and he saw the black border.

Mr. BURLESON. Will you tell me what Jack said he was going to do with these pictures?

Mrs. GRANT. He talked to Stanley and he was going to take them to the FBI—Monday, the first thing.

Mr. BURLESON. Was he also going to take them to Mr. Gordon McLendon who was the operator of KLIF?

Mrs. GRANT. Yes; he said he was going up there that night. Whether he did or was there or not, I don't know.

Mr. BURLESON. Did he mention at that time—did he mention Mr. McLendon's name, that Mr. McLendon does these editorials on radio station KLIF?

Mrs. GRANT. Yes—he was very close to Gordon.

Mr. BURLESON. All right.

Mrs. GRANT. In fact, I think he called Gordon from my house. He was there—and on Saturday he spent a long time with me and he called many people.

Mr. BURLESON. And he was quite upset over these pictures and signs?

Mrs. GRANT. Yes.

Mr. BURLESON. Now, let's come forward to where we were talking about this Al Gruber.

Mrs. GRANT. Yes—Al.

Mr. BURLESON. Or it's possibly Alex Gruber.

Mrs. GRANT. Yes; it's Al Gruber—his nickname is Musty.

Mr. BURLESON. And there was something about a dog?

Mrs. GRANT. Yes.

Mr. BURLESON. Now, is this the dog that Jack was having someone build a crate for?

Mrs. GRANT. That's right; or buy a crate or something.

Mr. BURLESON. And that he could ship this dog to Al Gruber in a crate?

Mrs. GRANT. It seems to me when Al was here when I was in the hospital, Jack had promised him a certain dog, I don't know which one it is, and not a dog, but a certain dog, because Jack had a lot of dogs. His dogs just had puppies, I think, in the last month and Al had talked to—Jack had talked to Andy Armstrong—Andrew—and said something about getting a crate and Al wanted this dog.

Mr. BURLESON. Now bringing you forward a little bit to this episode that you and Jack had the trouble over that ended up in going to Rabbi Silverman and that you touched upon?

Mrs. GRANT. Well, he went to Rabbi Silverman because we weren't talking for about 2 weeks. This was previous to the operation.

Mr. BURLESON. All right; and did Rabbi Silverman talk to you?

Mrs. GRANT. Yes.

Mr. BURLESON. Had Jack complained to him that he couldn't get along with you or something?

Mrs. GRANT. Well. I don't know exactly what Jack said—the rabbi, you see, didn't tell me, but I told the rabbi about this money deal. Of course, I didn't tell him that I didn't go to the hospital on all these times that I had made arrangements with the doctors and backed out.

Mr. BURLESON. Now, you were asked some questions concerning Jack's political beliefs or political leanings or political philosophies or political—anything that had to do with politics, did you ever hear Jack saying anything about being a Democrat or a Republican or being a right wing or left wing—he didn't get involved in politics?

Mrs. GRANT. Now, this is it—my older brother knew a lot of Democrats and it seemed that we followed in their footsteps, because this is what I heard as a child—that the Democrats are for the poor people, so we as poor people went along with them, but we were never the kind that I was to go out and get votes or boast about a fellow—me and Jack—never.

Mr. BURLESON. You don't know if Jack worked in any type of political movement?

Mrs. GRANT. Not to my knowledge. My older brother did—he was a Democrat and he worked for Governor Horner.

Mr. HUBERT. Who is the older brother?

Mrs. GRANT. Hyman.

Mr. BURLESON. Now, I think you also told me that Earl Ruby's wife had a great admiration for President Kennedy also?

Mrs. GRANT. Truthfully, Earl couldn't get out of her sight unless she OK'd it, but she was such a great admirer, and you know how much time he spent down here and money and Earl said she never said a word—she just loved him.

Mr. BURLESON. You mean loved the President?

Mrs. GRANT. The President—the late President. They've got pictures—little pictures before the assassination—they had all of those.

Mr. BURLESON. That's enough on that. Now, one last area—

Since, and limit this to strictly since the conviction, you have visited Jack nearly daily in the jail?

Mrs. GRANT. Well, I would say at least six times out of the week.

Mr. BURLESON. What is, in your opinion, Jack's present condition?

Mrs. GRANT. I believe he is mentally deranged, inasmuch as I'm not a doctor, but from what he says to me.

Mr. BURLESON. You have now, as of this moment, been informed by a newspaper and also by me about what Jack attempted to do today?

Mrs. GRANT. Yes; I have.

Mr. BURLESON. And you were informed and knew of what Jack had attempted to do about a month ago when he rammed his head up against the wall, were you not?

Mrs. GRANT. Yes.

Mr. BURLESON. What has Jack told you as to what you should do with and to yourself?

Mrs. GRANT. He wants me to do away with myself.

Mr. BURLESON. Does he give you a reason why?

Mrs. GRANT. He thinks they are going to kill out all the Jews and he has made remarks that 25 million Jews have been slaughtered.

Mr. BURLESON. Already?

Mrs. GRANT. On the floor below.

Mr. BURLESON. And they are being slaughtered where?

Mrs. GRANT. In the jail and sometimes it's planes going over and they are dropping bombs on the Jews.

Mr. BURLESON. Has he told you about hearing or seeing Jews boiled in oil?

Mrs. GRANT. Oh, yes.

Mr. BURLESON. And has he told you about seeing or hearing his brother, Earl, being dismembered?

Mrs. GRANT. Yes; and his children.

Mr. BURLESON. And Earl's children, and by dismembered, he has seen them cut off?

Mrs. GRANT. Arms and legs—they are cut off.

Mr. BURLESON. Does he, nearly every time you talk to him, ask you to check on them, when is the last time?

Mrs. GRANT. I have to sort of tell real lies, that I just got through talking with Sam and Earl and with Eileen and with Sam and everything is OK.

Mr. BURLESON. Because he says that they have been doing this to them?

Mrs. GRANT. He says many times he has seen Sam on the second floor and the rabbi was going—yesterday, they took the rabbi, sometimes they take Stanley.

Mr. BURLESON. That's Stanley Kaufman you are talking about?

Mrs. GRANT. Stanley Kaufman.

Mr. BURLESON. In other words. Jack just doesn't make sense when you talk to him?

Mrs. GRANT. Oh, no; then sometimes he will say one thing that will be all right and then he goes off into this stuff.

Mr. BURLESON. Has Jack told you that he was actually tried for the killing of President Kennedy?

Mrs. GRANT. No; but he thinks that they think that he killed the President.

Mr. BURLESON. Did he tell you that what he went through with was not really a trial, but a farce?

Mrs. GRANT. Yes.

Mr. BURLESON. And part of a play?

Mrs. GRANT. In fact; his verdict is on the 14th and the next day he says to me in front of Eileen, "When will the trial be?"

Mr. BURLESON. Did he say it wasn't really Judge Brown that was up there but somebody else?

Mrs. GRANT. That's exactly what he said.

Mr. BURLESON. Did he tell you anything about their introducing evidence in his absence?

Mrs. GRANT. Yes.

Mr. BURLESON. And that evidence that they were supposed to have introduced is the fact that he killed President Kennedy?

Mrs. GRANT. Well, he just thinks they are blaming him for it and they think he did it and they are going to take it out on all the Jews.

Mr. BURLESON. Does he tell you many times that you will never see him again because he will be killed?

Mrs. GRANT. Every time he kisses me goodbye that day, he says, "You will never see me again. Do away with yourself."

Mr. BURLESON. To save yourself this punishment?

Mrs. GRANT. That's right.

Mr. BURLESON. What is your opinion as to his present condition mentally?

Mrs. GRANT. I have seen him just 24 hours ago and he was in a very bad state of mind.

Mr. BURLESON. He was in a very bad state of mind?

Mrs. GRANT. That's right.

Mr. BURLESON. How about physically?

Mrs. GRANT. He has lost between 35 and 40 pounds to my knowledge. He looks like he has been in a concentration camp.

Mr. BURLESON. What is his greatest desire as you know it right now?

Mrs. GRANT. He wants to tell the Warren Commission the truth—he wants truth serum and a lie detector test.

Mr. BURLESON. The truth being not going into the psychomotor variant epilepsy.

Mrs. GRANT. He don't know much about that—he doesn't even know what they are talking about.

Mr. BURLESON. He just wants to tell how he felt and how these things affected him?

Mrs. GRANT. That's right.

Mr. BURLESON. I believe that's all on those.

Mrs. GRANT. All right.

Mr. HUBERT. When he tells you these various things, do you try to straighten him out and say to him that it is not so?

Mrs. GRANT. When it first started—I didn't realize this—I hadn't said things—I said, "Don't be crazy," just words like that—"what are you talking crazy," and then when we got to—this Dr. Beavers into the case and I talked to him and he read something of his report and, of course, my sister was here at that time. Every day he would say to her, "You'll never see me again. Kiss me goodbye through the glass." You know, if it wasn't so serious it would be funny in a way, because it don't seem like him. It seems that if I agree with him it's no good and I have tried—I realize Dr. Beavers said if you'd try agreeing with him then he says, "You don't believe me, do you?" He says, "They are playing a game with you, don't believe Phil, don't believe him." And I said, "What about the rabbi?" And he says, "The rabbi don't listen to me." And truthfully, every time the rabbi went up there he came down sick and disgusted with himself—he's trying to knock some sense into Jack and it don't work—it doesn't register with the rabbi, you see.

Mr. HUBERT. What I wanted to get at—you all are trying to discourage him from having these views?

Mrs. GRANT. Well, after talking to the psychiatrist, I said I don't know what to do. If I tell you, you will agree with him it is no good, and if I don't—I stay there and listen through this glass.

Mr. BURLESON. I might be able to help with that—help clarify that—when he says that they have just killed Earl or Sam or their children, you say, “No, that's not true because I just talked to them?”

Mrs. GRANT. I say, “I just talked to them,” and then we'll get onto something and I will try to talk about a friend who wrote a letter or someone came to see him and he goes right back, he says, “There's no more Earl. They have dismantled him.” That's the words he uses.

Mr. BURLESON. And do you come back and say, “Well, it's not true because I just talked to him 30 minutes ago or 2 hours ago?”

Mrs. GRANT. Or, he makes me promise, “Will you call them tonight to be sure it's not so—to be sure it wasn't him,” and I'll be sure that it is somebody else on the phone. They can check with the calls last Saturday—he made seven calls to Chicago.

Mr. HUBERT. Who did?

Mrs. GRANT. Jack; he don't know that he made them, he don't know that he made that many. I got the letter that he made them from Eileen at home.

Mr. HUBERT. He is allowed to make phone calls though?

Mrs. GRANT. Well, sometimes—I think he annoys them a little bit—those who sympathize with him and they figure he's pretty screwy, you know he is really gone—he makes these collect calls to Chicago and they let him and there are one or two guards that aren't as nice—I think they are not as tolerant.

Mr. BURLESON. Let's go off the record just a second, so that I can give Mr. Hubert some information.

(Discussion between counsel and the witness off the record.)

Mr. BURLESON. They have a pay phone out there in the jail, do they not?

Let's go off the record just a second to give Mr. Hubert some information.

(Discussion between counsel off the record.)

Mr. HUBERT. I have to explain what went on while we were off the record.

Let the record show that while we were off the record Mr. Burleson was explaining to me the circumstances used in the jail for allowing prisoners, especially those who are under a death sentence to use the pay phone in the jail, and that was the substance of the conversation off the record.

Now, do you have any more questions, Mr. Burleson? Are you through?

Mr. BURLESON. Yes.

Mr. HUBERT. I wanted to get into the matter of the financing of the defense of your brother, Jack—I suppose we should start with the selection of the attorneys originally in this case. Now, we know that Mr. Tom Howard apparently took the first affirmative action on behalf of Jack Ruby in the afternoon of November 24.

Mrs. GRANT. On the 24th.

Mr. HUBERT. And I want to ask you if you know by whose authority he took this action?

Mrs. GRANT. Ralph Paul, who knows nothing about lawyers—only knew Howard and they called them thinking they could get back on bond. Now, I didn't know Oswald died until later in the afternoon. I was hysterical over this shooting and being sick and the President's assassination—in fact, my television was on but it was turned down.

Mr. HUBERT. In other words, it was Ralph Paul that called Mr. Howard for the initial step?

When it came to the charge of the matter which ultimately followed, did you have anything to do with the selection of the attorneys who would defend your brother Jack?

Mrs. GRANT. Let me put it this way—there was Daugherty and Sullivan and Jim Martin, and one guy was threatened and one fellow's wife didn't

want him in. Tom Howard pushed Jim Martin out of the case. I was panicky here. I had asked Tom to call Fred Brunner, Charles Tessmer—what is the name of this Erisman?

Mr. BURLERSON. Fred Erisman.

Mrs. GRANT. Erisman or something like that and also Percy Foreman to get another lawyer—you know, a super lawyer that I felt—I didn't know too much about Tom, but talking to Chicago and people telling me here and everything, anyway, Tom remained in the case and I understand he didn't contact these people as quickly as he should and Earl was panicky up in Detroit.

Mr. HUBERT. Didn't Earl come down here as a result of that?

Mrs. GRANT. Not that day.

Mr. HUBERT. Not that day?

Mrs. GRANT. I don't know how many days later he did come, but we were on the phone constantly. He went to the west coast and he went to see one of the names there, Mike Shore who knows Frank Sinatra there and we figured that they would know somebody and that's how Belli came into the picture. Now, that is that part of the picture. Now, we didn't have any money.

Mr. HUBERT. What about Tonahill, how did he get in?

Mrs. GRANT. Oh: he was a friend of Belli's—Belli invited him in—as much as I know.

Mr. HUBERT. In other words, Tonahill came in after Belli did; is that correct?

Mrs. GRANT. Or maybe together—they were together I think on insurance cases previously—I assume this.

Mr. HUBERT. So, Belli chose a local lawyer, as it were, to go along with him; is that the idea?

Mrs. GRANT. Well, Tom was still in the case. Tom called him right away.

Mr. HUBERT. Called who?

Mrs. GRANT. You know more about that—Tom got us an investigator, Bob Dennison.

Mr. BURLESON. You made the statement that Tom called you?

Mrs. GRANT. Tom called you.

Mr. HUBERT. You mean Phil Burleson?

Mrs. GRANT. Phil Burleson.

Mr. HUBERT. And ultimately, in any case, Mr. Belli was retained to handle the defense?

Mrs. GRANT. That's right.

Mr. HUBERT. Was a fee arrangement made with him?

Mrs. GRANT. Let me explain that part—this is what I know. I was not in San Francisco or Los Angeles. Earl told me this—he says, “You’re looking at Belli—\$75,000,” and Earl thought you might as well have said \$75 million, but he says, “I will want about \$25,000 to pay my expenses and I think I could write a book and make \$50,000.”

Mr. HUBERT. Earl was telling you that?

Mrs. GRANT. Earl told me words that——

Mr. HUBERT. That Belli had told him?

Mrs. GRANT. Yes; and this is what took place in their conversation.

Mr. HUBERT. When you were quoting some sentences there a moment ago, I understood you to mean, and see if I am correct, that Earl was telling you what Belli had told him?

Mrs. GRANT. Yes, and I don't know if there was a contract—I assumed it was agreeable with Earl. Earl already had talked to a fellow by the name of Billy Woodfield, the writer. Billy Woodfield, and don't ask me how they got connected—I know little about these things—he's going to write a short story for Europe, and he probably could help us raise this initial \$25,000 cash. Well, no; he didn't say that—that was for his expenses—he didn't get any money down that day as far as I know.

Mr. HUBERT. Then, the fee was \$75,000, of which he thought——

Mrs. GRANT. He could write a book and retain \$50,000 out of the book, but he would like \$25,000.

Mr. HUBERT. As soon as possible?

Mrs. GRANT. That I don't know—he says for expenses on the case.

Mr. HUBERT. How much was actually paid to him; do you know?

Mrs. GRANT. Let me tell you this—the short stories were sold in Europe and some in America through newspapers. Each paper paid separately—\$400, \$300, \$600, and the story said, “My story—Jack Ruby.” I gave most of the story, Jack gave some of it, but I knew this story—what would you call it—little incidents that happened in his life, some of it, and some part of the story was right on Friday and Saturday the 22d. I gave the whole story, you know, I have newspaper stories of it, and I gave it to Belli, and all these little stories, we were supposed to get \$50,000 from all the different agencies that bought this to put it in their papers—that's how it's done, but we received, I would say to my knowledge, \$23,000.

Mr. HUBERT. How was it handled?

Mrs. GRANT. Earl.

Mr. HUBERT. Earl controlled the funds at that time?

Mrs. GRANT. At that time, yes. It came to the writer and the agent, Larry Schiller and Billy Woodfield. Larry sells the story, Billy wrote the story. You know, you need a writer even though you write.

Mr. HUBERT. I'm talking about the money that came to you?

Mrs. GRANT. Well, they received some money on the west coast but they deposited it in a bank with an escrow deal.

Mr. HUBERT. In what bank and under what name was it?

Mrs. GRANT. Earl will tell you—Earl has papers from the bank.

Mr. HUBERT. You don't know that?

Mrs. GRANT. I know it's in Hollywood and I know Earl says he received about \$23,000.

Mr. HUBERT. It was not handled in Dallas.

Mrs. GRANT. Not to my knowledge—1 cent of that.

Mr. HUBERT. But you say that Earl is the one who is handling the money?

Mrs. GRANT. At that time, Earl had power of attorney.

Mr. HUBERT. He had a power of attorney from Jack?

Mrs. GRANT. Yes.

Mr. HUBERT. In other words, this contract was made for the benefit of Jack, as it were, and the money that came in was put into some escrow agreement and then Earl was able to withdraw from that and sign checks against it by virtue of the power of attorney; is that right?

Mrs. GRANT. That's right, that's right; these people received, I would say, 35 percent.

Mr. HUBERT. Is that correct—the way I put it?

Mrs. GRANT. Yes; but we received ourselves, I think, \$23,000—there may have been \$30,000.

Mr. HUBERT. What happened to the money you did receive?

Mrs. GRANT. Earl has checks that were made out directly to Belli, which I think he himself cashed about \$13,200.

Mr. HUBERT. Who is "he"?

Mrs. GRANT. Mr. Melvin Belli. I do know that the doctors were paid and that may have run to \$3,500, and we do know that Bob Dennison received \$4,000. I cannot give you step by step because I do not have it, but Earl has an accounting of all the money received through the efforts of that story; however, Earl has spent—I don't know how many thousands. In the first place, I think Earl put in \$7,000 right away for things, but he took it out later.

Mr. HUBERT. Do you know how much has been received all told—you say about \$23,000 as a result of the story?

Mrs. GRANT. That's as much as I know. This is what I know. There may have been some money—we were supposed to get money in later, but I don't know if we got it.

Mr. HUBERT. Were there any other people or organizations that contributed any money?

Mrs. GRANT. No; well——

Mr. HUBERT. Or, do you know?

Mrs. GRANT. Yes; I know. But I'm trying to think how to tell it to you. Recently we received \$100 from Walter Winchell in the last 10 days. We received \$250 a month ago from friends back in Chicago. Then there is a lot of 5's and 10's—I guess I, myself, could not go into that account, by the way. In the city of Dallas, I received \$245 that I had given to Eileen to reimburse Earl. We put that in a Jack's defense fund. I received that amount, then that was December and January—those months, and then in March or April, I think I also took \$110—let me tell you, the money comes into the county building, you know, the checks, and when I say I received it, it doesn't come directly to me.

I typed up all the money on a list and I sent it on to Eileen with a check for deposit of \$110. That's the money that I know, but if we will stop for a minute, I know the hundred, the 250, the 245 and the hundred—those were plus that \$23,000. Now, if there is any other money—did I tell you any other money? I told you everything there was.

Mr. HUBERT. There are no substantial amounts?

Mrs. GRANT. Oh, no; listen, don't listen to those reports.

Mr. HUBERT. Except from the result of the selling?

Mrs. GRANT. The big fee was \$250 and the story was sold, and we received—I would say Larry Schiller and Billy Woodfield took 35 percent of the money—the writer and the agent that sells it of the story. I know there was \$23,000 came in and there may have been more since then.

Mr. HUBERT. In any case, Earl would have more accurate figures?

Mrs. GRANT. Oh, yes.

Mr. HUBERT. As far as you know, in the handling of the money, it is less than a thousand dollars that came through you?

Mrs. GRANT. I think there is a thousand in all of this money and a few hopes. The New York Times was very sympathetic and they put an ad in

their paper. Most papers will not take an ad for what you call “Jack Ruby’s Defense Fund.” The ad cost \$150—I think they took it less than the ad.

Mr. HUBERT. You paid \$150?

Mrs. GRANT. I didn’t—someone in Chicago or Earl must have paid it, but I do know that, that ad went in. Now, if any other little moneys come in, I don’t have any accounting of it. I know it came in here—this is the money that I know.

Mr. HUBERT. And to your knowledge, then, what has come through your hands is less than a thousand dollars?

Mrs. GRANT. Well, let’s see—\$245, \$110, \$250, and \$100—I think that’s about it, unless I have forgotten some, but that’s all I know myself.

Mr. HUBERT. All the rest has been handled by Earl?

Mrs. GRANT. That was for the sale of the short story.

Mr. HUBERT. Now, at the present time who are the attorneys for Jack Ruby? That he still has? Mr. Tonahill is apparently still in the case?

Mrs. GRANT. Well, we retained Mr. Tonahill and Burleson from the very first minute and they are still in. Shall I tell him about Belli?

Mr. BURLESON. Go ahead.

Mrs. GRANT. The day of the verdict I got a telephone call that if Belli don’t get out of town they are going to kill him.

Mr. HUBERT. Do you know who the phone call was from?

Mrs. GRANT. No; but on the other hand, I think——

Mr. HUBERT. Did you convey that information to Mr. Belli?

Mrs. GRANT. No; but unfortunately, I didn’t hear from him Saturday. He had a heart attack while he was here, I think, during the trial—he was deathly sick.

Mr. HUBERT. Belli was?

Mrs. GRANT. There were a few days he went to get a cardiograph and all that. One of the days, 1 of the 2 days—well, it wasn’t 1 day, it was 3 days, really, but he went to court anyway, and I remember on the Saturday

he went to some clinic here and got all kinds of tests, but the day before he was almost a goner.

After I heard the news of the verdict and what came over radio or television, I thought he would die. He couldn't talk on the phone—he mumbled Saturday to some member of my family who called him. I didn't hear anything until later on—late Sunday afternoon, and Monday I went to visit him at his suite.

Mr. HUBERT. That was here in Dallas?

Mrs. GRANT. That's right; at the Statler-Hilton. He answered the phone and, of course, I heard mumbling and there were newspapermen and Life magazine men—I don't remember everyone that was there, but there were 10 or 12, maybe about 10 people, my sister and myself. His wife was leaving one direction and he was leaving the other. She was white as a ghost and he was white as a ghost and I just didn't say anything because they were packed up to leave and I didn't want it to get out because he said he was going to San Antonio, but I don't think he went there at all. I think he went another direction because he just wanted to sort of fool who was after him, but it was a very bad day for him and myself and my sister. I didn't even tell her that. You see, they were downtown and I was home in my apartment the day of the verdict. I was glad when he left. That, and adding up a few other things—people said, "You are lucky to get him out because you didn't know the things." They said, "They were trying Melvin Belli and they weren't trying Jack Ruby."

Of course, between that telephone call and everything——

Mr. HUBERT. Was that a local call?

Mrs. GRANT. Oh, no.

Mr. HUBERT. Or, was it a long distance call?

Mrs. GRANT. No; it was a local call.

Mr. HUBERT. Was it a man or a woman?

Mrs. GRANT. A man, and another thing, I know my phone was tapped and I know—it's a terrible thing to say, but I have all reasons to believe that the district attorney has been on it and is still on it. The only time they got off is when I went to the FBI and complained about it; that I thought my

brother wasn't protected in the city jail, and somebody knows every move I was making. It seems my phone was clearer after that, and truthfully, if the district attorney has any tapes on me, it should be in on the tape of the day of the verdict, and I was so sick over the verdict and having this.

Mr. HUBERT. You did not recognize the voice that made the threat against Belli?

Mrs. GRANT. No.

Mr. HUBERT. Were you asked to convey that information to Belli?

Mrs. GRANT. No; no.

Mr. HUBERT. How long did that conversation last; do you know?

Mrs. GRANT. Not over 3 or 4 minutes. It was the other party speaking. This happened the afternoon—the day my brother got his horrible verdict.

Mr. HUBERT. That was Saturday afternoon, March 14?

Mrs. GRANT. That's right; March 14.

Mr. HUBERT. About what time of the afternoon was it?

Mrs. GRANT. I would say after 2:30—sometime between 2:30 and 4, it seems.

Mr. HUBERT. It was a one-sided conversation, I take it?

Mrs. GRANT. Practically.

Mr. HUBERT. And the essence and the gist of the conversation was that if Mr. Belli did not leave town he would be injured?

Mrs. GRANT. The voice said something like this, "Mrs. Grant?" I says, "Yes." He said, "If Melvin Belli knows what's good for him, he had better leave town. They are going to kill him." Now, I don't know—this man didn't sound like a child and he didn't sound like an imbecile.

Mr. HUBERT. Did you ask him who he meant by "they"?

Mrs. GRANT. I'll tell you the truth, I was so shocked at the verdict, and before I knew it he was off—I was hanging on the phone there by myself.

Mr. HUBERT. Did he indicate to you in any way who "they" were?

Mrs. GRANT. No.

Mr. HUBERT. Or who was going to kill him?

Mrs. GRANT. No. Oh, now I want to tell you about—going back to Monday, which would be the 16th, there was conversation and, of course, I think I heard this Sunday too.

Mr. HUBERT. That's March 16?

Mrs. GRANT. I think March 16 was on a Monday.

Mr. HUBERT. That's correct.

Mrs. GRANT. But I may have heard this Sunday, that the sheriff—and there has been threats against Belli—and this is another thing I know, whether someone is on my phone and leaked it out—it wasn't me, that the sheriff is going to give Belli a guard out of town, that he has been threatened, but I already knew that. Then, I got to thinking about all of this and I says, "I hope he leaves, I don't want to have this on my mind," but, I knew when I was in his suite of rooms—somebody called there Monday afternoon sometime and he went to the phone for a minute; as a rule someone else was answering the phone, and then he went in the bedroom there and he answered the phone. He had quite a suite of rooms—three rooms, I think, and the remark among the people there—they said the sheriff is going to give him a guard, you know, escort him out of town.

Mr. HUBERT. You mean you heard that that afternoon.

Mrs. GRANT. Too, but it wasn't—I already had known that from the conversation Saturday afternoon, it didn't look good.

Mr. HUBERT. Did he comment upon this telephone call that he answered himself?

Mrs. GRANT. No; he hardly did any talking that afternoon.

Mr. HUBERT. Well, you mentioned the telephone call, I wonder why you did so, that is to say, what import you had put on it?

Mrs. GRANT. You want to know the truth?

Mr. HUBERT. Yes; I want to know the truth.

Mrs. GRANT. I was not thinking anything about it but he is coming back for a trial and I told Phil recently, I thought he was going to get his trial transferred from the Texas Bar Association and I guess he can't. I wasn't going to say anything about it—I figured—he's never coming back, but now I am a little scared. I wouldn't like anything—look, you don't want a lawyer in a case?

Mr. HUBERT. Let me finish about this phone call—is there any other significance to that phone call that you heard him answer? You mentioned it in connection with this.

Mrs. GRANT. It didn't look right when he left—left the phone.

Mr. HUBERT. That's just an impression, though, he didn't say anything to indicate the nature of it?

Mrs. GRANT. No; no.

Mr. HUBERT. You indicated that perhaps, I say—you indicated—the way you brought it up—it could be inferred perhaps that it was also a threatening phone call?

Mrs. GRANT. No, no; I didn't mean that at all.

Mr. HUBERT. But, do you know that to be a fact?

Mrs. GRANT. No, no; this was merely that the sheriff said he was going to escort him out of town.

Mr. HUBERT. Do you think it was the sheriff on the phone?

Mrs. GRANT. It could be—that's what I felt, and shortly after this there was another phone call came in and he went in and he took the call.

Mr. HUBERT. When you said the rumor or talk was that the sheriff was going to escort him out of town, I assumed you meant he was going to give him protection, is that what you meant?

Mrs. GRANT. That's what I mean, so he doesn't get hurt. Maybe the sheriff knows something about this, although he does know—I don't know. I only know I was too sick after the verdict to even think about anything, but now that I know he's coming back, I asked Phil, I said, "Do you think he's coming back?" And he says, "Yes; he's coming back."

Mr. HUBERT. Mrs. Grant or Mr. Burleson, do you have any other matter I have touched upon that you would like to bring up at this time?

Mr. BURLESON. I would like to go into some of these things you have just questioned her about.

Mr. HUBERT. All right.

Mr. BURLESON. Right at first, Mr. Tom Howard did go down and talk to Jack on Sunday the 24th?

Mrs. GRANT. Oh, yes.

Mr. BURLESON. And did get a writ of habeas corpus, I believe?

Mrs. GRANT. I know nothing of the court procedures of that date.

Mr. BURLESON. You don't know that Judge Brown did set a bond on assault with intent to commit murder upon Lee Harvey Oswald before this hearing?

Mrs. GRANT. I understand it was filed in Richardson. I may be wrong. Someone told me that, that they did file a murder charge against Oswald.

Mr. BURLESON. Before Oswald was pronounced dead, did you know anything about Judge Joe B. Brown setting bond and granting a writ to let Jack out on assault with intent to commit murder?

Mrs. GRANT. I honestly——

Mr. BURLESON. Do you or not?

Mrs. GRANT. I don't.

Mr. BURLESON. Then, subsequently, Mr. Howard had myself go up and talk to Jack—you learned that, did you not?

Mrs. GRANT. I learned there were about three or four or five attorneys that went up and talked to Jack.

Mr. BURLESON. Then, Mr. Belli came in town and at the time, did you hear from Mr. Tonahill?

Mrs. GRANT. Yes.

Mr. BURLESON. He called you in the middle of the night, I believe?

Mrs. GRANT. That's right.

Mr. BURLESON. And did he tell you that he and Mr. Belli were together?

Mrs. GRANT. No.

Mr. BURLESON. Did he just mention himself?

Mrs. GRANT. Yes.

Mr. BURLESON. What did he say?

Mrs. GRANT. He asked me if I had hired an attorney and I said, "I think Earl got somebody." And they were discussing it with Percy Foreman, but I was wrong. They never got to Percy Foreman because Tom Howard never called him.

Mr. BURLESON. Then Melvin Belli did come in town and met with Mr. Tom Howard and Mr. Tonahill?

Mrs. GRANT. Yes.

Mr. BURLESON. And stayed out at the Cabana Hotel, I believe, the motel out on Stemmons Freeway?

Mrs. GRANT. Well, I was never at that hotel to visit them—I can't remember.

Mr. BURLESON. Earl was in town at the same time Mr. Belli was in town?

Mrs. GRANT. I think you are right there—that they were all over there—Earl was there for a couple of days but I didn't go there.

Mr. BURLESON. Then Mr. Belli went down and talked with Jack prior to the time and he said that he would accept the case, do you remember that?

Mrs. GRANT. I'm sure he did.

Mr. BURLESON. And after talking to Jack, do you remember he said he would accept the case at that time?

Mrs. GRANT. Yes.

Mr. HUBERT. Mr. Burleson, may I make this suggestion—of course, this is not a court hearing, on the other hand, for the sake of the value of the

testimony, I think if you wouldn't lead her so much that the testimony might have more weight.

Mrs. GRANT. Well, I'll tell you, my mind—I'm just about out of my mind.

Mr. BURLESON. Yes. Do you know if that is when I became active in the case—at that time?

Mrs. GRANT. I think you came in about—it seems to me—about a week after this incident—it seems to me that's when I first met you.

Mr. BURLESON. And do you know if Mr. Belli brought any attorneys with him from California?

Mrs. GRANT. Yes.

Mr. BURLESON. Do you know who that was?

Mrs. GRANT. I know he brought Samuel Brody.

Mr. BURLESON. Now, after this, there was a bond hearing, I believe; is that correct?

Mrs. GRANT. Yes.

Mr. BURLESON. And who sat at the counsel table with Mr. Ruby, your brother?

Mrs. GRANT. I know you were there and I know Mr. Brody and Tonahill, Mr. Belli—I think Tom Howard was there right along then.

Mr. BURLESON. And then, that actually was on one occasion or on two occasions that that bond hearing was held; or do you recall?

Mrs. GRANT. It seems to me a couple of times—maybe more than that.

Mr. BURLESON. Then bond was denied?

Mrs. GRANT. That's right.

Mr. BURLESON. Then, at the time of the change of venue, do you know who the attorneys were at that time?

Mrs. GRANT. It seems to me the same group were still there.

Mr. BURLESON. Do you recall about that time if anything occurred in connection with Tom Howard and his connection with the case?

Mrs. GRANT. About the picture?

Mr. BURLESON. No; just about whether or not he continued in the case or did he?

Mrs. GRANT. It seems to me at that time—he was leaking information to the district attorney's office, he was in the way of Mr. Belli and Mr. Tonahill—at least they felt that or they told me that. We had found a mistrust in him, which is close to that time as I can remember, where information has come to us that Tom Howard is trying to sell a picture of the late President Kennedy being shot and half of his skull is in the air, to Life magazine, and I think Billy Woodfield had told that to Earl and Earl told me to get ahold of the Secret Service, they came out to see me and Elmer Moore, and another gentleman—I cannot think of the other gentleman's name—he probably could recall—and we went in the alley because I don't know if my place is bugged or not, and the Secret Service stepped in to either squash the sale of this particular picture or got ahold of it—the films and everything, and, of course, when Belli found out, he was sick because he said it don't look right for an attorney representing a person to do something like this.

Mr. BURLESON. All right. Anyway—somewhere around there——

Mr. HUBERT. May I examine her just a little on that point?

Mr. BURLESON. Yes; go ahead.

Mr. HUBERT. Did you ever find out whether it was true that Mr. Howard was doing this?

Mrs. GRANT. Well, since then I heard it was true, but doubly true there's some girl that works for one of your departments who heard and who told another person that there is evidence there is a picture of that kind in existence.

Mr. HUBERT. You have never seen the picture?

Mrs. GRANT. No; I haven't. I also heard several days before the assassination there was a pamphlet put in all the drugstores where you sell magazines and was distributed all through the city of Dallas with the late President's picture, and the top of it says, "Wanted" and the bottom had a

number like a jailman, you know, a convict, and the day of the assassination, early that afternoon these distributors had a devil of a time trying to remember all the places they placed that particular pamphlet, that was for sale for 10 cents or 15 cents.

Mr. BURLESON. Come back up to his question.

Mr. HUBERT. I just wanted to explore whether or not it had come to your knowledge whether the story was the truth or not?

Mrs. GRANT. This all came to me—call me back on the word “communism” that I said later on, if you want?

Mr. BURLESON. Do you know anything else about this alleged sale of the picture?

Mrs. GRANT. Nothing, but Earl told me to get ahold of the men here and I did and I called the office and Elmer Moore came out and I told him.

Mr. BURLESON. All right. Coming back—along about this time—did you, Earl, and Stanley Kaufman and so forth enter into some kind of a contract with Mr. Howard where he would withdraw from the case?

Mrs. GRANT. Yes.

Mr. BURLESON. Did you pay him some money?

Mrs. GRANT. Yes; the first week he was in, I had a little money and I think it was when I sold the Vegas Club and I think I had \$1,600 and I had bills to pay but I didn't pay them and I gave him \$200.

Mr. BURLESON. At the time that you terminated his services in the case, did you pay him some money then?

Mrs. GRANT. We gave him a check for \$2,000—we gave him \$2,700 altogether, but I gave him \$2,000 when he signed the contract to step out of the case.

Mr. BURLESON. Now, when the change of venue hearing started——

Mrs. GRANT. By the way, when I say “I gave him”—that money came also out of the \$23,000.

Mr. BURLESON. Now, when the change of venue started and the picking of the jury followed, who were the attorneys then that were sitting there at

the counsel table?

Mrs. GRANT. Well, Belli, Tonahill and yourself—I don't remember—I think Sam Brody was sick and went home. However, Mr. Belli brought in a young gentleman who came and sat for a while.

Mr. BURLESON. Could that have been Mr. Bill Choulous?

Mrs. GRANT. Yes.

Mr. BURLESON. And that was out of Mr. Belli's office?

Mrs. GRANT. That's right.

Mr. BURLESON. Then, when it got into the actual trial of the case after the change of venue lasted about a week, who were the attorneys then during the picking of the jury?

Mrs. GRANT. Well, Mr. Burleson, Mr. Joe Tonahill, and Mr. Belli did all the work from picking the jury and through the trial.

Mr. BURLESON. The three of them?

Mrs. GRANT. The three of them.

Mr. BURLESON. And they continued on through the trial?

Mrs. GRANT. Yes.

Mr. BURLESON. And they were the only ones sitting with Jack Ruby at the time of the verdict?

Mrs. GRANT. You know, I was not in the courtroom all during the trial. They kept me out in the lobby, but I do know—that is what I heard or saw.

Mr. BURLESON. Now, within a week after the verdict came in, did you write a letter to Mr. Belli dismissing him from the case or asking him to withdraw, one or the other?

Mrs. GRANT. Yes.

Mr. BURLESON. You told him in the letter—what?

Mrs. GRANT. Well, I couldn't reach him by telephone and since he's traveling around, and I'm——

Mr. BURLESON. What did you tell him in the letter?

Mrs. GRANT. Say it again?

Mr. BURLESON. Did you tell him in effect if he didn't resign you would fire him?

Mrs. GRANT. Well, yes; words to that effect.

Mr. BURLESON. In other words, he did resign?

Mrs. GRANT. Yes.

Mr. HUBERT. I think that letter was published in the press, was it not?

Mrs. GRANT. No—I never gave it to them. If it was, it shouldn't be, because we only made three copies, the original went to him and one to Mr. Burleson and one to Tonahill. I didn't want any more copies around—I didn't want that—that was one of the things that bothered me.

Mr. HUBERT. I don't know, ma'am, I had the impression that I had seen that letter through seeing a copy of it in the press.

Mrs. GRANT. If you did—I didn't see it here, or we didn't, and we would have known it.

Mr. HUBERT. I don't know—I may be mistaken.

Mrs. GRANT. That is one thing—that's the whole thing—the whole case was tried in the papers.

Mr. BURLESON. Now, after that you were feeling pretty low and sick at that time, weren't you?

Mrs. GRANT. Yes.

Mr. BURLESON. Did your family—Earl and Sam and sisters go down to Houston and talk to Mr. Percy Foreman?

Mrs. GRANT. They did.

Mr. BURLESON. Was a contract drawn up at that time?

Mrs. GRANT. Yes; there was.

Mr. BURLESON. Did Mr. Foreman know you had Jack Ruby's power of attorney?

Mrs. GRANT. I don't know what they told him but it was well indicated that I was now controlling. I took over Earl Ruby's power.

Mr. BURLESON. What did Mr. Foreman do as to whether or not he made any announcements as to whether he was the attorney?

Mrs. GRANT. Well, he immediately called in the press. He immediately stated what he wanted, he took pictures of my family and he said he wanted \$5,000 within 10 days and another \$5,000 30 days following the 10 days.

Mr. BURLESON. Did he come to Dallas shortly thereafter?

Mrs. GRANT. The following week, I think, he came to Dallas—it wasn't that weekend, it was the following weekend—am I right—or was it that week?

Mr. BURLESON. That week—I think they went down there, if I might help you a little bit, about Monday.

Mrs. GRANT. He came down on a Saturday—I did not see him, but I spoke with him over the phone. I thought he asked too much money. He wanted power of attorney and I wasn't happy about the contract, because these contracts have a——

Mr. BURLESON. You had not signed a contract?

Mrs. GRANT. No.

Mr. BURLESON. Anyway, he went and visited Jack?

Mrs. GRANT. And he wanted Jack to come downstairs to take pictures with him and our civil attorney, Stanley Marcus——

Mr. BURLESON. Do you mean Stanley Kaufman?

Mrs. GRANT. Stanley Kaufman, pardon me, wouldn't permit it. He said "This is one of the reasons Mrs. Grant and her family didn't want Belli in the picture. There has been too much newspaper publicity, radio, and television. He couldn't be hurt any worse and there is no sense of you getting into this widespread publicity," and Mr. Foreman and Mr. Kaufman got into some squabble there and Mr. Kaufman left heated, I understand, and Mr. Percy Foreman called me later that afternoon that he was coming out to see me in the evening. He heard I had a doctor and I was sick. He didn't show up.

Mr. BURLESON. Did he make arrangements to meet you the next morning?

Mrs. GRANT. He did.

Mr. BURLESON. Monday morning?

Mrs. GRANT. At 9:30.

Mr. BURLESON. Where?

Mrs. GRANT. In the lobby of his hotel—the Statler.

Mr. BURLESON. Did you come down?

Mrs. GRANT. I came down.

Mr. BURLESON. With whom?

Mrs. GRANT. With my sister Eileen.

Mr. BURLESON. Did you meet him?

Mrs. GRANT. I met Mr. Burleson and Mr. Tonahill and we waited, and we went upstairs and waited—we ordered some coffee and a roll and we waited there about an hour and 40 minutes. The telephone rang and a news commentator was on the phone and Mr. Burleson answered it and Mr. Burleson was shocked from what he heard on the phone, that Mr. Percy Foreman, instead of coming down to his own room to see us, he went to the newspaper office somewhere or television or radio—I have no idea, and made a public display of himself, that he is withdrawing from the case. He indicated that he didn't get along with the family and he didn't like our attorney—our civil attorney.

Mr. BURLESON. Did you at any time see him personally?

Mrs. GRANT. I never met him personally.

Mr. BURLESON. He then got out of the case and hasn't had anything to do with it since?

Mrs. GRANT. No.

Mr. BURLESON. Then, shortly thereafter, did you have an opportunity to have a conference with Dr. Hubert Winston Smith?

Mrs. GRANT. Yes; I did.

Mr. BURLESON. And did you, Jack, and everybody sign a contract with Dr. Hubert Smith?

Mrs. GRANT. Yes.

Mr. BURLESON. Employing him as chief counsel?

Mrs. GRANT. Yes—as chief counsel.

Mr. BURLESON. And keeping Mr. Tonahill and myself on?

Mrs. GRANT. Oh, yes.

Mr. BURLESON. Subsequent to that time, did your brother up in Chicago talk to a Mr. Charles Bellows?

Mrs. GRANT. Well, Mr. Bellows knew about this case right along because members of the family have known him for 20 or 30 years. I have never known him—I have heard of him—they went to him, and it's got so sick and sickening here that Earl decided, as a friend, he could help us and he is in the background.

Mr. BURLESON. Would you say he is in more an advisory capacity?

Mrs. GRANT. Just as a good family friend, and he is, I understand, a very fine great criminal lawyer and he wants to help.

Mr. HUBERT. And you are speaking of the present as well as the past?

Mrs. GRANT. In the past he didn't intercede because he figured Belli would be capable. Not that—now, wait a minute—I don't mean to say that they are not—it's just after there is so much to it and he has heard how the case was handled, and since Earl went to him.

Mr. BURLESON. And Mr. Bellows did make one trip down to Dallas?

Mrs. GRANT. Yes; he did.

Mr. BURLESON. And stayed a matter of hours and then flew on back?

Mrs. GRANT. That's right.

Mr. BURLESON. So that to get back to what we wanted to answer the question he asked you earlier—who are the present attorneys now?

Mrs. GRANT. Phil Burleson, who is doing most of the work, Mr. Joe Tonahill, Mr. Hubert Winston Smith, and Mr. Charles Bellows.

Mr. BURLESON. And Bellows is in an advisory capacity to help any way he can?

Mrs. GRANT. That's right. I'm sorry I forgot about some of them.

Mr. BURLESON. Now, going to this money situation—as far as you know, recognizing that you are under oath—as far as you know, there were no contributions of any large sum other than the one \$250 that you have talked about.

Mrs. GRANT. That was the largest and the one and only of that kind.

Mr. BURLESON. Have you heard rumors that the Ruby defense fund received large sums?

Mrs. GRANT. I have heard they got—I think they've got close to a thousand dollars—I may be wrong.

Mr. BURLESON. I mean, have you heard rumors for instance, not too long ago I heard a rumor that Stanley Marcus gave \$25,000; have you heard rumors similar to that?

Mrs. GRANT. I have heard many of those kind by different people but we haven't received it.

Mr. BURLESON. You know nothing about any such large sum?

Mrs. GRANT. (Shaking head so as to indicate a negative reply.)

Mr. HUBERT. She is shaking her head—the answer is “no”.

Mrs. GRANT. Oh. I'm sorry; no.

Mr. BURLESON. Mainly, the only things you know about personally or have heard about from other members of the family are the sale to the magazine of the story, which you have told us about, and the small amount you have told us about?

Mrs. GRANT. Yes.

Mr. BURLESON. And you know of no organization that has given any sum?

Mrs. GRANT. Not that I know—they may be now—Earl is trying to talk to some organizations that he belongs to like B'nai B'rith, that he used to

belong to—I don't know. This is what I know—what I told you.

Mr. BURLESON. All right, but you don't know of any—say—labor unions or civic clubs or anything like that that have given any money?

Mrs. GRANT. I'm sure—I'm sure they haven't. In fact, wait a minute—Michael Levin, another good friend of the family—we know him only for 45 years and he's my older brother's friend since they were 14 years old and he has compiled a letter and is asking certain individuals that he knows—doctors, lawyers, big business people—to contribute, and when I talked to Eileen last, which was Saturday, she said, "We didn't receive one—" some of them don't even answer the letters and some say they haven't got it or something else.

Mr. BURLESON. Now, there were some reports in the newspapers concerning the fact that Dr. Hubert Winston Smith was going to raise a lot of money.

Mrs. GRANT. Well, we hope he's going to raise a lot of money—we hope he can raise sufficient money to cover legal fees. He's interested in an academy institute of law and science.

Mr. BURLESON. Have you received any money from Dr. Winston Smith?

Mrs. GRANT. No; and I don't think he's gotten anything or even worked on it yet.

Mr. BURLESON. Now, to clarify my position in the thing—you have paid me, the family has paid me a total for everything, somewhere in the neighborhood of \$700 or \$800 or \$900?

Mrs. GRANT. At the most—that's right.

Mr. BURLESON. You are trying to get more together, though, aren't you?

Mrs. GRANT. Well, now, wait a minute—Belli was supposed to pay out of that \$13,000—\$2,000—I asked him what he was going to pay you. He didn't pay you?

Mr. BURLESON. Right.

Mrs. GRANT. As he told me.

Mr. BURLESON. Right.

Mrs. GRANT. And I know he didn't pay you—that was up until the time he didn't pay you at that time.

Mr. BURLESON. But I have entered into a verbal contract with you and the other members of the family for you to compensate me on the appeal and things of that nature—right?

Mrs. GRANT. Yes.

Mr. BURLESON. I'm through, as far as I am concerned, on that point. Now, is there anything other than what we have talked about here that you want to clarify further——

Mrs. GRANT. Yes; I want to clarify——

Mr. BURLESON. Wait, let me finish—or do you think that we haven't talked about anything that you feel like is important that you would like to state at this time?

Mrs. GRANT. We have never received money from any unethical organization, labor work, gratis, friends, or relatives such as gangsters or unions or Jack has gotten one dime out of anybody of that kind, or racketeer money, bookies or any type of, you know, discriminating businesses of any kind. I know his finances, I know where he has gotten 99 percent of his money and that is from members of the family. In fact, they can ask Marian and Earl a good deal about that.

I also know the night of November 22 when Jack was with me the evening before—7:15—during that short time he was with me and they were talking about Oswald, I had made the statement and this is what I said. “Don't worry,” and I told it to the FBI and I didn't see it in the report.

Mr. BURLESON. “Don't worry”—what?

Mrs. GRANT. “That lousy Communist”—I'm referring to, and I mean, I assumed this myself.

Mr. BURLESON. And you said it in Jack's presence?

Mrs. GRANT. That's right. “Don't worry, that some lousy Communist will get him before anybody else does.”

Mr. BURLESON. The Communist will get him before anybody else?

Mrs. GRANT. That's just what I said and I did not see it in this report—I don't think I saw it. I did say it because I already talked to four or five people on the phone and I'm going to tell you why I said that—everyone on television and it seems it was Curry, which is our chief of police—says he's someone that's come out with three draft cards, he has been in Cuba and he defected to Russia and I think my mind is like 40 million other grownups, decided that he was a Communist sent here for this kind of a thing and the people that I knew that I speak to on the phone at that time or had been friends with all felt the same way or talked about it in that way. He couldn't help but think that. It's because what television has presented to the public, and then this thing in the paper and this was only Friday evening, and I have made that remark—I made it not only to him, to Pauline Hall, and to Madeline Blainey and to Emma and to Leo and whoever called I kept talking about that and made that remark, and I made it not only to him but to these others, and I kept talking about it because I was imbedded with that in my mind from television. They kept talking about it—they indicated he had three draft cards, he went to Russia and they threw him out and they planted him here and he went to Cuba and he had money and he was going to hire a plane.

Mr. BURLESON. Okay—anything else you want to go into this to clarify this?

Mrs. GRANT. Jack has always been a fighter for the Jews. Any—in the Army, if they look back, he didn't mind—if you fought and if you cussed and they said words like sheeny or kike or Jew—he belted it out to them. I know my brother Jack. He told me of different incidents. One of the things that he loved about this President—he didn't care what you were, you were a human being and Jack felt that this was one time in history that Jews are getting the break. He put in great Jewish men in office, they were fit to hold the office, and, of course, we are not Catholics and we never discuss religion in that effect, but my brother had such a great admiration for this man. It's unbelievable.

Mr. HUBERT. Did Jack ever tell you why he shot Oswald?

Mrs. GRANT. The truth is this—here recently with his head out—he said he did it for Jackie and the kids, but I think he's just looking for a reason.

Mr. HUBERT. No; I'm talking about the first few days?

Mrs. GRANT. He didn't talk—for 10 days he never mentioned it and I never mentioned it, but in this white overall he had a little picture and on one side is the late President's picture in color. It is the most beautiful picture of him that I have seen. On the other side is a prayer of the Catholics. I have never seen my brother carry anything like that. He is definitely a good Jew no matter what people think. He had kissed the President's picture in front of me—right in front of me like a baby, and he held that card prayer and his lawyers have seen him, and I don't know what denomination they all are—we don't go that way. He just held that card there, there's a little pocket in there—all he knows—let me put it this way—it maybe was in back of his mind something that I don't know or nobody knows, but he loved the President, but he had no idea of doing this. In the first place——

Mr. HUBERT. It wouldn't do any good, I don't believe, for you to give your opinions.

Mrs. GRANT. All right.

Mr. HUBERT. If you know from what he told you, that's another matter, but you say he has not told you that?

Mrs. GRANT. This was a shock out of my wits.

Mr. BURLESON. Let me ask you this—he didn't tell you that, then?

Mrs. GRANT. No.

Mr. BURLESON. Now, something we haven't gone into and might be relevant to this—Jack had a great acquaintance with the police, didn't he?

Mrs. GRANT. Far greater than the average citizen of this city, unless they were a wife of a man.

Mr. BURLESON. Could you tell us what Jack's attitude was toward the police?

Mrs. GRANT. They were very friendly, he admired them, he thought they were good people. On many occasions some policeman would have a night off and he would want to take his wife out on his anniversary and it's in between paydays, Jack would let him have \$10 and he would say, "I'll write a check" and so Jack didn't want to take the check and sometimes he would hold it 6 years and this check was still in there which they can see

among his possessions. He admired the police department. He was very close. In fact, he entertained them in the club on their nights off and I'm positive some have been out to his apartment.

Mr. BURLESON. Do you know whether or not Jack knew Officer J. D. Tippit?

Mrs. GRANT. He said he knew a Tippit but it's like me—there was a Tipton, a Tippit, and a Tipin (spelling) p-i-n, and a Tipton, and as far as I was concerned, even when Payton was talking to me, they were all the same man, until much later I found out there are three Tippits, there is a Tipton and a Tipin.

Mr. BURLESON. Did Jack, during the period November 22 through the last time you talked to him on the 23d or the 24th of November, say anything to you about the fact that Officer Tippit was killed?

Mrs. GRANT. Yes; on Saturday evening, during this 4-hour period I was very sick and I, of course—I was physically sick besides mentally sick now over the assassination of the President, and we talked about the Governor being shot and different things and he says, "You think you will be all right to go to the funeral," but I was so sick.

Mr. BURLESON. Did he say what funeral?

Mrs. GRANT. Oh, yes; he meant the policeman's funeral—Tippit's. Of course, a lot of people don't know—he went to all of the policemen's funerals and, of course, there has been a few funerals—if it was a member of their families and if he knew the fellows he would go. He was that kind. He tried to pay his respects to people.

Mr. BURLESON. But he did have a conversation about Tippit?

Mrs. GRANT. Yes.

Mr. BURLESON. What did he say about Tippit being killed?

Mrs. GRANT. He said, "You think you will be all right"—and this was Saturday, and I said, "Yes," and he said, "Well, do you think you will be all right?" And I hollered back like—I said, "Yes—yes," and not to bother me. I was too sick—I didn't even want to think of it, but I'll be honest, all the time he's talking to me I had it in my mind—"I'm not going, I'm too sick and I know I ain't going to feel good Monday," see.

Mr. BURLESON. In other words, he told you he had planned to go to Tippit's funeral on Monday?

Mrs. GRANT. That's right—no; he didn't say "Monday", he did not say Monday—he didn't say the date.

Mr. BURLESON. Whenever it was?

Mrs. GRANT. He said to the funeral.

Mr. BURLESON. Tippit's funeral?

Mrs. GRANT. Yes; but he says—he saw I was sick and he figured maybe I don't want to get out and he says, "Do you think you can go to dinner tomorrow?" And he does take me to dinner.

Mr. BURLESON. But anyway, he had made arrangements or was telling you that he and you were going to the funeral of Tippit, is that right?

Mrs. GRANT. That's correct—that's what he thought.

Mr. BURLESON. But you didn't feel up to it physically?

Mrs. GRANT. That Saturday I couldn't see myself going, I'll tell you, I just wanted to quiet him down.

Mr. BURLESON. And as far as you know. Jack did not know Tippit?

Mrs. GRANT. I don't—I don't know, all I could tell you is that Jack lived in Oak Cliff for a couple of years or maybe a year and a half and Tippit, being of that area, he could have run into him and known of him slightly. He didn't know him as well as other policemen that I know he knows. I know of policemen much closer than him, but since this all happened, one of my coworkers, Leo Torti, showed me a magazine and Tippit was in our club sometime—a month previous to this—previous to his killing.

Mr. HUBERT. Was it a picture of Tippit?

Mrs. GRANT. It was a picture of Tippit, and he said, "Do you remember he talked to you up at the front, he was in in September or October or November sometime."

Mr. BURLESON. Was that the Carousel or the Vegas?

Mrs. GRANT. The Vegas, and while I looked at him then I remembered that he looked familiar, but truthfully, you know, after the President's assassination and this incident of my brother I didn't see any newspaper. I didn't look for anything to read. I had no television or radio on—I couldn't take it.

Mr. BURLESON. Mr. Hubert, I think that is all I have along that line.

Mr. HUBERT. Mrs. Grant, earlier today, as a matter of fact, at the very beginning or prior to the beginning of the deposition, I showed you a list of names and telephone numbers and addresses on a document consisting of 37 pages, marked with a large "E", and asked you to go through that list and make a check mark as to every name and number that had any significance to you at all.

Now, you have done so and I am going to ask, if I may, with the consent of your attorney, that I now read off that list of names as to those names that you have checked off, and I am going to request the reporter to make a special list of those that you have checked off and hand it to you so that you may make comments of your own, and then after consultation with your attorney, draft up an affidavit as to what comments you have to make with respect to each one of these people. In other words, you have indicated that the names that have been checked off have a significance to you.

Mrs. GRANT. That's right.

Mr. HUBERT. I would like you to prepare notes and with the assistance of your attorney, draft an affidavit as to what significance each one of these names has. I understand that it will be perhaps a matter of 2 weeks or so before you can get that because there are quite a number of names.

Now, I will read those names so that the record will show which of the names you have marked off. I understand that as to those you have not marked off, those names have no significance to you; is that correct?

Mrs. GRANT. That's right—I can't relate them to anything.

Mr. BURLESON. May I make a suggestion—it may be a little time consuming, but if she could look back through that now that she has had an opportunity to testify and recall many, many things that she probably hasn't thought of in some time—she could very quickly look at the ones she didn't check?

Mrs. GRANT. Is it possible that some of those are license plate numbers—could you tell?

Mr. HUBERT. They seem to be mostly telephone numbers.

Mr. BURLESON. Yes; ma'am—that's right.

Mrs. GRANT. May I explain something to you?

Mr. HUBERT. Yes; please.

Mrs. GRANT. All right. Jack would be driving along in his car and there would be a young lady drive up to the right of him. If she didn't have a marriage ring and she looked cute and he thought she might like to see a little night life he would let her pass—he would look at her license number and copy the number and find out in the city hall where to send her—her name and address and the telephone—a complimentary card to come to the Vegas Club—he as a host.

Now, I told this to Payton and the other people and he would send these people cards because girls would come to the club and ask me, "Where is Mr. Ruby?" And I would say, "He's not here." And they said, "Well, he sent me this complimentary card." Once I said something to him about it and he said "Oh, I sent this to a girl," and I never thought anything about it. Finally, when he was arrested and I knew they found a lot of numbers, I said to him, "What are these numbers for?" And he said, "You know they are license plate numbers."

Mr. HUBERT. I see your point—it might be better if we gave her the whole list.

Mrs. GRANT. I'm not going to steal it.

Mr. HUBERT. I can't give you this list but I can get these names run off.

Mr. BURLESON. Suppose we do it that way and it may be that in time she can reflect better.

Mr. HUBERT. Suppose we do it that way, then, and instead of doing it the way we have agreed, I will supply you with a list of all of these names and ask that you look at all of them and possibly you will see some that you have overlooked?

Mrs. GRANT. That's right—there may be one or two that I have overlooked.

Mr. HUBERT. And I will ask you, then, to give us an affidavit as to the significance of any of these.

Mrs. GRANT. I will be happy to.

Mr. HUBERT. I would ask that you give us the affidavit only upon your own knowledge.

Mr. BURLESON. Not as to what she has heard?

Mr. HUBERT. Well, if she indicates it is what she knows from her own knowledge as apart from what she has heard.

Mrs. GRANT. These are mostly strippers and waitresses that I know or have known, or comedians. Listen, what happened to the two boxes of names and addresses that they took out?

Mr. HUBERT. I don't know, ma'am. It may well be that these are they.

Mrs. GRANT. That isn't enough.

Mr. HUBERT. Off the record.

(Discussion between counsel and the witness as to the names shown on the list heretofore referred to.)

Mr. BURLESON. May I ask you—do you want this in one single affidavit, paragraph by paragraph?

Mr. HUBERT. I don't think so. I think that the affidavit could be in the usual form.

Mr. BURLESON. What I am asking is, do you want a single affidavit as to each one of the names here?

Mr. HUBERT. I think not, I think the usual affidavit form—one that says that—having been handed a list and so forth, that she has the following comment to make on each and then in numerical sequence, and as to the rest of them there is no significance.

Mr. BURLESON. And one notary signature will be sufficient?

Mr. HUBERT. Yes.

Mr. BURLESON. And then there will be just one instrument?

Mr. HUBERT. Yes.

Mrs. GRANT. I do want to say this: Do you know Jack in his early teens and in the early thirties—he and these bad boys he later on disassociated himself with, they were people in the neighborhood—broke up Bund meetings in Chicago—do you know Chicago at all?

Mr. HUBERT. No.

Mr. BURLESON. For the record, I have no other questions to ask.

Mr. HUBERT. I haven't either. Thank you very much.

Mrs. GRANT. All right.

TESTIMONY OF SAM RUBY

The testimony of Sam Ruby was taken at 10:55 a.m., on May 29, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission. Sam Ruby was accompanied by his attorney, Phil Burleson.

Mr. HUBERT. This is the deposition of Sam Ruby.

Mr. Ruby, my name is Leon D. Hubert. I am a member of the advisory staff of the General Counsel of the President's Commission on the Assassination of President Kennedy. Under the provisions of Executive Order 11130, dated November 29, 1963, the joint resolution of Congress No. 137, and the rules of procedure adopted by the President's Commission in conformance with the executive order and the joint resolution, I have been authorized to take a sworn deposition from you. I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate and report upon the facts relevant to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald. In particular, as to you, Mr. Ruby, the nature of the inquiry today is to determine what facts you know about the death of Oswald and of the life of your brother, Jack Ruby, and any other pertinent facts you may know about the general inquiry.

Mr. Ruby, I believe that you appear here today by virtue of a letter addressed to you by Mr. J. Lee Rankin, general counsel of the staff of the President's Commission. Did you receive that letter?

Mr. RUBY. Yes, sir.

Mr. HUBERT. Do you remember the day that you did receive it.

Mr. RUBY. I believe it was Tuesday.

Mr. HUBERT. Under the rules of the Commission you are entitled to a 3-day written notice prior to the taking of your deposition, but the rules also

provide that you may waive that notice if you wish and testify right now. Do you wish to do so?

Mr. RUBY. Yes; I do—I wish to testify.

Mr. HUBERT. I would like the record to show also that Mr. Phil Burleson, attorney at law, is present and representing Mr. Sam Ruby; is that correct?

Mr. BURLESON. Yes.

Mr. HUBERT. Now, will you stand and take the oath, please? And raise your right hand.

Do you solemnly swear that the testimony you are about to give will be the truth, the whole truth and nothing but the truth, so help you God?

Mr. RUBY. Yes, sir.

Mr. HUBERT. All right. Will you state your full name, please?

Mr. RUBY. Samuel David Ruby.

Mr. HUBERT. How old are you. Mr. Ruby?

Mr. RUBY. 51.

Mr. HUBERT. Where do you reside?

Mr. RUBY. At 11616 Jamestown Road, Dallas, Tex.

Mr. HUBERT. What is your occupation?

Mr. RUBY. I am a washing machine repairman at washaterias.

Mr. HUBERT. Mr. Ruby, you have heretofore been interviewed by the FBI on four different occasions and I would like you to tell me about those. In order that we may proceed in that way, I wish to identify an interview of you on November 24, 1963, by FBI Agents Sayres [spelling] S-a-y-r-e-s, and Eckenrode. That interview consists of six pages—on the first page I have marked on the right margin the following: “Dallas, Texas, May 29, 1964, Exhibit No. 1, deposition of Sam Ruby,” and I have placed my name beneath that and on the right-hand lower corner of each of the succeeding five pages I have placed my initials for the purpose of identification.

Now, I ask you if you have had occasion to read this document which I have identified as Exhibit No. 1?

Mr. RUBY. Yes; I have.

Mr. HUBERT. I would like you to express your opinion as to the correctness of that report of the interview?

Mr. RUBY. They are correct as far as that is concerned.

Mr. HUBERT. Have you any changes or any suggestions or modifications in any way that you wish to make with respect to that statement?

Mr. RUBY. Well, I think he has them.

Mr. BURLESON. On page 6; in previously going over this, Mr. Hubert, I think there are some things he would like to comment on and I will ask him about it.

Mr. HUBERT. All right, sir.

Mr. BURLESON. On page 6, the first paragraph—there is a statement that “This man’s name was Leo, last name unknown. Jack fired this man because he said he was stealing from him.”

I’ll ask you whether or not you now have found out or since that time, have found out Leo’s last name?

Mr. RUBY. Yes; I found out his name.

Mr. BURLESON. What is that?

Mr. RUBY. Torti [spelling] T-o-r-t-i; I believe is the way he spells it.

Mr. BURLESON. And as to the second statement there about Jack firing this man, do you now know that that was not the situation?

Mr. RUBY. Yes: I found out that he was not quite competent as Jack would have him and there were a few things that he didn’t take care of, in other words, when my brother told him to do it and he neglected to do a few things.

Mr. BURLESON. And that was the reason for the firing of Torti rather than stealing?

Mr. RUBY. Right.

Mr. BURLESON. And subject to that correction you told Mr. Hubert, everything else appeared to be correct, as I understand it now?

Mr. RUBY. Yes.

Mr. HUBERT. Is it correct to state that when you made the statement that you have just modified on page 6 of Exhibit No. 1 that you had the impression that the man had been fired because he had been stealing from Jack and that impression has been clarified since that; is that correct?

Mr. RUBY. Yes.

Mr. HUBERT. How was it clarified?

Mr. RUBY. Well, since talking to Jack and at the time—Jack mentioned a few things that—when I come to the club, which I did a few times to visit him and see the show and to watch the admission being taken and put in the register properly, and that gave me the impression that maybe he just wanted to see that maybe Leo didn't forget to do those things.

Mr. HUBERT. You have since talked to your brother Jack and he has clarified this matter, so that you are now able to state that your present understanding is that it was not because of an allegation of stealing, but rather because he was incompetent; is that correct?

Mr. RUBY. Right; and Jack's idea about managing the club.

Mr. HUBERT. Now, I show you another report of an interview of you by FBI Agent Alfred Sayres on November 27, 1963, which I have marked for identification as follows: "Dallas, Texas, May 29, 1963, Exhibit No. 2, deposition of Sam Ruby," and I have signed my name and all of which appears in the right margin of this one page document and I ask you the same question with respect to that, that is, if it is correct?

Mr. RUBY. Which paragraph is that?

Mr. HUBERT. The entire document—I am speaking of the entire document—I think you have just read it.

Mr. BURLESON. That's the one you said was all right.

Mr. RUBY (reading instrument referred to). I think I recall when Jack was hospitalized, I think it was in Chicago.

Mr. BURLESON. All right, let me ask you a question—in regard to the second paragraph which says—“He said he knows of no time when Jack Ruby has ever been hospitalized for any reason.” Does something come to your mind in reference to the hospitalization of Jack?

Mr. RUBY. Yes; he was struck in back of the head, I think he was scalping tickets at one of the sporting events—at football or one of those events in Chicago—and the police officer told him not to scalp, told him to leave the premises where the sporting event was being held, and Jack refused to do so, and anyway—I don’t know what the deal was, but Jack was hit on the back of the head with a club or something like that, and he had a big bandage on the back of his head, and he was hospitalized then, but I don’t remember what year it was—I don’t remember.

Mr. HUBERT. All right, with that amplification or correction of Exhibit No. 2, is the exhibit otherwise correct?

Mr. RUBY. Well, they tell me—I talked to the family and they say that my mother was hospitalized in Elgin.

Mr. BURLESON. All right; let me ask you—you are now referring to the third paragraph and a sentence in there that says, “This was the Dunning Hospital on Irving Boulevard in Chicago?”

Mr. RUBY. Yes.

Mr. BURLESON. You have subsequently found out that it may have been a different hospital?

Mr. RUBY. Right; after I talked to some members of the family and they say it was in Elgin, Ill., which is a mental hospital.

Mr. BURLESON. And are there any other corrections or additions you want to make to that statement?

Mr. RUBY. Well, I found out since, that my sister, Eileen, had somewhat of a nervous breakdown since she came here to visit during the trial.

Mr. BURLESON. Let me ask you—you are now referring to the last paragraph that says, “He knows of no other indications of any mental illnesses in his family.” What have you found out since you made that statement?

Mr. RUBY. My sister Eileen was treated by a doctor during—following a nervous breakdown some years ago—we found out during the course of the trial when she was here.

Mr. BURLESON. Did you find out anything about Earl having any type of mental disorder, either in the service or subsequent thereto?

Mr. RUBY. Well, here it is.

Mr. BURLESON. You have that in there?

Mr. RUBY. Yes.

Mr. HUBERT. Do you know where your sister was hospitalized or treated?

Mr. RUBY. My sister Eileen Kaminsky—no; I don't, but she did mention she was having some difficulty.

Mr. HUBERT. But you got that information from her?

Mr. RUBY. Yes.

Mr. HUBERT. And you didn't know it at the time of the interview covered by Exhibit No. 2, to wit: November 27, 1963?

Mr. RUBY. No.

Mr. HUBERT. Other than that, this document is correct, that is Exhibit No. 2, is that right?

Mr. RUBY. Yes.

Mr. HUBERT. Now, I show you Exhibit No. 3, which you have already read, and that Exhibit No. 3 is an interview of you by Alfred Sayres, having been dated November 29. I have marked it for identification as follows: "Dallas, Tex., May 29, 1964, as Exhibit No. 3 to the deposition of Sam Ruby," and I have signed my name below it and I ask you if that document is correct?

Mr. RUBY (reading instrument referred to). Well, the first paragraph there?

Mr. BURLESON. Let me ask you—in reference to the first paragraph starting with "Samuel David Ruby, 11616 Jamestown Road, Dallas, Tex.,

advised that he has no interest financial or administrative in the S & R Corp. He further advised that he has no interest financial or administrative in the Carousel Club or in the Club Vegas in Dallas, Tex., which clubs are operated by his brother, Jack Ruby. He further advised that he is not aware that his name has ever appeared on any document as an officer in the S & R Corp., or in any way in the operation of the Carousel Club or the Club Vegas.”

Have you, since you made that statement back on the 29th of November 1963, been informed of some facts that are contrary to what you stated at that time, and do you wish to explain to Mr. Hubert what that is?

Mr. RUBY. Yes; I found out from Ralph Paul, who was also a stockholder, that I was a member of the corporation and that I was issued shares of stock in the S & R Corp., but I have never seen them, I have never received them or have never seen any of the corporation papers, so I am just taking his word for it, and I still don’t know, but they say it and also in the Vegas Club, I hold a chattel mortgage on that, which has not fully been paid off. I don’t know whether you would consider that a financial interest in that or not. Jack never paid me off the full amount.

Mr. HUBERT. Does that have to do with reference to a loan that had been made by you to him?

Mr. RUBY. Yes, sir.

Mr. HUBERT. And at an earlier date upon which you got a judgment in your favor?

Mr. RUBY. That’s right, sir.

Mr. HUBERT. Well, we will touch upon that a little later, and I think that will be clarified. It is a fact, I take it, until you were advised by Mr. Paul that your name appeared on the corporate papers, you didn’t know anything about it until then?

Mr. RUBY. No; this last, this third paragraph, I think I found out from my brother Earl.

Mr. BURLESON. All right, let me make reference to a particular sentence in there. In the third paragraph of the statement, “He further advised that sometime during the fall or early winter of 1960, his sister, Marion Carroll,

visited in Dallas and while here loaned Jack Ruby a fairly large sum of money. He said she later regretted making this loan and his brother Earl came to Dallas sometime in the spring of 1961 for the purpose of recovering the amount of this loan for Marion. He said he does not know if Earl was successful in this attempt or if Earl paid Marion the amount of the loan and thereby became a creditor of Jack Ruby.”

What have you found out since making that statement that might make some difference?

Mr. RUBY. Well, part of that I believe is true—Earl did come down here to try to get some of that money back, but I also found out that he let Jack have some money of his own because Jack was having some financial difficulties with the Carousel Club. It was changed then and I think it was the Sovereign Club or the Carousel.

Mr. HUBERT. Who did you find that out from?

Mr. RUBY. From Earl.

Mr. HUBERT. Did he say how much?

Mr. RUBY. No; he didn’t say—he may have said, but I don’t recall, but I know he says he let him have some money.

Mr. HUBERT. All right, are there any other changes or corrections to Exhibit No. 3?

Mr. RUBY. No; if he has an interest—I don’t know whether he has an interest—if it’s in writing—he may have.

Mr. BURLESON. Let me ask you—are you referring to the fourth paragraph that says, “He says he does not know whether or not Earl Ruby has a financial interest in the Carousel Club or the Club Vegas at Dallas, but if he does have, this interest may have arisen out of the above-mentioned loan.”

Mr. RUBY. Yes; that’s right—that is correct.

Mr. HUBERT. That is correct?

Mr. RUBY. Yes; that is correct, but I don’t know about it.

Mr. BURLESON. That’s what you have heard?

Mr. RUBY. Yes.

Mr. HUBERT. Is that all as to Exhibit No. 3, then?

Mr. RUBY. That's right—well, now——

Mr. BURLESON. Let me ask you this—you are now referring to the last paragraph. “He concluded by stating that he has no knowledge of the financial or corporate structures of the S & R Corporation or of the Carousel Club or Club Vegas in Dallas, Tex.” Do you want to change that in the light of what you have heard since that?

Mr. RUBY. Yes.

Mr. HUBERT. Let's put it this way—when that statement was given, that was true, you did not have that knowledge?

Mr. RUBY. That's right.

Mr. HUBERT. What you want to say now is that you have found out something since?

Mr. RUBY. That's right.

Mr. HUBERT. Will you tell us what it is?

Mr. RUBY. I found out that a certain amount of shares were issued to me in the S & R Corp. and that I was a vice president in the corporation.

Mr. HUBERT. And you did not know that at the time you made this statement?

Mr. RUBY. No, sir.

Mr. HUBERT. Whom did you find out those facts from?

Mr. RUBY. From Ralph Paul.

Mr. HUBERT. And that is the only source of your information, is that correct?

Mr. RUBY. Right.

Mr. HUBERT. Have you ever seen the shares?

Mr. RUBY. No; I never have seen them.

Mr. HUBERT. Have you ever seen any of the books or papers of the corporation that would indicate it?

Mr. RUBY. No, sir.

Mr. HUBERT. But your sole source of information as to your present statement is the information obtained from Ralph Paul?

Mr. RUBY. Yes.

Mr. HUBERT. Have you made any other inquiry about the matter?

Mr. RUBY. Well, we tried looking through the Carousel Club files up there—they had these metal files. We went through those and we couldn't find any papers, any corporation papers and no one of the attorneys seemed to have them at the time and Stanley Kaufman, who was a personal friend of his, and he is an attorney here in town, he didn't have them and he didn't know where they were, and we couldn't locate them.

Mr. HUBERT. Did you invest any money for the purchase of the shares of stock which apparently might have been issued to you?

Mr. RUBY. No; I didn't invest any. Jack may have transferred some of the money that he owed me as a financial transaction.

Mr. HUBERT. What you mean is that he owed you some money and he may have issued the stock to you?

Mr. RUBY. To cover that.

Mr. HUBERT. As a way of paying the loan?

Mr. RUBY. Right.

Mr. HUBERT. But in any case he didn't tell you he was doing so?

Mr. RUBY. No.

Mr. HUBERT. Have you any further comments as to Exhibit No. 3?

Mr. RUBY. No.

Mr. HUBERT. Now, I show you a document which purports to be a report of an interview of you by Alfred Sayres, FBI agent, on December 5, 1963, and for the purpose of identification I have marked that document, "Dallas, Tex., May 29, 1964, Exhibit No. 4 of the deposition of Sam Ruby," and I

have signed my name below that, and it consists of one page, and I ask you the same question with respect to that document?

Mr. RUBY. Well, this first paragraph—I found out that he had—that he did make a trip to Cuba.

Mr. BURLESON. Let me ask you—you are referring to the first paragraph which starts off: “Samuel David Ruby, 11616 Jamestown Road, Dallas, Tex., advised telephonically that he knows of no trip to Cuba made by Jack Ruby at any time. It was explained to Mr. Ruby that if such a trip were made it had been alleged Jack Ruby made the trip with a gambler from Fort Worth, Texas. He suggested that such a person may have been a man by the name of McWillie whom he has heard mentioned as a gambler and a friend of Jack Ruby.” What do you now know in reference to that, that you have found out since that time?

Mr. RUBY. Well, from Jack himself—this was in the Dallas County Courthouse in jail, that Mr. McWillie sent him the airplane tickets for him to go to Cuba and to be his guest while he was there.

Mr. HUBERT. When did you get that information from Jack Ruby?

Mr. RUBY. I don’t know—sometime ago—I believe it was during the trial—during the course of the trial.

Mr. HUBERT. You visited him at the Dallas County Jail, is that correct?

Mr. RUBY. Right.

Mr. HUBERT. And during the course of that conversation he told you that?

Mr. RUBY. Yes, sir.

Mr. HUBERT. Did you ask him about it or did he volunteer the information?

Mr. RUBY. I asked him about it.

Mr. HUBERT. And you think that was during the trial but before the verdict?

Mr. RUBY. Yes, sir.

Mr. HUBERT. About what part of the trial—do you remember?

Mr. RUBY. It was more or less during the beginning of it—most likely.

Mr. HUBERT. In February?

Mr. RUBY. Probably was.

Mr. HUBERT. Have you anything else to say about Exhibit No. 4?

Mr. RUBY. Everything is all right on it.

Mr. HUBERT. Now, I understand that your name and Jack's—the family name was Rubenstein.

Mr. RUBY. That's right.

Mr. HUBERT. And that you changed your name to Ruby?

Mr. RUBY. Correct.

Mr. HUBERT. Where was that change made?

Mr. RUBY. In Chicago, Ill.

Mr. HUBERT. And that was by a regular court proceeding in the courts of Illinois?

Mr. RUBY. Right, sir.

Mr. HUBERT. And did you know that Jack had also changed his name?

Mr. RUBY. I didn't know definitely whether he changed it legally.

Mr. HUBERT. Did you know that your brother Earl had changed his name?

Mr. RUBY. We changed ours at the same time. We were in business together.

Mr. HUBERT. What I wanted to ask you is whether or not the change of name of you and Earl and Jack was by a common understanding, that you all would change your name?

Mr. RUBY. No; just Earl and I had a common understanding. We were in business together at the same time and we used the same attorney.

Mr. HUBERT. What business was that that you were in?

Mr. RUBY. We were in the advertising specialty manufacturing business.

Mr. HUBERT. What was the name of it?

Mr. RUBY. Earl Products Co.

Mr. HUBERT. Was it a corporation?

Mr. RUBY. No; just a company.

Mr. HUBERT. A trade name?

Mr. RUBY. A trade name.

Mr. HUBERT. Was Jack in that company?

Mr. RUBY. He was. He was in the company for about 2 years, I believe.

Mr. HUBERT. And that was during what years?

Mr. RUBY. 1946 and 1947.

Mr. HUBERT. Now, how did he come to leave it?

Mr. RUBY. We had a little difference as to the policies of the company and Earl and I more or less agreed on the way it should be run and Jack had other ideas, and, of course, when we couldn't agree, we bought him out.

Mr. HUBERT. What did you pay him?

Mr. RUBY. I believe it was about \$14,000.

Mr. HUBERT. Now, was that paid in cash?

Mr. RUBY. Yes; it was cash.

Mr. HUBERT. After you bought him out and you paid him in cash, did he come to Dallas?

Mr. RUBY. Yes.

Mr. HUBERT. Would you say he came almost immediately?

Mr. RUBY. Yes; in fact I think he may have made some trips here before we sold out, before he sold out to us—I'm not sure about that, but it seems like he had come down here to visit my sister Eva—Eva L. Grant.

Mr. HUBERT. Do you know of your own knowledge whether or not when he got here he had approximately \$14,000 in cash, that is to say, when he came to Dallas?

Mr. RUBY. Well——

Mr. HUBERT. Let me put it this way—you knew he had the \$14,000—you don't know whether he had any debts or anything that would have consumed that \$14,000, is that what you are saying?

Mr. RUBY. That's right.

Mr. HUBERT. Now, when did you move to Dallas?

Mr. RUBY. In 1955—I moved here in July 1955.

Mr. HUBERT. And what was the occasion for your coming here?

Mr. RUBY. I sold out to my brother Earl in March of 1955 and at that time my youngest boy, Brion, had a little asthma difficulty and my sister Eva, who was residing in Chicago at the time, suggested that I come to Dallas and look into the building of homes in Dallas. She had some friends who were in the business of building homes, and I did build one residence in Oak Cliff, that is part of Dallas, in association with this lady friend of hers, and subsequently this woman I built the home with, she liked the home so well she bought it from me and I realized at the time that these building tradesmen here were kind of hard to get along with. In other words, they—some of them would drink on the job and material would be missing from the job and I thought I would rather get into something else that I was more familiar with.

Mr. HUBERT. Well, as I understand it, then, after you sold your interest to Earl, you made the decision to move to Dallas on a permanent basis?

Mr. RUBY. I came down here for a visit first.

Mr. HUBERT. When did you decide to make this your home—to make Dallas your home?

Mr. RUBY. After I sold out the company to Earl in March, I came down here in April.

Mr. HUBERT. Is that what you considered to be your permanent move to Dallas—in April?

Mr. RUBY. Well, I came down here for a visit and I decided I liked Dallas very much and I went back up north and, of course, at that time I was in the business of building this home and I told my wife—I called her

on the phone and told her that we are going to move to Dallas and I went up there in the latter part of June and helped pack our furnishings and belongings and had them moved down here by truck.

Mr. HUBERT. You had already finished building the home here you were talking about?

Mr. RUBY. No; I was in the process of building it.

Mr. HUBERT. After you moved down here and that was in the summer of 1955, as I understand you, and after you had finished this building venture which you decided you didn't want to continue in, what business did you go into by way of making a living?

Mr. RUBY. I went into—it was also the advertising specialty business—then with two fellows who were at that time engaged in it. They had a company under the trade name of Atlas American Specialties Co., I believe.

Mr. HUBERT. What was the name of the two men you are speaking of?

Mr. RUBY. One was Sam Lasser (spelling) L-a-s-s-e-r, and the other fellow was named Norman Weisbrod.

Mr. HUBERT. I think you have covered those transactions in your statements.

Mr. RUBY. I believe I have—I don't think they asked me those questions, although I did mention that they were friends of Jack's.

Mr. HUBERT. But you actually were business partners with them?

Mr. RUBY. Yes, sir.

Mr. HUBERT. How long did that last?

Mr. RUBY. That lasted until June 1956.

Mr. HUBERT. Well, what was the occasion of breaking that up, or what happened?

Mr. RUBY. We manufactured a product that wasn't engineered or designed properly and we had a lot of rejects and we were having to pay freight both ways and—— Mr. HUBERT. What was the product?

Mr. RUBY. It was this plastic spinner that you see on these wires in front of service stations and used car lots and the weather—when they are spinning around would force them to crack in half and they would fall on the cars and maybe damage them and they weren't satisfied with them and we found out later that this man who made our mould for us didn't design it properly.

Mr. HUBERT. Where are Lasser and Weisbrod now, do you know?

Mr. RUBY. They are partners in the wholesale distributing business of sunglasses.

Mr. HUBERT. In what city?

Mr. RUBY. In Dallas—I believe the name is Mode (spelling) M-o-d-e, Imports.

Mr. HUBERT. Do you have occasion to see those people frequently?

Mr. RUBY. No; I haven't seen those people in maybe—maybe for about 3 years.

Mr. HUBERT. They were friends of Jack's?

Mr. RUBY. Yes.

Mr. HUBERT. Did Jack get you interested in this venture with these two men?

Mr. RUBY. Well, he introduced me to them and he did say that they had a very good business and that they were hard working fellows.

Mr. HUBERT. Did you invest any money with them?

Mr. RUBY. Yes; I did.

Mr. HUBERT. How much?

Mr. RUBY. \$3,500.

Mr. HUBERT. When you dissolved, did they buy you out?

Mr. RUBY. No: the whole company was dissolved. We just liquidated it. We paid all of our debts.

Mr. HUBERT. Did you have any part of the investment returned to you?

Mr. RUBY. No, sir.

Mr. HUBERT. So, you lost the \$3,500 in that venture?

Mr. RUBY. Yes.

Mr. HUBERT. After that was completed, what did you do?

Mr. RUBY. In the latter part of 1956, I investigated this coin-operated washateria business and I succeeded in purchasing and in installing a new coin-operated washateria at 3608 Oak Lawn in Dallas.

Mr. HUBERT. What was the name of it?

Mr. RUBY. It was Speedy Wash, I believe it was.

Mr. HUBERT. And that was just a trade name?

Mr. RUBY. Yes.

Mr. HUBERT. I think you borrowed some money from some banks to do that?

Mr. RUBY. Yes; I borrowed some money from some banks.

Mr. HUBERT. Did you have any other ventures since that, or is that still in existence?

Mr. RUBY. No; I lost my lease—my lease was up and Ward's Drug Store next door somehow managed to get the lease on the store and, of course, I had to vacate and discontinue that place, but while I had that place of business I purchased the Bonnie Washateria at 2002 East 11th Street in Dallas and I also purchased another washateria at 2524 North Fitzhugh in Dallas.

Mr. HUBERT. Do you still operate those?

Mr. RUBY. No; I sold both of those.

Mr. HUBERT. How long ago?

Mr. RUBY. Well, this one at 2425 North Fitzhugh was the Ruby Washateria and I sold that 2 years ago last March—let me see—that would be 1962, wouldn't it?

Mr. HUBERT. Yes.

Mr. RUBY. In March 1962.

Mr. HUBERT. That was the last one you sold?

Mr. RUBY. No; that was the Ruby Washateria. Then, the Bonnie Washateria, which was at 2002 East 11th Street, I sold just last December, I believe it was.

Mr. HUBERT. Whom did you sell that to?

Mr. RUBY. To a Mr. George Cernorsky.

Mr. HUBERT. What was the purpose of your selling it?

Mr. RUBY. Well, I had a lot of competition—there was a new washateria opened up there on the street from me about a block away next to a supermarket and I was sort of in an isolated corner myself and also I was at that time engaged in extensive repair work and I tried to go more into the repair of washing machines and I thought it was taking a lot of my time and I wasn't making any money there and in fact I was losing money, and I thought—why have something like that on your hands and I would rather devote my time to repair work.

Mr. HUBERT. And that's what you have done?

Mr. RUBY. Yes.

Mr. HUBERT. And that's what you are doing now?

Mr. RUBY. Yes; but I also since that time—I also purchased a little manufacturing business in Coppell, Tex., which of all days, I purchased it on November 20, 1963.

Mr. HUBERT. What kind of business is that?

Mr. RUBY. It was a little stuffed animal business and the name of the company was the Autographic Mascots that they use around these colleges and universities and high schools—all of these schools have little mascots, you know, and the purpose was to have these kids—these various classes—have their classmates autograph them as sort of a remembrance or souvenir of their school days.

Mr. HUBERT. Are you still operating that?

Mr. RUBY. No; we sold that—we just sold that recently—April the 15th this party took over complete possession of it.

Mr. HUBERT. Whom did you sell it to?

Mr. RUBY. To Mrs. M. Frances Cole, I believe her name is.

Mr. HUBERT. C-o-l-e (spelling)?

Mr. RUBY. Yes.

Mr. HUBERT. Is she operating it now?

Mr. RUBY. Yes.

Mr. HUBERT. Now, I understand that you loaned some money to Jack in 1955; is that correct?

Mr. RUBY. That's right.

Mr. HUBERT. How much and under what circumstances?

Mr. RUBY. Well, he said he was having difficulty in paying his Federal excise taxes and I let him have \$1,000, and then sometime later—that was probably in May or June of 1955 when I let him have the \$1,000, and then sometime later—that was probably May or June when I let him have the \$1,000 and later that summer, it may have been in July or August, I let him have \$4,500, and he had some more difficulty with the Government on his Federal excise tax and he had to pay off these taxes or they would have padlocked his club—it was the Vegas Club.

Mr. HUBERT. When you made these loans to Jack, did you receive any evidence of the loan, such as a note?

Mr. RUBY. Yes, sir; I had him make out a bill of sale to me for the Vegas Club.

Mr. HUBERT. Was that recorded in any way?

Mr. RUBY. Well, I think I still have it at home—I think I still have it at home. I don't remember whether it was recorded or not—the attorney made it out.

Mr. HUBERT. I understand that you had to file a legal proceeding against Jack in order to recover your money?

Mr. RUBY. That's right.

Mr. HUBERT. A judgment for it?

Mr. RUBY. That's right, sir.

Mr. HUBERT. Was that a contested suit—did you file suit against him?

Mr. RUBY. Yes, sir; I did.

Mr. HUBERT. This bill of sale, was that sort of a security device or actual transaction of sale?

Mr. RUBY. It was an actual transaction of sale and also a security.

Mr. HUBERT. What you did—you sued on the note, I assume, that was involved; is that correct?

Mr. RUBY. No; we sued that I was the legal owner of the business and that he told me he would—in December he said he would purchase the club from me. He wasn't satisfied with me as a partner and he said he was going to buy me out, but he failed to meet his financial promises and so I kept calling him and so I wasn't getting any satisfaction and I hired an attorney. Mr. Harold I. Berman.

Mr. HUBERT. And then he filed suit on your behalf?

Mr. RUBY. Yes.

Mr. HUBERT. And he obtained a judgment?

Mr. RUBY. Right.

Mr. HUBERT. Was that a contested suit or did it go by default?

Mr. RUBY. It was contested—he had his attorney there, Mr. Klepak.

Mr. HUBERT. He actually went to trial?

Mr. RUBY. Yes.

Mr. HUBERT. And you won the case?

Mr. RUBY. Yes, sir.

Mr. HUBERT. And the result of the judgment was that you were declared to be the owner of the Vegas; is that it?

Mr. RUBY. Well, that Jack should—he agreed to pay me the amount of money he owed me, which at that time amounted to about \$4,500. He had paid me some money.

Mr. HUBERT. Was that after you obtained the judgment that he agreed to pay you?

Mr. RUBY. Well, it was during the judgment—that's the way we settled it in court.

Mr. HUBERT. In other words, the case was compromised, was it?

Mr. RUBY. Yes.

Mr. HUBERT. And the compromise was that he agreed to pay you—what sum of money?

Mr. RUBY. \$4,500—that was the balance that he owed me at the time—at that time.

Mr. HUBERT. Then didn't he then execute a note to you or was that just simply part of the judgment?

Mr. RUBY. That was part of the judgment and we have a legal document showing that the judgment was entered and agreed upon and I think was signed by the judge, and I have that document at home. It's still on file in the records building—it has never been removed.

Mr. HUBERT. Has the \$4,500 been paid off?

Mr. RUBY. No, sir.

Mr. HUBERT. How much is yet due upon it?

Mr. RUBY. Oh, about \$1,300 or so.

Mr. HUBERT. Was it to be paid off in installments or any period of time or just what was the arrangement or compromise made?

Mr. RUBY. I believe he gave me a thousand dollars in the Court that day and they had to take a hundred dollars off for his attorney—his attorney wanted a hundred dollars from that thousand dollars, and so I only received \$900 and the rest was, I believe, to be paid off in \$200 monthly installments.

Mr. HUBERT. So, that in any case there now remains a balance of \$1,300 due on that?

Mr. RUBY. Yes, sir.

Mr. HUBERT. Did you ever live in Youngstown, Ohio?

Mr. RUBY. Yes, sir.

Mr. HUBERT. During what period?

Mr. RUBY. From 1939 to 1941. I registered there for the draft.

Mr. HUBERT. What was your occupation there?

Mr. RUBY. I was what they call a siding applicator—you know—these siding manufacturers like Johns-Manville and Ruberoid and these various other siding manufacturers. I worked for a construction company and we secured contracts and I was one of their—what they call—shingle applicator.

Mr. HUBERT. What was the name of the company? Do you recall?

Mr. RUBY. The National Improvement Company.

Mr. HUBERT. Did you work with it only?

Mr. RUBY. Yes.

Mr. HUBERT. And that was for a period of 2 years?

Mr. RUBY. I think it was 3 years—1939, inclusive—1939 to 1941.

Mr. HUBERT. And then you went into the draft?

Mr. RUBY. And then I worked in Chicago for a few months and then I went and enlisted in the Navy in February 1942, and they turned me down because of my eyes, and I went to the draft board and tried to find out how soon my number was coming up and they took my name and address and it was within the next few days that they let me know that they wanted me to come down for an examination.

Mr. HUBERT. Do you know Ralph Paul?

Mr. RUBY. Yes; very well.

Mr. HUBERT. How long have you known him?

Mr. RUBY. Well, practically since I have been in Dallas—since 1955, I would say.

Mr. HUBERT. How did you meet him?

Mr. RUBY. Through Jack at the Vegas Club.

Mr. HUBERT. Were you ever in partnerships with him yourself?

Mr. RUBY. Yes, sir—I forgot to mention that. I just recall that now. We were in an ice cream business venture.

Mr. HUBERT. What was the name of that; do you know?

Mr. RUBY. I think it was the Rainbow Ice Cream Palace.

Mr. HUBERT. Where was it located?

Mr. RUBY. In Wynnewood Shopping Center.

Mr. HUBERT. What happened to that venture?

Mr. RUBY. It just wasn't successful.

Mr. HUBERT. How long did it last?

Mr. RUBY. Well, let's see—about 4 months I believe—March, April, May, and June—I think it only lasted 4 months.

Mr. HUBERT. Have you had any other business arrangements or enterprises with Paul?

Mr. RUBY. No—but I was in another business with a fellow named Robert Eisman.

Mr. HUBERT. I-s-m-a-n [spelling]?

Mr. RUBY. No—[spelling] E-i-s-m-a-n.

Mr. HUBERT. What was that business?

Mr. RUBY. Washateria—we were partners in a coin-operated business—washateria at the time—two of them.

Mr. HUBERT. What was the name of this?

Mr. RUBY. One was the—what was the name on it—it was on 1713 South Ervay Street.

Mr. HUBERT. That was different from the other two you have mentioned here?

Mr. RUBY. Yes, sir.

Mr. HUBERT. How long did that arrangement last?

Mr. RUBY. Oh, about 3 years.

Mr. HUBERT. When was it dissolved?

Mr. RUBY. This is 1964—that must have been in March 1960, or 1961.

Mr. HUBERT. Is this man Eisman still in Dallas?

Mr. RUBY. No; he's living in Fort Worth at the present time—he is in the washateria—not washateria, but coin-operated washing machines at the present time.

Mr. HUBERT. What caused you to dissolve that arrangement with Mr. Eisman?

Mr. RUBY. We had an awful lot of vandalism there in that neighborhood. They cut down water hoses and they would break into the machines and there was just too much vandalism to be profitable.

Mr. HUBERT. Have you ever been charged or convicted of any felonies?

Mr. RUBY. No, sir.

Mr. HUBERT. What has been your relationship with Jack since you came to live in Dallas?

Mr. RUBY. How do you mean that?

Mr. HUBERT. Well, as brothers—do you visit socially often—you have told us about some of the financial matters between you and I was wondering what was the personal relationship between you?

Mr. RUBY. Well, outside of that difference we had about the club, he used to come over and visit us for the Jewish holidays and sometimes we would invite him over for an evening to dinner.

Mr. HUBERT. On the average, how often did you see him a year, for instance?

Mr. RUBY. Well, I would see him, oh, maybe anywhere from three to six times a year.

Mr. HUBERT. Did you have other contacts with him by phone or otherwise?

Mr. RUBY. Yes; we talked to him on the phone on different occasions. There was nothing important—I mean—just about maybe something about his family or how he was doing or inquire about the children.

Mr. HUBERT. What about your relationship with his sister, Mrs. Eva Grant?

Mr. RUBY. Well, I have seen her more often and we are off and on like brothers and sisters and we argue at different times and maybe in a week or so we'll forget about it and make up. She has her own views on things.

Mr. HUBERT. Did you have occasion to see Jack during the period September 25 through November 24, 1963?

Mr. RUBY. September—you say?

Mr. HUBERT. Yes.

Mr. RUBY. Yes—September 25, yes, I believe I did. I may have seen him at the club one night and then on one occasion, I remember it was the week of Halloween, because the man I was working for went out of town and Jack called me—he called me—I don't know whether he called me or my wife called me, and wanted me to go to Fort Worth with him to look at this twistboard factory which he was handling as a distributor at that time and I wasn't too anxious to go, but he insisted and he said maybe if that distributing business went all right, he would like me to become interested in that.

Mr. HUBERT. Did you go with him then?

Mr. RUBY. Yes; I did. I had some work but I thought I could make it up either later in the day or the following day—just repairing washing machines. I was working for a man that had three washaterias at the time and I took a ride with him to Fort Worth to see this manufacturing plant.

Mr. HUBERT. Did you enter into the venture with Jack?

Mr. RUBY. No, sir.

Mr. HUBERT. Do you know to what extent he did?

Mr. RUBY. No; he told me that he was a distributor for these boards and he was thinking maybe of going into the manufacture of them.

Mr. HUBERT. When did he tell you that?

Mr. RUBY. At that time.

Mr. HUBERT. Do you know whether your brother Earl had any interest in it?

Mr. RUBY. No, sir; I don't.

Mr. HUBERT. You don't know to this moment whether he does?

Mr. RUBY. No, sir.

Mr. HUBERT. Jack never mentioned that Earl might be interested?

Mr. RUBY. No—no; he never mentioned one way or the other whether Earl would be interested.

Mr. HUBERT. Do you recall whether you had any contact whatsoever with Jack during the periods, say, from the 16th of November through the 24th of November—that would be about the week before the President died until Oswald was shot?

Mr. RUBY. Yes; I think he called me on the phone a few times and wanted me to go visit my sister Eva in the hospital.

Mr. HUBERT. Did you go?

Mr. RUBY. No, sir; I didn't.

Mr. HUBERT. Now, do you remember any other contacts between you and Jack other than the one you just mentioned concerning visiting your sister in the hospital?

Mr. RUBY. Well, he may have called me twice on the phone—I didn't see him during that period. The last time I saw him was the week of Halloween—it was on a Wednesday, I believe.

Mr. HUBERT. In other words, then, the last time you saw him was before Oswald was shot?

Mr. RUBY. That's right, sir.

Mr. HUBERT. That was approximately a month or 4 weeks before Oswald was shot?

Mr. RUBY. That's right; before.

Mr. HUBERT. And you recall at least one telephone conversation which you have just made reference to about visiting your sister in the hospital?

Mr. RUBY. Yes—he was very upset about me not going. I promised him I would go and then I happened to be very busy working for this washateria owner and I thought it was more important I stay at my job and maybe go at night, but he became very upset about me not going and sort of became abusive.

Mr. HUBERT. That was all over the phone?

Mr. RUBY. Yes.

Mr. HUBERT. Did he contact you after the President was shot?

Mr. RUBY. No, sir—no, he didn't contact me.

Mr. HUBERT. Did your sister do so?

Mr. RUBY. No, sir.

Mr. HUBERT. In other words, between November 22d and the time Oswald was shot, you had no communication of any sort whatsoever with either your sister, Eva Grant, or your brother, Jack Ruby; is that right?

Mr. RUBY. That's right, sir.

Mr. HUBERT. Were you aware of his reaction to the President's death during the period November 22 through November 24?

Mr. RUBY. No, sir; I had no idea. I was busy at the time—I was working for this man, Mr. Dean, and I also was doing repair work at night and I was working pretty late at night and I would get home late and get up early in the morning and had to be at the job at 8 and so my days and nights were fully occupied at that time and previous to that, too.

Mr. HUBERT. I think you have stated in one of these statements that Mr. Paul said he was going to give you 50 percent of the stock of the S & R Corp.; did he say why he was going to do that?

Mr. RUBY. Yes, sir; that was after Judge Sterrett denied an application for a new license and he wanted to turn his 50 percent over to me so that I should have the obligations of the club, which I wasn't in favor of because I didn't have the financial backing to take it over. I have never received that 50 percent.

Mr. HUBERT. Why did he want to give it to you?

Mr. RUBY. So that he wouldn't have to assume any financial responsibilities incurred by the corporation.

Mr. HUBERT. And you refused it?

Mr. RUBY. I didn't refuse him at the time, but I didn't agree one way or the other, but I suggested my sister Eva take over the 50 percent of the corporation.

Mr. HUBERT. Were any shares of stock ever delivered to you?

Mr. RUBY. No, sir; not any shares.

Mr. HUBERT. Mr. Burleson, do you have any questions you would like to ask of Mr. Ruby?

Mr. BURLESON. Yes. First, Sam, have you, since this incident occurred back on November 24, 1963, had an occasion to have any threats on your life, your well-being, your future or that of your children, or your family?

Mr. RUBY. Well, there was one man that called and said he was a friend of Jack's and he wanted to come over and he said that he was from up North—I believe he was from Minnesota and he had come down here to look for a job—he wanted to get a job and he was a friend of Jack's and it didn't sound sensible or logical and he had talked to my wife, and we didn't give him our address or any other information and he said he wanted to talk to Jack.

Mr. BURLESON. But you have had no direct threats?

Mr. RUBY. No, sir.

Mr. HUBERT. When was this occurrence?

Mr. RUBY. The conversation—well, my wife would know more about that, I believe, since she talked to him—I believe it was in December.

Mr. HUBERT. You have never heard any more from this individual?

Mr. RUBY. No, sir.

Mr. BURLESON. Now, you have been visiting Jack recently, have you not, in jail?

Mr. RUBY. Yes, sir.

Mr. HUBERT. Can you tell us what you found Jack's condition to be since the verdict and at the present time?

Mr. RUBY. Well, to be frank with you, I always thought there was something odd about Jack, but I thought he was just the type of a person that's hard to get along with and that was before—years ago—but since I have been visiting him lately, his mental condition has deteriorated very rapidly. He keeps saying that people are being killed in the streets and he hears screams in the building of people being slaughtered.

Mr. BURLESON. Are these just people or are these Jewish people?

Mr. RUBY. Well, he says, "People," and then he says "Jewish people" and he always imagines that Earl is killed and his children's bodies are being dismembered.

Mr. HUBERT. Does he say anything about Eva?

Mr. RUBY. No; he tells me to leave and sell my home and get out of Dallas. He says that the police hate him here.

Mr. HUBERT. Does he tell you to do anything as far as self-destruction is concerned?

Mr. RUBY. Yes; he has done that quite a few times. He says he is going to take his life and I've tried to talk him out of it, and tell him everything will be all right.

Mr. HUBERT. He said he was going to take his own life?

Mr. RUBY. Yes; and I have never heard him talk like that before.

Mr. BURLESON. Does he appear to be normal to you?

Mr. RUBY. No; he has that—I don't know how to describe his look, but he has sort of a look of a person that is being tortured or tormented by

something and I don't know what you would call it, but it is sort of a—he has that look in his face of not seeing you, like he is looking—staring at you but not seeing you.

Mr. HUBERT. Does he recognize you?

Mr. RUBY. Yes; he does.

Mr. HUBERT. When did you last see him?

Mr. RUBY. Last Sunday.

Mr. HUBERT. How many times since his conviction have you seen him prior to last Sunday?

Mr. RUBY. Well, I have seen him at least once a week.

Mr. HUBERT. And this condition that you have described that he has, did it exist right after the conviction or was it a progressive matter?

Mr. RUBY. Well, it has been progressive and during the course of the bond hearing and the change of venue and the jurors and the trial itself—he didn't seem to communicate with me very much. He didn't have anything to say to me, so to speak, like he didn't have all of his faculties, you might say.

Mr. BURLESON. Now, let me ask you—do you know anything about the financial situation of the so-called defense fund—the money that has come in for the defense of Jack Ruby, have you had anything to do with it yourself?

Mr. RUBY. No; I had nothing to do with it, but I understand they sold a story. Do you want to know about that?

Mr. BURLESON. Well, we know about that. That's the newspaper story that this Woodfield fellow bought?

Mr. RUBY. Yes.

Mr. BURLESON. Have you personally received any money from any source from persons who have contributed it to you to use in the defense fund?

Mr. RUBY. No, sir.

Mr. HUBERT. You have not received even any money in the mail; is that right?

Mr. RUBY. Not one penny.

Mr. BURLESON. And no one has given you any to be utilized for the defense?

Mr. RUBY. No, sir.

Mr. BURLESON. Have you contributed any of your own, other than the expense that you have been out personally during the trial and things of that nature, have you contributed any?

Mr. RUBY. No, sir.

Mr. BURLESON. And have you heard from any members of the family who are maybe more aware of it than you are that many large sums have come in, other than this one for the sale of the news story?

Mr. RUBY. Yes: I heard that one come in from one of Jack's friends in Chicago.

Mr. BURLESON. Is that the \$250?

Mr. RUBY. Yes.

Mr. HUBERT. Who was the friend, do you know?

Mr. RUBY. Kelman, I think his name is Joe Kelman.

Mr. HUBERT. Do you know that man?

Mr. RUBY. Not personally; I met his brother years ago. His brother was a personal friend of Jack's, Morris Kelman, and they are, I believe, in the auto windshield glass manufacturing business in Chicago.

Mr. HUBERT. Then, I believe there was another check of some sum from Walter Winchell?

Mr. RUBY. Yes.

Mr. HUBERT. Do you know how much that was?

Mr. RUBY. My sister Eva said it was for \$100.

Mr. BURLESON. You were reported as saying to some news media that there was several thousand dollars?

Mr. RUBY. I didn't say that. I said it was very generous—I didn't give any amount. I didn't even say whether it was a dollar or what amount it was.

Mr. BURLESON. Do you know of any other sums of money that may have come in, of any substantial sum?

Mr. RUBY. No; I don't.

Mr. BURLESON. That's all I have. I need to go off the record for a moment. I need to talk to Mr. Ruby on a matter that we had not completely discussed.

Mr. HUBERT. All right. Would you like to leave the room for your conference?

Mr. BURLESON. Yes; please.

(At this point counsel Burleson and the witness, Sam Ruby, left the conference room for approximately 10 minutes, returned thereto, and the proceedings of Mr. Ruby's deposition continued as follows.)

Mr. BURLESON. I would like to go back on the record and ask you, Mr. Ruby, is there anything you would like to bring out—anything that you would like to tell Mr. Hubert here on any version of the case, either something we have already talked about, to amplify, explain that, or either something new—some new area that you feel like that he would be interested in?

Mr. RUBY. Well, I don't know, except that I talked to some of the people from the Liquor Commission, the Texas State Liquor Commission, and they think that he may have felt sorry for the Tippit family as well as the Kennedy family, and he always took it personally when a police officer was killed. I mean, he made it his business to contribute something financially when an officer was killed.

Mr. HUBERT. Who told you that?

Mr. RUBY. Well, they are up at the Liquor Commission in Oak Cliff—I don't think I know that just now.

Mr. BURLESON. That would be the Liquor Control Board—some of the personnel there?

Mr. RUBY. I believe that's it.

Mr. BURLESON. Do you know their names?

Mr. RUBY. I believe one was Johnny Cranks.

Mr. HUBERT. When was this told to you?

Mr. RUBY. Well, they called me up there to inquire whether I was a member of the corporation.

Mr. HUBERT. And then they volunteered their opinion as to what his motivation was?

Mr. RUBY. Yes; that was what they thought and I talked to Jack a few times at the county jail and he says he felt very sorry for the Kennedy family.

Mr. BURLESON. Did Jack ever tell you why he shot Oswald?

Mr. RUBY. No; he never mentioned his name to me. He never mentioned his name.

Mr. BURLESON. You were in the service?

Mr. RUBY. Yes, sir.

Mr. BURLESON. I know one of Jack's brothers was in the intelligence?

Mr. RUBY. I was in the Army intelligence.

Mr. BURLESON. You were in the Army intelligence—for how long?

Mr. RUBY. Well, we were stationed at Langley Field in 1942 and 1943 and a Captain Southern swore me in as an agent, to keep an eye on Communists and Nazi saboteurs and to see whether anybody was leaving subversive literature around for the boys to read, and if I did see anybody acting suspicious to write a letter into a certain box number in Newport News, Va., which was about 20 miles away from Langley Field, and have a general theme, in fact, he says he checked up on my family history and all of the members of the family, and to write just like I am writing to my family, in fact he mentioned my brother Jack and write a letter like you are

writing, “Dear Brother Jack: Last night we went to town and we had a few beers and we went to a movie and had a few dances and Pvt. John Smith has been acting kind of queer lately,” and he said somewhere in the letter mention that and they would take care of it from then on, and I had to sign my name Johnny Newman.

Mr. HUBERT. What was the captain’s first name; do you recall?

Mr. RUBY. I don’t recall his first name, but his name was Southern.

Mr. HUBERT. How do you spell it?

Mr. RUBY. S-o-u-t-h-e-r-n [spelling].

Mr. HUBERT. And he was part of what organization?

Mr. RUBY. The Army Air Force—it was the Third Army Air Force based at Langley Field, Va.

Mr. HUBERT. But what was the specific organization in which he was in?

Mr. RUBY. Well, our outfit was called the Tenth Tow Target. They used to tow targets and train pilots at the same time for these anti-aircraft guns, to fire these guns behind the planes.

Mr. HUBERT. All right.

Mr. BURLESON. Do you have anything else you want to bring out on any subject or matter of any nature that you think either the Commission or Mr. Hubert would be interested in?

Mr. RUBY. Well, all I know is that Jack had a very deep feeling about this anti-Semitism in this country and, of course, with the massacre of the 6 million Jews in Germany, and he had that on his mind quite a bit, and he was the most religious of the boys in the family. The brothers went to say prayers for my dad after he passed away for a full year, which is customary, of course, we went for a few months—the other brothers, but Jack is the one that went for a full year, and he observed going to the synagogue more regularly than the other brothers did.

Mr. HUBERT. Did he, in fact, go to the synagogue regularly, do you know?

Mr. RUBY. Well, all I can say is that he went more regularly than the other brothers.

Mr. HUBERT. How do you know that?

Mr. RUBY. Well, he used to call from there or when he would be talking, he would say he was going to the synagogue and he was coming from there, and in the conversation he would say he talked to the rabbi and he would call and say he was going there and we would invite him over for dinner or he would go early in the morning and we would invite him over for a late breakfast.

Mr. BURLESON. Do you think of anything else you want to develop or bring out?

Mr. RUBY. No.

Mr. HUBERT. All right, sir. Now, there has never been, Mr. Ruby, any interview between you and me other than what took place in this room since this deposition began, is that correct?

Mr. RUBY. That's right, sir.

Mr. HUBERT. So that all that has ever passed between you and me has been recorded in this room—right?

Mr. RUBY. Yes.

Mr. HUBERT. Thank you very much. I'm glad to see you, Mr. Ruby, and I'm glad you came down.

Mr. RUBY. Thank you.

Mr. BURLESON. Thank you, Mr. Ruby, and I will see you outside in just a second.

TESTIMONY OF JACK L. RUBY

The testimony of Jack L. Ruby was taken at 11 a.m., on July 18, 1964, at the Dallas County Jail, Dallas, Tex., by Mr. Arlen Specter, assistant counsel of the President's Commission. Present were: Bell P. Herndon and W. James Wood, special agents of the FBI; Clayton Fowler and Joe H. Tonahill, counsel for Jack Ruby; William F. Alexander, assistant district attorney for Dallas County, Tex.; Allan L. Sweatt, chief criminal deputy for Dallas County, Tex.; E. L. Holman, chief jailer; and Dr. William Robert Beavers, observer.

Mr. SPECTER. May the record show that present at this time are Mr. Clayton Fowler, chief counsel for Jack Ruby; Mr. Joe H. Tonahill, cocounsel for Jack Ruby; Mr. William F. Alexander, assistant district attorney for Dallas County, Tex.; Mr. Allan L. Sweatt, chief criminal deputy and polygraph operator for Dallas County, Tex.; Mr. Bell P. Herndon, the polygraph operator and special agent of the Federal Bureau of Investigation; Mr. W. James Wood, special agent of the Federal Bureau of Investigation; Odell Oliver, court reporter; and Arlen Specter, assistant counsel of the President's Commission.

We have discussed preliminarily the procedure to be followed on the polygraph examination, where those currently present may remain while the polygraph operators, Mr. Herndon and Mr. Wood, explain the questions to Mr. Ruby, and then everyone would leave except the operators, Messrs. Herndon and Wood, the court reporter and I, and the question now subject to being resolved is the issue of whether anyone will be present from the sheriff's office.

As you know, the President's Commission is trying to bring its work to a close and the Chief Justice promised a polygraph test and that was 6 weeks ago tomorrow. There have been a lot of things we have had to work out, and I think it all ought to be on the record. I would want to give everyone an opportunity to put any request right on the record in any way

you want; and, of course, I think that all your objections and comments about this proceeding should go on the record. After you have so stated, I will state responsively the Commission's position on these proceedings.

I will say further that there is no closed mind on these issues and that they will have to be weighed and evaluated by the members of the Commission themselves.

Mr. FOWLER. Let me first suggest then—why don't I discuss this with Jack?

Mr. SPECTER. That's fine.

Mr. FOWLER. And then Jack may say whether he wants to go ahead with this and how I have advised him, and that he has on numerous occasions requested it, and I will tell him that the Chief Justice promised to give it to him and they are here ready to do it, which I am going to tell him, and if he insists on it, I can't and won't try to hold him back.

Mr. TONAHILL. That's a good suggestion.

Mr. SPECTER. Fine; and if he has changed his mind for any reason, I will just want to have it on the record, and that will conclude the issue, so far as the Commission is concerned.

Mr. FOWLER. Let's see—he's on what floor?

Mr. TONAHILL. 6-M.

Mr. FOWLER. Let me step down and chat with him for just a few minutes.

Mr. TONAHILL. Do you want me to go with you?

Mr. FOWLER. I may need you later.

Mr. SPECTER. Let the record show that Mr. Fowler left the room, and in approximately 5 minutes thereafter, returned to the room from his conference with Mr. Ruby.

Mr. FOWLER. He says he's going to take this test regardless of his lawyers, and he says, "By God, I'm going to take the test."

Mr. TONAHILL. Well, you know the law is in his favor and that he is presumed to be sane, and there can't be anybody speak for him but himself.

Mr. FOWLER. I have advised him, and I have read this letter to him, and I have explained all of this to him when I talked to him.

Mr. TONAHILL. If he wouldn't take it now—— Mr. FOWLER. Well, I won't want to go back there then.

Mr. TONAHILL. If he ever gets his hands on you, they'll let him have it.

Mr. SPECTER (addressing the court reporter). I hope you have had a chance to put these observations on the record.

Mr. FOWLER. I also want this further put into the record as to how many requests, in addition to this one, that were made for this test.

Mr. SPECTER. We would be willing to accede to that request, and as you know, we have been trying to set this up for a long while. The circumstances of the Commission's timetable require us to proceed today; that is, either proceed or find out from Mr. Ruby that we would not ever proceed along this line. I have requested Sheriff Decker to have a physician standing by so that he may protect, to the fullest extent possible, Mr. Ruby's physical condition if he needs medical attention. As to your first request for Dr. Tanay of Detroit to be present, the Commission would permit that. But since Dr. Tanay is not now present, there is no way to implement that. We have no objection to having any other doctor here who can be present here today.

With respect to request No. 2 made during our preliminary discussion, that the results of the tests be held confidential, the Commission has heretofore on other questions refused to make any advance commitment because of the nature of its responsibility to make the final decision on disclosing or not disclosing what it concludes is in the public interest. Or stated differently, the Commission just won't be committed. The results of this examination will not be disclosed to anyone until the Commission itself has reviewed the results and makes a decision, bearing many factors in mind, including your request, to have the information remain confidential.

Mr. FOWLER. All right; now in the past, of course we feel this—that as to the other information that we assumed would be confidential and would not be released to the press, this of course has been done, and we strenuously request that this matter not be released to the press.

(At this point Sheriff Decker entered the room.)

Mr. DECKER (addressing Mr. Fowler). Jim Kerr caught you making a 50-yard dash and they are circling around downstairs and Jim Kerr is just going in circles wanting to know what Clayton Fowler is doing up in the jail.

(At this point Sheriff Decker left the room.)

Mr. SPECTER. Mr. Fowler, as to your last statement, I don't know what you are referring to specifically, and without taking it up in terms of specific items, I couldn't comment about it, and I don't know that it would be really useful to go into it at this time. The material given to the Commission, where the Commission says it will be kept confidential, to the best of my knowledge, has always been honored. There are in these proceedings many chains and it is not possible in some cases to pinpoint responsibility, but the Chief Justice and the Commission have honored every commitment they have made heretofore. If they feel in their judgment—of course they have the paramount responsibility for the entire investigation—that the results of this proceeding ought to be kept secret, you may be assured that it will be implemented to the fullest extent possible.

Mr. FOWLER. Well, of course, our request is that this matter be held strictly confidential because it is being given at the request of the Commission and for the benefit of the Commission, and we feel that the Commission and only the Commission should have this information, and before any of it is released for public consumption or private consumption, No. 1, the sheriff's office, the district attorney's office, the Federal Bureau of Investigation, or any other agency of the Government outside the Warren Commission—that we be told that this is going to be done.

Mr. SPECTER. That request, I think, can be honored in that you will be notified in advance of any publication, that the Commission will make a publication if in fact it ultimately decides to make such a publication. Now, there is one facet of this matter which is difficult to control and that is the fact itself that a polygraph examination is being administered. I do not know at this time what circulation has been given to this fact, if any, by any of the people who are involved, since it has touched many bases among many parties in this proceeding. That fact itself may have already been disclosed, but with respect to the results of this examination, I propose to

keep those within the custody of the Commission through the Federal Bureau of Investigation and its operators, who are conducting this test, and their report will be made available only to the Commission until the Commission decides whether it should be made public.

Mr. FOWLER. All right. Now then, I would like for this record to also show that this letter from Mr. Gordon Shanklin has been handed to you and that you are fully apprised of what this letter contains, and I want the record to further show that on this date (1:05 p.m.), not later than 10 minutes ago, I talked with Jack Ruby. I read the letter to him. I explained it to him to the best of my ability. I also advised him that the family legal advisor, Mr. Sol Dann, an attorney of Detroit, had made these requests, and that following these requests that I as Jack Ruby's attorney advised him not to take the test, and that if he did so he would be doing it against the advice of his attorney, against the advice of his family advisor's attorney, and against the advice of the family, and that notwithstanding this, Jack said that he had requested this before either Mr. Sol Dann or myself came into this case as attorneys, and that Chief Justice Warren had promised that he would give him this test, and that regardless of what Mr. Dann's wishes would be, together with his entire family and together with his attorneys of record, that he insisted on this test, but that a further proceeding of it would be against the advice of his lawyers, and at this time we do respectfully request that the Commission not disclose any of the questions that will be submitted to Jack Ruby to any other person other than the operators, the investigator for the Warren Commission, and his attorneys present, Mr. Joe Tonahill and Clayton Fowler; and that more specifically that these questions not be given to anyone connected with the Dallas Sheriff's Office, the Dallas Agency of the Bureau of Investigation, the Dallas District Attorney's Office, and more specifically, Mr. Bill Alexander, who is present in the room at this time and representing the district attorney's office, and Mr. Allan Sweatt, who is present in the room and representing the Dallas Sheriff's Office. Anything else, Joe?

Mr. TONAHILL. I might go back on a little background whenever you finish.

Mr. FOWLER. I wish you would.

Mr. SPECTER. With respect to the notation for the record concerning the contents of the letter from Mr. Gordon Shanklin, special agent in charge of the FBI office here in Dallas, that identical information has been conveyed through the Federal Bureau of Investigation to Mr. J. Lee Rankin, general counsel of the Commission. Having considered those requests and those factors, the general counsel has instructed me to proceed to have this polygraph taken today if Mr. Jack Ruby wants to have this polygraph taken in accordance with his prior request to the Commission on June 7, 1964, and the commitment given by the Commission through the Chief Justice that such a polygraph examination would be given. With respect to the request that none of the questions be made available to anybody from the Dallas Police Department or the Dallas District Attorney's Office or the Dallas Sheriff's Office, the Commission's position on that is that if the questions are to be submitted in advance to the counsel for the defendant, that there is equal standing on the part of the State to have similar treatment.

Previously, I outlined for you the procedure that we proposed to adopt during the course of this polygraph examination, to wit; having the people present in the room who are here at the present time, which includes Mr. Clayton Fowler and Mr. Joe Tonahill, representing Mr. Ruby; Mr. William F. Alexander, representing the Dallas District Attorney's office; Mr. Allan L. Sweatt, chief criminal deputy of the Dallas Sheriff's office; Mr. Bell P. Herndon, special agent of the Federal Bureau of Investigation, and Mr. W. James Wood, special agent of the Federal Bureau of Investigation, who are going to administer the polygraph examination.

The questions to be asked of Mr. Ruby at the time of administration of the examination would be set forth to Mr. Ruby so that he would understand them fully; and with the other people present, it would be known what questions were going to be asked of Mr. Ruby in advance of the actual asking.

Then, it was the Commission's view that everybody should leave the room except for the two special agents of the FBI who would be administering the test, the court reporter and me, so that the minimum number of people would be present.

I have conveyed that request to Sheriff Decker and he has insisted that a member of his staff be present as custodian of the body of Jack Ruby,

since he has that responsibility. It is not yet determined who that will be, but the Commission proposes to proceed on the administration of the polygraph test under those circumstances, with the only open question being the identity, if anyone, of the representative of the sheriff who has charge of the custody of the body of the defendant here or Jack Ruby, since he is not a defendant in this proceeding, actually.

Mr. TONAHILL. I should like to say as one of Jack Ruby's defense counsel along with Chief Defense Counsel Clayton Fowler, that when I entered the defense of Jack Ruby back in December of 1963, with Mr. Belli, at that time we insisted before undertaking his defense that he agree to a polygraph test and truth serum test or any other scientific test that would reflect whether or not there was a connection between him and Lee Harvey Oswald or in any respect a conspiracy. He agreed and insisted at that time that there was no such conspiracy. He did not know Lee Harvey Oswald and there was no connection between them and that he would undertake any type of a scientific test that we could have made available for him. Jack Ruby has insisted on those tests ever since.

We have from time to time proposed to the FBI through Mr. Gordon Shanklin and others, that a lie detector test be given Mr. Ruby. We have filed motions to obtain scientific tests. Mr. Ruby has insisted on these tests very strenuously and has felt that I have stood in the way of him obtaining them.

I was present during the Warren Commission deposition of Jack Ruby along with Mr. Jim Bowie of the district attorney's office some 6 weeks ago when Chief Justice Earl Warren on numerous occasions responded to Jack Ruby that he had it in his power to make available to him some day in the future a polygraph test and would do so at Mr. Ruby's request.

Now it has come down that Chief Justice Earl Warren and the Warren Commission are now in the process of keeping faith with their promise to Mr. Ruby.

Mr. Fowler and I have talked with the various psychiatrists, Drs. Tanay, West, and Beavers, each of whom feels that because Jack Ruby is of unsound mind and mentally ill, this polygraph test is a mistake and would produce nothing by way of an accurate result of deception, truth, or conclusiveness in any regard and feel that it should not be made.

As cocounsel with Mr. Fowler. I yield to his position here and concur with him, but as a personal individual, very close and very knowledgeable of the entire history of this polygraph demand on the part of Ruby, it is my personal view that even though he is of unsound mind, does not know right from wrong, is mentally ill, and his psychiatrists are opposed to it, unless he is given the polygraph test there will never be any satisfaction in any respect. His condition might even grow worse without it, and in the interest of satisfying everyone concerned, the State, the Nation, and the world—that in all probability if this polygraph test is not given, there will be left hanging in the clouds certain doubts as to whether there was a conspiracy between Ruby and others or Oswald, or whether they knew each other, despite the fact that his mental condition may be such that it will not demonstrate any effective results.

Nevertheless my personal view is that it might be well to go forward with it, and certainly if all appellate efforts are exhausted on behalf of Jack Ruby and his case is affirmed all the way up, which I feel that it won't be; if his family and Jack Ruby should refuse to undergo a polygraph test, certainly the Board of Pardons and Parole may look with disfavor upon that fact and infer possible premeditation on his part in the shooting of Oswald or a possible conspiracy and might rule against him in granting clemency, in the event it ever reached that stage. And, irrespective of whether an effective polygraph test can be run of this man at this time in his present mental state or not, I personally feel that an effort should be made to do it.

MR. SPECTER. For the record I want to add that requests have been received by the Commission, requests made on behalf of Mr. Ruby, to have a polygraph test, prior to the time the Commission heard his testimony on June 7 of this year, and that the Commission has not initiated any effort whatsoever to have a polygraph test taken but is only conducting these proceedings today to make available to Mr. Ruby this examination if he wishes to have it at this time, in accordance with the promise made by the Commission through the Chief Justice on June 7.

I want to be emphatic and clear on this question that we do not now and have never asked for or insisted on a polygraph examination. If Mr. Ruby does not want to have such an examination taken, that is acceptable to the President's Commission on the Assassination. As we discussed informally before we started a record proceeding, in this event we are willing to have

anything put on the record that Mr. Fowler or Mr. Tonahill wish to place on the record as his attorneys; and of course, we do not wish to, have not, and will not interfere in any way with your representation of Mr. Ruby, as his counsel, so that he may take your advice and proceed in accordance with your advice.

If you wish to put on the record any medical evidence, I am authorized to have that done here today or at a later date. Mr. Tonahill and I discussed this matter by telephone last Wednesday and I indicated to him at that time that the Commission was willing to have such evidence placed on the record as an aid to their evaluation of whether to place any credence in the tests which are going to be administered.

It has been somewhat uncertain as to whether this proceeding would go forward today, so that counsel for Mr. Ruby may wish to provide supplemental data by way of testimony, letter, affidavit or in whatever form you choose. The Commission will be glad to receive it and to weigh it in evaluating whatever these tests may disclose.

May the record further show that arrangements have been made to have Dr. Norman Beavers available, adjacent to the room where these proceedings will take place, in the event that there is any medical attention required for Mr. Ruby.

Mr. TONAHILL. Sheriff Decker gave me this phone number and said he would be standing by.

I would like to add to Mr. Specter's comments that it is correct that numerous letters have been written by me to the Warren Commission requesting the polygraph test prior to the intervention of the psychiatrist, who felt that it would be a mistake.

At no time has the Warren Commission agreed and stated that they desired the polygraph test. The test, as I understand, has grown out of the agreement between Mr. Ruby and Mr. Chief Justice Earl Warren at the hearing that occurred here about 6 weeks ago.

I should like to say that I asked Sheriff Bill Decker to get in touch with Dr. William Beavers, and this was as a result of the conversation with Mr. Specter, and have Dr. William Beavers available so that he could be

interrogated subsequent to the running of the polygraph test. Is that agreeable?

Mr. SPECTER. Yes; that is agreeable, if you desire to do just that.

Mr. FOWLER. Further, let's add this, Joe, that in whatever capacity or degree it would help to substantiate that in our opinion we believe that Jack Ruby is of unsound mind.

We would like to submit at a later date a report by Dr. Emanuel Tanay, a practicing psychiatrist in Detroit, Mich., a report by him based upon the examination of Jack Ruby, together with the report of Dr. West, and we would respectfully request that this matter be furnished to you at a later date. We have it available but not for today, and we would like to make it a part of this record, as suggested by counsel.

Mr. SPECTER. Mr. Fowler, the Commission will be glad to receive any evidence that you may wish to submit on all the questions which you have raised during the course of this proceeding.

Mr. TONAHILL. Whoever is in charge of his body ought not to be an expert on this thing [referring and indicating the polygraph machine].

Mr. FOWLER. You and I have done all we can do on it. I am not going to physically manhandle Jack Ruby.

Mr. TONAHILL. No; Jack Ruby is going to insist on doing it, and until he is declared a ward through an insanity proceedings, he is presumed to be able to exercise his own consent.

Mr. FOWLER. That's right.

Mr. SPECTER. Let us discuss this off the record a moment.

(Discussion between Mr. Specter and Messrs. Tonahill and Fowler off the record regarding presence in the room of anyone able to operate a polygraph machine other than the FBI operator, Mr. Herndon.)

Mr. FOWLER. Let us put this into the record, that we would further object to anyone in the sheriff's office being present. If the only valid reason is one of security, and I would like the record to reflect that we are within the confines of the Dallas County Jail, namely, on 7-M, which is a part of the Dallas County Jail, and that it would appear to me to be virtually

escape proof, and as I understand previously when Mr. Warren was here, that he was allowed to talk with Jack Ruby by himself and without the presence of anyone from the sheriff's department, which further leads me to believe that this is not for security purposes only, and we will object to the presence of anyone from the Dallas County Sheriff's office.

Mr. SPECTER. In response to your objection. Mr. Fowler, for the record I will state that the Commission has requested that its preference be honored to have no one other than the FBI personnel administering the test, the court reporter, and me present, but that Sheriff Decker has taken the position that the prisoner, Jack Ruby, is his responsibility and that he must have someone on his staff present. Sheriff Decker did agree to substitute as that person the chief jailer, who has no knowledge of or experience with polygraph operation, so that the confidentiality of these proceedings is secure in my view.

Sheriff Decker's position is not that Mr. Ruby may escape, but there may be an incident which would require having someone present, and the sheriff feels that someone from his staff ought to be present. In view of his position on that, it is my conclusion that such a proviso is justifiable under all the circumstances.

With respect to the conversations between the Chief Justice and Mr. Ruby, I was present at the time those conversations were held and they were held in the corner of the room in which we are now sitting, following the formal testimony of Mr. Ruby at a time when there were numerous people in another portion of this room in which we now sit, so that at no time was the Chief Justice alone with Mr. Ruby in any separate room. Mr. Tonahill was present at that time and I think can confirm my version.

Mr. TONAHILL. We were all present and the sheriff's department men did leave, the personnel there—the sheriff and his deputies. He left him in the custody—we left Ruby's body in charge of a Secret Service man.

Mr. SPECTER. Elmer Moore.

Mr. TONAHILL. Yes, sir.

Mr. SPECTER. And at that time there were also present Mr. Tonahill, Mr. Rankin, Congressman Ford, Mr. Ball of the Commission's staff, and I was present. At no time did the Chief Justice have any conversations privately

with Mr. Ruby except that, at the very end, Mr. Ruby, the Chief Justice, and I were in a corner of the room conversing, and there were many others present at that time, and I think Mr. Tonahill can verify that.

Mr. TONAHILL. I was present.

Mr. SPECTER. Now, for the record, I want to state that Mr. Fowler has previously gone to discuss the matter with Mr. Ruby to determine what are Mr. Ruby's desires in terms of having a polygraph examination, in view of the stated position of the Commission that it does not request such an examination, but has made such an examination available to Mr. Ruby if he wants one, pursuant to his request to have such an examination, made during the course of Commission proceedings on June 7, 1964, and the response by Chief Justice Warren that the Commission would offer him such a polygraph examination in response to his repeated requests.

Mr. FOWLER. Now, I would like to answer regarding the presence of a deputy sheriff here. I believe you advanced the theory that it was thought by Mr. Decker that there might be something that might occur during the giving of the polygraph tests that perhaps might disrupt things.

We further feel and respectfully request that if there is this feeling by the polygraph operator himself, that he will be conducting this test some 10 or 12 feet from a door, and if the sheriff is allowed at all, that he be allowed to stand at the door and any other exit that might be in the building, to not be able to view the chart or any part of it. This would be our request to that.

Mr. SPECTER. The conditions set forth in your request will be granted and the sheriff's custodian will be present at the door so that he may not have access to the chart, to insure the confidential nature of these proceedings.

I think we are now ready to have Mr. Ruby come in, but before he comes in, let's take a 5-minute recess.

Let the record show we are taking a 5-minute recess.

(Proceedings recessed and resumed as stated.)

Mr. ALEXANDER. I assume that once Jack is brought in, there will be complete silence.

Mr. SPECTER. Yes. Mr. Alexander, do you want to make your request for the record?

Mr. ALEXANDER. Yes; please. At this time for and on behalf of the Dallas County, Tex., district attorney's office, a request is made that the Warren Commission furnish the district attorney's office a list of the questions asked Jack Ruby in this polygraph examination, and that a copy of the recording made by the polygraph machine be furnished the Dallas County district attorney's office. We would also like a copy of the interpretation of the test, but whether or not we are given an interpretation of the test, we do want the aforementioned questions and actual tape of the polygraph machine.

Mr. SPECTER. Mr. Fowler, you may want to make a similar request as to the results.

Mr. FOWLER. In behalf of Jack Ruby and as attorney for Jack Ruby, I respectfully request that the Warren Commission deny the request of the Dallas district attorney's office for the following reasons: Number One—that this is a matter of request that has been made by Mr. Ruby to the Warren Commission only, that if the district attorney's office were furnished with these questions and answers and any other matters pertaining to the giving of this polygraph test, it might and could and very well effect the outcome of his case that is now on appeal before the court of criminal appeals here in the State of Texas, and we respectfully request that the request by the district attorney's office be denied by the Warren Commission in all of their requests for this information.

On the other hand, we who represent Jack Ruby, respectfully request that we be furnished a copy of the questions that will be asked and that if some determination is made as to the answers and the outcome is ever made public, that we be furnished the information of the outcome of the tests.

Now, this is off the record.

(Statement by Mr. Fowler to Mr. Specter, off the record, requesting that Mr. Ruby be advised again when brought into the room for the test, the requests of his attorneys and family with respect to taking the test.)

Mr. SPECTER. In response to those two statements, no commitment can be made on behalf of the Commission anticipating the action of the

Commission in advance of knowledge by the Commission of the results of the tests, and any additional evidence which may be submitted on the competency of Mr. Ruby which may aid the Commission in the evaluation of the results of the polygraph examination. The requests of Mr. Alexander and Mr. Fowler will be transmitted to the Commission and will be carefully studied by the Commission before any final decision is reached.

With respect to a list of questions, the procedure as previously outlined will permit all parties to be present when the questions are enumerated, so that the questions asked of Mr. Ruby will be a surprise to no one, but will be discussed in his presence and in the presence of representatives of both the district attorney's office and Mr. Ruby's defense counsel, so that there is no limitation to the taking of notes on the questions that may be asked.

With respect to the results, including a copy of the results themselves and a copy of the interpretation, no commitment can be made until the Commission has examined the results in this matter fully.

With respect to affecting the outcome of any subsequent proceedings, the Commission has exercised the greatest possible care in avoiding the influencing of the State court proceedings.

The action taken by the Commission has been designed to fulfill its function, while at the same time not interfering, or interfering to the minimal possible extent, with the State court proceedings. Now, before we get Mr. Ruby in, do you want to make a request for his doctor; and when we get Mr. Ruby in, we will make the other statement and then we will be able to go ahead, but I don't think we want to go through any more with him present than we have to.

Mr. TONAHILL. Yes; it is requested that Dr. William Beavers, who has been retained by Jack Ruby's family to observe and treat Jack Ruby, be present during the examination in order that he may observe and render any expression that he may have to offer that will be of benefit to the Commission as well as to Jack Ruby's mental health condition, with special reference to interpreting the results of the polygraph tests, and as an aid and guide to the Commission in its interpretation of it as to what weight and value to give to it.

Mr. SPECTER. Does that request, Mr. Tonahill, go only for the time that everyone is present, or do you want him present, while the examination itself is going on?

Mr. TONAHILL. While the examination itself is going on—before and during the examinations—before the examination and during the actual examination, so that he can actually observe the actual examination.

Mr. SPECTER. In view of the expression of concern that has been made by Dr. Tanay, that request will be granted, since it is made by counsel for Mr. Ruby at this time.

The JAILER (on entering the room). He will be right up.

(Mr. Ruby entered the hearing room at 2:23 p.m.)

Mr. SPECTER. May the record now show that Mr. Ruby is present. Mr. Ruby, I am Arlen Specter. How are you today?

Mr. RUBY. Fine; how are you?

Mr. TONAHILL. Jack, that's Mr. Specter of the Warren Commission.

Mr. SPECTER. Mr. Ruby, why don't you have a chair over here—we've been getting things set up, and let me introduce you to everybody so you will know who everybody is.

This is Miss Odell Oliver, who is the court reporter, and she will take your testimony just like we did before.

Miss OLIVER. How do you do, Mr. Ruby?

Mr. SPECTER. And I guess you know Dr. Beavers, and this is Mr. Wood. He is one of the polygraph operators with the FBI, and this is Mr. Herndon, one of the operators and with the FBI also. This is Mr. Alexander, and your name, sir?

The JAILER. Mr. Holman, E. L.

Mr. SPECTER. This is Mr. Holman.

Mr. RUBY. Can Fowler remain here after I start with the interrogation?

Mr. SPECTER. Yes; Mr. Ruby. The procedure which we've discussed is this and this is subject to agreement of all sides, and we've been through it,

but let me go through it with you. We are going to conduct the polygraph examination in a standard way, which involves a series of questions, about eight or nine in duration. Before we start with the series, the questions will be explained to you in advance so that you will know exactly what the questions are to be and you will know what the operator means by the questions. He will explain them so that there is no possibility of any confusion in terms of what the questions mean so they won't surprise you. You will have full awareness of what is going to be asked.

At that time, everybody who is present in this room will be present when the questions are discussed in a general way. So that the record may be complete, let it show that Mr. Fowler is here and Mr. Tonahill is here, and Mr. Alexander is here, and Mr. Herndon and Mr. Wood are here. Dr. Beavers is here, and Chief Jailer E. L. Holman is here, Odell Oliver is here, and of course, I am here. Those are the only people who are here now and they are the only people who will be present when we explain each series of questions to you, so that you understand what is happening and what questions are going to be asked.

Now, scientifically, it's preferable to have as few people possible at the time the examination is administered as we can, so for that purpose, we are trying to cut down the number as much as we can. We had originally thought that the only people present would be the two operators, the court reporter and I. Now we have Mr. Holman here on the custody question, and then your counsel requested especially that Dr. Beavers be present at the time of the administration of the tests. It is our desire to have only those people present, which would mean Mr. Alexander wouldn't be here and Mr. Tonahill wouldn't be here and Mr. Fowler wouldn't be here at the time the test is administered.

Mr. RUBY. I would like to have Mr. Fowler here in preference of Dr. Beavers. May I request that?

Mr. SPECTER. Yes; you may request that.

Mr. RUBY. And how soon will the answers be released, as soon as possible?

Mr. SPECTER. Well, the answers are going to be compiled by the FBI and then they're going to go to the Commission, to Chief Justice Warren of the

Commission, and I am not in a position to say to you when the answers will be released. That will be up to the Commission. They will have to study the results of the tests and make a decision on the time of release of the tests. Everything is up to them as to whether they will be released, what the release will be, and when it will be made.

I want to say preliminarily before we start, that the Commission has not requested the test, but it is responding to the request which was made on your behalf by letter, before the Chief Justice questioned you on June 7.

Mr. RUBY. Yes.

Mr. SPECTER. You requested then that a test be given.

Mr. RUBY. Yes.

Mr. SPECTER. We want it to be perfectly plain for the record that the Commission isn't pushing this matter, but it's only in response to your request, and that you have learned counsel here who are representing you, and you are aware of that. We want to make it pointed and clear that anything you say could be used against you, and it is possible for adverse or unfavorable inferences to be drawn. Whenever a defendant who is involved in a criminal proceeding says anything, anything he says could be held against him.

I know Mr. Fowler and Mr. Tonahill have advised you of that and that has been brought to your attention, but this record should show that we called it to your attention as forcefully and as clearly as we could, so that you would understand what we are doing here.

Mr. ALEXANDER. Mr. Specter; let me explain one thing. Under Texas law, nothing that Jack says here could be used against him in Texas.

Mr. RUBY. Bill, I'm not quarreling with that, and I know you certainly are not going to help me, I know that, but I want to get a copy to the chief as soon as I can, Chief Holman over there.

Mr. SPECTER. You would like to do what, Mr. Ruby?

Mr. RUBY. To have the report as soon as the results are analyzed.

Mr. SPECTER. That, as I say, is up to the Commission, but you understand what I have said to you here?

Mr. RUBY. Yes.

Mr. SPECTER. And under those circumstances do you continue to request that such an examination be given you?

Mr. RUBY. Yes: any questions you want to ask, anything pertaining to this—I will answer anything without reluctance. There's no punches to be pulled. I want to answer anything and everything.

Mr. SPECTER. Mr. Fowler, I think, wants to make a statement for the record too.

Mr. RUBY. In fact, Bill, you can stay here If you want to.

Mr. FOWLER. Jack: let me ask you this: A little while ago I came up into the jail cell and talked with you, is that correct?

Mr. RUBY. Yes.

Mr. FOWLER. And at that time I advised you that the Warren Commission people were here at your request to give you a polygraph test?

Mr. RUBY. Yes.

Mr. FOWLER. I also showed you a letter from Mr. Gordon Shanklin of the FBI here in Dallas, that he had received requests that were submitted to him by Mr. Sol Dann, who is the legal advisor to your family?

Mr. RUBY. Right.

Mr. FOWLER. And that certain requests were made there, No. 1, that the tests would be given in the presence of Dr. Tanay, with no outsiders present, with particular reference to anyone from the district attorney's office or the sheriff's office, and further, that it would have to be assured that the results of the tests would be held confidential by the Commission, and that under no circumstances made available to the district attorney or the press. Further, that written authority for such examination be obtained from Mr. Earl Ruby. Now, I have explained this to you, have I not?

Mr. RUBY. Yes; can I change that now?

Mr. FOWLER. Well, let me go on further, Jack, and as your attorney of record, at that time I advised that you not take nor submit to this polygraph test.

Mr. RUBY. Yes.

Mr. FOWLER. And at this time, as your attorney of record, I advise you in the presence of these gentlemen and Commission, these people representing the Commission, that you will be doing so against the advice of your counsel.

Mr. RUBY. Right.

Mr. FOWLER. And against the advice and wishes of your family.

Mr. RUBY. Right.

Mr. FOWLER. Now, do you still at this time wish to take the tests?

Mr. RUBY. Yes; and I would also like to add that, if I have a right to say this—I want it be made immediately that the district attorney's office should receive whatever is necessary in regard to the answers to the district attorney, and as I once wrote to District Attorney Henry Wade, that I didn't want to publicize it, but if possible they may—I would prefer that naturally, but at that time it was so easy to get a lie detector test, I wrote to Henry Wade; that it is not for publicity purposes but only for authenticity and the truth. So, I agree with everything except that if I may supersede the attorney and say I'm not concerned about withholding anything. I want it to be released immediately to all parties concerned.

Mr. SPECTER. Well, your request on that, Mr. Ruby, will be transmitted to the Commission and they will consider that very carefully in reaching whatever conclusion they do about releasing it.

Mr. RUBY. I want to supersede the attorney, Mr. Dann, in stating that I want everything to come out immediately, as soon as possible, and whoever wants to know the results—what the results are—I want it to be known, regardless of which way it turns.

Mr. SPECTER. Mr. Ruby, you want Mr. Fowler to remain with you during the course of the examination?

Mr. RUBY. Yes.

Mr. SPECTER. In view of Mr. Ruby's request, it is my view that it ought to be honored and that the group is of such a size now that it ought to remain as it is constituted at the present time for both sessions.

We have done our best to limit it, but since it is a legitimate request here to include Mr. Fowler, we will sit in this group during all portions of the test.

Mr. Ruby has indicated that he has no objection to having Mr. Alexander here, and if one side is here, the other may be.

Mr. ALEXANDER. Mr. Specter, if it will help the ultimate in the tests, I have no objection to leaving the room, and perhaps Mr. Tonahill, I think, could very well leave, or if Jack has no objections and perhaps wants us here, we will stay.

Mr. SPECTER. I am advised by Mr. Herndon that the technical considerations are not persuasive as to one or two more people, with this many present, so that if it's acceptable to all parties, specifically Mr. Ruby, we will just proceed with the group that's presently here during all portions, the explanatory portion to Mr. Ruby and the actual testing itself.

Is that agreeable, gentlemen? Is that agreeable with you, Mr. Ruby?

Mr. RUBY. Well——

Mr. FOWLER. Jack, let me make this request. I don't think Bill can read a polygraph test, but I would feel better as your attorney if Mr. Alexander were not present.

Mr. RUBY. I don't mind everyone remaining here.

Mr. FOWLER. Well, of course, again—let me advise you that if Mr. Alexander remains—let me advise you of your rights—that if Mr. Alexander remains, he is a member of the district attorney's staff, the answers to these questions could be used against you at some later date, if they are adverse to your rights, and as your attorney, I advise you that it would be my suggestion to you and request to you that Mr. Alexander not be allowed to remain.

Mr. RUBY (addressing Mr. Alexander). Will you object?

Mr. ALEXANDER. Not at all, Jack.

Mr. RUBY. All right.

Mr. SPECTER. If Mr. Alexander is willing to abide by your request, Mr. Ruby, then your request will govern as far as the proceeding is concerned.

Mr. FOWLER. Now, Mr. Alexander and I—when it comes to me representing you or any other client—I represent one client and he represents the other. He, in my opinion, is a perfect gentleman, but in the courtroom he is a perfect prosecutor, and I like to be as near a perfect defense lawyer as I can, and I believe that by allowing him to stay here——

Mr. RUBY. No, Fowler——

Mr. FOWLER. Well, I'm thinking of you now. I'm asking you to do this, and again, this is entirely up to you, so it's your decision. I think I have fully explained to you the reason why we would not want him here.

Mr. RUBY. Now, I've got the monkey on my back now.

Mr. FOWLER. Well, you've got more than a monkey on your back, Jack. This is your decision.

(Conference between Mr. Fowler and Mr. Ruby out of the hearing of this reporter and others in the room.)

Mr. RUBY. Well, whatever my attorney suggests, I guess I will have to follow through.

Mr. SPECTER. Your request then is that Mr. Alexander not be present?

Mr. RUBY. Yes.

Mr. ALEXANDER. That will be fine.

Mr. SPECTER. If it is all right with you, we will proceed on that basis, but of course, that will go only for the time the test is actually being administered to you.

Mr. FOWLER. That's right.

Mr. SPECTER. Mr. Bell Herndon will now start to explain the proceedings to you. He is the operator of the polygraph, the principal operator here, Mr. Ruby. As I explained to you, Mr. Herndon and Mr. Wood, are joint operators for the FBI on the polygraph or lie detector test and Mr. Herndon will take over now to explain just how it's going to work.

Mr. HERNDON. Thank you. Mr. Ruby, first of all, I want to show you my credentials so you will know that I am a special agent and I am from the FBI laboratory in Washington, D.C. (Exhibited instruments to Mr. Ruby.)

Mr. RUBY. Yes.

Mr. HERNDON. Perhaps to set the record straight, Mr. Specter, I might mention that my colleague, Special Agent Wood, is not actually a polygraph examiner, but he is here to assist me in this examination. Is that all right?

Mr. SPECTER. Yes, that's fine to specify that exact status.

Mr. HERNDON. He is here to assist me and to help me in the interrogation of this gentleman.

Mr. SPECTER. Mr. Herndon, before you start on the questioning, we will want to put Mr. Ruby under oath, so pause at that point, but proceed now to explain what is going to happen.

Mr. HERNDON. Mr. Ruby, actually prior to any polygraph examination which the Federal Bureau of Investigation gives to anyone, we have a consent form that I want to read to you, and as I want to remind you, of course, you have been advised of your rights, and there is no sense of my going over it again, but I want to remind you that your counsel and your attorneys are here.

I will now read to you this consent form that we use as a standard procedure on this type of examination.

"Consent to Interview with Polygraph. I, Jack L. Ruby"—I believe that's the way you sign your name?

Mr. RUBY. Yes.

Mr. HERNDON. "I, Jack L. Ruby, consent freely and voluntarily to be interviewed by special agents of the Federal Bureau of Investigation, which I also know as the FBI, in connection with the President's Commission on the Assassination of President Kennedy investigation. I agree to the use of the polygraph or so-called lie detector during this interview or any part of it, and I am willing to be present at the time and place of interview for such time as is necessary to complete the interview.

"No threats or promises of any kind have been made to me to obtain my consent to this interview."

Now, I can let you read that if you would like or your attorney might like to read it.

Mr. RUBY. That's perfectly all right.

Mr. HERNDON. If it's agreeable with you, I would appreciate it if you would sign it, Mr. Ruby, if that's agreeable with your counsel?

Mr. RUBY. Yes.

Mr. HERNDON. And Mr. Wood and I will witness that.

Mr. RUBY. Do you want it "Jack Ruby" or "Jack L. Ruby"?

Mr. HERNDON. You sign it as you usually sign, but do you want to read it any further, sir?

Mr. RUBY. I'll just sign it.

(Mr. Ruby at this time signed the instrument referred to, which was thereafter signed by witnesses Special Agents Herndon and Wood.)

Mr. RUBY. Did you get your pants sewed up, Joe?

Mr. TONAHILL. It went through to my leg.

Mr. RUBY. That was a pretty rough brawl we had, wasn't it, Joe?

Mr. TONAHILL. Yes.

Mr. RUBY. Joe, I'd appreciate it if you weren't in the room. Can I ask you to leave, Joe?

Mr. TONAHILL. I'll be glad to leave, if you want me to, Jack.

Mr. RUBY. As a matter of fact, I prefer Bill Alexander to you, you're supposed to be my friend.

Mr. TONAHILL. Let the record show that Mr. Ruby says he prefers Bill Alexander being here during this investigation, who is the assistant district attorney who asked that a jury give him the death sentence, to myself, who asked the jury to acquit him, his attorney.

Mr. HERNDON. May we proceed?

Mr. SPECTER. Please do, Mr. Herndon.

Mr. HERNDON. Mr. Ruby, as you know, we have a doctor here, and before we begin anything, I want you to try to relax. I realize that there is

some tension here, and before we proceed any further, I want to ask you very generally, how do you feel today, right now, specifically speaking?

Mr. RUBY. Very good, except—may I be very honest?

Mr. HERNDON. Of course.

Mr. RUBY. What is the preference of the doctor being here? Is he supposed to be my doctor, I mean Dr. Beavers?

Mr. HERNDON. Mr. Specter, do you want to answer that?

Mr. SPECTER. Yes; Mr. Ruby, he is here at the request of Mr. Tonahill, and I believe concurred in, by your chief counsel, Mr. Fowler.

Mr. HERNDON. The reason I asked you about your health, Mr. Ruby, obviously I don't want to proceed with this interrogation of the polygraph type when you obviously may not feel well physically today. I wouldn't want to subject you to the examination unless you felt well enough to take it, and I will ask you some very general questions about your health in regard to your history in that regard.

Have you every had any respiratory diseases or illnesses such as asthma or trouble with breathing, Mr. Ruby?

Mr. RUBY. None whatever.

Mr. HERNDON. Any sinus condition or trouble?

Mr. RUBY. No.

Mr. HERNDON. Have you ever had any heart ailments?

Mr. RUBY. No, sir.

Mr. HERNDON. No heart trouble to your knowledge.

Mr. RUBY. [No response.]

Mr. HERNDON. Mr. Ruby, have you had any medication of any type whatsoever today, such as tranquilizers, aspirin, any drugs at all today?

Mr. RUBY. None whatsoever.

Mr. HERNDON. While you've been here in custody, have you been under any medication?

Mr. RUBY. None whatever.

Mr. SPECTER. Mr. Herndon, at this time I shall administer the oath to Mr. Ruby.

Mr. RUBY. You want me to stand up?

Mr. SPECTER. Yes, sir; if you would please. As assistant counsel, I have the authority under the law to administer an oath to you for proceedings in the nature of depositions.

Do you solemnly swear that the answers and information you shall give in this proceeding before the President's Commission on the Assassination of President Kennedy will be the truth, the whole truth, and nothing but the truth?

Mr. RUBY. I do.

Mr. SPECTER. Have the answers you have heretofore given in response to the informal questions already asked of you been the truth, sir?

Mr. RUBY. Repeat that again?

Mr. SPECTER. Have the answers which you have already given in response to the informal questions put to you by Mr. Herndon and others here, are they all true?

Mr. RUBY. Yes, about my health—are all true—yes.

Mr. SPECTER. All right, Mr. Herndon, will you proceed.

Mr. HERNDON. Yes. Thank you.

I understand, Mr. Ruby, that you have had your lunch today, is that correct? I want to make sure you have had a chance to eat.

Mr. RUBY. Yes, I did.

Mr. HERNDON. When did you eat, how long ago?

Mr. RUBY. I would guess approximately 12:30.

Mr. HERNDON. You've had no digestive problems while you've been here?

Mr. RUBY. No.

Mr. HERNDON. Have you had any coffee today—these are questions that will help us later on?

Mr. RUBY. One early in the morning.

Mr. HERNDON. Early in the morning?

Mr. RUBY. Yes.

Mr. HERNDON. Did you have more than one cup?

Mr. RUBY. One and a half cups.

Mr. HERNDON. That's your usual amount of coffee you have?

Mr. RUBY. Yes.

Mr. HERNDON. Did you have any coffee at lunch, Mr. Ruby?

Mr. RUBY. No, I did not.

Mr. HERNDON. Now, Mr. Ruby, have you ever had a——

Mr. RUBY. The reason why I say this, there was some newspaper items recently that brought up the fact that I was of unsound mind. Do I sound that way to you at the present time?

Mr. HERNDON. I don't feel that I am qualified at this time to make any statement in that regard. I'm sure you would understand that that is something you can't give in a moment's notice.

Mr. RUBY. Yes.

Mr. HERNDON. Would you care to sit over here, Mr. Ruby, and I will further explain the test to you.

Mr. RUBY. Surely.

(At this time Mr. Ruby conferred with Mr. Fowler out of the hearing of this reporter and others in the room.)

Mr. RUBY. All right.

(At this time Mr. Ruby seated himself in the polygraph test chair.)

Mr. HERNDON. This is a polygraph chair. The reason it is so constructed, we want to take advantage of these high arms [indicating arms on the polygraph chair] so that we can get a better tracing, and very frankly, Mr.

Ruby, I want to give you as best an examination as I can. So, it's going to take a little time and I want you to relax as best you can. I realize you might be a little nervous, and I will certainly take that into consideration. Let me just briefly, Mr. Ruby, tell you about the polygraph examination and what we're going to do today. I want to proceed by hooking up some of these pieces of equipment and briefly tell you what it is. Now, may I ask you to remove the material you have in your pocket, sir, and you might want to give it to your counsel.

Mr. SPECTER. Let the record show that Mr. Ruby has removed all the objects from his upper left-hand pocket.

(After removing objects mentioned, Mr. Ruby handed the same to Mr. Fowler.)

Mr. HERNDON. I gather from looking at your overalls that you don't have any restrictive garments or belts or anything underneath on you which would hinder you or your relaxation?

Mr. RUBY. No, sir.

Mr. HERNDON. You are very comfortable?

Mr. RUBY. Yes.

Mr. HERNDON. Very fine, Mr. Ruby. Now, Mr. Ruby, there are two ways I can do this. I can do two things—I can either go ahead and put this equipment on you right now and describe briefly how it's going to work, or if you want, I can go over these first series of questions and give you some instructions, and then put the equipment on. Which do you prefer?

Mr. RUBY. Which is the most effective way to get what you want?

Mr. HERNDON. Well, I think in view of the fact that we will have some discussion here, I want to make sure that you perfectly understand these questions, I will go ahead and give you some basic instructions about how these questions are going to be asked and how I want you to answer them.

Mr. RUBY. All right.

Mr. HERNDON. And then later on, as I hook you up, I will briefly describe what this equipment is going to do.

Mr. RUBY. Yes.

Mr. HERNDON. The polygraph examination will entail, as Mr. Specter indicated, just approximately 8 to 9 questions, Mr. Ruby, in what we call a series. Now, I'm going to go over these questions with you right now very carefully. I want to make sure that the way I have them phrased is in such a way that you understand perfectly what I mean by them. We will discuss the question and you may if you want to, even answer the question at this time.

Mr. RUBY. I would appreciate it myself.

Mr. HERNDON. In other words, I'm going to tell you what the question is going to be and you shall feel free to answer it "Yes" or "No."

Mr. FOWLER. Excuse me, sir.

Mr. HERNDON. Certainly.

Mr. FOWLER. At this time, Jack, I request that in view of the fact that you're not hooked up, that you do not answer the question and reserve those until such time as you will be on the machine.

Mr. RUBY. That's fine.

Mr. HERNDON. Then, we will just discuss the questions.

Mr. RUBY. Do it to your advantage, may I add.

Mr. HERNDON. I generally prefer in my practice with the polygraph to have the gentleman answer the question so that he knows he has already answered it, and as a matter of record, he knows that that question is coming along.

Mr. RUBY. Please let me do it, will you? [Addressing Mr. Fowler.]

Mr. FOWLER (no response).

Mr. HERNDON. I will bow to whatever Mr. Specter or counsel wants to do in this regard.

Mr. RUBY. Fowler, I hate to dispute with you, but let me do it this way?

Mr. FOWLER. Well, Jack, again, Mr. Alexander is here and again I tell you this—that the answers to some of these questions could be absolutely very detrimental to you.

Mr. RUBY. They can't be.

Mr. FOWLER. I'm talking about from a legal standpoint. Now, morally, I know how you feel and you want to do the best you can for the Commission.

Mr. RUBY. I will.

Mr. FOWLER. But by the same token, this gentleman over here [referring to Mr. Alexander] represents the State, who at this time is not representing you. Now, if we could allow Mr. Alexander to have the benefit of the nature of the questions, with the exception of the answers—if this is what Jack wants—but I do not want Mr. Alexander to have the benefit of the answers.

Mr. SPECTER. The test may be conducted either way. As Mr. Herndon has explained, he has a slight preference to have the answers, but the ultimate decision on that is up to Mr. Ruby and his counsel. The Commission will proceed in either manner.

Mr. RUBY. It's unfortunate that my attorney, Mr. Fowler, don't see as I do. I would like to give every cooperation without the slightest fraction of interference. That's why I requested that. You won't let me do it that way, huh, Fowler?

Mr. FOWLER. I'm requesting that you do not, Jack.

Mr. HERNDON. It will be no problem.

(Addressing the court reporter.) Do you have any problem hearing?

COURT REPORTER. If Mr. Ruby would talk just a little bit louder it would be fine.

Mr. HERNDON. Mr. Ruby, I have placed all these questions in a form so that they are very short and concise and can be answered only by "Yes" or "No," and that's the way we have to ask a question during a polygraph examination, but I'll go over them with you and give you an idea of what they're going to be. During the normal series, I'm going to ask several questions, of course, which are pertinent to the Commission's investigation, but I will also ask you several questions which more or less just deal with your identity, your background and your name, so you will have two types of questions that I will ask. Now, the first question I'm going to ask you under series 1, which is rather pertinent, and I want you to know that I'm going to ask it, and I'm going to phrase it as simply as I can.

“Did you know Oswald before November 22, 1963?”

Now, what I mean by “know” is did you have any personal acquaintance of this individual, any personal acquaintance? Have you ever seen him, did you have any conversation with him? In other words, as you would say, “Well, I know that person.”

Mr. RUBY. Should I answer that?

Mr. FOWLER. Not now, Jack.

Mr. HERNDON. That question will be asked or repeated, and so you and I will understand what we want, I’ll repeat it. “Did you know Oswald before November 22, 1963?”

Mr. RUBY. Right.

Mr. HERNDON. Another question that I will ask in series 1, after I get the instrument adjusted, and it will be short and simple and answerable only by “Yes” or “No.”

“Did you assist Oswald in the assassination?”

Do you understand that question?

Mr. RUBY. Yes; it is very clear.

Mr. HERNDON. I tried to make them as short as possible and as clear as possible. Again, I’m going to ask you just as a matter of format here, “Did you take any medication this morning?” You have already answered that question, but that will be one of the questions I will ask you. I’m also going to ask on series 1, just to give you a little time to relax here, some of these rather simple questions such as: “Did you voluntarily request this test?”

Mr. RUBY. Yes.

Mr. HERNDON. You have already indicated your answer to that. And, I will ask a rather obvious question as a matter of identity, “Is your first name Jack? Is your last name Ruby?” These types of questions will be asked and I want to make sure I cover each and every one. I’m going to ask you, “Do you use the middle name ‘Leon’?” I understand you do; is that correct?

Mr. RUBY. No; very rarely, very rarely.

Mr. HERNDON. All right, you can answer that as you see fit, when I ask it on the test. I will ask you this question, and I want to ask this as a matter of record for me because I interview a lot of people: "Have you ever been arrested?" Now, what I mean in this regard, and I'll probably change that phraseology to "Have you ever been arrested before? Prior to the shooting, have you ever been arrested?" Now, what I mean by "arrested," Mr. Ruby, is were you ever actually placed under arrest and brought before some type of magistrate and charged with any crime. That question will also be on the first examination. Those are the questions I'm going to ask you. Do you have any questions about them, sir? Are they clear and concise to you?

Mr. RUBY. When you speak of the last question about a crime, I've never been involved in a crime, so if you've been arrested for selling beer after hours, does that qualify as an answer too?

Mr. HERNDON. Well, what I mean by "arrested" is if you were formally charged with something?

Mr. RUBY. Like a felony?

Mr. HERNDON. Well, any type of a formal arrest, wherein you actually were arrested and charged before a magistrate, of offending a law that's on the record, either of a community, a city, or the State.

Mr. RUBY. You don't necessarily have to have been found guilty or anything, just the point of being arrested, is that right?

Mr. HERNDON. Now, let me inject this, Mr. Ruby. If these questions when I ask them, if you have something in doubt in your mind of how to answer it "Yes" or "No," just refrain from answering it, and we'll go back after the test and discuss it.

Mr. RUBY. Very well.

Mr. HERNDON. In other words, I want you to be able to freely and truthfully say "Yes" or "No" to these questions. If one of them leaves any area of doubt in your mind and you are hesitant to answer it, feel free not to say anything, and we will just proceed, and after I stop the instrument, I will then go over that question with you. All right, sir?

Mr. RUBY. Yes.

Mr. HERNDON. All right, Mr. Ruby, I'll just briefly hook up the instrument and I'll probably run it for a little while just to get it adjusted to you, and inasmuch as you've never had a polygraph before, I will explain the instrument's parts to you. You can see here, Mr. Ruby, I have a rubber tube and I'm going to place that around your chest, sir. This is what we call the pneumograph and that will accurately record you respiratory pattern as you inhale and exhale. Would you be kind enough to raise your arms, sir?

Mr. RUBY (complied with request of Mr. Herndon).

(Reporter's note: 2:58 p.m.)

Mr. HERNDON. Now, as you can see, as you inhale the tube stretches, and as you exhale it decreases in size and I will have a tracing of it on the polygraph.

Mr. RUBY. Yes.

Mr. HERNDON. During the examination and as we run the test, I would appreciate it if you would sit perfectly relaxed, rather straight in the chair, with both of your feet flat on the floor. Now, that will record, during the interview, the tracing of your breathing, and I want you for this reason to breathe perfectly normal and perfectly relaxed. Now, the next thing I want to put on will be on your hand and I'll put it on your right hand here. I notice you have one finger cut off on that hand. What happened there, Mr. Ruby?

Mr. RUBY. Oh, running a nightclub you get involved in various altercations.

Mr. HERNDON. Now, this next component that I want you to see will be what we call the Galvanic Skin Response, GSR. I'm going to place these on your fingers, and actually all this simply does, through these instruments and the electronic processes, is to record any variance in the electrical conductivity or the resistance of your skin. It's helpful to me in this examination. Your hands are very good. They are not sweating a bit. Is that too tight?

Mr. RUBY. No.

Mr. HERNDON. Is it uncomfortable?

Mr. RUBY. No.

Mr. HERNDON. All right, Mr. Ruby. Now, neither one of these two components will you feel at all. That will be no problem at all.

Mr. RUBY. All right.

Mr. HERNDON. Now, the next component that I will put on your left arm, because it's closer to your heart, and this is the cardiograph cuff, and this is going to give me an accurate tracing of any relative changes in your blood pressure. These will just be relative changes. I won't be able to necessarily know what your blood pressure is. I will have relative blood pressure changes, and I will also have on a chart a change in any heartbeat or heart rate you might have.

Now, I am going to record all these physiological responses as we discuss the questions, and as you answer them I will have an indication of what is taking place physiologically, what is going on in your physical system, and which will assist me in interpreting whether or not you may be deceiving with regard to the question.

Mr. RUBY. What is your name, please, sir?

Mr. WOOD. Wood. I'm with the FBI.

Mr. RUBY. Where is Shanklin, I thought he was supposed to be here?

Mr. WOOD. He is in town but he is not here.

Mr. RUBY. Isn't Mr. Shanklin the chief?

Mr. HERNDON. Do you want to relax your arm, Mr. Ruby? Now, do you have any questions about what I've done so far, Mr. Ruby?

Mr. RUBY. No. Do you want me to relate my story to you now?

Mr. HERNDON. No; I want you to sit perfectly still. There will be no conversation, and I'm going to get the instrument adjusted to you. That will take only a few minutes, so just sit and try not to move. I'm not going to ask you any questions at this time. I just want to adjust the machine to you.

Mr. SPECTER. Mr. Herndon, have you now covered all the preliminaries up to the point of asking the questions?

Mr. HERNDON. Just about. I will probably repeat some basic instructions for Mr. Ruby just before we start asking him the questions.

Mr. SPECTER. All right, then I think those who are going to leave should leave now so that we are ready to go as soon as your instrument is in tune.

May the record show that Mr. Alexander has left the room.

Mr. FOWLER. Jack, do you have any objections to Mr. Tonahill being here?

Mr. RUBY. If Tonahill is going to be here—I don't believe he's—I know Bill Alexander is my friend, so he can stay, but Joe is supposed to be my friend.

Mr. FOWLER. Well, we're not putting it on that basis, Jack. This is just purely personal.

Mr. RUBY. Just let me tell you this, Fowler. I have nothing to gain by Joe being here, because—I have nothing to gain.

Mr. FOWLER. All right, all right. Then, we will ask Joe and Mr. Alexander to step out.

Mr. RUBY. You still want Alexander to step out?

Mr. FOWLER. I certainly think so, Jack.

Mr. RUBY (addressing Mr. Alexander who was standing in the doorway to the examining room). Now, Bill, don't say I didn't request you, now?

Mr. ALEXANDER. I know it, Jack.

Mr. SPECTER. May the record show that Mr. Alexander and Mr. Tonahill have just gone out of the room.

Mr. HERNDON. Mr. Ruby, it will take me a few moments to get this adjusted. If you desire to talk to Mr. Fowler, if you can sit still and talk it will be all right.

(Conference at this time between Mr. Fowler and Mr. Ruby out of the hearing of the court reporter and others in the room.)

Mr. HERNDON. Do you want to sit still now, Mr. Ruby. I'm not going to ask you any questions. I just want to get everything adjusted at this time. You will hear a few scratching noises on the paper.

Now, will you take a deep breath, Mr. Ruby, and then relax, sir?

Mr. RUBY (complied with request of Mr. Herndon).

Mr. HERNDON. Now, just breathe normally.

Now, if everyone will just be quiet for a few moments. There will be no questions asked. I just want to get the instrument adjusted.

(Reporter's note: 3:05 p.m.)

Mr. HERNDON (snapped his fingers twice). I made that noise purposely, Mr. Ruby. Now, I'm going to let you get the feel of that cuff as I inflate it, and there will be a little bit of pressure put against your arm. You've had your blood pressure taken by a doctor, I'm sure?

Mr. RUBY. Oh, yes.

Mr. HERNDON. You recall that. It will be the same feeling and I will have to leave it on just for a matter of a few moments, and if you will sit perfectly still and put your feet flat on the floor and look straight ahead.

I will now apply a little bit of pressure on that arm. You probably feel a little pressure. All right, sir?

Mr. RUBY. Yes.

Mr. HERNDON. From time to time I may come over and raise and lower your arm to make sure it's perfectly relaxed.

Mr. RUBY. That's all right.

Mr. HERNDON. Do you feel your pulse beat?

Mr. RUBY. Yes.

Mr. HERNDON. You can see and feel your pulse beat and in a moment you can see how it records. Very fine, Mr. Ruby. You have been very cooperative. I don't think we will have any problem.

Mr. RUBY. You can see the differences of nature—if certain things are wrong or right, can't you?

Mr. HERNDON. Well, I have to very carefully interpret what I see. I'm going to take all these things together at a later date into consideration, and I don't see any difficulty.

Mr. RUBY. Because—I want my chief to understand this here and see that.

Mr. HERNDON. Are you a little more relaxed now?

Mr. RUBY. Yes.

Mr. HERNDON. You seem to be. I don't want to begin until you feel you are perfectly relaxed.

Mr. RUBY. Yes; I'm very much relaxed because I have nothing—I'm not sparring with it, so I must be relaxed.

Mr. HERNDON. Very fine. I appreciate your cooperation very much and you are cooperating with me very well.

In a moment, you can move your hand a little bit to get a little circulation. You probably felt just a little tingling sensation?

Mr. RUBY. Yes; I felt a little bit of throbbing in these two fingers.

Mr. HERNDON. Are they too tight?

Mr. RUBY. No; that's fine.

Mr. HERNDON. I can relax this a little bit on your arm. I just want it close enough so that they won't slip, just about like that. I don't want this to cause you any discomfort to you. Now, if you are about ready?

Mr. RUBY. I am ready.

Mr. HERNDON. You remember, I'm going to ask you just the questions that we discussed before and that's all.

Mr. RUBY. You mean that's all?

Mr. HERNDON. Oh, no; this is just series 1, Mr. Ruby. We're going to cover many questions.

Mr. RUBY. All right.

Mr. HERNDON. I'm going to go rather deliberately slow on this first one until you become acquainted with the procedure.

Mr. RUBY. Believe me, I know the answers, so you can ask me as fast as you like.

Mr. HERNDON. During the test, again, if you will keep your feet on the floor at all times, flat on the floor at all times, and try not to move. I know it's hard to sit perfectly still for the 3 to 4 minutes, but it is to your advantage to try to keep from moving. If you have to cough or move, I'll probably observe it and take it into consideration.

During the examination, Mr. Ruby, I know we have other people in the room, but I would appreciate it if you would just try to concentrate as if there were just you and me in here and these questions are coming out and if you know the answer in your own mind, I want you to truthfully answer them "Yes" or "No." Do not give any qualifying statement or additional comments.

Mr. RUBY. All right.

Mr. HERNDON. On the other hand, if I come to one of these questions that you're not sure whether you want to say "Yes" or "No," there is some area in doubt, just don't say anything and we'll go back and discuss it later.

Mr. RUBY. Okay.

Mr. HERNDON. If you will, look right over here, look straight ahead at the wall and relax, and hear my question and give your answer to it, "Yes" or "No."

Mr. RUBY. Yes, sir.

Mr. HERNDON. I will tell you when I am going to begin. I will tell you when this particular test is over, but do not relax or move until I give you the word.

Mr. RUBY. Very well.

Mr. HERNDON. As I say, you will hear a little scratching noise and I will be marking the paper as we proceed.

Mr. RUBY. Can I speak?

Mr. HERNDON. Right now if you want to; yes, sir.

Mr. RUBY. Fowler, I beg you to get Bill Alexander and Joe Tonahill back in here. I tell you. Will you do it, please.

Mr. FOWLER. Jack, let's go on just like it is now. I don't want you to have any apprehensions that we're trying to keep anybody out.

Mr. RUBY. All right.

Mr. HERNDON. It's taking me about a minute to get the instrument warmed up again here.

All right, I will now put a little pressure on that arm, Mr. Ruby, and I will let you know when I'm going to begin. Once again, just answer the questions truthfully, "Yes" or "No."

(Reporter's note: 3:10 p.m.)

Mr. HERNDON. The test will now begin.

"Is your first name Jack?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Is your last name Ruby?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Did you voluntarily request this test?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Did you know Oswald before November 22, 1963?"

Mr. RUBY. "No."

Mr. HERNDON. "Do you use the middle name 'Leon'?"

Mr. RUBY (no immediate response). How can I answer that? I don't have my driver's license, but I don't use it.

Mr. HERNDON. All right, just sit still and we will discuss it. "Did you assist Oswald in the assassination?"

Mr. RUBY. "No."

Mr. HERNDON. "Have you ever been arrested?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Did you take any medication this morning?"

Mr. RUBY. "No."

Mr. HERNDON. "Have you answered all my questions truthfully?"

Mr. RUBY. "Yes."

Mr. HERNDON. This first series is over. If you will just sit still for a moment, I will release the pressure on your arm, and you may now move your arm and relax and get the circulation moving.

Mr. RUBY. I'm all right.

Mr. HERNDON. That wasn't too bad, sir; was it?

Mr. RUBY (no response).

(Reporter's note: 3:12 p.m.)

Mr. HERNDON. Mr. Ruby, there are two questions I want to ask you about on our first series.

I know you couldn't refrain from laughing and talking about that middle name of "Leon." Do you want to further explain that?

Mr. RUBY. Yes; I don't use it, so hence it's sort of a remembrance of a very good friend of mine. I used it on my driver's license, but since then it has become a habit of keeping it on my driver's license, but I've never been called with it and very rarely do I sign papers that way, but once I stated it on my driver's license, I had to follow through with it that way, and that's the answer to it. Once you have it on your driver's license, you have to have it the same way.

Mr. HERNDON. Do you like the name "Leon"?

Mr. RUBY. Well, I did more for sentimental reasons, but as I went along later I sort of dropped it.

Mr. HERNDON. Is it actually on your driver's license, though?

Mr. RUBY. I think it's Jack L. Ruby. No—Jack Leon Ruby. It's Jack Leon Ruby on my driver's license and that's something that once you start with it, and it's been years ago, when you renew your license, it remains the same, but outside of signing papers or contracts or anything of vital importance, you only find out it's much simpler to sign "Jack Ruby."

Mr. HERNDON. All right, Mr. Ruby, and one other question. I would just like to ask you what went on in your mind when you did answer the

question “Yes” to “Have you ever been arrested?”

Mr. RUBY. Well, the police had taken me—I had been arrested, because when the police officer said, “Jack, come on, we’re taking you down,” you’re arrested.

Mr. HERNDON. When was this? Are you referring to this current or some previous time?

Mr. RUBY. Previous to that.

Mr. HERNDON. What situation was that?

Mr. RUBY. Well, it was—I was arrested for dancing after curfew. Some fellows smuggled in intoxicants after hours.

Mr. HERNDON. Was this here in your own place or some other place?

Mr. RUBY. At my own place. No felony crime, nothing serious—only misdemeanors.

Mr. HERNDON. You consider that was a misdemeanor?

Mr. RUBY. Oh, yes; in other words—a \$25 fine. I never have been in any criminal activity.

Mr. HERNDON. Very fine. Does your arm feel all right now?

Mr. RUBY. Yes.

Mr. HERNDON. Very good. We have finished with the first series.

Mr. SPECTER. I am now going to ask Mr. Alexander and Mr. Tonahill to return between now and the time we start on the next test.

May the record show that Mr. Alexander and Mr. Tonahill are back in the room.

Mr. HERNDON. Did the cardiounit disturb you at all other than just a slight tingling sensation?

Mr. RUBY. In this arm here [indicating left arm]?

Mr. HERNDON. Did that bother you before the series No. 1 group?

Mr. RUBY. No; that’s fine.

Mr. HERNDON. Mr. Ruby, you are now a veteran of the first series. You did real well. You cooperated very fine.

Now, we will proceed with series No. 2. I want to go over these questions with you so that you and I understand precisely and perfectly what they mean.

Mr. RUBY. All right.

Mr. HERNDON. Now, in this series of questions, I am going to ask as one of the ones which is pertinent in this investigation, "Are you now a member of the Communist Party?"

Mr. RUBY. No.

Mr. HERNDON. You don't have to answer that if you don't want to now, but I'm going to ask you that question, sir.

Mr. RUBY. OK.

Mr. HERNDON. You understand what I mean by that—that's about as short and sweet as we can get it.

Mr. RUBY. Yes.

Mr. HERNDON. I'm going to ask you, "Have you ever been a member of the Communist Party?"

Mr. RUBY. No.

Mr. HERNDON. You understand the difference—one is now and one is—have been perhaps sometimes in your youth or life—if you were affiliated with the Communist Party.

Mr. RUBY. Yes; I understand.

Mr. HERNDON. I'm going to ask you this question, Mr. Ruby: "Are you now a member of any group that advocates the violent overthrow of the United States Government?"

Mr. RUBY. No.

Mr. HERNDON. Do you understand that question?

Mr. RUBY. Yes, sir.

Mr. HERNDON. I'm going to ask: "Have you ever been a member of any group that advocates the violent overthrow of the United States Government?"

Mr. RUBY. No.

Mr. HERNDON. It's very similar, only it's in the past tense.

Mr. SPECTER. Mr. Ruby, on those two questions—we can't go through all of those groups which advocate the overthrow of the United States Government, so we are generalizing with respect to them.

Mr. RUBY. Yes.

Mr. SPECTER. You have indicated you understand them?

Mr. RUBY. Yes; and my answer is "No—no collaborating."

Mr. SPECTER. I don't think it is necessary to elaborate on that.

Mr. RUBY. No.

Mr. HERNDON. All right, in addition to those questions, I'm going to ask you a relatively simple question as this, that you should be able to answer "Yes" or "No." "Were you born in the United States?"

Mr. RUBY. Yes.

Mr. HERNDON. "Were you born in Chicago?"

Mr. RUBY. Yes.

Mr. HERNDON. Now, this next question I'm going to ask you, you don't have to answer it now. You can discuss it with me later or you can wait and decide what you want to answer to it. "Did you ever make a false official statement?"

Now, that's a general question and I realize that, Mr. Ruby, and when I ask that question, obviously your mind probably went back to many things. We make a lot of official statements. Now, I'm asking that question in its broadest terms. In other words, to your recollection, have you ever made a false official statement?

Mr. RUBY. When you say "official"—for instance, in order to have a job years ago—I want to explain this to you. In order to work in a department

store, I had to use another name because this other person would be the right age that I could work, but outside of that, officials—to any authorities—I haven't.

Mr. HERNDON. Obviously, this department store thing came to your mind when I asked that question?

Mr. RUBY. Yes.

Mr. HERNDON. Well, sir, I'm glad you brought that out so I will have an understanding that that was in your mind. What I mean here, however, is something more in the nature of an application for a license, an application for a permit, an application for insurance—anything that would come within the jurisdiction of being somewhat a legal or semilegal form or application?

Mr. RUBY. No.

Mr. HERNDON. I want to make sure you understand what I mean by that question.

Then, I'll probably ask, I understand you were born in 1911, is that correct?

Mr. RUBY. Yes.

Mr. HERNDON. These are questions of identity—"Were you born in 1911?"

Now, let me see, gentlemen, if we have gone over all the questions. I have gone over all the questions with Mr. Ruby that I'm going to ask for this next series.

Mr. SPECTER. All right, prior to the administration of the second series, Mr. Alexander and Mr. Tonahill are now leaving the room again.

May the record show that Mr. Alexander and Mr. Tonahill have now departed from the room.

(Reporter's note: 3:20 p.m.)

Mr. HERNDON. All right, now just relax. Can I get you a drink of water or anything, Mr. Ruby?

Mr. RUBY. No; I'm perfectly all right.

Mr. HERNDON. All right, very fine. Once again, if you will try to refrain from moving, simply look straight again, and sit perfectly still and answer the questions “Yes” or “No.” I again will tell you when I am going to begin, Mr. Ruby.

Now, are you relaxed? Are you OK?

Mr. RUBY. Yes.

Mr. HERNDON. How does your arm feel? I noticed you had a little bit of pressure there around the cuff. Is the circulation all right?

Mr. RUBY. Fine.

Mr. HERNDON. You feel fine?

Mr. RUBY. Yes.

Mr. HERNDON. It will take me a moment again here to get the instrument adjusted. Before I put any pressure on the cuff, Mr. Ruby, I’m going to just tighten this up just slightly, do you want to move up just a moment? Does that bind you in any way or is it too tight [checking tube around Mr. Ruby’s chest]?

Mr. RUBY. No.

Mr. HERNDON. All right, now just lean back relax. All right, sir. Now, we’re getting a better tracing. All right, I am going to now put a little pressure on and I will tell you when I am going to begin.

(Reporter’s note: 3:23 p.m.)

Mr. HERNDON. Now, I’m checking this just so you can raise and lower your arm and keep relaxed. Look straight ahead, Mr. Ruby.

(Reporter’s note: 3:25 p.m.)

Mr. HERNDON. I will now begin.

“Were you born in the United States?”

Mr. RUBY. “Yes.”

Mr. HERNDON. “Were you born in Chicago?”

Mr. RUBY. “Yes.”

Mr. HERNDON. "Are you now a member of the Communist Party?"

Mr. RUBY. "No."

Mr. HERNDON. "Have you ever been known by another name?"

Don't answer that question. I didn't review it before. Skip it. Just sit and relax.

"Have you ever been a member of the Communist Party?"

Mr. RUBY. "No."

Mr. HERNDON. "Did you ever make a false official statement?"

Mr. RUBY. "No."

Mr. HERNDON. "Are you now a member of any group that advocates the violent overthrow of the United States Government?"

Mr. RUBY. "No."

Mr. HERNDON. "Have you ever been a member of any group that advocates violent overthrow of the United States Government?"

Mr. RUBY. "No."

Mr. HERNDON. "Were you born in 1911?"

Mr. RUBY. "Yes."

Mr. HERNDON. That concludes that series. Just sit still for a moment, sir.

All right, you may now move your arm and relax, Mr. Ruby.

Mr. RUBY. All right.

(Reporter's note: 3:27 p.m.)

Mr. HERNDON. There was one irrelevant question that I failed to mention here. We will discuss that in a moment, and that is, "Have you ever been known by another name?"

You might want to mention that to the gentlemen, as a matter of record. I told him to refrain from answering it. It's really not that pertinent.

Mr. SPECTER. Fine, we will bring it to their attention.

Mr. HERNDON. But, as long as I did ask it, if you want, I'd like him to answer it before the other gentlemen come in.

Mr. SPECTER. I think that's all right.

Mr. RUBY. Have I ever had it changed legally, is that what you meant?

Mr. HERNDON. In other words, when I asked you that question, I realized I hadn't gone over it.

Mr. RUBY. That's all right.

Mr. HERNDON. Therefore—I know you hesitated to answer it.

Mr. RUBY. Well, I have two names—my name was Rubenstein and was changed to Ruby.

Mr. HERNDON. That's what came to your mind, the fact that you actually had your name changed?

Mr. RUBY. Yes.

Mr. SPECTER. We are now between series Nos. 2 and 3?

Mr. HERNDON. Yes.

Mr. RUBY. How many series do I have now?

Mr. HERNDON. I don't know quite yet, Mr. Ruby.

Mr. SPECTER. Let the record show that Mr. Alexander and Mr. Tonahill are back in the room.

Gentlemen, there was one question which Mr. Herndon did not go over in advance and that was, "Was Mr. Ruby ever known by any other name?" Since he did ask it, but since it was obvious as soon as he had asked it that he had not gone over it, he asked Mr. Ruby not to answer it, and when the series was over, he asked Mr. Ruby the question again and Mr. Ruby said that he had been known previously as "Jack Rubenstein" and had legally changed his name. With that one variation, all the questions asked during that series were identical with those discussed before you left the room.

Mr. HERNDON. My apologies, gentlemen, but it was an irrelevant question.

Mr. Ruby, we shall now proceed to what we call series No. 3. Here again these questions are going to be intermixed, some rather pertinent to what we're interested in here, others general questions. Let me go over the relevant questions, first, Mr. Ruby.

"Between the assassination and the shooting, did anybody you know tell you they knew Oswald?"

Mr. RUBY. No.

Mr. SPECTER. Now, you understand, Mr. Ruby, when he says "the shooting," that means the shooting of Oswald?

Mr. RUBY. Repeat that over again—let me hear it again.

Mr. HERNDON. I think you realized that, but I want to make certain that you understand, and I want to go back and break down that question—between the assassination of President Kennedy and the shooting—now, the shooting I mean is the shooting of Oswald?

Mr. RUBY. Oh, yes—yes—the answer is "No."

Mr. HERNDON. I realize you understood the question, but the shooting in some other person's mind could be many things. I want to keep these sentences as concise and short as possible.

"Did anybody you know tell you they knew Oswald?"

Mr. RUBY. No.

Mr. HERNDON. Do you understand the question, Mr. Ruby?

Mr. RUBY. Right.

Mr. HERNDON. "Did you tell anyone that you were thinking of shooting Oswald before you did it?"

Mr. RUBY. No.

Mr. HERNDON. Is that question all right, do you understand it?

Mr. RUBY. Yes—I take that back. Sunday morning—I want to elaborate on that—before I left my apartment—it evidently didn't register with the person because of the way I said it. In other words, the whole basis of this whole thing was that Mrs. Kennedy would have to come back for trial.

Mr. FOWLER. Jack, let me ask you at this time—excuse my interruption, but why don't you just address yourself to the general questions that are asked you. I think it's all right.

Mr. RUBY. All right.

Mr. FOWLER. I don't think it will help the Commission, and this may be in the form of a question later on, but just confine your answer to "Yes" or "No."

Mr. RUBY. Well, the thing is this—I have to answer—ask me the question again.

Mr. HERNDON. Let's go over it once more, Mr. Ruby, and I want you to be able to be in a position that you can freely, honestly, and truthfully answer it simply "Yes" or "No."

Mr. RUBY. Yes.

Mr. HERNDON. Now, if there's something in here in this area that troubles you, we can rephrase the question.

Mr. RUBY. Will you specify the time—the time element is very important.

Mr. HERNDON. The only time element is before—before you did it. Now, "before" is a very broad coverage?

Mr. RUBY. That's it. That's a difficult question to answer.

Mr. HERNDON. That's the way the question is worded. Let me ask it again and see if you want to discuss it. "Did you tell anyone that you were thinking of shooting Oswald before you did it?"

Mr. RUBY [no response].

Mr. HERNDON. If you want me to reword that question, I'll take it up with Mr. Specter.

Mr. RUBY. Why don't you say this—"that Sunday morning, specifically?" That would be easier for me to answer.

Mr. HERNDON. In other words, "Did you tell anyone you were thinking of shooting Oswald on Sunday morning?"

Mr. FOWLER. Jack, again, excuse me, sir.

Mr. RUBY. Fowler, it puts me in a tough spot when he asks me that question and I evade it.

Mr. FOWLER. I understand this, but I'm talking now specifically about in the presence of Mr. Alexander. Now, later on, if you want to answer it "Yes" or "No" to that question, it's perfectly all right. I want you to fully understand the question.

Mr. HERNDON. I want to bow, of course, to Mr. Specter, of course, for the way the Commission desires it.

Mr. SPECTER. If you would like us to break it down, we could do it in two questions. "Did you tell anybody on Sunday morning that you were going to shoot Oswald before you did it?"

Mr. RUBY. Yes, that's easier to answer.

Mr. SPECTER. Then, we can ask you this: "Before Sunday morning did you tell anybody you intended to shoot Oswald?"

Mr. RUBY. Now, that's a better way to ask it—the last question.

Mr. SPECTER. Then, we've covered all the time in two parts.

Mr. RUBY. The last question you asked me is a better way to ask me. The last question you asked, my answer is "No."

Mr. SPECTER. Then, we'll want to ask you a followup question.

Mr. RUBY. Do you understand what I'm saying—did you understand what I said?

Mr. SPECTER. Yes, I understand what you're saying, but we will want to ask you for the purpose of the test, "On Sunday morning did you tell anybody that you intended to shoot Oswald?"

Mr. RUBY. All right. I'll answer it.

Mr. HERNDON. If I could get the court reporter to read back how you phrased that question, so that we could both agree on it.

COURT REPORTER. "On Sunday morning did you tell anybody that you intended to shoot Oswald?"

Mr. SPECTER. There are two questions. "Before Sunday morning, did you tell anyone you intended to shoot Oswald?" That's all right for one question. Now, write this one down, Mr. Herndon. The question is "Before Sunday morning did you tell anyone that you intended to shoot Oswald?"

Mr. RUBY. Now, before Sunday morning means any time element beyond the time I left my apartment. Is that what you're referring to when you say Sunday morning?

Mr. SPECTER. Well, I'll even change that and I'll say "Before you left your apartment on Sunday morning, did you tell anyone you intended to shoot Oswald?"

Now, the following question will be: "From the time you left your apartment on Sunday morning, did you tell anyone you intended to shoot Oswald?"

Mr. RUBY. Now, you better rephrase that. I hadn't already left the apartment. Do you follow me?

Mr. SPECTER. Right. Well, I see what you're driving at—you're driving at the time.

Mr. RUBY. The time element is very important.

Mr. SPECTER. All right, we can make it in three parts: "While you were at your apartment on Sunday morning, did you tell anyone you intended to shoot Oswald?"

Now, we've broken it up three ways. That would really be covered, Mr. Ruby, in the first part: "Before you left your apartment on Sunday morning, did you tell anyone you intended to shoot Oswald?"

Mr. RUBY. Now, you've got to get another question in there: "Previous to your arising that morning, have you told anyone you're going to shoot Oswald?" You see my point?

Mr. SPECTER. Yes; before you awakened, in other words?

Mr. RUBY. Yes.

Mr. SPECTER. "Before you awakened on Sunday morning, had you told anyone you intended to shoot Oswald?"

Mr. RUBY. Before I awakened.

Mr. SPECTER. Mr. Ruby, I don't want to leave any area of questionableness here or ambiguity—of course, you didn't say in your sleep this, so perhaps we ought to phrase it "Before you went to bed on Saturday night or early Sunday morning did you tell anyone you intended to shoot Oswald?"

Mr. RUBY. That's right.

Mr. HERNDON. Would you repeat that, Mr. Specter?

Mr. SPECTER. Yes. "Before you went to bed——"

What time did you go to bed that night?

Mr. RUBY. At 1:15 or 1:30, but you must put it specifically—also, whether I received any phone calls from the time I went to bed and the time I arose. Do you follow me? In other words, I could clear myself by answering that question truthfully, but I could have received a phone call in between the time I went to bed and the time I awakened.

Mr. HERNDON. So, the area we're trying to cover here, Mr. Ruby, as I see it is—if you did tell anyone you were thinking of doing this—the approximate time.

Is that what we're getting at, Mr. Specter?

Mr. SPECTER. Yes.

Mr. HERNDON. Now, we can phrase that in several different ways. If your recollection is that good that you specifically recall an incident, you can tell me how you want me to ask it.

Mr. ALEXANDER. May I make a suggestion?

Mr. HERNDON. Yes.

Mr. ALEXANDER. Ask it, "Did you tell someone by telephone you intended to shoot Oswald?"

Mr. RUBY. Plus the fact that I think it should be included, "Did I talk to anyone before going to bed?"

Mr. HERNDON. Mr. Specter?

Mr. FOWLER. Now, we will certainly object to a question being framed by this attorney.

Mr. SPECTER. Mr. Fowler, do I understand your position correctly, that you are concerned about the disclosure of this information in the presence of Mr. Alexander?

Mr. FOWLER. I am.

Mr. SPECTER. But, do you have any concern about disclosing the answer to this question to the Commission?

Mr. FOWLER. None whatsoever.

Mr. SPECTER. Well, would it be agreeable with you if Mr. Alexander leaves while this question is being formulated so we can understand it, and then that he comes back when we have formulated it?

Mr. ALEXANDER. Jack knows that I know the answer to it, so there's no use in anybody getting upset about it.

Mr. RUBY. Are you sure you know the answer to it?

Mr. ALEXANDER. I think so, Jack.

Mr. FOWLER. It would be preferable if he would leave.

Mr. SPECTER. Mr. Alexander, do you have any objection to stepping out just while we formulate this question?

Mr. ALEXANDER. Not at all, not at all. Come on Joe.

Mr. TONAHILL. I don't have to go.

Mr. SPECTER. Mr. Alexander has now departed, may the record show.

All right, Mr. Ruby, we want to phrase the question in accordance with polygraph procedure in a way that gets to the point, as you see the point. So, tell us exactly what you have in mind here.

Mr. RUBY. Well, you had better remind me again.

Mr. HERNDON. Here's the area we're trying to cover. Here's the question I originally asked you which created all this problem. "Between the assassination and the shooting"—now, let me start that again—"Did you tell anyone that you were thinking of shooting Oswald before you did?"

Now, I tried to put that as plainly as I could. I'm not interested here in the area of when——

Mr. RUBY. Yes, but if you're speaking in the area of when, it's pretty incriminating. It's a long premeditation, then, of time element.

Mr. HERNDON. I think the Commission here has its question of whether or not you did tell anybody?

Mr. SPECTER. Mr. Ruby, if you have no objection to answering that question, we would like you to do so now for purposes of giving us information, and then we will test you in just a minute as we go through with the polygraph, if you're willing to answer that question?

Mr. RUBY. Clayton?

Mr. FOWLER. Jack, let me say this—now, this is the very crux of your case. In other words, if there is premeditation on your part to murder or to kill, this can and will be used against you, and this information—let's project it a little bit and say that you do get a new trial, and that between now and that the Warren Commission releases their information for public consumption or to the district attorney's office or to anybody else, then, if your answer to these questions might be "Yes," then it would be most difficult to appear and defend you.

Mr. RUBY. Clayton, I'm here to tell the truth. I don't know how the heck to answer it. I appreciate you're in a tough spot.

Mr. FOWLER. Well, of course, as you can readily see, this is why we advised you not to take this.

Mr. RUBY. That's why I want it, because I know what's best for me.

Mr. FOWLER. Well, I don't think you do, Jack.

Mr. RUBY. Can I overrule you, Clayton, where you won't be too angry if I overrule you?

Mr. FOWLER. Well, I have no—I'm not going to put a cob in your mouth, Jack.

Mr. RUBY. Can I ask one more favor of you?

Mr. FOWLER. Sure.

Mr. RUBY. Will you let those two gentlemen back in the room, at your request?

Mr. FOWLER. Not at my request; no, sir.

Mr. RUBY. Please, Clayton?

Mr. FOWLER. If you leave that up to me, I say, "No."

Mr. RUBY. All right, I'm going to answer your question.

Mr. HERNDON. Mr. Ruby, why don't I just go over with you once again all of them, for this series of questions.

Mr. SPECTER. At this time, I would like to ask Mr. Ruby if he is willing to answer the question about the conversations. I would like to develop the information about the conversations so that we will know it is factual. This would be an extended question of the nature that the Chief Justice asked you on June 7—if you're willing to answer my question to you at this time, which is: "Did you tell anybody that you intended to shoot Oswald at any time before you did it?" And, I would follow that up, if you answer that question, with, "Whom did you tell and when?" With that information, we can then formulate these questions for the lie detector test to see if you're telling the truth.

Mr. RUBY. Clayton, please? I've got to do this? I've got to, because I told it to the Warren Commission.

Mr. FOWLER. In other words, these questions have already been talked about?

Mr. RUBY. Yes; and will you ask them to come in?

Mr. SPECTER. Mr. Fowler, I don't know that they have. I have reviewed the transcript, but I don't know that we've asked these before, but he answered everything that was asked of him in the last session.

Mr. RUBY. Yes, I was very voluntary.

Mr. SPECTER. We deliberately didn't go into some areas, suffice it to say, for certain purposes. But this is the question we're concerned with at the moment, and we would like an answer substantively, in addition to testing his truthfulness. It comes to a head when we try to formulate the questions for the polygraph, because we really have to get the underlying facts, and

then we can point our efforts to see whether he's telling the truth according to the indicators from the examination.

Mr. FOWLER. Again, I don't believe certainly he understands the full complicity of this thing. If there are any questions that are asked that show premeditation on his part, I would respectfully ask that he decline to answer and that you decline to ask it.

Mr. RUBY. But it's already in there. I've already told it to the Warren Commission.

Mr. FOWLER. Now, if there is an area that has been covered already and you still wish to go into it—I don't want this man——

Mr. RUBY. So, would you mind calling Alexander in?

Mr. FOWLER. Listen, Jack, will you please listen to me? This man got up down there and asked the jury to send you to the electric chair.

Mr. RUBY. I know it.

Mr. FOWLER. He has not changed his opinion yet, and he will again ask it at some later date. Now, is this the kind of man you want to pussyfoot around in here with and let listen to these questions? Just "Yes" or "No"—if it is—we'll bring him back in.

Mr. RUBY. Yes: I want him in here, and I want you to ask him to come in, please.

Mr. FOWLER. I won't ask him to come in.

Mr. RUBY. Joe, ask him to come in.

Mr. TONAHILL. No; Clayton is your chief counsel and I'm going to respect his desires.

Mr. RUBY. Chief—I know.

Mr. SPECTER. Well, I will ask him to come in, Mr. Ruby. I'm willing to bring him back, if that's your request.

Mr. FOWLER. I would like this record to reflect that this is against the advice of his attorneys present, and that it will be very detrimental to, No. 1, his appeal, and No. 2, perhaps to any clemency that might be asked for in

the future, and No. 3, for the actual trial of the case on the merits, if such ever occurs.

Mr. SPECTER. Mr. Ruby, the Commission can proceed and conduct this test and not bring him back. I want you to be clear on that point, that these men do not have to be here for the purposes of getting this information for the Commission, so we will know all the facts, or for the purposes of conducting this test. So, it's really extraneous. It doesn't really matter for them to be in here for the tests.

Mr. FOWLER. Jack, why do you want them back?

Mr. RUBY. Because I happen to know what I'm talking about.

Mr. TONAHILL. Now, Jack——

Mr. RUBY. Joe, you're not my attorney any more. We know it. We understand one another, please. You're not helping me.

Mr. FOWLER. Let's just direct our attention right now, Jack, to the things that are near to you. Why do you want Mr. Alexander here?

Mr. RUBY. I feel I don't want him to think I'm holding out on anything. I don't want him to have any idea that I'm reluctant to answer things in front of him, believe me.

Mr. FOWLER. Listen, at some future date—yes. Perhaps in a trial, another trial, yes. When you are on the witness stand, if you are able to go to the witness stand, perhaps these questions will be directed to you at that time, and you can make a full disclosure before a jury, but I respectfully request that you do not do it in the presence of a district attorney.

Mr. RUBY. But Clayton, they know all these questions already. Henry Wade, I spoke to, and I told him all this.

Mr. FOWLER. Well, if he knows them already, then why not just let him stay out? You're not trying to impress him, are you? Do you think that he can do anything to help you right now?

Mr. RUBY. No, no; but the thing is that I have a few other thoughts in mind, as you well know about.

Mr. FOWLER. What are they, Jack?

Mr. RUBY. That I spoke to you about for your consideration.

Mr. FOWLER. Jack, I'm not worried, I'm not concerned about anybody trying to do away with me. This is the least of my worries. Nobody has threatened me about this thing. Nobody has coerced me in any way.

Mr. RUBY. I want harmony, that's what I want. I want harmony with you and the district attorney's office.

Mr. FOWLER. Well, we can't harmonize over your situation, I'm sorry.

Mr. SPECTER. Well, the point we got to was the question of getting the substantive information out before going on with the test. Did you tell anyone that you intended to shoot Oswald?

Mr. HERNDON. You mean—before?

Mr. SPECTER. Well, I don't know if we're going to get an answer to it or not.

Mr. FOWLER. Jack, now the question that is being directed to you at this time—well, go right ahead.

Mr. RUBY. Yes: Sunday morning.

Mr. SPECTER. And whom did you tell?

Mr. RUBY. George Senator.

Mr. SPECTER. And where were you at the time you discussed it with him?

Mr. RUBY. In my apartment.

Mr. SPECTER. And state in as precise words as you can remember, just what you said to him and he said to you at that time?

Mr. RUBY. Well, he didn't say anything—the funny part—he was reading the paper and I doubt if he even recalled me saying it. I have to elaborate on it, but I was so carried away emotionally that I said—I don't know how I said it—I didn't say it in any vulgar manner—I said, “If something happened to this person, that then Mrs. Kennedy won't have to come back for the trial.” That's all I said. Now, would you mind asking me on that particular point? That happened Sunday morning. That's the only

time any thought ever came to my mind, because that morning I read some articles in the newspaper that she would have to come back to trial.

Mr. SPECTER. Did you ever say to anybody, “I am going to shoot Oswald,” or anything to the effect that, “I am going to shoot or kill him”?

Mr. RUBY. No; I just made the statement—that’s the only thing I said.

Mr. SPECTER. That statement you made to George Senator, that’s the only thing, that’s the closest you came to saying it?

Mr. RUBY. That Sunday morning before I left my apartment.

Mr. SPECTER. Did you ever tell Randolph Paul you were going to shoot him?

Mr. RUBY. I don’t even know a Randolph Paul.

Mr. SPECTER. How about Breck Wall?

Mr. RUBY. I know I never said that to Breck Wall.

Mr. SPECTER. Perhaps the name was Ralph Paul. Did you ever say it to Ralph Paul?

Mr. RUBY. No, sir.

Mr. SPECTER. Now, let’s prepare the question this way, if we may, Mr. Herndon: “Aside from anything you said to George Senator, did you ever tell anyone you intended to shoot Oswald?”

Mr. RUBY. No.

Mr. SPECTER. Now, is that formulation acceptable for purposes of the test, Mr. Herndon?

Mr. HERNDON. I want to make sure I get it correct.

Mr. SPECTER. “Aside from anything you said to George Senator, did you ever tell anyone else you intended to shoot Oswald?”

Mr. RUBY. In the flippant way I said it, I doubt if he’d even—you know—the poor guy may not even have remembered it. We never discussed it after that.

Mr. SPECTER. What was the exact time you recollect you said that to him?

Mr. RUBY. I don't know—it was about 10:15 Sunday morning.

Mr. SPECTER. Approximately?

Mr. RUBY. Well, you know—10 minutes either way.

Mr. SPECTER. All right, Mr. Fowler, we will phrase the question in that way, but that phraseology of the question carries certain implications which you understand.

Mr. RUBY. May I repeat that question once more to make sure it's accurate?

Mr. SPECTER. Mr. Alexander can come back in.

(Mr. Alexander at this time entered the room.)

Mr. SPECTER. We have now formulated the question, Mr. Alexander, and Mr. Herndon will now read it, together with the other questions he intends to ask in this series.

Mr. HERNDON. The question is, "Aside from anything you said to George Senator, did you ever tell anyone else that you intended to shoot Oswald?"

Mr. RUBY. No.

Mr. HERNDON. That will be one of the questions on the next series.

Mr. Specter, do you want that to be in lieu of this one or in addition to this question?

Mr. SPECTER. Let's ask it in lieu of that question. Strike the other question, the original question.

Mr. HERNDON. Strike the original question that commences, "Did you tell anyone you were thinking about"?

Mr. SPECTER. Yes; that's the one we've been talking about.

Mr. ALEXANDER. Is this still series 3?

Mr. HERNDON. We're still on series 3. Mr. Alexander. As a matter of fact, if it's all right with you gentleman, I'd like to start right over again on series 3.

Mr. SPECTER. Mr. Ruby, I think we have that one area resolved.

Mr. HERNDON. I'm going to ask you as we said originally—before—back in the testimony. “Between the assassination and the shooting, did anybody you know tell you they knew Oswald?”

Then, the other relative or pertinent question here will be, “Aside from anything you said to George Senator, did you ever tell anyone else that you intended to shoot Oswald?”

And, in addition to those questions, I will ask on this series the following questions——

Mr. RUBY. Why don't you add—in—let's get the time element in there, too, because that was Sunday morning.

Mr. HERNDON. Well, I don't want to make these questions too long.

Mr. RUBY. I know, but I want this because somebody might think that I mentioned it 2 days prior to that.

Mr. SPECTER. We can add if you want to. “Aside from anything you said to George Senator on Sunday morning, did you ever tell anyone else that you intended to shoot Oswald?”

Mr. RUBY. OK.

Mr. HERNDON. All right, we're going to insert after “George Senator”—“on Sunday morning.” Here again, the Sunday morning being that time after you woke up and prior to noon.

Mr. RUBY. Remember, it was the flippant way I said it that I doubt if the poor soul remembered it.

Mr. HERNDON. The other questions in this series will be as follows, Mr. Ruby. Here again are some of the irrelevant questions. “Is your last name Ruby? Do you live in Dallas?” I'm going to ask you “Are you married?” Just for the record, I understand you're single, so you could answer that “No.” “Were you in the military service?”

Mr. RUBY. Yes.

Mr. HERNDON. I'm going to ask you this question: “While in service,” and I mean the military service, “did you receive any disciplinary action?” Do you understand that question?

Mr. RUBY. In other words, “While you were in the military, were you hurt?”

Mr. HERNDON. No; Mr. Ruby, disciplinary action. Were you court-martialed, captains’ mast, or any disciplinary action?

Mr. RUBY. None whatsoever.

Mr. HERNDON. There’s one other relevant question I want to ask on this series and I put it as simply as I can. “Did you shoot Oswald in order to silence him?”

Mr. RUBY. No.

Mr. HERNDON. One other question: “Have you ever served time in jail?” Now, what I mean by that question, Mr. Ruby, is not this present custody but any other time. “Did you ever actually serve time in jail?”

Mr. RUBY. I have served 30 days—I mean—that would answer it.

Mr. HERNDON. Then, you can answer that?

Mr. RUBY. Yes.

Mr. HERNDON. If that comes to mind, you could say, “Yes.”

Mr. RUBY. Yes.

Mr. HERNDON. Now, let me make sure we’ve gone over these questions. Do you feel all right, Mr. Ruby?

Mr. RUBY. Yes.

Mr. HERNDON. All right, we will proceed.

Mr. RUBY. That 30 days embarrasses me, because it was with reference to selling some song sheets back in the old depression days, and it wasn’t for anything criminal. It was something that I didn’t realize at the time there were copyrights on those songs. So, I don’t want to become a felon just because—outside of what I am now.

Mr. HERNDON. Well, these questions, I don’t mean to embarrass you, Mr. Ruby. I want to ask these questions because they’re going to help me later on, and I want to get some of these other questions on your background. Was that in Chicago?

Mr. RUBY. Yes.

Mr. HERNDON. When you explained about the song sheets?

Mr. RUBY. Yes; I made a pretty good living at that time.

Mr. HERNDON. You still recall that and it embarrasses you?

Mr. RUBY. Yes.

Mr. HERNDON. I will be ready to start series 3 in a moment.

Mr. SPECTER. All right, if Mr. Alexander and Mr. Tonahill will leave the room, we will proceed with series 3.

May the record show that Mr. Alexander and Mr. Tonahill are now absent.

(Reporter's note: 3:58 p.m.)

Mr. HERNDON. Of course, we have been moving around and talking, Mr. Ruby, I'm going to make a few minor adjustments here. Are you comfortable, sir?

Mr. RUBY. Yes.

Mr. HERNDON. Now, I'm going to put this up a little higher on your chest, and I want you to lean back and relax. Do you want to put your feet flat on the floor during the test, if you will.

All right. I again will tell you when we actually start the test. I'm going to put a little pressure on the arm, and once again, on these questions, if you will answer them simply "Yes" or "No" truthfully. Will you look straight ahead, please, sir.

(Reporter's note: 3:59 p.m.)

Mr. HERNDON. The test will now begin. Look straight ahead, Mr. Ruby.

"Is your last name Ruby?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Do you live in Dallas?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Between the assassination and the shooting, did anybody you know tell you they knew Oswald?"

Mr. RUBY. "No."

Mr. HERNDON. "Are you married?"

Mr. RUBY. "No."

Mr. HERNDON. "Aside from anything you said to George Senator on Sunday morning, did you ever tell anyone else that you intended to shoot Oswald?"

Mr. RUBY. "No."

Mr. HERNDON. "Were you in the military service?"

Mr. RUBY. "Yes."

Mr. HERNDON. "While in service did you receive any disciplinary action?"

Mr. RUBY. "No."

Mr. HERNDON. "Did you shoot Oswald in order to silence him?"

Mr. RUBY. "No."

Mr. HERNDON. "Have you ever served time in jail?"

Mr. RUBY (no response).

Mr. HERNDON. The test is over. Sit still for a moment and we will release the pressure on your arm.

Do you feel a little better when I release that pressure?

Mr. RUBY. When you elaborate on "serving time", 30 days isn't serving time.

Mr. HERNDON. I was going to ask you to explain that, and you followed instructions explicitly there.

Then, actually in explanation to that, this 30 days to you were insignificant?

Mr. RUBY. Well, yes, but I explained that.

Mr. HERNDON. That's all right. I have to ask these questions.

Mr. RUBY. To serve time is when you refer to a man being in the penitentiary.

Mr. HERNDON. Now, there are a few questions I want to ask him with regard to that series.

Mr. SPECTER. Go ahead.

Mr. HERNDON. Just two points I want to clarify for my own use here.

Mr. Ruby, I asked you. "Are you married?" and you replied "No." Could you tell me if anything went on in your mind at the time you responded "No"?

Mr. RUBY. Yes; I was thinking of the young girl, that had I been married I wouldn't have been in this trouble. I guess that's what flashed back in my mind.

Mr. HERNDON. Is this a former sweetheart?

Mr. RUBY. Yes. What else?

Mr. HERNDON. I just wanted to get your explanation at that particular point?

Mr. RUBY. You noticed something there?

Mr. HERNDON. Did you feel anything?

Mr. RUBY. Yes; I knew I wasn't—something was working on me when you asked me that. I would probably have been living in another part of the city, and I wouldn't have been involved in this.

Mr. HERNDON. Do you recall the girl's name?

Mr. RUBY. Yes—Alice Nichols.

Mr. HERNDON. And how long ago was this that you were acquainted with her?

Mr. RUBY. Oh, for many years, and I guess we severed relations in 1959—"relations"—I meant our company.

Mr. HERNDON. That's the last time you were dating?

Mr. RUBY. Yes; we were engaged and so on.

Mr. HERNDON. You never actually married this young lady?

Mr. RUBY. No, sir. That's why you see me in a moment of despair—like I am.

Mr. HERNDON. Did you ever consider marrying her?

Mr. RUBY. Yes; yes.

Mr. HERNDON. All right, that clarifies that question for me. One other area I'd like you to speak frankly and freely on, and here again it gets back to this military service. I asked you, "While in the military service, did you ever receive any disciplinary action?"

Mr. RUBY. No.

Mr. HERNDON. Did you ever get in any trouble at all while you were in the service that came to your mind during that question?

Mr. RUBY. When you say "trouble"?

Mr. HERNDON. Disciplinary action for trouble?

Mr. RUBY. No; I have never been called down for anything. I may have had a brawl with another soldier.

Mr. HERNDON. Did you while you were in the service ever have a fight?

Mr. RUBY. Yes; but when you speak of "disciplinary" is when you go before a court-martial or the colonel calls you in or something happens.

Mr. HERNDON. Were you called in before the commanding officer?

Mr. RUBY. Sure; but it's not important enough to answer. Evidently, you're getting a pretty good reading?

Mr. HERNDON. I'm having no technical difficulty with regard to giving the test.

Mr. RUBY. I wish you would prove to my chief here, over there, how I stand with you (referring to Mr. Holman).

Mr. HERNDON. I want to study these very carefully, of course, but you have been very cooperative, as far as running the actual examination. That will complete series 3.

Mr. SPECTER. Fine, I will call the gentlemen in.

Let the record show that Mr. Tonahill and Mr. Alexander have returned.

Mr. HERNDON. We will go on to another series now. I am going to run a little different type of examination, Mr. Ruby, if you still feel like you want to continue. Do you want to take a break?

Mr. RUBY. Oh, I want to go on completely.

Mr. HERNDON. You are not tired?

Mr. RUBY. No.

Mr. HERNDON. This next one will be relatively short, and it won't take too long.

I'm going to ask you these questions somewhat in sequence and in consecutive order. There are five of them. They can be answered simply by "yes" or "no."

"Did you first decide to shoot Oswald on Friday night?"

Mr. RUBY. No.

Mr. HERNDON. "Did you first decide to shoot Oswald on Saturday morning?"

Mr. RUBY. No.

Mr. HERNDON. "Did you first decide to shoot Oswald Sunday morning?"

Mr. RUBY. Yes.

Mr. HERNDON. And last, I'll ask you, "Have you answered all questions truthfully?"

Mr. RUBY. Yes.

Mr. HERNDON. In addition to those questions I've just asked, I'm going to ask, again to establish identity, "Is your first name Jack?"

Mr. RUBY. Yes.

Mr. HERNDON. "Is your last name Ruby?"

Mr. RUBY. Yes.

Mr. HERNDON. I will ask you of those questions that I have just related to you, those pertinent five questions in consecutive order, with considerable spacing and time between—I believe you understand what I mean by Friday night?

Mr. RUBY. Definitely—the period of meditation.

Mr. HERNDON. That's right—in the evening after 6 o'clock, and Saturday morning we consider as being that time from when you wake up until you have lunch, and I think you understand these questions.

Mr. RUBY. Also, is there any way you can ask me if my family had known of my doing anything like that?

Mr. HERNDON. We may possibly get into that area or perhaps take that up with Mr. Specter.

Mr. SPECTER. Well, actually, Mr. Ruby, we have a great many questions to ask you and there are certain limitations on the test.

Mr. HERNDON. I am going to proceed on this particular series now.

Mr. SPECTER. All right. Mr. Alexander and Mr. Tonahill are leaving the room, and may the record show both have now departed.

(Reporter's note: 4.08 p.m.)

Mr. HERNDON. Did you want to tell me something before, Mr. Ruby, before I start?

Mr. RUBY. No.

Mr. HERNDON. Again, I will tell you when the test begins.

Will you let the record show that I have these designated as series 3a.

All right, do you feel all right now, Mr. Ruby?

Mr. RUBY. Yes.

Mr. HERNDON. Sit perfectly still and try to concentrate and look straight ahead and answer the questions truthfully "Yes" or "No."

I now put some pressure on that arm cuff.

The test will now begin.

(Reporter's note: 4:10 p.m.)

Mr. HERNDON. "Is your first name Jack?"

Mr. RUBY. "Yes".

Mr. HERNDON. "Is your last name Ruby?"

Mr. RUBY. "Yes".

Mr. HERNDON. "Did you first decide to shoot Oswald on Friday night?"

Mr. RUBY. "No".

Mr. HERNDON. "Did you first decide to shoot Oswald on Saturday morning?"

Mr. RUBY. "No".

Mr. HERNDON. "Did you first decide to shoot Oswald on Saturday night?"

Mr. Ruby. "No".

Mr. HERNDON. "Did you first decide to shoot Oswald on Sunday morning?"

Mr. RUBY. "Yes".

Mr. HERNDON. "Have you answered all questions truthfully?"

Mr. RUBY. "Yes".

Mr. HERNDON. The test is over. Will you sit still a moment. I will release the pressure on your arms. You may now move your hands and get the circulation back.

(Reporter's note: 4:12 p.m.)

Mr. HERNDON. I have no questions on that.

Mr. Ruby came in here what time—originally?

COURT REPORTER. My notes indicate around 2 p.m.

Mr. HERNDON. How do you feel, Mr. Ruby?

Mr. RUBY. Fine.

Mr. HERNDON. You're not tired?

Mr. RUBY. No.

Mr. HERNDON. Mr. Ruby, you are perfectly relaxed?

Mr. RUBY. Yes.

Mr. HERNDON. As long as Mr. Ruby feels fine, I think we can continue and we can prepare the exact wording for the next series.

You may wish to bring the other gentlemen in.

Mr. SPECTER. All right, thank you.

Let the record show that Mr. Alexander and Mr. Tonahill have returned to the room.

(Conference off the record between Messrs. Specter and Herndon regarding formulation of questions.)

Mr. RUBY. Joe?

Mr. TONAHILL. Yes, Jack.

(Conference between Mr. Tonahill and Mr. Ruby from 4:13 to 4:15 p.m., out of the hearing of this reporter and others in the room.)

Mr. ALEXANDER. Jack, you are a good man.

Mr. RUBY. Who, Bill?

(Conference between Mr. Alexander and Mr. Ruby from 4:15 to 4:18 p.m., out of the hearing of this reporter and others in the room.)

Mr. SPECTER. Mr. Holman, what time do you feed Mr. Ruby? What time do you start the evening meal?

The JAILER. Well, we begin about 4:30 p.m.

Mr. HERNDON. Are you hungry. Mr. Ruby?

Mr. RUBY. No, I'm feeling fine.

Mr. SPECTER. Well, let's go ahead with this series of questions and then we will take about a 20-minute break.

(Conference between Mr. Alexander and Mr. Ruby from 4:22 to 4:25 p.m., out of the hearing of this reporter and others in the room.)

Mr. SPECTER. All right, we are ready to go on to the next series of questions.

Mr. HERNDON. Do you feel all right, Mr. Ruby, at this time?

Mr. RUBY. Yes.

Mr. HERNDON. We will now go to the first question of this next series, Mr. Ruby, and I will ask you these questions. I want to make sure you have a clear understanding of what they mean.

“Were you in the Dallas Police Department jail basement at the time Lieutenant Pierce’s car drove out of the basement?”

Now, I see you are hesitating on that—I can rephrase it if you so like?

Mr. RUBY. Oh, no.

Mr. HERNDON. Let me go over it again, to make sure the question will be clear to you.

“Were you in the Dallas Police Department jail at the time Lieutenant Pierce’s car drove out of the basement?”

Mr. RUBY. If I can explain it—if I can elaborate on it, it will be easy to answer.

Mr. SPECTER. Go ahead now, if it’s all right with your counsel, so we can focus in on what concerns you.

Mr. HERNDON. Perhaps I might want to ask that other question first and he would find he might not have as much of a problem if I asked it first.

Mr. SPECTER. Well, I prefer to stay with what we have now. I think we can. If it’s all right to have him explain it, if it’s all right with his attorney, I’d rather stay with that.

Mr. RUBY. I’ve already told it to the Warren Commission?

Mr. TONAHILL. Well, go ahead.

Mr. RUBY. As I left the Western Union, I walked toward the ramp, and as I walked down, Lieutenant Pierce’s car was parked already on the curb,

partly on the curb and partly some of it was on the ramp, and some officer was talking to him, so consequently—I don't know how to answer that—whether I was in the basement—when his car had driven out?

Mr. SPECTER. Did you walk by his car?

Mr. RUBY. Yes.

Mr. SPECTER. At the same time it was parked there?

Mr. RUBY. Yes.

Mr. SPECTER. So that the officer did not see you——

Mr. RUBY. That's correct.

Mr. SPECTER (continuing). Because the car was parked there?

Mr. RUBY. Yes; and his back was turned to me.

Mr. SPECTER. To state it differently, did the presence of the automobile and the fact that he was talking to Lieutenant Pierce obscure the vision of the officer who was on duty guarding that entrance or exit?

Mr. RUBY. Yes; and I walked down because I didn't know they were guarding it—that there was anything going on there, you know?

Mr. HERNDON. Well, with that question, I can see his area of conflict here.

Mr. TONAHILL. What you want to know is was he in the basement, but he was out on the sidewalk. I think that's a straight question.

Mr. ALEXANDER. "Were you in the basement or were you on the sidewalk when Lieutenant Pierce's car came out?" How about that?

Mr. HERNDON. Yes, I will revise that one question and break it down.

Mr. TONAHILL. Yes, that's a very good question.

Mr. HERNDON. All right, Mr. Ruby, will this question create any problem for you? "Were you on the sidewalk at the time Lieutenant Pierce's car"—I had "drove out," but was he driving out or was he parked there?

Mr. RUBY. When I noticed him he was already—he was stationary. He was parked. He had stalled there or something.

Mr. SPECTER. “Were you on the sidewalk at the time Lieutenant Pierce’s car stopped in front of the guard at the exit?”

Mr. RUBY. Yes, yes. Why do you say “stopped at the exit?”

Mr. TONAHILL. At the ramp exit.

Mr. HERNDON. “The ramp exit”—that makes it specific.

Mr. Ruby, your question will then be, “Were you on the sidewalk at the time Lieutenant Pierce’s car stopped on the ramp exit?”

Mr. RUBY. Yes.

Mr. HERNDON. Or, would you prefer “at the ramp exit?”

Mr. RUBY. That’s okay.

Mr. HERNDON. Let’s leave it “on the ramp exit.”

Another question I will ask, “Did you enter the jail by walking through an alleyway?”

Mr. RUBY. What do you call an alleyway—a ramp?

Mr. TONAHILL. It’s a ramp, it isn’t an alley. It goes under the building and comes out.

Mr. SPECTER. That’s all right, we’ll stand on that.

Mr. HERNDON. You will stand on that question, Mr. Specter?

Mr. SPECTER. Yes.

Mr. HERNDON. In other words, you can answer that as you want to?

Mr. TONAHILL. Now, if he says “No”——

Mr. ALEXANDER. It isn’t an alley, now, it’s a ramp.

Mr. SPECTER. Let me specify here—is there another entrance to the jail that you have to go through an alleyway?

Mr. RUBY. There’s another—the Commerce Street entrance, and there’s two entrances, and there’s ways of coming through, I imagine, from the——

Mr. TONAHILL. But it’s a driveway, is what it is, going down.

Mr. ALEXANDER. There's nothing in the sense that you're thinking of—you could come from the building out where you could go down the ramp on either side.

Mr. TONAHILL. It's all under the building, not the ramp.

Mr. FOWLER. Actually, I think what he is thinking of is that there is an alley too.

Mr. ALEXANDER. It wouldn't be accessible.

Mr. FOWLER. It would make it very difficult to get down into the basement from the alley.

Mr. ALEXANDER. All right, if Jack knows we're talking about "alley," as long as you distinguish between the alley and the ramp, so he can answer your question.

Mr. TONAHILL. He has always referred to it as a ramp.

Mr. RUBY. That's a ramp.

Mr. SPECTER. By "alley," we do not mean the ramp. We mean the entrance into the building.

Mr. TONAHILL. Now, you've got him squared away.

Mr. SPECTER. Fine. We want you to understand the question exactly.

Mr. HERNDON. The question will stand as is.

Mr. TONAHILL. Why don't you read the question?

Mr. HERNDON. Just leave the question as it is?

Mr. SPECTER. Leave it as it is.

Mr. HERNDON. The next question I'm going to ask, or one of the questions I will ask will be, "Did you walk past the guard at the time Lieutenant Pierce's car was parked on the exit?"

Mr. RUBY. Yes.

Mr. HERNDON. You said it was parked?

Mr. RUBY. Yes.

Mr. HERNDON. I think I'll put it "on the ramp exit" so it's perfectly clear, and I will repeat the question.

The question again, "Did you walk past the guard at the time Lieutenant Pierce's car was parked on the ramp exit?"

Mr. RUBY. Yes.

Mr. HERNDON. Now, the other questions here, "Did you talk with any Dallas police officers on Sunday, November 24, prior to shooting Oswald?"

Mr. RUBY. No.

Mr. HERNDON. Other questions I intend to ask on this next series, Mr. Ruby are: "Did you previously live in Chicago?"

Mr. RUBY. Yes.

Mr. HERNDON. "Are your parents alive?"

Mr. RUBY. No.

Mr. HERNDON. This next question, and you don't have to answer it now. You can answer it on the test. "Did you ever make a false insurance claim?"

Mr. RUBY. No.

Mr. HERNDON. You are a man in business and you would probably have insurance on perhaps your car, your personal life and your business?

Mr. RUBY. Yes.

Mr. HERNDON. I just wondered if you ever made a false insurance claim?

Mr. RUBY. No—I see what you mean—No, I have it on an automobile.

Mr. HERNDON. I put this question in here—I'm not sure, actually, but "Do you still operate the Carousel Club?"

Mr. RUBY. No.

Mr. HERNDON. You don't?

Mr. RUBY. No.

Mr. HERNDON. All right. The questions will be: "Do you still operate the Carousel Club? Were you on the sidewalk at the time Lieutenant Pierce's

car stopped on the ramp exit? Did you previously live in Chicago? Did you enter the jail by walking through an alleyway? Are your parents alive? Did you walk past the guard at the time Lieutenant Pierce's car was parked on the ramp exit? Did you ever make a false insurance claim? Did you talk with any Dallas police officers on Sunday, November 24, prior to the shooting of Oswald?"

Do you understand all those questions and can you answer them clearly and simply "Yes" or "No"?

Mr. RUBY. Yes.

Mr. ALEXANDER. Apparently this is series 5?

Mr. SPECTER. We called the last series, series 3a.

Mr. HERNDON. We will call this series 4, according to my records. Is that in sequence, Mr. Specter?

Mr. SPECTER. Yes; I believe it is.

Mr. HERNDON. I will proceed shortly then, gentlemen.

Mr. SPECTER. Mr. Tonahill and Mr. Alexander have now left the room.

Mr. HERNDON. Mr. Ruby, do you want to put both of your feet on the floor for me, sir, and look straight ahead at the wall, and relax until I get the instrument adjusted.

(Reporter's note: 4:35 p.m.)

Mr. HERNDON. All right, I will now put some pressure on the arm cuff, and I will tell you when I am going to start asking you questions, Mr. Ruby.

We will now begin.

(Reporter's note: 4:36 p.m.)

Mr. HERNDON. "Do you still operate the Carousel Club?"

Mr. RUBY. "No."

Mr. HERNDON. "Were you on the sidewalk at the time Lieutenant Pierce's car stopped on the ramp exit?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Did you previously live in Chicago?"

Mr. RUBY. "Yes."

Mr. HERNDON. Try to sit still, if you can.

Mr. RUBY. All right.

Mr. HERNDON. "Did you enter the jail by walking through an alleyway?"

Mr. RUBY. "No."

Mr. HERNDON. "Are your parents alive?"

Mr. RUBY. "No."

Mr. HERNDON. "Did you walk past the guard at the time Lieutenant Pierce's car was parked on the ramp exit?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Did you ever make a false insurance claim?"

Mr. RUBY. "No."

Mr. HERNDON. "Did you talk with any Dallas police officers on Sunday, November 24, prior to the shooting of Oswald?"

Mr. RUBY. "No."

Mr. HERNDON. That series is over. If you will sit still for a moment, Mr. Ruby. I will now release the pressure from your arms.

Mr. RUBY. Am I acting a little nervous?

Mr. HERNDON. A little, but I think you're getting a little bit tired. That's quite all right. I notice a little motion, but I will certainly take that into consideration when I evaluate and interpret these charts.

(Reporter's note: 4:40 p.m.)

Mr. HERNDON. Is there any area of doubt at all in your mind about that question where you were on the sidewalk at the time Lieutenant Pierce's car stopped at the ramp exit?

Mr. RUBY. I said I was on the sidewalk—I walked past.

Mr. HERNDON. Yes; did that question trouble you then?

Mr. RUBY. No.

Mr. HERNDON. You were on the sidewalk?

Mr. RUBY. Yes.

Mr. HERNDON. I just wanted to clarify that. When I asked you, “Are your parents alive?”, Mr. Ruby, have they been deceased for some time?

Mr. RUBY. Yes.

Mr. HERNDON. Did that question bother you or trouble you at all?

Mr. RUBY. No; I don’t know—I guess I’m nervous now—I don’t know just why I said that.

Mr. HERNDON. I have no further questions in that series.

Mr. RUBY. Aren’t you going to ask me whether I knew anything as to whether or not he was going to come down, or anything like that?

Mr. HERNDON. We will have to prepare some more questions.

Mr. SPECTER. May the record show that Mr. Alexander and Mr. Tonahill are now back in the room, and we are going to take a brief recess.

Mr. HERNDON. You’ve done very well thus far, Mr. Ruby, as far as cooperating on the examination.

Mr. RUBY. OK. What happens now?

Mr. HERNDON. We’re going to take a break and give you a little rest. Now, if you will just lean forward and raise your arms, I will take this equipment off of you.

Mr. RUBY. I’m not hungry, jailer.

Mr. HOLMAN. Do you want to go lie down?

Mr. RUBY. We only have a 20-minute break. That’s all.

Mr. HERNDON. Might I suggest to the jailer that you might like to sit at another chair and change your position?

Mr. RUBY. Yes.

(Reporter’s note: 4:45 p.m.)

(The proceedings were in recess at this time from 4:45 p.m. to 6:25 p.m.)

Mr. SPECTER. May the record now show that it is 6:25 p.m. and that we have adjourned for a period of 1 hour and 40 minutes, during which time Mr. Ruby has had an opportunity to rest. Is that correct, Mr. Ruby?

Mr. RUBY. Yes.

Mr. SPECTER. Mr. Ruby has just asked me about the presence of reporters downstairs, and would you get this in the record. Miss Oliver. Would you repeat what you just said to me, Mr. Ruby?

Mr. RUBY. Are you going to make any announcement to them?

Mr. SPECTER. Yes; and you asked me to speak freely about this matter?

Mr. RUBY. Yes.

Mr. SPECTER. My view is that we should, in view of the circumstances, as I have been told—there are a large number of reporters downstairs, and I've discussed this with Mr. Fowler and Mr. Tonahill, and it's our joint view that there should be an announcement made that you have requested a polygraph examination and that we have conducted one under the auspices of the President's Commission through the cooperation of the Federal Bureau of Investigation, that there has been extensive examination and the results, of course, cannot yet be known at this date, but they are to be taken to Washington and studied for future action by the Commission.

Mr. RUBY. Let's make it clear that Mr. Tonahill don't represent me. Joe, let's have that understanding?

Mr. TONAHILL. Clayton is going to make whatever announcement is made for you, Jack.

Mr. RUBY. Joe, let's have that understanding, will you please, Joe?

Mr. FOWLER. Jack, we'll have no difficulty with that, don't worry about that.

Mr. SPECTER. The substance of what I just said was discussed by me with Mr. Fowler and it is our thought that that would be an appropriate statement to make at this particular time. That's about as far as we can go. Do you concur in the advisability of that?

Mr. RUBY. Now, with reference to hedging on questions and so on, don't you think some comment should be made that I wasn't reluctant in answering any of the questions that were put to me?

Mr. SPECTER. I think that would be a fair comment to make, if you want that statement made?

Mr. RUBY. Yes; I think so.

Mr. ALEXANDER. That there was cooperation. That he was cooperative.

Mr. SPECTER. Yes; that he was cooperative.

Mr. RUBY. On all questions on anything and everything pertaining to anything.

Mr. SPECTER. Mr. Ruby, in view of your interest in that disclosure, I think that would be appropriate to be made.

Mr. ALEXANDER. That without reservation, he cooperated fully.

Mr. RUBY. I wanted to be more specific, that I wanted to be asked.

Mr. SPECTER. Well, I said that initially. In other words, that it is at your request that we had conducted this, so that it would be clear that you took the lead in initiating this examination, which is the fact, and we will state the fact or give you the credit in that direction, just as it is the fact.

Mr. RUBY. But the point I wanted to bring out was that I wanted to specify that I also wanted to be asked any and all questions, regardless of what might be subversive or whatever thoughts might be in your mind.

Bill, I think you can give these people certain questions and more potent ones than they know, because you probably know a lot of things that you have in your own mind that you'd like to have answered too?

Mr. FOWLER. Well, Jack, let me say this for your purpose and for the purpose of the Warren Commission. This is not a trial and really, Mr. Alexander is here as an attorney just like I am. He's representing the State just as Mr. Tonahill and I are representing you.

Mr. RUBY. Yes.

Mr. ALEXANDER. Jack, I can't really think of anything that I'd like to ask.

Mr. RUBY. Well, let me get this clear. I notice that the pictures brought out the fact that there are two sets of private boxes, close together in the post office. Did you gentlemen know this? Which is quite an insinuation.

Mr. ALEXANDER. Jack, let's ask the question, "Did you meet Oswald at the post office at any time, as far as you know, until the next day?"

Mr. RUBY. Yes—and also they had a statement in there that I used the box for purpose of mail orders and to do business with Mexico and Cuba. That's incorrect because I never did business with Mexico and Cuba.

Now, these are things that you gentlemen don't want to ask me, but Mr. Alexander would know what to tell you about that.

Mr. ALEXANDER. There is one question that ought to be asked.

Mr. SPECTER. I want that, Bill.

Mr. ALEXANDER. "Did any Cuban or foreign influence cause you to do any act?"

Mr. RUBY. Very good—very good.

Mr. ALEXANDER. Because there has been some question about maybe Jack was motivated from Cuba and we ought to eliminate that and ask him a question to give him a chance to eliminate it.

Mr. RUBY. Also, I want to get the gun situation straightened out. You know what I'm talking about—the Ray Brantley call.

Mr. ALEXANDER. Yes.

Mr. RUBY. And the trip down to Cuba—I'm getting things confused now.

Mr. ALEXANDER. Let's let him write that.

Mr. SPECTER. Mr. Ruby, we have conferred with all parties here on the substance of the questions to be asked. Naturally, we have limitations in time and we can only ask them in a short series. We have conferred with Mr. Fowler, we have conferred with Mr. Wade and with Mr. Alexander here, and naturally also, the interest of the Commission is paramount, and we are doing our very best not to interfere with the State criminal proceedings. We do not wish to take sides at all nor to influence it in any way. We want to

accomplish the purpose of the Commission. Those interests overlap to some extent because whenever we ask a Commission question, it has collateral bearings on a great many things, but to the extent that we can, we have conferred, as I say, with the defense counsel and the representatives of the district attorney's office in arriving at the questions which have been asked, and I think we will cover before this examination is concluded the important areas. Now, at the end of it, if you feel that there is some other area that you would like to have covered, we would be very willing to hear your request and to accommodate you to the maximum extent possible consistent with the policy of the Commission.

Mr. RUBY. Mr. Alexander knows certain questions that he has in his mind that haven't come out and I think I know what he's thinking about.

Mr. SPECTER. Well, Mr. Alexander has talked to me about some questions that I'm sure he would prefer on the record and we have taken those into account in formulating our questions. Isn't that so, Mr. Alexander?

Mr. ALEXANDER. Yes, sir. I think what Jack has in mind is that he wants an opportunity to answer a question regarding any possible connection with anything in Cuba. Also, he wants a question asked that will give him an opportunity to explain that the gun which he asked Ray Brantley to mail to McWillie in Las Vegas——

Mr. RUBY. Not to Vegas, to Cuba, and all I did was to receive a phone call, and this was—I told this to the Warren Commission—and this was during the time when we were very friendly together.

Mr. ALEXANDER. That was in 1958.

Mr. RUBY. All I did was relay the phone message to Ray Brantley, and he said, "Oh, I know Mr. McWillie very well," and following that I never followed up or seen him. Now, this is incriminating for me because all I did—like a tool—got myself involved by relating a message that somebody else wanted. Now, this was during peacetime because he wanted protection from the foreign element coming in.

Mr. ALEXANDER. Jack relayed the message that McWillie wanted a Smith & Wesson or some kind of a .38.

Mr. RUBY. Yes. There wasn't no money or anything in the deal. Ray Brantley said, "Oh, I know McWillie. I've done business with him constantly." Following that—I never followed up on it a time, and what he did—and this is incriminating against me very bad, but he had the irony to do this—when I mentioned the fact that I did call Ray Brantley, this man denied that I called him. That makes me a liar to that extent, so I want that question put to me in reference to Ray Brantley and all that and I want about my trip to Cuba and my association with the underworld.

Mr. SPECTER. Well, the question of the gun with Ray Brantley was covered in detail when the Chief Justice was here and we shall cover that in the balance of the polygraph examination.

Mr. RUBY. I also had numerous phone calls, long-distance calls, all over the country and that was with relationship only to my nightclub that I had trouble with the union. There was no conspiracy, but you'll go into that.

Mr. SPECTER. You covered that also in your testimony before the Commission.

Mr. RUBY. Yes; but that doesn't prove anything.

Mr. ALEXANDER. Let me suggest one question there to ask him?

Mr. SPECTER. Yes, sir.

Mr. ALEXANDER. "Did any telephone call you made have any connection, however remote, with your shooting of Oswald?"

Mr. RUBY. No.

Mr. ALEXANDER. That will cover it.

Mr. TONAHILL. How about asking him if he didn't tell the Warren Commission the truth several weeks ago in answering every question they asked him?

Mr. RUBY. I didn't elaborate enough with them and we didn't go into it enough, because I was telling a complete story. Yes; I'll answer that—certainly I will.

Mr. SPECTER. Fine; that will be asked of you.

Mr. HERNDON. That will be somewhat all inclusive.

Mr. SPECTER. We'll have that for the very next series.

Mr. ALEXANDER. "Did you have any telephone conversation which related in any way with the shooting of Oswald?"

Mr. RUBY. Also, ask me whether the phone calls were in reference to the union trying to get somebody to help me with my club.

Mr. ALEXANDER. Let's make another question about that. "Did any union or underworld connection have anything to do with the shooting of Oswald?"

Mr. RUBY. Very good.

Mr. SPECTER. Yes; I will add those in and cover them to the maximum extent possible, and I add that reservation because there are a great many additional questions to be asked which we have already mapped out.

Mr. HERNDON. Do you want me to proceed with the usual preliminaries?

Mr. RUBY. You don't have to proceed with that. Why don't you just call them to me and I'll answer them. You want to go through a formality—a previous thing.

Mr. ALEXANDER. Jack, he's got to have a record.

Mr. HERNDON. I want to make sure you understand the question involved.

Mr. RUBY. I'm sure I do.

Mr. HERNDON. I feel in fairness to both of us, we have to do this.

Mr. RUBY. Believe me—believe me, you don't have to go through that formality, if you want to save yourself a lot of time, and I think you'll like that better.

Mr. ALEXANDER. Jack, he has to have a written question that's keyed to this tape.

Mr. RUBY. Yes; I follow that, but he doesn't have to go through the preliminary explaining to me this because I'll answer anything you want "off the hook."

Mr. SPECTER. Mr. Ruby, we appreciate your willingness to do that and we'll take you up on that to the fullest extent possible, but Mr. Herndon has to do some preliminary questioning which is indispensable to his evaluation.

Mr. RUBY. All right, get him to minimize it if he can.

Mr. SPECTER. He will bear that in mind and minimize it to the fullest extent.

Mr. HERNDON. Are you ready?

Mr. SPECTER. Yes.

Mr. HERNDON. Then, these gentlemen actually will not be aware of the questions, is that all right with you, I mean—prior to the time they leave? I believe we discussed that previously and I did want to mention it, that it would be so important when the questions would be asked.

Mr. ALEXANDER. Not to me, Jack.

Mr. RUBY. I see—about your being aware of the question.

Mr. HERNDON. Mr. Specter, you recall, previously—one of the reasons I was going over all the questions before actually conducting the examination was in order for these gentlemen that are in attendance to be aware of what questions are going to be asked Mr. Ruby during the actual polygraph examination. Now, if we dispense with that before we go over these questions, if they leave the room, they do not know the questions I'm going to ask him.

Mr. ALEXANDER. I don't think Jack has any objection to us staying here at this time, do you, Jack?

Mr. RUBY. No; I certainly don't.

Mr. FOWLER. Well, of course, I still have the same objection, and respectfully request again, Jack, that we're not trying to hide anything—don't misunderstand me.

Mr. RUBY. Just a minute—let me tell you something. I want to straighten up some things. Whether he leaves the room or not, Mr. Alexander is going to know everything that went on here, so please concede to it.

Mr. FOWLER. Well, I'll concede to this, that at sometime he will know, but I'm saying this—that perhaps there might be something, Jack, that might in some way be to your detriment if Mr. Alexander knew the answer to the question at this time. Now, he may say “No,” but I still, as your attorney and in trying to protect your rights, insist that it be handled in this way, and I would certainly appreciate your cooperation with me to that extent.

Mr. RUBY. The only reason I want Mr. Alexander here, I want him to know my effectiveness when I answer the questions.

Mr. FOWLER. Jack, that's very well, and I don't think he has any doubt that you're trying to hide it and all of that.

Mr. SPECTER. Then, let us proceed as we have before, with Mr. Herndon announcing the questions in advance but going through a minimum amount of preliminaries so that he is satisfied that he can evaluate the results.

Mr. RUBY. Yes.

Mr. SPECTER. And we will proceed on that basis.

Mr. RUBY. You can run through them a lot faster and I'll grasp them.

Mr. HERNDON. All right; I will proceed in that manner and also with the questions we have already set forth.

Mr. SPECTER. Yes; and then we'll supplement them to cover the additional topics which have not yet been included.

Mr. HERNDON. All right, Mr. Ruby, do you feel all right to continue with this?

Mr. RUBY. Yes; I am ready.

Mr. HERNDON. Very fine. I will hook this up and go over these questions and I'll just read them out to you and you just speak up if there is one you want to rephrase.

Mr. RUBY. Go ahead.

Mr. HERNDON. “Did you see the armored truck before you went to the basement?”

Mr. RUBY. No.

Mr. HERNDON. "Did you enter the police department through a door at the rear on the east side of the jail?"

Mr. RUBY. No.

Mr. HERNDON. "After talking to Little Lynn, did you hear any announcement that Oswald was about to be moved?"

Mr. RUBY. No.

Mr. HERNDON. "Before you left your apartment Sunday morning, did anyone tell you the armored car was on the way to the police department?"

Mr. RUBY. No.

Mr. HERNDON. Those are your main questions, and I will ask you some of these other routine questions.

Mr. RUBY. All right; go ahead.

Mr. HERNDON. "Do you have any brothers?"

Mr. RUBY. Yes.

Mr. HERNDON. "Do you have any sisters?"

Mr. RUBY. Yes.

Mr. HERNDON. "Have you answered all questions truthfully?"

Mr. RUBY. Yes.

Mr. HERNDON. Now, here's a question I want to go over with you very carefully. "Did you ever hit anyone with any kind of weapon?"

Mr. RUBY. Yes.

Mr. HERNDON. All right; I'll give you an opportunity now to explain that to me. This is for my purposes of the examination.

Mr. RUBY. Well, in running a—in my business, when you get somebody with a—it's a very exciting business. One particular night a man pulled a knife on me and I took a pistol and hit him on the head in that altercation, and sometimes you get fellows with real bad rough reputations. They're real toughs. There's no question about it, and being in my type of business for a livelihood, the only way you can—of course, I do call the law enforcement officers. At that particular moment, it's my life or theirs, and some of these

men are pretty powerful physically, and I fought in every way possible, with my fists and everything else—but to minimize the various troubles I had, where there would be an altercation or something come up, I'd tell them to leave, and of course, something would happen and they would go from here—whatever it is. It happened a few times where I would pummel a few of these men.

Mr. HERNDON. I understand, Mr. Ruby, but all of these incidents that you recall are in connection with your operating this club?

Mr. RUBY. Yes; they are at the club. These boys are real bad boys and they all have records, and they're pretty tough guys. Will you agree with something on that?

Mr. ALEXANDER. That's right.

Mr. HERNDON. Then, on the actual test. I'm going to ask you this question: "Other than what you've told me, did you ever hit anyone with any kind of weapon?"

Mr. RUBY. I don't follow—"Other than what you've told me?"

Mr. HERNDON. In other words, other than your being the owner of a nightclub, which because of the type of customers you occasionally have, you would have to use some force, perhaps hit a customer or hit someone in your club?

Mr. RUBY. Yes.

Mr. HERNDON. Have you ever been involved in any other situation where you actually struck at somebody with a weapon? "Weapon" here I'm referring to as a gun, club, or knife or anything that would be other than just a normal fist-fight.

Mr. RUBY. Yes; that happened, but that was before I got in this trouble. This man threatened to kill me and was going to go for his gun, and I was nice enough to have him stay at my place and he was causing a nuisance in the vicinity of the club, causing brawls and all that and I tried to reprimand him, and a little boy of Italian descent and very gracious, somehow he got very belligerent with me, and I knew he had a car and he said, "I'm going to get my pistol," and there's a funny reaction about that. Once they get you cowered to that extent, then you're doomed, and there's a funny feeling,

when I was with him, that you have with them. So, I got my pistol and I cornered him and I called him by his name and I called him a name, and I said, “You’re going to kill me, you so-and-so?” Finally he said, “I was only kidding, I was only kidding,” and there’s a certain reaction you have and I can’t explain it. That’s the only time any crime of that sort has ever happened outside of my business.

Mr. HERNDON. Outside of your business?

Mr. RUBY. Yes, sir.

Mr. HERNDON. Then, if I asked you whether or not you told me you ever hit anyone with any kind of weapon, unless something else comes up to your mind, you would answer that “Yes”?

Mr. RUBY. Yes, like if I was a goon or something.

Mr. HERNDON. Yes, a union goon.

Mr. RUBY. A union goon. Right. I haven’t been a slugger or anything like that.

Mr. HERNDON. All right, we can go along here Mr. Ruby, and I will hook up the instrument.

(Reporter’s note: 6:43 p.m.)

Mr. HERNDON. Will you raise your arms, Mr. Ruby, please? Do you feel comfortable?

Mr. RUBY. Yes.

Mr. HERNDON. Now, lean back. [Attached instruments to Mr. Ruby.]

Mr. RUBY. Have I been evading any of your questions?

Mr. HERNDON. You have been most cooperative—thus far no problems.

Mr. RUBY. But you can’t tell how I stand, can you?

Mr. HERNDON. Mr. Ruby, I will want to take a considerable amount of time to review these charts very thoroughly before I come to any conclusion.

Mr. RUBY. How long would it take—how long will it take?

Mr. HERNDON. Well, I can't answer that question with a definite answer. It depends on what I may run into when I study these very carefully back in Washington.

Mr. RUBY. Bill, will I still be around when the answers come back?

Mr. ALEXANDER. Yes.

Mr. RUBY. Raise your right hand and give him your word.

Mr. ALEXANDER. That's right.

Mr. RUBY. Chief, you heard him, did you not, Chief? [Addressing the Chief Jailer Holman.] You and I should live so long.

Mr. HERNDON. Is that comfortable, Mr. Ruby?

Mr. RUBY. Yes.

Mr. HERNDON. Now, I'm not going to ask the questions at this time, I'm just going to readjust the instruments.

Mr. TONAHILL. Let's go, Bill.

Mr. SPECTER. Let the record show that Mr. Alexander and Mr. Tonahill have left the room.

Mr. HERNDON. Do you want to cough, Mr. Ruby?

Mr. RUBY. You want me to?

Mr. HERNDON. Yes.

(Mr. Ruby coughed at this time.)

Mr. HERNDON. All right, are you about ready to begin with this one?

Mr. RUBY. Yes.

Mr. HERNDON. Once again, just repeating instructions, if you will uncross your legs, sir, and put your feet flat on the floor and look straight ahead and answer the questions truthfully "Yes" or "No."

This will be series No. 5. I will let you know when the test will begin. Is there a little pressure on the arm cuff?

Mr. RUBY. Yes.

Mr. HERNDON. Now, Mr. Ruby, look straight ahead. That's fine. Now, just look straight ahead and try not to move, and the test will begin.

(Reporter's note: 6:45 p.m.)

Mr. HERNDON. "Is your last name Ruby?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Did you see the armored car before it entered the basement?"

Mr. RUBY. "No."

Mr. HERNDON. "Do you have any brothers?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Did you enter the police department through a door at the rear on the east side of the jail?"

Mr. RUBY. "No."

Mr. HERNDON. "Do you have any sisters?"

Mr. RUBY. "Yes."

Mr. HERNDON. "After talking to Little Lynn did you hear any announcement that Oswald was about to be moved?"

Mr. RUBY. "No."

Mr. HERNDON. "Other than what you've told me, did you ever hit anyone with any kind of weapon?"

Mr. RUBY. I don't know how to answer that.

Mr. HERNDON. All right, just sit still and relax, sir.

Mr. RUBY. Ask me that again—I got the answer.

Mr. HERNDON. "Other than what you've told me, did you ever hit anyone with any kind of weapon?"

Mr. RUBY. "No."

Mr. HERNDON. "Before you left your apartment Sunday morning, did anyone tell you the armored car was on the way to the police department?"

Mr. RUBY. "No."

Mr. HERNDON. "Have you answered all questions truthfully?"

Mr. RUBY. "Yes."

Mr. HERNDON. All right, that test is over. Just sit still for a moment, and I will now release the pressure on your arm. You can move you left arm and relax.

(Reporter's note: 6:50 p.m.)

Mr. HERNDON. I'm sorry if I gave you any problem on that question.

Mr. RUBY. Yes, because it threw me off again.

Mr. HERNDON. All right, we'll just go over it again as a matter of record. I asked you there, "Other than what you've told me, did you ever hit anyone with any kind of weapon," and you explained that at two different times and that once it was in the club with some people and customers, and another time it was outside the club, and when we bring out other than those, was there any other time you hit anybody with a weapon?

Mr. RUBY. Yes.

Mr. HERNDON. You don't recall any other time, is that correct, Mr. Ruby?

Mr. RUBY. Yes. I thought I said two of them—and I thought it meant with my fists.

Mr. HERNDON. Well, I meant with a weapon, when you actually hit someone with an implement in your hand.

Mr. RUBY. You thought I was feminine, didn't you, Chief? Why did you lock me up in that tank? [Addressing Chief Jailer Holman.]

Mr. HERNDON. Mr. Ruby, when I asked you, "Do you have any sisters?" I asked that in the plural—you have more than one sister?

Mr. RUBY. Yes.

Mr. HERNDON. You have several sisters?

Mr. RUBY. Yes.

Mr. HERNDON. How many sisters do you have?

Mr. RUBY. Four.

Mr. HERNDON. Did anything in particular come to your mind when I asked you that question?

Mr. RUBY. No—not like that other question.

Mr. HERNDON. What question?

Mr. RUBY. The one about "Have you ever been married?"

Mr. HERNDON. Yes, I recall.

Mr. RUBY. Do I sound like a man with an unsound mind to you?

Mr. HERNDON. As I said before, Mr. Ruby, I'm not qualified to answer that question.

Mr. RUBY. Oh—oh.

Mr. HERNDON. You have been cooperative as far as answering my questions and proceeding with the examination.

(At this point Mr. Specter left the room and shortly thereafter Messrs. Alexander and Tonahill returned to the room.)

Mr. HERNDON. We can proceed and move pretty fast as soon as Mr. Specter comes back. Just sit and relax. Would you like me to take any of these things off?

Mr. RUBY. No, no.

Mr. HERNDON. Are you comfortable?

Mr. RUBY. You're not going to ask me any more questions? Do you want to go through that stuff there?

Mr. HERNDON. I think I had better wait for Mr. Specter to be here. I don't want to proceed without him. Can I get you a drink of water?

Mr. RUBY. No. Can we talk about certain things?

Mr. HERNDON. I suggest you wait until Mr. Specter returns.

Mr. RUBY. Is there anything on your mind, Bill, off the record?

Mr. ALEXANDER. I think with that Cuban thing cleared up and with an opportunity to answer a question on that——

Mr. RUBY. How about the underworld?

Mr. ALEXANDER. Well, he's going to ask you that, if he hasn't already.

Mr. RUBY. There were a lot of phone calls, as you recall. I'm sure you know that and there should be a specific way to ask me—"What was the purpose of all those calls?"

Mr. ALEXANDER. Well, you see, that wouldn't record on the machine. The question would have to be, "Did any telephone calls have any connection with the shooting of Oswald?"

Mr. RUBY. Yes, but still, when you have so many calls, you still want to know why you called people.

Mr. ALEXANDER. Well, all your telephone calls were either business or personal, weren't they?

Mr. RUBY. That's right, and the other question you asked about Oswald—you know?

Mr. ALEXANDER. "Did any of these calls have any connection with the shooting of Oswald?"

Mr. RUBY. No. How about my trip to Havana?

Mr. ALEXANDER. Has that been asked yet?

Mr. HERNDON. That hasn't been asked.

Mr. ALEXANDER. "Did your trip to Havana have any connection with the shooting of Oswald, however remote?"

Mr. RUBY. Have I ever had any business dealings—I want them to know my relationship.

Mr. ALEXANDER. "Have you ever had any political or business connection with Castro or Cuba?"

Mr. RUBY. That's a good question. Or, why did I make that trip to Havana?

Mr. ALEXANDER. "Was your trip to Havana personal or business?" I think that's overlapping that Cuban deal.

Mr. RUBY. Yes, but here's the thing. When people ask me—they say, "Jack, you went to Havana, Cuba" and I say, "I went there for a vacation." They say, "How long did you stay?" When I say, "8 days,"—you somehow have got to answer specifically that it was a vacation, because a person can be very evasive and say he went for a vacation but yet had other dealings there.

Mr. ALEXANDER. "Was your trip to Havana purely for vacation and pleasure?"

Mr. RUBY. That's right.

Mr. ALEXANDER. Jack, my memory is just vague—you've never been to Mexico?

Mr. RUBY. I never have been to Mexico, but Bill, you know a lot of questions to ask me, I'm sure you know, that I'd like to get cleared up.

Mr. ALEXANDER. Well, you never have been interested in politics, as far as I know?

Mr. RUBY. What I was doing down at that News Building—what was I doing down there Friday—I want that question asked.

(At this point Mr. Specter returned to the room.)

Mr. TONAHILL. That's kind of a belabored question, Jack?

Mr. RUBY. Joe, you don't believe that.

COURT REPORTER. I want to be sure I heard Mr. Ruby's answer to Mr. Alexander's question a little while ago?

Mr. RUBY. You want to hear that again?

COURT REPORTER. I didn't quite hear your answer to Mr. Alexander's question, "Did any of these calls have any connection with the shooting of Oswald?"

Mr. RUBY. Oh, you're taking down what I'm saying? I didn't know you were taking that down.

Mr. SPECTER. Yes; we're taking everything down.

Mr. RUBY. Oh—well, give me the question again.

COURT REPORTER. This was when Mr. Alexander asked you, "Did any of these calls have any connection with the shooting of Oswald?" and what was your answer to that question?

Mr. RUBY. No.

COURT REPORTER. Thank you.

Mr. RUBY. Are you putting down the questions I've been asking myself?

COURT REPORTER. Yes; everything you've been saying.

Mr. RUBY. Voluntarily—correct?

COURT REPORTER. Oh, yes. Just like you say them.

Mr. RUBY. Okay.

Mr. SPECTER. We are putting it down in the record, Mr. Ruby, just like you're saying it.

Odell, can you bring me up-to-date, I've been out of the room.

COURT REPORTER. Mr. Alexander has been asking him certain questions that might be asked about——

Mr. RUBY. About that Havana, Cuba trip.

COURT REPORTER. And had he been to Mexico, and had he been in politics, and Mr. Alexander said to his knowledge he had not been interested in politics, and the purpose of his trip to Cuba, whether it was for business or pleasure, and I believe that is what was covered.

Mr. RUBY. The most important question—you haven't asked me yet—why did I shoot Oswald?

Mr. ALEXANDER. Jack, they can't ask that kind of question for this machine. They can only ask you—was it for a certain purpose. It has to be a “Yes” or “No” answer.

Mr. RUBY. The point is—if I was carried away emotionally, and because I felt that, it sounds so unbelievable. Why shouldn't I be asked a question—why—what motivated me to do it?

Mr. SPECTER. Mr. Ruby, answer now the question, “Why did you shoot Oswald?” and then we will turn that around into a question to ask you for a “Yes” or “No” answer.

Mr. RUBY. At the particular moment, after watching television all that——

Mr. FOWLER. Jack, let me interject right now, again, as your attorney—I advise you not to answer this question.

Mr. RUBY. Clayton, I'm sorry, I've got to answer it. I've got to, because, believe me, it means an awful lot to me. I didn't want—I felt so carried away—that at that particular time of the great tragedy, I felt

somehow in my little bit of a way I could save Mrs. Kennedy the ordeal of coming back for trial here.

Mr. SPECTER. All right, fine, Mr. Ruby. That's the same answer to that general question that you gave when the Commission heard your testimony, and we shall phrase that in an appropriate question for the polygraph examination. Now, will you proceed, Mr. Herndon, with our next series, please?

Mr. HERNDON. Do you want me to rehearse the ones that are prepared?

Mr. SPECTER. Yes; just our prepared series, and we will take these in a sequence and we will cover everything else later.

Mr. HERNDON. All right, I'll go over these for you again, Mr. Ruby, so that you understand the intent of the question and what it means.

"Did you get a Wall Street Journal at Southwestern Drug Store during the week before the assassination?"

Mr. RUBY. No.

Mr. HERNDON. "Was the Wall Street Journal addressed to a Mr. Bradshaw?"

Mr. RUBY. I don't know.

Mr. HERNDON. Well, that one, we're going to have to rephrase. "Do you know if the Wall Street Journal was addressed to Mr. Bradshaw?"

Mr. RUBY. I haven't read a Wall Street Journal in the longest time—in years, probably.

Mr. HERNDON. Do you wish to keep that question in, Mr. Specter?

Mr. TONAHILL. Jack, was there a man named Bradshaw, your landlord?

Mr. RUBY. No; Houston Nichols was my landlord, but I know a Bradshaw. He used to be in the pinball game machine business.

Mr. TONAHILL. A jukebox man?

Mr. RUBY. Yes; everybody knows him.

Mr. SPECTER. What is his first name, Mr. Ruby?

Mr. RUBY. I don't know, but he owned a liquor store and he's a pretty successful businessman.

Mr. SPECTER. Was a Wall Street Journal addressed to Mr. J. E. Bradshaw, dated November 16, 1963, in your car at any time?

Mr. RUBY. No, sir.

Mr. SPECTER. Have you ever heard of any such Wall Street Journal having been found in your car?

Mr. RUBY. No.

Mr. SPECTER. We will rephrase that question too. Let's try this: "Do you have any knowledge of a Wall Street Journal addressed to Mr. J. E. Bradshaw being found in your car?"

Mr. RUBY. No; did they find one somewhere in my car?

Mr. SPECTER. Proceed, please, Mr. Herndon.

Mr. HERNDON. "Did you or any of your friends telephone the FBI in Dallas between 2 or 3 a.m. Sunday morning?"

Mr. RUBY. How could I—I was incarcerated? Oh, Sunday morning?

Mr. HERNDON. Some people might refer to that as Saturday night.

Mr. RUBY. I don't know. I know I went to bed about 1:30, so I can't answer that.

Mr. SPECTER. Make that "To your knowledge"——

Mr. RUBY. No.

Mr. SPECTER. "To your knowledge, did any of your friends"—do so and so?

Mr. HERNDON. I think in that way you should be able to answer "Yes" or "No".

"Did you or any of your friends telephone the sheriff's office between 2 or 3 a.m. Sunday morning?"

Mr. RUBY. No.

Mr. HERNDON. Again, I can rephrase that—"To your knowledge—" if you wish?

Mr. SPECTER. Make it—"Did you or any of your friends, to your knowledge, phone the sheriff's office?"

Mr. RUBY. No.

Mr. HERNDON. And then, some of these questions I will ask you again here, such as, "Did you previously live in San Francisco?"

Mr. RUBY. Yes.

Mr. HERNDON. I understand you did.

I'm going to ask you this question, which will help me, and that is, "In your dealings, Mr. Ruby, as a nightclub operator, at any time have you ever overcharged a customer?" I assume there are some times when you probably are at the cash register, is that correct, and you are handling the transaction of money with customers or with the bills.

Mr. RUBY. No.

Mr. HERNDON. You understand what I mean by "overcharge"?

Mr. RUBY. We have a very lucrative business in champagne there, the kind of business that—Bill Alexander knows about it—they get merchandise received for what they get. It's quite lucrative and that's one way you can survive, I guess.

Mr. HERNDON. I'll just simply ask the question, "Did you ever overcharge a customer?"

Mr. RUBY. No.

Mr. HERNDON. I'll probably ask you questions for your identity, like "Is your name Jack Ruby?" at the beginning of these series.

Mr. RUBY. Yes.

Mr. HERNDON. Let's see, gentlemen, I believe we've gone over all these questions, and I'm going to ask you also as a matter of record on the test—are you tired?

Mr. RUBY. No; as a matter of fact, I'm feeling my best right now.

Mr. HERNDON. You feel all right.

Those are the questions we're going to ask.

(Reporter's note: 7:05 p.m.)

Mr. SPECTER. Let the record show that Mr. Alexander and Mr. Tonahill left the room.

Mr. HERNDON. All right, Mr. Ruby, I'll get this machine to going again, and we will get started on series No. 6. Mr. Ruby, could you sit up a little straighter? When you slouch over like that, I'm not getting the tracing I want on the reading. Now, that's much better. [At this time Mr. Herndon snapped his fingers.] Look straight ahead again, Mr. Ruby.

Mr. RUBY. All right.

Mr. HERNDON. I will let you know when I'm going to start the test, and if you will answer the questions again, simply and truthfully, "Yes" or "No."

If I come to any one of these that you feel like you are not sure how to answer it and you don't want to answer it "Yes" or "No," once again just refrain from talking and we will discuss the question at the end of the series.

Mr. RUBY. All right. I'll remain silent, huh?

Mr. HERNDON. Yes; remain silent.

(Reporter's note: 7:08 p.m.)

Mr. HERNDON. The test will now begin.

"Is your name Jack Ruby?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Did you get a Wall Street Journal at the Southwestern Drug Store during the week before the assassination?"

Mr. RUBY. "No."

Mr. HERNDON. "Are you tired?"

Mr. RUBY. "No."

Mr. HERNDON. "Do you have any knowledge of a Wall Street Journal addressed to Mr. J. E. Bradshaw?"

Mr. RUBY. "No."

Mr. HERNDON. "Did you previously live in San Francisco?"

Mr. RUBY. "Yes."

Mr. HERNDON. "To your knowledge, did any of your friends or did you telephone the FBI in Dallas between 2 or 3 a.m. Sunday morning?"

Mr. RUBY. "No."

Mr. HERNDON. "Did you ever overcharge a customer?"

Mr. RUBY. "No."

Mr. HERNDON. "Did you or any of your friends to your knowledge telephone the sheriff's office between 2 or 3 a.m. Sunday morning?"

Mr. RUBY. "No."

Mr. HERNDON. I think that series is over and I will release the pressure.

(Reporter's note: 7:10 p.m.)

Mr. RUBY. Are they that important—those questions? I know more important ones than that. Of course—I'm kidding.

Mr. HERNDON. We have some more coming.

Mr. Ruby, has a customer by any chance ever claimed that they were overcharged at your place? Have you ever had any problems along that line?

Mr. RUBY. Oh, yes—we have problems with waitresses and big bills.

Mr. HERNDON. Other than what you told us about the Wall Street Journal, is there anything else that came to your mind with regard to this Wall Street Journal question?

Mr. RUBY. As a matter of fact, the question you asked me is so foreign to me——

Mr. HERNDON. In other words, you are completely unaware of the Wall Street Journal situation?

Mr. RUBY. I don't know how it ever came to be there.

Mr. HERNDON. That completes that series.

(Reporter's note: 7:12 p.m.)

Mr. SPECTER. Let the record show that Mr. Tonahill and Mr. Alexander returned to the room.

Would you now proceed, Mr. Herndon, to the next series, and we'll go through those as rapidly as you can.

Mr. HERNDON. Mr. Ruby. I'll just read these right down the line, and if you have any question, then interrupt me. Otherwise, I'll just keep going.

Mr. RUBY. All right.

Mr. HERNDON. "Do you intend to answer the questions truthfully?"

Mr. RUBY (no response).

Mr. HERNDON. "Did you go to the Dallas police station at any time on Friday, November 22, 1963, before you went to the synagogue?"

Mr. RUBY. No.

Mr. HERNDON. "Do you attend the synagogue regularly?"

Mr. RUBY. No—not of late, because of my businesses and my sister was ill and I had to help at both places—I had to run both places.

Mr. HERNDON. All right, If you feel it is proper, you can answer that question.

Mr. RUBY. This was a special occasion, this Friday night—I wanted to go there because of this tragedy happening.

Mr. HERNDON. Very fine. The way I mean that question is—do you attend the synagogue regularly and at every usual service?

Mr. RUBY. Well, yes—on high holidays and when my father passed away, I went there consistently for 11 months; morning and evening.

Mr. HERNDON. "Did you go to the synagogue that Friday night?" Now, "that Friday night"—you know the night we're talking about?

Mr. RUBY. Friday night.

Mr. HERNDON. The night of the assassination?

Mr. RUBY. Yes.

Mr. HERNDON. I'm going to ask you this question—it's simple and short: "Do you pray?"

Mr. RUBY. Not now, because it's hopeless. I did.

Mr. HERNDON. You can answer it "Yes" or "No" when the question comes.

Mr. RUBY. Pardon me—I take it back—I do pray. I say certain prayers.

Mr. HERNDON. "Did you see Oswald in the Dallas jail on a Friday night?"

Mr. RUBY. Yes.

Mr. HERNDON. "Were you at one time employed by a union?"

Mr. RUBY. Yes.

Mr. HERNDON. "Did you have a gun with you when you went to the Friday midnight press conference?"

Mr. RUBY. Let's have that again?

Mr. HERNDON. "Did you have a gun with you when you went to the Friday midnight press conference?"

Mr. RUBY. You mean at the police station? No.

Mr. HERNDON. Just so we have it clear—what we mean here is——

Mr. RUBY. You mean in my possession?

Mr. HERNDON. Yes.

Mr. SPECTER. Could you insert in there—"at the jail"—"did you have a gun with you when you went to the Friday midnight press conference at the jail?"

Mr. ALEXANDER. If you put it in his car or on his person, I think he can answer it better.

Mr. RUBY. No—because I recall when I first said I did, and then I changed it later.

Mr. HERNDON. Mr. Ruby, so you understand what I mean when I say “Did you have a gun with you?” I mean on the person.

I’m going to ask this question which one of the gentlemen recommended, and it is, “Have you told the Warren Commission the entire truth?”

Mr. RUBY. Yes; and I may have left out certain things because I was a little—I wasn’t as calm as I am now, so in reality, certain things I could have said, I’m sure in my frame of mind now I would be able to do it better, but I told the truth at the time.

Mr. SPECTER. Perhaps we could rephrase it and say, “Is everything you told the Warren Commission the truth?”

Mr. RUBY. Yes; I can say that.

Mr. HERNDON. The question will be then, as Mr. Specter put it, “Is everything you told the Warren Commission the entire truth?”

Mr. RUBY. Yes, sir.

Mr. HERNDON. Any questions, Mr. Ruby?

Mr. RUBY. No.

Mr. HERNDON. Fine; I will proceed.

(Reporter’s note: 7:15 p.m.)

Mr. HERNDON. For the record, this will be series No. 7.

Mr. SPECTER. Mr. Alexander and Mr. Tonahill have now left the room.

Mr. RUBY. I wonder why Mr. Tonahill is here. He’s not my attorney. Clayton, is Joe Tonahill representing me?

Mr. FOWLER. Well Jack, in some capacity, I think he is still involved.

Mr. RUBY. Well—yes and no.

Mr. FOWLER. But please don’t worry about it at this time. He is here.

Mr. HERNDON. Mr. Ruby, do you mind if I tighten the rubber tube on your chest just a slight bit more?

Mr. RUBY. Make it as tight as you want it. I want to get it right.

Mr. HERNDON. No; I don't want to make it too tight, I want to make it comfortable.

Mr. RUBY (addressing Mr. Holman). Are you coming to work tomorrow? I don't know where you'll find me. How about you, chief?

Mr. HOLMAN. Yes.

Mr. HERNDON. All right, now just breathe naturally and sit up a little bit straighter. That's good. That's fine, Mr. Ruby.

(Reporter's note: 7:15 p.m.)

Mr. HERNDON. Just relax. [At this point Mr. Herndon snapped his fingers twice.]

I will tell you once again when the test will begin. Answer the questions truthfully "Yes" or "No." Try to sit perfectly relaxed and try not to move. Look straight ahead, if you will, Mr. Ruby.

Did you just have a gas pain or something trouble you?

Mr. RUBY. No; nothing.

Mr. HERNDON. All right, relax. We will now begin.

(Reporter's note: 7:18 p.m.)

Mr. HERNDON. "Do you intend to answer these questions truthfully?"

Mr. RUBY. "Yes; I do."

Mr. HERNDON. Just answer the questions "Yes" or "No," please.

Mr. RUBY. OK.

Mr. HERNDON. "Did you go to the Dallas police station at any time on Friday, November 22, 1963, before you went to the synagogue?"

Mr. RUBY. "No."

Mr. HERNDON. "Do you attend the synagogue regularly?"

Mr. RUBY. How can I answer that one?

Mr. HERNDON. Just relax. "Did you go to the synagogue that Friday night?"

Mr. RUBY. "Yes".

Mr. HERNDON. "Do you pray?"

Mr. RUBY. "Yes".

Mr. HERNDON. "Did you see Oswald in the Dallas jail on Friday night?"

Mr. RUBY. "Yes".

Mr. HERNDON. "Were you at one time employed by a union?"

Mr. RUBY. "Yes".

Mr. HERNDON. "Did you have a gun with you when you went to the Friday midnight press conference at the jail?"

Mr. RUBY. "No".

Mr. HERNDON. "Is everything you told the Warren Commission the entire truth?"

Mr. RUBY. "Yes".

Mr. HERNDON. That series is over. Just sit still for a moment, Mr. Ruby, and I will release the pressure on your arm, and you may now move.

(Reporter's note: 7:21 p.m.)

Mr. HERNDON. At the beginning of that series, Mr. Ruby, you displayed a little nervousness and a little tension. Perhaps it was the question I asked with regard to the synagogue. Did that upset you in any way?

Mr. RUBY. Because—you're ashamed to admit you haven't been going regular—yet, you don't want to come out with a blunt answer "No"—it makes you sort of an atheist, and I didn't want to answer it that way, but I do go to the high holidays, but going regular and going to the high holidays are two different ways of going. People that go regular go every Friday night and pretty regular during the week, but my hours were entirely different. I mean—I'm trying to explain that to you.

Mr. HERNDON. Yes; that's what I want you to do. Go ahead, sir.

Mr. RUBY. I could say "Yes" and I would be lying to you saying "Yes". Anyway, the last couple of years—the last year and a half or 2 years have

been very tough to me businesswise and I've stayed pretty close, outside the high holidays.

Mr. HERNDON. Did that question disturb you in any regard when I asked, "Did you go to the Dallas police station at any time on Friday——"

Mr. RUBY. Yes.

Mr. HERNDON. "Before you went to the synagogue?" You did show some reaction, will you tell me that, sir?

Mr. RUBY. Because I knew that some man in the trial said I did come down there, and naturally, that came flashing into my mind.

Mr. HERNDON. Was this some man at the trial?

Mr. RUBY. Yes.

Mr. HERNDON. Did he testify?

Mr. RUBY. Yes; Mr. John Rutledge. He said I was down there earlier, when I wasn't—and the association of this man came to my mind. Can you ask me that over again?

Mr. HERNDON. I don't think I have to, Mr. Ruby. I wanted to get your explanation of why. Did you feel a reaction to that question?

Mr. RUBY. Yes; because it's like the Wall Street Journal question—when you asked me that. I get nervous too. When they said they found it in my car, there must be some reason that it was found in my car, when I know I never did see this particular paper.

Mr. HERNDON. Well, at this trial Mr. John Rutledge's testimony conflicted with what you had said, is that correct?

Mr. SPECTER. Not what he said, Mr. Herndon. He didn't testify.

Mr. RUBY. He testified emphatically—it looked like I was trying to find out who this Oswald was, and if I went down there more than once.

Mr. HERNDON. I see. You did feel the reaction on that question?

Mr. RUBY. Yes.

Mr. HERNDON. I think we can proceed on to the next series.

Mr. SPECTER. We're now at series 8, correct?

Mr. HERNDON. The next series will be 8, correct.

(Reporter's note: 7:23 p.m.)

Mr. SPECTER. Let the record show that Mr. Alexander and Mr. Tonahill have returned now.

Mr. HERNDON. Are you all right, Mr. Ruby?

Mr. RUBY. Yes.

Mr. HERNDON. We shall continue, and these are questions we want to put to you for this next series.

“Have you ever knowingly attended any meetings of the Communist Party or any other group that advocates violent overthrow of the Government?”

Mr. RUBY. No.

Mr. HERNDON. Now, is that question too long for you to answer it clearly?

Mr. RUBY. No; no.

Mr. HERNDON. Of course, there are two parts there—the Communist Party or any other group that advocates the violent overthrow of the Government—do you understand the question?

Mr. RUBY. Yes; very much so.

Mr. HERNDON. And then I will ask you, “Did you legally change your last name?”

Mr. RUBY. Yes.

Mr. HERNDON. I'm going to ask you again at the beginning of the test, “Is your last name Ruby?” I'm going to ask, “Do you know if any of your immediate family or any close friend is a member of the Communist Party?”

Mr. RUBY. No.

Mr. HERNDON. “Were you in the Army Air Corps?”

Mr. RUBY. Yes.

Mr. HERNDON. "Do you know if any of your immediate family or any close friend is a member of any group that advocates the violent overthrow of the Government?"

Mr. RUBY. No.

Mr. SPECTER. Let's rephrase those, Mr. Herndon. "To your knowledge, is any member of your family——"

Mr. HERNDON. Rather than "Do you know——".

Mr. RUBY. Why don't you put it stronger—ask me the question without—to my knowledge—the answer is "No". When you say—to my knowledge—you leave an opening there.

Mr. TONAHILL. Say—"Is any member of your family a member"——

Mr. SPECTER. We will take that and make it categorical—without the prefix.

Mr. RUBY. In other words, I don't want any opening for any doubt that there is.

Mr. HERNDON. Both those questions I started, "Do you know,"—I'm going to just start the question—"Is any member of your family"—et cetera.

Mr. RUBY. Yes.

Mr. HERNDON. Is that all right with you, Mr. Ruby?

Mr. RUBY. No, no; emphatically.

Mr. HERNDON. Here again, "Is any close friend or any member of your immediate family,"—I will have to change this one. I shall ask the question this way, unless you have reason to object. "Do you know if any close friend or any member of your immediate family ever attended a meeting of the Communist Party?"

Mr. RUBY. In other words, if I say I know they did——

Mr. HERNDON. Do you have knowledge, in other words?

Mr. RUBY. No; not knowledge—you're putting me in a spot there. Repeat it.

Mr. HERNDON. Let me ask this question the way I composed it originally. "Do you know if any close friend or any member of your immediate family ever attended a meeting of the Communist Party?"

Mr. RUBY. Yes. Meaning—I know they didn't.

Mr. HERNDON. That's a very valid point.

Mr. SPECTER. Let's rephrase it then—"Did any member of your immediate family or any close friend ever attend a meeting of the Communist Party?"

Mr. RUBY. No.

Mr. HERNDON. How do you want that, Mr. Specter?

Mr. SPECTER. "Did any member of your immediate family or any close friend ever attend a meeting of the Communist Party?"

Mr. RUBY. No.

Mr. HERNDON. I just had it slightly different. "Did any close friend or any member of your immediate family ever attend a meeting of the Communist Party?" Is that all right?

Mr. SPECTER. That phraseology is satisfactory.

Mr. HERNDON. Now, there's one other question here and this one is a little bit long, and we might want to discuss this question so Mr. Ruby will understand it perfectly. "Do you know if any close friend or any member of your immediate family has ever attended a meeting of any group that advocates the violent overthrow of the Government?"

Mr. RUBY. Yes; I know that they didn't.

Mr. SPECTER. Let's rephrase the question, leaving out the "Do you know"—

Mr. HERNDON. So that it will now be, "Did any—et cetera."

Mr. SPECTER. Yes.

Mr. HERNDON. All right, the question will read: "Did any close friend or any member of your immediate family ever attend a meeting of any group that advocates the violent overthrow of the Government?"

Mr. RUBY. No.

Mr. HERNDON. Those are the questions, unless Mr. Ruby has some question on them.

Mr. SPECTER. Let the record show that Mr. Tonahill and Mr. Alexander are now out of the room and we may proceed with this series.

(Reporter's note. 7:28 p.m.)

Mr. HERNDON. For the record, this is series No. 8.

All right, Mr. Ruby, I shall now put some pressure in the arm cuff and if you will look straight ahead, sir, and answer the questions truthfully "Yes" or "No," and I will tell you when I am going to begin asking questions.

The test will now begin.

"Is your last name Ruby?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Have you ever knowingly attended any meetings of the Communist Party or any other group that advocates violent overthrow of the Government?"

Mr. RUBY. "No."

Mr. HERNDON. "Did you legally change your last name?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Is any member of your immediate family or any close friend, a member of the Communist Party?"

Mr. RUBY. "No."

Mr. HERNDON. "Were you in the Army Air Corps?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Is any member of your immediate family or any close friend a member of any group that advocates the violent overthrow of the Government?"

Mr. RUBY. "No."

Mr. HERNDON. Look straight ahead, please, sir. "Did any close friend or any member of your immediate family ever attend a meeting of the Communist Party?"

Mr. RUBY. "No."

Mr. HERNDON. "Did any close friend or any member of your immediate family ever attend a meeting of any group that advocates the violent overthrow of the Government?"

Mr. RUBY. "No."

Mr. HERNDON. That series is over. If you will relax, Mr. Ruby, I will release the pressure on your arm.

(Reporter's note: 7:33 p.m.)

Mr. HERNDON. I know these questions were a little long, but I feel that you got the intent of them all right.

Mr. RUBY. Sure; I did.

Mr. HERNDON. That will complete series No. 8.

Mr. SPECTER. Let the record show that we are now going to take a very short recess, and resume in just a few moments.

Mr. HERNDON. Would you like to take this off just a minute and stand up a little bit, unless you prefer me to leave it on?

Mr. RUBY. All right.

(Reporter's note: Recess began 7:33 p.m. During the recess Mr. Fowler and Mr. Ruby conferred out of the hearing of all in the room.)

Mr. SPECTER. It is now 7:55 p.m. and may the record show that we have taken a 20-minute recess and have now reconvened for the last session.

Mr. RUBY. You're not going to ask about the phone calls?

Mr. SPECTER. Those are going to be covered, Mr. Ruby.

Mr. RUBY. I know you are for me, Joe, I know.

Mr. SPECTER. Let us proceed at this point, Mr. Herndon, with the next series of questions.

Mr. HERNDON. Are you tired, Mr. Ruby?

Mr. RUBY. No.

Mr. HERNDON. Do you feel all right?

Mr. RUBY. Fine.

Mr. HERNDON. We shall then continue. I'm going to read off a good number of questions here, and I'm going to ask them in a series called 9 and a series called 9a.

Mr. RUBY. All right.

Mr. HERNDON. And I'm not going to interject any of these other minor questions. These are all direct questions and I want to make sure that you understand what they are.

Mr. RUBY. Yes.

Mr. HERNDON. "Did you ever meet Oswald at your post office box?"

Mr. RUBY. No.

Mr. HERNDON. "Did you use your post office mailbox to do any business with Mexico or Cuba?"

Mr. RUBY. No. Pardon me—why don't you say, "Did you ever meet him at the post office or at the club?" Wouldn't that be good too?

Mr. SPECTER. We have asked you if you ever knew him before, and now we're focusing on this.

Mr. RUBY. Oh—"How many times did he come up to the club?"—that's something else. Also, somebody said that they saw Tippit, I, this Mr. Lane stated that he saw Tippit, myself, and Oswald at the club—so go ahead, I don't want to throw you off.

Mr. SPECTER. Well, we will add a question there at that point, such as this: "Did you ever meet with Officer Tippit and Oswald at your club?"

Mr. HERNDON. Do you want that "Oswald and" or "or"?

Mr. SPECTER. Yes; we do. Use "and."

Mr. RUBY. The first thing about that post office box—how do we know whether it's really authentic or the man had the box there or not? It could

have been placed there at a later date?

Mr. ALEXANDER. It was right, Jack. He had it. I saw the key myself and it had “X” number on the box.

Mr. RUBY. How come it never come out before then? Why didn’t it come out still before that?

Mr. ALEXANDER. It did.

Mr. RUBY. No; it didn’t come out until a long time—until just recently. It just came out about a week ago.

Mr. ALEXANDER. They just didn’t feature it—it was just overlooked. I saw the key that night.

Mr. RUBY. But Bill, I know one thing—I know that box could have been purchased at a later date, after Oswald’s death and could make it look like it’s close to mine; I know that.

Mr. SPECTER. Well, the situation there isn’t really directly germane here.

Mr. RUBY. It looks very bad for me, though, I know that.

Mr. ALEXANDER. No; Jack, I saw the key Friday night.

Mr. SPECTER. We will cover the subject matter here, so you will have a chance under the polygraph examination to cover it.

Mr. RUBY. You probably saw the key, but I know the affiliation with the Government, that you can always get a box at a later date, if you wanted to do that.

Mr. ALEXANDER. Jack, on Friday night that key was photographed, inventoried, and——

Mr. RUBY. What Friday night?

Mr. ALEXANDER. The Friday night of the assassination.

Mr. RUBY. You mean it was known—the number of the box—that Friday night?

Mr. ALEXANDER. Yes, sir; sure was.

Mr. RUBY. Did the public know about it and everybody else?

Mr. ALEXANDER. I'm sure they did.

Mr. RUBY. All right; go ahead.

Mr. HERNDON. I will proceed, Mr. Ruby. "Did you do business with Castro Cuba?"

Mr. RUBY. No.

Mr. HERNDON. "Was your trip to Cuba solely for pleasure?"

Mr. RUBY. Yes.

Mr. HERNDON. "Did you keep \$2,200 in cash on you because you didn't have a chance to get to the bank?" Is that question clear?

Mr. RUBY. Let me go off the record. This is going to be ad libbing, Miss, so can you hold it off on this? Can you hold it off or do you have to put it down?

COURT REPORTER. Mr. Ruby, you have to ask that man over there—Mr. Specter.

Mr. RUBY. All right.

Mr. SPECTER. Do you want to go off the record, Mr. Ruby?

Mr. RUBY. Yes.

Mr. SPECTER. All right, off the record at this point.

(Explanation by Mr. Ruby at this point regarding the \$2,200 cash item previously mentioned—off the record.)

Mr. SPECTER. Back on the record. Mr. Ruby, that's a perfectly good explanation, and I think it would be better if we put that on the record as to this point, if it's all right with you.

Mr. RUBY. Yes; but it's too crazy, mixed up, the way I was saying it.

Mr. SPECTER. Well, essentially what you're saying makes good sense. What you're saying is that you don't want to have it in a condition where somebody can levy on it and get ahold of it before your creditors got it.

Mr. RUBY. Well. I had the total cash for both clubs, but then, this was Friday night. Now, knowing my payroll at the Carousel runs to \$1,600 or \$1,400 on a Sunday night, and the Vegas Club on Saturday night because

we close Sunday, consequently that money would be absorbed completely in another night or two.

Mr. SPECTER. Mr. Ruby, that makes good sense. I think that in view of what your answer has been, it is preferable for us to put it on the record rather than to have any suggestion that anything that has been off the record is in anyway damaging or that we're keeping anything off the record that ought to be on the record.

Mr. RUBY. Do you want me to go through that again, now? Do you want me to go through what I said to you now?

Mr. SPECTER. That's right. Now, Miss Odell Oliver, will you go on the record with Mr. Ruby now, and since Mr. Ruby has made a brief explanation with regard to the last question, and at my suggestion he is willing to put it on the record, and he will now repeat the substance of what he has previously said.

Mr. RUBY. All right. Due to my sister being ill and away from running the Vegas Club, I had in my possession for both clubs for operation, for payrolls and everything else, et cetera, et cetera.

Just a week prior to that I had purchased a safe which I knew it was necessary to have, and we already had—my maintenanceman had built the forms for the safe, and we wanted further information as to where to place this safe in the club where it would be safest where burglars couldn't get at it. We called a Mr. Joe Cody of the police department to advise us where to place the thing. Consequently the safe had not been placed in cement as yet, and I had been carrying the total amount of cash for both clubs, the total capital, which include my purchases if there were to be any made, and the payroll for both clubs, and any accumulated excise tax money from the beginning of the last quarter for both clubs. So, hence, that money belonged solely to the operation of the Vegas Club and the Carousel.

Mr. SPECTER. Mr. Ruby, then we will rephrase that question to this and simply state—"Have you now told the truth about why you carried \$2,200 in cash?"

Mr. RUBY. Yes; but you have a reason for asking me that—whether that was somebody else's money or something—yes. All that money is specifically in relationship to the operation of both clubs.

Mr. SPECTER. Well, we could rephrase it, "Have you now told the truth concerning why you carried around \$2,200 in cash?" and we will cover the substance of the matter in that question.

Mr. RUBY. In other words, you don't want to leave it in your apartment because somebody might break in, but you feel it's safe, especially if I'm armed anyway, not that I can handle a gun that well, or whatever it may be, but somehow you feel—it's true I had the safe installed because I thought that would be safer to put any of my possessions in. In other words, it's a cash operation. In other words, \$2,200 in one week is a good return anyway.

Mr. HERNDON. I'll proceed, Mr. Ruby, if you are ready?

Mr. RUBY. All right.

Mr. HERNDON. "Did any foreign influence cause you to shoot Oswald?"

Mr. RUBY. No.

Mr. HERNDON. "Did you shoot Oswald because of any influence of the underworld?"

Mr. RUBY. No.

Mr. SPECTER. Now, by the word "foreign" in those questions, Mr. Ruby, we intend to convey to you—by Russia, by Cuba, or by any other foreign government, so that you may understand the full import of that question.

Mr. RUBY. No—but the whole thing was based on—when was the first time you thought of it—in other words, that Sunday morning, so in other words—well, we'll get to that.

Mr. HERNDON. "No" is the answer?

Mr. RUBY. Yes.

Mr. HERNDON. "Did you shoot Oswald because of a labor union influence?"

Mr. RUBY. No.

Mr. HERNDON. I will now rephrase that, if I may. "Did you shoot Oswald because of labor union influence?"

Mr. RUBY. No.

Mr. HERNDON. "Did any long-distance telephone calls which you made before the assassination of the President have anything to do with the assassination?"

Mr. RUBY. No.

Mr. HERNDON. "Did any of your long-distance telephone calls concern the shooting of Oswald?"

Mr. RUBY. No.

Mr. HERNDON. "Did you shoot Oswald in order to save Mrs. Kennedy the ordeal of a trial?"

Mr. RUBY. Yes.

Mr. HERNDON. "Did you know Officer Tippit?"

Mr. RUBY. This is off the record for a minute, please?

Mr. SPECTER. Mr. Ruby, I think it would be unwise for us to go off the record on this question.

Mr. RUBY. Well, all right. There were three Officer Tippits in the police department. I only knew one.

Mr. SPECTER. Was that Officer J. D. Tippit?

Mr. RUBY. He's the one who was slain?

Mr. SPECTER. Yes—Officer J. D. Tippit?

Mr. RUBY. No; I don't think he was the one.

Mr. SPECTER. Did you know Officer Tippit who was slain?

Mr. RUBY. No; I don't know him. You see, I know so many officers and there are three Tippits, but I know one Tippit, and which one that is—if I would see him personally and see his physical features and knowing him—of course, I didn't have time to—I was incarcerated too soon to find out. Actually, the Tippit I knew, who worked at special service in the police department—you know which one I'm talking about, Bill?

Mr. ALEXANDER. Yes; but that's not the one.

Mr. RUBY. I don't know this Tippit.

Mr. ALEXANDER. This boy had always been a radio patrolman.

Mr. RUBY. Well, I don't know that I had ever seen this fellow before—I had never seen him before. I may have seen him before but I didn't know him.

Mr. HERNDON. Mr. Ruby, if I ask a question, "Did you know the Officer Tippit slain?" Can you reasonably answer that truthfully "Yes" or "No"?

Mr. RUBY. No.

Mr. HERNDON. I mean—you can answer it without any problem mentally?

Mr. RUBY. Yes; that's what I mean.

Mr. SPECTER. To state it differently, you are able to answer whether or not you knew Officer J. D. Tippit?

Mr. RUBY. Well, I can't answer "Yes" or "No" and say whether or not.

Mr. SPECTER. Well, I want to be sure that your last answer is responsive so that we are clear.

Mr. RUBY. Well, I gave the answer "No."

Mr. ALEXANDER. Let's put it this way—"Did you know the Tippit that was killed?"

Mr. RUBY. Repeat that question?

Mr. HERNDON. "Did you know the Tippit that was killed?"

Mr. RUBY. No.

Mr. HERNDON. "Did you tell the truth about relaying the message to Ray Brantley to get McWillie a few guns?"

Mr. RUBY. Yes.

Mr. HERNDON. "Did you come out of the assembly room on Friday night to get the telephone number of KLIF?"

Mr. RUBY. Not come out of the assembly room—I went to the assembly room.

Mr. SPECTER. Did you go to the assembly room?

Mr. RUBY. Yes.

Mr. SPECTER. On Friday night—in order to get the telephone number of KLIF?

Mr. RUBY. Yes.

Mr. HERNDON. All right, we want to make that clear. We want to make that correction.

Mr. RUBY. Did you know that was part of my story, did you know that?

Mr. HERNDON. The question will be worded, Mr. Ruby, “Did you go to the assembly room on Friday night to get the telephone number of KLIF?”

Mr. RUBY. Yes.

Mr. HERNDON. That’s clear and concise for you?

Mr. RUBY. Yes.

Mr. HERNDON. “Did you ever meet with Oswald and Officer Tippit at your apartment?”

Mr. RUBY. No.

Mr. HERNDON. Here again the Officer Tippit is the one we’re talking about that was killed.

Mr. RUBY. Right.

Mr. HERNDON. All right, Mr. Ruby, those are the questions and we will proceed on those.

Mr. SPECTER. Fine. Let’s proceed with this series.

Mr. ALEXANDER. What was that last question?

Mr. HERNDON. “Did you ever meet with Oswald and Officer Tippit at your apartment?”

Mr. SPECTER. Let the record show that Mr. Alexander and Mr. Tonahill have left the room.

Mr. HERNDON. Do you feel all right now, Mr. Ruby?

Mr. RUBY. Yes.

Mr. HERNDON. Are you tired?

Mr. RUBY. No.

(Reporter's note: 8:10 p.m.)

Mr. HERNDON. All right, we can continue. If we may do so, we can save a little time, I'll go ahead and ask you about seven or eight questions.

Mr. RUBY. All right.

Mr. HERNDON. And I'll just stop so that I can let the pressure off your arm.

Mr. RUBY. Don't worry about me. I'm in good shape. The point is—I want to get as much in as we can. I don't want you to miss anything, because there's a lot of pertinent stuff.

Mr. HERNDON. All right, Mr. Ruby, if you will sit back a little bit higher, and if you will uncross your legs. Take a deep breath.

Mr. RUBY. All right.

Mr. HERNDON. And relax and exhale.

For the record, this will be series 9. If you will look straight ahead and answer these questions truthfully "Yes" or "No." We will now begin.

(Reporter's note: 8:12 p.m.)

Mr. HERNDON. "Did you ever meet Oswald at your post office box?"

Mr. RUBY. "No."

Mr. HERNDON. "Did you use your post office mailbox to do any business with Mexico or Cuba?"

Mr. RUBY. "No."

Mr. HERNDON. "Did you do business with Castro-Cuba?"

Mr. RUBY. "No."

Mr. HERNDON. "Was your trip to Cuba solely for pleasure?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Have you now told us the truth concerning why you carried \$2,200 in cash on you?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Did any foreign influence cause you to shoot Oswald?"

Mr. RUBY. "No."

Mr. HERNDON. "Did you shoot Oswald because of any influence of the underworld?"

Mr. RUBY. "No."

Mr. HERNDON. I'm going to stop here a moment, sir, and release the pressure on your arm and you just relax for a moment. Then I shall begin again in a moment.

Mr. RUBY. Okay.

(Reporter's note: 8:15 p.m.)

Mr. HERNDON. Just relax, Mr. Ruby.

Does your arm feel all right?

Mr. RUBY. Fine—I'm all right.

Mr. HERNDON. I will continue this next series of questions and it will be listed as series 9a.

(Reporter's note: 8:17 p.m.)

Mr. HERNDON. We will begin again.

"Did you shoot Oswald because of a labor union influence?"

Mr. RUBY. "No."

Mr. HERNDON. "Did any long-distance telephone calls which you made before the assassination of the President have anything to do with the assassination?"

Mr. RUBY. "No."

Mr. HERNDON. "Did any of your long-distance telephone calls concern the shooting of Oswald?"

Mr. RUBY. "No."

Mr. HERNDON. "Did you shoot Oswald in order to save Mrs. Kennedy the ordeal of a trial?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Did you know the Tippit that was killed?"

Mr. RUBY. "No."

Mr. HERNDON. "Did you tell the truth about relaying the message to Ray Brantley to get McWillie a few guns?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Did you go to the assembly room on Friday night to get the telephone number of KLIF?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Did you ever meet with Oswald and Officer Tippit at your club?"

Mr. RUBY. "No."

Mr. HERNDON. That completes that series. I will release that pressure and you can now relax.

(Reporter's note: 8:20 p.m.)

Mr. HERNDON. You seem to be relaxed and feeling fine.

Mr. SPECTER. Are you ready, Mr. Herndon?

Mr. HERNDON. Yes; that completes that series.

Mr. SPECTER. Mr. Tonahill and Mr. Alexander have returned to the room.

Mr. HERNDON. Shall I go right into the next series?

Mr. SPECTER. Go right into the series. We just did series 9 and 9a, and we are now going to series 10.

Mr. HERNDON. Yes; we just have a few more questions.

Mr. RUBY. That's wonderful, except there are a few things that I think you've left out.

Mr. SPECTER. Yes, Mr. Ruby. If you have additional questions you want asked, we will do our best to cover anything additional when we finish.

Mr. HERNDON. Here are the next questions which I would like to ask you, Mr. Ruby, on the next series. Again, I want to make sure that you understand each and every one of them.

“Were you at the Parkland Hospital at any time on Friday?”

Mr. RUBY. No.

Mr. HERNDON. “Did you say anything at the time you shot Oswald?”

Mr. RUBY. Yes.

Mr. HERNDON. “Have any members of your family been physically harmed because of what you did?”

Mr. RUBY. Not up to this point; no.

Mr. HERNDON. Then, the question can be answered in your mind either “Yes” or “No”?

Mr. RUBY. No.

Mr. HERNDON. You can answer it?

Mr. RUBY. Yes.

Mr. HERNDON. “Do you think members of your family are now in danger because of what you did?”

Mr. RUBY. Yes, sir.

Mr. HERNDON. “Is Mr. Fowler in danger because he is defending you?”

Mr. RUBY. Yes.

Mr. HERNDON. “Did ‘Blackie’ Harrison speak to you just before you shot Oswald?”

Mr. RUBY. I don't know—so, I'll say “No.” Oh, I see what you mean.

Mr. HERNDON. “Did ‘Blackie’ Harrison speak to you”——

Mr. RUBY. No.

Mr. HERNDON. “Just before you shot Oswald?”

Mr. RUBY. No.

Mr. HERNDON. I realize this is based on your recollection, but if you feel you can answer it “Yes” or “No,” fine.

Mr. RUBY. The trouble is I didn’t hear any sounds of voices—then, I’ve got to say “No.”

Mr. HERNDON. It’s your recollection you don’t recall Blackie Harrison speaking to you just before you shot Oswald?

Mr. RUBY. Yes.

Mr. SPECTER. Mr. Ruby, you answered the question “Yes.” Did you say something immediately before you shot Oswald?

Mr. HERNDON. I was going to ask that on here and then ask him about that again.

Mr. SPECTER. Yes; but I would like to cover it in advance. What did you say to Oswald, if you don’t mind?

Mr. RUBY. I said, “You killed my President, you rat”—something like that. “You killed my” or “our President, you rat.”

Mr. SPECTER. I would like then to modify that question, Mr. Herndon. “Did you say anything to Oswald immediately before shooting him, other than, ‘You killed our President, you rat’”? If that’s not too long. I’d like that.

Mr. HERNDON. Well, just let me sit down and take a good look at that question.

(At this point there was a conference between Messrs. Specter, Alexander, and Herndon out of the hearing of others in the room.)

Mr. SPECTER. Mr. Herndon, would you now read the question to Mr. Ruby as we have modified it after consultation.

Mr. HERNDON. Mr. Ruby, the question will be this way: “Did you say anything when you shot Oswald other than that what you testified about?”

Mr. RUBY. No.

Mr. HERNDON. The testifying about was pertaining to those statements that you've just told us here a few moments ago. Do you follow me there?

Mr. RUBY. The statement I made?

Mr. HERNDON. All right, I will proceed with the series again.

Mr. SPECTER. Let's proceed with the series.

May the record show that Mr. Tonahill and Mr. Alexander have left the room.

(Reporter's note: 8:25 p.m.)

Mr. HERNDON. Are you ready to begin now, Mr. Ruby?

Mr. RUBY. Yes.

Mr. HERNDON. All right, if you will uncross your legs and put your feet flat on the floor, please, Mr. Ruby, and are you comfortable?

Mr. RUBY. Yes.

Mr. HERNDON. Will you look straight ahead during the actual asking of the questions.

For the record, this is series No. 10.

(Reporter's note: 8:26 p.m.)

Mr. HERNDON. I notice during the time—all the time I ask you questions, Mr. Ruby, that you close your eyes. If that's a way that you can concentrate, that's perfectly all right.

Mr. RUBY. That's why—if I were guilty of something or if I were trying to evade something, certainly closing your eyes would be less advantageous for you to cover up something. Do you follow me? In other words, closing your eyes means that I do want to tell the truth.

Mr. HERNDON. That's what I want you to do—just concentrate on the question alone and you have to make that decision whether you will answer it "Yes" or "No".

Mr. RUBY. In other words, if I was trying to cover up anything, I wouldn't try to get more of a vision of what you're trying to refer me to.

Mr. HERNDON. All right, if you will look straight ahead now, and sit perfectly still, we will begin, and I will let you know when we're going to ask the first question.

Mr. RUBY. In other words, I'm trying to be more emphatic with the truth when I close my eyes—more than the truth.

Mr. HERNDON. Would you put your complete left hand on that arm rest—that's it.

(Reporter's note: 8:27 p.m.)

Mr. HERNDON. The test will now begin.

"Is your name Jack Ruby?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Were you at the Parkland Hospital at any time on Friday?"

Mr. RUBY. "No."

Mr. HERNDON. "Did you say anything when you shot Oswald other than what you've testified about?"

Mr. RUBY. "No."

Mr. HERNDON. "Have members of your family been physically harmed because of what you did?"

Mr. RUBY. "No." May I interrupt?

Mr. HERNDON. Just sit perfectly still. We will discuss the questions later, Mr. Ruby.

"Do you think members of your family are now in danger because of what you did?"

Mr. Ruby (no response).

Mr. HERNDON. "Is Mr. Fowler in danger because he is defending you?"

Mr. Ruby (no response).

Mr. HERNDON. "Did 'Blackie' Hanson speak to you just before you shot Oswald?"

Mr. RUBY. "No."

Mr. HERNDON. That will conclude that series, and just sit still a moment, Mr. Ruby, and I will let the pressure out. Now, as soon as I shut this off, we will discuss these questions.

(Reporter's note: 8:30 p.m.)

Mr. HERNDON. On that series of questions, Mr. Ruby, you failed to respond or answer one or two of these questions, which I'll give you an opportunity now to make any comment you wish to make about them.

Question No. 5, I asked, "Do you think members of your family are now in danger because of what you did?"

Mr. RUBY. Well, they're always exposed to it, so I don't know how to answer that.

Mr. HERNDON. In other words, you felt it would be difficult for you to say either "Yes" or "No"; is that correct?

Mr. RUBY. That's right; the same way with Fowler. I know when he's representing me, he's putting himself on the spot.

Mr. WOOD. Neither the court reporter nor I got the last name of "Blackie"—exactly.

Mr. HERNDON. I believe I said "Harrison." That's the way I had it in my notes, but perhaps you might have gotten the impression I said "Hanson." You knew who I was talking about, Mr. Ruby?

Mr. RUBY. Yes.

Mr. HERNDON. That's the main thing that you knew exactly who I meant.

Mr. SPECTER. I believe you said "Harrison."

Mr. Ruby, are there any other questions which you would like to be covered with you?

Mr. HERNDON. Excuse me, Mr. Specter, I have one more question here. For my records—he did not respond to question No. 6. If you want, I can go over that and we can discuss that question without any response.

Mr. SPECTER. No; I'd like to discuss that. Mr. Tonahill and Mr. Alexander have already returned to the room, and I would like to discuss that if it's all right with you here. Let the record show that we would like to cover that now.

Mr. HERNDON. Mr. Ruby, on that last series, I asked a question, "Is Mr. Fowler in danger because he is defending you?" You remained silent, which is one of the instructions I gave you, if you so pleased to do. Would you at this time indicate to me why you wanted to remain silent?

Mr. RUBY. Well, No. 1, this is quite a notorious thing, and don't forget, it's just like I specified when Earl Warren was in danger, you know, so he is—in other words, people have a dislike for me, and Mr. Fowler is trying to defend me, and this won't make him too popular a person—too well liked of a person, I should say.

Mr. HERNDON. Then, you just simply didn't want to come out with a "Yes" or "No" answer?

Mr. RUBY. Yes; because I wouldn't know how to answer that.

Mr. HERNDON. All right, Mr. Specter. Thank you.

Mr. SPECTER. Mr. Ruby, do you now have any other questions which you would like us to ask you on this polygraph examination?

Mr. RUBY. Yes; "At what time did I first think of wanting—when was the first time it ever entered my mind that I wanted to commit this act?"

Mr. SPECTER. You mean the shooting of Oswald?

Mr. RUBY. Yes.

Mr. SPECTER. We asked you that.

Mr. RUBY. You did—because if anything prior to that—in other words——

Mr. SPECTER. No; we asked you that very carefully a number of ways and one way was when Mr. Herndon asked you did you think of it on Friday, and you said "No"; did you think of it on Saturday morning—"No"; did you think of it on Saturday evening—"No"; on Sunday morning "Yes,"—so we've covered that very thoroughly.

Mr. RUBY. Have I ever received any monies—we don't need that, do we, for subversive purposes or anything.

Mr. SPECTER. I think we've covered that whole area very carefully.

Mr. RUBY. Now, what about my being present in the News Building that morning? Here—the assassination took place across the street from there?

Mr. SPECTER. Mr. Ruby, I think we have covered that when we asked you if you told the truth on your testimony before the President's Commission, because you went into that on June 7, and that isn't nearly the central issue as the other specific questions we have asked you.

Mr. RUBY. Yes; but if I was in a conspiracy, wouldn't it start off with that point? Oh, yes; they didn't ask me another question: "If I loved the President so much, why wasn't I at the parade?" Is that a very important question to ask?

Mr. SPECTER. We have considered those questions and that was when we reviewed the transcript of your testimony, and quite frankly, we have rejected them as being not important.

Mr. RUBY. You have? I see. Now, isn't it strange—now, I want to tell you something that's noticeable in this part of the country about the poll tax, and there are a lot of other reasons, maybe. I'm reluctant to buy my poll tax in time, and I don't recall whether or not—is this all right to go in the record if I speak?

Mr. SPECTER. You may go on the record with any facet you think is important for the Commission to know about.

Mr. RUBY. And yet, it's strange that perhaps I didn't vote for President Kennedy, or didn't vote at all, that I should build up such a great affection for him, when everything points against me. For instance, the parade issue I referred to. How can I answer that and still show my sincerity or my feelings and why I was carried away so emotionally to do something like that, that has put me in such serious trouble?

Mr. ALEXANDER. Jack, there's no way to put that on the machine other than to ask you if you told the truth in your testimony; and that's an opinion without concrete facts.

Mr. RUBY. But I don't remember if I got all the testimony in when Warren was here.

Mr. SPECTER. You testify now as to anything you want to add and we can ask you one question at the end and that will be "Have you told the truth in everything you've said here today?" That one question will cover everything you said, so that if any other phase comes to your mind now, let us hear about it.

Mr. RUBY. What I'm trying to bring out is this: It's—and everyone was very much surprised—why should I be carried away so emotionally to commit the act, and yet knowing how I felt and knowing I know I'm telling the truth, how can we bring that point out that I am not sincere in why I did it?

Mr. SPECTER. We can bring that out with the one general question. Now, is there any other topic you would like to testify about and have us check you on your truthfulness?

Mr. RUBY. Yes—whether or not I was ever mixed up with the underworld here or involved in any crime?

Mr. SPECTER. You've been asked that specifically, and you've testified about that.

Mr. RUBY. Yes. You see, I've been in Dallas 17 years and yet suddenly I get involved in a very serious crime and I was very popular with the police department and a lot of other people, and the irony is—it took a complete reverse of that, because of various suspicions, nature, and so on.

I wonder if you follow what I'm trying to bring out? Maybe there's something we can cover in that area.

Mr. ALEXANDER. Jack, let's cover it this way. "Were any of your relations with the police department improper?"

Mr. RUBY. No—you, like doing business or something or other?

Mr. ALEXANDER. Yes?

Mr. RUBY. No—none whatsoever.

Mr. ALEXANDER. Well, would that question cover what you had in mind?

Mr. RUBY. No.

Mr. ALEXANDER. Tell us what you had in mind and then we'll frame the question, because that's an area.

Mr. RUBY. Whether or not I am of criminal background or whether I'm an honest and sincere person, because all those things came out and suspicions came out that Jack Ruby was involved in this and that and leaves a lot of suspicion as to my background and my character. That's very vague, but that's what I'm trying to bring out.

Mr. ALEXANDER. How would this question be? "Are you a police character?"

Mr. RUBY. No.

Mr. TONAHILL. "Are you a 100 percent patriotic American citizen?"

Mr. ALEXANDER. "Are you a law-abiding citizen?"

Mr. RUBY. That's better—that's the question.

Mr. ALEXANDER. "Are you a law-abiding patriotic citizen?"

Mr. RUBY. Yes.

Mr. TONAHILL. "Are you a 100 percent American patriotic citizen?"

Mr. RUBY. Yes.

Mr. HERNDON. That can be asked.

Mr. RUBY. That's very good, because—shall I elaborate on this?

Mr. SPECTER. Yes.

Mr. RUBY. I became closely attached to our beloved President when he gave that wonderful speech when we had our problem in Cuba at that time. That was a very tremendous speech and then I followed him on television and in magazines wherever he went—to Ireland and different places.

Now, Joe asked a very good question. In other words, either you are American or you're half and half or you're indifferent to the way you feel about your country and how much you love it.

When he stated to me a moment ago, "Are you 100 percent American?"—that's the way you feel about your country. I don't know how

to state it but first of all, I want to make sure—I've got my flags in both colors—that doesn't show any overt—but inwardly, I'm a very unstable person. I'm very lax in certain details and things, and yet for the emotional feeling and the feeling for giving my life and for loving this country is so great, that I think when you asked me that question, "Are you 100 percent American?" and if I answered the truth, it will greater effect than any other way you can ask me.

Mr. SPECTER. Mr. Ruby, we can cover that one in a specific question, in another general question, on whether you have told the complete truth here today. Are there any other topics which you want to cover?

Mr. RUBY. Oh, yes, sir. Has any of the underworld ever contributed money to me for my clubs, or was I put in here as a front for the underworld or things to that effect. I mean—this has a relationship to criminal intent.

Mr. SPECTER. We've asked you the question if the underworld had any connection with the shooting of Oswald.

Let me now ask you for the record while you are under oath, whether you were put in here by the underworld?

Mr. RUBY. No.

Mr. SPECTER. Did the underworld contribute in any way to the financing of any of your clubs?

Mr. RUBY. None whatsoever.

Mr. SPECTER. Have you had any connection or association in any way whatsoever with the underworld during the past 17 years you've been in Dallas?

Mr. RUBY. Never have.

Mr. SPECTER. Now, we'll ask you in a few moments with Mr. Herndon, whether you've told the truth, and that will be covered—that will cover this underworld question.

Mr. RUBY. Just the one question is enough to cover it?

Mr. SPECTER. Mr. Herndon advises that it is.

Mr. HERNDON. I can ask that question and have it a matter of record.

Mr. RUBY. You see, there are so many things that I know in the minds of the people in Dallas that you're not concerned with, that maybe I was put here as a front of the underworld and sooner or later they will get something out of me that they want done to their advantage.

Everything I have had financed, my brother Earl has contributed the money for or Ralph Paul, a friend of mine, has loaned me money.

Mr. HERNDON. Mr. Specter, if I can interrupt—on some of these questions you are recently discussing here are more or less in the area of emotions and the area dealing with advance psychology or of a psychiatric nature, and although I can ask them if you so wish, they are questions that don't necessarily lend themselves to the polygraph technique.

Unless you can specifically break them down to a clearcut question which could be answered truthfully "Yes" or "No," that involves a specific action or emotion that he can recall in regard to a particular action, then it would not be a good question here.

Mr. SPECTER. I agree with you.

Mr. HERNDON. You see, this 100 percent American type question doesn't necessarily lend itself to polygraph examination.

Mr. SPECTER. I agree with your conclusion, but what we're trying to do now is to cover all of the important substantive questions which I think we have. After Mr. Ruby tells me that he is satisfied with what we have covered, I propose to ask the same question of Mr. Fowler and Mr. Alexander and also Mr. Tonahill, so that we will have covered the subject matter. We will do our utmost to be all-inclusive here, so that whatever effect the polygraph can gage as to Mr. Ruby's truthfulness, we will do so.

Mr. RUBY. Let me put it this way: Here I run a nightclub. I run a nightclub and on Friday this tragic event happens and I get carried away more so than anyone else. Why? Why was I so sick mentally or so carried away?

I immediately replaced my newspaper ads so that I would be closed for those 3 days. This is the ironic part of it, that wouldn't it be a tremendous hoax, or certain people would probably believe it that way, that here's a fellow that didn't vote for the President, closes his clubs for 3 days, made a trip to Cuba, relayed a message from a person—from Ray Brantley—look

at circumstantially how guilty I am? If you want to put all these things together? Then, I happen to be down there, which is a million and one shot, that I should happen to be down there at that particular second when this man comes out of whatever it was—an elevator or whatever it was—all these things—plus the fact of the post office box and other rumors that they saw us together at the club—how can we give me the clearance that the ads I put in were authentic, my sincerity, my feeling of emotionalism were sincere; that that Sunday morning I got carried away after reading the article, a letter addressed to Caroline and then this little article that stated Mrs. Kennedy might be requested to come back and face the ordeal of the trial?

Also, if there was a conspiracy, then this little girl that called me on the phone in Fort Worth then is a part of the conspiracy. Do you follow me?

MR. SPECTER. I understand you, Mr. Ruby, but you have testified about most of this on the prior occasion, such as seeing the article in the newspaper, about the letter to little Caroline and about the necessity for Mrs. Kennedy to return, and we have formulated the questions concerning the major topics which we have of concern and have supplemented those topics in the questions to you. I think in all fairness that we have gone as far as we can on any of the substantive questions, and I want you to be satisfied, and the Commission wants you to be satisfied, and that's why I keep repeating the question—whether you have any other topic. I can see you are trying to recollect something else—so that you will have covered everything in a conclusive way.

MR. RUBY. Yes.

MR. SPECTER. As soon as you are satisfied on that, I'm going to ask the other gentlemen a question, as I say, and as a matter of fact, I can do that now while you are still thinking.

I will ask Mr. Fowler if there is any other question that he would like to have asked of you at this time?

MR. FOWLER. Sir, I know of no other questions that could be asked at this time.

MR. SPECTER. Mr. Tonahill, do you have any other questions you would like to have asked?

Mr. TONAHILL. No, I don't. I think it has been very, very comprehensive. From my knowledge of the background, I think if you asked Jack if he went to the Dallas Morning News that morning to attend to business and protested vigorously the ad insulting President Kennedy, if he protested because he's a 100 percent patriotic American citizen, I think he would, tell you "Yes" and he would be telling the truth.

I think if you asked him why he went out about 4 o'clock in the morning with George Senator and Larry and took that picture of the sign——

Mr. RUBY. Don't mention anything about that—we're in a bad spot down here because of that.

Mr. TONAHILL (continuing). Of Chief Justice Earl Warren, he would tell you that he did it because he was going to turn it over to the FBI and some attorneys, because he thought it was un-American and he did it because he's a 100 percent patriotic American citizen, and he's telling the truth.

Mr. RUBY. I also went over to the post office to check on the box.

Mr. TONAHILL. The same thing on the box—to see there if the post office numbers on the sign and in the newspaper ad meant the same person was behind it, which would be the John Birchers and Communists both, and he wanted to do something about it because he's a 100 percent patriotic American citizen, he would be telling the truth.

Mr. RUBY. I didn't know about the ad—you're talking about the ad against President Kennedy?

Mr. TONAHILL. Yes.

Mr. RUBY. I didn't refer to the John Birch—with reference to that.

Mr. TONAHILL. He wanted to see if they were connected together—the same people.

Mr. RUBY. I didn't mention the term "John Birch." I just said, "I wonder who could have placed that ad in there?"

Mr. TONAHILL. That's all I have.

Mr. SPECTER. Mr. Alexander, do you have any questions to ask?

Mr. ALEXANDER. I have no questions to ask. I think it has been most comprehensive.

Mr. SPECTER. Mr. Ruby, did you go to the Dallas Morning News to protest the advertisement that made derogatory statements about President Kennedy?

Mr. RUBY. No; I went there to place my ad, because my business is very—it's very important that I'm there on the weekend, in the first place. My business is conducted on a cash basis, and you can't place your ads unless you are there to pay for them.

Mr. SPECTER. You testified to that before?

Mr. RUBY. Yes; I did.

Mr. SPECTER. Did you make any comment about the newspaper advertisement which contained derogatory references to President Kennedy?

Mr. RUBY. We spoke about it up at the Morning News there, and I didn't want to make anything there about it because I knew they accepted it. They accepted the ad. It would be rather embarrassing to say something to them because they were responsible. The phones were ringing off the desks with people canceling various ads and so on, but I did make—I went to the Turf Club—that's where I got all hepped up about it—over at the Turf Lounge, and I went to the post office to find out who was it that placed that ad, you know, and how it came about.

Mr. SPECTER. Are you satisfied then, Mr. Ruby, if we ask you one more question on the polygraph, specifically, "Has all the information which you have testified to today been the truth, the whole truth, and nothing but the truth?"

Mr. RUBY. Plus the fact that I do want to get in my feeling for Americanism and how I felt, because—remember—there may be unseen persons that may not believe in my sincerity, so I want that specifically asked—how I feel about my country I live in and so on, unless it's repeating something. Is it?

Mr. SPECTER. Well, we will ask it of you again so that there's no question about. We will formulate the question, "Do you consider yourself

to be a 100 percent American patriot?”

Mr. RUBY. Yes.

Mr. SPECTER. And then we'll ask the general question about whether every bit of information you've given us today has been the whole truth?

Mr. RUBY. Yes.

Mr. SPECTER. All right, will you proceed, Mr. Herndon and ask those two questions.

Mr. RUBY. One more thing—shouldn't you ask me, or isn't it necessary, why I suddenly was so carried away to get involved in this serious crime?

Mr. ALEXANDER. Jack, that won't work on the machine.

Mr. SPECTER. We have to ask you a “Yes” or “No” question, and we've already covered that by asking you the question about Mrs. Kennedy—whether you didn't shoot Oswald to avoid having her come to trial.

Mr. RUBY. Yes; that covers that.

Mr. SPECTER. That covers that subject.

Mr. RUBY. In other words, I can't answer that truthfully and have another reason for doing it; is that correct?

Mr. SPECTER. Correct.

Mr. RUBY. That would answer that?

Mr. SPECTER. Yes. We've asked you all the reasons——

Mr. RUBY. But you don't ask me why I did it, though? Why I was carried away so much—you don't ask me that.

Mr. SPECTER. We did ask you—we asked you “Why did you shoot Oswald?”

Mr. RUBY. But you don't ask me why I got carried away so?

Mr. SPECTER. Well, it's the same question.

Mr. RUBY. Oh, it's the same question.

Mr. SPECTER. This is the same question—in the form of: “Did you do it in order to save Mrs. Kennedy the travail of a trip to Dallas?” That subject

matter has been covered as comprehensively as we can through the polygraph.

Now, will you proceed, Mr. Herndon, and ask those final questions?

Mr. HERNDON. I would like to proceed with, "Are you Jack Ruby?"

Mr. SPECTER. That's fine—that's your line.

Mr. HERNDON. Then, I'll ask you. "Do you consider yourself to be a 100 percent American patriot?"

Then, what was the last question you wanted asked, Mr. Specter?

Mr. SPECTER. "Is all of the testimony given by you today the complete truth?"

Mr. HERNDON. I think I can ask those questions now.

Mr. Ruby, does this noise disturb you right now, are you conscious of it or aware of it [referring to audible conversations between other jail occupants outside this room]?

Mr. RUBY. I hear it.

Mr. HERNDON. Are you all right?

Mr. RUBY. Yes.

Mr. HERNDON. Are you tired?

Mr. RUBY. No; I'm all right.

Mr. HERNDON. Are you getting a little tired?

Mr. RUBY. I'm all right.

Mr. HERNDON. I'll ask you just these last few questions. Would you once again kindly put your feet flat on the floor, and let's put these back so you will be comfortable.

(Reporter's note: 8:55 p.m.)

Mr. HERNDON. I will have to wait for the instrument to warm up just a second. This will be series No. 11.

(Mr. Herndon snapped his fingers one time.)

Mr. HERNDON. Are you ready to proceed?

Mr. RUBY. Yes.

Mr. HERNDON. I'll just ask these three questions, and once again, these are more or less summation questions here, and I want you just to relax and answer them simply, "Yes" or "No."

The series will now begin.

"Are you Jack Ruby?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Do you consider yourself to be a 100 percent American patriot?"

Mr. RUBY. "Yes."

Mr. HERNDON. "Has all the testimony given by you today been the complete truth?"

Mr. RUBY. "Yes."

Mr. HERNDON. The series is over.

(Reporter's note: 8:59 p.m.)

Mr. HERNDON. I have no questions, Mr. Specter.

Mr. SPECTER. Thank you. That concludes the polygraph examination.

Mr. HERNDON. Now, I will take all this paraphernalia off of you, Mr. Ruby.

Mr. SPECTER. I would like to have you sign your name about 10 times, for us, Mr. Ruby, and would you put the date on this for us too? The date is July 18, 1964.

Mr. RUBY. Let me have my glasses, Joe.

Mr. TONAHILL (handed glasses to Mr. Ruby).

Mr. SPECTER. And now would you write the sentence at the bottom, "Now is the time for all good men to come to the aid of their country."

Mr. RUBY (complied with request of Mr. Specter).

Mr. SPECTER. Now, would you skip down and write that again. I would like for you to write that three times in all, and you might sit down and take a chair and do so.

Mr. RUBY (complied with request of Mr. Specter).

Mr. SPECTER. Very good.

Mr. RUBY. What time is it?

Mr. HERNDON. It's 9 o'clock.

Mr. SPECTER. I have five after nine—Dallas, Tex., time.

Mr. RUBY. Joe, are you going to do what I asked you to?

Mr. TONAHILL. I'm going to do my best. You know me well enough to know that I'm going to do my best.

Mr. RUBY. I know you well enough.

Mr. HERNDON. You were very cooperative, Mr. Ruby.

Mr. TONAHILL. Goodbye, Jack. Good to see you.

Mr. RUBY. You're going to do what I ask you to do?

Mr. TONAHILL. I'm going to do my best. I told you I would. Everything I do is for your best interest and I have worked awful hard.

Mr. RUBY. I know. You are a big man and I know how big you can be.

Mr. TONAHILL. I'm going to do my best, like I said, and not let anything under the sun happen.

Mr. RUBY. You know what I'm talking about?

Mr. TONAHILL. I know exactly what you're talking about.

(Before leaving the room Mr. Ruby conferred briefly with Messrs. Tonahill and Alexander out of the hearing of others in the room, and departed with Chief Jailer Holman at 9:07 p.m.)

TESTIMONY OF DR. WILLIAM ROBERT BEAVERS

The testimony of Dr. William Robert Beavers was taken at 9:10 p.m., on July 18, 1964, at the Dallas County Jail, Dallas, Tex., by Mr. Arlen Specter, assistant counsel of the President's Commission. Present were: Bell P. Herndon and W. James Wood, special agents of the FBI; Clayton Fowler and Joe H. Tonahill, counsel for Jack Ruby; William F. Alexander, assistant district attorney for Dallas County, Tex.; and E. L. Holman, chief jailer.

Mr. SPECTER. May the record show that it is 10 minutes after 9 p.m. and that Mr. Ruby has departed in the custody of Chief Jailer E. L. Holman and that we are reconvening for the purpose of taking testimony from Dr. William Robert Beavers at the request of Mr. Fowler and Mr. Tonahill.

Dr. Beavers, would you stand and raise your right hand, please? Do you solemnly swear that the testimony you shall give in this proceeding before the President's Commission on the Assassination of President Kennedy shall be the truth, the whole truth, and nothing but the truth, so help you God?

Dr. BEAVERS. I do.

Mr. SPECTER. Will you be seated please, and state your full name for the record.

Dr. BEAVERS. William Robert Beavers.

Mr. SPECTER. What is your occupation or profession, please?

Dr. BEAVERS. I am a psychiatrist and physician.

Mr. SPECTER. Would you set forth your home and office addresses, please?

Dr. BEAVERS. Yes. My home address is 4071 Northlawn Drive, Dallas. My office is at 3911 Maple, Dallas, which is Woodlawn Psychiatric

Hospital.

Mr. SPECTER. Would you describe briefly your educational background, please?

Dr. BEAVERS. Yes, I finished medical school here at Southwestern in Dallas in 1953, interned in Wayne County General Hospital in Eloise, Mich. I had a fellowship in pharmacology in 1954–55, spent 2 years in the Air Force in the Arctic in research and returned; I was an assistant professor of pharmacology for 3 years and during that time I took a year of internal medicine at St. Paul's Hospital here in Dallas. Following this in 1960 I entered a residency in psychiatry at Southwestern here in Dallas and completed the residency in 1963. Following this, I went back on the faculty of the Medical School as assistant professor of psychiatry.

Mr. SPECTER. And, do you hold the latter position at the present time?

Dr. BEAVERS. That's correct.

Mr. SPECTER. Are you a member of any accredited psychiatric societies?

Dr. BEAVERS. Yes; I'm a member of the Dallas neuropsychiatric group, the Texas Neuropsychiatric Society and the American Psychiatric Association.

Mr. SPECTER. Have you now set forth the major items of your background with respect to qualifications in the field of psychiatry?

Dr. BEAVERS. Perhaps it should be mentioned that I am on the attending staff at Parkland as a psychiatrist and that I consult at the Terrell State Hospital as a psychiatrist.

Mr. SPECTER. Have you had occasion to examine Mr. Jack Ruby prior to today?

Dr. BEAVERS. Yes; on numerous occasions prior to about 4 weeks ago, did I see him.

Mr. SPECTER. On approximately how many occasions have you examined Mr. Ruby?

Dr. BEAVERS. Without my records here, it would not completely accurate, but it would be in the area of about 9 or 10 times, I believe.

Mr. SPECTER. And what did you observe with respect to Mr. Ruby's mental condition during the course of those examinations?

Dr. BEAVERS. I saw him first—can I get somebody to help me with a date?

Mr. TONAHILL. April the 27th, the 28th, or 29th of this year.

Dr. BEAVERS. The day that Dr. West first came down was on a Sunday.

Mr. TONAHILL. Yes, that was the 26th of April.

Dr. BEAVERS. He testified Monday morning and then I saw Mr. Ruby first on that Tuesday.

Mr. TONAHILL. The 28th.

Dr. BEAVERS. Right, and at that time he had briefly what I call a psychotic depression, that is, he had evidences of auditory hallucinations and a poorly defined but definite delusional system which waxed and waned during the time of the interview, and he had evidence of a severe degree of depression.

Because of the combined symptoms of the hallucinatory activity, the delusions in which, and I should spell them out, that he felt that both members of his family, his close family, were being harmed, mutilated and/or destroyed because of his crime, and further, that there was a pogrom concerning Jews generally because of his crime.

These symptoms plus the depression which was evident, caused me to diagnose a psychotic depressive reaction.

Mr. SPECTER. Have you now stated your conclusion regarding his mental state?

Dr. BEAVERS. At that time.

Mr. SPECTER. And have you set forth the essence of the underlying factors relating to that conclusion?

Dr. BEAVERS. In very brief nature—yes.

Mr. SPECTER. Do you have any different conclusion as to his mental state today?

Dr. BEAVERS. Yes. I do. I think that as I have seen him, the depressive element has diminished, and that the delusional system has become much less open and obvious, and that it has become more fixed, and it seems to—and this I'm not sure of—whether it waxes and wanes depending on the time in the weeks or whether it waxes and wanes depending on the closeness of the people that he sees.

Mr. SPECTER. Doctor, when you say that the state is much less open, do you mean by that, that it is now more obvious?

Dr. BEAVERS. Less obvious.

Mr. SPECTER. Less obvious?

Dr. BEAVERS. Less obvious.

Mr. SPECTER. But is it present, notwithstanding the degree of how much it is apparent?

Dr. BEAVERS. In my opinion it is. Yes. The thing that I'm trying to make clear here is that you take a person that has a mental illness which shows itself in delusions, that is, ideas that things that we say aren't real—they can be very uncertain and changing and very obvious, and which the person will share them with just about anybody, or they can be much more covert—hidden—and shared only seldom, and much more fixed, not shifting around, but fixed.

Mr. SPECTER. How would you characterize his condition in your opinion as he sat here today during the polygraph examination?

Dr. BEAVERS. Based on—let's see if I can give the specific things that make me come up with this opinion—the relationship that he has with the prosecuting attorney, the relationship he has with his attorneys; there are certain kinds of actions and behavior in these two relationships which fit better in my opinion with the continuation of a covert delusional system concerning threat to his race, his family, based on his presumed activity in a conspiracy, then it would fit with rational realistic appreciation of the factors in his environment.

Mr. SPECTER. Were you present today, Dr. Beavers, during the entire course of the polygraph examination?

Dr. BEAVERS. Yes, I was.

Mr. SPECTER. In your opinion, was Mr. Ruby in contact with reality during the course of the polygraph examination?

Dr. BEAVERS. In the greater proportion of the time that he answered the questions, I felt that he was aware of the questions and that he understood them, and that he was giving answers based on an appreciation of reality.

Mr. SPECTER. Was there any element of a delusional state present in the answers which he gave during the course of this polygraphic examination?

Dr. BEAVERS. I felt the only time that there were questions which tapped any of the underlying delusional systems were the questions relating to his opinion about the safety of his defense counsel and the safety of his family, either past or present.

It seemed to me, because he was fairly certain in his answers during the trial run, and then following this during the actual run of the polygraph, there was so much hesitation and uncertainty which resulted in no answers, that we were seeing a good deal of internal struggle as to just what was reality.

His explanation following this, following the run of the polygraph, I don't think enlightened us very much in terms of what it was he was actually feeling or thinking.

Mr. SPECTER. But would you have concluded that he was delusional had he stated that his family and his attorneys were in danger?

Dr. BEAVERS. I've got to think about that. You can't answer it "Yes"—if it had been as strong a question as it might have been possible to frame, but I feel that to get a perfectly accurate idea of what he meant by it would require more than a "Yes" or "No" answer, but this would have been one of things that had he answered it directly, that would have led me to think that he had an area here where reality in the testimony was poor.

Mr. SPECTER. Well, does his refusal to answer that question during the course of the polygraph examination, subject to the analysis that the polygraphic examinations can bring to bear, indicate that he is not in a delusional state?

Dr. BEAVERS. I'm not sure I follow you here.

Mr. SPECTER. Well, perhaps I can rephrase that.

During the course of the polygraphic examinations, he is subject to certain checks on truthfulness, at least to some extent.

Dr. BEAVERS. I see what you're getting at now.

That would be an assumption, I think, on both our parts that I wouldn't make as to why he didn't answer. It possibly could have been his trying to protect in some way an answer from the polygraph.

I felt it equally likely that it was the fact that it was the second time through on the same question which he had answered first and then there had been a lot of thinking going on, was a great deal more opportunity for uncertainty.

Mr. SPECTER. So, you think his first answer that his family and counsel were in danger, indicated to some extent at least, a delusional state, and then after he had had an opportunity to consider it, that he became uncertain because of the greater opportunity to focus on what in your opinion was a delusion to start with?

Dr. BEAVERS. Yes. This thing to me is complicated, maybe because—for example, if I can digress for a moment.

Mr. SPECTER. Yes; feel free to do that.

Dr. BEAVERS. Chief Holman has told me a number of times and I have seen it in a sense, he feels that this man has tried to seem delusional. On the other hand, at times it is quite obvious that he is trying to seem sane and becomes quite truculent and angry at people who imply that he was in fact of unsound mind.

One of the things I think that is extremely obvious in any of this man's discourse over a period of time is the marked ambivalence, that is, the mixed feelings which are strong but on both sides of almost any position that he has taken.

This may be true at the time or it may be true sequentially, so that on the one hand we see him trying to appear quite sane and according to some testimony, at times he has not done this but in fact, not according to my own testimony, but the statements that I have heard from others, he has tried to appear a little bit more delusional than the person thought that he was.

Now, I felt that this answer that we saw the second time around was consistent with the same attitude that he had when he came, when he was stating very definitely that he was not of unsound mind. In other words, it may have given him a little more time to cover.

Mr. SPECTER. Aside from the questions to which you have referred on the danger to counsel and family, did the delusional state which you have characterized as his condition of today, have any effect in your opinion on the polygraphic examination?

Dr. BEAVERS. I can't answer the question like it's put, but I can answer it this way, if I may, because I'm just not an expert on that box over there. I don't know that much about polygraph.

Mr. SPECTER. You are referring to the polygraph machine. Well, consider the question rephrased in a manner that you find it convenient to respond to?

Dr. BEAVERS. All right. I felt that so far as my ability to evaluate this man in responding to questions, that any delusional state did not interfere with awareness of the past, with the presence of seemingly adequate memory, with the presence of an apparently reasonable appreciation of reality in reference to his whereabouts and his behavior in the critical time that was under discussion.

In short, he seemed to behave like a man with a well-fixed delusional system in which whole areas of his thinking and his behavior is not strongly interfered by the delusion.

Mr. SPECTER. So that the major portion of the polygraphic examination then, except for those parts which you have already referred to, would not be affected in your opinion by what you have characterized as his delusional state?

Dr. BEAVERS. In my opinion, the major portion of his appreciation of questions and of his answers would be unaffected by the delusional state.

I just can't, you see, in all honesty, answer something about what the machine taps, because I think I would sort of be making a fool of myself because I don't know that much about polygraph.

Mr. SPECTER. Dr. Beavers, do you have an opinion as to whether the polygraphic examination which was conducted here today hurt Mr. Ruby mentally or physically in any way?

Dr. BEAVERS. Well, after the period of time, I think we were all fatigued. I think he was and I think everybody in the room was. I felt that he was fatigued as the rest of us were, during the course of a pretty long number of hours of interrogation.

Whether this would come under the heading of any physical harm, I don't know. I would not consider it so ordinarily.

Mr. SPECTER. Would that fatigue diminish or evaporate with some rest tonight?

Dr. BEAVERS. I think so; I think so. I know what you're trying to get at and I'll try to answer it the best I can. The question of whether his mental state, and secondarily, a physical problem would be seriously affected by having this interrogation, by having this man take a polygraph examination. The one thing that this man has not been ambivalent on since my acquaintanceship with him, and I mean that so far as I can think of literally, the one area, the one subject that he has not been having these mixed feelings about is the fact that he did want to make this testimony, either with truth serum or with a polygraph or some way of getting the truth out.

Now, as a physician, and this was my role in these evaluations, not at the time and so far until right now, not as somebody testifying, I was concerned with his mental state, and rather early I felt there would possibly be something useful so far as the man's mental state, if he could have a chance to tell his story. The mixture of what I consider his delusional state surrounding the possible conspiracy that people thought that he had, and therefore this tremendous number of destructive actions, that were presumably going on, fitted to an extent with some published reports of people's opinions here and abroad. In short, there has been a mixture of the delusional and of the factual, a mixture of his confusion and a mixture of all other people's confusion, and he is aware of it and has been, because apparently he gets newspapers. Apparently he has access to what both reasoned and unreasoned statements that are made. Consequently, I felt that it would be useful, if anything, that he be allowed a chance for this. I haven't stated this to anybody, I don't think, because there were a lot of

other things that I could not evaluate. I'm not in a position to evaluate the legal or other reasons that might not be useful.

Mr. SPECTER. But with respect to his mental status, would it have been your expectation prior to the time that the polygraph examination started that it would have been beneficial rather than harmful to have it conducted?

Dr. BEAVERS. If anything, the odds are good that it actually wouldn't do much one way or the other in my opinion, but the feeling of getting out the catharsis or the getting his story before the people that he has felt, for example, including the State, that were involved in some kind of action against people he cared for, because they assumed erroneously there was some conspiracy, then this might have some beneficial effect.

Mr. SPECTER. And what is your conclusion after being present during the course of the polygraphic examination as to whether it had beneficial effect or not?

Dr. BEAVERS. It's hard to say. I think he held up rather remarkably well. At least, this is my opinion. I haven't been present with polygraph interrogations, but he certainly did not show undue stress, either physical or emotional, and handled the questions better than I thought he would. It did seem like he was getting, in a sense, his day in court, which was by reasons of his, as I understand it, trial procedure and presumed defense tactics not allowed him in the first trial. This to me is what he kept coming back to during the course of the examination, that he wanted to get his story out, and during the times I have seen him.

Mr. SPECTER. Is it your interpretation that the consequence during the course of this polygraph examination may have the ultimate consequence of benefiting him?

Dr. BEAVERS. I think it could. I would suspect, if I tried to look and see what would happen tomorrow, that he might be somewhat depressed. This usually is what happens with somebody who has been looking forward to something for a long, long time that's going to be solving all of his problems and it actually happens and nothing much is different, but I think he will be depressed.

Mr. SPECTER. If he is depressed tomorrow, is that what you would think would be a temporary state?

Dr. BEAVERS. Yes; I think it.

Mr. SPECTER. So that that would not necessarily characterize the longrun effects of this examination?

Dr. BEAVERS. That's correct.

Mr. SPECTER. When you characterized a few moments ago his situation as being fatigued, as we all were, do you think that he understood all the questions which were being put to him and then answered them responsively, or do you think that at some point his fatigue reached such a point that he was not responding understandably to the questions?

Dr. BEAVERS. I was impressed with the skill of the man giving the test. I felt the breaks were fairly well spaced. He didn't show an excessive amount of fatigue, in my view, except before the first break. He seemed to show more fatigue then than he did later on.

Mr. SPECTER. Of course, you observed his interest in pursuing a great many topics and the difficulty really in bringing the examination to a close.

Dr. BEAVERS. Yes; which sort of fits with my feeling about the depression a little bit in that he was aware that, well, "the show is about over," that his day in court was coming to a close, and I suspect that the long-expected kinds of feelings probably were not as great as he hoped for.

Mr. SPECTER. Do you have anything else to add which you think would be helpful to the President's Commission in any way?

Dr. BEAVERS. I would only say that I think I'll make it my business to read up a little bit on some of the interrelationships between mental illness and polygraph. When I state that I'm not an expert in this area, it's true. If by a combination of my readings, which I plan to do, and my presence here and my previous and present views of Mr. Ruby, I might be of help in forming an opinion, I will be available.

Mr. SPECTER. If you find through that course of study that you have anything to add, I'm certain the Commission would be interested in having any supplemental observations or conclusions on your part.

Mr. Fowler, do you have anything you would care to ask Dr. Beavers?

Mr. FOWLER. I am requesting Mr. Tonahill to ask a few questions, if you have no objection, which is not in the way of cross-examination but just by way of a further development.

Mr. SPECTER. All right, Mr. Tonahill.

Mr. TONAHILL. Dr. Beavers, during the trial of Jack Ruby for the murder of Lee Harvey Oswald, Mr. Bill Alexander, the assistant district attorney, sought and obtained a death sentence for Jack Ruby for the murder of Oswald, and I along with other counsel sought far less—an acquittal or at least a number of years. You have noted, have you not, here that Mr. Ruby resents my presence. He says I'm not his attorney and then asked me to do him favors and this, that, and the other, and you have noticed he has tremendous faith and confidence in Mr. Alexander, who obviously is here to, in the event of another trial—and in the event of Mr. Fowler's efforts and mine to obtain another trial for him is successful—he is here to obtain information for the benefit and use of whatever information he can get to get another death penalty.

Have you an opinion as to what goes on with reference to Ruby's mental illness that causes him to put faith in Mr. Alexander and no faith in me. With reference to the question—is his mental state such that he can't aid and assist his lawyers in their efforts to appeal his sentence and try to get him a new trial, and in his defense, and in the management of his personal affairs, is he of such mental incompetency that those things indicate to you that there is something in his mind, something mentally ill about him that prevents him from realizing what is best for him in his dealings with the prosecutor and his defense attorneys, and in connection with managing his affairs and in helping his defense attorneys in his ability, his capacity, his capabilities of handling his personal affairs. What is your feeling about that from what you've seen here today and what you've known from other observations of Mr. Ruby?

Dr. BEAVERS. Maybe I can get it in pieces and parts of that—I don't know. I think the question of mental competency in the hearing that's going to be coming up in the future, at least from what I read in the newspapers, and I think possibly rather than an off-the-cuff answer, you may have to sort of settle for a statement that I made concerning his mental illness, because I don't do a whole lot of legal work, and I would be quite cautious in making

a statement concerning the specific legal questions about competency for affairs until I got more acquainted with this particular statute.

In other words, if you're asking me a question about his mental status and the mental illness, maybe I can make some comments.

Mr. TONAHILL. Well, I was trying to do it, but I wanted to give you a little range and you could pinpoint yourself down to such as the episodes here today between the relationship of his own lawyers and his apparent partiality to Mr. Alexander here.

Dr. BEAVERS. This is what I referred to earlier, and I will be glad to amplify it a bit. On the face of it, it seems to me that as far as an awareness and appreciation of reality, there was this jeopardy—that some of the behavior that he had toward Mr. Alexander as far as wanting him very definitely to be in the room when he made certain damaging statements concerning the amount of premeditation—this would not be the actions of a wise and prudent man in my opinion. I think it does fit more clearly with his previously stated delusional material to me, that in fact there is a considerable body of people, the district attorney's office and district attorneys included, who do feel that he is a part of a conspiracy, and that in fact either past, present and/or future actions toward loved ones and toward members of his race are going to be taken against these people because of this presumed conspiracy. If this were the case, then it would make extremely good sense that he would want Mr. Alexander here, and he would want him here very definitely because he, instead of being wise and prudent in the defense of his presumed safety and welfare at a future trial, he is much more concerned with getting the truth out so that a whole host of terrible things won't happen.

Now, in reference to his activities toward you [referring to Mr. Tonahill], the ambivalence we talked about was beautifully illustrated. He begins by reading you out, by firing you in a sense, and then later on in the middle of the activities he begins to have a markedly warm attitude toward you and begins to refer to you as, I think, "Joe," once again. A reverse I may have noticed of this, of two or three changes back and forth, but they were both distinctly and clearly expressed, which has been my experience and also my opinion based on working with people who have this kind of a delusional system, that they show consistently, that is, with somebody who

is related to them very closely—you're going to catch hell and then you're going to be responded to in an effort of bringing you back. In other words, I think there is a probability that the reasons for relating warmly to the district attorney's representative and ambivalently toward you are as I have stated, and very slightly different from one another.

Mr. TONAHILL. In his present mental state, do you feel he is capable of conferring with Mr. Fowler and me and Mr. Burleson and aiding and assisting us in an appellate effort in his behalf in reference to his mental capacity?

Dr. BEAVERS. This entails two questions—one, his mental state, and two, how much in fact is involved in aiding you in this appeal.

Now, to the first one, I hope and am reasonably confident of the opinion I have given of this present mental illness at this time. As to the latter, I have sort of opinions off-the-cuff from everything that he needs to be pretty savvy and help you out, to the fact that it doesn't make any difference at all as to whether he can talk or not in terms of an appeal, so I don't know, because I don't know No. 2.

Mr. TONAHILL. You and Dr. Holbrook, Dr. John Holbrook, who has examined him, and Dr. Stubblefield who has examined him, and Dr. West who has examined him, all four psychiatrists and outstanding men——

Dr. BEAVERS. And Dr. Tanay.

Mr. TONAHILL. And Dr. Tanay—five. Is it uniform agreement among you five gentlemen that Jack Ruby is mentally ill and suffers with psychotic delusions?

Dr. BEAVERS. The last time I talked to the other four gentlemen you have just mentioned, their opinion was the same as my own. I couldn't state if anybody changed their mind. Dr. Tanay, following his visit here, and I had lunch together and discussed the case. At the time that we talked to the judge, Dr. Stubblefield and I, and then some 2 weeks later, shared our views, and they were in reasonably consistent agreement. There was no disparity to speak of. Dr. West, I talked to by telephone about 2 weeks ago, I believe.

Do you remember when that was, Mr. Fowler?

Mr. FOWLER. I think perhaps that would be a month ago, Dr. Beavers, or somewhere thereabouts.

Dr. BEAVERS. Well, it was after I came back from vacation. At any rate, between 2 weeks and a month ago, I believe, and his view was that this man was mentally ill, and further than that, that he was pretty much as I have described him here.

Mr. TONAHILL. And there have been instances where he rammed his head into the wall and then tried to get his finger up in the light socket, and then tried to rip the seam out of his trousers to kill himself, you felt he was suicidal and should be protected from that effort, and all of you agreed on that, I believe?

Dr. BEAVERS. Yes. It really wasn't based on those actions as much as, I think, the depression that I saw initially, which has cleared up somewhat as he has gotten more delusionary.

Mr. TONAHILL. You all felt that he should be out of jail and in a mental hospital where he could get adequate mental care and mental treatment, from psychiatric care and therapy medications?

Dr. BEAVERS. Yes; I thought this and this was the recommendation of the other doctors that saw him.

Mr. TONAHILL. That would be Dr. Stubblefield, Dr. Holbrook, Dr. West, and Dr. Tanay?

Dr. BEAVERS. I'm not sure about Dr. Tanay. I don't know that I heard him state that specific thing. I do know that the recommendation of Dr. Holbrook and Dr. Stubblefield and myself, and further that Dr. West, made the same recommendation. I do feel that we had two problems. One was security as well as medical care. I feel like maybe I was perhaps a little bit more concerned about this than maybe some of the other specialists; I don't know. This just happened to be my own view, that I was not only concerned about this man, hopefully finding a place for hospitalization, but that it would have to be a place where he had adequate security from without as well as any idea of suicide.

Mr. TONAHILL. Is there anything unusual about a person who is mentally ill and of unsound mind, still possessing keen memory faculties and being

able to recall things accurately and clearly as well as being able to give responsive answers and to be in touch with reality?

Dr. BEAVERS. Oh, I would say that many people of unsound mind are deteriorated enough that they do not have adequate memory. Early in the course of many mental illnesses a lot of the faculties, including memory, are preserved, so that this in itself I don't think would—because he has an apparently good memory would not mean that he is of sound mind.

Mr. TONAHILL. That's what I mean—that there's nothing unusual about the fact that he could still be of unsound mind and still have good recall and good response to the questions asked by the polygraph operator?

Dr. BEAVERS. I'm a little hung up on the term "unusual," because to me, this is a statistical matter when you put it in that phrase, and then you would be talking about what percentage of people do and what percentage of people don't.

Mr. TONAHILL. I don't mean to do that.

I meant to ask you specifically, can Jack Ruby be of unsound mind, not know right from wrong, appreciate the nature and quality of his actions, and still have a keen memory, a good memory, and give clear response to questions that appear to place him in touch with reality?

Dr. BEAVERS. In my opinion this is possible for a person.

Mr. TONAHILL. Is it reasonably probable from the standpoint of medical certainty in your profession?

Dr. BEAVERS. I think so. You have included a question that I find it very difficult to answer—this business of right and wrong.

Mr. TONAHILL. Yes.

Dr. BEAVERS. I stated my opinion to the Dallas Criminal Bar Association concerning this particular phraseology, and you asked it inclusive, in terms of several things?

Mr. TONAHILL. Well, with Mr. Alexander's help, we're going to eliminate that from the criminal test for insanity in criminal law in Texas.

I believe that's all, unless Mr. Fowler has something.

Mr. FOWLER. Let me ask one thing, Dr. Beavers.

I believe that you do have a written report that you have submitted to the court, is that correct?

Dr. BEAVERS. Yes, sir. Now, I submitted a written report about the first evaluation, not to the court but to Mr. Burleson, who requested my services on behalf of family.

I then sent a shorter report, which included the major points and the recommendations, to the attorneys, to the judge, to Sheriff Decker, and I believe that's all.

Now, I assume, and I think it's the case that probably the defense attorneys passed the report on to the judge, but I did not send it myself.

Mr. FOWLER. In any of these reports, you have no objection to making them available to this Commission?

Dr. BEAVERS. Oh, no.

Mr. FOWLER. If they are requested?

Dr. BEAVERS. If the rights of the patient and the defense attorneys are in agreement—if the rights of the patient are maintained—no, I have no objection.

Mr. TONAHILL. I think it would be nice, if you would, let him have copies of all the reports you have written with respect to his illness, and they would not involve any jeopardy of Mr. Ruby's rights at all, if you would mail them to Mr. Specter.

Dr. BEAVERS. Would you like to have them?

Mr. SPECTER. The Commission would be glad to receive any reports you have or any other supplemental information that you may wish to provide.

Dr. BEAVERS. I'll be happy to.

Mr. SPECTER. Mr. Alexander, do you have a question?

Mr. ALEXANDER. Just one or two questions.

Do you recognize that late counsel for the defense, Mr. Fowler, did not participate in the Jack Ruby trial and is not as aware of the facts brought out

in the investigation as perhaps I, who was in on it at the first, or Mr. Tonahill, who was in on the trial? You appreciate that, do you not?

Dr. BEAVERS. You are saying that——

Mr. ALEXANDER. That Mr. Fowler got in so late on this thing that he probably doesn't know—that he is not as aware of the facts of the case as I am?

Dr. BEAVERS. I don't know how I would know that. I know when he came in, but how aware of the facts he is, I don't know that. How would I know that?

Mr. ALEXANDER. Did it appear to you that Ruby was looking to me for aid in framing some of these questions because of my peculiar knowledge of the case, in that I was in on it from the moment of the assassination of the President?

Dr. BEAVERS. I noticed that he did look to you in terms of getting some sort of support or information or possibly framing questions.

Mr. ALEXANDER. And you see nothing unusual in that, considering the fact that I am probably the one person that has possession of the most facts?

Dr. BEAVERS. I think I have already covered what I felt was probable, as far as what was going on with Mr. Ruby as to how he behaved here.

Mr. ALEXANDER. Did you feel that he wanted me particularly to know the truth about certain areas or at least the truth as he represented it?

Dr. BEAVERS. Yes, sir.

Mr. ALEXANDER. You did not feel that I took advantage of him in any way here today, do you?

Dr. BEAVERS. No, I thought you were extremely gentlemanly and pleasantly helpful.

Mr. TONAHILL. I am not making that comment.

Mr. FOWLER. You have been the most cordial since we have been in this, Bill.

Let me make one other statement—this is relevant.

Are you through, Bill?

Mr. ALEXANDER. Yes, sir.

Mr. FOWLER. I wish to make this statement for the record that at some time during the course of this interrogation and hearing, that I was called by Mr. Bill Decker, stating that a telephone call, long distance, had been made to him. I answered the phone and Mr. Earl Ruby and Mr. Sol Dann were on the phone speaking from Detroit. They wanted to know what was going on and who had authorized this hearing, and why I came down and why Mr. Tonahill was here, and why we did not stop the hearing.

I tried to the best of my ability to explain to him that I had talked with Jack and has also explained to the Commission that we were of the opinion that Mr. Ruby had certain rights that might be violated here, but that this was entirely the wishes and demands of Jack Ruby himself, and these matters had been set up prior to my entrance into the case and prior to the entrance of Mr. Dann, and that I could not control them.

I was informed by Mr. Dann at that time that it was his intention to immediately contact the Warren Commission in Washington and file a criminal case, a case of assault and battery, against all parties conducting this hearing, including myself and Mr. Tonahill. At this point I was summarily fired, together with Mr. Tonahill, and I feel that this matter of course is something that Mr. Dann is not aware of, that all of this that has taken place here today—I think that we have tried to protect the rights of Jack Ruby, and I put this in to merely show that the call was made, and if any of you gentlemen have fear of reprisal or for whatever purpose it might be, and that I am sure that something further will be made of it.

Again, I wish to state this that in my opinion, whether we are still employed in the case, and I have not been fired by Jack Ruby, that we feel absolutely that his rights have been protected.

Mr. ALEXANDER. His brother Earl has not fired you either.

Mr. SPECTER. That concludes the proceedings. Thank you all very much.

Mr. ALEXANDER. Just one more thing.

I myself will make no statement to anybody outside this room about anything, and let me make the suggestion that whatever statement is made,

is made by Mr. Specter, if you want to agree on that.

Mr. TONAHILL. In fact I think that if Mr. Specter is going to give this statement, that if he tells them that a polygraph has been taken, I don't think any of the questions and answers should be given out.

Mr. FOWLER. No; I very definitely and specifically request that these matters that have been gone into here today be for the Commission and the Commission only. It is our wish.

Mr. SPECTER. That will be done. The Commission heretofore has made no public statement of content to any extent. It has been the practice of the Commission to announce only what witnesses have been heard, and a very general statement of the witness' status. In fact, Mr. Ruby was insistent that there be a statement made in terms of his request and his cooperation, and that had been discussed before as being the appropriate limit of such a statement. It's my view that that should be followed up on, but no details of any sort stated as to his responses or anything else that transpired in this proceeding today.

Mr. TONAHILL. Yes; that he cooperated to the best of his ability.

Dr. BEAVERS. Any questions that are asked me, I will refer to Mr. Arlen Specter.

Mr. SPECTER. Very fine, Dr. Beavers.

Thank you very much. This will conclude these proceedings.

Proceedings concluded at 10 p.m.

TESTIMONY OF BELL P. HERNDON

The testimony of Bell P. Herndon was taken at 2:05 p.m., on July 28, 1964, at 200 Maryland Avenue NE., Washington, D.C., by Mr. Arlen Specter, assistant counsel of the President's Commission.

Mr. SPECTER. May the record show that this is a deposition proceeding of the President's Commission on the Assassination of President Kennedy.

Present today is Mr. Bell P. Herndon, a special agent of the Federal Bureau of Investigation, who has been asked to testify concerning the results of the polygraph examination administered to Jack Ruby in Dallas, Tex., on July 18, 1964.

With that preliminary statement of purpose, would you rise, please, Mr. Herndon, and raise your right hand?

Do you solemnly swear that the testimony you shall give in this deposition proceeding before the President's Commission on the Assassination of President Kennedy will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. HERNDON. I do.

Mr. SPECTER. Would you state your full name for the record, please?

Mr. HERNDON. My name is Bell P. Herndon.

Mr. SPECTER. What is your profession or occupation?

Mr. HERNDON. I am a special agent of the Federal Bureau of Investigation.

Mr. SPECTER. How long have you been so occupied?

Mr. HERNDON. I have been employed as a special agent going on 14 years.

Mr. SPECTER. What specialty, if any, do you have with the Federal Bureau of Investigation?

Mr. HERNDON. I am presently the polygraph supervisor and polygraph examiner assigned to the FBI laboratory, Washington, D.C.

Mr. SPECTER. Would you outline briefly your educational background, please?

Mr. HERNDON. I received a bachelor of science degree from St. Lawrence University in 1947.

I have been in the FBI since 1951 and have been employed as a special agent primarily in field investigator work for approximately 10 years. The past 4 years I have been fully assigned to the laboratory in the capacity of a polygraph supervisor.

Mr. SPECTER. What specialized training, if any, do you receive in order to qualify for being a polygraph operator?

Mr. HERNDON. Upon assignment to the FBI laboratory I underwent an intensive 6-months training program under a doctor, Ph. D. in psychology, who was a special agent polygraph examiner assigned to the New York office.

I also received considerable training from other special agents in the FBI laboratory who had graduate work in physiology and law.

After completion of 6 months' intensive training, I was declared qualified to handle polygraph examinations for the Federal Bureau of Investigation.

Mr. SPECTER. And approximately how many polygraphic examinations have you conducted during your service with the Federal Bureau of Investigation?

Mr. HERNDON. I have either given, supervised, or reviewed several thousand polygraph examinations.

Mr. SPECTER. Would you outline briefly just what the polygraph machine is, and how it functions?

Mr. HERNDON. The polygraph instrument, of course, is commonly known to the public as the lie detector. In fact it is not such a device. The

polygraph is simply an instrument which is designed to record certain physiological responses under stimuli in a carefully controlled interrogation. These physiological responses may accompany and indicate deception. It is used primarily as an investigative aid by the Federal Bureau of Investigation.

Mr. SPECTER. From what does the machine derive its name "polygraph"?

Mr. HERNDON. The name polygraph is derived from the Greek derivative, poly meaning many, graph meaning writings and the actual polygraph chart will portray several writings indicating physiological responses of the examinee.

Mr. SPECTER. How many writings are there specifically which are made by the polygraph instrument?

Mr. HERNDON. On the current polygraph used throughout the field the instrument records three different physiological responses.

Mr. SPECTER. And would you identify those three physiological responses, please?

Mr. HERNDON. The first physiological response recorded on the polygraph pertains to the pneumograph tracing, pneumo pertains to the respiratory pattern of an individual. In other words, it records the inhalation and exhalation tracings of the person as he is normally breathing. It also records what we call the respiratory ratio, the ratio of the inhalation stroke to the exhalation stroke.

The second component utilized in the polygraph technique today is generally called the psychogalvanic skin response.

Mr. SPECTER. Spell that, please.

Mr. HERNDON. Actually, it is referred to as the galvanic skin response, galvanic. This particular response is obtained by electrodes placed on the examinee's hands or fingers, a small minute amount of electrical current is passed through the skin, and the galvanometer will record the minute changes in the electrical skin resistance of the skin or the electrodermal response.

The third component utilized in polygraph technique is the cardiograph. This particular component measures the relative blood pressure changes and also the changes in the heart rate or pulse beat. The tracing is obtained by a pneumatic cuff being placed on the arm, usually the left arm, a certain amount of pressure applied so that the mean blood pressure can be obtained and the tracing is recorded on a moving sheet of chart paper.

Mr. SPECTER. Would you outline briefly the development of the polygraph instrument, please?

Mr. HERNDON. Over the years psychologists and physiologists have been aware of the fact that many people seem to respond physiologically under emotional stress, one, of course, being under a stress of a deception.

The more serious lie a person tells, quite frequently he is likely to have a physiological response. Over the years people who have dealt with interrogation techniques have frequently noticed that when a person is deceiving, that they visibly respond emotionally. In other words, they may not look a person right in the eye.

There may be a choking up of the throat. They may become flushed in the face. Based on this general common sense observation, law enforcement individuals who had psychological and physiological training decided in about 1920 that if they could obtain an instrument to record certain physiological, changes with regard to suspects in criminal cases, they might be in a better position to perhaps determine whether or not the person has been telling the truth.

They developed an instrument which was eventually called the polygraph or so-called lie detector.

Through the years it has been used by law enforcement. It is primarily used, as I said before, as an investigative aid, and it has been helpful in that it can provide investigative direction to people in the law enforcement profession.

Mr. SPECTER. What is its level of reliability in indicating patterns of deception?

Mr. HERNDON. There has been no conclusive scientific objective study in that regard, and as of today there are no valid statistics with regard to its actual objective reliability.

Mr. SPECTER. What is your opinion as to its level of reliability in measuring patterns of deception in a normal person?

Mr. HERNDON. Well, the polygraph, of course, measures certain physiological responses which have to be interpreted. It must be clearly understood that the physiological responses that are portrayed on a polygraph chart can often be caused by things other than deception, such as fear, anxiety, nervousness, dislike, and many other of these emotions.

A polygraph examiner has to be extremely skilled and conservative in his estimation as to whether or not it is deception. I cannot give you any clear-cut personal opinion as to the validity of the technique with regard to its percentage of reliability.

Mr. SPECTER. Aside from an opinion as to percentage of reliability, what is your opinion in a very general way as to the ability of a well-trained, conservative examiner to detect a pattern of deception in a normal person under appropriate standards of administration?

Mr. HERNDON. Based on a hypothesis of all factors you mentioned, a polygraph examiner under ideal conditions can generally interrogate a person, and if he has been able to obtain what he considers good control questions, he then may be able to come up with a conclusion which would indicate whether or not a person is deceiving or not.

Mr. SPECTER. Would you describe what you mean by a control question?

Mr. HERNDON. The control question is the question on which you would expect the examinee to probably lie, or have some emotional response which can be used for comparative purposes with regard to the relevant questions of the interrogation.

Mr. SPECTER. Would you give an example of what you mean by control question, then?

Mr. HERNDON. Yes, I can.

In a bank embezzlement case, a good control question with an individual might be, "Have you ever stolen anything in your life that didn't belong to you?"

In that regard it is expected the person would probably either hedge or deceive, and, therefore, the examiner can usually have an indication of

whether or not this person will respond to a deception based on the examinee's response to that question.

Mr. SPECTER. Mr. Herndon, what is the policy of the Federal Bureau of Investigation on the use of the polygraph examination?

Mr. HERNDON. The FBI uses the polygraph technique purely as an investigative aid, in very carefully selected cases.

As I have said before, we feel that the polygraph technique is not sufficiently precise to permit absolute judgments of deception or truth without qualifications. The polygraph technique has a number of limitations which must be considered by the examiner. The instrument, again, I said before, is designed to record under proper stimuli emotional responses in the form of physiological variations which may accompany and indicate deception.

Mr. SPECTER. What effect, if any, would there be on a polygraph examination if the subject were a psychotic depressive with respect to mental condition?

Mr. HERNDON. In that particular case, the FBI ordinarily would not render a polygraph examination to any individual in which there was any indication or evidence that he was psychotic.

Mr. SPECTER. What validity would a polygraph examination have on a person who was a psychotic depressive with respect to the mental condition?

Mr. HERNDON. The examination would be completely inconclusive or invalid in view of the fact that a psychotic individual is divorced from reality, and the tracings on his polygrams could not be logically interpreted.

Mr. SPECTER. Then is it necessary that a person be in touch with reality and understand the nature of the questions and answers in order for a polygraph examination to have any validity?

Mr. HERNDON. Yes, it is.

Mr. SPECTER. Did you have occasion to conduct a polygraph examination on Jack Ruby?

Mr. HERNDON. Yes, I did, on July 18, 1964.

Mr. SPECTER. And at whose request was that polygraph examination conducted?

Mr. HERNDON. The examination of Jack Ruby was conducted at the specific request of the President's Commission.

It is my understanding that Mr. Ruby specifically requested such a polygraph examination to the Commission in a prior interview he had with the Chief Justice.

Mr. SPECTER. Were you present during the course of the entire session when Mr. Ruby was questioned, both before, during and after the actual administration of the polygraph examination?

Mr. HERNDON. Yes, I was.

Mr. SPECTER. And before the test was actually administered, did anyone ask Mr. Ruby whether he wished to have a polygraph examination conducted on him?

Mr. HERNDON. Yes. I believe Mr. Ruby was asked that question by the Commission. I am not sure of whether the defense attorney specifically asked him whether or not he wanted to take it, but I know that they were definitely against him taking the polygraph examination.

In my initial discussion with Mr. Ruby, I again also asked him to sign a voluntary waiver of consent to insure that he was freely and voluntarily taking the polygraph examination.

Mr. SPECTER. And what was Mr. Ruby's response on the question of whether he wanted to take the polygraph examination?

Mr. HERNDON. He clearly implied that he desired to proceed and take the polygraph examination.

Mr. SPECTER. Was it an implication or was it a direct statement on his part that he wanted the examination?

Mr. HERNDON. It was a direct statement, and he signed the waiver of consent.

Mr. SPECTER. Where was the polygraph examination conducted?

Mr. HERNDON. The polygraph examination of Jack Ruby was conducted in one of the rooms in the Dallas county jail.

Mr. SPECTER. Who was present at the time the examination was conducted?

Mr. HERNDON. Present during the examination were Mr. Arlen Specter of the President's Commission, myself, representing the FBI, Special Agent W. James Wood, of the Federal Bureau of Investigation, Dallas, Tex., office, Mr. Ruby's attorneys were present, one being chief counsel Mr. Clayton Fowler, another attorney was present by the name of Mr. Joe Tonahill. Also present during the examination was a representative of the Dallas district attorney's office, a Mr. William Alexander.

Mr. SPECTER. Was he present during the time of the examination or during the preliminary discussion on questions only?

Mr. HERNDON. He was present during the entire examination except for that phase in which Mr. Ruby was actually responding to my questions while he was actually on the instrument.

Mr. SPECTER. And who else was present?

Mr. HERNDON. Also present during the entire polygraph proceedings was a Dr. William Beavers, I believe, of Dallas, Tex., and a chief jailer, I believe his name was E. L. Holman. There was a court reporter, Odell Oliver, also present during the proceedings.

Also present during the preliminaries of the proceedings was a gentleman from the Dallas sheriff's office by the name of Mr. Sweat, who indicated that he was a polygraph examiner.

Mr. SPECTER. Was a request made that he not be present during the course of the examination?

Mr. HERNDON. After consultation with Mr. Specter and myself, I believe Mr. Specter made arrangement with the sheriff, Mr. Decker, that Mr. Sweat not be present during the polygraph examination and further proceedings.

Mr. SPECTER. What was the physical arrangement of the room with respect to Mr. Ruby's positioning during the time that the polygraph examination was actually administered?

Mr. HERNDON. I attempted to arrange Mr. Ruby in such a position that there would be a minimum of distraction and disturbance to him during the actual polygraph examination. He was placed rather closely against a wall where there were no pictures or no distracting marks or implementations on the wall. I also tried to place him in such a position so that he could not readily see anyone else who was in the room during the proceedings.

Mr. SPECTER. Were you successful in placing him in a position where he could not see anyone else while the test was being administered?

Mr. HERNDON. I believe he was in a position that only his secondary vision from the sides would possibly give him the impression that somebody was in the room.

Mr. SPECTER. What effect, if any, did the presence of the other people in the room have on the administration of the test, in your opinion?

Mr. HERNDON. Normally during a polygraph examination the only ones in the room are the examinee and the examiner, and during Bureau proceedings we usually have another agent in the room out of sight that takes notes. It is considered an undesirable factor to have many people present in the room during a polygraph examination, particularly if these people are involved in any way in the case, such as the defendant's attorney or someone who has a personal and keen knowledge in the proceedings. In this particular instance, it appeared to me that Mr. Ruby divorced the presence of these people from his mind during his response to the questions. However, it should be considered a factor which is one that could tend to negate a valid conclusion with regard to chart interpretation.

Mr. SPECTER. Have you taken that factor, then, into account in your evaluation of chart interpretation?

Mr. HERNDON. Yes; I have.

Mr. SPECTER. Mr. Herndon, did you hear the testimony of Dr. William Beavers which was taken immediately following the administration of the polygraph examination commencing at 9:10 p.m., on July 18, 1964?

Mr. HERNDON. I heard his testimony.

Mr. SPECTER. Did you hear him testify in a conclusory fashion that: "These symptoms," referring to symptoms which he had described, "plus

the depression which was evident caused me to diagnose a psychotic depressive reaction”? Did you hear him make that diagnosis?

Mr. HERNDON. Yes; I did.

Mr. SPECTER. If that diagnosis is accurate, would there be any validity in a polygraph examination of Mr. Ruby?

Mr. HERNDON. There would be no validity to the polygraph examination, and no significance should be placed upon the polygraph charts.

Mr. SPECTER. Did you further hear Dr. Beavers testify as follows: “In the greater proportion of the time that he,” referring to Ruby, “answered the questions, I felt that he was aware of the questions and that he understood them, and that he was giving answers based on an appreciation of reality.”

Mr. HERNDON. I heard him so testify.

Mr. SPECTER. If Mr. Ruby’s mental condition was accurately characterized in that latter statement, then would the polygraph examination have validity in accordance with the limitations which you heretofore described?

Mr. HERNDON. Well, based on the hypothesis that Ruby was mentally competent and sound, the charts could be interpreted, and if those conditions are fact, the charts could be interpreted to indicate that there was no area of deception present with regard to his response to the relevant questions during the polygraph examination. However, I have no specific information to my knowledge which would resolve the hypothesis or the suggestion made by Dr. Beavers that Ruby was in fact rational and fully competent at that time, and, therefore, I would still have to render an inconclusive opinion with regard to the charts.

Mr. SPECTER. When you say in your last answer if Ruby was competent or sane, by that do you mean the characteristics which Dr. Beavers described, stated specifically, that he understood the questions and the answers, that he was giving answers based on appreciation of reality?

Mr. HERNDON. I qualified my answer to the previous question because of the fact, if you will recall, Dr. Beavers also testified later that it is entirely possible for a person who is psychotic to still appear to be rational

and to be fully aware of reality. This particular testimony is with regard to specific questions presented to Dr. Beavers by Mr. Tonahill, and it is a known fact that certain psychotics at times can appear completely rational and appear to be competent.

Mr. SPECTER. The distinction on that, though, would be whether or not they are, in fact, in touch with reality, understanding the nature of the questions and answers, or whether they only appear to be in touch with reality? Would that not be the key distinction that Dr. Beavers is making in his testimony?

Mr. HERNDON. I am not sure I follow you there, Mr. Specter. Will you repeat that again?

Mr. SPECTER. Yes. You say that Dr. Beavers said that many psychotics appear to understand the questions or appear to be in touch with reality.

Mr. HERNDON. He said it is possible, I believe, that a psychotic could appear to be rational and have a good memory, but still be a psychotic individual or psychotic personality.

Mr. SPECTER. Yes; but wasn't the key distinction that Dr. Beavers was making was whether or not, in fact, the individual did understand the questions as opposed to whether he appeared to understand the questions?

Mr. HERNDON. Yes; I gather from Dr. Beavers' testimony that in this particular instance during this particular phase of the examination with regard to two exceptions which he mentions, Ruby appeared to be fully aware of the intent and the meaning of the question and was rational in his reply.

Mr. SPECTER. But didn't he go beyond that, Mr. Herndon, that is he did not use the qualifying term of Mr. Ruby's appearing to be in touch with reality, but said, and I will make the portion of the transcript available to you: "I felt that he was aware of the questions and that he understood them, and that he was giving answers based on an appreciation of reality."

Now, you have read that along with me. The distinction I am making here is that Dr. Beavers doesn't say here that Mr. Ruby appears to be in touch with reality, but that he, in fact, is, according to Dr. Beavers' conclusion, during the course of this examination, except for two areas

which I am going to come to, that Ruby was, in fact, in touch with reality and did understand the nature of the questions and answers.

Mr. HERNDON. I recall he did specifically make that comment.

Mr. SPECTER. So that whatever ultimate conclusions flow from whether Ruby was psychotic or whether he was in touch with reality are beyond your ken as a polygraph examiner? You merely rely on what the psychiatrist says in formulating your conclusions; is that not so?

Mr. HERNDON. That is correct, Mr. Specter. I would defer to psychiatrists, of course, with regard to whether or not a person is mentally competent or not.

Mr. SPECTER. So that if Mr. Ruby was psychotic, then the polygraph examination would have no validity?

Mr. HERNDON. That is correct, sir.

Mr. SPECTER. And if, on the other hand, Mr. Ruby was competent and in touch with reality, understanding the nature of the questions and the content of his answers, then the polygraph examination would have validity?

Mr. HERNDON. Under that theory, then the polygraph examination could be interpreted, and there would be a conclusion rendered, still considering, of course, all the limitations of the polygraph technique, of course.

Mr. SPECTER. Now, what two areas of questions did Dr. Beavers exclude in the portion of his answer which you and I just read together?

Mr. HERNDON. Dr. Beavers made specific reference to two questions which were originally drafted by himself, Dr. Beavers. These questions were in regard to whether or not Ruby believed his family were harmed or have been harmed, whether or not his family have been harmed for what he did, and the other question was in regard to whether or not he believed his chief counsel, Mr. Fowler, was in danger for defending him, Ruby, that is.

Mr. SPECTER. And as the record will show, those were the two questions that Dr. Beavers referred to where he felt Ruby was out of touch with reality when he answered them during the course of the polygraph examination?

Mr. HERNDON. That is correct.

Mr. SPECTER. And focusing for just a moment on those two questions before we proceed to your conclusions, what answer did Mr. Ruby give to the question as to whether his family had been harmed as a result of what he did?

Mr. HERNDON. During the actual polygraph examination, when that question was asked, Mr. Ruby failed to respond either yes or no.

Mr. SPECTER. Is there any portion of the overall examination which precedes the time when the machine is activated and the needles are operating, so to speak?

Mr. HERNDON. Yes. During the pretest interview, the actual questions are carefully discussed with the examinee, in this case Mr. Ruby, so that he fully understands the intent and the meaning of the questions.

Mr. SPECTER. And is that a normal part of a polygraph examination?

Mr. HERNDON. That is a standard procedure in a polygraph interrogation technique.

Mr. SPECTER. And what is the purpose for that?

Mr. HERNDON. The purpose of that primarily is to be sure that the examinee fully understands the question and that there are no problems of surprise or semantics. It also psychologically conditions the subject in that he commits himself prior to the test and will be conditioned to know that the question will be asked again and he will have to make a decision as to how he is going to answer it, and whether or not he is going to attempt to deceive.

Mr. SPECTER. And what answer did Mr. Ruby give to the question about whether his family had been harmed as a result of what he did during the course of the preliminary discussion session?

Mr. HERNDON. To be sure; could we just check the transcript on that? I believe he did say yes, with regard to that question.

Mr. SPECTER. Certainly. Please do check the transcript, or your notes, either way which would be most expeditious. (Pause.) Have you now had an opportunity to check the transcript on that last answer, Mr. Herndon?

Mr. HERNDON. Yes; I have reviewed the transcript, and with regard to both those questions Mr. Ruby replied "Yes."

Mr. SPECTER. During which portion of the examination?

Mr. HERNDON. This was during the pretest interview.

Mr. SPECTER. When you say he gave "yes" answers to both questions, you mean the question about "did he think his family had been harmed as a result of what he did," and also the question about "whether his defense counsel, Mr. Clayton Fowler, was in danger as a result of representing Mr. Ruby"?

Mr. HERNDON. Yes; in both instances he volunteered yes.

Mr. SPECTER. Now, Mr. Herndon, based on the hypothesis or assumption that Mr. Ruby was in touch with reality, and understood the nature of the questions, and the quality of his answers, what opinion did you formulate, if any, as to patterns of deceptiveness on the relevant questions during the polygraph examination?

Mr. HERNDON. Based on the hypothesis that you just gave, Mr. Specter, a review of the polygraph charts would indicate to me, if in fact Ruby was mentally competent and sane, that there was no indication of deception with regard to the specific relevant pertinent questions of this investigation.

Mr. SPECTER. At this time, Mr. Herndon, I would like to take up the first series of questions and answers, and ask you to state for the record what they were and what graph readings you took by way of elaborating upon the conclusion which you just gave.

For the record I shall mark that first chart as Herndon Deposition Exhibit No. 1.

(The document referred to was marked Herndon Deposition Exhibit No. 1 for identification.)

Mr. HERNDON. As I review the first polygraph chart I notice that I made a notation at 1 p.m., that Ruby's attorneys agreed to let Mr. Ruby take the test. I actually started my adjustments of the instruments on Mr. Ruby at 3 p.m. In this regard, I believe it proper to state that I was using a Stoelting deceptograph model 22500 which utilizes three components, the

pneumograph, the galvanic skin response, and the cardiograph. Also utilized during the examination was a Stoelting polygraph subject chair.

Mr. SPECTER. Will you describe the chair used during the course of this examination, please?

Mr. HERNDON. The polygraph subject chair is so designed to adjust the level of the arms and to give complete and full support to the arms. This is necessary to provide a minimum of restriction or pressure on both of the arms of the examinee. This is desirable in order to obtain the best possible tracing with regard to a person's relative blood pressure changes and relative changes in the heart rate. It is also desirable to obtain the best possible tracing of the electrodermal responses or the galvanic skin responses. The chair is also constructed so that the person will generally refrain from slouching or crossing his legs during the examination, both of which are undesirable.

Mr. SPECTER. Would you now then proceed to testify about the recordings on the chart?

Mr. HERNDON. I also notice with regard to the room that the lighting in the room was incandescent and not fluorescent, this possibly being a factor in the tracings with regard to the galvanic skin response. The incandescent lighting is much preferable, and, therefore, I feel that there was no outside electrical disturbance with regard to the tracing of the GSR, galvanic skin response.

Mr. SPECTER. Could you elaborate just a little more on why you think the lighting would have an effect on the galvanic skin response testing device?

Mr. HERNDON. I made a notation of this fact in my notes, in view of the fact that it has been evident in the past that fluorescent lighting at times has interfered with proper tracings with regard to the galvanic skin response.

Mr. SPECTER. And fluorescent lighting was present here?

Mr. HERNDON. No, fluorescent lighting was not present here, and the desirable or preferable incandescent lighting was present.

Mr. SPECTER. So that that would have a beneficial effect on eliminating a potential source of interference?

Mr. HERNDON. Not beneficial, but it would not necessarily hinder the tracing.

Mr. SPECTER. Fine.

Proceed.

Mr. HERNDON. During my initial adjustments of Mr. Ruby to the polygraph, I noticed that he had a breathing rate of approximately 21 cycles per minute, which is well within normal respiratory patterns. I noticed that his heart rate was approximately 78 beats per minute, which is well within normal heart rate of individuals, and that there appeared to be no physical problems with regard to obtaining a satisfactory cardiogram, which monitors the cardiovascular system.

During series 1, two relevant questions were asked which were pertinent to the investigation.

Question No. 4, in which Ruby was asked, "Did you know Oswald before November 22, 1963?"

Mr. SPECTER. And what was his response to that question?

Mr. HERNDON. To that question he responded, "No," and an interpretation of the charts based on the premise that Ruby was mentally sound and competent would fail to indicate any physiological response which would be suggestive of deception.

Mr. SPECTER. And what is the basis for your conclusion that there was no deceptive response elicited to that question?

Mr. HERNDON. This conclusion is actually based on my interpretation and study of the overall charts which are still to come up. Actually, in series 1, I noticed, however, that Mr. Ruby did respond physiologically to a control type question: "Have you ever been arrested?"

This physiological response was in the form of a rather noticeable rise in his blood pressure. To this particular question he did answer "Yes," and later explained that he had been arrested for dancing after curfew at his own place.

He indicated by his answer that he was somewhat embarrassed by this.

Mr. SPECTER. Was that for dancing after curfew or for permitting others to dance after curfew?

Mr. HERNDON. I got the interpretation from his comments that it was permitting dancing, and him also being possibly involved in the party after curfew hours. This, to me, does indicate, if in fact Ruby was mentally competent, that he was capable of displaying emotional responses on the polygraph, in this instance not necessarily deception, but some concern, as portrayed by the relative rise in blood pressure.

During series 1 Mr. Ruby was also asked another relevant question, question No. 6, which was pertinent to the investigation, that question being: "Did you assist Oswald in the assassination?"

Mr. SPECTER. And what was his answer to that question?

Mr. HERNDON. To that question he responded "No," and if in fact he was mentally competent at the time he answered that question, the charts could be interpreted that there was no physiological response to the stimulus of the question.

Mr. SPECTER. When you say "could be interpreted," Mr. Herndon, do you mean that that was your opinion or your conclusion as to whether there was a physiological response?

Mr. HERNDON. I wish to qualify my opinion here based on the fact that I am responding under the hypothesis proposed by you that this chart is being interpreted, that Ruby is of sound mind, and was rational in his mental process when responding to this question.

Mr. SPECTER. Fine.

As I understand it, that is your basic hypothesis or assumption in all of your answers to interpretation?

Mr. HERNDON. Fine, if we will keep that in mind.

Mr. SPECTER. Yes. I think that is fair and I think we have put that on the record at the start so that whatever you interpret here is based on the assumption that he was in touch with reality, understood the questions, and knew what he was answering.

Mr. HERNDON. Correct, sir.

Mr. SPECTER. But the point I was coming to was, you said it “could be interpreted” that there was no pattern of deception, and my concern was whether there was any deliberate qualification in your answer on “could be interpreted” or whether it was your positive interpretation that assuming he knew what he was talking about and was sane, that there was no pattern of deception in his negative answer on the question of, “Did you assist Oswald in the assassination?”

Mr. HERNDON. To answer that question, Mr. Specter, I would have to go back to my original statement that the polygraph technique is not considered precise enough to make absolute statements of deception or nondeception, so, therefore, any time I make any observation it would be using probably a qualified word such as “appeared to indicate deception” or “suggestive of deception,” keeping in mind that, of course, there are many emotional responses that I am not in a position to evaluate, such as fear of being falsely accused, dislike for the people in the room, other factors which may tend to negate positive statements that here in fact this thing is meaning he is not lying.

Mr. SPECTER. On that particular question, were there any indicators at all that he was deceiving in his answer to question No. 6, to wit: “Did you assist Oswald in the assassination?”

Mr. HERNDON. Other than a slight impact in the GSR, there was no noticeable change in his physiological responses to that particular question.

Mr. SPECTER. And what was the slight impact that you referred to in the GSR, meaning galvanic skin response?

Mr. HERNDON. The impact here not being significant enough to make any specific evaluation.

Mr. SPECTER. Then were there any other relevant questions in the first series?

Mr. HERNDON. There were no other relevant questions in the first series.

Mr. SPECTER. Was there anything else in the first series which is significant enough to comment on by way of analysis of the overall examination?

Mr. HERNDON. No other than to say that the total chart minutes for series 1 was 2 minutes 25 seconds in duration of time.

Mr. SPECTER. Is there any fixed limitation on how long a series can run?

Mr. HERNDON. Yes, it is generally conceded that a person should not be run on the polygraph beyond perhaps 4 minutes, inasmuch as after that time the pressure on the arm cuff can become discomforting and irritating to the examinee.

In view of the fact that there was a question here of possible effect on Ruby's health, I attempted to maintain all my questioning within an approximate 3-minute period to insure no damaging effect on his physical condition.

Mr. SPECTER. Is there any overall limitation on the amount of time that a person can appropriately take a polygraph examination?

Mr. HERNDON. Yes, there is a limitation. Certainly if a person is interviewed with polygraph at great length, in due time he is bound to become desensitized to the technique. In other words, the pressure on his arm and the technique itself becomes less valid as the increase in time proceeds.

Mr. SPECTER. Did Mr. Ruby ever become desensitized to the technique?

Mr. HERNDON. I believe in the last series of the first session, which I believe is series 4, Mr. Ruby showed some indications of becoming fatigued and displayed some tiredness in the charts. Also, I might add in the latter phase of the examination, in the latter series, there was some indication that he was approaching this desensitization that I have mentioned before.

Mr. SPECTER. Have you now given us all the relevant findings from series of 1?

Mr. HERNDON. I think so. There might be one other thing I will just mention here, and that is in question 5 with regard to, "Do you use the middle name Leon" there were some noticeable changes in the physiological tracings. However, these were caused by his laughter and talking in which he later explained that he sometimes used the name, but other times he doesn't, and that the name Leon is sentimental to him. That

is the only other noticeable variance in his normal tracing that I wish to comment on.

Mr. SPECTER. Let us then proceed now to series 2 and mark that Herndon Deposition Exhibit No. 2, if we may, please.

(The document referred to was marked Herndon Deposition Exhibit No. 2 for identification.)

Mr. SPECTER. Now, referring to that chart, what significant findings were there on that chart?

Mr. HERNDON. The only significant change physiologically during series No. 2 was in Mr. Ruby's response to the question, "Have you ever been known by another name?", as portrayed by an increase in his blood pressure. He answered this question with both a yes and a no, and after the series was completed there was some discussion with regard to the question. He mentioned that he was uncertain how to answer the question because he had originally used the name of Jack Rubenstein and that he had legally changed it at a later date. Other than some variations in the pneumograph which were caused by his hesitating to answer due to the length of the questions provided, there is no other significant physiological change noticed in series 2.

Mr. SPECTER. And what were the relevant questions in series 2?

Mr. HERNDON. The relevant questions in series 2 were No. 3 "Are you now a member of the Communist Party?" in which there was no significant physiological change.

Mr. SPECTER. What was his response there?

Mr. HERNDON. He responded "No," to that question.

On question No. 5, which is considered relevant, he was asked, "Have you ever been a member of the Communist Party?" He responded "No," and there is no significant response recorded. There is an adjustment on my behalf of the cardiogram tracing.

Mr. SPECTER. What do you mean by that, Mr. Herndon?

Mr. HERNDON. Where this arrow is placed, and I brought down the tracing to a lower level so that I could see if there would be any subsequent

rise.

Mr. SPECTER. And was it a consistent tracing thereafter indicating no deviation?

Mr. HERNDON. Yes. The cardiogram is interpreted as being consistent, and no significant change or deviation.

Mr. SPECTER. Now, what other relevant questions were asked in that series?

Mr. HERNDON. Question 7, "Are you now a member of any group that advocates the violent overthrow of the U.S. Government?" There is no significant change in his relative blood pressure, and the only change significant in his breathing pattern which by chart interpretation was caused by him hesitating to answer the question due to its length.

Mr. SPECTER. What was his response to that question?

Mr. HERNDON. He responded "No" to question No. 7.

Mr. SPECTER. Were there any other relevant questions in that group?

Mr. HERNDON. Question No. 8 was relevant. It was, "Have you ever been a member of any group that advocates the violent overthrow of the U.S. Government?" Here, again, he responded "No." There was no significant change.

Mr. SPECTER. Will you start that again?

Mr. HERNDON. Question No. 8 was "Have you ever been a member of any group that advocates the violent overthrow of the U.S. Government?"

This is a relatively long question for polygraph technique, and I note that there was some hesitation in the pneumograph tracing, in view of the fact he had to wait for the question to be completed before he could respond. He eventually did respond "No" and there was no significant change in his physiological tracings. The total chart minutes, that is the time that he was actually on the polygraph from the beginning to the end of this particular series, was 2 minutes 30 seconds.

Mr. SPECTER. Were there any other relevant questions in that group?

Mr. HERNDON. There were no other relevant questions in that group.

Mr. SPECTER. Were there any other significant findings in that portion of the test on series No. 2?

Mr. HERNDON. There was a control question "did you ever make a false official statement" to which he responded "No." There was a very minor change in the cardiograph tracing as portrayed by a slight decrease in the relative blood pressure. However, it is not considered significant enough to make any additional statements.

Mr. SPECTER. Now you have given us all the relevant findings for series No. 2; is that correct, Mr. Herndon?

Mr. HERNDON. Yes, sir.

Mr. SPECTER. Let us now proceed to the next series and mark the next series as Herndon Deposition Exhibit No. 3.

(Herndon Deposition Exhibit No. 3 was marked for identification.)

Mr. SPECTER. Would you start off on the third series, Mr. Herndon, by telling us what were the relevant questions and the responses thereto, if any?

Mr. HERNDON. During series 3, there were three relevant questions asked. No. 3: "Between the assassination and the shooting, did anybody you know tell you they knew Oswald?"

He responded "No," and there was no significant physiological change recorded on the polygraph. There is a noticeable change in the pneumograph pattern. However, this has been interpreted again as being caused by the relatively long length of this particular question.

Question No. 5 was: "Aside from anything you said to George Senator on Sunday morning, did you ever tell anyone else that you intended to shoot Oswald?" In comparison to his overall chart, there is nothing of particular significance in his physiological responses to this question, when he responded "No" to question 5.

Question No. 8 was: "Did you shoot Oswald in order to silence him?" This again being a relevant question. He responded "No." There was no significant deviation in his physiological responses to this question.

During series 3 he was asked two control-type questions in which he did respond significantly with regard to the physiological tracings. Question No. 4 was asked: "Are you married?" Mr. Ruby responded "No." An interpretation of his polygrams reveal a rather significant rise in his relative blood pressure. He also produced a rather vivid impact on the GSR tracings, and there was noticeable staircase suppression in his pneumograph pattern. This question was later discussed with Mr. Ruby, and he said that he was thinking of a young girl by the name of Alice Nichols who he had previously considered marrying. He admitted that he felt something "working on him," with regard to this particular question. An analysis of this question would indicate that Ruby did emotionally respond to the stimulus of the question "Are you married," and his thoughts of a former sweetheart. This does not indicate that there was any deception of course, but does suggest Mr. Ruby does respond physiologically to certain emotions that he feels when he hears the questions and decides how to answer them. In a sense this is a control-type question. Also in this series, in question No. 7, Mr. Ruby was asked: "While in the service did you receive any disciplinary action?" There is a noticeable rise in his blood pressure after he responded "No." This question had been discussed rather thoroughly with him, and after the series was run, he admitted that he had been called in before his commanding officer regarding a brawl he had while in the military service. He also commented: "Evidently you are getting a good reading." This could be interpreted as a deception pattern inasmuch as in his mind he realized he had been in some trouble in the military service; however, did not want to truthfully answer the question as he considered it insignificant.

However, he did admit that he had been in some trouble with his commanding officer regarding fighting. This is considered a control question, and its response is greater than his response to the previous relevant question which I had related.

MR. SPECTER. Would there be any difference in psychological reactions, Mr. Herndon, on a pattern of deception which the subject considered insignificant as opposed to a pattern of deception which the subject considered significant?

MR. HERNDON. Generally the concept of the polygraph technique is that we are attempting to find out what a man's physiological responses will be

in any area where he is attempting to deceive. The content of the actual deception is not particularly important. We want to get a tracing of where he is attempting to deceive. Now under a situation such as Mr. Ruby was in here, it is more probable that he is more concerned about these relevant questions than these irrelevant or control-type questions. In other words, the relevant questions have more to do with his well-being or what he is trying to prove to the Commission. However, the chart here still shows that he attempted to deceive with regard to what he considered insignificant, but it tends to indicate to me that he will respond to a practice of deception, if that answers your question.

Mr. SPECTER. What I am driving at here is whether there is any gage in whether he considers it insignificant or significant in the reading. Stated differently, there would be a response even though he might consider a question to be insignificant.

Mr. HERNDON. That is right. If there is an attempt on his part to practice deception, if he again, as I say, is competent and reasoning rationally. In general practice of polygraph work, generally speaking the control questions are of lesser severity than the actual pertinent questions, but in those cases where the person appears to be telling the truth, we find that they will respond more to the control questions than the critical question, even though the critical question has more potency and is more severe with regard to his well-being.

Mr. SPECTER. Were there any other significant findings on that chart?

Mr. HERNDON. Yes. Mr. Ruby also responded significantly in a physiological sense with regard to question 9: "Have you ever served time in jail?" He failed to actually respond yes or no. However, there was a decrease in his blood pressure, a moderate impact in the GSR, and a change in the baseline of his pneumograph tracing. The fact that he actually failed to say yes or no precludes my interpretation of whether or not this is an indication of deception, but it does indicate that Ruby did experience a physiological variation from his normal pattern with regard to this question which is of a control-type nature.

Mr. SPECTER. Does that complete then the relevant findings on that chart?

Mr. HERNDON. That concludes series No. 3. It might be worthwhile to record that the total chart minutes on this particular series was 2 minutes 45 seconds.

Mr. SPECTER. Let us then mark the next series, which is series 3a, as Herndon Deposition Exhibit No. 4.

(Herndon Deposition Exhibit No. 4 was marked for identification.)

Mr. SPECTER. Would you start there on series 3a with the relevant questions, the responses and your evaluation of any significant psychological deviation, please?

Mr. HERNDON. This particular series 3a was what would be called a modified peak of tension series. Ruby was carefully instructed prior to the series that four relevant questions were going to be asked in a consecutive order.

Question No. 3: "Did you first decide to shoot Oswald on Friday night?" He responded "No."

Question No. 4: "Did you first decide to shoot Oswald on Saturday morning?" He responded "No."

Question No. 5: "Did you first decide to shoot Oswald Saturday night?" He responded "No."

Question No. 6: "Did you first decide to shoot Oswald Sunday morning?" He responded "Yes."

These are the only relevant questions in this series. A review of the chart with regard to his responses in this series reveals that Ruby's blood pressure continually rose from the question No. 3 until it reached a peak just as question No. 6 was asked. In addition it was noted that there was a rather noticeable change in his breathing pattern as question No. 6 was approached. There is a slight impact in the GSR tracing as question No. 6 is approached. This would mean to me in interpreting the chart that Ruby reached a peak of tension as the question No. 6 was about to be asked in which he responded "Yes" to "Did you first decide to shoot Oswald Sunday morning?" This particular type of series cannot be interpreted with regard to whether or not there was any deception, but it does indicate that Ruby built

up a physiological peak of tension to the time of Sunday morning with regard to his decision of shooting Oswald.

Mr. SPECTER. Is there any correlation between the building up of a peak of tension and the accurate answer to the series?

Mr. HERNDON. In normal usage of polygraph technique where a peak of tension is used, if the series is effective, the party will usually respond to a particular item which happens to be the most pertinent with regard to the offense. In this case it appears that Ruby projected his entire thoughts and built up a physiological peak of tension to the point of Sunday morning.

Mr. SPECTER. Are there any other significant readings on Exhibit No. 4?

Mr. HERNDON. There is no other significant reading on series 4. The total chart minutes was 2 minutes.

Mr. SPECTER. Let's move on then to series No. 4 and we will mark that as Herndon Deposition Exhibit No. 5.

(Herndon Deposition Exhibit No. 5 was marked for identification.)

Mr. SPECTER. I will ask you to start on that one, Mr. Herndon, by giving us the relevant questions and answers to those relevant questions and the responses, if any?

Mr. HERNDON. I believe this is series No. 4.

Mr. SPECTER. Yes; series No. 4, and we have marked it as Exhibit No. 5. We are one out of number now since we have used an "A" series.

Mr. HERNDON. In series No. 4, Mr. Ruby was asked four relevant questions.

Question No. 2: "Were you on the sidewalk at the time Lieutenant Pierce's car stopped on the ramp exit?" He responded "Yes."

Question No. 4: "Did you enter the jail by walking through the alleyway?" Mr. Ruby responded "No."

Question No. 6: "Did you walk past the guard at the time Lieutenant Pierce's car was parked on the ramp exit?" Mr. Ruby replied "Yes."

Question No. 8: "Did you talk with any Dallas police officer on Sunday, November 24, prior to shooting Oswald?" Mr. Ruby replied "No."

With regard to chart interpretation on this particular series of questions, it is difficult to interpret because this is the first series where Mr. Ruby tends to show a little fatigue in that he took several deep breaths, could not refrain from moving his foot and the rest of his body, and, in general, the chart is relatively difficult to interpret.

However, considering these body motions and his irregular breathing, there appear to be no significant physiological variations with regard to his response to the relevant questions as projected in that series. There is one question in which he displayed a moderate rise of blood pressure, and that was in regard to an irrelevant question No. 5: "Are your parents alive?" In which he stated "No." He was questioned about this after the series was over, and he advised that he felt a little nervous during this series, but that particular question didn't give him any trouble. His breathing is quite irregular throughout this series, and I have a notation on my chart that I advised Mr. Specter that Mr. Ruby was beginning to show some signs of fatigue, and it was mutually agreed that we would have a recess at this point.

Mr. SPECTER. How long did that recess last, Mr. Herndon?

Mr. HERNDON. This particular series began according to my charts at 4:35 p.m., and the next subsequent series began at 6:48 p.m.

Mr. SPECTER. Have you now given us all the important findings on series 4?

Mr. HERNDON. Yes; I have.

Mr. SPECTER. Let's move on now then to series No. 5 and mark that as Herndon Deposition Exhibit No. 6.

(Herndon Deposition Exhibit No. 6 was marked for identification.)

Mr. SPECTER. I will ask you to start with the relevant questions again, and give us the answers and any significant physiological deviation.

Mr. HERNDON. This particular series which my notes refer to as series No. 5 began at 6:48, and Mr. Ruby was asked four relevant questions.

Question No. 2: "Did you see the armored truck before you entered the basement?" He replied "No."

Question No. 4: "Did you enter the police department through a door at the rear on the east side of the jail?" He responded "No."

Question No. 6: "After talking to Little Lynn did you hear any announcement that Oswald was about to be moved?" He responded "No."

Question No. 8: "Before you left your apartment Sunday morning, did anyone tell you the armored car was on the way to the police department?" He replied "No."

The one particular thing of interest with regard to overall interpretation of this chart is how Ruby showed considerable more relaxation and appeared to be completely at ease after the recess. There was no physiological variation of any significance noted with regard to his replies to the relevant questions. There is some deviation with regard to his pneumograph tracing at question No. 7, which is considered a control-type question. This question was: "Other than what you told me, did you ever hit anyone with any kind of a weapon?" He responded to this question by talking. However, he later asked that the question be repeated. The question was repeated during the series, and he responded "No." The only significant deviation from his normal pattern was recorded in the pneumograph, and this was caused by his talking in response to the question the first time it was asked.

There is nothing else significant noted in series No. 5.

Mr. SPECTER. Let's proceed then to series No. 6 and we will mark that as Herndon Deposition Exhibit No. 7.

(Herndon Deposition Exhibit No. 7 was marked for identification.)

Mr. HERNDON. Do you want the total chart minutes?

Mr. SPECTER. Yes; please give us that.

Mr. HERNDON. The total chart minutes of series 5 was 2 minutes 55 seconds.

Mr. SPECTER. May the record show now that we have marked series No. 6 as Herndon Exhibit No. 7. Would you now, Mr. Herndon, specify the relevant questions, responses, and psychological deviations, if any?

Mr. HERNDON. In series No. 6 Mr. Ruby was asked four relevant questions.

No. 2: "Did you get a Wall Street Journal at Southwestern Drug Store during the week before the assassination?" He replied "No."

Question No. 4: "Do you have any knowledge of a Wall Street Journal addressed to a Mr. J. E. Bradshaw?"

He replied "No."

Question No. 6: "To your knowledge did you or any of your friends telephone the FBI in Dallas between 2 and 3 a.m. Sunday morning?" He replied "No."

Question No. 8: "Did you or any of your friends to your knowledge telephone the sheriff's office between 2 or 3 a.m. Sunday morning?" He replied "No."

From a review of Mr. Ruby's polygrams, on series 6, it was noted that there were no significant physiological variations to his response to the relevant questions. It was noted that Mr. Ruby did display slight suppression in his breathing pattern, and a relative decrease in blood pressure with an increase in the heart amplitude at question No. 7. This question was: "Did you ever overcharge a customer?" Mr. Ruby replied "No." However, after the series, this question was discussed with him briefly, and he did make mention of the fact that there had been some trouble at his nightclub with regard to the waitresses and big bills. This could be interpreted as a possible deception pattern in that he hedged with regard to the question "Did you ever overcharge a customer." The total chart minutes of series No. 6 was 2 minutes 50 seconds.

Mr. SPECTER. Are there any other significant findings on series 6?

Mr. HERNDON. The only significant finding being that the control question 7 displays a more significant variation than his response to the relevant questions. There are no others.

Mr. SPECTER. You have now given us then all the significant findings on series 6?

Mr. HERNDON. That is correct.

Mr. SPECTER. May the record show that we are now placing the designation Herndon Deposition Exhibit No. 8 on series No. 7.

(Herndon Deposition Exhibit No. 8 was marked for identification.)

Mr. SPECTER. Would you start again, Mr. Herndon, with the relevant questions and tell us the answers and the responses thereto with any significant findings?

Mr. HERNDON. Series No. 7 contains four relevant questions.

Question No. 2: "Did you go to the Dallas police station at any time on Friday, November 22, 1963, before you went to the synagogue?" Mr. Ruby replied "No."

Question No. 4: "Did you go to the synagogue that Friday night?" Mr. Ruby replied "Yes."

Question No. 6: "Did you see Oswald in the Dallas jail on Friday night?" Mr. Ruby replied "Yes."

Question No. 8: "Did you have a gun with you when you went to the Friday midnight press conference at the jail?" Mr. Ruby replied "No."

There was one other question asked which I consider irrelevant. However, it is of value to the series, and I will make mention of it, question No. 9: "Is everything you told the Warren Commission the entire truth?" Mr. Ruby responded "Yes."

With regard to overall interpretation of series No. 7, I first noticed there is a physiological deviation to Mr. Ruby's response to question No. 1 which was "Do you intend to answer the questions truthfully." However, my notes indicate that Mr. Ruby talked and said "Yes, I do," and by actually speaking several words it is believed that this caused the variation in the tracings.

Mr. SPECTER. Will movement or speaking cause a variation in the tracings ordinarily, Mr. Herndon?

Mr. HERNDON. Yes. Body movements or speaking any phrase or sentence would certainly cause changes in the physiological patterns as displayed on the polygraph. I made notation of that, however, and that explains the changes. On question No. 2, Mr. Ruby did show a significant drop in the relative blood pressure. This question pertained to: "Did you go

to the Dallas police station at any time on Friday November 22, 1963, before you went to the synagogue?" I asked him about this question later when he responded "No," and I noticed a physiological change. He advised that there was some man by the name of John Rutledge, and he made an association with proceedings at the trial which I have reason to believe this gentleman, John Rutledge, differed somewhat with what Ruby stated as to when he went to the synagogue.

Due to the nature of this change, however, it is possible that it was caused by a body motion that I failed to detect during the actual response.

I notice that the cardio pen dropped all the way down and hit what we call the limit screws. This frequently is caused by a sudden rapid shift in his body position, and this change could have been caused by a body movement.

With regard to the other relevant questions in this series, question 4, question 6, and question 8, there was no significant deviation from his normal physiological patterns.

Mr. SPECTER. Were there any other significant findings, in series No. 7?

Mr. HERNDON. There was a significant change in his breathing pattern and also a slight decrease in his blood pressure when I asked him the question "Did you attend the synagogue regularly?"

However, this is a control type question, and as later discussed with him, there was some area of doubt in his mind as to whether he attended the synagogue regularly as much as he would like to. The total chart minutes on series 7 was 2 minutes 55 seconds.

Mr. SPECTER. Have you now given all the relevant findings on chart No. 7?

Mr. HERNDON. Yes, I have.

Mr. SPECTER. May the record show that I have affixed Herndon Deposition Exhibit No. 9 to series No. 8.

(Herndon Deposition Exhibit No. 9 was marked for identification.)

Mr. SPECTER. I hand it to you with the request that you give us the findings there starting with the relevant questions.

Mr. HERNDON. Series No. 8 contained five relevant questions.

No. 2: "Have you ever knowingly attended any meetings of the Communist Party or any other group that advocates violent overthrow of the Government?" Mr. Ruby replied "No."

I notice in the pneumograph tracing some deviation. However, by interpretation of the chart and the length of that particular question, it again appears obvious that there was some hesitation on his part in answering the question due to its length.

However, there was no other noticeable significant physiological deviation in his response to that question.

Question No. 4: "Is any of your immediate family or any close friend a member of the Communist Party?" Mr. Ruby replied "No" and there is no significant change in his normal physiological pattern.

Question No. 6: "Is any of your immediate family or any close friend a member of any group that advocates the violent overthrow of the Government?" This again is a relatively long question. However, it did not appear to disturb him, and there is no noticeable physiological deviation in his response to this question.

Question No. 8: "Did any close friend or any member of your immediate family ever attend a meeting of the Communist Party?" Mr. Ruby replied "No."

Here again there is no noticeable significant deviation in his physiological pattern.

Question No. 9: "Did any close friend or any member of your immediate family ever attend a meeting of any group that advocates the violent overthrow of the Government?" Here again this is a relatively long question and there was a little hesitation on his part in answering it, causing a change in the pneumograph tracing. However, there is no significant deviation with regard to his overall physiological pattern when he responded to this question. In general, series 8 shows no significant deviation from his normal physiological pattern. The total chart minutes was 2 minutes 50 seconds.

Mr. SPECTER. You have now then given us all of the relevant findings on series No. 8, correct?

Mr. HERNDON. Correct, sir.

Mr. SPECTER. I now hand you the chart designated series No. 9 marked Herndon Deposition Exhibit No. 10, and ask you if there was any unique system employed in that series.

(Herndon Deposition Exhibit No. 10 was marked for identification.)

Mr. HERNDON. Yes, there was at this point in the interrogation. Realizing the Commission had a large number of questions they wanted to ask, it was decided at this point, in view of the fact that we had asked the main critical questions, to proceed with what I call direct interrogation, that is that each and every one of the questions asked is a relevant question, and that there are no irrelevant questions or control questions asked.

Mr. SPECTER. Would you proceed then to give us the results of those questions.

Mr. HERNDON. Did you want me to itemize each and every one of these questions or read them out? They are all relevant questions and a matter of record.

Mr. SPECTER. Yes, please do.

Mr. HERNDON. Series 9 contains 7 questions, all being relevant.

Question No. 1: "Did you ever meet Oswald at your post office box?" Mr. Ruby replied "No."

Question No. 2: "Did you use your post office mail box to do any business with Mexico or Cuba?" Mr. Ruby replied "No."

Question No. 3: "Did you do business with Castro Cuba?" Mr. Ruby replied "No."

Question No. 4: "Was your trip to Cuba solely for pleasure?"

Mr. Ruby replied "Yes."

Question No. 5: "Have you now told us the truth concerning why you carried \$2,200 in cash on you?" Mr. Ruby replied "Yes."

Question No. 6: "Did any foreign influence cause you to shoot Oswald?" Mr. Ruby replied "No."

Question No. 7: "Did you shoot Oswald because of any influence of the underworld?" Mr. Ruby replied "No."

In interpreting his chart with regard to this particular series of questions, there is no noticeable significant deviation in his physiological pattern except at question No. 6. According to my notation on the chart, Ruby moved his head at this point, and there was a deviation caused by this movement in his blood pressure tracing and also in his pneumograph tracing. His heart rate maintained a consistent rate of approximately 66 to 72 heart beats per minute throughout this series. No significant changes.

Mr. SPECTER. What was the total time on that series?

Mr. HERNDON. The total chart minutes on series 9 was 2 minutes 15 seconds.

Mr. SPECTER. Have you now given us all the relevant factors from that series reading?

Mr. HERNDON. Yes; I have.

Mr. SPECTER. Let the record show that you are going to proceed with series 9A which is a continuation of the sheet marked Herndon Exhibit No. 10.

Mr. HERNDON. This was done in order to save time inasmuch as the interrogation was becoming rather lengthy at this point, and Mr. Specter indicated he was anxious to proceed and to complete the rest of the questions that we had agreed upon with all those parties that were interested in this interrogation.

Series No. 9A again is a series of relevant questions.

Question No. 8: "Did you shoot Oswald because of labor union influence?" Mr. Ruby replied "No."

Question No. 9: "Did any long distance telephone calls which you made before the assassination of the President have anything to do with the assassination?" Mr. Ruby replied "No."

Question No. 10: "Did any of your long distance telephone calls concern the shooting of Oswald?" Mr. Ruby replied "No."

Mr. SPECTER. What number question was that again?

Mr. HERNDON. Question No. 10.

Question No. 11: "Did you shoot Oswald in order to save Mrs. Kennedy the ordeal of a trial?" Mr. Ruby replied "Yes."

Question No. 12: "Did you know the Tippit that was killed?" Mr. Ruby replied "No."

Question No. 13: "Did you tell the truth about relaying the message to Ray Brantley to get McWillie a few guns?" Mr. Ruby replied "Yes."

Question No. 14: "Did you go to the assembly room on Friday night to get the telephone number of KLIF?" Mr. Ruby replied "Yes."

Question No. 15: "Did you ever meet with Oswald and Tippit at your club?" Mr. Ruby replied "No."

Mr. SPECTER. On the designations series 9 and 9A, Mr. Herndon, did you loosen up the cuff on his arm during the two series?

Mr. HERNDON. Yes; I deliberately loosened or actually I completely took off all pressure off his arm to allow him to have complete circulation in his arm and to give him a rest period before proceeding with series 9A. I believe the transcript will show that I asked him if he was feeling all right and if he was ready to proceed before going into series 9A. A review of series 9A with regard to Ruby's polygrams fails to reveal any significant physiological reaction with regard to his responses to these relevant questions.

At this point, Mr. Specter, I might add that we are getting into an area now where it is possible that Ruby is getting somewhat cuff weary and getting somewhat tired and becoming somewhat immune to the polygraph technique. I believe we both realized this.

However, we wanted to ask these questions as a matter of record. The chart shows there is no stress or strain. However, it is entirely possible that he is becoming desensitized at this point.

Mr. SPECTER. Have you now given us all the relevant findings on series 9a?

Mr. HERNDON. Yes; the total chart minutes for this particular series was 2 minutes 30 seconds.

Mr. SPECTER. I now hand you series No. 10 which is marked Herndon Deposition Exhibit No. 11, and ask you to start again with the relevant questions and give us the responses thereto and any significant findings.

(Herndon Deposition Exhibit No. 11 was marked for identification.)

Mr. HERNDON. Series No. 10 again was mutually agreed upon by several of the people present during the examination. However, formally authorized by Mr. Specter of the President's Commission. They are question No. 2 which is relevant: "Were you at the Parkland Hospital any time on Friday?" Mr. Ruby replied, "No."

Question No. 3, which is considered relevant. "Did you say anything when you shot Oswald other than what you testified about?"

Mr. Ruby replied, "No."

Question No. 4, which was originally recommended by Dr. Beavers and as agreed upon by Mr. Specter, was presented in this manner.

Question No. 4: "Have members of your family been physically harmed because of what you did?" Mr. Ruby—could we go off the record here? I am a little confused on my notes at this point?

Mr. SPECTER. Yes; off the record.

(Discussion off the record.)

Mr. SPECTER. May the record show that while off the record, Mr. Herndon has referred to his notes and also to the transcript of testimony taken by the court reporter at the time the polygraph examination was administered, to be sure of the questions and answers here, and that as Mr. Herndon points out, his notes correspond with the transcript.

Will you then proceed Mr. Herndon to state those questions, answers and responses, if any?

Mr. HERNDON. Yes; No. 4 was: "Have members of your family been physically harmed because of what you did?" Mr. Ruby did reply "No," and then said: "May I interrupt?" He was instructed by me to just sit perfectly still and we will discuss the questions later. There was a deviation in his physiological tracings with regard to this question. However, these must be interpreted to the fact that he actually spoke a sentence in response to the question.

Question No. 5 was: "Do you think members of your family are now in danger because of what you did?" Mr. Ruby failed to make any reply or response to this particular question. It is noted that there was no significant change in his physiological tracings in any of the components following my asking this question.

Question No. 6 was: "Is Mr. Fowler in danger because he is defending you?" Here again Mr. Ruby failed to make any verbal reply to the question. Looking at the polygrams produced, it is noted that there is no significant physiological response with regard to this question. The examiner made a notation on his chart that it appeared that Mr. Ruby was visibly pondering the answer to these questions. However, decided not to answer them as instructed either yes or no period.

Question No. 7 is a relevant question: "Did Blackie Harrison speak to you just before you shot Oswald?" Mr. Ruby replied "No" and there is a slight increase in his relative blood pressure. However, this is not considered significant inasmuch as it is at the end of the series, and it is not unusual for slight increase in blood pressure to be portrayed as the series prolongs into the later questions. It is not considered significant.

The total chart minutes on this particular series was 2 minutes 25 seconds.

In discussion of the two questions in which Mr. Ruby failed to reply, I made notations on the chart that he felt the questions were difficult to answer yes or no, and that he didn't know how to answer them.

Mr. SPECTER. By those questions do you mean the ones——

Mr. HERNDON. I am referring to question 5 and 6 in which he did not specifically reply verbally.

Mr. SPECTER. That is "Do you think members of your family are now in danger because of what you did?"

Mr. HERNDON. That is correct.

Mr. SPECTER. And "Is Mr. Fowler in danger because he is defending you?"

Mr. HERNDON. That is correct.

Mr. SPECTER. Did Mr. Ruby answer those in a preliminary session?

Mr. HERNDON. During the preliminary session he did answer those questions.

Mr. SPECTER. What answer to each question did he give?

Mr. HERNDON. To the question "Do you think members of your family are now in danger because of what you did?" he replied "Yes."

In regard to the question "Is Mr. Fowler in danger because he is defending you?" Mr. Ruby replied "Yes."

Mr. SPECTER. Have you now given all the significant findings on series No. 10?

Mr. HERNDON. Yes; I have.

Mr. SPECTER. I will now move to series No. 11 which we will mark for this record as Herndon Deposition Exhibit No. 12.

(Herndon Deposition Exhibit No. 12 was marked for identification.)

Mr. SPECTER. Will you start on series No. 11, giving the relevant questions, answers and any physiological deviation?

Mr. HERNDON. These questions on Series 11 were primarily asked after a conversation between Mr. Ruby and Mr. Specter at which time Mr. Ruby indicated he wanted some additional questions asked of him.

It was finally agreed upon that we would ask the three following questions.

No. 1 just to establish identity "Are you Jack Ruby?" in which he replied "Yes."

Question No. 2: "Do you consider yourself to be a 100-percent American patriot?" Mr. Ruby responded "Yes."

And question No. 3 "Is all of the testimony given by you today the complete truth?" Mr. Ruby replied "Yes."

This particular series began at 8:57 p.m., and a review of the physiological responses to these three particular questions indicate that they are not significant. It is believed by the examiner at this point, although Mr. Ruby said he was not tired in his general conversation with the examiner, that he was probably somewhat fatigued, and he was no longer displaying the usual physiological responses expected during the earlier phases of the examination.

The total chart minutes of series 11 is 1 minute 10 seconds. I do not consider anything significant to these particular responses other than the fact that we obliged Mr. Ruby in asking them.

Mr. SPECTER. Was this polygraph examination excessive with respect to length in your opinion, Mr. Herndon?

Mr. HERNDON. Well, it would greatly depend on Mr. Ruby's physical and mental condition of course. A doctor was in attendance during the examination, and I repeatedly asked Mr. Ruby during the examination how he felt and whether he wanted to proceed. I asked him on several occasions if he would like to take a break or have a drink of water. I cannot specifically state that it did or did not appear to hinder his health or cause him any undue fatigue.

However, I did hear the doctor indicate that there was no undue physical stress or strain on Mr. Ruby during the examination.

Mr. SPECTER. Up until the points where you have indicated there were some signs of tiredness, did Mr. Ruby appear to be responding in a satisfactory manner?

Mr. HERNDON. I would say during the first several series of questions, and based on the presumption again that Mr. Ruby was rationally sound and competent during this phase of the examination, that he responded very normally, and the polygraph examination proceeded without any technical difficulties.

Mr. SPECTER. Was Mr. Ruby given periodic breaks throughout the course of the examination in addition to that lengthy one between series 4 and series 5?

Mr. HERNDON. Yes; he was given a number of breaks and there was no time when he was asked a long series of questions inasmuch as the total chart, minutes on my charts indicate none of them went beyond 3 minutes, which is certainly considered well within standard series total chart minutes.

Mr. SPECTER. Do you have anything to add which you think would be helpful to the President's Commission?

Mr. HERNDON. Yes. I would like to make a few additional comments with regard to this polygraph examination, in view of the fact that it was somewhat unique and unusual. I think these factors should be somewhat considered in the overall evaluation of the polygraph examination.

First of all, Ruby has obviously been extensively interviewed by law enforcement officers and by the Commission and other people, and there has been a considerable length of time lapse since the time that the instant offense occurred of him shooting Oswald. These factors of length of time and considerable previous interrogation would tend to detract or negate any specific or definite conclusion that could be rendered with regard to the polygraph examination.

The fact that there were other personnel in the room would tend to negate a valid polygraph technique. However, here again I did mention that this did not appear to bother Mr. Ruby. But it should be considered and made a matter of record.

One other point I would like to mention, and that is the large number of relevant questions asked Mr. Ruby during this particular examination. This is not general standard procedure. However, I realize that the President's Commission wanted to cover many facets, and that it was mutually agreed upon that we would ask the questions that the Commission had originally drawn up for this particular interrogation. In normal polygraph procedure it is usual to keep the relevant questions down to perhaps several specific critical relevant questions and work strictly on those, and in this particular examination we had a large number of relevant questions to ask.

I think these are all factors that should be considered in the overall evaluation of Mr. Ruby's polygraph examination.

Mr. SPECTER. Thank you very much, Mr. Herndon.

TESTIMONY OF BRECK WALL (BILLY RAY WILSON)

The testimony of Breck Wall was taken at 2:13 p.m., on August 5, 1964, at the U.S. Post Office Building, 301 Stewart Street, Las Vegas, Nev., by Mr. Arlen Specter, assistant counsel of the President's Commission.

Mr. SPECTER. May the record show that this deposition proceeding of the President's Commission on the Assassination of President Kennedy is being taken at the U.S. Post Office Building, 301 Stewart Street, Las Vegas, Nev. May the record further show it is now 2:13 Pacific daylight time on Wednesday, August 5, 1964. Present is Mr. Breck Wall who has appeared in response to letter notification and also telephone notification.

Mr. Wall, the President's Commission has asked you to appear here today to testify concerning any knowledge which you may have of Mr. Jack Ruby, his associates, background, and his activities relating to the events of November 22 through November 24, 1963. With that preliminary statement of purpose, I will ask you to rise and raise your right hand, if you would, please.

Do you solemnly swear that the testimony that you shall give in this deposition proceeding before the President's Commission on the Assassination of President Kennedy shall be the truth, the whole truth, and nothing but the truth?

Mr. WALL. I do.

Mr. SPECTER. Will you state your full name for the record, please?

Mr. WALL. My legal name is Billy Ray Wilson but I have used professionally Breck Wall for the last 7 or 8 years.

Mr. SPECTER. Mr. Wall, did you receive a letter of notification asking you to appear here today for your deposition?

Mr. WALL. Yes, sir.

Mr. SPECTER. Did that letter contain within it the Executive order creating the President's Commission and a copy of the rules and regulations for taking of depositions by the President's Commission?

Mr. WALL. Yes, sir.

Mr. SPECTER. And you understand that if you wish, you may be represented by counsel here today?

Mr. WALL. Yes, sir.

Mr. SPECTER. Do you want to have an attorney with you today?

Mr. WALL. No, sir.

Mr. SPECTER. When did you receive that letter?

Mr. WALL. Monday night at home. I was performing at the Castaways and a friend of mine signed the receipt on it.

Mr. SPECTER. Under the regulations you are entitled to 3 days' notice. Are you willing to proceed with this deposition today without having that notice?

Mr. WALL. Yes, sir.

Mr. SPECTER. What is your occupation or profession, Mr. Wall?

Mr. WALL. Producer; performer.

Mr. SPECTER. Where are you employed at the present time?

Mr. WALL. At the Castaways in Las Vegas.

Mr. SPECTER. What is the nature of your duties in connection with your employment at the Castaways?

Mr. WALL. Well, I perform each night. I don't understand what you mean really.

Mr. SPECTER. What sort of performing do you do?

Mr. WALL. Comedy; musical comedy.

Mr. SPECTER. How long have you been engaged in that type of activity?

Mr. WALL. About 6 years.

Mr. SPECTER. And what was your occupation before you became an entertainer?

Mr. WALL. College student.

Mr. SPECTER. How old are you at the present time?

Mr. WALL. Twenty-seven.

Mr. SPECTER. What is your educational background?

Mr. WALL. Well, I only had 1 year of college, University of Texas.

Mr. SPECTER. Where were you born?

Mr. WALL. Jacksonville, Fla.

Mr. SPECTER. And where did you live, in a general way, up to the present time?

Mr. WALL. Well, I have lived in Freeport, Tex., that is where I was raised, and Dallas, New York City, Jacksonville, Fla., Orlando, Fla., and here.

Mr. SPECTER. When did you live in New York City?

Mr. WALL. In 1954 through 1957.

Mr. SPECTER. What was your occupation at that time?

Mr. WALL. I worked as a doorman at Luchow's on 14th Street.

Mr. SPECTER. When did you live at those various cities in Florida?

Mr. WALL. In between—in the year of 1957 and 1958. I came to Dallas in November of 1958, I believe.

Mr. SPECTER. When was it specifically that you lived in Florida then?

Mr. WALL. It was in the first part of 1958 and the latter part of 1957, I would say.

Mr. SPECTER. And when did you live in Freeman, Tex.?

Mr. WALL. Freeport.

Mr. SPECTER. Freeport, Tex.?

Mr. WALL. Through school until I graduated in 1953.

Mr. SPECTER. From high school?

Mr. WALL. Yes, sir.

Mr. SPECTER. Then you attended the University of Texas in Austin for a year?

Mr. WALL. Yes, sir.

Mr. SPECTER. And where did you live from 1954 until the time you went to New York City?

Mr. WALL. Then New York City from Austin.

Mr. SPECTER. Did you go directly from Austin to New York City?

Mr. WALL. Yes, sir.

Mr. SPECTER. Where did you go directly from New York City?

Mr. WALL. To Jacksonville, Fla.

Mr. SPECTER. Where you lived for the balance of the time up until November of 1958?

Mr. WALL. Right; sir.

Mr. SPECTER. When you went to Dallas, Tex.?

Mr. WALL. Yes, sir.

Mr. SPECTER. What did you do when you first went to Dallas in November of 1958?

Mr. WALL. I was ill at the time and I had to stay with the McKennas. I was sick at the time.

Mr. SPECTER. And where do the McKennas live?

Mr. WALL. Currently they live in Galveston, Tex. They moved from Dallas.

Mr. SPECTER. What are the first names of the McKennas?

Mr. WALL. Thomas J. McKenna.

Mr. SPECTER. And is there another McKenna?

Mr. WALL. There are—you mean as far as children?

Mr. SPECTER. You say you lived with the McKennas. I take it there was more than one McKenna or was there only one?

Mr. WALL. Mrs. McKenna and three children.

Mr. SPECTER. And how long did you stay with them following the time you joined them in November of 1958?

Mr. WALL. I would say about 2 months.

Mr. SPECTER. Where did you next live?

Mr. WALL. I can't think of the name of the street. In Dallas. I lived in Dallas.

Mr. SPECTER. With others, or by yourself?

Mr. WALL. By myself.

Mr. SPECTER. How did you happen to know the McKennas?

Mr. WALL. When I was going to high school, I would spend the summer with my family and they lived next door to my family.

Mr. SPECTER. And when you spent the summer with your family who lived next door to the McKennas, was that in Dallas?

Mr. WALL. No, sir; in Fort Worth.

Mr. SPECTER. Whom did you live with when you went to school in Freeport?

Mr. WALL. With my grandmother who has since deceased.

Mr. SPECTER. How long did you live in Dallas, Tex., after November of 1958?

Mr. WALL. When I moved in November of 1958 there, I stayed until I just moved.

Mr. SPECTER. When was it that you left?

Mr. WALL. We left in January of 1964 to go to Houston.

Mr. SPECTER. When you say "we," whom do you mean by that?

Mr. WALL. The company; the show I am in.

Mr. SPECTER. Which show is that?

Mr. WALL. Bottoms Up.

Mr. SPECTER. How long were you in Houston then?

Mr. WALL. We were in Houston for 12 weeks and then from Houston we came out to Las Vegas.

Mr. SPECTER. Do you know Jack Ruby?

Mr. WALL. Yes, sir.

Mr. SPECTER. When, to the best of your recollection, did you first meet Mr. Ruby?

Mr. WALL. I would say about 3½ years ago.

Mr. SPECTER. What were the circumstances of your becoming acquainted with him?

Mr. WALL. We were having financial trouble at a club we owned called the Playbill.

Mr. SPECTER. When you say “we,” whom do you mean?

Mr. WALL. Joe Peterson, my partner. We needed a place to go to do a show. Jack Ruby offered a very lucrative offer to play his new club. It was then called the Sovereign Club which later became the Carousel.

Mr. SPECTER. Now, what was the nature of the lucrative offer which Mr. Ruby made to you?

Mr. WALL. Well, I think he was going to pay us, I think, I’m not sure, \$125 a week plus we were on a small percentage of the club.

Mr. SPECTER. How long did you play for Mr. Ruby at the Sovereign Club?

Mr. WALL. I would say about 8 weeks. Maybe less.

Mr. SPECTER. What happened, if anything, to terminate that arrangement?

Mr. WALL. We got into an argument over a contract that I had signed stating that I would perform the show for one night for around \$2,200.

Mr. SPECTER. What show were you supposed to perform for one night?

Mr. WALL. Bottoms Up.

Mr. SPECTER. For whom?

Mr. WALL. I don't recall the name of the organization. It was a nurses' organization.

Mr. SPECTER. Where was that show supposed to be performed?

Mr. WALL. In the ballroom of the Hotel Adolphus.

Mr. SPECTER. What was the nature of your disagreement with Mr. Ruby?

Mr. WALL. He was in a financial bind because the show wasn't working out like he thought and we were in a financial bind and needed the money and he would let us do it only if we would give him half. We couldn't because we couldn't.

Mr. SPECTER. What do you mean "we"? You still mean Joe Peterson and you?

Mr. WALL. Yes. And we called in the union man of our performing arts called AGVA.

Mr. SPECTER. What is that an abbreviation of?

Mr. WALL. American Guild of Variety Artists. And the AGVA man sided with Jack and we got into an argument wherein Jack punched Joe in the mouth and broke off a tooth.

Mr. SPECTER. Joe Peterson, that is?

Mr. WALL. Yes, sir. And we left that night. I might also add in the record that the man, the name of the man representing our union, was named James Dolen who was arrested later, some months later, by the FBI.

Mr. SPECTER. On what charge, if you know?

Mr. WALL. Yes, sir; as far as I know he was running some sort of bingo game or something illegal in Louisiana.

Mr. SPECTER. Did you perform that show Bottoms Up?

Mr. WALL. No, sir. Jack Ruby and Jim Dolen took the show over and made our kids perform the show.

Mr. SPECTER. Was the same troupe then performing the show except for you and Mr. Peterson?

Mr. WALL. The only one we have now with us that did the show with us over at the Adolphus that particular night is Bill Fanning who is in our show.

Mr. SPECTER. After that 8-week connection with Mr. Ruby what later association, if any, did you have with him?

Mr. WALL. Well, I didn't speak to Jack for about, I would say, around 6 months but he and Mr. Peterson became good friends again because they have the type personalities that flare up and forget; and I don't—I have a mind like an elephant—and they started speaking so, therefore, I started speaking and going back to the club which he changed into a stripper club called the Carousel.

Mr. SPECTER. Did you ever work for Mr. Ruby again?

Mr. WALL. No, sir.

Mr. SPECTER. Then from that time on you knew him as a friend and acquaintance in the Dallas area?

Mr. WALL. Right.

Mr. SPECTER. What was your occupation from the time you left Mr. Ruby's until you left Dallas in January of 1964?

Mr. WALL. We reopened the Playbill Club for about 4 months and then we went back to the—I'm sorry—then we went to the Maple Theater, did a show for about 6 weeks called Mr. Wonderful, then back to the Adolphus Hotel where we stayed.

Mr. SPECTER. What did you do at the Adolphus Hotel?

Mr. WALL. Bottoms Up. Performed it in the Century Room.

Mr. SPECTER. How frequently did you see Mr. Ruby during the years of 1961, 1962, 1963?

Mr. WALL. Well, after we lost the Playbill again for a second time and we closed the show at the Maple Theater, then we were right across the street from where Jack had his club and Jack got a haircut at the barbershop in the hotel, ate in the hotel restaurant, consequently I think that is when he started—he and Joe started being friends and I started seeing him a lot and became good friends; then when we started at the Adolphus in 1962, maybe the latter part of 1961, we started speaking and being good friends. We would go over there sometimes three or four times a week just to see the show and the girls over there which we were good friends with.

Mr. SPECTER. To your knowledge, did Jack Ruby ever associate with any of the criminal element?

Mr. WALL. He always reminded me of a gangster but I have never seen him with anyone.

Mr. SPECTER. Why did he always remind you of a gangster?

Mr. WALL. Just the way he talks, you know, he just reminds me of a real hood. Still I have never seen him with anyone that you would call a criminal in Dallas.

Mr. SPECTER. Aside from his appearance and the way he talks do you have any factual reason for saying that he appears to be a hood or gangster?

Mr. WALL. No, sir.

Mr. SPECTER. To your knowledge was Jack Ruby ever a member of any subversive organization or any group which advocates the forceful overthrow of the United States Government?

Mr. WALL. No.

Mr. SPECTER. Were any members of his family or friends ever members of any subversive organization?

Mr. WALL. I only met one relative of his which was his sister, Eva, or Ava, however you would say it. I just met her casually.

Mr. SPECTER. What is her last name?

Mr. WALL. I really don't know.

Mr. SPECTER. Grant?

Mr. WALL. Grant. That is right. She ran his club on—what street is it? I have to think of the club for a minute. It is right next door to the B&B.

Mr. SPECTER. The Vegas Club?

Mr. WALL. Yes, sir. Thank you. That was the only time. I have only been out to the Vegas Club maybe twice in the whole time I have been in Dallas but I would see her at the B&B restaurant eating after she had closed her club.

Mr. SPECTER. Did you ever know Lee Harvey Oswald?

Mr. WALL. No, sir.

Mr. SPECTER. Did you ever see Lee Harvey Oswald?

Mr. WALL. Only after he had shot the President.

Mr. SPECTER. Do you know whether Jack Ruby ever knew Lee Harvey Oswald?

Mr. WALL. No, sir; I don't.

Mr. SPECTER. Did you ever see Jack Ruby and Lee Harvey Oswald together at any time?

Mr. WALL. No, sir; not at all.

Mr. SPECTER. Do you know whether Jack Ruby knew Officer J. D. Tippit?

Mr. WALL. No, sir; I don't. He knew most of the policemen on the police force.

Mr. SPECTER. Did you ever see Jack Ruby with Officer Tippit?

Mr. WALL. I don't know what he looks like.

Mr. SPECTER. Do you know who Officer Tippit is?

Mr. WALL. Yes, sir; I do.

Mr. SPECTER. He was the officer who was shot and killed the day of the assassination.

Mr. WALL. Yes, sir.

Mr. SPECTER. Do you recall Friday, November 22, 1963?

Mr. WALL. Yes, sir.

Mr. SPECTER. What were your activities on that day to the best of your ability to recollect?

Mr. WALL. That was very easy to remember. We went down to the Adolphus marquee.

Mr. SPECTER. "We" meaning?

Mr. WALL. Joe Peterson and also with us was Nancy Austin, who is in our show, and Kenny Jerome, who is in our show. We watched President Kennedy drive by and I was listening to it on the radio as he was driving and when he passed us he was going 30 miles an hour whereas he had been going 10 miles an hour so we missed him. With all the excitement and everything we didn't get a good look at him so we went upstairs.

Mr. SPECTER. Your view of the motorcade from the Adolphus was from the marquee of the Adolphus Hotel in Dallas?

Mr. WALL. Yes, sir.

Mr. SPECTER. What did you do after the Presidential limousine passed the Adolphus Hotel?

Mr. WALL. We wanted to get a better look at the President so Joe Peterson and myself decided to go out to the airport because when he was out there, when he first arrived in Dallas, he stayed out there I think 30 minutes longer than he was supposed to, shaking hands with the people. We thought he might do it again. We ran upstairs to change clothes. It was a very cold day. We needed to put on some warm clothes. We went upstairs to change clothes and go out to the airport. We always left our television on because we have a dog and it sort of keeps him calm. When we opened the door into the bedroom they announced over the television that the President had been assassinated. Joe went down to the—as far as I know he went down to the Book Depository to see what it looked like and I stayed in the bedroom and watched the television to find out what was, you know, going on. We stayed there all that night and we departed for Galveston to get away from Dallas the next day, which was Saturday, at around 3 or 4 in the afternoon.

Mr. SPECTER. What did you do the balance of Friday night?

Mr. WALL. We stayed and watched television. I didn't move from the television set.

Mr. SPECTER. Where did you have dinner that night?

Mr. WALL. In the room.

Mr. SPECTER. What time did you go to bed on the evening of November 22, if you recall?

Mr. WALL. As far as I know I didn't go to bed until 5 in the morning.

Mr. SPECTER. What did you do all that night?

Mr. WALL. Watched television.

Mr. SPECTER. Were the television stations running around the clock?

Mr. WALL. Yes, sir.

Mr. SPECTER. What time did you awaken on Saturday, November 23, if you remember?

Mr. WALL. I would say around 8 o'clock, 9 o'clock. I woke up and watched television again.

Mr. SPECTER. Where did you eat breakfast?

Mr. WALL. I went down to breakfast on Saturday.

Mr. SPECTER. Down to where?

Mr. WALL. The coffee shop.

Mr. SPECTER. Of the Adolphus Hotel?

Mr. WALL. Yes, sir. Then I came right back up and watched television again until that afternoon.

Mr. SPECTER. When did you leave the hotel?

Mr. WALL. About 3 or 4 that afternoon we left for Galveston.

Mr. SPECTER. When you say "we," whom do you mean?

Mr. WALL. Joe Peterson and myself.

Mr. SPECTER. By what means did you go?

Mr. WALL. In our car.

Mr. SPECTER. Did you make any telephone calls on Saturday?

Mr. WALL. Yes, sir. I called the McKennas to tell them we were coming down.

Mr. SPECTER. Did you make any telephone calls on Friday, the day before?

Mr. WALL. I'm sure I made telephone calls to each cast member telling them we would not perform until Monday or Tuesday, that Mr. Anderson didn't know yet—he is the manager of the hotel—I'm sure I made quite a few calls that day.

Mr. SPECTER. Had you had a conversation with Mr. Anderson concerning the closing of the show?

Mr. WALL. No, sir. He called us saying there wouldn't be a show until Monday or Tuesday depending on when the funeral was. He didn't know.

Mr. SPECTER. What is his full name?

Mr. WALL. All I know is Andy Anderson. He has initials. I don't know, sir.

Mr. SPECTER. What members of the cast did you call following your conversation with Mr. Anderson?

Mr. WALL. Everyone in the cast, and I may forget a few names. I can list them if you'd like.

Mr. SPECTER. Please do.

Mr. WALL. Carl Tressler in Fort Worth. There would also be Eddie Parker, Bill Fanning, Suzanne Malone.

Mr. SPECTER. Where does she live?

Mr. WALL. In Dallas.

Mr. SPECTER. Where does Carl Tressler live?

Mr. WALL. Fort Worth. All the cast members in our show live in Dallas with the exception of Carl Tressler and Eddie Parker who live in Fort Worth. All of my calls would have been in Fort Worth except for the long

distance calls in Galveston. We have had so many castings I really can't remember the rest of the people we had in our show. Possibly I made a call to Hazel Rippe, if she was still in the show.

Mr. SPECTER. That would have been in Dallas also?

Mr. WALL. Yes, sir. All these telephone numbers would be in Dallas. Hazel wasn't in our show. There is another phone number in Fort Worth, it was a girl dancer in our show by the name of Ryna Hradecky, who was a friend of Carl Tressler's, so, therefore, I might have given a message to Carl to call Ryna because I couldn't get her at home at that particular time but if I had any calls to Fort Worth it would be to Ryna also. There would be one or two other calls to Dallas which would be cast members but I really can't think who was in the show.

Mr. SPECTER. At about what time did you call Tom McKenna?

Mr. WALL. It would probably be, I would say, around 2 in the afternoon because we decided very quickly we were going. We just got tired of laying around the room watching television. I was beginning to get "buggy."

Mr. SPECTER. Could you have called him as late as 5:30 that afternoon?

Mr. WALL. Yes, sir; it could have been.

Mr. SPECTER. What did you do then the balance of that afternoon?

Mr. WALL. Watched television.

Mr. SPECTER. Did you watch television all the time up until the point when you left to go to Galveston?

Mr. WALL. Yes, sir.

Mr. SPECTER. What time did you arrive in Galveston?

Mr. WALL. It would be 11 o'clock; somewhere around 11 o'clock.

Mr. SPECTER. How far is it from Dallas to Galveston?

Mr. WALL. I didn't make the call from Dallas to Galveston at 2—it must have been 5:30—because it only takes 4½ hours.

Mr. SPECTER. What is the distance?

Mr. WALL. Around 200 miles.

Mr. SPECTER. Did you make any stops en route?

Mr. WALL. Only for gas.

Mr. SPECTER. Where did you have dinner?

Mr. WALL. We didn't have dinner. We don't ever eat when we drive to Galveston, just go straight on down.

Mr. SPECTER. Did you eat when you arrived at Galveston?

Mr. WALL. Yes, sir; we ate at the house.

Mr. SPECTER. At Mr. McKenna's house?

Mr. WALL. Yes, sir.

Mr. SPECTER. What did you do after arriving in Galveston that night?

Mr. WALL. Well, just as nearly, as quickly as we arrived is when we got a telephone call from Jack Ruby. After I talked to him we sat and visited and then went to bed.

Mr. SPECTER. How long did the telephone call from Mr. Ruby last?

Mr. WALL. I would say it couldn't have been more than only 5 minutes. Maybe 3½ minutes.

Mr. SPECTER. State, as precisely as you can recollect, exactly what Jack Ruby said to you and what you said to him during that telephone call.

Mr. WALL. Well, he was having trouble with the union, or AGVA, and I had been elected the president of the council, newly elected president, and we had not even had a meeting yet but—I can't remember—he was having some sort of problems with his girls and the union was going to make him do something, which I didn't think was right. I told him I would help him out and make sure his case was presented correctly.

Mr. SPECTER. What was the union trying to make him do?

Mr. WALL. I don't recall. I really don't know but—I wasn't going to be on his side, but I was going to be sure it was presented correctly, that we would get his angle as much as the union's, the girl that was reporting him or whatever the circumstances were.

Mr. SPECTER. Were you friends with Mr. Ruby at this time?

Mr. WALL. Yes, sir. He was very upset the President was assassinated and he called Abe Weinstein or Bernie Weinstein, he called them some names for staying open Friday night.

Mr. SPECTER. What club did they run?

Mr. WALL. They—I don't know which one owns which. One owns the Theater Lounge and the other owns the Colony Club, and he was very upset that he had closed and they stayed open. He thought it wasn't right and he wanted to know when I would return to Dallas and I told him probably Monday or Tuesday and he said, well, when I got in to town would I call him, which I said I would. He asked how everything was. I told him fine and that was it.

Mr. SPECTER. Can you recollect anything else he said during that telephone conversation?

Mr. WALL. No, sir.

Mr. SPECTER. Can you recollect anything else that you said to him during that call?

Mr. WALL. Only if I told him why I left Dallas. He asked what I was doing in Galveston. I told him I just wanted to get away for a couple of days.

Mr. SPECTER. Did he mention Lee Harvey Oswald in that telephone call?

Mr. WALL. No, sir; not at all.

Mr. SPECTER. Did he mention anything about any assassin or the assassin whoever he might be?

Mr. WALL. No, sir. The only thing that he said which would be important to the Commission was that he was very upset that the other clubs had decided to stay open and that they did not have the decency to close on such a day and that he thought out of respect they should close. That is the only thing I recall that he said that would be of any importance. The other things were about his business with the union, how we were and why we went down to Galveston.

Mr. SPECTER. Did he say anything about any intention he might have to do anything to Oswald?

Mr. WALL. No, sir; not at all.

Mr. SPECTER. Prior to that telephone call on the night of November 23, when was the last time you had talked to Ruby before that?

Mr. WALL. It could have been 2 or 3 days before. I don't know, as I said. I saw him that often, you know. I do recall the last time I was in his club was the week before he shot Oswald.

Mr. SPECTER. When were you in his club during that week?

Mr. WALL. We had signed a contract to go into the Continental Hotel in Houston and we had the——

Mr. SPECTER. By "we" you mean you and Joe Peterson?

Mr. WALL. Right. Whenever I use "we" that is always Joe Peterson. And we had—the man who signed us felt pretty good about it and wanted to stay up beyond 12 o'clock, which is our curfew in Texas, and the only place that was open is the three exotic clubs and we decided to take Larry Grayson, booker of the Continental, to Jack Ruby's club and let him see a stripper called Jada.

Mr. SPECTER. Weren't the exotic clubs governed by the curfew?

Mr. WALL. No, sir; I'm sorry. The Theater Lounge and the Colony Club did close—I'm sorry. They didn't close. No; they didn't. You could serve a beer called near beer which did not contain any alcohol, or they would serve coffee. They did not have to close at the same time the others closed; so we took Larry and went over there and stayed up until around 2 or 3. I recall the incident, by the way, that Jack was having trouble with the union about.

Mr. SPECTER. What incident was it?

Mr. WALL. It was something about the comic had to perform in between each stripper to lengthen the time of the show and where he had lined up three strippers at one time and then a comic and then three strippers again. He was having trouble with time. He wanted to make the show continuous and this was the problem he was having, so the night that I went to the

Carousel Club with Larry Grayson and Joe Peterson he, himself, got on stage and entertained for 30 minutes with a raffle and I recall that Larry turned to me and said—every time that Jack would do something he would try and be very funny—every time he would do something he would turn to me and say. “Is that all right, Breck?” and Larry turned to me and said, “He thinks a great deal of you. Every time he does anything he turns to you,” and I said, “Yes.” I definitely remember that. That was the problem of trying to make——

Mr. SPECTER. What night was that?

Mr. WALL. It was at least a week before, maybe not—maybe not quite a week.

Mr. SPECTER. Can you recall the specific night that was?

Mr. WALL. No, sir; I can't.

Mr. SPECTER. Prior to that time when had you last seen Ruby?

Mr. WALL. I really don't know, sir. I don't think probably I saw him at all until after the President had been shot.

Mr. SPECTER. Now, I'm going back, before the time you said you had this conversation with him on that Saturday night when you were in Galveston. You saw Jack Ruby at the Carousel Club some time about a week before the assassination?

Mr. WALL. Yes, sir.

Mr. SPECTER. When, prior to the time you were in the Carousel Club a week before the assassination, had you last seen Jack Ruby?

Mr. WALL. Possibly on the street or something. I had gone up to the club a week or two before that.

Mr. SPECTER. Had you discussed this problem concerning the American Guild of Variety Artists with Jack Ruby prior to that telephone conversation on November 23?

Mr. WALL. Yes, sir; I had.

Mr. SPECTER. When had you discussed it with him before?

Mr. WALL. He had called me——

Mr. SPECTER. When was that?

Mr. WALL. Possibly 2 weeks before the assassination—telling me his problem and wanting to know when it would be brought up at the meeting, and I told him that we usually met the 15th of each month and that at the next meeting I would—I'm sorry. I made an error. We meet every Thursday. Every Thursday there was a union meeting and the 15th is when we meet privately, I think.

Mr. SPECTER. Did you have an official capacity with the union, that is, were you an officer?

Mr. WALL. Well, I was an officer as being elected the president of the inter-union. In other words, all the performers, if there was a complaint that some performer had done something wrong and the management said that he was right and the performer said that they were right, then the performers themselves elected a committee of about six that would determine who was right, and this was the committee and I really don't even know the correct name of the committee. They would judge who was right and wrong and what would be done about it.

Mr. SPECTER. Did you have any official standing on the committee which was to take up Jack Ruby's problem?

Mr. WALL. I don't understand what you mean.

Mr. SPECTER. Were you responsible in any official way for the committee which was to consider the problem Jack Ruby had with the guild?

Mr. WALL. My capacity was to make sure that everything was presented correctly and this was the only thing that Jack was after me to do is to make sure his side of the story was heard.

Mr. SPECTER. Was it up to you to make the decision on who was right and who was wrong?

Mr. WALL. It was up to the committee, six members.

Mr. SPECTER. You were one of the members of the committee?

Mr. WALL. Right.

Mr. SPECTER. Now, when did Jack Ruby first discuss his problem with you?

Mr. WALL. I would say around 2 weeks before the assassination.

Mr. SPECTER. When did he next discuss the problem with you?

Mr. WALL. He called me a couple of times to see if we had had a meeting or not. He would call and I would tell him; no.

Mr. SPECTER. Was that by telephone?

Mr. WALL. Yes, sir; he would call me at the hotel.

Mr. SPECTER. And how many times did he call you after he first discussed it with you approximately 2 weeks before the assassination?

Mr. WALL. I would say about two times.

Mr. SPECTER. When did he make those telephone calls to you?

Mr. WALL. In the afternoon.

Mr. SPECTER. Approximately how long before the assassination were those calls made?

Mr. WALL. Well, the last one was the Saturday night, midnight the last call came, that was the main reason he was calling me was to find out if we had had a meeting.

Mr. SPECTER. Did he call you once or twice between the first time he talked to you about the guild problem and the time he called you in Galveston?

Mr. WALL. About twice.

Mr. SPECTER. When did those two telephone calls occur, to the best of your recollection?

Mr. WALL. In the afternoon. That was the only time to get me.

Mr. SPECTER. What dates?

Mr. WALL. I can't recall any dates.

Mr. SPECTER. Did you discuss any thing else in any of those two telephone calls other than the specific problem with the guild?

Mr. WALL. No, sir.

Mr. SPECTER. Had Mr. Ruby called you at Galveston prior to the time he completed the call shortly after your arrival at Galveston on that Saturday night?

Mr. WALL. I'm sorry. Had he——?

Mr. SPECTER. Did he just call you the first time and make that connection with you?

Mr. WALL. Yes, sir; as far as I know. Otherwise my mother would have said that she received a long distance call.

Mr. SPECTER. When you say your mother——

Mr. WALL. Nonnie. Mrs. McKenna.

Mr. SPECTER. Mrs. McKenna did not refer to any prior call to you?

Mr. WALL. No.

Mr. SPECTER. Do you know how Mr. Ruby got your telephone number in Galveston?

Mr. WALL. Yes, sir. I left my telephone number where I would be in Galveston with the operator in Dallas, which I do every time I go out of town so they will know how to contact me.

Mr. SPECTER. What is your purpose in leaving your telephone number in that manner?

Mr. WALL. Well, I get quite a few calls and the main reason I left it was because Mr. Anderson, who was the manger of the hotel, hadn't decided what day to come back to work, Monday or Tuesday, therefore, I needed to know so, therefore, I left the telephone number.

Mr. SPECTER. After you completed your telephone conversation with Jack Ruby on that Saturday night, November 23, what did you do next?

Mr. WALL. As far as I can remember I had a sandwich and visited with the folks for about 45 minutes, then went to bed because I was kind of tired.

Mr. SPECTER. At what time did you awaken on Sunday morning, November 24?

Mr. WALL. I don't know the precise time. I do know it was about—it couldn't have been more than 10 minutes before Jack shot Oswald because I had just gotten up and walked in the bedroom and was watching it in the folks' bedroom, so whatever time Jack shot Oswald I was only up 10 minutes beforehand.

Mr. SPECTER. What, if anything, did you observe on the television screen at that time?

Mr. WALL. Nothing at all to relate it was Jack.

Mr. SPECTER. Did you know it was Jack at the time you saw the shooting of Oswald?

Mr. WALL. No, sir.

Mr. SPECTER. What part of the man did you see on the television screen?

Mr. WALL. It all happened so quick I didn't see anything except I understood Jack had been shot.

Mr. SPECTER. Understood who had been shot?

Mr. WALL. I'm sorry, that Oswald had been shot and that—I watched the interview with the policeman saying he knew who it was but could not say publicly who it was. We waited around and, I would say, within a matter of 15 minutes they announced who it was. It seems to me that quick.

Mr. SPECTER. And who did they announce that it was?

Mr. WALL. Jack Ruby, owner of a stripper club called the Carousel.

Mr. SPECTER. What was your reaction, if any, to that?

Mr. WALL. Well, it was a shock. That is all I can say. It was a real shock.

Mr. SPECTER. What did you do for the balance of that Sunday afternoon?

Mr. WALL. Well, I would say within 30 minutes to an hour we received a call from the Washington Post representative who, I believe, was in Dallas at the time.

Mr. SPECTER. How did that representative of the Washington Post happen to call you?

Mr. WALL. I have no idea.

Mr. SPECTER. Do you know what his name was?

Mr. WALL. No, sir; I don't.

Mr. SPECTER. What did you say to him, if anything?

Mr. WALL. Well, I was still in shock. I told him that I had talked to Jack over the telephone and he asked what we had said and I told him and he said: "Well, can you tell me a little about him?" And I was at that time having an argument with Mr. Peterson on what to do, you know, keep your mouth shut, or, you know, say what you had to say.

Mr. SPECTER. What was Mr. Peterson's view?

Mr. WALL. He said to keep my mouth shut, he did not want to get involved in any way, and that the right people would come to us and for us not to say anything so——

Mr. SPECTER. What was your view about that subject?

Mr. WALL. Well, I didn't know. I don't know. I can't remember. I would say mine was the same way. I was kind of scared, to be honest.

Mr. SPECTER. Why were you scared?

Mr. WALL. Just when people start calling you long distance you get seared. You don't want to get involved in anything, particularly if you didn't have anything to do with it. Then the next telephone call we got was from Dick Hitt, who is a man on the—a columnist for the Dallas Times Herald who knew I was a very close friend.

Mr. SPECTER. Had you known Mr. Hitt before that telephone call?

Mr. WALL. Oh, yes; ever since I have been in Dallas.

Mr. SPECTER. What did Mr. Hitt say to you?

Mr. WALL. He wanted to know about—he wanted me to talk to his editor or someone about Jack, to find out what kind of a person he was and everything.

Mr. SPECTER. Did you talk to his editor?

Mr. WALL. We did but very coldly. Joe talked to the editor.

Mr. SPECTER. Did you talk to him?

Mr. WALL. I talked to Dick Hitt but whenever they called back the man called back and said: "Dick Hitt said for me to call you." Joe got on the phone and said: "No, I don't know anything." I have a correction to make. The first call that we received was from the Dallas Morning News. The second call we got was from the Washington Post and the last call we got was from Dick Hitt.

Mr. SPECTER. Who called you from the Dallas Morning News?

Mr. WALL. I would say right now as far as I can remember it was Hugh Ainsworth because he also knew I was a very good friend of Jack's.

Mr. SPECTER. What was the content of the conversation between you and Mr. Ainsworth?

Mr. WALL. The conversation was that Jack had called me and—Hugh and I were good speaking friends. Not close friends, but we had talked a great deal—of course, this being the first person I had talked to that had also known Jack, we were just in a conversation. I told him: "Yes, I had received a call," you know, I was sort of outspoken in discussing it with Hugh. Joe got kind of angry and said we should not meddle in any way at all and so the Washington Post called after that and we were sort of cool and when Dick Hitt called we said we knew nothing.

Mr. SPECTER. Did you receive any other telephone calls?

Mr. WALL. No, sir.

Mr. SPECTER. Did you make any telephone calls on that Sunday?

Mr. WALL. Yes, sir.

Mr. SPECTER. Whom did you call?

Mr. WALL. I called Nancy Austin, who is a performer in our show, to find out how to get hold of Phil Burleson.

Mr. SPECTER. Who was Phil Burleson?

Mr. WALL. He was my attorney.

Mr. SPECTER. How long had he been your attorney?

Mr. WALL. Since I arrived in Dallas.

Mr. SPECTER. And what was the purpose of your wanting to get Mr. Burleson's telephone number?

Mr. WALL. Well, Phil also knew Jack and I wanted to see if he was going to represent Jack or if he could or wanted to or to see if he could get in to see Jack to see what was going on.

Mr. SPECTER. Why did you do that?

Mr. WALL. Well, as I say, I was in shock. I was upset because I liked Jack very much. He has been a very good friend of ours even with our ups and downs. Just to make sure everything was all right. To find out what was going on.

Mr. SPECTER. Had anybody requested you to contact an attorney on behalf of Jack Ruby?

Mr. WALL. No, sir.

Mr. SPECTER. That thought came to you on your own initiative?

Mr. WALL. Yes.

Mr. SPECTER. Did you discuss it with Mr. Peterson?

Mr. WALL. Yes; I think so.

Mr. SPECTER. What did Mr. Peterson say about that telephone call?

Mr. WALL. It was fine with him. The main thing that Joe objected to, he did not want to be in print about saying anything or doing anything that would jeopardize our position at the Adolphus Hotel.

Mr. SPECTER. Did you know that Jack Ruby had other attorneys who represented him regularly?

Mr. WALL. No, sir.

Mr. SPECTER. Did he have any other attorney, to your knowledge?

Mr. WALL. I have never known him to have any attorney at all.

Mr. SPECTER. That is prior to the time of the shooting of Oswald?

Mr. WALL. Yes, sir.

Mr. SPECTER. Did you make any other telephone calls on that Sunday?

Mr. WALL. Well, any other phone calls I would have made would have been to cast members.

Mr. SPECTER. For what purpose?

Mr. WALL. To tell them that we still didn't know we were going to do the show or anything about it, just be prepared to come in Monday, Tuesday, Wednesday, whenever they were notified.

Mr. SPECTER. Do you recall any other specific calls you made on that Sunday, November 24?

Mr. WALL. No, sir.

Mr. SPECTER. What did you do the balance of the day?

Mr. WALL. Watched television.

Mr. SPECTER. What time did you go to sleep that night?

Mr. WALL. Late. It was very late.

Mr. SPECTER. Where did you have supper?

Mr. WALL. In the house.

Mr. SPECTER. Did you leave the house at all that Sunday?

Mr. WALL. No, sir; I didn't go out at all.

Mr. SPECTER. What time did you arise on the following Monday?

Mr. WALL. I would say Monday night. I really don't, to be honest with you, I don't know what time I arrived back. I don't know if we performed Monday or Tuesday. From all recollection it was Tuesday we performed. I don't know. It could have been Tuesday afternoon that we got back.

Mr. SPECTER. When did you go back to Dallas?

Mr. WALL. I don't remember, sir, now what day it was we left.

Mr. SPECTER. Have you seen Jack Ruby after the shooting of Oswald?

Mr. WALL. Yes, sir.

Mr. SPECTER. When did you see him?

Mr. WALL. It was the first Saturday or the second Saturday after the assassination I was in the hotel room watching the football game and it was in the afternoon and Sheriff Bill Decker called me and said that Jack was very depressed and needed some cheering up and wanted to know if I would come down, so I went down.

Mr. SPECTER. How long after Sheriff Decker's call did you arrive at the jail?

Mr. WALL. I would say between half an hour and 45 minutes.

Mr. SPECTER. How long did you stay at the jail?

Mr. WALL. I would say about 20 minutes, maybe.

Mr. SPECTER. State as specifically as you can recollect the nature of your conversation with Jack Ruby indicating what he said to you and what you said to him?

Mr. WALL. Well, I wasn't the only person there. There were two other people there, one man I don't know—I have seen him around before. The other man was, I'm sure you have it in your records, he was the partner of Jack in the club who tried to run it after Jack had shot Oswald. I can't think of the man's name.

Mr. SPECTER. Do you recall the first name of either of those men?

Mr. WALL. No, sir; I don't. I know them by face.

Mr. SPECTER. Was there anyone else present besides the four of you?

Mr. WALL. No, sir; except for the two policemen that were inside the tank where Jack was. He was inside the tank.

Mr. SPECTER. What conversation ensued while you were present with Mr. Ruby?

Mr. WALL. Well, the main thing Jack brought out was he thought himself correct in shooting Oswald.

Mr. SPECTER. For what reason?

Mr. WALL. As far as I can remember he didn't give a reason. He just said, you know. "I was right in doing it."

Mr. SPECTER. Did any one disagree with him?

Mr. WALL. No.

Mr. SPECTER. Why not?

Mr. WALL. Well, they just didn't say anything against him. I can't remember the incident too well. I do know that Jack was very upset and the two men, on the outside, didn't argue with him at all in anything that he said, and they said they wouldn't. I remember them making the comment to each other they weren't going to upset him, and whatever he said they would just nod yes to and would agree with; they weren't going to get him upset.

Mr. SPECTER. What did you say to Jack, if anything?

Mr. WALL. I talked to him about Phil.

Mr. SPECTER. Phil who?

Mr. WALL. Burleson. "I was wondering if Phil came up to see you," and, "I asked him to come up," and "If you can get him to represent you as one of the attorneys," and everything. "I think it would be very good for you since he was at one time the assistant district attorney." I said, "I think he would do a good job for you. He is very honest, very aboveboard," and Jack said, "Yes, he came to see me and I think he would do well and I would like to use him if I can." Then I asked him how they were treating him in jail and he said how nice they were to him and he asked me what I was doing. I told him I was watching the football game and Sheriff Decker said I could come down and see him. Then he asked me specifically did I want to get involved in the case in any way, or something like that, and I told him under the circumstances please don't ever use our name or anything. It's not that I didn't like him. It was just that it might ruin our careers that we worked very hard for. He gave me his word he would never use us, say anything about us in any publication or anything. This was very true. While we were in Houston he needed money and wrote an article for a series of newspapers and he stated in the article, toward the end he made a call to Joe Feder and Beck Wald, which I thought was very nice of him and

all the other circumstances in the article that I could see he used the names of the people.

Mr. SPECTER. Joe Feder was really Joe Peterson?

Mr. WALL. Yes.

Mr. SPECTER. And Beck Wald was really you?

Mr. WALL. Me; yes.

Mr. SPECTER. Can you recollect anything more about the conversation that you had at the jail on the Saturday you refer to?

Mr. WALL. No, sir. It was the first time I had seen him since the assassination and it was just, you know, kind of strange meeting. There wasn't any fun in it at all, you know, like laughs. Sheriff Decker told me he wanted to be cheered up. It was not like that at all. It was a very sad thing.

Mr. SPECTER. Have you ever seen Jack Ruby since?

Mr. WALL. No, sir; I have gotten a few letters from Jack.

Mr. SPECTER. How many?

Mr. WALL. I would say about three.

Mr. SPECTER. Where did he write to you?

Mr. WALL. From the jail.

Mr. SPECTER. And where were you when you received those letters?

Mr. WALL. In—I think I received two in Dallas and I would say one in Houston, and they were very simple letters, just how he was feeling and, you know, what he was doing.

Mr. SPECTER. Did you respond?

Mr. WALL. Yes; I wrote him back and told him what we were doing and how we were doing and I hoped he was well.

Mr. SPECTER. How many times did you write to him?

Mr. WALL. Maybe three or four times. I don't know. I do remember another thing we discussed while he was in the jail. He said he was writing—I remember two things—he was writing down his memoirs and wanted to

do it into a story form and would I be interested in doing it for him. I told him I would see. And the other thing he mentioned to me is he had received a lot of telegrams and letters from all over the country saying he was correct in doing what he did, or he was wrong in doing what he did, or whatever it was. He was getting so many in he had no way of writing them back. He wanted to thank each and every one for writing to him and wanted to know if I would correspond with them on behalf of him and that is when I said, "I would rather not get involved in any way and you can understand why." And he said, "Yes, I do."

Mr. SPECTER. Have you had any other contacts at all with Jack Ruby after November 24, 1963?

Mr. WALL. Only through corresponding letters.

Mr. SPECTER. You have now mentioned all of the contacts you have had with him?

Mr. WALL. Yes, sir.

Mr. SPECTER. Going back to November 21——

Mr. WALL. I have one. I'm sorry. I do have one. As I said, Phil Burleson is Joe's and my attorney and, therefore, I would go see Phil every once in awhile just to give Jack a message of hello, that we are thinking of him, and to see how he was. We were all right and everything. I did ask Phil to do this for me. Every once in awhile I would do it.

Mr. SPECTER. Have you now related all of the contacts you have had with Ruby since November 24, 1963?

Mr. WALL. Yes, sir.

Mr. SPECTER. Going back to November 21, the day before the assassination in 1963, did you have occasion to talk by telephone to Tom McKenna on that day?

Mr. WALL. The day before?

Mr. SPECTER. The assassination?

Mr. WALL. No, sir; not at all unless it was about football. I am a football fanatic. It was the day before. This would be Thursday, right?

Mr. SPECTER. Would it refresh your recollection if I said you had a telephone call with him at about 6:50 on that day?

Mr. WALL. No, sir; it wouldn't because I call him quite frequently. I just made a telephone call to him day before yesterday. Unless it was just to say hello and everything. We did not decide to go down to Galveston until that afternoon, the day after the assassination.

Mr. SPECTER. How long have you known Edward Parker of Fort Worth?

Mr. WALL. Eddie Parker is—came to work for us for Bottoms Up at the Adolphus and he would help in costume changes and setting up the props. We had a portable stage which he would set up and get everything ready before the show would start. That would be about a year and a half, but we performed at the Playbill Club, we performed a show which he also helped us in, called Razzmatazz was the name of the show.

Mr. SPECTER. Do you recall telephoning him on October 1st, 3d, and 4th, 1963?

Mr. WALL. No, sir; I would call him in any respect to the show. The only reason I would have anything to do with him would be to tell him whether we would do a television show, needed him there and needed Carl Tressler, who was in our show. They are roommates. Anytime I would call them would be in reference to the show.

Mr. SPECTER. You already mentioned you called him on November 22.

Mr. WALL. To tell him probably that the show had been canceled.

Mr. SPECTER. At about what time was that call made, if you recall?

Mr. WALL. Well, it would probably be around, I would say, 1 or 2 o'clock. As soon as Mr. Anderson told us we would not perform that night or Saturday.

Mr. SPECTER. Could it have been as late as 6 that evening?

Mr. WALL. Yes, sir; it could have been as I was going out of town to tell him I was leaving and would be in Galveston; if they needed to get hold of me to call the operator.

Mr. SPECTER. But you didn't go to Galveston on Friday, November 22, did you?

Mr. WALL. No, sir; that was just to tell him we were not going to do a show that night.

Mr. SPECTER. Do you know a Patricia Farmer?

Mr. WALL. No, sir.

Mr. SPECTER. Do you know a Clarence Vought?

Mr. WALL. No, sir.

Mr. SPECTER. What relatives, if any, does Tom McKenna have in Dallas?

Mr. WALL. The only one that would be there would be his son who is 18 years old, George McKenna, who was working on a construction job at the Republic National Bank.

Mr. SPECTER. Do you know R. D. Matthews?

Mr. WALL. No, sir.

Mr. SPECTER. Do you know whether Jack Ruby knew anybody by the name of R. D. Matthews?

Mr. WALL. Only if that was the man I couldn't think of in the previous statement. I said I knew their faces but not their names, but the name doesn't ring a bell at all.

Mr. SPECTER. Do you know anything about Jack Ruby's trip to Cuba?

Mr. WALL. I have never heard of anything like that at all.

Mr. SPECTER. Do you know anybody by the name of Henry Atcheson, A-t-c-h-e-s-o-n, or Henry Acteson, A-c-t-e-s-o-n?

Mr. WALL. No, sir.

Mr. SPECTER. Did you make any telephone call from the Adolphus Hotel to anyone in Canada during March of 1964?

Mr. WALL. I can't remember ever calling Canada. As I stated before to you the only one that I ever knew in Canada was Kay Sutton, who was a performer in our show who was somewhere in Canada.

Mr. SPECTER. Do you know James F. Mahon?

Mr. WALL. Yes, sir; he is my attorney, too.

Mr. SPECTER. Did you make a call to him on November 23, that is Saturday after the assassination?

Mr. WALL. Yes, sir; possibly.

Mr. SPECTER. What was the purpose of that call, if I may ask?

Mr. WALL. Well, to find out, possibly, if he knew anything about Jack; to see if he was going to represent Jack or anything. He also knew Jack Ruby.

Mr. SPECTER. This was the day before the shooting of Oswald?

Mr. WALL. Well, it could be any business thing. Phil handled most of our things but as things stand right now Jim Mahon handles everything for us, our bookkeeping and everything, so it could have been anything at all.

Mr. SPECTER. Did you make any other calls on November 23, 1963, if you can remember?

Mr. WALL. The 23d was——

Mr. SPECTER. That is Saturday.

Mr. WALL. Yes, sir; I could have called any number of people.

Mr. SPECTER. Did you make a call to RI 8-1434?

Mr. WALL. That number—that could have been Jim Mahon.

Mr. SPECTER. Was Jim Mahon's number Riverside 8-4361 or do you recall?

Mr. WALL. No; that is his number. I do know—Riverside, 1434, I don't know, sir. I'm sure I placed quite a few calls that day. I talked to a lot of people.

Mr. SPECTER. Did you ever have a financial interest with Jack Ruby in the Sovereign Club?

Mr. WALL. No, sir; not as far as putting in our own money at all; only that we would retain a percentage of the club.

Mr. SPECTER. What do you mean by "retain a percentage of the club"?

Mr. WALL. For doing our shows there because we only received a small salary, as I said, \$125 a week. He said he would give us a portion of the club.

Mr. SPECTER. Do you mean a percentage of the gross receipts or a percentage of the net receipts?

Mr. WALL. I mean a percent of the club, period.

Mr. SPECTER. Half ownership in the club?

Mr. WALL. Yes, sir.

Mr. SPECTER. Was that ever formalized into a written contract?

Mr. WALL. As far as I know it was, sir, but I don't remember where the papers are. I think they were destroyed in the fire at the Playbill Club.

Mr. SPECTER. Did you ever get such an interest in the Sovereign Club?

Mr. WALL. No, sir.

Mr. SPECTER. Have you ever been interviewed by the Federal Bureau of Investigation or any other other Federal agency regarding your connection with Jack Ruby?

Mr. WALL. I have never been called into an office and interviewed at all. Possibly there were some men who came by and asked me a few questions but I can't remember it. It was that vague. I do know Joe Peterson was interviewed by some representatives of the FBI.

Mr. SPECTER. Do you think you may have been interviewed by the FBI, but you are not sure?

Mr. WALL. Yes, sir.

Mr. SPECTER. Did you ever tell the FBI anything about Ruby's telephone call on the night of November 23 to you in Galveston?

Mr. WALL. Yes, sir; if they interviewed me I definitely told them about it because it was very important.

Mr. SPECTER. But you are just not sure whether or not they interviewed you?

Mr. WALL. I will tell you, things happened so fast. I definitely remember Joe came back and said, "Two representatives want to talk to you," but I don't remember ever talking to them.

Mr. SPECTER. You don't have any specific recollection of ever talking to them or telling them about that telephone call from Jack Ruby on Saturday, November 23?

Mr. WALL. No, sir.

Mr. SPECTER. Mr. Wall, did you and I have a brief interview before this deposition started today?

Mr. WALL. Yes, sir.

Mr. SPECTER. And during the course of that interview did I ask you the outline of the questions which we have covered here on the record?

Mr. WALL. Yes, sir.

Mr. SPECTER. And were your answers the same as you told me here this afternoon?

Mr. WALL. Yes, sir.

Mr. SPECTER. Do you have anything to add which you think would be helpful in any way to the President's Commission?

Mr. WALL. Well, the only thing that I stated to you before is that previously I said that Jack and Joe got into a fight when he blew his stack but then on the other hand there was a time when we needed \$300 very desperately and Jack in a matter of 10 minutes went over and got a loan on his own car for us so that the man does have feelings and he can flare up in 5 minutes and then forget about it, you know. I can't, but he is one type of person who can. You never know what he is going to do next.

Mr. SPECTER. Do you know Ralph Paul?

Mr. WALL. That was the name of the gentleman who was visiting Jack at the same time I was that I could not remember.

Mr. SPECTER. Aside from that time in the jail have you ever talked to Ralph Paul?

Mr. WALL. Very, very little. Jack at one time has taken Joe and I to a bowling alley—I remember Ralph Paul was along—and took us for breakfast. We bowled a game but I still didn't say seven or eight words to the man. I was very friendly but I still didn't say anything to him.

Mr. SPECTER. Did you make any effort to telephone Ralph Paul anytime on November 22 or 23?

Mr. WALL. No, sir.

Mr. SPECTER. Or November 24?

Mr. WALL. No, sir. I wouldn't even know how to get ahold of the man.

Mr. SPECTER. Mr. Wall, if you wish, we can make available the typed-up copy of this deposition for you to read and sign, or if you are willing, you can waive that signature which means that you will not read and sign the transcript. Do you have any preference on the subject?

Mr. WALL. I will do whatever is the easiest, for you all and the best way.

Mr. SPECTER. Are you willing then to waive your reading and signature?

Mr. WALL. Yes, sir.

Mr. SPECTER. Fine. We appreciate that. We will then accept your waiver. It may or may not be made available for you to read and sign. Thank you very much for your appearing here today.

TESTIMONY OF JOSEPH ALEXANDER PETERSON

The testimony of Joseph Alexander Peterson was taken at 3:45 p.m., on August 5, 1964, at the U.S. Post Office Building, 301 Stewart Street, Las Vegas, Nev., by Mr. Arlen Specter, assistant counsel of the President's Commission.

Mr. SPECTER. May the record show present at this time is Mr. Joseph Peterson. Mr. Peterson, the President's Commission on the Assassination of President Kennedy has asked you to appear so that we may take your deposition concerning any knowledge you have of Mr. Jack Ruby, his activities during the period around the assassination of President Kennedy, and any of his associates. With that preliminary statement of purpose, would you stand up and raise your right hand, please?

Do you solemnly swear that the testimony you shall give in this proceeding before the President's Commission shall be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. PETERSON. I do.

Mr. SPECTER. Would you state your full name?

Mr. PETERSON. Joseph Alexander Peterson.

Mr. SPECTER. Have you ever been known by any other name?

Mr. PETERSON. Joseph Jablonka.

Mr. SPECTER. Was that the name under which you were born, sir?

Mr. PETERSON. Yes, sir.

Mr. SPECTER. You say that has been legally changed?

Mr. PETERSON. Legally changed. My stepfather's name is Walter Peterson.

Mr. SPECTER. When was your name changed from Jablonka to Peterson?

Mr. PETERSON. November 1965. I remember that well because that was when I was married.

Mr. SPECTER. November of what?

Mr. PETERSON. 19—excuse me, 1946.

Mr. SPECTER. What is your birthday?

Mr. PETERSON. February 14, 1924.

Mr. SPECTER. Where were you born?

Mr. PETERSON. Brooklyn, NY.

Mr. SPECTER. Where have you lived since the time you were born?

Mr. PETERSON. Let's see, now. I have lived in Flatbush, Rogers Avenue, 649 Rogers Avenue, and——

Mr. SPECTER. Until when?

Mr. PETERSON. Wait a minute. Before that, 280 19th Street, Brooklyn, N.Y.

Mr. SPECTER. How long did you live in Brooklyn altogether?

Mr. PETERSON. The family; all our lives. Me, I went in the service, came out, went to Jacksonville, Fla.

Mr. SPECTER. Did you live in Brooklyn until you went into the service?

Mr. PETERSON. Right.

Mr. SPECTER. When did you go into the service?

Mr. PETERSON. 1941.

Mr. SPECTER. How long were you in the service?

Mr. PETERSON. 1945.

Mr. SPECTER. Where did you live after leaving the service?

Mr. PETERSON. 1946 I went to—back home.

Mr. SPECTER. Brooklyn?

Mr. PETERSON. Right.

Mr. SPECTER. How long did you live in Brooklyn after 1946?

Mr. PETERSON. Let's see. I guess a period about up until 1950.

Mr. SPECTER. Where did you live after 1950?

Mr. PETERSON. New Orleans.

Mr. SPECTER. How long did you live in New Orleans?

Mr. PETERSON. Three years.

Mr. SPECTER. Where did you live after that?

Mr. PETERSON. Jacksonville, Fla. No; wait a minute. I didn't go to Jacksonville, Fla. I visited Jacksonville, went to New Orleans, then from New Orleans, Dallas.

Mr. SPECTER. When?

Mr. PETERSON. 1950, 1951, 1952.

Mr. SPECTER. Let's go back to 1950. You were living in Brooklyn at that time?

Mr. PETERSON. Just before that.

Mr. SPECTER. Where did you go then in 1950?

Mr. PETERSON. To New Orleans. Now, approximately—probably it was the end of 1950 because 1951 was so close.

Mr. SPECTER. How long did you live in New Orleans?

Mr. PETERSON. Two and a half to three years, and then I went to Dallas, Tex. I lived there ever since.

Mr. SPECTER. In what year did you move to Dallas?

Mr. PETERSON. About the end of 1953 or 1954.

Mr. SPECTER. How long did you live thereafter in Dallas, Tex.?

Mr. PETERSON. Up to now. I went to—let's see, now. I went to Houston with the show last February. Up until last February I was in Dallas, Tex. I

was in the show in Houston, February, March, April, May, June-January, February, March, then came here.

Mr. SPECTER. What is your occupation at the present time?

Mr. PETERSON. Producer.

Mr. SPECTER. Of what?

Mr. PETERSON. Coproducer of musical shows with Breck Wall.

Mr. SPECTER. Where are you employed right now?

Mr. PETERSON. Castaways Casino.

Mr. SPECTER. Here in Las Vegas?

Mr. PETERSON. Right. In Las Vegas.

Mr. SPECTER. How long have you been in show business?

Mr. PETERSON. Since about 1959.

Mr. SPECTER. How long have you known Mr. Breck Wall?

Mr. PETERSON. Since 1959.

Mr. SPECTER. How long, if at all, did you know Jack Ruby?

Mr. PETERSON. I knew Jack Ruby—let me think, now. Probably it was the last part of 1961 and we did one show there at his club. I believe it was 1961. I'm trying to figure. We went back to the Adolphus in 1962. It was probably in 1961.

Mr. SPECTER. When you say "one show," what do you mean by that?

Mr. PETERSON. Did a musical revue called Sticks and Stones there.

Mr. SPECTER. How long did that last?

Mr. PETERSON. Lasted about 2 or 3 months, I guess. We had problems.

Mr. SPECTER. What problems did you have?

Mr. PETERSON. Well, a lot of disagreements. At the time Jack was changing the club from a—he was reopening it. It was called the Sovereign. He was making it into a private club. He wanted to do something different. We were successful across the street with our revue. He talked to us about

putting the show up there, going 50-50 on a business basis with the club which we never received anything about.

Mr. SPECTER. Did you ever enter into an agreement with Jack Ruby wherein you were to have a 50-50 interest in it?

Mr. PETERSON. Yes; this was written up with Vic Victorson, his attorney.

Mr. SPECTER. Victorson?

Mr. PETERSON. Yes; Victor Victorson.

Mr. SPECTER. How do you spell that?

Mr. PETERSON. Victorson.

Mr. SPECTER. V-i-c-t-o-r-s-o-n?

Mr. PETERSON. Yes; the agreement was with him. It never held up though. We got nothing.

Mr. SPECTER. You never received any interest in the club?

Mr. PETERSON. Not a thing.

Mr. SPECTER. Did you ever endeavor to enforce that agreement?

Mr. PETERSON. Yes; the only thing we ever got out of it was through a loan. I think Breck borrowed \$300 to go to New York on a business trip. That is all the money we received out of it.

Mr. SPECTER. Did you ever try to make Jack Ruby live up to the agreement in any other way?

Mr. PETERSON. There was no use. Jack Ruby, in spite of our disagreements, he was kind of good natured in a way. The best thing to do was to bow out quietly.

Mr. SPECTER. Did you first meet Jack Ruby in approximately September 1961, when you played "Sticks and Stones"?

Mr. PETERSON. About that time; a little before that he came up to visit us at the club.

Mr. SPECTER. When was that?

Mr. PETERSON. September of 1960. Sometime around in there. He came up like a lot of club owners do. I think when we reopened the club he came up and visited us. We were introduced to him as Jack Ruby. That was all.

Mr. SPECTER. After you terminated your business relationship with him when the show "Sticks and Stones" ended, how frequently, if at all, did you see him thereafter?

Mr. PETERSON. He came and visited us quite a lot at the Century Room. He would come in when he had guests, big-shot type of thing, wanted to be recognized. He was very nice.

Mr. SPECTER. Did you have a cordial relationship notwithstanding your prior difficulties?

Mr. PETERSON. Right; right. Like I say, it was best to keep everything on a hello-goodbye basis.

Mr. SPECTER. How frequently did you see him after 1962?

Mr. PETERSON. Well, normally, like bump into him. It was only across the street. We were living at the Adolphus. Back and forth. It's hard to tell how many times.

Mr. SPECTER. Did you ever have any more business dealings with him?

Mr. PETERSON. No; once we went into bankruptcy, Breck and I, and like when all friendship failed we went to Jack Ruby and he came through. He was real fine. Loaned us money. We paid him back.

Mr. SPECTER. How much money did he loan you?

Mr. PETERSON. It wasn't exactly a loan. It was a thing, holding on costumes we had for the show. It was \$400.

Mr. SPECTER. To your knowledge did Jack Ruby have any association with any of the criminal elements?

Mr. PETERSON. Well, if you want to go by hearsay, yes; but actually I don't know of any. In fact he was in thicker with the police in Dallas than anybody else I knew of because they were always in his place.

Mr. SPECTER. What hearsay are you referring to?

Mr. PETERSON. I am talking about any hearsay. Because of his character automatically people would take him as a thug.

Mr. SPECTER. What aspect of his character would cause people to do that?

Mr. PETERSON. Outward appearance.

Mr. SPECTER. Anything besides outward appearance?

Mr. PETERSON. No; Jack, in spite of our differences, he was a nice, a good man.

Mr. SPECTER. Did you ever see him associate with any of the criminal element personally?

Mr. PETERSON. No; no.

Mr. SPECTER. To your knowledge was Jack Ruby a member of any organization which advocated the forceful overthrow of the U.S. Government?

Mr. PETERSON. No.

Mr. SPECTER. To your knowledge was any member of his family a member of any such organization?

Mr. PETERSON. I know nothing about his family except I had met his sister.

Mr. SPECTER. To your knowledge were any of his friends or associates members of any subversive organization?

Mr. PETERSON. No; not to my knowledge.

Mr. SPECTER. When did you see Jack Ruby most recently prior to November 22, 1963?

Mr. PETERSON. I guess it was before we went to Galveston. Sometime before then. I couldn't peg it down. I'm sure we saw him. Like I say, we saw him on the street there. Next thing was the call and that was it.

Mr. SPECTER. You don't recall seeing him specifically on any special date prior to the day of the assassination?

Mr. PETERSON. No; I don't.

Mr. SPECTER. But you do think, in a general way, you must have seen him because he was in the area?

Mr. PETERSON. Right.

Mr. SPECTER. Do you recall the day of the assassination?

Mr. PETERSON. Oh, yes.

Mr. SPECTER. Tell me as specifically as you can recollect what you did on that day?

Mr. PETERSON. Well, there was going to be the parade. We went down and stood on the marquee of the Adolphus Hotel. We were there with some newspaper people we knew and everybody at the hotel. The President passed by. We came back in the lobby. Next thing we knew we heard on the television he had been shot. That was it.

Mr. SPECTER. What did you do next; if anything?

Mr. PETERSON. As well as I can remember either we called or went upstairs, told the rest of the kids in the cast, those that weren't out. Just astonishment. Everybody was in the lobby just moving around.

Mr. SPECTER. Did you leave the hotel on that day?

Mr. PETERSON. No.

Mr. SPECTER. What time did you go to sleep that night, if you recall?

Mr. PETERSON. Well, that night we didn't have a show. I don't believe we had a show. No; we didn't have a show that night. They canceled it for three nights. That is when we went to Galveston.

Mr. SPECTER. When did you go to Galveston specifically?

Mr. PETERSON. Let me think. When was the 22d? What day was that?

Mr. SPECTER. The 22d was a Friday.

Mr. PETERSON. It was that night.

Mr. SPECTER. Did you go to Galveston Friday or Saturday?

Mr. PETERSON. I'm not sure whether it was Friday or Saturday because they canceled the show. I think it might have been the next day. I don't know. I could not be sure.

Mr. SPECTER. Do you recollect what you did next day before you went to Galveston; if in fact it was that day you went to Galveston?

Mr. PETERSON. The next day before we went to Galveston?

Mr. SPECTER. Yes; you have told me—let's go back to Friday. You told me you stayed around the hotel the balance of that day.

Mr. PETERSON. Yes.

Mr. SPECTER. Then you say you went to Galveston either Friday or Saturday?

Mr. PETERSON. Yes.

Mr. SPECTER. Tell me, to the best of your recollection, everything that you did before you went to Galveston from the time of the assassination on.

Mr. PETERSON. Well, we stayed at the hotel, found out if they were going to have a show; that is why I think it was Friday now, asking Andy Anderson. I think we picked up and left that night.

Mr. SPECTER. Did you make any telephone calls that day?

Mr. PETERSON. Breck might have called his mother in Galveston. I don't know.

Mr. SPECTER. What are the names of the people you refer to as his mother and father?

Mr. PETERSON. Mr. and Mrs. Tom McKenna.

Mr. SPECTER. They are not his real parents though?

Mr. PETERSON. No; they raised him.

Mr. SPECTER. Did you make a phone call to Emerson 1-4534 on the day of the assassination?

Mr. PETERSON. Emerson 1-4534. Who was it? I don't remember the number.

Mr. SPECTER. I am not able to give that to you, Mr. Peterson.

Mr. PETERSON. Well, then I can't remember that.

Mr. SPECTER. How about Riverside 2-6811?

Mr. PETERSON. Riverside 2-6811? I don't know that number either.

Mr. SPECTER. Do you recall any telephone calls which you made on November 22 or 23?

Mr. PETERSON. No; like I say, the only calls I probably made were around the hotel.

Mr. SPECTER. What time did you arrive at Galveston; to the best of your recollection?

Mr. PETERSON. If we left Friday it takes 4 hours. We probably left about, maybe 5, 6. Got there about 11 or 12.

Mr. SPECTER. What did you do after arriving in Galveston?

Mr. PETERSON. Made ourselves at home like we always do.

Mr. SPECTER. Who was there when you arrived?

Mr. PETERSON. Mr. and Mrs. McKenna; the family.

Mr. SPECTER. Anybody besides Mr. and Mrs. McKenna?

Mr. PETERSON. No; I don't think so. I don't remember.

Mr. SPECTER. Did you make any telephone calls from Galveston?

Mr. PETERSON. I don't think so.

Mr. SPECTER. Did Mr. Wall make any telephone calls?

Mr. PETERSON. Somebody called us, newspaper people, I think, out of Washington, some magazine wanted to know some stuff, I think.

Mr. SPECTER. What magazine was that?

Mr. PETERSON. I have no idea. Some newspaper.

Mr. SPECTER. Do you recall specifically the name of the man who called you?

Mr. PETERSON. No.

Mr. SPECTER. Did you talk to him?

Mr. PETERSON. I think I did. Yes; I did talk to him. That is why I remember. I'm trying to think.

Mr. SPECTER. To the best of your recollection tell me specifically what you said to him and what he said to you?

Mr. PETERSON. Well, just wanted to know—let me see. Was it there or was it at the hotel? They wanted a—Time, I think it was Time, or Life, because the man in Life is located in Dallas. He just wanted to know if we had any pictures with Jack Ruby or anything we had done for a story. I told him we did not have anything. Didn't bother with it.

Mr. SPECTER. While you were in Galveston did you receive any other telephone calls?

Mr. PETERSON. Yes; I'm trying to think. Somebody from some newspaper; I believe it was in Washington. Some magazine or some newspaper. Breck probably will remember better than I do. He has a better memory. They wanted some information on Jack Ruby. I couldn't give them any.

Mr. SPECTER. Aside from that call, did Breck Wall receive any telephone call while you were in Galveston?

Mr. PETERSON. I think he did.

Mr. SPECTER. From whom?

Mr. PETERSON. Well, the only one was from Jack Ruby.

Mr. SPECTER. Tell me about that call?

Mr. PETERSON. Jack was very upset about——

Mr. SPECTER. When did it come in?

Mr. PETERSON. It was in the evening some time.

Mr. SPECTER. What day?

Mr. PETERSON. On the day before.

Mr. SPECTER. Before what?

Mr. PETERSON. Assassination.

Mr. SPECTER. Before the assassination or before the shooting of Oswald?

Mr. PETERSON. Before the shooting of Oswald. I'm getting them both mixed up. It was the day before Oswald's assassination, or murder, whatever you want to call it. Jack called and was very upset about the assassination.

Mr. SPECTER. Did you talk to Ruby on that?

Mr. PETERSON. I don't think I did. I think Breck did.

Mr. SPECTER. Did Breck Wall relate to you what that conversation was about?

Mr. PETERSON. The call would have been Saturday. We went down there Friday. That is when it was.

Mr. SPECTER. What was that telephone conversation between Jack Ruby and Breck Wall all about?

Mr. PETERSON. What I just told you. Breck kind of soothed him a little bit. Nothing you could do. All this baloney. Well, it happened, you know.

Mr. SPECTER. Do you know whether Ruby said anything about intending to do anything?

Mr. PETERSON. No; not to my knowledge. He didn't relate that to me. Just he was very upset. Very sick; crying and all of that. That was it.

Mr. SPECTER. Was there any other subject discussed between Ruby and Breck Wall?

Mr. PETERSON. No; Jack was very close to us. He made himself close to us, you know. We were always in the headlines. Always in the newspapers. We were very good friends with a lot of people in Dallas. He kind of tried to keep up with us, you know, close. Anytime he had any problems or things like that he always came to talk to us about it, or ideas for the club. He came to bug us about that, you know. We were more or less successful in Dallas. Like I say; the best thing to do was just be nice and kind of stay away as much as possible.

Mr. SPECTER. Were there any other telephone calls which you made or which you received while you were in Galveston?

Mr. PETERSON. Not—I can't remember right now. I just don't remember.

Mr. SPECTER. Were there any other telephone calls which Breck Wall made or received while the two of you were in Galveston?

Mr. PETERSON. He probably talked to Tony Zoppi.

Mr. SPECTER. Zoppi?

Mr. PETERSON. Zoppi; he is the amusement critic on the Dallas Morning News. We are very close friends. He probably talked to him about that.

Mr. SPECTER. You don't recall specifically? You presume that might have have happened?

Mr. PETERSON. Yes.

Mr. SPECTER. Are there any other calls you know about while you were in Galveston?

Mr. PETERSON. No.

Mr. SPECTER. When did you go back to Dallas?

Mr. PETERSON. Probably Tuesday. I think we went back Tuesday. We had a show Tuesday. Ordinarily do. The show is closed for the weekend. It was Tuesday when we went back; I'm pretty sure.

Mr. SPECTER. Have you ever talked to Jack Ruby after the day of the shooting of Oswald?

Mr. PETERSON. No; I got a little, letters from him, note when he was in jail.

Mr. SPECTER. When did you receive that note?

Mr. PETERSON. It was a few days after the FBI questioned us. He wrote me a little thank you note because I spoke up for him. Like I am telling you, he was all right in spite of him being no good, too.

Mr. SPECTER. When did the FBI question you?

Mr. PETERSON. When we were in Dallas. When we were working at the hotel.

Mr. SPECTER. Do you recall the approximate date when they talked to you?

Mr. PETERSON. Possibly a week, 2 weeks after the Oswald——

Mr. SPECTER. Where were you then?

Mr. PETERSON. Living at the hotel.

Mr. SPECTER. Was the interview with the Federal Bureau of Investigation conducted at your hotel?

Mr. PETERSON. Yes; it was at the hotel.

Mr. SPECTER. Who was present at that time?

Mr. PETERSON. I think it was Mr.—who is the head of the FBI in Dallas? He was the one. Griffin. Griffith. I believe it was Griffith.

Mr. SPECTER. Was anybody with him?

Mr. PETERSON. There was somebody else sitting at the table. I'm not sure who it was. Tony Zoppi; I believe.

Mr. SPECTER. Mr. Zoppi was present at the time of the interview?

Mr. PETERSON. I believe; he was either there before, after. Tony always has breakfast there. We were all sitting at the table. Mr. Griffith came over.

Mr. SPECTER. The special agent in charge there is Gordon Shanklin.

Mr. PETERSON. This was Mr. Griffith.

Mr. SPECTER. Was Mr. Shanklin present?

Mr. PETERSON. I don't know.

Mr. SPECTER. Was Mr. Wall present at the time Mr. Griffith talked to you?

Mr. PETERSON. I don't know; he might have been. Seems to me three people were at the table. I'm trying to recollect. Breck might have been there. We eat breakfast together there usually. It was either breakfast or lunch. I'm never sure which it is because we always get up around 11 or 12.

Mr. SPECTER. When Mr. Griffith or Griffin interviewed you, did you tell him about the telephone call that Jack Ruby made to Breck Wall?

Mr. PETERSON. Yes; we told him all that. In fact this is a little clearer than that. Everything is a little fresher in my mind.

Mr. SPECTER. Are you sure you told him of that telephone call?

Mr. PETERSON. I don't know if I did; I'm sure Breck did.

Mr. SPECTER. Were you present when Breck Wall talked to the FBI?

Mr. PETERSON. No; I don't think so.

Mr. SPECTER. How can you say you are sure Breck Wall told him of the telephone call?

Mr. PETERSON. Because Breck is very much in the habit of doing the right thing.

Mr. SPECTER. So that would be your presumption he did?

Mr. PETERSON. Yes.

Mr. SPECTER. You actually weren't there when Breck Wall talked to the FBI man?

Mr. PETERSON. I'm pretty sure I wasn't.

Mr. SPECTER. Do you recall whether or not you personally told the agent from the FBI about the telephone call from Ruby in Galveston?

Mr. PETERSON. I'm pretty sure I did.

Mr. SPECTER. Were you interviewed by the FBI more than once or once?

Mr. PETERSON. Just the once, although I felt like it was more than once talking to them going up and down in the elevators, there were a hundred of them there. Couldn't miss them.

Mr. SPECTER. Do you know how Ruby knew how to call you in Galveston?

Mr. PETERSON. What he probably did was call the hotel and ask where we were because we always left a telephone call where we were at.

Mr. SPECTER. Why do you do that?

Mr. PETERSON. It was our policy to do that. If they wanted to start the show they had to know where we were at.

Mr. SPECTER. When did you find out Ruby had shot Oswald?

Mr. PETERSON. When we were watching TV.

Mr. SPECTER. Where?

Mr. PETERSON. Galveston; in McKenna's home.

Mr. SPECTER. Did you recognize Ruby then?

Mr. PETERSON. Oh, yes.

Mr. SPECTER. You could recognize Ruby?

Mr. PETERSON. Couldn't miss it.

Mr. SPECTER. What was your reaction on that?

Mr. PETERSON. Shock. Unbelievable, really.

Mr. SPECTER. Do you know whether Breck Wall called Phil Burleson from Galveston that day?

Mr. PETERSON. I think he did.

Mr. SPECTER. What was the purpose of that call?

Mr. PETERSON. I have no idea.

Mr. SPECTER. Did he discuss it with you before he made the call?

Mr. PETERSON. No.

Mr. SPECTER. Do you know whether he called Nancy Austin?

Mr. PETERSON. He probably called everybody up when that happened.

Mr. SPECTER. Do you know specifically whether the call was to Nancy Austin?

Mr. PETERSON. I think probably. Because of what he saw on the TV and about the show.

Mr. SPECTER. Do you know Eddie Parker?

Mr. PETERSON. Oh, yes; he used to work for us backstage at the Adolphus.

Mr. SPECTER. Did he ever call him up?

Mr. PETERSON. Probably. In reference to the show because he had connection with Tressler in the show.

Mr. SPECTER. Did Mr. Breck Wall call him up?

Mr. PETERSON. He probably did.

Mr. SPECTER. What was his purpose?

Mr. PETERSON. In regards to the show.

Mr. SPECTER. Do you know a Patricia Farmer?

Mr. PETERSON. No.

Mr. SPECTER. Do you know a Clarence Vought?

Mr. PETERSON. A lot of these people I might know when I see them. Breck knows. He is good on names.

Mr. SPECTER. The name Clarence Vought doesn't mean anything to you?

Mr. PETERSON. No.

Mr. SPECTER. What relatives, if any, does Tom McKenna have in Dallas?

Mr. PETERSON. I don't know anything about them.

Mr. SPECTER. Do you know R. D. Matthews?

Mr. PETERSON. No; I don't remember. I might.

Mr. SPECTER. Do you know anything about Jack Ruby's trip to Cuba?

Mr. PETERSON. Nothing. Only thing I know about that is when I read it later in the papers.

Mr. SPECTER. Did you know a man by the name of Henry Atcheson?

Mr. PETERSON. No.

Mr. SPECTER. Or Henry Acteson?

Mr. PETERSON. No. I am saying no to a lot of these. I may know them.

Mr. SPECTER. Do you know anything about a telephone call to Mr. Atcheson or Mr. Acteson in Canada back in March of 1964?

Mr. PETERSON. That I made?

Mr. SPECTER. Did you ever make such a call?

Mr. PETERSON. Not that I remember.

Mr. SPECTER. Did Breck Wall ever make such a call to your knowledge?

Mr. PETERSON. He might have. I don't know. Canada? Only one thing we had to do, that was a man who wanted to buy the show for one night and fly us up there.

Mr. SPECTER. What was his name?

Mr. PETERSON. Wohl, W-o-h-l. He got in touch with us about a show.

Mr. SPECTER. What part of Canada was he from?

Mr. PETERSON. I don't recollect right now.

Mr. SPECTER. What was his first name?

Mr. PETERSON. I think it was Jack.

Mr. SPECTER. Was he in Calgary, Alberta, Canada?

Mr. PETERSON. That is it. Calgary. Some organization. He was trying to get us booked for this, whatever it was, that they celebrate.

Mr. SPECTER. Was his name Wall, W-a-l-l?

Mr. PETERSON. No; Breck Wall is my partner. This other was Wohl, W-o-h-l.

Mr. SPECTER. Wall?

Mr. PETERSON. Maybe I'm spelling it wrong.

Mr. SPECTER. Was he with you in the Adolphus Hotel?

Mr. PETERSON. He comes to our hotel quite a lot.

Mr. SPECTER. Was he with you in March of 1964?

Mr. PETERSON. Well, he stayed there at the hotel. He saw a show two or three times. He talked to us about the chance of booking a show in Canada. He would get in touch with this organization he was with and let us know, which he did by letter.

Mr. SPECTER. Did you ever work that deal out?

Mr. PETERSON. No.

Mr. SPECTER. Why not?

Mr. PETERSON. Well, it just never materialized.

Mr. SPECTER. How did he pronounce his name again?

Mr. PETERSON. Wohl, I believe it is.

Mr. SPECTER. Phonetically it sounds the same as W-a-l-l?

Mr. PETERSON. Right.

Mr. SPECTER. He was from Calgary, Alberta, Canada?

Mr. PETERSON. Yes. I'm pretty sure that is it. In fact I think we still got that letter. I know it is W-o-h-l because I remarked on it, about Breck Wall.

Mr. SPECTER. You say you still do have that letter?

Mr. PETERSON. I'm pretty sure.

Mr. SPECTER. Could you look for that and send it to me?

Mr. PETERSON. Sure. Sure.

Mr. SPECTER. Let me write my name and address down for you so you can do that.

Mr. PETERSON. Fine. If I don't have the letter we could get in touch with the hotel. He always stays there. I'm sure they have records.

Mr. SPECTER. His first name was Jack?

Mr. PETERSON. I'm sure it was Jack; yes.

Mr. SPECTER. Here is my name and address in Washington.

Mr. PETERSON. He was connected with a big oil company.

Mr. SPECTER. If you can find that letter and send it to me, I would be much obliged to you.

Mr. PETERSON. Sure.

Mr. SPECTER. What did you do immediately after the assassination, if you recall?

Mr. PETERSON. Well, we checked the hotel about the show.

Mr. SPECTER. Did you go down to the Texas School Book Depository Building?

Mr. PETERSON. I think we did; ran down to take a look.

Mr. SPECTER. What was the purpose of that?

Mr. PETERSON. Curiosity.

Mr. SPECTER. Was that the only purpose?

Mr. PETERSON. Yes; along with a couple of thousand other people.

Mr. SPECTER. Do you recall what your reaction was when Breck Wall received some telephone calls in Galveston from the Washington Post and from the Dallas Morning News and the Dallas Times Herald?

Mr. PETERSON. That is it. Washington Post. Well, I got a little angry, told him not to say anything over the phone until we got back home.

Mr. SPECTER. Why did you tell him not to say anything over the phone until you got back home?

Mr. PETERSON. Well, you don't know who you are talking to over the phone.

Mr. SPECTER. Did you have any other reason in mind besides that?

Mr. PETERSON. No; not at all. The only one I could recognize was the Dallas Morning News people we knew. That was fine, but anybody else, I don't know who we were talking to. A lot of nuts would be calling you up.

Mr. SPECTER. Did you know anything about Mr. Ruby's troubles with the American Guild of Variety Artists?

Mr. PETERSON. Jack had all kinds of problems and troubles with unions and everybody else. Jack was like every other struggling nightclub owner who was trying to get along the cheapest way he could. That was it.

Mr. SPECTER. Does the telephone number Riverside 8-1434 in Dallas mean anything to you?

Mr. PETERSON. Let me see. No, I don't know. Probably does, but I don't remember.

Mr. SPECTER. Do you have anything to add which you think would be helpful to the President's Commission in any way?

Mr. PETERSON. No.

Mr. SPECTER. Prior to the time when we went on the record here, Mr. Peterson, did you and I have a very brief conversation concerning your knowledge of Jack Ruby?

Mr. PETERSON. Yes; we did.

Mr. SPECTER. Have I covered those questions and a number of others during the course of the deposition on the record?

Mr. PETERSON. Yes.

Mr. SPECTER. And is the information which you gave to me on the record the same as what you told me off the record earlier?

Mr. PETERSON. Yes; what I could remember—wait a minute, now. You said “before”——

Mr. SPECTER. We have covered, have we not——

Mr. PETERSON. Right.

Mr. SPECTER. Everything on the record which we covered before?

Mr. PETERSON. Right.

Mr. SPECTER. Under the rules of the President’s Commission, Mr. Peterson, you have a right to read and to sign this deposition if you want to. Do you want to do that or would you be willing to waive that reading and signing?

Mr. PETERSON. Well, what does—do you want me to sign it? I will sign it.

Mr. SPECTER. Do you have any special interest in reading it and signing it?

Mr. PETERSON. Well, I’d like to read it, then I will sign it. I have no objection to signing it but I’d like to read what I’m signing.

Mr. SPECTER. That is fair enough. You did receive a letter from the Commission?

Mr. PETERSON. Yes.

Mr. SPECTER. Informing you you had a right to counsel if you wanted one here today?

Mr. PETERSON. Right. Right.

Mr. SPECTER. And the other rules and regulations concerning the proceedings in depositions before the President's Commission, did you not?

Mr. PETERSON. Right.

Mr. SPECTER. And appearing here today was satisfactory with you as you have appeared and testified without the representation of counsel?

Mr. PETERSON. Right.

Mr. SPECTER. All right. That concludes the deposition, then, Mr. Peterson. We shall make available a copy of the transcript for you to read and sign.

TESTIMONY OF HARRY N. OLSEN

The testimony of Harry N. Olsen was taken at 2:50 p.m., on August 6, 1964, at the U.S. Post Office Building, 312 North Spring Street, Los Angeles, Calif., by Mr. Arlen Specter, assistant counsel of the President's Commission.

Mr. SPECTER. May the record show that this deposition proceeding of the President's Commission on the Assassination of President Kennedy is being held at the U.S. Post Office Building, 312 North Spring Street, Los Angeles, Calif., in room 644, which is the room customarily used for the grand jury proceedings.

May the record further show that it is now 2:50 p.m. Pacific daylight time on Thursday, August 6, 1964. Present is Mr. Harry Olsen, who has appeared in response to a letter notification to appear for this deposition.

Mr. Olsen, did you receive a letter from the President's Commission with an insertion of the Executive order creating the Commission and the rules and regulations for taking of depositions?

Mr. OLSEN. Yes.

Mr. SPECTER. And when did you receive that letter?

Mr. OLSEN. Five or six days ago.

Mr. SPECTER. Did you notice that there was a provision in the rules and regulations that you could have counsel with you if you so desired at the present time?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Do you wish to have counsel with you?

Mr. OLSEN. I don't think it's necessary.

Mr. SPECTER. Fine. The Commission has asked you to appear, Mr. Olsen, in order to testify about any knowledge which you have concerning Mr. Jack Ruby and the shooting of Mr. Lee Harvey Oswald and the assassination of President Kennedy. With that preliminary statement of purpose, I would like you to stand up and raise your right hand, if you would.

Do you solemnly swear that the testimony you shall give in this deposition proceeding before the President's Commission shall be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. OLSEN. Yes.

Mr. SPECTER. Would you state your full name for the record, please?

Mr. OLSEN. Harry N. Olsen.

Mr. SPECTER. What is your address at the present time, Mr. Olsen?

Mr. OLSEN. 315 Obispo in Long Beach.

Mr. SPECTER. What is your date of birth?

Mr. OLSEN. February the 16, 1934.

Mr. SPECTER. Where were you born?

Mr. OLSEN. Wichita Falls, Tex.

Mr. SPECTER. Outline briefly your educational background.

Mr. OLSEN. Four years of high school, two and a half years of college.

Mr. SPECTER. What college did you attend?

Mr. OLSEN. Midwestern University.

Mr. SPECTER. And when did you leave Midwestern University?

Mr. OLSEN. 1954.

Mr. SPECTER. What were your activities after leaving Midwestern University, by way of subsequent employment?

Mr. OLSEN. The Army, 1954 to 1956, and working for my Dad.

Mr. SPECTER. For how long did you work for your Dad?

Mr. OLSEN. Oh, since I was 16.

Mr. SPECTER. Well, from 1956 on how long did you work for him?

Mr. OLSEN. About a year.

Mr. SPECTER. What type of work was that?

Mr. OLSEN. Leather goods.

Mr. SPECTER. Was that in Wichita Falls, Tex.?

Mr. OLSEN. That was in Henrietta, Tex.

Mr. SPECTER. What did you do after terminating your employment with your father in about 1957 then?

Mr. OLSEN. I went to Dallas.

Mr. SPECTER. And what was your occupation in Dallas?

Mr. OLSEN. A claims investigator for an insurance company.

Mr. SPECTER. How long were you so employed?

Mr. OLSEN. Oh, 7 or 8 months.

Mr. SPECTER. What did you next do for a living?

Mr. OLSEN. I worked for a finance company.

Mr. SPECTER. How long were you employed by the finance company?

Mr. OLSEN. About 8 months.

Mr. SPECTER. And what was your next occupation?

Mr. OLSEN. Dallas Police Department.

Mr. SPECTER. What was your rank in the police department?

Mr. OLSEN. Patrolman.

Mr. SPECTER. And how long were you employed by the Dallas Police Department?

Mr. OLSEN. Five and a half years.

Mr. SPECTER. When did you end your employment with the Dallas Police Department?

Mr. OLSEN. In the latter part of December, 1963.

Mr. SPECTER. And how were you employed after December of 1963?

Mr. OLSEN. I left Dallas and came to California and am working for a collection agency.

Mr. SPECTER. Have you held that same job from the time you first arrived here in Los Angeles until the present time?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Are you married or single, Mr. Olsen?

Mr. OLSEN. Married.

Mr. SPECTER. And what is the name of your wife?

Mr. OLSEN. Kay.

Mr. SPECTER. And what was her name prior to her marriage to you?

Mr. OLSEN. Kay Coleman.

Mr. SPECTER. What was her occupation prior to being married to you, that is where was she employed?

Mr. OLSEN. She was employed at the Carousel Club.

Mr. SPECTER. When were you and Mrs. Kay Olsen married?

Mr. OLSEN. I believe it was December. It could have been January.

Mr. SPECTER. December of what year?

Mr. OLSEN. 1963, or January of 1964.

Mr. SPECTER. Do you know Jack Ruby?

Mr. OLSEN. Yes.

Mr. SPECTER. When did you first become acquainted with Mr. Jack Ruby?

Mr. OLSEN. Oh, about 3 years ago.

Mr. SPECTER. What were the circumstances of your making his acquaintance?

Mr. OLSEN. I was with the police department at the time and I was working that area where his club was, and it was a routine check of his place.

Mr. SPECTER. How did you and Jack Ruby get along during the time you knew him?

Mr. OLSEN. We spoke. And sometimes he would get mad and I would talk to him and calm him down a little bit.

Mr. SPECTER. How often did you visit Jack Ruby's club, the Carousel Club?

Mr. OLSEN. Oh, once a week, I guess. Sometimes more and sometimes less.

Mr. SPECTER. Did you ever have any disputes with Ruby?

Mr. OLSEN. Sometimes.

Mr. SPECTER. What was the cause of the disputes?

Mr. OLSEN. He would get mad with some of his help, some of his employees mostly, or customers. And he was erratic and hotheaded.

Mr. SPECTER. What specific indications did you observe that he was erratic or hotheaded?

Mr. OLSEN. Well, sometimes he would get so mad that he would shake.

Mr. SPECTER. What would cause him to get that mad?

Mr. OLSEN. Anything. I mean, he would just fly off the handle about anything.

Mr. SPECTER. Can you give me a specific illustration of what caused him on any occasion to become that angry?

Mr. OLSEN. Mostly with his help.

Mr. SPECTER. A moment ago you said that you had disagreements with him over the way he treated his help. What was it about the way he treated his help which caused you to have any disagreement with Jack Ruby?

Mr. OLSEN. Well, they would want to quit and he would get upset about that.

Mr. SPECTER. Was that in relation only to Mrs. Kay Olsen who was an employee of his, or did that apply to other employees as well?

Mr. OLSEN. Others.

Mr. SPECTER. Why was it that you were concerned about other employees?

Mr. OLSEN. He would talk to me about it and ask me what I thought, and I would try to tell him to just calm down.

Mr. SPECTER. But as a result of those conversations with Ruby, you had disagreements with him?

Mr. OLSEN. Not very often. Not very often.

Mr. SPECTER. Can you give me any other information as to what caused any disagreement between you and Jack Ruby?

Mr. OLSEN. No, I can't think of anything.

Mr. SPECTER. Where were you living in the fall of 1963, say in September of 1963?

Mr. OLSEN. On Theatre Lane.

Mr. SPECTER. And where was Mrs. Kay Olsen, who was then not your wife, living at that time?

Mr. OLSEN. On Ewing.

Mr. SPECTER. What was her specific address, if you recall?

Mr. OLSEN. 325 North Ewing, I believe.

Mr. SPECTER. What was your relationship with Kay in the fall of 1963?

Mr. OLSEN. We were going together.

Mr. SPECTER. Was she unmarried at that time?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Had she been married previously?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. When was her divorce final, if you know?

Mr. OLSEN. I don't know.

Mr. SPECTER. Can you give me an approximate date as to when it was final?

Mr. OLSEN. No, sir.

Mr. SPECTER. Can you tell me if it was a few months or a few years before 1963?

Mr. OLSEN. I just don't know. She might know.

Mr. SPECTER. Were you married or single in the fall of 1963?

Mr. OLSEN. I was single.

Mr. SPECTER. Had you been married prior to that time?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. When was your divorce final?

Mr. OLSEN. October of 1963.

Mr. SPECTER. Were you separated from your wife prior to October of 1963?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. When were you first separated from your former wife?

Mr. OLSEN. About 6 months before that.

Mr. SPECTER. Were you going with or steadily dating Kay, then, from the early fall of 1963 on up until the time that you married her in December of 1963, or January of 1964?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Where did Mr. Ruby live in the fall of 1963, say September of 1963, if you know?

Mr. OLSEN. He lived on Ewing.

Mr. SPECTER. Do you recall——

Mr. OLSEN. Right at Stemmons Freeway.

Mr. SPECTER. How far was that from Kay's house?

Mr. OLSEN. Approximately 4 or 5 blocks.

Mr. SPECTER. How far was Mr. Ruby's residence from your residence?

Mr. OLSEN. Oh, boy. Oh, it was, I would guess, 2 or 3 miles.

Mr. SPECTER. Did you ever live only 1 block away from Mr. Ruby's residence?

Mr. OLSEN. No, sir.

Mr. SPECTER. Did Jack Ruby ever visit you at your apartment?

Mr. OLSEN. No, sir.

Mr. SPECTER. Did Jack Ruby ever visit Kay at her apartment?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. How many times did he visit Kay at her apartment?

Mr. OLSEN. I don't know.

Mr. SPECTER. Could you give me an approximation?

Mr. OLSEN. Oh, seven or eight times.

Mr. SPECTER. Were you always present on those occasions?

Mr. OLSEN. No, sir.

Mr. SPECTER. What was the purpose of Jack Ruby's visiting Kay?

Mr. OLSEN. Sometimes he would be mad about something, and mad at an employee, or sometimes he would stop by for breakfast after he closed his club.

Mr. SPECTER. Was there ever any romantic connection between Jack Ruby and Kay?

Mr. OLSEN. Not to my knowledge.

Mr. SPECTER. It was just a cordial relationship which would lead him to stop over and pay her a visit and have breakfast or something to that effect?

Mr. OLSEN. Yes.

Mr. SPECTER. Was Ruby friendly with many police officers employed by the Dallas Police Department?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. What were the circumstances surrounding his friendship for police officers?

Mr. OLSEN. He seemed to like police officers.

Mr. SPECTER. Was there any special reason for his affinity for police officers, or for liking them especially?

Mr. OLSEN. No, he just seemed to be friendly with all of them, wanted to know them.

Mr. SPECTER. Did you know Officer J. D. Tippit?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Did you know him very well?

Mr. OLSEN. No, sir.

Mr. SPECTER. Do you know whether or not Jack Ruby knew Officer J. D. Tippit?

Mr. OLSEN. I heard that he did.

Mr. SPECTER. From whom did you hear that?

Mr. OLSEN. It was a rumor that he did.

Mr. SPECTER. When did you hear that rumor that he did know Officer J. D. Tippit?

Mr. OLSEN. While talking with other officers. I couldn't specifically say when.

Mr. SPECTER. Was that after Tippit was killed?

Mr. OLSEN. Yes.

Mr. SPECTER. Did you ever hear anybody say that Jack Ruby knew Officer J. D. Tippit before Officer Tippit was killed?

Mr. OLSEN. No, sir.

Mr. SPECTER. Could you recall specifically who it was who said that Ruby knew Officer Tippit?

Mr. OLSEN. No, sir.

Mr. SPECTER. Did you ever see Jack Ruby and Officer J. D. Tippit together?

Mr. OLSEN. No, not that I recall.

Mr. SPECTER. Well, think about that for just a minute and then see if you recollect anything more specifically on whether or not you ever saw Jack Ruby and Officer J. D. Tippit together.

Mr. OLSEN. No, I don't.

Mr. SPECTER. Did Jack Ruby ever do any favors for you, Mr. Olsen?

Mr. OLSEN. Well, like what?

Mr. SPECTER. Well, anything in a friendly way, such as do something you asked him to do or something of that sort? Did you ever ask him to do anything for you?

Mr. OLSEN. Well, I asked him to let Kay off sometimes.

Mr. SPECTER. Did he honor that request?

Mr. OLSEN. Most of the time.

Mr. SPECTER. Did you ever ask him to do anything besides letting Kay off on occasion?

Mr. OLSEN. No, sir.

Mr. SPECTER. Do you recall November 22, 1963, the day President Kennedy was assassinated?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Tell me, as specifically as you can recollect, exactly what your activities were on that day.

Mr. OLSEN. I was employed by the Dallas Police Department and I was working at an extra job guarding an estate.

Mr. SPECTER. Whose estate was that?

Mr. OLSEN. I don't remember the name.

Mr. SPECTER. How did you happen to get that extra job?

Mr. OLSEN. A motorcycle officer was related to this elderly woman and he was doing work, but he was in the motor——

Mr. SPECTER. Cade?

Mr. OLSEN. Motorcade of the President, and I was off that day and able to work it.

Mr. SPECTER. Do you recall the name of the motorcycle officer?

Mr. OLSEN. No.

Mr. SPECTER. Where was that estate located?

Mr. OLSEN. On 8th Street in Dallas.

Mr. SPECTER. Do you recall the specific address or the cross street on which it was located?

Mr. OLSEN. It's in the Oak Cliff area, it's approximately two blocks off of Stemmons.

Mr. SPECTER. How did it happen that you were not on duty with the police department on the day President Kennedy was in town?

Mr. OLSEN. I had my leg in a cast and I was doing light duty, which was working in the office, patrol office, and I had asked them if they needed me to work that day and they said no.

Mr. SPECTER. What sort of an accident did you have to injure your leg?

Mr. OLSEN. I fell and broke my kneecap.

Mr. SPECTER. When did that occur?

Mr. OLSEN. Oh, several weeks before.

Mr. SPECTER. At what hospital were you treated?

Mr. OLSEN. Baylor Hospital.

Mr. SPECTER. Is that in Dallas?

Mr. OLSEN. Yes, sir; it's on Gaston.

Mr. SPECTER. What time did you start to guard the estate on that particular Friday?

Mr. OLSEN. About 7 a.m.

Mr. SPECTER. And how long did that guard duty last?

Mr. OLSEN. Until about 8.

Mr. SPECTER. Eight p.m.?

Mr. OLSEN. P.m., yes, sir.

Mr. SPECTER. Did you have any visitors while you were guarding the estate on that day?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. And who was the visitor or visitors?

Mr. OLSEN. Kay.

Mr. SPECTER. What time did she visit you?

Mr. OLSEN. Right after the President was shot.

Mr. SPECTER. How did you learn of the assassination of the President?

Mr. OLSEN. A woman called me on the phone who was a friend of the person who had lived there.

Mr. SPECTER. Do you know who that woman was?

Mr. OLSEN. No, sir. And she wanted to know if I had heard the news, and I said no and she said, "The President has been shot."

Mr. SPECTER. What time did that telephone call occur?

Mr. OLSEN. Right after he was shot. I don't know exactly what time it was.

Mr. SPECTER. Did you talk to anybody else on the telephone or in person between the telephone call and the time that Kay visited you?

Mr. OLSEN. Passers-by. I went outside.

Mr. SPECTER. Whom did you see outside?

Mr. OLSEN. No one who I knew by name. They just said, "Have you heard the news?" And I said, "Yes, I had."

Mr. SPECTER. Did you have any other telephone calls while you were guarding that house?

Mr. OLSEN. I called the police department and asked them if they needed me to work.

Mr. SPECTER. To whom did you talk at the police department?

Mr. OLSEN. I don't recall.

Mr. SPECTER. What response did you get?

Mr. OLSEN. They said no.

Mr. SPECTER. What time did Kay visit you on that Friday?

Mr. OLSEN. In the afternoon sometime.

Mr. SPECTER. How long did she stay?

Mr. OLSEN. Oh, I would say an hour or two.

Mr. SPECTER. Where did you have lunch on that Friday?

Mr. OLSEN. There at the place that I was watching.

Mr. SPECTER. Where did you have supper that day?

Mr. OLSEN. At her house.

Mr. SPECTER. What time did you go to her house? And by "her" I take it you mean Kay's house?

Mr. OLSEN. Yes.

Mr. SPECTER. Then what time did you go to Kay's house?

Mr. OLSEN. When I got—when the motorcycle officer came and relieved me.

Mr. SPECTER. About what time was that?

Mr. OLSEN. Oh, 8; about 8.

Mr. SPECTER. Did you have an automobile?

Mr. OLSEN. No, sir.

Mr. SPECTER. How did you get from the house which you were guarding to Kay's house?

Mr. OLSEN. Walked.

Mr. SPECTER. How far was it?

Mr. OLSEN. About 4 blocks.

Mr. SPECTER. Did the cast on your knee restrict your walking in any material way?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Were you able to walk with the cast on your knee?

Mr. OLSEN. A little bit, not much.

Mr. SPECTER. But you were able to walk well enough to cover those 4 blocks to Kay's house?

Mr. OLSEN. Yes. And it swelled after I had walked it, though.

Mr. SPECTER. What did you do after arriving at Kay's house?

Mr. OLSEN. Well, going back to that, I had crutches, I believe, that I used. Now, what was the question?

Mr. SPECTER. After you arrived at Kay's house, what did you do then?

Mr. OLSEN. We talked about the assassination.

Mr. SPECTER. How long did you stay at Kay's house?

Mr. OLSEN. I would say several hours.

Mr. SPECTER. And about what time did you leave Kay's house, to the best of your ability to recollect?

Mr. OLSEN. What time I don't know.

Mr. SPECTER. Was anybody else at Kay's house with you besides Kay?

Mr. OLSEN. No, sir.

Mr. SPECTER. In what manner did you travel away from Kay's house, by foot, by car?

Mr. OLSEN. By car.

Mr. SPECTER. Whose car was that?

Mr. OLSEN. Mine.

Mr. SPECTER. How was it that you didn't have your car at the house which you were guarding?

Mr. OLSEN. I didn't want to drive it, I don't remember why. I think I left it for her to use.

Mr. SPECTER. Did Kay go with you when you drove away from her house?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Where did you go?

Mr. OLSEN. Downtown.

Mr. SPECTER. What was the purpose of your trip to town?

Mr. OLSEN. To see where the President was shot.

Mr. SPECTER. Did you go then to Dealey Plaza?

Mr. OLSEN. Yes, we drove by there.

Mr. SPECTER. Did you go anyplace else?

Mr. OLSEN. We went to a garage.

Mr. SPECTER. Where was that garage located?

Mr. OLSEN. Jackson and Field.

Mr. SPECTER. What was the purpose of going to a garage at Jackson and Field?

Mr. OLSEN. We knew the man who worked there.

Mr. SPECTER. What was his name?

Mr. OLSEN. Johnny is all I know him by.

Mr. SPECTER. What sort of work did he do at that garage?

Mr. OLSEN. He was an attendant.

Mr. SPECTER. Why did you want to go see him?

Mr. OLSEN. To talk.

Mr. SPECTER. For any special purpose?

Mr. OLSEN. No, sir.

Mr. SPECTER. Do you recollect about what time you arrived at that garage?

Mr. OLSEN. Oh, 12, approximately.

Mr. SPECTER. Did you see Johnny when you were there?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Did you see anybody else while you were at that garage?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Who else did you see?

Mr. OLSEN. Jack Ruby.

Mr. SPECTER. Did you see anybody else besides Johnny and Jack Ruby?

Mr. OLSEN. Not that I remember; no.

Mr. SPECTER. Now, before seeing Ruby at the garage on that Friday night, when had you seen him most recently before that time?

Mr. OLSEN. It could have been a few days or a week.

Mr. SPECTER. Do you recall where it was that you saw him prior to this Friday night?

Mr. OLSEN. Oh, it was probably outside of his club.

Mr. SPECTER. Do you recall the specific instance, or are you just saying what you think probably occurred?

Mr. OLSEN. I am just saying what probably occurred, because I don't remember when I saw him before that.

Mr. SPECTER. Do you have any recollection what your conversation was with Mr. Ruby when you saw him prior to this Friday night?

Mr. OLSEN. No, sir.

Mr. SPECTER. How long did you talk to Mr. Ruby on this Friday night?

Mr. OLSEN. Two or three hours.

Mr. SPECTER. Who else was present at the time of the conversation?

Mr. OLSEN. Kay.

Mr. SPECTER. And anybody else?

Mr. OLSEN. Johnny.

Mr. SPECTER. Was there anybody besides Johnny and Kay and Jack Ruby?

Mr. OLSEN. Not that I remember.

Mr. SPECTER. Tell me as specifically as you can recall exactly what it was that Ruby said and what it was that you and Kay and Johnny said in reply to him?

Mr. OLSEN. We were all upset about the President's assassination, and we were just talking about how we hated it, that it was a tragedy.

Mr. SPECTER. Did Jack Ruby say something to that effect?

Mr. OLSEN. Yes; very strongly.

Mr. SPECTER. Do you recall what his exact words were, by any chance?

Mr. OLSEN. I believe he said something to the effect that "It's too bad that a peon," or a person like Oswald, "could do something like that," referring to shooting the President and the officer, Officer Tippit.

Mr. SPECTER. Did he say anything more about Oswald at that time?

Mr. OLSEN. He cursed him.

Mr. SPECTER. What specific language did he use?

Mr. OLSEN. S.o.b.

Mr. SPECTER. Was there any other specific curse that you recollect Ruby used in describing Oswald?

Mr. OLSEN. He could have said something else, but I remember that. I'm sure that he did say something else, but I don't remember what it was.

Mr. SPECTER. Did he say anything at that time about whether or not he knew Oswald?

Mr. OLSEN. No, sir.

Mr. SPECTER. Did he say anything at that time about whether or not he knew Officer J. D. Tippit?

Mr. OLSEN. It seemed that he did know Officer Tippit.

Mr. SPECTER. Why do you say, "It seemed that he did know Officer Tippit"?

Mr. OLSEN. I believe he said that Tippit had been to his club.

Mr. SPECTER. Recollect as specifically as you can exactly what he said about that, if you can, Mr. Olsen.

Mr. OLSEN. Something about Oswald shooting the President and Officer Tippit and leaving the wife and children, and he kept referring to Jacqueline.

Mr. SPECTER. Well, how about what you were referring to concerning Ruby's knowing Officer Tippit? What exactly did Ruby say at that time, to the best of your ability to recollect, about any relationship or acquaintanceship between Jack Ruby and J. D. Tippit?

Mr. OLSEN. Well, I just don't remember if there was anything specifically said about that.

Mr. SPECTER. What did you say to Ruby during that conversation?

Mr. OLSEN. I said it was a tragedy that this happened.

Mr. SPECTER. What did Johnny say to Ruby at that time?

Mr. OLSEN. And he said, yes; it sure was.

Mr. SPECTER. Did Johnny say anything else?

Mr. OLSEN. Well, we all talked; I don't remember what exactly was said.

Mr. SPECTER. Do you remember anything specifically that Kay said at that time?

Mr. OLSEN. No. It was a shame that it had happened.

Mr. SPECTER. Do you recall whether or not Kay said something to the effect that "In England they would have Oswald by his toes and drag him

through the street”?

Mr. OLSEN. No, sir; I don't.

Mr. SPECTER. Had Kay talked to Ruby earlier on that Friday?

Mr. OLSEN. I believe that she did.

Mr. SPECTER. Was that in person or by telephone?

Mr. OLSEN. I believe it was by phone.

Mr. SPECTER. Where was she when she talked to him by phone, if you know?

Mr. OLSEN. At her house.

Mr. SPECTER. And where was Ruby, if you know?

Mr. OLSEN. I think he was at his house.

Mr. SPECTER. At what time did that telephone conversation occur?

Mr. OLSEN. I believe it was in the afternoon sometime.

Mr. SPECTER. What was the purpose of that call, if you know?

Mr. OLSEN. To find out if she had heard about the President's assassination.

Mr. SPECTER. Was there anything else said by either Kay or Ruby at that time when they had telephone conversation?

Mr. OLSEN. I wasn't—I don't believe I was there when she talked to him.

Mr. SPECTER. How do you know about the call then?

Mr. OLSEN. She said that she had talked to him.

Mr. SPECTER. Do you know whether or not they discussed whether or not the Carousel Club would be open that night?

Mr. OLSEN. I believe they did.

Mr. SPECTER. And do you know what Ruby said about that subject matter?

Mr. OLSEN. He said that it would not be open.

Mr. SPECTER. Do you know whether Kay telephoned Ruby or Ruby telephoned Kay on the occasion?

Mr. OLSEN. No; I don't.

Mr. SPECTER. How long were you at that garage at Jackson and Field before you saw Jack Ruby on that Friday night or early Saturday morning?

Mr. OLSEN. Oh, 30 minutes to an hour, I guess.

Mr. SPECTER. Could that garage be located on Jackson and Akard, A-k-a-r-d?

Mr. OLSEN. No, sir.

Mr. SPECTER. How far is Jackson and Akard from Jackson and Field?

Mr. OLSEN. One block.

Mr. SPECTER. Did you discuss with Ruby the fact that he closed his club that night?

Mr. OLSEN. Yes.

Mr. SPECTER. What did you say to him, if you recall?

Mr. OLSEN. I said that it should be closed.

Mr. SPECTER. Did you congratulate him for having closed it?

Mr. OLSEN. I believe I did.

Mr. SPECTER. Did you shake his hand?

Mr. OLSEN. I don't recall.

Mr. SPECTER. Were you pretty emotionally upset about the assassination of President Kennedy at that time?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Was Kay pretty emotionally upset about the assassination at that time?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. How about Johnny?

Mr. OLSEN. He was, too; yes, sir.

Mr. SPECTER. And how about Ruby?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. What indication was there that you observed that Ruby was emotionally upset about the assassination?

Mr. OLSEN. He was very nervous.

Mr. SPECTER. In what way was that evident?

Mr. OLSEN. Oh, in his speech and his actions.

Mr. SPECTER. Was there any other indication that you were able to observe that Ruby was upset about the assassination?

Mr. OLSEN. Oh, the way he talked, and that was it.

Mr. SPECTER. Did Ruby mention anything about the Weissman advertisement that appeared in the Dallas papers earlier that day?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. What did he say about that?

Mr. OLSEN. He said they shouldn't be open.

Mr. SPECTER. What Weissman advertisement had appeared earlier that day?

Mr. OLSEN. Just the usual ad in the paper about them being open.

Mr. SPECTER. Was there any advertisement in the paper that day containing derogatory statements about President Kennedy?

Mr. OLSEN. There was something in the paper, I believe, about somebody carrying banners in one part of town.

Mr. SPECTER. What kind of banners were those?

Mr. OLSEN. I believe they were about President Kennedy, and what they said, I don't remember what it was.

Mr. SPECTER. Do you remember Ruby's comment about that, or whether he made one?

Mr. OLSEN. I believe he did say something about that.

Mr. SPECTER. Do you recall what it was?

Mr. OLSEN. He said that it wasn't right, and "I just wonder how they feel about it now."

Mr. SPECTER. Did he say anything about the radicals in Dallas at that particular time?

Mr. OLSEN. Not that I remember.

Mr. SPECTER. Did he say anything about the effect of all that on the Jews?

Mr. OLSEN. I believe he did.

Mr. SPECTER. What did he say about that?

Mr. OLSEN. No; he didn't; I don't believe he said anything about that; no.

Mr. SPECTER. Now, at about what time was it——

Mr. OLSEN. Let me think about that for a minute, will you?

Mr. SPECTER. Go ahead; take your time.

Mr. OLSEN. I heard something about him saying after he shot Oswald that he wondered if the other Jews would blame him for what he had done.

Mr. SPECTER. Did you hear that from Ruby personally?

Mr. OLSEN. No; it was hearsay.

Mr. SPECTER. Who told you that?

Mr. OLSEN. I either read it or heard it.

Mr. SPECTER. Do you recall where you read it?

Mr. OLSEN. I believe——

Mr. SPECTER. Or from whom you heard it?

Mr. OLSEN. It was either in the paper or from someone who had been to visit him.

Mr. SPECTER. Who might it have been who was to visit him?

Mr. OLSEN. Wally Weston.

Mr. SPECTER. Who is Wally Weston?

Mr. OLSEN. He was the master of ceremonies there in his club.

Mr. SPECTER. When did you last talk to Wally Weston?

Mr. OLSEN. When I was in the hospital after the car accident.

Mr. SPECTER. When did that car accident occur?

Mr. OLSEN. December 7.

Mr. SPECTER. How long were you in the hospital?

Mr. OLSEN. Two weeks, two and a half weeks.

Mr. SPECTER. What injuries did you sustain in that automobile collision?

Mr. OLSEN. I rebroke my leg.

Mr. SPECTER. In the same place?

Mr. OLSEN. The same place and some more breaks. And I cracked my chest bone.

Mr. SPECTER. Indicating your sternum?

Mr. OLSEN. Yes, sir. And I broke some ribs.

Mr. SPECTER. What hospital were you in?

Mr. OLSEN. Methodist.

Mr. SPECTER. What else did Wally Weston have to say on that occasion, if anything, about Jack Ruby?

Mr. OLSEN. He couldn't understand why he did it.

Mr. SPECTER. Did Weston say anything further about Jack Ruby?

Mr. OLSEN. Not that I remember.

Mr. SPECTER. Have you now told me everything you can remember about that conversation among you and Ruby and Kay and Johnny that night in the garage?

Mr. OLSEN. Between who?

Mr. SPECTER. Ruby, Kay, Johnny, and you at the garage the Friday night or early Saturday morning of the assassination.

Mr. OLSEN. I can't think of anything else. It was a conversation about what had happened to the President and Officer Tippit, and everyone was very upset about it.

Mr. SPECTER. What time, to the best of your ability or recollection, did that conversation end?

Mr. OLSEN. Two or three in the morning.

Mr. SPECTER. What did you do after that?

Mr. OLSEN. I took Kay home.

Mr. SPECTER. Did you see any——

Mr. OLSEN. Jack left.

Mr. SPECTER. Did you see anybody or talk to anybody else later that night?

Mr. OLSEN. No, sir.

Mr. SPECTER. And what did you do after taking Kay home?

Mr. OLSEN. We talked a while.

Mr. SPECTER. And what did you do next?

Mr. OLSEN. I think I went home.

Mr. SPECTER. What time did you awaken on Saturday?

Mr. OLSEN. Oh, probably 11 in the morning.

Mr. SPECTER. Where did you have breakfast on Saturday?

Mr. OLSEN. At her house.

Mr. SPECTER. What time did you go to her house? And by "her" I take it you mean Kay?

Mr. OLSEN. Yes, sir. Oh, 12 or 1 o'clock.

Mr. SPECTER. Did you see anybody else on Saturday besides Kay?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Who else did you see?

Mr. OLSEN. I saw Ruby Saturday night.

Mr. SPECTER. Where was it that you saw Ruby?

Mr. OLSEN. In front of his club.

Mr. SPECTER. The Carousel Club?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. At what time was that?

Mr. OLSEN. Oh, 10 or 11 at night.

Mr. SPECTER. Did you speak to him?

Mr. OLSEN. No, sir.

Mr. SPECTER. What was the circumstances under which you saw him?

Mr. OLSEN. We were driving by and he was standing outside and we waved.

Mr. SPECTER. Did he see you and wave at you?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. What did you do from the time you got to Kay's house until the time that you saw Ruby standing in front of his club on that Saturday night?

Mr. OLSEN. Watched some television and listened to the radio a little bit.

Mr. SPECTER. Did you see or talk to anybody else either in person or by telephone from the time you got to Kay's house until the time you saw Ruby that Saturday night?

Mr. OLSEN. No, sir; I don't guess we did.

Mr. SPECTER. What did you do after you saw Ruby in front of his club that Saturday night?

Mr. OLSEN. What did we do then?

Mr. SPECTER. What did you and Kay do then?

Mr. OLSEN. We drove by where the President was shot, we drove by there several times, and drove around town a little bit.

Mr. SPECTER. What time did you finish driving around town?

Mr. OLSEN. Oh, I guess 1 or 2.

Mr. SPECTER. In the morning?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Did you see anybody else you knew while you were driving around town?

Mr. OLSEN. We did, but I don't remember who it was.

Mr. SPECTER. Did you stop and talk to them?

Mr. OLSEN. Yes, sir. I don't remember who it was.

Mr. SPECTER. Where did you go when you finished driving around town?

Mr. OLSEN. I took her home.

Mr. SPECTER. What time did you arrive at her home?

Mr. OLSEN. I would say 2 or 3 in the morning.

Mr. SPECTER. What did you do next?

Mr. OLSEN. Well, we talked about what had happened more.

Mr. SPECTER. How long did that conversation last?

Mr. OLSEN. Oh, I guess about an hour.

Mr. SPECTER. What did you do next?

Mr. OLSEN. Went to bed.

Mr. SPECTER. Where did you sleep that night?

Mr. OLSEN. I could have slept on her couch. Either that or I went back to my apartment.

Mr. SPECTER. At what time did you awaken Sunday morning?

Mr. OLSEN. Oh, 10 or 11.

Mr. SPECTER. Where did you have breakfast?

Mr. OLSEN. At her house.

Mr. SPECTER. And by "her" you mean Kay?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. And what did you do after breakfast? First, did you go to Kay's house right after you awakened?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Then how long did you stay at Kay's house?

Mr. OLSEN. I think we were there when Ruby shot Oswald.

Mr. SPECTER. How did you learn that Ruby had shot Oswald?

Mr. OLSEN. It was either the radio or the television.

Mr. SPECTER. Were you watching TV at the time that it happened?

Mr. OLSEN. I believe so. If not, we turned it on right after we had heard it.

Mr. SPECTER. Was anyone else present in Kay's house except you and Kay?

Mr. OLSEN. Her children.

Mr. SPECTER. What are the names of her children?

Mr. OLSEN. Susan and Sheri.

Mr. SPECTER. How old is Susan?

Mr. OLSEN. Nine.

Mr. SPECTER. How old is Sheri?

Mr. OLSEN. Seven.

Mr. SPECTER. Was anyone else present besides you and Kay and Susan and Sheri?

Mr. OLSEN. No, sir; they could have been outside playing.

Mr. SPECTER. How long did you stay at Kay's house that day?

Mr. OLSEN. Oh, several hours, I guess.

Mr. SPECTER. Did you see anybody else before you left Kay's house that day, on that Sunday?

Mr. OLSEN. Not that I recall. I could have seen somebody who lives there.

Mr. SPECTER. Such as who?

Mr. OLSEN. Oh, the landlord.

Mr. SPECTER. Who is he?

Mr. OLSEN. I don't remember his name.

Mr. SPECTER. Did you talk to anybody by telephone that day?

Mr. OLSEN. I don't recall if I called the police department or not, whether they wanted me to come down and work.

Mr. SPECTER. Were you on duty that day?

Mr. OLSEN. No, sir.

Mr. SPECTER. How was it that you were off for 3 days in a row?

Mr. OLSEN. I had a holiday.

Mr. SPECTER. What do you mean by "a holiday"?

Mr. OLSEN. Well, like Christmas or Thanksgiving, or something like that.

Mr. SPECTER. You mean you had a compensatory day coming for having worked a holiday?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Did you hear any announcement that day that Oswald was about to be moved?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. How did you happen to hear that?

Mr. OLSEN. On television, I believe.

Mr. SPECTER. And specifically, what was that announcement?

Mr. OLSEN. That he was being moved from the city jail to the county jail.

Mr. SPECTER. Did you talk to anybody about that?

Mr. OLSEN. No, sir.

Mr. SPECTER. Did you tell Ruby about that?

Mr. OLSEN. No, sir.

Mr. SPECTER. Did you talk to Ruby that Sunday?

Mr. OLSEN. No, sir.

Mr. SPECTER. Have you ever talked to Ruby at any time after that conversation you had with him in the garage on late Friday night or early Saturday morning?

Mr. OLSEN. No, sir.

Mr. SPECTER. What time did you leave Kay's house on Sunday, November 24, to the best of your ability to recollect?

Mr. OLSEN. I would say 9 or 10 o'clock.

Mr. SPECTER. In the evening?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Where did you go then?

Mr. OLSEN. We drove by city hall.

Mr. SPECTER. Did you stop?

Mr. OLSEN. Sir?

Mr. SPECTER. Did you stop at city hall?

Mr. OLSEN. No, sir.

Mr. SPECTER. Where did you go after dropping by city hall?

Mr. OLSEN. We drove by where the President was assassinated.

Mr. SPECTER. Was Kay with you at that time?

Mr. OLSEN. I believe she was.

Mr. SPECTER. Where did you go next?

Mr. OLSEN. I believe we went to her house.

Mr. SPECTER. How long did you stay there?

Mr. OLSEN. Oh, I don't remember.

Mr. SPECTER. Did you contact anybody after you learned Oswald was shot by Ruby?

Mr. OLSEN. Sir?

Mr. SPECTER. Did you contact anybody after you learned that Oswald was shot by Ruby?

Mr. OLSEN. I believe I called the police department and asked them if they wanted me to work.

Mr. SPECTER. Aside from that call, did you contact anybody?

Mr. OLSEN. No, sir.

Mr. SPECTER. And when you called the police department what did they tell you?

Mr. OLSEN. They didn't need me to work.

Mr. SPECTER. Do you recall who you talked to on that occasion?

Mr. OLSEN. No, sir.

Mr. SPECTER. Has Kay worked for Ruby at any time after the assassination?

Mr. OLSEN. No, sir.

Mr. SPECTER. When did she work for Ruby last preceding the assassination?

Mr. OLSEN. Thursday, I would say.

Mr. SPECTER. When did you end your employment with the Dallas Police Department?

Mr. OLSEN. The latter part of December.

Mr. SPECTER. What was the reason for leaving the Dallas Police Department?

Mr. OLSEN. I wanted to come to California.

Mr. SPECTER. Nobody at the Dallas Police Department asked you to leave?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Who asked you to leave the Police Department?

Mr. OLSEN. Chief Curry.

Mr. SPECTER. What was the reason for that?

Mr. OLSEN. I was out of sick time; in other words, you are allotted so much sick time a year, and he didn't want to extend me any more.

Mr. SPECTER. Was that the only reason why he asked you to terminate your employment with the police department?

Mr. OLSEN. That was one of the reasons.

Mr. SPECTER. Was there any other reason?

(Long pause.)

Mr. OLSEN. I don't remember exactly what was said.

Mr. SPECTER. Was there any special reason why you went to California?

Mr. OLSEN. We heard the climate was nice out here.

Mr. SPECTER. Do you know a Bertha Cheek? Does that name ring a bell with you?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Who is she?

Mr. OLSEN. I have heard the name. Can you help me a little bit with it?

Mr. SPECTER. Well, do you recollect anything about her at this moment?

Mr. OLSEN. No, sir; I have heard the name, though.

Mr. SPECTER. Did you tell Bertha Cheek that Ruby was looking for a partner?

Mr. OLSEN. Well, who is Bertha Cheek?

Mr. SPECTER. You just don't recollect?

Mr. OLSEN. Did I tell Bertha Cheek that Ruby was looking for a partner?

Mr. SPECTER. Yes.

Mr. OLSEN. Not that I remember.

Mr. SPECTER. Did Ruby ever room at Bertha Cheek's apartment building?

Mr. OLSEN. Well, where is that?

Mr. SPECTER. Well, do you know of any Bertha Cheek who has an apartment building in Dallas?

Mr. OLSEN. Does she have the one on Gaston?

Mr. SPECTER. Did Ruby ever room at an apartment building on Gaston?

Mr. OLSEN. Not that I know of, no.

Mr. SPECTER. From the time President Kennedy was assassinated through the rest of that Friday and Saturday and Sunday did you see or talk to Little Lynn?

Mr. OLSEN. No.

Mr. SPECTER. Bruce Carlin, during that same time?

Mr. OLSEN. Who?

Mr. SPECTER. Bruce Carlin. I notice a quizzical look on your face. Do you know who Bruce Carlin is?

Mr. OLSEN. No; can you help me?

Mr. SPECTER. No; I am not able to do that. Did you see or talk to Tammi True?

Mr. OLSEN. Not that I remember.

Mr. SPECTER. Do you know Tammi True?

Mr. OLSEN. Yes.

Mr. SPECTER. Did you see or talk to Ralph Paul from November 22d through to November 24th?

Mr. OLSEN. I don't believe so.

Mr. SPECTER. Do you know Tom Howard?

Mr. OLSEN. Yes.

Mr. SPECTER. Did you see or talk to Tom Howard from the time of the assassination until the following Sunday?

Mr. OLSEN. No.

Mr. SPECTER. Did you see or talk to Breck Wall during that same period of time?

Mr. OLSEN. No.

Mr. SPECTER. Did you see or talk to George Senator from November 22d through the 24th?

Mr. OLSEN. No, sir.

Mr. SPECTER. You know who George Senator is?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Do you know Mickey Ryan?

(Witness shaking head.)

Mr. SPECTER. Let the record show that Mr.——

Mr. OLSEN. No, sir.

Mr. SPECTER. Olsen is shaking his head "No," and now he has said "No." Do you know Blackie Harrison?

Mr. OLSEN. I believe, if it's the one I'm thinking of.

Mr. SPECTER. Are you thinking of one who is an officer on the Police Department?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Did you see or talk to Blackie Harrison from the time of the assassination to the Sunday after that?

Mr. OLSEN. No, sir.

Mr. SPECTER. Do you know Lieutenant Butler?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Did you see or talk to Lieutenant Butler from the assassination until the 24th of November?

Mr. OLSEN. No, sir; I don't believe so.

Mr. SPECTER. Did you see or talk to Detective L. D. Miller from the assassination until November 24th?

Mr. OLSEN. Not that I remember; no, sir.

Mr. SPECTER. Do you know Tom O'Grady?

Mr. OLSEN. I might know him by sight, but I don't know him from the name.

Mr. SPECTER. Did Ralph Paul ever tell you that Ruby said he was going to shoot Oswald?

Mr. OLSEN. No, not that I remember.

Mr. SPECTER. Did you ever hear of Oswald before the assassination of President Kennedy?

Mr. OLSEN. No, sir.

Mr. SPECTER. Did you ever see Oswald before the assassination of President Kennedy?

Mr. OLSEN. Not that I remember.

Mr. SPECTER. Do you know at all whether Ruby knew Oswald prior to the assassination?

Mr. OLSEN. I don't know.

Mr. SPECTER. Do you know Eugene Smith?

Mr. OLSEN. I don't remember. I might know him if I would see him.

Mr. SPECTER. Do you know whether Ruby knew anyone by the name of Eugene Smith?

Mr. OLSEN. No, I don't.

Mr. SPECTER. Do you know whether Ruby was a member of any subversive organization; that is, an organization which advocates the forceful overthrow of the U.S. Government?

Mr. OLSEN. To my knowledge, he was never a member of anything like that.

Mr. SPECTER. Do you know whether any of his friends or family were members of such an organization?

Mr. OLSEN. I don't know.

Mr. SPECTER. Do you know whether Ruby associated with any of the criminal element.

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Did he ever associate with any of the criminal element?

Mr. OLSEN. I think he did in Chicago.

Mr. SPECTER. What, is the basis for your saying that?

Mr. OLSEN. I had heard that he had been with a gang in Chicago.

Mr. SPECTER. Who told you that?

Mr. OLSEN. Oh, it could have been Ruby himself.

Mr. SPECTER. Do you recall for sure whether or not it was Ruby who told you that?

Mr. OLSEN. I recall that he did—he had said something about being with a—or, how rough Chicago used to be.

Mr. SPECTER. Well, did he say anything beyond how rough it was, to the effect that he was with a criminal gang or anything of that sort?

Mr. OLSEN. No, sir.

Mr. SPECTER. Do you know anything about Ruby's trip to Cuba?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. What do you know about that?

Mr. OLSEN. He said he was going to Cuba to get acts.

Mr. SPECTER. To get what?

Mr. OLSEN. Acts.

Mr. SPECTER. A-c-t-s?

Mr. OLSEN. Yes.

Mr. SPECTER. For his nightclub?

Mr. OLSEN. Yes.

Mr. SPECTER. When did he go to Cuba, if you remember?

Mr. OLSEN. I remember when he went, but I don't remember the date.

Mr. SPECTER. Was there any other purpose that you know about in Ruby's going to Cuba?

Mr. OLSEN. No. He seemed to be quiet about it.

Mr. SPECTER. Do you know anything about Ruby's attitude toward the John Birch Society?

Mr. OLSEN. No, sir.

Mr. SPECTER. Do you know anything about his attitude toward the Minutemen?

Mr. OLSEN. No, sir.

Mr. SPECTER. Did you ever hear Ruby say anything about the sign on impeaching Chief Justice Earl Warren?

Mr. OLSEN. Would you repeat that?

Mr. SPECTER. Did you ever hear Ruby say anything about a sign or advertisement which said "Impeach Chief Justice Earl Warren of the U.S. Supreme Court"?

Mr. OLSEN. He could have said something about it, but I don't remember. I think that he did.

Mr. SPECTER. Off the record for just a minute.

(There was a discussion off the record.)

Mr. SPECTER. Do you have anything to add which you think would be helpful to the President's Commission in any way, Mr. Olsen?

Mr. OLSEN. I wish I did. If I did, I would tell you.

Mr. SPECTER. But you don't?

Mr. OLSEN. Not that I can think of.

Mr. SPECTER. All right. Now, under the procedure of the Commission, Mr. Olsen, we can make this deposition transcript available to you to read and to sign, if you want to, or you can forego your right to do that on what is called a waiver.

Would you like to read and sign the deposition; that is, this record?

Mr. OLSEN. Should I?

Mr. SPECTER. Well, it's up to you. If you want to, you can, it's up to you. There is some doubt in your mind, so I think we will make it available to you to read and to sign.

Mr. OLSEN. OK.

Mr. SPECTER. Thank you very much for coming, Mr. Olsen, and that concludes the deposition.

(There was a discussion off the record.)

Mr. SPECTER. Let's go back on the record just a minute.

Mr. Olsen, did we have a brief conversation before I administered the oath to you and the court reporter started to take down my questions and your answers?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. And did I cover in a general way the questions which I have since asked you on the record?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. And did you give me the same information which you have given on the record?

Mr. OLSEN. Yes, sir.

Mr. SPECTER. Thank you.

TESTIMONY OF KAY HELEN OLSEN

The testimony of Kay Helen Olsen was taken at 4:30 p.m., on August 6, 1964, at U.S. Post Office Building, 312 North Spring Street, Los Angeles, Calif., by Mr. Arlen Specter, assistant counsel of the President's Commission.

Mr. SPECTER. May the record show that Mrs. Harry Olsen is present in response to a letter request for her to appear and have her deposition taken.

Mrs. Olsen, did you receive such a letter from the President's Commission on the Assassination of President Kennedy?

Mrs. OLSEN. Yes.

Mr. SPECTER. And when did you get that letter?

Mrs. OLSEN. Monday morning.

Mr. SPECTER. Today is Thursday, so that would have been 3 days ago?

Mrs. OLSEN. Yes, I think it was Monday morning.

Mr. SPECTER. All right. Is it satisfactory with you to proceed to have your deposition taken at the present time?

Mrs. OLSEN. Yes.

Mr. SPECTER. Did the letter contain the Executive order creating the Commission and the rules and regulations for the taking of depositions?

Mrs. OLSEN. Yes.

Mr. SPECTER. And did you note that you could have an attorney present if you wanted one at this time?

Mrs. OLSEN. Yes.

Mr. SPECTER. Are you willing to proceed without an attorney being present on your behalf?

Mrs. OLSEN. Yes.

Mr. SPECTER. The Commission has asked you to appear to give a deposition with respect to your knowledge of Jack Ruby and the events of November 22 through November 24.

With that preliminary statement of purpose, would you rise and raise your right hand, please.

Mrs. OLSEN. Yes, sir.

Mr. SPECTER. Do you solemnly swear that the testimony you shall give in this deposition proceeding before the President's Commission shall be the truth, the whole truth and nothing but the truth, so help you God?

Mrs. OLSEN. I do.

Mr. SPECTER. Will you state your full name for the record, please?

Mrs. OLSEN. Kay Helen Olsen.

Mr. SPECTER. What is the date of your birth, Mrs. Olsen?

Mrs. OLSEN. The 13th of April 1936.

Mr. SPECTER. Where were you born?

Mrs. OLSEN. London, England.

Mr. SPECTER. How long have you lived in the United States?

Mrs. OLSEN. Eight years.

Mr. SPECTER. Are you married to Mr. Harry Olsen?

Mrs. OLSEN. Yes.

Mr. SPECTER. How long have you been married to Mr. Olsen?

Mrs. OLSEN. Seven months.

Mr. SPECTER. And were you married prior to your marriage to Mr. Olsen?

Mrs. OLSEN. Yes.

Mr. SPECTER. What is the name of the gentlemen to whom you were previously married?

Mrs. OLSEN. Kennerd Coleman.

Mr. SPECTER. And when were you divorced from Mr. Coleman?

Mrs. OLSEN. I don't remember the month. It was 1959.

Mr. SPECTER. Were you married on any occasion prior to your marriage to Mr. Coleman?

Mrs. OLSEN. No.

Mr. SPECTER. Would you outline briefly your educational background?

Mrs. OLSEN. Oh, I went to an all girls school, I won a scholarship to an all girls school, and, well——

Mr. SPECTER. How old were you when you finished your formal education?

Mrs. OLSEN. I guess I was about 15½. We start earlier over there, you know. We go to school earlier.

Mr. SPECTER. Would you outline briefly your places of residence from the time you came to the United States?

Mrs. OLSEN. Victoria, Tex.

Mr. SPECTER. When did you live in Victoria, Tex.?

Mrs. OLSEN. June 1956.

Mr. SPECTER. Where did you move from Victoria, Tex.?

Mrs. OLSEN. Well, that's when we first separated. I came out here to California, Riverside, Calif., and he went to Illinois.

Mr. SPECTER. Mr. Coleman went to Illinois and you came to Riverside, Calif., in 1956?

Mrs. OLSEN. No; 1958.

Mr. SPECTER. 1958?

Mrs. OLSEN. Yes.

Mr. SPECTER. And where have you lived since 1958?

Mrs. OLSEN. Oh, I had to go back to Illinois. He was sick and I had to go back, and then we moved to Salina, Kans.

Mr. SPECTER. You reunited?

Mrs. OLSEN. Yes.

Mr. SPECTER. And when did you live in Salina, Kans.?

Mrs. OLSEN. Oh, that was the latter part of 1958.

Mr. SPECTER. And where did you move from Salina, Kans.?

Mrs. OLSEN. Wichita.

Mr. SPECTER. How long did you live in Wichita?

Mrs. OLSEN. About 6 months.

Mr. SPECTER. And where did you next live after your residency in Wichita, Kans.?

Mrs. OLSEN. Dallas.

Mr. SPECTER. When did you move to Dallas?

Mrs. OLSEN. June 1961.

Mr. SPECTER. How long did you reside in Dallas?

Mrs. OLSEN. Oh, let me see. We came out here in January of 1964. Two and a half years.

Mr. SPECTER. Have you resided here in Los Angeles since January of this year?

Mrs. OLSEN. February 1.

Mr. SPECTER. Of 1964?

Mrs. OLSEN. Yes.

Mr. SPECTER. Did you know Jack Ruby?

Mrs. OLSEN. Yes.

Mr. SPECTER. When did you first meet Mr. Ruby?

Mrs. OLSEN. Oh, it was around July 1961.

Mr. SPECTER. What were the circumstances of your meeting him?

Mrs. OLSEN. Oh, I just went up to his club to see some girlfriends.

Mr. SPECTER. What club is that?

Mrs. OLSEN. Carousel Club.

Mr. SPECTER. And how did you happen to meet him?

Mrs. OLSEN. Well, he asked me to go to work for him.

Mr. SPECTER. And were you subsequently employed by Mr. Ruby?

Mrs. OLSEN. Oh, it took me about a month to think it over, because everybody thought he wouldn't last, you know, they thought his business wouldn't last, competitionwise, you know, and I went to work for him, I guess it was the latter part of July.

Mr. SPECTER. Of what year?

Mrs. OLSEN. 1961.

Mr. SPECTER. And how long did you work for him altogether?

Mrs. OLSEN. Two years and four months; on and off.

Mr. SPECTER. How did you get along with Mr. Ruby?

Mrs. OLSEN. Very good.

Mr. SPECTER. Did you ever have any disagreements with him?

Mrs. OLSEN. Yes; about, you know, trying to get a day off.

Mr. SPECTER. What was the cause, did you say, of the disagreement?

Mrs. OLSEN. Trying to get a day off. That was about it.

Mr. SPECTER. Did you ever have any other difficulties with Mr. Ruby?

Mrs. OLSEN. No; not really.

Mr. SPECTER. Was there ever romantic interest between you and Mr. Ruby?

Mrs. OLSEN. No.

Mr. SPECTER. How did you meet Mr. Olsen, your husband?

Mrs. OLSEN. When I was working up there.

Mr. SPECTER. At the Carousel Club?

Mrs. OLSEN. Yes.

Mr. SPECTER. How did Mr. Ruby and Mr. Olsen get along?

Mrs. OLSEN. Oh, he liked Harry.

Mr. SPECTER. Did they ever argue or fight?

Mrs. OLSEN. Oh, over me once in a while, trying to get some time off.

Mr. SPECTER. Was there ever any other disagreement between Mr. Ruby and Mr. Olsen?

Mrs. OLSEN. Well, he didn't think that Harry should come up there so much, me working there.

Mr. SPECTER. How frequently did Harry come to the club?

Mrs. OLSEN. Oh, maybe on Saturday night for an hour or something, you know about once a week.

Mr. SPECTER. Did Mr. Ruby ever do any favors for Mr. Olsen?

Mrs. OLSEN. Not that I know of.

Mr. SPECTER. Where did you live in September of 1963?

Mrs. OLSEN. On Ewing.

Mr. SPECTER. What was your specific address?

Mrs. OLSEN. I think it was 325 North Ewing.

Mr. SPECTER. Where did Mr. Olsen live at that time?

Mrs. OLSEN. In September?

Mr. SPECTER. September of 1963.

Mrs. OLSEN. 1963? I think he was at Theatre Lane.

Mr. SPECTER. Where did Mr. Ruby live in September of 1963?

Mrs. OLSEN. I think he lived on Ewing, too. I don't know the address; it was out further.

Mr. SPECTER. What was your relationship with Mr. Olsen in the fall or September of 1963?

Mrs. OLSEN. Well, steady.

Mr. SPECTER. You were going together steadily?

Mrs. OLSEN. Yes.

Mr. SPECTER. Did you have plans to marry at that time?

Mrs. OLSEN. Yes. But we couldn't because of me working, and, you know, the police department, the wives couldn't work in a place like that, you know.

Mr. SPECTER. Was there any other reason why you couldn't marry Mr. Olsen at that time?

Mrs. OLSEN. No.

Mr. SPECTER. Was his divorce final at that time?

Mrs. OLSEN. Oh, I guess. I don't know when he got it.

Mr. SPECTER. Was he separated from his wife in the fall of 1963?

Mrs. OLSEN. I think he was divorced. This is just last September?

Mr. SPECTER. Yes.

Mrs. OLSEN. Yes; he was divorced then. Oh, yes.

Mr. SPECTER. Did Ruby ever visit Mr. Olsen at his apartment?

Mrs. OLSEN. No.

Mr. SPECTER. Did Mr. Ruby ever visit you at your apartment?

Mrs. OLSEN. Oh, he has been over for breakfast with a group, a group of people.

Mr. SPECTER. On how many occasions was he at your apartment; that is, on how many occasions was Mr. Ruby at your apartment?

Mrs. OLSEN. Oh, I would say twice.

Mr. SPECTER. Were others always present on those occasions?

Mrs. OLSEN. Yes. It's hard to remember all this, you know.

Mr. SPECTER. How far was your apartment from Mr. Ruby's in the fall of 1963?

Mrs. OLSEN. Oh, I would say a mile.

Mr. SPECTER. It wasn't a block away?

Mrs. OLSEN. No. I'm not very good at distances, but it was way at the end. He lived way out on Ewing.

Mr. SPECTER. How many blocks was it?

Mrs. OLSEN. Oh, I don't know. He lived in two places, he lived on Marsalis once.

Mr. SPECTER. When did he live on Marsalis? How do you spell that?

Mrs. OLSEN. M-a-r-s-a-l-i-s.

Mr. SPECTER. When did he live at the Marsalis residence?

Mrs. OLSEN. Oh, well, I know he was there on July the 4th the year before, because we always spent July 4th over there, all the employees.

Mr. SPECTER. Where was he living in the fall of 1963, say September, October, November?

Mrs. OLSEN. Ewing.

Mr. SPECTER. And how far was his Ewing Street residence from your residence at 325 Ewing?

Mrs. OLSEN. Well, do you know the block number? Could you give me a block number?

Mr. SPECTER. No; I am not able to do that. Do you recollect his block number?

Mrs. OLSEN. No; I don't know it. I just know the big apartment building.

Mr. SPECTER. And you don't know how many blocks it was?

Mrs. OLSEN. I don't; no.

Mr. SPECTER. Did you work at Mr. Ruby's Carousel Club on a daily basis; that is, did you work every day?

Mrs. OLSEN. Yes; 7 days a week.

Mr. SPECTER. Do you recall Friday, November 22, 1963, the day President Kennedy was assassinated?

Mrs. OLSEN. Yes.

Mr. SPECTER. When had you seen Mr. Ruby before that Friday?

Mrs. OLSEN. Thursday night at work.

Mr. SPECTER. And do you recall whether you had any conversation with Mr. Ruby on Thursday, November 21?

Mrs. OLSEN. No; I can't remember. I didn't used to talk to him too much, I stayed out of his way.

Mr. SPECTER. Tell me as precisely as you can recollect what you did on Friday, November 22.

Mrs. OLSEN. Harry was guarding an estate on 8th Street just a ways from where I lived, and I fixed a lunch for him and stopped off at the 7-11 store to get him some milk, and that's when I heard that there had been some trouble downtown; a colored lady told me that.

Mr. SPECTER. What time was that that you stopped at the 7-11 store?

Mrs. OLSEN. Oh, I guess about 12:30.

Mr. SPECTER. In the afternoon?

Mrs. OLSEN. Yes. I can't remember the morning. I had the children and I can't remember. We probably had been in the pool or something.

Mr. SPECTER. What time did you awaken that Friday morning, if you recall?

Mrs. OLSEN. It was probably late, because I worked that night.

Mr. SPECTER. And you cared for your children in the morning?

Mrs. OLSEN. Yes.

Mr. SPECTER. How many children have you?

Mrs. OLSEN. Two girls.

Mr. SPECTER. And their names and ages?

Mrs. OLSEN. Susan is 9½ and Sheri is 7.

Mr. SPECTER. Both of these children were born during your first marriage?

Mrs. OLSEN. Yes.

Mr. SPECTER. And after picking up the milk at the 7-11 store, what did you do next?

Mrs. OLSEN. I went up to give Harry his lunch, and he had heard it; some woman had called. He was sitting there and some woman had called and she wanted to speak to the lady that was supposed to be there. Harry answered the phone and she told him, I think, about the President getting shot, because he already knew when I got there, so we sat in the car and listened to the car radio, and that's how we knew about it.

Mr. SPECTER. How long were you there at the house Harry was guarding?

Mrs. OLSEN. Oh, I guess about an hour.

Mr. SPECTER. What did you do next?

Mrs. OLSEN. I called from there down to the club and this is when Harry said, "You are going to quit; this is it," you know.

Mr. SPECTER. Why did Harry say that to you?

Mrs. OLSEN. Well, I was on the verge of it anyway, we were going to come out here last August and we kept putting it off and putting it off, and—wait a minute, maybe I'm wrong. I called in and I said, "Are we open tonight?"

Mr. SPECTER. Who did you talk to?

Mrs. OLSEN. The bartender.

Mr. SPECTER. What is his name?

Mrs. OLSEN. Andrew.

Mr. SPECTER. Andrew what?

Mrs. OLSEN. I don't know.

Mr. SPECTER. At the Carousel Club?

Mrs. OLSEN. Yes.

Mr. SPECTER. And what did the bartender say?

Mrs. OLSEN. I didn't get to talk to Jack Ruby. Apparently he was crying and everything.

Mr. SPECTER. How do you know that?

Mrs. OLSEN. Andy told me. And I said, "What is Jack doing?" And he said, "Oh, he is all upset and he is crying." And he said, "We are closed tonight." And after all this happened, oh, I had no desire to get back in that business or anything, I was just sick over it anyway, so that's when I said, "Well, I'm not going back." I didn't tell Jack this or anything, you know, because, you see, we are union and we have to give notice.

Mr. SPECTER. You told Mr. Olsen that day that you did not intend to go back to work for Mr. Ruby?

Mrs. OLSEN. Well, business, the whole business, I was through.

Mr. SPECTER. And you made a telephone call from the house that Mr. Olsen was guarding?

Mrs. OLSEN. Yes.

Mr. SPECTER. What did you do after that?

Mrs. OLSEN. I went home.

Mr. SPECTER. At about what time did you make that telephone call?

Mrs. OLSEN. Oh, I guess it was around 1:15. The President was killed at 1 o'clock, wasn't he?

Mr. SPECTER. 12:30.

Mrs. OLSEN. Well, I must have got there a little before that, then, because I didn't hear it until I sat in the car with Harry.

Mr. SPECTER. Well, didn't some lady tell you about it at the 7-11 store?

Mrs. OLSEN. Well, she said the President had been shot; that's what she said.

Mr. SPECTER. Then what is your best recollection about when you left that house?

Mrs. OLSEN. Oh, I guess about 1:30. So I must have called about 1:15.

Mr. SPECTER. Then where did you go next?

Mrs. OLSEN. I was going to take the girls to the show.

Mr. SPECTER. What show?

Mrs. OLSEN. I didn't know.

Mr. SPECTER. Some movie?

Mrs. OLSEN. Yes; a movie. And, well, I didn't; I wasn't in the mood to sit in a movie, you know, and I really can't remember.

Mr. SPECTER. Did you see anybody that afternoon?

Mrs. OLSEN. I went and sat with my landlady.

Mr. SPECTER. What is her name?

Mrs. OLSEN. She was the manager of the apartment; Mrs. Hall. We sat there.

Mr. SPECTER. What is Mrs. Hall's first name?

Mrs. OLSEN. I don't know.

Mr. SPECTER. Where does she live?

Mrs. OLSEN. Ewing; 325 North Ewing.

Mr. SPECTER. When you left the house that Mr. Olsen was guarding, did you go right back to your own residence?

Mrs. OLSEN. Yes.

Mr. SPECTER. Did you see anybody that afternoon besides Mrs. Hall?

Mrs. OLSEN. No. Just, I guess, neighbors.

Mr. SPECTER. Which neighbors?

Mrs. OLSEN. I don't know. I can't remember the names.

Mr. SPECTER. Did you telephone anybody?

Mrs. OLSEN. No; I don't think so.

Mr. SPECTER. And what did you do later in the afternoon, if anything?

Mrs. OLSEN. I fixed supper for Harry and the girls. I think he got off about 4 that day.

Mr. SPECTER. Well, he was guarding the house that day. Did he finish guarding the house at 4?

Mrs. OLSEN. I think the man relieved him—it was 6. The other policeman relieved him at 6.

Mr. SPECTER. What policeman was that?

Mrs. OLSEN. I don't know.

Mr. SPECTER. Then Mr. Olsen came over to your residence?

Mrs. OLSEN. Yes, as far as I can remember.

Mr. SPECTER. And how long did he stay there?

Mrs. OLSEN. Well, we watched TV and, oh, we sat in front of that TV set for a long time, and we were all nervous and upset, you know.

Mr. SPECTER. Was anybody else there besides you and Mr. Olsen and your two children?

Mrs. OLSEN. No.

Mr. SPECTER. Did you call anybody that evening by telephone?

Mrs. OLSEN. No.

Mr. SPECTER. Did anybody call you that evening?

Mrs. OLSEN. No. This is as far as I can recollect. I mean I can't be positive. I just can't remember that day too well.

Mr. SPECTER. And how long did Mr. Olsen stay there that evening?

Mrs. OLSEN. We went out. We, you know, got nervous sitting there.

Mr. SPECTER. At what time did you go out?

Mrs. OLSEN. Oh, it was late; it was about 11.

Mr. SPECTER. Where did you go?

Mrs. OLSEN. We went downtown to a private club. We wanted a drink; we were kind of shook up.

Mr. SPECTER. What club did you go to?

Mrs. OLSEN. It was the Sip and Nip on Commerce Street.

Mr. SPECTER. Sip and Nip?

Mrs. OLSEN. Yes.

Mr. SPECTER. Did you see anybody there that you knew?

Mrs. OLSEN. Oh, we knew the bartender and the waitress. Because we didn't get out, you know, too often with me working all the time.

Mr. SPECTER. What was the bartender's name?

Mrs. OLSEN. I think his name was Lee. I'm pretty sure it was Lee.

Mr. SPECTER. What was the waitress' name?

Mrs. OLSEN. I can't remember.

Mr. SPECTER. Did you see anybody else you knew?

Mrs. OLSEN. No; not there.

Mr. SPECTER. How long did you stay there at the club?

Mrs. OLSEN. Well, they close at 12.

Mr. SPECTER. Did you see anybody else you knew someplace else?

Mrs. OLSEN. Well, we went—do you want to know later what happened?

Mr. SPECTER. Fine.

Mrs. OLSEN. We went to the parking lot; we used to go over there and talk to Johnny.

Mr. SPECTER. Johnny who?

Mrs. OLSEN. I don't know.

Mr. SPECTER. Where is the parking lot located?

Mrs. OLSEN. Right behind the Carousel Club; across the street on—what street would that be?

Mr. SPECTER. Akard?

Mrs. OLSEN. Akard?

Mr. SPECTER. Jackson and Akard?

Mrs. OLSEN. Jackson.

Mr. SPECTER. Was that at the intersection of Jackson and Akard?

Mrs. OLSEN. No. Jackson and the next street down. What was that? Field; Jackson and Field. And we sat in there and we talked.

Mr. SPECTER. How long did you talk to Johnny?

Mrs. OLSEN. Oh, quite a while.

Mr. SPECTER. Was anybody else there at that time?

Mrs. OLSEN. Not that I remember; no. And we were sitting there; it was late, and that's when Jack Ruby drove by.

Mr. SPECTER. What time did he drive by?

Mrs. OLSEN. Oh, I can't be positive on these times.

Mr. SPECTER. About what time?

Mrs. OLSEN. I guess around 1.

Mr. SPECTER. Did he stop?

Mrs. OLSEN. Yes. We waved, and he stopped. He stopped at a red light and pulled in and he came in and sat in the car and talked to us for quite a while.

Mr. SPECTER. How long did that conversation last?

Mrs. OLSEN. Oh, I guess an hour or so at least.

Mr. SPECTER. As nearly as you can recollect, tell me exactly what he said and what you said to him?

Mrs. OLSEN. Well, everyone was shocked, you know, and we talked about Mrs. Kennedy and the children and how terrible it was, and he told us he had been down to the police station to take the boys some sandwiches down there, and he was real upset, kind of wild-eyed, had his real stary look, and he was upset that—well, he was mad that these other clubowners hadn't closed down.

Mr. SPECTER. Which clubowners?

Mrs. OLSEN. The Theatre Lounge and the Colony Club. I hate to remember all this stuff, I really do. You know, I have such a different life now and I hate to rehash it all.

Mr. SPECTER. What else did Mr. Ruby say at that time?

Mrs. OLSEN. I think he told us he had seen Oswald transferred, if I remember right, and we asked him what he looked like and he said he looked like a little rat, real sneaky looking.

Mr. SPECTER. He saw him transferred from where to where?

Mrs. OLSEN. I don't know. He saw him down there. I think as they were moving him from one room to another.

Mr. SPECTER. He saw down where?

Mrs. OLSEN. At the police station.

Mr. SPECTER. Did he say anything more about Oswald?

Mrs. OLSEN. Oh, I guess he cussed him out a bit. He was just real upset.

Mr. SPECTER. Did he say anything about what he intended to do?

Mrs. OLSEN. About his club?

Mr. SPECTER. About anything.

Mrs. OLSEN. No.

Mr. SPECTER. Did he say he intended to shoot Oswald?

Mrs. OLSEN. No.

Mr. SPECTER. Do you know whether or not Ruby knew Oswald?

Mrs. OLSEN. I don't think he did.

Mr. SPECTER. Did you ever see Oswald in the club?

Mrs. OLSEN. No.

Mr. SPECTER. Had you ever seen Oswald at all?

Mrs. OLSEN. No.

Mr. SPECTER. What else did Ruby say at that time?

Mrs. OLSEN. That's about all I can remember.

Mr. SPECTER. Was there any conversation about Officer J. D. Tippit?

Mrs. OLSEN. No. Was Tippit shot that day? Yes; he was, wasn't he?

Mr. SPECTER. Tippit was shot on Friday afternoon; that day.

Mrs. OLSEN. Yes. I can't remember, because I didn't know Officer Tippit.

Mr. SPECTER. Do you know whether or not Mr. Ruby knew Officer J. D. Tippit?

Mrs. OLSEN. Well, I read in the papers that he did.

Mr. SPECTER. Aside from what you read in the papers, do you have any personal knowledge——

Mrs. OLSEN. No.

Mr. SPECTER. As to whether Mr. Ruby knew Officer Tippit?

Mrs. OLSEN. No.

Mr. SPECTER. Did Mr. Olsen know Officer Tippit?

Mrs. OLSEN. He said he did.

Mr. SPECTER. Did he know him well?

Mrs. OLSEN. He said he had never been over to his house or anything, he just seen him in the locker room, you know.

Mr. SPECTER. During the course of that conversation what did you say, that is, when Mr. Ruby came by and you were parked at the parking lot talking to Johnny?

Mrs. OLSEN. Just how terrible everything was.

Mr. SPECTER. Do you recall anything else that you said specifically?

Mrs. OLSEN. No; I can't remember.

Mr. SPECTER. Did you say, "In England they would have hung Oswald by his toes and dragged him through the street?"

Mrs. OLSEN. No.

Mr. SPECTER. Did you make any reference at all to what would happen to Oswald if he were in England?

Mrs. OLSEN. No.

Mr. SPECTER. Is there anything else you can recollect about that conversation?

Mrs. OLSEN. No.

Mr. SPECTER. Had you talked to Ruby earlier on that Friday?

Mrs. OLSEN. No.

Mr. SPECTER. How long had you been at that parking lot before Ruby arrived?

Mrs. OLSEN. I guess about an hour, as close as I can remember.

Mr. SPECTER. During the course of that conversation, did Ruby say anything about the Weissman ad?

Mrs. OLSEN. I don't know what you mean.

Mr. SPECTER. Did you know of any advertisement in the newspaper containing derogatory remarks or unfavorable comments about President Kennedy?

Mrs. OLSEN. No.

Mr. SPECTER. Did Mr. Ruby say anything during that conversation about the radicals in Dallas?

Mrs. OLSEN. The what?

Mr. SPECTER. The radicals in Dallas.

Mrs. OLSEN. I don't know what that means.

Mr. SPECTER. Did he say anything about the John Birch Society?

Mrs. OLSEN. No.

Mr. SPECTER. Did he say anything about the Communists in Dallas?

Mrs. OLSEN. No.

Mr. SPECTER. Did he say anything about the radical right?

Mrs. OLSEN. No.

Mr. SPECTER. Did Mr. Ruby say anything about the effect on Jews?

Mrs. OLSEN. No.

Mr. SPECTER. Did you say anything to Mr. Ruby about his closing his club?

Mrs. OLSEN. Oh, just in conversation I asked him how long he thought he could close. See, I didn't give him notice or anything, I had to get hold of the union man first, because the union, you know, you have to give a 2-week notice, otherwise you have to pay them 2 weeks' salary. But I got out of that, I talked to the union man and he said—well, I think they call it an act of God when something like this happens, and you just don't want any part of working like that any more. I think that made all of us think a little bit.

Mr. SPECTER. Did you praise Ruby for closing up the club after the assassination?

Mrs. OLSEN. Yes, I thought it was the right thing to do.

Mr. SPECTER. Did you tell him so?

Mrs. OLSEN. Yes.

Mr. SPECTER. Did Mr. Olsen say anything about that?

Mrs. OLSEN. Oh, I can't remember.

Mr. SPECTER. Did Mr. Olsen shake his hand for closing up the club?

Mrs. OLSEN. Well, they used to shake hands all the time. I don't know.

Mr. SPECTER. Were you upset at that time about the assassination?

Mrs. OLSEN. Very.

Mr. SPECTER. Was Mr. Olsen upset?

Mrs. OLSEN. Yes; very much.

Mr. SPECTER. And how about Mr. Ruby, how was he?

Mrs. OLSEN. Real upset.

Mr. SPECTER. What did you observe about him that led you to the conclusion that he was upset?

Mrs. OLSEN. Well, he looked awful tired and he would sit back and stare off into space, and he never cried or anything, but, you know, he would just keep saying over and over how terrible it was, what a wonderful man the President was and how sorry he felt for Mrs. Kennedy and the children.

Mr. SPECTER. After Mr. Ruby left what did you and Mr. Olsen do next?

Mrs. OLSEN. We came home to my house.

Mr. SPECTER. What time did you arrive at your house?

Mrs. OLSEN. Oh, let me see. It was kind of late, I guess around 3.

Mr. SPECTER. What did you do next?

Mrs. OLSEN. I guess I went to bed.

Mr. SPECTER. What did Mr. Olsen do?

Mrs. OLSEN. He left. He was living on Theatre—yes, he left.

Mr. SPECTER. He was living where?

Mrs. OLSEN. Theatre Lane. He went to Theatre Lane.

Mr. SPECTER. What time did you awaken the next morning, which would have been Saturday?

Mrs. OLSEN. Now, can I ask you, is this the day Oswald was shot?

Mr. SPECTER. Oswald was shot on Sunday.

Mrs. OLSEN. Oh, Saturday? Oh, I would say around 11.

Mr. SPECTER. Did you——

Mrs. OLSEN. I had to go pick up my daughters, see, from the babysitter.

Mr. SPECTER. Did you see anybody that you knew on that Saturday?

Mrs. OLSEN. I can't remember.

Mr. SPECTER. Did you telephone anybody?

Mrs. OLSEN. I can't remember.

Mr. SPECTER. Did anyone telephone you?

Mrs. OLSEN. Well, I have girl friends, you know, and we probably called each other.

Mr. SPECTER. Can you recall any specific girl friend who either called you or whom you called?

Mrs. OLSEN. No.

Mr. SPECTER. Did you see Mr. Olsen later that day?

Mrs. OLSEN. I don't know if he was working or not. I can't remember.

Mr. SPECTER. Do you recall when you did see him next?

Mrs. OLSEN. No. Oh, we went out that evening.

Mr. SPECTER. Where did you go?

Mrs. OLSEN. I don't know. I can't remember. I'm not being very helpful, am I? But it was what, 9 months ago.

Mr. SPECTER. Do you recall seeing anybody else you knew on that evening besides Mr. Olsen?

Mrs. OLSEN. We saw Jack Ruby standing outside of his club. We parked.

Mr. SPECTER. What time was that?

Mrs. OLSEN. Oh, I guess around 9. And he was standing outside and he covered up all these pictures or something.

Mr. SPECTER. He had covered up the pictures?

Mrs. OLSEN. I think he had covered up pictures.

Mr. SPECTER. What pictures did he cover up?

Mrs. OLSEN. Of the girls, you know, in the show. I think he covered them up or something, or took them out or something.

Mr. SPECTER. Why did he do that, do you know?

Mrs. OLSEN. No.

Mr. SPECTER. Did you talk to Mr. Ruby on that occasion?

Mrs. OLSEN. No. We just pulled in the parking lot and said “Hi, how are you,” and he said “OK.” It was just hello and goodbye, you know.

Mr. SPECTER. Have you ever talked to Mr. Ruby since that time?

Mrs. OLSEN. No.

Mr. SPECTER. What did you do next?

Mrs. OLSEN. That evening?

Mr. SPECTER. Yes.

Mrs. OLSEN. We went out, but I can’t remember where.

Mr. SPECTER. Do you remember whether you saw anybody that night, or whether you talked to anybody you knew?

Mrs. OLSEN. No; I don’t know. I don’t even know where we went.

Mr. SPECTER. What time did you arrive home that night?

Mrs. OLSEN. Probably late.

Mr. SPECTER. Did you make any telephone calls after you arrived home?

Mrs. OLSEN. No.

Mr. SPECTER. What did Mr. Olsen do after he brought you home?

Mrs. OLSEN. Went home, I guess.

Mr. SPECTER. Do you recall what time you awakened on the next day, which would have been Sunday, the day Oswald was shot?

Mrs. OLSEN. Yes; my daughter woke me. Can you tell me what time did this happen, the shooting, and I can tell you what time I woke up, because my daughter woke me up and told me about it, because she knew Jack, see.

Mr. SPECTER. Well, what is your best recollection as to what time your daughter awakened you?

Mrs. OLSEN. I expect 11:30, I guess. Because I get up in the morning and fix their breakfast and everything and then I go back to bed.

Mr. SPECTER. What did she say to you?

Mrs. OLSEN. She said, "Jack shot Oswald," and I said, "Oh, no; don't be silly," you know, but I got out of bed and turned on the TV and it was just—it was just coming on, I think then, and I recognized him by the back of his head, you know, from his back, and then, of course, my neighbors started knocking because they knew where I worked and they said, "Have you heard," you know, and, oh, I couldn't believe it.

Mr. SPECTER. What neighbor did that?

Mrs. OLSEN. Well, I think my landlady.

Mr. SPECTER. Mrs. Hall?

Mrs. OLSEN. Mrs. Hall; yes, probably.

Mr. SPECTER. Anybody else?

Mrs. OLSEN. I think Nancy, one of the girls across the way, came in and had some coffee.

Mr. SPECTER. What is Nancy's last name?

Mrs. OLSEN. Ernest.

Mr. SPECTER. Where does she live?

Mrs. OLSEN. She lives in one of the apartments on Ewing.

Mr. SPECTER. Did you talk to anybody else at that time?

Mrs. OLSEN. No. Because I think that was the night we were going up to—I had never met Harry's parents. This was another reason I quit, you know, and I wouldn't have to lie to them or anything, you know. And I was hunting up a babysitter, that's right.

Mr. SPECTER. Did you talk to anybody else on that Sunday by telephone or in person?

Mrs. OLSEN. No.

Mr. SPECTER. What did you do that Sunday?

Mrs. OLSEN. We went to Wichita Falls—Henrietta, Henrietta.

Mr. SPECTER. How far is Henrietta?

Mrs. OLSEN. About 160 miles, I think. To Harry's parents.

Mr. SPECTER. On Sunday, November 24?

Mrs. OLSEN. I think that was the night. I'm sure that was the Sunday.

Mr. SPECTER. What time did you leave Dallas?

Mrs. OLSEN. Oh, about 2 in the afternoon, I guess.

Mr. SPECTER. And what time did you arrive at Henrietta, Tex.?

Mrs. OLSEN. I got that wrong. It was dark when we got there. I guess we left later, about 4. I think we got there about 6:30. It was dark or something, I don't remember.

Mr. SPECTER. How long did you stay at Henrietta?

Mrs. OLSEN. Oh, about 3 hours.

Mr. SPECTER. And what time did you leave?

Mrs. OLSEN. About 10, I guess.

Mr. SPECTER. Did you drive back to Dallas that night?

Mrs. OLSEN. Yes.

Mr. SPECTER. Whom did you see at Henrietta?

Mrs. OLSEN. Harry's parents. And then we visited another friend of the family.

Mr. SPECTER. What was the name of that friend?

Mrs. OLSEN. His name was Harry. I don't know his last name.

Mr. SPECTER. Did you visit or meet anyone else at Henrietta?

Mrs. OLSEN. No.

Mr. SPECTER. While you were at Henrietta did you talk to anyone over the telephone?

Mrs. OLSEN. No.

Mr. SPECTER. What did you do when you arrived back in Dallas late that Sunday night?

Mrs. OLSEN. Went to bed.

Mr. SPECTER. Were you listening to the radio or television before Oswald was shot that Sunday?

Mrs. OLSEN. No; I was sleeping.

Mr. SPECTER. Did you hear any announcements on that day that Oswald was about to be moved?

Mrs. OLSEN. No.

Mr. SPECTER. Did you see Ruby on that Sunday?

Mrs. OLSEN. No.

Mr. SPECTER. Did you talk to Ruby on that Sunday?

Mrs. OLSEN. No.

Mr. SPECTER. After you heard that Oswald was shot did you contact anybody?

Mrs. OLSEN. I think I called Jean, my girl friend in Grand Prairie.

Mr. SPECTER. What is Jean's last name?

Mrs. OLSEN. Jean Simms.

Mr. SPECTER. In Grand Prairie, Tex.?

Mrs. OLSEN. Yes.

Mr. SPECTER. What was the purpose of contacting her?

Mrs. OLSEN. Well, about Jack, you know, what a shock it was.

Mr. SPECTER. Why did you call her?

Mrs. OLSEN. She was my closest friend.

Mr. SPECTER. Was there any specific purpose in calling her?

Mrs. OLSEN. No; it was—you know, when somebody you work for does something like this you just want to talk to someone, you know.

Mr. SPECTER. Did you call anybody else?

Mrs. OLSEN. No.

Mr. SPECTER. Did anybody else call you?

Mrs. OLSEN. Not that I can remember. There might have been a girl friend or something.

Mr. SPECTER. And did you ever go back to the Carousel Club after that Sunday?

Mrs. OLSEN. We went up New Year's Eve for a few minutes just to see some of the girls that worked up there, and it was a real terrible atmosphere. We didn't stay long.

Mr. SPECTER. Of course, Mr. Ruby wasn't there at that time?

Mrs. OLSEN. No.

Mr. SPECTER. Did you ever go back to work at the Carousel Club after Oswald was shot?

Mrs. OLSEN. No.

Mr. SPECTER. Did you go back to the Carousel Club to get your clothes?

Mrs. OLSEN. Yes.

Mr. SPECTER. When did you do that?

Mrs. OLSEN. When?

Mr. SPECTER. Yes.

Mrs. OLSEN. When I got the clearance from the union, he said it was all right.

Mr. SPECTER. Whom did you deal with to get the clearance from the union?

Mrs. OLSEN. Tom Palmer.

Mr. SPECTER. How do you spell his last name?

Mrs. OLSEN. P-a-l-m-e-r.

Mr. SPECTER. And when did you get the clearance from Mr. Palmer?

Mrs. OLSEN. Well, I didn't work for a couple of weeks there, so it was over that period, you know, a couple of weeks.

Mr. SPECTER. When is your best recollection, then, as to when you went back to the club to get your clothes?

Mrs. OLSEN. Oh, I guess a week later.

Mr. SPECTER. Whom did you see?

Mrs. OLSEN. The bartender let me in.

Mr. SPECTER. What was his name?

Mrs. OLSEN. Andrew.

Mr. SPECTER. What did you say to him, if anything?

Mrs. OLSEN. Well, he didn't have too much to say to me. I think they thought I was a traitor for not sticking with them, you know.

Mr. SPECTER. Were you crying at the time?

Mrs. OLSEN. Yes; I think I was.

Mr. SPECTER. Why were you crying?

Mrs. OLSEN. I felt sorry for Jack at that time, if I remember rightly.

Mr. SPECTER. Did you say——

Mrs. OLSEN. Just a minute, I'm just trying to think. I think Tom Howard, Jack Ruby's attorney, was up there at that time, and he got me in tears, I think.

Mr. SPECTER. How did he get you in tears, so to speak?

Mrs. OLSEN. Well, I was upset anyway, and nervous, and, well, he just talked about Jack said hello to all of us and he didn't feel bad about me quitting, anything I wanted to do was all right, not to worry about it, you know, worry about quitting. You see, most of the girls stayed.

Mr. SPECTER. Was anybody else there at the time you went back to get your clothes?

Mrs. OLSEN. No.

Mr. SPECTER. But you recollect seeing attorney Tom Howard and bartender Andy?

Mrs. OLSEN. I think that was the same day. I'm not sure.

Mr. SPECTER. But were you back there on any other day?

Mrs. OLSEN. No. The way I am confused, one evening we were up there.

Mr. SPECTER. Was that New Year's Eve?

Mrs. OLSEN. Before I got my clothes. No; it was before that.

Mr. SPECTER. When you say you were up there, whom do you mean?

Mrs. OLSEN. Alice and I, a girl friend.

Mr. SPECTER. What is Alice's last name?

Mrs. OLSEN. I think she quit, too, at that time.

Mr. SPECTER. What is Alice's last name?

Mrs. OLSEN. Oh——

Mr. SPECTER. Not Alice Nichol?

Mrs. OLSEN. Alexander.

Mr. SPECTER. Was it Alice Nichol?

Mrs. OLSEN. No; Alice Alexander, I think it was. She was a waitress.

Mr. SPECTER. Where does she live?

Mrs. OLSEN. Grand Prairie.

Mr. SPECTER. And when was it that you and she were there together?

Mrs. OLSEN. I can't remember. It was some evening.

Mr. SPECTER. Whom did you see when you were there?

Mrs. OLSEN. It seems like that was the night the attorney was up there. I went up to get my paycheck; that's right; I went up to get my paycheck. That's the night I was up there.

Mr. SPECTER. Did Mr. Ruby pay you by check or by cash?

Mrs. OLSEN. Check, and then we would sign the check and he would give us the cash, you know, like that.

Mr. SPECTER. And who was there on that occasion?

Mrs. OLSEN. What occasion?

Mr. SPECTER. When you went to get your paycheck.

Mrs. OLSEN. That was when Alice came with me. I'm pretty sure that this was the night that Tom Howard was up there, and that was the night that I was crying, I think.

Mr. SPECTER. Was there anybody there besides you and Alice and Tom Howard?

Mrs. OLSEN. No; I think Andrew was even out of the office quite a bit.

Mr. SPECTER. Did you have any occasion to leave Dallas soon after November 24th, the Sunday when Oswald was shot?

Mrs. OLSEN. How soon? What do you mean?

Mr. SPECTER. Within a few days?

Mrs. OLSEN. No.

Mr. SPECTER. Did you go to work in Oklahoma City?

Mrs. OLSEN. Yes; that was about—I think it was about 2 weeks after. I wanted to make some money for Christmas.

Mr. SPECTER. For whom did you work in Oklahoma City?

Mrs. OLSEN. It was the Kings Club. I can't remember.

Mr. SPECTER. Did you have an arrangement to go up there to work?

Mrs. OLSEN. Yes; an agent got me a booking.

Mr. SPECTER. When did you make that arrangement to go there to work?

Mrs. OLSEN. Oh, within that 2 weeks afterward.

Mr. SPECTER. Did you see Tammi True in Oklahoma City?

Mrs. OLSEN. Yes; I stayed with her; we shared a room.

Mr. SPECTER. What, if anything, did you tell her?

Mrs. OLSEN. Oh, we discussed a lot of things about it.

Mr. SPECTER. What did you talk about with respect to Jack Ruby?

Mrs. OLSEN. What a crazy thing he did. And that I would never go back to work there. That was about it.

Mr. SPECTER. How long did you stay with Tammi True?

Mrs. OLSEN. Three weeks.

Mr. SPECTER. Where did she live?

Mrs. OLSEN. We had a motel. It was the club owner's motel where he rented to the entertainers. I can't remember the name of it.

Mr. SPECTER. Was there any other reason why you left Dallas to go to Oklahoma City?

Mrs. OLSEN. No; just to make some money for Christmas.

Mr. SPECTER. Did Mr. Olsen have an accident at about that time?

Mrs. OLSEN. Yes; while I was up there.

Mr. SPECTER. What happened to him exactly?

Mrs. OLSEN. He totaled his car; hit a telephone pole.

Mr. SPECTER. When you say "totaled," you mean a total wreck?

Mrs. OLSEN. Yes.

Mr. SPECTER. What injuries, if any, did he sustain?

Mrs. OLSEN. I think he broke two bones in his leg and he separated his shoulder and he had multiple chest injuries, black eye.

Mr. SPECTER. Was he hospitalized?

Mrs. OLSEN. Yes.

Mr. SPECTER. Where?

Mrs. OLSEN. Methodist Hospital.

Mr. SPECTER. Why did you later go to California?

Mrs. OLSEN. Why did we come out here?

Mr. SPECTER. Yes.

Mrs. OLSEN. Well, we had no desire to stay in Dallas. He used up all his sick time on the police department, and, well, we wanted to come out here a year—well, last August we were going to come out here and we didn't have enough money, and then he got his settlement from the car and I saved a

little money and so we just came out here. We always wanted to come out to California.

Mr. SPECTER. Going back to the Friday of the assassination and the following Saturday and the following Sunday when Oswald was shot, during that time did you see or talk to Little Lynn?

Mrs. OLSEN. No.

Mr. SPECTER. During that time did you see or talk to Tammi True?

Mrs. OLSEN. No.

Mr. SPECTER. During that time did you see or talk to Bruce Carlin?

Mrs. OLSEN. Who?

Mr. SPECTER. Bruce Carlin.

Mrs. OLSEN. I don't know who that is.

Mr. SPECTER. Do you know a Bruce Carlin?

Mrs. OLSEN. No.

Mr. SPECTER. During that time did you see or talk to Tom O'Grady?

Mrs. OLSEN. I don't know him.

Mr. SPECTER. During that time did you see or talk to Blackie Harrison?

Mrs. OLSEN. I don't know him either.

Mr. SPECTER. During that same time did you see or talk to Ralph Paul?

Mrs. OLSEN. Yes; I called him on the—oh, now, wait. You are saying from the Friday to the Sunday?

Mr. SPECTER. Yes.

Mrs. OLSEN. No.

Mr. SPECTER. When did you talk to Ralph Paul?

Mrs. OLSEN. I guess it was Monday when they reopened the club. I think that was the day they reopened it, I'm not sure.

Mr. SPECTER. Did you see Ralph Paul in person or did you talk to him on the telephone?

Mrs. OLSEN. I talked to him on the telephone and I told him I wasn't coming back to work, and he said, "Well, it's up to you." He was very cool.

Mr. SPECTER. What connection, if any, did he have with the Carousel Club?

Mrs. OLSEN. I think he is the owner.

Mr. SPECTER. The coowner with Ruby?

Mrs. OLSEN. I thought Jack Ruby was just like managing it, you know, a front; that Ralph had all the money in the place.

Mr. SPECTER. What else was in that conversation between you and Ralph Paul, if anything?

Mrs. OLSEN. That was it.

Mr. SPECTER. Did Ralph Paul tell you that Ruby told him Saturday night he was going to shoot Oswald?

Mrs. OLSEN. No.

Mr. SPECTER. Are you sure?

Mrs. OLSEN. I'm sure.

Mr. SPECTER. Did Paul tell you anything about what Ruby told him?

Mrs. OLSEN. No.

Mr. SPECTER. During the time from that Friday, November 22, until the following Sunday on November 24, did you see or talk to George Senator?

Mrs. OLSEN. No.

Mr. SPECTER. During that time did you see or talk to Eva Grant?

Mrs. OLSEN. No.

Mr. SPECTER. Or Breck Wall?

Mrs. OLSEN. No.

Mr. SPECTER. Or Mickey Ryan?

Mrs. OLSEN. I don't know him—oh, yes; I do; but I didn't see him.

Mr. SPECTER. During that same time did you see or talk to Tom Howard?

Mrs. OLSEN. No. Now, this is the Friday to the Sunday, right?

Mr. SPECTER. Yes.

Mrs. OLSEN. No.

Mr. SPECTER. Lieutenant Butler, did you see or talk to Lieutenant Butler during that time?

Mrs. OLSEN. I don't know him.

Mr. SPECTER. Do you know Detective L. D. Miller?

Mrs. OLSEN. No.

Mr. SPECTER. Did you make any other telephone calls during that time from November 22 to November 24?

Mrs. OLSEN. Other than girl friends?

Mr. SPECTER. Other than the ones you have already told me about.

Mrs. OLSEN. No.

Mr. SPECTER. Did you receive any telephone calls from the day of the assassination until the following Sunday, other than those you have already told me about?

Mrs. OLSEN. No.

Mr. SPECTER. Did you ever see or hear of Oswald before November 22?

Mrs. OLSEN. No.

Mr. SPECTER. Do you know Bertha Cheek?

Mrs. OLSEN. Is this who they call Aunt Bertha, the one that works at the Colony Club?

Mr. SPECTER. I am not able to say.

Mrs. OLSEN. Well, that's the only Bertha I know. I have worked with her.

Mr. SPECTER. Did you ever know of any Bertha Cheek who operated an apartment house?

Mrs. OLSEN. No.

Mr. SPECTER. Do you know Eugene Smith?

Mrs. OLSEN. No.

Mr. SPECTER. Do you know whether Jack Ruby was ever a member of any subversive organization which advocated the forceful overthrow of the U.S. Government?

Mrs. OLSEN. I don't know.

Mr. SPECTER. Do you know whether any of his family or friends was ever a member of such an organization?

Mrs. OLSEN. I don't know that either.

Mr. SPECTER. Do you know anything about Ruby's trip to Cuba?

Mrs. OLSEN. No, sir.

Mr. SPECTER. Do you know anything about Mr. Ruby's attitude towards the John Birch Society?

Mrs. OLSEN. No, sir.

Mr. SPECTER. Do you know anything about Mr. Ruby's attitude towards the Minutemen?

Mrs. OLSEN. I don't know what that means.

Mr. SPECTER. Do you have anything to add which you think might be helpful in any way to the President's Commission?

Mrs. OLSEN. No. I wish I could help you, but that's about all I can remember, just as an employee and that's about it.

Mr. SPECTER. Before the oath was administered to you, that is, before I swore you in, did you and I have a very brief conversation about the subject matter that I would ask you about during this deposition?

Mrs. OLSEN. Yes.

Mr. SPECTER. And did you answer the questions for me at that time in the same way that you have on the record here this afternoon?

Mrs. OLSEN. Yes.

Mr. SPECTER. Mrs. Olsen, we permit the witnesses to read the depositions and to sign them if they wish to do so, and during the course of the deposition with Mr. Olsen, it was concluded that he would read and sign his deposition, so this transcript, which is the typing up of the questions and answers, will be made available to you to read and sign.

Mrs. OLSEN. Okay.

Mr. SPECTER. And that concludes the deposition and we thank you very much for coming here today.

Mrs. OLSEN. All right.

Transcriber's Notes

Punctuation was made consistent when a predominant preference was found in this book; otherwise it were not changed. Omitted question marks not remedied.

Misspellings that could be due to mispronunciations were not changed.

Simple typographical errors were corrected; occasional unbalanced quotation marks corrected when proper placement was clear.

Ambiguous hyphens at the ends of lines were retained; occurrences of inconsistent hyphenation have not been changed.

Text uses both “twistboards” and “twist boards”.

Page [80](#): “look at photograph L” may have been printed as “look at photograph I.”

Page [163](#): “50 shares” was printed that way; elsewhere, the quantity is 500.

Page [190](#): “make me go in in early” was printed that way.

Page [280](#): One of the questions asked by Mr. Griffin was identified as being asked by Mr. Wilson. Corrected here.

Page [301](#): “having one to the Southland Hotel” likely is a misprint for “gone”.

Page [305](#): “first started to work for him” was misprinted as “stated”. Corrected here.

Page [306](#): “put a pouch on him” was printed that way.

Page [318](#): Transcriber added missing closing quotation mark after “talk to down there?”

Page [322](#): There is an extra closing quotation mark in the text at the top of the page, after “Jack told him”, or a missing opening quotation mark.

Page [432](#): Transcriber added a closing quotation mark after “closed Friday, Saturday, and Sunday.”

Page [443](#): “acquaintenance” was printed that way.

Page [485](#): Transcriber added a closing quotation mark after “You think you will be all right”.

Page [571](#): “it would not completely accurate” was printed that way, but is missing the word “be”.

Page [614](#): “or any other other Federal agency” was printed that way.

Page [620](#): “that might have have happened” was printed that way.

*** END OF THE PROJECT GUTENBERG EBOOK WARREN
COMMISSION (14 OF 26): HEARINGS VOL. XIV (OF 15) ***

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